

MUNICIPAL CODE
City of
GOLDEN, COLORADO
Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2292, adopted April 28, 2026.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2278, adopted August 26, 2025.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2266, adopted April 22, 2025.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2249, adopted October 22, 2024.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2230, adopted March 20, 2024.

See the Ordinance List and Disposition Table for further information.

Included in the Charter is:

Ordinance No. 2227, adopted January 23, 2024.

See the Charter Comparative Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2222, adopted August 22, 2023.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2196, adopted October 25, 2022.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2182, adopted May 10, 2022.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2170, adopted December 7, 2021.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2159, adopted April 20, 2021.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2134, adopted February 27, 2020.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2124, adopted December 5, 2019.

See the Ordinance List and Disposition Table for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2103, adopted February 28, 2019.

See the Ordinance List and Disposition Table for further information.

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Ordinance No. 2092, adopted October 25, 2018.

See the Ordinance List and Disposition Table for further information.

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This copy of the Golden Municipal Code is issued as a "replacement copy" and contains all ordinances deemed advisable to be included through Ordinance No. 1992. See the Ordinance List and Disposition Table for further information.

This copy replaces all existing copies of the Golden Municipal Code. Future copies will commence with "Supplement No. 1."



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PREFACE

This Code constitutes a codification of the general and permanent ordinances of the City of Golden, Colorado.

The Code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the Title, Chapter and Section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Dennis Sinnett, Vice President, Supplements, and Mary Summers, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Ms. Susan Brooks, City Clerk, for her cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

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(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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CD18:105, CD18:106	15	CD18:163, CD18:164	OC
CD18:107, CD18:108	15	CD18:165, CD18:166	OC
CD18:109, CD18:110	15	CD18:167, CD18:168	OC
CD18:111, CD18:112	15	CD18:169, CD18:170	OC
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CD18:122.13, CD18:122.14	16	CCT:3, CCT:4	OC
CD18:122.15, CD18:122.16	16	CCT:5, CCT:6	OC
CD18:122.17, CD18:122.18	16	CCT:7, CCT:8	OC
CD18:122.19, CD18:122.20	18	CCT:9, CCT:10	OC
CD18:123, CD18:124	18	CCT:11, CCT:12	OC
CD18:125, CD18:126	18	CCT:13, CCT:14	OC
CD18:127, CD18:128	20	CCT:15, CCT:16	18
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CD18:131, CD18:132	20	CCT:17, CCT:18	OC
CD18:133, CD18:134	20	CCT:19, CCT:20	OC
CD18:135, CD18:136	20	CCT:21, CCT:22	OC
CD18:137, CD18:138	20	CCT:23, CCT:24	3
CD18:139, CD18:140	20	CCT:24.1	3
CD18:141, CD18:142	20	CCT:25, CCT:26	OC
CD18:143, CD18:144	20	CCT:27, CCT:28	OC
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ordinance Number	Date Adopted	Included/Omitted	Supplement Number
1993	10-23-2014	Omitted	1
1994	12- 4-2014	Included	1
1995	12- 4-2014	Omitted	1
1996	12-11-2014	Included	1
1997	12-11-2014	Included	1
1998	12-11-2014	Omitted	1
1999	12- 4-2014	Omitted	1
2000	2-19-2015	Omitted	1
2001	2-19-2015	Omitted	1
2002	2- 5-2015	Omitted	1
2003	2-19-2015	Included	1
2004	4- 9-2015	Included	1
2005	4- 9-2015	Omitted	1
2006	4- 9-2015	Included	1
2007	4- 9-2015	Omitted	1
2008	5-14-2015	Included	1
2009	5-14-2015	Included	1
2010	5-14-2015	Omitted	1
2011	5-28-2015	Included	1
2012	6-11-2015	Included	1
2013	6-25-2015	Included	1
2014	6-25-2015	Omitted	1
2015	9-24-2015	Included	2
2016	12-10-2015	Included	2
2017	10- 8-2015	Included	2
2018	11-12-2015	Omitted	2
2019	12- 3-2015	Omitted	2
2020		Defeated	
2021	12-10-2015	Included	2
2022	12-10-2015	Included	2
2023	1-21-2016	Omitted	2
2024	1-21-2016	Omitted	2
2025	2-25-2016	Included	2
2026	2-25-2016	Included	2
2027	2-25-2016	Omitted	2

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Ordinance Number	Date Adopted	Included/ Omitted	Supplement Number
2028	4-15-2016	Omitted	2
1836	2-26-2009	Included	3
2029	7-28-2016	Included	3
2030	7-28-2016	Omitted	3
2031	7-28-2016	Omitted	3
2032	8-11-2016	Omitted	3
2033	8-11-2016	Omitted	3
2034	8-25-2016	Omitted	3
2035	9- 8-2016	Omitted	3
2036	9- 8-2016	Omitted	3
2037	9- 8-2016	Included	3
2038	10-27-2016	Omitted	3
2039	11-10-2016	Included	3
2040	11-10-2016	Included	3
2041	11-10-2016	Included	3
2042	11-10-2016	Included	3
2043	12- 1-2016	Omitted	4
2044	1-12-2017	Included	4
2045	1-12-2017	Omitted	4
2046	1-26-2017	Included	4
2047	1-26-2017	Included	4
2048	2- 9-2017	Included	4
2049	2- 9-2017	Included	4
2050	2-23-2017	Omitted	4
2051	3-23-2017	Included	4
2052	3-23-2017	Included	4
2053	3-23-2017	Included	4
2054	3-23-2017	Included	4
2055	4-27-2017	Included	4
2058	7-13-2017	Included	5
2059	7-27-2017	Omitted	5
2060	8-10-2017	Included	5
2061	8-10-2017	Omitted	5
2062	8-24-2017	Omitted	5
2063	10-12-2017	Included	5
2064	10-12-2017	Included	5
2065	10-26-2017	Omitted	5
2066	12- 7-2017	Omitted	6
2067	2- 8-2018	Omitted	6
2068	3-22-2018	Included	6
2069	3-22-2018	Omitted	6
2070	3-22-2018	Omitted	6
2071	3-22-2018	Included	6
2072	3-22-2018	Included	6
2073	3-22-2018	Included	6
2074	3-22-2018	Included	6

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Ordinance Number	Date Adopted	Included/ Omitted	Supplement Number
2075	5-24-2018	Omitted	7
2076	5-24-2018	Omitted	7
2077	5-24-2018	Omitted	7
2078	5-24-2018	Included	7
2079	7-12-2018	Included	7
2080	7-12-2018	Omitted	7
2081	7-26-2018	Omitted	7
2082	7-26-2018	Included	7
2083	8-23-2018	Included	7
2084	8-23-2018	Omitted	7
2085	8-23-2018	Included	7
2086	10-11-2018	Omitted	7
2087	10-11-2018	Omitted	7
2089	10-11-2018	Included	7
2090	10-11-2018	Included	7
2091	10-25-2018	Omitted	7
2092	10-25-2018	Omitted	7
2093	12- 6-2018	Omitted	8
2094	12- 6-2018	Included	8
2095	12- 6-2018	Omitted	8
2096	1-10-2019	Omitted	8
2097	1-10-2019	Included	8
2098	2-14-2019	Included	8
2100	3- 7-2019	Included	8
2101	3- 7-2019	Omitted	8
2102	3- 7-2019	Omitted	8
2103	2-28-2019	Included	8
2088	10-11-2018	Included	9
2104	3-21-2019	Omitted	9
2105	4-25-2019	Included	9
2106	4-25-2019	Omitted	9
2107	4-25-2019	Omitted	9
2108	6-27-2019	Included	9
2109	6-27-2019	Included	9
2110	6-13-2019	Included	9
2111	7-25-2019	Omitted	9
2112	6-27-2019	Omitted	9
2113	7-11-2019	Omitted	9
2114	7-25-2019	Included	9
2115	7-25-2019	Included	9
2116	9-26-2019	Omitted	9
2117	9-26-2019	Omitted	9
2119	12- 5-2019	Included	9
2120	12- 5-2019	Omitted	9
2121	12- 5-2019	Omitted	9
2122	12- 5-2019	Included	9

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Ordinance Number	Date Adopted	Included/ Omitted	Supplement Number
2123	12- 5-2019	Included	9
2124	12- 5-2019	Omitted	9
2118	12-12-2019	Included	10
2125	1-23-2020	Omitted	10
2126	1-23-2020	Omitted	10
2127	1-23-2020	Omitted	10
2128	2-13-2020	Included	10
2129	2-13-2020	Included	10
2130	2-13-2020	Included	10
2131	2-27-2020	Included	10
2132	2-27-2020	Omitted	10
2133	2-27-2020	Omitted	10
2134	2-27-2020	Included	10
2135	5-14-2020	Omitted	11
2136	5-14-2020	Omitted	11
2137	5-14-2020	Included	11
2138	5-14-2020	Omitted	11
2139	7-23-2020	Included	11
2140	7- 9-2020	Omitted	11
2142	8-13-2020	Omitted	11
2143	9-10-2020	Included	11
2144	8-27-2020	Included	11
2145	9-10-2020	Included	11
2146	9-10-2020	Omitted	11
2148	12- 3-2020	Omitted	11
2149	12- 3-2020	Omitted	11
2150	12- 3-2020	Omitted	11
2151	1-26-2021	Included	11
2152	1-26-2021	Included	11
2153	1-12-2021	Omitted	11
2154	2- 9-2021	Omitted	11
2155	1-26-2021	Omitted	11
2156	4-20-2021	Included	11
2158	4-20-2021	Omitted	11
2159	4-20-2021	Omitted	11
2147	3-23-2021	Included	12
2157	5-25-2021	Included	12
2160	5-11-2021	Omitted	12
2162	7-27-2021	Omitted	12
2165	7-13-2021	Omitted	12
2166	7-21-2021	Included	12
2167	8-24-2021	Included	12
2168	10-26-2021	Omitted	12
2169	12- 7-2021	Omitted	12
2170	12- 7-2021	Included	12
2171	1-25-2022	Included	13

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Ordinance Number	Date Adopted	Included/ Omitted	Supplement Number
2172	1-25-2022	Omitted	13
2173	1-25-2022	Included	13
2174	3-15-2022	Omitted	13
2175	3-15-2022	Omitted	13
2176	3-15-2022	Omitted	13
2177	4-12-2022	Included	13
2178	5-10-2022	Omitted	13
2179	4-26-2022	Included	13
2180	5-10-2022	Included	13
2181	5-24-2022	Included	13
2182	5-10-2022	Included	13
2183	6-14-2022	Included	14
2184	6- 7-2022	Omitted	14
2185	6- 7-2022	Omitted	14
2186	6- 7-2022	Omitted	14
2187	6-14-2022	Omitted	14
2188	7-12-2022	Included	14
2189	7-12-2022	Included	14
2190	7-26-2022	Included	14
2191	7-12-2022	Omitted	14
2192	7-26-2022	Included	14
2194	8-23-2022	Included	14
2195	10-11-2022	Included	14
2196	10-25-2022	Included	14
Charter	10- 5-1967	Included	15
2197	11-15-2022	Omitted	15
2198	11-15-2022	Omitted	15
2199	12- 6-2022	Omitted	15
2200	12- 6-2022	Omitted	15
2201	12- 6-2022	Omitted	15
2202	12-13-2022	Included	15
2203	3-14-2023	Included	15
2204	3-28-2023	Included	15
2205	4-11-2023	Included	15
2206	4-25-2023	Included	15
2207	5- 9-2023	Omitted	15
2208	5- 9-2023	Included	15
2209	6- 6-2023	Included	15
2210	6- 6-2023	Included	15
2212	7-25-2023	Omitted	15
2214	7-25-2023	Included	15
2215	7-25-2023	Included	15
2217	7-25-2023	Included	15
2219	8-22-2023	Omitted	15
2220	8-22-2023	Omitted	15
2221	8-22-2023	Omitted	15

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Ordinance Number	Date Adopted	Included/Omitted	Supplement Number
2222	8-22-2023	Omitted	15
2216	7-25-2023	Included	16
2223	8- 8-2023	Included	16
2224	11-14-2023	Omitted	16
2225	11-28-2023	Included	16
2226	11-28-2023	Omitted	16
2227	1-23-2024	Included	16
2228	2-13-2024	Included	16
2229	2-13-2024	Included	16
2230	3-20-2024	Included	16
2193	7-26-2022	Omitted	17
2231	5-28-2024	Included	17
2232	4- 9-2024	Omitted	17
2233	4- 9-2024	Omitted	17
2234	5-28-2024	Omitted	17
2235	4-23-2024	Omitted	17
2238	5-14-2024	Included	17
2239	5-28-2024	Included	17
2240	5-28-2024	Included	17
2243	8-13-2024	Included	17
2244	7-23-2024	Omitted	17
2245	9-10-2024	Included	17
2247	10- 8-2024	Omitted	17
2248	10-22-2024	Omitted	17
2249	10-22-2024	Omitted	17
1441	3-11-1999	Included	18
1980	7-10-2014	Included	18
2250	12- 3-2024	Omitted	18
2251	12- 3-2024	Included	18
2253	12- 3-2024	Omitted	18
2254	12- 3-2024	Omitted	18
2255	12- 3-2024	Omitted	18
2256	12- 3-2024	Omitted	18
2252	1-28-2025	Included	18
2258	1-28-2025	Included	18
2259	1-28-2025	Included	18
2260	1-29-2025	Included	18
2261	1-28-2025	Omitted	18
2262	1-28-2025	Omitted	18
2263	3-25-2025	Included	18
2264	4- 8-2025	Included	18
2265	4- 8-2025	Included	18
2266	4-22-2025	Included	18
2267	5-27-2025	Included	19
2268	7-22-2025	Included	19
2269	7-22-2025	Omitted	19

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Ordinance Number	Date Adopted	Included/ Omitted	Supplement Number
2270	8-12-2025	Included	19
2271	8-12-2025	Included	19
2273	8-12-2025	Included	19
2274	7-22-2025	Included	19
2275	7-22-2025	Omitted	19
2276	7-22-2025	Included	19
2277	7-22-2025	Included	19
2278	8-26-2025	Included	19
2280	9-23-2025	Omitted	19
2279	10-28-2025	Included	20
2282	12- 9-2025	Included	20
2283	12- 9-2025	Included	20
2284	12- 9-2025	Included	20
2285	12- 9-2025	Included	20
2288	3-10-2026	Included	20
2289	3-10-2026	Included	20
2290	3-10-2026	Included	20
2291	4-28-2026	Omitted	20
2292	4-28-2026	Included	20
2294	5-12-2026	Omitted	20

CHARTER*

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***Editor's note**—Printed herein is the Charter of the City of Golden, Colorado, as adopted by the Golden Charter Convention on October 5, 1967, by authority of Article XX of the Constitution of the State of Colorado and approved by the citizens of Golden, Colorado on November 7, 1967. Amendments to the original Charter are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original Charter. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of citations to state statutes has been used. Additions made for clarity are indicated by brackets.

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- 6.3 Petitions.
- 6.4 Procedures after filing.
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- 7.2 Absence of city manager.
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- 7.6 City clerk.
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- 15.7 Bequests, gifts, and donations.
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- 15.9 Continuity of government.
- 15.10 Invalidity of part.
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PREFATORY SYNOPSIS

Twenty-one members of a Home Rule Charter Convention elected at a special Municipal Election in the City on August 8, 1967, were chosen pursuant to Article XX of the Constitution of the State of Colorado after the adoption of Home Rule by the Citizens of Golden.

The delegates to this Charter Convention have been constantly reminded of their duty to draft a City Charter which will govern the operations of the City for many years. This responsibility was accepted by the members of the Charter Convention, and their decisions have been made only after due deliberation. In most cases a general unanimity prevailed. In other cases, that solution agreeable to the majority was adopted. The Charter was drafted after extensive research into other City Government operations, Home Rule Charters, and upon the advice of various authorities in the field.

Basically, the Charter provides for continuing the present Council-Manager form of City Government with the Mayor being elected by the City Council from its own members. However, the new council will be composed of seven members, one member from each of the existing four wards of the City, one member from each of two new districts set up on the basis of two wards per district, and one member to be elected at large. Members of the new Council will have four-year terms with a provision for overlapping service. In connection with council procedure, an efficient form of operation was adopted, with the rights of the people protected through the provisions for initiative and referendum. Also adopted was a practicable form of budget control and financing advantageous to the City.

Although the Charter is designed for many generations, change is inevitable; thus by virtue of Article XX of the Constitution, a method is provided to amend the Charter by popular election.

PREAMBLE

We the people of Golden, Colorado, under the authority of the Constitution of the State of Colorado, do ordain, establish and adopt this Home Rule Charter for the City of Golden.

Chapter I

NAME—BOUNDARIES

1.1 Name—Boundaries.

The municipal corporation heretofore existing as a city of the second class in the County of Jefferson, State of Colorado, and known as the City of Golden, shall remain and continue as a body politic and corporate under this Charter with the same name and boundaries until changed in a manner authorized by law.

Chapter II

MUNICIPAL POWERS

2.1 Form of government.

The municipal government provided by this Charter shall be the council-manager form of government.

2.2 Municipal powers.

The city shall have all powers, functions, rights and privileges in the operation of a municipality except those expressly forbidden to home rule municipal corporations and cities by the constitution or the statutes.

Chapter III

COUNCIL

3.1 The council.

The City shall be governed by a council of six councilors and a mayor. One councilor shall be elected from each of the four wards; one councilor shall be elected from each of the two districts; and the mayor shall be elected at-large from the entire city. This amendment shall take effect starting with the regular city election in 2003. (Election of 11-6-2001)

3.2 Wards and districts.

The existing four wards of the city shall constitute the initial wards under this home rule charter. District One shall consist of Wards One and Two and District Two shall consist of Wards

Three and Four. All wards shall have approximately the same number of registered voters, as determined by the number registered to vote at the preceding general municipal election. The variances in said number of registered voters shall not be greater than fifteen per cent between the ward with the highest number of registered voters and the ward with the lowest number of registered voters. The council shall, at least six months prior to the second general municipal election to be held after the adoption of this home rule charter, and every four years thereafter, make such divisions, changes and consolidations as are necessary to carry out the intent of this section.

3.3 Powers of council.

The council shall be the legislative and governing body of the city and shall exercise, except as otherwise provided in this Charter or by statute, all powers conferred upon or possessed by the city and shall adopt such laws, ordinances and resolutions as it shall deem proper.

3.4 Qualifications.

Each councilor when nominated and elected shall be an elector of the city, a citizen of the United States for at least five years, and shall have resided in the city for one year immediately preceding such election. In addition, each councilor elected from a ward or district shall also be a resident and elector of that ward or district when nominated and elected. No councilor shall be a salaried employee of the city during the councilor's term of office nor shall any councilor, during the councilor's term of office, perform personal services for the city for which the councilor's is compensated other than as provided in section 3.5. The council shall be the judge of the election and qualifications of its own members.

(Ord. No. 2227, § 2, 1-23-2024, passed by voters 11-7-2023)

3.5 Compensation.

The members of the council shall receive such compensation, and the mayor such additional compensation, as the council shall prescribe by ordinance; provided, however, that the compensa-

tion of any member during the member's term of office shall not be increased nor decreased. The mayor and councilors may, upon order of the council, be paid actual and necessary expenses incurred in the performance of official duties.

(Ord. No. 2227, § 3, 1-23-2024, passed by voters 11-7-2023)

3.6 Mayor.

The mayor shall be elected as provided in Section 3.1. The mayor shall preside at meetings of the council and shall exercise such power and perform such other duties as are or may be conferred and imposed by this charter or the ordinances of the city. The mayor shall have all powers, rights and privileges of a council member. The mayor shall be recognized as head of the city government for all ceremonial and legal purposes and shall execute and authenticate legal instruments requiring signing as such official. The mayor shall appoint, with approval of a majority of council, a council member to serve as mayor pro-tem. In the absence or disability of the mayor, the mayor pro-tem shall perform all duties and have all powers of the mayor. In the event of vacancy in the office of mayor a successor shall be chosen in accordance with Section 3.7 (Vacancies). In the event of vacancy in the office of mayor pro-tem the mayor shall choose a successor in accordance with this Section.

(Ord. No. 2227, § 4, 1-23-2024, passed by voters 11-7-2023; election of 11-6-2001)

3.7 Vacancies.

An elected officer shall continue to hold office until the successor to the elected office is duly qualified. An elective office shall become vacant whenever any officer is recalled, dies, becomes incapacitated, resigns, or ceases to be a resident of the city, or if elected from a ward or district becomes a non-resident of that ward or district, or is convicted of a felony. Within 30 days after a vacancy occurs in an office with a remaining unexpired term not exceeding 180 days from the date the vacancy occurs, the remaining councilors shall choose by a majority vote a duly qualified person to fill such vacancy. If the remaining councilors fail to choose a successor within 30 days, the office shall remain vacant until the

next general election. If a vacancy occurs in an elective office with a remaining unexpired term exceeding 180 days from the date the vacancy occurs, then the remaining councilors shall, by resolution, call a special election in the under-represented ward, district or city, to elect a duly qualified successor to serve the remainder of the unexpired term provided that there will not be a general election within 180 days. If three or more vacancies exist simultaneously the remaining councilors shall, at the next regular meeting of the council, call a special election to fill such vacancies, provided there will not be a general municipal election within ninety days and provided that successors have not previously been elected. The special elections provided for in this Section shall not be held within 40 days of the passage of this resolution. Successor councilors elected or appointed under the procedures of this section shall enter upon the duties of office at the next regular meeting after oath of office. (Ord. No. 2227, § 5, 1-23-2024, passed by voters 11-7-2023; election of 11-4-1975)

3.8 Oath of office.

Before entering upon the duties of the office, every councilor and other city officer shall take, subscribe before, and file with the city clerk, an oath or affirmation that the councilor will support the Constitution of the United States, the Constitution of the State of Colorado, this charter and the ordinances of the city, and will faithfully perform the duties of the office. (Ord. No. 2227, § 6, 1-23-2024, passed by voters 11-7-2023)

Chapter IV ELECTIONS

4.1 First election.

The first general municipal election under this charter shall be the first Tuesday after the first Monday in November, 1969 at which time all seven councilors shall be elected. At that election, the councilors to be elected from each ward shall be elected for a four-year term and the councilors to be elected from the districts and

the councilor-at-large shall be elected for a two-year term. Thereafter the terms of all councilors shall be four years.

(Ord. No. 2227, § 7, 1-23-2024, passed by voters 11-7-2023)

4.2 General municipal elections.

General municipal elections shall be held on the first Tuesday in November in each odd numbered year commencing with the year 1969. In each general municipal election a number of councilors equal to the number of councilors whose terms then expire shall be elected. The terms of councilors elected at any general municipal election shall commence upon taking the oath of office at the ensuing organizational meeting of the council.

(Ord. No. 2227, § 8, 1-23-2024, passed by voters 11-7-2023; election of 11-2-2004)

4.3 Special municipal elections.

Special municipal elections shall be held when required by this charter or statute. Said elections shall be called by resolution of the council, or by ordinance. In any event no special election shall be held within 60 days of the passage of the resolution or the first reading of the ordinance except as provided for in Section 3.7. The resolution calling a special election shall set forth the purpose of the election. Any councilors elected at a special municipal election shall take office upon taking the oath of office at the next regular or special meeting of the city council.

(Ord. No. 2227, § 9, 1-23-2024, passed by voters 11-7-2023; election of 11-4-1975)

4.4 Laws governing elections.

Special and general municipal elections shall be governed by the Colorado Municipal Election Law as now existing or hereafter amended or modified, except as otherwise provided in this Charter and except as otherwise provided by ordinance. The council may by ordinance establish the method for the registration of electors; and the number, qualifications and compensation for election judges and clerks. The council may also

by ordinance establish an election commission with appropriate powers, duties, terms and qualifications.

4.5 Non-partisan elections.

All city elections shall be non-partisan.

4.6 Recall.

Any elected officer of the city may be recalled at any time after six months in office by the electors entitled to vote for a successor or such incumbent through the procedure and in the manner provided for in article XXI of the constitution. Consistent with the constitution and this Charter the council may provide by ordinance for further recall procedure.

Chapter V COUNCIL PROCEDURE

5.1 Regular meetings.

The council shall meet regularly at least twice each month at a day and hour to be fixed by the rules of council. The council shall determine the rules of procedure governing meetings. The first regular meeting in the month of January following each general municipal election shall be known as the organizational meeting of the council.

5.2 Special meetings.

Special meetings shall be called by the city clerk on the written request of the mayor or of any two members of the council, on at least 24 hours written notice to each member of the council, served personally or left at the councilor's usual place of residence; a special meeting, however, may be held on shorter notice if all members of the council are present or have waived notice thereof in writing.

(Ord. No. 2227, § 10, 1-23-2024, passed by voters 11-7-2023)

5.3 Business at special meetings.

No business shall be transacted at any special meeting of the council unless it has been stated

in the notice of such meeting. Any business which may lawfully come before a regular meeting may be transacted at a special meeting if all the members of the council present consent and all the members absent file written consent.

(Ord. No. 2227, § 11, 1-23-2024, passed by voters 11-7-2023)

5.4 Quorum—Adjournment of meeting.

A majority of the members of the council in office at the time shall be a quorum for the transaction of business at all council meetings, but in the absence of a quorum a lesser number may adjourn any meeting to a later time or date, and in the absence of all members the city clerk may adjourn any meeting for not longer than one week.

5.5 Meetings to be public.

All regular and special meetings of the council shall be open to the public and citizens shall have a reasonable opportunity to be heard under such rules and regulations as the council may prescribe.

5.6 Council acts.

The council shall act only by ordinance, resolution or motion. All legislative enactments shall be in the form of ordinances; all other actions, except as herein provided, may be in the form of resolutions or motions. A true copy of every resolution as hereafter adopted shall be numbered and recorded in the official records of the city.

5.7 Voting.

The vote by "Yes" and "No" shall be taken upon the passage of all ordinances and resolutions, and entered upon the minutes of the council proceedings. Every ordinance shall require the affirmative vote of the majority of the entire council for final passage. Resolutions and motions shall require the affirmative vote of a majority of the members present. No member of the council shall vote on any question in which the member has a personal or financial interest, other than the common public interest, or on any question concerning the member own conduct, and in said instances the member shall disclose this interest

to the council. On all other questions each member who is present shall vote when the member's name is called unless excused by the unanimous consent of the remaining members present. Any member refusing to vote except when not so required by this paragraph shall be guilty of misconduct in office. At the request of any member of the council any vote shall be taken simultaneously in a manner prescribed by the council; provided, however, that the vote of each member shall be publicly announced immediately thereafter.

(Ord. No. 2227, § 12, 1-23-2024, passed by voters 11-7-2023)

5.8 Action by ordinance required.

In addition to such acts of the council as are required by other provisions of this Charter to be by ordinance, every act making an appropriation, creating an indebtedness, authorizing borrowing of money, levying a tax, establishing any rule or regulation for the violation of which a penalty is imposed, or placing any burden upon or limiting the use of private property, shall be by ordinance; provided, however, that this section shall not apply to the budget adoption in section 11.6. Ordinances making appropriations shall be confined to the subject of appropriation.

5.9 Form of ordinance.

Every ordinance shall be introduced in written or printed form. The enacting clause of all ordinances shall be "BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF GOLDEN, COLORADO." Except as otherwise provided in this chapter, all ordinances shall take effect five days after publication following final passage.

5.10 Procedure.

Except for emergency ordinances, ordinances making general codifications of existing ordinances, and ordinances adopting standard codes, the following procedure for enactment of ordinances shall be followed:

- a. The ordinance shall be introduced at any regular meeting of the council by any member thereof.

- b. The ordinance shall be read in full or, in cases where copies of the ordinance are available to the council and to those persons in attendance at said council meeting, said ordinance may be read by title only.
- c. After the first reading of the ordinance, the same shall be approved or rejected by a vote of the council.
- d. If the ordinance is approved on first reading, it shall be published in full unless otherwise provided herein. The council shall set a day, hour, and place at which council shall hold a public hearing on the ordinance and notice of said day, hour, and place shall be included in the first publication.
- e. The ordinance shall be introduced at council a second time, at a meeting not earlier than seven days after first publication, for final approval, rejection, or other action as may be taken by vote of the council. This meeting may be the same meeting at which the public hearing on the ordinance is held. The ordinance may be amended before final approval by vote of the council.
- f. Except as otherwise provided herein, an ordinance, if amended, shall be published in full after final passage, but if not amended, it shall be published either by title or in full as the council may determine.
- g. Whenever an ordinance shall be published by reference or by title, the publication shall contain a summary of the subject matter of said ordinance and shall contain a notice to the public that copies of the proposed ordinance are available at the office of the city clerk. The publication of any ordinance by reference or by title as provided herein must set forth in full any penalty clause contained in said ordinance.

5.11 Emergency ordinances.

Emergency ordinances for the preservation of public property, health, peace, or safety shall be

approved only by the unanimous vote of councilors present. The facts showing such urgency and need shall be specifically stated in the measure itself. No ordinance making a grant of any special privilege, levying taxes, or fixing rates charged by any city-owned utility shall ever be passed as an emergency measure. An emergency ordinance shall require passage at two meetings of council. However, neither a public hearing nor a first publication as provided in section 5.10 shall be required. An emergency ordinance shall take effect upon final passage. Publication shall be within 10 days after final passage, or as soon thereafter as possible.

(Ord. No. 2227, § 13, 1-23-2024, passed by voters 11-7-2023)

5.12 Codification.

The council shall cause the ordinances to be codified and thereafter maintained in current form. Revisions to the codes may be accomplished by reference as provided in Section 5.13.

5.13 Codes.

Standard codes, promulgated by the Federal Government, the State of Colorado, or by an agency of either of them, or by any municipality within the State of Colorado, or by recognized trade or professional organizations, or amendments or revisions thereof, may be adopted by reference; provided the publication of the ordinance adopting any said code shall advise that copies are available for inspection at the office of the city clerk, and provided that any penalty clause in any code may be adopted only if set forth in full and published in the adopting ordinance.

5.14 Disposition of ordinances.

A true copy of every ordinance, as adopted by council shall be numbered and recorded in the official records of the city. Its adoption and publication shall be authenticated by the signature of the mayor, or mayor pro-tem, and the city clerk, and by the certificate of publication. A true copy of every ordinance, as adopted by the

vote of the electors of the city, shall be separately numbered and recorded commencing with Peoples' Ordinance No. 1.

Chapter VI INITIATIVE AND REFERENDUM

6.1 General authority.

a. *Initiative.* The electors of the city shall have power to propose any ordinance to the council, in accordance with the provisions of this chapter of the charter, except budget, capital program, appropriation or levy of taxes, or salaries of city officers or employees. In the event council fails to adopt said proposed ordinance without any change in substance, the said proposed ordinance shall be submitted to the electors at a city election for acceptance or rejection.

b. *Referendum.* The electors of the city shall have power to require reconsideration by the council of any ordinance and, if the council fails to repeal an ordinance so reconsidered, to approve or reject it at a city election, in accordance with the provisions of this chapter of this charter; provided that such power shall not extend to the budget, capital program, emergency ordinance, appropriation, levy of taxes, calling a special election, or authorizing the issuance of local improvement district bonds payable primarily from special assessments, levying special assessments, or ordinances to meet the contractual obligations of the city.

(Ord. No. 2227, § 14, 1-23-2024, passed by voters 11-7-2023)

6.2 Commencement of proceedings; petitioner's committee; affidavit.

Any five electors may commence initiative or referendum proceedings by filing with the city clerk an affidavit stating they will constitute the petitioners' committee and be responsible for circulating the petition and filing it in proper form, stating the electors' names and addresses and specifying the address to which all notices to the committee are to be sent, and setting out in full the proposed initiative ordinance or citing the ordinance sought to be reconsidered.

Promptly after the affidavit of the petitioners' committee is filed the clerk shall issue the appropriate petition blanks to the petitioners' committee.

(Ord. No. 2227, § 15, 1-23-2024, passed by voters 11-7-2023)

6.3 Petitions.

a. *Number of signatures.* Initiative petitions must be signed by electors of the city equal in number to at least 10 percent of the total number of electors registered to vote at the last general municipal election. Referendum petitions must be signed by electors of the city equal in number

to at least 10 percent of the total number of electors registered to vote at the last general municipal election.

b. *Form and content.* All pages of a petition shall be uniform in size and style and shall be assembled as one instrument for filing. Each signature shall be executed in ink or indelible pencil and shall be followed by the address of the person signing. Petitions shall contain or have attached thereto throughout circulation the full text of the ordinance proposed or sought to be reconsidered.

c. *Affidavit of Circulator.* Each page of a petition shall have attached to it when filed an affidavit executed by the circulator thereof stating that the circulator personally circulated the petition, the number of signatures thereon, that all the signatures were affixed in the circulator's presence, that the circulator believes them to be the genuine signatures of the persons whose names they purport to be and that each signer had an opportunity before signing to read the full text of the ordinance proposed or sought to be reconsidered.

d. *Time for filing referendum petitions.* Referendum petitions must be filed within 30 days after adoption by the council of the ordinance sought to be reconsidered.

(Ord. No. 2227, § 16, 1-23-2024, passed by voters 11-7-2023; election of 11-1-1983)

6.4 Procedures after filing.

a. *Certificate of Clerk: Amendment.* Within ten days after the petition is filed, the city clerk shall complete a certificate as to its sufficiency, specifying, if it is insufficient, the particulars wherein it is defective and shall promptly send a copy of the certificate to the petitioners' committee by registered mail. A petition certified insufficient for lack of the required number of valid signatures may be amended once if the petitioners' committee files a notice of intention to amend it with the clerk within two days after receiving the copy of the certificate and files a supplementary petition upon additional forms within ten days after receiving the copy of such certificate. Such supplementary petition shall comply with the requirements of subsections (b)

and (c) of section 6.3, and within five days after it is filed the clerk shall complete a certificate as to the sufficiency of the petition as amended and promptly send a copy of such certificate to the petitioner's committee by registered mail as in the case of an original petition. If a petition or amended petition is certified sufficient, or if a petition or amended petition is certified insufficient and the petitioners' committee does not elect to amend or request council review under subsection (b) of this section within the time required, the clerk shall promptly present the certificate to the council and the certificate shall then be a final determination as to the sufficiency of the petition.

b. *Council review.* If a petition has been certified insufficient and the petitioners' committee does not file notice of intention to amend it or if an amended petition has been certified insufficient, the committee may, within two days after receiving the copy of such certificate, file a request that it be reviewed by the council. The council shall review the certificate at its next meeting following the filing of such request and approve or disapprove it, and the council's determination shall then be a final determination as to the sufficiency of the petition.

c. *Court review: New petition.* A final determination as to the sufficiency of a petition shall be subject to court review. A final determination of insufficiency, even if sustained upon court review, shall not prejudice the filing of a new petition for the same purpose.

(Ord. No. 2227, § 17, 1-23-2024, passed by voters 11-7-2023)

6.5 Referendum petitions: suspension of effect of ordinance.

When a referendum petition is filed with the city clerk, the ordinance sought to be reconsidered shall be suspended from taking effect. Such suspension shall terminate when:

1. There is a final determination of insufficiency of the petition, or
2. The petitioners' committee withdraws the petition, or
3. The council repeals the ordinance, or

4. Thirty days have elapsed after a favorable vote of the city on the ordinance.

6.6 Action on petitions.

a. *Action by council.* When an initiative or referendum petition has been finally determined sufficient, the council shall promptly consider the proposed initiative ordinance in the manner provided in Chapter V or reconsider the referred ordinance by voting its repeal. If the council fails to adopt a proposed initiative ordinance without any change in substance within 30 days or fails to repeal the referred ordinance within 30 days after the date the petition was finally determined sufficient, it shall submit the proposed or referred ordinance to the voters of the city.

b. *Submission to voters.* The vote of the city on a proposed or referred ordinance shall be held not less than 30 days and not later than ninety days from the date of the final council vote thereon. If no regular city election is to be held within the period prescribed in this subsection, the council shall provide for a special election; otherwise, the vote shall be held at the same time as such regular election, except that the council may in its discretion provide for a special election at an earlier date within the prescribed period. Copies of the proposed or referred ordinance shall be made available at the polls.

c. *Withdrawal of petitions.* An initiative or referendum petition may be withdrawn at any time prior to the fifteenth day preceding the day scheduled for a vote of the city by filing with the city clerk a request for withdrawal signed by at least four members of the petitioner's committee. Upon the filing of such request the petition shall have no further force or effect and all proceedings thereon shall be terminated.

6.7 Submission by council.

The council on its own motion, shall have the power to submit at a general or special election any proposed ordinance or question to a vote of the people in a manner as in this chapter provided.

6.8 Results of election.

a. *Initiative.* If a majority of the electors voting on a proposed initiative ordinance vote in its favor, it shall be considered adopted upon certification of the election results. If conflicting ordinances are approved at the same election, the one receiving the greatest number of affirmative votes shall prevail to the extent of such conflict.

b. *Referendum.* If a majority of the electors voting on a referred ordinance vote against it, it shall be considered repealed upon certification of the election results.

c. An ordinance adopted by the electorate may not be amended or repealed for a period of six months after the date of the election at which it was adopted, and an ordinance repealed by the electorate may not be re-enacted for a period of six months after the date of the election at which it was repealed; provided, however, that any ordinance may be adopted, amended or repealed at any time by appropriate referendum or initiatory procedure in accordance with the foregoing provisions of this Charter, or if submitted to the electorate by the council on its own motion.

Chapter VII CITY ADMINISTRATION

7.1 Manager.

Whenever a vacancy occurs, the council shall, within a reasonable time, upon a vote of the majority of the entire council, appoint a manager, who shall be the chief executive and administrative officer of the city. Such appointment shall be without definite term and shall be at a salary to be fixed by council. The manager shall be appointed without regard to any consideration other than fitness, competency, training, and experience as a manager. At the time of appointment the manager need not be a resident of the city, but during the manager's tenure of office the manager's shall reside within the city. No member of the council shall be appointed manager

during the term for which the councilor shall have been elected, nor within one year after the expiration of the councilor's term.

(Ord. No. 2227, § 18, 1-23-2024, passed by voters 11-7-2023)

7.2 Absence of city manager.

The council may appoint an acting city manager during the period of vacancy in the office, or during the absence or disability of the city manager. Such acting city manager shall, while in such office, have all the responsibilities, duties, functions and authority of the city manager.

(Ord. No. 2227, § 19, 1-23-2024, passed by voters 11-7-2023)

7.3 Powers and duties.

The manager shall be responsible to the council for the proper administration of all affairs of the city placed in the manager's charge, and to that end the manager shall have the power and duty and be required to:

- (a) Be responsible for the enforcement of the laws and ordinances of the city;
- (b) Hire, suspend, transfer and remove city employees, except as otherwise provided in any career service system adopted as provided in section 8.1;
- (c) Make appointments on the basis of executive and administrative ability and of the training and experience of such appointees in the work which they are to perform;
- (d) Cause a proposed budget to be prepared annually and submit it to the council and be responsible for the administration of the budget after its adoption all in accordance with Chapter XI of this Charter;
- (e) prepare and submit to the council as of the end of the fiscal year a complete report on finances and administrative activities of the city for the preceding year, and upon request of the council make written or verbal reports at any time concerning the affairs of the city under the manager's supervision;
- (f) keep the council advised of the financial condition and future needs of the city and make such recommendations to the council for adoption as the manager may deem necessary or expedient;
- (g) To establish, consolidate, or abolish administrative departments and to exercise supervision and control over said departments except as otherwise provided by ordinance;
- (h) Be responsible for the enforcement of all terms and conditions imposed in favor of the city in any contract or public utility franchise, and upon knowledge of any violation thereof, report the same to the council for such action and proceedings as may be necessary to enforce the same;
- (i) Attend council meetings and participate in discussions with the council in an advisory capacity;
- (j) Establish a system of accounting and auditing for the city which shall reflect, in accordance with generally accepted accounting principles, the financial condition and financial operation of the city;
- (k) provide for engineering, architectural, maintenance and construction services required by the city; and (l) perform such other duties as may be prescribed by this charter, or by ordinance, or required of the manager by council which are not inconsistent with this charter.
- (l) Perform such other duties as may be prescribed by this Charter, or by ordinance, or required of the manager by council which are not inconsistent with this Charter.

(Ord. No. 2227, § 20, 1-23-2024, passed by voters 11-7-2023)

7.4 Removal of.

The council at a regular or special meeting may, upon the vote of the majority of the entire council, remove the city manager from office. Upon such termination the council may in its discretion provide termination pay.

7.5 Council not to interfere.

Neither the council, its members, nor any of its committees shall direct or request the appointment of any person to, or removal from, employment by the city manager, or in any manner take part in the appointment or removal of the employees in the administrative service of the city, except as otherwise provided in this charter or any career service system adopted as provided in section 8.1.

(Ord. No. 2227, § 21, 1-23-2024, passed by voters 11-7-2023)

7.6 City clerk.

The manager with the approval of council shall appoint a city clerk, who shall be custodian of the city seal and who shall keep a journal of council proceedings and record in full all ordinances, motions, and resolutions. The city clerk shall have power to administer oaths and take acknowledgments under seal of the city, and shall perform such other duties as required by this charter, the council, and the manager.

(Ord. No. 2227, § 22, 1-23-2024, passed by voters 11-7-2023)

7.7 City treasurer.

The manager with the approval of council shall appoint a city treasurer. The city treasurer shall have custody of all public moneys belonging to or under the control of the city, or any office, department, or agency of the city, and deposit or invest all moneys as directed by resolution of the council. All interest earnings shall be the property of the city and shall be accounted for and credited by the city treasurer to the proper city fund. The city treasurer shall also collect, and disburse on proper authorization, all moneys receivable by the city and all other moneys for which the city is responsible for holding in trust, and shall perform such other duties as required by this charter, the council, and the manager.

(Ord. No. 2227, § 23, 1-23-2024, passed by voters 11-7-2023)

7.8 Concurrent tenure.

The offices of city clerk and city treasurer, at the discretion of the council, may be held by the same person.

7.9 Bonding of employees.

Before any public official or employee of the City of Golden is permitted to enter upon the duties of the office or position, such public official or employee shall be bonded, at the expense of the city, in an amount and manner to be fixed by the council.

(Ord. No. 2227, § 24, 1-23-2024, passed by voters 11-7-2023)

Chapter VIII CAREER SERVICE SYSTEM

8.1 Enabling act.

The council may, by ordinance submitted to a vote of the electors at a special or general municipal election, create a career service system. Until such time as a career service may be established, the city manager, upon request by any member of the city council or the affected employee, shall file a memorandum with the council setting forth the facts regarding the discharge or transfer of any city employee who has been employed for one year or longer.

Chapter IX LEGAL AND JUDICIARY

9.1 City attorney.

The council shall appoint a city attorney to serve at the pleasure of council. The city attorney shall be an attorney-at-law admitted to practice in Colorado and have a minimum of five years' experience in the active practice of law. The city attorney shall be the legal representative of the city and shall advise the council and city officials in matters relating to the city attorney's official powers and duties and perform such other duties as council may prescribe by ordinance or resolution. The council may provide the city attorney such assistants as council may deem necessary, and may on its own motion or upon request of the city attorney in special cases employ special counsel to serve under the direction of the city attorney. The council shall establish compensation for the city attorney, assistants, and special

counsel. Any agreement for compensation to special counsel shall be made only upon approval of council and prior to the service being rendered. (Ord. No. 2227, § 25, 1-23-2024, passed by voters 11-7-2023)

9.2 Judiciary.

There shall be a municipal court vested with exclusive original jurisdiction of all causes arising under the ordinances of the city and as may be conferred by law. The municipal court shall be presided over and its functions exercised by a judge appointed by the council. The municipal judge shall be an attorney-at-law admitted to practice in the State of Colorado and have a minimum of two years' experience in the active practice of law. Council may appoint one or more deputy judges who shall have the same qualification as the municipal judge. The deputy municipal judges shall have all of the powers of the municipal judge when called upon to act by the municipal judge or the council. The municipal judge and deputy municipal judges shall serve at the pleasure of the council. The municipal judge shall receive a fixed salary or compensation set by the council which salary or compensation shall not be dependent upon the outcome of the matters to be decided by the municipal judge. The deputy municipal judges may receive such compensation for services rendered as council may determine.

Chapter X BOARDS AND COMMISSIONS

10.1 Right to establish.

Council shall have the power and authority to create boards and commissions including advisory and appeal boards. Advisory boards may be created by resolution. Appeal boards shall be created by ordinance, which shall set forth the powers and duties delegated to the board. Initial appointments by the council to any board or commission shall specify the term of office of each individual in order to achieve overlapping tenure. All members, however, shall be subject to removal by the council. The council shall also make appointments to fill vacancies for the

unexpired terms. Each board and commission shall elect its own chairperson and vice-chairperson from among its members. Each board and commission shall operate in accordance with its own rules of procedure except as otherwise directed by the council. All meetings of any board or commission shall be open to the public. Any board or commission created under this chapter which is not required by statute or this charter may be abolished by the council. (Ord. No. 2227, § 26, 1-23-2024, passed by voters 11-7-2023)

Chapter XI BUDGET CONTROL AND FINANCING

11.1 Fiscal year.

The fiscal year of the city shall begin on the first day of January and end on the last day of December.

11.2 Submission of budget and budget message.

No later than 45 days prior to any date required by state law for the certification to the county of the tax levy for the ensuing year, the manager shall submit to the council the budget for said ensuing fiscal year and an accompanying message.

11.3 Budget message.

The manager's message shall explain the budget both in fiscal terms and in terms of the work programs. It shall outline the proposed financial policies of the city for the ensuing fiscal year, describe the important features of the budget, indicate any major changes from the current year in financial policies, expenditures, and revenues, together with the reasons for such changes, summarize the city's debt position, and include such other material as the manager deems desirable or which the council may require.

11.4 Budget.

The budget shall provide a complete financial plan of all city funds and activities for the ensuing fiscal year and, except as required by

law or this Charter shall be in such form as the manager deems desirable or the council may require. In organizing the budget, the manager shall utilize the most feasible combination of expenditure classification by fund, organization unit, program, purpose or activity, and object. It shall begin with a clear general summary of its contents and shall be so arranged as to show comparative figures for actual and estimated income and expenditures of the preceding fiscal year. It shall indicate in separate sections:

- a. Anticipated revenues classified as cash surplus, miscellaneous revenues, and amount to be received from property tax; cash surplus being defined for purposes of this article as the amount by which cash is expected to exceed current liabilities and encumbrances at the beginning of the ensuing fiscal year;
- b. Proposed expenditures for current operations during the ensuing fiscal year, detailed by offices, departments and agencies in terms of their respective work programs, and the method of financing such expenditures;
- c. A reasonable provision for contingencies which shall not be available for expenditures except as provided in section 11.7;
- d. Required expenditures for debt service, judgments, cash deficit recovery, and statutory expenditures;
- e. Proposed capital expenditures during the ensuing fiscal year, detailed by offices, departments and agencies when practicable, and the proposed method of financing each such capital expenditure; and
- f. Anticipated net surplus or deficit for the ensuing fiscal year for each utility owned or operated by the city and the proposed method of its disposition; subsidiary budgets for each such utility giving detailed income and expenditure information shall be attached as appendices to the budget.

The total of proposed expenditures and provision for contingencies shall not exceed the total of estimated revenue.

11.5 Capital program.

a. *Submission to council.* The manager, with such assistance as the council may direct, shall prepare and submit to the council a five-year capital program at least two months prior to the final date for submission of the budget.

b. *Contents.* The capital program shall include:

1. A clear general summary of its contents;
2. A list of all capital improvements which are proposed to be undertaken during the five fiscal years next ensuing, with appropriate supporting information as to the necessity for the improvement.
3. Cost estimates, method of financing and recommended schedules for each such improvement; and
4. The estimated annual cost of operating and maintaining the facilities to be constructed or acquired.

The above information may be revised or extended each year with regard to capital improvements still pending or in process of construction or acquisition.

11.6 Council action on budget.

a. *Notice and hearing.* A public hearing on the proposed budget shall be held by the council on any date at least fifteen days prior to the final day established by law for the certification of the ensuing year's tax levy to the county. Notice of the time and place of such hearing shall be published one time at least five days prior to the hearing.

b. *Amendment before adoption.* After the public hearing, the council may adopt the budget with or without amendment. In amending the budget, it may add or increase programs or amounts and may delete or decrease any programs or amounts, except expenditures required by law or for debt service or for estimated cash deficit, provided

that no amendment to the budget shall increase the authorized expenditures to any amount greater than the total of estimated revenue.

c. *Adoption.* The council shall adopt the budget by resolution on or before the final day established by law for the certification of the ensuing year's tax levy to the county. If it fails to adopt the budget by this date, the amounts appropriated for the current operation for the current fiscal year shall be deemed adopted for the ensuing fiscal year on a month-to-month basis, with all items in it pro-rated accordingly, until such time as the council adopts the budget for the ensuing fiscal year.

Adoption of the budget shall constitute appropriations of the amounts specified therein as expenditures from the funds indicated and shall constitute a levy of the property tax therein proposed.

11.7 Contingent expenditures.

Appropriations for contingencies may not be expended or transferred except by ordinance as provided in Sections 5.8, 5.11 and 11.1.

11.8 Council action on capital program.

A public hearing on the proposed capital program shall be held by the council on a date no later than the date set for the public hearing on the proposed budget for the ensuing year. The council may hold the public hearings on the capital program and the budget at the same time. Notice of the time and place of such hearing shall be published one time at least five days prior to the hearing. The council by resolution shall adopt the capital program with or without amendment after the public hearing and on a date no later than the date of adoption by the council of the budget for the ensuing year.

11.9 Public records.

Copies of the budget and the capital program as adopted shall be public records and shall be made available to the public in the city hall.

11.10 Amendments after adoption.

a. *Supplemental appropriations.* If during the fiscal year the manager certifies that there are available for appropriation revenues in excess of those estimated in the budget, the council by ordinance may make supplemental appropriations for the year up to the amount of such excess.

b. *Emergency appropriations.* To meet a public emergency affecting life, health, property or the public peace, the council may make emergency appropriations. Such appropriations may be made by emergency ordinance in accordance with provisions of section 5.11. To the extent that there are no available unappropriated revenues to meet such appropriations, the council may by emergency ordinance authorize the issuance of emergency notes, which may be renewed from time to time, but the emergency notes and renewals of any fiscal year shall be paid not later than the last day of the fiscal year next succeeding that in which the emergency appropriation was made.

c. *Reduction of appropriations.* If at any time during the fiscal year it appears probable to the manager that the revenues available will be insufficient to meet the amount appropriated, the manager shall report to the council without delay, indicating the estimated amount of the deficit, any remedial action taken and provide recommendation as to any other steps to be taken. The council shall then take such further action as it deems necessary to prevent or minimize any deficit and for that purpose it may by ordinance reduce one or more appropriations.

d. *Transfer of appropriations.* At any time during the fiscal year the manager may transfer part or all of any unencumbered appropriation balance among programs within a department, office or agency and, upon written request by the manager, the council may by resolution transfer part or all of any unencumbered appropriation balance from one department, office, agency, or object to another.

e. *Limitation-effective date.* No appropriation for debt service may be reduced or transferred, and no appropriation may be reduced below any amount required by law to be appropriated or by

more than the amount of the unencumbered balance thereof. The supplemental and emergency appropriation and reduction or transfer of appropriations authorized by this section may be made effective immediately upon adoption.

(Ord. No. 2227, § 27, 1-23-2024, passed by voters 11-7-2023)

11.11 Lapse of appropriation.

Every appropriation, except an appropriation for a capital expenditure, shall lapse at the close of the fiscal year to the extent that it has not been expended or encumbered. An appropriation for a capital expenditure shall continue in force until the purpose for which it has been made has been accomplished or abandoned; the purpose of any such appropriation shall be deemed abandoned if three years pass without any disbursement from or encumbrance of the appropriation.

11.12 Administration of budget.

a. Work programs and allotments. The manager may require each department, office or agency to submit work programs for the ensuing fiscal year showing the requested allotment of its appropriation by periods within the year. The manager shall review and authorize such allotments with or without revision as early as possible in the fiscal year. The manager may revise such allotments during the year if deemed desirable and the manager shall revise them to accord with any supplemental, emergency, reduced or transferred appropriations made pursuant to section 11.10.

b. Payments and obligations prohibited. No payments shall be made or obligation incurred against any allotment or appropriation except in accordance with appropriations duly made and unless the manager first certifies that there is a sufficient unencumbered balance in such allotment or appropriation and that sufficient funds therefrom are or will be available to cover the claim or meet the obligation when it becomes due and payable. Any authorization of payment or incurring of obligation in violation of the provisions of this charter shall be void and any payment so made illegal; such action shall be

cause for removal of any officer who knowingly authorized or made such payment or incurred such obligation, and the officer shall also be liable to the city for any amount so paid. However, except where prohibited by law, nothing in this charter shall be construed to prevent the making or authorizing of payments or making of contracts for capital improvements to be financed wholly or partly by the issuance of bonds, or to prevent the making of any contract or lease providing for payments beyond the end of the fiscal year, provided that such act was made or approved by ordinance.

(Ord. No. 2227, § 28, 1-23-2024, passed by voters 11-7-2023)

11.13 Independent audit.

The council shall provide for an independent annual audit of all city accounts and may provide for such more frequent audits as it deems necessary. Such audits shall be made by a certified public accountant or firm of such accountants who have no personal interest, direct or indirect, in the fiscal affairs of the city government or any of its officers. The council may, without requiring competitive bids, designate such accountant or firm annually or for a period not exceeding three years, provided that the designation for any particular fiscal year shall be made no later than thirty days after the beginning of such fiscal year.

Chapter XLV

SUBSIDIES AND INCENTIVES FOR DEVELOPMENT

11.5.1 Restrictions on development subsidies and incentives.

The City may not grant development subsidies or incentives in connection with the establishment, expansion, retention, or replacement of a business or any commercial, industrial, or residential development except in accordance with this Chapter.

- a. Any subsidies or incentives must be approved by the voters of the City of Golden, except as provided in Section

11.5.3 below. Ballot questions submitted to the voters shall include the maximum dollar value to the recipient(s) of the subsidies or incentives. Such ballot questions may concern individual projects or may propose a program of incentives or subsidies.

- b. All recipients of any incentive or subsidy must place on the premises and maintain for five years a sign in a conspicuous location for public viewing with at least two inch high letter thanking the taxpayers and stating the dollar value of all subsidies and incentives granted. (Enacted by vote of the people - November 6, 2001).

(Election of 11-6-2001)

11.5.2 Definition.

Development subsidies or incentives include but are not limited to:

- a. Tax waivers, credits, or refunds granted in connection with the establishment, expansion, or replacement of a business or any commercial, industrial or residential development;
- b. Payments or rebates based upon sales taxes collected;
- c. Waivers or deferments of development fees including, but not limited to water and sewer tap fees, building permit fees, impact fees, land dedication requirements or fees in lieu thereof;
- d. Labor or materials provided by the City for construction or demolition on private property;
- e. Any interest in real estate transferred for less than fair market value.

(Election of 11-6-2001)

11.5.3 Exceptions not requiring voter approval.

The City Council may approve development incentives or subsidies without voter approval only in the following circumstances:

- a. The amount is no more that \$100,000.00 (one hundred thousand dollars), with

annual adjustments of this limit in accordance with State Government statistics for the local inflation rate, and only if 1) granted in connection with construction of senior or low income housing as defined by State or Federal law or regulation, or 2) for improvements of structures eligible for designation under State or Federal law or regulation as historic structures, which improvements are in accordance with state or Federal guidelines for such improvements to historic structures; or

- b. The value does not exceed \$25,000.00 (twenty-five thousand dollars) with annual adjustments of this limit in accordance with State Government statistics for the local inflation rate.

(Election of 11-6-2001)

11.5.4 Enforcement.

Any City resident may file a claim against the City to enforce the provisions of this Section and if the citizen prevails on any claim the citizen may be entitled to all reasonable attorneys' fees and costs.

(Ord. No. 2227, § 29, 1-23-2024, passed by voters 11-7-2023; election of 11-6-2001)

Chapter XII

MUNICIPAL BORROWING

12.1 Forms of borrowing.

The city may borrow money and issue the following securities to evidence such borrowing:

- a. Short-term notes,
- b. General obligation bonds and other like securities,
- c. Revenue bonds and other like securities,
- d. Local improvement bonds and other like securities.

12.2 Short-term notes.

The municipal government, upon the affirmative vote of the majority of the entire council, is

hereby authorized to borrow money without an election in anticipation of the collection of taxes or other revenues and to issue short-term notes to evidence the amount so borrowed. Any such short-term notes shall mature before the close of the fiscal year in which the money is so borrowed.

12.3 General obligation bonds.

No bonds or other evidence of indebtedness payable in whole or in part from the proceeds of general property taxes or to which the full faith and credit of the city are pledged, shall be issued, except in pursuance of an ordinance, nor until the question of their issuance shall at a special or general election, be submitted, to a vote of the taxpaying electors and approved by a majority of those voting on the question (except as provided in sections 12.2, 12.4, 12.5, and 12.7); provided further that such securities issued for acquiring water and rights thereto, or acquiring, improving or extending a municipal water system, or any combination of such purposes, may be so issued without an election.

12.4 Revenue bonds.

The city, pursuant to ordinance, and without an election, may borrow money, issue bonds, or otherwise extend its credit for purchasing, constructing, condemning, otherwise acquiring, extending, or improving a water, electric, gas, or sewer system, or other public utility or income-producing project provided that the bonds or other obligations shall be made payable from the net revenues derived from the operation of such system, utility or project, and providing, further, that any two or more of such systems, utilities, and projects may be combined, operated, and maintained as joint municipal systems, utilities, or projects, in which case such bonds or other obligations shall be made payable out of the net revenue derived from the operation of such joint systems, utilities, or projects. Revenue bonds issued pursuant to the authority granted herein may be secured by general property taxes or the full faith and credit of the city in which event an election as provided in section 12.3 shall be necessary.

12.5 Refunding bonds.

The council may authorize, by ordinance, without an election, issuance of refunding bonds or other like securities for the purpose of refunding and providing for the payment of the outstanding bonds or other like securities of the city as the same mature, or in advance of maturity by means of an escrow or otherwise.

12.6 Limitations.

There shall be no limitation as to the amount of bonds which may be issued by the city, subject only to the election provisions of section 12.3. All bonds issued pursuant to the provisions of this Charter shall be sold at public or private sale to the best advantage of the city at, above or below par. Bonds may contain provisions for calling same at designated periods prior to the final due date, with or without the payment of a prior redemption premium.

12.7 Special or local improvement district bonds.

The city shall have the power to create local improvement districts and to assess the cost of the construction or installation of special or local improvements of every character against benefited property within designated districts in the city by:

- a. Order of the council; or
- b. On a petition by the owners of more than 50 per cent of the area of the proposed district, provided that such majority shall include not less than 50 per cent of the landowners residing in the territory; subject, in either event, to protest by the owners of the property in the designated district to be assessed.

Right to protest and notice of public hearing shall be given as provided by the council by ordinance. All protests shall be considered, but the council shall have the final decision. Such improvements shall confer special benefits to the real property within said district and general benefits to the city at large. The council shall have the power by ordinance without an election to prescribe the method of making such improve-

ments, of assessing the cost thereof, and of issuing bonds for cost of constructing or installing such improvements, including the costs incidental thereto. Council, in recognition of and payment for the general benefits conferred on the city as a whole, may pledge general property taxes or the full faith and credit of the city up to 25 per cent of the total bond issue and interest thereon without first obtaining approval of the electors.

Chapter XIII

UTILITIES AND FRANCHISES

13.1 Powers.

The city shall have and exercise with regard to all utilities and franchises, all municipal powers, including without limitation, all powers now existing and which may be hereafter provided by the constitution and statutes. The right of the city to construct, purchase, or condemn any public utility, work or way, is expressly reserved. Except as otherwise provided by constitution, statute, or this Charter, all powers concerning the granting, amending, revoking, or otherwise dealing in franchises shall be exercised by the council.

13.2 Water rights.

The city shall have the power to buy, sell, exchange, lease, own, control, and otherwise deal in water rights.

13.3 Rates.

The council shall by ordinance establish rates for services provided by city-owned utilities.

13.4 Granting of franchises.

No franchise shall be granted except upon approval by a majority of the taxpaying electors voting thereon.

13.5 Franchise records.

The council shall cause to be kept in the office of the city clerk an indexed franchise record in which shall be transcribed copies of all franchises heretofore and hereafter granted. The index

shall give the name of the grantee and any assignees. The record, a complete history of all such franchises, shall include a comprehensive and convenient reference to all actions at law affecting the same, and copies of all annual reports and such other matters of information and public interest as the council may from time to time require.

13.6 Existing franchises.

All franchise ordinances of the city in effect at the time that this Charter is adopted shall remain in full force and effect according to their provisions and terms until the expiration date provided in such ordinance or until modified by another franchise as provided in section 13.4.

Chapter XIV

TAXATION

14.1 Authority to levy taxes.

The council may levy and collect taxes for municipal purposes including, without limitation general ad valorem property taxes, and it may levy and collect special assessments for local improvements as provided in this Charter; provided, however, that no income tax, sales tax, or excise tax shall be levied after the adoption of this Charter until such tax shall have been approved by a majority of the electors voting at a regular or special election.

Chapter XV

GENERAL PROVISIONS

15.1 Volunteer fire department.

So long as the city has a volunteer fire department as determined by the council, the officers shall be elected by the members of said volunteer department.

15.2 Eminent domain.

The city shall have the right of eminent domain as provided by the constitution and the statutes.

15.3 Restriction on sale of property.

Council shall not sell or dispose of public utilities, public buildings, or real property used or held for cemetery, park, or recreation purposes without first obtaining the approval of a majority of the taxpaying electors voting thereon at a special election held for such purpose; provided, however, that this provision shall not apply to the sale of cemetery plots for burial purposes.

15.4 Conveyances.

All conveyances of interest in land by the city shall be signed by the mayor and attested to by the city clerk under the seal of the city.

15.5 Liability of city.

No action for recovery of compensation for personal injury, death, or property damage against the city on account of its negligence shall be maintained unless written notice of the alleged time, place and cause of injury, death, or property damage is given to the city clerk, by the person injured, the agent, or attorney, within 90 days of the occurrence causing the injury, death, or property damage. The notice given under the provisions of this section shall not be deemed invalid or insufficient solely by reason of any inaccuracy in stating the time, place, or cause of injury, if it is shown that there was no intent to mislead and that the city, in fact, was not misled thereby. This provision shall not be construed as a waiver of any governmental immunity the city may have.

(Ord. No. 2227, § 30, 1-23-2024, passed by voters 11-7-2023)

15.6 Co-operative contracts.

The council may by resolution enter into contracts or agreements with other governmental units or persons for the joint use of buildings, equipment, or facilities, or for furnishing or receiving commodities or services.

15.7 Bequests, gifts, and donations.

Council, on behalf of the city, may receive or refuse bequests, gifts, and donations of all kinds of property in fee simple or in trust for public,

charitable, or other purposes, and do all things and acts necessary to carry out the purpose of such gifts, bequests, and donations, with the power to manage, sell, lease, or otherwise dispose of the same in accordance with the terms of the gift, bequest, or trust.

15.8 Emergency powers.

In case of riot, insurrection or extra-ordinary emergency, the mayor, or in the mayor's absence, the manager, shall assume general control of the city government and all branches and be responsible for the suppression of disorders and the restoration of normal conditions. At any time of threatened or actual civil insurrection, the mayor shall:

- a. Proclaim the existence and termination of a threatened or actual civil insurrection;
- b. Request the governor's proclamation at the mayor's discretion if the mayor believes that the resources and ability of the community are inadequate to cope with the peril;
- c. Convene the council within two days if it appears that the state of civil insurrection will continue for more than two days;
- d. Execute all the mayor's normal powers and all special powers lawfully conferred upon the mayor including, but not limited to, establishing written rules and regulations governing conduct and activities reasonably related to the protection of life and property and to the suppression of the civil insurrection.

(Ord. No. 2227, § 31, 1-23-2024, passed by voters 11-7-2023)

15.9 Continuity of government.

The council shall have the power to provide for continuity of the government of the city in the event of natural or enemy-caused disaster. Such power shall be employed in a manner which will preserve representative government in the city, and which will provide an orderly line of succession of officers notwithstanding the provisions of

this charter. If no such provisions for continuity of government have been made by council and there being no members of council surviving said disaster, the manager, or if the manager not be surviving, the chief of police, shall assume the powers granted the council herein.
(Ord. No. 2227, § 32, 1-23-2024, passed by voters 11-7-2023)

15.10 Invalidity of part.

If a court of competent jurisdiction shall adjudge to be invalid or unconstitutional any clause, sentence, paragraph, section, chapter, or part of this Charter, such judgment or decree shall not affect, impair, invalidate or nullify the remainder of this Charter; but the effect thereof shall be confined to the clause, sentence, paragraph, section, chapter, or part of this Charter so adjudged to be invalid or unconstitutional.

15.11 Amending the charter.

Amendments to this Charter may be submitted in accordance with the provisions of the constitution. Nothing herein contained shall be construed as preventing the submission to the people of more than one charter amendment at any one election. If provisions of two or more proposed amendments adopted or approved at the same election conflict, the amendment receiving the highest affirmative vote shall become effective.

15.12 Chapter title and sub-headings.

The chapter titles and sub-headings are inserted for convenience and reference only and shall not be construed to limit, describe, or control the scope or intent of any provision therein.

15.13 Construction of words.

Except as otherwise specifically provided or indicated by the context hereof, all words used in this Charter indicating the present tense shall not be limited to the time of the adoption of this Charter but shall extend to and include the time of the happening of any event or requirement for which provision is made herein. The singular number shall include the plural, the plural shall

include the singular and the masculine gender shall extend to and include the feminine gender and neuter, and the word "person" may extend and be applied to bodies politic and corporate and to partnerships as well as to individuals.

15.14 Definitions.

As used in this Charter the following words and phrases shall have the following meanings:

- a. *Appropriation.* The authorized amount of monies set aside for expenditure during a specified time for a specific purpose.
- b. *City.* City of Golden, Colorado, a municipal corporation.
- c. *Council.* The city council of the City of Golden.
- d. *Manager.* The city manager of the City of Golden appointed pursuant to section 7.1.
- e. *Employee.* Any person employed by the City of Golden.
- f. *Franchise.* An irrevocable privilege granted by the city permitting a specified use of public property for a specified length of time.
- g. *General municipal election.* A municipal election held every two years at which candidates for elective offices of the city are voted upon in accordance with this Charter.
- h. *Officer.* Any person elected to office or appointed by council, including appointees to boards and commissions.
- i. *Constitution.* The constitution of the State of Colorado.
- j. *Statutes.* The applicable laws of the State of Colorado as they now exist or as they may be amended, changed, repealed, or otherwise modified by legislative procedure.
- k. *Elector.* A resident of the city registered to vote under the constitution and statutes of the State of Colorado.

1. *Taxpaying elector.* An elector who owns real or personal property within the city and has paid an ad valorem tax thereon in the calendar year last preceding the election or in the calendar year in which the election is held. An elector who is obligated to pay ad valorem taxes under a contract to purchase real property within the city shall be considered as a taxpaying elector within the meaning of this definition.

(Election of 11-1-1983)

15.15 Process.

Any process issued by the city shall be in the corporate name thereof.

Chapter XVI TRANSITIONAL

16.1 Status of transitional provision.

The purpose of this chapter is to provide for an orderly transition from the present city government to a home rule government under the provisions of this Charter. This chapter shall constitute a part of this Charter during the transition period.

16.2 Transition Period.

The effective date of this charter shall be January 1, 1968, when the following chapters of this charter shall become operative: Chapters I, II, III (except section 3.1 which shall become effective on the date of the first general municipal election under this charter), V, VI, VII, VIII, IX, X, XII, XIII, XIV, XV, and XVI. Section 11.13 of Chapter XI shall become operative on the effective date of the charter. Those portions of Chapter XI, concerning the preparation and submission of the budget and capital program shall become effective for the 1969 budget. All of the remaining portions of Chapter XI shall become effective on January 1, 1969. Section 4.1 and 4.2 of Chapter IV shall become operative according to their provisions. The remaining sections of Chapter IV shall become operative on January 1, 1968. Those councilors elected at the general

municipal election on November 7, 1967, shall continue in office until the councilor's term expires or the councilor's office becomes vacant, in which case a successor shall be chosen as provided in section 3.7 of chapter III.

(Ord. No. 2227, § 33, 1-23-2024, passed by voters 11-7-2023)

16.3 Prior city legislation.

All bylaws, ordinances, resolutions, rules, and regulations of the city which are not inconsistent with this Charter and which are in force and effect at the effective date of this Charter shall continue in full force and effect until repealed or amended. Those provisions of any effective bylaw, ordinance, resolution, rule, or regulation which are inconsistent with this Charter are hereby repealed.

CHARTER COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

<i>Ordinance Number</i>	<i>Adoption Date</i>	<i>Election Date</i>	<i>Section</i>	<i>Section this Charter</i>
	10- 5-1967	11- 7-1967		Chs. I—XVII
		11- 4-1975		3.7, 4.3
		11- 1-1983		6.3, 15.14
		11- 6-2001		3.1
			Added	3.6, 11.5.1— 11.5.4
		11- 2-2004		4.2
2227	1-23-2024	11- 7-2023	2—6	3.4—3.8
			7—9	4.1—4.3
			10, 11	5.2, 5.3
			12	5.7
			13	5.11
			14	6.1.a
			15	6.2
			16	6.3.b., c
			17	6.4.a
			18, 19	7.1, 7.2
			20	7.3e. f. l
			21—23	7.5—7.7
			24	7.9
			25	9.1
			26	10.1
			27	11.10.c
			28	11.12
			29	11.5.4
			30	15.5
			31	15.8¶, b., d.
			32	15.9
			33	16.2

Title 1

GENERAL PROVISIONS

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1.01.020	Reference applies to amendments.
1.01.030	Codification authority.
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Chapter 1.03 Open Meetings

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1.04.010	[Reserved.]
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Chapter 1.05 Local Campaign Finance—Reporting Requirements

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1.05.040	Campaign contributions.
1.05.050	Disclosure; filing of reports by candidates, candidate committees, and political committees.
1.05.060	Disclosure; filing of reports for noncommittee expenditures.
1.05.070	Reports to be public record.
1.05.080	Unexpended campaign contributions.

GOLDEN MUNICIPAL CODE

- 1.05.090 Duties of city clerk.
- 1.05.100 Expenditures for political advertising; rates and charges.
- 1.05.110 Encouraging withdrawal from campaign prohibited.
- 1.05.115 Immunity from penalty.
- 1.05.120 Enforcement of third-party complaints.

Chapter 1.06 Recall From Office

- 1.06.010 Generally.
- 1.06.020 Commencement of the recall process.

Chapter 1.07 Charter Amendment Initiatives

- 1.07.010 Charter amendment initiative petitions—Generally.
- 1.07.020 Commencement of the charter amendment initiative process.

Chapter 1.08 Initiative And Referendum

- 1.08.010 Initiative and referendum petitions—Generally.
- 1.08.020 Commencement of proceedings; petitioner's committee; affidavit.
- 1.08.030 Deadline for filing petition.
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- 1.08.050 Council action; election.
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Chapter 1.10 Violations

- 1.10.100 Unlawful acts

Chapter 1.01

CODE PROVISIONS

1.01.010 Title—Citation—Reference.

This Code shall be known as the "Golden Municipal Code" in any prosecution for the violation of any provision thereof or in any proceeding at law or equity. It shall also be sufficient to designate any ordinance adding to, amending, correcting or repealing all or any part or portion thereof as and addition to, amendment to, correction of, or repeal of the "Golden Municipal Code". Further reference may be had to the titles, chapters, sections, and subsections of the "Golden Municipal Code" and such reference shall apply to that numbered title, chapter, article, division, sections or subsection as is appears in this Code. (Ord. 1092, § 1, 1990; Adopted as part of code)

1.01.020 Reference applies to amendments.

Whenever a reference is made to this Code as the "Golden Municipal Code" or to any portion thereof, or to any ordinance of the City of Golden, the reference shall apply to all amendments, corrections and additions heretofore, now, or hereafter made.
(Adopted as part of code)

1.01.030 Codification authority.

This Code consists of all of the regulatory and penal ordinances and certain of the administrative ordinances of the City of Golden, Colorado, codified pursuant to the laws of the State of Colorado.
(Adopted as part of code)

1.01.040 Definitions and construction.

Unless the context otherwise requires, the following words and phrases where used in this Code shall have the meanings and constructions given in this section:

- (1) *Code* means this Code, the "Golden Municipal Code".
- (2) *City* means the City of Golden.
- (3) *City council* means the city council of the City of Golden.

- (4) *County* means the County of Jefferson.
- (5) *Person* means any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust, or their manager, lessee, agent, servant, officer, or employee or any of them.
- (6) *State* means the State of Colorado.
- (7) *Oath* includes affirmation.
- (8) *Gender*. The masculine gender includes the feminine and neuter.
- (9) *Number*. The singular number includes the plural, and the plural the singular.
- (10) *Tenses*. The present tense includes the past and future tenses, and the future tense includes the present tense.
- (11) *Shall, may*. "Shall" is mandatory, "may" is permissive.
- (12) *Title of office*. The use of the title of any officer, employee, department, board or commission means that officer, employee, department, board or commission of the City of Golden.
(Adopted as part of code)

1.01.050 Title, chapter and section headings.

Title, chapter, division, article and section headings contained in this chapter shall not govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any title, chapter or section hereof.
(Adopted as part of code)

1.01.060 Reference to specific ordinances.

The provisions of this Code shall not in any manner affect deposits or other matters of record which refer to, or are otherwise connected with ordinances which are therein specifically designated by number or otherwise and which are included within this Code, but such reference shall be construed to apply to the corresponding provision contained within this Code.
(Adopted as part of code)

1.01.070 Effect of code on past actions and obligations.

Neither the adoption of this Code nor the repeal or amendment hereby of any ordinance or part or portion of any ordinance of the city shall in any manner affect the prosecution for violations of ordinances, which violations were committed prior to the effective date of the ordinance codified in this chapter, nor be construed as a waiver of any license, fee, or penalty at said effective date due and unpaid under such ordinances, nor be construed as affecting any of the provisions of such ordinances relating to the collection of any such license, fee, or penalty, or the penal provision applicable to any violation thereof, nor to affect the validity of any bond or cash deposit in lieu thereof required to be posted, filed, or deposited pursuant to any ordinance, and all rights and obligations thereunder appertaining shall continue in full force and effect.

(Adopted as part of code)

1.01.080 Repeal.

All general ordinances of the city not included in this Code or excluded from the operation and effect of this section are repealed.

(Adopted as part of code)

1.01.090 Exclusions.

Every special ordinance of this city governing the following subject matter, whether contained in whole or in part within this Code, is excluded from the operation and effect of section 1.01.080 and is not affected by the repeal provisions hereof: Annexations; franchises; naming roads, streets and public places; acquisition or disposal of public property; vacation of streets, alleys, or public ways; acceptance of any gift, devise, license or other benefit; providing that the foregoing enumeration of exceptions or exclusions is not exclusive or exhaustive, it being the intent and purpose to exclude from repeal any and all ordinances not of a general nature.

(Adopted as part of code)

1.01.110 Violations—Penalties.

(a) Whenever any section of this Code or any section of a rule or regulations promulgated hereunder for which the doing of any act is

required, prohibited, or declared to be unlawful and no definite fine or penalty is provided for a violation thereof, any person convicted of violating such section shall, for each offense, except as otherwise specified, be punished by a fine not exceeding the current maximum amount established by the state for municipal ordinance violations or imprisoned for a period of not more than six months, or by both such fine or imprisonment. Each day that a violation continues shall be deemed a separate offense.

(b) Every person convicted of a violation of any of the provisions of chapter 10.04 (Traffic Code) whereupon conviction of such person is subject to the assessment of not more than four points (except for compulsory insurance) or a six-point offense of speeding (not more than 24 miles over the posted speed limit) against one's driving privilege, shall be punished by a fine only in an amount not to exceed the current maximum amount established by the state for municipal ordinance violations.

(c) Trial by jury shall only be permitted in cases when, upon conviction, an individual is subject to imprisonment.

(d) If an individual is charged with both a violation that upon conviction is subject to imprisonment and a violation with no possibility of imprisonment, and such violations arise out of the same act or transaction, such individual may have a trial by jury on all charges.

(e) Any child (any person under 18 years of age) convicted of a violation of any provision of the code shall be, for each offense, fined in a sum not more than the current maximum amount established by the state for municipal ordinance violations. The municipal judge has the authority to order a child confined in a juvenile detention facility operated or contracted by the Colorado Division of Youth Services for failure to comply with a lawful order of the court including an order to pay a fine. Any confinement of a child for contempt shall not exceed 48 hours.

(f) The city shall be entitled to recover all costs and expenses including reasonable attorney fees incurred in the prosecution and/or litigation

of any person found to have violated any section of the municipal code or any rule or regulation promulgated under this Code.

(g) To collect past due fines, penalties, costs, fees, surcharges and restitution, the city may assign such accounts to a private collection agency, which shall be entitled to recover costs of collection, in an amount not to exceed 25 percent of the amount of the assigned account. The court shall adopt a standing order outlining the process to be followed before collection of a fee is referred to collection.

(Ord. No. 2115, § 1, 7-25-2019; Ord. No. 2029, § 1, 7-28-2016; Ord. 1973, 2014; Ord. 1608, 2003; Ord. 1273, 1995; Ord. 1092, § 2, 1990; Ord. 814, § 1, 1979)

1.01.113 Deferred prosecution.

(a) In any case the court may, prior to trial or entry of a plea of guilty and with the consent of the defendant and the city attorney, order the prosecution of the offense to be deferred for a period not to exceed one year. During that time, the court may place the defendant on probation.

(b) Upon the defendant's satisfactory completion of and discharge from probation, the charge against the defendant shall be dismissed with prejudice. If the conditions of probation are violated, the defendant shall be tried for the offense for which he is charged.

(c) Upon consenting to a deferred prosecution as provided in this section, the defendant shall execute a written waiver of his right to a speedy trial. Consent to a deferred prosecution under this section shall not be construed as an admission of guilt, nor shall such consent be admitted in evidence in a trial for the offense for which he is charged.

(Ord. 754, § 1(part), 1976)

1.01.116 Deferred punishment.

(a) In any case in which the defendant has entered a plea of guilty, the court accepting the plea has the power, with the written consent of the defendant and his attorney of record, if so represented, and the city attorney, to continue the case for a period not to exceed one year from

the date of entry of such plea for the purpose of entering judgment and punishment upon such plea of guilty. During such time, the court may place the defendant on probation.

(b) Prior to entry of a plea of guilty to be followed by deferred judgment and punishment, the city attorney, in the course of plea discussion, is authorized to enter into a written stipulation, to be signed by the defendant, his attorney of record, if so represented, and the city attorney under which the defendant obligates himself to adhere to such stipulation. The conditions imposed in the stipulation shall be similar in all respects to conditions of probation. Upon full compliance with such conditions by the defendant, the plea of guilty previously entered shall be withdrawn, and the action against the defendant dismissed with prejudice. Such stipulation shall specifically provide that upon a breach by the defendant of any condition regulating the conduct of the defendant, the court shall enter judgment and assess punishment upon such guilty plea. Whether a breach of condition has occurred shall be determined by the court without a jury upon application of the city attorney and upon notice of hearing thereon of not less than five days to the defendant or his attorney of record. The burden of proof at such hearing shall be by a preponderance of the evidence, and the procedural safeguards required in a revocation of probation hearing as set forth in C.R.S. 1973, 16-11-206, shall apply.

(c) When a defendant signs a stipulation by which it is provided that judgment and punishment shall be deferred for a certain time, he thereby waives all rights to a speedy trial.

(Ord. 754, § 1(part), 1976)

1.01.118 Exhibits and instruments—Marking.

At each city council or planning commission hearing, or other board or commission of the city, wherein the respective body sits in a quasi-judicial capacity, the city clerk shall mark as exhibits all instruments, documents, staff comments, and maps distributed to the council, board or commission prior to such hearing, and shall likewise mark as exhibits all pleadings,

applications, evidence, exhibits, staff comments, and other papers presented to or considered by the council, board or commission at such hearing, all of which shall be received into evidence at such hearing without motion or order or ruling of the chair.

(Ord. 808, § 1, 1979)

1.01.130 Severability.

If any section, subsection, sentence, clause, phrase, portion, or part of this Code is for any reason held to be invalid or unconstitutional by any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Code. The city council declares that it would have adopted this Code and each section, subsection, sentence, clause, phrase, part, or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts, or portions be declared invalid or unconstitutional.

(Adopted as part of code)

1.01.150 Civil enforcement.

(a) The city is authorized to initiate civil action in municipal court for an alleged violation of the municipal code except the provisions of Title 8 pertaining to public peace and safety. The city may seek to have the court declare a violation of the municipal code and request that the court enjoin the violation or order its restraint, removal, termination or abatement by the owner, agent, entity, occupant or person who caused the violation or such person or entity who allowed the violation to continue, or authorize the city manager or the manager's designee to terminate or abate such violation.

(b) A civil action to declare and abate a violation of the municipal code shall be brought in the name of the City of Golden, Colorado, by filing a complaint, which shall be verified or supported by an affidavit. Summons and subpoenas shall be issued and served in accordance with the municipal court's rules of procedure. Any employee or agent of the city who is over the age of 18 may serve a summons and verified complaint upon the owner, agent, entity, occupant or the person who caused or

allowed the violation (hereinafter "respondent") or a subpoena upon any person in relation to the alleged violation. Trial or hearing of such action shall be to the court.

(c) A notice of appearance shall be served with the summons and complaint. The appearance date in court shall be not less than 14 days from the date of service of the summons and complaint. The respondent shall file a response or answer on or before the appearance date specified in the notice of appearance. The trial shall be held upon the appearance date, unless the court grants a continuance for good cause shown. No case shall be continued for more than seven days after the appearance date.

(d) Upon the date and time specified for appearance and trial or hearing, if the respondent has not filed a response and fails to appear, and if the city proves that proper service was made on respondent at least 14 days prior to the appearance date, the court may grant such orders as are requested by the city; except that, the court shall order that the enforcement by the city shall be stayed for ten days and that a copy of the court's order be mailed to the respondent at respondent's last known address. Failure to appear on any date set for hearing or trial shall be grounds for entering a default and default judgment against the non-appearing party. Prior to enforcement, and upon good cause shown, the court may set aside an entry of default and the default judgment entered thereon.

(e) Any disobedience to or interference with any injunction or order issued by the municipal court in an action to abate a violation of the municipal code may be punished as a contempt of court or by a fine not to exceed \$999.00. Each day's failure to comply with an injunction or order to abate shall constitute a separate act of contempt for which an additional penalty may be imposed for each such day.

(f) In order to facilitate the just speedy, informal and inexpensive determination of claims wherein civil enforcement is sought, the municipal court, unless specifically specified herein, shall adhere to its rules of procedure.

(g) In any case in which the city prevails in a civil action initiated pursuant to this section, the city may recover its reasonable costs of abating the violation including reasonable attorneys' fees and costs of litigation, plus 15 percent in administrative costs. Said costs may be assessed against the subject property. The remedies specified in this subsection shall be in addition to all other remedies provided by law.
(Ord. 1688, §§ 1, 2, 2005; Ord. 1126, 1991)

**[Chapter 1.02
RESERVED]**

**Chapter 1.03
OPEN MEETINGS**

1.03.010 Definitions.

(1) *Local public body* means city council, any board, committee, commission, authority, agency, or other advisory, policy-making, rule-making or formally constituted body of the City of Golden, but does not include members of the administrative staff, attorneys, advisors or consultants of a local public body.

(2) *Meeting* means any kind of gathering convened to discuss public business, in person, by telephonic, television, video or any other means or methods of communications.
(Ord. 1218, 1994)

1.03.020 Public meetings.

All meetings of a quorum or three or more members of any local public body, whichever is fewer, at which any public business is discussed or at which any formal action may be taken are declared to be public meetings open to the public at all times.
(Ord. 1218, 1994)

1.03.030 Public notice.

Any meetings at which the adoption of any proposed policy, position, ordinance, rule, regulation, or formal action occurs or at which a majority or quorum of a local public body is in attendance, or is expected to be in attendance, shall be held only after full and timely notice to the public. In addition to any other means of full and timely notice, a local public body shall be deemed to have given full and timely notice if the notice of the meeting is posted in a designated public place within the boundaries of the City of Golden not less than 24 hours prior to the holding of the meeting. The public place or places for posting such notice shall be designated annually at the

local public body's first regular meeting of each calendar year. The posting shall include specific agenda information where possible.
(Ord. 1218, 1994)

1.03.040 Nonapplicable.

This chapter does not apply to any chance meeting or social gathering at which discussion of public business is not the central purpose.
(Ord. 1218, 1994)

1.03.050 Executive sessions.

The members of a local public body upon the announcement by the local public body to the public of the topic for discussion in the executive session, including specific citation to the provision of this section authorizing the body to meet in an executive session and identification of the particular matter to be discussed in as much detail as possible without compromising the purpose for which the executive session is authorized, and the affirmative vote of two-thirds of the quorum present, after such announcement, may hold an executive session only at a regular or special meeting and for the sole purpose of considering any of the following matters; except that no adoption of any proposed policy, position, resolution, rule, regulation, or formal action, except the review, approval, and amendment of the recorded minutes of an executive session, shall occur at any executive session that is not open to the public.

- (1) The purchase, acquisition, lease, exchange, transfer, or sale of any real, personal, or other property interest; except that no executive session shall be held for the purpose of concealing the fact that a member of the local public body has a personal or financial interest in such purchase, acquisition, lease, exchange, transfer, or sale;
- (2) Conferences with an attorney for the local public body for the purpose of receiving legal advice on specific legal questions. Mere presence or participation of an attorney at an executive session of the local public body is not sufficient to satisfy the requirements of this section;

- (3) Matters required to be kept confidential by federal or state laws or rules or regulations;
- (4) Specialized details of security arrangements or investigations;
- (5) Determining positions relative to matters that may be subject to negotiations; developing strategy for negotiations; and instructing negotiators;
- (6) Personnel matters, except if the employee who is the subject of the session has requested an open meeting, or if the personnel matter involves more than one employee, all of the employee have requested an open meeting. Except that the provisions of this subsection shall not apply to discussions concerning any member of the local public body, any elected official, or the appointment of a person to fill the office of a member of the local public body or an elected official or to discussions of personnel policies that do not require the discussion of matters personal to particular employees.
- (7) Consideration of any documents protected by the mandatory non-disclosure provisions of Part 2, Article 72 of Title 24, C.R.S., commonly known as the "Opens Records Act". Except that all consideration of documents or records that are work product, as defined in C.R.S. 24-72-202(6.5) or that are subject to the governmental or deliberative process privilege, shall occur in a public meeting unless an executive session is otherwise allowed pursuant to this section.
- (8) Deliberations of matters in which the local public body is acting in a quasi-judicial capacity.
- (9) Interviews of final candidates for the positions of city manager, city attorney, municipal judge and any hearing officer that is appointed by city council under the provisions of the Golden Municipal Code, deliberations by city council regarding

finalists for those positions, and periodic evaluations by city council of the individuals holding such positions.

(Ord. 1944, 2013; Ord. 1893, 2010; Ord. 1558, § 1-4, 2001; Ord. 1218, 1994)

1.03.060 Optional participation in executive sessions.

(a) Not less than 24 hours prior to the consideration of an executive session, written information shall be made available to the members of a local public body, and the public, which sets forth the specific citation of subsection 1.03.050(a) authorizing the body to meet in an executive session and identification of the particular matter to be discussed in as much detail as possible without compromising the purpose for which the executive session is authorized.

(b) A sealed envelope designated or marked as confidential may accompany the written information referred to in subsection (a) containing documents and/or materials specifying and detailing the issues to be discussed and considered at the executive session. Such sealed envelope and its contents shall not be available to the public.

(c) Upon review of the public information provided pursuant to subsection (a) and/or upon public discussion of the nature of and/or reasons for the request for an executive session, any member of a local public body may determine to not participate in such session. Upon such determination, the member shall return the confidential information unopened to the chair of the body, excuse him/herself from the executive session and not participate therein.

(Ord. 1558, § 5, 2001; Ord. 1218, 1994)

1.03.070 Minutes.

Minutes of any meeting of a local public body at which the adoption of any proposed policy, position, resolution, rule, regulation or formal action occurs or could occur shall be taken and promptly recorded, and such records shall be open to inspection.

(Ord. 1588, 2001; Ord. 1218, 1994)

1.03.080 Enforcement.

No resolution, rule, regulation, ordinance or formal action of a local public body shall be valid unless taken or made at a meeting that meets the requirements of this chapter.
(Ord. 1686, § 2, 2004; Ord. 1218, 1994)

**Chapter 1.04
ELECTIONS**

1.04.010 [Reserved.]**1.04.020 Wards created.**

The territory embraced by the limits of the city is divided into four wards, bounded, designated and described as hereinafter set forth.
(Ord. 549, § 1, 1965)

1.04.030 First ward boundary designated.

That portion of the city described as follows shall be designated as Ward One:

Beginning at the intersection of the centerline of US Highway 6 and the centerline of 19th Street; thence southeasterly along the centerline of US Highway 6 to the intersection with the west line of Section 2, T4S, R70W; thence south along the west line of said Section 2 and continuing south along the west line of Section 11, T4S, R70W, to the intersection with the centerline of W. 4th Avenue; thence west along the centerline of W. 4th Avenue to the intersection with the northerly projection of the east line of Bachman Farm Filing No. 1, according to the recorded plat thereof; thence southerly along said east line to the southeast corner of said Bachman Farm Filing No. 1; thence westerly along the southerly limits of said Bachman Farm Filing No. 1 to the southwest corner of said Bachman Farm Filing No. 1; thence northerly along the westerly limits of said Bachman Farm Filing No. 1, and its northerly projection to the intersection with the centerline of W. 4th Avenue; thence west along the centerline of W. 4th Avenue to the intersection with the centerline of Heritage Road; thence southerly along the centerline of Heritage Road and continuing south along the centerline of U.S. Highway 40 to the intersection with the existing

city limits; thence counterclockwise along the existing city limits through Sections 14, 11, 12, T4S, R70W to the existing city limits along the south side of the West 6th Avenue Frontage Road; thence easterly along the existing city limits along the south side of the West 6th Avenue Frontage Road to the existing city limits along the west side of Indiana Street; thence southerly along the existing city limits along the west side of Indiana Street and continuing counterclockwise along the existing city limits through the northwest quarter of Section 7, T4S, R69W to the existing city limits along the west side of Indiana Street; thence southerly along the existing city limits along the west side of Indiana Street to the existing city limits along the north side of the West 6th Avenue Frontage Road; thence westerly along the existing city limits along the north side of the West 6th Avenue Frontage Road and continuing counterclockwise along the existing city limits through Sections 12, 1, 2, 11, T4S, R70W to the existing city limits along the east side of Ulysses Street; thence northerly along the existing city limits along the east side of Ulysses Street and continuing counterclockwise along the existing city limits through Sections 2, T4S, R70W and through Section 35, T3S, R70W to the intersection with the south line of the northwest quarter of said Section 35, T3S, R70W; thence westerly along said south line to the intersection with the east line of the west half of the northwest quarter of said Section 35; thence departing said existing city limits, southwesterly approximately 380 feet to the most easterly corner of the strip of land conveyed to Jefferson County in the Special Warranty Deed recorded at Reception No. 2018098695; thence southwesterly along the easterly line of said strip of land and it's southwesterly projection to the intersection with the north ROW line of Rimrock Drive, as dedicated in Rimrock Subdivision, according to the recorded plat thereof; thence westerly along said north ROW line, and it's southwesterly projection to the centerline of South Golden Road; thence northerly along the centerline of South Golden Road and continuing along the centerline of Ford Street to the intersection with the centerline of 24th Street; thence easterly along the centerline of 24th Street to the intersection with the cen-

terline of East Street; thence northerly along the centerline of East Street to the intersection with the centerline of 21st Street; thence westerly along the centerline of 21st Street to the intersection with the centerline of Illinois Street; thence northerly along the centerline of Illinois Street to the intersection with the centerline of 19th Street; thence westerly along the centerline of 19th Street to the point of beginning.

The first ward shall include any future annexations to the city limits within or contiguous to the above-described land as approved and ordered by the city.
(Ord. 1767, § 1, 2007; Ord. 1617, 2003; Ord. 1268, 1995; Ord. 1026, § 1, 1987; Ord. No. 2264, § 4, 4-8-2025)

1.04.040 Second ward boundary designated.

That portion of the city described as follows shall be designated as Ward Two:

Beginning at a point where the north-south centerline of Section 33, T3S, R70W, intersects the centerline of US Highway 6; thence southeasterly along the centerline of US Highway 6 to the intersection with the west line of Section 2, T4S, R70W; thence south along the west line of Section 2 and continuing south along the west line of Section 11, T4S, R70W, to the intersection with the centerline of W. 4th Avenue; thence west along the centerline of W. 4th Avenue to the intersection with the northerly projection of the east line of Bachman Farm Filing No. 1, according to the recorded plat thereof; thence southerly along said east line to the southeast corner of said Bachman Farm Filing No. 1; thence westerly along the southerly limits of said Bachman Farm Filing No. 1 to the southwest corner of said Bachman Farm Filing No. 1; thence northerly along the westerly limits of said Bachman Farm Filing No. 1, and its northerly projection to the intersection with the centerline of W. 4th Avenue; thence west along the centerline of W. 4th Avenue to the intersection with the centerline of Heritage Road; thence southerly along the centerline of Heritage Road and continuing south along the centerline of U.S. Highway 40 to a point on the existing city limits; thence clockwise along the existing city limits along and through

Sections 15, 9, 3 and 4, T4S, R70W and along and through Section 33, T3S, R70W to the point of beginning.

The second ward shall include any future annexations to the city limits within or contiguous to the above-described land as approved and ordered by the city.
(Ord. 1767, § 2, 2007; Ord. 1268, 1995; Ord. 1026, § 1, 1987; Ord. No. 2264, § 5, 4-8-2025)

1.04.050 Third ward boundary designated.

That portion of the city described as follows shall be designated as Ward Three:

Beginning at a point where the south line of Section 21, T3S, R70W, intersects the easterly right-of-way line of Colorado Highway 93; thence northerly along said easterly right-of-way line to the northerly city limits; thence easterly and southeasterly along the existing city limits to the SE corner of Section 21, T3S, R70W; thence clockwise along the existing city limits to the north ROW line of W. 44th Avenue; thence northeasterly along the existing city limits along W. 44th Avenue to the existing city limits at the Coors Technology Center development; thence clockwise along the existing city limits at the Coors Technology Center development to the Easley Road ROW; thence along the existing city limits along Easley Road and clockwise along the existing city limits to the NE corner of Section 23, T3S, R70W; thence clockwise along the existing city limits to the intersection of the south ROW of W. 50th Avenue with the west ROW of McIntrye Street; thence southerly along the existing city limits along McIntrye Street to the intersection with the existing city limits of the south ROW of W. 44th Avenue; thence southwesterly along the existing city limits along W. 44th Avenue to the city limits at approximately the north-south centerline of Section 27, T3S, R70W; thence southerly clockwise along the existing city limits through the southwest quarter of Section 27, T3S, R70W to the north-south centerline of Section 27, T3S, R70W; thence southerly along the existing city limits along the north-south centerline of Section 27, T3S, R70W to the north line of the northeast quarter of Section 34, T3S, R70W; thence easterly along the existing

city limits along said north line of the northeast quarter of Section 34, T3S, R70W, and along the north line of the northwest quarter of Section 35, T3S, R70W to the city limits at approximately the east line of the west half of the northwest quarter of Section 35, T3S, R70W; thence southerly along the existing city limits along said east line of the west half of the northwest quarter of Section 35, T3S, R70W to the intersection with the south line of said northwest quarter of Section 35, T3S, R70W; thence departing said existing city limits, southwesterly approximately 380 feet to the most easterly corner of the strip of land conveyed to Jefferson County in the Special Warranty Deed recorded at Reception No. 2018098695; thence southwesterly along the easterly line of said strip of land and it's southwesterly projection to the intersection with the north ROW line of Rimrock Drive, as dedicated in Rimrock Subdivision, according to the recorded plat thereof; thence westerly along said north ROW line, and it's southwesterly projection to the centerline of South Golden Road; thence northerly along the centerline of South Golden Road and continuing along the centerline of Ford Street to the intersection with the centerline of 24th Street; thence easterly along the centerline of 24th Street to the intersection of the centerline of East Street; thence northerly along the centerline of East Street to the intersection of the centerline of 15th Street; thence westerly along the intersection of 15th Street to the intersection with the centerline of Washington Avenue; thence northerly along the centerline of Washington Avenue to the intersection with the easterly right-of-way line of Colorado Highway 93; thence northerly along said easterly right-of-way line to the point of beginning.

The third ward shall include any future annexations to the city limits within or contiguous to the above-described land.

(Ord. 1617, 2003; Ord. 1268, 1995; Ord. 1026, § 1, 1987; Ord. No. 2264, § 2, 4-8-2025)

1.04.060 Fourth ward boundary designated.

That portion of the city described as follows shall be designated as Ward Four:

Beginning at a point where the south line of Section 21, T3S, R70W intersects the westerly

right-of-way line of Colorado Highway 93; thence clockwise northwesterly along the existing city limits to the NW corner of Section 21, T3S, R70W; thence easterly along the existing city limits to the intersection with the easterly right-of-way line of Colorado Highway 93; thence southerly along said easterly right-of-way line of Colorado Highway 93 to the intersection with the centerline of Washington Avenue; thence southerly along the centerline of Washington Avenue to the intersection with the centerline of 15th Street; thence easterly along the centerline of 15th Street to the intersection with the centerline of East Street; thence southerly along the centerline of East Street to the intersection with the centerline of 21st Street; thence westerly along the centerline of 21st Street to the intersection with the centerline of Illinois Street; thence northerly along the centerline of Illinois Street to the intersection with the centerline of 19th Street; thence westerly along the centerline of 19th Street to the intersection with the centerline of US Highway 6; thence northerly along the centerline of US Highway 6 and existing city limits to a point on the north-south centerline of Section 33, T3S, R70W; thence southerly along said north-south centerline of Section 33, T3S, R70W to the existing city limits along the south right-of-way of US Highway 6; thence clockwise along the westerly existing city limits to the west line of the northwest quarter of Section 33, T3S, R70W; thence along the existing city limits along said west line of the northwest quarter of Section 33, T3S, R70W and along the existing city limits along portions of the west line of Section 28, T3S, R70W to the NW corner of Section 28, T3S, R70W; thence easterly along the existing city limits to the point of beginning.

The fourth ward shall include any future annexations to the city limits within or contiguous to the above-described land as approved and ordered by the city.

(Ord. 1617, 2003; Ord. 1268, 1995; Ord. 1026, § 1, 1987; Ord. No. 2264, § 3, 4-8-2025)

1.04.070 Write-in candidate affidavit.

No write-in vote for any city office shall be counted unless an affidavit of intent has been filed with the city clerk, by the person whose

name is written in, prior to 20 days before the date of the election indicating that such person desires the office and is qualified to assume the duties of that office if elected.

(Ord. 1805, 2008; Ord. 871, § 1, 1981)

Chapter 1.05

LOCAL CAMPAIGN FINANCE— REPORTING REQUIREMENTS

1.05.000 Legislative declaration.

The city council hereby finds and declares that large campaign contributions to political candidates may afford wealthy contributors and special interest groups an opportunity to exercise an inordinate amount of influence over the political process; that large campaign contributions create the potential for undue influence or the appearance of undue influence; that the costs of campaigning for political office may prevent qualified citizens from running for political office; and that the interests of the public are best served by limiting campaign contributions, full and timely disclosure of campaign contributions and enforcement of campaign laws. The city council enacts the ordinances contained in this chapter only for the purpose of superseding the requirements of state law and regulating reporting and contribution requirements for local elections pertaining to the office of mayor and city councilor, including elections related to the recall of such officers. Issue committees as defined by Section 2 of Article XXVIII of the State of Colorado Constitution are not regulated by this chapter or the Golden Municipal Code, but must otherwise comply with all lawful requirements imposed by state law, including registering issue committees with the city clerk and making periodic reports of contributions and expenditures as required by such laws

(Ord. No. 2012, § 1, 6-11-2015; Ord. 1682, 2005; Ord. No. 2265, § 2, 4-8-2025)

1.05.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section:

- (a) *Anything of value* shall mean, by illustration only, goods, equipment, devices, products, in kind services, labor, assistance and professional advice.

- (b) *Reserved.*
- (c) *Candidate* shall mean any person who seeks nomination or election to the office of mayor or city council at any city election, including an election seeking the recall of the mayor or a member of the city council. A person is a candidate if the person has publicly announced an intention to seek such election or has filed a nominating petition in person with the city clerk for the office of mayor or city council. Candidate shall also mean any elected official who is the subject of recall proceedings, or one who seeks to replace such an elected official upon recall, pursuant to chapter IV of the Charter.
- (d) *Candidate committee* shall mean a person, including the candidate, or persons with the common purpose of receiving contributions and making expenditures under the authority of a candidate. A candidate shall have only one candidate committee. A contribution to a candidate shall be deemed a contribution to his/her candidate committee. A candidate committee shall be considered open and active until the committee has filed a termination report with the city clerk.
- (e) *Committee expenditure* shall mean an expenditure made directly from a committee's account.
- (f) *Contribution* shall mean:
 - (1) The payment, loan, pledge, gift or advance of money, or guarantee of a loan, made to any candidate committee, or political committee;
 - (2) Any payment of money made to a third party for the benefit of any candidate committee, or political committee;
 - (3) Anything of value given, directly or indirectly, to a candidate committee for the purpose of promoting the candidate's nomination, retention, recall or election; or
 - (4) With regard to a contribution for which the contributor receives

compensation or consideration of less than equivalent value for such contribution, including, but not limited to, items of perishable or nonpermanent value, goods, supplies, services or participation in a campaign-related event, an amount equal to the value in excess of such compensation or consideration as determined by the candidate committee or political committee.

Contribution shall include expenditures that are controlled by or coordinated with a candidate or candidate's agent. Such coordinated expenditures are deemed to be both contributions by the maker of the expenditures, and expenditures by the candidate committee.

Contribution shall not include services provided without compensation by individuals volunteering time on behalf of a candidate, candidate committee or political committee.

- (g) *Contribution in-kind* shall mean the fair market value of a gift or loan of any item of real or personal property, other than money, made to or for any candidate committee, or political committee for the purpose of influencing the nomination, retention, election or defeat of any candidate. Personal services shall be considered a contribution in kind by the person paying compensation therefore. In determining the value to be placed on contributions in-kind, a reasonable estimate of fair market value shall be used. Contribution in-kind shall not include an endorsement of a candidate by any person and shall not include the payment of compensation for legal and accounting services rendered to a candidate, candidate committee or political committee if the person paying for the services is the regular employer of the individual rendering the services and the services are solely for the purpose of ensuring compliance with the provisions of this chapter.

- (h) *Expenditure* shall mean the payment, distribution, loan, gift or advance of any money for goods or services by any person or organization for the purpose of expressly advocating the election or defeat of any candidate. An expenditure occurs when the actual payment is made or cost is incurred or when there is a contractual agreement and the amount is determined or when goods are first delivered or services commence, the date of the expenditure being the date when the first of any of these events occurs.

- (1) If any portion of goods or services obtained or purchased by a person are used in any manner by any person or organization for the purpose of expressly advocating the election or defeat of any candidate, the pro rata value of such portion of goods or services shall constitute an expenditure.
 - (2) "Expenditure" shall not include any cost incurred in covering or carrying any news story, editorial endorsements, opinion or commentary writings, or letters to the editor by any broadcasting station (including a cable television operator, programmer or producer), newspaper, magazine, or other periodical publication, including any Internet or electronic publication, that is viewable by the general public and is primarily devoted to the dissemination of news and editorials to the general public, and is not owned or controlled by a candidate, candidate's committee, or political committee.
 - (3) Expenditures that are controlled by or coordinated with a candidate or candidate's agent are deemed to be both contributions by the maker of the expenditures, and expenditures by the candidate committee.
- (i) *Immediate family* shall mean a spouse, domestic partner, child, brother, sister, parent, parent-in-law, uncle or aunt. Domestic partner shall mean an unmar-

ried adult, unrelated by blood, with whom an unmarried official or employee has an exclusive, committed relationship, maintains a mutual residence, and shares basic living expenses.

- (j) *Reserved.*
- (k) *Non-committee expenditure* shall mean an expenditure by any person other than a candidate, or political committee that is not controlled by or coordinated with any candidate or agent of such candidate or candidate's committee.
- (l) *Person* shall mean any individual, partnership, committee, association, corporation, labor organization or other organization or group of persons.
- (m) *Political committee* shall mean any person(s), who are elected, appointed or chosen, or have associated themselves, for the purpose of making contributions to a candidate or candidate's committees or other political committees, or to make expenditures in support of or opposition to candidates, or in support of or opposition to recall questions.

Political committee shall not include:

- (1) Candidate committees as otherwise defined in this section; or
- (2) Any partnership, committee, association, corporation, labor organization or other organization or group of persons previously established for a primary purpose outside the scope of this chapter.
- (n) *Publicly announced* means that a person has made a statement signifying an interest in the office by means of a speech, advertisement or other communication reported or appearing in public media or in any place accessible to the public. Such statement includes a stated intention to explore the possibility of seeking an office. The registration of a candidate committee shall also constitute a public announcement of an intention to seek election or retention.

- (o) *Termination report* shall mean a final report prepared by a candidate committee, or political committee and filed with the city clerk which discloses the committee's contributions received, expenditures made and obligations entered into, when the following conditions have been met:

- (1) The committee no longer intends to receive contributions or make expenditures; and
- (2) A zero balance exists in the account established and maintained under section 1.05.040 and the committee has no outstanding debts or obligations.

- (p) *Unexpended campaign contributions* shall mean the balance of funds on hand in any candidate committee, or political committee following an election, less the amount of all unpaid monetary obligations incurred prior to the election.

(Ord. No. 2012, § 2, 6-11-2015; Ord. 1880, § 1, 2010; Ord. 1843, § 1, 2009; Ord. 1706, §§ 1, 2, 2005; Ord. 1682, 2005)

1.05.020 Candidate affidavit; failure to file.

(a) When any individual becomes a candidate, such individual shall certify, by affidavit filed with the city clerk within ten days that the candidate is familiar with the provisions of this chapter.

(b) Failure of any person to file the affidavit and disclosure statement required under this section shall result in the disqualification of such person as a candidate for the office being sought. Disqualification shall occur only after the city clerk has sent a notice to the person by certified mail, return receipt requested, addressed to the person's last known residence address. The notice shall state that the person will be disqualified as a candidate if the person fails to file the affidavit and disclosure statement within five business days of receipt of the notice.

(c) The requirements of this section shall not apply to any elected official who is the subject of recall proceedings.
(Ord. 1682, 2005)

1.05.030 Registration of committees.

All candidate committees and political committees shall register with the city clerk before accepting or making any contributions. Registration shall include a statement listing:

- (a) The committee's full name, spelling out any acronyms used therein;
- (b) A natural person authorized to act as a registered agent;
- (c) A street address and telephone number for the principal place of operations;
- (d) All affiliated candidates and committees;
- (e) The purpose or nature of interest of the committee.

(Ord. No. 2012, § 3, 6-11-2015; Ord. 1843, § 2, 2009; Ord. 1682, 2005)

1.05.040 Campaign contributions.

(a) *Limits on contributions to candidate committees.* No person shall make contributions and/or contributions in kind totaling more than \$1,000.00 to the candidate committee of any candidate for the office of mayor or more than \$500.00 to the candidate committee of any candidate for the office of city council from any district or more than \$250.00 to the candidate committee of any candidate for the office of city council from any ward. No person shall make a contribution or contribution in kind in the name of another person or knowingly permit one's name to be used by another person to effect such a contribution or contribution in kind. These limitations shall apply to all contributions or contributions in kind, whether made directly to a candidate committee or indirectly via earmarked gifts passed through an intermediary, and to all expenditures by any person that are controlled by or coordinated with a candidate or candidate committee, except that these limitations shall not apply to:

- (1) Contributions or contributions in kind made by a candidate or immediate family member to his/her candidate committee;
- (2) Non-committee expenditures as defined in subsection 1.05.010(k);

(3) Monetary loans that are:

- a. Personally guaranteed in writing by the candidate, the candidate's immediate family or a business entity in which the candidate owns at least five percent; or
- b. Secured by real or personal property owned by the candidate, the candidate's immediate family or a business entity in which the candidate owns at least five percent; or

(4) Contributions made to a candidate committee by another candidate committee established by the same candidate for the office of mayor or city council.

(5) Contributions to issue committees.

(b) *Limits on contributions to political committees.* No person shall make contributions and/or contributions in kind totaling more than \$500.00 to a political committee. No person shall make a contribution or contribution in kind in the name of another person or knowingly permit one's name to be used by another person to effect such a contribution or contribution in kind. These limitations shall apply to all contributions or contributions in kind, whether made directly to a political committee or indirectly via earmarked gifts passed through an intermediary.

(c) *Joint contributions.* No person shall make a joint contribution through the issuance of a check drawn on a jointly owned account unless:

- (1) The total amount of the joint contribution is less than the maximum amount that can be contributed by one person under the contribution limits established in subsection (a) of this section; or
- (2) The check is signed by all owners of the account, in which event the amount of the total contribution shall be allocated equally among all such persons unless a different allocation is specified on the face of the check.

No candidate committee or political committee shall knowingly accept a contribution made in violation of this subsection (b).

(d) *Contributions in excess of limits.* Not later than ten business days after receiving a contribution in excess of the limits set forth in this section, the candidate committee or political committee that received the contribution shall remit the excess to the contributor.

(e) *Contributions from one candidate committee to another.*

- (1) No candidate committee shall make a contribution or contribution in kind to, or accept a contribution or contribution in kind from, a candidate committee of another candidate.
- (2) No candidate committee shall accept a contribution or contribution in kind from a candidate committee of the same candidate that was established or maintained for a federal, state or county election campaign or office.

(f) *Recordkeeping.* All contributions received by a candidate committee or political committee shall be deposited and maintained in a financial institution in a separate account whose title shall include the name of the committee. All records pertaining to such accounts shall be maintained by the committee for 90 days following any election in which the committee received contributions unless a complaint has been filed alleging a violation of the provisions of this chapter, in which case they shall be maintained until final disposition of the complaint and any subsequent court proceedings. Such records shall be subject to inspection at any hearing held pursuant to this chapter.

(g) *Reimbursements prohibited.* No person shall make a contribution to a candidate committee or political committee with the expectation that some or all of the amounts of such contribution will be reimbursed by another person. No person shall be reimbursed for a contribution made to any candidate committee or political committee, nor shall any person make such reimbursement. An unexpended campaign contribution to a

contributor by a candidate committee pursuant to subsection 1.05.040(a)(4) shall not be considered a reimbursement.

(Ord. No. 2012, § 4, 6-11-2015)

1.05.050 Disclosure; filing of reports by candidates, candidate committees, and political committees.

(a) All candidate committees and political committees shall report to the city clerk their contributions and contributions in kind received, including the name and address of each person who has made contributions or contributions in kind in the amount of \$20.00 or more and all expenditures.

(b) Reports shall be filed with the city clerk on the 30th day before the election; 14th day before the election; on the Friday before the election; 30 days after the election; and annually on the first day of the month in which the anniversary of the election occurs until a termination report is filed. If the reporting day is on a weekend or legal holiday, the report shall be filed by the close of the next business day.

(c) The reports required by this section shall include the balance of funds at the beginning of the reporting period, the total of contributions received, the total of expenditures made during the reporting period and the name and address of the financial institution used by the committee.

(d) All reports shall be submitted on forms provided by the city clerk and shall be complete in all respects. Reports shall be current in all respects as of two days prior to the date upon which each such report is to be filed.

(e) A report required to be filed by this chapter is timely if the original report is received by the city clerk not later than the close of business on the due date or if a copy of the report is filed by facsimile on or before the date due and the original report is filed not later than the close of business on the next business day. For the purpose of this provision, the original report shall mean a copy containing an original signature of the person completing the report.

(f) Any report that is deemed by the city clerk to be incomplete or inconsistent with the requirements of this chapter shall be accepted on a conditional basis, and the committee treasurer shall be notified in writing as to any deficiencies. Such notice may be delivered in person, by mail, by facsimile, or, if an electronic mail address is on file with the city clerk, by electronic mail. The committee treasurer shall have seven business days from the date of delivery of such notice to file an amended report that cures the deficiencies. Any such amended report shall supersede the original report filed for the reporting period.

(g) Any candidate committee or political committee that has not accepted any contributions or contributions in kind, made any expenditures, or entered into any obligations during a reporting period, shall file a report with the city clerk on the days specified in paragraph (c) above certifying that the committee has not accepted any contributions or contributions in kind, made any expenditures or entered into any obligations during the relevant reporting period.
(Ord. No. 2012, § 5, 6-11-2015; Ord. 1843, § 2, 2009; Ord. 1682, 2005)

1.05.060 Disclosure; filing of reports for non-committee expenditures.

(a) Any person making noncommittee expenditures totaling more than \$50.00 shall deliver notice in writing of such expenditures to the city clerk not later than three business days after the day that such funds are expended or services or materials provided. Said notice shall include the following information:

- (1) The name, address and telephone number of the person making the expenditures;
- (2) The name of the candidate the expenditures are intended to support or oppose;
- (3) The name and address of the vendor(s) providing the property, materials or services;
- (4) A detailed description of the expenditures;
- (5) The amount of the expenditures; and

(6) The date the funds were expended or services or materials provided.

(b) Noncommittee expenditures by any person on behalf of a candidate for public office that are coordinated with or controlled by the candidate, candidate committee or the candidate's agent shall be considered a contribution to the candidate or candidate committee, and shall be subject to the reporting requirements of section 1.05.050 of this Code.

(Ord. No. 2012, § 6, 6-11-2015; Ord. 1843, § 4, 2009; Ord. 1682, 2005)

1.05.070 Reports to be public record.

(a) Upon receipt of any campaign report submitted pursuant to this chapter, the city clerk shall, in accordance with applicable law, make such report available for public inspection upon written request therefore.

(b) No information contained in any campaign report submitted pursuant to this chapter shall be sold or used by any person for the purpose of soliciting contributions or for any commercial purpose.

(Ord. 1682, 2005)

1.05.080 Unexpended campaign contributions.

(a) Unexpended campaign contributions to a candidate committee may be:

- (1) Contributed to a political party;
- (2) Contributed to a candidate committee established by the same candidate for a subsequent campaign, subject to the limitations set forth in subsection 1.05.040(d)(2), if the candidate committee making such a contribution is closed by the candidate not later than ten days after the date such a contribution is made;
- (3) Donated to a charitable organization recognized by the Internal Revenue Service;
- (4) Returned to the contributors.

In no event shall contributions to a candidate committee be used for personal purposes not reasonably related to supporting the election or retention of the candidate.

(b) In addition to any use described in subsection (a) of this section, a person elected to the office of mayor or city council, or retained in office following a recall attempt, may use unexpended campaign contributions held by the person's candidate committee for any of the following proposes:

- (1) Voter registration;
- (2) Political issue education, which includes obtaining information from or providing information to the electorate;
- (3) Postsecondary educational scholarships;
- (4) To defray reasonable and necessary expenses related to mailings and similar communications to constituents;
- (5) Any expenses that are directly related to such person's official duties as an elected official, including, but not limited to, expenses for the purchase or lease of office equipment and supplies, room rental for public meetings, necessary travel and lodging expenses for legislative education such as seminars, conferences and meetings on legislative issues, and telephone and pager expenses.

(c) A candidate committee for a former officeholder or a person not elected to office shall expend all of the unexpended campaign contributions retained by such candidate committee, for the purposes specified in subsection (a) of this section, not later than five years from the date such officeholder's term expired or from the date of the election at which such person was a candidate for office, whichever is later.

(d) Unexpended contributions to a political committee may be donated to any charitable organization recognized by the Internal Revenue Service or returned to the contributors.
(Ord. 1682, 2005)

1.05.090 Duties of city clerk.

The city clerk shall:

- (1) Prepare forms and complete instructions and make same available with information about the provisions of this chapter to assist candidates and the public in complying with the reporting provisions and requirements of this chapter;
- (2) Develop a filing and indexing system consistent with the purposes of this chapter;
- (3) Keep a copy of any report or statement required to be filed by this chapter for a period of one year from the date of filing. In the case of candidates who were elected, those candidate's reports and filings shall be kept for one year after the candidate leaves office;
- (4) Make reports and statements filed under this chapter available as required by law for public inspection and copying not later than the end of three business days after the date of filing;
- (5) Upon request by the Secretary of State, transmit records and statements filed under this chapter to the Secretary of State;
- (6) Notify any person who has failed to fully comply with the provisions of this chapter;
- (7) Report apparent violations of this chapter to the city manager, who may refer [the] same to the hearing officer for determination of initiation of charges of violations of this chapter; and
- (8) The city clerk shall impose a civil penalty of \$50.00 per day upon the person responsible for filing reports for each day that a report required to be filed by this chapter is not filed by the close of business on the day due. The city clerk shall send written notice of the imposition of the penalty to such person. Such notice may be delivered in person, by mail, by

facsimile or, if an electronic mail address is on file with the city clerk, by electronic mail.

(Ord. 1706, § 3, 2005; Ord. 1682, 2005; Ord. No. 2265, § 3, 4-8-2025)

1.05.100 Expenditures for political advertising; rates and charges.

(a) No candidate committee shall pay to any radio or television station, newspaper, periodical or other supplier of materials or services a higher charge than that normally required for local commercial customers for comparable use of space, materials or services. Any such rate shall not be rebated, directly or indirectly.

(b) Any radio or television station, newspaper or periodical that charges a candidate committee a lower rate for use of space, materials or services than the rate such station, newspaper, periodical or supplier charges candidate committee a lower rate for the use of space, materials or services than the rate such station, newspaper, periodical or supplier charges another candidate committee for the same public office for comparable use of space, materials or services shall report the difference in such rate as a contribution in kind to the candidate committee that is charged such lower rate.

(c) Nothing in this chapter shall be construed to prevent an adjustment in rates related to frequency, volume, production costs and agency fees if such adjustments are offered consistently to other advertisers.

(Ord. 1682, 2005)

1.05.110 Encouraging withdrawal from campaign prohibited.

No person shall offer or give any candidate or candidate committee any money or any other thing of value for the purpose of encouraging the withdrawal of the candidate's candidacy, nor shall any candidate offer to withdraw a candidacy in return for money or any other thing of value. (Ord. 1682, 2005)

1.05.115 Immunity from penalty.

Any individual volunteering his or her time on behalf of a candidate, candidate committee, or political committee shall be immune from any liability for a penalty imposed if:

- (a) The volunteer was acting in good faith and within the scope of such volunteer's functions and duties for the candidate or candidate committee; and
- (b) The violation was not caused by willful and intentional misconduct by such volunteer.

(Ord. No. 2012, § 7, 6-11-2015; Ord. 1843, § 6, 2009; Ord. 1682, 2005)

1.05.120 Enforcement of third-party complaints.

(a) Any resident of the city or city employee charged with duties related to this chapter who believes a violation of this chapter, or, if applicable, Article XXVIII of the Colorado Constitution, or the Fair Campaign Practices Act (Section 1-45-101 et seq., C.R.S.), as amended by this Code, has occurred related to a city election may file a written complaint with the city clerk.

(b) Complete complaints must be filed no later than 30 calendar days after the complainant knew or should have known by the exercise of reasonable diligence of the alleged violation.

(c) A complete written complaint filed with the city clerk shall include the city clerk's complaint cover sheet which must include the following information:

- (1) The name, address, e-mail address, telephone number and signature of the complainant (if the complainant is represented by counsel, include the counsel's name, address, e-mail address, telephone number and signature along with the name, address, e-mail address, telephone number and signature of the complainant);
- (2) The name and, if known, the telephone number and address of the respondent(s) (each person alleged to have committed a violation);

- (3) The particulars of the alleged violation including citation to the law violated; and
- (4) Optionally, documentation or other evidence supporting the allegation.

(d) If an incomplete complaint is received, the date on which the originally filed complaint was received is considered the filed date if a complete copy is received within three business days of notification from the city clerk that the complaint was incomplete.

(e) A complaint may be submitted by electronic mail if a signed original is received in person or by mail by the city clerk no later than three business days thereafter.

(f) Initial review.

- (1) The city clerk will review the complaint to determine:
 - a. Whether the complaint was timely filed; and
 - b. Whether the complainant has specifically identified one or more violations of this chapter or if applicable Article XXVIII of the Colorado Constitution or the Fair Campaign Practices Act (Section 1-45-101 et seq., C.R.S.), as amended.
- (2) Within ten business days of receiving the complaint, the city clerk must take one or more of the following actions:
 - a. If the city clerk determines that the complaint was not complete as described in (c) above, not timely filed, or has not specifically identified one or more violations of this chapter, or if applicable, Article XXVIII of the Colorado Constitution or the Fair Campaign Practices Act (Section 1-45-101 et seq., C.R.S.), as amended, the city clerk will dismiss the complaint and notify the complainant and respondent of the reasons for dismissal. The city clerk's dismissal is a final decision, and subject to review under Rule 106, C.R.C.P.

- b. If the city clerk determines that the complaint alleges one or more curable violations as described in subsection (g), the city clerk will notify the respondent(s) and provide an opportunity to cure as described in subsection (g).
- c. If the city clerk determines that the complaint alleges one or more violations, and that the asserted violations may not be curable as described in subsection (g), the city clerk will take the actions set forth in subsection (h).

(g) Curing violations.

- (1) Upon the city clerk's determination that a complaint alleges a failure to file or otherwise disclose required information, or other curable violation of an obligation under this chapter, or if applicable Article XXVIII of the Colorado Constitution or the Fair Campaign Practices Act (C.R.S. 1-45-101 et seq.), the city clerk will notify the respondent(s) by email, or by United States mail if email is unavailable, of the curable deficiencies alleged in the complaint.
- (2) Respondents shall have ten business days from the date the notice is emailed or mailed to file an amendment to the relevant report or reports that cures any deficiencies specified in the notice.
- (3) After the period for cure, the city clerk will determine, within five business days, whether the respondent(s) cured the violation(s).
 - a. If the city clerk determines that respondent cured the violations, the city clerk shall dismiss the complaint and notify complainant and respondent of such cure and dismissal.
 - b. If the city clerk determines that respondent failed to cure the violation, the clerk shall notify respondent

of such determination, together with the fine or other penalty imposed pursuant to subsection (o) below.

- c. The respondent shall have ten business days from the date of the city clerk's notice of determination to either pay the fine and accept any penalty imposed or contest the violation by submitting to the city clerk a request for a hearing.

(h) Upon receipt of a request for a hearing under subsection (g)(3)(c), or upon the city clerk's determination that the complaint falls under subsection (f)(2)(c), the city clerk shall notify the city manager of the complaint, and the city manager, in consultation with the city clerk and the city attorney, shall refer the complaint to an independent hearing officer to hear and determine such complaint. The hearing officer need not be a resident of the City of Golden, but must be an attorney licensed to practice law in Colorado. The hearing officer may receive reasonable compensation for his or her services.

(i) An informal hearing shall be scheduled as soon as practicable with due regard for the convenience and necessity of the parties but, unless an extension of time is granted as set forth in subsection (k), the hearing shall be held within 15 calendar days of referral of the complaint to the hearing officer.

(j) Notice of the hearing and any applicable rules governing the hearing process shall be sent to the complainant and to the respondent(s), who shall also receive a copy of the entire complaint received by the city clerk, within two business days of the date of referral of the complete complaint to the hearing officer and may be delivered by electronic mail, or by United States mail if email is unavailable to the address of the complainant shown on the complaint form and to the respondent(s).

(k) Upon written motion, the hearing officer may grant the subject of the complaint a continuance of the hearing of up to 30 calendar days upon a showing of good cause.

(l) Upon the request of either party, the hearing officer may issue an administrative subpoena requiring the attendance of a witness or party in relation to an alleged violation, which shall be served on the party to whom it is directed by the requesting party pursuant to Rule 4 of the Colorado Rules of Civil Procedure. It shall be unlawful for a witness or party to fail to comply with such subpoena, and any person convicted of a violation hereof shall be punished in accordance with section 8.25.090, provided, however, that the hearing officer shall not have authority to impose any form of imprisonment for the same.

(m) The hearing shall be electronically audibly recorded and, except as set forth in this chapter, held in substantial accordance with the provisions of section 8.25.070. The hearing may be held virtually, at the discretion of the hearing officer. At the hearing, the complainant and the respondent(s) shall be present and, the complainant shall have the burden of proof by a preponderance of the evidence presented.

(n) Following hearing, the hearing officer shall issue a decision within seven business days. The decision may be issued orally at the conclusion of the hearing or may be issued in writing, at the discretion of the hearing officer.

(o) If the hearing officer determines after a hearing that a violation has occurred, the hearing officer's decision shall include any appropriate order, sanction or relief authorized hereunder and may include, without limitation, sanctions as follows:

- (1) Impose a civil penalty of at least double and up to five times the amount contributed, received or spent in violation of any contribution prohibition or limitation or in violation of a contribution reporting requirement.
- (2) Impose a civil penalty of \$25.00 per day for each day that a statement or other information required to be filed pursuant to this chapter, or if applicable, Article XXVIII of the Colorado Constitution or the Fair Campaign Practices Act (Section 1-45-101, et seq., C.R.S.), as amended by this Code, is not filed by the close of business on the day due.

(3) Order disclosure of the source and amount of any undisclosed contributions or expenditures.

(4) Order the return to the donor of any contribution made which was the subject of the violation.

(p) The hearing officer's determination under subsections (n) and (o) is a final decision subject to review under Rule 106, C.R.C.P.

(q) Candidates shall be personally liable for penalties imposed upon the candidate's committee.

(r) Civil penalties may be collected in the similar manner as a municipal court judgment under this Code, including the use of a private collection agency.

(s) In no event shall the city take any action, including referring the penalty debt to a collection agency as contemplated by subsection (r), but not including action of the collection agency, to collect civil penalties assessed hereunder after the date that is more than one year from the date that the filing was due.
(Ord. No. 2265, § 4, 4-8-2025)

Editor's note—Ord. No. 2265, § 4, adopted April 8, 2025, amended § 1.05.120 in its entirety to read as herein set out. Former § 1.05.120 pertained to enforcement, and derived from Ord. No. 2011, § 1, adopted May 28, 2015.

Chapter 1.06 RECALL FROM OFFICE

1.06.010 Generally.

(a) *Authority.* Pursuant to Charter section 4.6, the mayor or members of the city council may be recalled at any time after six months in office by the electors entitled to vote in an election to recall the said officeholder through the procedure and in the manner provided for in Article XXI of the state constitution and state law for the recall of municipal officers, except as provided in chapter 1.09 of this Code, relating to the petitioning process.

(b) *Petition representatives.* Petition representatives shall only be those registered electors who may vote in the subsequent recall election, if such election is held.

(c) *Time for filing.* A petition for the recall of a public officeholder shall be filed with the city clerk not later than 60 days from the date the petition has been approved as to form, pursuant to the provisions of chapter 1.09. The city clerk shall not accept any petition for filing which is not timely filed under this section.

(d) *Signatures required.* A recall petition must be signed by registered electors entitled to vote for a successor of the incumbent sought to be recalled equal in number to 25 percent of the entire vote cast for all candidates for that particular office at the last preceding regular election held in the municipality.
(Ord. No. 2265, § 5, 4-8-2025)

1.06.020 Commencement of the recall process.

The recall of a councilmember or the mayor shall be commenced by the recall proponents submitting a draft form of a recall petition to the city clerk, as provided in section 1.09.020.
(Ord. No. 2265, § 5, 4-8-2025)

Chapter 1.07 CHARTER AMENDMENT INITIATIVES

1.07.010 Charter amendment initiative petitions—Generally.

(a) *Authority.* The provisions of this chapter are intended to supplement and not conflict with state statutory provisions for Charter amendments set forth in the Municipal Home Rule Act of 1971, located at C.R.S. 31-2-210, and as amended from time to time, except as provided in chapter 1.09 of this Code relating to the petitioning process.

(b) *Measure in ordinance form.* All proposed Charter amendment measures shall be presented in ordinance form.

(c) *Time for filing.* A petition for a Charter amendment initiative ordinance shall be filed with the city clerk not later than 90 days from the date the petition has been approved as to form, pursuant to the provisions of chapter 1.09. The city clerk shall not accept any petition for filing which is not timely filed under this section. A petition for a Charter amendment initiative ordinance shall be placed upon the ballot at either a regular or special municipal election subject to all constitutional, statutory, and municipal ordinance deadlines having been met.

(d) *Signatures required.*

- (1) A petition to submit an amendment at the next regular election must be signed by at least five percent of the registered electors of the City of Golden registered on the date of filing the statement of intent and must be filed with the clerk at least 90 days prior to the date of said regular election.
 - (2) A petition to submit an amendment at a special election must be signed by at least ten percent of the registered electors of the City of Golden registered on the date of filing the statement of intent and must be filed with the clerk at least 90 days prior to the approximate date of the special election stated in the petition.
- (Ord. No. 2265, § 6, 4-8-2025)

1.07.020 Commencement of the charter amendment initiative process.

The petition process shall be commenced by filing with the clerk a written statement of intent to circulate a petition, signed by at least five registered electors of the city, as provided in C.R.S. 31-2-210(1)(a)(I) and as amended from time to time.

(Ord. No. 2265, § 6, 4-8-2025)

Chapter 1.08

INITIATIVE AND REFERENDUM

1.08.010 Initiative and referendum petitions—Generally.

(a) *Measure in ordinance form.* All proposed initiative or referred measures shall be presented in ordinance form.

(b) *Authority and scope of initiative power.* The initiative power, reserved by Article V, Section 1(9) of the Colorado Constitution and section 6.1(a) of the city Charter may be exercised by registered electors of the city as to city legislation that is subject to the initiative power reserved in said constitution. The initiative power shall not extend to ordinances concerning the budget, capital program, appropriation or levy of taxes, or salaries of city officers or employees.

(c) *Authority and scope of referendum power.* The referendum power, reserved by Article V, Section 1(9) of the Colorado Constitution and section 6.1b. of the city Charter may be exercised by the registered electors of the city as to those ordinances that are subject to the referendum power reserved in said constitution. The electors of the city shall have power to require reconsideration by the city council of any ordinance and, if the city council fails to repeal an ordinance so reconsidered, to approve or reject it at a city election. Such referendum power shall not extend to the budget, capital program, emergency ordinance, appropriation, levy of taxes, calling a special election, or authorizing the issuance of local improvement district bonds payable primarily from special assessments, levying special assessments, or ordinances to meet the contractual obligations of the city.

(Ord. No. 2265, § 7, 4-8-2025)

1.08.020 Commencement of proceedings; petitioner's committee; affidavit.

Any five electors of the city may commence initiative or referendum proceedings by filing an affidavit with the city clerk stating they will constitute the petitioners' committee and be responsible for circulating the petition and filing it in proper form, stating the electors' names and addresses, including e-mail addresses, specifying the address to which all notices to the committee are to be sent, and setting out in full the proposed initiative ordinance or citing the ordinance sought to be reconsidered.

(Ord. No. 2265, § 7, 4-8-2025)

1.08.030 Deadline for filing petition.

(a) *Initiative.* A petition for an initiative ordinance shall be filed with the city clerk not later than 180 days from the date the petition

has been approved as to form, pursuant to the provisions of this chapter. The city clerk shall not accept any petition for filing which is not timely filed under this section.

(b) *Referendum.* A petition for a referendum shall not be of any force or effect unless filed with the city clerk within 30 days after adoption by the council of the ordinance sought to be reconsidered.

(Ord. No. 2265, § 7, 4-8-2025)

1.08.040 Number of signatures.

(a) *Initiative.* A petition for an initiative ordinance shall be signed by registered electors of the city in a number equal to at least ten percent of the total number of electors registered to vote at the last general municipal election.

(b) *Referendum.* A petition for a referendum shall be signed by registered electors of the city in a number equal to at least ten percent of the total number of electors registered to vote at the last general municipal election. If a referendum petition is timely filed, the ordinance or part thereof protested against shall be suspended from taking effect. Such suspension shall terminate when:

- (1) There is a final determination of insufficiency of the petition, as provided in section 1.09.080;
- (2) The petitioner's committee withdraws the petition;
- (3) The council repeals the ordinance, as provided in section 1.08.050; or
- (4) Thirty days have elapsed after a favorable vote of by city electors on the ordinance.

(Ord. No. 2265, § 7, 4-8-2025)

1.08.050 Council action; election.

(a) *Council consideration and referral.* Within 30 days after the clerk's final determination of sufficiency, as provided in section 1.09.080, the city council shall consider adoption of the proposed initiative ordinance without any change in substance or reconsider the referred ordinance by voting on its repeal. If the city council fails to

adopt the proposed initiative ordinance or fails to repeal the referred ordinance, it shall submit the proposed or referred ordinance to the voters of the city.

(b) *Timing of election.* The vote of the city on a proposed or referred ordinance shall be held not less than 30 days and not more than 90 days from the date of the city council action described in paragraph (a) of this section. If no regular city election is to be held within the period prescribed in this subsection, the city council shall provide for a special election; otherwise, the vote shall be held at the same time as such regular election, except that the city council may in its discretion provide for a special election at an earlier date within the prescribed period.

(c) *Form of question on ballot.*

- (1) *Initiative.* The ballot upon which such ordinance is submitted shall contain the ballot title set pursuant to section 1.09.070, presented in the form of a question, as a submission clause and shall contain the words "yes" and "no" in order to indicate whether the voter supports the proposed ordinance or not.
- (2) *Referendum.* The ballot question upon which the referendum is submitted shall be "Shall Ordinance X be approved" with a "yes" vote meaning the ordinance as adopted by city council is in effect and a "no" vote meaning the ordinance as adopted by city council is rejected.

(Ord. No. 2265, § 7, 4-8-2025)

1.08.060 Election results.

(a) *Initiative.* If a majority of the registered electors voting approve the initiated ordinance, it shall be adopted and take effect upon certification of the election results.

(b) *Referendum.* If a majority of the registered electors voting vote "yes," the ordinance shall be effective upon certification of the election results. If a majority of the registered electors voting vote "no" the ordinance shall be repealed in its entirety upon certification of the election results. (Ord. No. 2265, § 7, 4-8-2025)

1.08.070 Publication.

If a majority of the registered electors voting vote in favor of the ordinance, such ordinance shall become effective upon certification of the election results, without further publication. (Ord. No. 2265, § 7, 4-8-2025)

1.08.080 Referral by city council.

(a) The city council shall have the power to submit any question to a vote of the registered city electors without the receipt of a petition. Submission by city council shall be by resolution, except as otherwise required by the city Charter.

(b) The city council shall have the right to revive, repeal, amend, or pass any ordinance submitted by the city council upon its own initiative.

(c) Initiative and referendum amendments shall be referred to the registered city electors by resolution. (Ord. No. 2265, § 7, 4-8-2025)

1.08.090 Conflicting provisions.

Alternative ordinances may be submitted at the same election, and if two or more conflicting ordinances are approved by the voters, the one which receives the greatest number of affirmative votes shall be adopted in all particulars as to which there is a conflict. (Ord. No. 2265, § 7, 4-8-2025)

Chapter 1.09**PETITION REQUIREMENTS****1.09.016 Definitions.**

As used in this chapter unless the context otherwise requires:

Ballot title means the language that is printed on the ballot that is comprised of the submission clause and the title.

Final determination of petition sufficiency means the occurrence of one of the events described in section 1.09.080.

Petition section means the stapled or otherwise bound package of documents described in section 1.09.020.

Submission clause means the language that is attached to the title to form a question that can be answered by "yes" or "no."

Title means a brief statement that fairly and accurately represents the true intent and meaning of the proposed initiative, referendum, or referred measure.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.020 Petition requirements.

(a) *Form of petition prepared by city.* The city clerk shall prepare a form of the petition for recall, Charter amendment initiative and referendum and have it available at the city clerk's office and on the city's website. All pages of a petition shall be uniform in size and style and shall be assembled as one instrument for filing. The form shall include the following to be printed in plain block letters no smaller than the impression of ten-point type:

- (1) A warning to signers to be printed in red as follows:

WARNING:

IT IS AGAINST THE LAW:

For anyone to sign this petition with any name other than his or her own or to knowingly sign his or her name more than once for the same measure or to knowingly sign a petition when not a registered elector who is eligible to vote on the measure.

DO NOT SIGN THIS PETITION UNLESS YOU ARE A REGISTERED ELECTOR AND ELIGIBLE TO VOTE ON THIS MEASURE. TO BE A REGISTERED ELECTOR, YOU MUST BE A CITIZEN OF COLORADO AND REGISTERED TO VOTE.

Do not sign this petition unless you have read or have had read to you the proposed measure or the summary in its entirety and understand its meaning.

- (2) Space to insert the summary of an initiated or referred measure; Charter amend-

ment; or for a recall petition, the statement in support of the recall by proponents of the recall;

- (3) Space to insert the name, street address and email address of the petition representatives;
- (4) Space to insert the full text of an initiated or referred measure;
- (5) Signature lines numbered consecutively; and
- (6) *Affidavit of petition circulator.* Each page of a petition shall have attached to it when filed an affidavit executed by the circulator thereof stating that the circulator personally circulated the petition, the number of signatures thereon, that all the signatures were affixed in the circulator's presence, that the circulator believes them to be the genuine signatures of the persons whose names they purport to be and that each signer had an opportunity before signing to read the full text of the ordinance proposed or sought to be reconsidered.

(b) *Petition representatives.* Each petition shall designate by name, street address, and email address not less than three nor more than five registered voters of the city, to represent the petition and its signers from the time of submittal of the notice of intent to final disposition of the petition.

(c) *City clerk's initial review of form of petition; summary.* Within five business days of receipt of the petition committee affidavit for initiatives and referendums pursuant to section 1.08.020, or chapter 1.07 "charter amendment initiatives", or a draft petition indicating that citizens wish to circulate a recall petition under chapters 1.06 "recall from office", the city clerk shall do the following:

- (1) *Approval as to form.* After consultation with the city attorney and such other city officials the city clerk deems necessary, the city clerk shall issue a written determination whether the proposed petition meets the requirements of this chapter. The clerk may reject an initia-

tive or referendum petition on the grounds that the petition or portion of a petition does not propose municipal legislation pursuant to Section 1(9) of Article V of the Colorado Constitution.

- (2) *Summary.* For petitions for initiated or referred measures or Charter amendments, if the city clerk approves the form of the petition, the city clerk shall prepare a summary of the proposed measure to be placed on the petition. The summary shall be true and impartial and shall not be an argument, or likely to create prejudice, either for or against the measure. The city clerk may consider all or a portion of a summary submitted by the petition representatives.
- (3) *Petition form.* The clerk shall provide the petition representatives with the final form of the petition. In the instance of recall petitions, the city clerk shall provide the petition representatives with the final form of the petition within three business days of the receipt of the public officeholder's response, if any.

(d) *Petition sections.* Any petition shall be circulated in sections. Each section must meet all of the requirements of this chapter. All petition sections shall be prenumbered serially. Circulation of any petition described by this chapter by any medium other than personally by a circulator is prohibited. If the text of the proposed initiated, referred measure, Charter amendment, or recall statement requires more than one page of a petition section, the warning and summary need not appear at the top of pages other than the initial text page.

(e) Any petition that fails to conform to the requirements of this chapter or that is circulated in a manner other than that permitted in this section shall be invalid.
(Ord. No. 2265, § 8, 4-8-2025)

1.09.030 Signature requirements; withdrawal of signatures.

(a) Petitions may be signed only by registered city electors. Each signature shall be executed in ink or indelible pencil and shall be followed by

the address of the person signing. Petitions shall contain or have attached thereto throughout circulation the full text of the ordinance proposed or sought to be reconsidered. Each registered elector shall sign their own signature, after which they shall print their name, place of residence, including house or apartment number, street address, and city; and the date of signing the petition. Signatures which do not contain all of the information required by this chapter shall be considered invalid. Signatures affixed prior to the city clerk's approval of the form of the petition or after submittal of the petition shall be considered invalid.

(b) *Withdrawal of signatures.* Any registered elector may withdraw their signature from the petition by filing a written request with the city clerk. The withdrawal request must be filed before the initial determination of sufficiency is issued.

- (1) If the withdrawal request is received after the petition is filed but before the initial determination of sufficiency is issued; the city clerk shall not count that signature towards the determination of sufficiency.
- (2) If the withdrawal request is received after the petition is approved for circulation but before the petition is filed, the city clerk shall strike that signature upon the filing of the petition.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.040 Initial determination of sufficiency of petitions.

(a) Not later than ten business days from the date of filing of a petition, the city clerk shall issue a written initial determination as to its sufficiency. If it is insufficient, the city clerk shall specify the particulars wherein it is defective and shall promptly send a copy of the certificate to the petitioners' committee by e-mail or registered mail.

(b) The city clerk shall disqualify the signatures of the individuals in the following categories:

- (1) The address of the signer is not located within the city limits.

- (2) An address is illegible, making it impractical to verify location as being within the city.
- (3) A signature appears on the petition more than once. In such event all signatures of the individual shall be disqualified except the signature signed on the earliest date.
- (4) More than one individual signs on the same signature line. In such event, only the first signature on the line shall be deemed valid.
- (5) An incomplete address has been given by the signer (e.g., omitted designation of street, avenue, drive, court, place, way, or unit number), resulting in an address that cannot practically be verified as the residence of the signer.
- (6) An address that can be applied to more than one resident with the same name at that address.
- (7) Failure to be a registered elector at the address listed on the petition.
- (8) The date is omitted or incomplete, or inappropriate. The omission of a year in the date shall not constitute an incomplete date.
- (9) The use of ditto marks as a substitute for any required information.

(c) *Disqualification of petition sections.* The city clerk shall disqualify all signatures on any section of a petition that:

- (1) Do not have attached thereto the notarized affidavit required by this chapter.
- (2) Have been disassembled in a manner that has the effect of separating the affidavit from the signature page or pages.
- (3) Have a signature added to the section before submission of the final form to the city clerk or after the affidavit has been executed.

(d) *Signatures to be excluded from determination of sufficiency.* The city clerk shall not include in a determination of sufficiency any signature on the petition:

- (1) That does not contain all of the elements required.

- (2) For which the signer has submitted a valid withdrawal request.
- (3) That does not comply with this chapter or other applicable law.
- (e) Cure.

(1) An initiative or referendum petition determined to be insufficient for lack of the required number of valid signatures may be amended once, if the petitioners' committee files a notice of intention to amend it with the city clerk within two days after receiving the copy of the initial determination of insufficiency and files a supplementary petition within ten days after receiving the copy of the city clerk's initial determination. Such supplementary petition shall comply with the requirements of this chapter and Charter, and within five days after it is filed, the city clerk shall complete a determination as to the sufficiency of the petition as amended and promptly send a copy of such determination to the petitioner's committee by registered mail as in the case of an original petition.

- (2) A recall petition may be cured in the manner provided in state law.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.050 Protest of initial determination of sufficiency.

(a) A protest concerning the sufficiency of the number of signatures in writing, under oath, may be filed with the city clerk by a registered city elector not later than 30 days after the city clerk has issued an initial determination of sufficiency. The protest shall include the name and address of the protestor with an email address for all communication related to the protest. The protest must set forth with particularity the grounds of such protest including, if applicable, the names protested.

(b) Within three business days of receiving a protest meeting the requirements of this chapter, the city clerk shall send a copy of such protest by e-mail to the petition representatives and/or to the protest representatives, together with a notice

fixing a time for hearing. The hearing shall be set not less than five nor more than 20 days after the date of the notice.

(c) The city clerk shall not accept any protest filed prior to an initial determination of sufficiency of the petition has been issued. The city clerk shall reject any protests that do not meet the requirements of this chapter.

(d) Upon the filing of any protest with the city clerk, all proceedings upon the petition shall be suspended until final disposition of such protest. If an election is thereafter required to be held, the period of time required for protest procedures shall not be included in the computation of time periods under this chapter and any such periods shall be extended by the time required for such procedures.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.060 Protest hearing of initial determination of sufficiency.

(a) The hearing officer employed for enforcement of complaints pursuant to section 1.05.120 shall conduct the protest hearing. Except as set forth in this chapter, the hearing will be conducted in substantial compliance with section 8.25.070.

(b) The protest hearing shall be open to the public and all testimony shall be under oath. The hearing officer shall have the power to issue subpoenas to compel the attendance of witnesses and the production of documents and to receive all testimony and documentary evidence before rendering a decision on the protest. Upon failure of any witness to obey the subpoena, the hearing officer may petition the municipal court for an order compelling the witness to appear and testify or produce documentary evidence. The burden of proof at the protest hearing shall be on the protestants to prove invalid signatures were included in the initial determination of sufficiency.

(c) The protest hearing shall be concluded and a decision by the hearing officer rendered no later than ten days after the conclusion of the hearing. The petition representatives and protest representatives shall be notified of the result of the hearing by e-mail or registered mail. The

result of such hearing shall be emailed to the petition representatives and protest representatives.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.070 Ballot title and submission clause.

(a) *Ballot title.* After the initial determination of sufficiency, the following shall apply:

- (1) The city clerk, with the assistance of such other city officials the city clerk deems necessary, shall designate and fix a ballot title and submission clause which shall fairly and accurately express the intent and meaning of the proposed ordinance. Ballot titles shall be brief and shall not conflict with titles selected for any petitions previously filed for the same election. Proceedings for fixing the ballot title and submission clause shall be concluded not later than five business days after the city clerk or council has issued the initial determination of sufficiency.
- (2) *Protest to ballot title.* If any registered city elector claims the ballot title and submission clause do not fairly express the meaning and intent of the proposed measure, they must file a protest within three business days after the ballot title and submission clause are fixed by the city clerk. A hearing on any such protest shall be held before the hearing officer in substantial compliance with section 8.25.070 of this Code not less than ten nor more than 20 days after the protest has been filed. The person filing the protest may appeal an adverse ruling from the hearing officer with a court of competent jurisdiction no later than ten days after such ruling.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.080 City clerk's final determination of sufficiency.

(a) If a petition or amended petition:

- (1) Is certified sufficient;

(2) If a petition or amended petition is certified insufficient and the petitioners' committee does not elect to amend or request council review under subsection (b) of this section within the time required;

(3) A petition is certified insufficient, and the initiative or referendum petitioners committee timely requests council review under subsection (b), and the council thereafter sustains the determination of insufficiency;

(4) The time for filing a protest pursuant to section 1.09.070 has passed without a protest being filed;

(5) A protest pursuant to section 1.09.070 has concluded that the petition is sufficient.

Then the city clerk shall promptly present the certificate to the city council and the certificate shall then be a final determination as to the sufficiency of the petition.

(b) *City council review; city council's final determination.* If an initiative or referendum petition has been certified insufficient and the petitioners' committee does not file notice of intention to amend it or if an amended petition has been certified insufficient, the petitioners' committee may, within two days after receiving the copy of such certificate, file a request that it be reviewed by the city council. The city council shall review the certificate at its next meeting following the filing of such request and approve or disapprove it and the city council's determination shall then be a final determination as to the sufficiency of the petition.

(c) *Court review; new petition.* A final determination as to the sufficiency of a petition shall be subject to court review. A final determination of insufficiency, even if sustained upon court review, shall not prejudice the filing of a new petition for the same purpose.

(Ord. No. 2265, § 8, 4-8-2025)

1.09.090 Presentation of petition to city council.

As soon as practicable following the final determination of sufficiency, the city clerk shall present the petition to the city council at a regular or special meeting.
(Ord. No. 2265, § 8, 4-8-2025)

**Chapter 1.10
VIOLATIONS****1.10.100 Unlawful acts.**

- (a) It is unlawful for any person to:
- (b) Willfully and knowingly circulate or cause to be circulated or sign or procure to be signed any petition bearing the name, device, or motto of any person, organization, association, league, or political party, or purporting in any way to be endorsed, approved, or submitted by any person, organization, association, league or political party, without the written consent, approval and authorization of such person, organization, association, league or political party.
- (c) Sign any name other than their own to any petition or knowingly sign their name more than once for the same petition.
- (d) Knowingly sign any petition if they are not at the time of signing a registered elector of the city.
- (e) Sign an affidavit as circulator without knowingly or reasonably believing the statements made in such affidavit are true.
- (f) Certify that an affidavit attached to a petition was subscribed or sworn to before the affiant unless it was so subscribed and sworn to before the affiant.
- (g) Directly or indirectly pay to or receive from or agree to pay to or receive from any other person any money or other thing of value in consideration of or as an inducement to the signing of any such petition.

(h) Use deceptive practices when obtaining signatures on any petition.

- (1) Deceptive practices as used in this section are representations, omissions, or practices that mislead or are likely to mislead a person to obtain their signature.
- (2) If deceptive practices are used by a person training a petition circulator, the organization conducting the training violates this subsection (g).
- (3) If deceptive practices are used by the person circulating a petition, the person circulating the petition violates this subsection (g).

(i) Knowingly violate any provision of this chapter.

(j) Violations of this chapter shall be punishable in accordance with the provisions of section 1.01.110.

(Ord. No. 2265, § 9, 4-8-2025)

Title 2

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Chapter 2.04 COUNCIL MEETINGS

2.04.010 Reserved.

2.04.020 Organizational meeting.

The first regular meeting of the city council in January following each general municipal election shall be the organizational meeting of city council.

(Ord. 1190, 1993; Ord. 993, § 2, 1985)

2.04.030 Special meetings—Executive sessions.

The city council may hold special meetings in compliance with Chapter V of the Charter. The city council may hold executive sessions at regular (including study sessions) and special meetings in compliance with applicable laws.

(Ord. 1190, 1993; Ord. 500, § 3, 1962)

2.04.040 Place of meetings.

All regular (including study sessions) and special meetings of the city council shall be held at city hall, unless determined to be held elsewhere by council with public notice thereof prior to the meetings.

(Ord. 1190, 1993; Ord. 500, § 5, 1962)

Chapter 2.06 PUBLICATION OF ORDINANCES

2.06.010 Intent.

It is the intent of this ordinance to comply with the Charter's publication requirements to provide reasonable notice to the public of the city's pending legislation, while ensuring the timely enactment of City Ordinances.

(Ord. 1351, 1997)

2.06.020 Definition.

All calendar days, including the day of publication of an ordinance pending before city council,

shall be deemed as "days earlier" in determining the publication requirements of Section 5.10(e) of the Charter.

(Ord. 1351, 1997)

2.06.030 Publication requirements.

(1) Whenever the publication of any proposed or adopted ordinance, or any notice of a hearing, is required by the provisions of the Golden Home Rule Charter, such publication may be achieved through the posting of such notice, legislation, or proposed legislation, by means of printed newspaper, electronic media, or such other media, including posting on the city's official website. Except as otherwise provided by ordinance, the city manager shall determine the appropriate means of publication through the issuance of an administrative order.

(2) In the event that such publication is by a means other than publication in a newspaper published or having general circulation within the limits of Golden, publication shall include posting in the lobby of city hall, the lobby of the Golden Community Center, and the front entryway at city hall.

(Ord. 2152, § 1, 1-26-2021)

Chapter 2.08 ADMINISTRATION ORGANIZATION

2.08.010 Authority of council generally.

The corporate authority of the City of Golden being by law vested in the city council, the council shall be the body of final responsibility in all matters affecting the city, and shall have all powers, and be subject to responsibilities and limitations, which may now or hereafter be granted or imposed by law.

(Ord. 247, § 2, 1948)

2.08.011 Office of mayor.

(a) The office of mayor is an office that is separate and distinct from the office of city councilor. Notwithstanding the separate and distinct nature of the office of mayor, the mayor

shall be considered a member of the city council, with all of the powers and privileges of a city council member.

(b) The qualifications and term for the office of mayor shall be the same as that for members of city council as provided in Section 3.4 and 4.1 of the Home Rule Charter.

(c) During his/her term of office, no mayor shall serve as a member of council nor may a candidate for mayor, at the same election, run for council. (Ord. 1990, 2014; Ord. 1621, 2003)

2.08.012 Salary of mayor, mayor pro-tem, and council.

(a) The salary of each councilor shall be \$1,000.00 per month. The salary of the mayor pro-tem shall be an additional \$100.00 per month and the salary of the mayor shall be an additional \$500.00 per month. Each January 1, the city council compensation shall be increased by the Denver-Boulder C.P.I. for the previous year.

(b) In addition to the salary authorized herein, the mayor, mayor pro-tem, and each councilor shall be eligible to participate in the following benefits programs, subject to any future increases necessary to maintain such benefits programs, on the same terms and conditions as provided to city employees:

- (1) Medical, dental, and vision insurance for the mayor, mayor pro-tem, and council members and their families;
- (2) Community Center annual passes; and
- (3) A city dependent care spending account. (Ord. No. 2223, § 1, 8-8-2023; Ord. 1689, 2005; Ord. 1358, 1996; Ord. 1141, 1991; Ord. 993, § 1, 1985; Ord. 835, 1980)

2.08.015 Appointments made by council.

Unless otherwise provided by law, all appointments made by the council of the City of Golden shall be continued until the first regular meeting of council in March following the biennial election for councilmen, except that nothing contained therein shall prevent the council which takes office in January following the biennial election,

from acting on the appointment of officials who serve at the pleasure of council at a time prior to the first regular meeting in March. (Ord. 564, § 1, 1966)

2.08.020 Authority of city manager.

The city manager shall be the chief administrative officer of the city. The city manager shall have all the rights and authority, be subject to all responsibilities, and have the duties granted or imposed by law or by the city council, and is authorized to determine and establish methods of administration as will best promote efficiency in the municipal government. (Ord. 2202, § 2, 2022; Ord. 247, § 3, 1948)

2.08.030 Supervision and duties of attorney and municipal judge.

The city attorney and municipal judge shall be under the supervision of the city council, and shall perform such duties as are imposed by law or ordinance, or assigned by the city council. (Ord. 247, § 4, 1948)

2.08.040 Reserved.

Editor's note—Sec. 3 of Ord. No. 2202, adopted December 13, 2022, repealed § 2.08.040, which pertained to departments supervised by manager, and derived from Ord. 247, 1948.

2.08.050 Reserved.

Editor's note—Sec. 4 of Ord. No. 2202, adopted December 13, 2022, repealed § 2.08.050, which pertained to manager's administrative powers, and derived from Ord. 247, 1948.

2.08.060 Reserved.

Editor's note—Sec. 5 of Ord. No. 2202, adopted December 13, 2022, repealed § 2.08.060, which pertained to departments designated, and derived from Ord. 247, 1948; Ord. 479, 1961; Ord. 602, 1966; Ord. 1099, 1990; Ord. 1339, 1996; and Ord. 1461, 1999.

2.08.070 Reserved.

Editor's note—Sec. 6 of Ord. No. 2202, adopted December 13, 2022, repealed § 2.08.070, which pertained to supervision of departments, and derived from Ord. 247, 1948.

2.08.080 Reserved.

Editor's note—Sec. 7 of Ord. No. 2202, adopted December 13, 2022, repealed § 2.08.080, which pertained to deputy department heads, and derived from Ord. 247, 1948.

2.08.090 Bonding officers.

All officers and employees of the City of Golden, Colorado, who in the opinion of the city manager should be bonded for the protection of the city, shall be bonded in such amounts as the city manager shall recommend to the city council, and the costs of any such bonds shall be borne by the city; provided, however, that the city council may set this amount at \$0.00 if the city, through its annual budget process, approves, appropriates funds, and purchases additional insurance in forms and types of coverages that protect the city against financial loss from employee dishonesty in an amount recommended by the city manager.

(Ord. 2202, § 8, 2022; Ord. 247, § 10, 1948)

2.08.110 Authority of city manager to issue rules concerning the use of city buildings and property.

The city manager is hereby granted the authority to issue and adopt such rules, orders and regulations as are reasonably necessary for the administration, protection and maintenance of buildings and property belonging to the City of Golden and any other public buildings and property under the control, management or supervision of the city manager, specifically, orders, rules, and regulations upon the following matters:

- (a) Preservation of property, vegetation, wildlife, signs, markers, statues, buildings and grounds, and other structures, and any object of scientific, historical, or scenic interest;
- (b) Restriction or limitation of the use of such public buildings or property as to time, manner, or permitted activities;
- (c) Prohibition of activities or conduct within public buildings or on public property which may be reasonably expected to substantially interfere with the use and

enjoyment of such places by others or which may constitute a general nuisance;

- (d) Necessary sanitation, health, and safety measures, consistent with C.R.S. 1973, 25-13-113;
- (e) Camping and picnicking, public meetings and assemblages, and other individual or group usages, including the place, time, and manner in which such activities may be permitted;
- (f) Use of all vehicles as to place, time, and manner of use;
- (g) Control and limitation of fires and designation of places where fires are permitted.

The rules, orders and regulations applying to any such building or property shall be posted at all public entrances to such building or property.

(Ord. 737, § 1, 1975)

Chapter 2.12**CITY CEMETERY****2.12.010 Cemetery boundaries designated.**

All that part of the east half of the southwest quarter of section two, in township 4, south, of range 70 west, embraced in the following boundaries: Commencing at the southeast corner of the southwest quarter of said section, and running thence north 40 rods to a stake, thence east 40 rods to a stake, thence north 80 rods to a stake, thence west 40 rods to a stake, thence south 120 rods to a stake, and thence east to place of beginning, shall be used as a place for the burial of the dead, and shall be known and designated as the Golden Cemetery.

(Ord. 7, § 1, 1873)

2.12.020 Plat on file.

Lots in said cemetery shall be described according to the plat of the same now on file in the office of the city clerk.

(Ord. 7, § 2, 1873)

2.12.030 Application for lots.

Application for lots in the cemetery shall be made to the city clerk. He shall be provided with a book containing a list of all the lots in the said cemetery, with their numbers and blocks described in accordance with the plat hereinbefore mentioned, together with columns ruled for the entry when sold, of the name of the purchaser, the date of the sale, and the amount received for such lot.

(Ord. 7, § 3, 1873)

2.12.040 Certificate of interment.

Upon payment in full of the purchase price a person shall receive a certificate of interment granting such person only the right of interment and not any interest, title or right in real property.

(Ord. 1244, § 1, 1994; Ord. 953, § 1, 1984)

2.12.050 Schedule of charges.

Each and every grave space hereinafter purchased in the Golden Cemetery shall be kept in season and have perpetual care, and no grave space therein shall be sold without provisions for perpetual care. The charges for cemetery grave spaces and services shall be set forth from time to time by resolution of the Golden City Council.

(Ord. 965, § 1, 1984)

2.12.060 Cemetery funds.

All monies received for cemetery purposes shall be deposited, maintained and dispersed from either the cemetery perpetual care fund or cemetery operations fund.

- (a) *Perpetual care fund.* All monies received for perpetual care shall be deposited in the perpetual care fund. The city's finance director shall invest the funds in accordance with the city's investment policy. However, such monies shall be perpetually kept and invested and not otherwise used or withdrawn except as provided herein.

- (1) Interest earnings of the perpetual care fund may, subject to city council's approval in conjunction with

the annual budget process, be applied to current cemetery operations in accordance with a schedule established by the city's finance director such that when all grave spaces are sold, sufficient funds shall exist in the perpetual care fund to provide perpetual care for the cemetery.

- (2) When the city council determines that the principle of the perpetual care fund is enough to provide perpetual care for the cemetery, any additional earnings of the fund shall be deposited in the cemetery operation fund.
- (b) *Operation fund.* All monies received from the sale of lots and grave spaces, other than that specified for the perpetual care fund and all other monies derived from the operation of the cemetery shall be deposited in the cemetery operation fund. All disbursements made for or on account of the cemetery shall be paid from the cemetery operation fund.
- (Ord. 1244, § 2, 1994; Ord. 1094, § 1990; Ord. 1072, 1989; Ord. 437, 1959; Ord. 341, § 2, 1953)

2.12.070 Charge for lots sold without perpetual care.

There is imposed by the City of Golden on all lots and burial space in the Golden Cemetery, which have heretofore been sold without provision of payment for perpetual care, a charge commensurate with that fee currently charged for perpetual care. These charges shall be paid in full before a grave is opened or before the city will recognize a change of ownership.

(Ord. 953, § 2, 1984)

2.12.090 Perpetual care for lots owned by fraternal societies.

The City of Golden will furnish perpetual care of lots or parcels of ground owned by the Independent Order of Odd Fellows, Ancient Free and Accepted Masons, and any other group or order, upon payment into the endowment for perpetual care fund the same amounts as provided in this chapter for the sale of lots with endowment for perpetual care.

(Ord. 341, § 5, 1953)

2.12.100 Conditions for use of spaces.

The use of grave spaces is restricted to burial of human remains and all burials shall be in accordance with all applicable laws and the cemetery rules and regulations. If a grave space

remains unoccupied for 50 or more calendar years from its date of purchase, the ownership of such space shall revert to the city unless the current owner of the space may be located and the perpetual care fees due for such space are paid in full. The city shall make a reasonable attempt to locate the current owner of such space. If the owner cannot be located, the city shall publish a notice of reversion for two consecutive weeks in a newspaper of general circulation within the city, which notice shall include the grave space description as recorded in the cemetery records. If within ten calendar days after the date of the last publication the space remains unclaimed by one having a right to lawful possession of same, the city shall then become the lawful owner of such grave space.

(Ord. 1244, § 3, 1994; Ord. 341, § 6, 1953)

2.12.105 Repurchase by city.

Effective October 1, 1994, any person who purchases a certificate of interment from the city, or such persons heirs, who desire to sell such interest must first offer such interest to the city, which has the right of first refusal. If the city desires to acquire the interest, the parties shall execute a repurchase agreement. The city shall purchase any interest at a price as set forth by a resolution of city council, which price shall be a percentage of not less than 50 percent of such certificate of interment's current sales price including the current perpetual care fee where perpetual care has been previously paid for such space.

(Ord. 1244, § 4, 1994)

2.12.110 Permitted grave markers.

Only flat ground level markers shall be permitted and no copings will be allowed to be constructed around any grave site.

(Ord. 658, § 2, 1966)

2.12.120 Vault required.

All grave openings shall require a vault which vault shall be supplied by the city at the city's actual cost, or in the alternative may be supplied by individuals if constructed to city specifica-

tions. The cost of the vault shall be paid in advance and shall be in addition to any other charges provided for in this chapter.
(Ord. 568, § 3, 1966)

Chapter 2.16 FISCAL YEAR

2.16.010 Designated.

The fiscal year of the City of Golden shall begin on the first day of January of each year and terminate on the 31st day of December of each year.
(Ord. 323, § 1, 1992)

Chapter 2.18 AFFORDABLE HOUSING TRUST FUND

2.18.010 Definitions.

(a) *Affordable housing* means residential housing located within the boundaries of the City of Golden, designed for and restricted to households with incomes at or below 120 percent of area median income.

(b) *Area median income* means the median annual household income for Jefferson County, as adjusted by household size, and published annually by the Colorado Housing Finance Agency (CHFA), or comparable standard as approved by city council resolution.

(c) *Household* means comprised of one or more individuals whose combined income does not exceed the area median income threshold the affordable housing unit is designed to serve.

(d) *Low-income household* means households whose incomes do not exceed 50 percent of area median income.

(e) *Middle-income household* means households whose incomes do not exceed 120 percent of area median income.

(f) *Moderate-income household* means households whose incomes do not exceed 80 percent of area median income.
(Ord. No. 2195, § 2, 10-11-2022)

2.18.020 Affordable housing trust fund established.

There is hereby established a separate fund entitled the affordable housing trust fund, which fund shall be segregated from all other city funds, for the purpose of receiving all revenues related to uses authorized pursuant to section 2.18.040 of this Code. All monies in the Affordable Housing Trust Fund and any interest earned thereon shall be used only for the purposes allowed by the City Charter and this Code.
(Ord. No. 2195, § 2, 10-11-2022)

2.18.030 Revenue sources.

The affordable housing trust fund shall be funded through the following:

- (a) Gifts;
- (b) Grants (including funds received by the city pursuant to the American Rescue Plan Act of 2021);
- (c) Revenue derived from the collection of payments in lieu of construction of affordable housing or related to the impacts thereof;
- (d) Repayments of funds loaned from this fund; and
- (e) Appropriations as directed by city council, in accordance with the City Charter and this Code.

(Ord. No. 2195, § 2, 10-11-2022)

2.18.040 Uses of the affordable housing trust fund; terms and conditions.

(a) *Permitted uses.* The city may use money from the affordable housing trust fund to assist proposed projects or programs to develop or preserve affordable housing for persons of low-, moderate- and middle-income households for the following purposes:

- (1) Making loans at interest rates below or at market rates to strengthen the financial feasibility of proposed projects;
- (2) Providing gap financing or funding for affordable housing developments;

- (3) Financing or funding the acquisition, demolition, and disposition of property for affordable housing projects;
- (4) Financing or funding the rehabilitation, remodeling, preservation, or new construction of affordable housing;
- (5) Funding to facilitate affordable homeownership opportunities including, but not limited to, down payment assistance, second mortgages, and inspection and closing costs;
- (6) Funding for programs to rebate city-related development fees on affordable housing units, in accordance with the City Charter and this Code;
- (7) Interim or bridge financing for affordable housing projects in anticipation of a permanent financing source (i.e., construction financing, bond sale, etc.);
- (8) Other uses as permitted by law and approved by city council.

(b) *Terms and conditions.* The city council shall determine the terms and conditions of repayment of loans and grants from the affordable housing trust fund, including the appropriate security and interest, if any, should repayment be required. Interest on loans and grants shall be as established by the city council resolution from time to time or at the time of approval of a specific project or program. All projects receiving funding from the affordable housing trust fund will be required to provide permanent affordable housing through a deed restriction or other comparable mechanism as a condition of receiving such funds unless otherwise waived by city council resolution.

(Ord. No. 2195, § 2, 10-11-2022)

2.18.045 Eligibility requirements and criteria for priority selection.

(a) *Eligibility.* An applicant applying for the trust fund disbursement program shall demonstrate that the project they are applying for meets the following eligibility requirements:

- (1) The project serves households making up to 120 percent AMI, with a project aver-

age up to 100 percent AMI if the project is for purchase, or with a project average up to 60 percent AMI if the project is for lease; and

- (2) The project shall demonstrate there will be a mechanism in place, the form of which shall be at the city's satisfaction, which requires the project remain permanently restricted at the AMI percentage that the project qualified for, such as, but not limited to, deed restrictions, or an arrangement with a land trust.

(b) *Priority selection.* An eligible applicant may receive priority consideration for trust fund disbursement, if the applicant demonstrates any one or more of the following equally weighted factors:

- (1) The project will be limited at or below 60 percent AMI if for rent, or at or below 100 percent AMI if for purchase;
- (2) The project promotes geographic diversity of affordable housing throughout the city;
- (3) The project provides referral options for units that will prioritize existing residents and/or workers that work in Golden;
- (4) The project fills a gap in currently available affordable housing;
- (5) The project will be in close proximity to multi-modal transportation infrastructure;
- (6) The project will offer access to nearby schools, grocery stores, parks, and other essential services.

(c) *Agreement requirement.* Applicants who are awarded a trust fund disbursement must enter into an agreement approved by the city attorney that describes the requirements and responsibilities associated with the fund award. (Ord. No. 2274, § 2, 7-22-2025)

2.18.046 City manager authorization and approval.

(a) Subject to compliance with the Golden Municipal Charter requirements and limitations, established policy and regulation; eligibility criteria, priority selection criteria, uses, terms

and conditions as set forth in this chapter and further subject to city council's right to call up and rescind agreements as provided in subsection below, the city manager is authorized to negotiate and enter into on behalf of the city, affordable housing trust fund agreements.

(b) The city council shall be notified of affordable housing trust fund awards and agreements. If within 15 days of notification there has been no call up for council review and rescission of the agreement by council action, the award and agreement shall be final.
(Ord. No. 2274, § 3, 7-22-2025)

2.18.050 Reporting.

The city manager shall report annually to the city council regarding the use of the affordable housing trust fund. Such report shall include the number of loans and grants made, the number and types of residential units resulting from assistance from the fund, and the number of households for which assistance was provided.
(Ord. No. 2195, § 2, 10-11-2022)

Chapter 2.24 MUNICIPAL COURT

2.24.010 Oath of office.

Before taking office each judge shall take and subscribe before the city clerk, an oath or affirmation to support the constitutions of the United States, State of Colorado, and Charter and ordinances of the city and faithfully perform the duties of the office.
(Ord. 1226, 1994)

2.24.020 Powers and duties generally.

(a) The presiding municipal judge shall be the head of the municipal court system.

(b) The presiding municipal judge shall have the authority to make and adopt rules and regulations for conducting the business of the municipal court. Such rules and regulations

shall be consistent with the Colorado Municipal Court Rules of Procedure, as set forth by the Colorado Supreme Court.
(Ord. 1226, 1994; Ord. 1092, § 4, 1990; Ord. 562, § 1, 1966)

2.24.030 Court administrator.

(a) There is established the position of court administrator, who shall act as court clerk, jury commissioner and supervisor of violations bureau.

(b) The court administrator shall be a city employee, and have such duties as are prescribed by law, court rules, and the city manager, which duties include, but are not limited to:

- (1) Maintain a register of all court transactions, including all fees, fines and money collected and disbursed;
- (2) Deliver to the city's finance department all money received as fees and fines;
- (3) Prepare and keep a docket for the court noting all judgments;
- (4) Prepare all writs and other papers pertaining to the business of the court; and
- (5) Make and maintain all necessary court records.

(c) The court administrator may issue writs and notices, including without limitation, subpoenas, summons and complaints, for all cases coming before the municipal court.

(d) The court administrator is not required to post the bond required by C.R.S. 13-10-109, as amended.
(Ord. 1226, 1994)

2.24.040 Court of record.

A verbatim record of the proceedings of the municipal court shall be maintained. Such record shall be maintained for a period of at least three months following termination of the case in the municipal court unless a party has filed a timely notice of appeal. If a notice of appeal has been timely filed, the verbatim record shall be maintained for three months after final disposition of the appeal. Nothing in this section shall prohibit the release of any exhibits to any party

or to any person supplying the exhibit after said time period, provided the same has not been destroyed or released as provided by law. (Ord. 1226, 1994; Ord. 926, § 3, 1983)

2.24.050 Reserved.

Editor's note—Ord. No. 2004, adopted Apr. 9, 2015, repealed § 2.24.050, transcription costs, which derived from Ord. 926, 1983; and Ord. 1226, 1994.

2.24.055 Victim compensation fund.

(a) *Fund established.* City council hereby establishes the victim compensation fund ("VCF") and the municipal court's authority to collect VCF fees from each defendant, subject to the following requirements:

- (1) Council shall, by resolution, establish a victim compensation fund fee, to be imposed and collected from each defendant who is found guilty, pleads guilty, or pleads nolo contendere in municipal court, in addition to any other court costs imposed by the court pursuant to section 2.24.060 "Costs." Upon a finding by the court that the defendant is indigent, the court may waive the VCF fee. Except as expressly authorized herein, the VCF fee shall not be suspended, waived, or converted to useful public service or voluntary public service hours.
- (2) Council shall, by resolution, establish additional standards that apply to VCF disbursements.
- (3) The VCF shall be established as a separate restricted account of the city, shall be budgeted as such and shall not be subject to transfer to any other account at any time, except as may be necessary for disbursement as council may set forth by resolution. The VCF shall be initially funded by transferring the forfeited amount of municipal court bonds from the city's dedicated municipal court bond escrow account to the newly established victim compensation fund. The city manager or his or her designee has the discretion to transfer future forfeited

amounts of municipal courts bonds from the city's municipal court bond escrow account to the VCF.

(b) *Procedure for disbursement.* Within six months after a defendant has been found guilty, plead guilty, or plead nolo contendere in municipal court, the municipal prosecutor may make a motion in the municipal court requesting disbursement from the VCF to an identified victim of the crime that led to the verdict of guilty, or the plea of guilty or nolo contendere. It is within the municipal court judge's discretion to grant or deny the motion based on the rules and guidelines established through resolution by the city council. The municipal court may consider a motion requesting VCF disbursement after six months of the defendant being found guilty or pleading guilty or nolo contendere but only upon a showing of good cause by the municipal prosecutor. (Ord. No. 2289, § 2, 3-10-2026)

2.24.060 Costs.

Council shall, by resolution, establish costs to be assessed against any defendant who pleads guilty or nolo contendere or who enters into a plea agreement or who is found guilty of an ordinance violation.

(Ord. 1744, 2006; Ord. 1544, 2001; Ord. 1404, 1998; Ord. 1226, 1994; Ord. 926, § 2, 1983)

2.24.070 Restitution.

(a) The municipal judge may, as a condition of any sentence, order a defendant to serve probation for a period of not more than one year under such terms and conditions as the judge deems appropriate, except that any required fine, penalty or imprisonment shall be paid or served as a condition of probation.

(b) The municipal judge may impose any of the following conditions for probation:

- (1) Refraining from violating any federal, state, or municipal laws withing the probation period following the conviction; however, unless specifically provided otherwise by the municipal judge, this shall be a condition of every probation;

- (2) Restitution to any victim(s), or to the victim compensation fund if disbursement will be made to the victim(s) through that fund, for damage or injury caused by the commission of the violation for which the defendant was convicted or pled guilty or nolo contendere;
- (3) Attendance at a driver training course or other appropriate programs;
- (4) Performance of a specified number of hours of community service tasks;
- (5) Participation in mental health or drug or alcohol evaluation;
- (6) Any other lawful condition reasonably related to the violation.

(c) Upon proof of breach of any condition of probation after appropriate notice and hearing thereon, the judge may impose any sentence that could have been imposed at the time of entry of judgment.

(Ord. No. 2289, § 3, 3-10-2026; Ord. 1226, 1994)

2.24.080 Judicial appeals procedure.

(a) Review shall be before the municipal court if it is alleged that any municipal authority, board, commission (municipal body) or officer exercising quasi-judicial functions has exceeded its jurisdiction or abused its discretion, and there is no plain, speedy and adequate remedy otherwise provided by the Charter or ordinance:

- (1) Review shall be limited to a determination of whether the municipal body or officer has exceeded its jurisdiction or abused its discretion, based on the evidence in the record before the municipal body or officer.
- (2) Review pursuant to this section shall be commenced by the filing of a verified complaint. The complaint shall be accompanied by a motion and proposed order requiring certification of the record of the hearing before the municipal body or officer. The court shall order the municipal body or officer to file with the municipal court on a specified date, the record or such portion or transcript thereof

as is identified in the order, together with a certificate of authenticity. The date for filing the record shall be after the date upon which an answer to the complaint must be filed. To the extent not otherwise specified herein, the complaint, answer, motions or other responsive pleadings shall be filed and served in accordance with the municipal court rules of procedure.

- (3) Within 20 days after the date of receipt of an order requiring certification of a record, the municipal body or officer may file with the municipal court a statement designating portions of the record not in the order which it desires to place before the court. The cost of preparing the record shall be advanced by the plaintiff, except that the court may, pursuant to motion of the plaintiff, order the municipal body or officer to advance payment for the costs of preparing such portion of the record designated by the municipal body or officer as the court shall determine is not essential to a complete understanding of the controversy. If the municipal body or officer fails to comply with such order, the portions for which it has been ordered to advance payment shall be omitted from the record. Any party may move to correct the record at any time.
- (4) The proceedings before or decision of the body or officer may be stayed, pursuant to the municipal court rules of procedure.
- (5) Where claims other than claims under this rule are properly joined in the action, the court shall determine the manner and timing of proceeding with respect to all claims.
- (6) The municipal body or officer required to certify a record shall give written notice to all parties, simultaneously with filing, of the date of filing the record with the municipal court. The plaintiff shall then file, and serve on all parties, an opening brief within 40 days after the date on which the record was filed. The municipal body or officer shall file and serve an

answer brief within 30 days after service of the plaintiffs brief, and the plaintiff may file and serve a reply brief to such brief within 15 days after service of the answer brief.

- (7) The court may accelerate or continue any action which, in the discretion of the court, requires acceleration or continuance.
- (8) In the event the court determines that the municipal body or officer has failed to make findings of fact or conclusions of law necessary for a review of its action, the court may remand for the making of such findings of fact or conclusions of law.

(b) Where an ordinance provides for review of the acts of any municipal body or officer, relief therein provided may be available under this rule. If no time within which review may be sought is provided by any ordinance, a complaint seeking review under this rule shall be filed in the municipal court not later than 30 days after the final decision of the body or officer. This time requirement is jurisdictional and failure to comply with same shall preclude the municipal court from having and exercising jurisdiction over the matter. A timely complaint may be amended at any time with leave of the court, for good cause shown, to add, dismiss or substitute parties, and such amendment shall relate back to the date of filing of the original complaint.
(Ord. 1686, § 1, 2004)

- (b) *Controlled substance* means as defined by Colorado Revised Statute (C.R.S.) 18.18.102(5) as may be amended from time to time.
- (c) *Drug paraphernalia* means as defined by section 8.04.820 of the Golden Municipal Code.
- (d) *Firearm* means as defined by subsection 8.04.900(3) of the Golden Municipal Code.
- (e) *Weapon* means as defined by subsection 8.04.900(14) of the Golden Municipal Code.
(Ord. 1786, 2007)

2.28.030 Control of property.

(a) The provisions of this chapter shall govern the disposition of all lost, stolen, abandoned, found or seized property delivered or otherwise

Chapter 2.28 DISPOSITION OF UNCLAIMED PROPERTY

2.28.010 Reserved.

2.28.020 Definitions.

Unless otherwise required by context or use, words and terms shall be defined as follows:

- (a) *Chief of police* means the chief of the Golden Police Department or the chiefs authorized designee.

coming into possession of the city and remaining unclaimed or without the right of lawful possession by its owner.

(b) Such property shall upon coming into possession of the city be delivered to the chief of police as custodian, who shall secure and keep a record of all such property which shall include when and from where the property was obtained. (Ord. 1786, 2007)

2.28.040 Disposition of illegal property.

The chief of police may destroy any property for which the possession is illegal, including, but not limited to, controlled substances, drug paraphernalia, and weapons, when such property is no longer of any evidentiary value in any criminal proceeding or as so authorized by court order. (Ord. 1786, 2007)

2.28.050 Disposition of perishable or hazardous property.

(a) If any property seized or otherwise obtained by the city is perishable or of such nature as to make it inadvisable in the judgment of the chief of police to retain possession, such property shall be forthwith advertised for sale at public auction with public notice to be published in a newspaper of general circulation throughout the city not less than three days prior to such sale. The notice shall contain the date, time and place of such sale, describe the property and state the reason for the immediate sale.

(b) Notwithstanding the foregoing, nothing herein shall preclude the immediate destruction of hazardous property which in the judgment of the chief of police presents an immediate and substantial danger to the health, safety or welfare of the community. (Ord. 1786, 2007)

2.28.060 Disposition of other property.

Any property not sold or destroyed as perishable, hazardous or illegal and which has not been claimed by or surrendered to the lawful owner shall be disposed of in the following manner:

- (1) All such property shall be retained for a period of no less than two months from the date that possession was acquired by the city;

- (2) After the expiration of such period of time and as soon thereafter as is practicable, the chief of police shall cause to be published once in a newspaper of general circulation in the city a general description of the articles of property to be disposed of, which notice shall contain the following information:

- a That a detailed list of each and all articles of such property is available and may be obtained from the chief of police; and
- b That if such property is not claimed by the rightful owner within 20 calendar days from the date of publication, such property will become the property of the city to be disposed of by public auction, bid or otherwise with the date, place and location of any such event to be described therein.
- c If within 20 calendar days from the publication of the notice, no claim for such property described in the notice shall be made by the lawful owner, or such property surrendered to the lawful owner, such property shall become the property of the city and shall be disposed of in the following manner:
 - (i) The property may in the discretion of the chief of police be retained by the city for use in the conduct of the city's duties.
 - (ii) The property may be sold at public auction or bid or otherwise in accordance with the terms of the notice as described herein with all net proceeds to be placed in the city's general fund.
 - (iii) The property if deemed by the chief of police to be of little or no marketable value may be destroyed.

- d Notwithstanding any of the above provisions, firearms as permitted by law, shall be disposed of by the chief of police who may:
 - (i) Authorize sale or destruction.
 - (ii) Authorize retention for the purpose of training members of the department in the identification, safe handling and operation of those weapons.
 - (iii) Sales of firearms shall be restricted to federal licensed dealers or collectors.

(Ord. 1786, 2007)

Chapter 2.32 CODE OF ETHICS

2.32.010 Application.

The requirements set forth in this chapter are considered to be of local concern and are enacted pursuant to the City of Golden's constitutional home-rule powers. Accordingly, the standards and requirements of this chapter shall supersede standards and requirements in the field that are otherwise applicable to City of Golden public officials and employees by the laws of the State of Colorado, or otherwise. The more stringent, applicable standards of conduct shall prevail in the event of any conflict among locally adopted standards and requirements.

(Ord. 1842, § 2, 2009; Ord. 1230, 1994)

2.32.020 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Affiliate or affiliated with means an employee, partner, agent, representative, consultant, stockholder, joint venture or corporate director of any business organization or a person who shares office space with such organization.

Appear on behalf of means to act as a witness, advocate, expert or otherwise to support the position of another person, business, entity or organization.

Business means a corporation, partnership, sole proprietorship, trust or foundation or any other individual or organization carrying on a business, whether or not operated for profit.

Confidential information means any information which is not available to the general public or deemed confidential in accordance with local, state or federal law and which is obtained by reason of an official or employee's position or under circumstances by which a reasonable person could anticipate that such information not be disclosed. Confidential information shall also include information which, by determination of two-thirds of the entire city council, any commission, board or agency, or by determination of the city manager or city attorney, would not be in the best interests of the city if such information was made available to the public at the time it is provided to the recipient; provided, however, such determination shall be in compliance with any applicable law. Confidential information shall also include privileged attorney-client information and communication in compliance with applicable law.

Employee means any seasonal, temporary, part-time, or regular employee of the city subject to the ultimate direction and supervision of the city manager.

Financial interest means a substantial, financial or monetary interest held by an individual or immediate family member which is:

- (1) An ownership interest in a business, including ownership of the corporate stock issued, or any other form of interest in a business;
- (2) A creditor interest in an insolvent business;
- (3) An employment, or prospective employment, for which negotiations have begun;
- (4) An ownership in real or personal property;
- (5) A loan or other debtor interest in a business; or
- (6) A position as director, manager or officer in a business.

Immediate family means a spouse, domestic partner, child, parent, brother, sister, any dependent or person assuming a relationship being the substantial equivalent of those listed herein. Domestic partner shall mean an unmarried adult, unrelated by blood, with whom an unmarried official has an exclusive, committed relationship, maintains a mutual residence, and shares basic living expenses.

Official means any person or officer holding a position by election or appointment in the service of the city, whether paid, unpaid or volunteer, including without limitation, members of the city council, any board, agency, committee, commission or entity of the city.

Official act or *official action* means a vote, decision, recommendation, advisory opinion, approval, disapproval, discussion or other action, including inaction, which involves the use of discretionary authority.

Personal interest or *private interest* means a benefit, advantage or right of, or pertaining to or peculiar to a certain individual.

Transaction means any contract, agreement, any sale or lease of any interest in land, material, supplies or services; or any granting of a development right, license, authorization, approval, permit or application.
(Ord. 1842, § 1, 2009; Ord. 1534, § 1, 2001; Ord. 1230, 1994)

2.32.030 Financial interest in transaction.

No official having the power or duty to perform an official act or action, related to a transaction which is or may be the subject of an official act or action of the city, shall:

- (a) Have a financial interest in such transaction; or
- (b) Have a financial interest in any business entity representing, advising, affiliated with or appearing on behalf of, whether paid or unpaid, any individual or business involved in such transaction.

(Ord. 1701, 2005; Ord. 1230, 1994)

2.32.035 Rules of conduct for officials.

(a) No member of city council may solicit or accept from any person a present or future gift, favor, service, honorarium or thing of value, whose cumulative value is more than \$100.00 per annum whether or not there is an actual or perceived benefit to the recipient. This prohibition shall not apply to:

- (1) Acceptance of food and refreshment at conferences, seminars, training sessions, luncheon and dinner meetings, special occasions and other instances in conjunction with city business.
- (2) Campaign contributions reported pursuant to the campaign finance ordinance, chapter 1.05 of the Golden Municipal Code.
- (3) An award publicly presented in recognition of public service.
- (4) Any gift to the member of city council from an immediate family member of the member of the city council.
- (5) Scholarships or grants for payment of educational expenses, including living expenses, awarded to the member of city council or his or her immediate family member.
- (6) Any gift to the member of city council from a person meeting all of the following criteria:
 - a Such person does not reside in the City of Golden.
 - b Such person does not own real property in the City of Golden.
 - c Such person does not conduct business in the City of Golden, or with the City of Golden.
 - d Such person has no personal or financial interest substantially affected or influenced by the Golden City Council or the City of Golden.
 - e Such person is not associated with, employed by, or otherwise acting on behalf of a person who does not meet all of the above criteria.

(b) No official may solicit or accept from any person any present or future gift, favor, loan, service or thing of value under circumstances that would lead a reasonable person to believe that such gift, favor, loan, service or thing of value was made or given primarily for the purpose of influencing or attempting to influence such official in connection with an official act, or as a reward of official action he or she has previously taken.

(c) No member of city council may solicit or accept from any person a loan at a rate of interest substantially lower than, or with terms more attractive than, the market rate or term then currently prevalent for similar loans; nor may any member of city council solicit or receive compensation for private services rendered at a rate, or under terms, substantially exceeding the fair market value for such services. This prohibition shall not apply to:

- (1) Any loan to the official from an immediate family member of the member of city council.
- (2) Scholarships or grants for payment of educational expenses, including living expenses, awarded to the member of city council or his or her immediate family member.
- (3) Any loan to the member of city council from a person meeting all of the following criteria:
 - a Such person does not reside in the City of Golden.
 - b Such person does not own real property in the City of Golden.
 - c Such person does not conduct business in the City of Golden, or with the City of Golden.
 - d Such person has no personal or financial interest substantially affected or influenced by the Golden City Council or the City of Golden.
 - e Such person is not associated with, employed by, or otherwise acting on behalf of a person who does not meet all of the above criteria.

(Ord. 1842, § 2, 2009; Ord. 1701, 2005)

2.32.040 Public contract.

No official shall participate in the making of a contract or agreement, or exercise any discretion regarding same where the official has a financial interest in such contract or agreement unless:

- (a) The contract is awarded through a process of public notice and competitive bidding as provided in the City of Golden's Municipal Code or city policies, rules or regulations; or
- (b) City council, upon written request of such official, waives the requirements of this section after determining that it is in the best interest of the city to grant the request.

For the purposes of this section, financial interest shall include those matters where a member of an official's immediate family has an ownership, employment, debtor or creditor relationship with the contracting party.
(Ord. 1230, 1994)

2.32.050 Legislative action.

(a) Any official who has a financial interest, personal interest or private interest in any matter proposed or pending before the city council, any board, commission, agency, committee or entity shall disclose such interest to the governing body of such entity and shall not vote thereon, and shall refrain from influencing or attempting to influence the decisions of the other members of such entity in voting on the matter.

(b) Upon disclosure of such interest, the official may work with or continue to work with city employees or city staff on the matter related to the conflict of interest. Such official shall not attend public meetings of the governing bodies of the entities referred to in subsection (a) above.

(c) An official may vote notwithstanding subsection (a) if the official follows the procedures set forth in section 2.32.060.

(Ord. 1230, 1994)

2.32.060 Disclosure and disqualification.

Any official with a financial, personal or private interest in a transaction pursuant to section 2.32.050 shall do the following:

- (a) Give written notice of such interest to the city manager and the governing board of the public entity, as soon as reasonably possible after the interest has arisen.
- (b) Refrain from voting and refrain from influencing or attempting to influence other officials regarding the matter, except that it is permissible for an official to vote if the official's participation is necessary to establish a quorum or otherwise enable the public body to act but only if written disclosure is made both to the Colorado Secretary of State pursuant to Colorado Revised Statutes, and to the public body, which shall record such disclosure and include same in its minutes.

(Ord. 1230, 1994)

2.32.070 Confidential information.

No official with respect to any matter which is or may be the subject of an official act or action of the city, shall, without legal authorization, disclose confidential information concerning the property, government or affairs of the city or use such information to advance the financial, personal or private interest of himself/herself or others.

City council or the public body may waive its privileged attorney-client communication and information regarding confidential information and matters by vote of two-thirds of the entire council or public body.

(Ord. 1230, 1994)

2.32.080 Conflict of interest—City employment.

(a) No official shall engage in or accept private employment or render service, for financial, private or personal interest, when such employment or service conflicts with the proper discharge of his/her official or public duties or would tend to impair his/her independence of judgment or

action in the performance of such duties, unless otherwise permitted by law and unless disclosure is made as provided in this chapter.

(b) No council member or any immediate family member of a council member shall be employed, retained or hired by the city in any capacity or perform personal services for the city for compensation during a council member's term or within one year of expiration of a council member's term of office.

(c) The restrictions set forth herein in paragraph (b) shall not apply to part-time or seasonal employment of any council member's immediate family or to compensation paid the mayor or council members as provided in the Charter.

(d) Any board or commission member who applies for and obtains city employment shall resign from such board or commission no later than the member's effective date of employment.

(e) Notwithstanding paragraph (d) above, any part-time employee may be appointed to a board or commission subject to review and approval of council, which review shall be related to the integrity and purpose of chapter 2.32, and which review and approval shall be conducted at a public meeting.

(Ord. 1534, § 2, 2001; Ord. 1230, 1994)

2.32.090 Appearances.

No official shall appear on behalf of any private person, business or entity other than himself/herself, his/her spouse or minor children, before city council, or any public body or municipal court.

(Ord. 1230, 1994)

2.32.100 Use of public property.

No official shall request or permit the unauthorized use of city-owned vehicles, equipment, materials or property for personal or private convenience or profit.

(Ord. 1230, 1994)

2.32.110 Equality of treatment.

No official shall grant any special consideration, treatment or advantage to any person other than that which is available to every other person. (Ord. 1230, 1994)

2.32.120 Requests for opinion.

An official, upon full disclosure of facts to the city manager, may request an advisory opinion of the city manager, with the advice of the city attorney, regarding the application of this chapter to the official. (Ord. 1230, 1994)

2.32.130 Enforcement.

(a) The city council shall have the sole and exclusive responsibility and authority for the enforcement of this chapter. All complaints under this chapter shall be filed with the council within one year after the date of the alleged violation. The council shall promptly review and/or investigate any such complaint and take such action thereon as the council shall deem to be appropriate. In exercising its authority hereunder, the council shall have the power to make a determination that any complaint is founded or unfounded, to impose discipline upon any official of the city, to initiate any suit and to prosecute any criminal or civil action on behalf of the city wherein it believes, in its sole and exclusive discretion, such action is appropriate. The council may direct the city attorney to review, investigate and/or prosecute any complaint, or in its sole and exclusive discretion, the council may employ or appoint any qualified attorney to do so. Final action by the council on any complaint shall be the final action of the city on the matter.

(b) City officials shall not discharge, threaten or otherwise discriminate against any other city official or employee regarding compensation, terms, conditions, location or privileges of employment or office, on the basis of any report made against any other official or employee suspected of violating this chapter, or for participating in any investigation, hearing or inquiry conducted pursuant thereto. This subsection (b) shall not apply to any city official or employee who know-

ingly or with reckless indifference to the truth makes a false report or provides false information.

(Ord. 1751, 2006; Ord. 1230, 1994)

2.32.140 Violations—Penalties.

It shall be unlawful to violate any provisions of this chapter. In addition to the penalties set forth in section 1.01.110 of the City of Golden's Municipal Code, the city shall have the authority when a violation of this chapter has occurred, to bring civil action or proceeding at law or in equity for a judgment enjoining any violation of the provisions of this chapter or requiring the relinquishment of any prohibited interest or the voiding of any contract or transaction, considering, but not limited to, the interests of the city and any third persons who may be adversely affected or injured thereby.

(Ord. 1230, 1994)

2.32.150 Employees' code of ethics.

The city manager shall prepare and enforce a code of ethics applicable to all employees of the city and provide a copy of such code to the council.

(Ord. 1230, 1994)

2.32.160 Distribution.

The city clerk shall cause a copy of this Code of ethics to be distributed to every official of the city within seven days after the effective date of this ordinance. Every official elected, appointed or engaged thereafter shall be provided a copy before entering upon the duties of the office.

(Ord. 1230, 1994)

Chapter 2.35**ADMINISTRATIVE HEARING
PROCEDURES****2.35.010 Legislative intent.**

(a) The purpose of these rules of procedure is to provide a uniform procedure for conducting administrative-type hearings, as opposed to legislative hearings, held by city officers, employees, departments, boards, commissions,

and city council and to afford persons due process of law. The city and/or its agencies may supplement the provisions of this chapter by adopting additional rules of procedure not inconsistent with this chapter.

(b) Except as otherwise provided, this chapter applies whenever an administrative hearing is required or is to be conducted for municipal matters. Nothing in this chapter shall be interpreted to grant any person the right to appeal to any agency or to have a hearing before it unless a specific provision of the city Charter, code, rule, regulation or procedure, or state or federal constitution or law grants such a right. This chapter does not apply to any disciplinary proceedings involving any city employee. (Ord. No. 2129, § 1, 2-13-2020; Ord. 1799, 2008; Ord. 1322, 1996)

2.35.020 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Agency means the city council and any official, officer, employee or department, or other entity of the City of Golden, including boards and commissions, but excluding the municipal court.

Decision-maker means the city council or any other city department, employee, board, commission, officer, official or appointed hearing officer authorized to conduct a hearing.

Interested person means any person described as "interested" by law or any person having a legally protected interest that is subject to potential injury due to proposed final agency action, or any person having a right of appeal from proposed final agency action, or any person having a right of appeal from proposed final agency action by virtue of a specific provision of the city Charter, code, ordinance, rule or regulation, or state or federal constitution or law. Interested person may include a city agency or a business, corporation, partnership, charitable or

religious organization, profit or non-profit entity, or any other organization or entity for lawful purposes.

Law means city Charter, ordinance, rule, regulation, or code or state or federal constitution, statute or regulation, or any applicable ruling, judgment or decision of a court of law.

Party to a hearing means any interested person who requests a hearing, appears at a hearing, or submits a written entry of appearance at or before a hearing. (Ord. 1799, 2008; Ord. 1322, 1996)

2.35.030 Notice.

(a) Except as provided herein in section 2.35.040, no agency may take final action subject to this chapter unless, before taking such proposed action, the agency has given notice to all known interested persons of:

- (1) The proposed agency action;
- (2) The legal authority for such action;
- (3) The opportunity for any interested person to submit written information and documents with respect to the proposed action; and
- (4) (i) The date of a hearing if required by law; or
- (ii) Unless otherwise provided by law, notice shall be given at least 14 calendar days before the date of the hearing. If the notice is mailed, it is deemed given when mailed to the address shown on the license, permit, or application at issue or in the records of the county clerk or tax assessor or any other official custodian of public records of property ownership for any specific property in question. For purposes of this subsection, public records means as defined in applicable state statutes.

(b) If an interested person requests a hearing as prescribed by subsection 2.35.030(4)(ii), the agency shall give notice by hand delivery, posting, mail or newspaper or otherwise as required

by law, at least 14 calendar days before the hearing of the date, time, place, and nature of the hearing to all known interested persons. Unless otherwise provided by law, such notice shall be given to the person requesting the hearing upon depositing the notice in the mail or hand delivering the notice at least 14 calendar days before the date of the hearing to the last address furnished to the agency by the person requesting the hearing.

(Ord. No. 2129, § 2, 2-13-2020; Ord. 1322, 1996)

2.35.040 Emergency exceptions.

(a) This chapter shall not apply to legislative hearings.

(b) To the extent permitted by law, the notice and hearing requirements set forth herein do not apply when the agency determines that the public health, safety, or welfare requires emergency action by the agency. If the agency takes emergency action, it shall provide timely notice of the action and shall thereafter provide notice as required by section 2.35.030, and an opportunity for a post-emergency action hearing of interested persons by the means prescribed in section 2.35.030.

(c) Nothing in this chapter shall be deemed to prohibit an agency from ordering interim relief to preserve the status quo pending a hearing.

(Ord. No. 2129, § 3, 2-13-2020; Ord. 1322, 1996)

2.35.050 Hearings and determinations.

(a) The agency may, if authorized by law, charge a fee for a hearing.

(b) The hearing shall be conducted by the agency, or any employee, hearing officer, or subcommittee of the agency, as authorized by the applicable provision of the municipal code, rules, regulations or other applicable law. While presiding at a hearing, the agency or hearing officer shall determine whether the proposed agency action conforms with the requirements and standards, as set forth in the applicable law.

(c) The decision-maker has, by illustration and not limitation, authority to administer oaths and affirmations; sign and issue subpoenas; waive or refund hearing fees; rule upon offers of proof;

compel testimony; receive evidence; decide discovery issues such as the production of documents and materials for inspection, copying, or photographing; regulate the course of the hearing; set the time and place for continued hearings; fix the time of filing of documents; direct the parties to exchange witness and exhibit lists prior to the hearing; confer with the parties to consider simplification of issues, admissions of facts, documents and witnesses to avoid redundant or repetitive proof; issue orders to control the subsequent course of the proceeding; decide motions; and control the decorum and conduct of the proceedings, including the reprimanding and exclusion from the hearing of any person engaging in improper conduct.

(d) Any "interested person" may at his/her expense be represented by legal counsel.

(e) All testimony shall be taken under oath or by affirmation, except for hearings on land use or right-of-way vacation applications that are quasi-judicial in nature. The failure to administer an oath or affirmation shall not be grounds to invalidate the final decision.

(f) It shall be unlawful for any person to fail to comply with the orders of the decision-maker, including the failure to obey any subpoena issued pursuant to this chapter.

(g) The proceedings of the hearing shall be recorded by tape recording, stenographic, or other verbatim reproduction, and copies of transcriptions of the proceedings shall be made available upon payment of the costs therefore by the party requesting same.

(h) Unless otherwise provided by law, the proponent of an order has the burden of proof, by a preponderance of the evidence. Every party to the proceeding has the right to present such party's case or defense by oral and documentary evidence; to submit opening and closing statements; present rebuttal evidence; and to conduct cross examination of witnesses and exhibits. The decision-maker may receive all or part of the evidence in written form if the interests of the parties will not be substantially prejudiced and if such action will expedite the hearing. The decision-maker shall not be bound by the Colorado

Rules of Civil Procedure or the formal rules of evidence; may exclude incompetent and unduly repetitious evidence; and may receive documentary evidence in the form of a copy or excerpt if the copy is authenticated. The decision-maker shall give effect to the rules of privilege, as required by law. The decision-maker shall use its experience, technical competence, and specialized knowledge in evaluating the evidence presented. Parties to the hearing may make objections to evidentiary offers, which objections shall be included in the record.

(i) The decision-maker may take the matter under advisement and issue a written decision within a reasonable length of time (not to exceed 30 days), or may issue a decision at the hearing. A written decision shall be issued with findings of fact, setting forth the grounds of the decision, based on the evidence presented at the hearing. The decision shall be served on each party to the hearing by personal service or by mailing by regular mail to the party's last known address. The decision shall be effective as to such party on the date mailed or on such other date as stated in the decision.

(j) Unless otherwise provided by law, the decision is final subject only to review by the municipal court in accordance with the judicial appeals procedure. No defense or objection may be presented for judicial review unless it is first presented to the decision-maker during the course of the hearing.
(Ord. No. 2129, § 4, 2-13-2020; Ord. 1686, § 4, 2004; Ord. 1322, 1996)

2.35.060 Ex-parte contacts.

No ex-parte communication outside the hearing shall be considered by the decision-maker unless it is fully disclosed on the record and the other party is given the opportunity to respond.
(Ord. 1322, 1996)

Chapter 2.40

PROCUREMENT PROCEDURES

2.40.010 Legislative intent.

The city, in exercise of its home rule powers, desires to enact a purchasing policy that

maximizes its purchasing power by establishing standard terms and conditions based upon accepted accounting practices and enacting procedures and safeguards that maintain the integrity of the process, ensure administrative efficiency and flexibility, provide for the fair and equitable treatment for all involved in the city's purchasing process and foster competition within the free enterprise system.

(Ord. 1659, 2004; Ord. 1376, § 2, 1997)

2.40.015 Definitions.

The following words and term, as used within this chapter, have the following meanings unless otherwise specified:

Capital improvements means a fixed public improvement, including, without limitation, streets, alleys, sidewalks, water or wastewater facilities, flood control facility, traffic control devices, street lighting, parks, public structures and landscaping.

City manager means the city manager or the manager's authorized designee.

Construction manager/general contractor agreement or *CM/GC agreement* means the procurement of both construction management services and the actual construction of a capital improvements project in a single contract with a single firm or a combination of firms that are capable of providing the necessary construction management services and construction services, which agreement is entered into pursuant to this chapter.

Construction management services means services provided by persons or firms for the management, administration, scheduling and coordination of a capital improvement project. Said services may include general contractor services, and all services, other than actual construction, reasonably implied of a general contractor in the general conditions and specifications of the city's construction contract.

Design-build agreement means the procurement of both the design and the construction of a capital improvement project in a single agreement with a single design-build firm, or a combination of such firms capable of providing the necessary design and construction services. The

design-build agreement may also include in the agreement for procurement of the financing, operation, or maintenance of the capital improvement project.

Design-build firm means any company, firm, partnership, corporation, association, joint venture or other entity permitted by law to practice engineering, architecture, or constructing contracting in the state of Colorado.

Substantial construction component means a portion of a capital improvement project that is sufficiently independent, separate and distinct such that it and would be reasonable to bid the component separately. The substantial construction components may, by way of example, consist of individual structures in a multi-structural project, grading work, foundation work, landscaping work or site work. A portion of a capital improvement project may not be characterized as a separate construction component solely for the purpose of avoiding the competitive bidding process that would be required under this chapter. (Ord. No. 2008, § 1, 5-14-2015; Ord. 1710, § 1, 2005)

2.40.020 Policy enactment.

The finance director shall, upon direction of the city manager, develop, enact and maintain a purchasing policy for city goods, supplies, services, equipment and improvements that, subject to purchase threshold amounts established by resolution of city council or otherwise required by law meets the stated legislative intent. (Ord. 1659, 2004)

2.40.030 Pre-qualification of contractors.

(a) The city manager is authorized to pre-qualify contractors who wish to bid on a construction project for the city. The city manager may exercise this authority when the construction project has a projected budget of \$500,000.00 or more (excluding design and related architectural/engineer task); the city manager determines that pre-qualification is in the best interest of the city; and a particular contract for construction requires either:

- (1) Complex or unusual construction techniques or expertise; or

- (2) An unusually tight construction scheduled; or

- (3) Experience in a construction field not generally held by general contractors.

(b) When the city manager has determined that a specific project requires pre-qualification of bidders the city manager shall publish a notice of call for pre-qualification using the process as set forth in the policies established by section 2.40.020 for competitive bidding, as appropriate. No bids will be received from any person or firm who has not been pre-qualified.

(c) To be considered for pre-qualification for such construction projects, potential bidders shall furnish to the city evidence of the following and, when checking references, the city may ask about the following:

- (1) Availability of equipment necessary to accomplish the project;
- (2) Availability of trained personnel to accomplish the project;
- (3) Contractor's organizational and technical staff with the size, training, expertise and capability to accomplish the project;
- (4) Financial capability to perform the project;
- (5) Demonstrated experience in the type of work required for the project;
- (6) Satisfactory performance of similar projects, including, but not limited to, compliance with all contract terms and specifications, satisfactory quality of workmanship, and consistent on-time performance;
- (7) Whether the contractor is, in any jurisdiction, under notice of debarment or debarred;
- (8) Whether the contractor has made false, deceptive or fraudulent statements in the application for pre-qualification or any other information submitted to the city;
- (9) Listing of all projects of the type and size for which pre-qualification is sought, or projects similar to it, performed by contractor within the last five years,

with the name, address and phone number of the owner's representative on each project;

- (10) Any additional criteria necessary to determine the qualification for the specific project; and
- (11) Statement of understanding that the city will check any and all previous projects for evidence of quality of workmanship,

compliance with contract terms, timeliness and other factors indicating the ability to perform the project.

(d) Any contractor who is disqualified from bidding on a project by the pre-qualification process may request a reconsideration of his application for pre-qualification by submitting a written request to the city manager within five days from the date of notification. The city manager shall meet with the contractor for such reconsideration within five days of the contractor's request. The contractor may present additional information and request a summary of the information the city has used in its decision, but the contractor will not be entitled to names of those persons the city contacted for references or the statements of references.
(Ord. 1710, § 2, 2005)

2.40.040 Construction manager/general contractor agreements.

(a) Notwithstanding any other provision of this chapter, policies adopted pursuant to this chapter or the law to the contrary, city council may award a construction manager/general contractor agreement for a capital improvements project if city council, after consideration of the criteria set out below, determines that use of a construction manager/general contractor agreement would be in the best interest of the city. The criteria to be considered by city council shall include:

- (1) The magnitude of the projected budget for the entire capital improvement project;
- (2) Whether the capital improvement project may be rationally broken down into substantial construction components;
- (3) Where economic or scheduling reasons require that construction of substantial construction components proceed in phases rather than waiting until all construction documents have been completed before beginning actual construction activities;
- (4) Where, due to the nature of the various substantial construction components,

there is unusual need to coordinate construction activities amongst and between those components;

- (5) Whether tight construction schedule indicates the need for a construction manager/general contractor agreement.

(b) The city manager may pre-qualify contractors if pre-qualification would otherwise be appropriate under section 2.40.030 of this chapter.

(c) CM/GC agreements shall be awarded city council if the award of such an agreement best serves the needs of the city, considering, in part, whether the proposer:

- (1) Possesses adequate technical and financial resources to perform the project or services, or has the ability to obtain the required resources;
- (2) Possesses necessary experience, organization and technical skill in the relevant field, or has the ability to obtain them, including, without limitation, arrangements with subcontractors;
- (3) Will perform the project and provide the services at a reasonable cost, compared with the level of effort to be expended.

(d) All CM/GC agreements shall include the following:

- (1) Provisions that the contract price will be calculated based upon the actual cost of the construction paid by the CM/GC, plus a separate, distinct fee for construction manager services.
- (2) Provisions that the CM/GC will enter into subcontracts for the actual construction of each substantial construction component of the capital improvement project. The CM/GC shall obtain bon-a-fide competitive bids from, and contract in its own name with, subcontractors judged by both the city and the CM/GC to be qualified to perform those portions of the work. Said competitive bidding process, including the award of the bids, shall comply with all procedures, laws

and ordinances that would otherwise apply to the city if the city were itself soliciting and awarding the bids.

- (3) The CM/GC may, at its option, perform incidental construction activities with its own forces, provided that such activities are specified in the CM/GC agreement. In the event that the CM/GC wishes to perform any substantial construction component of the project, the CM/GC shall submit a bid to perform that portion of the work simultaneously with or prior to the submission of bids from other potential subcontractors.
- (4) All other "contract requirements" set out in the policies adopted pursuant to section 2.40.020 of this chapter shall apply unless they are inconsistent with the provisions of this section.

(Ord. 1710, § 3, 2005)

2.40.050 Design-build agreements.

(a) Notwithstanding any other provisions of this chapter, policies adopted pursuant to this chapter, or the law to the contrary, city council may award a design-build agreement for a capital improvement project if city council, after consideration of the criteria set out below, determines that the use of a design-build agreement would be in the best interest of the city. The criteria to be considered by city council shall include:

- (1) The projected budget for the entire capital improvement project;
- (2) The extent to which the capital improvement project requirements are adequately defined;
- (3) The time constraints for completing the capital improvement project;
- (4) The capability and experience of potential design-build firms;
- (5) The suitability of the capital improvement project to a design-build agreement delivery system, including the advisability of modifying the design as construction proceeds; and

- (6) The capability of the city's administrative staff to manage the design-build agreement.

(b) The city manager may pre-qualify design-build firms if prequalification would otherwise be appropriate under section 2.40.030 of this chapter.

(c) The design-build agreements shall be awarded by city council if the award of such an agreement best serves the needs of the city, considering, in part, whether the proposer:

- (1) Possesses adequate technical and financial resources to perform the project, including design services and construction services, or has the ability to obtain the required resources;
- (2) Possesses necessary experience, organization and technical skill in the relevant field or has the ability to obtain them, including without limitation, arrangements with subcontractors; and
- (3) Will perform the project and provide the services at a reasonable cost compared with the level of effort to be expended.

(d) At least 30 days prior to the anticipated date of selecting a design-build firm for a capital improvement project, the city manager shall publish a public notice at least twice in one or more newspapers of general circulation in the city. The public notice shall set forth a general description of the capital improvement project and solicit requests for proposals with respect to the project.

(e) All other contract requirements set out in the policies adopted pursuant to section 2.40.020 of this chapter shall apply unless they are inconsistent with the provisions of this section. (Ord. No. 2008, § 2, 5-14-2015)

Chapter 2.44 PLANNING COMMISSION

2.44.010 Purpose.

The planning commission is established as an advisory and review board focused on the develop-

ment and integration of physical and non-physical elements of the community into articulate and comprehensive strategies and community and neighborhood plans in order to guide the Golden community to achieve community goals and visions. The commission serves in both a policy advisory and hearing based decision-making capacity. The commission is the primary author of comprehensive community and neighborhood plans, utilizing the input and recommendations of individual stakeholders and other boards and commissions.

(Ord. No. 2058, § 2, 7-13-2017)

2.44.020 Creation, appointment, terms.

There is created a planning commission which commission shall be comprised of seven members, and an alternate, each of whom shall be a resident of the city. The seven members and alternate shall be appointed by the mayor, with approval of a majority of the city council. All members shall serve staggered terms of four years, at the pleasure of city council, and shall serve without compensation. Members of the board shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups and may serve as an ex officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. Upon appointment, the city will regularly provide orientation and training for new and existing board members.

(Ord. No. 2166, § 1, 7-27-2021; Ord. No. 2058, § 2, 7-13-2017)

2.44.030 Commission membership.

It is intended that the planning commission membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and

interests helps the commission understand and make recommendations to benefit the entire community.

(Ord. No. 2058, § 2, 7-13-2017)

2.44.040 Authority to adopt procedures.

The planning commission shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The planning commission shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The planning commission shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2058, § 2, 7-13-2017; Ord. No. 2266, § 2, 4-22-2025)

2.44.050 Meetings.

The planning commission shall determine an annual meeting schedule based upon their fulfillment of duties listed in section 2.44.070 below, which meetings shall be open to the public. It may also hold special meetings from time to time as it deems necessary. A record of all meetings of the commission shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2058, § 2, 7-13-2017)

2.44.060 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. At the board's option, the function of chairing specific meetings may be rotated among the board members. The city shall provide a secretary and staff support to the board.

(Ord. No. 2058, § 2, 7-13-2017)

2.44.070 Duties of the planning commission.

(1) *Primary duties.* The planning commission shall have general supervision of all planning for the development, expansion, and growth of the city. The planning commission shall perform quasi-judicial review of land use applications when required by the provisions of the Golden Municipal Code and, periodically, prepare comprehensive long term plans for the growth and development of the city. In the preparation of such plans the commission shall have authority to conduct open, public hearings, conduct investigations, studies, and surveys, prepare maps, charts, exhibits, and reports as shall be necessary; and do and perform all other acts and duties necessary to the promotion of public interest and understanding of its programs and plans. The planning commission shall serve as a fact-finding board to make decisions and/or findings and recommendations to city council for specific requests as identified in title 18 of the Golden Municipal Code.

(2) *Advisory activities.* In addition to the powers and duties set forth in section 2.44.070(1) hereof, the commission shall serve in a direct advisory capacity to the city council in the following matters:

- (a) Opening, closing, vacating, and abandoning streets, alleys, and other public ways;
- (b) The study of a land use plan, showing the proposed general distribution, location, and extent of residential areas, business areas, industrial areas, and areas for recreation and education and other categories of public and private use of land;
- (c) Recommend standards and regulations affecting land subdivision;
- (d) Recommend regulations governing the use of land; the height, area, bulk, and uses of public and private buildings and structures;
- (e) Recommend site development design standards and guidelines for evaluation of private multi-family and commercial construction projects in the community;

- (f) Recommend the adoption of regulations and ordinances calculated to promote the healthful and convenient distribution of population in the city; for the promotion of public safety; for the promotion and development of attractive overall civic design and the development of natural resources of the city; for the promotion and development of metropolitan area planning, growth, and expansion;
 - (g) Recommend policies that relate to the intersection between land use and transportation, and that promote the appropriate mix of modes of transportation;
 - (h) Act as a conduit of information between the city and the community to gather and assess the information necessary to make sound and consistent advisory recommendations in areas of land use and community development.
- (3) *Collaborative activities.*
- (a) In fulfilling the duties related to development and implementation of comprehensive community and neighborhood plans, the commission shall seek to promote collaboration with and among city council, the transportation advisory board, community sustainability advisory board, parks and recreation advisory board, other boards and commissions, city departments, individuals, businesses, schools, and institutions concerned with the commission's duties in order to secure the public health, safety, and welfare. The collaboration process shall include the sharing of information that relates to each board's primary duties when relevant, and for each board to then have an opportunity to provide comments in response, or to suggest a specific collaboration process when more significant issues arise. The commission shall specifically collaborate on the development and inclusion of policies and recommendations pertaining to the below topics in community plans prepared by the commission:
 - (i) The location, character, and use of public ways, grounds, and spaces;

the general location of major public buildings, structures, and facilities;

- (ii) The location, maintenance, and operation of public ways including freeways, highways, streets, alleys, boulevards, parkways, waterways, airways, airports, and other public transportation and transit facilities now or hereafter established;
 - (iii) The general location, character, extent, and use of open space parcels, parks, playgrounds, community centers, squares, public buildings, and structures;
 - (iv) The character and plan for areas of the community where redevelopment investment is anticipated.
- (b) In fulfilling the collaborative duties described herein, the commission may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.
- (Ord. No. 2058, § 2, 7-13-2017)

Chapter 2.48

DOWNTOWN DEVELOPMENT AUTHORITY

2.48.010 Creation.

(a) The Golden Downtown Development Authority ("the DDA") was created in 2013, pursuant to Golden City Council Ordinances 1946 and 1947, and Part 8 of Article 25 of Title 31 Colorado Revised Statutes ("C.R.S.") (the Downtown Development Authority Act"), as authorized by the qualified electors (as that term is defined in the Downtown Development Authority Act) at an election held on November 5, 2013.

(b) The DDA is a body corporate with all the purposes and powers now or hereafter authorized by the Downtown Development Authority Act, except or as specifically limited in any Plan of Development approved by the city council, and all additional and supplemental powers neces-

sary or convenient to carry out and effectuate the purposes and provisions of the Downtown Development Authority Act and such other powers and authority as specifically stated in any Plan of Development approved by the city council.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.015 Membership.

The DDA is organized as follows:

- (a) Pursuant to C.R.S. 31-12-805 the DDA shall consist of not less than five nor more than 11 members appointed by the governing body.
- (b) Pursuant to Golden City Council Ordinances 1946 and 1947, the Golden Downtown Development Authority shall be comprised of seven members, all of whom, except for any member of the city council, must be "qualified electors" of the DDA, as defined in Section 31-25-802(9), C.R.S. The seven members shall be appointed by the mayor and confirmed by a majority of the city council. Not more than one of the members may be an official of the municipality. In the event that an official of the municipality is appointed as a member, acceptance or retention of such appointment shall not be deemed a forfeiture of office, or incompatible therewith, or affect their tenure or compensation in any way. The term of office of a DDA member who is a municipal official shall not be affected or curtailed by the expiration of the term of their municipal office. Consistent with Sections 31-25-805 and 31-25-806, C.R.S. the DDA shall be constituted as follows:
 - (1) One member shall be a member of the city council; and
 - (2) Six members shall be residents, landowners or business lessees within the boundaries of the DDA.
- (c) The terms of all members appointed to the DDA, except the member from the city council, shall expire four years from the expiration date of the terms of their predecessors. After notice and an

opportunity to be heard, an appointed member may be removed for cause by the city council.

- (d) Members shall hold office until their successor has been appointed and qualified by the mayor and confirmed by a majority of the city council.
 - (e) The term "business" shall include a for profit business or a nonprofit business. An officer or director of a corporation having a place of business within the boundaries of the DDA shall be eligible for appointment. A manager, agent, or employee, all as defined in Section 7-90-102, C.R.S. of an entity having its place of business within the boundaries of the DDA shall be eligible for appointment. No officer or employee of the city, except the member from the city council, shall be eligible for appointment.
 - (f) All members shall serve without compensation, but they may be reimbursed for actual and necessary expenses.
 - (g) Except for the city council member, members of the DDA shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members may serve on other temporary committees, task forces, or similar ad hoc groups.
- (Ord. No. 2230, § 2, 3-20-2024)

2.48.020 Terms.

The members shall serve terms of four years at the pleasure of city council. No person having served two complete consecutive terms shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. An individual completing the partial term of a member who has left the DDA shall be eligible for appointment to another four-year term. A member of DDA may serve one partial term and two full four-year terms with total service not to exceed ten years. Upon

appointment, the city will regularly provide orientation and training for new and existing members.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.030 DDA to adopt supplemental procedures.

The DDA shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. Additionally, the DDA is authorized to adopt supplemental rules of procedure for topics not covered by the council adopted rules of procedure, provided that such supplemental rules of procedure do not conflict with the council adopted rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.040 Meetings.

The supplemental rules of procedure shall include the time and place of regularly scheduled meetings. A record of all meetings will be kept at city hall. The DDA may call special meetings, as it deems necessary. All meetings shall be subject to public notice in accordance with the Colorado Open Meetings Law. All meetings shall be open to the public except as allowed under the Colorado Open Meetings Law. In the event there is no business pending before the DDA, the regular monthly meeting may be cancelled.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.050 Officers.

The DDA shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside over all meetings of the DDA, except that in his/her absence, the vice-chair shall preside. The city shall provide a secretary for the DDA.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.055 Powers of the DDA.

(a) The powers of the DDA are specifically detailed in Part 8 of Article 25 of Title 31 Colorado Revised Statutes ("C.R.S.") (the "Downtown Development Authority Act") and as may be amended from time to time.

(b) If authorized in a plan of development approved by the city council, the DDA or the city on behalf of and for use by the DDA, and as a voter-approved revenue change, is authorized to collect and retain, in the year established in the plan of development, and in all subsequent years thereafter, whatever amount is collected annually from any revenue sources including, but not limited to, taxes received as described in Sections 31-25-807(3), 31-25-816, and 31-25-817, C.R.S., and fees, rates, tolls, rents, charges, grants, contributions, loans, income, or other revenues imposed, collected, or authorized as described in Section 31-25-808, C.R.S., or otherwise, by law to be imposed or collected by the DDA or by the city on behalf of and for use by the DDA, and such revenues shall be collected and spent without regard to any spending, revenue-raising, or other limitation contained within Article X, Section 20 of the Colorado Constitution, or any other law, and without limiting in any year, the amount of other revenues that may be collected and spent by the DDA and the city on behalf of the DDA.

(c) The DDA may adopt a plan of development which, upon approval of the city council, provides for tax increment financing from property tax and sales tax, or both, as authorized by Section 31-25-807(3), C.R.S.

(d) Based upon voter approval in the November 5, 2013 election submitted to electors by Ordinance 1947, commencing in 2014 for collection in 2015, the city may impose an ad valorem mill levy not exceeding five mills on all real and personal property within the boundaries of the DDA and for the DDA, to be used for the purpose of paying the DDA's operations, maintenance and other expenses, as allowed by Sections 31-25-807(3), 31-25-808, 31-25-816, and 31-25-817, C.R.S., and as otherwise allowed by law.

(e) The DDA is subject to the following laws, as may be amended from time to time:

- (1) The Colorado Open Records Act, Part 2 of Article 72 of Title 31, C.R.S.
- (2) The Colorado Open Meetings Law, Part 4 of Article 6 of Title 24, C.R.S.

- (3) The Local Government Budget Law of Colorado, Part 1 of Article 1 of Title 29, C.R.S.
- (4) The Local Government Uniform Accounting Law, Part 5 of Article 1 of Title 29, C.R.S.
- (5) The Local Government Audit Law, Part 6 of Article of Title 29 C.R.S.
- (6) The DDA shall be a "Public Entity" as defined by the Colorado Governmental Immunity Act, Article 10 of Title 24, C.R.S.
- (7) Other applicable law.

(f) The finance department of the city on behalf of the DDA shall annually submit a budget to the city manager for administrative review in accordance with the policies of the city no later than October 1st of each year before the budget is submitted to the city council for approval pursuant to [Section] 31-25-816, C.R.S. The finance department of the city on behalf of the DDA shall maintain accounting records and records of transactions for the DDA. The finance department of the city on behalf of the DDA shall invest any funds not required for immediate disbursement in legal investments for public funds authorized by the city's investment policies or pursuant to Colorado statute and to deposit any funds not required for immediate disbursement in any depository authorized pursuant to the city's investment policies or pursuant to Colorado statute.

(Ord. No. 2230, § 2, 3-20-2024)

2.48.060 DDA finances.

The operations of the DDA shall be principally funded from the following, if authorized in any plan of development:

- (a) Donations to the DDA for the performance of its functions;
- (b) Moneys borrowed and to be repaid from other funds received under the authority of the Downtown Development Authority Act;

- (c) Tax increment funds as defined in Section 31-25-807(3), C.R.S., if a plan of development is adopted which provides for such tax increment funding;
 - (d) Fees, rates, tolls, rents, charges, grants, contributions, loans, income or other revenues imposed, collected or authorized by law to be imposed or collected by the DDA or by the city on behalf of and for use by the DDA pursuant to an approved plan of development;
 - (e) Proceeds of an ad valorem tax of up to five mills on the valuation for assessment of properties within the boundaries of the DDA;
 - (f) Such other sources as may be approved by the city council of the city.
 - (g) Any city ordinance by which bonds are issued by the city on behalf of the DDA, pursuant to the Downtown Development Authority Act, shall specify the maximum net effective interest rate of such bonds.
- (Ord. No. 2230, § 2, 3-20-2024)

2.48.070 DDA boundaries.

(a) The boundaries of DDA were set by Ordinances 1946 and 1947, and Part 8 of Article 25 of Title 31 Colorado Revised Statutes ("C.R.S.") (the Downtown Development Authority Act").

(b) Additional property may be included within the boundaries of the DDA subject to city council approval, as provided in Section 31-25-822, C.R.S., and as may be amended.

(Ord. No. 2230, § 2, 3-20-2024)

Chapter 2.50

COMMUNITY SUSTAINABILITY ADVISORY BOARD*

2.50.010 Purpose.

In Golden, and indeed across the U.S. and other nations, we are faced with impacts as a

***Editor's note**—Sec. 4 of Ord. No. 2063, adopted Oct. 12, 2017, repealed and reenacted ch. 2.50 to read as herein set out. Former ch. 2.50 pertained to the same subject matter, consisted of sections 2.50.010—2.50.080, and derived from Ord. 1789, 2007; and Ord. 1833, 2008.

result of population growth, resource consumption, and energy needs. Golden is also affected by regional impacts such as the economy, the structuring of local tax revenues, and competing needs for resources by adjacent communities.

Balancing these factors, sustainability can be defined as living or acting in a manner that balances improving our quality of life, a healthy vibrant community, and mindful stewardship of the natural resources and environment while protecting the ability of future generations to do the same. With this in mind, sustainability efforts are not an end goal, but endeavor to continually strive toward improvement.

The mission of the community sustainability advisory board is to assist the City of Golden in defining and achieving its sustainability goals and to empower the community to live in a way that assures a high quality of life for current and future generations.

(Ord. No. 2063, § 4, 10-12-2017)

2.50.020 Creation, appointment and terms.

There is created a community sustainability advisory board for the city, which board shall be comprised of seven members, each of whom shall be a resident of the city. The seven members shall be appointed by the mayor, with approval of a majority of the city council. All members shall serve staggered terms of four years, at the pleasure of city council, and shall serve without compensation. Members of the board shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups and may serve as an ex-officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. Upon appointment, the city will regularly provide orientation and training for new and existing board members.

(Ord. No. 2166, § 2, 7-27-2021; Ord. No. 2063, § 4, 10-12-2017)

2.50.030 Board membership.

It is intended that the community sustainability advisory board membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the commission understand and make recommendations to benefit the entire community. In addition, as a result of the technical nature of the board's duties, the mayor and city council are encouraged to strive to represent the following interests in the appointments to the board:

- (a) Three members of the community at large.
- (b) One member who is a professional in the sustainability industry (e.g., renewable energy production, energy efficiency).
- (c) One representative of a public research facility.
- (d) One representative of the education profession.
- (e) One small business owner, or a representative of a medium or large business.

(Ord. No. 2063, § 4, 10-12-2017)

2.50.040 Authority to adopt regulations.

The community sustainability advisory board shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The community sustainability advisory board shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The community sustainability advisory board shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2063, § 4, 10-12-2017; Ord. No. 2266, § 3, 4-22-2025)

2.50.050 Meetings.

The community sustainability advisory board shall determine an annual meeting schedule based upon their fulfillment of duties listed in section 2.50.070 below, which meetings shall be open to the public. It may also hold special meetings from time to time as it deems necessary. A record of all meetings of the board shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2063, § 4, 10-12-2017)

2.50.060 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. At the board's option, the function of chairing specific meetings may be rotated among the board members. The city shall provide a secretary and staff support to the board.

(Ord. No. 2063, § 4, 10-12-2017)

2.50.070 Duties of the board.*(1) Primary duties.*

- (a) The primary purpose of the board is to assist the city in achieving the ten-year sustainability goals set by city council in Resolution No. 1793, as may be amended from time to time.
- (b) The board shall be responsible for securing commitment and assistance from as many residents, visitors, building owners, and business owners and their employees as possible, and to this end shall:
 1. Conduct all of its proceedings in such a manner as to secure broad public support.
 2. Plan, organize and sponsor public educational initiatives.

3. Consider the need for public support when making recommendations to city council.
 4. Develop and monitor a community outreach and communication plan.
- (c) The board shall keep the city council advised of its progress and submit a written annual report to city council and the community. The board shall prepare a ten-year plan to meet the goals in Resolution No. 1793.
- (d) The board shall recommend to council changes to the Golden Municipal Code related to the goals in Resolution No. 1793.
- (e) Periodically review the city's internal sustainability and environmental programs to track compliance with the city's energy efficiency, renewable energy, waste, vehicle miles travelled, and water conservation goals. Advise the city manager on programs to improve that effort and additional efforts and their anticipated results.
- (f) Provide leadership, monitoring, advice and reporting for city participation in state, national and international programs related to sustainability and improvement of the environment.
- (2) *Advisory activities.*
- (a) The board shall review citizen requests for funding of local sustainability related projects and/or capital infrastructure projects and forward an evaluation and recommendation to council for consideration.
- (b) The board shall review requests or initiatives for city participation in local, regional and national organizations and forward an evaluation and recommendation for action, if appropriate, to council for consideration.
- (3) *Collaborative activities.*
- (a) The board shall periodically participate in ad-hoc committees and established city boards and commissions to advocate

for sustainability policies. Board members may attend meetings of these groups to collaborate and share data and information about the impact of potential projects and programs.

- (b) In fulfilling the collaborative duties described herein, the board may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.
- (Ord. No. 2063, § 4, 10-12-2017)

Chapter 2.54

HISTORIC PRESERVATION BOARD

2.54.010 Purpose.

The primary purpose of the historic preservation board shall be to promote the understanding, appreciation, and when feasible the preservation of historic assets in the community, including buildings, structures, landscapes, and other sites. The protection, enhancement, perpetuation and use of buildings, structures, sites and areas that are reminders of past eras, events and persons important in local, state or national history, or which provide significant examples of architecture, or which are unique and irreplaceable assets to the city and its neighborhoods, or which provide for this and future generations examples of the physical surroundings in which past generations lived shall be the focus of the board.

(Ord. No. 2063, § 1, 10-12-2017)

2.54.020 Creation, appointment and terms.

There is created a historic preservation board for the city, which board shall be comprised of seven members, each of whom shall be a resident of the city. The members of the board shall be appointed by the mayor, the appointment of whom shall be confirmed by the majority of city council. All members shall serve staggered terms of four years, at the pleasure of city council, and shall serve without compensation. Members of the board shall not hold any other municipal

office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups and may serve as an ex-officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. Upon appointment, the city will regularly provide orientation and training for new and existing board members. (Ord. No. 2166, § 3, 7-27-2021; Ord. No. 2063, § 1, 10-12-2017)

2.54.030 Board membership.

It is intended that the historic preservation board membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the board understand and make recommendations to benefit the entire community. (Ord. No. 2063, § 1, 10-12-2017)

2.54.040 Authority to adopt regulations.

The historic preservation board shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The historic preservation board shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The historic preservation board shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public. (Ord. No. 2063, § 1, 10-12-2017; Ord. No. 2266, § 4, 4-22-2025)

2.54.050 Meetings.

The historic preservation board shall determine an annual meeting schedule based upon their

fulfillment of duties listed in section 2.54.070 below, which meetings shall be open to the public. It may also hold special meetings from time to time as it deems necessary. A record of all meetings of the board shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2063, § 1, 10-12-2017)

2.54.060 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. At the board's option, the function of chairing specific meetings may be rotated among the board members. The city shall provide a secretary and staff support to the board.

(Ord. No. 2063, § 1, 10-12-2017)

2.54.070 Duties of the board.

(1) Primary duties.

- (a) Evaluate and determine the merits of sites, landmark properties, and districts for historic preservation designation under chapter 18.58;
- (b) Conduct certificate of appropriateness review for work on designated sites landmark properties, or districts;
- (c) Prepare or cause to be prepared a comprehensive inventory of the essential structures, priority structures, and preservation areas within designated historic sites or districts, with specific attention to the condition of priority structures and sites, and including the identification of at-risk historic features;
- (d) Consult with the building official as to the adequacy of the work being performed under the certificate of appropriateness review;
- (e) Increase public awareness of the value of historic, architectural and cultural

preservation, including through programs such as the structure of merit or endangered sites list programs;

- (f) Actively support and promote owners of eligible sites and districts seeking designation under this chapter.

(2) *Advisory duties.*

- (a) Evaluate and comment on proposals by individual land owners or the city, city staff, Golden Urban Renewal Authority, Golden Economic Development Commission, city council, and other public agencies, affecting the physical development and land use patterns in or affecting designated historic sites or districts with the objective of being apprised of potential threats to or effects on historic districts, structures, sites and vistas at the beginning of discussions, not after decisions are made;
- (b) Make recommendations to the city council regarding:
 1. The utilization of grants from federal and state agencies, private groups, and individuals to promote the preservation of historic or architecturally significant structures in the city;
 2. The acquisition of facade easements and the imposition of other restrictions for purposes of historic preservation;
 3. Public property contracts for the purposes of historic preservation where private preservation is not feasible; and
 4. New information affecting preservation interests in the city.
- (c) The board shall be available to provide advice and guidance to individuals, developers, neighborhood groups or other parties regarding work on designated historic sites, or within designated historic districts.

(3) *Collaborative duties.*

- (a) The board shall seek ways to collaborate with various city boards and commissions as well as external partners. Such collaborative partners may include the planning commission regarding community and neighborhood plans and the parks, recreation, and museums advisory board regarding support of the city's museums.
 - (b) In fulfilling the collaborative duties described herein, the board may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.
- (Ord. No. 2063, § 1, 10-12-2017)

Chapter 2.60 ART IN PUBLIC PLACES

2.60.010 Purpose.

The purpose of this chapter is to provide a means to fund the acquisition of artwork by the city for display in public places, to establish guidelines for selection of artwork for the city's public art collection, to provide for the display of the city's collection and to provide for the management, maintenance and repair of artwork in the city's public art collection.

(Ord. 1940, § 1, 2013)

2.60.020 Definitions.

As used in this chapter, unless the context otherwise requires, the following words or phrases shall have the meanings ascribed below:

Artwork includes, but is not limited to, a sculpture, monument, mural, fresco, relief, painting, fountain, banner, mosaic, ceramic, weaving, carving and stained glass, but would not normally include landscaping, paving, architectural ornamentation or signs, unless such elements are an essential component of the artwork itself.

Commission means the public art commission created and established in section [2.62.010] of this Code.

Construction cost means the actual cost of any construction project, including any contingency reserve, but excluding land acquisition costs, engineering and administrative costs, costs of fees and permits, and indirect costs, such as interest during construction, advertising and legal fees.

Construction project means the construction, substantial renovation or addition to any public building, facility, park or other public improvement by the city or its agents, including, without limitation, all landscaping, parking areas and similar areas and facilities associated with such improvement, with an estimated total construction cost of \$50,000.00 or more. "Construction project" includes only those projects designed to create a permanent improvement and does not include projects that are primarily for the purpose of ordinary maintenance, repair or replacement. The term "construction project" does not include any improvements made by any special improvement district, and any other improvements exempted by the city manager from the requirements of section 2.60.040 of this chapter. If a question arises as to whether a construction project is subject to the provisions of this chapter, the city manager shall make the final determination.

Public art means any artwork displayed for two weeks or more in or on city-owned property in an area open to or viewable by the public, on the exterior of any city-owned facility, or on non-city property open to or viewable by the public, if the artwork is installed or financed, in whole or in part, with city funds or grants procured by the city, or if the artwork is owned by, donated to, or on loan to the city.

Reserve account means the art in public places reserve account established by this chapter. (Ord. 1940, § 1, 2013)

2.60.030 Account established.

There is hereby established a reserve account within the sales and use tax capital fund, to be

known as the "Art in Public Places Reserve Account." The funds set aside pursuant to section 2.60.040 of the Code, and all funds received by the city for public art, whether donated, earned, or secured through grants or otherwise obtained by the city, shall be deposited in this account. City council may also fund the account in its discretion and subject to appropriation. The funds in this account shall be expended only for acquisition, installation, maintenance, repair or removal of public art and for expenses incurred by the city in the administration of this chapter and chapter [2.62] of this Code.

(Ord. No. 2015, § 1, 9-24-2015; Ord. 1940, § 1, 2013)

2.60.040 Funds for public art.

(a) The city shall cause an amount equal to one percent of the construction cost of each construction project for which the total estimated construction cost is \$50,000.00 or more to be deposited in the city's art in public places reserve account, and that amount shall be included by the city in all estimates of necessary expenditures and all requests for authorizations or appropriations for such construction projects. If any project is partially funded from any source that precludes art as an object of expenditure of funds, then this section shall apply only to the amount of funds not so restricted. All funds set aside for artwork shall be paid into the reserve account. Alternately, the city may include public art as part of the overall design of a city construction project pursuant to section 2.60.050 of the Code.

(b) As an alternative to determining the funding level based upon the construction costs as provided in subsection (a) above, and in an effort to create a more predictable and consistent funding level, the city council may, in conjunction with the annual adoption of the city capital improvement program, adopt a resolution to establish a policy pertaining to a fixed amount of funds to be deposited in the art in public places reserve account. Such resolution will consider the average or typical level of funding that would otherwise be deposited based upon the construction cost calculation in subsection (a) above.

(c) Funds in the art in public places reserve account shall be expended as directed by the public art commission consistent with the terms of this chapter and chapter [2.62] of this Code, the city's policies regarding art in public places, and the city's purchasing policy.
(Ord. No. 2015, § 2, 9-24-2015; Ord. 1940, § 1, 2013)

2.60.050 Site-integrated public art.

Artistic elements incorporated into the original designs of buildings and public spaces create opportunities to enhance the aesthetic character of public spaces through site-integrated public art. In lieu of the one percent deposit in the art in public places reserve account provided for in section 2.60.040 of the Code, the city may choose to include site-integrated public art as a part of the overall design and installation of a city construction project. The value of the public art provided must be equal to or greater than one percent of the total estimated construction cost of the project. Artwork included as part of a city construction project design must comply with all applicable ordinances, rules, and regulations, and with the city's policies regarding art in public places. All proposals for site-integrated public art shall be subject to review and approval by the public art commission.
(Ord. 1940, § 1, 2013)

2.60.060 Public art selection criteria.

A proposal for public art may be made to the public art commission by any organization, club or business, any city official or employee, or any individual member of the public, by filing an application with the city manager to be forwarded to the public art commission for review. The public art commission shall review all artwork proposed for the art in public places program for conformance with the following criteria and the purposes of this chapter:

- (a) Conceptual compatibility of the design with the immediate environment of the site;
- (b) Appropriateness of the design to the function of the site;

- (c) Compatibility of the design and location with the architectural or historical character of the site;
- (d) Creation of an internal sense of order and desirable environment for the community by the design and location of the artwork;
- (e) Preservation and integration of natural features for the project;
- (f) Appropriateness of the materials, textures, colors and design to the expression of the design concept;
- (g) Representation of a broad variety of tastes within the community and the provision of a balanced inventory of art in public places to ensure a variety of style, design and media throughout the community;
- (h) Anticipated costs and labor to install, maintain, or repair the artwork;
- (i) Compliance with all aspects of the city's art in public places safety policy; and
- (j) Whether the proposed artwork will further the following goals of the city's art in public places program:
 - (1) Enrich the public environment for residents and visitors through the incorporation of the visual arts;
 - (2) Increase the livability and artistic richness of the Golden community;
 - (3) Enable the city to attain recognition on state and national levels as a leader in the visual arts;
 - (4) Increase public access to artwork and to promote understanding and awareness of the visual arts in the public environment;
 - (5) Make the mundane interesting, fun, playful or inspiring;
 - (6) Promote diversity and pluralism in public art and to reflect a wide range of multicultural expression; and

- (7) Contribute to the economic vitality, quality of life, and civic pride of the Golden community.

(Ord. 1940, § 1, 2013)

2.60.070 Approval and display of public art and site selection.

All public art installed or relocated in the city after the effective date of this chapter shall first be reviewed and approved by the public art commission prior to installation or relocation.

- (a) Artwork selected by the public art commission for inclusion in the city's public art collection pursuant to the provisions of this chapter may be placed in, on or about any city property, or on private property by agreement with the owner thereof if the artwork will be visible and exposed to the public on the private property. Placement of public art shall comply with the city's policies applicable to art in public places, and the name of the artist shall be identified on or near all public art.
- (b) Public art owned by the city may also be loaned for exhibition elsewhere, upon such terms and conditions recommended by the public art commission and subject to approval by the city manager.
- (c) City officials responsible for the design or construction of construction projects in the city shall make appropriate space available for the placement of public art, in consultation with the public art commission. The public art commission shall advise the department responsible for the particular construction project of the commission's decision regarding the design, implementation and placement of public art in connection with such project.
- (d) Public art may be installed on privately owned property with a written agreement between the city and the property owner specifying the proprietary interests in the artwork. Any such agreement shall be subject to review and approval

as to form by the city attorney before execution by the city, and shall ensure that:

- (1) The installation of the public art will be done in a manner that will protect the artwork and the public; and
- (2) The public art will be maintained in accordance with the city's policies concerning art in public places; and
- (3) The property owner shall indemnify the city and provide adequate property insurance for the artwork.
- (e) Installation, maintenance, alteration, refinishing and relocation of public art shall be done in consultation with the artist whenever feasible.
- (f) No public art shall permanently be removed, altered or changed without the review and approval of the public art commission; except that review and approval of the public art commission shall not be required for temporary removal of public art by city personnel for maintenance or repair, or for temporary or permanent removal of public art that, in the sole discretion of the city manager, poses a public health or safety hazard.
- (g) The staff liaison to the public art commission shall maintain a detailed record of all public art, including site drawings, photographs, designs, names of artists and names of architects whenever feasible, shall give appropriate recognition to the artists, and shall appropriately publicize and promote the city's public art and art in public places program.
- (h) All other provisions of this chapter notwithstanding, the placement of public art shall be subject to the city manager's authority to issue and adopt rules, orders, and regulations as are reasonably necessary for the administration, protection and maintenance of buildings and property belonging to the City of Golden and any other public buildings and property under the control, management

or supervision of the city manager, as provided in section 2.08.110 of this Code. (Ord. 1940, § 1, 2013)

2.60.080 Ownership.

All artwork donated to the city and all artwork purchased or acquired by the city at the direction of the public art commission and using city funds shall be titled in the name of, and owned by, the city.

(Ord. 1940, § 1, 2013)

2.60.090 Exemptions.

The following artwork is exempt from the provisions of this chapter:

- (a) All artwork in the collections of, or on display at, or under the auspices of, the Golden History Museums; and
- (b) All artwork on display in private city offices or other areas of city-owned facilities that are not generally accessible to or frequented by the public.

(Ord. 1940, § 1, 2013)

Chapter 2.62

ARTS AND CULTURE COMMISSION

2.62.10 Creation and appointment.

(a) There is hereby created an arts and culture commission for the city, which shall be comprised of nine voting members, five of whom shall be residents of the city. The remaining four members shall not be required to be a resident of the city but must have a demonstrated strong personal or professional affiliation with arts and culture as well as a documented vested interest in the City of Golden. In instances where applicants have the same or similar qualifications, selection preference shall be given to the applicant who is a resident of the city. The members of the commission shall be appointed by the mayor, the appointment of whom shall be confirmed by the majority of city council.

(b) It is intended that the arts and culture commission membership consist of a diverse and committed group of individuals with a variety of

complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the commission understand and make recommendations to benefit the entire community. In addition, as a result of the technical nature of the commission's duties, the mayor and city council are encouraged to strive to represent interests in the appointments to the board including visual arts, performing arts, cultural appreciation, as well as general community interests.

(c) All members shall serve without compensation.

(d) Members of the arts and culture commission shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the commission may serve on other temporary committees, task forces, or similar ad hoc groups.

(e) The city manager shall appoint a staff liaison to provide administrative support and assistance to the advisory board as necessary to accomplish the duties of the advisory board and the purposes of this chapter.

(f) No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term.

(g) Upon appointment, the city will regularly provide orientation and training for new and existing board members.

(Ord. No. 2259, § 2, 1-28-2025)

2.62.020 Terms.

The members shall serve terms of four years at the pleasure of city council and shall be eligible for reappointment for no more than two consecutive terms. Upon initial appointment, five of these members shall be randomly selected to serve initial terms of two years.

(Ord. No. 2259, § 2, 1-28-2025)

2.62.030 Authority to adopt supplemental procedures.

The arts and culture commission shall follow the comprehensive rules of procedure as adopted by city council resolution for the operation of all boards and commissions. In addition, the commission shall have authority to adopt supplemental rules of procedure governing its proceedings for topics not covered by the comprehensive rules, so long as the supplemental rules do not conflict with the comprehensive rules. The rules of procedure shall be posted and available to the public.
(Ord. No. 2259, § 2, 1-28-2025)

2.62.040 Meetings.

The board shall identify and post the time and place of regularly scheduled meetings, which shall be open to the public. A record of all meetings will be kept at city hall. The commission may call special meetings, as it deems necessary, subject to public notice within reasonable time before the meetings. Such meetings shall be open to the public. In the event there is no business pending before the advisory board, the regular monthly meeting may be cancelled.
(Ord. No. 2259, § 2, 1-28-2025)

2.62.050 Officers.

The commission shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. The city shall provide a secretary to the board.
(Ord. No. 2259, § 2, 1-28-2025)

2.62.055 Subcommittees.

The commission is authorized to establish subcommittees to fulfill its required duties. Initial sub-committees include the art in public places program and arts and culture grants review and administration. Each subcommittee shall include three commission members, and may also include up to two additional non-commission members with expertise in the area of the subcommittee.

No subcommittee member shall have a financial interest or conflict of interest related to the subcommittee subject matter.
(Ord. No. 2259, § 2, 1-28-2025)

2.62.060 Duties of the board.

(a) The primary purposes of the arts and culture commission shall be to promote the understanding and appreciation of arts and culture in the community, to administer the provisions of this chapter and chapter 2.60 of this Code pertaining to the city's art in public places program, and to adopt policies and guidelines necessary for such administration.

(b) The commission shall serve in an advisory capacity to city council with respect to the operation, development, expansion, growth, and all other matters related to the city's museums and cultural facilities, and to assist city council with the preservation and promotion of the city's culture and history through education, events and programming in conjunction with the city's museums.

(c) The commission shall prepare and submit, not later than March of each year, a report to city council of its activities and expenditures for the prior year.

(d) The commission shall prepare and submit an annual plan to city council describing its goals and plans for the range of projects and programs for the coming year, intended to promote the understanding and appreciation of arts and culture in the community, and amend such plan as necessary.
(Ord. No. 2259, § 2, 1-28-2025)

2.62.070 Adoption of policies and guidelines.

(a) The arts and culture commission shall adopt policies and guidelines:

- (1) For the development and support of municipal arts and culture projects and programs;
- (2) To facilitate and encourage arts and culture projects and programs in Golden by community partners;

- (3) To support the operation and management of the art in public places program pursuant to chapter 2.60;
 - (4) Related to recommendations to the city regarding financial support for city and community arts and culture programs and projects;
 - (5) To support adopted city plans and strategic goals as related to arts and culture;
 - (6) To support the efforts of subcommittees as authorized by this chapter; and
 - (7) To address any other matter necessary for the administration of this chapter and chapter 2.60 of this Code.
- (Ord. No. 2259, § 2, 1-28-2025)

Chapter 2.64

Reserved

Editor's note—Ord. No. 2259, § 3, adopted Jan. 28, 2025, repealed Ch. 2.64, which pertained to public art commission and derived from Ord. No. 2166, § 4, adopted July 27, 2021.

Chapter 2.66

VOLUNTEER FIREFIGHTERS' PENSION BOARD OF TRUSTEES

2.66.010 Creation and appointment.

(a) The Colorado Volunteer Firefighter Pension Act (Part 11 of Article 30 of Title 31, C.R.S.) provides for a board of trustees to carry out the duties and responsibilities set forth in such act with respect to the Golden Volunteer Firefighters Pension Fund (the "board"). The composition of the board is provided for in the act and requires that two "other" members (hereinafter "citizen members") be appointed by the city council for terms as determined by the city council.

(b) The citizen members shall be appointed by the mayor with the approval of the majority of the city council. Such citizen members shall serve without compensation. Such citizen members of the board shall not hold any other municipal office or position on a standing

municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or other similar ad hoc groups.

(Ord. No. 2052, § 1, 3-23-2017)

2.66.020 Terms of citizen members.

(a) Citizen members shall serve staggered terms of four years at the pleasure of city council. No person having served two complete, consecutive four-year terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous four-year term. Terms served by citizen members pursuant to appointments made prior to calendar year 2017 shall not be considered when determining whether the term limitations provided for herein disqualify appointment.

(b) In order to achieve staggered terms, the term of the current citizen member, whose term is set to expire in 2018, shall be extended for 12 months.

(Ord. No. 2166, § 5, 7-27-2021; Ord. No. 2052, § 1, 3-23-2017)

2.66.030 Authority to adopt procedures.

The volunteer firefighters' pension fund board shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The volunteer firefighters' pension fund board shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The volunteer firefighters' pension fund board shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2052, § 1, 3-23-2017; Ord. No. 2266, § 5, 4-22-2025)

2.66.040 Meetings.

The rules of procedure shall include the time and place of regularly scheduled meetings which shall be open to the public. A record of all

meetings shall be kept at city hall. The board may call special meetings, as it deems necessary, subject to public notice within reasonable time before the meetings. Such meetings shall be open to the public.

(Ord. No. 2052, § 1, 3-23-2017)

2.66.050 Officers.

The board shall elect a president and secretary from its membership. The city's municipal treasurer shall serve as the ex-officio treasurer of the board.

(Ord. No. 2052, § 1, 3-23-2017)

2.66.060 Duties of the board.

The powers and duties of the board shall be as provided in the Colorado Volunteer Firefighters' Pension Act.

(Ord. No. 2052, § 1, 3-23-2017)

Chapter 2.68

PARKS AND RECREATION ADVISORY BOARD

2.68.010 Purpose.

The parks and recreation advisory board is established as an advisory board focused on elements and issues of operation, development, expansion, and growth specific to parks and recreation within the city. The board acts as a conduit of information between the city and the community to gather and assess citizen input on existing and future city services and facilities in areas related to the board's activity.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2063, § 2, 10-12-2017)

2.68.020 Creation, appointment, terms.

There is created a parks and recreation advisory board for the city, which board shall be comprised of seven members, and one alternate, each of whom shall be a resident of the city. The seven members and one alternate of the board shall be appointed by the mayor, with approval by a majority of the city council. All members shall serve staggered terms of four years, at the pleasure of city council, and shall serve without

compensation. Members of the board shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups and may serve as an ex-officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. Upon appointment, the city will regularly provide orientation and training for new and existing board members.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2166, § 6, 7-27-2021; Ord. No. 2063, § 2, 10-12-2017)

2.68.030 Board membership.

It is intended that the parks and recreation advisory board membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the board understand and make recommendations to benefit the entire community.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2063, § 2, 10-12-2017)

2.68.040 Authority to adopt supplemental procedures.

The parks and recreation advisory board shall follow the comprehensive rules of procedure as adopted by city council resolution for the operation of all boards and commissions. In addition, the board shall have authority to adopt supplemental rules of procedure governing its proceedings for topics not covered by the comprehensive rules, so long as the supplementary rules do not conflict with the comprehensive rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2063, § 2, 10-12-2017)

2.68.050 Meetings.

The parks and recreation advisory board shall determine an annual meeting schedule based upon their fulfillment of duties listed in section 2.68.070 below, which meetings shall be open to the public. It may also hold special meetings from time to time as it deems necessary. A record of all meetings of the board shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2063, § 2, 10-12-2017)

2.68.060 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice chair shall preside. At the board's option, the function of chairing specific meetings may be rotated among the board members. The city shall provide a secretary and staff support to the board.

(Ord. No. 2063, § 2, 10-12-2017)

2.68.070 Duties of board.*(1) Primary duties.*

- (a) To serve in an advisory capacity to the city council with reference to the operation, development, expansion, growth, and all other matters related to the city's parks, trails, and recreational facilities, including education, events, and programming, for the purpose of recreation and to promote a sense of community, physical health, and well-being.
- (b) The board may also from time to time guide and assist with the preparation of comprehensive long-term plans for the growth and development of the city's parks and recreational facilities, within the meaning and the spirit of the city's growth and development policy plan.

- (c) In carrying out its duties, the parks and recreation advisory board shall have authority to conduct open public hearings, conduct investigations, studies and surveys, prepare maps, charts, exhibits, and reports as shall be necessary; and do and perform all other acts and duties necessary to the promotion of public interest and understanding of its programs and plans. Whenever a public hearing is held before the parks and recreation advisory board, public notice shall be published in a newspaper of general circulation within the city at least seven days prior to such hearing.

- (d) Act as a conduit of information between the city and the community to gather and assess the information necessary to make sound and consistent advisory recommendations in areas related to the board's activity.

(2) *Advisory duties.* Advise other boards and commissions on the incorporation of policies and recommendations pertaining to the city's parks, recreation, open space, trails, and similar community elements in plans prepared by such boards and commissions.

(3) Collaborative activities.

- (a) The board shall seek ways to collaborate with various city boards and commissions, including the mobility and transportation advisory board and historic preservation board, as well as external partners like the Jefferson County Open Space Department, active recreation organizations, and other governmental, non-profit, and private agencies.
- (b) In fulfilling the collaborative duties described herein, the board may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.

(Ord. No. 2259, § 4, 1-28-2025; Ord. No. 2063, § 2, 10-12-2017)

Chapter 2.70
GOLDEN URBAN RENEWAL AUTHORITY

2.70.010 Creation.

(a) The Golden Urban Renewal Authority ("GURA") was created in 1989, pursuant to Golden city council Resolutions 343 and 348, and Part 1 of Article 25 of Title 31 Colorado Revised Statutes ("C.R.S.") (the Urban Renewal Authority Act").

(b) The GURA is a body corporate with all the purposes and powers now or hereafter authorized by the Urban Renewal Authority Act, and all additional and supplemental powers necessary or convenient to carry out and effectuate the purposes and provisions of the Urban Renewal Authority Act and such other powers and authority as specifically stated in any urban renewal plan approved by the city council.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.015 Membership.

The GURA shall be organized as follows:

(a) Pursuant to C.R.S. 31-25-104(2)(a), an authority shall consist of any odd number of commissioners which shall be not less than five nor more than 11, each of whom shall be appointed by the mayor and confirmed by a majority of the city council. Not more than one of the members may be an official of the municipality. In the event that an official of the municipality is appointed as a member, acceptance or retention of such appointment shall not be deemed a forfeiture of office, or incompatible therewith, or affect their tenure or compensation in any way. The term of office of a GURA member who is a municipal official shall not be affected or curtailed by the expiration of the term of their municipal office.

(b) The GURA is comprised of seven members. The seven members shall be appointed by the mayor and confirmed by a majority of the city council. The GURA shall be constituted as follows:

- (1) One member shall be a member of the city council; and

- (2) Six members shall be residents of the City of Golden.

- (3) Pursuant to C.R.S. 31-25-104(2) and the changes made by Colorado House Bill 1348, the GURA may be required to expand to a total of up to 13 members if a new urban renewal plan or major amendment to an existing urban renewal plan is proposed.

(c) The terms of all members appointed, except the member from the city council, shall expire five years from the expiration date of the terms of their predecessors. The mayor with confirmation by a majority of city council may remove a member for inefficiency or neglect of duty or misconduct in office but only after the member has been given a copy of the charges made by the mayor against them and has had an opportunity to be heard in person or by counsel before city council. In the event of removal of any member, a record of the proceedings, together with the charges made against the member and findings thereon shall be filed in the clerk's office.

(d) Members shall hold office until their successor has been appointed and qualified by the mayor and confirmed by a majority of the city council.

(e) All members shall serve without compensation.

(f) Except for the city council member, members of the GURA shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members may serve on other temporary committees, task forces, or similar ad hoc groups.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.020 Terms.

The members shall serve terms of five years at the pleasure of city council. No person having served two complete consecutive terms on the GURA shall be appointed by city council unless, upon appointment, at least five years have passed since that person's previous term. An individual completing the partial term of a member who has left the GURA shall be eligible for appointment to another five-year term. A member of

GURA may serve one partial term and two full five-year terms with total service not to exceed 12.5 years. Upon appointment, the city will regularly provide orientation and training for new and existing members.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.030 GURA to adopt supplemental procedures.

The GURA shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended. Additionally, the GURA is authorized to adopt supplemental rules of procedure for topics not covered by the council adopted rules of procedure, provided that such supplemental rules of procedure do not conflict with the council adopted rules. The rules of procedure shall be posted and available to the public.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.040 Meetings.

The supplemental rules of procedure shall include the time and place of regularly scheduled meetings. A record of all meetings will be kept at city hall. The GURA may call special meetings, as it deems necessary. All meetings shall be subject to public notice in accordance with the Colorado Open Meetings Law. All meetings shall be open to the public except as allowed under the Colorado Open Meetings Law. In the event there is no business pending before the GURA, the regular monthly meeting may be cancelled.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.050 Officers.

The GURA shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside over all meetings, except that in their absence, the vice-chair shall preside. The city shall provide a secretary for the GURA.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.055 Powers of the GURA.

The powers of the GURA are specifically detailed in Part 1 of Article 25 of Title 31

Colorado Revised Statutes ("C.R.S.") (the Urban Renewal Authority Act") and as may be amended from time to time.
(Ord. No. 2230, § 3, 3-20-2024)

2.70.060 Urban renewal project areas.

Individual urban renewal project areas are created and or modified by city council pursuant to the requirements of Part 1 of Article 25 of Title 31 Colorado Revised Statutes ("C.R.S.") (the Urban Renewal Authority Act").
(Ord. No. 2230, § 3, 3-20-2024)

Chapter 2.72 ECONOMIC DEVELOPMENT COMMISSION

2.72.010 Purpose.

The primary purpose of the economic development commission shall be to promote the retention, expansion, and attraction of the primary employment and entrepreneurial sector of the local economy.
(Ord. No. 2063, § 3, 10-12-2017)

2.72.020 Creation, appointment and terms.

There is created an economic development commission for the city, which commission shall be comprised of seven members, each of whom shall be a resident of the city, property owner within the city, be employed within the city, or own a business within the city. The members of the commission shall be made up of a combination of members selected by representative groups, and members appointed by the mayor of the city. All members shall serve staggered terms of four years, at the pleasure of city council. The Golden Urban Renewal Authority and the Golden Chamber of Commerce board of directors shall each select one person to serve on the commission, the appointment of whom shall be confirmed by the majority of city council. In addition to these two members, five members shall be appointed by the mayor, the appointment of whom shall be confirmed by a majority of the council. Members of the commission shall not hold any other municipal office or position on a

standing municipal board, commission or authority, except that members of the commission may serve on other temporary committees, task forces, or similar ad hoc groups and may serve as an ex-officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. The foregoing notwithstanding, one member of the Golden Urban Renewal Authority may serve on the economic development commission, if selected by the Golden Urban Renewal Authority. No person having served two complete consecutive terms on the commission shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. Upon appointment, the city will regularly provide orientation and training for new and existing board members.

(Ord. No. 2166, § 7, 7-27-2021; Ord. No. 2063, § 3, 10-12-2017)

2.72.030 Commission membership.

It is intended that the economic development commission membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the commission understand and make recommendations to benefit the entire community.

(Ord. No. 2063, § 3, 10-12-2017)

2.72.040 Authority to adopt regulations.

The economic development commission shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The economic development commission shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The economic development commission shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2063, § 3, 10-12-2017; Ord. No. 2266, § 6, 4-22-2025)

2.72.050 Meetings.

The economic development commission shall determine an annual meeting schedule based upon their fulfillment of duties listed in section 2.72.070 below, which meetings shall be open to the public. It may also hold special meetings from time to time as it deems necessary. A record of all meetings of the board shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2063, § 3, 10-12-2017)

2.72.060 Officers.

The commission shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the commission, except that in his/her absence, the vice-chair shall preside. At the commission's option, the function of chairing specific meetings may be rotated among the members. The city shall provide a secretary and staff support to the commission.

(Ord. No. 2063, § 3, 10-12-2017)

2.72.070 Duties of the commission.

(1) Primary duties.

(a) The primary purpose of the economic development commission shall be to promote the retention, expansion, and attraction of the primary employment and entrepreneurial sector of the local economy. In fulfilling this mission, the commission will be expected to perform the following tasks:

1. Annual preparation and submittal to city council of a strategic plan/work plan in accordance with the above mission and focus.
2. Annual preparation and submittal to city council of a report and outcomes related to the strategic plan and work plan.
3. Recommendations to city council about economic incentive requests.

- (b) In carrying out its duties, the economic development commission shall have authority to conduct open public hearings, conduct investigations, studies and surveys, prepare maps, charts, exhibits and reports as shall be necessary; and do and perform all other acts and duties necessary for the promotion of public interest and understanding of its programs and plans.

(2) *Advisory activities.*

- (a) The commission shall participate in policy discussions and revisions to community planning documents, and make recommendations related thereto.

(3) *Collaborative activities.*

- (a) The commission shall seek ways to collaborate with various city boards and commissions as well as external partners. Such collaborative partners may include the urban renewal authority, downtown development authority, visit golden, chamber of commerce, as well as external partners at the county, regional, and state level.
- (b) In fulfilling the collaborative duties described herein, the board may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.

(Ord. No. 2063, § 3, 10-12-2017)

Chapter 2.74

COMMUNITY MARKETING PROGRAM BOARD

2.74.010 Purpose and intent.

Chapter 2.74 has been created to reflect the administration and management of the community marketing program as initially created by Ordinance No. 1510 in 2000.

(Ord. No. 2267, § 4, 5-27-2025)

2.74.020 Community marketing fund administrator.

The city manager, and through their designation of the director of communications, is appointed to be the administrator of the community marketing fund, as established by subsection 3.03.010(f). The community marketing fund shall be administered and operated in a manner consistent with the requirements of subsection 3.03.010(f), this chapter, and in accordance with the city's budgeting, contracting, and purchasing policies and procedures.

(Ord. No. 2267, § 4, 5-27-2025)

2.74.030 Creation and appointment of the community marketing board.

(a) There is hereby created a community marketing board for the city, which shall be composed of nine voting members, all of whom shall be either a resident of the city, be employed within the city, represent a business within the city, or be an owner of real property within the city. The members of the board shall be appointed by the mayor, the appointment of whom shall be confirmed by the majority of city council.

(b) It is intended that the community marketing board membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise necessary to fulfill their duties. Diversity of backgrounds, neighborhoods, and interests helps the board understand and make recommendations to benefit the entire community. In addition, because of the nature of the board's duties, the mayor and city council are encouraged to represent the marketing interests of visitor facing businesses in the appointments to the board, including the retail, food and beverage, lodging sectors, and cultural organizations that are found throughout the community.

(c) Members shall include at least one Golden resident at large, one city councilor, [and] one member [who] shall be selected by the board of directors of the Golden Chamber of Commerce with approval by a majority of city council. The selection process shall endeavor to include at least one representative from each of the following business sectors: Retail, food and beverage,

lodging, and cultural organization. However, selection preference shall be given to ensure business representation in each of the four geographic areas as noted in subsection (d) below.

(d) With respect to the business sector representatives noted above, members shall represent each of the four geographic areas within the City of Golden boundaries: Downtown, between Highway 58 and 24th Street; North, defined as north of Highway 58; Southeast, defined as south of 24th Street but north of Highway 6; and south, which includes everything south of Highway 6.

(e) All members shall serve without compensation.

(f) Members of the community marketing board shall not be a vendor of the community marketing program or hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups.

(g) The city manager shall appoint a staff liaison to provide administrative support and assistance to the advisory board as necessary to accomplish the duties of the advisory board and the purposes of this chapter.

(h) Upon appointment, the city will regularly provide orientation and training for new and existing board members.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.040 Terms.

The members shall serve terms of four years at the pleasure of city council and shall be eligible for reappointment for no more than two consecutive terms. Upon initial appointment, five of these members shall be randomly selected to serve initial terms of two years. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.045 Authority to adopt supplemental procedures.

The community marketing board shall follow the comprehensive rules of procedure as adopted by city council resolution for the operation of all boards and commissions. In addition, the board shall have authority to adopt supplemental rules of procedure governing its proceedings for topics not covered by the comprehensive rules, so long as the supplemental rules do not conflict with the comprehensive rules. The rules of procedure shall be posted and available to the public.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.050 Meetings.

The board shall identify and post the time and place of regularly scheduled meetings, which shall be open to the public. A record of all meetings will be kept at city hall. The board may call special meetings, as it deems necessary, subject to public notice within reasonable time before the meetings. Such meetings shall be open to the public. In the event there is no business pending before the advisory board, the regular monthly meeting may be cancelled.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.055 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. The city shall provide a secretary to the board.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.060 Subcommittees.

The board is authorized to establish subcommittees to fulfill its required duties. Each subcommittee shall include three board members. No subcommittee member shall have a financial interest or conflict of interest related to the subcommittee subject matter.
(Ord. No. 2267, § 4, 5-27-2025)

2.74.070 Duties of the board.

(a) The community marketing board shall direct the expenditures of the community marketing fund, as established by subsection 3.03.010(f).

In doing so, the board shall direct expenditures through the adoption of community marketing plans, and budget, as provided below, which shall be in a manner consistent with the requirements of subsection 3.03.010(f), this chapter, and the city's economic development and comprehensive plans. The use of the community marketing fund shall be restricted as follows:

- (1) A community marketing plan will be approved by the board using all available information. Input into the plan will be sought from the community, including [the] retail business, service industry, lodging, and local cultural attractions segments of the Golden community. The plan will focus on the entire city, including business areas that service local and regional residents and employees, as well as visitors and tourists.
- (2) Marketing efforts will include development and updating the implementation strategy for promotion activities, public relations activities, direct advertising, and limited indirect support for certain events and activities recommended by the plan.
- (3) An annual list of expenditures from the community marketing fund ("marketing budget") will be developed, adopted and managed by the board based upon the community marketing plan.
- (4) The annual marketing expense list, which shall include personnel and contractor or consultant expenses and inclusive of city staff assigned to support the community marketing program and board, and part of the community marketing fund budget, shall be subject to the city's budget process and city council approval within the city budget and shall be subject to and comply with the city's policies and procedures.
- (5) In the event of the termination of the community marketing fund under the provisions of subsections 3.03.010(f) and 3.04.050(b), the board will discontinue its role with respect to the fund.

(b) The board shall serve in an advisory capacity to city council with respect to marketing the community.

(c) The board shall prepare and submit, not later than March of each year, a report to city council of its activities and expenditures for the prior year.

(d) The board shall prepare and submit an annual plan to city council describing its goals and plans for the range of projects and programs for the coming year, intended to market Golden's visitor facing businesses, and amend such plan as necessary.

(Ord. No. 2267, § 4, 5-27-2025)

2.74.080 Adoption of policies and guidelines.

(a) The community marketing board shall adopt policies and guidelines:

- (1) For the development and support of the community marketing program;
- (2) To facilitate the success of visitor-facing businesses throughout Golden;
- (3) To support adopted city plans and strategic goals related to economic development and communications policies;
- (4) To support the efforts of subcommittees as authorized by this chapter; and
- (5) To address any other matter necessary for the administration of this chapter.

(b) All policies adopted by the community marketing board, and any amendments thereto, are subject to review and approval by city council, and shall be effective upon city council's adoption of same by resolution.

(Ord. No. 2267, § 4, 5-27-2025)

Chapter 2.76

MOBILITY AND TRANSPORTATION ADVISORY BOARD

2.76.010 Purpose.

The mobility and transportation advisory board is established as an advisory board focused on transportation and transit issues within the city.

The board provides a venue to evaluate the relationship between mobility of all types and the economy, sustainability, safety, land use, neighborhood integrity, and emergency response times; and study the importance of transportation access to health care, employment, education, housing, business, and recreational facilities. The board's recommendations contribute to community and neighborhood plans prepared by planning commission and to policy and strategic decisions of city council.

(Ord. No. 2058, § 3, 7-13-2017)

2.76.020 Creation, appointment, terms.

There is created a mobility and transportation advisory board which board shall be comprised of seven members, each of whom shall be a resident of the city. The seven members shall be appointed by the mayor, with approval of a majority of the city council. All members shall serve staggered terms of four years, at the pleasure of city council, and shall serve without compensation. Members of the board shall not hold any other municipal office or position on a standing municipal board, commission or authority, except that members of the board may serve on other temporary committees, task forces, or similar ad hoc groups, and may serve as an ex officio member on another city board or commission to enhance collaboration, upon appointment by their primary board or commission. No person having served two complete consecutive terms on the board shall be appointed by city council unless, upon appointment, at least four years have passed since that person's previous term. In addition to the foregoing membership, the city manager has the option to appoint up to two additional non-voting members to the board, from the police department, the fire department, or any other city department.

(Ord. No. 2166, § 8, 7-27-2021; Ord. No. 2058, § 3, 7-13-2017)

2.76.030 Board membership.

It is intended that the mobility and transportation advisory board membership consist of a diverse and committed group of individuals with a variety of complementary skills, critical thinking abilities, and expertise as necessary to fulfill

their duties. Diversity of backgrounds, neighborhoods, and interests helps the board understand and make recommendations to benefit the entire community.

(Ord. No. 2058, § 3, 7-13-2017)

2.76.040 Authority to adopt procedures.

The mobility and transportation advisory board shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as amended from time to time. The mobility and transportation advisory board shall have the authority to adopt supplementary rules of procedure by majority vote for topics not covered by the council adopted rules of procedure provided that the supplemental rules do not conflict with the council adopted rules. The mobility and transportation advisory board shall conduct all of its proceedings in accordance with such rules. The rules of procedure shall be posted and available to the public.

(Ord. No. 2058, § 3, 7-13-2017; Ord. No. 2266, § 7, 4-22-2025)

2.76.050 Meeting.

The mobility and transportation advisory board shall determine an annual meeting schedule based upon their fulfillment of duties listed in section 2.76.070 below, which meetings shall be open to the public. It may also hold special meetings as the board deems necessary. A record of all meetings shall be kept at city hall, which records shall be available for public examination in accordance with the Colorado Open Records Act. Public notice for all meetings shall be provided in advance in accordance with established city procedures.

(Ord. No. 2058, § 3, 7-13-2017)

2.76.060 Officers.

The board shall choose one of its members to act as chair and one member to serve as vice-chair. The chair shall preside at all meetings of the board, except that in his/her absence, the vice-chair shall preside. At the board's option, the function of chairing specific meetings may be

rotated among the board members. The city shall provide a secretary and staff support to the board.

(Ord. No. 2058, § 3, 7-13-2017)

2.76.070 Duties of the mobility and transportation advisory board.

(1) *Primary duties.*

- (a) To review, monitor, and propose changes as necessary to:
 - 1. Transportation, mobility, and transit plans;
 - 2. Traffic calming policies;
 - 3. The downtown parking management system;
 - 4. Neighborhood parking permit systems;
 - 5. Planning and funding priorities for transportation, mobility, and transit capital improvements;
 - 6. School zone safety;
 - 7. Any other city policies regarding streets, automobiles, pedestrians, bicycles, and transit.
- (b) To work with individual citizens, neighborhood groups, and city staff to develop and recommend criteria by which to guide neighborhood projects for traffic calming, traffic mitigation, and transportation related noise mitigation.
- (c) To work with city staff to develop policy guidance to evaluate the appropriate use of traffic control measures and devices within the boundaries of traffic and engineering standards, and the city engineer's professional judgment. To provide an organized forum for an integrated review and recommendations to the city engineer regarding citizen or neighborhood requests for installation or changes to traffic control measures, pedestrian safety improvements and related issues.
- (d) To work with city staff to develop educational materials and programs

related to the beneficial use of transportation and mobility systems and to advocate for the safe usage of such systems.

- (e) To work within the community and region as an advocate for safe and effective transportation systems.
 - (f) To accomplish its work and gather public input, the board may use surveys, community meetings, listening sessions, focus groups, study sessions, or public hearings, as necessary.
 - (g) In the performance of its activities and duties the board shall seek assistance from staff to ensure that all its actions and recommendations are in compliance with applicable engineering codes, standards and regulations.
- (2) *Advisory activities.*
- (a) Advise the city manager and city council and make recommendations concerning transportation and transit projects and matters and alternate transportation programs.
 - (b) Advise planning commission on the incorporation of policies and recommendations pertaining to transportation and transit in community and neighborhood plans.
 - (c) Act as a conduit of information between the city and the community to gather and assess the information necessary to make sound and consistent advisory recommendations to the city for transportation studies, mitigation strategies, and the funding and prioritization of transportation improvements.
 - (d) Review proposed street vacations and provide an advisory opinion to the planning commission.

(3) *Collaborative activities.*

- (a) The board shall seek to promote close collaboration among city council, planning commission, sustainability board, other boards and commissions, city departments, individuals, businesses, schools, and institutions concerned with

transportation and transit in order to secure the public health, safety, and welfare.

- (b) In fulfilling the collaborative duties described herein, the commission may opt to appoint ex-officio members to other boards or commissions, where such formal non-voting participation can enhance the level of cooperation and collaboration among city boards and commissions.
- (Ord. No. 2058, § 3, 7-13-2017)

Title 3

TAX CODE*

Chapter 3.01 General: Taxes Established

- 3.01.010 Name of title.
- 3.01.020 Legislative intent.

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- 3.06.020 Audit of records.
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***Editor's note**—Sec. 2 of Ord. No. 2188, adopted July 12, 2022, renamed tit. 3 as the Tax Code. Prior to amendment, tit. 3 was named Retail Sales and Use Tax.

GOLDEN MUNICIPAL CODE

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Chapter 3.07 Tax Overpayment—Refunds

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Chapter 3.08 Enforcement

3.08.010 Recovery of taxes, penalty and interest.
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3.10.020 Intent and purpose.
3.10.030 Tax imposed; collection; lodging tax fund created.
3.10.040 Exemptions.
3.10.050 Incorporation by reference of certain provisions of title 3.

Chapter 3.11 Retail Marijuana Tax

3.11.010 Short title.
3.11.020 Intent and purpose.
3.11.030 Definitions.
3.11.040 Tax imposed; collection; retail marijuana tax fund created.
3.11.050 Incorporation by reference of certain provisions of title 3.

Chapter 3.01
GENERAL: TAXES ESTABLISHED

3.01.010 Name of title.

This title shall be known as, and cited as, the "City of Golden, Colorado, Tax Code". (Ord. No. 2170, § 2, 12-7-2021; Ord. 1144, § 1(part), 1992; Ord. 819, § 2(part), 1979)

3.01.020 Legislative intent.

This title is intended to establish the tax base and administration thereof for the city. Additionally, this Code standardizes certain municipal tax practices for the convenience of taxpayers and the business community. (Ord. No. 2170, § 3, 12-7-2021; Ord. 1144, § 1(part), 1992)

Chapter 3.02
DEFINITIONS

3.02.010 Words and phrases defined.

The following words and phrases as used in this title shall have the following meaning:

Agricultural producer means a person regularly engaged in the business of using land for the production of commercial crops or commercial livestock. The term includes farmers, market gardeners, commercial fruit growers, livestock breeders, dairymen, poultry men, and other persons similarly engaged, but does not include a person who breeds or markets animals, birds, or fish for domestic pets nor a person who cultivates, grows, or harvests plants or plant products exclusively for that person's own consumption or casual sale.

Aircraft means a device that is used or intended to be used for flight in the air.

Aircraft part means any tangible personal property that is intended to be permanently affixed or attached as a component part of an aircraft.

Aircraft simulator means a flight simulator training device (FSTD) as defined in Part I of Title 14 of the Code of Federal Regulations that

is qualified in accordance with Part 60 of Title 14 of the Code of Federal Regulations for use in a Federal Aviation Administration Approved Flight Training Program.

Aircraft simulator part means any tangible personal property that is originally designed and intended to be permanently affixed or attached as a component part of an aircraft, and which will also function when it is permanently affixed or attached as a component part of an aircraft simulator.

Auction means any sale where tangible personal property is sold by an auctioneer who is either the agent for the owner of such property or is in fact the owner thereof.

Automotive vehicle means any vehicle or device in, upon, or by which any person or property is or may be transported or drawn upon a public highway, or any device used or designed for aviation or flight in the air. Automotive vehicle includes, but is not limited to, motor vehicles, trailers, semi-trailers, or mobile homes. Automotive vehicle shall not include devices moved by human power or used exclusively upon stationary rails or tracks.

Business means all activities engaged in or caused to be engaged in with the object of gain, benefit, or advantage, direct or indirect.

Carrier access services means the services furnished by a local exchange company to its customers who provide telecommunications services which allow them to provide such telecommunications services.

Charitable organization means any entity which:

- (1) Has been certified as a nonprofit organization under Section 501(c)(3) of the Internal Revenue Code; and
- (2) Is an organization which exclusively, and in a manner consistent with existing laws and for the benefit of an indefinite number of persons or animals, freely and voluntarily ministers to the physical, mental or spiritual needs of persons or animals, and thereby lessens the burdens of government.

City means the municipality of Golden, Colorado.

Coin operated device means any device operated by coins or currency or any substitute therefor.

Collection costs shall include, but is not limited to, all costs of audit, assessment, bank fees, hearings, execution, lien filing, distraint, litigation, locksmith fees, auction fees and costs, prosecution and attorney fees.

Commercial packaging materials means containers, labels, and/or cases, that become part of the finished product to the purchaser, used by or sold to a person engaged in manufacturing, compounding, wholesaling, jobbing, retailing, packaging, distributing or bottling for sale, profit or use, and is not returnable to said person for reuse. Commercial packaging materials does not include commercial shipping materials.

Commercial shipping materials means materials that do not become part of the finished product to the purchaser which are used exclusively in the shipping process. Commercial shipping materials include, but are not limited to, containers, labels, pallets, banding material and fasteners, shipping cases, shrink wrap, bubble wrap or other forms of binding, padding or protection.

Construction equipment means any equipment, including mobile machinery and mobile equipment, which is used to erect, install, alter, demolish, repair, remodel, or otherwise make improvements to any real property, building, structure or infrastructure.

Construction materials means tangible personal property which, when combined with other tangible personal property, loses its identity to become an integral and inseparable part of a structure or project including public and private improvements. Construction materials include, but are not limited to, such things as: asphalt, bricks, builders hardware, caulking material, cement, concrete, conduit, electric wiring and connections, fireplace inserts, electrical heating and cooling equipment, flooring, glass, gravel, insulation, lath, lead, lime, lumber, macadam, millwork, mortar, oil, paint, piping, pipe valves

and pipe fittings, plaster, plumbing fixtures, putty, reinforcing mesh, road base, roofing, sand, sanitary sewer pipe, sheet metal, site lighting, steel, stone, stucco, tile, trees, shrubs and other landscaping materials, wall board, wall coping, wall paper, weather stripping, wire netting and screen, water mains and meters, and wood preserver. The above materials, when used for forms or other items which do not remain as an integral and inseparable part of completed structure or project are not construction materials.

Consumer means any person in the city who purchases, uses, stores, distributes or otherwise consumes tangible personal property or taxable services, purchased from sources inside or outside the city.

Contract auditor means a duly authorized agent designated by the taxing authority and qualified to conduct tax audits on behalf of and pursuant to an agreement with the municipality.

Contractor means any person who shall build, construct, reconstruct, alter, expand, modify, or improve any building, dwelling, structure, infrastructure, or other improvement to real property for another party pursuant to an agreement. For purposes of this definition, contractor also includes subcontractor.

Cover charge means a charge paid to a club or similar entertainment establishment which may, or may not, entitle the patron paying such charge to receive tangible personal property, such as food and/or beverages.

Data processing equipment means any equipment or system of equipment used in the storage, manipulation, management, display, reception or transmission of information.

Digital product means an electronic product including, but not limited to:

- (1) "Digital images" which means works that include, but are not limited to, the following that are generally recognized in the ordinary and usual sense as "photographs," "logos," "cartoons," or "drawings";

- (2) "Digital audio-visual works" which means a series of related images which, when shown in succession, impart an impression of motion, together with accompanying sounds, if any;
- (3) "Digital audio works" which means works that result from the fixation of a series of musical, spoken, or other sounds, including ringtones. For purposes of the definition of "digital audio works", "ringtones" means digitized sound files that are downloaded onto a device and that may be used to alert the customer with respect to a communication; and
- (4) "Digital books" which means works that are generally recognized in the ordinary and usual sense as "books".

Economic nexus means the connection between the city and any retailer who does not have a physical presence in the State of Colorado, which connection is established when the retailer meets any one of the following criteria:

- (1) In the previous calendar year, the retailer has made retail sales of goods or services delivered into the State of Colorado exceeding the amount specified in C.R.S. § 39-26-102(3)(c), as amended, and the location at which property or a product is delivered or the service rendered is within the city; or
- (2) In the current calendar year, 90 days has passed following the month in which a retailer has made retail sales of goods or services delivered into the State of Colorado exceeding the amount specified in C.R.S. § 39-26-102(3)(c), as amended, and the location at which property or a product is delivered or the service rendered is within the city.

Engaged in business in the city means performing or providing services or selling, leasing, renting, delivering, or installing tangible personal property for storage, use or consumption within the city. Engaged in business in the city includes, but is not limited to, any one of the following activities by a person or retailer:

- (1) Directly, indirectly, or by a subsidiary maintains a building, store, office, salesroom, warehouse, or other place of business within the taxing jurisdiction;

- (2) Sends one or more employees, agents or commissioned sales persons into the taxing jurisdiction to solicit business or to install, assemble, repair, service, or assist in the use of its products, or for demonstration or other reasons;
- (3) Maintains one or more employees, agents or commissioned sales persons on duty at a location within the taxing jurisdiction;
- (4) Owns, leases, rents or otherwise exercise control over real or personal property within the taxing jurisdiction; or
- (5) Any retailer who does have a physical presence in the State of Colorado, without having a physical presence within the city, that in the preceding calendar year or the current calendar year makes more than one retail sale of tangible personal property, products, or services, where the location at which property or a product is delivered by any means, including common carrier within the city, or the service rendered occurs within the city; or
- (6) Makes retail sales of tangible personal property, products, or services sufficient to meet the definitional requirements of economic nexus, as set forth in this section 3.02.010.

Factory built housing means a manufactured home or modular home.

Finance director means the finance director of the City of Golden or such other person designated by the municipality; finance director shall also include such person's designee.

Food for home consumption means food for domestic home consumption as defined in 7 U.S.C. Section 2012(k)(2014) as amended, for purposes of the supplemental nutrition assistance program, or any successor program, as defined in 7 U.S.C. Section 2012(t), as amended, except that "food" does not include carbonated water marketed in containers; chewing gum; seeds and plants to grow foods; prepared salads and salad bars; packaged and unpackaged cold sandwiches; deli trays; and hot or cold beverages served in unsealed containers or cups that are vended by

or through machines or non-coin operated coin-collecting food and snack devices on behalf of a vendor.

Garage sales means sales of tangible personal property, except automotive vehicles, occurring at the residence of the seller, where the property to be sold was originally purchased for use by members of the household where such sale is being conducted. The term includes, but is not limited to, yard sales, estate sales, and block sales.

Gross sales means the total amount received in money, credit, property or other consideration valued in money for all sales, leases, or rentals of tangible personal property or services.

Internet subscription service means software programs, systems, data and applications available online through rental, lease or subscription, that provide information and services including, but not limited to, data linking, data research, data analysis, data filtering or record compiling.

License means a City of Golden sales and use tax license.

Linen services means services involving the provision and cleaning of linens, including, but not limited to, rags, uniforms, coveralls and diapers.

Lodging services means the furnishing of rooms or accommodation by any person, partnership, association, corporation, estate, representative capacity or any other combinations of individuals by whatever name known to a person who for a consideration uses, possesses, or has the right to use or possess any room in a hotel, inn, bed and breakfast residence, apartment hotel, lodging house, motor hotel, guesthouse, guest ranch, trailer coach, mobile home, auto camp, or trailer court and park, or similar establishment for a period of less than 30 days under any concession, permit, right of access, license to use, or other agreement, or otherwise.

Manufacturing means the operation or performance of an integrated series of operations which places a product, article, substance, commodity, or other tangible personal property in a form, composition or character different from

that in which it was acquired whether for sale or for use by a manufacturer. The change in form, composition or character must result in a different product having a distinctive name, character or use from the raw or prepared materials.

Marketplace means a physical or electronic forum, including, but not limited to, a store, a booth, an internet website, a catalog, or a dedicated sales software application, where tangible personal property, taxable products, or taxable services are offered for sale.

Marketplace facilitator means a person that contracts with a marketplace seller or multichannel seller to facilitate for consideration, regardless of whether or not the consideration is deducted as fees from the transaction, the sale of the marketplace seller's tangible personal property, products, or services through the person's marketplace or a marketplace operated by the person, and engages;

- (1) Directly or indirectly, through one or more affiliated persons, in transmitting or otherwise communicating the offer or acceptance between a purchaser or consumer and the marketplace seller or multichannel seller; and
- (2) Directly or indirectly, through agreements or arrangements with third parties, in collecting or accepting and processing payment from the purchaser or consumer on behalf of the marketplace seller or multichannel seller.

The term does not include a person that, with respect to the marketplace seller's or multichannel seller's products, exclusively provides internet advertising services or lists products for sale.

Marketplace seller means a person, regardless of whether or not the person has a physical presence in the State of Colorado, which has an agreement with a marketplace facilitator and offers for sale tangible personal property, products, or services through a marketplace owned, operated, or controlled by a marketplace facilitator.

Medical marijuana means marijuana acquired, possessed, cultivated, manufactured, delivered, transported, supplied, sold, or dispensed to a person who qualifies as a patient with a debilitat-

ing medical condition(s) under Article XVIII, Section 14, of the Colorado Constitution, and which person holds a valid "registry identification card" issued by the State of Colorado pursuant to Colorado Constitution, Article XVIII, Section 14.

Mobile machinery and self-propelled construction equipment means those vehicles, self-propelled or otherwise, which are not designed primarily for the transportation of persons or cargo over the public highways, and those motor vehicles which may have originally been designed for the transportation of persons or cargo over the public highways, and those motor vehicles which may have originally been designed for the transportation of persons or cargo but which have been redesigned or modified by the mounting thereon of special equipment or machinery, and which may be only incidentally operated or moved over the public highways. This definition includes, but is not limited to, wheeled vehicles commonly used in the construction, maintenance, and repair of roadways, the drilling of wells, and the digging of ditches.

Multichannel seller means a retailer that offers for sale tangible personal property, commodities, or services through a marketplace owned, operated, or controlled by a marketplace facilitator, and through other means.

Newspaper means a publication, printed on newsprint, intended for general circulation, and published regularly at short intervals, containing information and editorials on current events and news of general interest. The term newspaper does not include: Magazines, trade publications or journals, credit bulletins, advertising inserts, circulars, directories, maps, racing programs, reprints, newspaper clipping and mailing services or listings, publications that include an updating or revision service, or books or pocket editions of books.

Online garage sales means sales of tangible personal property, except automotive vehicles, occurring online, where the property to be sold was originally purchased for use by the seller or members of the seller's household.

Person means any individual, firm, partnership, joint venture, corporation, limited liability company, estate or trust, receiver, trustee, assignee, lessee or any person acting in a fiduciary or representative capacity, whether appointed by court or otherwise, or any group or combination acting as a unit.

Preprinted newspaper supplements shall mean inserts, attachments or supplements circulated in newspaper that:

- (1) Are primarily devoted to advertising; and
- (2) The distribution, insertion, or attachment of which is commonly paid for by the advertiser.

Prescription drugs for animals means a drug which, prior to being dispensed or delivered, is required by the federal Food, Drug, and Cosmetic Act, 21 U.S.C. Sect. 301, et seq., as amended, to state at a minimum the symbol "Rx Only", and is dispensed in accordance with any order in writing, dated and signed by a licensed veterinarian specifying the animal for which the medicine or drug is offered and directions, if any, to be placed on the label.

Prescription drugs for humans means a drug which, prior to being dispensed or delivered, is required by the federal Food, Drug, and Cosmetic Act, 21 U.S.C. Sect. 301, et seq., as amended, to state at a minimum the symbol "Rx Only", and is dispensed in accordance with any written or electronic order dated and signed by a licensed practitioner of the healing arts, or given orally by a practitioner and immediately reduced to writing by the pharmacist, assistant pharmacist, or pharmacy intern, specifying the name and any required information of the patient for whom the medicine, drug or poison is offered and directions, if any, to be placed on the label.

Price or purchase price means the aggregate value measured in currency paid or delivered or promised to be paid or delivered in consummation of a sale, without any discount from the price on account of the cost of materials used, labor or service cost, and exclusive of any direct tax imposed by the federal government or by this article, and, in the case of all retail sales involv-

ing the exchange of property, also exclusive of the fair market value of the property exchanged at the same time and place of the exchange, if:

- (1) Such exchanged property is to be sold thereafter in the usual course of the retailer's business, or
- (2) Such exchanged property is a vehicle and is exchanged for another vehicle and both vehicles are subject to licensing, registration, or certification under the laws of this state, including, but not limited to, vehicles operating upon public highways, off-highway recreation vehicles, watercraft and aircraft.

Any money or other consideration paid over and above the value of the exchanged property is subject to tax.

"Price" or "purchase price" includes:

- (1) The amount of money received or due in cash and credits.
- (2) Property at fair market value taken in exchange but not for resale in the usual course of the retailer's business.
- (3) Any consideration valued in money, whereby the manufacturer or someone else reimburses the retailer for part of the purchase price and other media of exchange.
- (4) The total price charged on credit sales including finance charges which are not separately stated at the time of sale. An amount charged as interest on the unpaid balance of the purchase price is not part of the purchase price unless the amount added to the purchase price is included in the principal amount of a promissory note; except the interest or carrying charge set out separately from the unpaid balance of the purchase price on the face of the note is not part of the purchase price. An amount charged for insurance on the property sold and separately stated at the time of sale is not part of the purchase price.
- (5) Installation, applying, remodeling or repairing the property, delivery and wheeling-in charges included in the purchase price and not separately stated.
- (6) Transportation and other charges to effect delivery of tangible personal property to the purchaser.
- (7) Indirect federal manufacturers' excise taxes, such as taxes on automobiles, tires and floor stock.
- (8) The gross purchase price of articles sold after manufacturing or after having been made to order, including the gross value of all the materials used, labor and service performed and the profit thereon.

"Price" or "purchase price" shall not include:

- (1) Any sales or use tax imposed by the State of Colorado or by any political subdivision thereof.
- (2) The fair market value of property exchanged if such property is to be sold thereafter in the retailers' usual course of business. This is not limited to exchanges in Colorado. Out of state trade-ins are an allowable adjustment to the purchase price.
- (3) Discounts from the original price if such discount and the corresponding decrease in sales tax due is actually passed on to the purchaser, and the seller is not reimbursed for the discount by the manufacturer or someone else. An anticipated discount to be allowed for payment on or before a given date is not an allowable adjustment to the price in reporting gross sales.

Private communications services means telecommunications services furnished to a subscriber, which entitles the subscriber to exclusive or priority use of any communication channel or groups of channels, or to the exclusive or priority use of any interstate inter-communications system for the subscriber's stations.

Prosthetic devices for animals means any artificial limb, part, device or appliance for animal use which replaces a body part or aids or replaces

a bodily function; is designed, manufactured, altered or adjusted to fit a particular patient; and is prescribed by a licensed veterinarian. Prosthetic devices include, but are not limited to, prescribed auditory, ophthalmic or ocular, cardiac, dental, or orthopedic devices or appliances, and oxygen concentrators with related accessories.

Prosthetic devices for humans means any artificial limb, part, device or appliance for human use which replaces a body part or aids or replaces a bodily function; is designed, manufactured, altered or adjusted to fit a particular patient; and is prescribed by a licensed practitioner of the healing arts. Prosthetic devices include, but are not limited to, prescribed auditory, ophthalmic or ocular, cardiac, dental, or orthopedic devices or appliances, and oxygen concentrators with related accessories.

Purchase or sale means the acquisition for any consideration by any person of tangible personal property, other taxable products or taxable services that are purchased, leased, rented, sold, used, stored, distributed, or consumed. These terms include capital leases, installment and credit sales, and property and services acquired by:

- (1) Transfer, either conditionally or absolutely, of title or possession or both to tangible personal property, other taxable products, or taxable services;
- (2) A lease, lease-purchase agreement, rental, or grant of a license, including royalty agreements, to use tangible personal property other taxable products, or taxable services;
- (3) Performance of taxable services; or
- (4) Barter or exchange for other tangible personal property, other taxable products, or services.

The terms "purchase" and "sale" do not include:

- (1) A division of partnership assets among the partners according to their interests in the partnership;
- (2) The transfer of assets of shareholders in the formation or dissolution of professional corporations, if no consideration

including, but not limited to, the assumption of a liability is paid for the transfer of assets;

- (3) The dissolution and the pro rata distribution of the corporation's assets to its stockholders, if no consideration including, but not limited to, the assumption of a liability is paid for the transfer of assets;
- (4) A transfer of a partnership or limited liability company interest;
- (5) The transfer of assets to a commencing or existing partnership or limited liability company, if no consideration including, but not limited to, the assumption of a liability is paid for the transfer of assets;
- (6) The repossession of personal property by a chattel mortgage holder or foreclosure by a lienholder;
- (7) The transfer of assets from a parent corporation to a subsidiary company or companies which are owned at least 80 percent by the parent company, which transfer is solely in exchange for stock or securities of the subsidiary company;
- (8) The transfer of assets from a subsidiary company or companies which are owned at least 80 percent by the parent company to a parent company or to another subsidiary which is owned at least 80 percent by the parent company, which transfer is solely in exchange for stock or securities of the parent corporation or the subsidiary which received the assets;
- (9) The transfer of assets between parent and closely held subsidiary companies, or between subsidiary companies closely held by the same parent company, or between companies which are owned by the same shareholders in identical percentage of stock ownership amounts, computed on a share-by-share basis, when a tax imposed by this article was paid by the transferor company at the time it acquired such assets, except to the extent that there is an increase in the fair market value of such assets resulting from the

manufacturing, fabricating, or physical changing of the assets by the transferor company. To such an extent any transfer referred to in this paragraph (9) shall constitute a sale. For the purposes of this paragraph (9), a closely held subsidiary corporation is one in which the parent company owns stock possessing or membership interest at least 80 percent of the total combined voting power of all classes of stock entitled to vote and owns at least 80 percent of the total number of shares of all other classes of stock.

Recreation services means all services relating to athletic or entertainment participation events and/or activities including, but not limited to, pool, golf, billiards, skating, tennis, bowling, health/athletic club memberships, coin operated amusement devices, video games and video club memberships.

Retail sales means all sales except wholesale sales.

Retailer means any person selling, leasing, renting, or granting a license to use tangible personal property or services at retail. "Retailer" shall include, but is not limited to, any:

- (1) Auctioneer;
- (2) Salesperson, representative, peddler or canvasser, who makes sales as a direct or indirect agent of or obtains such property or services sold from a dealer, distributor, supervisor or employer;
- (3) Charitable organization or governmental entity which makes sales of tangible personal property to the public, notwithstanding the fact that the merchandise sold may have been acquired by gift or donation or that the proceeds are to be used for charitable or governmental purposes;
- (4) Retailer-contractor, when acting in the capacity of a seller of building supplies, construction materials, and other tangible personal property;
- (5) A marketplace facilitator, marketplace seller, or multichannel seller.

Retailer-contractor means a contractor who is also a retailer of building supplies, construction materials, or other tangible personal property, and purchases, manufactures, or fabricates such property for sale (which may include installation), repair work, time and materials jobs, and/or lump sum contracts.

Return means any form prescribed by the city administration for computing and reporting a total tax liability.

Sales tax means the tax that is collected or required to be collected and remitted by a retailer on sales taxed under this Code.

Security system services means electronic alarm and/or monitoring services. Such term does not include non-electronic security services such as consulting or human or guard dog patrol services.

Software program means a sequence of instructions that can be measured, interpreted and executed by an electronic device (e.g. a computer, tablets, smart phones) regardless of the means by which it is accessed or the medium of conveyance. Software program includes:

- (1) Custom software program, which is a software program prepared to the special order or specifications of a single customer;
- (2) Pre-written software program, which is a software program prepared for sale or license to multiple users, and not to the special order or specifications of a single customer. Pre-written software is commonly referred to as "canned," "off-the-shelf ("COTS")," "mass produced" or "standardized;"
- (3) Modified software, which means pre-written software that is altered or enhanced by someone other than the purchaser to create a program for a particular user; and
- (4) The generic term "software," "software application," as well as "updates," "upgrades," "patches," "user exits," and any items which add or extend functionality to existing software programs.

Software as a service means software that is rented, leased or subscribed to from a provider

and used at the consumer's location, including, but not limited to, applications, systems or programs.

Software license fee means a fee charged for the right to use, access, or maintain software programs.

Software maintenance agreement means an agreement, typically with a software provider, that may include:

- (1) Provisions to maintain the right to use the software;
- (2) Provisions for software upgrades including code updates, version updates, code fix modifications, enhancements, and added or new functional capabilities loaded into existing software; or
- (3) Technical support.

Sound system services means the provision of broadcast or pre-recorded audio programming to a building or portion thereof. Such term does not include installation of sound systems where the entire system becomes the property of the building owner or the sound system service is for presentation of live performances.

Storage means any keeping or retention of, or exercise dominion or control over, or possession of, for any length of time, tangible personal property not while in transit but on a stand still basis for future use when leased, rented or purchased at retail from sources either within or without the city from any person or vendor.

Tangible personal property means personal property that can be one or more of the following: Seen, weighed, measured, felt, touched, stored, transported, exchanged, or that is in any other manner perceptible to the senses.

Tax means the use tax due from a consumer or the sales tax due from a retailer or the sum of both due from a retailer who also consumes.

Tax deficiency or deficiency means any amount of tax, penalty, interest, or other fee that is not reported and/or not paid on or before the due date that any return or payment of the tax is required under the terms of this Code.

Taxable sales means gross sales less any exemptions and deductions specified in this Code.

Taxable services means services subject to tax pursuant to this Code.

Taxpayer means any person obligated to collect and/or pay tax under the terms of this Code.

Telecommunications service means the service of which the object is the transmission of any two-way interactive electronic or electromagnetic communications including, but not limited to, voice, image, data and any other information, by the use of any means but not limited to, wire, cable, fiber optical cable, microwave, radio wave, Voice over Internet Protocol (VoIP), or any combinations of such media, including any form of mobile two-way communication.

Television and entertainment services means audio or visual content, that can be transmitted electronically by any means, for which a charge is imposed.

Therapeutic device means devices, appliances, or related accessories that correct or treat a human physical disability or surgically created abnormality.

Total tax liability means the total of all tax, penalties, and/or interest owed by a taxpayer and shall include sales tax collected in excess of such tax computed on total sales.

Transient / temporary sale means a sale by any person who engages in a temporary business of selling and delivering goods within the city, for a period of no more than seven consecutive days.

Transient / temporary vendor means any person who engages in the business of transient/ temporary sales.

Use means the exercise, for any length of time by any person within the city of any right, power or dominion over tangible personal property or services when rented, leased or purchased at retail from sources either within or without the city from any person or vendor or used in the performance of a contract in the city whether such tangible personal property is owned or not

owned by the taxpayer. Use also includes the withdrawal of items from inventory for consumption.

Use tax means the tax paid or required to be paid by a consumer for using, storing, distributing or otherwise consuming tangible personal property or taxable services inside the city.

Wholesale sales means a sale by wholesalers to retailers, jobbers, dealers or wholesalers for resale and does not include a sale by wholesalers to users or consumers not for resale; latter types of sales shall be deemed to be retail sales and shall be subject to the provisions of this chapter.

Wholesaler means any person doing an organized wholesale or jobbing business and selling to retailers, jobbers, dealers or other wholesalers, for the purpose of resale, and not for storage, use, consumption, or distribution.

(Ord. No. 2139, § 1, 7-23-2020; Ord. No. 2055, § 1, 4-27-2017; Ord. 1864, § 1, 2010; Ord. 1717, §§ 1, 2, 2005; Ord. 1139, § 2, 1991; Ord. 1125, § 2, 1991; Ord. 1118, § 2, 1991; Ord. 1053, § 2, 1988; Ord. 819, § 2(part), 1979)

Chapter 3.03

LEVY

3.03.010 Rate, imposition and collection, distribution.

(a) *Sales tax.* There is levied a tax upon all sales of tangible personal property and services specified in subsection 3.03.030(a). The rate levied shall be three percent of the purchase price.

- (1) All sales except automotive vehicles are consummated at the place of business of the retailer unless the property sold is delivered by the retailer, his agent, a common carrier, or by mail. In the event of such delivery, the sale is consummated at the place of delivery.
- (2) Sales of automotive vehicles are consummated at the place of residence of the purchaser, as determined by the automotive vehicle registration laws of the State of Colorado (C.R.S. Title 42). The county

clerk of the county in which registration occurs is authorized to collect such tax for the city prior to or at the time of registration.

(b) *Use tax.* There is levied a tax upon the privilege of using, storing, distributing, or otherwise consuming in the city any article of tangible personal property or taxable services specified in subsection 3.03.030(b). The rate levied shall be three percent of the purchase price.

(c) *Collection.* Any retailer engaged in business in the city shall collect tax and remit it to the city in accordance with the schedule set forth in this title and procedures and regulations approved and specified by the finance director. The failure of such retailer to collect and remit the taxes shall not relieve the purchaser or consumer from liability to the city for said taxes.

(d) *Sales and use tax capital improvements fund.* The City of Golden "Sales and Use Tax Capital Improvements Fund" is hereby created. Such fund shall not be available to be pledged or expended for any general municipal purposes. One-third of the sales and use taxes collected by virtue of this title shall immediately be distributed to and deposited in the "sales and use tax capital improvements fund". Funds deposited to the "sales and use tax capital improvements fund" shall be used solely to provide for capital needs throughout the City of Golden as determined by the public capital program budgeting process.

(e) *Applicability to banks.* The provisions of this title shall apply to national banking associations and to banks organized and chartered under State of Colorado law.

(f) *Community marketing fund.* The City of Golden "Community Marketing Fund" is hereby reauthorized for an additional six years from its original creation by Ordinance 1510 in 2000, for the period of January 1, 2001, through December 31, 2031. Such fund shall not be available to be pledged or expended for any purpose except as provided herein. For the period beginning January 1, 2001 (for sales tax remittances due to the city in February 2001) and extending until December 31, 2031 (for sales tax remittances due

to the city in January 2032) the two and one-half percent vendors fee credit suspended by Ordinance 1510, as extended by Ordinances 1749, 1875, 2013, 2144, and 2267 shall immediately upon collection by the city be distributed to and deposited in the Community Marketing Fund. Funds deposited in the Community Marketing Fund shall be used solely to market the community utilizing the following activities, as described in, and limited by the management requirements contained in section 2.74.070.

- (1) Development and updating a community marketing plan to market Golden as a top tier community to live in and visit to directly benefit retail sales, restaurants, lodging, entertainment venues, cultural entities and area attractions.
- (2) Development and updating of an implementation strategy for marketing to residents, regional visitors and out-of-state travelers.
- (3) Public relations activities, promotional activities, direct advertising, and limited financial support for certain events and activities recommended by the plan.

(Ord. No. 2267, § 2, 5-27-2025; Ord. No. 2144, § 1, 8-27-2020; Ord. No. 2055, § 2, 4-27-2017; Ord. No. 2013, § 1, 6-25-2015; Ord. 1908, § 3, 2001; Ord. 1875, § 1, 2010; Ord. 1749, § 1, 2006; Ord. 1717, § 3, 2005; Ord. 1510, 2000; Ord. 1180, § 1, 1993; Ord. 1144, § 1(part), 1992; Ord. 1121, § 8, 1991; Ord. 1053, § 8, 1988; Ord. 823, § 1, 1979; Ord. 819, § 2(part), 1979)

3.03.020 Tax schedule.

The sales and use taxes imposed in this title shall be collected and remitted to the city in accordance with the following schedule:

<u>Purchase Price</u>	<u>Tax</u>
\$0.01—\$.18 inclusive	No tax
\$.19—\$.51 inclusive	\$.01
\$.52—\$.84 inclusive	\$.02
\$.85—\$1.00 inclusive	\$.03

For a purchase price in excess of \$1.00 the tax shall be three cents on each full dollar of the purchase price plus the tax shown on the schedule

contained in this section for the applicable fractional part of a dollar of each such purchase price.

(Ord. No. 2055, § 3, 4-27-2017; Ord. 1144, § 1(part), 1992; Ord. 1121, § 1, 1991; Ord. 819, § 2(part), 1979)

3.03.030 Transactions subject to tax.

(a) The sales tax levied by subsection 3.03.010(a) shall apply to the price of the sale or provision of the following:

- (1) Tangible personal property that is sold, leased or rented, whether or not such property has been included in a previous taxable transaction.
- (2) Telecommunication services. This includes all international, interstate and intrastate telecommunication services originating from or received on telecommunication equipment in the city, if the charge for the service is billed to an apparatus, telephone or account in the city, except that for mobile telecommunication services liability shall be imposed only when the users' place of primary use is within the city. For the purposes of this subsection, "place of primary use" means, as defined in C.R.S. 29-1-1002, as amended.
- (3) Installation in the city of equipment required to receive or transmit telecommunications service.
- (4) Upon all sales of food for home consumption, prepared food, or food for immediate consumption. Except as provided in section 3.03.040, upon the amount paid for food and drink served or furnished in or by restaurants, cafes, lunch counters, cafeterias, hotels, drug stores, social clubs, nightclubs, cabarets, resorts, snack bars, caterers, bars, carry-out shops and other like places of business at which prepared food, meals or drink is regularly served, including mobile facilities. Cover charges shall be included as a part of the amount paid for such food or drinks.

- (5) Gas, electricity, steam coal, wood, fuel oil or coke furnished for domestic or commercial consumption.
- (6) Television and entertainment services including charges for service, installation, connection, or any similar charge.
- (7) Service of operators when furnished with the lease or rental of tangible personal property if such services are not separately stated.
- (8) Linen services.
- (9) Tangible personal property dispensed from currency or coin-operated devices.
- (10) Lodging services.
- (11) Pre-written (canned) software programs that are sold, licensed for use, subscribed to, leased or rented. Software programs are deemed to be used within the city if one of the following is true:
 - a. The end-user of the software program is engaged in business in the city or resides in the city while using or accessing the software; or
 - b. The server or other computer equipment upon which the software program, electronic files or electronic data reside or are maintained is located within the city.
- (12) Modified software that is sold, licensed for use, leased or rented, provided that if the cost of customization is separately calculated and stated from the cost of the pre-written (canned) software program, the cost of the modified component of the purchase price shall not be subject to the sales tax.
- (13) Software license fees.
- (14) Software maintenance agreements when:
 - a. The agreement is mandatory to maintain the right to use the associated software; or
 - b. The agreement includes software upgrades and the cost for upgrading is not separately calculated and stated from other aspects; or
- c. The agreement includes technical support and the cost associated with technical support is not separately stated or calculated.
- (15) Tangible personal property that is utilized by customers or patrons, while affixed to a building or premises and intended to be utilized in its current state (i.e. automated or self-serve car wash equipment, laundromat washers and dryers, bowling lanes and such properties) shall be subject to sales tax unless the business owner pays sales tax or subsequent use tax upon the purchase of the tangible personal property as further provided by subsection 3.03.030(b)(6).
- (16) Sales of tangible personal property by a retailer-contractor, when acting as a retailer, shall be subject to sales tax on the total sales price. Labor and installation charges are not taxable if separately stated. When a building permit is pulled, the retailer-contractor is considered to be acting as a contractor. When a building permit is not pulled, the retailer-contractor is considered to be acting as a retailer.
- (17) Software as a service.
- (18) Internet subscription services.
- (19) Data processing equipment.
- (20) Digital products.
- (21) Aircraft, aircraft parts, aircraft simulators, and aircraft simulator parts. The term aircraft includes unmanned aerial vehicles (UAVs or "drones") and any other similar unmanned flying craft.
- (22) Commercial shipping materials.
- (23) Prescription drugs for animals.
- (24) Prosthetic devices for animals.
- (25) The following recreation services including, but not limited to, billiards, bowling, coin operated amusement devices, video games, and video club memberships.
- (26) Rental of all or part of a facility for exclusive or private use, including room rentals.

- (27) Security system services.
- (28) Sound system services.
- (29) Therapeutic devices.

(b) The use tax levied by subsection 3.03.010(b) shall apply to the purchase price for the privilege of using, storing or consuming inside the city the following:

- (1) Tangible personal property, services and rights for all items described in subsection 3.03.030(a) above, acquired by purchase, license, lease or rental without payment of the sales tax.
- (2) Tangible personal property purchased at wholesale or component parts purchased for manufacture which are subsequently used by the taxpayer, either personally or in business, including, but not limited to, goods given as samples or prizes for purposes of promoting business, sales or goodwill by persons engaged in business in the city.
- (3) Taxable services described in subsection 3.03.030(a) which are purchased without previous payment of the sales tax.
- (4) Automotive vehicles required under the provisions of Title 42 of the Colorado Revised Statutes to be registered at an address inside the city. The county clerk of the county in which the registration occurs is authorized to collect such tax for the city prior to or at the time of registration.
- (5) Construction materials.
- (6) Tangible personal property purchased to be affixed to a building or premises and intended to be utilized in that fashion (i.e. automated or self-serve car wash equipment, laundromat washers and dryers, bowling lanes, and such properties) and all materials, supplies and parts associated with such operation, unless the business owner elects to collect and remit sales tax on each transaction where the equipment is utilized by the customer or patron. Such election must be made by the due date of the initial use tax return and is irrevocable. The failure to pay sales tax or remit use tax on the initial use tax return due to the city shall be deemed as an election to collect and

remit sales tax on each transaction where the equipment is utilized by the customer or patron.

(Ord. No. 2055, § 4, 4-27-2017; Ord. 1864, §§ 2—4, 2010; Ord. 1764, §§ 1, 2, 2007; Ord. 1717, §§ 4, 5, 2005; Ord. 1597, §§ 1, 2, 2005; Ord. 1143, § 1(part), 1992; Ord. 1053, § 8, 1988; Ord. 969, § 1, 1984; Ord. 854, § 1, 1980; Ord. 823, § 1, 1979; Ord. 819, § 2(part), 1979)

3.03.040 Exemption from sales tax.

(a) The sales tax levied by subsection 3.03.010(a) shall not apply to the following:

- (1) Sales of automotive vehicles sold to nonresidents of the city for registration outside the city. It shall be unlawful to register an automotive vehicle outside the city with intent to avoid tax liability imposed by this title.
- (2) Sale of tangible personal property when both of the following conditions are met:
 - a. The sales are to individuals who reside or businesses which are located outside the city; and
 - b. The articles purchased are delivered to the purchaser outside the city by common carrier or by the conveyance of the seller or by mail, and such articles delivered are used outside the city.
- (3) Sale of the following medical items: prescription drugs for humans; insulin in all its forms dispensed pursuant to the direction of a licensed medical or dental practitioner; glucose usable for treatment of insulin reactions; urine and blood-testing kits and materials; insulin measuring and injecting devices, including hypodermic syringes and needles; prosthetic devices for humans; wheelchairs and hospital beds; drugs or materials when furnished by a licensed medical or dental practitioner as part of professional services provided to a patient; and correctable eyeglasses, contact lenses, or hearing aids. This exemption shall not encompass items purchased for use by medical and dental practitioners or medi-

cal facilities in providing their services, even though certain of those items may be packaged for single use by individual patients after which the item would be discarded. This exemption shall not include therapeutic devices.

- (4) Sales of cigarettes.
- (5) All direct sales to charitable organizations in the conduct of their regular charitable functions and activities, when billed to and paid for by the charitable organization.
- (6) All sales of construction and building materials to contractors and subcontractors for use in the building, erection, alteration or repair of structures, highways, roads, streets, and other public works owned or used by charitable organizations in the conduct of their regular charitable functions and activities.
- (7) All direct sales to the United States government, the State of Colorado, its departments or institutions, and the political subdivisions thereof in their governmental capacities only, when billed to and paid for by the governmental entity.
- (8) All sales which the city is prohibited from taxing under the Constitution or laws of the United States, or the Constitution of the State of Colorado.
- (9) Tangible personal property sold to a public utility company or railroad doing business both inside and outside the city, for use in its business operations outside the city, even though delivery thereof is made inside the city.
- (10) The sale of motor fuels upon which there has been accrued or paid the tax prescribed by Article 27 of Title 39 of the Colorado Revised Statutes.
- (11) The sale of cattle, sheep, lambs, poultry, fish for stock purposes, swine and goats; and the sale of mares and stallions for breeding purposes.
- (12) All sales of feed for livestock or poultry and all sales of seeds to agricultural producers who sell the crops resulting from the propagation of such seeds or use such crops as feed for livestock or poultry.
- (13) All wholesale sales.
- (14) Sales of tangible personal property to a person engaged in the business of manufacturing, compounding for sale, profit or use, any article, substance or commodity:
 - a. Which tangible personal property is actually and factually transformed by the process of manufacturing or compounding; and
 - b. Which tangible personal property becomes by the manufacturing or compounding process, a necessary and recognizable ingredient, component and constituent part of the finished product; and
 - c. Whose physical presence in the finished product is essential to the use thereof in the hands of the ultimate consumer.
 - d. With regard to the sale of tangible personal property sold to a person engaged in the business of manufacturing or compounding for sale, profit or use of food products, such tangible personal property is exempt from taxation under this section when:
 - 1. It is intended that such property become an integral or constituent part of a food product which is intended to be sold ultimately at retail for human consumption; or
 - 2. Such property, whether or not it becomes an integral or constituent part of a food product, is a chemical, solvent, agent, mold skin casing, or other material, is used for the purpose of producing or inducing a chemical or physical

- change in a food product or is used for the purpose of placing a food product in a more marketable condition and is directly utilized and consumed, dissipated, or destroyed, to the extent it is rendered unfit for further use, in the processing of a food product which is intended to be sold ultimately at retail for human consumption.
- (15) Sales of tangible personal property for use as "commercial packaging materials".
 - (16) Sale of tangible personal property purchased exclusively for rental or leasing inventory, provided that such property is not otherwise used for the purchaser's general business or personal use. A sales tax is due upon the rental or leasing of such property regardless of whether a sales or use tax has been paid upon a previous purchase of the property.
 - (17) Labor sold with tangible personal property, if such labor is stated separately on the invoice from the tangible personal property sold; except that manufacturing or fabricating or other processing labor is never exempt.
 - (18) Sales, licensing, lease, or rental of custom software programs.
 - (19) The sale of construction materials, if such materials are picked up by the purchaser, and if the purchaser of such materials presents to the retailer a building permit, or other documentation acceptable to the city, which evidences that a use tax on such materials has been paid or is required to be paid to the city or a municipality.
 - (20) The sale of food that is purchased by the medium of exchange commonly known as "food stamps".
 - (21) The sale of food as defined in Section 1786 of Title 42 of the United States Code as of, and as it may be amended after, October 1, 1987, that is purchased with vouchers, checks or similar certificates of exchange for the "Special Supplemental Food Program" for women, infants and children.
 - (22) Forty-eight percent of the purchase price of factory built housing, as such housing is defined in C.R.S. 24-32-703(3).
 - (23) Newspapers, newsprint and printer's ink used to produce newspapers.
 - (24) Preprinted newspaper supplements.
 - (25) Garage sales and online garage sales, provided that such sales are conducted no more than three times a year.
 - (26) Sales and purchases of electricity, coal, gas, fuel oil, steam, or coke for use in processing, manufacturing, mining, refining, irrigation, building construction, telegraph, telephone, and radio communications, street and railroad transportation services and all industrial uses.
 - (27) Sales of freestanding solid fuel heating appliances, pre-fabricated fireplaces, gas log units or such similar heating appliances for residential dwelling places, or units which comply with all applicable laws, rules, regulations and requirements related to "clean air" standards, and which replace existing fireplaces, freestanding solid fuel heating appliances, pre-fabricated fireplaces or other such heating appliances which do not comply with said law.
 - (28) "Telecommunications service" under the following conditions:
 - a. Separately stated software that constitutes computer processing applications used to act on the information to be transmitted; or
 - b. Carrier access service, interstate or international WATTS/800 service and interstate or international private communication services shall be exempt from taxation; or

- c. Telecommunication services sold for resale to other persons for the purpose of providing telecommunication services to the final end user.

(29) The following recreational services: Health/athletic club memberships and golf greens fees.

(30) The retail delivery fee consisting of the community access retail delivery fee imposed in C.R.S. 24-38.5-303(7), the clean fleet retail delivery fee imposed in C.R.S. 25-7.5-103(8), the clean transmit retail delivery fee imposed in C.R.S. 43-4-1203(7), the retail delivery fee imposed in C.R.S. 43-4-218(3), the bridge and tunnel retail delivery fee imposed in C.R.S. 43-4-805(5)(g.7), and the air pollution mitigation retail delivery fee imposed in C.R.S. 43-4-1303(8), as such sections existed on June 17, 2021.

(31) The carryout bag fee imposed in C.R.S. 25-17-505, as such section existed on July 6, 2021.

(b) The city's sales tax shall not apply to the sale of tangible personal property or the furnishing of services if the transaction was previously subjected to a sales or use tax lawfully imposed on the purchaser or user by another statutory or home rule municipality equal to or in excess of the sales tax required to be paid pursuant to this title. A credit shall be granted against the city's sales tax with respect to such transaction equal in amount to the lawfully imposed municipal sales or use tax previously paid by the purchaser or user to the other municipality. The amount of the credit shall not exceed the amount of the sales tax required to be paid pursuant to this title. This exemption shall be denied if the tax paid to another municipality was not legally due under the laws of the municipality. This exemption shall be denied for subsequent transactions within the city, including, but not limited to, rentals and leases of the tangible personal property.

(c) The list of exemptions shall not be increased by implication or similarity.
(Ord. No. 2194, § 2, 8-23-2022; Ord. No. 2055, § 5, 4-27-2017; Ord. 1864, § 6, 2010; Ord. 1717,

§ 6, 2005; Ord. 1217, 1995; Ord. 1180, § 2, 1993; Ord. 1141, § 1(part), 1992; Ord. 1053, § 9, 1988; Ord. 823, § 2, 1979; Ord. 819, § 2(part), 1979)

3.03.050 Exemption from use tax.

(a) The use tax levied by subsection 3.03.010(b) shall not extend or apply to the following:

(1) The use, storage or consumption of tangible personal property the sale of which would be exempt from the sales tax.

(2) The storage of construction materials.

(3) The use or consumption of tangible personal property which occurs more than three years after the most recent sale of such property, if within the three years following such sale, the property has been significantly used within the State of Colorado for the principal purpose for which it was purchased.

(4) The storage, use or consumption of automotive vehicles if the owner is or was, at the time of purchase, a nonresident of the city and he/she purchased the vehicle for use outside the city, and if the vehicle was previously registered, titled, and licensed outside the city. The use of an automotive vehicle in conjunction with a business located within the city shall not be exempt by reason of the storage of said automotive vehicle outside the city.

(5) The retail delivery fee consisting of the community access retail delivery fee imposed in C.R.S. 24-38.5-303(7), the clean fleet retail delivery fee imposed in C.R.S. 25-7.5-103(8), the clean transmit retail delivery fee imposed in C.R.S. 43-4-1203(7), the retail delivery fee imposed in C.R.S. 43-4-218(3), the bridge and tunnel retail delivery fee imposed in C.R.S. 43-4-805(5)(g.7), and the air pollution mitigation retail delivery fee imposed in C.R.S. 43-4-1303(8), as such sections existed on June 17, 2021.

(6) The carryout bag fee imposed in C.R.S. 25-17-505, as such section existed on July 6, 2021.

(b) The city's use tax shall not apply to the storage, use or consumption of any article of tangible personal property the sale or use of which has already been subjected to a sales or use tax of another statutory or home rule municipality legally imposed on the purchaser or user equal to or in excess of the use tax required to be paid pursuant to this title. A credit shall be granted against the city's use tax with respect to the person's storage, use or consumption in the city of tangible personal property, the amount of the credit to equal the tax paid by the purchaser or user by reason of the imposition of a sales or use tax of the previous municipality on the purchase or use of the property. The amount of the credit shall not exceed the amount of the use tax required to be paid pursuant to this title. This exemption shall be denied if the tax paid to another municipality was not legally due under the laws of the municipality. This exemption shall be denied for subsequent transactions within the city, including, but not limited to, rentals and leases of the tangible personal property.

(c) No use tax shall be due on the purchase of construction materials used in construction projects undertaken and managed directly by the city.

(d) The list of exemptions shall not be increased by implication or similarity.
(Ord. No. 2194, § 3, 8-23-2022; Ord. No. 2055, § 6, 4-27-2017; Ord. 1864, 2010; Ord. 1180, § 3, 1993; Ord. 1144, § 1(part), 1992)

3.03.060 Proration of use tax for certain construction equipment.

(a) Construction equipment that is located within the boundaries of the city for a period of more than 30 consecutive days shall be subjected to the full applicable use tax of the city.

(b) Construction equipment that is located within the boundaries of the city for a period of 30 consecutive days or less shall be subjected to the city's use tax in an amount calculated as follows: The purchase price of the equipment shall be multiplied by a fraction, the numerator of which is one and the denominator of which is 12, and the result shall be multiplied by the use tax rate imposed pursuant to this title.

(c) Where the provisions of subsection 3.03.060(b) are utilized, the credit provisions of section 3.03.050 shall apply at such time as the aggregate sales and use taxes legally imposed by and paid to other statutory and home rule municipalities on any such equipment equal the amount of the use tax imposed pursuant to this title.

(d) In order to utilize the provisions of subsection 3.03.060(b), the taxpayer shall comply with the following procedure:

- (1) Prior to or on the date that the equipment is located within the boundaries of the city, the taxpayer shall file with the finance director an equipment declaration. Such declaration shall state the dates on which the taxpayer anticipates that the equipment shall be located within and removed from the boundaries of the city, shall include a description of each such anticipated piece of equipment, shall state the actual or anticipated purchase price and shall include such other information as reasonably deemed necessary by the city.
- (2) The taxpayer shall file an amended equipment declaration with the city reflecting any changes in the information contained in any previous equipment declaration no less than once every 90 days after the equipment is brought into the boundaries of the city, or, for equipment that is brought into the boundaries of the city for a project of less than 90 days duration, no later than ten days after substantial completion of such project.
- (3) The taxpayer need not report on any equipment declaration any equipment for which the purchase price was under \$2,500.00.

(e) If the equipment declaration is given as provided in subsection 3.03.060(d), then as to any item of construction equipment for which the customary purchase price is less than \$2,500.00 that was brought into the boundaries of the city temporarily for use on a construction project, it shall be presumed that the item was purchased in a jurisdiction having a local sales

or use tax as high as the use tax imposed pursuant to this title and that such local sales or use tax was previously paid. In such case, the burden of proof in any proceeding before the city, the executive director of the Colorado Department of Revenue or the District Court shall be on the city to prove that such local sales or use tax was not paid.

(f) If the taxpayer fails to comply with the provisions of subsection 3.03.060(d), then the taxpayer may not utilize the provisions of subsection 3.03.060(b) and shall be subject to the provisions of subsection 3.03.060(a). Substantial compliance with the provisions of subsection 3.03.060(d) shall allow the taxpayer to utilize the provisions of subsection 3.03.060(b).

(Ord. 1717, § 7, 2005; Ord. 1144, § 1(part), 1992; Ord. 1121, § 7, 1991; Ord. 998, § 1(part), 1985)

3.03.070 Exemptions, burden of proof.

(a) The burden of proving that any taxpayer is exempt from collecting or paying sales tax shall be on the taxpayer.

(b) The burden of proving that any consumer is exempt from paying the use tax shall be on such consumer.

(Ord. 1144, § 1(part), 1992; Ord. 1053, §§ 13, 14, 1988; Ord. 819, § 2(part), 1979)

3.03.080 Credit sales.

Whenever an article or service is sold to a person who thereby is obligated to the vendor on an account, chattel paper, contract right, general intangible, or a writing which supports a right to the payment of a purchase price, or any part thereof, the tax shall be based on the total purchase price and shall become immediately due and payable upon delivery of the article or service. No refund or credit shall be allowed to either party to a transaction in case of repossession by the vendor of collateral securing the purchase price or any part of the purchase price. (Ord. 1144, § 1(part), 1992)

3.03.090 Deposit for use tax on construction materials.

(a) Any person who shall build, construct or improve any building, dwelling or other structure or improvement to realty whatsoever, including

underground improvements, within the city, and who shall purchase the necessary construction materials needed therefore from any source either within or without the corporate limits of the city, shall remit a deposit to the city prior to the issuance of any building permit, such deposit to insure and indemnify the city for the amount of the use tax due within three years from the date of the issuance of the certificate of occupancy for the project. The amount of the deposit shall be based upon an estimate of the use tax to be payable on the construction materials needed therefore at the time that the respective building permit is obtained. The amount of the deposit for a particular project shall be determined by the city building official and shall equal three percent of 50 percent of the estimated value of the construction project. The building official may request the permit requestor to provide an estimated cost for the project to assist in the determination of the deposit amount. The taxpayer shall be issued a receipt identifying the property that is the subject of the deposit which receipt shall include the building permit number. The deposit shall be applied to any tax liability incurred under the provisions of this title.

(b) The taxpayer shall calculate the final cost of construction materials and reconcile it to the estimated cost provided when the permit was issued to determine the actual use tax due, and remit any outstanding balance within 180 days of the issuance of the certificate of occupancy. If the outstanding balance has not been remitted to the city, interest and penalty shall begin to accrue on the 180th day following the issuance of the certificate of occupancy.

(c) Any person who shall build, construct or improve any building, dwelling or other structure or improvement to realty whatsoever, including underground improvements, within the city, and who shall purchase the necessary construction materials needed therefore from any source inside or outside the corporate limits of the city shall keep and preserve all invoices and statements from all general contractors, subcontractors and suppliers of such construction materials, along with a summary sheet showing such purchases. Said document shall be preserved for a period of three years from the date of issuance of the

certificate of occupancy for the project. Any failure to preserve such statements and invoices shall be deemed a violation of this title.

(d) Within three years of the date of issuance of the certificate of occupancy for the project or the date of the final inspection by the city or its agent of the project, if it is determined by the city that the actual costs of the construction materials used for the project is greater than the estimate therefore and that the amount of the use tax deposit is not sufficient to provide for full payment of the use tax, then the taxpayer shall be so informed and any additional use taxes due must be received by the finance director within 30 days of such notification. Within three years of the date of the issuance of the certificate of occupancy for the project or the date of the final inspection by the city or its agent of the project, the taxpayer may request a refund of a portion of the deposit which the taxpayer can establish exceeds the use tax liability imposed by this title. If neither the city nor the taxpayer request such an adjustment of the use tax liability within the three-year period, then the amount of the deposit shall be deemed to equal the use tax liability.

(e) The amount of any use tax due and not paid on any construction materials used in such a construction project, together with the interest and penalties provided in this title, shall constitute a first and prior lien upon the real estate and the improvements located thereon so benefited by the use of such construction materials. A first and prior lien may also be placed upon the real or personal property of the contractor, developer, taxpayer, or authorized agent to whom the building permit was issued. Both liens shall be released only upon satisfaction of the entire lien amount from either or both parties, or as otherwise directed by the finance director. Except as otherwise provided herein, such liens shall be administered pursuant the relevant provisions in Chapter 3.08 of this title.

(Ord. 1939, 2013; Ord. 1867, § 9, 2010; Ord. 1717, §§ 8, 9, 2005; Ord. 1144, § 1(part), 1992)

3.03.100 Acquisition, inception or cessation of business.

(a) *Acquisition of an existing business.*

(1) *Seller's responsibilities.* Any person engaged in business in the city who sells

such business shall file a final return. The reporting period for such return shall end on the date of the transfer of ownership of the business.

(2) *Purchaser's responsibilities.*

a. Any person who purchases an existing business shall be responsible for determining the total tax liability of that business and shall withhold from the initial purchase payment an amount sufficient to cover any such tax liability, unless the former owner produces a receipt from the city showing that all tax due has been paid or a certificate from the city that there is no tax due.

b. Any amount so withheld shall be paid to the city within ten days of the date of the sale of the business.

c. Any purchaser who fails to withhold such tax due or fails to pay to the city the amount so withheld within the ten-day period allowed, shall, as well as the seller, be held liable for any unpaid tax due.

(b) *Inception of business; initial use tax.* Any person who purchases or establishes a business inside the city shall file an initial use tax return.

(1) *Existing businesses.* Use tax shall be due on tangible personal property, except inventory held for lease, rental or resale, which is acquired with the purchase, transfer of ownership, or any other form of acquisition of a business. The tax shall be based on the price of such property as recorded in the bill of sale or agreement and constituting a part of the total transaction at the time of the sale or transfer, provided the valuation is as great or greater than the fair market value of such property. If the fair market value of the property is greater than the price recorded in the bill of sale or agreement, then the fair market value of the property shall be the basis for calculating the amount of tax due. Such tax shall be reported on an initial use tax return.

- (2) *New businesses.* Use tax shall be due on the price of all tangible personal property, except inventory held for lease, rental or resale, which is purchased for use inside the city. Such tax shall be reported on the initial use tax return.
- (3) *Exceptions.* In the case of businesses where the tangible personal property purchased is or shall be affixed to a building or premises and intended to be utilized in that fashion (i.e. automated or self serve car wash equipment, laundromat washers and dryers, bowling lanes, and such properties), the business owner shall elect to either pay initial use tax on such equipment, or collect and remit sales tax on each transaction where the equipment is utilized by the customer or patron. Such election must be made by the due date of the initial use tax return and shall be submitted with the return and is irrevocable. The failure to pay sales tax on the purchase of equipment, or remit use tax on the initial return due to the city, shall be deemed as an election to collect and remit sales tax on each transaction where the equipment is utilized by the customer or patron.

(c) *Cessation of business.* Every person engaged in business in the city who quits doing business in the city shall file a final return. The reporting period for such return shall end on the last day of business in the city.

(Ord. 1964, § 10, 2010; Ord. 1764, § 3, 2007; Ord. 1144, § 1(part), 1992; Ord. 819, § 2(part), 1979)

Chapter 3.04

TAXPAYER RESPONSIBILITIES

3.04.010 Retailer responsible for collection and payment of tax.

Every retailer engaged in business in the city shall be liable and responsible for payment of an amount equal to the taxable sales multiplied by the rate established by section 3.03.101.

- (a) *Tax added to price.* Except as provided below, retailers shall add the sales tax

imposed by this title, to the price, showing such tax as a separate and distinct item. Except as provided in this subsection, no retailer shall advertise or hold out or state to the public or to any consumer, directly or indirectly, that the sales tax or any part thereof shall be assumed or absorbed by the retailer, or that it will not be added to the price, or if added, that it or any part thereof shall be refunded.

- (1) Retailers selling malt, vinous or spirituous liquors by the drink may elect to include in the purchase price the sales tax levied under this title. Once having made the election and having reported such decision to the city on such forms as are prescribed by the finance director, the retailer must continue to impose and collect the tax in the manner elected unless granted authorization to change by the finance director.
- (2) Sales tax may be included in the price of items sold from coin operated devices or the price of utilizing such devices.
- (b) *Tax constitutes debt.* Any tax added to the price by a retailer shall constitute a debt from the purchaser to the retailer until paid and shall be recoverable at law in the same manner as other debts.
- (c) *Excess tax.* No retailer shall retain any sales tax collected in excess of the tax computed, but shall report such excess collections on the return for the period in which it was collected and include it in the calculation of tax due.
- (d) *Disputed tax.* If a dispute arises between a retailer and a purchaser as to whether or not the sale of a service or commodity is exempt from taxation, nevertheless, the retailer shall collect and the purchaser shall pay such tax. The purchaser may then submit a claim for refund to the city

within 60 days of the date of purchase. Any such tax refunded by the city will be paid directly to the purchaser.

- (e) *Electronic database.* Any retailer that collects and remits sales tax, as provided in Chapter 3.04 of the Golden Municipal Code, may use an electronic database of state addresses that is certified by the Colorado Department of Revenue pursuant to C.R.S. 39-26-105.3, to determine the jurisdiction to which tax is due.

- (1) Any retailer that uses the data contained in such a certified electronic database to determine the jurisdiction to which tax is due shall be held harmless for any tax, penalty, or interest due the city that otherwise would be due, solely as a result of the error in the electronic database; provided that the retailer has the burden to prove to the city that it used the most current information available in such electronic database on the date the sale occurred.
- (2) Pursuant to subsection 3.04.060(a) of the Golden Municipal Code, each retailer shall keep and preserve such records to prove to the city that it used the most current information available in the electronic database on the date that the sale occurred.
- (3) Notwithstanding the above, if the error in collecting and remitting is a result of a false or fraudulent return, pursuant to subsection 3.08.060(d) of the Golden Municipal Code, the provisions of this section shall not apply.

(Ord. 1779, 2007; Ord. 1144, § 1(part), 1992; Ord. 1121, § 2, 1991; Ord. 1053, §§ 13, 14, 1988; Ord. 819, § 2(part), 1979)

3.04.020 Trust status of tax in possession of retailer.

All sales or use tax collected by any retailer or contractor shall be the property of the city and remain public money in the hands of such retailer

or contractor, who shall hold the same in trust for the sole use and benefit of the city until paid to the city.

(Ord. 1864, § 11, 2010; Ord. 1144, § 1(part), 1992)

3.04.030 Filing returns, due date.

(a) Every taxpayer, except transient/temporary vendors, shall file a return, whether or not tax is due, and remit any tax due to the city on or before the twentieth day of the month following the reporting period. Transient/temporary vendors shall file a return and remit any tax due to the city within ten days of the final date of the sale.

(b) A retailer engaged in business in the city at two or more locations, whether inside or outside the city, who collects sales tax, may file one return for all such locations, when accompanied by a supplemental schedule showing the gross sales and net taxable sales for each location.

(c) Any consumer reporting use tax due from two or more locations may file one return for all such locations.

(d) For good cause shown in a written request of a taxpayer the finance director may extend the time for making returns and paying tax due.

(e) No person shall make any false statement in connection with a return.
(Ord. 1144, § 1(part), 1992; Ord. 1121, § 2, 1991; Ord. 1053, §§ 13, 14, 1988; Ord. 819, § 2(part), 1979)

3.04.040 Reporting periods.

(a) Unless otherwise approved by the finance director, taxpayers must file returns and pay tax as follows:

- (1) A taxpayer whose monthly tax due is \$60.00 or more shall file returns and pay tax monthly.
- (2) A taxpayer whose monthly tax due is less than \$60.00 may pay tax quarterly.

(b) The reporting period for a final return shall end on the date of the transfer of ownership of the business.

(c) The reporting period for an initial use tax return shall be the calendar month of the date of sale if a business was purchased or opening day of business if a business is new.

(d) The finance director may, upon written request of the taxpayer, authorize the filing of returns and payment of taxes at such intervals as will better accommodate the convenience of the taxpayer, if, in the sole discretion of the finance director, the collection of the tax will not be jeopardized or otherwise cause administrative hardship to the city by reason of the granting of such requests.

(e) Authorization for such alternate method of reporting may be revoked by the finance director if the taxpayer becomes delinquent or if the finance director otherwise determines in his/her sole discretion that collection of the tax will be jeopardized or otherwise cause administrative hardship to the city by reason of the alternate filing procedure. Immediately following notice of such revocation, the taxpayer shall file returns and pay tax as otherwise required by this title. (Ord. 1144, § 1(part), 1992)

3.04.050 Deduction and credits.

(a) *Deductions from gross sales.* If included in reported gross sales, and submitted within three years of the date of the original sale, the following are deductible from gross sales:

- (1) *Refunds.* The price of tangible personal property or taxable services returned by a purchaser when the price and the sales tax collected are refunded in cash or by credit.
- (2) *Bad debts charged off.* Taxable sales which are represented by accounts not secured by conditional sales contract, rental purchase contract or security interest and which are found to be worthless and are actually and properly charged off as bad debts for the purpose of the income tax imposed by the laws of the State of Colorado; provided, however, that if such amounts are thereafter collected by the taxpayers, a tax shall be paid on the amounts collected.

(b) *Vendors fee.* Effective January 1, 2032, two and one-half percent of the sum of the sales tax remitted may be taken as a credit against the sales tax liability of the retailer to cover expenses in collecting and remitting said taxes; but if the retailer is delinquent in remitting the sales tax, the retailer shall not be allowed a credit for any amount.

(Ord. No. 2267, § 3, 5-27-2025; Ord. No. 2144, § 2, 8-27-2020; Ord. No. 2013, § 2, 6-25-2015; Ord. 1875, § 2, 2010; Ord. 1864, § 12, 2010; Ord. 1749, § 2, 2006; Ord. 1510, 2000; Ord. 1144, § 1(part), 1992)

3.04.060 Duty to keep books and records.

(a) Every person engaged in business in the city shall keep and preserve for at least three years after the date of the taxable transaction suitable records, to include but not limited to, numbered sales invoices or dated sales register tapes, purchase invoices, or other relevant source documents, which would allow the accurate determination of the tax due. The date of such taxable transaction for construction projects inside the city shall be the date that the final certificate of occupancy is issued.

(b) Every person who uses construction equipment inside the city shall keep and preserve for at least three years after the final certificate of occupancy for such project is issued, records of the time each piece of construction equipment was located inside the city and any sales or use tax paid on such construction equipment.

(c) All such records of the taxpayer shall be open for examination and audit by the finance director. The taxpayer shall produce all such records, if required by the finance director, at a suitable time and place within the city, to be designated by the finance director. If it is found necessary by the finance director that the examination and audit of such records take place outside the city, the taxpayer shall reimburse the city for all costs and expenses incurred by the city to conduct the examination and audit. (Ord. 1180, § 4, 1993; Ord. 1144, § 1(part), 1992; Ord. 1121, § 2, 1991; Ord. 1053, §§ 13, 14, 1988; Ord. 819, § 2(part), 1979)

3.04.070 Marketplace sales.*(a) Obligation to collect tax.*

- (1) A marketplace facilitator engaged in business in the city is required to collect and remit sales tax on all taxable sales made by the marketplace facilitator, or facilitated by it for marketplace sellers or multichannel sellers to customers in the city, whether or not the marketplace seller for whom sales are facilitated would have been required to collect sales tax had the sale not been facilitated by the marketplace facilitator.
- (2) A marketplace facilitator shall assume all the duties, responsibilities, and liabilities of a retailer under this title. Marketplace facilitators shall be liable for the taxes collected from marketplace sellers or multichannel sellers. The city may recover any unpaid taxes, penalties, and interest from the marketplace facilitator that is responsible for collecting on behalf of marketplace sellers or multichannel sellers.
- (3) The liabilities, obligations, and rights set forth under this title are in addition to any duties and responsibilities of the marketplace facilitator imposed under this title, if it also offers for sale tangible personal property, products, or services through other means.
- (4) A marketplace seller shall be subject to all of the same licensing, collection, remittance, filing and recordkeeping requirements as any other retailer under this article for retail sales made on its own behalf and not facilitated by or through a licensed marketplace facilitator in a marketplace.

(b) Marketplace seller relief. A marketplace seller, with respect to sales of tangible personal property, products, or services made in or through a marketplace facilitator's marketplace, does not have the liabilities, obligations, or rights of a retailer under this title, if the marketplace seller can show that such sale was facilitated by a marketplace facilitator:

- (1) With whom the marketplace seller has a contract that explicitly provides that the

marketplace facilitator will collect and remit sales tax on all sales subject to tax under this article; or

- (2) From whom the marketplace seller requested and received in good faith a certification that the marketplace facilitator is registered to collect sales tax and will collect sales tax on all sales subject to tax under this article made in or through the marketplace facilitator's marketplace.

(c) Auditing. With respect to any sale, the city shall solely audit the marketplace facilitator for sales made by marketplace sellers or multichannel sellers but facilitated by the marketplace. The city will not audit or otherwise assess tax against marketplace sellers or multichannel sellers for sales facilitated by a marketplace facilitator.

(d) No retroactive application. The obligations to collect and remit the sales and use tax required by this title are applicable at the effective date of the ordinance from which this section was derived.

(Ord. No. 2139, § 2, 7-23-2020)

Chapter 3.05 LICENSING

3.05.010 License required.

(a) No person, including charitable organizations and transient/temporary vendors, shall establish, engage or be engaged in the operation, conduct or carrying on of any trade, profession, business, privilege, occupation or calling of any kind within the city without having first obtained a sales and use tax license from the city in the manner provided in this chapter. If a person owns or operates more than one business or has more than one business location, a separate license for each business or location must be obtained. Each license shall be posted in a conspicuous place at the business location for which it is issued.

(b) All persons required to be licensed under this chapter that permit a transient/temporary vendor or a "food truck," as defined in chapter 10.04 of this Code, to operate on or at the location identified on its city-issued sales and use tax license shall require such transient/temporary vendor or food truck to provide proof that it possesses a valid current sales and use tax license issued by the city as a condition of permission to operate at that location.

(c) Any person required to be licensed under this chapter shall provide the finance director with information identifying any food truck or transient/temporary vendor authorized to operate on or at the location identified on its sales and use tax license before such food truck or transient/temporary vendor commences operations at that location. The person may provide such information by any of the following means:

- (1) Posting on the person's website;
- (2) Posting at the location identified on the person's sales and use tax license in a manner that is conspicuous and visible to the public from the exterior of the premises; or
- (3) Providing the information to the finance director upon request.

(Ord. No. 2208, § 2, 5-9-2023; Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991; Ord. 1053, § 6, 1988; Ord. 1041, § 1, 1988; Ord. 819, § 2(part), 1979)

3.05.020 Application fee; period of license.

(a) Applications for a sales and use tax license shall be made to the finance director upon forms prescribed by the finance director. Applicants shall provide such documents as are reasonably requested by the finance director. It is unlawful for any person to make any false statement or representation in connection with any application for a license under this chapter. Application from temporary/transient vendors must be received 24 hours in advance of the conduct of sales.

(b) Licenses shall expire at midnight on December 31 of each even-numbered calendar year, provided however, that no license shall be issued to temporary/transient vendors for a period of more than 30 days.

(c) The license fee is \$20.00. No license shall be issued until the required fee has been paid in full. Applicants issued a license for a period of less than one year shall be charged a license fee of \$10.00.

(d) Prior to the issuance of a license to a transient/temporary vendor:

- (1) The applicant shall deposit with the finance director \$50.00 in cash or certified funds. The deposit shall be posted to secure timely payment of any sales or use tax liability incurred in conjunction with the sale. The deposit may be applied towards the tax liability, provided, however that the deposit shall become non-refundable and be retained by the city as a penalty in the event that the transient/temporary vendor fails to timely file a return as provided in this chapter.
- (2) Issuance of a license to a transient/temporary vendor under this chapter shall not relieve such vendor from the responsibility for obtaining permission from respective property owners to set up displays and sell goods on private property, or from paying any fees as may be charged by charitable organizations who are conducting special events in association with a transient/temporary vendor.

(Ord. 1717, § 10, 2005; ord. 1187, 1993; Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991; Ord. 1041, § 1, 1988)

3.05.030 Exemptions.

(a) Charitable organizations are exempt from the license fee imposed in subsection 3.05.020(c); however, such organization shall provide the finance director with proof of its non-profit status.

(b) Any person having a valid license in accordance with the provisions of title 4 of the Golden Municipal Code or having paid for and

holding a valid contractor registration in accordance with the provisions of chapter 15.01 of the Golden Municipal Code, shall be exempt from the license fee imposed by this chapter.

(c) Transient/temporary vendors are exempt from the license fee imposed by this chapter.

(d) Transient/temporary vendors shall be exempt from the provisions of this chapter if all of the following conditions are met:

- (1) The transient/temporary sale is held as a part of a special event conducted by a charitable organization which is licensed under the provisions of this title;
- (2) The charitable organizations conducting the special event sponsors the transient/temporary vendor participating in the event; and
- (3) The charitable organization collects taxes and files tax returns for sales by all transient/temporary vendors which it sponsors, as required in accordance with this title.

When the charitable organization does not choose to sponsor the transient/temporary vendors at its special event, the charitable organization shall furnish information provided by the finance director to all non-sponsored transient/temporary vendors participating in the event informing said vendors of the requirements of this title.

(e) Any person renting less than five rooms, cottages, or apartments shall be exempt from all requirements of this chapter.

(f) Any retailer having only an economic nexus with the city and that either has not established a physical presence in the city or that has only incidental physical presence in the city shall be exempt from the provisions of section 3.05.010, subsections 3.05.020(b) and (c), and the license renewal provisions of section 3.05.040 of this chapter. Such retailer, including a retailer that has been issued a state standard retail license, shall furnish in writing to the finance director

contact information or additional information as required by the finance director pursuant to section 3.06.010 of this Code.

(Ord. No. 2217, § 2, 7-25-2023; Ord. No. 2139, § 3, 7-23-2020; Ord. 1739, 2006; Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991)

3.05.040 License renewal.

An application for renewal shall be submitted to the finance director on forms prescribed by the finance director prior to expiration of the existing license. Any application for renewal not timely filed shall be subject to a late charge of \$5.00 for each month or any portion of a month in which an application is not filed.

(Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991)

3.05.050 Issuance.

Licenses shall be issued by the finance director and each license shall state the name and address of the licensee, and issuance and expiration date.

(Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991)

3.05.060 Transferability.

No license issued under the provisions of this chapter shall be transferable except that a person may move its place of business. Upon moving a place of business a person shall notify in writing the finance director of such change.

(Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991)

3.05.070 Refunds where license is not issued.

If a license applicant withdraws an application after having paid the license fee, the finance director shall refund such fee to the applicant less an administrative fee of \$10.00.

(Ord. 1717, § 11, 2005; Ord. 1144, § 1(part), 1992; Ord. 1125, § 4, 1991; Ord. 1118, § 4, 1991)

3.05.080 License cancellation and revocation.

(a) *Cancellation.* The finance director may cancel any license upon written notice from the taxpayer that the taxpayer is no longer engaged in business in the city.

(b) *Revocation.* The finance director may, after a reasonable notice and after a full hearing, revoke the license of any person found to have violated any provision of this title.

(c) *Appeal.* Any person may appeal an order revoking their license in district court, pursuant to Rule 106(a)(4) of the Colorado Rules of Civil Procedures.

(Ord. 1144, § 1(part), 1992)

Chapter 3.06 ADMINISTRATION

3.06.010 Authority of the finance director.

The administration of this chapter is vested in the finance director.

- (a) *Forms and procedures.* The finance director shall prescribe forms and administrative procedures for the ascertainment, assessment and collection of the tax.
- (b) *Regulations.* The finance director may formulate for adoption by resolution of city council regulations to effectuate the purpose of this title.
- (c) *Administrative interpretations.* The finance director may, from time to time, issue administrative interpretations of the provisions of this title, as the director deems necessary or suitable to assist in ascertaining and assessing any tax or liability pursuant to this title. Such administrative interpretation shall be consistent with the intent and purposes of this title. Such administrative interpretation shall not, however, be binding upon any taxpayer or the finance director in conjunction with any hearing or appeal pursuant to Chapter 3.09 of the Golden Municipal Code.

(d) *Additional information.* The finance director may require any person to make additional returns, render statements, furnish records, or make information reports to determine whether or not such person is liable for payment or collection of the tax.

(e) *Subpoenas.* The finance director may issue a subpoena to command a person to attend and give testimony or to produce books, accounts and records.

(1) Any subpoena issued under the terms of this title shall be served as set forth in the Colorado Rules of Civil Procedure, including the payment of witness fees. When the witness is subpoenaed at the insistence of the city, such fees shall be paid by the city. When a witness is subpoenaed at the insistence of the taxpayer, the cost of service of the subpoena and the fee shall be paid by the taxpayer.

(2) It shall be unlawful to fail to attend, give testimony or to produce books, accounts and records as commanded in a duly issued and served subpoena. In addition to the imposition of penalties for violation of this section, the municipal court of the city is empowered to issue an order requiring compliance with the subpoena; said order enforceable by contempt proceedings.

(f) *Oaths.* The finance director is authorized to administer oaths and take testimony at the hearing.

(g) *Partial payments.* The finance director may accept any partial payment made and apply such payments towards the tax due. Deposit of such payments shall not in any way imply that the remaining balance is or has been abated.

(h) *Notices.* Notices required by this chapter shall be in writing and delivered in person, or sent by first class mail, postage paid,

to the last known address of the taxpayer, or sent by other verifiable delivery methods.

(Ord. 1864, § 14, 2010; Ord. 1638, 2003; Ord. 1144, § 1(part), 1992; Ord. 819, § 2(part), 1979)

3.06.020 Audit of records.

(a) For the purpose of ascertaining the correct amount of tax due from any taxpayer or person engaged in business in the city, the finance director, or a contract auditor as designated by the finance director, may conduct an audit by examining any relevant books, accounts and records of such person. During the course of an audit the finance director may, when the finance director deems appropriate, utilize a representative sample of the taxpayer's records to project the amount of tax deficiency or over payment, if any.

(b) *Coordinated audit procedure.* Any taxpayer licensed in this city pursuant to this title, and holding a similar sales tax license in at least four other Colorado municipalities that administer their own sales tax collection, may request a coordinated audit as provided herein.

- (1) Within 14 days of receipt of notice of an intended audit by any municipality that administers its own sales tax collection, including notice from this city, the taxpayer may provide to the finance director of this city, by certified mail, return receipt requested, or by other verifiable delivery method, a written request for a coordinated audit indicating the municipality from which the notice of intended audit was received and the name of the official who issued such notice. Such request shall include a list of those Colorado municipalities utilizing local collection of their sales tax in which that taxpayer holds a current sales tax license. The first notice of an intended

audit by any municipality that prompts the request for a coordinated audit shall toll the city's statute of limitations.

- (2) Except as provided in paragraph (6) of this section, any taxpayer that submits a complete request for a coordinated audit and promptly signs a waiver of Golden Municipal Code Section 3.08.060, may be audited by this city, solely at this city's discretion as determined by the finance director, after such request is submitted only through a coordinated audit involving all municipalities electing to participate in such an audit. The first notice of an intended audit by any municipality that prompts a request for a coordinated audit shall toll this city's statute of limitations. The taxpayer shall cooperate with the city to schedule the audit so that it may be completed in a timely manner. The taxpayer shall promptly provide all books and records requested by the city, which shall be open for examination and audit by the finance director. The taxpayer shall produce all such records, if required by the finance director, at the office of the finance director. Any delay caused by the taxpayer, or any lack of cooperation by the taxpayer that prevents this city from completing its audit within 12 months shall not prejudice the city and shall not preclude or otherwise prevent the city from completing its audit of the taxpayer.
- (3) If, at the discretion of the finance director, this city desires to participate in the audit of a taxpayer that submits a complete request for a coordinated audit pursuant to this subsection (b), the finance director shall so notify the finance director of the municipality whose notice of audit prompted the taxpayer's request within ten days after receipt of the taxpayer's request for a coordinated audit. The finance director shall then cooperate with other participating municipalities in the development of arrangements for the coordinated audit, including arrangement of the time during which the coordinated audit will be conducted, the period of time to be covered by the audit, and a coordinated notice to the taxpayer of those records most likely to be required for completion of the coordinated audit.
- (4) If the taxpayer's request for a coordinated audit was in response to a notice of audit issued by this city, this city's finance director shall facilitate arrangements between this city and other municipalities participating in the coordinated audit unless and until an official from some other participating municipality agrees to assume this responsibility. The finance director shall cooperate with other participating municipalities to, whenever practicable, minimize the number of auditors that will be present on the taxpayer's premises to conduct the coordinated audit on behalf of the participating municipalities. Information obtained by or on behalf of those municipalities participating in the coordinated audit may be shared only among such participating municipalities.
- (5) If the taxpayer's request for a coordinated audit was in response to a notice of audit issued by this city, this city's finance director shall, once arrangements for the coordinated audit between the city and other participating municipalities are completed, provide written notice to the taxpayer of which municipalities will be participating, the period to be audited and the records most likely to be required by participating municipalities for completion of the coordinated audit. The finance director shall also propose a schedule for the coordinated audit.
- (6) The coordinated audit procedure set forth in this section shall not apply:
 - a. When the proposed audit is a jeopardy audit;
 - b. When a taxpayer refuses to promptly sign a waiver of Golden Municipal Code Section 3.08.060; or

- c. When a taxpayer fails to provide a timely and complete request for a coordinated audit as provided in paragraph one of this section.

(c) *Coordinated audit initiated by the city.* The city, through the finance director or through a contract auditor at the direction of the finance director, may initiate and participate in a coordinated audit of a taxpayer, together with one or more Colorado municipalities that administer their own sales tax collection. (Ord. 1864, §§ 15, 16, 2010; Ord. 1717, § 12, 2005; Ord. 1180, § 5, 1993; Ord. 1144, § 1(part), 1992; Ord. 1139, § 4, 1991)

3.06.030 Intercity claims for recovery.

The intent of this section is to streamline and standardize procedures related to situations where tax has been remitted to the incorrect municipality. It is not intended to reduce or eliminate the responsibilities of the taxpayer or vendor to correctly pay, collect, and remit sales and use taxes to the city.

- (a) As used herein, "claim for recovery" means a claim for reimbursement of sales and use taxes paid to the wrong taxing jurisdiction.
- (b) When it is determined by the finance director that sales and use tax owed to the city has been reported and paid to another municipality, the city shall promptly notify the vendor that taxes are being improperly collected and remitted, and that as of the date of the notice the vendor must cease improper tax collections and remittances.
- (c) The city may make a written claim for recovery directly to the municipality that received tax and/or penalty and interest owed to the city, or, in the alternative, may institute procedures for collection of the tax from the taxpayer or vendor. The decision to make a claim for a recovery lies in the sole discretion of the city. Any claim for a recovery shall include a properly executed release of claim from the taxpayer and/or vendor releasing its claim to the taxes paid to the wrong

municipality, evidence to substantiate the claim, and a request that the municipality approve or deny in whole or in part, the claim within 90 days of its receipt. The municipality to which the city submits a claim for recovery may, for good cause, request an extension of time to investigate the claim, and approval of such extension by the city shall not be unreasonably withheld.

- (d) Within 90 days after receipt of a claim for recovery, the city shall verify to its satisfaction whether or not all or a portion of the tax claimed was improperly received, and shall notify the municipality submitting the claim in writing that the claim is either approved or denied in whole or in part, including the reasons for the decision. If the claim is approved in whole or in part, the city shall remit the undisputed amount to the municipality submitting the claim within 30 days of approval. If a claim is taxpayer, the check shall be made to the parties jointly. Denial of a claim for recovery may only be made for good cause.
 - (e) The city may deny a claim on the grounds that it has previously paid a claim for recovery arising out of an audit of the same taxpayer.
 - (f) The period subject to a claim for recovery shall be limited to the 36-month period prior to the date the municipality that was wrongly paid the tax receives the claim for recovery.
- (Ord. 1144, § 1(part), 1992; Ord. 1139, § 4, 1991)

3.06.040 Notice of sales and use tax ordinance amendment.

- (a) In order to initiate a central register of sales and use tax ordinances for municipalities that administer local sales tax collection, the finance director shall file with the Colorado Municipal League a copy of the city sales and use tax ordinance.
- (b) In order to keep current the central register of sales and use tax ordinances for municipalities that administer local sales tax collection, the

finance director shall file with the Colorado Municipal League prior to the effective date of any amendment a copy of each sales and use tax ordinance amendment enacted by the city.

(c) Failure of the city to file such ordinance or ordinance amendment pursuant to this section shall not invalidate any provision of the sales and use tax ordinance or any amendment thereto. (Ord. 1144, § 1(part), 1992; Ord. 1139, § 4, 1991; Ord. 819, § 2(part), 1979)

3.06.050 Participation in simplification meetings.

The finance director shall cooperate and participate on an as needed basis with permanent statewide sales and use tax committee convened by the Colorado Municipal League which is composed of state and municipal sales and use tax officials and business officials. Said committee will meet for the purpose of discussing and seeking resolution of sales and use tax problems which may arise.

(Ord. 1144, § 1(part), 1992; Ord. 1139, § 4, 1991)

3.06.060 Tax information confidential.

All specific information gained under the provision of this chapter which is used to determine the tax due from a taxpayer, whether furnished by the taxpayer or obtained through audit, shall be treated by the city and its officers, employees or legal representatives as confidential.

- (a) Except in accordance with the judicial order or as otherwise provided by law, the city manager and agents, clerks, and employees thereof shall not divulge or make known in any way any information disclosed in any document, report, or return filed under this title except such information as is displayed on the tax license. The officials charged with the custody of documents, reports, and returns shall not be required to produce any of them or evidence of anything contained in them in any action or proceeding in any court, except on behalf of the manager in an action or proceeding under the provisions of this title when the report of a fact shown thereby is directly involved

in such action or proceeding, in either of which events the court may require the production of, and may admit into evidence, so much of said reports or of the facts shown thereby as are pertinent to the action or proceeding, and no more.

- (b) Nothing in this section shall be construed to prohibit the delivery to a person or a duly authorized representative thereof of a copy of any return or report filed in connection with such person's tax. Copies of such records may be certified by the city manager or an agent thereof and when so certified shall be evidence equally with the originals and may be received as evidence of their contents.
- (c) Nothing in this section shall be construed to prohibit the publication of statistics so classified as to prevent the identification of particular reports or returns and the items thereof.
- (d) Notwithstanding the provisions of this section, the city manager may furnish to the taxing officials of the State of Colorado, its political subdivisions, any other state, or political subdivision, or the United States, any information contained in tax returns and related documents filed pursuant to this title or in the report of an audit or investigation made with respect to a return, if the recipient jurisdiction agrees with the manager to grant similar privileges to the city and if such information is to be used by the jurisdiction only for tax purposes.
- (e) (1) Notwithstanding the provisions of this section, the city manager or his/her designee may provide any information contained in tax returns and related documents filed pursuant to this title or any other reports, data or information prepared and submitted to the city pursuant to this title, to representative(s) designated by the Golden Urban Renewal Authority (GURA). GURA's eligibility to receive such tax information from the city shall be

based upon its public purposes and activities such as municipal economic development; elimination and/or prevention of blight; economic, financial and physical revitalization, development and/or redevelopment of specifically designated urban renewal/redevelopment areas of the city.

- (2) Such tax information and data shall be kept confidential by GURA, shall not be made available to the public and shall be utilized only for the purposes defined in paragraph (e)(1) of this section.
- (3) Statistical information described in paragraph (c) of this section generated by the city, but not made public, may also be provided to GURA. However, GURA shall not make such statistical information public, except in compliance with the city manager's regulations promulgated under paragraph (f) of this section.
- (4) GURA's designated representative shall be responsible to the city manager for receipt of the confidential tax information and utilization of same as described and restricted in this section.

- (f) The city manager shall provide sales tax information to GURA which is related to specific development/redevelopment projects within urban renewal areas; subject however, to regulations prepared by the manager; and further subject to the requirement that such information shall not be made public. The regulations shall be consistent with the reasonable requirements of GURA to plan and carry out renewal projects and utilize tax information specifically for such purposes. Copies of the manager's regulations shall be provided to city council.

(Ord. 1717, § 13, 2005; Ord. 1615, 2003; Ord. 1144, § 1(part), 1992)

3.06.070 Timely payment; computation of dates.

(a) Timely payment shall be evidenced by the postmark date if mailed, otherwise, timely payment shall be evidenced by the date on the receipt issued by the city cashier.

(b) Any due date, payment date, or deadline for paying tax due, providing information or taking other action which falls on a Saturday, Sunday or legal holiday recognized by either the federal government or State of Colorado shall be extended to the first business day following such weekend or holiday.

(Ord. 1144, § 1(part), 1992)

Chapter 3.07

TAX OVERPAYMENT—REFUNDS

3.07.010 Overpayment as determined from return.

If the amount remitted with the return is more than the tax due as computed from information in such return, the taxpayer shall be notified.

- (a) If the overpayment is \$10.00 or more, a notice of overpayment will be issued. After examining such notice, the taxpayer may either submit a claim for refund or report the correct tax due by filing an amended return. No refund of such overpayment shall be paid unless a signed claim for refund is submitted on or before the 30th day after the date of notice of overpayment.

- (b) If the overpayment is less than \$10.00, it shall be credited to the tax due for the next reporting period.

(Ord. 1144, § 1(part), 1992)

3.07.020 Tax overpayment determined through audit.

If the city ascertains through an audit of a taxpayer's records, that the tax due is less than the full amount paid, a notice of overpayment shall be issued. After examining such notice the taxpayer may either file a claim for refund or

report the correct tax due by filing an amended return. No refund of such overpayment shall be made unless the claim is submitted to the finance director within 30 days of the date of the notice of overpayment.

(Ord. 1144, § 1(part), 1992)

3.07.030 Refunds of disputed tax.

Refunds of tax paid to a retailer by a purchaser who claims that the transaction is exempt from the tax may be requested by such purchaser by submitting a claim for refund to the finance director on or before 60 days from the date of such purchase.

(Ord. 1144, § 1(part), 1992; Ord. 1153, § 11, 1988; Ord. 819, § 2(part), 1979)

3.07.040 Special refund—United States government, the State of Colorado, its departments or institutions and the political subdivisions thereof.

The State of Colorado, its departments or institutions, and the political subdivisions thereof. The United States government, the State of Colorado, its departments or institutions, and the political subdivisions thereof shall be entitled to a refund equal to 98 percent of all sales and use taxes paid to the city by reason of the sale to, or use of construction materials to or by any contractors or subcontractors of such governmental entity for use in the building, erection, alteration or repair of buildings, structures or public works owned or operated by such governmental entity and located in the municipal limits. A claim for such a refund must be submitted by the governmental entity within 18 months of purchase or acquisition of the tangible person property or services which underlie the claim for refund.

(Ord. 1144, § 1(part), 1992)

3.07.050 Special refund—Senior citizens; disabled and low-income individuals.

(a) *[Eligibility.]* Any individual who was a resident of the city for at least 90 continuous days during the prior calendar year and who during such year was 65 years of age or older or

disabled or low-income and who is not claimed as a dependent on another's State of Colorado income tax return for such year, is eligible for a rebate of city sales tax.

City council shall establish the disabled and low-income eligibility criteria and the rebate amount for the prior year as part of its annual budget resolution. The rebate amount shall be established on a monthly basis and those eligible shall be entitled to receive such monthly amount for each calendar month they resided in the city during the applicable year.

(b) *Application.* Every person claiming a refund under this section must submit to the finance director by April 15 of the year following the year, for which the refund is claimed, a written application on a form provided by the city.

(c) *Death of an eligible person.* If an otherwise eligible applicant dies prior to filing an application, his or her estate shall be entitled to the refund.

(Ord. 1864, § 17, 2010; Ord. 1717, § 14, 2005; Ord. 1610, 2003; Ord. 1485, 2000; Ord. 1144, § 1(part), 1992; Ord. 819, § 2(part), 1979)

3.07.060 Other overpayment.

Claims for a refund of sales or use taxes paid in error which are not otherwise addressed in this chapter shall be submitted within three years after the date of purchase, storage, use or consumption of the goods or services for which the refund is claimed.

(Ord. 1144, § 1(part), 1992; Ord. 998, § 1(part), 1985)

3.07.070 Claim for refund.

(a) *Application.* A claim for refund of tax shall:

- (1) Be made on a "claim for refund" form furnished by the city;
- (2) Be signed by the taxpayer; and
- (3) Include adequate documentation of the basis of the claim, which shall include without limitation the original paid invoice or sales receipt.

(b) *Decision - hearing.* The finance director shall examine the claim for refund and give written notice to the taxpayer of his or her decision thereon. Aggrieved applicants, within 30 days after the date of the decision, may petition the finance director for a hearing on the claim as provided in this title. The petition shall specify the amount of the refund requested and the basis for such refund.

(c) *Refunds not assignable.* The right of any person to obtain a refund pursuant to this chapter shall not be assignable.

(d) *[False statements unlawful.]* It shall be unlawful to make any false statement in connection with a claim for refund.

(Ord. 1864, § 18, 2010; Ord. 1180, § 6, 1993; Ord. 1144, § 1(part), 1992; Ord. 1139, § 5(part), 1991; Ord. 1053, § 12, 1988; Ord. 819, § 2(part), 1979)

Chapter 3.08 ENFORCEMENT

3.08.010 Recovery of taxes, penalty and interest.

(a) If a person neglects or refuses to make a return in payment of the sales or use tax, or to pay any sales or use tax as required by this title, then the finance director shall make an estimate, based upon such information as may be available, of the amount of taxes due for the period for which the taxpayer is delinquent and shall add thereto a penalty equal to the sum of \$15.00 for such failure or ten percent thereof, whichever is greater, and interest on such delinquent taxes at the rate of one percent per month; provided however the penalty for taxpayers who are delinquent without good cause for three or more months shall be \$50.00 or 50 percent of the tax due, whichever is greater. Promptly thereafter, the finance director shall give to the delinquent taxpayer written notice of such estimated taxes, penalty and interest, which notice shall be hand delivered or sent by certified mail directed or other verification delivery methods, to the last address of such person on file with the finance department. Such estimate shall thereupon become a notice of deficiency.

(b) If any fees, taxes, penalty or interest imposed by this title and shown due by returns filed by the taxpayer or as shown by assessments duly made as provided in this section are not paid within five days after the same are due, then the finance director shall issue a deficiency notice, setting forth the name of the taxpayer, the amount of the fees, tax, penalties and interest, the date of the accrual thereof, and that the city claims a lien therefore on the real and tangible personal property of the taxpayer. Said notice shall be hand delivered or mailed to the taxpayer by certified mail or other verifiable delivery methods.

- (1) Said notice shall be on forms furnished by the finance department and shall be verified by the city manager or by the finance director and may be filed in the office of the county clerk and recorder in which the taxpayer owns real or tangible personal property, and the filing of such notice shall create a lien on such property in that county and constitute notice thereof. If the city files the lien, there shall be a lien fee of \$50.00 imposed and added to the total assessment amount. The finance director may include additional collection costs. At any time when taxes due are unpaid, whether such notice shall have been filed or not, the finance director may issue a warrant directed to any duly authorized revenue collector, or to any law enforcement officer or to the sheriff of the county, commanding such person to levy upon, seize, and sell sufficient of the real and personal property of the amount due together with interest, penalties, and costs as may be provided by law, subject to valid superior claims or liens.

- (2) Jeopardy assessment.

- a. *Issuance.* If the collection of any tax due from a taxpayer, whether or not previously assessed, will be jeopardized by delay, the city manager may declare the taxable period immediately terminated, order the finance director to determine the tax, and issue a

jeopardy assessment and demand for payment. Any tax so assessed shall be due and payable immediately.

- b. *Security for payment.* Enforcement of a jeopardy assessment and demand for payment may be stayed if the taxpayer gives security for payment which is satisfactory to the city manager.
- c. *Dispute of jeopardy assessment.* If, in the opinion of the taxpayer, the jeopardy assessment is not for the correct amount of tax due, the taxpayer shall pay the tax due as assessed and submit a claim for refund to the city.

(c) Such revenue collector or law enforcement officer or the sheriff shall forthwith levy upon sufficient of the property of the taxpayer or any property used by such taxpayer in conducting the retail business, except property exempt from the tax lien and said property so levied upon shall be sold in all respects with like effect and in the same manner as is prescribed by law with respect to executions against property upon judgment of a court of record, and the remedies of garnishment shall apply. The revenue collector, law enforcement officer or sheriff shall be entitled to such fee in executing such warrants as is allowed by law for similar services.

(d) Any lien for taxes as shown on the records of the county clerks and recorders as provided by this title, upon payment of all taxes, penalties and interest covered thereby shall be released by the finance director in the same manner as mortgages and judgments are released.

(e) The finance director may also treat any such taxes, penalties or interest due and unpaid as a debt due the city from the taxpayer, the return of the taxpayer or the assessment made by the finance director, as provided in this title shall be prima facie proof of the amount due.

- (1) To recover such taxes, penalties or interest due, the finance director may bring an action in attachment, and a writ of attachment may be issued to the revenue

collector, law enforcement officer or sheriff. In any such proceedings, no bond shall be required of the finance director, nor shall any sheriff require of the finance director an indemnifying bond for executing the writ of attachment or writ of execution upon any judgment entered in such proceedings. The finance director may prosecute appeals in such cases without the necessity of providing bond thereof. It is the duty of the city attorney, when requested by the finance director to commence action for the recovery of taxes due under this title, and this remedy shall be in addition to all other existing remedies or remedies provided in this title.

(f) In any action affecting the title to real estate or the ownership or rights to possession of personal property, the city may be made a party defendant for the purpose of obtaining an adjudication or determination of its lien upon the property involved therein. In any such action, service of summons upon the finance director or any person in charge of the office of the finance director shall be sufficient service and shall be binding upon the city.

(g) The finance director is authorized to waive, for good cause shown, any penalty assessed as provided in this title.

(Ord. No. 2055, § 7, 4-27-2017; Ord. 1717, § 15, 2005; Ord. 1144, § 1(part), 1992; Ord. 1139, § 6, 1991; Ord. 819, § 2(part), 1979)

3.08.020 Tax lien; exemption from lien.

(a) The sales and use tax imposed pursuant to this title shall be a first and prior lien upon the tangible personal property, goods, stock in trade and business fixtures of or used by any retailer under lease, title retaining contract, or other contract arrangement, and shall take precedence on all such property over other liens or claims of whatsoever kind of nature. The sales and use tax imposed by this title shall be a first and prior lien on any other real and tangible personal property of the taxpayer, subject only to any valid mortgage or other liens of record on and prior to the recording of notice as set forth in this

chapter which lien shall have precedence over all other liens of whatsoever kind of nature, except as to preexisting claims or liens of a bona fide mortgage, pledgee, judgment creditor, or purchaser whose rights have attached prior to the filing of the notice on such tangible personal property.

- (1) The real or personal property of an owner who has made a bona fide lease to a retailer or to any taxpayer owing a sales or use tax shall be exempt from the lien created in subsection (a) of such property can reasonably be identified from the lease description, and if the lessee is given no right to become the owner of the leased property. This exemption shall be effective from the date of the execution of the lease if the lease is recorded with the county clerk and recorder of the county where the property is located or based or if a memorandum of the lease is filed with the finance department within ten days after the execution of the lease. Motor vehicles which are properly registered in the city, showing the lessor as the owner thereof, shall be exempt from the lien created in subsection (a) except that said lien shall apply to the extent that the lessee has an earned reserve, allowance for depreciation not to exceed fair market value, or similar interest which is or may be credited to the lessee. Where the lessor and the lessee are blood relatives or relatives by law or have 25 percent or more common ownership, a lease between such lessee and such lessor shall not be considered as bona fide for purposes of this section.
- (2) Any retailer who is in possession of property under the terms of a lease, which property is exempt from the tax lien as provided in this section, may be required by the finance director to remit taxes collected at more frequent intervals than monthly, but no more frequently than semimonthly, or may be required to furnish security for the proper payment of taxes whenever the collection of taxes appears to be in jeopardy.

(b) Whenever the business or property of any taxpayer subject to this title shall be placed in receivership, bankruptcy or assignment for the benefit of creditors, or seized under distraint for property taxes, all taxes, penalties, and interest imposed by this title and for which said retailer is in any way liable under the terms of this title shall be a prior and preferred claim against all the property of said taxpayer, except as to preexisting claims or liens of a bona fide mortgagee, pledgee, judgment creditor, or purchaser whose rights shall have attached prior to the filing of the notice as provided in this title on the property of the taxpayer, other than the goods, stock in trade, and business fixtures of such taxpayer. No sheriff, receiver, assignee, or other officer shall sell the property of any person subject to this title under process or order of any court without first ascertaining from the finance director the amount of any taxes due and payable under this title and if there are any such taxes due, owing, or unpaid, it is the duty of such officer to first pay the amount of said taxes out of the proceeds of said sale before making payment of any moneys to any judgment creditor or other claims of whatsoever kind or nature, except the costs of the proceedings and other preexisting claims or liens as provided in this section. For the purposes of this subsection (b) "taxpayer" includes "retailer".

(c) Any personal representative of a decedent or the estate of a decedent, any trustee receiver, or other person acting in a fiduciary capacity, or any director of a corporation in the process of dissolution or that has been dissolved shall first pay taxes under this title due from such decedent, decedent's estate, trust estate, receivership, or corporation before distributing the estate or fund under such person's control. Any such person who fails to pay taxes assessed within the periods authorized by this title is personally liable to the extent of the property distributed by such person for any unpaid taxes of the decedent, decedent's estate, trust estate, receivership, or corporation imposed by or due under this title.

(d) Any distributee of a decedent's estate, a trust estate, or fund and the stockholder of any dissolved corporation who receives any of the property of such decedent's estate, trust estate, fund, or corporation is personally liable for taxes

assessed pursuant to this title to the same extent that the decedent, trust estate, fund or corporation is liable under this title.

(Ord. 1684, § 1, 2004; Ord. 1144, § 1, 1992; Ord. 819, § 2(part), 1979)

3.08.025 Corporate and partnership penalty.

In addition to the personal liability provided by this title, all officers of a corporation, and all members of a partnership or other entity required to collect, account for, and pay any tax administered by this title who willfully fail to collect, account for, or pay over such tax or who willfully attempt in any manner to evade or default any such tax, or the payment thereof, are subject to, in addition to other penalties provided by law, a penalty equal to 150 percent of the total amount of the tax not collected, accounted for, paid, or otherwise evaded. An officer of a corporation or a member of a partnership or other entity shall be deemed to be subject to this section if the corporation, partnership or other entity is subject to filing returns or paying taxes administered by this title and if such officer or member voluntarily or at the direction of superiors assumes the duties or responsibilities of complying with the provisions of any tax administered by this title on behalf of the corporation, partnership or other entity.

(Ord. 1864, § 19, 2010; Ord. 1684, § 2, 2004)

3.08.030 Tax deficiency.

If the deficiency in payment of the sales or use tax occurs without intent to defraud, there shall be added ten percent of the total amount of the deficiency, and interest in such case shall be collected at the rate of one percent per month on the amount of such deficiency from the time the return was due, from the person required to file the return, which interest and addition shall become due and payable 30 days after written notice and demand to such person by the finance director. If any part of the deficiency is due to the taxpayer's careless disregard for the accuracy of the return, then there shall be added 50 percent of the total amount of the deficiency, and in such case, the whole amount of the tax unpaid, including the additions, shall become due and payable 30 days after written notice and demand by the

finance director. If any part of the deficiency is due to fraud with the intent to evade the tax, then there shall be added 100 percent of the total amount of the deficiency, and in such case, the whole amount of the tax unpaid, including the additions, shall become due and payable 30 days after written notice and demand by the finance director.

(Ord. 1864, § 20, 2010; Ord. 1144, § 1(part), 1992; Ord. 998, § 1(part), 1985)

3.08.040 Interest on underpayment, overpayment, nonpayment or extensions of time for payment of tax.

(a) If any amount of sales or use tax is not paid on or before the last date prescribed for payment, then interest on such amount at the rate set forth in sections 3.08.010 and 3.08.030 of this Code shall be paid for the period from such last date to the date paid. The last date prescribed for payments shall be determined without regard to any extension of time for payment and shall be determined without regard to any notice and demand for payment issued, by reason of jeopardy, prior to the last date otherwise prescribed for such payment. In the case of a tax in which the last date for payment shall be deemed to be the date that the liability for the tax arises, in no event shall such date be later than the date that notice and demand for the tax is made by the finance director.

(b) Interest prescribed under this chapter shall be paid upon notice and demand and shall be assessed, collected, and paid in the same manner as the tax to which such interest is applicable.

(c) If any portion of a tax is satisfied by credit of an overpayment, then no interest shall be imposed under this section on the portion of the tax so satisfied for any period during which, if the credit had not been made, interest would have been allowed with respect to such overpayment.

(d) Interest prescribed under this chapter on any sales or use tax may be assessed and collected at any time during the period within which the tax to which such interest relates may be assessed and collected.

(Ord. 1938, 2013; Ord. 1144, § 1(part), 1992; Ord. 998, § 1(part), 1985)

3.08.050 Other remedies.

No provision of this chapter shall preclude the city from utilizing any other lawful penalties or other remedies applicable to the collection of sales or use taxes. The finance director shall have the authority to make a compromise settlement of any claim for sales or use tax due under this title.

(Ord. 1144, § 1(part), 1992; Ord. 998, § 1(part), 1985)

3.08.060 Statute of limitations.

(a) The taxes for any period together with interest thereon and penalties with respect thereto imposed by this title shall not be assessed nor shall any notice of lien be filed, or distraint warrant issued, or suit for collection be instituted nor any other action to collect the same be commenced more than three years after the date on which the tax was or is payable, nor shall any lien continue after such period, except for taxes assessed before the expiration of such period, notice of lien with respect to which has been filed prior to the expiration of such period, in which cases such lien shall continue after the filing of notice thereof.

(b) Before the expiration of such period of limitation the taxpayer and the finance director may agree in writing to an extension thereof, and the period so agreed on may be extended by subsequent agreements in writing.

(c) The commencement of collection proceedings, including the mailing of a notice of audit, shall toll the running of the statute of limitations. In the case of mailing of a notice of audit, any such audit shall be diligently pursued by the city. For purposes of this section, "toll" is defined as an interruption of the running or continuation of the statute of limitations.

(d) The statute of limitations period as set forth herein shall not apply, and the tax, together with interest and penalties thereon, may be assessed or proceedings for the collection of such taxes may commence at any time, if:

- (1) A taxpayer files a false return under circumstances that exhibit a careless disregard for the accuracy of the return; or

- (2) A taxpayer files a false or fraudulent return with the intent to evade the tax imposed by this title; or

- (3) A taxpayer fails to file a return as required by this title; or

- (4) A taxpayer registers an automotive vehicle outside the city with the intent to avoid tax liability imposed by this title.

(Ord. 1864, § 21, 2010; Ord. 1743, 2006; Ord. 1144, § 1(part), 1992; Ord. 819, § 2(part), 1979)

Chapter 3.09**HEARINGS AND APPEALS****3.09.010 Hearings by the finance director.**

(a) A taxpayer aggrieved by a decision or action of the finance director, including a deficiency notice or denial of refund, may submit to the finance director a request, in writing, for a hearing on such decision or action, within 30 days after such decision or action. The request for hearing shall set forth the basis upon which the taxpayer wishes the decision or action to be modified. The finance director shall notify the taxpayer in writing of the time and place fixed by the finance director for such hearing. After such hearing, the finance director shall make a final decision in the matter as is just and lawful and shall furnish a copy of such final decision to the taxpayer.

(b) Every final decision of the finance director upon such hearing shall be in writing, and notice thereof shall be mailed, or sent via other verifiable delivery method, to the taxpayer within 180 days after the finance director's receipt of the taxpayer's written request for the hearing, or within such further time as the taxpayer and the finance director may agree upon in writing.

(c) Alternatively, the taxpayer and the finance director may agree in writing that no hearing before the finance director will be held, or that no final decision will issue from the finance director. Such written agreement shall state that the taxpayer exhausted local remedies, shall identify the date of such exhaustion, and shall advise the taxpayer of the right to pursue further

review pursuant to the procedures in C.R.S. 29-2-106.1(3) or (8), as amended, within 30 days after such exhaustion.

(d) Alternatively, 180 days or more after the date of the taxpayer's request for a hearing, the finance director may notify the taxpayer in writing that the finance director does not intend to conduct a hearing. In such instance, the written notification shall also state that the taxpayer exhausted local remedies, that such exhaustion occurred on the date of the written notification from the finance director, and that the taxpayer may pursue further review pursuant to the procedures in C.R.S. 29-2-106.1(3) or (8), as amended, within 30 days after such exhaustion.

(Ord. 1922, § 1, 2012; Ord. 1864, § 22, 2010; Ord. 1144, § 1(part), 1992; Ord. 998, § 1(part), 1985)

3.09.020 Reserved.

3.09.030 Alternate review by department of revenue.

(a) The taxpayer may request a hearing on a final decision of the finance director to the executive director of the department of revenue pursuant to the procedures in C.R.S. 29-2-106.1, as amended.

(b) In the event the taxpayer has timely requested in writing a hearing before the finance director as required by subsection 3.09.010(a) and none of the events described in subparagraphs (b), (c), or (d) of section 3.09.010 have occurred, the taxpayer may request a hearing before the executive director of the department of revenue pursuant to the procedures in C.R.S. 29-2-106.1, as amended, at any time after the period prescribed in, or agreed upon pursuant to, subparagraph (b) of section 3.09.010.

(c) If a taxpayer appeals a final determination of the executive director of the department of revenue to the district court pursuant to the procedures in C.R.S. 29-2-106.1, as amended, subparagraph (c) of section 3.09.050 of this Code shall apply to such appeal.

(Ord. 1922, § 2, 2012; Ord. 1144, § 1(part), 1992; Ord. 1053, § 16, 1988; Ord. 998, § 1(part), 1985)

3.09.040 Reserved.

3.09.050 Appeals to the district court.

(a) The taxpayer may elect to appeal a final decision of the finance director directly to the district court pursuant to the procedures in C.R.S. 29-2-106.1(8), as amended, if the deficiency or claim for refund does not involve any other local government.

(b) In the event the taxpayer has timely requested a hearing in writing before the finance director as required by subsection 3.09.010(a) and none of the event described in subparagraphs (b), (c), or (d) of section 3.09.010 have occurred, and if the deficiency or claim for refund does not involve any other local government, the taxpayer may appeal the deficiency or denial of a claim for refund directly to the district court pursuant to the procedures in C.R.S. 29-2-106.1(8), as amended, at any time after the period prescribed in, or agreed upon pursuant to, subparagraph (b) of section 3.09.010.

(c) Within 15 days after filing an appeal to the district court, the taxpayer shall file with the district court a surety bond in twice the amount of the taxes, interest and other charges contested in the appeal, provided that the taxpayer may, at the taxpayer's option, deposit with the finance director in lieu of posting a surety bond. If such amount is deposited with the finance director, no further interest shall accrue on the contested deficiency during the pendency of the action. The finance director shall place the taxpayer's deposit in an account segregated from other city funds, and shall invest the deposited funds in the same manner as the city does with city funds that may require immediate liquidation. At the conclusion of the action, after appeal to the supreme court or the court of appeals or after the time for such appeal has expired, the funds deposited by the taxpayer with the finance director shall be, at the direction of the court, either retained by the finance director and applied against the deficiency, or returned in whole or in part to the taxpayer, with interest on the returned amount only, based on the rate of interest earned in the segregated account.

(Ord. 1922, § 2, 2012)

Chapter 3.10 LODGING TAX

3.10.010 Short title.

This chapter shall be known and may be cited as the "Golden Lodging Tax."
(Ord. No. 2170, § 4, 12-7-2021)

3.10.020 Intent and purpose.

(a) It is the legislative intent of the city council that every person who purchases lodging in the city is exercising a taxable privilege. It is the city council's purpose and intent that every person who is engaged in business in the city and who provides lodging services shall collect the tax imposed by this chapter. The lodging tax imposed by this chapter is in addition to and does not replace or repeal the sales tax on lodging services imposed by Chapter 3.03 of this Code.

(b) The purpose of the lodging tax shall be to apply revenues derived from such tax during the period commencing January 1, 2022 and ending December 31, 2031 to address visitor impacts and fund community projects and capital improvements as determined by the city council, and thereafter to apply such revenues to any lawful municipal purpose as determined by the city council.
(Ord. No. 2170, § 4, 12-7-2021)

3.10.030 Tax imposed; collection; lodging tax fund created.

(a) Effective January 1, 2022, there is hereby imposed a lodging tax of six percent on the fee, price, or other consideration paid by or charged to any person for the purchase or sale of lodging services within the city. The tax imposed by this chapter shall be in addition to the sales tax on lodging services as provided in this title 3 and all other taxes imposed by law.

(b) Every retailer making sales to a person in the city that are taxable under this chapter is required to collect the tax imposed by this chapter from such person at the time of making such sales.

(c) The City of Golden "Lodging Tax Fund" is hereby created, and the lodging tax collected pursuant to this chapter shall be distributed to and deposited in the lodging tax fund. Consistent with Ballot Issue 2C, which was approved at the November 2, 2021, election, the revenues derived from the lodging tax during the ten-year period commencing January 1, 2022, and ending December 31, 2031, shall be applied to address visitor impacts and fund community projects and capital improvements as determined by city council, and thereafter shall be applied for any lawful municipal purpose as determined by the city council.

3.10.040 Exemptions.

(a) The following transactions shall be exempt from the lodging tax imposed by this chapter:

- (1) All lodging services furnished to the United States of America, to the State of Colorado, its departments and institutions and political subdivisions thereof, and to the city or any department thereof, in their governmental capacities only, when billed to and paid for by the governmental entity; and
- (2) All lodging services furnished to charitable organizations, as defined in this title 3, in the conduct of their regular charitable functions and activities, when billed to and paid for by the charitable organization.

(b) The burden of proving that any person is exempt from collecting or paying lodging tax shall be on such person.

(Ord. No. 2170, § 4, 12-7-2021)

3.10.050 Incorporation by reference of certain provisions of title 3.

Unless the context otherwise requires, the following provisions of title 3 of this Code, as may be amended from time to time, are incorporated by reference into this chapter 3.10 with the following modifications as if fully set forth herein:

- (a) Sections 3.03.100(a) and (c) (acquisition, inception or cessation of business), inclusive;

- (b) Chapters 3.02 (definitions), 3.04 (taxpayer responsibilities), and 3.08 (enforcement), inclusive;
 - (c) Sections 3.06.010, 3.06.020, 3.06.060, and 3.06.070, inclusive;
 - (d) Section 3.07.010, 3.07.020, 3.07.030, 3.07.060, and 3.07.070, inclusive;
 - (e) Section 3.09.010 (a) and (b);
 - (f) Any reference therein to "sales tax," "tax," "taxes," or "taxation" shall be deemed to refer to the tax imposed by this chapter, to the extent applicable.
 - (g) Any reference therein to "taxpayer" or "retailer" shall be deemed to refer to the person providing lodging services.
- (Ord. No. 2170, § 4, 12-7-2021)

Chapter 3.11

RETAIL MARIJUANA TAX

3.11.010 Short title.

This chapter shall be known and may be cited as the "Golden Retail Marijuana Tax."
(Ord. No. 2188, § 3, 7-12-2022)

3.11.020 Intent and purpose.

The city council declares that the purpose of this chapter is to impose the marijuana tax at the rate of six percent of the price paid by the purchaser on the sale of retail marijuana, retail marijuana concentrate, and marijuana accessories as authorized by the registered electors at the November 2, 2021, election.

- (a) The retail marijuana tax imposed by this chapter is in addition to and does not replace or repeal the sales tax imposed by title 3 of this Code.
- (b) The retail marijuana tax at the rate of six percent shall commence on August 1, 2022, and such revenues shall apply to any lawful municipal purpose as determined by the city council.
- (c) The retail marijuana tax imposed pursuant to title 3 shall be administered and enforced in a manner consistent with the

administration and enforcement of other city sales taxes, including, without limitation, any penalties for failure to make any return or to collect or pay any tax.

- (d) This chapter does not apply to the sales of medical marijuana.
(Ord. No. 2188, § 3, 7-12-2022)

3.11.030 Definitions.

Unless the context clearly requires otherwise, the words and terms used in this chapter shall have the meaning set forth in chapter 4.94 regulated marijuana licensing of this Code, as may be amended from time to time.
(Ord. No. 2188, § 3, 7-12-2022)

3.11.040 Tax imposed; collection; retail marijuana tax fund created.

- (a) Effective August 1, 2022, there is hereby imposed a retail marijuana tax at the rate of six percent of the price paid by the purchaser on the sale of retail marijuana, retail marijuana concentrate, and marijuana accessories as defined in chapter 4.94, regulated marijuana licensing, and all applicable city ordinances.
- (b) Every retailer making sales to a person in the city that are taxable under this chapter is required to collect the tax imposed by this chapter from such person at the time of making such sales as provided in title 3.
- (c) The City of Golden "Retail Marijuana Tax Fund" is hereby created, and the tax collected pursuant to this chapter shall be distributed to and deposited in the retail marijuana tax fund. The revenues derived from the retail marijuana tax shall be applied for any lawful municipal purpose as determined by the city council.
(Ord. No. 2188, § 3, 7-12-2022)

**3.11.050 Incorporation by reference of
certain provisions of title 3.**

Unless the context otherwise requires, the provisions of title 3 of this Code, as may be amended from time to time, are fully incorporated by reference into this chapter.
(Ord. No. 2188, § 3, 7-12-2022)

Title 4

BUSINESS REGULATIONS AND LICENSES

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Chapter 4.04 GENERAL REQUIREMENTS

4.04.002 Scope.

Unless otherwise provided in this title or by any other provision of this Code, the rules, regulations and requirements set forth within this chapter shall apply to all business licenses required by this chapter.

(Ord. 1148, § 1, 1992)

4.04.010 Fees.

No license shall be issued to any applicant under this title until the fee(s) required hereunder is paid in full to the city clerk.

(Ord. 1125, § 5, 1991; Ord. 1118, § 5, 1991)

4.04.020 Display of license.

Each license issued under this title shall be posted on the licensed premises in a conspicuous location open to public view. No licensee shall fail to conspicuously display on each vehicle or mechanical device or machine required to be licensed by this title such tags or stickers as are furnished by the city clerk. It is unlawful to display any expired or duplicate license.

(Ord. 1125, § 5, 1991; Ord. 1118, § 5, 1991)

Chapter 4.16 RESERVED*

***Editor's note**—Sec. 1 of Ord. No. 2103, adopted Feb. 28, 2019, repealed ch. 4.16, which pertained to amusement arcades, centers and devices, consisted of §§ 4.16.010—4.16.110, and derived from Ord. 294, 1950; Ord. 308, 1951; Ord. 877, 1981; Ord. 887, 1982; Ord. 1125, 1991; and Ord. 1210, 1993.

Chapter 4.44 SOLICITATION†

4.44.010 Solicitation prohibited.

(a) [Definitions.]

- (1) *Solicitation* means attempting to make personal contact with an occupant of a residence or business, at the residence or place of business, without prior specific invitation or appointment, for the primary purpose of:
 - (i) Attempting to sell, for present or future delivery, any goods, wares or merchandise, or any services to be performed immediately or in the future; or
 - (ii) Advertising a commercial event, activity, good or service that is offered at a location away from the residence or business or at a future time.
- (2) *Solicitor* means any person, whether as volunteer, owner, agent, consignee or employee, who engages in solicitation.

(b) [Prohibited.] It is unlawful for a solicitor, while engaging in solicitation to enter upon the premises of any residence or business in the city where there is conspicuously posted at or near the entry of the premises or the entry of the principal building on the premises, a notice bearing the words "No Solicitation", "No Solicitors", "No Trespassing," or sign of similar import that communicates the occupants' or owners' intent and desire not to be contacted by solicitors, unless such solicitor is expressly invited onto the posted premises by the resident or occupant.

(Ord. No. 2147, § 1, 3-23-2021)

†**Editor's note**—Ord. No. 2147, adopted March 23, 2021, repealed, reenacted, and retitled ch. 4.44 in its entirety to read as herein set out. Former ch. 4.44 was titled "Solicitation, Peddling and Poll Taking", and derived from Ord. 972, 1984.

Chapter 4.52
RESERVED*

Chapter 4.60
ADULT ENTERTAINMENT

4.60.005 Legislative intent.

It is the intent of this ordinance to impose reasonable time, place and manner regulations upon adult entertainment establishments in order to promote the health, safety and welfare of the citizens of the City of Golden by imposing regulations on the location of adult entertainment establishments, and measures which reduce or eliminate the adverse secondary effects of adult entertainment establishments. None of the controls or restrictions contained within this ordinance are intended to prohibit or curtail constitutionally protected speech and/or freedom of expression.

(Ord. 1513, 2000)

4.60.010 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Adult entertainment establishment. An adult arcade, adult bookstore, adult novelty store, adult video store, adult cabaret, adult motel, adult motion picture theater, adult theater, sexual encounter establishment, all as defined herein, or other similar business, and includes:

- (a) The opening of any adult entertainment establishment as a new business;
- (b) The conversion, either partial or whole, of an existing business to an adult entertainment establishment;
- (c) The addition of an adult entertainment establishment to any existing adult entertainment establishment;

***Editor's note**—Sec. 2 of Ord. No. 2103, adopted Feb. 28, 2019, repealed ch. 4.52, which pertained to pawnbrokers, consisted of §§ 4.52.010—4.52-080, and derived from Ord. 22, 1879; Ord. 1092, 1990; and Ord. 1448, 1992.

- (d) The relocation of any adult entertainment establishment; or

- (e) The continuation of any adult entertainment establishment.

Adult arcade. Any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically or mechanically controlled still or motion picture machines, projections or other image-producing devices are maintained to show images which are distinguished or characterized by the depicting or describing of specified sexual activities or specified anatomical areas.

Adult bookstore, adult novelty store or adult video store. Commercial establishments which devotes a significant or substantial portion of its business to any one or more of the following:

- (a) The sale, rental or viewing, for any form of consideration, of books, magazines, periodicals or other printed matter or photographs, films, motion pictures, video cassettes, laser discs, digital video discs, slides or other photographic reproductions or mechanically, electronically, chemically, or digitally reproduced visual materials which are characterized by an emphasis upon the depiction, display or exhibition of specified sexual activities or specified anatomical areas;
- (b) Instruments, devices, or paraphernalia which are designed for specified sexual activities;
- (c) A significant or substantial portion of its business includes, but is not limited to, some or all of the following:
 - (1) The stock in trade of the items listed in (a) and/or (b), above; or
 - (2) Derived from the rental or sale of items listed in (a) and/or (b), above; or
 - (3) Involves the use of its floor space, shelf space or storage space for the display, sale or rental of the items listed in (a) and/or (b), above; or
 - (4) Advertising is devoted to the items listed in (a) and/or (b), above.

Adult cabaret. A nightclub, bar, restaurant or similar business which regularly features:

- (a) Persons who appear in a state of nudity;
- (b) Live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities; or
- (c) Films, motion pictures, video cassettes, digital video discs, laser discs, slides or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.

Adult material. Books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, digital video discs, laser discs, slides, or other photographic reproductions, or other visual representations which depict or describe specified sexual activities or specified anatomical areas, or instruments, devices, or paraphernalia which are designed for specified sexual activities.

Adult motel. A hotel, motel or similar business which offers private rooms to the public and provides patrons live performances or closed-

circuit television transmissions, films, motion pictures, video cassettes, digital video discs, laser discs, slides or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.

Adult motion picture theater. A business where films, motion pictures, video cassettes, digital video discs, laser discs, slides or other photographic reproductions are regularly shown which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.

Adult theater. A theater, concert hall, auditorium, or similar business which regularly features persons who appear in a state of nudity or give performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities.

Child care facility. Any facility, by whatever name known, licensed by the State of Colorado and maintained for compensation, for the whole or any part of a day, for the care of five or more children under the age of 16 years who are not related to the owner, operator or manager thereof.

Church. A location where organized religious services and associated activities such as religious classes, childcare, and committee and office work are regularly conducted.

Community center. A building or other structure which is city owned or used by the city that provides services to the community and is open to the general public.

Employee. Any person who receives any form of compensation from the licensee for services performed on the premises whether such person would otherwise, as a matter of law, be classified as an employee, agent, manager, representative, associate, performer or independent contractor.

Manager. Any person other than a licensee who is employed by an adult entertainment establishment to act as manager or supervisor of the employees, finances, patrons of the establishment or is otherwise responsible for operation of the establishment.

Nude or the state of nudity. The display of specified anatomical areas.

Park. Means a park, reservation, playground, recreation area, bikeway, trail, greenbelt or other area in the city-owned or used by the city and devoted to active or passive recreation, including developed and undeveloped land.

Performance. A play, motion picture, dance or other exhibition performed before an audience.

Recreational center. Land, buildings, structures or equipment used in recreational activities, owned or operated by a government agency.

School. An institution for instruction. Schools are classified by the type of instruction provided and by student grade level.

- (a) *College/university:* A school providing higher education beyond grade 12, which offers either a two-year or four-year degree in specific disciplines;
- (b) *K—12:* A school, public or private, which meets state standards for providing instruction for students between five and 21 years of age, including, but not limited to, vocational schools and special education schools.

Sexual encounter establishment. A business or commercial establishment which, as one of its primary business purposes, offers, for any form of consideration, a place where two or more persons may congregate, associate or consort for the purpose of specified sexual activities or the exposure of specified anatomical areas, when one or more of the persons exposes any specified anatomical area.

Specified anatomical areas.

- (a) Less than completely and opaquely covered: human genitals, pubic region, buttocks and female breasts below a point above the top of the areola: and
- (b) Human male genitals in a discernable turgid state, even if completely and opaquely covered.

Specified sexual activities. Acts, simulated acts, exhibitions, representations, depictions or descriptions of:

- (a) Human genitals in a state of sexual stimulation or arousal;
- (b) Fondling or other erotic touching of human genitals, pubic region, buttocks or female breasts;
- (c) Intrusion, however slight, of any object, any part of an animal's body, or any part of a person's body into the genital or anal openings of any person's body or into the body of an animal;
- (d) Cunnilingus, fellatio, anilingus, masturbation, bestiality, lewd exhibition of genitals or excretory function; or
- (e) Flagellation, mutilation or torture for purposes of sexual arousal, gratification or abuse.

(Ord. 1513, 2000; Ord. 1384, 1997; Ord. 1148, § 3, 1992)

4.60.015 Location of adult business.

(1) It shall be unlawful to operate or cause to be operated an adult entertainment establishment in any location except as provided in chapter 18.28.

(2) It shall be unlawful to operate or cause to be operated an adult entertainment establishment within 1,000 feet of the following:

- (a) A church;
- (b) A school or childcare facility;
- (c) A park, recreational center, or community center; or
- (d) A lot zoned for residential use.

(3) It shall be unlawful to cause or permit the operation of an adult entertainment establishment within 500 feet of another adult entertainment establishment.

(4) For the purposes of this section, the distance restrictions shall be measured from the closest boundary line of the affected properties.

(5) It shall be unlawful to cause or permit the operation or maintenance of more than one adult entertainment establishment in the same building, structure, or portion thereof.

(6) An adult entertainment establishment lawfully operating is not rendered a nonconforming use by the subsequent location of a church, school, child care facility, public park, recreational center, community center, residential district, or a residential lot within 1,000 feet of the adult entertainment establishment; however, if the adult entertainment establishment ceases operation for a period of 180 days or more regardless of any intent to resume operation, it may not recommence operation in that location.

(Ord. 1513, 2000)

4.60.020 License required.

It shall be unlawful for any person to engage in the business of an adult entertainment establishment without having first obtained a license therefore from the city as set forth in this chapter.

(Ord. 1513, 2000; Ord. 1384, 1997)

4.60.030 Application.

An applicant for a license under this chapter must file with the city clerk an application, provided by the city clerk, which application shall include the following:

- (1) The legal names, any aliases, residence and current photograph of passport size and quality of each individual applicant, partner, officer, director and holder of ten percent or more of the shares of the corporation.
- (2) The trade name of the applicant. If the applicant is a corporation, a copy of authority to do business in Colorado, including articles of incorporation, agent for service or process, and trade name affidavit, if any.
- (3) A written statement from the applicant listing the proposed types of adult entertainment to be offered at the establishment.
- (4) Whether the applicant, any partners, officers, directors or stockholders holding

more than ten percent of the outstanding shares of the corporation have had any adult entertainment establishment license requested or issued from any other governmental entity denied, suspended, revoked or not renewed and if so, the name and address of such establishment and dates and reasons for such denial, suspension, revocation or non-renewal.

- (5) Whether the applicant, any partners, officers, directors or stockholders holding more than ten percent of the outstanding shares of the corporation has, within ten years of the date of the application, ever been convicted or pled guilty or no contest to any specified criminal act and, if so, a complete description of any such offense; including date of violation, date of conviction, jurisdiction and any disposition, including any fine or sentence imposed and whether the terms of any sentence have been fully completed.

- (a) For the purposes of this subsection, "specified criminal acts" means acts which include sexual crimes against children, sexual abuse, rape, or crimes connected with another adult entertainment establishment, including, but not limited to, distribution of obscenity, sale, distribution or display of harmful material to a minor, prostitution, promotion of prostitution, aggravated promotion of prostitution, compelling prostitution, sexual performance by a child, possession of child pornography, public lewdness, indecent exposure, indecency with a child, and, as defined by state law, organized criminal activity, sexual assault, aggravated sexual assault, incest, solicitation of a child, harboring a runaway child, kidnapping, aggravated kidnapping, robbery, aggravated robbery, bribery, felony violation of the Colorado Controlled Substances Act or Dangerous Drugs Act, or tax violations associated with adult entertainment

establishments or crimes involving the use of or trafficking narcotic drugs.

- (6) A floor plan of the proposed premises. The floor plan shall designate those rooms or other areas of the premises where patrons are not permitted and shall also designate the use of each room or other area of the premises. The floor plan need not be professionally prepared, but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises. The plan shall designate the place at which the license will be conspicuously posted and the location of any stage.
- (7) Address of the premises to be licensed.
- (8) Each application for an adult entertainment establishment license shall be verified and acknowledged under oath to be true and correct. Each applicant shall have a continuing duty to respond, in writing, to the city clerk, any change regarding the information required in this section within 30 days of such change.
- (Ord. 1513, 2000; Ord. 1384, 1997)

4.60.040 Application and license fees.

(1) Each applicant shall at the time of submitting a application pay a nonrefundable application fee for each individual listed in subsection 4.60.030(1).

(2) Each applicant shall, at the time of submitting an application, pay an annual license fee. If a license is not issued, the license fee shall be returned in full to the applicant.

(3) No application fee shall be charged on a renewal of an existing license; however, any change in ownership of an adult entertainment establishment shall require submission of a new application, application fee and license.

(4) Application and license fees shall be set by resolution of city council.

(Ord. 1513, 2000; Ord. 1384, 1997)

4.60.050 Investigation; application review.

Upon receipt of a properly completed application, as determined by the city clerk, the city clerk

shall refer the application for investigation to the police department and to the city's building inspector and fire chief, who shall inspect the applicant's premises for compliance with the applicable provisions of the municipal code. The police department, building inspector and fire chief shall furnish the results of their investigations and inspections to the city manager. The city manager shall, within 30 days from the city clerk's receipt of a completed application, either grant the license or inform the applicant in writing that there is probable cause to believe that one or more of the grounds for denial as set forth herein exist and that the matter shall be set for a public hearing before city council. Such hearing shall be held within 20 days of the city's notice to the applicant. This hearing, as with all other hearings provided for in this chapter, shall, except as otherwise specified in this chapter, be in accordance with the administrative hearing procedure set forth in chapter 2.35 of the Code.

City council may deny an application if, after a public hearing, it finds by a preponderance of the evidence that the applicant provided false statements on the application; or failed to provide information reasonably necessary for the issuance of a license; or the applicant's premises and use is not in compliance with the applicable provisions of the Municipal Code; or a corporate applicant is not in good standing with the state; or where, because of an applicant's or any partner's, officer's, director's or stockholder's of more than ten percent of the outstanding shares of a corporation conviction of a specified criminal act as set forth herein in subsection 4.60.030(5)(a), or revocation, suspension, denial or non-renewal of an adult entertainment license, serious criminal conduct would result from the issuance of a license.

If an application is denied, the applicant shall be notified of such in writing by the city within ten days of the public hearing. The notice shall specify the grounds for denial and city council's findings regarding same. City council's decision may be appealed to the municipal court in accordance with the judicial appeals procedure. (Ord. 1686, § 8, 2004; Ord. 1513, 2000; Ord. 1384, 1997)

4.60.060 Transfer prohibited.

No license issued in accordance with this chapter may be transferred or assigned. (Ord. 1513, 2000; Ord. 1384, 1997)

4.60.070 Posting of license.

Each license issued in accordance with this chapter shall be posted on the licensed premises in a conspicuous location open to public view.

4.60.080 Suspension and revocation.

(1) City council may suspend an adult entertainment license for a period not to exceed six months if, following a public hearing, council finds that a licensee or a licensee's employee(s) have violated or are not in compliance with any provision of this chapter, refused to allow an inspection of the premises as authorized by this chapter is delinquent in any payment of taxes or fees due the city, or knowingly permitted an unlawful act upon the licensed premises.

(2) City council may revoke an adult entertainment license if, following a public hearing, council finds the license has been suspended within the preceding 12 months, that a licensee has provided false information in the application process, or if a licensee or employee has knowingly allowed the possession use or sale of controlled substances as defined in Part 3 of Article 22 of Title 12 of the Colorado Revised Statutes (C.R.S.) on the licensed premises, prostitution on the licensed premises, operated an adult entertainment establishment when such establishment's license was suspended or allowed any act of sexual intercourse, sodomy, oral copulation, masturbation or other sexual conduct to occur on the licensed premises.

(3) Public hearings, as provided within this section, shall be held within 20 days after notice of same to the licensee. The city shall notify the licensee in writing of city council's decision within ten days after the hearing. If a license is suspended or revoked, the notice shall specify the grounds for suspension or revocation, city council's findings regarding same and the effective dates for such suspension or revocation.

City council's decision may be appealed to the municipal court in accordance with the judicial appeals procedure.

(Ord. 1686, § 9, 2004; Ord. 1513, 2000; Ord. 1384, 1997)

4.60.090 Manager and employees' license required.

(1) Every employee of an adult entertainment establishment, including all managers, shall submit an application for an employee's license on a form provided by the city. The application shall include the employee's full name, aliases, if any, current address, telephone number and date of birth.

(2) Applications shall be forwarded to the City of Golden Police Department for investigation. The investigation shall be completed within ten days from the date a completed application is filed. After investigation, a license shall issue unless the city clerk determines that:

- (a) The applicant has made false, misleading or fraudulent statements of material fact in the application process; or
- (b) The applicant has failed to provide the information required by this section; or
- (c) The applicant has failed to pay the required annual license fee; or
- (d) The applicant has been convicted within the last ten years of any specified criminal offense as defined in subsection 4.60.030(5)(a) herein; or
- (e) The applicant has had an adult entertainment establishment employee license revoked by the city or any other governmental entity within five years from the date of the current application.
- (f) A license granted pursuant to this section shall be subject to annual renewal by the city upon the written application of the applicant and a finding that the applicant has not been convicted of any specified criminal act or committed any act during the existence of the previous license period which would be grounds to deny the initial permit application.

- (g) The annual license fee shall be set by resolution of city council. License fees are due in full at the time of application and shall be returned in full to the applicant if a license is not issued.

(Ord. 1513, 2000; Ord. 1384, 1997)

4.60.100 Minimum age requirements.

It shall be unlawful for any person under 18 years of age to be upon the premises of any adult entertainment establishment.

(Ord. 1609, 2003; Ord. 1513, 2000; Ord. 1384, 1997)

4.60.110 Hours.

It shall be unlawful for any adult cabaret, adult theater or sexual encounter establishment to offer live performances after 2:00 a.m. and before 7:00 a.m. each calendar day.

(Ord. 1513, 2000; Ord. 1384, 1997; Ord. 1148, § 3, 1992)

4.60.120 Lighting requirements.

(1) All off-street parking areas and premises entries of adult entertainment establishments shall be illuminated from dusk to closing hours of operation with a lighting system which provides an average maintained horizontal illumination of four-foot candle of light on the parking surface and/or walkways.

(2) The premises of all adult entertainment establishments, except adult motion picture theaters, shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access and to provide an illumination of not less than two-foot candle of light as measured at the floor level.

(3) Adult motion picture theaters and adult arcades shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access and to provide an illumination of not less than one-foot candle of light as measured at the floor level. (Ord. 1513, 2000; Ord. 1384, 1997)

4.60.130 Standards of conduct—Live performances or performers.

All employees or performers of adult entertainment establishments, which offer, conduct or maintain live adult entertainment shall adhere to the following standards of conduct:

- (1) No employee or performer shall mingle with patrons or serve food or drinks while nude.
- (2) No employee or performer shall encourage or knowingly permit any person upon the premises to touch, caress or fondle the breasts, buttocks, anus or genitals of any other person.
- (3) No employee or performer shall perform any obscene acts, which simulate specified sexual activities.
- (4) No live adult entertainment performance shall be visible anywhere outside of the licensed establishment.
- (5) All performances shall take place upon a stage, which shall be fixed and immovable. No audience seating shall be permitted within three feet of any edge of the stage. No audience member shall be permitted upon the stage or within three feet of any edge of the stage.

(Ord. 1513, 2000; Ord. 1384, 1997)

4.60.140 Additional requirements.

(1) All interior doors of any adult entertainment establishment, except restrooms, which provide access to any public area, shall remain unlocked at all times during which patrons are upon the premises.

(2) Adult bookstores, adult novelty stores and adult video stores shall display all adult materials so that they cannot be seen, or are accessible to any person other than patrons who have entered the licensed premises.

(3) Any licensee who operates or causes to be operated an adult entertainment establishment which exhibits on the premises in a viewing room of less than 150 square feet of floor space (peep booth), a film, slides, video cassette, laser disc, digital video discs or other photographic reproduc-

tion which depicts sexual activities or specified anatomical areas shall, in addition to all other requirements of this chapter, comply with the following:

- (a) There shall be a manager's station(s) located within the premises from which there shall be an unobstructed line of sight to each booth, room or cubicle, except restrooms, upon or within which patrons are permitted access. Restrooms shall not contain video display equipment. The line of sight shall remain unobstructed at all times when patrons are upon the premises. At least one employee shall be on duty and situated at each manager's station(s) at all times when patrons are upon the premises.
- (b) All booths shall be accessible to and from public areas and any door; screen or covering which prevents an unobstructed view into such booth from public areas or a manager(s) station shall be prohibited.
- (c) All booths must be separated from other viewing booths by a solid, uninterrupted physical divider, which is a minimum of one-quarter inch thick and prevents any physical contact between occupants of any booth.
- (d) No booth may be occupied by more than one person at any time.

(4) It shall be unlawful for any adult bookstore, adult novelty store or adult video store to allow adult material to be visible or accessible to any person under 18 years of age.

(Ord. 1513, 2000; Ord. 1384, 1997; Ord. 1148, 1992)

4.60.150 Right of entry.

The application for an adult entertainment establishment license shall constitute consent of the licensee and such licensee's agents or employees to permit the City of Golden Police Department or any other agent, employee or representative of the City of Golden to conduct routine

inspections of the adult entertainment establishment during the hours the establishment is open for business.

(Ord. 1513, 2000; Ord. 1384, 1997)

4.60.160 Exemptions.

It shall be an affirmative defense to prosecution under this chapter if a person appearing nude did so in a modeling class operated:

- (1) By a school, licensed by the State of Colorado; a college, junior college or university supported entirely or partly by taxation;
 - (2) By a private college or university which maintains and operates educational programs in which credits are transferable to a college, junior college or university supported entirely or partly by taxation; or
 - (3) In a structure:
 - (a) Which has no sign visible from the exterior of the structure and no other advertising that indicates a nude person is available for viewing; and
 - (b) Where, in order to participate in a class, a student must enroll at least three days in advance of that class; and
 - (c) Where no more than one nude model is on the premises at any one time.
- (Ord. 1513, 2000; Ord. 1384, 1997)

Chapter 4.68

RESERVED*

Chapter 4.72

SOLID WASTE DISPOSAL SITE PERMITS

4.72.010 Issuance authority.

The city council shall have the power to issue solid waste disposal site permits for the temporary

***Editor's note**—Sec. 3 of Ord. No. 2103, adopted Feb. 28, 2019, repealed ch. 4.68, which pertained to community antenna television systems, consisted of §§ 4.68.010—4.68.050, and derived from Ord. 591, 1968; and Ord. 1092, 1990.

use of land in any zone district to dispose of solid wastes including materials such as brick, porcelain, gypsum, board, glass, concrete, dirt, rock, ashes, broken asphalt, plastic, general demolition rubble and other similar materials and water treatment plant sludge, and specifically not including normal combustible wastes, agricultural wastes, fecal material, garbage, sewage, and other types of sludge, domestic refuse, junk automobiles and other similar materials, pursuant to the procedures and regulations set forth in this chapter.

(Ord. 752, § 1(part), 1976)

4.72.020 Application—Contents.

A Golden solid waste disposal site permit application, complete in every material detail, shall be submitted to the city engineer's office. The application shall include:

- (1) A map or site plan, including a complete and accurate legal description of the site, and containing the following information:
 - (a) Locations of ingress and egress as well as the anticipated major haul routes to the site from solid waste generation centers;
 - (b) Safety precautions such as fencing, gates, lighting, signs, guards, flagmen, as well as proposed paving near points of ingress and egress;
 - (c) Locations of outer boundaries of the site and distances to adjacent property lines and occupied dwellings from such boundaries;
 - (d) Any existing natural or manmade hazards on the subject property and proposed corrective or precautionary measures therefor.
- (2) An engineering design criteria report prepared by an engineer licensed to practice in the state stating:
 - (a) The design of the disposal site will protect surface and subsurface waters from contamination. Surface water from outside the immediate working area of the disposal site

shall not be allowed to flow into or through the active disposal area. The design shall provide for the deflection of runoff from adjacent areas resulting from rain or melting snow. As filling continues to completion, the surface shall be sloped so that runoff water from adjacent areas is diverted away from the area where wastes have been or are being deposited. The design shall include methods of keeping ground water out of the area where wastes are deposited.

- (b) The operating procedures at the site and the site itself shall be designed to protect the quality of water available in nearby wells. The necessary distance from the wells is dependent in part on the direction of flow of ground water under the site and the means used in the design to prevent precipitation falling on the site from reaching the aquifer in question.
- (c) The soil used for covering the landfill operation will have sufficient adhesive characteristics to permit a workable earth cover.
- (d) The estimated amount of the performance guarantee required by section 4.72.080, not exceeding \$200.00 per acre, sufficient to reasonably assure the operator's faithful compliance with all terms, conditions, and restrictions of the permit shall be designated.
- (3) An operational plan containing the following information:
 - (a) The name(s) and title(s) of the person(s) who will be in charge of the disposal site and facility. Such name(s) shall be of person(s) having the responsibility for the operation as well as the authority to take all corrective actions necessary to comply with the requirements of the city engineer's office;
 - (b) The list of equipment to be used at the disposal site;
 - (c) The hours of operation of the site;
 - (d) A description of the solid waste materials to be disposed of;
 - (e) The firefighting equipment or department available for extinguishing fires;
 - (f) The frequency of cover of the deposited wastes;
 - (g) The frequency of retrieval of windblown debris;
 - (h) A contingency plan for eradication of rodents and insects;
 - (i) Procedures for implementing other aspects of the design.
- (4) A copy of the appropriate real property title document establishing that the applicant owns or has right to present possession of the site. If the applicant doesn't own the site, he must provide written authorization from the owner to operate a solid waste disposal site thereon.

(Ord. 752, § 1(A), 1976)

4.72.030 Application—Engineer's review.

The city engineer's office shall examine the application to determine that it is complete in every material detail. If the application is found to be complete in every material detail, the city engineer's office shall review the details of the plan and make written recommendation. The complete application and the recommendation shall be forwarded to the city council for setting for public hearing.

(Ord. 752, § 1(B), 1976)

4.72.040 Application—Posting of site.

The proposed site shall be posted by the city engineer's office with one or more signs not less than seven days prior to the date of hearing. The signs are to be in prominent locations and to remain in place for the full seven-day period. The signs shall contain the name of the applicant, description or street address of the property concerned, a brief statement describing the

application, and the time and place of the hearing. The number of signs to be posted and the locations thereof shall be determined by the city engineer as necessary for the site and sufficient in number and location to provide adequate public notice.

(Ord. 752, § 1(C), 1976)

4.72.050 Application—Public hearing.

The city council shall hold a public hearing concerning the application for permit. At the conclusion of the hearing, the city council shall make a final decision on the application after determining that the following minimum standards will be met:

- (1) Such site and facilities will be located, operated, and maintained in a manner so as to control obnoxious odors, and to prevent rodent and insect breeding and infestation.
- (2) Such site and facilities will comply with the applicable laws, standards, rules and regulations of the air pollution control commission and the water pollution control commission, and all applicable zoning laws and ordinances.
- (3) Such operation plans, site, and facilities will provide means of finally disposing of solid wastes on land in a manner to minimize nuisance conditions such as odors, windblown debris, insects, rodents and smoke and shall provide for compacted fill material, adequate cover with suitable material and surface drainage designed to prevent ponding and water and wind erosion, prevent water and air pollution and, upon being filled, the site shall be left in a condition of orderliness, good esthetic appearance, and blended with the surrounding area. In the operation of such a site and facility, the solid wastes shall be distributed in the smallest area consistent with equipment and traffic considerations, shall be placed in the most dense volume practicable using moisture and compaction or other methods approved by the city engineer, shall be fire, insect and rodent-resistant through

the application of an adequate layer of inert material at regular intervals, and shall have a minimum of windblown debris which shall be continually collected and placed into the fill.

- (4) Such site and facilities shall be fenced, if necessary, to prevent waste materials and debris from escaping therefrom, and material and debris shall not be allowed to accumulate along fence lines.
- (5) Solid wastes deposited at the site or facility shall not be burned; provided, however, that in extreme emergencies resulting in the generation of large quantities of combustible materials, authorization for burning under controlled conditions may be given by the health department.
- (6) No radioactive materials or materials contaminated by radioactive substances will be disposed of in sites or facilities not specifically designated for that purpose.

(Ord. 752, § 1(D), 1976)

4.72.060 Term; renewal; review.

Permits granted under this chapter shall not exceed a term of ten years from the date of issuance. Such permits may be temporarily suspended or permanently revoked at any time for a serious and substantial violation of one of the terms or conditions of the permit following adequate notice to the operator and complete public hearing on the issues. The city council may renew and/or expand the permit upon appropriate showing of need by the operator. The city council shall review the operation of the solid waste disposal site at least once every year to see that the terms and conditions of the permit are being complied with.

(Ord. 752, § 1(E), 1976)

4.72.070 Indemnity; city not liable.

Before the permit is issued, the operator must provide a suitable indemnity clause, or alternatively, liability insurance in which the operator agrees to hold harmless and indemnify

the city from all claims, legal or equitable, including court costs and reasonable attorney's fees arising out of the operation of the site.
(Ord. 752, § 1(F), 1976)

4.72.080 Performance guarantee—Surety amount specified.

A performance guarantee in an amount acceptable to the city council shall be submitted before the permit is issued. The performance guarantee shall be in the form of a surety bond, irrevocable letter of credit from a commercial bank, or cash escrow fund in an amount sufficient to reasonably assure the faithful compliance with all terms, conditions and restrictions of the permit, naming the city council as obligee, and remaining in force and effect until the site operation is terminated and proper reclamation of the site has been completed. The amount of such surety shall be sufficient to cover the cost of reclaiming the site to a safe condition, but in any event, not more than \$200.00 per acre.
(Ord. 752, § 1(G), 1976)

4.72.090 Site inspections.

The city engineer's office shall make periodic inspections of the site. The inspectors shall notify the operator of any existing permit violation, offer recommendations for its correction, and give the operator a reasonable amount of time to correct the violation. If the operator fails to correct the violation within a reasonable amount of time, violation procedures as set forth in section 4.72.120 may be instituted. The city engineer's office shall make a final inspection of the completed site before the earthmoving equipment is removed. All necessary corrective work shall be performed before the site is accepted as completed and the performance guarantee released.
(Ord. 752, § 1(H), 1976)

4.72.100 Grading permit not necessary.

The operator shall not be required to apply for or obtain a city grading permit as the application terms and conditions required for the site permit provide adequate grading controls.
(Ord. 752, § 1(J), 1976)

4.72.110 Other land uses not affected.

Nothing in this chapter or in the permit granting procedure shall be construed to control uses or activities other than the solid waste disposal operations and uses and activities related directly thereto.
(Ord. 752, § 1(K), 1976)

4.72.120 Violations.

Upon receipt of reported permit violations from the city engineer's office, the city council shall notify the operator in writing of the alleged violation and set the matter for hearing before the city council not less than 30 days after the operator receives the notice. At the hearing, the city council shall hear statements and take evidence concerning the alleged violation from the operator and other interested persons. At the conclusion of the hearing, the council shall either withdraw the notice of violation, give the operator a reasonable amount of time to correct the violation, or instruct the city attorney to institute proceedings to have the performance guarantee forfeited and/or institute a nuisance injunction action similar to that authorized in C.R.S. 30-20-113, 1973.
(Ord. 752, § 1(I), 1976)

**Chapter 4.76
RESERVED***

**Chapter 4.80
SOLID WASTE COLLECTION AND
RECYCLING SERVICES**

4.80.005 Legislative intent.

It is the intent of the city council that the definition of solid waste set forth herein does not include any substance or article prohibited from being deposited in a landfill either by the landfill operator or any applicable local, state or federal laws or regulations.
(Ord. 1991, 2014; Ord. 1127, 1991)

***Editor's note**—Sec. 4 of Ord. No. 2103, adopted Feb. 28, 2019, repealed ch. 4.76, which pertained to massage parlors, consisted of § 4.76.010, and derived from Ord. 794, 1978.

4.80.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall unless the context specifically provide otherwise have the meanings ascribed to them in this section:

Collector shall mean the person or entity providing collection service.

Commercial customers shall mean any premises utilizing collection service where a commercial, industrial or institutional enterprise is carried on, including, without limitation, retail establishments, restaurants, hospitals, schools, day care centers, office buildings, nursing homes, clubs, churches and public facilities.

Communal system for the collection of waste shall mean an arrangement for the collection of waste from multiple properties or residences using collection containers shared by those properties or residences.

Curbside shall mean at or near the perimeter of the premises, whether or not there is a curb, but does not mean or permit placement on the sidewalk or in the street. If the curb and any sidewalk are of unitary construction, the term means behind the sidewalk.

Curbside collection shall mean the collection of solid waste or recyclables placed at a curbside location or within a dumpster site.

Electronic equipment shall mean any electronic device or electronic component as those terms are defined in the Colorado Hazardous Waste Regulations, 6 Code of Colorado Regulations 1007-3, Section 260.10.

Group account shall mean a customer account for solid waste collection services that provides for collection of waste from multiple residential customers, regardless of the method by which such services are contracted or arranged. An account for service arranged by a single property owner for collection of solid waste from multiple locations owned by that property owner shall not constitute a group account for the purposes of this chapter.

Homeowners' association shall mean those group accounts which are a covenant-controlled

community containing two or more residential property owners, which includes a lawfully constituted and operational board or other similar entity that is empowered to enforce the community's recorded covenants and which has the power to impose assessments.

Household recycling container shall mean bags, bin-type containers, carts or bulk-volume dumpsters and plastic receptacles used for storing and setting out recyclable materials.

Multifamily customers shall mean residential properties of more than seven units for which there is a communal system for the collection of solid waste.

Poly-cart shall mean a durable, plastic, wheeled container with a hinged lid, manufactured and used for the collection of recyclable materials or for the collection of refuse.

Qualified recycling facility shall mean a facility that arranges for or causes the recovery of useful materials from one or more specified recyclable materials including items for reuse, and shall be deemed to include only a facility that meets any federal or state standards that may be established to regulate or designate such recycling facilities.

Recyclable materials shall mean materials which have been separated from solid waste and can be recovered as useful materials and are properly prepared for the purpose of recycling, provided that such materials have been designated by the city as recyclable.

Recycling shall mean the process of recovering useful materials from solid waste, including items for reuse.

Refuse shall mean solid waste.

Residential customers shall mean residential properties for which a communal system for the collection of waste is not employed.

Service shall mean collecting, transporting or disposing of solid waste or recyclable materials.

Solid waste shall mean all putrescible and nonputrescible waste, excluding discarded or abandoned vehicles or parts thereof, sewage, sludge, septic tank and cesspool pumpings or

other sludge, discarded home or industrial appliances, hazardous wastes, materials used as fertilizers or for other productive purposes and recyclable materials which have been source separated for collection.

Solid waste collector shall mean the person who provides solid waste collection service on a regular, recurring schedule.

Source separation shall mean to separate recyclable materials from solid waste at the waste source.

(Ord. No. 2021, § 1, 12-10-2015; Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.015 License requirement.

(a) *License required.* It shall be unlawful for any person to operate as a solid waste collector within the city without first obtaining a license for such activity from the city.

(b) *Exemptions.* The following persons or entities are not required to obtain a solid waste collection license:

- (1) A civic, community, benevolent or charitable nonprofit organization that collects, transports and markets materials for resource recovery solely for the purpose of raising funds for a charitable, civic or benevolent activity;
- (2) A person who transports solid waste or recyclable materials produced by such person;
- (3) A property owner or agent thereof who transports solid waste or recyclable materials left by a tenant upon such owner's property, so long as such property owner does not provide solid waste collection service for compensation for tenants on a regular or continuing basis;
- (4) A demolition or construction contractor or landscaper who produces and transports solid waste in the course of such occupation, where the solid waste

produced is merely incidental to the particular demolition or construction work being performed by such person.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 1118, § 7, 1991; Ord. 870, § 1(part), 1981)

4.80.020 Solid waste collection requirements.

(a) *Volume-based rates.*

- (1) Effective January 1, 2016, all solid waste collectors operating within the city shall charge all residential customers and group accounts, on the basis of the volume capacity (or volume capacity category) of the containers of solid waste placed for collection by each residential customer. The amount to be charged for such containers shall be determined by each solid waste collector; provided, however, that no volume capacity category shall exceed a range of variation in volume capacity of more than 32 gallons. Collectors shall determine a rate for the 32-gallon service, and that rate shall be used to determine the rates for all other service levels. Said charges shall be based upon the container size, rather than the volume of solid waste actually deposited within such containers by the residential customers. The charge for additional containers of the same volume capacity (or volume capacity category) shall be no less than the charge for the first such container. The charge for prepaid bags or labels or for solid waste volumes in excess of the residential customer or group account individual residential customer's service subscription level shall be by volume capacity and shall be proportional by volume to the collector's standard rate for a 32-gallon container. Solid waste collectors shall not be required to provide the volume based rates and services set forth in this section to any homeowners' association that has a valid exemption from the city, which exempts the homeowners' association from participation in the city's residential waste collection services program.

- (2) In order to further ensure that the charge for the collection of solid waste is based upon volume as required above, all solid waste collectors shall provide each residential customer and each individual residential customer of a group account disposable bags, or labels to be attached to non-disposable containers, showing the volume capacity (or volume capacity category) of such containers, or shall establish another system for accomplishing the same purpose which is acceptable to the city. A solid waste collector shall arrange for provision of service to each group account in a manner that results in an individual selection by each individual residential customer of a level of service from the full range of container sizes and levels of service offered by the collector.
- (3) In offering or arranging for services, a solid waste collector shall provide reasonable notice of the full range of bag or container sizes or levels of service offered by the collector, and shall provide to each residential customer and each individual residential customer of a group account that customer's requested container size or level of service.
- (4) It shall be unlawful for any person to knowingly attach any label to a container exceeding in volume the volume capacity (or volume capacity category) shown on, or represented by, such label, and to place said container for collection.
- (5) No solid waste collector shall collect or transport solid waste which has not been placed for collection in accordance with the requirements set forth herein or in bags or containers upon which labels have been attached. Upon emptying any such containers, the collector shall remove or otherwise void all non-compliant labels.
- (6) The provisions of this subsection shall not be construed as prohibiting any collector from also establishing rules and regulations regarding the maximum weight of containers of solid waste and/or recyclable materials.
- (7) A collector shall not collect any overloaded container unless the collector accounts for and bills the residential customer or group account the appropriate fee or charge for the collection of excess solid waste. Loading of a container so as to prevent the lid of the container from closing securely shall be deemed to be overloading of the container for the purposes of this provision. The determination of overloading and charges therefore shall be made on an individual pick-up date basis, and there shall be no "averaging" of pick-up volumes to allow for overloading at one time offset by a low volume at another time.
 - (b) *Fixed fees.*
 - (1) In addition to the volume-based rates required pursuant to subsection (a) above, solid waste collectors may, but are not required to, charge a fixed fee for solid waste collection services where only bags or tags are used by customers rather than reusable containers for the purpose of covering the fixed operational costs of routing service trucks for such collections. Surcharges for fuel or other special surcharges or fees shall be deemed to constitute a fixed fee and shall be permitted and charged only as set forth in this subsection.
 - (2) If a solid waste collector elects to charge such fixed fee, said fee shall not exceed 35 percent of the monthly volume-based rate charged for one 32-gallon container per week.
 - (3) In the event that a solid waste collector elects to establish a fixed fee, all bills for services provided by such collector to group accounts shall clearly show the individual residential customer(s) and both the fixed fee and the volume-based rate.
 - (c) *Refusal of recyclable materials.* In the event that a collector refuses to collect any bag or container because it contains materials required to be recycled under this chapter, the collector shall not be required under this section to credit

the residential customer or group account for such refused bag or container. A collector shall not collect materials required to be recycled under this chapter.

(Ord. No. 2021, § 2, 12-10-2015; Ord. No. 2009, § 1, 5-14-2015; Ord. 1991, 2014)

4.80.025 Recycling requirement.

(a) Curbside/on-site collection.

- (1) Each solid waste collector licensed by the city shall make available to its multifamily and commercial customers, and other customers receiving solid waste collection services through a communal system of waste collection, at the customer's option, curbside collection of recyclable materials. Notwithstanding the foregoing, the offer of collection of recyclable materials pursuant to this subsection shall not be required if the collector provides documentation satisfactory to the city verifying that there is not sufficient space available to allow the placement of recycling containers without encroaching on needed parking areas or on the sidewalk or street, or without impairing or impeding bicycle, pedestrian or vehicular traffic.
- (2) Each solid waste collector shall provide to each residential customer and each individual residential customer of a group account, as a part of any solid waste collection services provided by such solid waste collector, the collection at curbside of both solid waste and recyclable materials. No such collector shall be permitted for any reason to divide or diminish the provision of said basic service at the request of a residential customer or a group account or individual residential customer of such account.

(b) Collection of recyclable materials; rights and duties of collectors. All collectors of solid waste and recyclable materials shall have the following duties and rights:

- (1) Except for materials which customers have not properly prepared for recycling, collec-

tors may not commingle designated recycle materials with solid waste, nor dispose of recyclable materials set out by recycling customers by any means other than at a qualified recycling facility.

- (2) On or before January 1, 2016, collectors must provide to each solid waste residential customer and each solid waste individual residential customer of a group account who utilizes curbside recycling services within the city a poly-cart or similar container or bags for storing and setting out recyclable materials meeting the requirements of this subsection, clearly marked as a recyclables container or bag with words or symbols or both. Collectors must annually offer each residential recycling customer and each individual residential recycling customer of a group account, in writing, a choice of at least two sizes of poly-cart or similar containers or bags which at a minimum must be at least 64 gallons in capacity, one of which must be at least 96 gallons in capacity. The collector must provide the requested poly-cart or similar container without additional charge to such customer, except that the collector may require the payment of a refundable damage or loss deposit or a charge for lost or damaged poly-carts or similar containers, not to exceed the actual cost of the container. The collector must provide a poly-cart or similar container to any customer at any time upon request within one billing period after the request is made.
- (3) The collector may establish such reasonable and industry-accepted requirements for the preparation of materials for recycling as are necessary to provide for the orderly collection of recyclable materials, including requirements regarding the preparation of materials for collection, the collection of recyclable materials and requirements for source separation.
- (4) In the event that a collector elects to perform collection of solid waste or recyclable materials through subcontractors or agents, such agency relationship shall

not relieve the collector of responsibility for compliance with the provisions of this chapter and the rules promulgated hereunder.

- (5) All recyclable materials placed for collection shall be owned by and be the responsibility of the customer until the materials are collected by the collector. The material then shall become the property and the responsibility of the collector. No person other than the customer or the collector of recyclable materials shall take physical possession of any recyclable materials placed for collection.
- (6) Any vehicle used for the collection of recyclables must be clearly and unambiguously marked as a recycling truck, whether by permanent decals or markings, or by signage or placards displayed at all times during such use.

(c) *Frequency of collection.*

- (1) Curbside recycling collection services shall be provided on at least a once-weekly basis and on the same day of the week as the day of collection of solid waste from the group account customers. After January 1, 2016, or after a collector has offered and made available to its residential and or group account residential customers poly-cart or similar recycling containers or bags, whichever first occurs, said collector may modify its recycling collection schedule as long as curbside recycling collection services are provided on the same day of the week as the day of collection of solid waste from the customer and no less frequently than two times per month.
- (2) Collectors providing collection services to multifamily and/or commercial customers shall provide services for the collection of recyclable materials from such customers who desire such services with such frequency as is necessary to prevent overflow of the recycling containers.

(d) *Customer notification.*

- (1) Upon the initial provision of solid waste collection services to new customers, and on or before December 31 of each year with respect to existing customers, collectors shall notify in writing such customers of the availability of the collection of recyclable materials, the range of polycart recycling containers available, the materials designated for recycling collection and such rules and regulations as have been established by the collector for the orderly collection of recyclable materials. Such notice shall as to residential customers and group accounts include notification of the variable-rate solid waste collection service options offered by the solid waste collector and the related volume-based rates and fixed charges.
- (2) The form of notice shall be submitted to the city for review for consistency with the requirements of this chapter, and to ensure that the notice is sufficient to fully inform customers of the availability of recycling and level of service options.
- (3) For group accounts, the notices required hereunder may be sent to the group representative for said account, provided that such notice shall further notify said representative of its obligation to notify all individual residential customers within the group of the availability of recycling services and the terms of variable-rate service options.
- (4) All verbal and written communications with customers by or on behalf of a collector, whether in person, by telephone, in written form or through any other means, must be consistent with and clearly and accurately describe, as applicable, all components of the system employed by the collector to provide and charge for variable-rate solid waste collection and recycling services.
- (5) The collector shall deliver to the city's sustainability coordinator a true and cor-

rect copy of each form of such notification sent on or before December 31 of each year.

(Ord. No. 2009, § 2, 5-14-2015; Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.030 Designation of recyclable materials.

(a) The city shall maintain a list of recyclable materials, which shall be posted on the city's website and available at the offices of the public works department. The list may be amended from time in consideration of factors, which include, but are not limited to, the following;

- (1) Local, state and federal laws and regulations, including, but not limited to, the requirements of this chapter;
- (2) Potential for waste stream reduction;
- (3) Availability of markets;
- (4) Market price;
- (5) Safety factors and risks of transportation; and
- (6) Risks of commingling of liquid wastes.

(b) Notwithstanding the foregoing, collection for recycling of electronic equipment shall be at each collector's option; provided, however, that no collector providing collection services for electronic equipment may dispose of any such electronic equipment, but instead shall deliver any collected electronic equipment for recycling at a qualified recycling facility for electronic equipment.

(c) All collectors shall be responsible for notifying their customers of the items identified to be recycled.

(Ord. 1991, 2014)

4.80.035 Application for license.

(a) Any person desiring to obtain a license to engage in the business of solid waste collection shall make written application to the office of the city clerk on forms provided by the city. All applications for renewal of a license by a licensed collector must be submitted no later than Novem-

ber 30 in advance of the new license year. The application shall include, without limitation, the following information:

- (1) The name and address of the applicant;
- (2) The principal place of business activity if different from the applicants address;

- (3) A list of vehicles owned and/or operated by the applicant directly in the collection of solid waste and/or recyclables, or operated or located at any time in the city during the current or pending license year, including vehicle make, color, year, U.S. Department of Transportation safety inspection identification number, cubic yard capacity, Colorado license plate number and empty tariff weight.
- (4) A description of the system to be used to account for and charge volume-based rates, as required for all residential customers and group accounts and a plan describing the structure and operation of the recycling collection services to be offered to each customer class. The description of the system shall include a detailed description of the means by which individual residential customers of a group account are notified of the full range of sizes of bags or containers provided for solid waste collection and by which all customers are provided curbside recycling. In addition, the description shall provide sufficient detail to allow the city to determine the means by which volume-based rates are applied to individual residential customers of a group account receiving solid waste-hauling services, such as the formula used to set volume-based rates, and the methods used to offer and account for the volume-based charges.

(b) The city clerk shall determine whether an application meets the requirements of this chapter, and whether all taxes, fees, penalties, interest or other financial obligations of the applicant to the city have been met, and whether the applicant is in current compliance with the requirements of this chapter. The city clerk may request such additional information as he or she deems relevant to a determination of whether the requirements of this chapter will be met by the applicant. The city clerk may deny any application if the city clerk reasonably determines that any requirements of this chapter will not be met by the operation proposed by the applicant, or if the applicant is ineligible for a license under the terms of a revocation by the city manager.

(c) Upon a determination by the city clerk of whether a license shall issue under this section, the city clerk shall give written notice to the applicant of his or her decision thereon. An applicant whose application has been denied may, within 20 days after such decision is mailed, petition the city manager for a hearing on the denial. The city manager shall notify the applicant in writing of the time and place of the hearing. After such hearing, the city manager shall make such order in the matter as he or she deems just and proper and shall furnish a copy of such final order to the applicant.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.040 License requirements; fees and insurance.

Upon approval of a license application, but prior to issuance, the collector shall furnish the city clerk the following:

- (1) An annual license fee in the amount determined by resolution of city council for each vehicle identified by applicant as providing services within the city.
- (2) Proof that the collector has obtained a general comprehensive liability/automobile insurance policy protecting the collector from all claims for damage to property or for bodily injury, including death, which may arise from operations under or in connection with this license and providing limits of coverage of not less than \$1,000,000.00 for bodily injury and property damage per occurrence or in the aggregate.
- (3) Proof that each vehicle identified as providing service within the city has been registered with the U.S. Department of Transportation.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.045 Term of license.

All licenses issued pursuant to this chapter shall run from the date of issuance until the thirty-first day of December of the year in which

such license is issued. All licenses shall expire on December 31 of each year. Licenses are not transferable or assignable.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.050 Plans, recordkeeping and reports.

(a) Each collector must accurately and completely account for and record, and report to the city using a form provided by the city, the following:

- (1) The specific manner in which solid waste collection and recycling services have been delivered in compliance with this chapter, including, but not limited to, a complete list of all rate schedules used to charge for such services, as well as the frequency of collection of solid waste collection and recycling services;
- (2) A description of any system used to impose and verify charges for solid waste volumes in excess of customer subscription levels;
- (3) The number of residential accounts, group accounts, including all individual residential customers within such account(s), multi-family and commercial customers who received solid waste collection from the collector, by category; and
- (4) The number of customers within each category that subscribe to each level of solid waste and recycling services, as well as the number of customers that utilize prepaid bag or tag services, and the number of recycling poly-carts or similar containers provided to customers, by size of such carts and containers.

(b) Prior to implementation of any substantial change of its operational systems, plans or structures which are required to be reported for issuance of a license or annually hereunder, the collector must submit such changes to the city for its review.

(c) All information submitted to the city pursuant to this section shall constitute public information, except as otherwise provided in the Colorado Open Records Act C.R.S. 24-72-100.1 et seq.

Any such information constituting confidential customer records or financial proprietary information and identified as such by the licensee shall be maintained as confidential and not subject to disclosure by the city, unless otherwise required by court order or as agreed by the party-in-interest. If the city receives a request for public inspection or a request for release of any collector's customer records or collector financial information to a third party, the city shall provide timely notice of such request to the licensee.

(d) Each collector licensed pursuant to this chapter shall maintain accurate and complete records of the services provided to each residential customer, group accounts, including all individual residential customers within such account(s), multi-family and commercial customers, the charges to such customer and payments received, the form and recipients of any notice required pursuant to this chapter, and any underlying records, including any books, accounts, contracts for services, written records of individual level of service requests, invoices, route sheets or other records necessary to verify the accuracy and completeness of such records. It shall be the duty of each collector to keep and preserve all such documents and records, including any electronic information, for a period of three years from the end of the calendar year of such records, except for paper records of route sheets, which may be discarded one year after the end of the calendar year of such route sheets.

(e) Promptly upon a request by the city clerk or the clerk's authorized designee in connection with an audit or other investigation he or she has initiated, a licensee shall make the records retained pursuant to this chapter available, at its place of business or in such other reasonably convenient location as the licensee shall specify, for review by the city clerk or the clerk's authorized designee for the purpose of enforcing the requirements of this chapter.

(f) A licensee shall make available for review by the city such records in its possession as may be relevant to the investigation of any complaint regarding such licensee that has been submitted to the city or is under investigation by the city.

(g) All collectors shall accurately and completely report to the city the following information, which shall be deemed to constitute public information:

- (1) Number of tons of solid waste collected in the city from all residential, group account, multifamily and commercial customers, and any other customer category, reported by category of customer. The weight of solid waste collected shall be documented and verified based on actual load weight measurements of a representative solid waste load no less frequently than on a calendar quarter basis, using a scale certified by the State of Colorado, which actual weight information shall also be described and reported.
- (2) Number of tons of each type of recyclables collected through the commercial and multifamily recyclables collection program.
- (3) Number of tons of each type of household recyclables collected through the residential and group account curbside recyclables collection program.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.055 Disposal of solid waste.

All licensees shall dispose of all solid waste only at a disposal site which approved by the State of Colorado.

(Ord. 1991, 2014)

4.80.060 Identification and vehicle equipment standards.

Each vehicle used by the licensee in the performance of collection services shall bear an identification sticker issued by the city clerk, which must be affixed in a conspicuous location upon the vehicle, which identification sticker shall be issued by the city clerk at the time the license is granted.

Each vehicle used for collections services shall have a permanent cover which encloses the entire

area of any open bed and all collection vehicles must be constructed so as to contain all solid waste within the vehicle.

(Ord. 1991, 2014; Ord. 1127, 1991; Ord. 870, § 1(part), 1981)

4.80.065 Hours of operation.

No collector shall operate any vehicle for the purpose of collection of solid waste or recyclable materials on any street designated by the city as "local residential" or "residential collector" between the hours of 7:00 p.m. and 7:00 a.m.

(Ord. 1991, 2014)

4.80.070 Investigation of reports, records and other items relating to compliance with this chapter.

For the purpose of ascertaining the correctness of any reports, plans or other documents submitted or required to be prepared and maintained by a licensed collector pursuant to this chapter, or for the purpose of determining compliance with any requirements of this chapter of any person, whether or not the same is licensed under this chapter, the city clerk or the clerk's authorized designee may hold investigations, including audits, and hearings concerning any matters covered by this chapter, and may examine any relevant books, papers, records or memoranda of any such person and may require the attendance of such person, or any officer or employee of such person, or of any person having knowledge of transactions involved, and may take testimony and proof of the information. Except for routine or random audits, any such investigation shall be based upon reasonable suspicion of a violation as determined by the city clerk or the clerk's authorized designee. The city shall provide advance notice to the affected solid waste collector of its intent to conduct an investigation under this section, unless the city clerk or the clerk's authorized designee determines that provision of such notice may compromise the purpose of the investigation.

(Ord. 1991, 2014)

4.80.075 Suspension or revocation of license.

The city manager may, after written notice of no less than 14 days and an opportunity for a

hearing if requested by the licensee to be held within 30 days of such notice, suspend or revoke any license issued under this chapter if the city manager finds by a preponderance of the evidence that the licensee has failed to comply with any provision of this chapter or has violated other applicable laws intended to protect the public health, safety or the environment. No period of suspension shall exceed six months in duration. In the event of a revocation of a license, the city manager may further declare such licensee ineligible for licensure under this chapter for a period of up to one year from the date of revocation, if he or she reasonably determines that the circumstances so warrant. In lieu of suspension or revocation of a license under this section, or as a condition of future eligibility for licensure, if a licensee is declared ineligible for the same, the city manager may establish reasonable terms and conditions for continuation of a license or such future eligibility. A license shall be subject to immediate suspension in the event of violation of any such terms and conditions for continuation of a license. The city manager may appoint an independent hearing officer to perform any or all of the manager's duties of set forth in this section. (Ord. 1991, 2014)

4.80.080 Notices.

All written notices required to be mailed, served or given to any person under the provisions of this chapter shall be hand delivered or mailed, postage prepaid, addressed to such person at the last known address of such person on file with the city and shall be deemed to have been received by such person when so mailed or delivered. (Ord. 1991, 2014)

4.80.085 Review of decisions of the city manager.

Any license or other person subject to final action of the city manager or as applicable the independent hearing officer under this chapter may apply for review of such action in the Jefferson County District Court in accordance with Rule 106 (a)(4) of the Colorado Rules of Civil Procedure. (Ord. 1991, 2014)

4.80.090 Violations.

It shall be unlawful for any person to:

- (1) Fail or refuse to make or file any record, report, application or other document required to be made or filed by this chapter or to make any false or fraudulent record or report or any false or fraudulent statement in any such document;
- (2) Operate as a solid waste collector within the city without the license required by this chapter or to continue to do business during a period of suspension of such license or after such license is revoked; or
- (3) Aid or abet another in any attempt to evade any requirements imposed by this chapter.

(Ord. 1991, 2014)

4.80.095 Additional regulations.

The city clerk and or the city manager in regards to the duties and responsibilities imposed upon them pursuant to this chapter may make such additional rules and regulations as either deem necessary or convenient for the administration and enforcement of this chapter. (Ord. 1991, 2014; Ord. 1127, 1991)

4.80.100 Exclusion.

The city's contractual residential waste collection service provider, as set forth in chapter 4.82 of the Code shall in the performance of its contractual duties be exempt from any rule, regulation or requirement of this chapter during the pendency of its contract with the city. (Ord. 1991, 2014; Ord. 1868, § 1, 2010)

Chapter 4.82

RESIDENTIAL WASTE COLLECTION SERVICES

4.82.005 Scope.

The provisions of this chapter shall unless otherwise specified apply only to the service provider(s) currently under contract with the city to provide residential waste service collection. (Ord. 1868, § 2, 2010)

4.82.010 Definitions.

For the purposes of this chapter, the following words and phrases shall mean as follows, unless specifically designated otherwise.

Director means the community and economic development director or such person's authorized designee.

Homeowners' association means any covenant-controlled community containing two or more residential property owners, which includes a lawfully constituted and operational board or other similar entity that is empowered to enforce the community's recorded covenants and which has the power to impose assessments for its services that, if unpaid, may be made a lien on the property.

Recyclable materials means those goods or items deemed by the city as single stream recyclables collected and transported in accordance with the city's residential waste collection services program.

Residential waste means solid waste, as such terms are defined in section 4.80.010 of the Code, which are generated from residential sources and other discarded goods subject to collection in accordance with the city's residential waste collection services program.

Residential waste collection services means the collection and transportation of residential waste and recyclable materials by the city's designated service provider(s) from participants in the city's residential waste collection services program.

Waste and recycling containers means, for those persons subject to the city's residential waste collection services program, a wheeled cart suitable for mechanical lifting with a lid for containment and setting out waste or recycling for collection in sizes of approximately 32 gallons, 64 gallons, and/or 96 gallons, or such other standard size container as staff deems appropriate.
(Ord. No. 2022, § 1, 12-10-2015; Ord. 1992, 2014; Ord. 1868, § 2, 2010)

4.82.015 Waste handling and collection requirements.

(a) Prior to being deposited for collection, all residential waste shall be drained of liquid and wrapped tightly and sealed in paper or plastic to prevent spillage.

(b) Waste containers shall be provided by the city, or the city's designated residential waste collection service provider(s).

(c) No person shall place, leave, deposit or dispose of any waste on any street, alley or other public place, or on any private property, unless the waste is wholly contained within a proper container for collection. Any accumulation of waste in violation of this chapter is declared to be a nuisance and is prohibited.

(d) Waste containers shall be kept off the street, curb, sidewalk and all other public ways, except on the scheduled day of collection, and then only for a maximum of 12 hours before and 12 hours after the scheduled time of collection.

(e) Hazardous waste as defined by federal or state law, rule or regulation is not subject to collection and must be properly disposed of by residents at an authorized facility.
(Ord. 1868, § 2, 2010)

4.82.020 Recyclable materials handling and collection requirements.

(a) All recyclable materials shall be drained of liquid before being deposited for collection.

(b) Recycling containers shall be provided by the city or its designated residential waste collection service provider. Such containers shall be used only for collection of recyclable materials.

(c) No person shall place, leave, deposit or dispose of any recyclable materials on any street, alley or other public place, or on any private property, unless the materials are wholly contained within a recycling container or for those persons not subject to the city's waste collection services a container approved by the collector. Any accumulation of recyclable materials in violation of this chapter is declared to be a nuisance and is prohibited.

(d) Recycling containers shall be kept off the street, curb, sidewalk and all other public ways, except on the scheduled day of collection, and then only for a maximum of 12 hours before and 12 hours after the scheduled time of collection. (Ord. 1868, § 2, 2010)

4.82.025 Waste and recycling responsibility.

Waste and recyclable materials shall be gathered, deposited, disposed of and placed in the manner provided for in this chapter by the owner, tenant, lessee or occupant of the property, or the agent or contractor of any of the foregoing, and each of the foregoing persons may be held jointly and severally liable for any violation of this chapter. (Ord. 1868, § 2, 2010)

4.82.030 City residential waste and recyclable materials collection services.

(a) The city's designated residential waste collection service provider(s) shall furnish residential waste collection services as provided in this chapter for all residents within the city, except those specifically excluded in section 4.82.035 below.

(b) All waste and recyclable materials shall be placed in waste and recyclable containers by the owner, tenant, or occupant of each residence. Containers shall be placed in the street or alley adjacent to each residence on a schedule as established by the city. If there is no adjacent alley, containers shall be placed on the street in front of the residence.

(c) Bulk waste and recyclable material, as defined by the city, shall be removed by private arrangement with the city's residential waste collection services provider(s) or another licensed provider authorized to haul waste or recyclables within the city, or by the resident. Neither the city, nor its designated residential waste collection service provider(s), or licensed operators, shall have any obligation to collect or transport any waste or recyclables not in a proper container, or any containers not properly placed for collection.

(d) It shall be unlawful for any person to set out or allow to be set out, deposited, or stored for collection, any waste or recyclable materials other than that which has accumulated from the regular residential use of the premises upon which such waste or recyclables are set out, deposited, or stored for collection. (Ord. 1868, § 2, 2010)

4.82.035 Premises excluded from services.

Except as otherwise provided in this chapter, the city shall not provide residential waste collection services to the following:

- (a) All commercial and industrial establishments and multifamily residences containing eight or more units are excluded from the city's residential waste collection services program.
- (b) Residential properties that are part of a homeowners' association that was in existence as of May 13, 2010, shall be required to provide all its members either a volume based rate and service collection program as set forth in chapter 4.80 of the Code or be subject to the city's residential waste collection program fees unless the homeowners' association obtains and maintains an exemption from the city. To obtain an exemption, a homeowners' association must:
 - (1) Submit an application to the director on a form provided by the city by no later than December 31, 2015.
 - (2) Homeowners' associations which file a timely application will be granted an exemption which shall be valid thru December 31, 2017.
 - (3) Homeowners' associations seeking to continue the exemption must by no later than September 15, 2016 submit their waste diversion plan and documentation of actual waste diversion rate to the director as described in subsection (5) below.
 - (4) Such documentation must to the director's reasonable satisfaction, demonstrate through verifiable

- documentation, that the homeowners' association's waste diversion rate meets or exceeds the lesser of that rate set forth in the city's current sustainability goals or the actual rate demonstrated by the city's residential waste collection program.
- (5) Documentation shall include, but not be limited to, the total volume of residential waste, organics and recyclable materials collected from the homeowner's association for a sample period of at least four consecutive weeks during the period between July 15th and August 31st, a copy of the homeowners' association's waste diversion plan and documentation regarding the implementation, participation rate and results of the waste diversion program.
- (6) If the director determines that the homeowners' association's waste diversion rate meets (defined as within one-half percent) or exceeds the lesser of the city's current sustainability goals or the actual rate demonstrated by the city's residential waste collection program, the director shall notify the homeowners' association that the exemption shall remain in place for the duration of the two-year period.
- (7) If the director determines that the homeowners' association waste diversion rate does not meet or exceed the lesser of the city's current sustainability goals or the actual rate demonstrated by the city's residential waste collection program, the director shall notify the homeowner's association that they are in violation of the exemption provisions and that they will not receive any further exemption approvals unless a supplemental sample documentation submittal taken within a similar period, 12 months after the initial documentation described in subsection (5) above, demonstrates a diversions rate that meets or exceeds the lesser of the city's current sustainability goals or the actual rate demonstrated by the city's residential waste collection program.
- (8) To maintain an exemption, all of which thereafter shall be valid for two-year periods, a homeowners' association must, no later than 12 months prior to the expiration of an exemption, provide verifiable documentation that, to the directors reasonable satisfaction, demonstrates that the homeowners' association's waste diversion rate continues to meet or exceed the lesser of the city's current sustainability goals or the actual rate demonstrated by the city's residential waste collection program. All decisions of the director granting, renewing or denying an exemption shall be in writing with a copy provided to the homeowners' association.
- (9) In lieu of demonstrating compliance with the city's sustainability goals, a homeowners' association may obtain an exemption from providing its entire membership volume based rates and services or being subject to the imposition of the city's residential waste program fees by demonstrating, to the reasonable satisfaction of the director, that 100 percent of its membership participates in the city's contractual residential waste hauler's subscription organics service program. Such exemption shall be valid for one-year from the date of expiration of the original exemption and may be renewed annually upon the condition that the homeowners' association demonstrates to the reasonable satisfaction of the director that 100 percent of its membership has participated in the organics collection service program for the entirety of the preceding year.

- (10) Homeowners' associations not granted, a waste diversion or organic service participation exemption or a renewal of such exemption shall, within 120 days of the denial or non-renewal of an exemption, either provide the entire membership of the homeowners' association volume based rates and services as set forth in chapter 4.80 of the Code or be subject to the city's residential waste collection program fees, based upon as applicable either a group account or individual residents.

(Ord. No. 2022, § 2, 12-10-2015; Ord. 1868, § 2, 2010)

4.82.040 Residential waste and recyclable hauling.

Nothing in this chapter shall prohibit any person from contracting for or hauling one's own waste and recyclable materials, providing it is collected and disposed of in conformity with all applicable city ordinances, rules and regulations.

(Ord. 1868, § 2, 2010)

4.82.045 Residential waste collection services fee.

(a) City council shall, by resolution, establish the fee to be imposed for residential waste collection services. The fee shall be imposed on all city residents receiving city water service not excluded from residential waste collection service pursuant to section 4.82.035 above, regardless of whether the city's residential waste collection services are actually utilized by such resident. The fee shall be billed in conjunction with the charge for city water service and such fee shall be due and payable at the same time and place as the charge for water service.

(b) The fee for residential waste collection services and the charge for water service are hereby declared to be parts of one debt to the city insofar as the same affect any one resident, and the refusal or failure to pay any part of such debt for any period of service shall be sufficient cause for the city to avail itself of any or all remedies as

set forth and in accordance with the provisions of chapter 13.08 of the Code; provided, however, that water service shall not be disconnected for non-payment of the residential waste collection service fee.

(Ord. 1868, § 2, 2010)

4.82.050 Residential waste collection services accounting and budgeting.

The finance director shall segregate residential waste collection services, expenses and revenues separate from the general fund expenditures and revenues and provide a general accounting for the expenditures and revenues. For each budget cycle, a projection of residential waste collection services expenditures and revenues shall be made as part of the city budget process.

(Ord. 1868, § 2, 2010)

Chapter 4.84

LIQUOR AND BEER LICENSING

4.84.010 Establishment of authority; duties and powers.

The local liquor licensing authority ("authority") shall have all powers and duties granted to local liquor licensing authorities as set forth in Title 44, Articles 3, 4 and 5, C.R.S., as amended. The authority shall have the duty and authority to grant or refuse licenses for the possession, sale and offering for sale of malt, special malt, vinous or spirituous liquors and fermented malt beverages as provided by law, to conduct investigations as are required by law and to levy penalties against licensees in the manner provided by law.

- (a) *Composition, appointment, removal, and compensation.*

- (1) Subject to the delegation of authority set forth in subparagraph (2) below, the authority shall consist of a sole hearing officer who shall serve at the pleasure of city council. The hearing officer shall be appointed by the city council by resolution and may be removed with or without cause by a majority vote of city

council. City council shall establish compensation for the hearing officer. City council may, in its discretion, appoint an alternate hearing officer who may serve in the event that the appointed hearing officer is unavailable. The term "hearing officer" shall be synonymous with "local liquor licensing authority" as used throughout this section 4.84.010.

- (2) Delegation of authority to city clerk. The city clerk is authorized to act as the local liquor licensing authority for the following Colorado Liquor Code and Colorado Beer Code licensing functions:

- a. Processing and issuance of special events permits pursuant to Article 5 of Title 44, C.R.S., as amended, provided that there are no parties filing a written objection to said permit.
- b. Annual Colorado Liquor Code and Colorado Beer Code license renewals, provided that the licensee has not violated any provisions of the Colorado Liquor or Beer Codes and associated regulations during the preceding year.
- c. Changes in shareholders, officers, directors or trade names of a licensee, provided that any investigation conducted by the city does not reveal information that may reasonably form the basis of a determination that the applicant is not qualified to hold the respective license.
- d. The issuance of temporary permits pursuant to and in compliance with the provisions of C.R.S. 44-3-302, and C.R.S. 44-3-303, as amended. A temporary permit fee of

\$100.00 shall be charged in conjunction with the issuance of each temporary permit.

The city clerk may, nevertheless, refer any licensing decision authorized under this section to the authority if, in the clerk's discretion, the matter should be presented to the authority.

- (b) *Qualifications of hearing officer.* The hearing officer shall be an individual over the age of 21 years and with sufficient knowledge and expertise to apply and enforce the State of Colorado Beer Code, Liquor Code, Special Events Code, and Code of Regulations. The hearing officer shall not hold any other city office, appointment or position, except that city council may appoint the municipal court judge as the hearing officer. Additionally, the hearing officer shall not have any financial interest in the operation of any business located or operating in the city that holds a license pursuant to C.R.S. 44-4-101 et seq., or C.R.S. 44-3-101 et seq.
- (c) *Rules of procedure; conduct of hearings.* In conformity with applicable statutes and the Golden Municipal Code, the authority shall have the power to adopt rules of procedure and regulations concerning the application and renewal processes, procedures for hearings before it, and the presentation of evidence at such hearings. All hearings before the authority shall be public and shall be conducted in accordance with the rules and regulations concerning the procedures for hearings adopted by the authority.
- (d) *Reserved.*
- (e) *Meetings.* The authority shall hold a regular meeting once each calendar month, unless there is no business to conduct. The authority may unilaterally call special meetings upon and after consultation with the city clerk or the city's clerk's designee.
- (f) *Subpoena power and violations.* The local liquor licensing authority shall have the

power to administer oaths and issue subpoenas to require the presence of persons and the production of documents, data compilations and other evidence at any hearing before the authority. A subpoena shall be served in the same manner as a subpoena issued by a district court of the State of Colorado. It shall be unlawful for any person to fail to comply with any subpoena or order to produce documents, data compilations or other evidence issued by the authority. The municipal court shall enforce the subpoenas of the authority and, upon good cause shown, shall enter orders compelling witnesses to attend and testify or produce documents, data compilations or other evidence, and shall impose penalties or punishment for contempt in case of failure to comply with such orders.

(g) *City staff duties.*

- (1) *City clerk.* In addition to the duties and authority set forth in subsection (b)(2), the city clerk or the city clerk's designee shall:
 - a. Receive all license applications and issue those licenses granted by the local liquor licensing authority upon receipt of such license fees as are required by law;
 - b. Attend all meetings of the local liquor licensing authority and serve as the secretary of the authority;
 - c. Establish a calendar of regular meetings for the local liquor licensing authority, which calendar may be modified by the authority;
 - d. Post and publish all required notices in conformance with Title 44, Articles 3 and 4, C.R.S., as amended, and the regulations that may from time to time be adopted by the state licensing authority.

- (2) *City attorney.* The city attorney or the city attorney's designee shall represent the city at hearings to show cause and at hearings on applications or renewals that are contested by the city, and shall present matters into evidence before the authority. The city attorney shall also represent the city and the authority in the event of an appeal of any decision of the authority.

(Ord. No. 2085, § 1, 8-23-2018; Ord. 1870, 2010; Ord. 1833, § 3, 2008; Ord. 1501, § 1, 2000; Ord. 1449, § 2, 1999; Ord. 1155, 1992; Ord. 886, § 1, 1982)

4.84.020 Distance restrictions for hotel and restaurant licenses.

The 500-foot distance restrictions as provided by Section 44-3-313, of the Colorado Liquor Code, as amended, for hotel and restaurant licenses only, from schools, colleges, universities or seminaries as specified therein, are hereby eliminated. Notwithstanding the provisions hereof, the city council shall, in any case where a proposed hotel or restaurant license is located within the prescribed distance restrictions of said Section 44-3-313 [of the Colorado Liquor Code], make a specific finding as to the impact of granting the license on said school, college, university or seminary, as the case may be, and may deny said license where said impact is not compatible with the reasonable requirements of the neighborhood or the desires of the adult inhabitants thereof.

(Ord. No. 2085, § 2, 8-23-2018; Ord. 1449, § 3, 1999; Ord. 957, § 1, 1984)

4.84.030 Reporting of disturbances required.

(a) *Definitions.* As used within this section the following words shall mean:

Assault as defined in section 8.04.300, Golden Municipal Code;

Destruction of property as defined in section 8.04.420, Golden Municipal Code;

Disorderly conduct as defined in section 8.04.500, Golden Municipal Code;

Disturbing peace/persons as defined in section 8.04.500, Golden Municipal Code;

Harassment as defined in section 8.04.330, Golden Municipal Code;

Menacing as defined in section 8.04.310, Golden Municipal Code;

Reckless endangerment as defined in section 8.04.320, Golden Municipal Code;

Trespass as defined in section 8.04.450, Golden Municipal Code;

Licensed premises as defined in C.R.S. 44-4-103(3) and 44-3-103(24), (Colorado Beer/Liquor Code).

(b) *Reporting required.* It shall be unlawful for any licensee or permit holder or any agent, manager or employee thereof to fail to immediately report to the Golden Police Department the occurrence of any of the offenses set forth within subsection 4.84.030(a) which take place within or upon the licensed premises.

(c) *Posting required.* Each licensee or permit holder shall post in a conspicuous place upon the licensed premises a sign to be obtained from the city clerk's office. Such sign shall contain the following language:

WARNING The City of Golden Police Department must be notified of all disturbances, including assault, disorderly conduct, disturbing the peace, harassment, trespass or any other criminal activities which take place within or upon the licensed premises.

(d) *Prosecution.* It shall not be a defense to the prosecution of a licensee or permit holder for a violation of subsection 4.84.030(b) that such person was not upon the licensed premises at the time of such disturbance.

(e) *Failure to comply.* The local licensing authority may consider a person's failure to comply with the requirements of this section in any action by it relating to the issuance, non-renewal, suspension, revocation or cancellation of a liquor license or temporary permit. (Ord. No. 2085, § 3, 8-23-2018; Ord. 1449, § 4, 1999)

4.84.040 Tastings.

(a) *Definitions.* As used in this section, unless the context clearly requires otherwise, the following word and term shall have the meaning set forth in this section:

Tastings means the sampling of malt, vinous, or spirituous liquors that may occur on the premises of a retail liquor store licensee or liquor licensed drugstore licensee by adult patrons of the licensee pursuant to the provisions of this section.

(b) *Authorization.* In accordance with C.R.S. § 44-3-301(10)(a), as amended, the city hereby authorizes tastings, as that term is defined in this section, to be conducted by retail liquor store or liquor-licensed drugstore licensees, subject to all of the limitations set forth in C.R.S. § 44-3-301, as amended.

(c) *Permit required.* Within the city, it is unlawful for any person or licensee to conduct tastings unless a permit has been obtained in accordance with this section.

(d) *Applications.* A retail liquor store or liquor-licensed drugstore licensee that desires to conduct tastings shall submit an application for an annual tastings permit to the city clerk. All applicants shall pay an application fee and application renewal fee in an amount determined by resolution of city council. The city clerk may reject the application if it is incomplete.

(e) *Process.* Upon receiving the completed tastings application, the city clerk shall prepare the file for review by the local liquor licensing authority ("authority") at its next regularly scheduled meeting. In the event the authority determines that the applicant is able to conduct tastings without violating the provisions of C.R.S. § 44-3-301, as amended, or creating a public safety risk to the neighborhood, the application shall be granted.

(f) *Hearing.* If the authority determines that there is good cause for a hearing to consider whether the applicant has complied with the provisions of C.R.S. § 44-3-301, as amended, or whether the applicant is able to conduct tastings without creating a public safety risk to the

neighborhood, the city clerk, at the direction of the authority, shall cause to be issued a notice of hearing on the tastings application. In the event the city clerk issues a notice of hearing on the tastings application, the notice shall be conspicuously posted on the premises at least ten days prior to the hearing. Hearings held on any tastings application may result in approval or denial of said application, and the grounds for any decision on said application shall be whether the applicant has complied with the provisions of C.R.S. § 44-3-301, as amended, and whether the applicant is able to conduct tastings without creating a public safety risk to the neighborhood. Such decision of the authority shall be final.

(g) *Violations.* A violation of a limitation specified in this section by a retail liquor store or liquor licensed drugstore licensee, whether by the licensee's employees, agents, or otherwise, or by a representative, employee, or agent of the licensed wholesaler, brew pub, distillery pub, manufacturer, limited winery, importer, or vintner's restaurant that promoted the alcohol beverages for the tasting, shall be the responsibility of, and C.R.S. § 44-3-801 applies to, the retail liquor store or liquor licensed drugstore licensee that conducted the tasting.

(h) *Suspension; revocation; enforcement.* A retail liquor store or liquor licensed drugstore licensee conducting a tasting shall be subject to the same revocation, suspension, and enforcement provisions as otherwise apply to the licensee and are imposed by the authority.
(Ord. No. 2098, § 1, 2-14-2019)

Chapter 4.88

VENDORS IN PUBLIC RIGHTS-OF-WAY

4.88.010 Eligibility.

The director of public works may issue to any person a permit to occupy the public right-of-way outside of the roadway for the purpose of placing a pushcart or other vending device at a location approved by the director and selling there from food, beverages, food products, including ice cream, frozen milk, frozen dairy or ice confection products; and sketches or paintings produced on site;

provided, however, once a permit has been issued and remains in effect for a pushcart or other vending device at a given location, no other person may be issued such a permit for the same location.

(Ord. 1668, § 1, 2004; Ord. 1027, § 1, 1987)

4.88.020 Application for permit.

An application for a permit under this chapter shall be submitted to the director of public works. The application shall be accompanied by a nonrefundable application fee of \$100.00 and shall include the following information:

- (a) Name and address of the applicant;
- (b) Description of type of food and beverages, merchandise or services to be sold;
- (c) A description and photograph of the pushcart or other vending device to be used;
- (d) A site plan showing the location for which application for a permit is made; provided, that such location shall not be within 200 feet of a private establishment offering comparable goods or services located in a fixed premises with a direct entrance on the sidewalk; except as may be permitted under the provisions of section 4.88.030.

(Ord. 1668, § 1, 2004; Ord. 1027, § 1, 1987)

4.88.030 Review and inspection.

Before issuing a permit under this chapter, the director of public works shall refer the permit application, inspect, and obtain or make determinations as provided below:

- (1) The application shall be referred to the department of planning and development, which shall review and indicate approval or disapproval of the design of the pushcart or other vending device to be used, based on standards established by the director of planning and development.
- (2) The director of public works shall review the location applied for to determine whether the use of such location for

sidewalk vending is compatible with the public interest in the use of a public right-of-way. In making such determination the following may be considered, to determine whether the proposed use would result in pedestrian or street congestion: The width of sidewalk; whether or not the applicant has obtained the written consent of either the owner of the property adjacent to the location, or the lessee or tenant of the ground level of the property adjacent to the location; whether or not the applicant has obtained the written consent of the proprietor of a private establishment offering comparable goods or services within 200 feet of the location; the proximity and location of existing street furniture, including, but not limited to, signposts, lamp posts, parking meters, bus shelters, benches, telephone booths, planters, newsstands and newspaper vending devices; and the presence of bus stops, truck, loading zones, taxi stands or hotel zones.

- (3) Insure that all other necessary licenses or permits have been issued, including sales tax licenses and county health department approval.

(Ord. 1668, § 2, 2004; Ord. 1027, § 1, 1987)

4.88.040 Effect of disapproval.

If the department of planning and development disapproves the design of the pushcart or other vending device, or if the director of public works disapproves the location proposed to be used as provided in section 4.88.030, no permit shall be issued.

(Ord. 1668, § 3, 2004; Ord. 1027, § 1, 1987)

4.88.050 No permit for certain locations.

No permit shall be issued for any of the following locations:

- (1) Within any residential zoned district within the city including, but not limited to, RE, R1, R1A, R2, and R3 zones;
 - (2) Within 100 feet of the property line of any public or private, elementary or secondary school;
 - (3) On or within 50 feet of the Washington Avenue bridge over Clear Creek.
- (Ord. 1668, § 4, 2004; Ord. 1027, § 1, 1987)

4.88.060 Requirements for issuance.

A permit may be issued under this chapter, subject to the following requirements:

- (1) The permit shall be valid for a maximum of 12 months from and after the date of issuance, and may be revoked without cause.
- (2) The annual fee for a permit issued under this chapter shall be \$150.00, payable in advance upon permit approval and annually thereafter upon renewal.
- (3) The permit may be renewed within 30 days prior to expiration upon payment of the permit fee, subject to the provisions specified herein for application for a permit.
- (4) Each permit shall be valid for not more than one location.
- (5) In addition to naming the permittee and other information required by the director of public works, the permit shall contain the following:
 - (a) The period of time for which the permit was issued;
 - (b) A statement that the permit issued shall be personal only and not transferable in any manner;
 - (c) A statement that the permit is valid only when used at the location designated on the permit;

(d) A statement that the permit is subject to the provisions of this chapter;

(e) A statement that the permittee shall hold the city harmless of any liability. Further permittee shall obtain and pay for liability insurance in such amounts as deemed necessary by the director and name the city an additional insured.

(6) It shall be unlawful for any owner, part owner, shareholder or person interested directly or indirectly in any permit issued pursuant to this chapter to conduct, own either in whole or in part, or be directly or indirectly interested in more than two permits issued pursuant to this chapter.

(Ord. 1027, § 1, 1987)

4.88.070 Restrictions.

A person to whom a permit has been issued hereunder, and whose permit is valid, may transport to an approved location and may display goods or demonstrate services utilizing an approved pushcart or other vending device, provided:

- (1) That the pushcart or other vending device shall occupy an area no larger than 18 square feet, and shall not exceed three feet in width, including wheels; nor six feet in length, including any handle; nor five feet in height, excluding a canopy, umbrella or transparent enclosure;
- (2) That the permittee shall not use any device, chair, stand, box, container or table that does not comply with the requirements of this section; shall not place any such things on any sidewalk, roadway, street or alley, and shall not interfere with or prevent viewing or use of public art, statues, or streetscape furniture except as permitted hereunder;
- (3) That the permittee shall pick up any paper, cardboard, wood or plastic container, wrappers or any similar litter which is deposited within 50 feet of the approved location designated on the

permit; that the permittee shall carry a suitable container for the placement of such litter by customers or other persons; and that the permittee will on a daily basis clean up any spilled food or beverage product from the sidewalk area;

- (4) That the permittee shall locate the pushcart or other vending device so that the remaining unobstructed width of a public sidewalk in the downtown development district, as the same is defined in chapter 18.52 herein, is not less than four feet; or so that the remaining width of a public sidewalk elsewhere is not less than three feet;
- (5) That the permittee shall not locate a pushcart or other vending device on a public sidewalk within three feet of an adjacent building or property line;
- (6) That the permittee shall not locate a pushcart or other vending device on a public sidewalk within the boundaries of a crosswalk, or within a site triangle established by the director of public works;
- (7) That the permittee shall not locate a pushcart or other vending device within ten feet of the extension of any building entranceway or doorway, to the curb line;
- (8) That the permittee shall not sell to any person who is standing in a street, highway or roadway;
- (9) That the permittee shall not sell from a pushcart or other vending device that is located in any portion of a street, alley, roadway or highway that is designed or ordinarily used for vehicular travel;
- (10) That the permittee shall not sell from a pushcart or other vending device at a location other than that designated on the permit;
- (11) That the permittee shall comply with all applicable provisions of the fire codes, building codes, and all other applicable ordinances of the City of Golden;

(12) That the permittee shall not leave his/her pushcart or other vending device unattended on a public right-of-way or at the location designated on his/her permit;

(13) That the permittee shall not conduct the business for which his/her permit was issued hereunder, between the hours of 12:00 midnight and 6:00 a.m.;

(14) That the permittee shall not conduct business at the location designated on his permit when such location is within an area for which the city council or director of public works has issued a permit for a street fair, festival, or other similar event, unless the holder of the latter permit furnishes permission in writing;

(15) That the permittee shall obtain and at all times keep current a City of Golden Sales and Use Tax License, and shall be in good standing with the obligations of the City's Sales and Use Tax Code.

(Ord. 1668, § 5, 2004; Ord. 1027, § 1, 1987)

Chapter 4.90

PUBLIC SALES AND DISPLAY PERMITS AND OUTDOOR SEATING AND SERVICE PERMITS*

4.90.010 Legislative intent.

It is the intent of this chapter to provide procedures and standards for private use of the public sidewalks and the parking lane within the C2 (Commercial 2) zone district, where such use promotes the economy and vitality of the city in a manner consistent with protection of the health, safety and general welfare of Golden residents and visitors.

(Ord. 2151, § 1, 1-26-2021; Ord. 1146, 1992)

***Editor's note**—Sec. 1 of Ord. No. 2205, adopted April 11, 2023, changed the title of ch. 4.19 from "public sidewalk sales and display permits" to "public sales and display permits and outdoor seating and service permits".

4.90.020 Definitions.

The following terms used in the chapter have the following meanings, unless the context clearly indicates otherwise:

Building means any permanent structure built for the shelter or enclosure of persons, animals, chattels or property of any kind and not including advertising sign boards or fences.

Building extension means any structure that is an extension of an existing building front or basement adjacent to municipal land or rights-of-way and that encroaches upon the municipal land or rights-of-way.

Kiosk means a freestanding structure located within a pedestrian circulation area and used for the posting of notices or advertisements or the sale of food, flowers, newspapers, or other good approved by the city.

Parking lane means the area of right-of-way between the curb and the vehicle travel lane that is usually reserved for the parking of vehicles.

Person includes association, firm, partnership, corporation, or government entity other than the City of Golden.

Sale or sell means the exchange of goods or services for money or other consideration, and includes the offering of goods or services for a donation except when offered to express religious, social, political, or other ideological views.

Sidewalk shall mean the portion of a public right-of-way that is designed and intended for pedestrian access and use.

Structure means anything constructed or erected, which requires location on the ground or attached to something having a location on the ground, but not including fences or walls used as fences less than six feet in height, poles, lines, cables or other transmission or distribution facilities or public utilities.
(Ord. No. 2205, § 2, 4-11-2023; Ord. 2151, § 2, 1-26-2021; Ord. 1146, 1992)

4.90.030 Use of sidewalks prohibited.

(a) Except as provided in section 4.90.040, it shall be unlawful to provide or display for sale any goods on a public sidewalk.

(b) It shall be unlawful to sell or display any goods or services, provide any outdoor seating or to provide services, or construct any building, building extension, kiosk, or structure on a public sidewalk without a public sidewalk and display permit under this chapter.
(Ord. No. 2205, § 3, 4-11-2023; Ord. 1146, 1992)

4.90.035 Use of parking lanes prohibited.

(a) Except as provided in section 4.90.040, it shall be unlawful to provide or display for sale any goods in any parking lane.

(b) It shall be unlawful to provide any outdoor seating or to provide services, or construct any building, building extension, kiosk, or structure in a public parking lane for the purpose of providing outdoor seating or services without an outdoor seating and service parking lane permit issued under this chapter.
(Ord. No. 2205, § 4, 4-11-2023)

4.90.040 Uses allowed without permits.

The following uses are allowed without a permit, provided the use does not constitute a hazard to public safety or property, prevent the free flow of pedestrian traffic, or violate other provisions of the Golden Municipal Code:

- (a) Newspaper and magazine vending devices when located and installed pursuant to chapter 4.92 of the Golden Municipal Code.
- (b) Occasional sidewalk sales conducted by retail establishments, but only in that area of the sidewalk abutting the retail establishment. "Occasional sidewalk sales" shall be limited to five consecutive days and shall not take place more than ten times per calendar year.
- (c) Vending devices operating under a permit issued under chapter 4.88.

- (d) Covered walkways constructed in accordance with the Golden Municipal Code, section 15.08.290.
- (e) Limited display of items offered for sale by the adjacent retail establishment, and only when such uses do not to exceed one square foot of display area for each one linear foot of store frontage on a street, provided that the maximum display area for any store will be 50 square feet and do not unreasonably restrict or obstruct the flow of pedestrian traffic on the sidewalk or vehicular traffic in the right-of-way. The following minimum clearances must be maintained; however, greater clearances may be required if the nature and extent of pedestrian traffic warrants:

- (1) Six feet from the permitted area to any fire hydrant, tree grate, light fixture, traffic signal or sign, street curbing, or any other fixed obstruction which is over one foot in height.
- (2) The minimum clearance between the permitted area and any sidewalk level tree grate may be reduced to five feet for all rights-of-way except Washington Avenue.

The above minimum clearances may be waived by city staff when processing the application if good cause is shown by applicant for why the applicant cannot satisfy the above minimum criteria.

(Ord. No. 2205, § 5, 4-11-2023; Ord. 1669, §§ 1, 2, 2004; Ord. 1146, 1992)

4.90.050 Application procedures for a public sidewalk and display permit.

(a) An application for a public sidewalk and display permit shall be filed with the director of community development, and shall be accompanied by the following:

- (1) A nonrefundable application fee as established by city council resolution.
- (2) Written consent and authorization by all owners of the property with frontage along or abutting the portion of sidewalk which is the subject of the application.

- (3) A site plan of the proposed permitting area detailing the nature, extent, and design of the sales, service, or display area. The site plan shall include all building extensions, fencing, railing, fixtures, tables, chairs, or other facilities to be located in the permitted area. If the site plan for the proposed permitted area is such that alterations or modifications to existing or planned landscaping and public improvement adjacent to the area are anticipated or required, the site plan shall include those alterations and modifications and the estimated costs thereof.

- (4) The type of goods or services that will be sold or displayed in the permitted area, and the anticipated hours of operation.

(b) Applications for a public sidewalk and display permit shall be reviewed by the city manager and appropriate staff including, but not limited to, police, fire department, community development, and public works.

(c) In considering the application for a public sidewalk and display permit, the city manager shall consider the following factors:

- (1) Compliance and ability to comply with the conditions and requirements as set out in this chapter.
- (2) The impact that issuing the permit will have on the flow of pedestrian traffic, flow of vehicular traffic in adjacent or nearby rights-of-way, and availability of parking.
- (3) The impact that issuing the permit will have on the provision of public utilities and other municipal services which utilize the right-of-way.
- (4) Architectural compatibility of any proposed structures, railing, kiosk or a building extension with the building and surrounding area.
- (5) Compatibility of the use of the permit within the public realm and surrounding area.

(d) Any proposal to construct, erect or install a permanent structure in the city right-of-way, or a proposal that would permanently eliminate or remove parking in the city right-of-way, shall be transmitted to city council for review and action. (Ord. No. 2205, § 6, 4-11-2023; Ord. 2151, § 3, 1-26-2021; Ord. 1669, § 3, 2004; Ord. 1146, 1992)

4.90.055 Application procedures for an outdoor seating and service permit.

(a) An application for an outdoor seating and service permit shall be filed with the director of community development, and shall be accompanied by the following:

- (1) A nonrefundable application fee as established by city council resolution.
- (2) Written consent and authorization by all owners of the property with frontage along or abutting the parking lane which is the subject of the application.
- (3) A site plan of the proposed permitting area detailing the nature, extent, and design of the outdoor dining and service area. The site plan shall include all building extensions, fencing, railing, fixtures, tables, chairs or other facilities to be located in the permitted area. If the site plan for the proposed permitted area is such that alterations or modifications to existing or planned landscaping and public improvement adjacent to the area are anticipated or required, the site plan shall include those alterations and modifications and the estimated costs thereof.
- (4) The type of services that will be sold in the permitted area, and the anticipated hours of operation.

(b) Applications for an outdoor seating and service permit shall be reviewed by the city manager and appropriate staff including, but not limited to, police, fire department, community development, and public works.

(c) In considering the application for an outdoor seating and service permit, the city manager shall consider the following factors:

- (1) Compliance and ability to comply with the conditions and requirements as set out in this chapter.
- (2) The impact that issuing the permit will have on the flow of pedestrian traffic, flow of vehicular traffic in adjacent or nearby rights-of-way, and availability of parking.
- (3) The impact that issuing the permit will have on the provision of public utilities and other municipal services which utilize the right-of-way.
- (4) Architectural compatibility of any proposed structures, kiosk or a building extension with the building and surrounding area.
- (5) Compatibility of the use of the permit within the public realm and surrounding area.

(d) Any proposal to construct, erect or install a permanent structure in the city right-of-way, or a proposal that would permanently eliminate or remove parking in the city right-of-way, shall be transmitted to city council for review and action. (Ord. No. 2205, § 7, 4-11-2023)

4.90.060 Requirements and conditions of a public sidewalk and display permit.

(a) A public sidewalk and display permit shall only be available in the C2 (general commercial) zone district.

(b) If a public sidewalk and display permit is requested for an area that is not immediately adjacent to a business associated with the sale of the food and beverages, the issuance of the public sidewalk and display permit shall include the right to transport food and beverages over the right-of-way to the permitted area where sales, service, and consumption are allowed provided that such transport does not involve transferring an area where motorized traffic is allowed and can be accomplished without unreasonably interfering with the flow of

pedestrian traffic. Sale of alcohol in the permitted area requires the licensed premises to be modified to include the outdoor seating area, in accordance with state and local law.

(c) The existence of the permitted area and obstructions therein shall not unreasonably restrict or obstruct the flow of pedestrian traffic on the sidewalk or vehicular traffic in the right-of-way. The following minimum clearances must be maintained; however, greater clearances may be required if the nature and extent of pedestrian traffic warrants:

- (1) Six feet from the permitted area to any fire hydrant, tree grate, light fixture, traffic signal or sign, street curbing, or any other fixed obstruction which is over one foot in height.
- (2) The minimum clearance between the permitted area and any sidewalk level tree grate may be reduced to five feet for all rights-of-way except Washington Avenue.

The above minimum clearances may be waived by city staff when processing the application if good cause is shown by applicant for why the applicant cannot satisfy the above minimum criteria.

(d) If the requested permit necessitates modifications or alterations to existing, or planned, public right-of-way improvements or landscaping, the full cost of such modifications or alterations shall be the responsibility of the permittee. The city may require the permittee to install such modifications or alterations, or at the city's option, require that a cash contribution be made by the permittee in an amount equal to the estimated cost, as determined by city staff, of completing the alteration or modification. If the requested permit necessitates the elimination of existing or planned parking spaces, the city may require the permit applicant to make a payment to the city, in an amount determined by city staff, to offset the cost of acquisition and upkeep of off-street parking to replace those parking spaces eliminated by reason of the issuance of the permit. If the permit application would require such modifications or alternations, the city council may enter into a separate agreement with the

permit applicant regarding the installation of such modifications or payment and additional terms as may be deemed necessary. The installation of improvements or payment of costs and expenses by virtue of this section or any agreement entered into as a result of this section shall not confer upon the permit holder any rights in excess of those in otherwise associated with the granting of a sidewalk sales and display permit or as set forth in the agreement. In the event of the nonrenewal, termination, cancellation or revocation of a permit, the permittee shall not be entitled to a refund of any cost or expenses expended under the provisions of this paragraph.

(e) The construction of any kiosk or building extension shall be completed within the time period established in the permit.

(f) All building extensions, kiosks, or other obstructions existing by virtue of the permit shall be illuminated as necessary, in compliance with the city's Municipal Code, to ensure public safety during hours of operation and non-operation from dusk to sunrise.

(g) All permittees shall be responsible for maintaining the area within ten feet of the permitted area boundary in a neat, clean and hazard free condition, including the disposal of all trash.

(h) The holder of a public sidewalk and display permit shall indemnify, defend, and save harmless the city, its officers, employees and agents against any and all claims arising from any occurrence occasioned by the permitted use. The holder of the permit shall maintain during the period of the permit comprehensive general public liability and property damage insurance with limits which equal or exceed the maximum liability which may be imposed by virtue of the Colorado Governmental Immunity Act. The policy shall name the city, its officers, employees and agents as insurance and no other insurance maintained by the city will be called upon to contribute to a loss covered by the policy. A certificate of insurance reflecting compliance with this section shall be presented to the city prior to issuance of a permit, with updates presented prior to permit renewal requests.

(i) The annual fee for a public sidewalk and display permit issued under this chapter shall be as established by city council resolution.

(j) The issuance of a public sidewalk and display permit pursuant to this section shall not relieve the permittee from compliance with other provisions of the Golden Municipal Code as may be applicable, including, but not limited to, building codes, fire codes, public safety codes, business license provisions, zoning codes, health department regulations or liquor code requirements. The permittee must also comply with the fire code, which requires access for fire trucks including at least 20 feet fire lane being kept clear of merchandise, vehicles, and other obstructions.

(k) The issuance of a public sidewalk and display permit pursuant to this section shall not relieve the permittee from compliance with other provisions of state and federal law, including the Americans with Disabilities Act, as amended.

(l) The permitted area shall be used only in a manner consistent with the site plan and materials which are submitted with the application.

(m) A public sidewalk and display permit issued under this chapter may contain conditions of operation or other special conditions that the city manager or city council, as applicable, determines are necessary to minimize impacts to the flow of pedestrian traffic on the sidewalk or public right-of-way, the flow of vehicular traffic in adjacent or nearby rights-of-way, to minimize impacts to parking, to mitigate the effects of the public health emergency, to protect the health, safety, welfare of persons or property within the City of Golden, or to preserve the public peace.

(n) Temporary signs located for wayfinding, traffic control, and posting of site regulations is permissible without a permit so long as such sign locations do not block lines of sight or emergency access to the site. No temporary signs may be adhered to barriers or installed permanently in the public right-of-way. All temporary signs must comply with city's Municipal Code regulations for signs.

(o) The permittee must ensure that the permitted area is kept free of litter and rubbish and must maintain additional trash containers, as may be necessary, that are serviced by the permittee to ensure proper disposing of litter and rubbish on a regular basis.

(p) The permittee must endeavor to protect the city's water quality by regularly controlling litter, regularly sweeping the permitted area, properly disposing of waste, and ensuring that waste does not enter the street, gutter, or storm drainage inlet. Further, permittees shall ensure that any storm drainage inlets inside the permitted area remain clear.

(Ord. No. 2205, § 8, 4-11-2023; Ord. 2151, § 4, 1-26-2021; Ord. 1915, § 1, 2012; Ord. 1669, § 4, 2004; Ord. 1146, 1992)

4.90.065 Requirements and conditions for an outdoor seating and service permit.

(a) Outdoor seating and service permits shall be available only in the C2 (general commercial) zone district.

(b) The use of a parking lane shall be confined to commercially zoned properties in the downtown area, as defined in chapter 18.40 of the Municipal Code. The following conditions shall apply to each permit request:

- (1) Outdoor seating and service permits in the parking lane shall only be issued for the period between the third Friday in April to the first Tuesday of November in a given year.
- (2) Fencing or barricades not to exceed four feet in height, and shall be no more than 50 percent opaque, are required to enclose the outdoor seating area within the parking lane.
- (3) Details related to the use of umbrellas, outdoor heating and lighting and temporary structures, as well as fencing design, shall be regulated and addressed by the permit application process.

(c) If an outdoor seating and service permit is requested for an area that is not immediately adjacent to a business associated with the sale of

the food and beverages, the issuance of the outdoor seating and service permit shall include the right to transport food and beverages over the right-of-way to the permitted area where sales, service, and consumption are allowed provided that such transport does not involve transferring an area where motorized traffic is allowed and can be accomplished without unreasonably interfering with the flow of pedestrian traffic. Sale of alcohol in the permitted area requires the licensed premises to be modified to include the outdoor seating area, in accordance with state and local law.

(d) The existence of the permitted area and obstructions therein shall not unreasonably restrict or obstruct the flow of pedestrian traffic on the sidewalk or vehicular traffic in the right-of-way. The following minimum clearances must be maintained; however, greater clearances may be required if the nature and extent of pedestrian traffic warrants:

- (1) Six feet from the permitted area to any fire hydrant, tree grate, light fixture, traffic signal or sign, street curbing, or any other fixed obstruction which is over one foot in height.
- (2) The minimum clearance between the permitted area and any sidewalk level tree grate may be reduced to five feet for all rights-of-way except Washington Avenue.

The above minimum clearances may be waived at the sole discretion of city staff when processing the application if good cause is shown by applicant for why the applicant cannot satisfy the above minimum criteria.

(e) If the requested permit necessitates modifications or alterations to existing, or planned, public right-of-way improvements or landscaping, the full cost of such modifications or alterations shall be the responsibility of the permittee. The city may require the permittee to install such modifications or alterations, or at the city's option, require that a cash contribution be made by the permittee in an amount equal to the estimated cost of completing the alteration or modification. If the requested permit necessitates the elimination of existing or planned

parking spaces, the city may require the permit applicant to make a payment to the city to offset the cost of acquisition and upkeep of off-street parking to replace those parking spaces eliminated by reason of the issuance of the permit. Payments required to offset the cost of acquisition of public parking spaces may, at the option of the city, be allowed in annual payments over a period not to exceed three years. The installation of improvements or payment of costs and expenses by virtue of this section shall not confer upon the permit holder any rights in excess of those in otherwise associated with the granting of a sidewalk sales and display permit. In the event of the nonrenewal, termination, cancellation or revocation of a permit, the permittee shall not be entitled to a refund of any cost or expenses expended under the provisions of this paragraph.

(f) The construction of any kiosk or building extension shall be completed within the time period established in the permit.

(g) All building extensions, kiosks, or other obstructions existing by virtue of the permit shall be illuminated as necessary to ensure public safety during hours of operation and non-operation from dusk to sunrise.

(h) All permittees shall be responsible for maintaining the area within ten feet of the permitted area boundary in a neat, clean and hazard free condition, including the disposal of all trash.

(i) The holder of an outdoor seating and service permit shall indemnify, defend and save harmless the city, its officers, employees and agents against any and all claims arising from any occurrence occasioned by the permitted use. The holder of the permit shall maintain during the period of the permit comprehensive general public liability and property damage insurance with limits which equal or exceed the maximum liability which may be imposed by virtue of the Colorado Governmental Immunity Act. The policy shall name the city, its officers, employees and agents as insurance and no other insurance maintained by the city will be called upon to contribute to a loss covered by the policy. A certificate of insurance reflecting compliance

with this section shall be presented to the city prior to issuance of a permit, with updates presented prior to permit renewal requests.

(j) The annual fee for an outdoor seating and service permit issued under this chapter shall be established by city council by resolution, provided that in 2023 the total permit fee shall not exceed \$2,050.00.

(k) The issuance of an outdoor seating and service permit pursuant to this section shall not relieve the permittee from compliance with other provisions of the Golden Municipal Code as may be applicable, including, but not limited to, building codes, business license provisions, zoning codes, health department regulations or liquor code requirements.

(l) The issuance of an outdoor seating and service permit pursuant to this section shall not relieve the permittee from compliance with other provisions of state and federal law, including the Americans with Disabilities Act, as amended.

(m) The permitted area shall be used only in a manner consistent with the site plan and materials which are submitted with the application.

(n) An outdoor seating and service permit issued under this chapter may contain conditions of operation or other special conditions that the city manager or city council, as applicable, determines are necessary to minimize impacts to the flow of pedestrian traffic on the sidewalk or public right-of-way, the flow of vehicular traffic in adjacent or nearby rights-of-way, to minimize impacts to parking, to mitigate the effects of the public health emergency, to protect the health, safety, welfare of persons or property within the City of Golden, or to preserve the public peace. (Ord. No. 2205, § 9, 4-11-2023)

4.90.070 Public sidewalk and display permit periods, renewals, assignment, and termination.

(a) A public sidewalk and display permit issued pursuant to this chapter shall be valid for a period of 12 months from date of issuance.

(b) After the initial permit period, the city manager may renew the permit for an additional 12-month period, provided that the permittee, at least 30 days prior to the expiration of the permit, makes a written request for renewal and pays the application fee. In deciding whether to renew the permit, the city manager shall consider the factors set out in subsection 4.90.050(c) of this chapter.

(c) The city manager may terminate any public sidewalk and display permit issued under this chapter, with or without cause, by providing the permittee 30 days' written notice.

(1) In the event of a termination without cause, a pro rata share of the annual fee shall be refunded to the permittee. Cause for termination shall include a violation of any provision of the conditions or requirements of the permit, or of any other provision of the Golden Municipal Code, the laws of the State of Colorado or the United States.

(2) The city manager may order the immediate termination of a public sidewalk and display permit issued under this chapter if the city manager determines that continuation of the permit presents an immediate threat to the health, safety or welfare of the citizens of Golden.

(3) The permittee shall not be entitled to the return of any of its expenses or costs incurred other than the pro rata annual fee if the termination is without cause.

(d) Public sidewalk and display permits issued pursuant to this chapter shall not be assignable or transferable without the prior written consent of the city manager.

(e) Upon termination of any public sidewalk and display permit issued under this chapter, whether said termination is by a virtue of expiration of the permit period, by notice from the city manager, or otherwise, the permittee shall remove all structures or improvements from the permit area and restore the permit area to its condition existing prior to issuance of the permit within three days of termination.

(Ord. No. 2205, § 10, 4-11-2023; Ord. 1146, 1992)

4.90.075 Outdoor seating and service permit periods, renewals, assignment, and termination.

(a) An outdoor seating and service permit issued pursuant to this chapter shall be valid for a period of the third Friday in April to the first Tuesday in November in a given year.

(b) An outdoor seating and service permit may be renewed for an additional period of the third Friday in April to the first Tuesday in November by filing a renewal application, including paying the application fee, by March 15 in the year following the issuance of the first Outdoor Seating and Service Permit. In deciding whether to renew the permit, the city manager shall consider the factors set out in subsection 4.90.055(c) of this chapter.

(c) The city manager may terminate any outdoor seating and service permit issued under this chapter, with or without cause, by providing the permittee 30 days' written notice.

- (1) In the event of a termination without cause, a pro rata share of the annual fee shall be refunded to the permittee. Cause for termination shall include a violation of any provision of the conditions or requirements of the permit, or of any other provision of the Golden Municipal Code, the laws of the State of Colorado or the United States.
- (2) The city manager may order the immediate termination of a public sidewalk and display permit issued under this chapter if the city manager determines that continuation of the permit presents an immediate threat to the health, safety or welfare of the citizens of Golden.
- (3) The permittee shall not be entitled to the return of any of its expenses or costs incurred other than the pro rata annual fee if the termination is without cause.

(d) Outdoor seating and service permits issued pursuant to this chapter shall not be assignable or transferable without the prior written consent of the city manager.

(e) Upon termination of any outdoor seating and service permit issued under this chapter, whether said termination is by a virtue of expiration of the permit period, by notice from the city manager, or otherwise, the permittee shall remove all structures or improvements from the permit area and restore the permit area to its condition existing prior to issuance of the permit within three days of termination.

(Ord. No. 2205, § 11, 4-11-2023)

4.90.080 Reservation of police power.

The city council reserves unto itself any and all police power it may have with respect to regulation and control of the public rights-of-way. Any permit issued pursuant to this chapter shall be subject to the future exercise of the police power by the city council and the issuance of such permit shall not entitle the permittee to any compensation from the city by virtue of the exercise of such police power.

(Ord. 1146, 1992)

Chapter 4.92

BUS ADVERTISING BENCHES

4.92.010 Legislative intent.

It is the intent of this chapter to provide procedures and standards for the installation and operation of bus advertising benches within or adjacent to the public right-of-way within the City of Golden.

(Ord. 1537, 2001)

4.92.020 Definitions.

The following terms used in this chapter have the following meanings, unless the context clearly indicates otherwise:

Bus advertising bench means any bench or seat, which is placed in or within 30 feet of the public right-of-way, and which contains advertising material.

(Ord. 1537, 2001)

4.92.030 Permit required.

It shall be unlawful to install, maintain, or operate any bus advertising bench in or within 30 feet of the public right of way of any city street or state highway within the City of Golden without a bus advertising bench permit issued pursuant to this chapter. Each bus advertising bench location requires a separate permit. Where permitted by this chapter, two benches at a single location may be contained in a single permit.

(Ord. 1537, 2001)

4.92.050 Application procedures.

(a) An application for a bus advertising bench permit shall be filed with the director of planning and development on forms provided by the city.

(b) The application shall be accompanied by a site plan clearly showing a diagram of the nearest intersection, existing and proposed sidewalks, landscaping, traffic control devices, trash containers, bus stop, travel lane, parking lane, and any other relevant information requested by the planning and development department.

(c) The director shall review the application for conformance with the criteria in this chapter and approve or deny the application within 30 days of the application date. Denial of a bus advertising bench permit by the director shall be appealable under the provisions of section 18.12.020.

(Ord. 1537, 2001)

4.92.055 Permit periods, fees, renewals and termination.

(a) Permits issued pursuant to this chapter shall be valid until December 31 of the calendar year in which they are issued.

(b) The permit fee shall be \$50.00 per bus bench per calendar year, to be collected upon issuance and renewal of the permit by the city.

(c) Permit renewal requests shall be accompanied by the same submittal requirements contained in section 4.92.050, and shall be submitted no later than 30 days prior to expiration of the permit.

(d) The city manager may terminate any permit issued under this chapter, upon a determination that the bench does not meet the criteria of this chapter, including the requirements and conditions of section 4.92.060 below, by providing the permittee ten days written notice of such violation, and affording the opportunity for an administrative hearing before the city manager if the violation is not corrected within the ten-day time period. In the event of termination by the city, a pro rata share of the annual fee shall be refunded to the permittee.

(e) The city manager may terminate any permit issued under this chapter for bus advertising benches located within the public right of way upon a determination by the city manager that the exercise of the city's police powers to regulate the right-of-way will be impaired or otherwise require termination or removal of the bus bench. Such termination shall require ten days' written notice.

(f) The decision of the city manager to terminate a permit as provided in this section may be appealed to city council, provided that the affected permittee provides written notice of his intention to appeal the decision to the city clerk's office no later than 30 days following the notice of termination by the city manager.

(g) Upon termination of any permit issued under this chapter, whether said termination is by virtue of expiration of the permit period, by notice from the city manager, or otherwise, the permittee shall immediately remove all structures or improvements from the permit area.
(Ord. 1537, 2001)

4.92.060 Requirements and conditions.

Bus advertising benches permitted under this chapter must comply with the following conditions:

- (a) Benches must be constructed of a substantial material and must be no longer than eight feet, no higher than 42 inches, no wider than 30 inches, and weigh no less than 300 pounds.
- (b) Advertising is limited to the front vertical face of the backrest, and shall not exceed a maximum of 16 square feet per bench. No advertising is permitted on the backside of the bench. Signage must conform to all standards in chapter 18.32 of the Golden Municipal Code. All bus-advertising benches permitted under this chapter shall face the roadway.
- (c) In addition to conformance to all standards in chapter 18.32, any bus advertising bench located within the public right-of-way shall also conform to the following standards:
 - (1) Advertising will not contain the words "stop" drive-in" or any other word, phrase, character, or symbol which as determined by the city, may interfere with, mislead, or direct vehicular traffic.
 - (2) Advertising shall not contain pictures, language, graphics or materials that are offensive to community standards and values.
 - (3) Advertising of tobacco products, marijuana products, or alcoholic beverages shall not be permitted.
 - (4) Messages or language prohibited by federal or state law or city ordinance shall not be permitted.
- (d) Benches may be placed no closer than three feet to the roadway curb or six feet from the edge of a roadway without curb and gutter.
- (e) Benches must be placed so that no less than a five-foot unobstructed public walkway or other area remains, either in front

of or behind the bench. Benches may not interfere with the safe and efficient passage of pedestrians, and specifically may not impede pedestrian access to or use of traffic control devices or other street furniture.

- (f) The bench location and placement must not interfere with vehicular traffic or other uses of the right-of-way.
- (g) All benches must be placed at or as close as practicable to Regional Transportation District (RTD) bus stops, but in no event more than 50 feet from said bus stop.
- (h) No more than one bench may be placed at a given bus stop, unless specifically permitted by the city based upon the city's estimates of usage for the specific location.
- (i) No benches will be permitted in the same location or immediate proximity to any bus shelter permitted by the city or installed by RTD.
- (j) The permittee shall maintain all benches and environs in a safe and clean condition at all times. Damaged or disfigured benches shall be removed, repaired, or replaced within ten days of notification of damage. The permittee shall provide, maintain and regularly empty a secure trash receptacle for use of bus patrons.
- (k) If the bus advertising bench is to be located within the right-of-way, the permittee shall release and indemnify, defend and save harmless the City of Golden, its officers, agents, and employees from and against any and all claims, actions, causes of action, demands, judgment costs expenses, and damages of every kind and nature incurred by or incurring to any person whatsoever predicated upon injury to or death of any person, or loss of or damage to property, public or private, or whatever ownership, or damage to business, provided such injury, death, or loss or damage shall arise out of or be con-

nected directly or indirectly to the exercise of any right or privilege granted by any permit issued under this chapter.

- (l) For bus advertising benches that are to be located on private property, appropriate permission from the property owner must be secured. For bus advertising benches to be located within the public right-of-way, a permit granted under title 2 of the Golden Municipal Code [must be secured].
 - (m) The permittee shall maintain throughout the term of any permits issued under this chapter, at its own cost and expense, and provide sufficient evidence of a general liability policy covering bodily injury, including death, in the amount of \$100,000.00 for any one person and \$500,000.00 for two or more persons in any one accident and \$100,000.00 coverage for injury or destruction to property for others in any one accident.
 - (n) All bus advertising benches permitted under this chapter shall be available for use by the general public in conjunction with the associated bus stop.
- (Ord. 1965, §§ 1, 2, 2014; Ord. 1537, 2001)

4.92.065 Removal of benches without permits.

All bus advertising benches in existence as of the effective date of this ordinance shall be removed from their location and the city within 30 days of said effective date, unless a permit is issued, or valid permit application has been accepted by the planning and development department and is pending review by the city.

(Ord. 1537, 2001)

4.92.070 Reservation of police power.

The city council reserves unto itself any and all police power it may have with respect to regulation and control of the public rights-of-way. Any permit issued pursuant to this chapter shall be subject to the future exercise of the police power by the city council and the issuance or termina-

tion of such permit shall not entitle the permittee to any compensation from the city by virtue of the exercise of such police power.
(Ord. 1537, 2001)

Chapter 4.94

REGULATED MARIJUANA LICENSING*

4.94.010 Authority; relationship to other laws.

(a) The city council hereby finds and declares that it has the power to adopt this chapter and the prohibitions set forth herein pursuant to Article XVIII, Sections 14 and 16 of the Colorado Constitution; Article XX, Section 6 of the Colorado Constitution; the Colorado Marijuana Code, Title 44, Article 10 of the Colorado Revised Statutes; the City of Golden Home Rule Charter and Municipal Code; and Article 20 of Title 29 (Local Government Regulation of Land Use), Article 15 (Exercise of Municipal Powers), and Part 3 of Article 23 (Zoning) of Title 31 of the Colorado Revised Statutes, as may be amended from time to time.

(b) This chapter is known and may be cited as the "Golden Marijuana Code." Reference to the Golden Marijuana Code and the applicable section or sections thereof shall be sufficient when citing the provisions of this chapter in any legal document, including, but not limited to, summons, subpoena, pleading, summons and complaint, and memorandum.

(c) Except as otherwise specifically provided herein, this chapter incorporates the requirements and procedures set forth in the Colorado Marijuana Code and the Colorado Marijuana Rules. In the event of any conflict between the provisions of this chapter and the provisions of the Colorado Marijuana Code, including its rules or any other applicable state or local law, the more restrictive provision shall control.
(Ord. No. 2183, § 2, 6-14-2022)

***Editor's note**—Sec. 2 of Ord. No. 2183, adopted June 14, 2022, repealed and replaced ch. 4.94 in its entirety to read as herein set out. Former ch. 4.94 pertained to the same subject matter, consisted of §§ 4.94.010—4.94.150, and derived from Ord. 1828, 2011; and Ord. 1978, 2014.

4.94.020 Purpose.

The city council declares that the purpose of this chapter is to provide for the regulation, control, and licensing of the sale of regulated marijuana and regulated marijuana products within the city for the purpose of protecting the health, safety, and welfare of Golden residents and guests.
(Ord. No. 2183, § 2, 6-14-2022)

4.94.030 Definitions.

As used in this chapter, unless the context clearly requires otherwise, the following words and terms shall have the meanings set forth in this section. Other definitions not specifically enumerated in this section shall be as defined, as applicable, in Section 14 of Article XVIII of the Colorado Constitution, Section 16 of Article XVIII of the Colorado Constitution, the Colorado Marijuana Code, and the Colorado Marijuana Rules.

Applicant means a person or entity that has submitted an application for licensure, application for renewal of licensure, or other application pursuant to or required by this chapter. If the applicant is an entity and not a natural person, applicant shall include all persons who are members, managers, officers, and directors of such entity and such other persons as are required by this chapter.

City clerk means the city clerk or the clerk's designee.

City manager means the city manager or the manager's designee.

Colorado Marijuana Code means Chapter 10 of Title 44 of the Colorado Revised Statutes, as may be amended from time to time.

Colorado Marijuana Rules means those rules governing regulated marijuana businesses as set forth in the Colorado Code of Regulations, 1 CCR 212-3, as may be amended from time to time.

Entity means a domestic or foreign corporation, cooperative, general partnership, limited liability partnership, limited liability company, limited partnership, limited liability limited partnership, limited partnership association,

nonprofit association, nonprofit corporation, or any other organization or association that is formed under a statute or common law of the State of Colorado or any other jurisdiction as to which the laws of this State of Colorado or the laws of any other jurisdiction governs relations among owners and between the owners and the organization or association and that is recognized under the laws of the State of Colorado or the other jurisdiction as a separate legal entity.

Good cause, for purposes of refusing or denying an initial license application, revoking, or suspending a license, denying a license renewal or reinstatement, or exercising other discretionary authority granted to the local license authority means:

- (1) The applicant or licensee has violated, does not meet, or has failed to comply with any terms, requirements, conditions, or provisions of this chapter, the Colorado Marijuana Code, the Colorado Marijuana Rules, or any applicable state or local law, rule, or regulation.
- (2) The local licensing authority has determined that the applicant or licensee's character, record, or reputation is not satisfactory after consideration of factors which include, but are not limited to, the following:
 - i. The applicant or licensee knowingly submitted a false application, made willful misrepresentations, or knowingly committed fraudulent acts;
 - ii. The applicant or licensee has a criminal history of crimes of moral turpitude, which may include, but is not limited to, murder, burglary, robbery, arson, kidnapping, sexual assault, and illegal drugs or narcotics convictions;
 - iii. The applicant or licensee has had any previous retail or medical marijuana license denied or revoked as a result of violations of law, rule, or regulation or a finding of bad moral character by any licensing authority;
- iv. The applicant or licensee has been found to be currently delinquent in the payment of any state or local taxes;
- v. The applicant or licensee has an established pattern of multiple statutory violations that resulted in the revocation or denial of any other professional license, leading to the finding of bad moral character by any licensing authority;
- vi. When making a determination as to character, record, and reputation, the licensing authority shall also consider evidence of rehabilitation. Such evidence may include, but not be limited to, evidence of no criminal record information, educational achievements, financial solvency, community standing, lack of additional arrests or convictions, or the lack of parole or probation violations since the date of last conviction.
- (3) The applicant or licensee has failed to comply with any special terms or conditions placed on its license pursuant to an order of the state or local licensing authority, including those terms and conditions that were established at the time of issuance of the license and those imposed as a result of any renewal or suspension proceedings held subsequent to the date of issuance of the license.
- (4) The licensed premises has been operated in a manner that adversely affects the public health, welfare, or safety. Evidence to support such a finding can include, without limitation, a continuing pattern of or drug-related criminal conduct upon or in the immediate vicinity of the marijuana store, continuing pattern of criminal conduct directly related to or arising from the operation of the marijuana store, or an ongoing nuisance condition emanating from or caused by the operation of the marijuana store.

Investigator means such person(s) authorized by the city to perform the investigative duties set forth in this chapter and such other duties as the city or local licensing authority may reasonably direct.

License means a revocable privilege to operate a regulated marijuana store pursuant to this chapter.

Licensed premises means the premises specified in an application for a license under this chapter, that are owned, in the possession, or will be in the possession of the licensee and within which the licensee is authorized to sell regulated marijuana and regulated marijuana products in accordance with all applicable laws.

Licensee means a person licensed pursuant to this chapter.

Limited access area means a building, room, or other contiguous area upon the licensed premises where regulated marijuana is stored, weighed, packaged, sold, possessed for sale, or transferred, under control of the licensee.

Local licensing authority means the local licensing authority, as established in this chapter, which is authorized to approve or deny applications and changes as provided by this chapter, to issue licenses, to hear and decide violations of this chapter by a licensee, and to impose penalties for violations as provided for by this chapter.

Manager includes that person or those persons who manage, direct, supervise, oversee, and administer the transactions and acts of servants of the establishments governed by this chapter and includes, when applicable, the definition provided in the Colorado Marijuana Rules and C.R.S. 44-10-103, as amended.

Marijuana means all parts of the plant of the genus *cannabis*, whether growing or not, the seeds thereof, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or its resin, including marijuana concentrate. Marijuana does not include industrial hemp, nor does it include fiber produced from the stalks, oil, or cake made from the seeds of the plant, sterilized seed of the plant which is

incapable of germination, or the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink, or other product.

Marijuana accessories means any equipment, products, or materials of any kind that are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, composting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, vaporizing, or containing marijuana, or for ingesting, inhaling, or otherwise introducing marijuana into the human body.

Marijuana product means all parts of the plant of the genus *cannabis*, whether growing or not, the seeds thereof, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or its resin, including, but not limited to, concentrate, that is produced at a medical or retail marijuana products manufacturer and intended for use or consumption, including without limitation edible products, ointments, and tinctures.

Medical marijuana means marijuana that is grown and sold pursuant to this Chapter 4.94 and the Colorado Marijuana Code for a purpose authorized by Section 14 of Article XVIII of the Colorado Constitution, but shall not be considered a nonprescription drug for purposes of C.R.S. 12-280-103(28) or C.R.S. 39-26-717 or an over-the-counter medication for purposes of C.R.S. 25.5-5-322. If the context requires, medical marijuana includes medical marijuana concentrate and medical marijuana products.

Medical marijuana store means an entity licensed by both the state and city to operate a business that sells medical marijuana to registered patients or primary caregivers, but is not a primary caregiver.

Regulated marijuana means medical marijuana and retail marijuana. If the context requires, regulated marijuana includes regulated marijuana products and marijuana accessories.

Regulated marijuana products means medical marijuana products and retail marijuana products.

Regulated marijuana store means an entity licensed by the city and state to operate in the city as a medical marijuana store, retail marijuana store, or a co-located retail marijuana store and medical marijuana store, that distributes, dispenses, displays, sells, or otherwise provides marijuana products to consumers, patients, or caregivers as authorized and required pursuant to Section 14 of Article XVIII of the Colorado Constitution, Section 16 of Article XVIII of the Colorado Constitution, the Colorado Marijuana Code, the Colorado Marijuana Rules, and other applicable state law.

Retail marijuana means "marijuana," as defined in Section 16(2)(f) of Article XVIII of the Colorado Constitution, that is cultivated, manufactured, distributed, or sold by a licensed retail marijuana business. If the context requires, retail marijuana includes retail marijuana concentrate and retail marijuana products.

Retail marijuana store means an entity licensed by the city and state to purchase marijuana from marijuana cultivation facilities or marijuana and marijuana products from marijuana product manufacturing facilities and to sell marijuana and marijuana products to consumers.

Review committee means a committee composed of city staff, which may include but is not limited to representatives from the following departments: Community and economic development, finance, police, fire, public works, and city manager's office.

School means a public, independent, private, or parochial educational institution serving 25 or more infants, preschoolers or children and including childcare centers, kindergarten through twelfth grade (K—12), college, or university.

Transfer of ownership means a change of ownership or corporate structure of any licensee holding a marijuana store license that requires a change of owner application pursuant to the Colorado Marijuana Rules.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.040 Licenses required for regulated marijuana stores; bond; other marijuana businesses prohibited.

(a) The local licensing authority may approve and issue local licenses for regulated marijuana stores.

(b) It is unlawful for any person to operate or cause to be operated a regulated marijuana store within the city without first obtaining a license to operate such store in accordance with the requirements of this chapter. A separate license is required for each specific business or business entity and for each geographical location. Such license shall be current at all times, and the failure to maintain a current license constitutes a violation of this section.

(c) The dual operation of a medical marijuana store and a retail marijuana store at a single location is permitted if both licenses are held by the identical owners, all required state and city licenses are valid, current, and active, and both operations comply with all applicable state and local requirements.

(d) All regulated marijuana stores, in addition to being required to obtain a city sales tax license, must as a condition of licensing, procure, maintain, and file with the city's finance department evidence of a good and sufficient bond in the amount of \$5,000.00 with a corporate surety duly licensed to do business in the State of Colorado, approved as to form by the city and conditioned upon the applicant's reporting and payment of all city sales and use taxes required by law.

(e) The license requirement set forth in this chapter shall be in addition to, and not in lieu of, any other licensing and permitting requirements imposed by any other federal, state, or local law, rule, or regulations, including, but not limited to, the Colorado Marijuana Code, the Colorado Marijuana Rules, and any applicable local zoning or building code.

(f) It is unlawful for any person to engage in any business or commerce involving the acquisition, cultivation, processing, manufacturing, packaging, labeling, storage, sale, distribution, testing, or consumption of marijuana except as authorized by this chapter, and except for the cultivation of medical marijuana by primary caregivers pursuant to the Medical Marijuana Program, C.R.S. 25-1.5-106, as the same may be amended. All such uses not authorized by this

chapter are hereby prohibited in any location within the city, or within any area hereinafter annexed to the city.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.050 Local licensing authority established; authority composition; powers and duties.

(a) There is hereby created a local licensing authority, which is composed and vested with authority as set forth herein. The local licensing authority shall have the power to promulgate rules and regulations as are reasonable and necessary to implement and administer the requirements of this chapter.

(b) The local licensing authority shall be composed of two divisions: an independent hearing officer and the city clerk. The local licensing authority shall have all powers and duties granted to local licensing authorities as set forth in the Colorado Marijuana Code, as amended, and as more specifically set forth in this chapter.

(c) Hearing officer. City council shall appoint an independent hearing officer and establish the hearing officer's compensation by resolution. The hearing officer shall be an individual over the age of 21 years and possess sufficient knowledge and expertise to apply and enforce the Colorado Marijuana Code and this chapter. City council may appoint the municipal court judge as the hearing officer. The hearing officer shall not have any financial interest in the operation of any business located or operating in the city that holds a regulated marijuana business license. The hearing officer shall serve at the pleasure of city council and may be removed with or without cause by a majority vote of city council. City council may, in its discretion, appoint an alternate hearing officer who may serve if the appointed hearing officer is unavailable. The term "hearing officer" is synonymous with "local licensing authority" as used throughout this chapter. The hearing officer shall have the following powers and duties:

- (1) Medical marijuana store licensure and license disciplinary matters. The hearing officer shall exercise all powers expressly granted and necessarily implied

by the Colorado Marijuana Code, the Colorado Marijuana Rules, and this chapter regarding the licensure of medical marijuana stores, and shall perform all local duties and responsibilities regarding medical marijuana store licenses. Such duties include, but are not limited to:

- a. Approve applications for licensure and renewal, and deny applications that do not comply with the Colorado Marijuana Code, Colorado Marijuana Rules, this chapter, and any other applicable state or local law, rule, or regulation. This includes, but is not limited to, applications for new medical marijuana stores, medical marijuana store renewals, change of manager, transfer of ownership, modification of licensed premises, and change of location for medical marijuana store licenses.
 - b. Impose reasonable terms and conditions on a license as may be necessary to protect the public health, safety, and welfare and to obtain compliance with the requirements of this chapter and applicable law.
 - c. Suspend, revoke, or refuse to renew a license for good cause, after notice and a hearing, and impose fines and penalties related thereto.
 - d. Revoke or elect not to renew any license if it determines that a store has been inactive without good cause, for at least one year.
- (2) Retail marijuana store license disciplinary matters. The hearing officer may:
 - a. Suspend, revoke, or refuse to renew a license for good cause, after notice and a hearing, and impose fines and penalties related thereto; and
 - b. Revoke or elect not to renew any license if it determines that a store has been inactive without good cause, for at least one year.

- (3) Referrals from city clerk on retail marijuana store licensure. The hearing officer may hear and decide any licensing matter referred to it by the city clerk.
- (4) Subpoena power and violations. The hearing officer shall have the power to administer oaths and issue subpoenas to require the presence of persons and the production of documents, data compilations and other evidence at any hearing before the authority. A subpoena shall be served in the same manner as a subpoena issued by a district court of the State of Colorado. It shall be unlawful for any person to fail to comply with any subpoena or order to produce documents, data compilations or other evidence issued by the authority. The municipal court shall enforce the subpoenas of the local licensing authority and, upon good cause shown, shall enter orders compelling witnesses to attend and testify or produce documents, data compilations or other evidence, and shall impose penalties or punishment for contempt in case of failure to comply with such orders.

(d) City clerk as retail marijuana licensing authority. In its licensing authority capacity, the city clerk shall exercise all powers expressly granted and necessarily implied by the Colorado Marijuana Code, the Colorado Marijuana Rules, and this chapter regarding the licensure of retail marijuana stores. Such duties include, but are not limited to:

- (1) Approve applications for licensure and renewal, and deny applications that do not comply with the Colorado Marijuana Code, Colorado Marijuana Rules, this chapter, and any other applicable state or local law, rule, or regulation. This includes, but is not limited to, applications for new retail marijuana stores, retail marijuana store renewals, and change of manager, transfer of ownership, modification of licensed premises, and change of location for retail marijuana store licenses.

- (2) Impose reasonable terms and conditions on a license as may be necessary to protect the public health, safety, and welfare and to obtain compliance with the requirements of this chapter and applicable law.
- (3) Refer matters to city staff or the investigator for investigation.
- (4) The city clerk may, at his or her discretion, refer any licensing decision authorized under this section to the hearing officer if, in the clerk's discretion, the matter should be presented to the hearing officer.
- (e) The city clerk shall also:
 - (1) Receive all regulated marijuana store license applications and applications fees, and issue those licenses granted by the local licensing authority upon receipt of such license fees as are required by law;
 - (2) Attend all meetings of the hearing officer and serve as the secretary of the hearing officer;
 - (3) Post and publish all required notices in conformance with the Colorado Marijuana Code, the Colorado Marijuana Rules, and this chapter.

(f) City attorney. The city attorney shall represent the city at hearings to show cause and at hearings on applications or renewals that are contested. The city attorney shall also represent the city and the local licensing authority in the event of an appeal of any decision of the local licensing authority.

(g) Nothing in this chapter shall be construed to limit a law enforcement agency's ability to investigate unlawful activity in relation to a license issued pursuant to this chapter.
(Ord. No. 2183, § 2, 6-14-2022)

4.94.060 Location of medical marijuana stores.

(a) *Where permitted, distance restriction.* Medical marijuana stores are permitted only in the M2 zone district, as defined by the city's zoning regulations, or as permitted in the map referenced

in section 4.94.070(b) if co-located with a retail marijuana store, if all other land use approvals required by this Code have been obtained. No medical marijuana store may be located within 1,000 feet of any school or any other regulated marijuana store.

(b) *Permanent location required.* Medical marijuana stores must be operated from a permanent location. Medical marijuana stores are prohibited from operating from a moveable, mobile, or transitory location.

(c) *Suitability determined at initial issuance.* The suitability of a location for a medical marijuana business shall be determined at the time of the initial issuance of the license. The fact that changes in the neighborhood occur after the initial issuance of the license might render the site out of compliance with the location restrictions set forth in this section shall not be

grounds to suspend, revoke, or refuse to renew the license for such business so long as the license for the business remains in effect.

(d) *Computation of distances.* The distances set forth in this section are to be computed by direct measurement from the nearest property line, right-of-way boundary, or portion of the footprint of the land uses set forth herein to the nearest portion of the footprint of the regulated marijuana business.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.070 Number and location of retail marijuana stores.

(a) *Number of retail marijuana store licenses.* The maximum number of retail marijuana store licenses within the city shall not exceed four at any point in time.

(b) *Where permitted.* Retail marijuana stores are only permitted in the locations indicated on the map included in this subsection.

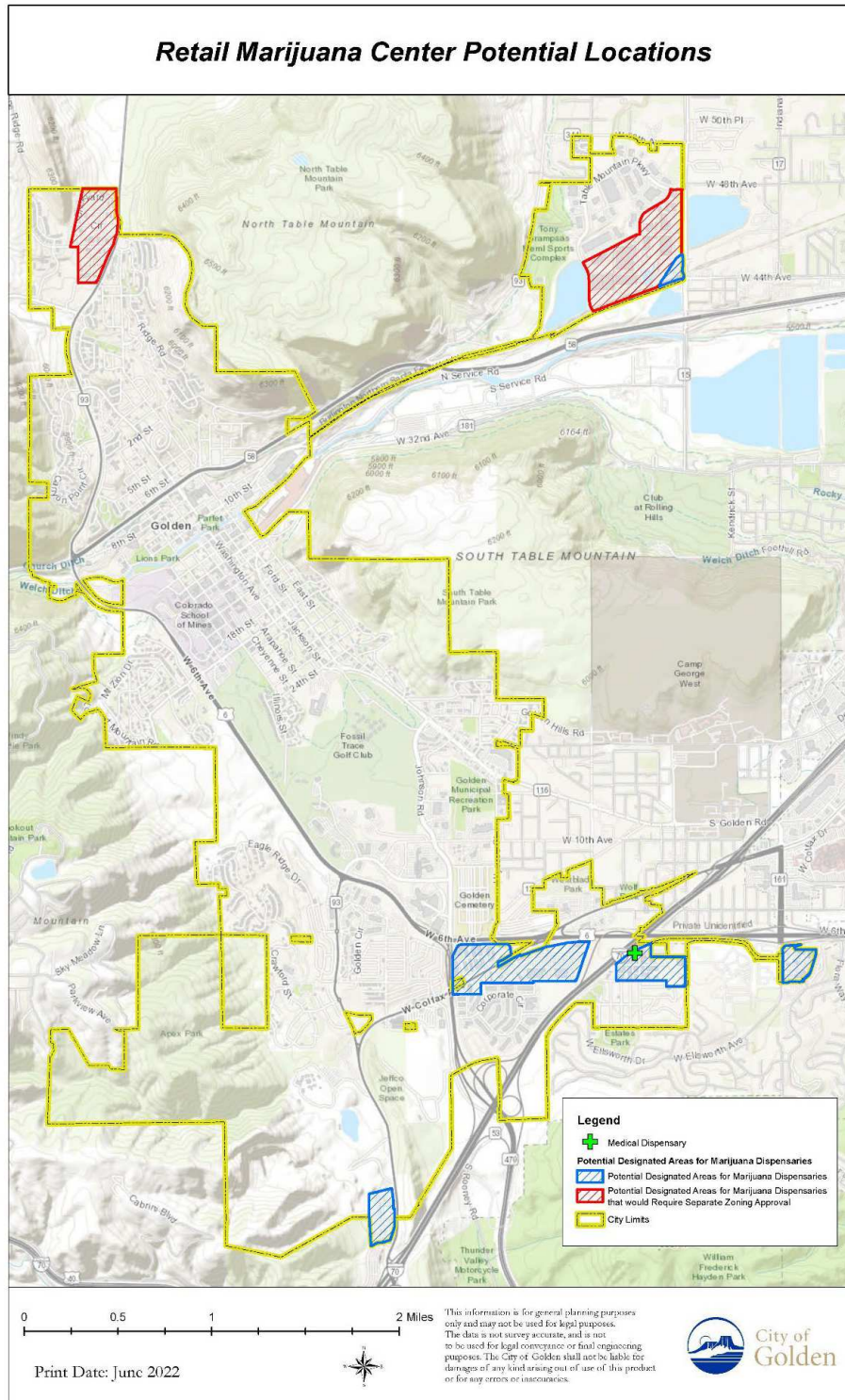


Figure 1: Section 4.94.070(b) - Map of potential Retail Marijuana Center locations

(c) *Permanent location required.* Retail marijuana stores must be operated from a permanent location. Retail marijuana stores are prohibited from operating from a moveable, mobile, or transitory location.

(d) *Suitability determined at initial issuance.* The suitability of a location for a retail marijuana business shall be determined at the time of the initial issuance of the license. The fact that changes in the neighborhood occur after the initial issuance of the license might render the site out of compliance with the location restrictions set forth in this section shall not be grounds to suspend, revoke, or refuse to renew the license for such business so long as the license for the business remains in effect.

(e) *Additional location restrictions.* In addition to the permitted locations on the map referenced herein, retail marijuana stores must meet the following standards:

- (1) Licensed retail marijuana stores must be located in a zoning district that permits commercial retail sales. Certain areas on the map do not currently allow commercial retail sales without a separate zoning approval or special use permit.
- (2) Walk-up or drive-up operations for retail marijuana stores shall not be permitted.
- (3) No retail marijuana store may be located within 1,000 feet of any other regulated marijuana store.

(f) *Computation of distances.* The distances set forth in this section are to be computed by direct measurement from the nearest property line, right-of-way boundary, or portion of the footprint of the land uses set forth herein to the nearest portion of the footprint of the regulated marijuana business.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.080 Grounds for denial of initial application for regulated marijuana store.

(a) The investigator may request and shall acquire such information, either upon direction of the local licensing authority or on their own initiative, as necessary to properly carry out the

provisions of the Colorado Marijuana Code, the Colorado Marijuana Rules, this chapter, and the rules and regulations of the local licensing authority. In addition to the prohibitions on persons as licensees found in C.R.S. 44-10-307, each of the following, in and of itself, constitutes full and adequate grounds for denying an application for a license:

- (1) The applicant has not paid all applicable fees required by this chapter.
- (2) The application is not complete.
- (3) The applicant has not complied with or does not meet the requirements of this chapter, state statutes, the Colorado Marijuana Rules, any rules or regulations adopted pursuant thereto, or any other applicable state or local law or regulation.
- (4) The applicant has been denied a license from the state in regard to the concurrent application.
- (5) The application contains false, misleading, or incomplete information.
- (6) The location proposed for licensing does not comply with all zoning and land use laws of the city.
- (7) The applicant, applicant's principal officers, directors, members, or owners who now, or at any time in the past, have had 25 percent or more ownership in any marijuana business have had, or the business has had, a marijuana license suspended or revoked by the State of Colorado or any other state, or any local jurisdiction's local licensing authority or other controlling authority.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.090 Application for a new medical marijuana store license.

(a) Applications for local medical marijuana store licenses shall be made on forms provided by the city clerk and shall include all materials required by the Colorado Marijuana Code and the Colorado Marijuana Rules. At the time of application for a license or license renewal, each applicant shall pay a nonrefundable application

fee to the city to defray the costs incurred by the city in processing the application, as well as an annual licensing fee, to be established by city council resolution. If the application is denied, the city shall refund the licensing fee to the applicant.

(b) The applicant shall also provide the following information to the city, which information shall be required for the applicant, and as applicable, the manager of the medical marijuana store, and all persons having any financial interest in the medical marijuana store that is the subject of the application:

- (1) Proof of insurance of workers' compensation insurance and public liability insurance, which at a minimum meets the current maximum liability amounts for injury to any single person, or for any injury to two or more persons in any such occurrence, as set forth in the Colorado Governmental Immunity Act (C.R.S. 24-10-101 et seq.), as amended from time to time.
- (2) A completed zoning confirmation form from the city based upon an applicant's submittal of an area map drawn to scale, indicating within a radius of 1,000 feet, as measured from the nearest portion of the footprint of the proposed medical marijuana store to the nearest property line of any school or other regulated marijuana store.
- (3) An operating plan for the proposed medical marijuana store, including the following information:
 - a. A description of the products and services to be provided by the medical marijuana store;
 - b. A dimensional floor plan, drawn to scale, clearly labeled, and showing;
 - c. The layout of the structure and the floor plan in which the medical marijuana store is to be located;
 - d. The principal uses of the floor area depicted on the floor plan, including, but not limited to, the areas where the public will be permitted, and all private storage, retailing, and restricted areas where medical marijuana will be located;
- e. Areas where any services other than the distribution of medical marijuana are proposed to occur in the premises.
- (4) The city shall require each medical marijuana store applicant to obtain and submit a report from an certified industrial hygienist to verify that the store's facility and its processes and procedures, which include, but are not limited to, the sale and storage of marijuana, are in compliance with all applicable laws, rules, and regulations set forth in this chapter and in the Colorado Marijuana Code and its rules, and adequately designed and operated to protect the store, its employees, customers, the general public, and adjacent properties.
- (5) Plan for disposal of any medical marijuana or medical marijuana product that is not sold in a manner that protects any portion thereof from being possessed or ingested by any person or animal.
- (6) A plan for ventilation of the medical marijuana store that fully describes the ventilation systems that will ensure the odor of marijuana cannot be detected by a person with a normal sense of smell at the exterior of the medical marijuana store or at any adjoining property.
- (7) Copies of background checks, photo identification, and fingerprints of all persons who are required to request a finding of suitability by state law or regulation, and any other person required by the local licensing authority, as well as a statement of all violations and penalties for any infractions or offenses by the applicant or applicant's controlling beneficial owners, principal officers, managers, agents, or employees relating to any marijuana store in this or any other state or a statement that no such violations or penalties have occurred..

(c) All applications must include all documents and information required by the Colorado Marijuana Code, including its rules, and any information that the city deems reasonably necessary for the investigation and review of the application.

(d) Upon receipt of an application, the city clerk shall notify all affected departments of the city to determine whether the application is in full compliance with all state and local laws, rules, and regulations. The city clerk, upon review of all applicable information, shall prepare a report including all applicable documents to be submitted to the local licensing authority.

(e) In the event the criminal history of an owner, member, manager, financier, or other person named on the application contains information regarding conviction of a crime or previous denial or revocation of any medical or retail marijuana or professional license, that person may include with the license application any information regarding such conviction, denial, or revocation. Such information may include, but is not limited to, evidence of rehabilitation, character references, and educational achievements, especially documentation pertaining to the period of time between the applicant's last criminal conviction and the date of the application.

(f) A license issued pursuant to this chapter does not eliminate the requirement for the licensee to obtain other required permits or licenses related to the operation of the medical marijuana store, including, without limitation, any State of Colorado license, or any sales tax license, business registration, development approvals, or building permits required by the Code.
(Ord. No. 2183, § 2, 6-14-2022)

4.94.100 Application for a new retail marijuana store license.

(a) *Application period—Initial applications.* Within 30 days of the effective date of the ordinance adopting this chapter, the city shall post notice on its website indicating the Phase 1 applications for retail marijuana store licenses shall be accepted for a 60-day period.

(b) *Existing medical marijuana stores.* Every medical marijuana store licensee that has operated continuously at its licensed location on or before December 31, 2021, may apply for a retail marijuana store license at the same location as its licensed medical marijuana store if the licensee and store are in compliance with state and local law and the Colorado Marijuana Rules at the time of application. Applications filed under this subsection (b) are subject to Phase 1 and Phase 2 of the retail marijuana store submittal requirements as set forth below, and may include both Phase 1 and Phase 2 application submittal with the initial application. Such applications will be reviewed by the Review Committee and local licensing authority for approval or denial of a license according to the requirements of this section 4.94.100 (i) and (j), but shall be exempt from the random selection process.

(c) *Subsequent initial applications.* When a retail marijuana store license becomes available, the city clerk shall post notice of such availability on the city's website, opening a 60-day application period for the filing and acceptance of new applications. The city clerk will specify the start and end date and time of the application period, and may, in its discretion, increase the time period for acceptance of applications. This notice shall be posted by the city clerk at reasonable intervals, but no less than annually, until all available licenses are issued. Applications will be processed in accordance with this section 4.94.100.

(d) *Phase 1 application.* The applicant seeking a license issued pursuant to this chapter shall submit a Phase 1 application to the local licensing authority on forms provided by the city clerk. The purpose of a Phase 1 application is to review the application for completeness and fulfillment of other community criteria to determine whether an applicant qualifies for the random selection process in subsection (h) of this section. At the time of the Phase 1 application, each applicant shall pay a nonrefundable Phase 1 application fee to the city to defray the costs incurred by the city in processing the application, as established by city council resolution. In addition, the application shall present one of the following forms of identification for the applicant,

all controlling beneficial owners, as that term is defined in the Colorado Marijuana Code, of the business or entity that is applying, and the proposed manager of the retail marijuana store:

- (1) An operator's, chauffeur's, or similar type of driver's license issued by any state within the United States or United States Territory;
- (2) An identification card, issued by any state for the purpose of proving age using requirements similar to those in C.R.S. 42-2-302 and 42-2-303;
- (3) A United States military identification card;
- (4) A valid passport; or
- (5) An enrollment card issued by the government authority of a federally recognized tribe located in the State of Colorado.

(e) *Application requirements.* The applicant shall also provide the following information on a form provided by the city clerk, which information shall be required for the applicant, all controlling beneficial owners, as that term is defined in the Colorado Marijuana Code, of the business or entity that is applying, and the proposed manager of the retail marijuana store:

- (1) Name, address, date of birth, demonstrated by one of the forms of identifications listed in subsection (d) of this section;
- (2) Suitable evidence of proof of lawful presence, residence, and good character and reputation that the city may request;
- (3) Proof of the state's finding of suitability to own a regulated marijuana business;
- (4) If the applicant is a business entity, information regarding the entity, including, but not limited to, the name and address of the entity, identification of all controlling beneficial owners of the entity as defined in the Colorado Marijuana Code, proof of entity's legal status, and proof of the entity's registration with, or certificate of good standing from, the Colorado Secretary of State, as applicable;

- (5) The name and complete address of the proposed regulated marijuana business;
- (6) Zoning compliance verification. Applicants must obtain a preliminary determination from the Golden Department of Community and Economic Development in the form of a zoning verification letter that states whether the location proposed for licensing is an eligible location for a retail marijuana store. This preliminary determination shall not preclude a later determination that the proposed location does not comply with any one or more zoning or land use laws of the city.
- (7) A copy of any deed, lease, or contract reflecting the right of the applicant to possess and operate the proposed licensed premises for its proposed purpose along with the conditions of occupancy of the premises. If the applicant is not the owner of the proposed licensed premises, upon initial application, a notarized statement from the owner of such property authorizing the use of the property for a retail marijuana business;
- (8) A "to scale" diagram of the premises showing, without limitation, a site plan, building layout, all entries and exits to the marijuana store, loading zones, and all areas in which regulated marijuana will be stored or dispensed;
- (9) A comprehensive operations plan for the regulated marijuana store which shall contain, without limitation, the following:
 - a. A detailed description and vicinity map of the proposed location, including a full address.
 - b. A general description of site improvements proposed, and the land development approvals required therefor.
 - c. A floor plan showing all interior dimensions of the proposed licensed premises and the layout of the marijuana store, including all limited access areas, areas of ingress and

- egress, and all security cameras. Such floor plan shall also show the principal uses of the floor area depicted therein.
- d. A description of the products to be sold by the store.
- (10) A business plan, including the following:
- a. A general description of the business.
 - b. Details of overall management and operations, including hours of operation, curricula vitae of all principal officers and managers, and staffing plans.
 - c. Commitments of the licensee toward staffing the establishment with a diverse and inclusive workforce, planned recruitment process for filling positions, employee training, and advancement and benefits packages for all levels of staff.
 - d. Financial information demonstrating liquid assets of \$250,000.00 in the applicant's control, financial projections including assumptions used, and sources of funds.
 - e. A description of the applicant's experience operating licensed marijuana businesses in Colorado or elsewhere, including compliance with state and local laws or violations or alleged violations pending determination.
- (11) A community engagement plan, including:
- a. The applicant's history of community and neighborhood involvement with other similar businesses;
 - b. Written policies and procedures to address community concerns and complaints;
 - c. A designated point of contact, with comprehensive contact information, for public questions and concerns; and
- d. Measures and procedures for mitigating any impacts to the neighborhood, foreseen or unforeseen.
- (12) A copy of any determination of social equity licensing eligibility issued by the State of Colorado, if applicable.
- (f) *Application restrictions.* The intent of the Phase 1 application process is to provide an opportunity for eligible persons and entities to demonstrate their qualifications and suitability to be selected for a Phase 2 review and potentially to obtain a license in the city. As such, the following restrictions apply:
- (1) Multiple Phase 1 applications by the same person or entity or applications by multiple entities with substantially the same ownership or who are affiliated entities are prohibited and will be rejected. For purposes of this chapter, "substantially the same ownership" and "affiliated entities" are defined as follows:
 - a. "Substantially the same ownership" means that entities share 50 percent or more ownership in common, as determined by the city clerk.
 - b. "Affiliated entities" means a person, as defined by the Colorado Marijuana Code, having ownership or any level of control in common with an entity, in whole or in part, including, without limitation, an entity's parent corporation, franchisor, licensor, and any subsidiaries or affiliates of such parent corporations. "Affiliated entities" also means a person who has direct business or an immediate familial relationship with another person or a person using the same trade name as another person.
 - (2) No person or entity may apply on behalf of another person or entity. The applicant for a license must be the true applicant and may not be a shell or strawman for a third party. The selected applicant may not transfer an application to a third party at any time during the Phase 1 and Phase 2 review process.

(3) To ensure compliance with this requirement, if a license is issued, the licensee shall not transfer its license during the first two license years following initial license issuance. In addition:

- a. During the first two license years following licensing, a licensee shall not alter its ownership, ownership structure, name, or trade name; and
- b. Each applicant shall demonstrate a funding plan sufficient to capitalize and cover the cost of initial construction and startup for the proposed business, which funding is not shared with or spoken for by another applicant.

(4) The local licensing authority shall promulgate rules and regulations as needed to carry out the intent of this section to ensure and confirm that each Phase 1 applicant is a wholly separate business owned, operated, funded, and controlled by a wholly separate person, as defined by the Colorado Marijuana Code.

(g) *Review of Phase 1 application.*

- (1) The city clerk shall review a Phase 1 application for completeness. The city clerk shall reject a Phase 1 application if any of the information required as part of the application was not submitted. If the application is incomplete, the city clerk shall notify the applicant in writing, via email and United States mail of the application's deficiencies within 15 days of receipt of the application. The applicant shall have 15 days from the date notification was emailed or mailed by the city clerk to remedy the deficiency. If the applicant fails to remedy the deficiencies within the specified period, the city clerk shall deny the application and notify the applicant of the denial.
- (2) Determination that the application is incomplete is appealable to the city manager by filing an appeal with the city within ten days of the date the notification of the rejection was mailed by the

city clerk. The city clerk shall schedule a hearing within ten days of the filing of the appeal. The city shall provide at least five days' notice to the appellant of the hearing. The city manager shall make a determination of the appeal within five days of the hearing and shall notify the appellant of the decision in writing.

- (3) Once the city clerk has determined the application is complete, the city clerk will forward the complete Phase 1 application to the review committee. Upon receipt of a complete application from the city clerk, the review committee shall evaluate each application based on a multi-factor balancing test, considering the criteria listed below and the totality of the circumstances, with the overall goal of selecting those applications that provide the greatest benefit to the city and its inhabitants by offering and maintaining the safest environment, the best service, and the fewest negative impacts to the community. The review committee will evaluate applications on their own merits, not in comparison to other applications, based on the following criteria:

- a. The applicant's experience operating a licensed marijuana business in Colorado or any other state, including compliance with state and local laws, violations, or alleged violations thereof;
- b. The convenience of the proposed location to the residents of the city, considering any synergies, redundancies, or conflicts posed by the proposed locations of other marijuana store applications;
- c. The applicant's ability to demonstrate, through a business plan, its ability to operate and develop the proposed store in a highly regulated industry;
- d. The applicant's demonstrated ability to operate an effective and lawful analogous business, if applicable;

- e. Diversity of ownership of marijuana industry licenses or permits, including consideration of ownership of any active licenses or stores located in the United States;
- f. The quality and detail of the proposed business plan, community engagement plan, and other application materials;
- g. The degree of detail and completeness provided in the application and the extent to which the application includes false or misleading information;
- h. Community benefit, including providing a living wage and employee benefits and compliance with local, state, and federal employee non-discrimination policies;
- i. Whether the licensee is eligible to operate as a social equity licensee;
- j. Additional information that demonstrates the ability to operate in a safe and responsible manner in the city, including, without limitation, a review of the quality and thoroughness of application materials, connection to Golden, ability to serve Golden, familiarity with the city, and innovative business models consistent with the Golden community; and
- k. Any other unique benefits the application would present to the inhabitants of the city and any other factors that may be relevant.

The review committee shall issue a written report stating the determinations of the committee and a brief explanation of the basis thereof, and the city clerk shall notify the applicant in writing of the results of the review. This report shall be added to the application file. The review committee shall, based upon its written report and upon the number of applications received and evaluated, determine those applications that have met or

exceeded the criteria required by this chapter and therefore will go through the random selection process.

- (5) If the review committee determines that an application is eligible, the city clerk shall notify the applicant that they will be entered into the random selection process described in subsection (h). If an application is rejected, the applicant may appeal the review committee's decision to the city manager, by filing an appeal with the city within ten days of the date the notification of the rejection was mailed by the city clerk. The city clerk shall schedule a hearing within ten days of the filing of the appeal. The city shall provide at least five days' notice to the appellant of the hearing. The city manager shall make a determination of the appeal within five days of the hearing and shall notify the appellant of the decision in writing.

(h) *Random selection.* Once the 60-day period to submit Phase 1 applications has ended, the city clerk has reviewed all Phase 1 applications, the appeal deadline in subsection (g) has expired, and all appeals, if any, have been decided, the city may conduct the random selection of applicants for Phase 2 applications. The random selection of applicants will be subject to the following limitations.

- (1) One regulated marijuana business license shall be reserved for issuance to an applicant determined by the State of Colorado to be eligible to operate as a social equity licensee.
- (2) Applicants determined by the State of Colorado to be eligible to operate as a social equity licensee shall initially be included in a separate random drawing. Those applicants not selected for the one reserved social equity license will be returned to the pool for the balance of the random selection.
- (3) No more than one application per physical location, or within 1,000 feet of a previously drawn location, may be advanced to the Phase 2 application process. If an application drawn through

this process is rejected because it is for an identical location or is within 1,000 feet of a previously drawn location, that application may subsequently be considered if the previously drawn location is ultimately denied, is not successfully appealed, and if a license remains available.

(i) *Phase 2 application.*

(1) The city clerk shall notify all applicants that they have been selected to proceed to Phase 2. If an applicant is randomly selected to proceed to Phase 2, the applicant shall pay to the city a nonrefundable Phase 2 application fee as well as an annual license fee in amounts established by city council resolution. If the applicant is ultimately denied, the city shall refund the licensing fee to the applicant. A selected applicant shall provide the following information on a form provided by the city clerk's office within 90 days from the date of notification:

- a. Evidence of a valid city business license for the business;
- b. A security plan indicating how the applicant intends to comply with the requirements of the Colorado Code and the Colorado Marijuana Rules as well as the following detailed information:
 - i. Evidence of methods that applicant plans to use to comply with all security and video surveillance requirements set forth in the Colorado Marijuana Rules;
 - ii. The store's procedures for preventing the use or consumption of marijuana on the licensed premises;
 - iii. Security measures taken by the licensee to prevent unauthorized individuals from entering the limited access area portion of the licensed premises;

- iv. The licensee's plan to prevent theft or the diversion of marijuana, including maintaining all marijuana in a secure, locked room that is accessible only to authorized persons and, when the business is closed to the public, in a safe or vault or equivalent secured fixture;
- v. The type of alarm system and outdoor lighting to be used by the licensee;
- vi. A copy of the licensee's security alarm system monitoring contract;
- vii. A lighting plan showing the lighting outside of the marijuana store for security purposes and compliance with applicable city requirements;
- viii. A plan for disposal of any marijuana that is not sold and any waste generated from store operations;
- ix. A plan for preventing underage persons from entering the premises;
- x. A sustainability plan that describes business practices that will be implemented to mitigate environmental impacts including energy consumption, water consumption, and waste generation, which may include, but are not limited to, office operations and supplies, drinking water and other water usage, and facility cleaning, waste handling, and energy usage;
- xi. Copies of background checks, photo identification, and fingerprints of all persons who are required to request a finding of suitability by state law or regulation, and any other person required by the licensing authority, as well as a state-

ment of all violations and penalties for any infractions or offenses by the applicant or applicant's controlling beneficial owners, principal officers, managers, agents, or employees relating to any marijuana store in this or any other state or a statement that no such violations or penalties have occurred.

- c. A statement of whether any person holding any ownership interest has:
 - i. Been denied an application for a marijuana store license by the state in this or any other jurisdiction or in any other state, or had such a license suspended or revoked in Colorado or any other state; and
 - ii. Been convicted of a felony or has completed any portion of a sentence due to a felony charge within the preceding seven years.
- d. Proof that the applicant has completed and satisfied the building permit review.
- e. Any additional document(s) or information reasonably requested by the local licensing authority or by the review committee.

(j) *Review of Phase 2 application.*

- (1) The city clerk shall review the application for completeness and conformity with the requirements of this chapter. If the application is incomplete, the city clerk shall notify the applicant in writing, via email and/or United States mail of the application's deficiencies within 15 days of receipt of the application. The applicant shall have 60 days from the date notification was emailed or mailed by the city clerk to remedy the deficiency. If the applicant fails to remedy the deficiencies

within the specified period, the city clerk shall deny the application and notify the applicant of the denial.

- (2) Determination that the application is incomplete is appealable to the city manager by filing an appeal with the city within ten days of the date the notification of the rejection was mailed by the city clerk. The city clerk shall schedule a hearing within ten days of the filing of the appeal. The city shall provide at least five days' notice to the appellant of the hearing. The city manager shall make a determination of the appeal within five days of the hearing and shall notify the appellant of the decision in writing.
- (3) If the appeal period has run without an appeal being filed or the determination has been upheld by the city manager, the city clerk may randomly select another applicant who has passed the Phase 1 review to submit a Phase 2 application, provided that if the determination involves a social equity license application, the city clerk will select from a pool of social equity license eligible applicants.
- (4) Upon receipt of completed Phase 2 application, the city clerk shall circulate the application to the review committee to determine whether the application is in full compliance with all applicable laws, rules, and regulations. The review committee shall provide a written report to the local licensing authority regarding whether the application has complied with all requirements in this chapter, the Colorado Marijuana Code, and the Colorado Marijuana Rules.
- (5) If the city has issued the maximum number of retail marijuana store licenses, the city shall not accept any further applications for such use until an existing license is either surrendered, is revoked, or expires.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.110 Issuance of license; duration; renewal; annual operating and administrative fees.

(a) Each license issued pursuant to this chapter shall show the name of the licensee, the physical address for which the license is issued, and whether the license is for a medical marijuana store or a retail marijuana store. The license, along with the city sales tax license and the current contact information for the owner(s), shall be displayed continuously in a conspicuous location at the physical address indicated on the license.

(b) Each license issued pursuant to this chapter shall be valid for one year from the date of issuance and may be renewed only as provided in this chapter. All renewals of a license shall be for no more than one year. The local licensing authority shall act on renewal applications received from the state licensing authority in accordance with the applicable provisions of the Colorado Marijuana Code, the Colorado Marijuana Rules, and this chapter. The timely filing of a renewal application shall extend the current license until a decision is made on the renewal. Notwithstanding this subsection (b), a licensee whose license has been expired for not more than 90 days may file a late renewal application upon the payment of a nonrefundable late application fee to city in the amount established by city council resolution. A licensee who files a late renewal application and pays the requisite fee may be subject to compliance with all applicable local, state, and federal laws, rules and regulations continue to operate until a decision is made on the renewal.

(c) In addition to application, licensing, renewal, late renewal, and annual operating fees, the city council shall establish by resolution fees to defray the costs of administering this chapter, including without limitation transfer of ownership, background investigations, change of manager, change of ownership, modification of premises, change of location, zoning verification, and change of trade name.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.120 Operation restrictions.

(a) *[Compliance required.]* All persons who are engaged in or who are attempting to engage in the distribution, or sale of regulated marijuana

in any form shall do so only in strict compliance with the terms, conditions, limitations, and restrictions in Section 14 and Section 16 of Article XVIII of the Colorado Constitution, the Colorado Revised Statutes, the Colorado Marijuana Rules, this Code, and all other state and local laws and regulations.

(b) *[License required.]* Within the city, it is unlawful for any person to sell or to possess for sale any regulated marijuana product unless licensed to do so, unless all licenses required are in full force and effect, and all applicable fees and taxes have been paid in full and the license applies to the person and location where the sale or possession occurs.

(c) *[Violation deemed nuisance.]* Any person selling marijuana, marijuana products, or marijuana accessories without a license is a per se nuisance.

(d) *[Separate licenses.]* All regulated marijuana store locations must be licensed separately, even if owned or operated by the same owner or operator.

(e) *Business conducted within building.* Any and all distribution, possession, storage, display, sales, or other distribution of marijuana shall occur only within the restricted area of a regulated marijuana store and shall not be visible from the exterior of the regulated marijuana store.

(f) *Manager registration requirements.* Each regulated marijuana store licensee shall manage or have a separate and distinct manager and shall register the manager of each store with the state and the local licensing authority. No person shall be a registered manager for more than one regulated marijuana store. Whenever a person ceases to be a registered manager of a regulated marijuana store, the licensee shall notify the licensing authorities as required by applicable law. Either the state or the local licensing authority may refuse to accept any person as a registered manager unless the person is satisfactory to the respective licensing authorities as to character, record, and reputation. In determining a registered manager's character, record, and reputation, the state or local licensing authority may have access to criminal history record

information furnished by a criminal justice agency subject to any restrictions imposed by such agency.

(g) *Responsible vendor designation.* Each regulated marijuana store licensee shall within 90 days of receipt of a license obtain and maintain a responsible vendor designation as set forth in the Colorado Marijuana Code. Licensees are required to maintain this designation for the duration of the license.

(h) *Hours of operation.* Regulated marijuana stores shall be closed to the public, and no sale or other distribution of marijuana shall occur upon the premises between the hours of 10:00 p.m., through and including 8:00 a.m.

(i) *Ventilation required.* In accordance with the ventilation plan submitted at the time of application, a regulated marijuana store's ventilation system shall operate so as to ensure the odor of marijuana cannot be detected by a person with a normal sense of smell at the exterior of the regulated marijuana store or at any adjoining property.

(j) *Wastewater requirements.* All regulated marijuana stores shall be operated in such a manner as to not permit, allow, or cause to be discharged any substance or material prohibited by the city's wastewater pretreatment requirements into or upon any watercourse or city reclamation conduit, facility, or plant.

(k) *Off-premises storage prohibited.* Off-premises storage of regulated marijuana and regulated marijuana products is prohibited. No regulated marijuana store may store regulated marijuana or regulated marijuana products in any off-premises storage facility located within the city.

(l) *Reporting requirements.* Regulated marijuana stores shall report to the local licensing authority each of the following events within the time specified. If no time is specified, the report shall be provided within 72 hours of the event.

- (1) A license shall not be transferable to any other person except as provided in this chapter. Licensees shall report a transfer of ownership of any license to the city at

least 30 days before the proposed transfer or change, and shall file an application with the city and pay the requisite fees.

- (2) Change of business manager shall be reported to the city at least 30 days before the proposed change.
- (3) A licensee shall report a proposed change of location of any marijuana store to the city at least 60 days before the proposed change, and shall file an application with the city and pay the requisite fees.
- (4) Sales and taxable transactions and file sales and use tax reports to the city monthly.
- (5) A violation of any law by any licensee or applicant of a regulated marijuana store.

(m) *Required signage.* Each licensee shall post and keep at all times visible to the public, in a conspicuous place on the premises, a sign to be furnished by the city clerk's office, which sign shall be in the following form:

"WARNING: THE GOLDEN POLICE DEPARTMENT MUST BE NOTIFIED IMMEDIATELY OF ALL UNLAWFUL ACTS AND DISTURBANCES IN THIS STORE."

(n) *Unlawful conduct on premises.* Licensees shall immediately report to the police department any unlawful act, conduct, or disturbance committed upon the premises.

(o) *Respond to inquiry.* The owner or manager of a regulated marijuana store is required to respond by phone or email within 24 hours of contact by a city official concerning its store at the phone number or email address provided to the city as the contact for the business. Each 24-hour period during which an owner or manager does not respond to the city official shall be considered a separate violation.

(p) *Signs and advertising.*

- (1) Any person or premises licensed as a regulated marijuana store shall comply with all city ordinances regulating signs and advertising. In addition, no regulated marijuana store shall use any advertising material that is misleading, decep-

tive, false, or that, as evidenced either by the content of the advertising material or the medium or the manner in which the advertising is disseminated, is designed to appeal to persons under 18 years of age.

- (2) Except as otherwise provided in this subsection, it shall be unlawful for any person licensed under this chapter or any other person to advertise any regulated marijuana or regulated marijuana product anywhere in the city where the advertisement is visible to members of the public from any street, sidewalk, park, or other public place as defined in section 8.04.100, including advertising utilizing any of the following media: Any billboard or other outdoor general advertising device; any sign mounted on a vehicle, any hand-held or other portable sign; or any handbill, leaflet, or flier directly handed to any person in a public place, left upon a motor vehicle, or posted upon any public or private property without the consent of the property owner; or unsolicited direct mail advertisements. The prohibition set forth in this section shall not apply to:

- a. Any sign located on a building that contains a regulated marijuana store which exists solely for the purpose of identifying the location of the regulated marijuana store and which otherwise complies with the city's zoning requirements and any other applicable city laws and regulations. Signs located on the building may use words and symbols that represent marijuana, such as the word "dispensary" or the image of a green cross; or
- b. Any sign associated with a regulated marijuana store that is not located on the same building as the store, such as on-site directional signs, monument signs associated with a commercial development, or off-site signs located on private property, so

long as the sign displays only the name of the store, but no other words or symbols that represent marijuana; or

- c. Any advertisement contained within a newspaper, magazine, or other periodical of general circulation within the city; or
- d. Advertising which is purely incidental to sponsorship of a charitable event by a regulated marijuana store; or
- e. Advertising such as business listings displayed on websites, brochures and directories which are controlled by entities other than the regulated marijuana store and which provide the name, location, and contact information of the store, but no other words or symbols that represent marijuana.

- (3) For purposes of this subsection (p), the terms "advertise," "advertising," or "advertisement," mean the act of drawing the public's attention to a regulated marijuana store in order to promote the sale of regulated marijuana or regulated marijuana products by the store.

(Ord. No. 2245, § 2, 9-10-2024; Ord. No. 2183, § 2, 6-14-2022)

4.94.130 Inspection of books, records, and licensed premises.

(a) Each licensee shall keep a complete set of all records necessary to show fully the business transactions of the licensee, all of which shall be open at all times during business hours for the inspection and examination by the local licensing authority, its duly authorized representatives, and the city police department for the purposes of investigating and determining compliance with the provisions of this chapter and any other applicable state and local laws or regulations. The local licensing authority may require any licensee to furnish such information as it considers necessary for the proper administration of this chapter. It may also require an audit to be made of the books of accounts and records

on such occasions as it may consider necessary by an auditor to be selected by the local licensing authority who shall likewise have access to all books and records of the licensee.

(b) The licensed premises, including any places of storage where regulated marijuana regulated marijuana products are stored, displayed, sold, or dispensed, shall be subject to inspection by the local licensing authority, its duly authorized representatives, and the city police department during all business hours and other times of apparent activity, for the purpose of inspection or investigation. For examination of any inventory or books and records required to be kept by the licensees, access shall be required during business hours. Where any part of the licensed premises consists of a locked area, upon demand to the licensee by the local licensing authority, or any other authorized city personnel, such area shall be made available for inspection without delay.

(c) Each licensee shall retain all books and records necessary to show fully the business transactions of the licensee for a period of the current tax year and the three immediately prior tax years.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.140 Unlawful acts of licensees and persons.

(a) It shall be unlawful for any licensee to:

- (1) Violate or fail to comply with any provision, term, condition, or requirement of this chapter, any condition of an approval granted pursuant to this chapter, or any law, rule, or regulation applicable to the operation of a regulated marijuana store, including without limitation the Colorado Marijuana Code and the Colorado Marijuana Rules.
- (2) Allow regulated marijuana or regulated marijuana products to be consumed upon its licensed premises.
- (3) Use advertising material that is misleading, deceptive, false, or that is designed to appeal to persons under 18 years of age.
- (4) Sell medical marijuana or medical marijuana products to a person under 18 years of age or to any person who does not present a valid state medical marijuana registry card at the time of purchase.
- (5) Sell retail marijuana or retail marijuana products to a person under 21 years of age or to a person who does not present a government-issued identification at the time of purchase.
- (6) Refuse to allow inspection of a regulated marijuana store upon request of an authorized city employee. Any licensee, owner, business manager, operator of a regulated marijuana store, or owner of the property where a regulated marijuana store is located may be charged with this violation.
- (7) Advertise or publish materials or display signs that are in violation of this chapter.

(8) Violate any provision of this chapter or any condition of an approval granted pursuant to this chapter, or any law, rule, or regulation applicable to the use of regulated marijuana or the operation of a regulated marijuana store.

(9) Distribute regulated marijuana or any regulated marijuana product within a regulated marijuana store to any person who shows visible signs of intoxication from alcohol, marijuana, or other drugs.

(b) It shall be unlawful for any person to engage in any form of business or commerce involving the acquisition, cultivation, processing, manufacturing, packaging, labeling, storage, sale, transport, distribution, testing, or consumption of regulated marijuana, other than as a regulated marijuana store, as defined and regulated by the Colorado Marijuana Code, the Colorado Marijuana Rules, and this chapter, or as a primary caregiver as defined and regulated by the Medical Marijuana Program, C.R.S. 25-1.5-106, and its rules, 5 CCR 1006-2.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.150 Violations and penalties.

In addition to the possible denial, suspension, revocation, or non-renewal of a license pursuant to this chapter, any person convicted of having violated any of the provisions of this chapter shall be punished as set forth in section 1.01.110 of this Code.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.160 No city liability; indemnification.

(a) By accepting a license issued pursuant to this chapter, the licensee waives and releases the city, its officers, elected and appointed hearing officers and officials, employees, attorneys, agents, and authorized volunteers, insurers, and self-insurance pool from any liability for injuries, damages, or liabilities of any kind that result from any arrest or prosecution of the owners, operators, employees, clients, or customers of a regulated marijuana store for a violation of state or federal laws, rules, and regulations.

(b) By accepting a license issued pursuant to this chapter, all licensees, jointly and severally, if more than one, agree to indemnify, defend, and hold harmless the city, its officers, elected and appointed hearing officers and officials, employees, attorneys, agents, authorized volunteers, insurers, and self-insurance pool against all liability, claims, and demands on account of any injury, loss, or damage, including, without limitation, claims arising from bodily injury, personal injury, sickness, disease, death, property loss or damage, or any other loss of any kind whatsoever arising out of or are in any manner connected with the operation of the regulated marijuana store that is the subject of the license.

(Ord. No. 2183, § 2, 6-14-2022)

4.94.180 Other laws remain applicable.

(a) Except as specifically provided herein, to the extent the state adopts any additional or stricter law, rule, or regulation, governing the sale, transportation, displaying, or distribution of regulated marijuana, regulated marijuana products, the additional or stricter regulation shall control the operation of any regulated marijuana store. Compliance with any applicable state law or regulation shall be deemed an additional requirement for issuance or denial of any license or operation of any store under this chapter, and noncompliance with any applicable state law or regulation shall be grounds for non-renewal, revocation, or suspension of any license issued hereunder.

(b) If the state prohibits the sale, transportation, or distribution of marijuana through regulated marijuana stores, any license issued hereunder shall be deemed immediately revoked by operation of law, with no ground for appeal, or other redress available, on behalf of the licensee.

(c) The issuance of any license pursuant to this chapter shall not be deemed to create an exception, defense, or immunity to any person in regard to any potential criminal liability the person may have for the possession, sale, distribution, or use of marijuana.

(Ord. No. 2183, § 2, 6-14-2022)

Chapter 4.96

NICOTINE OR TOBACCO PRODUCT RETAILERS*

4.96.010 Legislative intent.

It is the intent of the city council in enacting this chapter to prohibit the sales of nicotine or tobacco products to persons under 21 years of age, to prohibit the sales of flavored tobacco products, to encourage responsible tobacco retailing, and to reduce the impact of nicotine or tobacco product use by young people in Golden. (Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.020 Definitions.

The following words and phrases, when used in this chapter, shall have the following meanings unless the context clearly indicates otherwise:

Characterizing flavor means:

- (1) A taste or aroma, other than the taste or aroma of tobacco, imparted either prior to or during consumption of a nicotine or tobacco product or any byproduct produced by the nicotine or tobacco product, including, but not limited to, tastes or aromas relating to menthol, mint, wintergreen, fruit, chocolate, vanilla, honey, candy, cocoa, dessert, alcoholic beverage, herb, or spice; or
- (2) A cooling or numbing sensation in the mouth imparted by a blend of taste and smell sensations during consumption of a nicotine or tobacco product;

provided, however, that a nicotine or tobacco product shall not be determined to have a characterizing flavor solely because of the use of additives or flavorings or the provision of ingredient information.

Consumer means any person in the city who purchases, uses, or otherwise consumes nicotine or tobacco products.

***Editor's note**—Sec. 2 of Ord. No. 2216, adopted July 25, 2023 and effective January 1, 2024, repealed and reenacted ch. 4.96 in its entirety to read as herein set out. Former ch. 4.96 pertained to the same subject matter, and derived from Ord. No. 2118, adopted December 12, 2019.

Department means the City of Golden Police Department, and shall also include Jefferson County, acting as agent for the city, and any person authorized by Jefferson County to enforce or administer the provisions of this chapter, including Jefferson County Public Health.

Electronic smoking device means:

- (1) Any battery-powered or electronic oral device that provides or delivers, or is intended to provide or deliver, an inhaled dosage of nicotine, a vapor of nicotine, a vapor of a solution containing nicotine, a particulate or vaporized substance containing nicotine, or aerosol of a solution containing nicotine to a person for consumption, whether such device is homemade, manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pen, an electronic pipe, or an electronic hookah or any other product name or descriptor; or
- (2) Any battery-powered or electronic oral device that can be used by an individual to simulate smoking in the delivery of nicotine or any other substance, even if marketed as nicotine-free, through inhalation from the product.

Electronic smoking device includes any component, part, or accessory of a device described in paragraph (1) or (2) of this definition, whether or not marketed or sold separately, including refills and cartridges.

Flavored tobacco product means any nicotine or tobacco product that imparts a characterizing flavor. There shall be a rebuttable presumption that a nicotine or tobacco product is a flavored tobacco product if a nicotine or tobacco retailer, manufacturer, or any employee or agent of a nicotine or tobacco retailer or manufacturer has:

- (1) Made a public statement or claim that the nicotine or tobacco product imparts a characterizing flavor; or
- (2) Used text or images on the nicotine or tobacco product's labeling or packaging

to indicate explicitly or implicitly that the nicotine or tobacco product imparts a characterizing flavor; or

- (3) Taken action directed to consumers or the public that would reasonably be expected to cause consumers or other members of the public to believe the nicotine or tobacco product imparts a characterizing flavor.

Labeling means written, printed, or graphic matter upon any nicotine or tobacco product or any of its packaging, or accompanying such nicotine or tobacco product.

License means the nicotine or tobacco product retailer license required by this chapter.

Licensee means any person, partnership, joint venture, society, club, trustee, trust, association, organization, or corporation who owns, operates, or manages any tobacco retail establishment. Licensee does not mean the non-management employees of any tobacco retail establishment.

Licensed premises means any area of the premises where nicotine or tobacco products are authorized to be sold or dispensed to a consumer including, but not limited to, the grounds occupied by a licensee and any store, stand, outlet, location, vending machine, or structure where tobacco or nicotine products are sold, as designated in the approved license application.

Manufacturer means any person, including any repacker or relabeler, who manufactures, fabricates, assembles, processes, or labels a nicotine or tobacco product, or a person who imports a finished nicotine or tobacco product for sale or distribution into the united states.

Minimum legal sales age means 21 years of age or older.

Nicotine or tobacco product means:

- a. Any product that contains, is made of, or derived from nicotine, from any source, or tobacco, and is intended to be consumed by an individual; or
- b. An electronic smoking device; or
- c. Any device, other than an electronic smoking device, manufactured, distributed,

marketed, or sold for use by an individual to consume nicotine or tobacco products. The term "device" includes, without limitation, cigarettes, cigars, cigarillos, pipes, or any product that, because of its appearance, type, packaging, or labeling, is suitable for use and likely to be offered to, or purchased by, consumers for consuming nicotine or tobacco products; or

- d. Nicotine or tobacco product includes any component, part, or accessory intended or reasonably expected to be used with a product or device described in a, b, or c of this definition, whether or not sold separately.
- e. Nicotine or tobacco product does not include any product specifically approved by the United States Food and Drug Administration as a tobacco cessation product for any of the following uses, when such product is being marketed and sold solely for such use:
 - (1) Reducing, treating, or eliminating nicotine or tobacco dependence;
 - (2) Mitigating, treating, or preventing disease; or
 - (3) Other medical purposes.

Nicotine or tobacco product retailer means any person who sells, offers for sale, offers to sell through advertising or otherwise, or does or offers to exchange for any form of consideration, a nicotine or tobacco product to consumers at retail.

Nicotine or tobacco product retailing means the selling, offering for sale, or exchanging for any form of consideration, a nicotine or tobacco product to consumers at retail. This definition is without regard to the quantity of nicotine or tobacco products or tobacco or nicotine paraphernalia sold, offered for sale, exchanged, or offered for exchange.

Packaging means a pack, box, carton, or container of any kind or, if no other container, any wrapping (including cellophane) in which a nicotine or tobacco product is sold or offered for sale to a consumer.

Person means any natural person, partnership, cooperative association, corporation, personal representative, receiver, trustee, assignee, or any other legal entity.

Retail tobacco business means a person engaged primarily in the sale at retail of any nicotine or tobacco product, and in which the sale of other products is less than 25 percent of gross sales receipts.

Self-service display means the open display or storage of nicotine or tobacco products, electronic smoking devices, or tobacco or nicotine paraphernalia in a manner that is physically accessible in any way to the general public without the assistance of the nicotine or tobacco product retailer or an employee or agent of such retailer and a direct person-to-person transfer between the purchaser and the retailer or employee or agent of the retailer. A vending machine qualifies as a self-service display.

Tobacco or nicotine paraphernalia means any item designed or marketed for the consumption, use, or preparation of nicotine or tobacco products.

Youth-oriented facility means any public or private elementary school, middle school, or high school.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.030 License required.

(a) *Nicotine or tobacco product retailer license required.*

- (1) It shall be unlawful for any person to act as a nicotine or tobacco product retailer in the city without first obtaining and maintaining a valid license pursuant to this chapter for each location where nicotine or tobacco product retailing occurs.
- (2) No license may be issued to authorize nicotine or tobacco product retailing anywhere other than at a fixed location that is designated in the license application and license. Nicotine or tobacco product retailing from other than a fixed location is prohibited.

- (3) Except as provided in this subparagraph, no license shall be issued to authorize nicotine or tobacco product retailing within 500 feet of a youth-oriented facility, as measured by a straight line from the nearest point of the property line of the site of the youth-oriented facility to the nearest point of the property line of the site of the premises proposed for licensure. The foregoing notwithstanding, a nicotine or tobacco product retailer operating lawfully on April 26, 2012, shall be exempt from the 500-foot prohibition set forth in this section, provided that a license for such location is issued within 30 days of the effective date of the ordinance from which this section is derived, and continuously maintained.

- (4) A licensed premises may only have one active license at one time.

(b) *Display of license.* Each license shall be displayed as required by Section 4.04.020 of this Code.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.040 Regulations.

(a) *Minimum legal sales age.* No license issued pursuant to this chapter shall authorize a nicotine or tobacco product retailer to sell a nicotine or tobacco product to any person who is under the minimum legal sales age.

(b) *Minimum age for persons handling nicotine or tobacco products.* It shall be unlawful for a licensee to allow, permit, or require any person who is younger than the minimum legal sales age to sell, stock, retrieve, or otherwise handle nicotine or tobacco products during the course of operation of the business.

(c) *No unaccompanied minors permitted in retail tobacco businesses.* It shall be unlawful for a retail tobacco business licensee to allow or permit a person who is younger than minimum legal sales age to be admitted or remain upon the licensed premises, unless such person is accompanied by their parent or legal guardian. A retail tobacco business licensee shall display a warning sign as specified in this section, to be provided by the city clerk's office. The warning

shall be displayed in a prominent place within the licensed premises that is visible to the public, and shall have a minimum height of three inches and a width of six inches, with each letter a minimum of one-half inch in height, and shall read as follows:

WARNING: It is a violation of the Golden Municipal Code for any person under twenty-one (21) years of age to be on the premises of this business unless accompanied by their parent or legal guardian.

(d) *Requirements of positive identification.* No licensee shall sell or transfer a nicotine or tobacco product to a person without first examining a government-issued photographic identification of the recipient to confirm that the recipient is at least the minimum legal sales age.

(f) *[Effective date.]* On or after January 1, 2024, it shall be a violation of this chapter for any nicotine or tobacco product retailer located within the city or any of such nicotine or tobacco product retailer's agents or employees to sell, distribute, or offer for sale or distribution any flavored tobacco product, or to display, market, or advertise for sale any flavored tobacco product within the city.

(g) *Self-service display prohibited.* It is unlawful for a licensee to engage in nicotine or tobacco product retailing by means of a self-service display except at a location in which persons under the minimum legal sales age are prohibited entry and persons are not permitted to enter such location unless the nicotine or tobacco retailer, its employee, or agent verifies that the individual seeking entry into the location is the minimum legal sales age by examining the individual's government-issued photographic identification.

(h) *Signage posted.* Any person who sells or offers to sell any nicotine or tobacco product shall display a warning sign as specified in this section. The warning shall be displayed in a prominent place within the licensed premises that is visible to the public, and shall have a minimum height of three inches and a width of six inches, with each letter a minimum of one-half inch in height, and shall read as follows:

WARNING

IT IS ILLEGAL TO SELL NICOTINE OR TOBACCO PRODUCTS TO ANY PERSON UNDER TWENTY-ONE YEARS OF AGE.

(i) *City manager regulations.* The city manager shall have the power to promulgate rules and regulations as are reasonable and necessary to implement and administer the requirements of this chapter.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.050 License application procedure.

(a) An application for a license shall be submitted and signed by an individual authorized by the person making application for the license.

(b) An application for a license for an operation for which there is a reasonable expectation that it will meet the definition of retail tobacco business shall so indicate in the application. For any license that is granted pursuant to an application indicating that a retail tobacco business is anticipated on the licensed premises, there shall be a rebuttable presumption that the business is a retail tobacco business.

(c) All license applications shall be submitted on a form supplied by the city clerk, which form shall require an applicant to provide a copy of any deed, lease, or contract reflecting the right of the applicant to possess and operate the proposed licensed premises.

(d) All license applications shall be accompanied by the payment in full of an application fee and all other fees as required by this Code, as established by city council resolution. The fee shall be calculated so as to recover the cost of administration and enforcement of this chapter, including, for example, issuing a license, administering the license program, retailer education and training, retailer inspection, compliance checks, documentation of violations, and prosecution of violators, but shall not exceed the estimated cost of the regulatory program authorized by this chapter. Fees are nonrefundable except as may be required by law.

(e) Applicants and licensees shall inform the city clerk in writing of any change to the information submitted on an application for a license

within 30 calendar days of a change, including, without limitation, a change that indicates that the licensee is operating as a retail tobacco business.

(f) No license shall be issued to any natural person under the minimum legal sales age at time of application.

(g) A person who has had a license revoked may not apply for a new license for a one-year period after the effective date of such revocation. (Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.060 Issuance of nicotine or tobacco product retailer license.

(a) Upon the receipt of a complete application for a license and all required fees, the city clerk shall issue a license within 30 days, which period may be extended by the city clerk for good cause, unless credible evidence indicates that one or more of the following bases for denial exists:

- (1) The information presented in the application is incomplete or objectively verifiable as inaccurate or false;
- (2) The applicant seeks a license for a location prohibited by this chapter;
- (3) The applicant seeks a license for a location that is not appropriately zoned for the proposed use;
- (4) The proposed location for the requested license is not otherwise in compliance with all city, state, or federal laws that pertain to the proposed use; or
- (5) The applicant is not qualified to hold the requested license under the provisions of this chapter.

(b) If the city clerk denies the application for issuance of the license, the city clerk shall notify the applicant in writing by regular mail, postage prepaid, to the address shown in the application. The notice shall include the grounds for denial. Notice is deemed to have been properly given upon mailing.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.070 Appeal of denial of issuance of license.

(a) An applicant has the right to appeal the city clerk's denial of an application to a hearing officer that shall be appointed by the city council by resolution. Such appeal shall be initiated by filing a written request with the city clerk within 20 calendar days of the date of the notice of denial of the issuance of a license.

(b) The applicant's failure to timely appeal the decision of the city clerk is a waiver of the applicant's right to contest the denial of the issuance of a license.

(c) The appeal, including any right to further appeals, shall be conducted and controlled by the provisions of chapter 2.35 of the Golden Municipal Code.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.080 License terms; renewal; expiration.

(a) *Term.* A license shall be valid for a term of one year. A license is invalid if the appropriate fee has not been timely paid in full or if the term of the license has expired.

(b) *Renewal of license.* A licensee shall apply for the renewal of the license and submit the renewal license fee no later than 30 calendar days prior to expiration of the existing term. The city clerk shall renew the license prior to the end of the term, provided that the renewal application and fee were timely submitted, and the city clerk is not aware of any fact that would have prevented issuance of the original license.

(c) *Expiration of license.* A license that is not timely renewed shall expire at the end of its term. The failure to timely obtain a renewal of a license requires submission of a new application. There shall be no sale of any nicotine or tobacco products after the license expiration date until a new license is issued and in effect.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.090 License non-transferable.

(a) A license shall not be transferred from one person to another or from one location to another.

(b) If a license has been issued to a husband and wife, or to general or limited partners, the death of a spouse or partner shall not require the surviving spouse or partner to obtain a new license for the remainder of the term of that license. All rights and privileges granted under the original license shall continue in full force and effect as to such survivors for the balance of the term of the license. Surviving spouses or partners that desire to continue as a licensee shall be required to apply for a new license upon the expiration of the term of the license maintained after the death of a spouse or partner. (Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.100 Compliance monitoring.

(a) Compliance monitoring of this chapter shall be by the department, as the department deems appropriate.

(b) The department shall have the discretion to consider previous compliance history of a licensee in determining how frequently to conduct compliance checks of a licensee.

(c) Nothing in this paragraph shall create a right of action in any licensee or other person against the city, the department, or their agents and officers.

(d) Compliance checks shall be conducted at least twice per calendar year to allow the department to determine, at a minimum, if the nicotine or tobacco product retailer is conducting business in a manner that complies with laws regulating access to nicotine or tobacco products. When the department deems appropriate, the compliance checks may determine compliance with other laws applicable to nicotine or tobacco products.

(e) All licensed premises with a compliance or inspection violation shall be re-checked for compliance within 45 days of a violation.

(Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.110 Suspension or revocation of license.

(a) The following shall be grounds for suspension or revocation of a licensee's license(s):

- (1) A violation by a licensee or a licensee's officers, agents, or employees of any of

the provisions of this chapter, or any laws of the State of Colorado or ordinances of the City of Golden relating to the sale or furnishing of nicotine or tobacco products, or the storage or display of nicotine or tobacco products, including, without limitation, Title 44, Article 7 of the Colorado Revised Statutes, Section 18-13-121 of the Colorado Revised Statutes, and section 8.04.880 of the Golden Municipal Code;

- (2) Violations of any conditions imposed by the city clerk or hearing officer in connection with the issuance or renewal of the license;
- (3) Failure to pay state or local taxes that are related to the operation of the business associated with the license;
- (4) Loss of right to possession to the licensed premises;
- (5) Fraud, misrepresentation, or an objectively verifiable false statement of material fact contained in the original or renewal license application.

(b) The city council shall appoint a hearing officer to hear all actions relating to the suspension or revocation of licenses pursuant to this chapter. The hearing officer shall have the authority to impose remedial sanctions for violations.

(c) The department shall commence suspension or revocation proceedings by petitioning the hearing officer to issue an order to the licensee to show cause why the licensee's license(s) should not be suspended or revoked. The hearing officer shall issue such an order to show cause if the petition demonstrates that probable cause exists to determine that one or more grounds exist pursuant to subsection (a) to suspend or revoke the licensee's license. The order to show cause shall set the matter for a public hearing before the hearing officer.

(d) The city clerk shall give notice of the public hearing no later than 21 calendar days prior to the hearing by mailing the same in writing to the licensee at the address contained in the licensee's license. At the hearing, the licensee shall have the opportunity to be heard,

to present evidence and witnesses, and to cross examine witnesses presented by the department. The hearing officer shall have the power to administer oaths and issue subpoenas to require the presence of persons and the production of papers, books, and records necessary to the determination of any hearing that the hearing officer is authorized to conduct. The standard of proof at such hearings shall be a preponderance of the evidence. The burden of proof shall be upon the department.

(e) In determining whether a license should be suspended or revoked, and in determining whether to impose conditions in the event of a suspension, the hearing officer shall consider the following factors:

- (1) The nature and circumstances of the violation;
- (2) Corrective action, if any, taken by the licensee;
- (3) Prior violations, if any, by the licensee;
- (4) The likelihood of recurrence of the violation;
- (5) Whether the violation was willful;
- (6) Previous sanctions, if any, imposed on the licensee.

(f) The hearing officer shall consider the following non-binding guidelines in determining whether to suspend or revoke a license and, in the case of a suspension, the length of the suspension. The purpose of these guidelines is to facilitate consistent treatment of violations of this chapter. The actual sanction imposed upon a licensee for any violation may vary from the guidelines when warranted by the specific facts and circumstances of the case. The decision of the hearing officer with respect to the suspension or revocation of a license shall constitute a final administrative action by the City of Golden, subject to judicial review to the municipal court pursuant to section 2.35.050 of the Golden Municipal Code.

- (1) For a first offense, suspension for seven days.
- (2) For a second offense within a two-year period, suspension for 30 days.

(3) For a third or subsequent offense within a two-year period, revocation of the license. (Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

4.96.120 Enforcement.

(a) The remedies provided by this chapter are cumulative and in addition to any other remedies available at law or in equity.

(b) Causing, permitting, aiding, abetting, or concealing a violation of any provision of this chapter is unlawful and shall cause the offender to be subject to the general penalty provisions of the Golden Municipal Code.

(c) Violations of this chapter are hereby declared to be public nuisances.

(d) In addition to other remedies provided by this chapter or by other law, any violation of this chapter may be remedied by a civil action brought by the city attorney, including, for example, administrative or judicial nuisance abatement proceedings, civil or criminal code enforcement proceedings, and suits for injunctive relief.

(e) All provisions of this chapter shall be enforced by the department. (Ord. No. 2216, § 2, 7-25-2023, eff. 1-1-2024)

Chapter 4.98

REGULATED NATURAL MEDICINE BUSINESSES

4.98.010 Authority; relationship to other laws.

(a) The city council hereby finds and declares that it has the power to adopt this chapter and the prohibitions set forth herein pursuant to Part 1 of Article 50 Colorado Natural Medicine Code of Title 44 of the Colorado Revised Statutes, and Part 3 of Article 50 License Types of Title 44 of the Colorado Revised Statutes; the City of Golden Home Rule Charter and Municipal Code; and Article 20 of Title 29 Local Government Regulation of Land Use, Article 15 Exercise of Municipal Powers, and Part 3 of Article 23 Zoning of Title 31 of the Colorado Revised Statutes, as may be amended from time to time.

(b) This chapter is known and may be cited as the "Golden Natural Medicine Code." Reference to the Golden Natural Medicine Code and the applicable section or sections thereof shall be sufficient when citing the provisions of this chapter in any legal document, including, but not limited to, summons, subpoena, pleading, summons and complaint, and memorandum.

(c) Except as otherwise specifically provided herein, this chapter incorporates the requirements and procedures set forth in the Colorado Natural Medicine Code and the Colorado Natural Medicine Rules, as promulgated by the department of revenue ("CDOR") and the department of regulatory agencies ("DORA"). (Ord. No. 2251, § 2, 12-3-2024)

4.98.020 Purpose.

The city council declares that the purpose of this chapter is to provide for the regulation of natural medicine businesses within the city for the purpose of protecting the health, safety, and welfare of Golden residents and guests. (Ord. No. 2251, § 2, 12-3-2024)

4.98.030 Definitions.

As used in this chapter, unless the context clearly requires otherwise, the following words and terms shall have the meanings set forth in this section. Other definitions not specifically enumerated in this section shall be as defined, as applicable, in the Colorado Natural Medicine Code, and the Colorado Natural Medicine Rules.

Administration session means a session conducted at a healing center, or other location if permitted by the Colorado Natural Medicine Code or Colorado Natural Medicine Rules, during which a participant consumes and experiences the effects of natural medicine under the supervision of a facilitator.

Colorado Natural Medicine Code means Article 50 of Title 44 of the Colorado Revised Statutes, as may be amended from time to time.

Colorado Natural Medicine Rules means those rules governing state-licensed natural medicine businesses and state-licensed facilitators as set

forth in the Colorado Code of Regulations, 1 CCR 213-1 and 4 CCR 755-1, as may be amended from time to time.

Facilitator means an individual who is 21 years of age or older; has the necessary qualifications, training, experience, and knowledge, as required pursuant to the Colorado Natural Medicine Rules, to perform and supervise natural medicine services for a participant(s); and is licensed by the director of the department of regulatory agencies division of professions and occupations to engage in the practice of facilitation.

Healing center means a facility where an entity is licensed by the state licensing authority that permits a facilitator to provide and supervise natural medicine services for a participant.

Micro-healing center means a healing center licensee tier which is not permitted to store more than 750 milligrams of total psilocin on site.

Natural medicine business means any healing center, natural medicine cultivation facility, natural medicine products manufacturer, or natural medicine testing facility, licensed to operate pursuant to the Colorado Natural Medicine Code.

Natural medicine cultivation facility means a facility licensed by the state licensing authority where regulated natural medicine is grown, harvested, and prepared in order to be transferred and distributed to either a healing center, facilitator, a natural medicine products manufacturer, or to another natural medicine cultivation facility.

Natural medicine products manufacturer means a person licensed by the state licensing authority who manufactures regulated natural medicine products for transfer to a healing center, facilitator, or to another natural medicine products manufacturer.

Natural medicine services means a preparation session, administration session, and a post-administration integration session.

Natural medicine testing facility means a public or private laboratory licensed or approved by the department of revenue division of natural

medicine to perform testing and research on regulated natural medicine and regulated natural medicine products.

Participant means a person who is 21 years of age or older and who receives natural medicine services performed by or under the supervision of a facilitator.

Regulated natural medicine means natural medicine that is cultivated, manufactured, tested, stored, distributed, transported, transferred, or dispensed pursuant to the natural medicine code.

State licensing authority means the executive director of the Colorado Department of Revenue. (Ord. No. 2251, § 2, 12-3-2024)

4.98.040 Location of licensed natural medicine businesses.

(a) *Where natural medicine cultivation facilities, testing facilities, and products manufacturers permitted.* Natural medicine cultivation facilities, natural medicine testing facilities, and natural medicine products manufacturers licensed by the state are permitted only in the M1 and M2 zone districts, and PUD zone districts that allow "manufacturing" uses, as defined by the city's zoning regulations. If located in a PUD zone district, the business must additionally be at least 1,000 feet from any childcare center, residential childcare center, preschool, elementary school, middle school, or high school.

(b) *Where healing centers permitted.* Natural medicine healing centers and micro-healing centers are permitted only in the C1, C2, CMU, M1, M2, and PUD zone districts that allow "office" uses, as defined by the city's zoning regulations, and in addition must be at least 1,000 feet from any childcare center, residential childcare center, preschool, elementary school, middle school, or high school.

(c) *Permanent location required.* Natural medicine businesses must be operated from a permanent location. Natural medicine businesses are prohibited from operating from or storing regulated natural medicine or natural medicine products in a moveable, mobile, or transitory location.

(d) *Computation of distances.* The distance-restrictions set forth in this section are to be computed by direct measurement from the nearest property line of the land used for a school or a facility to the nearest portion of the building in which the natural medicine business is located, using a route of direct pedestrian access.

(e) *Home occupation prohibited.* Natural medicine businesses shall not be permitted as a home occupation.

(Ord. No. 2251, § 2, 12-3-2024)

Title 5

HEALTH AND SANITATION

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HEALTH AND SANITATION

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Chapter 5.01 NUISANCE ABATEMENT

5.01.000 Nuisance abatement, legislative purpose.

City council declares that the determination and abatement of local nuisances for the protection of the public's health, safety and welfare is a matter of local concern and therefore subject to the valid exercise of the city's police powers. (Ord. 1727, § 1, 2005)

5.01.010 Definitions.

As used within this title the following words and terms shall have the following meaning except where otherwise specified:

Code enforcement officer means any officer(s) or employee(s) of the city designated or authorized by the chief of police or by the chiefs authorized representative to enforce the provisions of this title.

Construction barrier means a sturdy barricade at least five feet in height that is not easily penetrable by the human body, such as but not limited to chain-link fencing.

Nuisance means a thing, act, failure to act, occupation, activity, condition or use of any building, land, substance or property which:

- (1) The continuous use or condition of which presents a substantial danger or hazard to the health, safety or welfare of the community; or
- (2) The continuous use or condition of which violates any ordinances of this city; or
- (3) Shall otherwise constitute or be known or declared a nuisance by virtue of common law, state statutes or the ordinances of the city; or
- (4) Pollutes or contaminates any surface or subsurface waters; or
- (5) Any activity, operation or condition which, after being ordered abated, corrected or discontinued by a lawful order of any department or officer of the city, continues to be conducted or continues to exist in

violation of any statute or this Code or in violation of any regulation of the city, county, or the state.

Occupant means and includes any person who occupies the whole or a part of a building, premises, or land, whether alone or with others.

Public place means any place commonly or usually open to the general public or to which members of the general public may resort, or is accessible to members of the general public. By way of illustration, such public places include, but are not limited to, public ways, streets, buildings, sidewalks, alleys, parking lots, shopping centers, shopping center malls, and places of business usually open to the general public. (Ord. No. 2279, § 2, 10-28-2025; Ord. 1727, § 2, 2005; Ord. 1143, 1992; Ord. 834, § 13, 1980)

5.01.020 Nuisances prohibited.

(a) It is unlawful for any person to:

- (1) Do any act constituting a nuisance; or
- (2) Knowingly fail to act where such failure causes or continues a nuisance; or
- (3) Permit any activity or condition constituting a nuisance; or
- (4) Aid or abet in the creation or maintenance of a nuisance.

(b) The prohibitions of this section shall apply only to persons in a position to avoid, prevent or discontinue a nuisance.

(c) Any violation of any injunction or order issued by the municipal court in an action to abate a nuisance may be punished as a contempt of court or by a fine as specified in section 1.01.110 of this Code. Unless the violation by its nature cannot be corrected, each day's (24 hours) failure to comply with an injunction or order to abate shall constitute a separate violation, for which an additional penalty may be imposed. (Ord. 1143, 1992)

5.01.025 Inspection of property.

(a) *Right of entry generally.* Whenever necessary to make an inspection to enforce this chapter, or whenever a police or code enforcement officer

has reasonable cause to believe there exists in any building or upon any premises any condition which constitutes a nuisance, such officer shall first present proper credentials and request entry. If entry is refused, the officer shall give the responsible party, or if the responsible party cannot be located after a reasonable effort the officer shall post upon a conspicuous place upon the premises, a written notice of intent to inspect not sooner than 24 hours after the time specified in the notice. The notice shall state that the responsible party has the right to refuse entry and that in the event such entry is refused, inspection may be made only upon issuance of a search warrant by a municipal judge of the city, or by a judge of any other court having jurisdiction.

(b) *Search warrants.* A police or code enforcement officer may appear before the municipal judge and upon a showing of probable cause shall obtain a search warrant entitling such officer to enter the building or upon the premises, using such reasonable force as may be necessary to gain entry. The officer applying for such warrant shall not be required to demonstrate specific knowledge of the condition of the particular structure or premises at issue in order to obtain a search warrant, but must show some factual or practical circumstances that would cause an ordinary prudent person to act. Any municipal judge of the municipal court of the city shall have power to issue search warrants upon a showing of probable cause of the existence of a nuisance.

(c) *Emergencies.* Whenever an emergency situation exists in relation to the enforcement of any of the provisions of this chapter, a police or code enforcement officer may enter into any building or upon any premises, using such reasonable force as may be necessary. An emergency situation includes any situation of imminent danger of loss of, or injury or damage to, life, limb, property or threat to public safety. It is unlawful for any owner or occupant of the building or premises to deny entry to any officer or to resist reasonable force used by any officer acting pursuant to this subsection.
(Ord. 1727, § 3, 2005)

5.01.030 Abatement of nuisances, notice and procedure.

(a) Except as otherwise specified within this title, in all cases where a nuisance shall be found to exist, notice of the nuisance together with a demand directing the removal or discontinuance of the nuisance, shall be served by the city upon any and all offending parties. Service shall be upon the individual in person or by leaving a copy of the notice:

- (1) At such person's residence, with an individual 18 years of age or older being a member of the family or cohabitant;
- (2) At such person's place of business with an employee of the business;
- (3) If personal service cannot be effected, notice shall be given by posting the premises, if possible, or if not possible, by posting such notice at the Golden Municipal Building (City Hall). A copy of the notice shall also be mailed to such person's last known address.

(b) The notice shall advise of the nature of the nuisance and demand elimination or discontinuance thereof within 72 hours, or such other period of time, as may be stated therein from the time of service. The notice shall also advise that if elimination or discontinuance is not so accomplished, within the stated time the city may proceed to abate the same charging the expenses thereof to the person refusing to eliminate or discontinue the nuisance and/or may proceed with civil or criminal proceedings.

(c) Service of the notice and demand shall be a prerequisite to the commencement of civil or criminal proceedings by the city, except for situations involving emergency abatement. The fact that the person or entity against whom legal action is initiated does not actually receive such notice shall not preclude such litigation, provided the city has acted in good faith and in a manner reasonably calculated to give notice to the owner, occupant, person having control or agent thereof.

(d) When a nuisance has not been voluntarily abated within the time specified in the notice and demand to abate, the city may, pursuant to the municipal court rules of procedure, bring a

civil action in the municipal court to have the nuisance declared as such by the court and for an order enjoining the nuisance or authorizing its restraint, removal, termination of abatement by the owner or the person who caused the nuisance or the person who allowed the nuisance to be caused or to continue.

(e) The action to declare and abate a nuisance shall be brought by the city by the filing of a complaint which shall be verified or supported by an affidavit. The summons shall be issued and served in accordance with the municipal court rules of procedure. Trial shall be to the court and the city shall have the burden of proving, by a preponderance of the evidence, that a nuisance occurred on/or within the property identified in the complaint.

- (1) The defendants to an action commenced under this chapter, and the person liable for and subject to the remedies may include any person owning or claiming any ownership or leasehold interest in the subject property, all tenants and occupants of the subject property, all managers and agents for any person claiming an ownership or leasehold interest in such property, any person committing, conducting, promoting, facilitating or aiding in the commission of a nuisance and anyone necessary to carry into effect the court's orders. None of these parties shall be deemed necessary or indispensable parties. Any person holding any legal or equitable interest in the property who has not been named as a party-defendant may intervene as a party-defendant. No other person may intervene.
- (2) A notice of appearance shall be served with the summons and complaint. The appearance date shall be not less than 14 days from the date of service of the summons. The trial shall be held upon the appearance date, unless the court grants for a period not to exceed ten days, a continuance for good cause shown.
- (3) The respondent shall file a response on or before the appearance date set forth in the notice of appearance.

- (4) Upon the date and at the time set for appearance and trial, if the respondent has filed no response and fails to appear and if the city shows that proper service was made on the respondent at least 14 days prior to the appearance date, the court may grant such orders as are requested by the city; except that, the court shall order that enforcement by the city be stayed for ten days and that a copy of the court's order be mailed to the respondent's last known address. Failure to appear on any other date set for trial shall be grounds for entering a default and judgment thereon against a non-appearing party. For good cause shown, and prior to enforcement, the court may set aside an entry of default and the judgment entered thereon.

- (5) The judgment of the municipal court may be appealed to the Jefferson County District Court.

(Ord. 1727, §§ 4, 5, 2005; Ord. 1143, 1992; Ord. 834, § 1, 1980; Ord. 363, § 1, 1954; Ord. 19, §§ 1, 17, 21, 1879)

5.01.035 Abatement orders.

(a) *Issuance and effect of temporary and permanent abatement orders.* The issuance of temporary or permanent abatement orders under this chapter shall be governed by the municipal court rules of procedure, pertaining to temporary restraining orders, preliminary injunctions and permanent injunctions, except to the extent of any inconsistency with the provisions of this chapter, in which event the provisions of this chapter shall prevail. Temporary abatement orders provided for in this chapter shall go into effect immediately when served upon the property or party against whom they are directed. Permanent abatement orders shall go into effect as determined by the court. No bond or other security shall be required of the city upon the issuance of any temporary abatement order.

(b) *Form and scope of abatement orders.* Every abatement order under this chapter shall set forth the reasons for its issuance; shall be reasonably specific in its terms; shall describe in reasonable detail the acts and conditions authorized,

required or prohibited; and shall be binding upon the subject property, the parties to the action, their attorneys, agents and employees, and any other person named as a defendant in the nuisance action and served with a copy of the order.

(c) *Substance of abatement orders.* Temporary or permanent abatement orders entered under this chapter shall be narrowly tailored so as to address the particular kinds of separate violations that form the basis of the alleged nuisance. Such orders may include:

- (1) Orders requiring any defendant to take steps to abate the nuisance;
- (2) Orders authorizing city personnel to take reasonable steps to abate the nuisance activity and prevent it from recurring, considering the nature and extent of the violation;
- (3) Orders prohibiting certain named individuals from entering the property;
- (4) Orders reasonably necessary to access, maintain or safeguard the property; and/or
- (5) Orders reasonably necessary for the purposes of abating the nuisance or preventing the nuisance from occurring or recurring; provided, however, that no such order shall require the seizure of, the forfeiture of title to, or the appointment of a special receiver to protect, possess, maintain or operate any property.

(d) *Temporary abatement orders.*

- (1) The purpose of a temporary abatement order shall be to temporarily abate an alleged nuisance pending the outcome of the matter's judicial proceeding. A temporary abatement order may be issued by the court, even if the effect of such order is to change, rather than preserve, the status quo.
- (2) At any hearing on a motion for a temporary abatement order, the city shall have the burden of proving that there are reasonable grounds to believe that a nuisance occurred in or on the subject property and, in the case of a temporary order granted without notice to the

defendant, that such order is reasonably necessary to avoid immediate, irreparable loss, damage or injury.

(e) *Permanent abatement orders.* Where the existence of a nuisance is established in a civil action under this chapter, the court shall enter a permanent abatement order requiring the defendant to abate the nuisance and take specific steps to prevent the same and other nuisances from occurring or recurring on the parcel or in using the property.

(f) *Motion to vacate or modify temporary abatement orders.*

- (1) *General.* At any time a temporary abatement order is in effect, any defendant or any person holding any legal or equitable interest in any property governed by such an order may file a motion to vacate or modify said order. Any motion filed under this subsection shall state specifically the factual and legal grounds upon which it is based, and only those grounds may be considered at the hearing. The court shall vacate the order if it finds by a preponderance of the evidence that there are no reasonable grounds to believe that a nuisance was committed or exists in or on the property. The court may modify the order if it finds by a preponderance of the evidence that such modification will not be detrimental to the public interest and is appropriate, considering the nature and extent of the violations.
- (2) *Consolidation of hearing with other proceedings.* If all parties so stipulate, the court may order the trial on the merits to be advanced and tried with the hearing on these motions.

(g) *[Compliance required.]* It shall be unlawful for any person to fail to comply or refuse to abide by any of the terms and conditions of a temporary or permanent order issued by the court.

(Ord. 1727, § 6, 2005)

5.01.038 Remedies.

(a) The city and any defendant to an action under this chapter may, upon the court's approval, voluntarily stipulate to orders and remedies, temporary or permanent, that are different from those provided in this chapter.

(b) In any case in which the city prevails in a civil action initiated pursuant to this subsection (a), the city may recover its costs and expenses of declaring and abating the nuisance, including reasonable attorney fees and costs of litigation, such costs may be assessed against the respondent and become a lien against the subject property pursuant to the procedure set forth in this chapter.

(c) The remedies set forth herein are cumulative. The initiation of any action or the imposition of any penalty hereunder shall not preclude the city from instituting any other proceeding to require compliance with the provisions of this chapter and with any administrative orders and determinations made hereunder. No provision herein shall be construed to limit or abrogate the right of any person to bring a private action to abate a private nuisance.
(Ord. 1727, § 7, 2005)

5.01.040 Summary abatement.

Where, in the opinion of the city manager, or such person's designee, a nuisance exists and constitutes an immediate and serious danger to the public health, safety or welfare or, in the case of any nuisance in or upon any street or public property, such may be summarily abated without notice of any kind.
(Ord. 1727, § 8, 2005; Ord. 1143, 1992; Ord. 19, § 23, 1879)

5.01.045 Interference prohibited.

It is unlawful for any person to interfere with or prevent, or attempt to interfere with or prevent, the abatement of any nuisance by any employee or agent of the city pursuant to the provisions of this chapter.
(Ord. 1727, § 9, 2005)

5.01.050 Recovery of expenses—Lien.

(a) All costs and expenses incurred by the city in abating any nuisance, shall be paid by the property owner to the city clerk in full within 30 days after mailing by the city clerk to the property owner, by registered or certified mail, a notice of and the assessment of such cost. Such notice shall include a statement of the work performed to abate the nuisance, the date of performance and the costs and expenses.

(b) If the owner desires to object to the assessment, the owner shall have 30 days from the date of mailing of the same to file a written objection with the city clerk. The city clerk shall then schedule the matter for hearing before the city manager. The owner shall be given at least 14 days' written notice of the date, time and place of the hearing. The decision of the city manager shall be final. Notice of the hearing shall be mailed to the owner.

(c) Failure to pay the assessment within 30 days shall cause the assessment to become a lien with penalty and interest upon the real property subject to abatement by the city. The penalty and interest shall be assessed at a rate equivalent to that which is assessed by state law upon delinquent general property taxes. Such lien shall have priority over all other liens except general taxes and shall, upon the city's certification and filing with Jefferson County, be collected and paid to the city by the county treasurer in the same manner as delinquent general property taxes.
(Ord. 1727, §§ 10, 11, 2005; Ord. 1143, 1992; Ord. 834, § 2, 1980)

5.01.070 Specific nuisances.

(a) *Control of dust.* It is unlawful and a nuisance for any person to own, possess or control any cleared area, construction site, parking lot, vacant lot or other site use by vehicular traffic or construction equipment, or own, possess or control any open pit, storage or stockpile area, without implementing preventative fugitive dust control measures, which may include, but are not limited to, the following:

- (1) Wetting down the dust producing area;

- (2) Landscaping;
- (3) Covering, shielding or enclosing;
- (4) Paving on a temporary or permanent basis;
- (5) Treating through the use of palliative and chemical stabilization in conformance with state guidelines.

(b) *Geological hazard areas.* It is unlawful and constitutes a nuisance for any person to aggravate any geologic hazard area of the city as defined herein by means of disturbing vulnerable rock slopes or unstable soil slopes. For purposes of this section, "geologic hazard area" means a geologic phenomenon which is so unstable that any use of such area may result in landslides, rock falls, mudflow or creep.

(c) *Litter prohibited.*

- (1) It is unlawful and constitutes a nuisance for any person to throw or deposit, or cause or permit to be thrown or deposited anywhere within the city, any garbage, trash or junk as defined in this title, or hazardous material as defined by 40 C.F.R. Part 261, or other offensive matter unless such is clearly marked and designated as a proper dump or container for the deposit of junk, garbage or trash.
- (2) It is unlawful and constitutes a nuisance for any person, without the permission of the director of public works or the director's designate, to throw, deposit, or scatter or cause to be thrown, deposited or scattered upon any public place, other than the curb line, snow or ice removed from any property.

(d) *Water supply ditch.* It is unlawful and constitutes a nuisance for any person to own or operate a water supply ditch where the condition of the ditch is such that it creates a health, sanitation or safety hazard upon any property within the city.

(e) *Abandoned pools or deposits of water prohibited.* Any swimming pool, pond, stream, ditch, or deposit of water which is abandoned,

unattended or unfiltered, which results in such water becoming polluted or a sanitation or health hazard is unlawful and constitutes a nuisance.

(f) *Open well, cistern or excavation.* Any excavation of five feet or more in depth, or any cistern or well is unlawful and constitutes a nuisance unless the same are covered with a locked lid or are completely enclosed by a construction barrier or other appropriate manner as determined by the director of public works or the director's designate.

(g) *Unclean kennel, stable, stall, hutch, coop or manure fertilizer.*

- (1) It is unlawful and constitutes a nuisance for any person to own, maintain or operate any animal enclosure in such a manner which creates unsanitary conditions or endangers the health of such animals.
- (2) It is unlawful and constitutes a nuisance for any person to use manure or other organic material on premises for fertilizing purposes if such creates unsanitary conditions or odors upon any adjoining or surrounding property offensive to a reasonable person for a period of 14 or more consecutive days.

(h) *Property and buildings.* It is unlawful and constitutes a nuisance for any person to own, lease, occupy, manage or possess any property upon which any of the following conditions exist:

- (1) The premises are so defective, unsightly, or in such condition or disrepair that they impair the value of the surrounding property. Manifestation of this condition shall include, but not be limited to, the keeping on, or disposing of on, or the scattering over the premises of any of the following:
 - a. Junk, garbage or trash, as defined in this title;
 - b. Stagnant water or an excavation of five feet or more in depth; or
- (2) The premises are abandoned, boarded up, partially destroyed, or left in a state of partial construction or destruction.

- (3) Structures on the premises have dry rot, warping, or termite infestation.
- (4) The premises have broken windows or unsecured entrances which may cause hazardous conditions and/or invite trespassers and other unlawful acts.
- (5) The landscaping on the premises has not been maintained such that the majority of plant material has been adequately irrigated and maintained in a living and healthy condition.

(i) *Streets and roads.*

- (1) It is unlawful and a nuisance for any person involved in the operation of a vehicle to track, scatter or deposit or cause to be tracked, scattered or deposited, any sand, gravel, rocks, mud, dirt, dust or any other such object upon any public thoroughfare or right-of-way.
- (2) It is unlawful and a nuisance for any person to operate a vehicle containing sand, gravel, rocks, mud, dirt, or any other such object unless such load is covered or otherwise prevented from dropping, leaking, blowing, or otherwise escaping from the vehicle upon any public thoroughfare or right-of-way.
- (3) The provisions of this subsection shall not apply where such vehicles are used in authorized snow removal activities or where sand or gravel is used for the purpose of securing traction in inclement weather.

(j) *Camping on public property.* Except as permitted by the city manager, it shall be unlawful and a nuisance for any person to camp, sleep overnight, or in conjunction with such activities, place any tent or construct any type of living quarters or structure upon any property owned by the city.

The restrictions of this subsection shall not apply to clients and residents of the Clear Creek Recreational Vehicle Park who use such park in accordance with its rules and regulations.

(k) *Use of air compression brakes prohibited.*

- (1) It is unlawful and constitutes a nuisance for the operator of a motor vehicle equipped with an engine compression brake device to use such device while operating the vehicle within the city. For the purposes of this section an engine compression brake device, also known as "brake retarder," is any device which, when activated, impedes the vehicle's forward motion through compression of air in the engine's cylinder to provide braking power.

- (2) There shall be imposed upon any person convicted of violating this subsection (k) a minimum fine of \$200.00 for the first offense, a minimum fine of \$300.00 for the second offense and a minimum fine of \$400.00 for every offense thereafter.

(Ord. No. 2279, § 2, 10-28-2025; Ord. No. 2073, § 1, 3-22-2018; Ord. 1591, § 1, 2002; Ord. 1542, § 1, 2001; Ord. 1500, § 1, 2000; Ord. 1235, § 1, 1994; Ord. 1143, 1992; Ord. 834, §§ 6, 8, 10, 1980; Ord. 19, §§ 5, 9, 10, 19, 21, 1879)

Chapter 5.03

TRASH ENCLOSURES

5.03.010 Legislative intent.

In the interpretation of the definitions of junk, garbage and trash set forth in this section, it is the express intent of the city council that such definitions be liberally construed to include like matters, materials, objects or substances, whether or not the same are specifically identified. It is further the expressed legislative intent of the city council that the definitions are not to be considered mutually exclusive, and that in the interpretation of such definitions, it is recognized that any substance or material or object may constitute junk, garbage or trash at the same time. Liberal construction of definitions is deemed necessary by the city council in order to fulfill the public purpose of this chapter, which is to ensure that the city is maintained in a clean, sanitary, healthy and attractive manner by

eliminating all outside storage of junk, garbage and trash, and related matters, objects or materials as set forth in this chapter.

(Ord. 1143, 1993; Ord. 1102, 1990)

5.03.020 Definitions.

As used within this chapter the following words shall have the following meanings except as specified otherwise:

Garbage means and includes any human-made or human-used waste which, if deposited within the city other than in a garbage receptacle, tends to create a danger to public health, safety and welfare or to impair the environment of the people of the city. "Garbage" includes by illustration only any litter, trash, refuse, confetti, debris, rubbish, excrement, urine, offal composed of animal matter or vegetable matter or both, or any noxious or offensive matter including, but not limited to, grass clippings, leaves, cut weeds, newspaper, magazine, glass, metal, plastic or paper container, hide, feathers, brick, cinder-block, concrete, sand, gravel, stone, glass or other used construction materials, motor vehicles or parts thereof, furniture, appliances such as refrigerators, freezers, ranges, stoves, washers, and dryers, carcass of a dead animal, ashes, cigarettes, cigar and food or food product.

Junk means any new, used or second hand materials of any kind which is not presently being used, including, but not limited to: Scrap metal and alloys, bones, rags, cloth, clothing, paper, rubber pieces, rope, tinfoil, tires, bottles, tools, fixtures, utensils, lumber, boxes, crates, pipe or pipe fittings, furniture, refrigerators, freezers, and all other appliances, machinery, and used motor vehicles or the parts thereof or therefrom, any apparatuses or contrivances, and parts thereof which are no longer in use, any used building material, boards or other lumber, cement blocks, bricks, brickbats or other second hand building material. Objects or materials shall be considered junk if they are so worn, deteriorated or obsolete as to make them unusable in their existing condition.

Trash means combustible refuse, including, but not limited to: Paper, cartons, boxes, barrels, wood (except stacked firewood and stacked

construction materials), tree branches, yard trimmings, dead plant material, wood or upholstered furniture, or bedding, or similar substance or material, noncombustible refuse, including, but not limited to: Metals, tin or aluminum cans, metal furniture, dirt, rock, pieces of concrete, glass, crockery, or other minerals or mineral wastes, street rubbish, including but not limited to: street sweepings, dirt, leaves, catch bag dirt, and contents of litter receptacles; provided however, that such does not include earth and waste from building construction during the period in which a valid building permit issued by the city is applicable.

"Garbage", "junk" or "trash" does not include any goods or material subject to a city-authorized recycling program where such goods or materials are within city authorized containers at city designated sites.

(Ord. 1504, 2000; Ord. 1143, 1992; Ord. 1058, § 2, 1989)

5.03.030 Container required.

(a) *[Nuisance prohibited.]* It is unlawful, and constitutes a nuisance, for any person who is an owner, tenant, lessee, occupant, or any servant, representative or employee of such owner, tenant, lessee, or occupant, having control of any occupied or unoccupied lot or parcel of land, to permit, allow or maintain the accumulation, collection or presence of junk, garbage or trash upon said property; except that this provision shall not apply to such junk, garbage or trash within a covered container provided that such container complies with the requirements of this chapter, does not emit offensive odors, nor otherwise constitute a nuisance. Nothing in this section is meant to preclude the use of grass clipping or other appropriate vegetable or animal waste for a properly layered, actively working compost, pile, pit or trench providing that such does not otherwise constitute a nuisance.

(b) *Enclosure required.* All containers which exceed 120 gallons, except temporary containers shall be enclosed within a structure so that the containers are not visible from any adjoining or adjacent streets, rights-of-way or properties.

(c) *Containment location.* Containers shall not be located within any public right-of-way or within the required building front yard or front setback except that temporary containers may be located within the public right-of-way or within the required building front yard or front setback. For the purposes of this section temporary containers are defined as those containers located at a construction site and used for the collection of garbage, trash and junk generated by the construction activity as permitted by a valid city building permit and those containers used for special events and activities which include, but are not limited to, events and activities sponsored by government, civic, business, religious or community entities and organizations, which special events and activities do not exceed ten days in duration. Notwithstanding the foregoing nothing shall prohibit residents from placing at their properties curbside on designated days those containers used for pick up of garbage, trash, junk and recyclables by haulers licensed by the city.

(d) *Enclosure required.* All containers which exceed 35 gallons, except temporary containers shall be enclosed within a structure so that the containers are not visible from any adjoining or adjacent streets, rights-of-way or properties.

(e) *Removal required.* All junk, garbage or trash within the covered containers required by this section shall be removed from such property on a regular basis. For purposes of this subsection, regular basis is defined as not less than once each week.

(f) *Conformance with other laws.* Nothing in this chapter shall absolve or negate the responsibility of the property owner or possessor of any property or part thereof to comply with all applicable local, state and federal laws and regulations pertaining to the disposal of hazardous, flammable, radioactive or any other category of waste products.

(Ord. 1727, § 13, 2005; Ord. 1143, 1992; Ord. 1102, 1990; Ord. 1058, § 2, 1989)

5.03.040 Unlawful acts.

It is unlawful for any person to deposit or cause to be deposited any junk, garbage or trash or other material in a private, business or commercial trash or garbage receptacle or container without consent of the owner.

(Ord. 1143, 1992; Ord. 1102, 1990)

Chapter 5.05 GRASS AND WEEDS

5.05.010 Definitions.

As used within this chapter, the following words shall have the following meanings except as otherwise specified:

Herb (adj. "herbaceous") means any seed plant whose stem withers away to the ground after each season's growth as distinguished from a tree, shrub, or bush, whose woody stem lives from year to year.

Native grasses means grasses, including, but not limited to, prairie grasses and flowering broad leaf plants which are indigenous to the State of Colorado.

Ornamental grasses means grasses and groundcovers not indigenous to the State of Colorado but excludes turf grasses.

Turf grass means any of a variety or combination of varieties of perennial grasses, such as Kentucky bluegrass or rye, historically used for residential lawns and typically maintained at a height not exceeding eight inches.

Weed means any undesirable plant or part thereof which has been declared a "noxious weed" by either the State of Colorado or the noxious weed local advisory board.

(Ord. 1727, § 14, 2005; Ord. 1542, § 3, 2001; Ord. 1383, 1998; Ord. 1143, 1992; Ord. 577, § 1(part), 1998)

5.05.020 Advisory board.

City council shall serve as the statutory noxious weed local advisory board.

(Ord. 1727, § 15, 2005; Ord. 1383, 1998)

5.05.030 Removal required.

It is unlawful, and shall constitute a nuisance for any person who is an owner, owner's agent, occupant, or lessee of any occupied or unoccupied lot or any parcel of land in the city, including, without limitation, public and utility easements and drainage ways within such property, to fail to comply with the terms and conditions of any noxious weed management plan adopted by the local advisory board or to permit or maintain on any such parcel of land, or lot, any accumulation, collection, presence or growth of any of the following:

- (a) Noxious weeds: or
- (b) Turf grass or weeds over eight inches in height.
- (c) Any grasses or other herbaceous plants, over eight inches in height within ten feet of any building on an adjacent property.

(Ord. 1727, § 16, 2005; Ord. 1542, § 4, 2001; Ord. 1383, 1998; Ord. 1143, 1992; Ord. 629, § 1, 1970; Ord. 502, § 3, 1962)

Chapter 5.06 TREES, SHRUBS AND BUSHES

5.06.010 Pruning, corner clearances.

(a) Trees, shrubs, bushes and other vegetation which are dead, broken, diseased, infested by insects or impede the passage of pedestrians or vehicles or obstruct sight-lines of any public street or highway or any official traffic control device so as to endanger the well-being of any other vege-

tation or constitutes a potential threat or hazard to persons or property shall constitute a nuisance.

(b) It is unlawful for any person to injure, damage, destroy, cut, trim, spray or remove any tree, shrub, bush or other vegetation upon any public right-of-way or other public property unless authorized by the city.

(Ord. 1727, § 22, 2005; Ord. 1143, 1992)

Chapter 5.07

ABANDONED, JUNKED AND INOPERABLE VEHICLES

5.07.010 Definitions.

As used within this chapter the following words shall have the following meanings except where otherwise specified:

Abandoned vehicle means:

- (1) Any vehicle left unattended on private property for a period of 72 hours or longer without the consent of the owner, occupant or tenant of such property or such person's agent; or
- (2) Any vehicle left unattended on public property, including any portion of a street or highway right-of-way, within the limits of the city for a period of 24 hours or longer, unless the owner or driver has conspicuously affixed thereto a dated notice, or otherwise notified the police department of such person's intention to remove such vehicle within 72 hours, or the vehicle is parked in a public street within 50 feet of the property of the owner; or
- (3) Any vehicle determined by the police department to be inoperable, lost, stolen or unclaimed.

Hobby means the repairing, reconditioning or rebuilding of vehicles which is done for personal enjoyment or entertainment only, with no profit or compensation or reimbursement of any kind involved.

Inoperable vehicle or *junk vehicle* means any vehicle which is not capable of travel under its

own power in its existing mechanical condition, or any vehicle not bearing current registration plates.

Vehicle means any machine propelled by power other than human power, designed to travel along the ground by use of wheels, treads, runners or slides to transport persons or property or pull machinery and includes, without limitation, automobile, airplane, truck, trailer, motorcycle, motor scooter, tractor, buggy and wagon. "Vehicle" includes any antique vehicle.

(Ord. 1727, § 27, 2005; Ord. 1143, 1992)

5.07.020 Unlawful acts.

(a) It is unlawful and constitutes a nuisance for any person to:

- (1) Abandon a vehicle; or
- (2) Leave any junk or inoperable vehicle upon any public property; or
- (3) For the owner of any vehicle or any person who is in charge, control or possession of property, to permit or allow any abandoned, junked, or inoperable vehicle to remain on such property for a time period in excess of 72 hours, except that this subsection shall not apply to:
 - a. A vehicle or parts of a vehicle in a completely enclosed structure; or
 - b. A vehicle on the premises of a commercial enterprise operated in a lawful place and manner when necessary to the operation of such business provided that such vehicle or parts are stored in accordance with chapter 18.28 of the Code; or
 - c. A vehicle in a storage place or depository maintained for vehicles impounded by or for the city; or
 - d. Trailers.

(Ord. 1727, § 29, 2005; Ord. 1143, 1992; Ord. 578, § 1(part), 1967)

5.07.030 Hobby repair work.

It is unlawful and constitutes a nuisance for any person to repair, keep or work on any vehicle as a hobby, unless such hobby is conducted in and totally contained within a residential or commer-

cial garage, and conducted in such a manner so as not to create a safety, health or fire hazard; except, this shall not apply to minor repair and maintenance activities which include but are not limited to the changing of oil, sparkplugs, tires, so long as said minor work does not exceed a reasonable length of time, such as by way of illustration, two days.

(Ord. 1727, § 30, 2005; Ord. 1143, 1992)

Chapter 5.09

TOWING AND STORAGE OF VEHICLES

5.09.010 Definitions.

As used in this chapter the following words and phrases shall have the following meaning except where otherwise specified:

Abandoned vehicle, in addition to the definition in section 5.07.010 of this Code, shall include any vehicle stored in an impound lot at the request of its owner or the owner's agent or the police department and not removed from the impound lot according to the agreement with the owner or agent or within 72 hours of the time the police department notifies the owner or agent that the vehicle is available for release upon payment of any applicable charges or fees. If the police department requested the storage, the provisions of this chapter governing public tows apply as of the time of abandonment, and the police department shall be deemed the responsible law enforcement agency. Otherwise, the private tow provisions of this chapter apply as of the time of abandonment.

Appraisal means a bona fide estimate of reasonable market value made by any motor vehicle dealer licensed in this state or by any employee of the Colorado State Patrol, the county sheriffs department or the city police department whose appointment for such purpose has been reported by the head of the appointing agency to the executive director of the department of revenue of the state.

Department means the state department of revenue acting directly or through its duly authorized officers and agents.

Disabled vehicle means any vehicle which is stopped or parked, either attended or unattended, upon any street, highway or right-of-way and which is, due to its mechanical condition or an accident temporarily inoperable under its own power.

Impound lot means a parcel of real property which is owned or leased by the city or an operator at which motor vehicles are stored under appropriate protection.

Operator means a person or firm licensed by the public utilities commission of the state as a towing carrier.

Private property means any real property which is not public property.

Private tow means any tow of an abandoned motor vehicle not requested by the police department.

Public tow means any tow of an abandoned motor vehicle requested by the police department.

Vehicle means any machine propelled by power other than human power, designed to travel along the ground by use of wheels, treads, runners or slides to transport persons or property or pull machinery and includes, without limitation, automobile, airplane, truck, trailer, motorcycle, motor scooter, tractor, buggy and wagon.
(Ord. 1727, §§ 31, 32, 2005; Ord. 1143, 1992; Ord. 1012, § 1, 1986)

5.09.020 Abandonment, authority to impound public tow.

(a) Any police or code enforcement officer, or other authorized city employee, who finds a motor vehicle which such officer has reasonable grounds to believe has been abandoned on public property may require such motor vehicle to be removed or cause the same to be removed and placed in storage in any impound lot designated or maintained by the city.

(b) Any police or code enforcement officer or other authorized city employee or agent is empowered to remove or have removed any vehicle from any public highway, street or right of way or place and placed in storage in any impound lot desig-

nated or maintained by the city or to any other location under any of the circumstances described herein:

- (1) The driver of the vehicle is taken into custody by a law enforcement agency and it is necessary to tow the vehicle to a storage lot to secure it and its contents.
- (2) Removal of the vehicle is necessary in the interest of public health or safety because of fire, flood, snow, storm or other natural or manmade disaster or emergency.
- (3) There is probable cause to believe the vehicle is stolen.
- (4) The vehicle is parked in a designated permitted, no parking or tow-away zone.
- (5) The vehicle is illegally parked in a designated handicapped parking space or zone.
- (6) There is probable cause to believe the vehicle has been vandalized or its parts stolen.
- (7) The engine number, vehicle identification number or manufacturer's serial number has been altered, changed or obliterated.
- (8) The vehicle is disabled, parked, stopped or standing in a manner which creates an obstruction or hazard or potential obstruction or hazard to any lawful function or use of any public street or other public or private property.
- (9) The vehicle is blocking access to fire hydrants, fire standpipe outlets or fire sprinklers.
- (10) The vehicle is parked, stopped or standing in designated safety zones or safety lanes.
- (11) The vehicle is parked in a designated fire lane.

(Ord. 1727, § 34, 2005; Ord. 1143, 1992; Ord. 1012, § 1, 1986; Ord. 578, § 1(part), 1967)

5.09.030 Report, notice, public tow.

(a) Upon having an abandoned vehicle towed, the police department shall ascertain, if possible, whether or not the vehicle has been reported stolen, and, if so reported, the police department shall recover and secure the vehicle, notify its

owner and terminate the abandonment proceedings under this chapter. The police department shall have the right to recover from the owner its reasonable costs to recover and secure the vehicle.

(b) As soon as possible, but in no event later than three working days after having an abandoned vehicle towed, the police department shall report the same to the state department of revenue by first class or certified mail or personal delivery, which report shall be on a form prescribed and supplied by the department. The report shall contain the following information:

- (1) The fact of possession, including the date possession was taken, the location of storage of the abandoned vehicle and the location from which it was towed, the business address, telephone number and the name and signature of a representative from the police department; and
- (2) If applicable, the identity of the operator possessing the abandoned vehicle, together with such person's business address and telephone number and the carrier number assigned by the public utilities commission; and
- (3) A description of the abandoned vehicle, including the make, model, color, and year of such vehicle; the license number, issuing state, and the expiration date of the license plate; the vehicle identification number; and a list of the names and addresses of any known owners.

(c) The police department, upon receiving the department's report as required by state statute, shall determine, from all available information and after reasonable inquiry, whether or not the abandoned vehicle has been reported stolen, and, if so reported, shall recover and secure the vehicle and notify its owner and terminate the abandonment proceedings under this chapter. The police department shall have the right to recover from the owner its reasonable costs to recover and secure the vehicle.

(d) The police department, within ten working days of the receipt of the report from the department's report., shall notify by certified mail or personal service, the owner of record, if ascer-

tained, and any lien holder, if ascertained, of the fact of such report and the claim, if any, and shall send or serve a copy of such notice to the operator. The notice shall contain information that the identified vehicle has been reported abandoned to the department, the location of the vehicle, and the location from which it was towed, and that, unless claimed within 30 calendar days from the date the notice was sent or served as determined from the postmark on the notice, the motor vehicle is subject to sale.

(e) Such notice shall also inform the owner of record of his/her opportunity to request a hearing concerning the legality of the towing of the abandoned motor vehicle, pursuant to this chapter, and the fact that the owner must contact the police department to request, in writing, a hearing within ten days of the postmarked date or date of service of the sending of the notice required by subsection (d) of this section. (Ord. 1727, § 35, 2005; Ord. 1143, 1992; Ord. 1012, 1986)

5.09.040 Hearing.

(a) Any hearing requested under this chapter shall be conducted before the municipal judge or a hearing officer appointed by the municipal judge, within 72 hours (excluding Saturdays, Sundays and city holidays) of receipt of a written demand from such hearing, unless the person requesting the hearing waives the right to a speedy hearing. The sole issue before the municipal judge or hearing officer shall be whether there was probable cause to impound the vehicle. In this section "probable cause to impound" means a state of facts to allow a person of ordinary care and prudence to believe that there was a sufficient breach of municipal, state or federal law to grant legal authority for the removal of the vehicle.

(b) The hearing shall be conducted in an informal manner and shall not be governed by the formal rules of evidence. The person demanding the hearing shall have the burden of establishing that such person has the right to possession of the vehicle. The police department shall have the burden of establishing that there was probable cause to impound the vehicle. The municipal judge or hearing officer shall only determine that

either there was probable cause to impound the vehicle, or there was not probable cause to impound the vehicle. The decision of the municipal judge or hearing officer shall be a final judgment.

(c) Upon a finding of no probable cause, towing and storage fees shall be paid by the city in accordance with arrangements made between the city and the operator. If the possessor of the vehicle fails to claim the vehicle from the operator within 24 hours of a finding of no probable cause, excluding hours when the operator is not open for business, the possessor shall assume liability for all subsequent storage charges. It shall be the responsibility of the police department to notify the operator in writing of a finding of no probable cause within one working day after such finding is made.

(d) Failure of the owner of the vehicle:

- (1) To request a hearing in writing to the police department within ten days of the postmarked date of service of the notice; or
- (2) To attend a scheduled post-seizure hearing shall be deemed a waiver of the right to such hearing.

(Ord. 1143, 1992)

5.09.050 Abandonment, private tow.

(a) Any owner, tenant, lessee or such person's authorized agent may have an abandoned vehicle removed from such person's property by having it towed and impounded by an operator.

(b) Any operator in possession of any abandoned vehicle from a private tow shall immediately notify the police department as to operator's name and the location of the impound lot where the vehicle is located and a description of the abandoned vehicle, including make, model, color and year of such vehicle; the license number, issuing state and expiration date of the license plate; the vehicle identification number. Upon such notification, the police department shall ascertain, if possible, whether or not the vehicle has been reported stolen and, if so reported, shall recover and secure the vehicle and notify its owner and terminate the abandonment proceedings under this chapter. The police department

shall have the right to recover from the owner its reasonable costs to recover and secure the vehicle. (Ord. 1727, § 36, 2005; Ord. 1143, 1992)

5.09.060 Appraisal and sale of impounded vehicles.

(a) Public tow abandoned motor vehicles or motor vehicles abandoned in an impound lot subsequent to a public tow shall be appraised and sold by the police department or its designated representative at a public or private sale held not less than 30 nor more than 90 days after the date of the notice required by subsection 5.09.030(d) of this chapter.

(b) If the appraised value of an abandoned motor vehicle sold pursuant to this section is \$200.00 or less, the sale shall be made only for the purpose of junking, scrapping or dismantling such motor vehicle, and the purchaser thereof shall not, under any circumstances, be entitled to a state certificate of title. The police department shall cause to be executed and delivered a bill of sale, together with a copy of the required state report, to the person purchasing such motor vehicle. The bill of sale shall state that the purchaser acquires no right to a certificate of title for such vehicle. The police department shall promptly submit a report of sale, with a copy of the bill of sale, to the department and shall deliver a copy of such report of sale to the purchaser of the vehicle.

(c) If the appraised value of an abandoned vehicle sold pursuant to this section is more than \$200.00, the sale may be made for any intended use by the purchaser thereof. The police department shall cause to be executed and delivered a bill of sale, together with a copy of the required state report, and application for a Colorado certificate of title signed by a legally authorized representative of the police department. (Ord. 1727, § 37, 2005; Ord. 1143, 1992)

5.09.070 Proceeds of sale.

(a) If the sale of any vehicle and its attached accessories or equipment under the provisions of this chapter realizes a monetary amount less than or equal to the sum of all charges of the operator who has perfected a lien pursuant to state statute, then the operator shall have a valid

claim against the owner of record for the full amount of such charges less the amount received upon the sale of such vehicle. Such charges shall be assessed in the manner provided in subsection (b) of this section.

(b) If the sale of any vehicle and its attached accessories or equipment under the provisions of this chapter realizes a monetary amount greater than the sum of all charges of the operator who has perfected a lien pursuant to state statute, then the proceeds of the sale shall be distributed as provided by state statute unless the city has entered into a towing agreement with an operator which provides for a specified contractual distribution.

(Ord. 1727, § 38, 2005; Ord. 1143, 1992)

Chapter 5.11

SMOKING IN PUBLIC PLACES AND OTHER AREAS

5.11.010 Legislative intent.

City council hereby finds and determines that it is in the best interest of the people of the city to protect nonsmokers from involuntary exposure to environmental tobacco smoke in most indoor areas open to the public, public meetings, food service establishments, and places of employment. City council further finds and determines that a balance should be struck between the health concerns of nonconsumers of tobacco products and the need to minimize unwarranted governmental intrusion into, and regulation of, private spheres of conduct and choice with respect to the use or nonuse of tobacco products in certain designated public areas and in private places. Therefore, city council hereby declares that the purpose of this chapter is to preserve and improve the health, comfort, and environment of the people of this city by limiting exposure to tobacco smoke.

(Ord. 1745, 2006; Ord. 1143, 1992; Ord. 1011, § 1, 1986)

5.11.020 Definitions.

As used in this chapter, unless the context otherwise requires:

Auditorium means the part of a public building where an audience gathers to attend a performance, and includes any corridors, hallways, or lobbies adjacent thereto.

Bar means any indoor area that is operated and licensed under Article 3 of Title 44, C.R.S., as amended, primarily for the sale and service of alcohol beverages for on-premises consumption and where the service of food is secondary to the consumption of such beverages.

Employee means any person who:

- (1) Performs any type of work for benefit of another in consideration of direct or indirect wages or profit; or
- (2) Provides uncompensated work or services to a business or nonprofit entity.

Employee includes every person described above, regardless of whether such person is referred to as an employee, contractor, independent contractor, or volunteer or by any other designation or title.

Employer means any person, partnership, association, corporation, or nonprofit entity that employs one or more persons. "Employer" includes, without limitation, the judicial branches of state government; any county, city and county, city, or town, or instrumentality thereof, or any other political subdivision of the state, special district, authority, commission, or agency; or any other separate corporate instrumentality or unit of state or local government.

Entryway means the 25-foot radius outside of the front or main doorway leading into a building or facility that is not exempted under section 5.11.040.

Environmental tobacco smoke, ETS, or secondhand smoke means the complex mixture formed from the escaping smoke of a burning tobacco product or the escaping vapor or aerosol of an electronic smoking device, also known as "side stream smoke", and smoke, vapor, or aerosol exhaled by the smoker.

Food service establishment means any indoor area or portion thereof in which the principal business is the sale of food for on-premises consumption. The term includes, without limitation, restaurants, cafeterias, coffee shops, diners, sandwich shops, and short-order cafes.

Indoor area means any enclosed area or portion thereof. The opening of windows or doors, or the temporary removal of wall panels, does not convert an indoor area into an outdoor area.

Place of employment means any indoor area or portion thereof under the control of an employer in which employees of the employer perform services for, or on behalf of, the employer.

Playground means that area within a park owned or operated by the City of Golden containing equipment or facilities designed for children's play.

Public building means any building owned or operated by:

- (a) The state, including the legislative, executive, and judicial branches of state government;
- (b) Any county, city and county, city, or town, or instrumentality thereof, or any other political subdivision of the state, a special district, an authority, a commission, or an agency; or
- (c) Any other separate corporate instrumentality or unit of state or local government.

Public meeting means any meeting open to the public pursuant to chapter 1.03 of the Code and Part 4 of Article 6 of Title 24, C.R.S.

Smoke-free work area means an indoor area in a place of employment where smoking is prohibited under this chapter.

Smoking means the burning of a lighted cigarette, cigar, pipe, or any other matter or substance that contains tobacco, marijuana, or the active use of an electronic smoking device.

Tobacco means cigarettes, cigars, cheroots, stogies, and periques; granulated, plug cut, crimp cut, ready rubbed, and other smoking tobacco; snuff and snuff flour; cavendish; plug and twist tobacco; fine-cut and other chewing tobacco; shorts, refuse scraps, clippings, cuttings, and sweepings of tobacco; and other kinds and forms of tobacco, prepared in such manner as to be suitable for chewing or for smoking in a cigarette, pipe, or otherwise, or both for chewing and smoking.

"Tobacco" also includes cloves and any other plant matter or product that is packaged for smoking. "Tobacco" includes tobacco prepared, treated, or modified in such a manner that it may be ingested through the use of an electronic smoking device.

Tobacco business means a sole proprietorship, corporation, partnership, or other enterprise engaged primarily in the sale, manufacture, or promotion of tobacco, tobacco products, or smoking devices or accessories, either at wholesale or retail, and in which the sale, manufacture, or promotion of other products is merely incidental.

Work area means an area in a place of employment where one or more employees are routinely assigned and perform services for or on behalf of their employer.

Electronic smoking device means any electronic oral device such as one composed of a heating element, battery, and/or electronic circuit which provides a vapor of nicotine, vapor of a solution including nicotine, or aerosol of a solution including nicotine, or any other substance for inhalation. This term shall include every variation and type of such devices whether they are manufactured, distributed, marketed, or sold as an electronic cigarette, an electronic cigar, an electronic cigarillo, an electronic pen, an electronic pipe, or an electronic hookah or any other product name or descriptor. The term "electronic smoking device" does not include any device specifically approved by the United States Food and Drug Administration for use in reducing, treating or eliminating nicotine or tobacco dependence, or for any other medical purposes, when such a device is being marketed and sold solely for such approved purpose.

(Ord. No. 2085, § 4, 8-23-2018; Ord. 1985, § 1, 2014; Ord. 1886, § 1, 2010; Ord. 1823, § 1, 2008; Ord. 1745, 2006; Ord. 1143, 1992; Ord. 1011, § 1, 1986)

5.11.030 General smoking restrictions.

(1) Except as provided in section 5.11.040 and in order to reduce the levels of exposure to environmental tobacco and marijuana smoke,

smoking shall not be permitted and no person shall smoke in any indoor area, including, but not limited to:

- (a) Public meeting places;
- (b) Elevators;
- (c) Government-owned or operated means of mass transportation, including, but not limited to, buses, vans, and trains;
- (d) Taxicabs and limousines;
- (e) Grocery stores;
- (f) Gymnasiums;
- (g) Jury waiting and deliberation rooms;
- (h) Courtrooms;
- (i) Child day care facilities;
- (j) Health care facilities including hospitals, health care clinics, doctor's offices, and other health care related facilities;
- (k)
 1. Any place of employment that is not exempted.
 2. In the case of employers who own facilities otherwise exempted from this subsection, each such employer shall provide a smoke-free work area for each employee requesting not to have to breathe environmental tobacco smoke. Every employee shall have a right to work in an area free of environmental tobacco smoke.
- (l) Food service establishments;
- (m) Bars;
- (n) Indoor sports arenas;
- (o) Restrooms, lobbies, hallways, and other common areas in public and private buildings, condominiums, and other multiple-unit residential facilities;
- (p) Restrooms, lobbies, hallways, and other common areas in hotels and motels, and in at least 75 percent of the sleeping quarters within a hotel or motel that are rented to guests;
- (q) Bowling alleys;
- (r) Billiard or pool halls;

- (s) The common areas of retirement facilities, publicly owned housing facilities, and nursing homes, not including any resident's private residential quarters;
- (t) Public buildings;
- (u) Auditoria;
- (v) Theaters;
- (w) Museums;
- (x) Libraries;
- (y) Public and nonpublic schools;
- (z) Other educational and vocational institutions;
- (aa) Any retail tobacco business.

(2) Except as provided in section 5.11.040, and in order to reduce the levels of exposure to environmental tobacco and marijuana smoke, smoking shall not be permitted and no one shall smoke in any of the following areas:

- (a) All City of Golden owned or controlled parks, open space, indoor or outdoor pools and associated spectator areas, indoor or outdoor sport or athletic fields and associated spectator areas, indoor or outdoor water parks and associated spectator areas, not including smoking areas designated and posted by the city manager or his/her designee, pursuant to subsection (ii) below;
- (b) On City of Golden owned or controlled property that is within 25 feet of any City of Golden owned or controlled portion of the Kinney Run Trail, Cressman Gulch Trail, Tucker Gulch Trail, Clear Creek Trail, US 6/SH-93 Trail, or any other City of Golden owned or controlled trail, biking path, or walking path;
- (c) Within 25 feet of, any playground located within a City of Golden Park;
- (d) The Fossil Trace Golf Course and associated grounds and facilities, including the club house, driving ranges and practice facilities, but not to include the actual course of play, or outdoor smoking areas

near the clubhouse as designated and posted by the city manager or his/her designee, in their discretion;

- (e) All outdoor areas in the Clear Creek RV Park, not including smoking areas designated and posted by the city manager or his/her designee, in their discretion;
- (f) On any public right-of-way within 25 feet of the outdoor seating areas of any business that are located on any public right-of-way;
- (g) All public transit waiting areas;
- (h) Any parking structures;
- (i) Any event for which any city street, right-of-way, park, or parking lot, in nonresidential zone districts that are closed by the city in order to accommodate special events, not including smoking areas designated and posted by the city manager or his/her designee, in their discretion;
- (j) All public sidewalks and rights-of-way in the Washington Street Downtown Area, defined as the area along both sides of Washington Avenue between 10th Street and 14th Street, the area on along both sides of 12th Street between Arapahoe Street and Ford Street, and the area on along both sides of 13th Street between Arapahoe Street and Ford Street; and
- (k) The entryways of all buildings and facilities to which this section applies.

(3) Violations of this section shall be an administrative violation subject to the provisions of section 8.25 of the Golden Municipal Code.

(Ord. No. 2083, § 1, 8-23-2018; Ord. 1985, § 2, 2014; Ord. 1886, §§ 2—4, 2010; Ord. 1745, 2006; Ord. 1143, 1992; Ord. 1011, § 1, 1986)

5.11.035 Reserved.

Editor's note—Sec. 2 of Ord. No. 2083, adopted Aug. 23, 2018, repealed § 5.11.035, optional prohibitions, having derived from Ord. 1985, 2014, as being duplicated provisions found in § 5.11.050.

5.11.040 Exceptions to smoking restrictions.

The restrictions set forth in section 5.11.030 shall not apply to:

- (a) Private homes, private residences, and private automobiles; except if any such home, residence, or vehicle is being used for child care or day care or if a private vehicle is being used for the public transportation of children or as part of health care or day care transportation;
- (b) Limousines under private hire;
- (c) A hotel or motel room rented to one or more guests if the total percentage of such hotel or motel rooms in such hotel or motel does not exceed 25 percent;
- (d) The outdoor area of any business, not including seating areas in any public right-of-way, and not including outdoor areas within 25 feet of any entryway as defined in subsection 5.11.020(5);
- (e) A place of employment that is not open to the public and that is under the control of an employer that employs three or fewer employees.

(Ord. 1985, § 4, 2014; Ord. 1886, § 5, 2010; Ord. 1745, 2006; Ord. 1143, 1992; Ord. 1011, § 1, 1986)

5.11.050 Optional prohibitions.

(1) The owner or manager of any place not specifically listed in section 5.11.030, including a place otherwise exempted under section 5.11.040, may post signs prohibiting smoking or providing smoking and nonsmoking areas. Such posting shall have the effect of including such place, or the designated nonsmoking portion thereof, in the places where smoking is prohibited or restricted pursuant to this chapter.

(2) If the owner or manager of a place not specifically listed in section 5.11.030, including a place otherwise exempted under this subsection, is an employer and receives a request from an employee to create a smoke-free work area as contemplated by subsection 5.11.030(1)(k)2., the

owner or manager shall post a sign or signs in the smoke-free work area as provided in subsection (1) of this section.

(Ord. 1745, 2006)

5.11.060 Other applicable regulations of smoking—Local counterpart regulations authorized.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise restricted by any other applicable law.

(Ord. 1745, 2006)

5.11.070 Reserved.

Editor's note—Sec. 1 of Ord. No. 2039, adopted Nov. 10, 2016, repealed § 5.11.070, which pertained to unlawful acts and derived from Ord. 1143, 1992; Ord. 1745, 2006; and Ord. 1823, 2008.

Chapter 5.13

HANDBILLS

5.13.010 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Commercial handbill means any printed or written matter, or otherwise reproduced original or copies of any matter or literature containing a message or information which advertises for sale any merchandise, product, commodity or thing, or directs attention to any business, mercantile or commercial establishment, or other similar activity, for the purpose of either directly or indirectly promoting the interests thereof for private gain or profit; or directs attention to any meeting, performance or event of any kind for the purpose of private gain or profit for any person; or while containing reading matter other than advertising matter, is predominately and essentially an ad-

vertisement, and is distributed or circulated for advertising purposes, or for private gain or profit of any person.

Newspaper means and includes any newspaper of general circulation as defined by general law, any newspaper duly registered with the United States Postal Service, in accordance with federal statutes or regulations, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto means and includes any periodical or current magazine regularly published and sold to the public.

Noncommercial handbill means and includes any printed or written matter, any sample or device, circular, leaflet, pamphlet, newspaper, magazine, paper booklet, or any other printed or otherwise reproduced original or copies of any matter or literature containing a message or information which is distributed for public service and/or informational purposes without any motive for private gain or profit.
(Ord. 1143, 1992)

5.13.020 Registration required.

It is unlawful for any person to distribute commercial handbills within the city, without first registering with the city clerk. In registering the person shall provide the following information:

- (a) Firm or organization name, address and telephone number;
- (b) Copy of the handbill to be distributed;
- (c) Period of time for which the handbill shall be distributed; and
- (d) Name(s) and address(es) of person(s) distributing the handbill.

Merchants, whose principal place of business is located within the city and who distribute handbills as a regular business practice, are only required to register on a yearly basis with the city clerk.
(Ord. 1727, § 46, 2005; Ord. 1143, 1992)

5.13.030 Distribution in public places.

It is unlawful for any person to deposit, place, affix, throw, scatter or cast any handbill in or upon any public place within the city provided however, that it is not unlawful for any person to hand out or distribute, without charge to the receiver thereof, any noncommercial handbill in any public place to any person willing to accept such noncommercial handbill.

(Ord. 1727, § 47, 2005; Ord. 1143, 1992; Ord. 1025, § 2, 1987)

5.13.040 Placing in vehicles prohibited.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any automobile or other vehicle. The provisions of this section shall not be deemed to prohibit the handing, transmitting or distributing of any noncommercial handbill to the owner or the occupant of the automobile or other vehicle, who is willing to accept the same.

(Ord. 1727, § 48, 2005; Ord. 1143, 1992; Ord. 1025, § 2, 1987)

5.13.050 Distribution on uninhabited premises.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any private premises which is uninhabited or vacant.

(Ord. 1727, § 49, 2005; Ord. 1143, 1992)

5.13.060 Distribution on inhabited premises.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any private premises which is inhabited, except handing or transmitting any such handbill directly to the owner, occupant, or any other person than present in or upon such private premises, or such handbill, if firmly bound or folded, may be secured or confined in some position near a principal entrance to the premises to prevent such handbill from being blown or removed by an act of nature from such premises, except that mailboxes may not be used when so prohibited by federal postal laws and regulations. Proof that any particular area was found unduly littered and unsightly by a specific

kind of handbill or other literature which was distributed by an identified distributor shall be prima facie evidence of violation of this section. (Ord. 1727, § 50, 2005; Ord. 1143, 1992; Ord. 1025, 1987)

5.13.080 Exemptions.

This chapter shall not apply to newspapers or other literature ordered by or sold to the owner or occupant of the premises, nor to commercial or noncommercial handbills or literature delivered by or through the United States mail. (Ord. 1727, § 47, 2005; Ord. 1143, 1992)

Chapter 5.15

NOISE*

5.15.010 Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Amplified outdoor music means the amplification of musical instruments and devices, including but not limited to percussive instruments, strings instruments, microphones or other similar devices used to amplify singing, pre-recorded music, or broadcasted music, through the use of sound equipment that is not fully enclosed by permanent, solid walls, and a roof.

City-observed holiday means:

- (1) New Year's Day;
- (2) Memorial Day;
- (3) Independence Day;
- (4) Labor Day;
- (5) Thanksgiving Day; and
- (6) Christmas Day.

***Editor's note**—Ord. No. 2173, adopted January 25, 2022, amended ch. 5.15 in its entirety to read as herein set out. Former ch. 5.15 pertained to the same subject matter, consisted of §§ 5.15.010—5.15.060, and derived from Ord. 834, 1980; Ord. 1025, 1987; Ord. 1143, 1992; Ord. 1727, 2005; and Ord. 1903, 2011.

Commercial zone means those zone districts defined as commercial or mixed-use, and found in title 18 of the Municipal Code, including RC, C1, C2, CMU, M1 (light industrial), and PUD zone districts that allow commercial or mixed-use.

Domestic power equipment means any power equipment rated five horsepower or less used for home or building repair or grounds maintenance, including, but not limited to, lawn mowers, garden tools, snow blowers and chain saws.

Industrial zone means those zone districts that allow manufacturing and use of heavy equipment, and found in title 18 of the Municipal Code, including M2 and PUD zone districts that allow outdoor storage and manufacturing as a use by right.

Muffler means an apparatus consisting of a series of chambers or baffle plates designated for the purpose of transmitting gases while reducing sound emanating from such apparatus.

Residential zone means those zone districts defined as residential, and found in title 18 of the Municipal Code, including R1, R1A, R2, R3 and PUD zone districts that are restricted to residential only use.

Sound equipment means a loudspeaker, public address system, amplification system, or other sound producing device.

Sound level means the A-weighted sound level in decibels ("dBA"), in accordance with the American National Standards Institute ("ANSI").

Unreasonable noise means any sound of such level, intensity, or duration as may or tends to be injurious to human health or welfare, or that unreasonably interferes with the enjoyment of life or property, or causes damage to any property, but excludes all aspects of the employer-employee relationship, concerning health and safety hazards within the confines of a place of employment.

Vehicle means any machine propelled by power other than human power, designed to travel along the ground by use of wheels, treads, runners or slides to transport persons or property or

pull machinery and includes, without limitation, automobile, airplane, truck, trailer, motorcycle, motor scooter, tractor, buggy, and wagon.

(Ord. No. 2279, § 3, 10-28-2025; Ord. No. 2276, § 2, 7-22-2025; Ord. No. 2173, § 2, 1-25-2022)

5.15.020 Exceeding decibel sound levels prohibited.

(1) No person shall operate any type of vehicle, machine, or device; carry on any activity; or promote or facilitate the carrying on of any activity in excess of the levels specified, in this section.

(2) Sound from any source, other than a moving vehicular source located within the public right-of-way, shall not exceed any of the following limits for its appropriate zone, as measured at or inside the property line other than that on which the sound originates:

Daytime = 7:00 a.m. to 10:00 p.m. of the same day (Mountain Time Zone)

Nighttime = 10:00 p.m. to 7:00 a.m. of the following day (Mountain Time Zone)

<i>Residential</i>		<i>Commercial</i>		<i>Industrial</i>	
<i>Daytime</i>	<i>Night-time</i>	<i>Daytime</i>	<i>Night-time</i>	<i>Daytime</i>	<i>Night-time</i>
55 dBA	50 dBA	65 dBA	60 dBA	80 dBA	75 dBA

(Ord. No. 2173, § 2, 1-25-2022)

5.15.030 Disrupting quiet enjoyment of home.

(1) No person shall engage in, or be responsible for, a course of conduct which is so loud that it materially interferes with or disrupts another individual in the conduct of activities at such individual's home.

(2) The following standards and definitions shall be used in the application of this section:

- (a) Whether noise is "so loud that it materially interferes with or disrupts" shall be measured against the objective standard of a reasonable person.
- (b) Law enforcement personnel, including code enforcement officers, in determina-

tion of whether a noise is unreasonable, may consider factors that include, but are not limited to:

- (i) The time of day;
- (ii) The size of any gathering of persons creating or contributing to the noise;
- (iii) The presence or absence of noise amplification equipment; and
- (iv) Any other factors tending to show the magnitude and/or disruptive effect of the noise.

(3) It is not a defense to a charge of violation of this section that the sound levels complied with the requirements of section 5.15.020, "exceeding decibel sound levels prohibited."

(Ord. No. 2173, § 2, 1-25-2022)

5.15.040 Restrictions on amplified outdoor music.

(a) It shall be unlawful for any person to make, cause to be made, or to permit amplified outdoor music upon any premises possessed or controlled by such person:

- (1) When such music occurs between the hours of 10:00 p.m. through 7:00 a.m. of the next day; or
- (2) When any amplified outdoor music exceeds 65 dBA as measured at or inside a property line other than that on which the amplified outdoor music originates.

(b) It shall be unlawful for any person to make, cause to be made, or to permit amplified outdoor music which originates from the public right-of-way within the downtown development authority boundaries as described in section 2.48.070.

- (1) For purposes of this subsection, "public right-of-way" means any public street, way, place, alley, sidewalk, easement, or city-owned right-of-way dedicated to public use.
- (2) This subsection shall not apply to city approved special events.

(Ord. No. 2276, § 3, 7-22-2025; Ord. No. 2173, § 2, 1-25-2022)

5.15.050 Exceptions.

The prohibitions set forth in subsection 5.15.020 shall not apply to sound from:

- (a) Any bell or chime from any building clock, school, or church;
- (b) Any siren, whistle, or bell lawfully used by emergency vehicles, or any other alarm system used in case of fire, collision, civil defense, police activity or other imminent danger; provided however, that burglar alarms not terminated within 20 minutes after being activated shall not be excepted;
- (c) Aircraft which are operated in accordance with federal laws or regulations;
- (d) City authorized or sponsored events including, but not limited to, parades and fireworks displays;
- (e) Any domestic power equipment, except as provided within this subsection, operated upon any residential, commercial, industrial, or public place between 7:00 a.m. and 9:00 p.m.;
- (f) Any temporary construction, maintenance, or repair activities between 7:00 a.m. and 7:00 p.m., unless the activity is taking place on a Sunday or on a city-observed holiday;
- (g) Activities directly connected with the abatement of an emergency;
- (h) Noise from snow blowers, snow throwers, and snow plows when operated with a muffler for the purpose of snow removal;
- (i) Noise generated from golf course maintenance equipment; or
- (j) Noise generated by the temporary maintenance, construction, repair, or improvement activities of any public road or public facility performed by a government entity or their respective agencies or contractors that occurs outside of the times permitted in section 5.15.050(f) if, in the city manager's sole discretion, the

city manager grants a permit for such activity based upon any of the following determinations:

- (1) An emergency requires that such a permit be issued; or
- (2) Notwithstanding the prohibition set forth in section 5.15.030, no adverse effect to neighboring or proximate properties would occur as a result of the issuance of a permit; or
- (3) The permit is necessary to reduce or mitigate a significant adverse impact to the public health, safety, or welfare that would occur because of the work.

Applications for such a permit shall be made in writing to the city manager. The city manager may prescribe and impose reasonable conditions on operations authorized by the permit to minimize adverse impacts upon the community or surrounding neighborhood. Any permit granted by the city manager must be in writing and shall contain all conditions upon which such permit shall be effective. The city manager may revoke any permit granted pursuant to this subsection (j) if the permittee:

- (1) Violates any condition of such permit;
- (2) Violates any other provision of this Code; or
- (3) Has completed the permitted work or the conditions necessitating the permit have otherwise been addressed.

(Ord. No. 2279, § 3, 10-28-2025; Ord. No. 2204, § 2, 3-28-2023; Ord. No. 2173, § 2, 1-25-2022)

5.15.060 Exhaust, mufflers.

No person shall discharge the exhaust of any steam engine, internal combustion engine, air compressor equipment, motorboat, or other power device which is not equipped with a properly maintained exhaust system with a muffler or a

spark arrestor. It is unlawful for any person to operate a muffler or exhaust using a cutout, bypass or other similar device.
(Ord. No. 2173, § 2, 1-25-2022)

5.15.070 Use of sirens and red lights restricted.

It is unlawful for any person to carry or use upon any vehicle other than police, fire department or emergency vehicles, any gong, siren, whistle, or red light similar to that used on police, fire department or emergency vehicles.
(Ord. No. 2173, § 2, 1-25-2022)

Chapter 5.17 ALARM SYSTEMS

5.17.010 Definitions.

The following words, terms and phrases used in this chapter, shall have the following meanings, except where the context clearly indicates a different meaning:

Alarm provider means any person who provides, whether or not for profit, a central alarm station or which provides, whether or not for profit, an alarm system or which receives signals from an alarm system and reports receipt of said signals to the police department.

Alarm system means any device designed for the detection of an unauthorized entry on or into any building, place or premises, or for alerting others of the commission of an unlawful act, or both, and when activated causes an audible and/or visual signal or transmits a signal or message to which police officers are expected to respond or that would imply to a reasonable person that police officers are needed at the alarm source to investigate a criminal activity or emergency.

- (1) "Alarm system" includes, but is not limited to:

- (a) *Audible alarm device* means any alarm device which produces an audible signal at the premises where it is installed, whether by means of bells, horns, sirens or other

mechanisms, thereby notifying persons within audible range of the signal that police should be notified.

- (b) *Automatic dialer alarm* means a device that sends over telephone circuits a prerecorded voice message or coded signal indicating the presence of a burglary, robbery, or other crime.
- (c) *Direct alarm device* means any police alarm device or alarm system which transmits, by whatever means, its alarm signal from the location of the alarm to the police department without the last step in the transmission process being a live voice capable of two-way communication. This definition includes automatic telephone alarm devices connected to emergency line 911 or other telephone numbers.
- (d) *Police alarm device* means any device which, when activated by the victim of a holdup or robbery at a specific location, by forced or unauthorized entry into premises, or by other stimuli, transmits a prerecorded message or other signal by telephone, radio or other means to a central alarm station or directly to the police department requiring a police response.

(2) "Alarm system" does not include:

- (a) Single unit smoke detectors or personal protection alerting devices which alert only the user and which do not require special wiring.
- (b) Alarms installed in or on motorized vehicles.

Alarm user means any person which maintains control of, has responsibility for, and/or is associated with the operation of the alarm system or who buys and/or leases or otherwise obtains or uses an alarm system.

Central alarm station means any facility to which alarms or alarm systems are connected, where human operators monitor the alarms and relay information concerning the alarms to the police department and/or dispatch alarm company employees to reported alarm locations.

Police chief means chief of the city police department or the chief's designee.

Excessive false alarms means more than three false alarms received by the police department within a calendar year from the same location.

False alarm means any signal originating from an alarm system to which the police respond and which results from:

- (1) False activation, including reporting a robbery where no actual or attempted robbery has occurred, or reporting a burglary where there is no evidence to substantiate an attempted or forced entry to the premises;
- (2) Alarm malfunction, including mechanical failure or electrical failure;
- (3) Alarm triggered by subscriber's negligence, including overly sensitive settings. Exempted from this definition are alarms activated by forces beyond the user's control such as those caused by extreme weather or atmospheric conditions or failure or malfunction of off-premises telephone lines. Also exempted are those alarms received within ten

days of the installation, repair or substantial modification of any alarm system.

(Ord. No. 1994, § 1, 12-4-2014; Ord. 1554, 2001)

5.17.020 Audible alarm devices/restrictions.

It shall be unlawful for an alarm user to permit any audible exterior alarm signal to sound for more than 15 minutes after being activated.

(Ord. 1554, 2001)

5.17.030 Prohibited false alarms.

It shall be unlawful for any person to intentionally cause the transmission of a false alarm to the police department.

(Ord. 1554, 2001)

5.17.040 Reserved.

Editor's note—Sec. 2 of Ord. No. 1994, adopted Dec. 4, 2014, deleted § 5.17.040, which pertained to required permits, and derived from Ord. 1554, 2001.

5.17.050 Reserved.

Editor's note—Sec. 2 of Ord. No. 1994, adopted Dec. 4, 2014, deleted § 5.17.050, which pertained to permit applications, and derived from Ord. 1554, 2001.

5.17.060 Reserved.

Editor's note—Sec. 2 of Ord. No. 1994, adopted Dec. 4, 2014, deleted § 5.17.060, which pertained to fees/terms, and derived from Ord. 1554, 2001.

5.17.070 Reserved.

Editor's note—Sec. 2 of Ord. No. 1994, adopted Dec. 4, 2014, deleted § 5.17.070, which pertained to the prohibition of transfer, and derived from Ord. 1554, 2001.

5.17.080 Responsibilities of a permittee.

Permittees shall:

- (a) Inspect, maintain, and repair alarm systems on a regular basis to ensure their proper operation.
- (b) Inspect any alarm system after activation to ensure such system is working properly.

- (c) Inform the police department within five days of any change in the information submitted on the application or any renewal.

(Ord. 1554, 2001)

5.17.090 False alarm fee.

(a) A false alarm fee shall be imposed upon the alarm user for every false alarm commencing with the third false alarm in any calendar year to which the police department responds.

(b) The schedule and amount of the fee shall be set by resolution of city council.

(c) Upon receipt of five false alarms in a calendar year, the police chief shall notify the alarm user that the police department will not respond to any further alarms at the location unless it receives a request from an on-site person reporting a crime in progress until all false alarm fees are paid and the alarm user demonstrates to the police chief's satisfaction that measures have been instituted to solve the false alarm problems.

(Ord. No. 1994, § 3, 12-4-2014; Ord. 1554, 2001)

5.17.100 Collection of fees.

(a) Whenever the police chief determines a fee for a false alarm should be imposed pursuant to this chapter, the police chief shall by first class mail send a notice to the alarm user where the alarm system is located, setting forth the amount of the fee due and the reason for its imposition.

(b) It shall be unlawful for any person to fail to pay the false alarm fee within 30 days of the mailing of the notice provided for in subsection (a) of this section.

(c) Failure to pay the administrative fee within the required time shall result in the police department not responding to an alarm at the location unless it receives a request from an on-site person reporting a crime in progress.

(Ord. No. 1994, § 3, 12-4-2014; Ord. 1554, 2001)

5.17.110 Administrative review procedures.

Within ten days of receipt of the notice for a false alarm fee, the alarm user may submit a

written statement setting forth the reasons why such fee should not be imposed. Within ten days of the receipt of the written statement, the police chief shall make a decision based on the statement of the alarm user and all other information provided the police chief. The alarm user shall be notified in writing of the police chief's decision.

(Ord. No. 1994, § 3, 12-4-2014; Ord. 1554, 2001)

5.17.115 Establishment of lien.

If the alarm user fails to pay when due any fee imposed by this chapter, the city may, in addition to any other collection remedy, certify the charge as due and unpaid and submit same to the Jefferson County Treasurer to be levied against such persons property and to be collected as other taxes, plus a 15-percent administrative fee.

(Ord. No. 1994, § 3, 12-4-2014; Ord. 1554, 2001)

Chapter 5.19

MARIJUANA RESIDENTIAL CULTIVATION RESTRICTIONS

5.19.010 Legislative powers.

The city council hereby finds and declares that it has the power to enact this chapter and the regulations herein pursuant to Article XX, Section 6, and Article XVIII of Section 14, and Section 16, of the Colorado Constitution, Article XX, Section 6 of the Colorado Constitution, the Colorado Medical Marijuana Program (C.R.S. 25-1.5-106), "Use of flammable gases in home marijuana cultivation prohibited" (C.R.S. 9-7-113), Article 15 of Title 31, C.R.S. ("exercise of municipal powers") and the city's home rule charter and code.

(Ord. 1979, 2014)

5.19.020 Cultivation regulations/legislative.

(a) The cultivation, production or possession of marijuana plants for medical use by a patient or primary caregiver as such terms are defined by Article XVIII, Section 14 of the Colorado Constitution and the Medical Marijuana Program,

C.R.S. 25-1.5-106 shall be allowed in residential structures subject to the requirements set forth in this chapter.

- (1) The cultivation, production, or possession of medical marijuana plants must be in full compliance with all applicable provisions of Article XVIII, Section 14 of the Colorado Constitution, and the Medical Marijuana Program, C.R.S. 25-1.5-106 including its regulations set forth in 5 CCR 1006-2; and
- (2) Any primary caregiver acting as a home occupation shall conduct such business in accordance with the home occupation requirements set forth in the city's zoning regulations.

(b) The cultivation, production or possession of marijuana plants for personal use by persons 21 years of age or older, as such terms are defined by Article XVIII of Section 16 of the Colorado Constitution shall be allowed in residential structures subject to full compliance with the applicable provisions of Article XVIII of Section 16 of the Colorado Constitution and the requirements set forth in this chapter. (Ord. 1979, 2014)

5.19.030 Cultivation operational regulations.

(a) In addition to the requirements set forth herein in section 5.19.020 of this chapter, the cultivation, production or possession of marijuana for medical use by a patient, or primary caregiver, or for recreational use by any person 21 years of age or older shall be subject to the following conditions:

- (1) The marijuana plants must be cultivated, produced, processed and possessed within a person's primary residence, as defined in paragraph (b) herein; and
- (2) The cultivation, production, processing and possession of marijuana plants must not be conducted in an open and public manner meaning it must not be

perceptible from the exterior of the primary residence, and such activity shall not cause or create any of the following:

- a. Unusual odors, smells, fragrances, or other olfactory stimulus detectable by any person with a normal sense of smell upon or within any adjacent unit or property;
 - b. Light pollution, glare, or brightness that unreasonably disturbs others in the use or enjoyment of their property, or constitutes a nuisance;
 - c. Undue vehicular or foot traffic, including excess parking within the residential zone;
 - d. Excessive noise.
- (3) Marijuana plants shall not be cultivated, produced, processed or possessed in the common areas of a multifamily or attached residential development; and
 - (4) The cultivation, production, processing or possession of marijuana plants shall be limited to the following space limitations within a primary residence as follows:
 - a. For a single-family dwelling unit (Group R-3 as defined by the most current international building code adopted by the city), within a single, enclosed locked, defined, contiguous area that cannot contain more than 12 plants within such person's primary residence;
 - b. For a multifamily dwelling unit (Group R-2 as defined by the most current international building code, adopted by the city), within a single, enclosed locked, defined, contiguous area that cannot contain more than 12 plants within such person's primary residence.
 - (5) Marijuana plants shall not be cultivated, produced, processed or possessed in any accessory structure; and

- (6) The cultivation, production, processing or possession of marijuana plants shall meet the requirements of all adopted city building and life/safety codes; and
- (7) The use of any compressed flammable gas as a solvent in the extraction of tetrahydrocannabinols or other cannabinoids in a residential setting is prohibited; and
- (8) The total load for a single branch circuit shall not exceed the ampacity for the entire cultivation area within a dwelling; and
- (9) The use of carbon dioxide generators or other mechanical devices to increase the levels of carbon dioxide to enhance the cultivation of marijuana is prohibited.

(b) For purposes of this section, "primary residence" means the place that a person, by custom and practice, makes his or her principle domicile and address, and to which the person intends to return following any temporary absence, such as a vacation. Residence is evidenced by actual daily physical presence, use, and occupancy of the primary residence, and the use of the residential address for domestic purposes, such as, but not limited to, sleep, preparation of and partaking of meals, regular mail delivery, vehicle and voter registration, or credit, water and utility billing. A person shall have only one primary residence. A primary residence shall not include accessory buildings.

(c) For purposes of this section, "enclosed locked" area means a location within the primary residence accessible only to the person growing the marijuana through one or more doors secured by a locking mechanism designed to limit access such as with a key or combination lock, and with walls and roofing that must be constructed of solid materials. Such premises must remain secure at all times and any windows must be locked to prevent access by children, visitors or casual passersby.
(Ord. No. 2039, § 2, 11-10-2016; Ord. 1979, 2014)

Chapter 5.20 CLEAR CREEK RECREATION

5.20.010 Definitions.

For purposes of this chapter, the following terms shall have the meanings ascribed to them in this section:

- (1) *Clear Creek corridor* means that portion of Clear Creek located in Golden.
- (2) *Disposable container* means a single-use container for beverages including, but not limited to, aluminum cans, plastic or glass bottles, plastic cups, Styrofoam coolers, and single-use plastic or paper bags.
- (3) *Outfit* means providing flotation devices, guide services, or other equipment necessary to float the Clear Creek corridor.
- (4) *Outfitter* means any person that provides, for a rental fee and/or recreational tube fee, the use of a recreational tube for use on the Clear Creek corridor.
- (5) *Outfitter's permit* means a permit for commercial operations including recreational tube sales on the Clear Creek corridor issued or approved by the city manager.
- (6) *Public access* means any city park, parkway, recreation area, open space, property, or trail adjacent to the Clear Creek corridor and used to put into or take out from Clear Creek.
- (7) *Recreational tube* means any inflatable flotation or innertube device that is designed, or commonly used, to carry people or food and drink on waterways (including, without limitation, inflatable water floats, innertubes, etc.), provided to a customer at the point of sale for the purpose of floating on water. Recreational tube does not mean foam pool toys, fishing float tubes, inflatable rafts, paddleboards, kayaks, mattresses, recliners, hammocks, or other similar inflatable devices.
- (8) *Recreational tube fee* means a city fee imposed and required to be paid by each

consumer making a retail purchase from a tube outfitter or retailer for each recreational tube sold.

- (9) *Trip* means use of a recreational tube for downstream travel.
- (10) *Tube rental fee* means a city fee imposed and required to be paid by outfitters in the amount set forth in this chapter.
- (11) *Tube retailer or retailer* means a person located within city limits that sells recreational tubes. Tube retailer may also mean an outfitter that has been approved and permitted by the city to rent recreational tubes for use on the Clear Creek corridor.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.020 Administrative rules and regulations.

(a) The city manager is authorized to adopt and enforce administrative rules and regulations that implement and supplement the rules set forth in this chapter for purposes which include, but are not limited to, the protection or conservation of any lands, structures, property, wildlife, or vegetation or to protect the public.

(b) Outfitters and tube retailers, as defined in this chapter, shall follow the administrative rules and regulations adopted pursuant to subsection (a) of this section.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.030 Permit required.

(a) No outfitter or tube retailer may conduct operations within the city unless that person applies for and obtains an outfitter's permit from the city. The city manager is authorized to determine whether to impose a maximum number of outfitter's permits to be issued by the city through administrative rule.

(b) Each outfitter and retailer's permit shall state the maximum number of recreational tubes that may be rented per day and any other restrictions on rentals or sales. The city manager shall establish rules and regulations to determine

the criteria used to calculate the maximum number of recreational tubes that may be rented per day pursuant to each outfitter's permit.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.040 Use of public access points to Clear Creek; fees; equipment.

(a) *Use restrictions.* Only persons who obtain and maintain in good standing an outfitter's permit shall be allowed to conduct operations relating to the Clear Creek corridor. Outfitters whose customers use any public access to the Clear Creek corridor, either through tube rentals or sales, shall be subject to the following use restrictions:

- (1) Trip restrictions.
 - a. No outfitter shall outfit more trips than authorized by its outfitter's permit, special event permit, or any permit issued by Jefferson County.
 - b. It shall not be a defense to a violation of this paragraph that limits were exceeded by reason of use of a flotation device for additional trips even if no additional rental fee was charged or collected for such additional trips and no transportation was provided by the outfitter for such additional trips.
- (2) Date and time restrictions. In addition to other closures or suspensions as listed below, access to the Clear Creek corridor by outfitters/tube retailers and their customers may be restricted and not permitted, by way of a date specific total tube rental and sales restriction, and up to five days per year for special event permittees. The city will establish these dates by April 30 of each year. The City may also establish regular, specific hours in which outfitters/tube retailers and their customers may not access the Clear Creek corridor as outlined in the administrative rules and regulations.
- (3) The city reserves the right to suspend any outfitters' commercial operations on the Clear Creek corridor at any time

when Clear Creek health conditions are critical and negative impacts may result from operations. In addition, the city may suspend certain types of outfitter operations based on any or all of the following criteria, as outlined in the administrative rules and regulations:

- a. The Clear Creek flow;
 - b. Dissolved oxygen levels; or
 - c. Water temperatures.
- (4) If the city suspends any outfitter's commercial operations as provided in subsection (3) above, those outfitters and tube retailers shall not operate until the city manager, in consultation with Colorado Parks and Wildlife, has determined that conditions have improved.
 - (5) Pursuant to Colorado Parks and Wildlife regulations, the city, through the chief of police, may issue a partial use or use restriction on the Clear Creek corridor. If such partial use or use restriction is issued, outfitters, retailers and all customers shall abide by the restriction(s).
 - (6) If the city limits or suspends activities pursuant to subsection (5) above, outfitters shall not operate until the chief of police has determined that conditions have improved.
 - (7) Outfitters and tube retailers shall keep a daily log of rental and sales activities that shall be copied to the city manager on a monthly basis and also within a reasonable time following the request of the city manager. The daily log shall include the number of recreational tubes to be used on the Clear Creek corridor that are rented or sold each day.

(b) *Fees.* A permit fee will be required for outfitters and tube retailers that will be established by city council resolution. In addition, each outfitter whose customers use any public Clear Creek access shall pay to the city a tube rental fee in the amount of five percent of gross revenues derived from the rental of a recreational tube and packages that include the rental of a recreational tube for use on the Clear

Creek corridor. An outfitter shall pay, and the city shall collect, such fee at the same time that it remits sales tax to the city. If payment of any amount owed to the city is not received on or before the applicable due date, penalty, and interest charges, as stated in section 5.20.090(d), shall be added to the amount due. The tube rental fee shall be administered by the City of Golden Finance Department. The fees shall be designated for use for Clear Creek enhancement projects, monitoring, and enforcement.

(c) *Required equipment.* For each recreational tube rented, each outfitter shall include a personal flotation device that is in good and serviceable condition and of the proper size for the intended user. For each recreational tube sold, a retailer shall provide the person with the opportunity to purchase a personal flotation device from their retail store. In addition, outfitters and tube retailers shall provide their recreational tube customers with a copy of the creek safety rules as approved by the city.

(d) *Outfitter equipment identification.* Each outfitter shall print the name of the outfitter on its rented recreational tube, equipment, and customer authorization (vests, hats, arm bands, etc.), and shall inform the city regarding its outfitter identification scheme. Outfitters must notify the city in writing of all changes in outfitter name and outfitter identification schemes. The city shall maintain a registry of outfitter identification schemes.

(e) *Compliance with laws.* Outfitters whose customers use any public Clear Creek access shall comply with all applicable state licensing, Jefferson County licensing or permitting, and any other applicable state, federal, or local laws and regulations.

(f) *Visibly intoxicated.* Outfitters and retailers shall not rent or sell recreational tubes to customers that are visibly intoxicated.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.050 Disposable containers on Clear Creek prohibited.

(a) No person shall carry or use any disposable container in Clear Creek or between Clear Creek and the north and south City paths that

run parallel to the Creek; provided that this prohibition does not apply within the confines of Vanover Park.

(b) No person shall enter the Clear Creek corridor from a public access point while carrying or using any disposable container.

(c) These prohibitions apply whether a person is floating on recreational tubes, rafts, paddleboards, or other watercraft devices.
(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.060 Recreational tube fee requirements.

(a) Tube retailers shall collect from customers, and customers shall pay at the time of purchase, a recreational tube fee of \$5.00 on each recreational tube sold.

(b) Tube retailers shall record the number of recreational tubes sold daily and the total amount of recreational tube fee charged on the customer transaction receipt.

(c) A tube retailer shall not refund to the customer any part of the recreational tube fee, nor shall the tube retailer advertise or state to customers that any part of the recreational tube fee will be refunded to the customer.

(d) No person shall sell recreational tubes on certain days during peak tubing season as determined and set forth by the city manager in Administrative Rules and Regulations authorized by section 5.20.020.
(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.070 Remittance and transfer of the recreational tube fee.

(a) The recreational tube fee collected by a tube retailer shall be paid to the City of Golden Finance Department.

(b) A tube retailer shall pay, and the City of Golden shall collect, all recreational tube fees at the same time that it remits the city sales tax. The city shall provide the necessary forms for tube retailers to file individual returns with the city, separate from the required city sales tax forms, to demonstrate compliance with the provi-

sions of this chapter. If payment of any amount owed to the city is not received on or before the applicable due date, penalty, and interest charges, as stated in section 5.20.090(d), shall be added to the amount due.

(c) The recreational tube fee shall be administered by the City of Golden Finance Department.

(d) Funds deposited shall be designated for use for Clear Creek enhancement projects, monitoring, and enforcement.
(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.080 Required signage for tube retailers.

Every tube retailer subject to the collection of the recreational tube fee shall display a sign in a location outside or inside of the business, viewable by customers, alerting customers to the recreational tube fee.
(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.090 Audits and violations.

(a) Each outfitter and tube retailer shall maintain accurate and complete records of the tube rental and recreational tube fees collected, the number of recreational tubes rented and sold to customers, and any underlying records, including any books, accounts, invoices, or other records necessary to verify the accuracy and completeness of such records. It shall be the duty of each outfitter and tube retailer to keep and preserve all such documents and records, including any electronic information, for a period of three years from the end of the calendar year of such records.

(b) If requested, each outfitter and tube retailer shall make its records available to the finance department during regular business hours for verification of compliance with the provisions of this chapter. All such information shall be treated as confidential commercial documents.

(c) Violation of any of the requirements of this section shall subject outfitters and tube retailers to the penalties set forth in this section.

- (1) If it is determined that a violation has occurred, the city may issue a warning notice to the outfitter or tube retailer for the initial violation.
- (2) The penalty for each violation shall be no more than:
 - a. \$100.00 for the first offense;
 - b. \$200.00 for the second offense;
 - c. For the third and all subsequent offenses there shall be a mandatory court appearance and such penalty as may be determined by the court to include revocation of the outfitter's permit.
- (3) Outfitters and tube retailers shall have 15 calendar days after the date that a notice of infraction is issued to pay the penalty.

(d) If payment of any amounts of the tube rental fee or recreational tube fee to the city is not received on or before the applicable due date, penalty and interest charges shall be added to the amount due in the amount of:

- (1) A penalty of five percent of total due; and
- (2) Interest charge of one percent of the total amount of fees due.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

5.20.100 Shuttle service available.

Beginning May 1, 2023, all outfitters that operate within the city must provide a shuttle service option to customers who rent recreational tube flotation devices for use on the Clear Creek corridor. The shuttle service shall be designed to transport tubes and customers to approved Clear Creek public access locations, as determined by the city manager, and shall meet all other requirements concerning frequency and routes as detailed in the outfitter's permit.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2182, § 2, 5-10-2022)

Chapter 5.21 HEALTHY BEVERAGES WITH CHILDREN'S MEALS

5.21.010 Purpose.

The purpose of this chapter is to promote the health and wellbeing of children by requiring healthy beverages to be included as the default beverage, as that term is defined in this chapter, with children's meals at restaurants.
(Ord. No. 2171, § 3, 1-25-2022)

5.21.020 Definitions.

Children's meal means a combination of food item(s) and a beverage, sold together at a single price, primarily intended for consumption by a child.

Default beverage means the beverage automatically included as part of a children's meal.

Health department means Jefferson County Public Health.

Inspector means a person who inspects a restaurant for compliance with this chapter.

Restaurant means a retail food establishment that prepares, serves, and sells food directly to a consumer, including, but not limited to, fast-food and full-service dining establishments.
(Ord. No. 2171, § 3, 1-25-2022)

5.21.030 Default beverages with children's meals.

On and after June 1, 2022,

- (a) A restaurant shall not sell a children's meal unless the default beverage is one of the following:
 - (1) Water, sparkling water, or flavored water with no added natural or artificial sweeteners; or
 - (2) Dairy milk, with no added caloric sweeteners, low-calorie sweeteners, or flavorings, or non-dairy milk alternative containing no more than 130 calories per container or serving.

- (b) Restaurants shall list only the default beverages described in subsection 5.21.030(a) in conjunction with children's meals on their menus. Restaurants that list alternative wording, such as "drink" or "drink included," on menus in conjunction with children's meals in lieu of the default beverages described in subsection 5.21.030(a) do not comply with this section.
- (c) Restaurant employees shall offer only the default beverages described in subsection 5.21.030(a) when taking food orders from customers.
- (d) Nothing in this section prohibits a restaurant or an employee of the restaurant from selling, or impedes the customer's ability to purchase, a beverage with a children's meal other than the default beverages set forth in this section upon request of the customer.

(Ord. No. 2171, § 3, 1-25-2022)

correct or remedy the violation by the end of the 60-day period provided in a warning issued to the restaurant pursuant to this section.

(d) If a restaurant violated subsection 5.21.030(b) of this Code and the restaurant does not correct the violation within 60 days of issuance of a warning, the city may issue the restaurant or the restaurant's employee an administrative citation pursuant to chapter 8.25 of this Code.

(e) For violations of this chapter other than violations of subsection 5.21.030(b), the city shall enforce such violations through the issuance of a warning and the provision of technical and educational assistance to the restaurant. No administrative citation will be issued or fine assessed.

(Ord. No. 2171, § 3, 1-25-2022)

5.21.040 Enforcement.

(a) It is unlawful for any restaurant or employee of a restaurant to violate any provision of this chapter.

(b) Restaurants will be inspected for compliance with this chapter during inspections by the health department or other designated inspector of the city. If a violation of this chapter is found during an inspection, the inspector will issue the restaurant a written warning. Such warning shall state the violation and provide the restaurant with 60 days to correct the violation and comply with this chapter. The inspector may provide a warning to the alleged violator by in-person delivery to the alleged violator, posting it at the restaurant premises in a clearly visible location, or mailing it via first-class mail to the business address of the restaurant as shown in the Colorado Secretary of State business records.

(c) The health department, or a person or entity designated by the city, may provide a restaurant that is in violation of this chapter with technical and educational assistance to

Title 6

RESERVED

Title 7

ANIMALS

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Chapter 7.01 DEFINITIONS

7.01.010 Definitions.

The following words, terms and phrases, when used in this title, shall have the meanings ascribed to them in this chapter, except where the context clearly indicates a different meaning:

Abandon means the leaving of an animal without adequate provisions for the animal's proper care by its owner.

Animal means any of a kingdom (animalia) of living beings typically differing from plants in capacity for spontaneous movement and rapid motor response to stimulation; consistent therewith, any one of the lower animals distinguished from human beings.

Code enforcement officer means any officer(s) or employee(s) of the city designated or authorized by the chief of police or by this authorized representative to enforce the provisions of the Golden Municipal Code regarding animals.

Animal owner or *owner* means any person who owns, keeps, harbors, possesses, or otherwise has custody or control of any animal in the city, whether such person is a resident or nonresident of the city.

Animal shelter means any premises designated by the city for the purpose of boarding and caring for any animal impounded under the provisions of this title or any other ordinance of the city or law of the state.

Cat means any domesticated animal of the species *Felis domestica*.

Common areas includes, but is not limited to, the yards, grounds, garden areas, play areas, club houses, swimming pools, walkways, common garage areas, entryways, hallways and driveways of condominiums, townhouses or apartment building complexes.

Dwelling unit means a building or any portion of a building designed for occupancy as complete, independent living quarters for one or more persons, having direct access from the outside of

the building or through a common hall and having living, sleeping, kitchen and sanitary facilities for the exclusive use of the occupants.

Dog means any domesticated animal of the species *Canis familiaris*, or other species of the family *Canidae*.

Guard dog means a dog disciplined, through special training, to protect persons and/or property by attacking or threatening to attack any person found within the area authorized to be patrolled by the dog.

Harbor means the activity of the occupant of any premises on which an animal is kept or to which an animal customarily returns for food and care which contributes to the animal's habit or tendency to stay at or return to said premises for care and sustenance.

Household pets means the following domesticated animals: Dogs, cats, aquarium fishes, psittacine birds, aviary finches, gerbils, guinea pigs, hamsters, and laboratory mice and rats.

Humane trap means box type live traps which do not cause bodily harm to the animal intended to be captured or any other animal or person coming in contact with such trap.

Leash means a chain, cord, rope or similar device sufficient to hold an animal in restraint, and which is not more than six feet in length.

Livestock means cattle, swine, sheep, goats and such horses, mules, asses, and other animals associated with or used in the farm or ranch production of food, fiber or agricultural products.

Mistreatment means every act of omission which causes or unreasonably permits the continuation of unnecessary or unjustifiable pain or suffering.

Neglect means failure to provide food, water, protection from the elements, opportunity for exercise, or other care normal, usual and proper for an animals' health and well-being.

Rabies inoculation means the inoculation of an animal with a rabies vaccine approved by the Colorado Department of Health and administered by a Colorado licensed veterinarian.

Running at large means any animal, unless specifically excepted by this title, off the premises of the owner and not under the direct control of the owner or the owner's authorized agent by means of a leash, except an animal within an automobile or other vehicle with its owner, and for the purpose of this definition, the "premises of the owner" shall not include common areas of condominiums, townhouses, and apartment buildings, and any animal not in the direct control of its owner upon the common area of a condominium, townhouse, or apartment building, or the grounds thereof, shall be deemed to be running at large.

Stray animal means any animal with or without a valid registration-rabies inoculation tag, found unattended, running at large or unattached anywhere within the city.

Veterinarian means a person currently licensed by the State of Colorado to practice veterinary medicine.

Vicious animal means any animal which unprovokedly attacks or bites humans or other animals on public or private property, or without provocation approaches any person on public or private property in a terrorizing manner or in an apparent attitude of attack.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

Chapter 7.03 RABIES CONTROL

7.03.010 Rabies inoculation and collar and tag required.

(a) It shall be unlawful for any person to keep, harbor or possess any dog or cat over the age of four months which has not been inoculated against rabies by a vaccination administered by a licensed veterinarian. Rabies vaccinations must be kept current in accordance with the guidelines set forth in the Compendium of Animal Rabies Control as promulgated by the National Association of State Public Health Veterinarians.

(b) A person acquiring a dog or cat shall have the dog or cat vaccinated against rabies within ten days after the date of acquisition or within ten days after the dog or cat reaches four months of age, whichever occurs last. Any person moving into the city from a location outside of the city shall comply with this section within ten days after moving into the city.

(c) After vaccination, the administering veterinarian shall issue to the owner a tag showing the year and series number of such vaccination and a vaccination certificate and such tag shall be attached to a collar or harness of the dog or cat vaccinated. It is unlawful for the owner of any animal required to be vaccinated to keep said animal within the city without the rabies vaccination tag securely affixed to the animal's collar or harness placed on the animal at all times.

(d) The requirements for rabies vaccination as set forth in this section is intended primarily to apply to dogs and cats; provided, however, that whenever it is deemed advisable in the interest of the public health, welfare and safety, the chief of police may order that all animals or certain specified animals within the city which are susceptible to the rabies virus be vaccinated against rabies. Such vaccination shall be performed by a veterinarian.

(Ord. 1116, § 1, 1991)

7.03.020 Reporting animal bites.

(a) Whenever any dog, cat or other animal has bitten any person, it shall be the duty of the owner of such animal or of any person having knowledge thereof to immediately report such fact to a code enforcement officer or to the Golden Police Department, stating, if known, where such animal may be located.

(b) Whenever any dog, cat or other animal is affected by rabies, or is suspected of having rabies, or has been bitten by an animal known or suspected to be affected by rabies, the owner of such animal or any person having knowledge thereof shall immediately report such fact to a code enforcement officer or to the Golden Police Department stating, if known, where such animal may be located.

(c) Consistent with paragraph (a) hereinabove, every physician or medical practitioner after his/her first professional attendance upon a person bitten by a dog, cat or other animal within the city shall within 12 hours report to a code enforcement officer or to the Golden Police Department the name, age and address of the person so bitten and treated. It shall be the duty of every physician or medical practitioner to request such permission to so advise the Golden Police Department or a code enforcement officer.

(d) It shall be the duty of every veterinarian who diagnoses rabies in any animal to immediately report such fact to a code enforcement officer or to the Golden Police Department. (Ord. 1116, § 1, 1991)

7.03.030 Confinement—Quarantine.

(a) Any animal that has bitten any person, or has been exposed to rabies, or in any manner is suspected of having rabies shall be immediately confined for a period of ten days from the date of the incident or for a longer period of time upon the advice of a code enforcement officer or a veterinarian. A code enforcement officer or other officers and employees of the city charged with the enforcement of this title shall serve notice of such confinement on the owner of such animal. Such confinement may be on the premises of the owner if deemed appropriate by a code enforcement officer; provided however, such animal must remain within the city during the confinement period. If the animal is not confined on the owner's premises, confinement shall be either in the city's designated animal shelter or at a veterinary hospital of the owner's choice. Such confinement shall be at the expense of the owner.

(b) It shall be unlawful for the owner of any animal that has bitten a person, or has been exposed to rabies, or in any manner is suspected of having rabies, to destroy or to dispose of such animal before said animal can be properly confined or caused to be confined by a code enforcement officer.

(c) It shall be unlawful for the owner or for any other person to allow any animal which is under confinement to come into contract with the public or with any other animal or to remove

any such animal from the place of confinement or quarantine without the consent of a code enforcement officer.

(d) The owner of any animal that has been reported to have bitten any person or is suspected of having bitten any person shall, on the demand of a code enforcement officer or of any city officer or employee charged with the enforcement of this title, produce and surrender said animal for examination and quarantine as prescribed in this chapter. If there is probable cause to believe said animal has bitten a person, and the owner willfully refuses to produce said animal upon demand, the owner shall be subject to immediate arrest and shall be taken by an officer of the police department before a judge of the municipal court who may order the immediate production of said animal. If the owner or harbinger of any such animal shall willfully and knowingly secrete or refuse to produce said animal, every day of secretion or refusal shall constitute a separate and individual violation.

(e) When an animal under confinement and quarantine has been diagnosed by a veterinarian as being rabid, the veterinarian making such diagnosis shall immediately notify a code enforcement officer or the Golden Police Department and the applicable county health officer of such fact and shall advise them of any reports of human contact with such rabid animal. If any animal under confinement dies while under observation, a code enforcement officer shall immediately take action to obtain a pathological and inoculation examination of the animal. As soon as a diagnosis is made available a code enforcement officer shall notify the appropriate county public health officer of any reports of human contact with the animal.

(f) Any animal quarantined or confined under the provisions of this chapter shall not be released from such quarantine or confinement until all fees have been fully paid by the animal's owner or representative when such animal is confined in the city's designated shelter.

(g) The requirements of this section are in addition to any other provided by this Code. (Ord. 1116, § 1, 1991)

7.03.040 Emergency conditions.

Whenever the chief of police finds or has been notified by the Colorado Department of Health that there is imminent danger that rabies may spread within the city, the chief of police may require every owner of any dog, cat or other specified animal to confine such animals for such periods as may be necessary to prevent the spread of rabies within the city.
(Ord. 1116, § 1, 1991)

7.03.050 Reserved.

Editor's note—Sec. 2 of Ord. No. 2243, adopted August 13, 2024, repealed § 7.03.050, which pertained to license required, and derived from Ord. 1748, 2006; and Ord. 1949, 2013.

7.03.060 Reserved.

Editor's note—Sec. 3 of Ord. No. 2243, adopted August 13, 2024, repealed § 7.03.060, which pertained to the issuance of license, and derived from Ord. 1748, 2006; and Ord. 1949, 2013.

7.03.070 Reserved.

Editor's note—Sec. 4 of Ord. No. 2243, adopted August 13, 2024, repealed § 7.03.070, which pertained to license fee, and derived from Ord. 1748, 2006; and Ord. 1949, 2013.

Chapter 7.05**CONTROL OF ANIMALS****7.05.000 Keeping of household pets.**

Keeping of household pets is allowed, provided that no person, alone or in combination with other occupants, shall keep in a single dwelling unit more than three dogs or cats or any combination of both, older than six months.
(Ord. No. 2284, § 1(Exh. A), 12-9-2025)

7.05.005 Strict liability of animal owner.

For the purpose of prosecution for violation of any section of this chapter, it shall not be necessary to prove notice or knowledge on the part of the animal owner that such animal was violating any of the sections of this chapter at the time and place charged, it being the purpose

and intent of this section to impose strict liability upon the animal owner for the actions, conduct and condition of such animal.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1228, 1994)

7.05.010 Running at large prohibited—Exceptions.

(a) It shall be unlawful for any animal owner to permit an animal, except a domesticated house cat, to run at large within the city except on the premises of the owner or on the premises of the person having charge of the animal or for dogs upon the premises of any city-owned off-leash dog facility, or upon any other off-leash dog facility that meets the requirements set forth in this section.

(b) All dog off-leash facilities shall:

- (1) Be completely enclosed with a solid fence of at least four feet in height with ingress and egress through a double-lock enclosure;
- (2) Have shade and water available;
- (3) Include adequately supplied pet waste stations with all waste to be removed on a regular basis;
- (4) Include at least one covered garbage can that is emptied on a regular basis;
- (5) Contain conspicuously posted signage setting forth the facility's rules and regulations, including hours of operation.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. No. 2040, § 1, 11-10-2016; Ord. 1640, 2003; Ord. 1116, § 1, 1991)

7.05.020 Permitting incompetent control prohibited.

It shall be unlawful for any animal owner to permit the animal to be in the care and custody of a person who is not competent to restrain and/or control the animal.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.030 Cats—Reasonable control required.

(a) It shall be unlawful for any cat owner to not maintain reasonable control over such cat. For purposes of this title, it shall be prima facie evidence that a cat is not under reasonable control when such cat inflicts damage or injury to other animals, the person or property of anyone other than the owner or when such cat is in violation of section 7.05.060.

(b) Any stray cat or cat injured on public property may be impounded by a code enforcement officer.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.040 Injured and stray animals.

Any stray animal or any animal injured on public property shall be deemed to be running at large and may be impounded by a code enforcement officer.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.050 Dead animals—Disposal—Owner notification.

Any animal killed in any public street or on any public property shall be deemed running at large and shall be removed therefrom and disposed of by a code enforcement officer. The owner of such animal, if ascertainable, shall be so notified and advised by a code enforcement officer.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.060 Disturbing the peace prohibited.

It shall be unlawful for any animal owner to permit such animal to disturb the peace and quiet of any person or neighborhood by barking, fighting, howling, crying or by emitting any other similar sound.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.070 Confinement during estrus required—Exception.

Any unsprayed female animal in the stage of estrus (heat) shall be securely confined during

such period within a house, building or other secure enclosure which is so constructed as to prevent other animals of the same species from gaining access to the confined animal. Any owner who does not adequately so to confine the animal during the stage of estrus, or whose animal during estrus creates a nuisance, shall be ordered by a code enforcement officer to remove the animal to a boarding kennel, to a veterinary hospital or to the animal shelter. All expenses incurred as a result of such confinement shall be paid by the animal owner. Failure to comply with a code enforcement officer's removal order shall be a violation of this title and the animal shall be impounded at the owner's expense. This section shall not apply when animals are intentionally brought together within an enclosed area of the owner's premises, or any enclosed area of the owner's authorized agent's premises, for purposes of breeding.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.080 Removal of animal excrement.

It shall be unlawful for any owner to fail to prevent such animal from defecating or voiding excrement on the property of another person, common areas, or upon any street, right-of-way, park, open space or any other public place or property; provided, however, that it is a specific defense to a charge of violating this section that the owner or person having charge of the animal immediately removed or cleaned up such defecation or excrement and disposed of it in a receptacle ordinarily used for garbage or in an otherwise lawful and sanitary manner.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.090 Animals scattering trash.

It shall be unlawful for any owner to fail to prevent such animal from scavenging, scattering, tearing at or rummaging through trash, garbage or rubbish, whether such is in a receptacle or not, or from scattering or littering such trash, garbage or rubbish on or around any public or private property; provided, however, that it is a specific defense to a charge of violating this section that the owner immediately removed or

cleaned up the trash, garbage or rubbish and disposed of it securely in a receptacle ordinarily used for trash, garbage or rubbish or in an otherwise lawful manner.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.100 Livestock—Fencing requirements—Inspection.

If any livestock should escape its normal confines a code enforcement officer shall inspect the fencing of the enclosure from which the animal has escaped and, if in his/her judgment the fencing is not adequate to hold the animal within the enclosure a code enforcement officer shall serve upon the property owner or upon the person or persons currently in possession of such property an order requiring repair or construction of such fencing so as to make the fencing adequate to contain the animal. It shall be unlawful for any person to maintain a fence or corral that is inadequate to contain the animal which it was intended to contain.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.110 Horses—Unauthorized presence on private property prohibited.

It shall be unlawful for the owner, possessor or rider of any horse to permit the same to go upon another person's private property unless authorized to do so or to proceed off the improved portions of public streets or of the designated horse trails of the city.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

7.05.120 Picketing on public property, causing damage prohibited.

It shall be unlawful for any person to picket, tether or otherwise restrain or control any animal in or upon the streets or other public places of the city, or upon the private property of other persons, in such a manner as to damage any property or where such animal approaches any person in a terrorizing manner or apparent attitude of attack.

(Ord. No. 2284, § 1(Exh. A), 12-9-2025; Ord. 1116, § 1, 1991)

Chapter 7.07

CERTAIN ANIMALS PROHIBITED

7.07.010 Animals prohibited.

(a) It shall be unlawful for any person except for a duly licensed pet shop, circus or carnival to own, keep, control, maintain, possess or harbor any of the following species of animal whatsoever, anywhere in the city:

- (1) Any poisonous or venomous biting or injecting species of amphibian, arachnid, insect or reptile, including snakes;
- (2) Any snake not indigenous to this state;
- (3) Any snake in excess of three and one-half feet in length;
- (4) Any wild exotic animal which includes, but is not limited to, bears, any species of feline other than domesticated house cats, skunks, raccoons (except as permitted under state license), deer, coyote, or any species of non-human primate, excluding animals imported under state or federal law.

(b) The following animals shall be exceptions to subsection (a) above:

- (1) Domesticated dogs and cats;
- (2) Aquarium fish and turtles;
- (3) Domesticated house birds;
- (4) Non-poisonous or non-venomous reptiles, including snakes indigenous to the state under three and one-half feet in length;
- (5) Domesticated rodents.

(Ord. 1116, § 1, 1991)

Chapter 7.09

PROTECTION OF ANIMALS

7.09.010 Cruel treatment prohibited.

(a) It shall be unlawful for any person to commit or to cause to be committed any act of cruelty, mistreatment, neglect, harassment, abandonment or torture of any animal. Consistent therewith, it is unlawful for any person to unneces-

sarily beat or torment any animal; to overdrive, overload, drive when overloaded to or overwork any animal; to inhumanely trap or capture any animal; to unnecessarily fail to provide any animal in the person's care and custody with proper food, drink and protection from the weather; to carry any animal in or upon any vehicle without such restraint or control as to prevent injury or death to such animal, or to attach any animal to a vehicle in a cruel or inhumane manner, to cause any animal to be needlessly and/or cruelly wounded, mutilated, strangled, or inhumanely killed; or in any other way to commit or cause to be committed any similar acts of cruelty or to inhumane treatment of any animal. Ownership of animals shall not be a justifiable defense for such acts or for a violation of this section.

(b) It shall be unlawful for any person to antagonize, agitate, interfere, beat, kick, strike, torture, torment, mutilate, injure, disable or kill any dog used by the police department of this city when such dog is being used in the performance of the functions or duties of such department.

(Ord. 1116, § 1, 1991)

7.09.020 Poisoning prohibited—Exceptions.

It shall be unlawful for any person to intentionally poison any animal, with the exception of rats, mice and insects. The poisoning of rats, mice and insects must conform with the conditions, requirements and procedures of all applicable state and federal laws.

(Ord. 1116, § 1, 1991)

7.09.030 Promotion of animal fights and keeping places therefor.

It shall be unlawful for any person within the city to cause, instigate or encourage any animal to fight or to enter into combat in any manner; and

it shall be unlawful for any person to maintain any place where animals are permitted or encouraged to fight for exhibition, wager or sport. (Ord. 1116, § 1, 1991)

7.09.040 Hearing required/procedure.

Any animal impounded pursuant to section 7.09.010 may be held for a hearing before the municipal court to determine the disposition of such animal. The city shall notify, when ascertainable, the owner of the animal in writing of the date, time, place and purpose of the hearing at least five days before said hearing. The court shall conduct such hearing at the earliest date available. If, on the date of the hearing, the duly notified owner does not appear, the court may proceed with the hearing. The hearing may take place regardless of any pending municipal charge pertaining to the animal.

At the hearing, the formal rules of evidence shall not apply and any statement made by any person at such hearing shall not be used as evidence at any municipal trial. The court shall be guided by the basic notions of fairness in the conduct of such hearing and allow the parties to present evidence, witnesses and have the right of cross-examination.

The court shall consider as applicable the following:

- (1) Any evidence presented at any trial involving the animal or the owner's conduct;
- (2) The conduct and condition of the animal during the incident charged;
- (3) Any evidence of cruelty, mistreatment or neglect by the owner toward the animal at issue or any other animal;
- (4) Any prior violations by the animal owner of this chapter or the laws of the city, or laws of any state or political subdivision thereof;
- (5) Any prior violations by any other owner of the animal, involving the same animal or any violation of this chapter or the laws of the city, or any laws of the state or political subdivision thereof;

- (6) Any conditions existing on the property where the animal has been or will be kept which would endanger the animal;
- (7) Any evidence of any ameliorative action taken by the animal owner which would affect the likelihood of any danger to any animal; or
- (8) Any other evidence relevant to the issues as determined by the court.

If, at the hearing, the city establishes by a preponderance of the evidence that there is a reasonable likelihood of future injury, mistreatment or cruelty to the animal, the court shall order the animal to remain impounded at the owner's expense until final disposition of any pending municipal charges. The owner shall bear all costs of impounding the animal, regardless of the results of any municipal charges. If the court determines that it is not appropriate to order the animal impounded, the court may order the animal returned to the owner and to be kept under such circumstances as will ensure the animal's safety.

(Ord. 1479, 1999; Ord. 1440, 1999)

Chapter 7.11 VICIOUS ANIMALS

7.11.010 Vicious animals prohibited.

It shall be unlawful for any person to own, possess, keep, harbor, or have control or custody of any vicious animal.

(Ord. 1116, § 1, 1991)

7.11.020 Exemption.

Employees or agents of the City of Golden or any other town, city, county, or state or federal agency using animals within the course of their duties or employment shall be exempt from the provisions of this chapter.

(Ord. 1116, § 1, 1991)

7.11.030 Impoundment.

Any animal which has caused injury to any person or animal or which has unprovokedly attacked any person may be seized and im-

pounded at the owner's expense by any code enforcement or police officer without notice to the owner. If, after making every reasonable attempt to seize such animal, including the solicitation of assistance from the animal's owner if such owner be immediately ascertainable and available, the officer determines that the animal cannot be seized without exposing the officer or other persons to danger of personal injury from the animal, and the animal presents a present danger to any person, property, or other animal, it shall be lawful for the officer to destroy the animal without notice to the animal owner. (Ord. 1116, § 1, 1991)

7.11.040 Hearing.

Any animal impounded pursuant to section 7.11.030 may be held for a hearing before the municipal court to determine the disposition of such animal. The city shall notify, when ascertainable, the owner of the animal in writing of the date, time, place and purpose of the hearing at least five days before said hearing. The court shall conduct such hearing at the earliest date available to the court. If, on the date of the hearing, the duly notified owner does not appear, the court may proceed with the hearing. The hearing may take place regardless of any pending municipal charge pertaining to the animal.

At the hearing the formal rules of evidence shall not apply and any statement made by any person at such hearing shall not be used as evidence at any municipal trial. The court shall be guided by the basic notions of fairness in the conduct of such hearing and allow the parties to present evidence, witnesses and have the right of cross-examination.

The court shall consider as applicable, the following:

- (1) Any evidence presented at any trial involving the animal;
- (2) The conduct of the animal during the incident charged;
- (3) Any evidence of dangerous or violent behavior by the animal or threats thereof;

- (4) Any prior violations by the owner of the animal of this chapter or the laws of the city, or laws of any state or political subdivision thereof;
- (5) Any prior violations by any other owner of the animal, involving the same animal, of any violation of this chapter or the laws of the city, or any laws of the state or political subdivision thereof;
- (6) Any conditions existing on the property where the animal has been or will be kept which would affect the likelihood of any danger to any person, animal or property;
- (7) Any evidence of any ameliorative action taken by the owner of the animal which would affect the likelihood of any danger to any person, animal or property; and
- (8) Any other evidence relevant to the issues as determined by the court.

If, at the hearing, the city establishes by a preponderance of the evidence that there is a reasonable likelihood of future injury to persons, property or animals, the court shall order the animal to remain impounded at the owner's expense until final disposition of any pending municipal charges. The owner shall bear all costs of impounding the animal regardless of the results of any municipal charges.

If the court determines that it is not appropriate to order the animal impounded the court may order the animal returned to the owner and to be kept under such circumstances as will ensure the safety of persons, property or other animals. (Ord. 1116, § 1, 1991)

7.11.050 Euthanization.

Upon a conviction of section 7.11.010 the municipal court in addition to the penalties set forth in section 1.01.110 of the Golden Municipal Code may order that the animal be humanely euthanized. (Ord. 1116, § 1, 1991)

7.11.060 Authority for immediate destruction.

Nothing in this chapter shall be construed to prevent the immediate destruction of any vicious

animal when deemed necessary in the interest of public safety by the code enforcement officer or other law enforcement person, as provided by law. (Ord. 1116, § 1, 1991)

Chapter 7.13 IMPOUNDMENT

7.13.010 Impoundment and fees.

Any animal in violation of this title or of any other applicable city ordinance or state law may be taken into custody by a code enforcement officer or any other officer or employee of the city charged with the enforcement of this title or the ordinances of the city and impounded in a humane manner. Such officers and employees are hereby authorized to go upon private property to take into custody any animal violating section 7.11.030 or any animal which the officer or employee has witnessed violating the provisions of this title or other applicable law.

- (a) *Notice of impoundment.* Except for situations in which a summons and complaint has already been issued for a violation of section 7.11.010, notice of impoundment shall be given as follows:
 - (1) Upon the impoundment of any animal, where the owner of such animal is known, a code enforcement officer or his/her designee shall, as soon as possible:
 - a. Notify such person of said impoundment by telephone or writing; and
 - b. Maintain a record showing the date and time when such notice was given and the disposition thereof.
 - (2) If the owner cannot be reached by telephone notice or if such person fails to retrieve the animal within 24 hours from the time such person receives the notice, then a code enforcement officer shall send by certified mail, return receipt requested,
- (b) *Notice of impoundment—Owner unknown.* If the owner's address is not known and cannot be ascertained, then a code enforcement officer shall post a notice of such impoundment in a conspicuous place at the city's designated animal shelter. Such posted notice shall set forth a description of the impounded animal, the date of impoundment and the location at which such animal was taken into custody.
- (c) *Impoundment—Proceedings for violation.* If an animal is impounded a code enforcement officer may institute proceedings in the municipal court of the city against the owner charging such person with a violation of the appropriate section or sections of this code or other applicable law. Nothing contained herein shall be constructed as preventing a code enforcement officer from instituting a proceeding in the municipal court for violation of this code or other applicable law where there has been no impoundment.
- (d) *Release from impoundment—Fees.* Any animal impounded under the provisions of this chapter shall not be released from such impoundment until all charges, including impoundment and veterinarian fees and costs have been fully paid by the animal's owner, or representative, in accordance with the fee schedule established by the governmental authority or entity operating the animal shelter.
- (e) *Disposition of animals.* Disposition of animals shall be as follows:
 - (1) If any healthy animal has been impounded for more than five days after the date said written notice of impoundment was delivered to the animal owner, said date being the date of delivery as shown and entered by the United States Postal Service upon the return receipt for the certified mail by which said notice was sent, or has been impounded

written notice of such impoundment to the animal owner at the last known or reported address.

for more than five days after the date of the notice of impoundment was posted and has not been claimed by the owner, said animal shall be deemed abandoned. Such animal shall then become the property of the city, and shall thereafter be placed for adoption or shall be humanely destroyed and disposed of at the discretion of and in such manner as may be determined by a code enforcement officer.

- (2) In the event an unhealthy or seriously injured animal is impounded, the identity of the owner is not ascertainable and a veterinarian determines that the condition of said animal is such that a healthy recovery is precluded or that such animal will transmit serious diseases to other animals, then a code enforcement officer shall cause said animal to be humanely destroyed.
- (3) A code enforcement officer shall keep a complete and accurate record of all animals impounded, including the facts regarding the release or method of disposal of such animals.

- (f) *Refusal of owner to retrieve impounded animals.* The failure or refusal to retrieve any impounded animal by the owner of said animal shall not relieve the person of the duty to pay the impoundment fee and other charges, including medical costs, which have been assessed. It shall be unlawful for the owner of any animal to fail or refuse to pay such fees and charges.
(Ord. 1116, § 1, 1991)

Chapter 7.15 INSPECTION

7.15.010 Inspections.

(a) Whenever it is necessary to make an inspection to enforce any of the provisions of this title or other applicable law, or to perform any duty imposed herein or other applicable laws, or

whenever a code enforcement officer has reasonable cause to believe that there exists in any building, structure, enclosure, or premises any violation of this title, a code enforcement officer is hereby authorized to enter such location to inspect the same and perform any duty imposed upon him/her by this title or other applicable law; providing that:

- (1) If such building, structure, enclosure, or premises is occupied, a code enforcement officer shall first present proper credentials to the occupant and request entry explaining reasons therefor;
- (2) If entry is refused a code enforcement officer shall give the owner or occupant, or if said owner occupant cannot be located after reasonable effort a code enforcement officer shall leave at the location a 24-hour written notice of intention to inspect. Said notice given to the owner or occupant or left on the premises shall state that the property owner has the right to refuse entry and that in the event such entry is refused, inspection may be made upon issuance of a search warrant by a municipal judge of the city or by a judge of any other court having jurisdiction.
- (3) After expiration of said 24-hour period from the giving of such notice a code enforcement officer may appear before the municipal court of the city or any other court having jurisdiction and upon a showing of a probable cause shall obtain a search warrant entitling him/her to enter said location. Upon presentation of said search warrant and proper credentials, or possession of same in the case of an unoccupied location, a code enforcement officer may enter into said location using such reasonable force as may be necessary to gain entry therein.

(b) Notwithstanding the foregoing, if a code enforcement officer has reasonable cause to believe that the keeping, possessing or maintaining of any animal is so hazardous, unsafe or dangerous as to require immediate inspection to safeguard the animal or the public health or safety,

the code enforcement officer shall have the right immediately to enter and inspect such property and may use any reasonable means required to effect such entry and make such inspection, whether such property is occupied or unoccupied and whether or not permission to inspect has been obtained. If the property is occupied a code enforcement officer shall first present proper credentials to the owner or occupant and demand entry explaining his/her reasons therefor and the purpose of the inspection.

(c) It shall be unlawful for any person, firm or corporation to fail or refuse, after proper demand has been made as provided in paragraph (b) above, to permit a code enforcement officer to make any inspection provided for therein.
(Ord. 1116, § 1, 1991)

Chapter 7.17 GUARD DOGS

7.17.010 Requirement for posting guard dogs.

It is unlawful to place or maintain guard dogs in any area for the protection of persons or property unless the following conditions are met:

- (a) The dogs shall be confined to an enclosed area adequate to ensure they will not escape;
- (b) The dogs shall be under the absolute control of a handler at all times;
- (c) Such building or enclosure shall have adequate safeguards against accidental entry by children and against accidental and unintentional entry by any person;
- (d) Warning signs shall be conspicuously posted at all access points to the property indicating the presence of guard dogs and such signs shall plainly show a telephone number where a person responsible for controlling such dogs can be reached at all times;
- (e) Prior to the posting of guard dogs on any property, the person or persons responsible for the posting shall inform the police department in writing of their intention to post such dogs, the number of dogs to

be posted, the location where such dog or dogs will be posted, the hours of posting and the approximate length of time such dog or dogs will be patrolling the property;

- (f) In the event that the chief of police or his/her agent determines that the presence of the guard dogs or the circumstances of their presence constitutes a present danger to any person, property or animal, the chief or his/her agent shall issue a cease and desist order to be served upon the person notifying the police department under subsection (e) of this chapter. Service shall be in person or by certified mail, return receipt requested, to the address involved. Said person shall have 15 days from the date of personal service or 18 days from the date of mailing to appeal said order to the city council.

(Ord. 1116, § 1, 1991)

Title 8

PUBLIC PEACE AND SAFETY

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Chapter 8.04 CRIMINAL CODE

Article I. General

8.04.100 Definitions.

Except where such is otherwise defined within this title the words, terms and phrases used in this title shall have the meanings ascribed to them in the Colorado Criminal Code, Colorado Revised Statutes ("C.R.S.") 18-1-101 et seq., as same may be amended from time:

Bodily injury means physical pain, illness, or any impairment of physical or mental condition.

Conceal means to place or attempt to place out of view in such manner and circumstances as to indicate intent to prevent others from seeing or discovering the presence of the thing concealed.

Criminal negligence means when through a gross deviation from the standard of care that a reasonable person would exercise, a person fails to perceive a substantial and unjustifiable risk that a result will occur or that a circumstance exists.

Deadly weapon means any firearm, whether loaded or unloaded, knife, bludgeon, or other weapon, device, instrument, material or substance, whether animate or inanimate, which in the manner it is used or intended to be used is capable of producing death or serious bodily injury.

Emergency medical service provider means a member of a public or private emergency medical service agency, whether that person is a volunteer or receives compensation for services rendered as such emergency medical service provider.

Intentionally or with intent. All offenses defined in this title in which the mental culpability requirement is expressed as "intentionally" or "with intent" are declared to be specific intent offenses. A person acts "intentionally" or "with intent" when a person's conscious objective is to cause the specific result proscribed by the ordinance defining the offense. It is immaterial to the issue of specific intent whether or not the result actually occurred.

Knowingly or willfully. All offenses defined in this title in which the mental culpability requirement is expressed as "knowingly" or "willfully" are declared to be general intent crimes. A person acts "knowingly" or "willfully" with respect to conduct or to a circumstance described by an ordinance defining an offense when the person is aware that such person's conduct is of such nature or that such circumstance exists. A person acts "knowingly" or "willfully," with respect to a result of such person's conduct, when the person is aware that the person's conduct is practically certain to cause the result.

Loiter means to be dilatory, to stand idly around, to linger, delay, or wander about, to remain, abide, or tarry in public places.

Peace officer, police officer or law enforcement officer means, as defined in C.R.S. 16-2.5-101 and or C.R.S. 16-2.5-105, as same may be amended.

Public place means a place to which the public or a substantial number of the public has access, and includes, but is not limited to, highways, transportation facilities, schools, places of amusement, parks, playgrounds, and the common areas of public and private buildings and facilities.

Recklessly means when a person consciously disregards a substantial and unjustifiable risk that a result will occur or that a circumstance exists.

Serious bodily injury means bodily injury which involves a substantial risk of death, serious permanent disfigurement, or protracted loss or impairment of the function of any part or organ of the body.

Vehicle means a machine propelled by power other than human power designed to travel along the ground by use of wheels, treads, runners or like, to transport persons or property or pull machinery and shall include, without limitation, automobile, airplane, truck, trailer, motorcycle, motor scooter, tractor, buggy and wagon.
(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992; Ord. 794, § 11, 1978)

*Article II. Offenses—General***8.04.200 Intent.**

It is the intent and purpose of this title not to define as unlawful any conduct which is defined as a felony under the Colorado Criminal Code, as amended, or any succeeding enactment of state law, and this title will be so construed, notwithstanding any language contained herein which might otherwise be construed to the contrary.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992; Ord. 794, § 10, 1978)

8.04.210 Affirmative defenses.

The affirmative defenses as set forth in the Colorado Criminal Code C.R.S. 18-1-710 et seq., as amended, shall be available as affirmative defenses to prosecutions in the municipal court. (Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

8.04.220 Attempts to commit crime.

(a) A person commits criminal attempt if, acting with the kind of culpability otherwise required for commission of an offense, the person engages in conduct constituting a substantial step toward the commission of the offense. A substantial step is any conduct, whether act, omission, or possession, which is strongly corroborative of the actor's purpose to complete the commission of the offense. Factual or legal impossibility of committing the offense is not a defense if the offense could have been committed had the attendant circumstances been as the actor believed them to be, nor is it a defense that the crime attempted was actually perpetrated by the accused.

(b) A person who engages in conduct intending to aid another to commit an offense commits criminal attempt if the conduct would establish the person's complicity under section 8.04.230 were the offense committed by the other person, even if the other is not guilty of committing or attempting the offense.

(c) It is an affirmative defense to a prosecution under this title that defendant abandoned the effort to commit the crime or otherwise prevented its commission, under circumstances manifesting the complete and voluntary renunciation of criminal intent. The renunciation shall not be deemed voluntary where motivated by fear of imminent discovery of or apprehension for the defendant's criminal conduct.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992; adopted as part of Code)

8.04.230 Complicity.

(a) A person is legally accountable as principal for the behavior of another constituting a criminal offense if, with the intent to promote or facilitate the commission of the offense, the person, aids, abets, or advises the other person in planning or committing the offense.

(b) It is not a defense to a prosecution under this title that the other person whose behavior constitutes a criminal offense was not or could not be prosecuted for the offense.

(c) It is an affirmative defense to a prosecution under this title that the defendant prevented or attempted to prevent the commission of the underlying offense, under circumstances manifesting the complete and voluntary renunciation of such person's criminal intent. The renunciation shall not be deemed voluntary where motivated by fear of imminent discovery of or apprehension for the defendant's criminal conduct.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

8.04.240 Charging inchoate offenses.

It shall be sufficient notice of the charging of an inchoate offense where the complaint states the name and section number of the underlying offense. A defendant shall not be acquitted or a complaint dismissed solely on the ground that the prosecution's theory of the defendant's guilt relies upon an inchoate offense which has not been expressly charged.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

*Article III. Offenses Against Persons***8.04.300 Assault.**

(a) *It shall be unlawful to commit assault. A person commits assault by:*

- (1) Knowingly or recklessly causing bodily injury to another person or with criminal negligence cause bodily injury to another person by means of a deadly weapon; or
- (2) With intent to harass, annoy, threaten, or alarm another person whom the actor knows or reasonably should know to be a peace officer, a firefighter, an emergency medical care provider, or an emergency medical service provider, causes such person to come into contact with blood, seminal fluid, urine, feces, saliva, mucus, vomit, or toxic, caustic, or hazardous material by any means, including throwing, tossing, or expelling the fluid or material.

(b) *Emergency medical care provider* means a doctor, intern, nurse, nurse's aide, physician's assistant, ambulance attendant or operator, air ambulance pilot, paramedic, or any other member of a hospital or health care facility staff or security force who is involved in providing emergency medical care at a hospital or health care facility, or in an air ambulance or ambulance as defined in C.R.S. 23-3.5-103(1) and (1.5). (Ord. No. 2041, § 1, 11-10-2016; Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

8.04.310 Menacing; without deadly weapon.

It shall be unlawful for any person to knowingly place or attempt to place another person in fear of imminent serious bodily injury by any threat or physical action; provided, however, that if such is with the use of a deadly weapon, then this section shall not apply.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

8.04.320 Reckless endangerment.

It shall be unlawful for any person to recklessly engage in conduct that creates substantial risk of serious bodily injury to another person.

(Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992)

8.04.330 Harassment.

(a) It shall be unlawful to commit harassment. A person commits harassment if, with intent to harass, annoy, or alarm another person, he or she:

- (1) Strikes, shoves, kicks, or otherwise touches or subjects a person to physical contact;
- (2) In a public place directs obscene language or makes an obscene gesture to or at another person;
- (3) Follows a person in or about a public place;
- (4) Initiates communication with a person, anonymously or otherwise by telephone, telephone network, data network, text message, instant message, computer, computer network, or computer system in a manner intended to harass or threaten bodily injury or property damage, or makes any comment, request, suggestion, or proposal by telephone, or computer, computer network, or computer system that is obscene;
- (5) Makes a telephone call or causes a telephone to ring repeatedly, whether or not a conversation ensues, with no purpose of legitimate conversation;
- (6) Makes repeated communications at inconvenient hours that invade the privacy of another and interfere in the use and enjoyment of another's home or private residence or other private property; or
- (7) Repeatedly insults, taunts, challenges or makes communications in offensively coarse language to another in a manner likely to provoke a violent or disorderly response.

(b) Any act prohibited by subsections (4) and (5) of this section may be deemed to have occurred or to have been committed at the place at which the telephone call, electronic mail, or other electronic communication was either made or received.

(c) As used in this section, unless the context otherwise requires, the term "obscene" means a patently offensive description of ultimate sexual

acts or solicitation to commit ultimate sexual acts, whether or not said ultimate sexual acts are normal or perverted, actual or simulated, including masturbation, cunnilingus, fellatio, anilingus or excretory functions.

(Ord. No. 1980, 2014; Ord. 1545, 2001; Ord. 1211, 1993; Ord. 1142, 1992; Ord. 794, § 1, 1978)

8.04.340 False imprisonment.

It shall be unlawful for any person to knowingly confine or detain another without the other's consent and without proper legal authority. This section shall not apply to a peace officer acting in good faith within the scope of his or her duties or where the person uses force or threat of force to confine or detain a person or where a person confines or detains a person for 12 hours or longer.

(Ord. No. 1980, 2014)

Article IV. Offenses Against Property

8.04.400 Theft.

(a) It shall be unlawful to commit theft. A person commits theft when such person knowingly obtains, retains or exercises control over anything of value of another without authorization or by threat or deception; or receives, loans money by pawn or pledge on, or disposes of anything of value or belonging to another that he or she knows or believes to have been stolen, and:

- (1) Intends to deprive the other person permanently of the use or benefit of the thing of value;
- (2) Knowingly uses, conceals or abandons the thing of value in such a manner as to deprive the other person permanently of its use or benefits;
- (3) Uses, conceals, or abandons the thing of value intending that such use, concealment, or abandonment will deprive the other person permanently of its use or benefit; or

- (4) Demands any consideration to which he or she is not legally entitled as a condition of restoring the thing of value to the other person; or
- (5) Knowingly retains the thing of value more than 72 hours after the agreed-upon time for return in any lease or hire agreement.

(b) This section shall not apply when the aggregate value of the items taken in any one criminal episode exceeds the maximum dollar amount for a class 1 misdemeanor as set forth in C.R.S. 18-4-401(2)(e) as amended, nor where the item taken is a motor vehicle, trade secret or credit device. Further, this section shall not apply where the theft is committed by fraudulent use of a credit device.

(Ord. No. 1980, 2014; Ord. 1801, § 1, 2008; Ord. 1142, 1992; Ord. 981, § 1, 1983)

8.04.410 Shoplifting.

(a) It shall be unlawful to commit the crime of shoplifting. A person commits the crime of shoplifting when such person knowingly takes possession of any un-purchased goods, wares, or merchandise owned or held by and offered or displayed for sale by any store or mercantile establishment, with the intention of converting such goods, wares or merchandise to his or her own use, without paying the purchase price thereof.

(b) If any person willfully conceals un-purchased goods, wares, or merchandise owned or held by and offered or displayed for sale by any store or any other mercantile establishment, whether the concealment is on his or her self or otherwise and whether on or off the premises of said store or mercantile establishment, such concealment constitutes prima facie evidence that the person intended to commit the crime of shoplifting.

(c) If any person triggers an alarm or a theft detection device as defined in C.R.S. 18-4-417(2), as amended, or conceals upon his or her person or otherwise carries away any un-purchased goods, wares, or merchandise held or owned by any store or mercantile establishment, the merchant or any employee thereof or any peace

officer, acting in good faith and upon probable cause based upon reasonable grounds therefor, may detain and question such person, in a reasonable manner for the purpose of ascertaining whether the person has committed theft. Such questioning of a person by a merchant, merchant's employee, or peace or police officer does not render the merchant, merchant's employee, or peace officer civilly or criminally liable for slander, false arrest, false imprisonment, malicious prosecution, or unlawful detention.

(d) This section shall not apply where the value of the un-purchased goods, wares or merchandise exceeds the maximum dollar amount for a class 1 misdemeanor as set forth in C.R.S. 18-4-401(2)(e), as amended. (Ord. No. 1980, 2014; Ord. 1801, § 4, 2008; Ord. 1142, 1992; Ord. 981, § 1, 1985)

8.04.415 Theft detection devices prohibited.

(a) It shall be unlawful for any person to knowingly manufacture, distribute, or sell a theft detection shielding device or a theft detection deactivating device with the knowledge that some person intends to use the device in the commission of an offense involving theft.

(b) It shall be unlawful for any person to possess a theft detection shielding device or a theft detection deactivating device with the intent to use the device possessed, or with the knowledge that some person intends to use the device possessed, in the commission of an offense involving theft.

(c) It shall be unlawful for any person to knowingly deactivate or remove a theft detection device or any component thereof in any store or mercantile establishment without authorization prior to purchase.

(d) As used in this section:

- (1) "Theft detection deactivating device" means any tool, instrument, mechanism, or other article adapted, designed, engineered, used, or operated to inactivate, incapacitate, or remove a theft detection device without authorization. "Theft detection deactivating device" includes, but is

not limited to, jumper wires, wire cutters, and electronic article surveillance removal devices.

- (2) "Theft detection device" means an electronic or magnetic mechanism, machine, apparatus, tag, or article designed and operated for the purpose of detecting the unauthorized removal of merchandise from a store or mercantile establishment.

- (3) "Theft detection shielding device" means any tool, instrument, mechanism, or article adapted, designed, engineered, used, or operated to avoid detection by a theft detection device during the commission of an offense involving theft. "Theft detection shielding device" includes, but is not limited to, foil-lined or otherwise modified clothing, bags, purses, or containers capable of and for the sole purpose of avoiding detection devices.

(Ord. No. 2041, § 2, 11-10-2016)

8.04.420 Criminal mischief.

(a) It shall be unlawful for any person to knowingly damage the real or personal property of one or more other persons, including property owned by the person jointly with another person, or property owned by the person in which another person has a possessory or proprietary interest.

(b) This section shall not apply where the aggregate damage to the real or personal property exceeds the maximum dollar amount for a class 1 misdemeanor, as set forth in C.R.S. 18-4-501, as amended.

(Ord. No. 1980, 2014; Ord. 1801, § 7, 2008; Ord. 1142, 1992; Ord. 794, § 7, 1978)

8.04.430 Tampering.

(a) It shall be unlawful for any person to tamper with the property of another with the intent to cause injury, inconvenience, or annoyance to that person or to another or for any person to knowingly make an unauthorized connection with property of a utility.

(b) For the purposes of this section "tamper" means to interfere with something improperly, to meddle with, or to make unwarranted alterations in its condition.

(Ord. No. 1980, 2014; Ord. 1820, 2008)

8.04.440 Joyriding.

(a) It shall be unlawful and constitute joyriding for any person to drive or take any motor vehicle without the consent of the owner or lawful possessor thereof, with the intent of temporarily depriving the owner or possessor of the use of the same, or temporarily making use thereof.

(b) If the person who in the course of so driving or taking the motor vehicle does one or more of the following, joyriding has not occurred:

- (1) Retains possession or control of the motor vehicle for more than 24 hours;
- (2) Attempts to alter or disguise or alters or disguises the appearance of the motor vehicle;
- (3) Attempts to alter or remove or alters or removes the vehicle identification number;
- (4) Uses the motor vehicle in the commission of a crime other than a traffic offense;
- (5) Causes \$500.00 or more property damage in the exercise or control of the motor vehicle;
- (6) Causes bodily injury to another person while he is in the exercise or control of the motor vehicle;
- (7) Removes the motor vehicle from this state for a period of time in excess of 12 hours; or
- (8) Unlawfully attaches or otherwise displays in or upon the motor vehicle license plates other than those officially issued for the motor vehicle.

(Ord. No. 1980, 2014; Ord. 1211, 1993)

8.04.450 Trespass.

It shall be unlawful for any person without legal authority to enter or remain in or upon any premises.

(Ord. No. 1980, 2014; Ord. 1442, 1999; Ord. 1142, 1992; Ord. 973, § 1, 1984)

8.04.460 Fires prohibited.

(a) It shall be unlawful for any person to knowingly or recklessly start or maintain a fire or cause an explosion on his or her own property or that of another, including any property owned, leased or controlled by the city, such as any park, trail, golf course, athletic field, recreation area, open space, or streets or rights-of-way where such fire places another in danger of death or serious bodily injury or places any building or occupied structure in danger of damage or destruction.

(b) It shall be unlawful for any person to place, erect, build or construct a fireplace, stove or other fire container on any property owned, leased or controlled by the city, including, but not limited to, any park, trail, golf course, athletic field, recreation area, open space, or streets or rights-of-way except as authorized by the city.

(c) For the purposes of this section:

- (1) *Building* means any structure which has the capacity to contain and is designed for the shelter of persons, animals, or property, and includes a trailer or other vehicle or place adapted for overnight accommodations of persons or animals, or for carrying on of business therein, whether or not a person or animal is actually present.
- (2) *Occupied structure* means any area, place, facility or enclosure which, for particular purposes, may be used by persons or animals upon occasion, whether or not included within the definition of building set forth in this section, and which in fact is occupied by a person or animal and known by the defendant to be occupied at the time of the offense.

(Ord. No. 1980, 2014)

Article V. Offenses Against the Public Peace and Safety and Disruption of Communications

8.04.500 Disorderly conduct.

(a) It shall be unlawful for any person to commit disorderly conduct. A person commits disorderly conduct when a person intentionally, knowingly, or recklessly:

- (1) Makes a coarse and obviously offensive utterance, gesture, or display in a public place and the utterance, gesture, or display tends to incite an immediate breach of the peace;
- (2) Makes unreasonable noise in a public place or near a private residence that the person has no right to occupy;
- (3) Fights with another in a public place except in an amateur or professional contest of athletic skill;
- (4) Not being a peace officer, discharges a firearm in a public place except when engaged in lawful target practice or hunting; or
- (5) Not being a peace officer, displays a deadly weapon, displays any article used or fashioned in a manner to cause a person to reasonably believe that the object is a deadly weapon, or represents verbally or otherwise that he or she is armed with a deadly weapon in a public place in a manner calculated to alarm.

(b) It is an affirmative defense to prosecution under subsection (a)(1) of this section that the person had significant provocation for his or her abusive or threatening conduct.

(Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.510 Obstructing highway or other passageway.

(a) It shall be unlawful to obstruct a highway or other passageway. A person commits the crime of obstruction of a highway or other passageway, when any person:

- (1) If without legal privilege, to intentionally, knowingly, or recklessly: obstruct a highway, street, roadway, sidewalk,

railway, transit way, waterway, building entrance, elevator, escalator, aisle, stairway, or hallway to which the public or a substantial group of the public has access or any other place used for the passage or conveyance of persons or vehicles, whether the obstruction arises from defendant's acts alone or from his or her acts and the acts of others: or

- (2) Disobeys a reasonable request or order to move issued by a person the individual knows to be a peace officer, firefighter or person with authority to control the use of the premises to prevent obstruction of a highway or passageway.

(b) For purposes of this section, "obstruct" or "obstruction" means to render impassable, or to render passage unreasonably inconvenient or hazardous.

(Ord. No. 1980, 2014)

8.04.520 Reserved.

Editor's note—Sec. 3 of Ord. No. 2041, adopted Nov. 10, 2016 repealed § 8.04.520, which pertained to aggressive begging prohibited and derived from Ord. No. 1980, 2014.

8.04.530 Loitering.

(a) *Prohibited acts.*

- (1) It shall be unlawful for any person to loiter with the intent to violate any provision of this title, or the Colorado Criminal Code.
- (2) It shall be unlawful for any person to loiter with intent to interfere with or disrupt a school program or with intent to interfere with or endanger school children in a school building or on school grounds or within 100 feet of school grounds when persons under the age of 18 years are present in the building or on the grounds, where such person does not have any reason or relationship involving custody for, or responsibility for any student or any other specific, legitimate reason for being present at such location, and has been asked to leave by a school administrator or his or her representative or by a peace officer.

(b) *Reasonable grounds; duty of peace officer.*

(1) Among the circumstances which may be considered in determining whether reasonable grounds for belief have arisen that such person is loitering is the fact that such person:

- a. Takes flight upon appearance of a peace officer;
- b. Refuses to identify him or herself;
- c. Manifestly endeavors to conceal him or herself or any object;
- d. Not being duly authorized security personnel or a peace officer, systematically checks the means to access to buildings or vehicles in the immediate area; or
- e. Maintains a continuous presence in close proximity to a place where a reasonable peace officer would conclude that such person's activity manifests a high probability of activity or intention to engage in activity in violation of this title, or any criminal provision of the Colorado Criminal Code.

(2) Unless flight by the person or other circumstances make it impractical, a peace officer shall, prior to any arrest for an offense under this section, afford the person an opportunity to dispel any alarm otherwise warranted, or explain any circumstances giving rise to reasonable grounds for belief that such person is loitering by requesting him or her to:

- a. Identify him or herself; and
- b. Explain his or her presence and conduct.

(c) *Standard for conviction.* No person shall be convicted of an offense under subsection (a) of this section if the peace officer did not comply with subsections (b)(1) and (2) of this section, or if at trial, that the explanation of presence and conduct given by the defendant was determined truthful by the trier of fact, and, under the circumstances, would have dispelled the

reasonableness of the peace officer's belief that the defendant was engaging in unlawful activity or would have disclosed a lawful purpose.

(Ord. No. 2014; Ord. 1142, 1992; Ord. 639, § 1, 1971)

8.04.540 Curfew.

(a) It shall be unlawful for any minor (person under the age of 18 years) to loiter or remain upon any public street, alley or other public place after the time of 11:00 p.m. or prior to the time of 5:00 a.m.; provided, however, that on Friday and Saturday the prohibited hours shall be from 12:00 midnight to 5:00 a.m.

(b) It shall be unlawful for any parent, legal guardian or other person 21 years of age or older having care and custody of such minor to allow such minor to loiter or remain upon any public street, alley or other public place after the time of 11:00 p.m. or prior to the time of 5:00 a.m.; provided, however, that on Friday and Saturday the prohibited hours shall be from 12:00 midnight to 5:00 a.m.

(c) It shall be an affirmative defense to the offenses described in subsections (a) and (b) of this section that the minor is:

- (1) Accompanied by a parent or legal guardian;
- (2) Is traveling to or from a place of employment or engaged in lawful employment without a detour or otherwise stopping;
- (3) Is attending or traveling to or from a supervised activity sponsored by a school, civic, religious or other recognized public organization;
- (4) Involved in the exercise of First Amendment rights protected by the United States and/or state constitutions;
- (5) Engaged in interstate travel;
- (6) On the sidewalk abutting the minor's parents' or legal guardian's residence;
- (7) Involved in an emergency situation. For the purposes of this section, the term "emergency" shall mean those situations

where life or property is in imminent danger and the prompt summoning of aid or escape is essential; or

- (8) Married or had the disabilities of being a minor lawfully removed.

(Ord. No. 1980, 2014; Ord. 1525, 2000; Ord. 1212, 1993)

8.04.550 Hindering transportation.

It shall be unlawful for any person to hinder transportation. A person commits the offense of hindering transportation when such person knowingly and without lawful authority forcibly stops and hinders the operation of any vehicle used in providing transportation services of any kind to the public or to any person or entity.

(Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.560 Throwing dangerous missiles.

It shall be unlawful for any person to willfully, maliciously, or recklessly throw, shoot or project any stone, arrow, pellet, dart, ball bearing, or other object at or against any person, animal, building, structure, personal property or fixture or vehicle of another, except that the provisions of this section shall not apply to persons throwing, projecting, or shooting any other object at any animal in order to protect his or her person or property or the person or property of another from physical injury, or for recreational purposes in such a manner that no unreasonable risk of harm is presented to any person, or to the real or personal property of any person.

(Ord. No. 1980, 2014; Ord. 1714, 2005; Ord. 1142, 1992)

8.04.570 Hunting prohibited within city limits.

No person shall hunt any wild animal within city limits.

- (a) Nothing herein shall be deemed to affect or impair the authority of the Colorado Parks and Wildlife to manage wildlife.
- (b) Nothing herein shall be deemed to affect or impair the authority of any enforcement officer of the law enforcement agencies of the United States government,

city, county, or the state, or any sheriff or his or her deputies, code enforcement officer, or any peace officer as defined by state law, or anyone contracted by such agency as shall be necessary in the proper discharge of his or her duties, or as otherwise permitted by law.

- (c) The term "hunt" as used in this section shall mean to pursue, stalk, capture, or lie in wait for, with the intent to shoot, wound or kill wildlife for sport or food. "Hunt" does not include stalking, searching, or lying in wait for wildlife by an unarmed person solely for the purpose of watching or taking photographs of wildlife.

(Ord. No. 2238, § 2, 5-14-2024)

8.04.580 Obstruction of telephone service.

It shall be unlawful for any person to obstruct telephone service. A person commits obstruction of telephone service if the person knowingly prevents, obstructs, or delays, by any means whatsoever, the sending, transmission, conveyance, or delivery in this state of any message, communication, or report by or through any telephone line, wire, cable, or other facility or any cordless, wireless, electronic, mechanical or other device.

(Ord. No. 1980, 2014)

8.04.590 Computer crimes.

(a) As used in this section, unless the context otherwise requires:

Authorization means the express consent of a person which may include an employee's job description to use said person's computer, computer network, computer program, computer software, computer system, property, or services as those terms are defined in this section.

Computer means an electronic, magnetic, optical, electromagnetic, or other data processing device which performs logical, arithmetic, memory, or storage functions by the manipulations of electronic, magnetic, radio wave, or light wave impulses, and includes all input, output, processing, storage, software, or communication facilities which are connected or related to or operating in conjunction with such a device.

Computer network means the interconnection of communication lines (including microwave or other means of electronic communication) with a computer through remote terminals, or a complex consisting of two or more interconnected computers.

Computer program means a series of instructions or statements, in a form acceptable to a computer, which permits the functioning of a computer system in a manner designed to provide appropriate products from such computer system.

Computer software means computer programs, procedures, and associated documentation concerned with the operation of a computer system.

Computer system means a set of related, connected or unconnected, computer equipment, devices, and software.

Damage includes, but is not limited to, any impairment to the integrity of availability of information, data, computer program, computer software, or services on or via a computer, computer network, or computer system or part thereof.

Exceed authorized access means to access a computer with authorization and to use such access to obtain or alter information, data, computer program, or computer software that the person is not entitled to so obtain or alter.

Financial instrument means any check, draft, money order, certificate of deposit, letter of credit, bill of exchange, credit card, debit card, or marketable security.

Property includes, but is not limited to, financial instruments, information, including electronically produced data, and computer software and programs in either machine or human readable form, and any other tangible or intangible item of value.

Services includes, but is not limited to, computer time, data processing, and storage functions.

To use means to instruct, communicate with, store data in, retrieve data from, or otherwise make use of any resources of a computer, computer system, or computer network.

(b) *It shall be unlawful for any person to commit computer crime.* A person commits computer crime if the person knowingly:

- (1) Accesses a computer, computer network, or computer system or any part thereof without authorization; exceeds authorized access to a computer, computer network, or computer system or any part thereof; or uses a computer, computer network, or computer system or any part thereof without authorization or in excess of authorized access; or
- (2) Accesses any computer, computer network, or computer system, or any part thereof for the purpose of devising or executing any scheme or artifice to defraud; or
- (3) Accesses any computer, computer network, or computer system, or any part thereof to obtain, by means of false or fraudulent pretenses, representations, or promises, money; property; services; passwords or similar information through which a computer, computer network, or computer system or any part thereof may be accessed; or other thing of value; or
- (4) Accesses any computer, computer network, or computer system, or any part thereof to commit theft; or
- (5) Without authorization or in excess of authorized access alters, damages, interrupts, or causes the interruption or impairment of the proper functioning of, or causes any damage to, any computer, computer network, computer system, computer software, program, application, documentation, or data contained in such computer, computer network, or computer system or any part thereof; or
- (6) Causes the transmission of a computer program, software, information, code, data, or command by means of a computer, computer network, or computer system or any part thereof with the intent to cause damage to or to cause the interruption or impairment of the proper functioning of or that actually causes damage to or the interruption or impairment of the

proper functioning of any computer, computer network, computer system, or part thereof; or

- (7) Uses or causes to be used a software application that runs automated tasks over the internet to access a computer, computer network, or computer system, or any part thereof, that circumvents or disables any electronic queues, waiting periods, or other technological measure intended by the seller to limit the number of event tickets that may be purchased by any single person in an on-line event ticket sale as defined in C.R.S. 6-1-720 as amended.

(c) This section shall not apply where the loss, damage, value of services, or thing of value taken or cost of restoration or repair in any one criminal episode exceeds the maximum dollar amount for a class one misdemeanor as set forth in C.R.S. 18-4-401(2)(e), as amended.

- (1) If computer crime is committed to obtain event tickets, each ticket purchased shall constitute a separate offense.
 - (2) Paragraph (7) of subsection (b) of this section shall not prohibit the resale of tickets in a secondary market by a person other than the event sponsor or promoter.
- (Ord. No. 1980, 2014)

Article VI. Offenses Related to Governmental Operations

8.04.600 Resisting arrest.

(a) It shall be unlawful for any person to knowingly prevent or attempt to prevent any police officer acting under color of his or her official authority from effecting an arrest of the actor or another by:

- (1) Using or threatening to use physical force or violence against the police officer or another;
- (2) Using any other means which creates a substantial risk of causing bodily injury to the police officer or another.

(b) It is no defense to a prosecution under this section that the police officer was attempting to make an arrest which in fact was unlawful, if the officer was acting under color of his or her official authority, and was not resorting to unreasonable or excessive force giving rise to the right of self-defense. A police officer acts under color of his or her official authority when, in the regular course of assigned duties, he or she is called upon to make, and does make, a judgment in good faith based upon surrounding facts and circumstances that an arrest should be made by him or her.

(Ord. No. 1980, 2014; Ord. 1142, 1992; Ord. 794, § 6, 1978)

8.04.610 Obstruction of peace officer, firefighter, emergency medical services provider, rescue specialist, code enforcement officer, park ranger or volunteer.

(a) It shall be unlawful for any person to obstruct a peace officer, firefighter, emergency medical services provider, rescue specialist, parking official, code enforcement officer, park ranger or volunteer when, by using or threatening to use violence, force, physical interference, or an obstacle, such person knowingly obstructs, impairs or hinders the enforcement of any penal law or the preservation of the peace by a peace officer, acting under color of his or her official authority; knowingly obstructs, impairs, or hinders the prevention, control, or abatement of fire by a firefighter, acting under color of his or her official authority; knowingly obstructs, impairs, or hinders the administration of medical treatment or emergency assistance by an emergency medical service provider or rescue specialist, acting under color of his or her official authority; or knowingly obstructs, impairs, or hinders the administration of emergency care or emergency assistance by a volunteer, acting in good faith to render such care or assistance without compensation at the place of an emergency or accident.

(b) To assure that animals used in law enforcement or fire prevention activities are protected from harm, a person commits obstructing a peace officer or firefighter when, by using or

threatening to use violence, force, physical interference, or an obstacle, he or she knowingly obstructs, impairs or hinders any such animal.

(c) It is not a defense to a prosecution under this section that the peace officer was acting in an illegal manner, if the peace officer was acting under color of his or her official authority. A peace officer acts "under color of his or her official authority" if, in the regular course of assigned duties, he or she makes a judgment in good faith based on surrounding facts and circumstances that he or she must act to enforce the law or preserve the peace.

(d) For purposes of this section, unless the context otherwise requires:

- (1) "Rescue specialist" means a member of a public or private rescue agency, whether that person is a volunteer or receives compensation for services rendered as such rescue specialist.

(Ord. No. 1980, 2014; Ord. 1142, 1992; Ord. 794, § 4, 1978)

8.04.620 False reporting to authorities.

(a) It shall be unlawful for any person to knowingly:

- (1) Cause by any means, including, but not limited to, activation, a false alarm of fire or other emergency or a false emergency exit alarm to sound or to be transmitted to or within a fire department, ambulance service, law enforcement agency, or any other government agency responsible for emergencies involving danger to life or property; or
- (2) Prevent by any means, including, but not limited to, deactivation, a legitimate fire alarm, emergency exit alarm, or other emergency alarm from sounding or from being transmitted to or within a fire department, ambulance service, law enforcement agency, or any other government agency responsible for emergencies involving danger to life or property; or
- (3) Make a report or knowingly cause the transmission of a report to law enforce-

ment authorities of a crime or other incident within their official concern when he or she knows that it did not occur; or

- (4) Make a report or knowingly cause the transmission of a report to law enforcement authorities to furnish information relating to an offense or other incident within their official concern when he or she knows that he or she has no such information or knows that the information is false; or
- (5) Knowingly provide false identifying information to law enforcement authorities.

(b) For purposes of this section, "identifying information" means a person's name, address, birth date, social security number or driver's license or Colorado identification number. (Ord. No. 1980, 2014; Ord. 1142, 1992; adopted as part of Code)

8.04.630 Refusing to aid a police officer.

It shall be unlawful for any person 18 years of age or older, upon command by a person known to him or her to be a police officer to unreasonably refuse or fail to aid the police officer in effecting an arrest, securing the custody of an arrestee, or preventing the commission by another of any offense.

(Ord. No. 1980, 2014)

8.04.640 Impersonation of police officer or firefighter.

(a) It shall be unlawful, except upon the authorization of the city manager or the manager's designee for any person other than a police officer or firefighter of the city to wear the uniform or any insignia of a police officer or firefighter of the city or any other insignia or any colorable imitation of such adopted and worn by police officers or firefighters of the city.

(b) It shall be unlawful for any person other than a police officer or firefighter of the city, to, in any manner, represent him or herself to another as a police officer or firefighter of the city.

(Ord. No. 1980, 2014; Ord. 1142, 1992; adopted as part of Code)

8.04.650 Counterfeit insignias.

It shall be unlawful for any person to counterfeit, imitate, or cause to be counterfeited, or imitated, any insignia of office used by the police or fire department.
(Ord. No. 1980, 2014; Ord. 1142, 1992; adopted as part of Code)

8.04.670 Impersonation of city official, employees.

It shall be unlawful for any person not a city official or city employee to falsely represent him or herself to be a city official or an employee of the city or to perform any act in the false capacity as a city official or employee.
(Ord. No. 1980, 2014; Ord. 1142, 1992; adopted as part of Code)

8.04.680 Unlawful interference—Public buildings.

(a) It shall be unlawful for any person to so conduct him or herself at or in any public building owned, operated or controlled by the city, the state or any of its political subdivisions, as to willfully deny to any public official, public employee or any invitee on such premises, the lawful rights of such official, employee or invitee to enter, use the facilities of or leave any such public building.

(b) It shall be unlawful for any person at or in any such public building to willfully impede any public official or employee in the lawful performance of duties or activities through the use of restraint, coercion or intimidation or by force and violence or threat thereof.

(c) It shall be unlawful for any person to willfully refuse or fail to leave any such public building upon being requested to do so by an administrative officer or such officer's designee charged with maintaining order in such public building, if such person has committed, is committing, threatens to commit or incites others to commit any act which did, or would if completed, disrupt, impair, interfere with or obstruct the lawful missions, processes, procedures or functions being carried on in such public building.

(d) It shall be unlawful for any person at any meeting or session conducted by any judicial, legislative or administrative body or official at or in any public building to willfully impede, disrupt or hinder the normal proceedings of such meeting or session by any act of intrusion into the chamber or other such areas designated for the use of the body of official conducting such meeting or session, or by any act designed to intimidate, coerce or hinder any member of such body or official engaged in the performance of the duties of such meeting or session.

(e) It shall be unlawful for any person, by any act of intrusion into the chamber or other areas designated for the use of any executive body or official act or in any public building, to willfully impede, disrupt or hinder the normal proceedings of such body or official.
(Ord. No. 1980, 2014; Ord. 1142, 1992; Ord. 737, § 2, 1975)

8.04.690 Interference with staff, faculty or students of educational institutions.

(a) It shall be unlawful for any person on or near the premises, or facilities of any educational institution, to willfully deny to students, school officials, employees, and invitees:

- (1) Lawful freedom of movement on the premises;
- (2) Lawful use of the property or facilities of the institution;
- (3) The right of lawful ingress and egress to the institution's physical facilities.

(b) It shall be unlawful for any person on the premises of any educational institution, or at or in any building or other facility being used by any educational institution, to willfully impede the staff or faculty of such institution in the lawful performance of their duties or willfully impede a student of the institution in the lawful pursuit of his educational activities through the use of restraint, abduction, coercion, or intimidation or when force and violence are present or threatened.

(c) It shall be unlawful for any person to willfully refuse or fail to leave the property of or any building, or other facility, used by any educational institution, upon being requested to do so by the chief administrative officer, his designee charged with maintaining order on the school premises and in its facilities, or a dean of such educational institution, if such person is committing, threatens to commit, or incites others to commit any act which would disrupt, impair, interfere with, or obstruct the lawful missions, processes, procedures, or functions of the institution.

(d) It shall be an affirmative defense that the defendant was exercising his or her right to lawful assembly and peaceful and orderly petition for the redress of grievances, including any labor dispute between an educational institution and its employees, any contractor or subcontractor, or any employee thereof.

(e) It shall be unlawful for any person to knowingly make or convey to another person a credible threat to cause death or to cause bodily injury with a deadly weapon against:

- (1) A person the actor knows or believes to be a student, school official, or employee of an educational institution; or
- (2) An invitee who is on the premises of an educational institution;
- (3) For purposes of this subsection, "credible threat" means a threat or physical action that would cause a reasonable person to be in fear of bodily injury with a deadly weapon or death.

(Ord. No. 1980, 2014)

8.04.695 Obstructing government operations.

(a) It shall be unlawful for any person to intentionally obstruct, impair, or hinder the performance of a governmental function by a public servant, by using or threatening to use violence, force, or physical interference or obstacle.

(1) It shall be an affirmative defense that:

- a. The obstruction, impairment, or hindrance was of unlawful action by a public servant; or
- b. The obstruction, impairment, or hindrance was of the making of an arrest; or
- c. The obstruction, impairment, or hindrance of a governmental function was by lawful activities in connection with a labor dispute with the government.

(Ord. No. 1980, 2014)

Article VII. Offenses Against Public Decency

8.04.700 Public indecency.

(a) It shall be unlawful for any person knowingly to perform any of the following in a public place or place within public view:

- (1) An act of sexual intercourse; or
- (2) A lewd exposure of a person's intimate parts, which means the external genitalia, or the perineum, or the anus, or the buttocks, or the pubis, or a woman's breast done with the intent to arouse or to satisfy the sexual desire of any person; or
- (3) A lewd fondling or caress of the body of another person; or
- (4) A knowing exposure of the person's genitals to the view of a person under circumstances in which such conduct is likely to cause affront or alarm to the other person; or
- (5) Urination or defecation in any public or private place other than in or upon a toilet facility provided for such purpose.

(b) It shall be an affirmative defense to a prosecution under this section:

- (1) That a person who has exposed her breast had the consent or assent of all persons who viewed or may have viewed such act. Persons who utilize public places or patronize businesses where they know or

should know that such will be exposed shall be deemed to have given their assent to such conduct.

- (2) That the person exposing her breast was nursing an infant.
- (Ord. No. 1980, 2014; Ord. 1828, 2008; Ord. 1142, 1992; adopted as part of Code)

8.04.710 Prostitution prohibited.

It shall be unlawful for any person to engage in prostitution. A person engages in prostitution when the person performs, offers, or agrees to perform any act of sexual intercourse, fellatio, cunnilingus, masturbation or anal intercourse with any person other than such person's spouse in exchange for money or other thing of value. (Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.720 Soliciting for prostitution.

(a) It shall be unlawful for any person to solicit for prostitution. A person solicits for prostitution if the person:

- (1) Solicits another for the purpose of prostitution; or
- (2) Arranges or offers to arrange a meeting of persons for the purpose of prostitution; or
- (3) Directs another to a place knowing such direction is for the purpose of prostitution.

(Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.730 Pandering.

It shall be unlawful for any person to pander. A person panders when, for money or other thing of value, the person knowingly arranges a situation in which a person may practice prostitution. (Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.740 Keeping a place of prostitution.

(a) It shall be unlawful for any person to keep a place of prostitution. Any person who has or exercises control over the use of any premises

which offers seclusion or shelter for the practice of prostitution, keeps a place for prostitution if the person:

- (1) Knowingly grants or permits the use of such place for the purpose of prostitution; or
- (2) Permits the continued use of such place for the purpose of prostitution after becoming aware of facts or circumstances from which the person should reasonably know that the place is being used for purposes of prostitution.

(Ord. 1142, 1992)

8.04.750 Patronizing a prostitute.

(a) It shall be unlawful for any person to patronize a prostitute. Any person who performs any of the following patronizes a prostitute:

- (1) Engages in an act of sexual intercourse, fellatio, cunnilingus, masturbation or anal intercourse with a prostitute; or
- (2) Enters or remains in a place of prostitution with the intent to engage in an act of sexual intercourse, fellatio, cunnilingus, masturbation or anal intercourse with a prostitute.

(Ord. No. 1980, 2014; Ord. 1142, 1992)

Article VIII. Offenses Involving Drugs, Alcohol

Division 1. Drug Offenses

8.04.800 Possession of marijuana.

(a) For the purposes of this article, the following words and phrases shall mean as set forth unless the context specifically specifies otherwise:

Marijuana means all parts of the plant of the genus *cannabis* whether growing or not, the seeds thereof, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or its resin, including marijuana concentrate. Marijuana does not include industrial hemp, nor does it include fiber produced from the stalks, oil, or cake made from the seeds of the plant, sterilized seed of the plant, which is

incapable of germination, or the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink, or other product.

Marijuana products means concentrated marijuana products and marijuana products that are comprised of marijuana and other ingredients and are intended for use or consumption, such as, but not limited to, edible products, ointments and tinctures.

Openly means occurring or existing in a manner that is unconcealed, undisguised or obvious.

Publicly means occurring or existing in a public place, or occurring or existing in any outdoor location where the use or consumption of marijuana is clearly observable by the naked eye from a public place.

Public place means a place to which the public or a substantial number of the public have access, and includes, but is not limited to, streets, sidewalks, and highways, transportation and recreation facilities, schools, places of amusement, parks, playgrounds and the common areas of public and private buildings or facilities.

(b) It shall be unlawful for any person to possess one ounce or less of marijuana or marijuana products unless such person is 21 years of age or older or otherwise permitted by law to possess marijuana or marijuana products.

(c) It shall be unlawful for any person, except as specifically authorized by law to:

- (1) Sell one ounce or less of marijuana or marijuana products to any person; or
 - (2) To permit the transfer of marijuana or marijuana products with or without remuneration to any person under the age of 21 years; or
 - (3) To permit any person under the age of 21 years to purchase, possess, use, transport, grow or consume marijuana or marijuana products.
- (d) It shall be unlawful for any person to:
- (1) Openly and publicly consume marijuana; or

- (2) To possess, use, sell, grow, distribute, display or consume marijuana or marijuana products upon or within any park, athletic field, play ground, recreation area, golf course, aquatic center, camp ground, open space, trail, parking lot, or building or facility, owned, occupied or controlled by the city.

(e) It shall be unlawful for any person to consume, use, display, transfer or distribute marijuana within 1,000 feet of any public or private elementary school, middle school, junior high school or high school when such person is upon any street, sidewalk or other property owned or controlled by the city.

(f) It shall not be an offense under subsection (d)(1) of this section if the consumption of marijuana is occurring on private residential property behind the rear building line of the principal structure and the person consuming the marijuana is:

- (1) An owner of the property; or
- (2) A person who has a leasehold interest in the property; or
- (3) Any person who has been granted express or implied permission to consume marijuana on the property by the owner or lessee of the property.

(Ord. 1142, 1992; Ord. 1110, § 2, 1991; Ord. 1092, §§ 20, 21, 1990; Ord. 841, § 1, 1980)

8.04.810 Open marijuana container—Motor vehicle prohibited.

(a) For the purposes of this section, the following words and phrases shall mean as set forth below unless otherwise specified:

Motor vehicle shall mean a vehicle driven or drawn by mechanical power and manufactured primarily for use on public highways but does not include a vehicle operated exclusively on a rail or rails.

Motor home means a vehicle designed to provide temporary living quarters and which is built into an integral part of, or a permanent attachment to, a motor vehicle chassis or van.

Open marijuana container means a receptacle or marijuana accessory that contains any amount of marijuana, and:

- (1) That is open or has a broken seal;
- (2) The contents of which are partially removed; and
- (3) There is evidence that marijuana has been consumed within the motor vehicle.

Passenger area means the area designed to seat the driver and passengers, including seating behind the driver, while a motor vehicle is in operation and any area that is readily accessible to the driver or a passenger while in his or her seating position, including, but not limited to, the glove compartment.

Trailer coach means a wheeled vehicle having an overall length, excluding towing gear and bumpers, of not less than 26 feet, without motive power, that is designed and generally and commonly used for occupancy by persons for residential purposes, in temporary locations, and that may occasionally be drawn over the public highways by a motor vehicle and is licensed as a vehicle.

(b) Except as otherwise permitted in paragraph (1) of this subsection (b), a person while in the passenger area of a motor vehicle that is on a public street or roadway, or the right-of-way of a public street or roadway may not knowingly:

- (1) Use or consume marijuana; or
- (2) Have in his or her possession an open marijuana container.

(c) The provisions of this section shall not apply to:

- (1) Passengers, other than the driver or a front seat passenger, located in the passenger area of a motor vehicle designed, maintained, or used primarily for the transportation of persons for compensation;
- (2) The possession by a passenger, other than the driver or a front seat passenger, of an open marijuana container in the living quarters of a motor home, or trailer coach;

- (3) The possession of an open marijuana container in the area behind the last upright seat of a motor vehicle that is not equipped with a trunk; or
 - (4) The possession of an open marijuana container in an area not normally occupied by the driver of a passenger in a motor vehicle that is not equipped with a trunk.
- (Ord. No. 2041, § 4, 11-10-2016; Ord. No. 1980, 2014)

8.04.820 Drug paraphernalia definitions.

(a) For the purposes of this article, the following words and phrases shall mean as set forth unless the context specifically specifies otherwise:

Controlled substance means a drug, substance or immediate precursor included in Schedules 1 through V, as set forth in the Uniform Controlled Substances Act of 2013 (C.R.S. 18-18-101 et seq.) as same may be amended from time to time.

Drug paraphernalia means all equipment, products, and materials of any kind which are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling or otherwise introducing into the human body a controlled substance. The term "drug paraphernalia" includes, but is not limited to:

- (1) Testing equipment used, intended for use, or designed for use in identifying or analyzing the strength, effectiveness, or purity of controlled substances.
- (2) Scales and balances used, intended for use, or designed for use in weighing or measuring controlled substances.
- (3) Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from or in otherwise cleaning or refining cannabis.
- (4) Blenders, bowls, containers, spoons, and mixing devices used, intended for use, or designed for use in compounding controlled substances.

- (5) Capsules, balloons, envelopes, and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances.
- (6) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances.
- (7) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing cannabis, cocaine, hashish or hashish oil into the human body, such as:
 - a. Metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls;
 - b. Water pipes;
 - c. Carburetion tubes and devices;
 - d. Smoking and carburetion masks;
 - e. Roach clips; defined as objects used to hold burning materials, such as a marijuana cigarette that has become too small or too short to be held in the hand;
 - f. Miniature cocaine spoons and cocaine vials;
 - g. Chamber pipes;
 - h. Carburetor pipes;
 - i. Electric pipes;
 - j. Air driven pipes;
 - k. Chillums;
 - l. Bongs; or
 - m. Ice pipes or chillers.
- (3) "Marijuana accessories," as defined in Section 16 of Article XVIII of the Colorado Constitution and used in this section means any equipment, products, or materials of any kind that are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, composting, manufacturing, compounded, converting, producing, processing, preparing, testing, analyz-

ing, packaging, repackaging, storing, vaporizing, or containing marijuana, or for ingesting, inhaling, or otherwise introducing marijuana into the human body.

- (4) "Drug paraphernalia" does not include marijuana accessories if possessed or used by any person, 21 years of age or older or who is otherwise lawfully permitted to possess or use marijuana.
(Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.830 Possession, manufacture, sale or delivery of drug paraphernalia.

(a) *[Unlawful.]* It shall be unlawful for any person to knowingly possess drug paraphernalia.

(b) *Manufacture, sale, or delivery of drug paraphernalia.* It shall be unlawful for any person to sell or deliver, possess with intent to sell or deliver, manufacture with intent to sell or deliver equipment, products, or materials, knowing that such equipment, products, or materials constitute drug paraphernalia.

(c) *Determination considerations.* In determining whether an object constitutes drug paraphernalia, the court may consider, in addition to all other relevant factors, the following:

- (1) Statements by an owner or by anyone in control of the object concerning its use;
- (2) Proximity of the object to any controlled substance;
- (3) The existence of any residue of controlled substances on the object;
- (4) Direct or circumstantial evidence of the knowledge of an owner, or of anyone in control of the object, or evidence that such person knows that it will be delivered to persons who he knows could use the object to facilitate a violation of this section;
- (5) Instructions, oral or written, provided with the object concerning its use;
- (6) Descriptive materials accompanying the object which explain or depict its use;

- (7) National or local advertising concerning the object's use;
- (8) The manner in which the object is displayed for sale;
- (9) Whether the owner, or anyone in control of the object, is a supplier of like or related items to the community for legal purposes, such as an authorized distributor or dealer of tobacco products;
- (10) The existence and scope of legal uses for the object in the community;
- (11) Expert testimony concerning its use.

(d) *[Evidentiary hearing.]* In the event a case brought pursuant to this section is tried before a jury, the court shall hold an evidentiary hearing on issues raised pursuant to this subsection. (Ord. No. 1980, 2014)

8.04.840 Inhaling toxic vapors.

(a) It shall be unlawful for any person to intentionally smell or inhale the fumes of toxic vapors for the purpose of causing a condition of euphoria, excitement, exhilaration, stupefaction, or dulled senses of the nervous system, or possess, buy, or use any such substance for the purpose of violating or aiding another to violate this section. This section does not apply to the inhalation of anesthesia for medical or dental purposes.

(b) As used in this section, the term "toxic vapors" includes but is not limited to the following substances or products containing such substances: alcohols (methyl, isopropyl, propyl or butyl); aliphatic acetates (ethyl, methyl, propyl, or methyl collective acetate); acetone; benzene; carbon tetrachloride; cyclohexane; freons (freon 11 and freon 12); hexane; methyl ethyl ketone; methyl isobutyl detone; naphtha; perchlorethylene; toluene; trichloroethane; or xylene. Evidence that a container lists one or more of these substances shall be prima facie evidence that the substance in such container contains toxic vapors and emits the fumes thereof. (Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.845 Unlawful use or possession of synthetic cannabinoids or salvia divinorum.

(a) It shall be unlawful for any person to possess or use synthetic cannabinoids or salvia divinorum.

(b) As used in this section, *salvia divinorum* means:

- (1) *Salvia divinorum*, *salvinorin A*, and any part of the plant classified as *salvia divinorum*, whether growing or not, including the seeds thereof, any extract from any part of the plant, and any compound, manufacture, salts, derivative, mixture, or preparation of the plant, its seeds, or its extracts.
- (2) *Synthetic cannabinoids* means any chemical:
 - a. *HU-210*: (6aR, 10aR)-9-(hydroxymethyl)-6, 6-dimethyl-3-(2-methyloctan-2-yl)-6a,7,10,10a-tetrahydrobenzo[c]chromen-1-ol;
 - b. *HU-211*: dexamabinol, (6aS, 10aS)-9-(hydroxymethyl)-6, 6-dimethyl-3-(2-methyloctan-2-yl)-6a, 7, 10, 10a-tetrahydrobenzo[c]chromen-1-ol;
 - c. *JWH-018*: 1-pentyl-3-(1-naphthoyl)indole;
 - d. *JWH-073*: 1-butyl-3-(1-naphthoyl)indole;
 - e. *JWH-081*: 1-pentyl-3-(4-methoxy-1-naphthoyl)indole, also known as 4-methoxynaphthalen-1-yl-(1-pentylindol-3-yl)methanone;
 - f. *JWH-200*: 1-[2-(4-morpholinyl)ethyl]-3-(1-naphthoyl)indole;
 - g. *JWH-250*: 1-pentyl-3-(2-methoxyphenylacetyl)indole, also known as 2-(2-methoxyphenyl)-1-(1-pentylindol-3-yl)ethanone; and
 - h. *CP 47, 497, and homologues*: 2-[(1R, 3S)-3-hydroxycyclohexyl]-5-(2-methyloctan-2-yl)phenol.

(Ord. No. 1980, 2014)

8.04.847 Unlawful use of a controlled substance.

Except as is otherwise provided for offenses concerning marijuana and marijuana concentrate as set forth in C.R.S. 18-18-406 and 406.5 it shall be unlawful for any person to use any controlled substance, as defined by C.R.S. 18-18-102(5), except when it is dispensed by or under the direction of a person licensed or authorized by law to prescribe, administer, or dispense the controlled substance for bona fide medical needs. (Ord. No. 1980, 2014)

8.04.848 Unlawful possession of a controlled substance.

Except as authorized by part 1 of article 42.5 of title 12 C.R.S., part 2 of article 80 of title 27, C.R.S. 18-7-711, or part 2 or 3 of article 18 C.R.S. it is unlawful for any person to knowingly possess any material, compound, mixture, or preparation that contains any quantity of a controlled substance listed in schedule III, IV or V of part 2 of article 80, C.R.S. except for flunitrazepam or ketamine. (Ord. No. 1980, 2014)

Division 2. Alcohol and Tobacco Offenses

8.04.850 Alcohol definitions.

(a) As used within this article the following words shall mean as follows unless the context specifically specifies otherwise:

Alcoholic beverages or alcoholic liquors means malt, vinous, or spirituous liquors; except that "alcoholic beverages" and "alcoholic liquors" shall not include confectionery containing alcohol within the limits prescribed by C.R.S. 25-5-410(l)(i)(II), as amended.

Fermented malt beverage means any beverage obtained by the fermentation of any infusion or decoction of barley, malt, hops, or any similar product or any combination thereof, in water containing not less than one half of one percent and not more than three and two tenths percent alcohol by weight; except that "fermented malt

beverage" shall not include confectionery containing alcohol within the limits prescribed by C.R.S. 25-5-410(1)(i)(II), as amended. (Ord. No. 1980, 2014; Ord. 1142, 1992)

8.04.860 Consumption regulated.

(a) It shall be unlawful for any person to possess an open container of or consume any fermented malt or alcoholic beverages in public, except upon premises licensed or permitted under the provisions of C.R.S. Articles 3, 4, or 5, Title 44, as amended.

(b) For the purpose of this article "open container" means any container which is either opened so that the contents can be removed or upon which the bottle cap seal has been broken.

(c) For the purpose of this section, "in public" means:

- (1) In or upon any public highway, street, alley, walk, parking lot, building, park or other property or place which is owned or leased by the city or other governmental entity, whether in a vehicle or not; and
- (2) In or upon those portions of any private property upon which the public has express or implied license to enter or remain. If such express or implied license is subject to time or conduct restrictions, consumption or prohibited possession of fermented malt alcoholic beverages on such property shall be deemed to be "in public" even if the entry or remaining on the property is in violation of time or conduct restrictions.

(d) For the purposes of this section evidence that a container, or a similar container, if the label is missing or unreadable, lists as contents any fermented malt or alcoholic beverages is prima facie evidence that the substance in such container is fermented malt or alcoholic beverages.

(e) It is an affirmative defense to a charge of violating this section that the owner of the property involved or the owner's authorized agent gave prior express written permission to the accused or to members of the accused group or entity to perform the acts complained of.

(f) The city manager or manager's designee may, as provided below, grant express written permission to persons to consume fermented malt or alcoholic beverages on city owned property for the following special functions: athletic events; artistic events; cultural events; receptions; street closure events; or civic events.

- (1) The city manager shall adopt an administrative directive specifying the city properties or portions thereof upon which fermented malt or alcoholic beverages may be consumed.
- (2) The city manager shall grant such permission to persons applying therefor if, considering the type of function and type of alcohol to be served, the manager finds that:
 - a. The application to the city manager was filed not later than 48 hours prior to the date of the event.
 - b. The time, location and duration of the function are not likely to significantly interfere with public traffic or services, including public safety services.
 - c. The number and concentration of participants at the function are not likely to result in crowds exceeding limitations of the city fire code or create a nuisance resulting in inconvenience to the residents of the surrounding neighborhood.
 - d. Procedures are proposed that are likely to ensure that underage persons and persons under the influence of alcohol will not obtain or consume fermented malt or alcoholic beverages served at the function.
 - e. Procedures are proposed that are likely to secure and supervise the area and the participants during the function.
 - f. The applicant agrees to provide sandwiches and other food services at the location during the time

consumption is permitted in an amount sufficient to serve the persons anticipated to attend.

- g. The applicant agrees to be personally responsible for and provide financial guaranties to ensure the cleaning, trash disposal or repairs necessary as a result of the event for which the permission was granted. The city manager shall determine the amount of required financial guaranty based upon the city facility involved, the duration of the event, the number of persons anticipated to attend, the type of beverage to be served, the failure of the applicant to clean or repair city property in conjunction with past events and the financial resources of the applicant.
 - h. The applicant agrees, to the extent permitted by law, to indemnify and hold harmless the city, its employees and agents for all liability claims arising out of the event and to provide general liability insurance, with minimum liability limits equal to that established by the Colorado Governmental Immunity Act, C.R.S. 24-10-101 et seq., as amended, to guarantee indemnification. The city manager may waive or reduce this insurance requirement if the applicant affirmatively establishes that the risk of liability to the city as a result of the function does not present the city with any significant additional risk of liability.
- (3) The city manager shall deny permission where:
 - a. There is insufficient data presented by the applicant to make the findings required in subsection (f)(2) of this section.
 - b. Approval would be detrimental to the public safety, health, morals, order or welfare by reason of the nature of the event, the likelihood

that the event would create a public nuisance, an unreasonable risk of violence or public disorder or result in the consumption of alcoholic beverages by underage persons or, alternatively, that the proximity of the event to schools or the failure of the applicant to conduct a past event in compliance with this section and the applicable rules and regulations.

- c. Another event has previously been scheduled for the same location on the same date and time.
 - d. The event would unreasonably interfere with normal activities and customary and general use and enjoyment of the facility.
- (4) An applicant who has been denied permission or who claims to be otherwise aggrieved by the city manager's decision concerning an application may make written request to the city manager's office for a hearing on the application. Such request shall be made within seven days of the postmarked date of the city manager's decision. Within ten days of receipt of such a request, the city manager shall designate an independent hearing officer who shall conduct a hearing at which the applicant and the city may present such evidence and information as may be relevant to the application.
- (5) The granting of permission by the city manager under this section does not relieve the applicant from the responsibility of obtaining any license or special permit as may be required by state law or city ordinances.

(g) This section is not intended to create a right of use or possession of city owned or leased property in any person or group; rather, this section relates only to permission to consume malt, vinous or spirituous liquor or fermented malt beverage by an individual or group who otherwise has the lawful right to use or possess city owned property pursuant to city policy.

(Ord. No. 2085, § 5, 8-23-2018; Ord. No. 1980, 2014; Ord. 1142, 1992; Ord. 760, § 1, 1976)

8.04.870 Underage persons alcoholic beverages prohibitions.

(a) It shall be unlawful for any person to sell, serve, give away, dispose of, exchange, deliver, or permit the sale, serving, giving or procuring of any fermented malt or alcoholic beverages to or for any person under the age of 21.

(b) It shall be unlawful for any person under 21 years of age to obtain or attempt to obtain fermented malt or alcoholic beverages by misrepresentation of age or by any other method in any place where fermented malt or alcoholic beverages are sold.

(c) It shall be unlawful for any person under 21 years of age to possess or consume alcoholic or fermented malt beverages. Illegal possession or consumption of alcoholic or fermented malt beverages is a strict liability offense.

(d) It shall be unlawful for any person under the age of 21 to make false statements or to furnish, present or exhibit any fictitious or false registration card, identification card, or note or other document or documents issued to a person other than the person presenting the same, for the purpose of procuring the sale, gift or delivery of fermented malt or alcoholic beverages.

(e) It shall be unlawful for any person under the age of 21 to engage or utilize the services of another person, whether for remuneration or not, to procure for such person under the age of 21 fermented malt or alcoholic beverages.

(f) It shall be unlawful for any person, whether for remuneration or not, knowingly to procure for any person under the age of 21 fermented malt or alcoholic beverages.

(g) As used within this section, the following words shall mean as set forth below unless the context clearly specifies otherwise:

Establishment means a business, firm, enterprise, service or fraternal organization, club, institution, entity, group or residence, and any real property, including buildings and improvements, connected therewith, and shall also include any members, employees and occupants associated therewith.

Possession of alcoholic or fermented malt beverages means that a person has or holds any amount of alcoholic or fermented malt beverages on his/her person, or that a person owns or has custody of, or has alcoholic or fermented malt beverages within his/her immediate presence and control.

Private property means any dwelling and its curtilage which is being used by a natural person or natural persons for habitation and which is not open to the public and privately owned real property which is not open to the public. "Private property" shall not include:

- (1) Any establishment which has or is required to have a liquor license or permit pursuant to C.R.S. Articles 3, 4 or 5, Title 44, as amended, or
- (2) Any establishment which sells alcoholic or fermented malt beverages or upon which alcoholic or fermented malt beverages are sold; or
- (3) Any establishment which leases, rents or provides accommodations to members of the public generally.

(h) It shall be an affirmative defense to the offense described in subsection (c) of this section that the alcohol or fermented malt beverage was possessed or consumed by a person under 21 years of age under the following circumstances:

- (1) While such person was legally upon private property with the knowledge and consent of the owner or legal possessor of such private property and the alcohol or fermented malt beverage was possessed or consumed with the consent of his/her parent or legal guardian who was present during such possession or consumption; or
- (2) When the existence of alcohol or fermented malt beverages in a person's body was due solely to the ingestion of any substance which was manufactured, designed or intended solely for medicinal or hygienic purposes.
 - a. The possession or consumption of alcohol or fermented malt beverages shall not constitute a violation

of this section if such possession or consumption takes place for religious purposes protected by the First Amendment of the United States constitution.

(j) Prima facie evidence of a violation of subsection (c) of this section shall consist of:

- (1) Evidence that the defendant was under the age of 21 years and possessed or consumed alcoholic or fermented malt beverages; or
- (2) Evidence that the defendant was under the age of 21 years and manifested any of the characteristics commonly associated with alcoholic or fermented malt beverage intoxication or impairment.

(k) During any trial for violation of this section, any bottle, can or any other container with labeling indicating the contents of such bottle, can or container shall be admissible into evidence, and the information contained on any label on such bottle, can or other container shall be admissible into evidence and shall not constitute hearsay. A jury or a judge, whichever is appropriate, may consider the information upon such label in determining whether the contents of the bottle, can or other container were composed in whole or in part of alcoholic or fermented malt beverages. A label which identifies the contents of any bottle, can or other container, as "beer," "ale," "malt beverage," "fermented malt beverage," "malt liquor," "wine," "champagne," "whiskey," "gin," "vodka," "tequila," "schnapps," "brandy," "cognac," "liqueur," "cordial," "alcohol," or "liquor" shall constitute prima facie evidence that the contents of the bottle, can, or other container was composed in whole or in part of alcoholic or fermented malt beverages.

(l) In any judicial proceeding concerning a charge under subsection (c) of this section, the court shall take judicial notice of methods of testing a person's blood, breath, saliva, or urine for the presence of alcohol and of the design and operation of certified devices for testing a person's blood, breath, saliva or urine for the presence of alcohol. This subsection shall not prevent the necessity of establishing during a trial that the testing devices were working properly and that

such testing devices were properly operated. Nothing in this subsection shall preclude a defendant from offering evidence concerning the accuracy of testing devices.

(Ord. No. 2085, § 6, 8-23-2018; Ord. No. 1980, 2014; Ord. 1444, § 2, 1999; Ord. 1142, 1992)

8.04.880 Underage person's tobacco restrictions and prohibitions.

(a) *Definitions.* For purposes of this section, the following words shall have the following meanings unless the context specifies otherwise:

- (1) *Consume* means to use, to possess, to inhale, to chew, to dissolve, to absorb, to be applied to the skin of, to heat, to sniff, or to ingest by any other means.
- (2) *Electronic smoking device* has the meaning provided in section 4.96.020 of this Code.
- (3) *Nicotine product* or *tobacco product* has the meaning provided in section 4.96.020 of this Code.

(b) It shall be unlawful for any person to knowingly furnish or offer to furnish, or possess with the intent to furnish or offer to furnish, to any person who is under 21 years of age, whether by gift, sale, or any other means, any nicotine product or tobacco product.

(c) It shall be unlawful for any person who sells, offers to sell, or possesses with intent to sell or offer for sale any nicotine product or tobacco product to fail to display a warning sign as required by section 4.96.040 of this Code.

(d) It shall be unlawful for any person who sells, dispenses, distributes, or offers to sell, dispense or distribute any tobacco product or nicotine product to store, display, or sell such tobacco or nicotine products in any area or means that is accessible for use by the public without assistance from the seller of such goods or products. This subsection shall not be construed to preclude or prohibit the storage or display of tobacco or nicotine products in an area viewable by the public so long as such items are not accessible to the public without assistance from the seller.

(e) All provisions of this section 8.04.880 may be enforced by either the City of Golden Police Department or Jefferson County, acting as agent for the city, and any person authorized by Jefferson County to enforce this section, including Jefferson County Public Health.

(Ord. No. 2216, § 3, 7-25-2023, eff. 1-1-2024; Ord. No. 2118, § 2, 12-12-2019; Ord. No. 1980, 2014)

Article IX. Weapons

8.04.900 Definitions.

(a) As used in this article, the following shall mean as defined herein unless otherwise specifically provided:

Blackjack means any billy club, sand club, sandbag, sap gloves or other hand-operated striking weapon consisting, at the striking end, of an encased piece of lead or other heavy substance and, at the handle end, a strap or springy shaft which increases the force of impact.

Crossbow means any device resembling a firearm in configuration, having a bow or similar device mounted perpendicularly to a stock, grip or frame, and usually equipped with a winch or similar device which draws back the bowstring and cocks the weapon and which fires an arrow, bolt, stone or other projectile from a groove or depression in the stock, grip or frame by the manipulation of a trigger or other similar mechanism.

Firearm means any handgun, revolver, pistol, rifle, shotgun or other instrument or device from which any shot, bullet or other missile can be discharged.

Gas gun means any device designed for projecting gas-filled projectiles which release their contents after being projected from the device and includes projectiles designed for use in such device.

Gravity knife means any knife, the blade of which is released from the handle or sheath thereof by the force of gravity or the application of centrifugal force and which blade, upon release, becomes locked in place by means of a button, spring, plate, level or other device.

Handgun means a pistol, revolver, or other firearm of any description, loaded or unloaded, from which any shot, bullet, or other missile can be discharged and the length of the barrel, not including any revolving, detachable, or magazine breech, does not exceed 12 inches.

Illegal weapon means a blackjack, gas gun, metallic knuckles, or knife.

Knife means any dagger, knife, bayonet, straight razor, dirk, machete, stiletto, sword or sword cane with a blade over three and one-half inches in length, or any other dangerous instrument designed to inflict cutting, stabbing or tearing wounds; but, as used in this article, does not include a knife or hatchet of the type customarily used in hunting, fishing or camping, when such is being carried for sporting use; and does not include any instruments being used in pursuance of a lawful home use, trade, occupation or profession or otherwise being lawful under federal or state statutes, or being used as an item of display or collector's item in any home or place of business.

Mechanical gun means an air, spring operated or blow gun that discharges pellets, BB shots, paint balls, arrows or darts and includes, but is not limited to, BB guns, spring guns, pellet guns, paint ball guns or other similar devices.

Metallic knuckles means a weapon worn on the hand, consisting of a metal strip or chain with holes or links into which the fingers fit.

Nunchaku means an object consisting of two sticks, clubs, bars, or rods to be used as handles, connected by a rope, cord, wire or chain which is in the design of a weapon used in connection with the practice of a system of self-defense.

Switchblade knife means any knife, the blade of which opens automatically by hand pressure applied to a button, spring or device in its handle.

Throwing star means a disk having sharp radiating points or any disk-shaped bladed object which is hand-held and thrown and which is in the design of a weapon used in connection with the practice of a system of self-defense.

Weapon means any instrument or device specifically designated for use in attack or defense in combat or fighting, and includes, but is not limited to, those enumerated in this section. (Ord. No. 2071, § 1, 3-22-2018; Ord. No. 1980, 2014; Ord. 1714, 2005; Ord. 1142, 1992)

8.04.905 Unlawful storage of firearms.

(a) As used in this section, the following definitions shall apply:

- (1) *Locked container* means a secure container which is enclosed on all sides and locked by a padlock, key lock, combination lock or similar device.
- (2) *Locking device* means a device which temporarily prevents the firearm from functioning.
- (3) *Minor* means a person who has not reached his or her eighteenth birthday.

(b) It shall be unlawful for any person to store any firearm within or upon any premises of which that person has an ownership interest, custody or control, in such a manner which that person knows, or should know, that a minor is likely to gain possession of the firearm and in the event that the minor does, in fact, obtain possession of the firearm.

(c) Subsection (b) shall not apply whenever any of the following occurs:

- (1) The minor obtains the firearm as a result of an illegal entry to the premises.
- (2) The firearm is kept in a locked container, access to which is not available to a minor.
- (3) The firearm is equipped with, and has in place, a locking device, the means of removal of which is not available to the minor.
- (4) The minor obtains the firearm in a lawful act of self-defense, or defense of the minor's home or property.
- (5) The minor obtains the firearm during the course of, or incidental to, being legally summoned to the aid of a Colorado Peace Officer, or a member of the United

States Armed Forces, or the Colorado National Guard in the performance of their duties.

- (6) The firearm is an antique firearm that was manufactured in or before 1898.

(Ord. No. 2060, § 1, 8-10-2017)

8.04.910 Prohibited use of weapons; exception.

- (a) It shall be unlawful for any person to:

- (1) Knowingly and unlawfully aim a firearm at another person; or
- (2) Recklessly or with criminal negligence discharge a firearm or shoot a bow and arrow; or
- (3) Knowingly set a loaded gun, trap, or device designed to cause an explosion upon being tripped; or approached, and leave it unattended by a competent person immediately present; or
- (4) Have in his or her possession an illegal weapon; or
- (5) Have in his or her possession a firearm while the person is under the influence of intoxicating liquor or of a controlled substance, as defined in C.R.S. 18-18-102; or
- (6) Knowingly aim, swing, or throw a throwing star or nunchaku at another person, or knowingly possess a throwing star or nunchaku in a public place except for the purpose of presenting an authorized public demonstration or exhibition or pursuant to instruction in conjunction with an organized school or class.

(Ord. No. 2041, § 5, 11-10-2016; Ord. No. 1980, 2014; Ord. 1714, 2005; Ord. 1142, 1992)

8.04.920 Unlawful open carry of deadly weapons in city buildings, parks, trails, open spaces or recreation areas.

- (a) It shall be unlawful for any person to openly carry any deadly weapon upon the grounds of or within any building or facility owned or leased by the city, or any department or agency thereof.

(b) It shall be unlawful for any person to openly carry any deadly weapon within or upon any city park, trail, golf course, athletic field, camp ground, aquatic center, recreation area or open space.

(c) Nothing herein shall be deemed to affect or impair in any way the authority of any private or public property owner other than the city to prohibit the open carrying of deadly weapons into or upon the property of such persons.

(Ord. No. 1980, 2014; Ord. 1714, 2005)

8.04.930 Unlawfully carrying a concealed weapon; unlawful possession of weapons.

(a) It shall be unlawful for any person to carry a concealed weapon or possess weapons. A person commits the crime of unlawfully carrying a concealed weapon or possessing a weapon, when a person knowingly:

- (1) Carries a knife concealed on or about his or her person; or
- (2) Carries a firearm concealed on or about his or her person; or
- (3) Without legal authority, carries, brings, or has in such person's possession, a firearm or any explosive, incendiary, or other dangerous device on the property of or within any building in which the chambers, or offices of the city council are located, or in which a city council hearing or meeting is being or is to be conducted, or in which the official office of any member, officer, or employee of the city is located.

(b) It shall not be an offense if the defendant was:

- (1) A person in his or her own dwelling or place of business or on property owned or under his or her control at the time of the act of carrying; or
- (2) A person in a private automobile or other private means of conveyance who carries a weapon for lawful protection of such person or another person or property while traveling; or

- (3) A person who, at the time of carrying a concealed weapon, held a valid permit to carry a concealed handgun, or a temporary emergency permit issued pursuant to state law, except that it shall be an offense under this section if the person was carrying a concealed handgun in violation of the provisions of C.R.S. 18-12-214.

(Ord. No. 1980, 2014; Ord. 1714, 2005; Ord. 1142, 1992; adopted as part of Code)

8.04.940 Defacing or possession of defaced firearm.

It shall be unlawful for any person to knowingly:

- (1) Remove, deface, cover, alter or destroy the manufacturer's serial number or any other distinguishing number or identification mark of a firearm; or
- (2) Possess a firearm, the manufacturer's serial number of which, or other distinguishing number or identification mark, has been removed, defaced, altered, or destroyed, except by normal wear and tear.

(Ord. No. 1980, 2014)

8.04.950 Exception for law enforcement and military personnel.

Nothing within this article shall be construed to forbid any enforcement officer of the law enforcement agencies of the United States government, city or the state, or any sheriff or his or her deputies, or any regular, special or ex officio peace officer as defined by state law, or members of the United States armed forces, Colorado National Guard or Reserve Officer Training Corp or any other person specifically authorized by state or federal law from carrying, wearing, concealing or using such weapon as shall be necessary in the proper discharge of his or her duties, or as otherwise permitted by law.

(Ord. No. 1980, 2014; Ord. 1614, 2005; Ord. 1142, 1992)

Article X. Juvenile Civil Alternative

8.04.1000 Juvenile civil alternative.

(a) If a peace officer contacts a juvenile ten years of age or older for an act that would be a municipal offense under this chapter if committed by an adult, the officer may issue the juvenile a petty ticket that requires the juvenile to go through an assessment process or procedure as designated by a peace officer, assessment officer, or a screening team, collectively referred to in this section as the "screening entity." When a petty ticket is issued the screening entity shall offer a petty offense contract to the juvenile and the juvenile's parent or legal guardian if:

- (1) The juvenile has no prior adjudication or non-traffic conviction in a municipal, county, juvenile or district court;
- (2) The juvenile admits the offense; and
- (3) The screening entity deems that a petty offense contract is in the best interests of the juvenile.

(b) If the juvenile is otherwise eligible for a petty offense contract, pursuant to the provisions of this subsection (a), but the screening entity finds that the issuance of a petty offense contract is not in the best interests of the juvenile, the screening entity shall state the reasons in writing. The screening entity shall provide a copy of the written statement to the juvenile and shall maintain a copy of the written statement. If there is no agreement in a signed contract pursuant to this article, the juvenile may be issued a summons and complaint.

- (1) Every contract entered into pursuant to this section must be in writing and contain the following:
 - (i) Consent to the contract terms by the juvenile and the juvenile's parent or legal guardian;
 - (ii) An agreement to pay restitution, when applicable;
 - (iii) An agreement to perform useful community service, when applicable;

- (iv) An agreement to attend school unless the juvenile is in a certified home study program or is otherwise legally excused from such attendance;
 - (v) A requirement of restorative justice practices, when appropriate;
 - (vi) A requirement that the juvenile not commit a criminal act during the term of the contract; and
 - (vii) Any other conditions determined appropriate by the screening entity.
- (2) The term of the contract may not exceed 90 days; except that the contract may be extended for an additional 30 days for good cause, as determined by the screening entity.
 - (3) Upon the successful completion of the contract to the satisfaction of the screening entity, the juvenile is released from any further obligation. The completed contract shall be deemed confidential except to the police department, municipal court, screening entity, the juvenile and the juvenile's parent or legal guardian.
 - (4) If there is no agreement resulting in a signed contract, any statement made by the juvenile to the screening entity administering the assessment shall not be used against the juvenile, unless the juvenile makes any deliberate misrepresentation affecting eligibility or participation in the program.
- (Ord. No. 2041, § 6, 11-10-2016)

Chapter 8.25

ADMINISTRATIVE CITATIONS

8.25.010 Administrative citations.

This chapter provides for administrative penalties that may be imposed for violation of parking offenses as set forth in Part 12 of the Model Traffic Code, as adopted by the city and codified in chapter 10.04 of the Code, as may be amended from time to time; specific nuisances including litter prohibited, prohibition of scattering gravel mud and dirt on streets and roads, and camping

on public property as set forth in chapter 5.01 of the Code, container required (trash) as set forth in chapter 5.03 of the Code, removal required (weeds) as set forth in chapter 5.05 of the Code, pruning, corner clearances (trees, shrubs and bushes) as set forth in chapter 5.06 of the Code, hobby repair work (vehicles) as set forth in chapter 5.07 of the Code, noise prohibited, restrictions amplified outdoor music, exhaust and muffler restrictions, and use of sirens, red light restriction as set forth in chapter 5.15 of the Code, cultivation regulations and operational regulations (marijuana) as set forth in chapter 5.19 of the Code, healthy beverages with children's meals regulations set forth in chapter 5.21 of the Code, rabies control, reporting animal bites, confinement-quarantine, license required, running at large prohibited, incompetent control prohibited, cats reasonable control, disturbing the peace, confinement during estrus, removal of animal excrement, animal scattering trash, livestock fencing requirement, horses prohibited, and picketing on public property as set forth in title 7 of the Code, consumption regulated (alcohol open container), underage persons tobacco restriction and prohibitions, possession of marijuana, possession of open container marijuana, and possession, manufacture, sale or delivery of drug paraphernalia as set forth in chapter 8.04 of the Code, the park and recreation facility rules as set forth in chapter 8.30 of the Code, permit required and permit restrictions as set forth in chapter 10.90 of the Code and as otherwise specified in the Code, violations of water use restrictions issued pursuant to Section 13.04.190 and waste of water regulations, requirements, and prohibitions set forth in Section 13.04.195 of the Code, the rules, orders and regulations issued by the city manager pursuant to section 2.08.110 of the Code, which are deemed reasonably necessary for the administration, protection and maintenance of any public property or buildings belonging to or under control of the city, storm-water quality regulations, requirements, and prohibitions set forth in chapter 13.30 of the Code, requirements, rules and regulations set forth in title 18 of the Code, the graywater system regulations, requirements and prohibitions set forth in chapter 15.70 of the Code, and

the right-of-way regulations, requirements and prohibitions set forth in chapter 11.20 of the Code.

(Ord. No. 2292, § 2, 4-28-2026; Ord. No. 2189, § 1, 7-12-2022; Ord. No. 2171, § 2, 1-25-2022; Ord. No. 2157, § 3, 5-25-2021; Ord. No. 2143, § 2, 9-10-2020; Ord. No. 2137, § 1, 5-14-2020; Ord. No. 2130, § 1, 2-13-2020; Ord. No. 2051, § 1, 3-23-2017; Ord. No. 1985, 2014; Ord. No. 1935, 2013)

8.25.015 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

City manager shall mean the city manager or the city manager's designee.

Enforcement official shall mean any person authorized by the chief of police or the chiefs authorized representative to enforce the provisions of this title.

Responsible party shall mean a person or entity who has violated the ordinances, rules, orders or regulations.
(Ord. No. 1935, 2013)

8.25.020 Authority.

(a) Any responsible party violating the applicable ordinances, rules, orders or regulations may be issued an administrative citation by an enforcement official as provided in this chapter.

(b) Notwithstanding any other provision of the Code, responsible parties cited under the provisions of this chapter shall have only the protest rights granted herein.

(c) A civil penalty assessed by means of an administrative citation may be collected by any means allowed by law.

(d) Enforcement actions are intended to be cumulative in nature. The city may pursue one or more civil, criminal, and administrative

action(s), fee(s), fine(s), sentence(s), penalty(ies), judgment(s), and remedy(ies) and may do so simultaneously or in succession.

(Ord. No. 1935, 2013)

8.25.030 Procedures.

(a) The enforcement official shall attempt to issue the administrative citation to the responsible party at the site of any violation.

(b) The enforcement official shall attempt to obtain the signature of the person receiving the administrative citation on the citation. If that person refuses or fails to sign the administrative citation, the failure or refusal to sign shall not affect the validity of the citation and subsequent proceedings.

(c) If the enforcement official is unable to issue the administrative citation to the responsible party, the administrative citation may be sent via first class mail to the responsible party at the last known address. Notice shall be deemed served on the date of receipt by the responsible party, if personally served, or upon the fifth day after mailing of the administrative citation.
(Ord. No. 1935, 2013)

8.25.040 Contents of notice.

(a) The administrative citation shall state the date and location of the violation(s) and the approximate time of the violation(s) were observed.

(b) The administrative citation shall refer to the specified ordinance, rule, order or regulation violated and describe the violation(s).

(c) The administrative citation shall state the amount of penalty imposed for the violation(s).

(d) The administrative citation shall explain how the penalty shall be paid, the time period by which it shall be paid, and the consequences of failure to pay the penalty.

(e) The administrative citation shall briefly state the process for protesting the administrative citation.

(f) The administrative citation shall contain the signature of the enforcement official and the signature of the responsible party if it can be obtained.

(Ord. No. 1935, 2013)

8.25.050 Protest of administrative citation.

(a) A person served with an administrative citation may file a notice of protest within ten calendar days from the date of service of the notice. Compliance with this time limit shall be a jurisdictional prerequisite to any protest brought under this chapter, and failure to comply shall bar any such protest.

(b) The notice of protest shall be made in writing and filed with the municipal court, and contain the following information:

- (1) The reason the protestant believes the administrative citation is objectionable, incorrect or illegal.
- (2) The type of dispute involved and the time during which it occurred.
- (3) The name, address and telephone number of the protestant.
- (4) If the protestant is to be represented by another person, the name, address, and telephone number of the representative.
- (5) The signature of the protestant, or legal representative.

(c) As soon as practicable after receiving the written notice of protest, the city manager shall notify the designated hearing officer who shall schedule a date, time and location for the hearing.

(d) Written notice of the date, time and location of the hearing shall be personally served upon or sent by first class mail to the responsible party at least ten calendar days prior to the date of the hearing.

(Ord. No. 1935, 2013)

8.25.060 Administrative hearing officers.

The city manager shall appoint one or more individuals to serve as hearing officer(s). Any person designated to serve as a hearing officer is

subject to disqualification for bias, prejudice, interest, or for any other reason for which a judge may be disqualified in a court of law.

(Ord. No. 1935, 2013)

8.25.070 Procedures at administrative citation protest hearings.

(a) Administrative citation protest hearings are intended to be informal in nature. Formal rules of evidence and discovery do not apply. The procedure and format of the administrative citation protest hearing shall follow the procedures as set forth herein.

(b) The parties to an administrative citation protest hearing shall be the responsible party and the city manager. Parties may be represented by legal counsel. Parties may present documentary evidence and call and question witnesses.

(c) The hearing officer, at the request of any party to the hearing, may subpoena witnesses, documents and other evidence where the attendance of the witness or the admission of evidence is deemed necessary to decide the issues at the hearing. All costs related to the subpoena, including witness fees and mileage fees at the rates provided by state statute, shall be borne by the party requesting the subpoena.

(d) The hearing officer shall have the power to call and question witnesses, to review and consider the relevancy of documentary or other tangible evidence, to rule on evidentiary questions and witness qualifications, and to generally conduct the hearing in conformance with the procedures and requirements set forth herein.

(e) The city bears the burden of proof at an administrative citation protest hearing to establish the existence of a violation of the Code.

(f) The standard of proof to be used by the hearing officer in deciding the issues at an administrative citation protest hearing is by a preponderance of the evidence.

(g) Each party shall have the opportunity to cross-examine witnesses and present evidence in support of its case.

(h) The order of proceedings shall be as follows:

- (1) Docket call by hearing officer.
- (2) Opening statement by the city and by the protestant, unless waived by either party.
- (3) Presentation of evidence by the city, allowing cross-examination by the protestant.
- (4) Presentation of evidence by protestant with cross-examination by the city.
- (5) Rebuttal and surrebuttal evidence, if any.
- (6) Closing argument by the city, followed by closing argument by the protestant.

The hearing officer may allow rebuttal argument by the city. The hearing officer may require argument to be oral or in writing or both. (Ord. No. 1935, 2013)

8.25.080 Duties of hearing officer.

(a) The hearing officer shall determine whether protests of administrative citations are valid. In doing so the hearing officer shall determine whether the administrative citation under protest was issued in compliance with the requirements of the city ordinances. In each case, the hearing officer shall be charged with performing all functions relating to the final determination and order, and entertaining petitions or protests made in writing. The hearing officer shall perform those duties and functions necessary and incidental to determining the matter, issuing subpoenas, hearing all evidence, examining all documents, ruling on evidentiary questions, and generally conducting the hearing as a quasi-judicial proceeding.

(b) Upon receipt of a protest, the hearing officer shall assign the time and place for hearing the case, unless, if requested by the protestant and in the sole discretion of the hearing officer, it is submitted on written brief and supporting material. The hearing officer shall notify the parties of the time and place of the hearing. In the discretion of the hearing officer, parties to the hearing may be required to file a pre-hearing statement before the case is set for hearing. The pre-hearing statement may include: the issues raised by the protest; agreed and disputed facts;

copies of exhibits not previously included in the record; names of witnesses with a brief statement summarizing their testimony; an estimate of the time necessary to present a party's evidence and other matters as requested by the hearing officer.

(c) All hearings or, when a protest is submitted for determination based on written argument and written facts and figures, all examinations of such written petitions and papers shall be conducted by the hearing officer assigned to conduct the hearing or to examine the written materials submitted.

(d) All testimony in proceedings before the hearing officer shall be given under oath.

(e) The conduct of hearings and the admission of evidence shall generally be in accordance as set forth herein without regard to whether they conform to common law or statutory rules of procedure or evidence or other technical rules. The hearing officer may utilize his or her experience, technical competence, and specialized knowledge in the evaluation of evidence presented.

(f) Copies, photographs, and photocopies may be admitted into evidence.

(g) Witnesses intended to give opinion testimony as experts must be qualified as such, and their qualifications should be submitted in advance to the hearing officer.

(h) Hearings shall be recorded by electronic means and transcripts of such recordings shall be made at the expense of the party requesting the transcript.

(i) Whenever it appears that a petition is not filed within the time permitted by the ordinance involved, or that the protestant for some other reason lacks jurisdiction or standing, the case may be dismissed on the motion of any party or the hearing officer.

(j) Mailings, notices, computations of time, time limitations, service and filings shall conform to the requirements of the particular law or ordinance involved.

(k) A decision of the hearing officer shall be known as an administrative enforcement order, and shall become final upon mailing to the responsible party.

(l) The hearing officer may in whole or in part, uphold the administrative citation and all penalties or dismiss the administrative citation and all penalties or may waive or conditionally reduce the penalties assessed by the administrative citation.

(m) In the event that the hearing officer does not dismiss the administrative citation, the hearing officer shall assess reasonable administrative costs of not less than \$100.00, but not to exceed \$300.00.

(Ord. No. 1935, 2013)

8.25.090 Failure to obey subpoena.

It is unlawful for any person to refuse to obey a subpoena issued by a hearing officer. Failure to obey a subpoena constitutes contempt and may be criminally prosecuted and result in penalties imposed under section 1.01.110 of the Code.

(Ord. No. 1935, 2013)

8.25.100 Failure to attend administrative citation protest.

Any responsible party who fails to appear at the hearing is deemed to waive the right to a hearing and the adjudication of the issues related to the hearing, provided that proper notice of the hearing has been provided.

(Ord. No. 1935, 2013)

8.25.110 Failure to comply with administrative enforcement order.

It is unlawful for a responsible party to an administrative enforcement hearing, who has been served with a copy of the final administrative enforcement order, to fail to comply with the order. Failure to comply with a final administrative enforcement order may be criminally prosecuted and have penalties imposed under section 1.01.110 of the Code.

(Ord. No. 1935, 2013)

8.25.120 Penalties assessed.

(a) Except as set forth herein, the penalty for violation of the ordinances, rules, orders and regulations shall be established by the city manager, but shall not exceed the following amount regardless of the number of violations per citation, as follows:

- (1) First administrative citation: \$50.00.
- (2) Second administrative citation: \$100.00.
- (3) Third or subsequent administrative citation(s): \$150.00.

(b) Payment of the penalty shall not bar further enforcement action by the city.

(c) All penalties assessed shall be payable to the city.

(d) Penalties for violations of the regulations, requirements and prohibitions set forth in chapter 13.30 of the Code shall be punished by a fine not exceeding \$1,000.00 per violation.

(e) Penalties for violation of the regulations, requirements, and prohibitions set forth in title 18 of the Code shall be subject to a fine not exceeding \$500.00 per violation.

(f) Penalties for violations of the regulations, requirements, and prohibitions set forth in chapter 11.20 of the Code shall be punished by a fine not exceed \$1,000.00 per violation.

(g) Penalties for violations of the regulations, requirements, and prohibitions set forth in section 13.04.190 and 13.04.195 of the Code shall be punished by a fine not exceeding \$1,000.00 per violation.

(Ord. No. 2292, § 3, 4-28-2026; Ord. No. 2206, § 2, 4-25-2023; Ord. No. 2157, § 4, 5-25-2021; Ord. No. 2137, § 2, 5-14-2020; Ord. No. 2130, § 2, 2-13-2020; Ord. No. 1935, 2013)

8.25.130 Failure to pay penalties.

(a) The failure of any responsible party to pay the civil penalties assessed by an administrative citation within the time specified on the citation or administrative enforcement order, if an administrative hearing was held, shall result in the imposition of a late fee of \$25.00 and interest at a rate of ten percent per annum.

(b) In the event of failure to pay all penalties assessed, the city manager may refer the matter for collection by whatever means are available to the city.

(c) Any action or other process provided by law may be employed by the city to recover or collect any amounts, including late fees, interest, and administrative costs, owing under this chapter.
(Ord. No. 1935, 2013)

Chapter 8.30

PARK AND RECREATION RULES AND REGULATIONS

8.30.010 Definitions.

The following words, terms and phrases, when used in this chapter shall have the meaning ascribed to them herein except where the context clearly indicates a different meaning.

City manager means the manager of the City of Golden or the manager's authorized designee.

Clear Creek's banks means the area between the water's edge and the designated path on either side.

Dog owner means any person who owns, keeps, harbors, possesses or otherwise has custody or control of the animal.

Enforcement officer means any officers or employees of the city, including, but not limited to, city code enforcement officers and park rangers, authorized either as a matter of law or by the chief of police, or the chief's authorized designee, to enforce the provisions of this chapter.

Park means all parks, trails, open spaces, or waterways owned, operated or maintained by the city.

Recreation facility means those facilities owned or operated by the city, which offer indoor or outdoor sports or activities or events, including, but not limited to the Recreation Center, Clear Creek Recreational Vehicle Park, Fossil Trace Golf Course and Splash Aquatic Center.

Slacklining means the activity or sport of balancing on a rope or strip of webbing that is fixed above ground between two anchors.
(Ord. No. 2046, § 1, 1-26-2017)

8.30.020 City authority.

(a) *Closures.* The city manager may close for any time period any park or recreation facility due to conservation, wildlife, vegetation, management review, contractual or public safety concerns.

(b) *Administrative rules and regulations.* The city manager is authorized to adopt and enforce administrative rules and regulations that implement and supplement the regulations set forth in this section for purposes which include, but are not limited to, maintenance, repairs, or the protection or conservation of any lands, structures, property, wildlife or vegetation or to protect the public.

(c) *Applicability of prohibitions.* The prohibitions contained within this chapter, unless specified otherwise, shall be applicable to all outdoor parks, trails, open space and recreation facilities owned and operated by the city. While acting within the course and scope of their employment city employees and any law enforcement or emergency service personnel shall be exempt from the restrictions and prohibitions set forth in this chapter.
(Ord. No. 2046, § 1, 1-26-2017)

8.30.030 Park usage restrictions.

(a) *Alcohol beverages.* It is prohibited for any person to possess, consume, or distribute any alcohol beverage within any park, absent the prior written approval of the city manager.

(b) *Camping.* Overnight camping is prohibited except subject to the acquisition of a permit in the designated areas of the Clear Creek Recreational Vehicle Park.

(c) *Fires.* It is prohibited for any person to make, or allow to burn, a fire, including a charcoal fire, within any park except in park provided, operative grills. Use of a portable propane camp stove is permitted if the stove's propane tank has a capacity of two pounds or less. A maker or keeper of a fire must completely

extinguish the fire prior to leaving the park. Bonfires are prohibited in all parks. Notwithstanding the foregoing, more stringent fire restrictions, including bans, issued by the city's fire chief or fire marshal shall apply to, and supersede, any fires in the park that are otherwise allowed by this subsection.

(d) *Motorized vehicle operation.* It is prohibited for any person to operate any motorized vehicle including, but not limited to, any self-propelled vehicle, motorbike, motorcycle (whether designed for travel on public highways or designed for off-road travel), moped, go-cart, golf cart, motor scooter, or snowmobile, Segway, hover board, or similar mode of transportation upon or within any park, except as permitted upon vehicle parking areas and roadways within a park. A person may operate an electrical assisted bicycle, as defined in C.R.S. § 42-1-102(28.5), as may be amended with the electrical motor engaged on park paths where bicycles are authorized to travel. Golden staff members may operate vehicles on parks and pathways for maintenance purposes.

(e) *Park hours.* Unless otherwise posted by the city manager, outdoor parks are open to the public between the hours of 5:00 a.m. to 11:00 p.m. Unless otherwise posted by the city manager, all trails are open 24 hours each day to pedestrian and bicycle traffic.

(f) *Slacklining*, (or any other objects tied, fastened or anchored to trees) is permitted in parks subject to the following:

1. Trees must be protected with padding, prior to the installation of the anchor lines.
2. Anchor lines may not be attached to signs, fencing, light poles, playground equipment, or any other park structures.
3. Tree trunks must be at least one foot in diameter.
4. Anchor points cannot be damaged or altered in order to secure an anchor.
5. Slacklines and ground must be level and parallel to each other.
6. Slacklines may not exceed 100 feet in length.

7. The slackline may not be elevated to a height of more than four feet at the center of the span.
8. Equipment must not be left unattended and, if not in use, must be immediately taken down.
9. Slacklines must not interfere with other park activities nor cross any sidewalks, waterways, bridges, or any other rights-of-way, and are prohibited upon any trail.
10. Slacklines cannot cross each other.
11. City personnel, as deemed necessary, may order the removal of a slackline at any time.

(g) *Sound amplification.* It is prohibited for any person to utilize any machine or device for the purpose of amplification of human voice, music, or any other sound in any park without the prior written authorization of the city manager.

(h) *Vending and peddling.* It is prohibited for any person to display or offer for sale any goods or services or to station or place any stand, cart, or vehicle for the transportation, sale, or display of any such goods or services within or upon any park. This prohibition shall not apply to any concession approved by the city manager.

(i) *Open carry of firearms.* Where posted as required by law, it is prohibited for any person to openly carry any firearm within any park.

(j) *Dangerous missiles and firearms.* It is prohibited for any person to use, discharge, fire, or shoot any firearm, air gun, sling shot, pellet gun, blow gun, paintball gun, air soft gun, spring gun, or bow and arrow within any park. Archery is permitted within the city's operated and approved archery range and golf is permitted within the city's operated and approved golf course.

(k) *Going onto ice.* It is prohibited for any person, including any person's animal to go onto ice located upon any waterway within a park.

(l) *Glass containers.* It is prohibited for any person to possess any glass container(s) within or upon any park.

(m) *Removal of pet waste.* It is prohibited for any animal owner to fail to prevent such animal from defecating or voiding excrement on or within any city park or trail; provided, however, that no violation will occur if the person having charge of the animal immediately removes such defecation or excrement and disposes of it in a pet waste station or in an otherwise lawful and sanitary manner.

(n) *Running at large.* It is prohibited for any animal owner to permit an animal to run at large within any city park or trail except upon the premises of any city designated off-leash facility in accordance with the posted rules and regulations at such facility.

(o) *Smoking.* In order to reduce the levels of exposure to environmental tobacco smoke, smoking, vaping, and use of electronic smoking devices shall not be permitted in any parks and recreation facilities except within specified areas as designated by the city. The use of marijuana is also prohibited in public spaces as described in section 8.04.800.

(p) *Unmanned aerial vehicles.* It is prohibited for any person to operate any unmanned aerial vehicle within any park without the prior written approval of the city manager.
(Ord. No. 2016, § 1, 1-26-2017; Ord. No. 2167, § 1, 8-24-2021)

8.30.040 Protection of park property and resources.

(a) *Disfiguring and/or removal of city property.* It is prohibited for any person to mark, deface, disfigure, injure, tamper with, or displace or remove any park property to include structures, bridges, tables, benches, fireplaces, railings, paving or paving material, waterlines, public utilities, signs, notices or placards, whether temporary or permanent, monuments, stakes, posts, boundary markers, equipment, and all appurtenances thereto located within or upon any park. It shall further be prohibited for any person to dig or remove any soil rock, stones, trees, shrubs or plants, fell, cut, carve or damage any tree, plant, or other wood, or disperse any pesticide, fungicide,

insecticide, or similar chemicals upon or within any park without the prior permission of the city manager.

(b) *Encroachment.* It is prohibited for any person to construct or maintain any improvements, or grow or otherwise cultivate any vegetation, plant or crop, including, but not limited to, vegetable or flower gardens, landscaping, fences, tree houses, swings, swing-sets, bike ramps, paths or compost piles, or store any personal property within or upon any park.

(c) *Polluting of waters.* It is prohibited for any person to throw, discharge, or otherwise place of cause to be placed in the waters of any fountain, pond, lake, stream, or other body of water in or adjacent to any park, any substance, matter or thing, liquid or solid, which will or may pollute such waters.

(d) Maintenance and preservation of Clear Creek and Clear Creek's banks. No person shall enter an area that is conspicuously marked as closed. It is prohibited for any person to locate, use or bring any of the following goods or articles, which include, but are not limited to, benches, lawn chairs, fire pits, grills, portable outdoor fireplaces, cots, furniture, slides, bicycles, coolers, radio controlled boats, and any other similar object, not commonly associated with wading, swimming, tubing or kayaking, within Clear Creek and upon Clear Creek's banks. Use of the Clear Creek trail for special event purposes is prohibited without prior written approval of the city manager.

(Ord. No. 2240, § 2, 5-28-2024; Ord. No. 2046, § 1, 1-26-2017)

8.30.050 Dog park regulations.

It shall be unlawful for any dog owner to violate any of the following regulations regarding the use of any city designated dog park:

- (a) All dogs that enter a dog park must be over four months of age, spayed or neutered, have a valid license and current vaccination with an accompanying tag. The tag must be securely affixed to the dog's collar at all times.

- (b) All dogs must be leashed when entering or leaving a park's fenced enclosures.
 - (c) Owners must be at least 16 years of age and remain within the park's fenced enclosure and in control of all dogs under their care at all times when within the dog park. Owners are limited to three dogs per visit.
 - (d) Owners shall immediately pick up their dogs' excrement and deposit it in a park trash receptacle.
 - (e) Aggressive, vicious or contagious dogs are prohibited from use of any dog park.
 - (f) Owners shall immediately close and secure the gate upon entering or exiting the confines of the park's fenced enclosure.
 - (g) Owners shall immediately pick up any litter or trash, resulting from their use of the park and deposit same in a park trash receptacle.
 - (h) Glass containers are prohibited within any dog park.
 - (i) Entrance within the park in violation of its posted hours of 5:00 a.m. to 11:00 p.m., or when closed by the city, is prohibited.
 - (j) Owners voluntarily assume all risks, loss or injury for themselves or their dog(s) associated with or resulting from use of any city dog park.
- (Ord. No. 2046, § 1, 1-26-2017)

Title 9

RESERVED

Title 10

VEHICLES AND TRAFFIC

Chapter 10.04 Traffic Code

10.04.010	Adoption.
10.04.020	Sections 103(2) and 103(2)(b), Scope and effect of Code—Exceptions to provisions.
10.04.030	Section 103(3) and 103(4), Scope and effect of Code—Exceptions to provisions.
10.04.040	Section 104, Authority of police and fire department personnel.
10.04.050	Section 106, Who may restrict right to use highways.
10.04.054	Section 110, Provisions uniform throughout jurisdiction.
10.04.056	Section 111, Powers of local authorities.
10.04.060	Section 113, Appropriations for administration of article.
10.04.070	Section 114, Removal of traffic hazards.
10.04.080	Section 115, Traffic engineer.
10.04.090	Section 118, Driving under restraint, penalty.
10.04.100	Section 203, Unsafe vehicles, spot inspections.
10.04.110	Section 225, Mufflers, prevention of noise.
10.04.120	Section 235, Minimum standards for commercial vehicles—Spot inspections.
10.04.130	Section 237, Safety belt systems—Mandatory use—Exemptions—Penalty.
10.04.140	Section 239, Misuse of wireless telephone—Definitions—Penalty preemption.
10.04.150	Section 243, Nuisance exhibition of motor vehicle exhaust prohibited.
10.04.160	Section 501, Size and weight violations—Penalty.
10.04.170	Section 510, Permits for excess size and weight and for manufactured homes—Rules.
10.04.180	Section 616, Wildlife crossing zones-increase in penalties for moving traffic violations.
10.04.190	Section 714, Bicyclist or other authorized user in bicycle lane.
10.04.200	Section 805, Pedestrians walking or traveling in a wheelchair on highways.
10.04.210	Section 901, Required position and method of turning.
10.04.220	Section 1101, Speed limits.
10.04.230	Section 1102, Altering of speed limits.
10.04.240	Section 1204, Stopping, standing, or parking prohibited in specified places.
10.04.250	Section 1209, Owner liability for parking violations.
10.04.260	Section 1210, Designated areas on private property for authorized vehicles.
10.04.270	Section 1301, Open alcohol beverage container in motor vehicle prohibited.
10.04.280	Section 1302, Open marijuana container—Motor vehicle prohibited.
10.04.290	Section 1409, Compulsory insurance—Penalty—Legislative intent.
10.04.300	Section 1417, Regulation of traffic across private property.
10.04.310	Section 1701, Traffic offenses and infractions classified—Penalties—Penalty and surcharge schedule—Repeal.
10.04.320	Section 1705, Persons arrested to be taken before the proper court.
10.04.330	Section 1707, Summons and complaint for traffic violations.
10.04.340	Section 1709(1), Penalty assessment notice for traffic offense.
10.04.350	Section 1710, Failure to pay penalty for traffic offenses.

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- 10.04.354 Section 1720, Registration violations—Dismissal upon compliance—Notice required.
- 10.04.360 Appendices—Definitions.

Chapter 10.10 Vehicle Parking Enforcement

- 10.10.010 Definitions.
- 10.10.020 Parking magistrate.
- 10.10.030 Citation procedure.
- 10.10.040 Information to be included in parking citation.
- 10.10.050 Responsibilities of person who receives citation; liability of vehicle owner.
- 10.10.060 Hearing to challenge validity of a parking violation.
- 10.10.070 Establishment of fines and fees.

Chapter 10.76 Miscellaneous Rules

- 10.76.210 Vehicles exceeding 7,000 pounds empty weight prohibited from using Ford and North Ford Streets.
- 10.76.220 Impoundment of motor vehicles authorized for delinquent parking citations.
- 10.76.230 Vehicles exceeding 10,000 pounds gross weight prohibited from using portions of Highway 93.
- 10.76.240 Vehicles exceeding 10,000 pounds, gross weight prohibited from using portions of Boyd Street, North Ford Street, Cheyenne Street, Virginia Street and Washington Avenue; penalty.
- 10.76.250 Solicitation of towing business.
- 10.76.260 Idling restriction on delivery vehicles.

Chapter 10.90 Parking Restrictions in Designated Areas

- 10.90.005 Purpose.
- 10.90.010 Definitions.
- 10.90.020 Designation of restricted parking area.
- 10.90.030 Signs.
- 10.90.040 Permits.
- 10.90.050 Permit required.
- 10.90.060 Permit restrictions.

Chapter 10.95 Automated Vehicle Identification System

- 10.95.005 Definitions.
- 10.95.010 Automated vehicle identification system notices of violation—In general.
- 10.95.015 Automated vehicle identification system—Speeding.
- 10.95.020 Automated vehicle identification system—Disobedience to a traffic control signal.
- 10.95.025 Automated vehicle identification system corridors.
- 10.95.030 Automated vehicle identification system civil penalty assessment notices.
- 10.95.035 Automated vehicle identification system—Vendors.
- 10.95.040 Automated vehicle identification system—Data retention.

Chapter 10.04 TRAFFIC CODE*

10.04.010 Adoption.

The 2024 edition of the Model Traffic Code, promulgated and published as such by the Colorado Department of Transportation, Traffic Safety and Engineering Services, 2829 West Howard Place, Denver, Colorado, 80204, including Appendix (1) Definitions but excluding Part 18, Vehicles Abandoned on Public Property, in their entirety, is hereby adopted by reference as the Model Traffic Code for the City of Golden ("city") as if fully set out in this codification with, however, the amendments set forth in this chapter. Copies of the model traffic code adopted herein are on file in the office of the city clerk and available for inspection during regular business hours.

(Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.020 Sections 103(2) and 103(2)(b), Scope and effect of Code—Exceptions to provisions.

Section 103(2) and 103(2)(b) of the Model Traffic Code are repealed in their entirety and reenacted to provide:

- (2) The provisions of this Code relating to the operation of vehicles and the movement of pedestrians shall apply to every street, alley, sidewalk, driveway, park and to every other public way or public place or public parking area within or outside the corporate limits of the city, the use of which the City has jurisdiction and authority to regulate except:
 - (b) Sections 1401, 1402 and 1413 of this Code pertaining to reckless driv-

***Editor's note**—Sec. 2 of Ord. No. 2189, adopted July 12, 2022, repealed and replaced ch. 10.04 in its entirety to read as here in set out. Former ch. 10.04 pertained to the same subject matter, consisted of §§ 10.04.010—10.04.450, and derived from Ord. 799, 1978; Ord. 980, 1985; Ord. 1185, 1993; Ord. 1445, 1999; Ord. 1515, 2000; Ord. 1683, 2005; Ord. 1715, 2005; Ord. 1800, 2008; Ord. 1897, 2011; Ord. No. 2044, adopted January 12, 2017; Ord. No. 2072, adopted March 22, 2018; Ord. No. 2074, adopted March 22, 2018; Ord. No. 2085, adopted August 23, 2018; and Ord. No. 2145, adopted September 10, 2020.

ing, careless driving and eluding a police officer shall apply to all land, areas, and property (including private) within or outside the corporate limits of the city, the use of which the City has jurisdiction and the authority to regulate.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.030 Section 103(3) and 103(4), Scope and effect of Code—Exceptions to provisions.

Sections 103(3) and (4) of the Model Traffic Code are enacted to provide:

- (3) All references in this Code to "official sign(s)," "official signal(s)," "official traffic control device(s)," "official device(s)," or "official marking(s)," shall be construed to refer to any and all signs, signals, devices or markings that have been placed on or about roadways, highways and other public property within the City by authority of the City, or other proper governmental official or agency, whether or not the City or such other proper governmental official or agency exercised such authority by resolution or ordinance. It is the intent of this section that the "official" nature of any sign, signal, device or marking not be construed to be an element of any traffic offense or other provision or violation of this Code. Any and all references in this Code to acts of a municipality "by resolution," "by ordinance," or "by local ordinance," and any requirement within this Code that a municipality act "by resolution," "by ordinance," or "by local ordinance," shall be repealed and understood to have been construed only to guide administrative action and not as an element of any traffic offense or violation of this Code.
- (4) All provisions in this Code establishing offenses as a Class A or B traffic infraction or Class 1 or 2 misdemeanor offense, and establishing fines and other sentencing conditions in relation to such offenses, shall be repealed in their entirety, it being the intent that any violation of this

Code be subject to the City's general penalty provision as set forth in Section 1.01.110 of the Golden Municipal Code. To the extent any notice or other procedures set forth in the Model Traffic Code conflict with the requirements or procedures set forth in the City's Home Rule Charter or the Golden Municipal Code, the Charter and Municipal Code shall prevail.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.040 Section 104, Authority of police and fire department personnel.

Section 104 of the Model Traffic Code is repealed in its entirety, reenacted, and retitled "Authority of police and fire department personnel," to read as follows:

- (a) It shall be the duty of police officers to enforce all traffic regulations of the City and all of the state laws applicable to the City.
- (b) Police officers are hereby authorized to direct all traffic by voice, hand or signal in conformance with State traffic laws and this Code; provided that, in the event of fire or emergency, or to expedite traffic or protect pedestrians, police officers may direct traffic as conditions may require notwithstanding the provisions of the state traffic laws or this Code.
- (c) Members of the City's fire department, when at the scene of a fire or other emergency, may direct traffic or assist police officers in directing traffic.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.050 Section 106, Who may restrict right to use highways.

Section 106(1) of the Model Traffic Code is amended by deleting the phrase "for a total period of not to exceed ninety days in any one calendar year."

Section 106(4.5)(b)(I) and (II) of the Model Traffic Code are repealed in their entirety. (Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.054 Section 110, Provisions uniform throughout jurisdiction.

Section 110(1)(d) of the Model Traffic Code is amended by deleting the phrase, "the registration of vehicles and..."

(Ord. No. 2278, § 2, 8-26-2025)

10.04.056 Section 111, Powers of local authorities.

Section 111 the Model Traffic Code is amended to add a new subsection (1)(gg) to read as follows:

(gg) Enforcing the requirement that a vehicle, trailer, semitrailer, or motor vehicle be registered as required in article 3 of this title 42.

(Ord. No. 2278, § 3, 8-26-2025)

10.04.060 Section 113, Appropriations for administration of article.

Section 113 of the Model Traffic Code is repealed in its entirety.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.070 Section 114, Removal of traffic hazards.

Section 114(4) of the Model Traffic Code is enacted to provide:

If the City is not reimbursed within forty-five days after the property owner has been provided a demand for payment, the amount due shall become a lien against the property and certified by the City's finance director and recorded with the office of the Jefferson County Treasurer. Such lien shall have priority over all other liens except general taxes. The Jefferson County Treasurer shall collect and pay over to the City such charges in the same manner as the Treasurer is authorized to collect delinquent general property taxes.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.080 Section 115, Traffic engineer.

Section 115 of the Model Traffic Code is repealed in its entirety, reenacted, and retitled to "Traffic engineer," to read as follows:

- (a) The office of the traffic engineer is hereby established. The traffic engineer shall be the public works director or the director's authorized representative and shall exercise the power and duties provided in this Code. The public works director shall be directly responsible to the City manager for the performance of the duties and responsibilities of the traffic engineer.
 - (1) In the absence of such appointment or at such times as the traffic engineer may be absent from the municipality or unable to perform his/her duties, said duties shall be vested in the chief of police or other municipal employee as may be designated by the City manager.
- (b) It shall be the duty of the traffic engineer or the official vested with the responsibility for traffic as provided herein to determine the installation and proper timing and maintenance of official traffic control devices, to conduct analyses of traffic accidents and to devise remedial or corrective measures, to conduct investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this municipality, and to cooperate with other municipal offices in the development of ways and means to improve traffic conditions, and to carry out such additional powers and duties as are imposed by this Code.
 - (1) By way of example, but not of limitation, the traffic engineer or the official vested with the office as provided herein is hereby empowered and authorized, consistent with the provisions of this Code, to act as follows:
 - (i) Install, maintain, and remove traffic control devices;
 - (ii) Designate and mark medians and traffic islands;
 - (iii) Conduct speed limit surveys and investigations;
 - (iv) Designate maximum speed limits throughout the City and post said limits as provided in this Code;
 - (v) Designate minimum speed limits as provided by this Code;
 - (vi) Regulate speed and traffic movement by traffic signals and provide for the synchronization of such signals as provided by this Code.
 - (vii) Designate one-way streets or roadways;
 - (viii) Designate through streets or roadways and control entrances thereto;
 - (ix) Designate stop or yield intersections and erect stop or yield signs thereto;
 - (x) Establish restrictions, prohibitions and regulations for the parking, standing, or stopping of vehicles;
 - (xi) Designate special parking zones for transit providers, press, television, radio cars, and the like;
 - (xii) Designate parking meter zones and establish time limitations thereon based on an engineering and traffic investigation;
 - (xiii) Establish tow-away zones;
 - (xiv) Designate upon what streets, if any, angle parking shall be permitted;
 - (xv) Designate and sign intersections at which drivers shall not make a right or left turn, a U turn, or any turn at all times or during certain times;

- (xvi) Designate and sign intersections where multiple turns shall be allowed;
- (xvii) Mark centerlines and lane lines and place other pavement markings necessary for the regulation and control of traffic;
- (xviii) Install and maintain crosswalks at intersections or other places where there is particular danger to pedestrians crossing the roadway;
- (xix) Establish safety zones at such places where necessary for pedestrian protection;
- (xx) Install pedestrian-control signals and designate those crossings where angle crossing by pedestrians shall be permitted;
- (xxi) Establish truck routes and truck loading zones; establish bus stops and taxicab stands;
- (xxii) Designate and sign those streets and roadways where pedestrians, bicyclists or other non-motorized vehicles, or persons operating a motor-driven cycle shall be excluded as provided by law;
- (xxiii) Designate and sign those streets upon which vehicles or loads of a certain weight shall be prohibited;
- (xxiv) Provide for temporary street or alley closures by the erection of barricades;
- (xxv) Issue special permits for curb loading operations, for the movement of vehicles having excess size or width, for parades or processions, and

- (xxvi) Perform such other duties as may be assigned to the traffic engineer by the City manager consistent with the provisions of this Code.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.090 Section 118, Driving under restraint, penalty.

Section 118 of the Model Traffic Code "Establishment of wildlife crossing zones-report-repeal" is repealed, reenacted, and re-titled to "Driving under restraint - penalty," to read as follows:

- (1) It is unlawful for any person to drive a motor vehicle or off-highway vehicle upon any highway of this state with knowledge that the person's license or privilege to drive, either as a resident or a non-resident, is under restraint for an outstanding judgment.
- (2) The municipal court shall not waive or reduce the offense's three-point penalty.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.100 Section 203, Unsafe vehicles, spot inspections.

Section 203(3) and (4) of the Model Traffic Code are repealed in their entirety.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.110 Section 225, Mufflers, prevention of noise.

Section 225(3) of the Model Traffic Code is repealed in its entirety and reenacted to provide:

- (3) There shall be imposed upon any person who violates subsection (1) of this section a minimum fine of \$200 for the first offense, a minimum fine of \$300 for the second offense and a minimum fine of \$400 for every offense thereafter.

(Ord. No. 2189, § 2, 7-12-2022)

**10.04.120 Section 235, Minimum standards
for commercial vehicles—Spot
inspections.**

Section 235 titled "Minimum standard for commercial vehicles - repeal" is repealed in its entirety, retitled to "Minimum standards for commercial vehicles - spots inspections," and reenacted to provide:

- (1) A police officer may, at any time, require the driver of any commercial vehicle, as defined in section 42-4-235, C.R.S., to stop so that the officer may inspect the vehicle and all required documents for compliance with the current rules and regulations promulgated by the Colorado Department of Public Safety, Colorado Code of Regulations Volume 8, 1507-1 "Minimum Standards for the Operation of Commercial Vehicles."
- (2) A police officer may immobilize, impound, or otherwise direct the disposition of a commercial vehicle when it is determined that the motor vehicle or operation thereof is unsafe and when such immobilization, impoundment, or disposition is appropri

ate under the current rules and regulations promulgated by the Colorado Department of Public Safety, Colorado Code of Regulations Volume 8, 1507-1 "Minimum Standards for the Operation of Commercial Vehicles."

(Ord. No. 2189, § 2, 7-12-2022)

10.04.130 Section 237, Safety belt systems—Mandatory use—Exemptions—Penalty.

Section 237(4)(a) of the Model Traffic Code is repealed in its entirety.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.140 Section 239, Misuse of wireless telephone—Definitions—Penalty preemption.

Section 239(5) and (5.5) of the Model Traffic Code are repealed and section 239(2) is hereby repealed and reenacted to provide:

- (2) A person under eighteen years of age shall not use a wireless telephone while operating a motor vehicle. This subsection (2) does not apply to acts specified in subsection (4) of this section.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.150 Section 243, Nuisance exhibition of motor vehicle exhaust prohibited.

Section 243 of the Model Traffic Code, titled "Nuisance exhibition of motor vehicle exhaust prohibited," is enacted to provide:

- (1) (a) It shall be unlawful for any person to engage in a nuisance exhibition of motor vehicle exhaust, which is the knowing release of soot, smoke, or other particulate emissions from a motor vehicle with a gross vehicle weight rating of fourteen thousand pounds or less into the air and onto roadways, other motor vehicles, bicyclists, or pedestrians, in a manner that obstructs or obscures another person's view of the roadway, other users of the roadway, or a

traffic control device or otherwise creates a hazard to a driver, bicyclist, or pedestrian.

- (b) The prohibition set forth in subsection (1)(a) of this section does not apply to:

1. A commercial vehicle, as defined in Appendices Definitions (17.5);
2. A common carrier, as defined in C.R.S. Section 40-1-102(3)(a)(I);
3. A motor carrier, as defined in C.R.S. Section 40-10.1-101(10);
4. A motor carrier of passengers, permitted pursuant to C.R.S. Section 40-10.1-302;
5. A motor carrier of towed motor vehicles, permitted pursuant to C.R.S. Section 40-10.1-401;
6. A motor carrier of household goods, permitted pursuant to C.R.S. Section 40-10.1-502;
7. A motor vehicle used for agricultural purposes; or
8. Any other vehicle used for commercial activities.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.160 Section 501, Size and weight violations—Penalty.

Section 501 of the Model Traffic Code is amended by addition of the following:

Notwithstanding any provision of this Code to the contrary, when official signs are erected giving notice thereof, no person shall operate any vehicle with a weight limit in excess of the amounts specified on such signs at any time upon any of the streets or parts thereof or upon any of the bridges or viaducts posted as heretofore provided.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.170 Section 510, Permits for excess size and weight and for manufactured homes—Rules.

Section 510(1)(b)(I) of the Model Traffic Code is amended by deleting the following language: "All local permits shall be issued in the discretion of the local authority pursuant to ordinances or resolutions adopted in accordance with section 511. Any ordinances or resolutions of local authorities shall not conflict with this section."

Section 510(11) and (12) of the Model Traffic Code are repealed in their entirety and section 510(11) is reenacted to provide:

- (11) Local authorities may by resolution impose annual permit, single trip permits and overlength, over-width and over-height permit fees not to exceed the amounts permitted to be charged pursuant to C.R.S. 42-4-510(11).

(Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.180 Section 616, Wildlife crossing zones-increase in penalties for moving traffic violations.

Section 616 of the Model Traffic Code is repealed in its entirety.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.190 Section 714, Bicyclist or other authorized user in bicycle lane.

Section 714 of the Model Traffic Code titled "Bicyclist or other authorized user in bicycle lane" is repealed in its entirety and reenacted to provide:

- (1) The driver of a vehicle shall yield the right-of-way to a bicycle or other authorized user of a bicycle in the bicycle lane.
- (2) For the purposes of this section "bicycle lane" means a portion of the roadway that has been designated by striping, signage, or other pavement markings for the exclusive use of bicyclists or other authorized users of bicycle lanes. Bicycle

lane includes an intersection if the bicycle lane is marked on opposite sides of the intersection.

(Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.200 Section 805, Pedestrians walking or traveling in a wheelchair on highways.

Section 805(5) of the Model Traffic Code is repealed in its entirety and reenacted to provide:

- (5) Local authorities may regulate the use by pedestrians of streets and highways under its jurisdiction to the extent authorized under subsection (6) of this section but no regulation differing from this section shall be effective until official signs or devices giving notice thereof have been placed at such location.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.210 Section 901, Required position and method of turning.

Section 901(1)(a) and (1)(b) of the Model Traffic Code are repealed in their entirety and reenacted to provide:

- (a) Right turns. Both the approach for a right turn and the right turn shall be made as close as practicable to the right-hand curb or edge of the roadway. Unless double turn lanes are clearly marked by official signs, it shall be unlawful for the driver of a vehicle to make a right turn into any traffic lane other than the right-most lane of traffic of the road onto which the turn is made.
- (b) Left turns. The driver of a vehicle intending to turn left shall approach the turn in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle. Unless double turn lanes are clearly marked by official signs, it shall be unlawful for the driver of a vehicle to make a left turn into any traffic lane other than the left-most lane

of traffic lawfully available to traffic moving in the direction of travel of such vehicle.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.220 Section 1101, Speed limits.

Paragraphs (a), (b), (c), and (d) of subsection (2) of section 1101 of the Model Traffic Code are repealed in their entirety and reenacted to provide:

- (a) Fifteen (15) miles per hour on any private way open to travel by motor vehicles within mobile home parks;
- (b) Fifteen (15) miles per hour in any alley;
- (c) Except as otherwise provided in paragraphs (a) and (b) of this subsection, twenty (20) miles per hour on any street upon which a speed limit is not designated by an official traffic control device;

(d) Reserved.

(Ord. No. 2214, § 1, 7-25-2023; Ord. No. 2189, § 2, 7-12-2022)

10.04.230 Section 1102, Altering of speed limits.

Section 1102(6) of the Model Traffic Code is amended by deleting the phrase "by ordinance, or a county by resolution of the board of county commissioners" and adding the phrase "apartment complex, condominium complex or townhouse complex" after the phrase "in mobile home parks" in the section's first sentence.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.240 Section 1204, Stopping, standing, or parking prohibited in specified places.

Section 1204(8) of the Model Traffic Code is repealed in its entirety and enacted to provide:

No person shall stop, stand or park any vehicle upon any private property without the consent of the owner, lessee or person in possession of such property.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.250 Section 1209, Owner liability for parking violations.

Section 1209 of the Model Traffic Code is amended by the addition of the following:

In any prosecution charging a violation of any provision of this Part 12 governing the stopping, standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such regulation, together with proof that the defendant named in the complaint was at the time of such parking the registered owner of such vehicle, shall constitute an evidentiary prima facie presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the location where, and for the time during which, such violation occurred.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.260 Section 1210, Designated areas on private property for authorized vehicles.

Section 1210 of the Model Traffic Code is repealed in its entirety, re-titled "Parking regulations," and reenacted to provide:

- (a) Definitions. For the purposes of this section, the following words shall have the following meanings except as otherwise specified.
 - (1) "Adventure van or camper van" means a self-propelled vehicle consisting of a complete van chassis and exterior body as originally constructed by the manufacturer, with the interior converted, modified, constructed or altered to provide temporary living or sleeping quarters.
 - (2) "Commercial trailer" means any wheeled vehicle, without motive power, which is designed to be drawn by a motor vehicle and to carry its cargo load wholly upon its own structure and that is generally and commonly used to carry and

transport property over the public highways in furtherance of any commercial activity.

- (3) "Commercial vehicle" means any truck tractor, dump truck, semi-trailer, commercial trailer, low truck or vehicle equipped to provide towing services, or bus, that is used, or normally associated with, the transportation of materials, products, freight, other vehicles, or equipment in furtherance of any commercial activity or is used "for hire" except that any passenger vehicle designed to transport no more than nine persons or any pickup truck or van not exceeding twenty-five feet in length shall not be considered a commercial vehicle.
- (4) "Food truck" means a motorized or towed, self-contained, readily movable vehicle, that is designed and equipped to prepare and sell beverages and/or food while parked in a fixed location.
- (5) "Recreational vehicle" means a motor vehicle designed or used as a conveyance upon streets and highways, and constructed so as to provide temporary occupancy as a dwelling or sleeping place for one or more persons. Recreational vehicle does not include an adventure van, camper van, or pick-up truck with an attached camper shell.
- (6) "Trailer" means any wheeled vehicle, without motive power which is designed to be drawn by a motor vehicle and carry its load wholly upon its own structure and that is generally and commonly used to carry and transport property over the public highways.
- (7) "Travel trailer" means a portable structure, mounted on wheels, designed to be towed by a motorized vehicle and containing cooking or sleeping facilities to provide

temporary living quarters for recreational camping or travel use. Such structures may be constructed with rigid sides or may have collapsible side walls of fabric, plastic or other pliable material.

(b) Designated vehicle parking prohibitions.

- (1) It shall be unlawful for any person to park any of the following vehicles on either side of the public right-of-way adjacent to any lot in any residence district, except when such vehicle is being used to render services to a property located within two hundred feet of the vehicle:
 - (i) Any commercial vehicle or commercial trailer;
 - (ii) Any motor vehicle exceeding twenty-five feet in length except that the measured length of such vehicle shall exclude towing gear bumpers and attached cargo racks;
 - (iii) A combination of a trailer and motor vehicle exceeding twenty-five feet in length or eight feet in width;
 - (iv) Any trailer or travel trailer exceeding twenty-five feet in length.
- (2) It shall be unlawful for any person to park a food truck and conduct business upon any public right-of-way except as authorized and in compliance with a permit acquired from the city's office of special events.
- (3) It shall not be a defense to this subsection (b) that any vehicle, trailer or food truck has been moved to a different location within the public right-of-way. To be in compliance, the vehicle, trailer or food truck must be removed from the applicable right-of-way.

(c) Parking of recreational vehicles, travel trailers or trailers on public right-of-way prohibited.

(1) It is unlawful for any person to park a recreational vehicle, travel trailer or trailer on the public right-of-way except as follows:

- (i) Directly in front of the single-family or multi-family dwelling of the vehicle's registered owner for a period of not more than seventy-two (72) hours when being loaded or unloaded and not more than five seventy-two (72) hour periods in any calendar year; or
- (ii) In compliance with the terms and conditions of a permit issued pursuant to subsection (d) herein below.
- (iii) It shall not be a defense to this subsection (c) that the recreational vehicle, travel trailer or trailer has been moved to a different location within the public right-of-way. To be in compliance with this section, the recreational vehicle, travel trailer or trailer must be removed from the public right-of-way.

(d) Permits for parking of recreational vehicles or travel trailers on the public right of way.

(1) The director of public works or his/her designee may issue a permit to the registered owner of a recreational vehicle, travel trailer or trailer to park such vehicle for a period of time greater than seventy-two (72) hours on public right-of-way adjacent to any lot in any residence district subject to the following restriction:

- (i) The permit shall only allow the vehicle to be parked on the public right-of-way that is directly in front of the applicant's single-family or

multi-family dwelling for a period of time not to exceed fifteen calendar days within any calendar year.

(Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.270 Section 1301, Open alcohol beverage container in motor vehicle prohibited.

Section 1301 of the Model Traffic Code, titled "Open alcohol beverage container in motor vehicle prohibited," is enacted to provide:

- (1) Definitions. As used in this section, the following words and phrases shall mean as set forth below, unless otherwise specified:
 - (a) "Alcohol beverage" means a beverage as defined in C.R.S. 44-3-103(2).
 - (b) "Motor vehicle" means a vehicle driven or drawn by mechanical power and manufactured primarily for use on public highways but does not include a vehicle operated exclusively on a rail or rails.
 - (c) "Open alcohol beverage container" means a bottle, can, or other receptacle that contains any amount of alcohol beverage, and:
 - (I) That is open or has a broken seal; or
 - (II) The contents of which are partially removed.
 - (d) "Passenger area" means the area designed to seat the driver and passengers while a motor vehicle is in operation and any area that is readily accessible to the driver or a passenger while in his or her seating position, including, but not limited to, the glove compartment.
- (2) (a) Except as otherwise permitted in paragraph (b) of this subsection (2), a person while in the passenger area of a motor vehicle that is on a public roadway or highway of this

state or the right-of-way of a public roadway or highway of this state may not knowingly:

- (I) Drink an alcohol beverage; or
 - (II) Have in his or her possession an open alcohol beverage container.
- (b) The provisions of this subsection (2) shall not apply to:
- (I) Passengers, other than the driver or a front seat passenger, located in the passenger area of a motor vehicle designed, maintained, or used primarily for the transportation of persons for compensation;
 - (II) The possession by a passenger, other than the driver or a front seat passenger, of an open alcohol beverage container in the living quarters of a motor home or trailer coach as defined in Appendices, Definitions, (57) and (106(a));
 - (III) The possession of an open alcohol beverage container in the area behind the last upright seat of a motor vehicle that is not equipped with a trunk; or
 - (IV) The possession of an open alcohol beverage container in an area not normally occupied by the driver or a passenger in a motor vehicle that is not equipped with a trunk.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.280 Section 1302, Open marijuana container—Motor vehicle prohibited.

Section 1302 of the Model Traffic Code, titled "Open marijuana container—Motor vehicle prohibited," is enacted to provide:

- (1) Definitions. As used in this section, the following words and phrases shall mean as set forth below unless otherwise specified.
 - (a) Marijuana means all parts of the plant of the genus cannabis whether growing or not, the seeds thereof, the resin extracted from any part of the plant, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or its resin, including marijuana concentrate. Marijuana does not include industrial hemp, nor does it include fiber produced from the stalks, oil, or cake made from the seeds of the plant, sterilized seed of the plant, which is incapable of germination, or the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink or other product.
 - (b) Motor vehicle shall mean a vehicle driven or drawn by mechanical power and manufactured primarily for use on public highways but does not include a vehicle operated exclusively on a rail or rails.
 - (c) Motor home means a vehicle designed to provide temporary living quarters and which is built into an integral part of, or a permanent attachment to, a motor vehicle chassis or van.
 - (d) Open marijuana container means a receptacle or marijuana accessory that contains any amount of marijuana and:
 - 1. That is open or has a broken seal;

- 2. The contents of which are partially removed; and
 - 3. There is evidence that marijuana has been consumed within the motor vehicle.
- (e) Passenger area means the area designed to seat the driver and passengers, including seating behind the driver, while a motor vehicle is in operation and any area that is readily accessible to the driver or a passenger while in his or her seating position, including but not limited to the glove compartment.
- (f) Trailer coach means a wheeled vehicle having an overall length, excluding towing gear and bumpers, of not less than twenty-six feet, without motive power, that is designed and generally and commonly used for occupancy by persons for residential purposes, in temporary locations, and that may occasionally be drawn over the public highways by a motor vehicle and is licensed as a vehicle.
- (2) Except as otherwise permitted under this section, a person, while in the passenger area of a motor vehicle that is on a public street or roadway, or the right-of-way of a public street or roadway may not knowingly:
- (a) Use or consume marijuana; or
 - (b) Have in his or her possession an open marijuana container.
- (3) The provisions of this section shall not apply to:
- (a) Passengers, other than the driver or a front seat passenger, located in the passenger area of a motor vehicle designed, maintained, or used primarily for the transportation of persons for compensation; or passengers within a state and locally licensed mobile marijuana hospitality establishment;
 - (b) The possession by a passenger, other than the driver or a front seat passenger, of an open marijuana container in the living quarters of a motor home, or trailer coach;
 - (c) The possession of an open marijuana container in the area behind the last upright seat of a motor vehicle that is not equipped with a trunk; or
 - (d) The possession of an open marijuana container in an area not normally occupied by the driver or a passenger in a motor vehicle that is not equipped with a trunk.
- (Ord. No. 2189, § 2, 7-12-2022)
- 10.04.290 Section 1409, Compulsory insurance—Penalty—Legislative intent.**
- Section 1409(4) and (9) of the Model Traffic Code are repealed in their entirety.
(Ord. No. 2189, § 2, 7-12-2022)
- 10.04.300 Section 1417, Regulation of traffic across private property.**
- Section 1417 of the Model Traffic Code, titled "Regulation of traffic across private property," is enacted to provide:
- (a) It is unlawful for any person to drive a motor vehicle from a public highway or roadway or any public way of this City over, across or through any private property to avoid traffic control signals or traffic control devices or as a route or shortcut from one public highway or roadway or any public way to another.
 - (b) As used in this section, "private property" includes, but is not limited to, any property not designated as a public roadway, highway, street or public way, alley, right-of-way or easement.
 - (c) It is an affirmative defense to a charge of violation of this section that the person charged is the owner of the property or the owner of a leasehold, possessory inter-

est or easement in or to the property through or across which the motor vehicle is driven.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.310 Section 1701, Traffic offenses and infractions classified—Penalties—Penalty and surcharge schedule—Repeal.

Section 1701 of the Model Traffic Code is repealed in its entirety.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.320 Section 1705, Persons arrested to be taken before the proper court.

Section 1705 of the Model Traffic Code is hereby repealed and reenacted to read as follows:

1705. Person arrested for violation.

Whenever any person is arrested by a police officer for any violation of this code, the Golden Police Department will follow its policies and procedures and this code as they pertain to summons and complaint and bond issues.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.330 Section 1707, Summons and complaint for traffic violations.

Section 1707 of the Model Traffic Code is repealed and reenacted to read as follows:

1707. Summons and complaint for traffic violations.

- (1) Whenever a person commits a violation of this Article or any statute and such person is not required by the provisions of section 1705 to be arrested and taken without unnecessary delay before a county court judge or a municipal judge, the peace officer may issue and serve upon the defendant a summons and complaint which shall contain the name and address of the defendant, the license number of the vehicle involved, if any, the number of the defendant's driver's license, if any, a citation of the Model Traffic Code section alleged to have been violated, a

brief description of the offense, the date and approximate location thereof, and the date the summons and complaint is served on the defendant; shall direct the defendant to appear in or otherwise respond to the City Municipal Court or County Court, at a specified time and place; shall be signed by the peace officer; and shall contain a place for the defendant to execute a written promise to appear at the time and place specified in the summons portion of the summons and complaint.

- (2) The City of Golden may offer or extend to a defendant the opportunity for the defendant to pay a penalty assessment for a non-criminal traffic infraction prior to the date and time scheduled for the defendant's appearance in the City Municipal Court. Whenever a penalty assessment is made available for a traffic infraction, the defendant shall be required to execute a signed acknowledgment of guilt and shall pay the penalty prescribed by the City within a specified period of time, as well as provide such other information as may be required by the City. Payment of a penalty assessment notice by the person to whom the notice is tendered shall constitute an acknowledgement of guilt by such person of his or her violation, and the City, upon accepting the prescribed fine, shall issue a receipt to the violator acknowledging payment thereof, if requested.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.340 Section 1709(1), Penalty assessment notice for traffic offense.

Section 1709(1) of the Model Traffic Code is amended by inserting the phrase "or code provision," after the phrase "citation of the statute" and by inserting the phrase "or municipal" after the phrase "appear in a specified county".

Section 1709(3) is hereby repealed.

(Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2189, § 2, 7-12-2022)

10.04.350 Section 1710, Failure to pay penalty for traffic offenses.

Section 1710(3) of the Model Traffic Code is amended by adding the phrase "or Rule 248(b) of the Colorado Municipal Court Rules" after the phrase "in section 18-1-405, C.R.S."

Section 1710(5) of the Model Traffic Code is enacted to provide:

- (a) Upon the date and at the time for appearance, if the defendant fails to appear and if the municipal judge determines that venue is proper and that defendant was served a summons and complaint at least ten (10) calendar days prior to the appearance date, the judge may, for traffic offenses of not more than four (4) points (except for compulsory insurance), or a six (6) point offense of speeding, not more than twenty-four (24) miles over the posted speed limit, enter judgment and impose sentence, including costs against the defendant.
- (b) Failure to appear on any date scheduled for trial shall constitute cause for entering a default judgment for all traffic offenses of not more than four (4) points (except for compulsory insurance) or a six (6) point offense of speeding not more than twenty-four (24) miles over the posted speed limit, and upon entry of such default, the judge may impose sentence including costs against the defendant.
- (c) On the grounds of excusable neglect, the judge may, by motion of the defendant, set aside an entry of default and the judgment entered thereon. Such motion must be filed with the court within seven (7) calendar days of the entry of judgment for such matter. A motion under this section shall not affect the finality of a judgment or suspend its operation.
- (d) Any default entered in accordance with this section shall be certified to the State Motor Vehicle Division for enforcement.

- (e) The court shall not issue a warrant for the arrest of any defendant against whom a default is entered and upon which a sentence is imposed thereon.

(Ord. No. 2189, § 2, 7-12-2022)

10.04.354 Section 1720, Registration violations—Dismissal upon compliance—Notice required.

Section 1720 of the Model Traffic Code, titled "Registration violations—Dismissal upon compliance—Notice required," is enacted to provide:

(1) It shall be unlawful for any person to operate or park a vehicle, trailer, semitrailer, or motor vehicle upon any public street, alley, roadway, highway, or other public right-of-way within the City when such vehicle does not display current license plates with visible and valid year and month registration tabs as required by C.R.S § 42-3-114.

(2) A court may dismiss a violation for failing to register a vehicle, trailer, semitrailer, or motor vehicle in violation of this section if:

- (a) The vehicle, trailer, semitrailer, or motor vehicle was unregistered for no more than four months at the time of the violation;
- (b) The owner registered the vehicle, trailer, semitrailer, or motor vehicle before the owner's first court date as listed on the citation or summons; and
- (c) The owner pays to the court a thirty-dollar administrative dismissal fee if the court is a municipal court.

(3) A peace officer who charges a person for a violation described in subsection (1) of this section must notify the defendant of the opportunity to have the charge dismissed by the court, if the registration that led to the citation or summons is expired for four months or less at the time of the violation and if registration is renewed prior to the first court date listed on the citation or summons, by either:

- (a) Oral means if notification by electronic means on the citation is not implemented; or

(b) Electronic means on the citation if implemented.
(Ord. No. 2278, § 4, 8-26-2025)

10.04.360 Appendices—Definitions.

Appendices—Definitions of the Model Traffic Code, Sections (11) and (80) are repealed and reenacted to read in full as follows:

- (11) "Business district" means areas mapped as CMU-NC, CMU-CC1, CMU-CC2, C1, C2, and M1 on the official zoning map of the City of Golden.
- (80) "Residence district" means areas mapped as RE, R1, R1A, R2, R3, RC, M2, AG, CO, and RM on the official zoning map of the City of Golden.
(Ord. No. 2189, § 2, 7-12-2022)

Chapter 10.10

VEHICLE PARKING ENFORCEMENT

10.10.010 Definitions.

As used within this chapter the following words and terms shall have the following meaning except where otherwise specified:

Motor vehicle or *vehicle* means any self-propelled vehicle which is designed primarily for travel on the public highways and which is generally and commonly used to transport persons and property over public highways; such term includes, as defined by C.R.S. Title 42, as amended, neighborhood electric vehicles, but does not include motorized bicycles, wheelchairs or vehicles moved solely by human power.

Parking enforcement officer means any city employee who is authorized by the chief of police or any employee of an independent contractor authorized pursuant to a written contract approved by the city manager to enforce any of the parking violations set forth in the Code, to issue penalty assessment notices, and to collect fines in accordance with generally accepted lawful collection procedures.
(Ord. No. 2263, § 2, 3-25-2025; Ord. No. 2072, § 1, 3-22-2018)

10.10.020 Parking magistrate.

(a) *[Appointment and supervision.]* The city manager shall appoint and supervise a parking magistrate(s).

(b) *Authority of magistrate.* The parking magistrate shall have the authority to conduct final hearings as set forth in chapter 8.25 administrative citations for the appeal of vehicle parking citations. The parking magistrate shall have the discretion to uphold, reduce, or dismiss a parking citation and waive or reduce any fines or costs based on the evidence and arguments submitted before the magistrate.

(c) *Responsibilities of magistrate.* The parking magistrate shall:

- (1) Provide an orderly process for the hearing of testimony, entry of evidence, ruling on evidentiary matters, questioning witnesses and preparing recordings of proceedings of administrative appeals of parking violations;
- (2) Review and evaluate all evidence and issue written decisions containing findings of facts and conclusions of law to all parties involved in parking citation appeals;
- (3) Consider defendant's circumstances, including prior parking violations, as applicable to determine if fines, fees or costs may equitably be reduced or waived;
- (4) Perform other necessary administrative activities and functions related to parking citation appeals; and
- (5) Educate and assist the public through knowledge of applicable city policies, procedures and ordinances regarding motor vehicle parking matters.

(Ord. No. 2263, § 3, 3-25-2025; Ord. No. 2072, § 1, 3-22-2018)

10.10.030 Citation procedure.

(a) If any motor vehicle is found parked, standing, or stopped in violation of the parking ordinances or rules promulgated by the city, the vehicle may be affixed with a citation. The citing parking enforcement officer shall note the vehicle's

registration number or vehicle identification number and any other information concerning the vehicle which will identify it and, if the driver is not present, shall conspicuously affix the citation to the motor vehicle.

(b) Any person cited for a violation of a parking offense who believes that such citation has been issued in error shall have the right to contest the validity of the citation in accordance with the procedures set forth on the citation, which includes a final disposition by the parking magistrate.

(c) Any person who fails to pay the assessed fine within the time period indicated on the citation shall be deemed to have refused to pay and shall be liable for the payment of all applicable fines, penalties, and costs, which amounts the city or an independent contractor pursuant to a written contract approved by the city manager may collect as permitted by law.

(Ord. No. 2263, § 4, 3-25-2025; Ord. No. 2072, § 1, 3-22-2018)

10.10.040 Information to be included in parking citation.

(a) The form of the parking citation shall be determined by the city, but shall contain in substance the following information:

- (1) A statement that a parking violation has been committed by the owner or operator of the motor vehicle and that the determination shall be final unless contested as provided in this chapter;
- (2) A statement that a parking violation may result in impoundment of the motor vehicle for which the owner may be liable for a fine and towing, handling and storage charges or fees;
- (3) A statement of the specific parking violation(s) for which the citation was issued;

- (4) A statement of the monetary fine established for the parking violation; and
- (5) A statement of the options for responding to the notice and the procedures necessary to exercise the options.

(b) The parking citation represents a determination that a parking violation has been committed, and such determination shall be final unless contested as provided in this chapter. (Ord. No. 2072, § 1, 3-22-2018)

10.10.050 Responsibilities of person who receives citation; liability of vehicle owner.

(a) *Person receiving citation.* Any person who receives a parking citation shall respond to such citation within ten days of the date of the issuance of the citation by either paying the fine set forth in the citation or exercising the dispute options set forth in the citation.

(b) *Vehicle owner.* If the owner of a vehicle cited for a parking violation has not responded to the citation within ten days, as provided in this section, the owner shall be subject to the fines and fees established in accordance with this chapter.

(c) *Owner liable.* The registered owner of a vehicle at the time the violation occurred shall be liable for all unpaid fines and fees.

(d) *Evidentiary standard.* In any prosecution regarding a violation of any provision of the Code governing the stopping, standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such regulation, together with proof that the defendant named in the complaint was at the time of the issuance of the citation the registered owner of such vehicle, shall constitute an evidentiary prima facie presumption that the registered owner of such vehicle was the person who parked or caused or permitted to be placed such vehicle at a location where and for the time during which such violation occurred. (Ord. No. 2072, § 1, 3-22-2018)

10.10.060 Hearing to challenge validity of a parking violation.

(a) *Generally.* Any person who properly exercises the option of an appeal before the parking magistrate as set forth on the citation shall have a hearing before the parking magistrate to be held no later than 45 days from the date of the magistrate's receipt of the request for a hearing, unless an extension is otherwise authorized by the parking magistrate.

(b) *Notice.* No less than seven days prior to the date set for the hearing, the city shall cause to be issued a written notice to the registered owner of the vehicle setting forth the date, time and place of the hearing. Any person requesting a hearing who fails to appear at the time and place set for the hearing shall be deemed to have waived the opportunity for a hearing before the parking magistrate and all fines, fees and costs shall become due as indicated on the issued parking citation.

(c) *Review of dispute.* The parking magistrate shall review all relevant documentation on file with the city regarding the case, including, but not limited to, the parking citation, reports, and written statements, if any. All documents may be submitted electronically. In lieu of the issuing officer's personal appearance at the hearing, the magistrate shall consider the parking citation and any other written report by the parking enforcement officer who issued the citation.

(d) *Hearing recorded.* The parking magistrate shall electronically record all parking citation hearings pursuant to this chapter and maintain such recordings in accordance with the city's record retention schedule.

(e) *Determination.* At the hearing and after consideration of the evidence, the parking magistrate shall issue a final determination whether a violation was committed. Where it has not been established that the violation was committed, the citation shall be dismissed. Where it has been established that a violation was committed, the magistrate shall uphold the citation and order the registered owner of the vehicle to pay the applicable fines, penalty and costs within seven days. Such costs shall as reason-

ably determined by the parking magistrate include administrative costs of not less than \$100.00 but not more than \$300.00. A copy of such order shall be issued to the registered owner of the vehicle.

(f) *Failure to pay.* Any person ordered to pay the assessed fines, fees and costs who fails to do so within seven days following the hearing shall be deemed to have refused to pay and shall be liable for the payment of all applicable fines, penalty and costs, which amounts the city or an independent contractor authorized pursuant to a written contract approved by the city manager may collect as permitted by law.

(Ord. No. 2263, § 5, 3-25-2025; Ord. No. 2072, § 1, 3-22-2018)

10.10.070. Establishment of fines and fees.

City council shall by resolution establish the amount of all fines and fees prescribed in this chapter.

(Ord. No. 2072, § 1, 3-22-2018)

Chapter 10.76

MISCELLANEOUS RULES

10.76.210 Vehicles exceeding 7,000 pounds empty weight prohibited from using Ford and North Ford Streets.

No person shall drive, operate or move any vehicle exceeding 7,000 pounds empty weight upon or over those portions of Ford and North Ford Streets located north of the Ford Street and 7th Place intersection and south of the northernmost city limit line, except authorized emergency vehicles, vehicles making deliveries in the immediate neighborhood and vehicles owned by residents of the immediate neighborhood. The traffic engineer shall erect or cause to be erected and maintained signs designating the above prohibitions.

(Ord. 723, § 1, 1975)

10.76.220 Impoundment of motor vehicles authorized for delinquent parking citations.

(a) The Golden Police Department is authorized to cause to be towed, impounded and stored any motor vehicle issued a parking citation when

there are two or more City of Golden parking citations against said motor vehicle which are outstanding, delinquent and unpaid at that time.

(b) Such an impounded motor vehicle shall be released only upon payment by the registered owner of the towing, impounding and storage charges, the assessments for the parking violations or the posting of the necessary bond as the case may be, and any other penalties provided for such parking violations.

(Ord. 873, § 1, 1981)

10.76.230 Vehicles exceeding 10,000 lbs. gross weight prohibited from using portions of Highway 93.

(a) No person shall operate or drive a vehicle upon or over that portion of Jefferson County Highway 93 located from the intersection of U.S. Highway 6 and Jefferson County Highway 93 southerly to the intersection of U.S. Highway 40 and Jefferson County Highway 93, within the corporate limits of the City of Golden, which has more than a 10,000 lb. gross weight. The traffic engineer shall erect or cause to be erected and maintained signs designating the within prohibitions.

(b) The terms and provisions of this Section shall not apply to any vehicle which is traveling on the aforementioned portion of Jefferson County Highway 93 to make a local delivery to a home, residence or business within the immediate neighborhood or to any vehicle owned by a resident of the immediate neighborhood, nor to a school or RTD bus, nor to an authorized emergency vehicle.

(Ord. 1030, § 1, 1987)

10.76.240 Vehicles exceeding 10,000 lbs., gross weight prohibited from using portions of Boyd Street, North Ford Street, Cheyenne Street, Virginia Street and Washington Avenue; penalty.

(a) *Definitions.*

(1) *Commercial vehicles:* The term "commercial vehicles" means every vehicle

designed, used, or maintained primarily for the transportation of personal property, rather than people.

- (2) *Truck:* The term "truck" means any motor vehicle which is used for the transportation or delivery of goods with a body built and designed for that purpose.

- (3) *Bus*: The term "bus" means every motor vehicle designed for carrying more than seven passengers and used primarily for the transportation of persons for compensation.
- (4) *School bus*: The term "school bus" means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from any school, or privately owned and while being operated primarily for the transportation of children to or from any school.
- (5) *Semi-trailer*: The term "semi-trailer" means every vehicle of the trailer type so designed and used in conjunction with a motor vehicle that some part of its own weight and that of its own load rests upon or is carried by another vehicle.

(b) No person shall operate or drive a commercial vehicle, truck, bus or semi-trailer upon or over those portions of Boyd Street, North Ford Street, Cheyenne Street, Virginia Street and Washington Avenue located from the northerly city limit boundary, southerly to Colorado State Highway 58, within the corporate limits of the City of Golden which has more than a 10,000 lb. gross weight.

(c) The terms and provisions of this Section shall not apply to any vehicle defined herein which is traveling on the aforementioned portions of Boyd Street, North Ford Street, Cheyenne Street, Virginia Street and Washington Avenue to make a delivery to or from a home, residence or business within the City of Golden or any vehicle which is driven by a resident of the City of Golden traveling to or from his home located within the city limits of the City of Golden, nor to a school bus as defined herein, nor busses owned and operated by the Regional Transportation District, nor to an authorized emergency vehicle. (Ord. 1129, 1991; Ord. 1101, 1990; Ord. 1071, 1989; Ord. 1065, § 1, 1989; Ord. 1061, § 1, 1989)

10.76.250 Solicitation of towing business.

(a) It shall be unlawful for any person to drive or cause any tow truck or vehicle equipped to provide towing service to be driven to, or to stop

or park any such vehicle, or cause the same to be stopped or parked, at or near the scene of any fire, explosion, traffic accident or other emergency scene, when such tow truck or vehicle has not been called to the scene by the owner or operator of a damaged vehicle, or the owner of the property required to be towed from the scene, or by such person's duly authorized agent or insurance carrier, or by an agent or representative of the city's police department, or by a fireman or other peace officer attending the scene.

(b) It shall be unlawful for any person to solicit any person at or near the scene of any fire, explosion, traffic accident or other emergency, for the purpose of procuring towing business, which is defined herein as the securing of authorization or agreement to tow or haul away any vehicle or other personal property from any such scene, for hire.

(Ord. 1446, 1999)

10.76.260 Idling restriction on delivery vehicles.

It shall be unlawful for any person to allow engine idling of a delivery vehicle between the hours of 7:00 p.m. and 7:00 a.m.

(Ord. No. 2279, § 4, 10-28-2025)

Chapter 10.90 PARKING RESTRICTIONS IN DESIGNATED AREAS*

10.90.005 Purpose.

This chapter of the Golden Municipal Code is intended to address situations where city council determines that it is necessary and appropriate to establish special permit parking restrictions in residential areas impacted by special generators including, but not limited to, schools, colleges and universities, and special events venues. (Ord. 1862, § 1, 2010)

***Editor's note**—Sec. 1 of Ord. No. 2037, adopted Sept. 8, 2016, amended the title of ch. 10.90 to read "designated areas" instead of "residential areas."

10.90.010 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

City engineer means the city engineer or the engineer's authorized designee.

Employee means a person who is an owner of, or is employed by or volunteers for, on a full- or part-time bases, a nonprofit enterprise or a commercial enterprise licensed by the city, that maintains a place of business within the restricted parking area.

Guest means a person who, with the permittee's permission, is received at or enters the permittee's residence upon arriving at the location.

Resident means a person who occupies a residential dwelling within the restricted parking area and who, for example, by purchase or lease of such dwelling, manifests an intent to maintain an ongoing presence and/or occupation of or at such location.

Special generator means a land use or activity that causes or may cause safety and vehicular congestion problems in residential areas within the community, primarily through the excessive use of city streets for parking of vehicles that would otherwise be accommodated on the premises of the special generator.

(Ord. No. 2037, § 2, 9-8-2016; Ord. 1862, § 2, 2010; Ord. 1370, 1997)

10.90.020 Designation of restricted parking area.

(a) City council may, by resolution, designate certain limited areas as subject to permit parking restrictions based upon factors to include, but not be limited to: proximity to special generators; availability of both on- and off-street parking; vehicular capacity, including the width, grade and curve of the area's streets; existing traffic control measures; traffic volume; utility and emergency service access; and demographics.

(b) City council shall, by resolution, establish the boundaries of each restricted parking area. Minor amendments of no more than one block or 300 feet in extent may be authorized by the city engineer upon the city engineer's consideration of the criteria set forth in this section, with written notice to city council thereafter. Other amendments to such boundaries may be authorized by city council resolution also based upon consideration of the criteria set forth in this section.

(Ord. No. 2037, § 3, 9-8-2016; Ord. 1862, § 3, 2010; Ord. 1370, 1997)

10.90.030 Signs.

The city engineer shall cause signs to be erected designating the restricted parking areas. The signs shall describe that parking is prohibited during specified days and times unless one displays an authorized permit.

(Ord. 1370, 1997)

10.90.040 Permits.

The city manager or his designated representative shall issue parking permits to eligible residents and employees within the restricted parking areas. The permits shall only be for the use of such employees as well as residents and their guests and, allow parking within the designated areas during the restricted times.

(Ord. No. 2037, § 4, 9-8-2016; Ord. 1660, § 1, 2004; Ord. 1370, 1997)

10.90.050 Permit required.

(a) It shall be unlawful for any person to park on the streets or alleys within the designated areas during the restricted days and times unless such person is an authorized permittee or guest of such permittee and a valid permit has been issued by the city.

(b) In any prosecution of this section, evidence that the vehicle described in the complaint was parked in violation of this section, together with evidence that the defendant named in the complaint was at such time the registered owner of the vehicle, shall constitute prima facie evidence that the defendant was the person who parked,

or knowingly permitted to be parked, such unattended vehicle at the place where and for the date and time when such violation occurred.
(Ord. No. 2037, § 5, 9-8-2016; Ord. 1660, § 1, 2004; Ord. 1370, 1997)

10.90.060 Permit restrictions.

Permittees shall not assign, transfer, or convey or otherwise allow unauthorized third parties to hold or use a permit. The city manager or his designated representative may, upon notice to the permittee, suspend or revoke a permit for failure to comply with the terms and conditions of this chapter.

(Ord. No. 2037, § 6, 9-8-2016; Ord. 1370, 1997)

Chapter 10.95**AUTOMATED VEHICLE IDENTIFICATION SYSTEM****10.95.005 Definitions.**

As used within this chapter the following words and terms shall have the following meaning except where otherwise specified:

- (a) *Automated vehicle identification system* includes a system to detect traffic violations imposed by traffic signals or traffic signs, and/or a system used to detect violations of a bus lane or bicycle lane restrictions. The term includes a system whereby:
 - (1) A machine is used to automatically detect a violation of a traffic regulation and simultaneously record a photograph of the vehicle, the operator of the vehicle, and the license plate of the vehicle; and
 - (2) A notice of violation or civil penalty assessment notice may be issued to the registered owner of the motor vehicle.
- (b) *Notice of violation* shall mean a notice mailed via first class mail or personally served to a registered owner of a vehicle involved in any traffic violation detected by an automated vehicle identification system advising that the violation has been detected, or a similar notice mailed to the operator of the vehicle identified by a registered owner of said vehicle.
- (c) *Civil penalty assessment notice* shall mean a notice mailed via first class mail or

personally served to a registered owner of a vehicle involved in any traffic violation that has previously received a notice of violation.

- (d) *Residential neighborhood* means any block on which a majority of the improvements along both sides of the street are residential dwellings and the speed limit is thirty-five (35) miles per hour or less. (Ord. No. 2215, § 1, 7-25-2023)

10.95.010 Automated vehicle identification system notices of violation—In general.

(a) If the city detects any alleged violation of a county or municipal traffic regulation or traffic violation under state law through the use of an automated vehicle identification system, then the city shall issue, or cause its vendor to issue, to the registered owner of the motor vehicle involved in the alleged violation, by first-class mail or personal service, a notice of violation.

(b) The city may only issue a notice of violation for violations that occur:

- (1) Within a school zone;
- (2) Within a residential neighborhood;
- (3) Within a maintenance, construction, or repair zone designated pursuant to C.R.S. § 42-4-614;
- (4) Along a street that borders a city park; or
- (5) Along a street, or portions of a street, which the city designates as an automated vehicle identification system corridor as set forth in section 10.95.025.

(c) The notice of violation must be served:

- (1) Within thirty (30) days after the alleged violation if the motor vehicle involved in the alleged violation is registered in the state; or
- (2) Within sixty (60) days after the alleged violation if the motor vehicle involved in the alleged violation is registered outside the state.

(d) The notice of violation must contain:

- (1) The name and address of the registered owner of the motor vehicle involved in the alleged violation;
- (2) The license plate number of the motor vehicle involved in the alleged violation;
- (3) The date, time, and location of the alleged violation;
- (4) The amount of the civil penalty prescribed for the alleged violation;
- (5) The deadline for payment of the prescribed civil penalty and for disputing the alleged violation; and
- (6) Information on how the registered owner may either dispute the alleged violation at a hearing or pay the prescribed penalty.

(e) To protest a notice of violation, the registered owner must request, in writing, a hearing to dispute the alleged violation. The deadline to request a hearing to dispute the notice of violation must be at least forty-five (45) days after the date of the notice of violation. At the hearing, the city may not require the registered owner to disclose the identity of the driver of the vehicle who is detected through the use of the automated vehicle identification system but may require the registered owner to submit evidence that the owner was not the driver at the time of the alleged violation.

(Ord. No. 2215, § 1, 7-25-2023)

10.95.015 Automated vehicle identification system—Speeding.

(a) *Violations.*

- (1) For a speeding violation of less than ten (10) miles per hour over the reasonable and prudent speed under a county or city traffic regulation or under state law through the use of an automated vehicle identification system, the violation shall be cited as follows:

(A) For the registered owner's first offense, a written warning with no penalty or surcharge; and

(B) For the registered owner's second or subsequent offense, a notice of violation.

- (2) For a speeding violation of more than ten (10) miles per hour over the reasonable and prudent speed under a county or city traffic regulation or under state law through the use of an automated vehicle identification system, the city shall issue the registered owner a notice of violation.

(b) *Civil penalty.* The maximum civil penalty for a speeding violation under this section, including any surcharge, is forty dollars (\$40.00), unless the violation is within a school zone, in which case the maximum penalty shall be eighty dollars (\$80.00). However, a violation that occurs within a maintenance, construction, or repair zone designated pursuant to C.R.S. § 42-4-614 may be subject to a civil penalty of eighty dollars (\$80.00).

(c) *Signage.* The city shall place in an appropriate temporary or permanent sign in a conspicuous place not fewer than three hundred (300) feet before the area in which the automated vehicle identification system is to be used notifying the public that an automated vehicle identification system is in use immediately ahead.

(Ord. No. 2215, § 1, 7-25-2023)

10.95.020 Automated vehicle identification system—Disobedience to a traffic control signal.

(a) If the city detects a violation of a municipal traffic regulation or traffic violation under state law for disobedience to a traffic control signal through the use of an automated vehicle identification system, the maximum penalty, including any surcharge, is seventy-five dollars (\$75.00).

(b) The city shall not use an automated vehicle identification system designed to detect disobedience to a traffic control signal or other violation of a local traffic ordinance unless the city posts a

sign notifying the public that an automated vehicle identification system is in use immediately ahead. Such sign shall:

- (1) Be placed in a conspicuous location not less than two hundred (200) feet nor more than five hundred (500) feet before the automated vehicle identification system; and
- (2) Use lettering that is at least four (4) inches high for upper case letters and two and nine-tenths (2 and 9/10) inches high for lower case letters.

(Ord. No. 2215, § 1, 7-25-2023)

10.95.025 Automated vehicle identification system corridors.

(a) Pursuant to C.R.S. § 42-4-110.5(2)(g)(I), the city identifies the following corridors as automated vehicle identification system corridors: None.

(b) Prior to using an automated vehicle identification system on an automated vehicle identification system corridor, the city shall post a permanent sign not fewer than three hundred (300) feet before the beginning of such corridor and a permanent sign not fewer than three hundred (300) feet before each camera within the corridor or a temporary sign fewer than three hundred (300) feet before any mobile camera.

(c) The city shall illustrate, through data collected within the past five (5) years, incidents of crashes, speeding, reckless driving, or community complaints on the street designated as an automated vehicle identification system corridor.

(d) The city will coordinate with the department of transportation and Colorado state patrol in designating the corridor.

(e) The city will publish a report on its website disclosing the number of citations and revenue generated by the automated vehicle identification system corridor.

(f) The city shall not locate an automated vehicle identification system corridor on any highway that is part of the federal interstate highway system.

(Ord. No. 2215, § 1, 7-25-2023)

10.95.030 Automated vehicle identification system civil penalty assessment notices.

(a) If the city has not received the prescribed civil penalty or written notice requesting a hearing to dispute the alleged violation by the deadline provided in the notice of hearing, then the city shall issue, or cause its vendor to issue, a civil penalty assessment notice to be served on the registered owner either by first-class mail or personal service.

(b) The civil penalty assessment notice shall contain:

- (1) The name and address of the registered owner of the motor vehicle involved in the alleged violation;
- (2) The license plate of the motor vehicle involved in the alleged violation;
- (3) The date, time, and location of the alleged violation;
- (4) The amount of the civil penalty prescribed for the alleged violation;
- (5) The deadline for payment of the prescribed civil penalty; and
- (6) Information on how to pay the prescribed civil penalty.

(c) If the registered owner fails to pay the full prescribed civil penalty by the deadline stated in the civil penalty assessment notice, a final order of liability shall be entered against the registered owner of the vehicle. The final order must be personally served to the registered owner. Final orders of liability may be appealed as to matters of law and fact to the Jefferson County Court.

(d) The city may initiate or pursue a collection action against the registered owner of a motor vehicle for a debt resulting from the final order of liability.

(e) The city shall not report to the department of transportation any conviction or entry of judgment against a defendant for a violation of a municipal traffic regulation or traffic violation under state law if the violation was detected through the use of an automated vehicle identification system.

(f) If the registered owner fails to pay the full prescribed civil penalty, the city shall not attempt to enforce the penalty by immobilizing the registered vehicle owner's vehicle.
(Ord. No. 2215, § 1, 7-25-2023)

10.95.035 Automated vehicle identification system—Vendors.

No portion of any fine collected through the use of an automated vehicle identification system may be paid to the manufacturer or vendor of the automatic vehicle identification system equipment. The compensation to such vendor by the city shall be based on the value of such equipment and the value of any services provided, and may not be based on the number of traffic citations issued or the revenue generated by such equipment or services.
(Ord. No. 2215, § 1, 7-25-2023)

10.95.040 Automated vehicle identification system—Data retention.

(a) The city shall:

- (1) Program the automated vehicle identification system to retain data only when a violation of a county or municipal traffic regulation or traffic violation under state law occurs;
- (2) Treat all photographs and video collected by the automated vehicle identification system as confidential and exempt from disclosure and inspection pursuant to the "Colorado Open Records Act," part 2 of article 72, title 24, C.R.S.;
- (3) Not use, disclose, sell, or permit access to photographs, video, or personal identifiable data collected by the automated vehicle identification system except to the extent necessary to operate the program, including for purposes of process-

ing violations, for other law enforcement purposes, for transferring data to a new vendor or operating system, or, pursuant to a court order, for use in unrelated legal proceedings; and

- (4) Destroy any photographs and video of a violation collected by the automated vehicle identification system within three (3) years after the final disposition of the violation unless the photographs or video are maintained in a separate system for other purposes allowed by law.

(Ord. No. 2215, § 1, 7-25-2023)

Title 11

STREETS AND SIDEWALKS

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Chapter 11.04
SPECIAL IMPROVEMENT DISTRICT
ASSESSMENT POLICIES

11.04.010 General.

The city shall follow the policies and procedures set out in this chapter in establishing special assessment improvement districts within the community.

(Ord. 1069, 1989)

11.04.020 Criteria for use.

(1) A special improvement district may be considered as a means of financing all, or any designated portion of, the cost of any public improvement authorized by section 12.7 of the Golden Charter where special benefits accrue to certain properties as a result of the proposed improvement. For purposes of this chapter and section 12.7 of the Golden Charter, a public improvement is defined as land, rights-of-way, easements, access rights, and physical improvements which, upon formal acceptance by the city shall become the responsibility of the city for ownership and/or maintenance and repair, and shall include, but not by way of limitation, the following: curb and gutter, asphalt pavement, concrete pavement, streets of all types, sidewalks, pedestrian/bike paths, traffic signals, street lights, highways, freeway rights-of-way, easement, access rights, medians, bridges, acceleration and deceleration lanes, culverts, storm drainage facilities including necessary structures, channels, water lines, sanitary sewer lines, public parks and open space property, and all other improvements which upon acceptance by the city are intended to be for the use of and enjoyment of the public.

(2) The portion of the cost of any public improvement to be assessed to specially benefited properties shall be proportionate to the special benefit received by those properties.

(Ord. 1850, § 1, 2009; Ord. 1069, 1989)

11.04.030 Criteria for initiation.

(1) A special improvement district may be considered for initiation when any of the following conditions are evident:

- (a) There is an expressed desire for the improvement by owners of assessable properties;

- (b) There is a history of excessive maintenance costs or requirements that could be eliminated or reduced by the proposed improvements;
- (c) A nuisance or hazard exists which could be corrected by the proposed improvement;
- (d) The proposed improvement would provide for a logical extension of existing or proposed public improvements and avoid the creation of conditions as referred to in (b) and (c) above.

(2) No specific percentage of support or opposition is required to initiate or terminate a special improvement district. The city council will make a determination in this respect based on a review of the above factors as may pertain to each proposed special improvement district along with input as may be received from owners of the affected properties.

(Ord. 1069, 1989)

11.04.040 Initiation—Method.

If the special improvement district is initiated by petition of property owners, said initiation procedure shall be on the petition by the record owners of property to be assessed for more than one-half of the entire costs estimated by the city to be assessed and charged to the benefited property owners, provided that such majority shall include not less than 50 percent of the landowners residing in the proposed district.

(Ord. 1069, 1989)

11.04.050 Notice and hearing procedures.

(1) Notice and public hearing for each proposed special improvement district shall be held in accordance with section 5.10 of the Golden Charter. The following is the procedure to be taken before the city council:

- (a) Adoption of a resolution of an intention to create a special improvement district.
- (b) Public hearing on the proposed creation of a special improvement district.
- (c) Adoption of an ordinance creating the special improvement district.

- (d) Award of contract for construction of, or authorization of a contract for acquisition or purchase of, the public improvement, including land for open space or park use.
- (e) Adoption of bond sale ordinance if bonds will be sold to pay for said construction, acquisition or purchase costs.
- (f) Adoption of resolution accepting improvements.
- (g) Public hearing on proposed assessment levies.
- (h) Adoption of ordinance levying assessments.

Public notice of each of these actions will be made when required by placement of such public notice in a newspaper of general circulation.

(2) It is the intention of the city that owners of all properties potentially affected by a special improvement district be given full and adequate notice of all relevant proceedings associated with the proposed project. Toward this end, each property owner of record within a proposed special improvement district will receive advance notice by first class mail of proceedings referred to in items (a), (b), (c), (f), (g), and (h) above along with pertinent information relative to these items.

(3) In addition to subsection (1) of this section, informal public meetings will be held with owners of all properties potentially affected by a special improvement district prior to the initiation of formal proceedings. Where possible, advance mailings and public advertisement will also be made of these meetings.

(Ord. 1850, § 2, 1990; Ord. 1069, 1989)

11.04.060 Cost responsibilities—Guidelines—General.

(1) To the extent practical, the city council will apply guidelines on cost responsibilities for all improvements accomplished through special improvement districts.

(2) The intention of these cost responsibility guidelines is to:

- (a) Insure consistent and equitable treatment of assessed properties among various special improvement districts for like improvements;
- (b) Provide for specially benefited properties to be assessed proportionately to benefit received.

(Ord. 1069, 1989)

11.04.070 Cost responsibilities—City participation—Criteria.

(1) City participation in the cost of special improvement districts will be considered only where:

- (a) General benefit to the community at large will accrue from the improvement;
- (b) Sufficient budgeted funds exist to allow such participation;
- (c) Such funds are not needed for a project of greater general benefit to the community at large.

(Ord. 1069, 1989)

11.04.080 Cost responsibilities—Street improvements.

Cost responsibilities for street improvements accomplished through special improvement districts shall be as follows:

	<i>EXISTING DEVELOPMENT</i>		<i>NEW DEVELOPMENT*</i>	
	<i>Property Owner</i>	<i>City</i>	<i>Property Owner</i>	<i>City</i>
<i>Functional</i> Local streets All Zoning Categories	100%	0%	100%	0%

<i>Functional</i>	<i>EXISTING DEVELOPMENT</i>		<i>NEW DEVELOPMENT*</i>	
	<i>Property Owner</i>	<i>City</i>	<i>Property Owner</i>	<i>City</i>
Major and Collector Streets: RE, R1, R1A, R2 Zoning Categories	0%	100%	100% up to Collector Street Equivalent**	Excess over Collector street equivalent
All Other Zoning Categories	Up to 100% Collector street equivalent*	Excess	100% up to Collector Street equivalent***	Excess over Collector street equivalent

* New Development encompasses areas where special improvement districts are initiated as a result of the land subdivision, or building permit and construction process.

** This is an optional assessment dependent upon an evaluation of benefit; factors such as overall impact, access and the like will be taken into consideration in determining assessments to these properties.

*** All rights-of-way must be provided by the developer and will not be included in cost sharing computations.

(Ord. 1069, 1989)

11.04.090 Cost responsibilities—Paved street rebuild.

Where an existing paved street facility or portion thereof must be rebuilt in connection with a special improvement district, the cost of the portions rebuilt may be shared equally between the

city and assessed properties up to the equivalent of the facility that existed prior to such rebuild for RE, R1, R1A, and R2 zoning categories with the remaining improvements being assessable in accordance with section 11.04.080 of this chapter. For all other zoning categories all rebuild costs normally will be assessed in accordance with section 11.04.080 of this chapter.
(Ord. 1069, 1989)

11.04.110 Cost responsibilities—Drainage improvements.

Cost responsibilities for drainage improvements accomplished through special improvement districts shall be as follows:

<i>Functional Classification</i>	<i>EXISTING DEVELOPMENT</i>		<i>NEW DEVELOPMENT*</i>	
	<i>Property Owner</i>	<i>City</i>	<i>Property Owner</i>	<i>City</i>
Local	100%	0%	100%	0%
Major and Trunk*	100% up to local facility equivalent*	Excess	100%	0%

* Local facility equivalents shall be determined by an evaluation of tributary flows within the area to be assessed as compared to outside the area to be assessed; with the city bearing a pro rata cost equivalent of tributary flows outside the assessed area; cost responsibilities for off-area extensions necessary for flow accommodation purposes shall be made on this same basis.

(Ord. 1069, 1989)

11.04.120 Cost responsibilities—Sidewalks and bike paths.

Where special improvement districts are used to finance sidewalk and bike path improvements,

standard sidewalk widths shall be 100 percent assessable. Where extra width is required for combination sidewalks and bikeways, the city shall be responsible for a pro rata share of the cost of the extra width, except for new developments where the entire cost will be assessed.
(Ord. 1069, 1989)

11.04.130 Cost responsibilities—Street lighting.

Where special improvement districts are used to finance street lighting, costs for underground wiring and ornamental poles will be 100 percent assessable.

(Ord. 1069, 1989)

11.04.140 Cost responsibilities—Miscellaneous improvements.

The city may define cost responsibility guidelines for other types of special improvement district projects from time to time.

(Ord. 1069, 1989)

11.04.150 Cost responsibilities—Guideline use.

It is the intention of the city that all property-assessable costs associated with a special improvement district be included for assessment purposes according to the guidelines set out in sections 11.04.080 through 11.04.140 of this chapter.

(Ord. 1069, 1989)

11.04.160 Cost apportionment.

(1) Assessment costs are to be apportioned among assessable properties on the basis of proportionate benefits to the property received from an improvement.

(2) It is the intention of the city to arrive at an apportionment formula which best fits the conditions of a special improvement district under consideration while accomplishing the apportionment required by subsection (1) of this section. This will require various methods of apportionment to be used from time to time.

(3) Normally assessment apportionments will be based on one of the following criteria:

- (a) Abutting footage;
- (b) Area within the special improvement district boundaries;
- (c) Lots or units within the special improvement district boundaries;
- (d) Combinations of the above.

(Ord. 1069, 1989)

11.04.170 Payment—Methods.

(1) Providing bonds are utilized, property assessments may be paid on an installment basis over a period of up to 12 years.

(2) Full assessments may be paid in a lump sum basis at any time with appropriate interest adjustments.

(3) Full assessments paid within 30 days of final publication of the assessing ordinance will receive a discount of five percent.

(Ord. 1069, 1989)

11.04.180 Bond requirements- surplus and deficiency fund establishment.

(1) All special improvement district improvements will be funded through the sale of special assessment bonds with the exception of city cost-sharing monies.

(2) The minimum amount of funding required for bonding purposes will be \$150,000.00.

(3) Where a special improvement district does not involve at least \$150,000.00 in assessable costs, it must be joined with another special improvement district or special improvement districts. Individual special improvement districts will not be created until this minimum finding amount is achieved.

(4) A surplus and deficiency fund is to be established to insure coverage for assessment bond defaults. This fund is to be sustained by rounding special assessment bond interest rates upward to the nearest one-half percent; or, if less than one-fourth percent increase is involved, to the nearest one-fourth percent providing for a minimum of one-fourth percent increase over the interest rate paid on the special assessment bonds; such surpluses to be earmarked for this fund.

(Ord. 1069, 1989)

11.04.190 Hardship situations—Relief.

It is the intention of the city to offer relief to hardship situations brought about by the creation of special improvement districts and subsequent assessment levies on property owners with low incomes. Such relief is to be provided through an assessment rebate procedure wherein qualifying

property owners may be reimbursed for their assessments on an annual basis. Qualifications are to be based on applications outlining asset levels and matched with a sliding rebate schedule adopted annually by the city. Low income assistance shall be made available on an annual installment basis only and not for lump sum payments.

(Ord. 1069, 1989)

11.04.200 Design and construction standards—Compliance required.

All public improvements accomplished through special improvement districts shall be designed and constructed in full accordance with the city's minimum standards required to allow such facilities to function in a safe and proper manner and without undue maintenance and operating costs or requirements accruing to the city. The fact that they are being provided through the special improvement district process does not remove the need for adequate design in this respect.

(Ord. 1069, 1989)

11.04.210 What improvements may be made—Conditions.

(1) Before contracting for or ordering any work to be constructed, or before authorizing a contract for the acquisition of purchase of a public improvement or land for open space or park use, a resolution shall be passed by the city council, adopting preliminary plans and specifications for the same, definitely describing the materials to be used or stating that one of several specified materials shall be chosen, if applicable, determining the number of installments and the time in which the cost of the improvement shall be payable, the property to be assessed for the same, an estimate of the cost to be made by the director of public works or any similar officer or employee, together with a map of the district in which the improvement is to be made and a schedule showing the approximate amounts to be assessed upon the several lots or parcels of property within the district. The cost estimates and approximate amounts to be assessed shall be formulated in good faith on the basis of the best information available to the city council but shall not be binding.

The city clerk shall give notice of the hearing on the construction of the improvements by publication in one issue of a newspaper of general circulation in the City of Golden, the publication to be at least 20 days prior to the date of the hearing. In addition, notice shall be mailed by first class mail to each property owner to be assessed for the cost of the improvements who is included within the district. The mailed notice shall be made on or about the date of the publication of the notice of hearing. The notice shall set forth the following information:

- (a) The kind of improvements proposed;
- (b) The number of installments;
- (c) The time in which the cost shall be payable;
- (d) The extent of the district to be improved;
- (e) The probable cost per front foot or other unit basis which, in the judgment of the city council, reflects the benefits which accrue to the properties to be assessed as shown by the estimates of the city engineer;
- (f) The time, not less than 20 days after the publication, when an ordinance authorizing the improvements will be considered;
- (g) That said map, estimate and schedule showing the approximate amounts to be assessed and all resolutions and proceedings are on file and can be seen and examined by any interested person at the office of the city clerk or other designated place at anytime within said period of 20 days; and
- (h) That all complaints and objections made in writing concerning the proposed improvement by the owners of any property to be assessed will be heard and determined by the city council before final action is taken.

(2) If the petition for an improvement is signed by 100 percent of the owners of property to be assessed and contains a request for a waiver of notice, the city council may, at its discretion, waive all or any of such requirements for notice, publication, and a hearing set forth in section.

(3) The finding by ordinance or resolution of the city council that said improvements were duly ordered after notice duly given and after hearing duly held when such notice and hearing are required pursuant to this section, that such petition was presented, and that the petition was subscribed by all or the required number of owners shall be conclusive of the facts so stated in every court or other tribunal.

(4) The specifications for paving may include sidewalks, curbs, gutters, grading, sufficient culverts, sewers, drains necessary to carry off the surface waters across or along the line of the street improved, and such other incidentals to paving as, in the judgment of the city council, may be required. The specifications may also provide that bidders shall agree to enter into contract to do the work and maintain the same in good repair for a period of five years, and the contract may be entered into in accordance with such specifications.

(5) Before any such improvements are made, if any piece of real estate to be assessed already has an improvement conforming to the general plan or satisfactory to the city, an allowance therefore may be made to the owner and such allowance may be deducted from the owner's assessment and from the contract price.

(Ord. 1850, § 3, 2009; Ord. 1069, 1989)

11.04.220 Statement of expenses—Apportionment.

Upon completion of any local improvements or upon completion from time to time of any part thereof and upon acceptance thereof by the director of public works or when the total cost of any improvements can be reasonably ascertained, either prior to, during or subsequent to the construction of the improvements, the director of public works shall cause to be prepared a statement showing the whole cost of the improvements, including costs of inspection and collection, capitalized interest on any bonds for such period as the city treasurer may deem necessary, capitalized bond reserves, and all other incidental costs, the portion thereof, if any, to be paid by the city, and the portion thereof to be assessed upon each lot or tract of land to be assessed for the

same, which statement shall be filed in the office of the city clerk. If the city council determines that the basis of assessment is inequitable in any case, a just and equitable assessment shall be made upon the basis of benefits accruing to the property assessed by reason of the improvements made.

(Ord. 1069, 1989)

11.04.230 Notice of hearing on assessments.

The city clerk shall give notice that the assessment roll has been completed and of a hearing on the assessment roll. Said notice shall be by publication in an issue of a newspaper of general circulation in the City of Golden, the publication to be at least 15 days prior to the date of hearing. The same notice of the hearing shall be mailed by first class mail to each property owner to the assessed for the cost of the improvements who is included within the district. The mailed notice shall be made on or about the date of the publication of the notice of hearing. The notices shall specify: The whole cost of the improvements; the portion, if any, to be paid by the city; the share apportioned to each lot or tract of land; that any complaints or objections which may be made in writing by the property owners or any citizen to the city council, and filed in writing on or prior to the date of the hearing, will be heard and determined by the city council before the passage of any ordinance assessing the cost of said improvements; and the date when and the place where such complaints or objections will be heard.

(Ord. 1069, 1989)

11.04.240 Hearing on objections.

At the time specified in said notice or at some adjourned time, the city council shall hear and determine all such complaints and objections and may make such modifications and changes as may seem equitable and just or may confirm the first apportionment. The city council shall by ordinance assess the cost of said improvements and the passage of such ordinance shall be prima facie evidence of the fact that the property assessed is benefited in the amount of the assessments and that such assessments have been lawfully levied.

(Ord. 1069, 1989)

11.04.250 Assessment a lien—Recording with County Clerk and Recorder—Corrections.

(1) All assessments made pursuant to this chapter, together with all interest thereon and penalties for default in payment thereof and all costs in collecting the same, shall constitute, from the date of the final publication of the assessing ordinance, a perpetual lien in the several amounts assessed against each lot or tract of land and shall have priority over all other liens except general real estate taxes. As to any subdivisions of any land assessed pursuant to this chapter, the assessment lien may be apportioned by the governing body in such manner, if any, as may be provided in the assessing ordinance.

(2) The city clerk shall record copies of the assessing ordinance after its final adoption by the city council with the Jefferson County Clerk and Recorder for recording on the land records of such lots or tracts of land as provided by state statute.

(3) No delays, mistakes, errors, or irregularities in any act or proceeding authorized or required by this chapter shall prejudice or invalidate any final assessment; but the same may be remedied by subsequent filings, amending acts or proceedings as the case may require. When so remedied, the same shall take effect as of the date of the original filing, act or proceeding.
(Ord. 1069, 1989)

11.04.260 Assessment roll.

The city clerk shall prepare a local assessment roll in book form showing in suitable columns each piece of land assessed, the total amount of assessment, the amount of each installment of principal and interest if, in pursuance of this chapter, the same is payable in installments, and the date when each installment will become due. The assessment roll shall have suitable columns for use in case of payment of the whole amount or of any installment or penalty. The city clerk shall deliver the assessment roll, duly certified, under the city seal, to the city treasurer for collection.
(Ord. 1069, 1989)

11.04.270 Discount—Assessment roll returned.

(1) Payment may be made to the city at any time within 30 days after the final publication of the assessing ordinance and an allowance of five percent shall be made on all payments made during such period but not thereafter.

(2) At the expiration of said 30-day period, the city treasurer shall return the local assessment roll to the city clerk, therein showing all payments made with the date of each payment. Said roll shall thereafter be certified by the city clerk under the seal of the city and delivered by the city clerk to the county treasurer of Jefferson County with his or her warrant for the collection of the same. The county treasurer shall receipt for the same and all such rolls shall be numbered for convenient reference.

(3) If the city treasurer is directed by ordinance to collect assessment payments as provided in section 11.04.280, in lieu of the procedure specified in subsection (2) of this section, the city treasurer may keep the assessment roll, numbered for convenient reference, in such a manner as to best facilitate the collection and recording of assessment payments.
(Ord. 1069, 1989)

11.04.280 Collection of assessment payments—By city—By county treasurer.

(1) The city council may by ordinance direct the city treasurer to collect any amount payable as an assessment pursuant to this chapter. If the city council does not direct by ordinance that assessment payments be collected by the city treasurer, then such payments shall be collected by the Jefferson County Treasurer.

(2) All collections made by the Jefferson County Treasurer upon an assessment roll in any calendar month shall be accounted for and paid over to the city on or before the tenth day of the next succeeding calendar month, with separate statements for all such collections for each improvement.
(Ord. 1069, 1989)

11.04.290 When assessments payable—Installments.

All special assessments for local improvements shall be due and payable within 30 days after the final publication of the assessing ordinance without demand; but all such assessments may be paid, at the election of the owner, in installments with interest as provided in section 11.04.300. (Ord. 1069, 1989)

11.04.300 How installments paid—Interest.

In case of such election to pay in installments, the assessments shall be payable in two or more installments of principal with interest in all cases on the unpaid principal. The first installment shall be payable as prescribed by the city council in not more than three years, and the last installment shall be payable in not more than 12 years. The number, amounts and times of payment of installments, the period of payment, the rate and times of payment of interest shall be determined by the city council and set forth in the assessing ordinance. (Ord. 1069, 1989)

11.04.310 Effect of payment in installments.

Failure to pay the whole assessment within said period of 30 days shall be conclusively considered to be an election on the part of all persons interested, whether under disability or otherwise, to pay in installments. All persons so electing to pay in installments shall be conclusively considered to have consented to said improvements. Such election shall be conclusively considered to be a waiver of any right to question the power or jurisdiction of the City of Golden to construct the improvements, the quality of the work, the regularity or sufficiency of the proceedings, the validity or the correctness of the assessments or the validity of the lien thereof. (Ord. 1069, 1989)

11.04.320 Penalty for default—Payment of balance.

Failure to pay any installment, whether of principal or interest, when due shall cause the whole of the unpaid principal to become due and collectible immediately, and the whole amount of

the unpaid principal and accrued interest shall thereafter draw interest at the rate of two percentage points above the rate of interest a commercial bank pays to the Federal Reserve Bank of Kansas City using a government bond or other eligible paper as security and shall be rounded to the nearest full percent. Such annual rate of interest shall be so established as of December 31 of the previous calendar year, until the day of tax sale; but, at any time prior to the day of tax sale, the owner may pay the amount of all unpaid installments, with interest at the penalty rate set by the assessing ordinance, all penalties and costs of collection accrued and shall thereupon be restored to the right thereafter to pay in installments in the same manner as if default had not been suffered. The owner of any property not in default as to any installment or payment may, at any time, pay the whole of the unpaid principal with the interest accruing to the maturity of the next installment of interest or principal. (Ord. 1069, 1989)

11.04.330 Sale of property for nonpayment.

(1) The Jefferson County Treasurer or the city treasurer pursuant to section 11.04.280 shall receive payment of all assessments appearing upon the assessment roll with interest.

(2) In case of default in the payment of any installment of principal or interest on assessed property when due:

- (a) The city treasurer, if collecting assessment payments pursuant to section 11.04.280, shall certify to the county treasurer the whole amount of the unpaid assessments; and
- (b) The county treasurer shall advertise and sell all property concerning which such default is suffered for the payment of the whole of the unpaid assessments thereon, plus penalties and costs of collection.

(3) Said advertisements and sales shall be made at the same times, in the same manner, under all the same conditions and penalties, and with the same effect and provided by general law for sales of real estate in default of payment of the general property tax. (Ord. 1069, 1989)

11.04.340 City may purchase property on default.

(1) At any sale by the county treasurer of any property for the purpose of paying any special assessment for local improvements made under the provisions of this chapter, the city treasurer, having written authority from the city council, may purchase any such property without paying for the same in cash and shall receive certificates of purchase therefore in the name of the city. The certificates shall be received and credited at their face value, with all interest and penalties accrued, on account of the assessments in pursuance of which the sale was made. The certificates may thereafter be sold by the city treasurer at their face value, with all interest and penalties accrued, and assigned by him or her to the purchaser in the name of the city. The proceeds of such sale shall be credited to the fund created by ordinance for the payment of such assessments respectively. In the event that all bonded indebtedness incurred in payment for said local improvements has been discharged in full, said certificates may be sold by the city council for the best price obtainable at public sale, at auction, or by sealed bids in the same manner and under the same conditions as is provided in subsection (3) of this section. The proceeds shall be credited to the general fund of the city or to the special surplus and deficiency fund provided for by section 11.04.360, as the circumstances may require. Such assignments shall be without recourse and the sale and assignments shall operate as a lien in favor of the purchaser and assignee as is provided by law in the case of sale of real estate in default of payment of the general property tax.

(2) The city shall have the right to apply for tax deeds on such certificates of purchase at any time after three years from the date of issuance of said certificates and such deeds shall be issued as provided by law for issuance of tax deeds for the nonpayment of the general property tax.

(3) Cumulatively with all other remedies, as the owner of property by virtue of a tax deed, or as the owner of property otherwise acquired, in satisfaction or discharge of the liens represented by such certificates of sale, the city may sell such property for the best price obtainable at public

sale, at auction, or by sealed bids. Such sales shall be after public notice by the city treasurer to all persons having or claiming any interest in the property to be sold or in the proceeds of such sale by publication of such notice three times, a week apart, in a weekly newspaper of general circulation within the county in which the property is located. Such notice shall describe the property and state the time, place and manner of receiving bids; except that the time fixed for the sale shall not be less than ten days after the last publication. The city may reject any and all bids. Any interested party, at any time within ten days after the receipt of bids for the sale of property, may file with the city a written protest as to the sufficiency of the amount of any bid made or the validity of the proceedings for the sale. If the protest is denied, such person, within ten days thereafter, shall commence an action in a court of competent jurisdiction to enjoin or restrain the city from completing the sale.

If no such action is commenced, all protests or objections to the sale shall be waived and the city shall then convey the property to the successful bidder by quit claim deed.

(4) In addition to all other remedies, as a holder of certificates of purchase, the city may bring a civil action for foreclosure thereof, joining as defendants all persons holding record title, persons having or claiming any interest in the property or in the proceeds of foreclosure sale, all governmental taxing units having taxes or other claims against said property, and all unknown persons having or claiming any interest in said property. Any number of certificates may be foreclosed in the same proceeding. In such proceeding the city, as plaintiff, is entitled to all relief provided by law in actions for an adjudication of rights with respect to real property.

(5) The proceeds of any such sale of property shall be credited to the appropriate special assessment fund. The city shall deduct there from the necessary expenses in securing deeds and taking proceedings for the sale or foreclosure.

(6) When the city has sold or conveyed at a fair market value certificates of purchase or property which it has acquired in satisfaction or discharge of special assessment liens, such sales and con-

veyances are hereby validated and confirmed as against all parties having or claiming any interest in such property or the proceeds of such sale.

(7) It is hereby declared that the purpose of this section is to restore delinquent property to the tax rolls and to realize the greatest possible amount from such property for the benefit of all persons and taxing bodies having liens thereon. (Ord. 1069, 1989)

11.04.350 Power of city council to contract debt—Question submitted to registered electors.

The city council has power to contract an indebtedness on behalf of the city and upon the credit thereof by borrowing money or issuing the negotiable interest bearing bonds of the city for the purpose of providing a fund to pay such part of the cost of said improvements as may be determined by the city council. No such indebtedness shall be created except by ordinance subject to and otherwise in accordance with the laws of this city.

(Ord. 1069, 1989)

11.04.360 Issuing bonds—Property specially benefited.

(1) For the purpose of paying all or such portion of the cost of any improvements constructed under the provisions of this chapter as may be assessed against the property specially benefited, special assessment bonds of the city may be issued, of such date and in such form as may be prescribed by the city council, bearing the name of the street, alley, or district improved and payable in a sufficient period of years after date to cover the period of payment provided, but subject to call as provided in section 11.04.370, and in convenient denominations. All such bonds shall be issued upon estimates approved by the city council, and the city treasurer shall preserve a record of the same in a suitable book kept for that purpose. All such bonds shall be subscribed by the mayor, with the city seal thereto affixed and attested by the city clerk. Such bonds shall be payable out of the moneys collected on account of the assessments made for said improvements. Whenever three-fourths of the bonds for improve-

ments constructed under the provisions of this chapter have been paid and cancelled and for any reason the remaining assessments are not paid in time to pay the remaining bonds for the district and the interest due thereon, the city shall pay, if so provided in the ordinance authorizing issuance of the bonds, the bonds when due and the interest due thereon, and reimburse itself by collecting the unpaid assessments due the district. All moneys collected from such assessments for any improvements shall be applied to the payment of the bonds issued until payment in full is made of all the bonds, both principal and interest. The bonds may be used in payment of the cost of the improvements as specified; or the city council upon advertisement published at least once in a newspaper of general circulation in the city and in such other newspapers as may be designated by the city council, may sell a sufficient number of said bonds to pay such cost in cash for the best bid submitted in accordance with the terms of the notice of sale. All bids may be rejected at the discretion of the city council. In addition, the bonds may be sold on such terms and conditions at a private sale if determined by the city council to be in the best interests of the municipality.

(2) When all bonds of a district have been paid, any moneys remaining to the credit of such district may be transferred to a special surplus and deficiency fund, and, whenever there is a deficiency in any improvement district bond fund to meet the payment of outstanding bonds for other improvement districts and interest due thereon or to redeem such outstanding bonds in accordance with any estimated redemption schedule used in connection with the sale of such bonds, the deficiency may be paid from the moneys available therefore in the surplus and deficiency fund. When five years have transpired after any such moneys have been transferred to any such surplus and deficiency fund and any amount of said funds has not been used, such funds may be transferred to any other capital improvement fund of the city for expenditure on other capital improvement programs of the city.

(Ord. 1069, 1989)

11.04.370 Manner of redemption.

Whenever the city treasurer has funds derived from assessment payments in the treasury to the

credit of any district, exceeding the interest on the unpaid principal of the bonds issued therefore and outstanding for such period as may be specified in the ordinance authorizing the bonds, he or she shall call in or direct the bond registrar to call in a suitable number of such bonds for payment. The redemption date shall be on an interest payment date, unless otherwise provided in the ordinance authorizing the bonds. On the redemption date specified in the redemption notice, interest on the bonds so called shall cease. The notice shall specify by number the bonds so called, and all such bonds shall be paid in their numerical order.

(Ord. 1069, 1989)

Chapter 11.08 SIDEWALKS

11.08.005 Definition.

"Chief of police" and "chief", as used in this chapter, shall mean the chief of police or the chief's authorized representative.

(Ord. 1387, 1998)

11.08.010 Reserved area.

An area along each side of all streets, roads or highways shall be reserved for curbs, gutters and sidewalks. The reservation shall include all real property located within that area from the edge of the street surface to the outer boundary of the street right-of-way.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.020 Permit required.

No person shall install or construct or reconstruct, remove, repair or in any manner disturb any curb, gutter or sidewalk in the public right-of-way without obtaining a permit for such from the city. The permit shall be issued by the director of public works or the director's authorized representative (director).

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.030 Permit fees.

The fee for any permit issued hereunder shall be:

- (a) \$3.00 per 50 lineal feet or fraction thereof for each installation of curb, curb and gutter, sidewalk, combination curb, gutter or sidewalk;

- (b) \$3.00 for driveway approach;

- (c) \$1.00 per parking space for vehicular parking facility;

- (d) All permit fees shall be paid in full at the time of application for permit and where a person installs, constructs or reconstructs more than one curb, gutter, sidewalk or driveway at the same time, only one permit and fee shall be required.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.040 Denial of permit.

Nothing in this chapter shall be deemed to compel the director to issue a permit if the director determines the proposed work impairs the health, safety or welfare of the community. Such determination may be based upon, but is not limited to, traffic engineering, evaluation of topography, traffic characteristics and design safety standards as well as the character and nature of access requirements, stormwater accommodation and the effect of ice and snow on traffic movement.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.050 Duty, original construction.

It shall be the duty of the developer or property owner to construct initially the property's curbs, gutters or sidewalks in accordance with the city's standards and specifications for any real property developed after the effective date of this chapter.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.060 Maintenance, repair and replacement.

The city shall, except for the limitations set forth in section 11.08.070, maintain, repair or replace existing curbs, gutters and sidewalks in accordance with a maintenance program and schedule proposed by the city manager and approved by the city council.

(Ord. 1175, 1993; Ord. 1161, 1992; Ord. 1095, 1990)

11.08.070 Owner's responsibility.

It shall be the property owner's responsibility to repair or replace any adjacent curb, gutter or sidewalk damaged as a result of negligence or

cause of the owner, tenant or owner's contractor or other representative as a result of any maintenance, repair or construction upon such property. Such repair shall be in accordance with the city's standards and specifications.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.080 Responsibility of property owners upon city notice.

Whenever the owner of any property is notified by the city to repair or reconstruct any curb, gutter or sidewalk to comply with section 11.08.070, it shall be the duty of such owner to cause such repair to be made in the manner and within the time provide by the order and notice.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.090 Form of notice to improve sidewalks.

The notice to repair or reconstruct curbs, gutters or sidewalks shall be in writing and may be similar to the following:

To the Owner of (Address and Legal Description) in the City of Golden:

You are hereby notified that you are required to _____ the curb(s), gutter(s) and sidewalk(s) adjacent to your property at (address) in Golden, Colorado. Said improvements to be completed on or before the ____ day of _____, ____, and the work to be done under the superintendence of and to the satisfaction of the Director of Public Works, and according to the following standards and specifications:

You will also take notice that unless the improvement is completed within the time specified, such improvements will be made by the city and the expenses thereof assessed by a special tax against the property, which tax (shall) (may) become a lien on the property.

Director of Public Works

Telephone

Golden, Colorado

_____, 20 ____.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.100 Service of notice to improve sidewalks.

The notice provided for in section 11.08.111 shall be served by the director by leaving a copy of same with the property owner, agent or occupant at his/her residence or business, or by certified mail, return receipt requested, to the owner at said places. If such owner or his/her agent or occupant is unknown to the director or cannot be located after reasonable efforts by the director, the notice shall be given by publication in a newspaper of general circulation, in the city, and a copy of such published notice shall be mailed to the last known address of such owner, if any. A copy of the notice shall be filed by the director with the city clerk with a return thereon in writing indicating the manner in which same has been served.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.110 Improvements by city upon expiration of notice.

If the owner of any property required to be repaired fails to make such repair within the expiration of time provided in the notice described in section 11.08.090, and subject to service in the manner provided in section 11.08.100, the director is authorized to make the repairs. The expense of such repairs shall be paid by the city and collected from the owner as provided in section 11.08.120.

(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.120 Improvements by city and collection costs.

It shall be the duty of the director, as soon as practicable after the completion of any repair as provided for in section 11.08.110, to make a report to the city council, which report shall set forth a description of the property so repaired, the owner, if known, the cost of the repair, which cost shall include an additional 20 percent fee for administrative expenses related to the improvement. The city council shall, by ordinance, assess the amount of repair against the subject property. The city clerk shall certify the same to the Jefferson County Clerk and Recorder or to the officer having custody of the property tax list at the time such

certification is made for the assessment, to be carried on the tax roll and be collected by the county treasurer in the manner provided by the state statutes for the collection of such assessments. The assessment shall not be certified to the county clerk and recorder until notice of such assessment has been served upon the property owner as provided in section 11.08.100. Such notice shall give the property owner an opportunity to be heard before council, at a time and place therein designated, regarding the amount so assessed. The form of the notice may be similar to the following:

*To the Owner of (Address and Legal Description)
in the City of Golden:*

Please take notice that the amount assessed against the property by reason of the expense incurred by the City of Golden in (reconstructing) (repairing) the curb(s), gutter(s), or sidewalk(s) adjacent to your property is \$_____. You may appear before the City Council of the City of Golden, 911 10th Street, Golden, Colorado, on the ____ day of _____, 20____ at the hour of _____.m., when you shall have the opportunity to be heard by the council regarding the amount assessed.

City Clerk

Telephone

Golden, Colorado

_____, 20____

(Ord. 1704, § 1, 2005; Ord. 1175, 1993; Ord. 1095, 1990)

11.08.130 Notice; multiple parties, expiration of publication constitutes completion.

In cases of the publication of the notices provided for in this chapter, the names of two or more persons may be contained in a single notice, and service shall be deemed sufficient as to all the parties named therein, and such

service shall be deemed complete at the expiration of the time or publication as provided in sections 11.08.100 and 11.08.120.
(Ord. 1175, 1993; Ord. 1095, 1990)

11.08.140 Responsibility for sidewalks.

1. *[Responsibility to maintain.]* The owner, or his or her agent or the occupant, of any property within the city shall maintain the public sidewalks upon the public right-of-way adjacent to such property in a condition free from snow, ice, mud or other obstruction.

2. Snow and ice removal requirements.

- (a) Snow and ice must be removed from sidewalks abutting residential properties within 24 hours after cessation of any snowfall that deposits one or more inches of snow;
- (b) Snow and ice must be removed from sidewalks abutting commercial properties within 12 hours after cessation of any snowfall that deposits more than one or more inches of snow.

3. *Abatement and administrative penalty.* When the city has probable cause to believe a property is in violation of this section's snow and ice removal requirements, an enforcement official may issue a notice of violation, which includes an administrative penalty, payable within 30 days, to the owner, agent or occupant (owner/agent/occupant) of such property.

- (a) A notice of violation must be either personally served upon the owner, agent or occupant or posted upon the property in a conspicuous place and manner. The notice will require that the property owner/agent/occupant abate the violation before the date and time specified on the notice of violation, and, if such is not done, the city may abate the violation, and assess the costs of abatement upon the real property subject to the notice.
- (b) Failure to abate the violation within the time specified may result in the issuance of additional notices of abatement and assessment of additional administrative penalties upon the property owner/agent

occupant for each time the abatement is not performed within the time set forth in the notice.

- (c) For the purposes of this section "enforcement official" shall mean any person authorized by the chief of police or the chief's authorized representative to enforce the provisions of this section.
- (d) The amounts of the administrative penalties shall be established by resolution of city council.

4. *Abatement by city.* After the expiration of any time allotted to the property owner/agent/occupant to abate the violation, the city manager or designee is authorized, at his/her discretion, to direct the city's public works department to remove the snow and ice or may employ private contractors to carry out the task of snow and ice abatement. If it is necessary to remove obstructions in order to effectuate the abatement, city staff and contractors shall be empowered to take reasonable steps to remove any obstruction so as to permit the removal of the snow and ice. The city shall, as applicable, first compensate abatement contractors for their services and then recover such costs as provided herein from the property owner/agent/occupant.

5. *Recovery of costs and creation of lien.* The city's finance department shall notify the property owner/agent/occupant, in writing, of all the costs for the snow, ice and obstruction abatement done by the city or abatement contractor. If the assessed administrative penalties have not been paid when the finance department prepares the aforementioned notification, such administrative penalties will also be included in the notification to pay. If the property owner/agent/occupant shall fail to pay all such costs in full to the city within 30 days after the date of transmission of any notification to pay the costs and penalties, such costs and penalties shall become a lien with penalty and interest upon the real property subject to abatement. The penalty and interest shall be assessed at a rate equivalent to that which is assessed by state law upon delinquent general property taxes. Such lien shall have priority over all other liens except general taxes and shall upon the city's certification and filing

with the Office of the Jefferson County Treasurer be collected and paid to the city by the Jefferson County Treasurer in the same manner as delinquent general property taxes.

(Ord. No. 2042, § 1, 11-10-2016)

Editor's note—Sec. 1 of Ord. No. 2042, adopted Nov. 10, 2016, repealed § 11.08.140, which pertained to sidewalk clearing and derived from Ord. 1095, 1990; Ord. 1175, 1993; and Ord. 1387, 1998.

11.08.150 Reserved.

Editor's note—Sec. 1 of Ord. No. 2042, adopted Nov. 10, 2016, repealed § 11.08.150, which pertained to notice, compliance, unlawful act and derived from Ord. 1095, 1990; Ord. 1175, 1993; and Ord. 1387, 1998.

11.08.160 Reserved.

Editor's note—Sec. 1 of Ord. No. 2042, adopted Nov. 10, 2016, repealed § 11.08.160, which pertained to clearing by city; owner liable for costs, and derived from Ord. 1095, 1990; Ord. 1175, 1993; and Ord. 1387, 1998.

11.08.170 Reserved.

Editor's note—Sec. 1 of Ord. No. 2042, adopted Nov. 10, 2016, repealed § 11.08.170, which pertained to certification of work done, and derived from Ord. 1095, 1990; and Ord. 1175, 1993.

11.08.180 Reserved.

Editor's note—Sec. 1 of Ord. No. 2042, adopted Nov. 10, 2016, repealed § 11.08.180, which pertained to notice to owner, and derived from Ord. 1095, 1990; Ord. 1175, 1993; and Ord. 1704, 2005.

11.08.200 Damage to sidewalk.

It is unlawful for any person to damage or cause the damage of any sidewalk within the public right-of-way. Any person convicted of a violation of this section, in addition to any fine or penalty imposed, may be assessed the cost for repairing such damages.

(Ord. 1387, 1998; Ord. 1175, 1993; Ord. 1095, 1990)

Chapter 11.20 RIGHT-OF-WAY REGULATIONS*

11.20.010 Purpose and objectives.

(a) *Purpose.* This chapter provides principles, procedures and associated funding for the placement and coordination of structures and facilities, construction excavation encroachments and work activities within or upon any public rights-of-way, and to protect the integrity of the road system. To achieve these purposes, it is necessary to require permits of private users of the public rights-of-way, to establish permit procedures and to fix and collect fees and charges.

(b) *Objectives.* Public and private uses of public rights-of-way for location of facilities employed in the provision of public services should, in the interests of the general welfare, be accommodated; however, the city must ensure that the primary purpose of the rights-of-way, the safe and efficient passage of pedestrian and vehicular traffic, is maintained to the greatest extent possible. In addition, the value of other public and private installations, roadways, facilities and properties should be protected, competing uses must be reconciled, and the public safety preserved. The use of the rights-of-way corridors for location of facilities is secondary to these public objectives. This Code is intended to strike a balance between the public need for efficient, safe transportation routes and the use of rights-of-way for location of facilities by public and private entities. It thus has several objectives:

- (1) To ensure that the public safety is maintained and that public inconvenience is minimized.
- (2) To protect the city's infrastructure investment by establishing repair standards for the pavement, facilities, and property in the public rights-of-way, when work is accomplished.

***Editor's note**—Sec. 1 of Ord. No. 2157, adopted May 25, 2021, repealed and reenacted ch. 11.20 in its entirety to read as herein set out. Former ch. 11.20 pertained to cuts and openings, consisted of §§ 11.20.005—11.20.075, and derived from Ord. 716, 1974; and Ord. 1062, 1989.

- (3) To facilitate work within the rights-of-way through the standardization of regulations.
- (4) To maintain an efficient permit process.
- (5) To conserve and fairly apportion the limited physical capacity of the public rights-of-way held in public trust by the city.
- (6) To establish a public policy for enabling the city to discharge its public trust consistent with the rapidly evolving federal and state regulatory policies, industry competition and technological development.
- (7) To promote and incentivize cooperation among the permittees (as defined herein) and the city in the occupation of the public rights-of-way, and work therein, in order to:
 - (i) Eliminate duplication of construction that is wasteful, unnecessary or unsightly;
 - (ii) Lower the permittee's program costs and the city's costs of providing services to the public; and
 - (iii) Minimize street cuts.
- (8) To assure that the city can continue to fairly and responsibly protect the public health, safety, and welfare.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.020 Definitions.

For the purpose of this chapter the following words shall have the following meanings:

Applicant means an owner or duly authorized agent of such owner, who has submitted an application for a permit to excavate in the rights-of-way.

Appurtenances means transformers, switching boxes, gas regulator stations, terminal boxes, meter cabinets, pedestals, junction boxes, hand-holes substations, system amplifiers, power supplies, pump stations, manholes, valves and valve housings and other devices that are necessary to the function of electric, communications, cable

television, water, sewer, storm water, natural gas, broadband, and other utilities and services.

City means the City of Golden, Colorado.

City engineer means the city engineer of the city or his or her authorized representative.

City-observed holiday means:

- (1) New Year's Day;
- (2) Memorial Day;
- (3) Independence Day;
- (4) Labor Day;
- (5) Thanksgiving Day; and
- (6) Christmas Day.

Contractor means a person, partnership, corporation, or other legal entity who undertakes to construct, install, alter, move, remove, trim, demolish, repair, replace, excavate, or add to any improvements covered by this Code, that requires work, workers, and/or equipment to be in the public right-of-way in the process of performing the above named operations.

Department means the department of public works.

Developer means the person, partnership, corporation, or other legal entity who is improving a parcel of land within the city/town/county and who is legally responsible to the city for the construction of improvements within a subdivision or as a condition of a building permit or other land use or development authorization.

Director means the director of public works of the city or his or her authorized representative.

Duct or *conduit* means a single enclosed raceway for cables, fiber optics or other wires.

Emergency means any event which may threaten public health or safety, or that results in an interruption in the provision of services, including, but not limited to, damaged or leaking water or gas conduit systems, damaged, plugged, or leaking sewer or storm drain conduit systems, damaged electrical and communications facilities, and advanced notice of needed repairs is impracticable under the circumstances.

Excavate means any work in the surface or subsurface of the rights-of-way, including, but not limited to opening the rights-of-way; installing, servicing, repairing or modifying any facility(ies) in or under the surface or subsurface of the rights-of-way, and restoring the surface and subsurface of the rights-of-way.

Facilities means, including, without limitation, any pipes, conduits, wires, cables, amplifiers, transformers, fiber optic lines, antennae, poles, street lights, ducts, fixtures and appurtenances and other like equipment used in connection with transmitting, receiving, distributing, offering, and providing broadband, utility and other services.

Fence means any artificially constructed barrier of wood, masonry, stone, wire, metal, or any other manufactured material or combination of materials erected to enclose partition, beautify, mark, or screen areas of land.

Infrastructure means any public facility, system, or improvement including, without limitation, water and sewer mains and appurtenances, storm drains and structures, streets, alleys, traffic signal poles and appurtenances, conduits, signs, landscape improvements, sidewalks, and public safety equipment.

Landscaping means materials, including without limitation, grass, ground cover, shrubs, vines, hedges, or trees and non-living natural materials commonly used in landscape development, as well as attendant irrigation systems.

Major work or *major excavation work* means any reasonably foreseeable excavation that will affect the rights-of-way for more than five consecutive calendar days.

Owner means any person, including the city, who owns any facilities that are or are proposed to be installed or maintained in the rights-of-way.

Permit means any authorization for use of the public rights-of-way granted in accordance with the terms of this Code, and the laws and policies of the city.

Permittee means the holder of a valid permit issued pursuant to this chapter for excavation in the rights-of-way.

Person means any person, firm, partnership, special, metropolitan, or general district, association, corporation, company, or organization of any kind, except the city and its officers and employees, or any component part thereof, including without limitation any fund enterprises.

Public rights-of-way or rights-of-way or public way means any public street, way, place, alley, sidewalk, easement, and city-owned right-of-way dedicated to public use.

Specifications means engineering regulations, construction specifications, and design standards adopted by the city/town/county.

Stop work order means the order directing that work cease as described in section 11.20.230 below.

Structure means anything constructed or erected with a fixed location below, on, or above grade, including, without limitation, foundations, fences, retaining walls, awnings, balconies, and canopies.

Surplus ducts or conduits means conduits or ducts other than those occupied by permittee or any prior permittee, or unoccupied ducts held by permittee as emergency use spares, or other unoccupied ducts that permittee reasonably expects to use within three years from the date of a request for use.

Work means any labor performed on, or any use or storage of equipment or materials, including, but not limited to, construction of streets and all related appurtenances, fixtures, improvements, sidewalks, driveway openings, bus shelters, bus loading pads, street lights, and traffic signal devices. It shall also mean installation, lane closures of any portion of the public rights-of-way, and sidewalk closures, and any lane or sidewalk closures in association with including closures in association with new construction or development on private land abutting the public rights-of-way for purposes of staging or storing of equipment and materials. It shall also mean construction, maintenance, and repair of all

underground structures such as pipes, facilities, conduit, ducts, tunnels, manholes, vaults, buried cable, wire, or any other similar structure located below surface, and installation of overhead poles used for any purpose.

(Ord. No. 2279, § 5, 10-28-2025; Ord. No. 2157, § 1, 5-25-2021)

11.20.030 Police powers.

The permittee's rights hereunder are subject to the police powers of the city, which include the power to adopt and enforce ordinances, including amendments to this Code, necessary to the safety, health, and welfare of the public. The permittee shall comply with all applicable laws, regulations, and ordinances enacted, or hereafter enacted, by the city or any other legally constituted governmental unit having lawful jurisdiction over the subject matter hereof. The city reserves the right to exercise its police powers, notwithstanding anything in this Code and the permit to the contrary. Any conflict between the provisions of the code or the permit and any other present or future lawful exercise of the city's police powers shall be resolved in favor of the latter.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.040 Permit required.

(a) *[Required.]* No person, unless such person has been exempted by contract with the city, shall undertake or permit to be undertaken any construction, excavation, or work in the public rights-of-way without first obtaining a permit from the city as set forth in this chapter, except as provided in section 11.20.240. Each permit obtained, along with associated documents, shall be maintained on the job site and available for inspection upon request by any officer or employee of the city.

(b) *Construction, excavation or work area.* No permittee shall perform construction, excavation, or work in an area larger or at a location different, or for a longer period of time than that specified in the permit or permit application. If, after construction, excavation, or work is commenced under an approved permit, it becomes necessary to perform construction, excavation,

or work in a larger or different area than originally requested under the application or for a longer period of time, the permittee shall notify the director immediately and within 24 hours shall file a supplementary application for the additional construction, excavation, or work.

(c) *Permit transferability or assignability.* The applicant may subcontract the work to be performed under a permit provided that the permittee shall be and remain responsible for the performance of the work under the permit and all insurance and financial security as required. Permits are transferable and assignable if the transferee or assignee posts all required security pursuant to this Code and agrees to be bound by all requirements of the permit and this Code.

(d) *Developer ownership of public infrastructure.* In the city, the physical construction of public infrastructure in new developments is the responsibility of the developer of the land. Ownership of that infrastructure remains with the developer of the land until acceptance by the city as set forth in chapter 17.50. Any developer of land where work is undertaken on infrastructure that is within a public right-of-way, but prior to acceptance by the city, shall obtain a permit from the city. The city will not accept public infrastructure improvements, where work performed is not in accordance with applicable city specifications, the applicable development agreement, or the applicable provisions of this chapter or chapter 17.50.

(e) *[Exception.]* Except as provided in section 11.20.240, any person or utility found to be conducting any excavation activity within the public rights-of-way without having first obtained the required permit(s) shall immediately cease all activity (exclusive of actions required to stabilize the area) and be required to obtain a permit before work may be restarted. An investigation fee equal to one-half the amount of all applicable permit fees, based upon the current fee schedule set by council by resolution, shall be required in addition to all applicable permit fees.
(Ord. No. 2157, § 1, 5-25-2021)

11.20.050 Permit application—Permit contents.

(a) An applicant for a permit to allow construction, excavation, or work in the public rights-of-way under this section shall:

- (1) File a written application on forms furnished by the city which include the following: the date of application; the name and address of the applicant; the name and address of the developer, contractor or subcontractor licensed to perform work in the public rights-of-way; the name and address of the owner of the proposed facilities; the exact location of the proposed construction, excavation or work activity; the type of existing public infrastructure (street pavement, curb and gutter, sidewalks or utilities) impacted by the construction, excavation or work; the purpose of the proposed construction, excavation or work; the dates for beginning and ending the proposed construction, excavation or work; proposed hours of work; the type of existing facilities impacted by the proposed construction, excavation or work and the owner of such affected facilities; and type of work proposed.
- (2) Include an affirmative statement that the applicant or its contractor is not delinquent in payments due the city on prior work.
- (3) Attach copies of all permits or licenses (including required insurance,) required to do the proposed work, and to work in the public rights-of-way, if licenses or permits are required under the laws of the United States, the State of Colorado, or the ordinances or regulations of the city. If relevant permits or licenses have been applied for but not yet received, provide a written statement so indicating. Copies of any such permits or licenses shall be provided to the city within 48 hours after receipt.
- (4) Provide a satisfactory plan of work acceptable to the director showing protection of the subject property and adjacent properties.

- (5) Provide a satisfactory plan for the protection of existing landscaping acceptable to the director, when the city determines that damage may occur. Provide a satisfactory restoration plan for the repair or replacement of existing landscaping acceptable to the director, when the proposed construction, excavation or work contemplates damage or in the event damage occurs.
- (6) Include a signed statement verifying that all orders issued by the city to the applicant, requiring the applicant to correct deficiencies under previous permits issued under this Code, have been satisfied. This verification shall not apply to outstanding claims which are honestly and reasonably disputed by the applicant, if the applicant and the city are negotiating in good faith to resolve the dispute.
- (7) Include with the application engineering construction drawings or site plans for the proposed construction, excavation, or work. At a minimum, all construction drawings or site plans shall include the location, width, length, and depth of the proposed excavation and proposed facilities, as well as the specific facility information, including without limitation, size and material.
- (8) Include with the application a satisfactory traffic control and erosion protection plan for the proposed construction, excavation, or work. Traffic control plans shall address impacts to all modes of transportation, demonstrate how those impacts will be mitigated, and how bike and pedestrian access will be maintained if the proposed construction, excavation, or work impacts or impairs such access.
- (9) Include a statement indicating any proposed joint use or ownership of the facility; any known existing facility or permit of the applicant at this location; any known existing facility of others with which the proposed installations might conflict; and the name, address

and telephone number of a representative of the applicant available to review proposed locations at the site.

- (10) Pay the fees prescribed by this Code.

(b) Applicants shall update any new information on permit applications within ten days after any material change occurs.

(c) Joint applications. Applicants may apply jointly for permits to work in public rights-of-way at the same time and place. Applicants who apply jointly for permits may share in the payment of the permit fee. Applicants must agree among themselves as to the portion each shall pay.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.060 Permit fee.

(a) Before a permit is issued pursuant to this Code, the applicant shall pay to the city a permit fee, which shall be determined in accordance with a fee schedule adopted by the city council by resolution from time to time. Fees will be reasonably related to the costs inherent in managing the public rights-of-way and processing the application. As used in this chapter, these costs include, but are not necessarily limited to, the costs of permitting rights-of-way occupants, verifying rights-of-way occupation, mapping rights-of-way occupations, inspecting work, inspecting job sites and rights-of-way restorations, re-inspecting work or job sites and rights-of-way restorations, costs relating to the degradation of rights-of-way (i.e., the cost to achieve a level of restoration as determined by the city at the time the permit issued, disruption costs resulting from trail, street or sidewalk closures or traffic disruption and delay, costs relating to rights-of-way damage repair, costs related to final paving or resurfacing of excavations, the cost of professional consultants, including legal review, and any and all costs related to administering this chapter). All fees imposed by this section shall include application fees.

(b) If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an initial escrow payment in an amount

sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services related to the application if they become necessary.

(c) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2180, § 1, 5-10-2022; Ord. No. 2157, § 1, 5-25-2021)

11.20.070 Insurance and indemnification.

(a) Unless otherwise specified in a franchise agreement between the permittee and the city, prior to the granting of any permit, the permittee shall file with the city an insurance policy or certificate in a form satisfactory to the city with coverage as follows:

- (1) The permittee shall carry and maintain in full effect at all times a commercial general liability policy, including broad form property damage, completed operations contractual liability, explosion hazard, collapse hazard, underground property damage hazard, commonly known as XCU, for limits not less than \$2,000,000.00 each occurrence for damages of bodily injury or death to one or more persons; and \$1,000,000.00 each occurrence for damage to or destruction of property.
- (2) Workers compensation insurance as required by state law.
- (3) City departments shall be relieved of the obligation of submitting a certificate of insurance.

- (4) Notwithstanding the foregoing, the director may waive any insurance requirement or other requirements addressing financial security for (i) a governmental entity, or (ii) other entity if such other entity is deemed to provide sufficient coverage through self-insurance, in his or her sole reasonable discretion.

(b) Whenever any person has filed with the city evidence of insurance or self-insurance as required, any additional or subsequent permit holder in the employ of said initial person may, at the discretion of the city, be excused from depositing or filing any additional evidence of insurance if such employee is fully covered by the permittee's insurance policy.

(c) Each permittee shall construct, maintain, and operate its facilities in a manner which provides protection against injury or damage to persons or property.

- (1) The permittee, for itself and its related entities, agents, employees, subcontractors, and the agents and employees of said subcontractors, shall save the city harmless, defend, and indemnify the city, its successors, assigns, officers, employees, agents, and appointed and elected officials from and against all liability or damage and all claims or demands whatsoever in nature unless caused by the negligent or intentional acts of the city, and reimburse the city for all its reasonable expenses, as incurred, arising out of the installation, maintenance, operation or any other work or activity in the public rights-of-way or by the permittee related to its use thereof, including, but not limited to, the actions of the permittee, its employees, agents, contractors, related entities, successors and assigns, or the securing of and the exercise by the permittee of the permit rights granted in the permit, including any third party claims, administrative hearings, and litigation; whether or not any act or omission complained of is authorized, allowed, or prohibited by this Code or other applicable law.

- (2) Following the receipt of written notification of any claim the permittee shall have the right to defend the city with regard to all third party actions, damages and penalties arising in any way out of the exercise of any rights in the permit. If at any time, however, permittee refuses to defend, and the city elects to defend itself with regard to such matters, the permittee shall pay all reasonable expenses incurred by the city related to its defense.
 - (3) In the event the city/town/county institutes litigation against the permittee for a breach of the permit or for an interpretation of this Code and the city is the prevailing party, the permittee shall reimburse the city for all costs related hereto, including reasonable attorney's fees. The permittee shall not be obligated to hold harmless or indemnify the city/town/county for claims or demands to the extent that they are due to the negligence, or any intentional and/or willful acts of the city or any of its officers, employees, or agents.
 - (4) In the event the permittee is a public entity, the indemnification requirements of this section shall be subject to the provisions of the Colorado Governmental Immunity Act.
- (Ord. No. 2157, § 1, 5-25-2021)

11.20.080 Pavement replacement and repair.

(a) Unless permanent street surface repairs are made at the time backfill is completed, all excavations made within the driving surface of any public rights-of-way must be temporarily repaired by tamping or filling into place gravel material. Other type temporary patching material may be used if approved for the purpose by the city engineer. Permittee or its contractor will be responsible for having this temporary patch properly made before the job site is vacated. If the city has to make an emergency repair of permittee's temporary patch or make an original temporary patch for permittee's cut said permittee will be charged a resurfacing fee of double

the amount which would normally be charged under the fee schedule as set forth in section 11.20.060.

(b) All permanent street surfacing or paving or asphalt patch back for all public rights-of-way shall be performed by the city. Repairs shall be made in accordance with specifications included in the annual repair bid. The thickness of the permanent street surface repair or asphalt patch back will be equal to the thickness of the undisturbed surface, or four inches, whichever is greater. Permanent street surface repair or asphalt patch back will be made after inspection and backfill. Permittee will notify the city within 24 hours of completing backfill. Permittee shall reimburse the city for all actual costs and expenses incurred by the city in performing such work. (Ord. No. 2157, § 1, 5-25-2021)

11.20.090 Performance warranty/guarantee.

(a) The permittee, by acceptance of the permit, expressly warrants and guarantees complete performance of the work in a manner acceptable to the city and warrants and guarantees all work done for a period of three years after the date of initial acceptance, and agrees to maintain upon demand and to make all necessary repairs during the three-year period. This warranty shall include all repairs and actions needed as a result of:

- (1) Defects in workmanship.
- (2) Settling of fills or excavations.
- (3) Any unauthorized deviations from the approved plans and specifications.
- (4) Failure to barricade.
- (5) Failure to clean up during and after performance of the work.
- (6) Any other violation of this chapter or the ordinances of the city.

(b) The three-year warranty period shall run from the date of the city's initial acceptance of the work. If repairs are required during the three-year warranty period, those repairs need only be warranted until the end of the initial three-year period starting with the date of initial

acceptance. It is not necessary that a new three-year warranty be provided for subsequent repairs after initial acceptance.

(c) At any time prior to completion of the three-year warranty period, the city may notify the permittee in writing of any needed repairs. Such repairs shall be completed within 24 hours if the defects are determined by the city to be an imminent danger to the public health, safety and welfare. Non-emergency repairs shall be completed within 30 calendar days after notice.

(d) The warranty described in this section shall cover only those areas of work undertaken by a permittee, and not directly impacted by the work of any other permittee or the city. In the event that a portion of work warranted by permittee is subsequently impacted by work of another permittee or the city during the warranty period, that other permittee or the city shall assume responsibility for repair to the subsequently impacted section of rights-of-way.

(e) Unless otherwise specified in a franchise agreement between the permittee and the city, before any permit required by this chapter shall be issued to an applicant, the applicant may be required to file with the director a cash surety, a bond, letter of credit in favor of the city or other financial guarantee in an amount equal to ten percent of the total actual cost of construction, including labor and materials, as security for the performance of work necessary to repair the public rights-of-way if the permittee fails to make the necessary repairs or to complete the work under the permit. The bond or letter of credit shall be executed by the applicant as principal and by at least one surety upon whom service of process may be had in the state. The bond or letter of credit shall be conditioned upon the applicant fully complying with all provisions of the permit, and upon payment of all judgments and costs rendered against the applicant for any violation of permit provisions or for any loss, injury or damages arising out of any negligent or wrongful acts of the applicant in the performance of work done pursuant to the permit. The city may, at the city's discretion, call on the surety or issuing entity, or pursue any other legal remedies available to it at law or equity

relating to the bond or letter of credit. The bond or letter of credit must be approved by the city's finance director and city attorney as to form and as to the responsibility of the surety thereon prior to the issuance of the permit. However, the city may waive the requirements of any such bond or letter of credit or may permit the applicant to post a bond without surety thereon upon finding that the applicant has financial stability and assets located in the state to satisfy any claims intended to be protected against the security required by this section.

(f) The performance bond, letter of credit or other financial guarantee shall remain in force and effect at all times during the warranty period.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.100 Inspections.

A minimum of two inspections shall take place. First, the city shall conduct an inspection at the start of work. Second, the permittee shall notify the city immediately after completion of work operations. The city shall inspect the completed work within 21 days of permittee's notification. Additional inspections may be required for complex or long duration permits. For work which does not involve material disturbance in the rights-of-way, the director shall waive the final inspection.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.110 Public safety.

The permittee shall maintain a safe work area, free of safety hazards. The city may make any repair necessary to eliminate any safety hazards not performed as directed. Any such work performed by the city shall be completed and billed to the permittee. The permittee shall pay all such charges within 30 days of the statement date. If the permittee fails to pay such charges within the prescribed time period, the city may, in addition to taking other collection remedies, seek reimbursement through the warranty guarantee. The city shall not issue any further permits of any kind to said permittee, until all outstanding charges (except those outstanding charges that are honestly and reason-

ably disputed by the permittee and being negotiated in good faith with the city) have been paid in full.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.120 Time of completion.

All work covered by the permit shall be completed by the date stated on the application. Permits shall be void if work has not commenced six months after issuance, unless an extension has been granted by the director. Performance bonds, letters of credit or other financial guarantees deposited as a performance/warranty guarantee for individual permits will be returned after voiding of the permit, with administrative and any other city costs deducted. (Ord. No. 2157, § 1, 5-25-2021)

11.20.130 Traffic control.

(a) When it is necessary to impact traffic or parking, including pedestrian and bike traffic, a traffic control plan shall be submitted to the city prior to starting construction. No permit will be issued until the plan is approved by the city. The city shall consider the extent of the impact in the given project area, the expected duration of the project, and any other relevant considerations when reviewing and approving or rejecting a traffic control plan. No permittee shall block access to and from private property, block emergency vehicles, block access to fire hydrants, fire stations, fire escapes, water valves, underground vaults, valve housing structures, or any other vital equipment unless the permittee provides the city with written verification of written notice delivered to the owner or occupant of the facility, equipment or property at least 48 hours in advance. If a street closing is desired, the applicant will request the assistance and obtain the approval of the director. It shall be the responsibility of the permittee to notify and coordinate all work in the public way with police, fire, ambulance, other government entities, and transit organizations. Permittee should make every effort to minimize impacts to public parking and pedestrian and bike traffic movement and, when necessary, provide pedestrian and bike detours that minimize impacts to pedestrian and bike movement. Safety of the traveling

public is the most important item to be addressed in the traffic control plan, and the traffic control plan should note measures that are required for vehicular, pedestrian and bike safety and minimizing traffic conflicts among all modes of transportation.

(b) When necessary for public safety, the permittee shall employ flag persons whose duties shall be to control traffic around or through the construction site. The use of flag persons may be required by the director.

(c) Unless approved by the director, the permittee shall not impede rush hour traffic on arterial or collector streets during the morning or evening rush hours.

(d) Traffic control devices, as defined in Part VI of the Manual on Uniform Traffic Control Devices, must be used whenever it is necessary to close a traffic lane or sidewalk. Traffic control devices are to be supplied by the permittee. If used at night, they must be reflectorized and must be illuminated or have barricade warning lights.

(e) Oil flares or kerosene lanterns are not allowed as means of illumination. Nighttime work area flood lighting shall not be allowed to spill out of the construction area in such a way as to disturb, annoy, or endanger the comfort, health or peace of others.

(f) Part VI of the Manual on Uniform Traffic Control Devices or any successor publication thereto shall be used as a guide for all maintenance and construction signing. The permittee shall illustrate on the permit the warning and control devices proposed for use. At the direction of the director, such warning and control devices shall be modified.

(g) *Maintenance and construction signing.* The contractor shall be responsible for maintaining all work area signing and barricading during construction operations as well as any signs and barricades that are needed to protect roadway users and pedestrians during non-work hours. During non-work hours, all construction work area signs that are not appropriate shall be removed, covered, or turned around so that they do not face traffic. The contractor shall ensure

that "No Parking" signage is visible in the permitted right-of-way area at least 24 hours prior to the commencement of work unless operating under section 11.20.220, "Emergency Procedures." If a contractor fails to place "No Parking" signage in the permitted right-of-way area at least 24 hours prior to the commencement of work, and a vehicle is parked in the permitted area when work is to commence, the contractor may request to have the vehicle moved by the city at the contractor's expense, subject to the city's discretion. Any deficiencies noted during non-work hours by the city shall be corrected immediately by the contractor. For purposes of this section "immediately" means 30 minutes from verbal notification. If contractor is not available or cannot be found, the city may make such corrections and the contractor shall pay the actual costs plus a penalty of 50 percent of the amount thereof.

(Ord. No. 2279, § 5, 10-28-2025; Ord. No. 2157, § 1, 5-25-2021)

11.20.140 General rights-of-way use and construction.

(a) *Right-of-way meetings.* Permittee will make reasonable efforts to attend and participate in meetings of the city, of which the permittee is made aware, regarding rights-of-way issues that may impact its facilities, including, planning meetings to anticipate joint trenching and boring. Whenever it is possible and reasonably practicable to joint trench or share bores or cuts, permittee shall work with other providers, licensees, permittees, and franchisees so as to reduce so far as possible the number of rights-of-way cuts within the city and the amount of pedestrian and vehicular traffic that is obstructed or impeded.

(b) *Minimal interference.* Work in the rights-of-way, on other public property, near public property, or on or near private property shall be done in a manner that causes the least interference with the rights and reasonable convenience of property owners and residents. Permittee's facilities shall be constructed and maintained in such manner as not to interfere with sewers, water pipes, or any other infrastructure or property of the city, or with any other pipes, wires, conduits, pedestals, structures, or other

facilities that may have been laid in the rights-of-way by, or under, the city's authority. The permittee's facilities shall be located, erected and maintained so as not to endanger or interfere with the lives of persons, or to interfere with new improvements the city may deem proper to make or to unnecessarily hinder or obstruct the free use of the rights-of-way or other public property, and shall not interfere with the travel and use of public places by the public during the construction, repair, operation or removal thereof, and shall not obstruct or impede traffic, except as approved under a traffic control plan or as provided under section 11.20.130.

(c) Underground construction and use of poles.

- (1) When required by general ordinances, resolutions, regulations or rules of the city, applicable state or federal law, or a franchise agreement between permittee and the city, permittee's facilities shall be placed underground at no cost to the city. Placing facilities underground does not preclude the use of ground-mounted appurtenances.
- (2) Where all facilities are installed underground at the time of permittee's construction, or when all such facilities are subsequently placed underground, all permittee facilities that by their nature can function underground, shall also be placed underground at no expense to the city, unless funding is generally available for such relocation to all users of the rights-of-way. Related equipment, such as pedestals, must be placed in accordance with the city's applicable code requirements and rules. In areas where existing facilities are aerial, the permittee may install aerial facilities.
- (3) For above ground facilities, the permittee shall utilize existing poles and conduit wherever possible and permissible.
- (4) Should the city desire to place its own facilities in trenches or bores opened by the permittee, the permittee shall cooperate with the city in any construction by the permittee that involves trenching or boring, provided that the city has first

notified the permittee in some manner that it is interested in sharing the trenches or bores in the area where the permittee's construction is occurring. The permittee shall allow the city to place its facilities in the permittee's trenches and bores, provided the city incurs any incremental increase in cost of the trenching and boring. Should the city desire to install facilities such as ducts or conduit for the possible use of other entities, then the permittee shall allow the city/town/county to place these facilities in the permittee's trenches and bores, provided the city shares proportionally in the cost of trenching and boring. The city and permittee may enter into an agreement providing for the permittee to construct and install city facilities in trenches or bores opened by the permittee, and any reimbursement to the permittee for the cost of constructing and installing such city facilities. The city shall be responsible for maintaining its respective facilities buried in the permittee's trenches and bores under this paragraph.

(d) *Use of conduits by the city.* Unless otherwise restricted by tariff, the city may install or affix and maintain its own facilities for city purposes in or upon any and all of permittee's ducts, conduits or equipment in the rights-of-way and other public places, at a charge to be negotiated between the parties, to the extent space therein or thereon is reasonably available, and pursuant to all applicable ordinances and codes. For the purposes of this subsection, "city purposes" includes, but is not limited to, the use of the structures and installations for city fire, police, traffic, water, telephone, and/or signal systems.

(e) *Common users.*

- (1) The rights-of-way have a finite capacity for containing facilities. Therefore, whenever the city determines it is impracticable to permit construction of an underground conduit system by any other entity which may at the time have authority to construct or maintain conduits or ducts in the rights-of-way, but excluding entities providing services

in competition with permittee, and unless otherwise prohibited by federal or state law or regulations, the city may require permittee to afford to such entity the right to use permittee's surplus ducts or conduits in common with permittee, pursuant to the terms and conditions of an agreement for use of surplus ducts or conduits entered into by permittee and the other entity. Nothing herein shall require permittee to enter into an agreement with such entity if, in permittee's reasonable determination, such an agreement could compromise the integrity of the permittee's facilities.

- (2) All facilities shall meet any applicable local, state, and federal clearance and other safety requirements, be adequately grounded and anchored, and meet the provisions of contracts executed between permittee and the other common user. Permittee may, at its option, correct any attachment deficiencies and charge the common user for its costs. Each common user shall pay permittee for any fines, fees, damages or other costs the common user's attachments cause permittee to incur.

(f) *Protection and damage prevention.* In performing any work in the rights-of-way, permittee shall exercise reasonable care to protect city facilities, city infrastructure, or other property of the city in or near the excavation area. (Ord. No. 2279, § 5, 10-28-2025; Ord. No. 2157, § 1, 5-25-2021)

11.20.150 Joint planning and construction; coordination of excavations.

(a) Excavations in city's rights-of-way disrupt and interfere with the public use of city streets and can either damage the pavement and landscaping or preclude future landscaping or other installations in the right-of-way. The purpose of this section is to reduce this disruption, interference and damage of the right-of-way by promoting and incentivizing better coordination among permittees making excavations and the city. Better coordination will assist in minimizing the number of excavations being made

wherever feasible, and will ensure the excavations in city rights-of-way are, to the maximum extent possible, combined and/or performed before, rather than after, the resurfacing of the streets by the city.

(b) At the director's request, any permittee owning, operating or installing facilities in city rights-of-way, the owner of any facilities in city rights-of-way, or any permittee or owner providing water, sewer, gas, electric, broadband, communication, video or other utility services, shall meet and present with the director the permittee's infrastructure master plan, which meetings shall not occur more frequently than quarterly. At such intervals, to the extent not already in possession of the city, permittee or owner shall submit documentation, in a form required by the director, showing a location of the permittee's or owner's existing, currently proposed, and future to be proposed facilities in the city rights-of-way. When requested by the city, such information shall be transmitted directly to an outside mapping entity accessible to the city that has established non-disclosure agreements with each permittee or owner to protect proprietary information to the satisfaction of the permittee or owner. Permittee or owner shall discuss with the director, its infrastructure master plan, and identify planned major excavation work in the city. The director may make his or her own record on a map, drawing or other documentation, of each permittee's or owner's planned major excavation work in the city; provided, however, that no such document prepared by the director shall identify a particular entity, or the planned major excavation work of that particular entity. Permittee or owner shall meet with the director to discuss its initial infrastructure master plan no later than 60 days after submitting its first permit application. Thereafter, each permittee or owner shall submit annually, on the first regular business day of January, a revised and updated infrastructure master plan. Such revised and updated plan shall be submitted in both hard copy and digital format. As used in this subsection, the term "planned major excavation work" refers to any future excavations planned by the permittee or owner when the infrastructure master plan or update is submitted that will

affect any city rights-of-way for more than five days, provided that the permittee or owner shall not be required to identify future major excavations planned to occur more than one year after the date that the permittee's or owner's master plan or update is discussed. Between the quarterly meetings to discuss planned major excavation work, permittee or owner shall use its best efforts to inform the director of any substantial changes in the planned major excavation work discussed at the quarterly meeting.

(c) The director shall review the infrastructure master plan and identify conflicts and opportunities for coordination of excavations. Following receipt of the permittee's or owner's existing currently proposed, and future major work mapping information, the director may electronically post the information in order that it can be reviewed by affected owners and permittees of such conflicts and opportunities to the extent necessary to maximize coordination of excavation. Each applicant for a permit shall coordinate, to the extent practicable, with planned city operations and each potentially affected owner and permittee to minimize disruption in the rights-of-way, regardless of whether such coordination was initiated by the director.

(d) The city may disclose information contained in a permittee's or owner's infrastructure master plan to any public or private entity planning on conducting excavation activities in the rights-of-way only on a need-to-know basis in order to facilitate coordination among excavators and to avoid unnecessary excavation in the rights-of-way. To the maximum extent permissible under the Colorado Open Records Act, as amended, the city shall not otherwise disclose to the public any information contained in mapping information submitted by a permittee or owner that is proprietary, trade secret or is otherwise protected from disclosure; provided, however that the city shall have no duty to decline to disclose any information that the permittee or owner has not identified on its face as proprietary, trade secret or otherwise protected from disclosure. The city shall notify a permittee or owner of any request for inspection of public records that calls for disclosure of any infrastructure master plan on which any information has been identified as

proprietary, trade secret or otherwise protected from disclosure. The city shall consult with its legal counsel regarding any such request and shall inform the affected permittee or owner either that the city will refuse to disclose the protected information or, if there is no proper basis for such refusal, that the city intends to disclose the requested information unless ordered otherwise by a court.

The director shall prepare a repaving plan showing the street resurfacing planned by the city. For purposes of this section, the repaving plan shall include a landscaping or other right-of-way improvement plan. The repaving plan shall be revised and updated on an annual basis after meeting to discuss the permittee's or owner's and city department's master plans and updates. The director shall make the city's/town's/county's repaving plan available for public inspection. In addition to any other form of communication, after determining the street resurfacing work that is proposed for each year, the director shall post a notice of the proposed work on the city's website or other designated electronic location, in order to provide notice of the proposed street resurfacing work to all permittees or owners that have had a quarterly meeting with the director, and those broadband providers that are identified on the list maintained by the Colorado Department of Transportation pursuant to C.R.S. 39-5.5-109 (1)(b).

(e) Prior to applying for a permit, any person planning to excavate in the city's rights-of-way shall review the city's repaving plan on file with the director and shall coordinate, to the extent practicable, with the utility and street work shown on such plans to minimize damage to, and avoid undue disruption and interference with the public use of such rights-of-way. Without such coordination, future work within repaved areas may be limited at the discretion of the director, to prevent premature disturbance of newly paved surfaces.

(f) In performing location of facilities in the public rights-of-way in preparation for construction under a permit, permittee shall compile all information obtained regarding its or any other facilities in the public rights-of-way related to a

particular permit, according to state utility locating rules and parameters, and shall make that information available to the city in a graphical and verified format acceptable to the director. If the permittee fails to provide the locate information requested by the city, the city may obtain this information and charge the permittee the actual costs for obtaining the information.

(g) Prior to undertaking any work in the rights-of-way or related landscaping, the city may notify all permittees or owners of the city work to be performed. Upon such notification, all permittees or owners shall, within seven days, locate their facilities in the rights-of-way in which the work will be performed, and provide documentation in a format acceptable to the director of the permittee's or owner's facilities in that rights-of-way.

(h) Whenever a public entity excavator(s) and a private entity excavator(s) propose major work in the same block within a one-year period, the department shall condition permits for such work in a manner that maximizes coordination and minimizes the total period of construction.

(i) When an applicant seeks a permit for an excavation, an applicant may, in the discretion of the director, be required to circulate a description of the proposed excavation to other permittees and parties described in section 11.20.160(e) above, to determine whether any persons have construction requirements or opportunities for coordinating joint excavations along the proposed route.

- (1) The persons notified should be provided with the applicant's proposed route plan, the target commencement date and the estimated completion date.
- (2) Within ten working days after the notification required by this subsection, any interested person must notify the applicant of their requirements so that the applicant may incorporate these requirements, where reasonable, in its permit application. The applicant should summarize the responses it receives from other persons in its application.

(3) If the applicant believes that it is not reasonably feasible to entertain the requests made by another person(s) for conditions of joint excavation, it should notify city and the other person(s) within ten working days from the date of receiving the requirements from the other person(s) and provide reasons why it is considered not reasonable to do so. The parties are expected to endeavor to resolve any technical or commercial concerns among themselves, and the applicant shall report the results of these efforts together with its application for a permit. (Ord. No. 2157, § 1, 5-25-2021)

11.20.160 Construction of new streets.

(a) *Intent.* The intent of this section is to provide for the construction of infrastructure sufficient to allow broadband communications entities desiring to deploy facilities in the future to do so by pulling the same through the conduit and appurtenances installed pursuant to this section and without additional excavation within the rights-of-way. This section is intended to require those constructing public streets, including the city and developers, to provide and install such conduit and appurtenances as may be necessary to accommodate future broadband needs within the rights-of-way without further excavation.

(b) *Requirements—Adoption of standards.* Whenever any new public street is constructed, whether by the city or other public entity as a public works project or by a developer in conjunction with development, the following shall be required:

- (1) In all new local streets serving or abutting residential development, a minimum of four two-inch conduit with pull boxes on both sides of every street crossing/intersection with one pull-box centered mid-block between, or if installations are proposed in rights-of-way with block lengths longer than 700 feet, then at a minimum of 500 feet intervals or less (and at every 90-degree turn) shall be installed by the party constructing the street.

- (2) In all new collector or arterial streets serving or abutting residential development, and in all new streets serving or abutting nonresidential development, a minimum of six two-inch conduit with pull boxes on both sides of every street crossing/intersection with one pull-box centered mid-block between, or if installations are proposed in rights-of-way with block lengths longer than 700 feet, then at a minimum of 500 feet intervals or less (and at every 90-degree turn) shall be installed by the party constructing the street; provided however that at the discretion of the director, the number and size of the conduit and spacing of pull boxes may be modified to address the reasonably known plans and/or demand for broadband or future technology capacity in these locations.

- (3) In addition to installing conduit, the party constructing the street will be required to install such vaults and other appurtenances as may be necessary to accommodate installation and connection of broadband facilities within the conduit as defined by the city either before, or during permitting.

- (4) All construction and installation shall be accomplished according to construction standards adopted by the city. The construction standards shall be adopted with due consideration given to existing and anticipated technologies and consistent with industry standards.

- (5) All facilities installed by developers pursuant to this section shall be conveyed and dedicated to the city with the dedication and conveyance of the public street and/or rights-of-way.

- (6) All installation costs shall be the responsibility of the party constructing the public street.

(c) *Use by broadband service providers and network owners.* Whenever conduit installed or to be installed under this section is available or will become available within a newly constructed public streets or rights-of-way upon dedication,

all broadband service providers or network owners thereafter locating facilities within such street or rights-of-way shall be required to locate their communications lines within such conduit unless it can be demonstrated to the reasonable satisfaction of the city that such location is not technologically feasible or reasonably practicable. Conduit capacity shall be allocated to broadband service providers or network owners on a first-come, first-served basis; provided, that the city may reserve capacity within such conduits for its own use; and provided further, that the director may adopt additional rules for conduit allocation in order to ensure that all broadband service providers and network owners have reasonable access to the rights-of-way and that no barriers to entry or competition result from the allocation of conduit space.

(d) *Fees.* The city reserves the right to charge reasonable fees for the use of conduit installed pursuant to this section, to the extent consistent with and as limited by federal and state laws. Any such fees shall be established by resolution or ordinance.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.170 Minimizing the impacts of work in the rights-of-way.

(a) *Relocation and protection of utilities.* Before beginning excavation in any public way, a permittee shall contact the Utility Notification Center of Colorado (UNCC) and, to the extent required by C.R.S. 9-1.5-102 et seq., make inquiries of all ditch companies, utility companies, broadband providers, districts, local government departments, and all other agencies that might have facilities in the area of work to determine possible conflicts.

- (1) The permittee shall contact the UNCC and request field locations of all facilities in the area pursuant to UNCC requirements. Field locations shall be marked prior to commencing work. The permittee shall support and protect all pipes, conduits, poles, wires, or other apparatus which may be affected by the work from damage during construction or settlement of trenches subsequent to construction.

- (2) Issuance of a permit for work in the rights-of-way shall not relieve the permittee from complying with all utility damage prevention requirements set forth in C.R.S. 9-1.5-102 et seq during excavation.

(b) *Noise, dust, debris, hours of work.* Each permittee shall conduct work in accordance with all applicable laws and in such manner as to avoid unnecessary inconvenience and annoyance to the general public and occupants of neighboring property. In the performance of the work, the permittee shall take appropriate measures to reduce noise, dust, and unsightly debris. No work shall be done between the hours of 7:00 p.m. and 7:00 a.m. nor at any time on Sunday nor on a city-observed holiday, except with the written permission of the director, or in case of an emergency.

(c) *Trash and construction materials.* Each permittee shall maintain the work site so that:

- (1) Trash and construction materials are contained so that they are not blown off of the construction site.
- (2) Trash is removed from a construction site often enough so that it does not become a health, fire, or safety hazard.
- (3) Trash dumpsters and storage or construction trailers are not placed in the street without specific approval of the director.

(d) *Deposit of dirt and material on roadways.* Each permittee shall utilize their best efforts to eliminate the tracking of mud or debris upon any street or sidewalk. Streets and sidewalks shall be cleaned of mud and debris at the end of each day. All equipment and trucks tracking mud and debris into the right-of-way shall be cleaned of mud and debris at the end of each day or as directed by the director.

(e) *Protection of trees and landscaping.* Each permittee shall protect trees, landscape, and landscape features as required by the city. All protective measures shall be provided at the expense of the permittee.

(f) *Protection of paved surfaces from equipment damage.* Backhoe equipment outriggers shall be fitted with rubber pads whenever outriggers are placed on any paved surface. Tracked vehicles that will damage pavement surfaces are not permitted on paved surface unless specific precautions are taken to protect the surface. The permittee will be responsible for any damage caused to the pavement by the operation of such equipment and, shall repair such surfaces. Failure to do so will result in the use of the applicant's performance/warranty guarantee by the city to repair any damage, and, possibly, the requirement of additional warranty(s).

(g) *Protection of property.* Each permittee shall protect from injury any adjoining property by providing adequate support and taking other necessary measures. The permittee shall, at its own expense, shore up and protect all buildings, walls, fences or other property likely to be damaged during the work, and shall be responsible for all damage to public or private property resulting from failure to properly protect and carry out work in the public way.

(h) *Clean-up.* As the work progresses, all public rights-of-way and private property shall be thoroughly cleaned of all rubbish, excess dirt, rock, and other debris. All clean-up operations shall be done at the expense of the permittee.

(i) *Preservation of monuments.* A permittee shall not disturb any surface monuments, property marks or survey hubs and points found on the line of work unless approval is obtained from the director. Any monuments, hubs, and points disturbed will be replaced by a Colorado Registered Land Surveyor at the permittee's expense.

(j) *[Parking.]* Each permittee shall make provisions for employee and construction vehicle parking so that neighborhood parking adjacent to a work site is not impacted.

(k) *[Walkway.]* Each permittee shall maintain an adequate and safe unobstructed walkway around a construction site or blocked sidewalk in conformance with City Code.

(l) *[Snow and ice removal].* Each permittee shall clear all snow and ice hazards from public sidewalks at the work site by noon following a snowfall in conformance with City Code.

(m) *[Sanitary facilities.]* Each permittee shall provide necessary sanitary facilities for workers. The location of such facilities shall be approved by the city in the permit.
(Ord. No. 2279, § 5, 10-28-2025; Ord. No. 2157, § 1, 5-25-2021)

11.20.180 Standards for repairs and restoration.

(a) *Permittee responsibility.* The permittee shall be fully responsible for the cost and actual performance of all work in the public rights-of-way. The permittee shall do all work in conformance with any and all engineering regulations, specifications, and design standards adopted by the city. These standards shall apply to all work in the public rights-of-way unless otherwise indicated in the permit.

(b) All restoration shall result in a work site condition equal to or better than that which existed prior to construction. In addition to the regulations, specifications and standards referred to in subsection (a) the following provisions shall apply to work in the public rights-of-way of the city:

- (1) Pavement cuts shall be filled with compacted CDOT Class 6 road base material. Temporary concrete or asphalt patches will be placed to match the existing street cross section.
- (2) Class 6 road base shall be placed in an excavation to the density required by city compaction specifications.
- (3) Asphalt patch back will be performed by the City of Golden. All associated costs and fees shall be paid by the permittee.
- (4) Prior to the issuance of a permit for construction, excavation, or work activity, in the public rights-of-way, the applicant must request and receive approval for the use of any alternative backfill material.

- (5) The type, gradation, placement, compaction, and testing of the granular backfill material shall meet or exceed all requirements specified in design and construction standards adopted by the city.
 - (6) In cases where it is impossible to achieve the compaction required by the local municipal/county building code on Class 6 road base, the city may allow the use of controlled density fill or flash fill material. When controlled density fill type material is used, steel plate will be placed to cover the opening for the time required to allow the material to set.
 - (7) Once the compacted backfill has been placed, an asphalt cutback shall be made. The cutback will extend six inches minimum on each side of the opening and will be over undisturbed pavement material (one and one-half-inch deep minimum). All edges of the opening shall be neatly cut with an asphalt saw and uniformly tacked.
 - (8) The city will be responsible for permanent asphalt patch back. New asphalt will be placed in lifts (three inches maximum) and compacted upon placement. Asphalt depths will be governed by the existing cross section of the street but not less than four inches of full depth asphalt shall be used to fill a street cut regardless of the existing cross section. Any damaged or removed concrete shall be replaced by the permittee. Concrete meeting all construction standards of the city shall be used to replace concrete pavement wherever it occurs.
- (Ord. No. 2157, § 1, 5-25-2021)
- 11.20.190 Construction and restoration standards for newly constructed or overlaid streets.**
- No person shall cause an open trench excavation or potholing of utilities in the pavement of any public rights-of-way for a period of three years from the completion of construction or resurfacing except in compliance with the provisions of this section.
- (a) *Application.* Any application for a permit to excavate in public rights-of-way subject to the requirements of this section shall contain the following information:
 - (1) A detailed and dimensional engineering plan that identifies and accurately represents the city rights-of-way or property that will be impacted by the proposed excavation, as well as adjacent streets, and the method of construction.
 - (2) The street width or alley width including curb and gutter over the total length of each city block that will be impacted by the proposed excavation.
 - (3) The location, width, length, and depth of the proposed excavation and proposed facility.
 - (4) The total area of existing street or alley pavement in each individual city block that will be impacted by the proposed excavation.
 - (5) A written statement addressing the criteria for approval.
 - (b) *Criteria for approval.* No permit for excavation in the rights-of-way of new streets shall be approved unless the director finds that all of the following criteria have been met:
 - (1) Boring or jacking without disturbing the pavement is not practical due to physical characteristics of the street or alley or other utility conflicts.
 - (2) Alternative utility alignments that do not involve excavating the street or alley are found to be impracticable.
 - (3) The proposed excavation cannot reasonably be delayed until after the three-year deferment period has lapsed.

(c) *Exemptions for emergency operations.* Emergency maintenance operations shall be limited to circumstances involving the preservation of life, property, or the restoration of customer service. Persons with prior authorization from the city to perform emergency maintenance operations within the public rights-of-way, shall be exempted from this section. Any person commencing emergency maintenance operations shall submit detailed engineering plans, construction methods and remediation plans no later than three working days after initiating the emergency maintenance operation.

(d) *Exemptions for non-emergency operations.* A permittee may apply to the director for an exemption under this section when the construction is necessary in the public interest or to provide a public service. By way of example, but not by limitation, an exemption could be requested in order to provide services to a part of the city where no service would be available without construction. If a non-emergency exemption is granted to disturb a public way within the three-year period, the director may, in his or her sole discretion, impose additional restoration requirements, including, but not necessarily limited to, repaving of a larger area, such as an entire block in which the construction occurs.

(e) *Construction and restoration standards for newly constructed or overlaid streets and alleys.* The streets shall be restored and repaired in accordance with design and construction standards adopted by the city. The city will be responsible for permanent resurfacing or asphalt patch back, and permittee shall reimburse the city for all actual costs and expenses in completing such work.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.200 Relocation of utilities.

If at any time the city requests the permittee to relocate its facilities, in order to allow the city to make any public use of rights-of-way, or if at

any time it shall become necessary because of a change in the grade or for any other purpose by reason of the improving, repairing, constructing, or maintaining of any rights-of-way, or reason of traffic conditions, public safety or by reason of installation of any type of structure of public improvement the city or other public agency or special district, and any general program for the undergrounding of such facilities, to move or change the permittee's facilities within or adjacent to rights-of-way in any manner, either temporarily or permanently, the city shall notify the permittee at least 90 days in advance, except in the case of emergencies, of the city's intention to perform or have such work performed. The permittee shall thereupon, at no cost to the city, accomplish the necessary relocation, removal or change within a reasonable time from the date of the notification, but in no event later than three working days prior to the date the city has notified the permittee that it intends to commence its work or immediately in the case of emergencies. Upon the permittee's failure to accomplish such work, the city or other public agencies or special district may perform such work at the permittee's expense and the permittee shall reimburse the city or other agency within 30 days after receipt of a written invoice. Following relocation, all affected property shall be restored to, at a minimum, the condition which existed prior to construction by permittee at the permittee's expense. Notwithstanding the requirements of the section, a permittee may request additional time to complete a relocation project. The director shall grant a reasonable extension if in his or her sole discretion, the extension will not adversely affect the city's project.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.210 Abandonment and removal of facilities.

(a) *Notification of abandoned facilities.* Any permittee that intends to discontinue use of any facilities within the public rights-of-way shall notify the director in writing of the intent to discontinue use. Such notice shall describe the facilities for which the use is to be discontinued, a date of discontinuance of use, which date shall

not be less than 30 days from the date such notice is submitted to the director and the method of removal and restoration. The permittee may not remove, destroy or permanently disable any such facilities during said 30-day period without written approval of the director. After 30 days from the date of such notice, the permittee shall remove and dispose of such facilities as set forth in the notice, as the same may be modified by the director, and shall complete such removal and disposal within six months, unless additional time is requested from and approved by the director.

(b) *Conveyance of facilities.* At the discretion of the city, and upon written notice from the director within 30 days of the notice of abandonment, the permittee may abandon the facilities in place, and shall further convey full title and ownership of such abandoned facilities to the city. The consideration for the conveyance is the city's permission to abandon the facilities in place. The permittee is responsible for all obligations as owner of the facilities, or other liabilities associated therewith, until the conveyance to the city is completed.

(c) *Abandonment of facilities in place.* At the discretion of the city, and upon written notice from the director the permittee may abandon the facilities in place, but the permittee still retains the responsibility for all obligations as owner of the facilities, or other liabilities associated therewith.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.220 Emergency procedures.

(a) *[Procedure.]* Any person maintaining facilities in the public way may proceed with repairs upon existing facilities without a permit when emergency circumstances demand that the work be done immediately. The person doing the work shall apply to the city for a permit on or before the third working day after such work has commenced. All emergency work will require prior telephone notification to the city police department and the appropriate fire protection agency.

(b) *Notifications.* If any damage occurs to an underground facility or its protective covering, the contractor shall notify the facility's operator promptly. When the facility's operator receives a damage notice, the facility's operator shall promptly dispatch personnel to the damage area to investigate. If the damage results in the escape of any inflammable, toxic, or corrosive gas or liquid or endangers life, health, or property, the contractor responsible shall immediately notify the facility's operator and 911 and take immediate action to protect the public and nearby properties.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.230 Revocation of permits and stop work orders.

(a) Any permit may be revoked or suspended by the director, due to the actions or inactions of any permittee, general contractor, subcontractor, director, officer, or agent working under a permit, after written notice to the permittee for:

- (1) Violation of any material condition of the permit or of any material provision of this Code.
- (2) Violation of any material provision of any other ordinance of the city or state law relating to the work.
- (3) Existence of any condition or performance of any act which the city determines constitutes or causes a condition endangering life or damage to property.

(b) *Stop work orders.* A stop work order may be issued by the director to any person or persons doing or causing any work to be done in the public way for:

- (1) Working without a permit except for routine maintenance or emergency repairs to existing facilities as provided for in this Code.
- (2) Doing work in violation of any provisions of this Code, or any other ordinance of the city, or state law relating to the work.
- (3) Performing any act, which the city determines constitutes or causes a condition that either endangers life or property.

(c) A suspension or revocation by the director, and a stop work order, shall take effect immediately upon notice to the person performing the work in the public way, or to the permittee's last known address.

(d) Any suspension or revocation or stop work order may be appealed by the permittee to the director by filing a written notice of appeal within 30 days of the action.

(Ord. No. 2279, § 5, 10-28-2025; Ord. No. 2157, § 1, 5-25-2021)

11.20.240 Appeals procedure.

Any decision rendered by the director pursuant to this chapter may be appealed within 30 days by the permittee to the city manager in accordance with the rules and procedures established by the city manager.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.250 Penalty.

Any person, firm or corporation that violates or causes the violation of any of the provisions of this chapter shall be punished as set forth in section 8.25.120 of this Code. Each violation shall constitute a separate offense and shall be punishable as a separate offense.

(Ord. No. 2157, § 1, 5-25-2021)

11.20.260 Severability.

All sections, subsections, provisions and parts of this chapter shall be severable, and if any section, subsection, provision, or portion of this chapter is declared or ruled invalid or otherwise invalidated by any court or agency of valid jurisdiction, such declaration or ruling shall not affect the validity of any other section, subsection, provision or portion of this chapter, and all other sections, subsections, provisions and portions of this chapter shall remain in full force and effect.

(Ord. No. 2157, § 1, 5-25-2021)

Chapter 11.24

RESERVED*

Chapter 11.32

TELEPHONE UTILITY BUSINESS AND OCCUPATION TAX

11.32.010 Levy of tax.

There is levied on and against each telephone utility company operating within the city (in this chapter called the "city") a tax on the occupation and business of maintaining a telephone exchange and lines connected therewith in the city and of supplying local exchange telephone service to the inhabitants of the city. The annual amount of tax levied shall be \$8.00 per telephone account for which local exchange telephone service is provided within the corporate limits of the city on March 1, 1979, and upon each anniversary of that date.

(Ord. 811, § 1(part), 1979)

11.32.020 Effective date.

The tax levied by this chapter shall commence on March 1, 1979, and shall be due and payable in 12 equal monthly installments with the first such installment due 30 days after the effective date.

(Ord. 811, § 1(part), 1979)

11.32.030 Filing statement.

Within 30 days after the effective date as provided in section 11.32.020, each telephone utility company subject to this chapter shall file with the city clerk, in such form as the clerk may require, a statement showing the total telephone accounts for which local exchange telephone service was provided within the corporate limits of the city on the effective date. Such statement shall be filed within 30 days after each anniversary of the effective date showing such accounts on the anniversary date.

(Ord. 811, § 1(part), 1979)

***Editor's note**—Sec. 2 of Ord. No. 2157, adopted May 25, 2021, repealed ch. 11.24, which pertained to street damage, consisted of §§ 11.24.010—11.24.060, and derived from Ord. 958, 1984.

11.32.040 Failure to pay.

If any telephone utility company subject to the provisions of this chapter fails to pay the taxes as provided in this chapter, the full amount thereof shall be due and collected from such company, and the same together with an addition of ten percent of the amount of taxes due and reasonable attorney's fees shall be a debt due and owing from such company to the city. The city attorney, upon direction of the city council shall commence and prosecute to final judgment and determination in any court of competent jurisdiction an action at law to collect the debt in the name of the people of the city. (Ord. 811, § 1(part), 1979)

11.32.050 Penalty clause.

If any officer, agent or manager of a telephone utility company which is subject to the provisions of this chapter shall fail, neglect, or refuse to make or file the annual statement of accounts provided in section 11.32.030, the officer, agent, manager or person shall, on conviction thereof, be punished by a fine not less than \$25.00 nor more than \$300.00; provided, that each day after said statement becomes delinquent during which the officer, agent, manager or person so fails, neglects, or refuses to make and file such statement shall be considered a separate and distinct offense. (Ord. 811, § 1(part), 1979)

11.32.060 Inspection of records.

The city, its officers, agents or representatives shall have the right at all reasonable hours and times to examine the books and records of the telephone utility company which are subject to the provisions of this chapter and to make copies of the entries or contents thereof. (Ord. 811, § 1(part), 1979)

11.32.070 Local purpose.

The tax provided in this chapter is upon occupations and businesses in the performance of local functions and is not a tax upon those functions relating to interstate commerce. It is expressly understood that none of the terms of

this chapter shall be construed to mean that any telephone utility company is issued a franchise by the city. (Ord. 811, § 1(part), 1979)

11.32.080 Tax in lieu of other taxes, etc.

The tax provided in this chapter shall be in lieu of all other payments by or fees and taxes on any telephone utility subject to the provisions of this chapter, other than ad valorem taxes, and in addition shall be in lieu of any free service furnished the city by any said telephone utility. All taxes, the liability for which has been accrued before March 1, 1979, shall be and remain unconditionally due and payable to the city. (Ord. 811, § 1(part), 1979)

Chapter 11.35**UNDERGROUNDING AND RELOCATION
OF FACILITIES****11.35.010 Definitions.**

Facility or facilities means all wires, cables, poles, pipes or other equipment or facilities used for the transmission or distribution of electrical current, impulses, sounds, voices or communica-

tions for the purpose of providing electricity or telecommunication services including, for example, telephone communications and cable television. (Ord. 1336, 1996)

11.35.020 Underground location—Relocation of facilities.

The city may, upon giving written notice to a facility owner, including TCI of Colorado and U.S. West Communications, Inc., require for public safety, convenience or necessity that any facility within a public street, alley, public way, easement or right-of-way be located underground and/or relocated underground at the facility owner's expense. The facility owner shall, at its sole expense upon completion of relocation, restore all affected property substantially to its prior condition. (Ord. 1336, 1996)

11.35.030 Notice.

The notice required herein shall identify the facilities to be located and/or relocated and describe the date by which the facilities must be located and/or relocated and the affected property restored substantially to its original condition. Notice of the location and/or relocation shall, where practicable, be given 90 days before the required location and/or relocation. (Ord. 1336, 1996)

11.35.040 Unlawful act.

It shall be unlawful for any person to fail to comply with the terms and conditions of any location and/or relocation notice, and it shall be unlawful for any person to fail to comply with this chapter requiring the location and/or relocation of facilities. (Ord. 1336, 1996)

Chapter 11.40 TRAFFIC CONTROLS

11.40.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings

ascribed to them in this section, except where the context clearly indicates a different meaning:

Affected residents means those residents who reside on properties that are immediately adjacent to the portion of the street that is proposed for street improvements or traffic calming measures, and those residents who would be significantly affected by diverted traffic, as determined by the city engineer.

Average daily traffic or *ADT* means the total traffic volume during a given time period divided by the number of days in that time period and expressed in VPD or vehicles per day.

Traffic calming means the use of roadway design measures and roadway improvements for the purpose of controlling vehicular speed or other similar traffic problems on the city streets.

85th percentile speed means the speed at which or below which 85 percent of the drivers travel on a street section. (Ord. No. 2225, § 1, 11-28-2023; Ord. 1988, 2014; Ord. 1371, 1997)

11.40.020 Resident petitions.

Upon submittal to the city engineer of a statement signed by residents of at least five properties who are immediately adjacent to a section of a public street where vehicular speed is perceived as a problem that can be mitigated by traffic calming, the city engineer will conduct a traffic engineering study, including traffic and pedestrian counts, to analyze the potential use of traffic calming measures pursuant to sections 11.040.030 and 11.040.040. (Ord. 1988, 2014; Ord. 1371, 1997)

11.40.030. City-funded traffic calming/ criteria/priority.

(a) Resident-initiated traffic calming measures will be considered for funding, construction, and installation by the city in street sections where the following criteria are met:

- (1) The average daily traffic must exceed 500 vehicles per day, and
- (2) The 85th percentile speed is over the posted or established speed limit, and

- (3) The grade of the street is eight percent or less.

(b) If the minimum criteria described above is met, the city engineer will assign points to the street section under consideration in accordance with the following:

- (1) *Speed*. Points equaling three times the difference between the measured 85th percentile speed and the posted speed limit.
- (2) *Vehicle volume*. The average daily traffic for the street section will be measured and points assigned as follows:
 - a. Ten points for 5,000+ vehicles per day.
 - b. Eight points for 4,000—4,999 vehicles per day.
 - c. Six points for 3,000—3,999 vehicles per day.
 - d. Four points for 2,000—2,999 vehicles per day.
 - e. Two points for 500—1,999 vehicles per day.
- (3) *Sidewalk presence*.
 - a. Ten points if no sidewalks are present on street section.
 - b. Five points if sidewalk is present on only one side of street section.
 - c. Zero points if sidewalks are present on both sides of street section.
- (4) *Pedestrian generator*. 12 points if street section is within 500 feet of a pedestrian generator such as a park, trail, community center, library, transit center, shopping center, or post office.
- (5) *School walking distance*. 15 points if street section is within one and one-half miles of a school (Pre-K through 12th Grade).
- (6) *Sight distance*. Eight points if an intersection within the section of street does not meet standards for intersection sight distance found within the City of Golden

Streets Sidewalks and Drainage Standards that could not be remedied by precluding parked vehicles.

- (7) *Accident history*. Three points for each accident reported within the relevant street section. The previous three-year period will be used for this calculation.
- (8) *Senior housing*. Five points if the street section is within 500 feet of a senior housing as defined by code section 18.04.020.
- (9) *Sidewalk layout*.
 - a. Four points if the distance from back of the curb to back of the sidewalk is four feet or less.
 - b. Two points if the distance from back of the curb to back of the sidewalk is greater than four feet and less than eight feet.
 - c. Zero points if the distance from the back of the curb to the back of the sidewalk is eight feet or greater.

(c) The city engineer will maintain a list of street sections that meet the criteria described above, and will rank the streets in order of points assigned.
(Ord. No. 2225, § 2, 11-28-2023; Ord. 1988, 2014)

11.40.040 City funded traffic calming/installation.

(a) Subject to available funding and budgetary considerations, and prior to moving forward with resident-petitioned and city-funded traffic calming measures, the city will host a public neighborhood meeting where the calming measures and alternatives will be presented. Affected residents will be invited to the meeting to review plans and alternatives.

(b) For a resident-petitioned traffic calming project that meet the criteria of subsection 11.040.030(a), but which is low on the priority list, or if city funding is not available in a time frame that is desirable to the petitioner(s), the petitioner(s) may propose a self-funding mechanism for the project to achieve a faster completion. Any proposed self funding of a project shall address ongoing and future maintenance expenses as well as initial installation and construction costs.

(c) City council will review the design, petition and traffic data and will take final public comments prior to consideration of a resolution approving the installation.
(Ord. 1988, 2014; Ord. 1371, 1997)

11.40.060 Funding/health and safety.

Any other provision of this chapter notwithstanding, no traffic calming project or other improvement to the streets as contemplated by this chapter shall proceed unless the city has available funds; nor shall it proceed if the city engineer determines that the implementation of traffic calming measures will endanger the public health and safety.
(Ord. 1988, 2014; Ord. 1371, 1997)

11.40.070 City initiated projects.

Nothing contained in this chapter shall preclude the city from installing or construction street improvements, including traffic calming measures, in those instances where the city engineer determines that such construction and/or installation is necessary or advisable for the health, safety or welfare of the citizens of the city. The

procedures of this chapter shall not apply to traffic improvements or traffic-calming measures initiated and completed by the city.
(Ord. 1988, 2014; Ord. 1371, 1997)

Chapter 11.45

NEWSRACKS

11.45.010 Definitions.

As used within this chapter:

Director of public works means the city's director of public works or his/her designee.

Downtown area means that area generally bounded by or within the following:

Colorado State Highway 58 on the north; Arapahoe Street on the west; 151 Street on the south; and Ford Street on the east.

Newsrack means any self-service or coin-operated box, container, storage unit, distribution bin or other dispenser installed, used or maintained for the display, sale or distribution of any newspaper, news periodical or any publication.

Permittee means one obtaining a permit from the city to use a city owned newsrack in the downtown area of Golden in compliance with this chapter.

Public property means any highway, street, alley, walk, parking lot, building, park or other property or place which is owned or leased by the city.
(Ord. 1575, § 1, 2002)

11.45.020 Newsrack restrictions.

It shall be unlawful for any person except the city, to erect, place, maintain or operate a newsrack upon any public property in the downtown area. Any such newsrack may be impounded by the city without notice or prior hearing. The city shall take reasonable efforts to determine the owner of the newsrack and notify the owner of the impoundment. The owner of any impounded newsrack shall be responsible for the expense of removal and storage of such newsrack. If the owner(s) fails to reclaim the impounded news-

rack and pay the expenses of removal and storage within 30 days after notice of impoundment, the newsrack may be deemed unclaimed property and may be disposed of in the same manner as other unclaimed or surplus city property. (Ord. 1575, § 1, 2002)

11.45.030 Permit required.

A newsrack permit for use of a box within a city newsrack is available subject to the conditions of this chapter to any publication that is eligible for periodical mailing privileges of the United States Postal Service and for freely distributed non-periodical publications. To obtain a permit an applicant must first apply to the city on forms provided by the director of public works. (Ord. 1575, § 1, 2002)

11.45.040 Fee required.

No permit shall be issued until the applicant has paid in full the applicable fee as set forth by resolution of city council. Fees shall be paid on an annual basis. The determination of annual permit fees shall be based upon the reasonable annualized cost to provide such boxes. (Ord. 1575, § 1, 2002)

11.45.050 Permit conditions.

(1) Permits shall be issued on a first come, first served basis.

(2) A publication may not have more than one box within any bank of machines located in the downtown area.

(3) One box in each bank shall be designated by the director of public works as available for the free distribution of printed materials not eligible for periodical mailing privileges of the United States Postal Service.

(4) As a condition of a permit, a permittee agrees to indemnify and hold harmless the city, its officers, elected or appointed officials and employees against any loss, liability or damage, including expenses and costs for bodily or personal

injury, and for property damage sustained by any person as the result of the use of a city newsrack.

(Ord. 1575, § 1, 2002)

11.45.060 Periodical publication requirements.

Permittees for the distribution of periodical publications shall:

- (1) Maintain, in good repair and in a neat and clean condition, the interior and all mechanical workings of an individual box including without limitation the window, face plate, coin mechanism, coin tray, lock and inside shelves.
- (2) Limit any identifying logo or mark to the area of the front of the box and no logo or mark may be permanently affixed to a box.

(Ord. 1575, § 1, 2002)

11.45.070 Nonperiodical publication conditions.

(1) Designated non-periodical newsracks may be configured by the director of public works to hold more than one publication.

(2) The director of public works may, if there are unused periodical newsracks available, issue temporary permits for the distribution of nonperiodical publications. Such permits are immediately revocable upon a periodical publications application for such space.

(Ord. 1575, § 1, 2002)

11.45.080 Suspension/revocation of permit.

Failure of any permittee to meet any of the requirements set forth in this chapter may result in the suspension or revocation of such permit in accordance with the process set forth in administrative hearing procedures, chapter 2.35 of the Code.

(Ord. 1575, § 1, 2002)

11.45.085 Permit limitations.

The granting of a permit to use a designated box shall not be construed as granting the user any right or interest to or in the public property.

The rights granted by this chapter are merely a license to use the property for permitted purposes subject to the city's exercise of its lawful powers and the provisions of this chapter.
(Ord. 1575, § 1, 2002)

11.45.090 Abandonment.

Any box that is not in use by the permittee for a period of 30 continuous days shall be deemed abandoned. Upon abandonment, the permit shall be deemed terminated and the permittee shall be required, upon notice, to remove all contents of the box and any identifying mark or logo. Any items not removed shall be deemed abandoned and become property of the city.
(Ord. 1575, § 1, 2002)

Title 12

RESERVED

Title 13

WATER AND SEWER

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Chapter 13.01
WATER AND WASTEWATER ENTERPRISE

13.01.010 Definitions.

For the purposes of this title unless the context requires otherwise:

Enterprise means a city-owned water activity business or combination of city-owned water activity businesses authorized to issue its own revenue bonds and which receives less than ten percent of its annual revenues in grants from all state and local governments combined.

Grant means money or cash contributed to an enterprise by the State of Colorado or any Colorado local government which is not required to be repaid. "Grant" does not include public funds paid to an enterprise in consideration for the provision of any goods, services, facilities, rights or interests by the enterprise to the State of Colorado or any Colorado local government, nor does it include money repaid to an enterprise in consideration for any loan made by the enterprise to the State of Colorado or any Colorado local government. "Grant" does not include money derived by an enterprise from the federal government, whether or not the State of Colorado or any Colorado local government acts as a conduit for such money. The provisions of Section 37-45.1-102 (2), C.R.S., also apply to the definition of "grant".
(Ord. 1231, § 1, 1994; Ord. 1214, 1993)

13.01.020 Establishment of water and wastewater enterprise.

There is hereby established a water and wastewater enterprise of the City of Golden authorized to implement the provisions of this title and perform all other functions or duties as authorized by law. Such enterprise shall be wholly owned by the city and operated in accordance with all applicable laws.
(Ord. 1231, § 1, 1994; Ord. 1214, 1993)

13.01.030 Establishment of water and wastewater board.

City council shall serve as the governing board of the water and wastewater enterprise.

The mayor shall serve as chair and the mayor pro-tem shall serve as vice-chair of the board. The city clerk shall serve as secretary of the board. City council may conduct all business and actions of the enterprise at regular and special city council meetings in accordance with city council meeting procedures, and the record of the enterprise's proceedings may be incorporated into such meeting minutes.

(Ord. No. 2177, § 2, 4-12-2022; Ord. 1231, § 1, 1994; Ord. 1214, 1993)

13.01.040 Appointment of director and responsibilities.

The city manager shall serve as the enterprise's director and be responsible for the operation and maintenance of such enterprise under the direction of the enterprise board and as set forth in this title. The manager may designate any person to assist with such duties.

(Ord. 1214, 1993)

13.01.050 Water and wastewater board—Duties and powers.

The enterprise board's powers and duties shall include, but not be limited to:

- (a) Recommendation of rates, fees and charges for enterprise services, which rates, fees and charges shall be established by ordinance by city council.
- (b) Payment of debt service requirements and financial obligations.
- (c) Acquisition, development and protection of water supplies decreed, adjudicated or contracted for the city.
- (d) Preparation of an annual budget and development of long-range plans for water and wastewater improvements.
- (e) Contract with individuals or firms for professional services to include, but not be limited to, construction, engineering, legal or financial.
- (f) Exercise all other powers and duties authorized by applicable law.

(Ord. 1231, § 1, 1994; Ord. 1214, 1993)

13.01.060 Water and wastewater enterprise debt issuance.

(a) The water and wastewater enterprise shall have the authority to issue bonds, notes or incur other financial obligations payable from the revenues derived or to be derived from the functions, services, benefits or facilities of the water and wastewater enterprise or from any available funds of the enterprise, and as provided in the city Charter. Such bonds or other obligations shall be authorized by ordinance or resolution of the enterprise adopted in the same manner as ordinances and resolutions of the city.

(b) The terms, conditions, and details of said bonds, or other financial obligations, and the procedures related thereto shall be in the ordinance or resolution authorizing said bonds or other obligations and shall, as nearly as may be practicable, consistent with those provided in the city Charter and in Part 4 of Article 35 of Title 31, Colorado Revised Statutes, relating to water and sewer revenue bonds; except that the purposes for which the same may be issued shall not be so limited as said statutes provide, and except that said bonds, or other obligations, may be sold at public or private sale. Each bond, or other obligation issued under this subsection shall recite in substance that said bond, or other obligation, including the interest thereon, is payable from the revenues of the enterprise and other available funds of the enterprise pledged for the payment thereof, and as provided in the city Charter. Notwithstanding any other provision of law to the contrary, such bonds, or other obligations may be issued to mature at such times not beyond 40 years from their respective issue dates, shall bear interest at such rates, and shall be sold at, above, or below the principal amount thereof, all as shall be determined by the enterprise. Notwithstanding anything in this section to the contrary, in the case of short-term notes or other obligations maturing not later than one year after the date of issuance thereof, the enterprise may fix principal amounts, maturity dates, interest rates and purchase prices of any particular issue of such short-term notes or obligations, subject to such limitations as to maximum term, maximum principal amount outstanding, and maximum net effective interest

rates as the board shall prescribe by ordinance or resolution. Refunding bonds of the enterprise shall be issued as provided in the city Charter and/or Part 1 of Article 56 of Title 11, Colorado Revised Statutes, as applicable. The powers provided in this section to issue bonds, or other obligations are in addition and supplemental to, and not in substitution for, the powers conferred by any other law, including without limitation, the city Charter. The powers provided in this section shall not modify, limit or affect the powers conferred by any other law either directly or indirectly. Bonds, notes or other obligations may be issued pursuant to this section without regard to the provisions of any other law.

(c) Any pledge of revenue or other funds of the enterprise shall be subject to any limitation on future pledges thereof contained in any ordinance or resolution of the enterprise or of the city authorizing the issuance of any outstanding bonds or other obligations of the enterprise or the city payable from the same source or sources. Bonds or other obligations issued separately by the city and the enterprise but secured by the same revenues or other funds shall be treated as having the same obligor and as being payable in whole or in part from the same source or sources. (Ord. 1231, § 1, 1994; Ord. 1214, 1993)

13.01.070 Water and wastewater funds established.

(a) There is hereby established a separate water fund and a separate wastewater fund to be segregated from any other city funds in which shall be deposited all revenues from all charges, fees, rates and other sources. All funds received shall be used only for the operation, maintenance, debt service, replacement, and additions of the water and wastewater system and any other expenditures permitted by law.

(b) The water and waste water enterprise may pledge all or any portion of the funds, including revenues anticipated to be collected, to the payment of principal, interest, premium, if any, and reserves for revenue bonds or any other obligations lawfully issued or otherwise contracted for by the enterprise for the payment or other financing of costs of the water and waste water

system, or for the purpose of refunding any obligations issued or otherwise contracted for such purposes.

(c) The water and wastewater enterprise may invest such funds as permitted by law. The enterprise may also establish reserve funds to finance the capital costs of replacement of water and wastewater equipment and facilities or the acquisition of water rights.

(Ord. 1231, § 1, 1994; Ord. 1214, 1993)

Chapter 13.04 WATER AND WASTEWATER REGULATIONS

13.04.001 Definitions.

For the purpose of this chapter the following words and terms have the following meanings, unless the context clearly indicates otherwise:

City engineer means the city engineer or his/her designee.

Condominium means real property having more than one dwelling unit and the ownership of which consists of separate, divided fee simple estates in individual air space units, together with an undivided fee simple interest in the common elements appurtenant to such units.

Condominium building means an exclusively residential structure having more than one residential condominium unit within the structure, together with undivided fee simple ownership in the common elements appurtenant to such units, but which does not also qualify as a single household attached unit building, as defined herein.

Condominium unit means an individual air space unit together with the interest in the common elements appurtenant to such unit, as defined in C.R.S. 38-33-103.

Developer means any person who participates in any manner in the improvement or development of land as owner, subdivider or in any other capacity.

Distribution system means that network of water mains, its equipment, valves and other

appurtenances excluding the water service line, which supplies treated water to the system users.

EQR means an equivalent residential unit which reflects the water demand and wastewater discharge of a detached residential unit.

Multiunit building means a building containing two or more dwelling units, and not otherwise classified as a commercial, condominium building or single household attached building.

Municipal wastewater system or wastewater system means that network of wastewater collection pipelines owned by the city, including wastewater mains, trunk lines, laterals, and other wastewater pipes and appurtenances, lift stations, meter stations and all other parts of the sanitary system except the wastewater service line. (See wastewater.)

Oversize main means any water main having a diameter greater than eight inches, except for a main needed to supply an area with fire protection.

Service line means the line from the city water or wastewater main to the building or improvement to be served.

Single household attached unit building means an exclusively residential building containing two or more dwelling units where each unit is attached by a common wall to one or more other units, but where units are not stacked above each other. A single household attached building shall be regulated as such regardless of ownership.

Single household detached unit means a building containing one dwelling unit.

Subdivider means any person who participates in any manner in the dividing of land for the purpose, immediate or future, of sale or development.

Tap means the right, physical process or act of connecting a service line to the city's water main and/or wastewater main.

Townhouse means a multiunit dwelling in which the ownership of each dwelling unit consists

of a separate fee simple estate on an individually platted lot, together with an undivided fee simple interest in the common elements, if any.

Wastewater or wastewater means a wastewater which carries solid wastes, liquid and/or water wastes from residences, commercial buildings, industrial facilities, improvements, buildings and institutions together with ground, storm and surface waters not intentionally admitted. (See municipal wastewater system.)

(Ord. 1928, § 2, 2012; Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 816, §§ 1, 2, 1979; Ord. 724, §§ 1, 2, 1975)

13.04.002 Application for water and wastewater service.

All property located within the city's service area that requires a potable water supply for human consumption shall be connected to the city's water distribution system and municipal wastewater system. Applications for water and wastewater service shall be made to the city engineer. The city engineer shall review the application and designate any improvement(s) required prior to provision of service. The applicant shall be responsible for all improvements which shall comply with the City of Golden's Water and Wastewater Specifications ("specifications") as adopted by city council and as may be amended from time to time, which specifications are hereby incorporated herein and made part of this code by this reference. Copies of the specifications are available during regular business hours at the department of public works and may be purchased for a reasonable fee as determined by the city engineer.

Exception: Subject to prior written approval of the city manager and compliance with all written terms and conditions established by the city manager and all other applicable city, state and federal rules, regulations, laws and ordinances, the Colorado School of Mines may disconnect from the city's wastewater system for the sole purpose of installing and operating a research wastewater treatment facility.

(Ord. No. 2177, § 4, 4-12-2022; Ord. No. 2079, § 1, 7-12-2018; Ord. 1588, § 1, 2002; Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 938, § 1, 1984; Ord. 756, § 1, 1976; Ord. 724, §§ 1, 3, 1975)

13.04.003 Application for water and wastewater service outside the city.

Applications for water and wastewater service outside of the city's boundaries shall be made to the city engineer. Such applications shall contain information including, but not limited to, a map and description of the area proposed to be served, description of the proposed development and the water and wastewater improvements for same, and anticipated water and wastewater demand. The city engineer shall review the application and make a recommendation to city council. If city council approves an application, the applicant must, prior to receiving service, pay in full the required system development fees in an amount two times greater than that assessed users within the city and agree in writing to annex to the city, if the city so desires. It shall be the sole discretion of the city council to approve an application for water and wastewater service outside the city and the terms and conditions of such service.

(Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 938, § 1, 1984; Ord. 756, § 1, 1976; Ord. 724, § 1, 1975)

13.04.004 Credits for water rights.

The city may, at its sole discretion, provide credit in an amount and form determined by city council, to any person who conveys water rights to the city. Such credit shall be based upon the city's valuation of the water rights and shall not exceed the improvement's water right fee as provided in the system development fee schedule. (Ord. 1207, 1993; Ord. 938, § 1, 1984; Ord. 756, § 1, 1976; Ord. 724, § 1, 1975)

13.04.005 Extension of water service exception.

No person receiving water from the distribution system or service of the municipal wastewater system shall permit or provide water or waste water service to any other property separate or apart from such user's premises.

(Ord. No. 2079, § 2, 7-12-2018; Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 724, § 1, 1986)

13.04.006 Location, installation and maintenance of meters.

(1) All water meters shall be installed by the city in a location in conformance with the city's specifications. The property owner shall pay the city for the cost of the meter, yoke or shut off, meter pit, meter lid, corporation stop and meter fittings. The city's current fee schedule for such appurtenances is available during regular business hours at the department of public works. Meters are the property of the city. The city shall maintain, test, repair and, as necessary, replace all meters as required. The city shall, upon request and to the extent it deems reasonable, test water meters when a user has a reasonable basis therefore, that such meter is inaccurate or not functioning properly.

(2) The property owner or occupant of the property on which the meter is located shall maintain such property free of obstructions and vegetation which does or may interfere with the city's reading or service of such meter.

(3) Upon prior written approval of the city engineer, individual unit meters and billings may be used through a master meter for each building within a multiple dwelling unit, complex, mobile home park or similar multiple improvements development, or multiple occupancy, commercial or industrial building or facility. (Ord. No. 2079, § 3, 7-12-2018; Ord. 1207, 1993; Ord. 1004, § 4, 1986)

13.04.007 Interference with water meter prohibited.

It shall be unlawful for any person to tamper or interfere with any meter or meter seal or so arrange water service or piping so that the use of water will not activate the meter. (Ord. 1207, 1993)

13.04.008 Interference with water and wastewater service prohibited.

It shall be unlawful for any person to tap any water or wastewater main, make any connection therewith or interfere, in any manner with water or wastewater service, its property, equipment, mains, valves or other appurtenances or to alter

the position or flow of such services, mains, valves or appurtenances, unless authorized in writing by the city engineer.

(Ord. 1231, § 1, 1994; Ord. 1207, 1993)

13.04.009 Duty to maintain and repair service lines.

(1) The owner of any property connected to the water distribution system or wastewater system shall maintain, in good condition, at owner's expense, the service lines and all its appurtenances so as to prevent leaks, freezing, the waste of water or permit the inflow or infiltration of water into the waste water, or interfere in any manner with the operations of said systems.

(2) The city engineer shall direct the owner of the property to repair, at owner's cost, any leak, break or malfunction in the service line or its appurtenances. The city shall, if it deems necessary, shut off water to such property during any repair. If the owner fails to repair the service line or its appurtenances as directed by the city, the city engineer shall cause such work to be done and charge the cost thereof to the owner.

(a) If the owner fails to pay such charge, the city engineer may, in addition to any other remedies, certify to the city clerk the legal description of the property upon which the work was done together with the name of the owner as last shown by the tax rolls of the county, together with a statement of the work performed, the date of the performance and the cost.

(b) The expense incurred by the city for the repair, plus an additional ten percent for administrative expenses, shall be assessed and collected as set forth in section 5.01.050 of the Municipal Code.

(Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 816, 1979; Ord. 810, § 1, 1979; Ord. 724, §§ 1, 3, 1975)

13.04.100 Water and wastewater main extension.

Any developer or subdivider seeking to extend water or wastewater mains must, prior to construction, submit plans and specifications for such improvements to the city engineer, which

shall be in compliance with all applicable codes and the specifications. All water and wastewater system improvements shall be warranted (in a form acceptable to the city and in compliance with applicable codes and requirements) by the developer or subdivider for one year after the date of final inspection by the city. Upon expiration of the one-year warranty period, and correction thereof to the reasonable satisfaction of the city of any warranty items, and payment in full of all the required city's fees and expenses, city council, may, upon recommendation of the city engineer, accept the improvements.
(Ord. 1231, § 1, 1994; Ord. 1207, 1993)

13.04.110 Cost of water and wastewater main extension.

The developer or subdivider extending water and wastewater mains shall be responsible for all costs of such improvements. Such costs include, by example only and not limitation, materials, engineering, surveying, acquisition of easements, legal fees, construction, inspection and testing. The city engineer shall perform all required inspections and testings at the expense of the developer or subdivider.
(Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 724, § 1, 1975)

13.04.120 Credits for water and wastewater service extension.

The city, at its sole discretion, may credit developers or subdividers who have, at their cost, constructed water and wastewater mains. Such credit, if granted, shall be in the form of an agreement approved by city council and may, by way of illustration, consist of rebates through the imposition of surcharges on system development fees for those utilizing and/or benefited by the construction of the water and wastewater systems.
(Ord. 1231, § 1, 1994; Ord. 1207, 1993)

13.04.130 Credit for oversized mains.

City council may, upon recommendation of the city engineer, enter into agreements to compensate a developer or subdivider who installs oversized mains to provide additional capacity for future

growth or use. Such compensation may be in the form of monetary payments or rebates through the imposition of surcharges upon system development fees for those utilizing and/or benefited by the oversized mains.
(Ord. 1207, 1993; Ord. 724, § 1, 1975)

13.04.140 Water and wastewater permit and fee.

No building permit shall be issued until all applicable water and wastewater permit requirements have been satisfied as determined by the city engineer.
(Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 956, § 1, 1986)

13.04.145 Fees.

(a) For applications required pursuant to title 13 of this Code, the city will charge applicants reasonable fees sufficient to cover the costs of administration, inspection, publication of notice, and similar matters, and the cost of professional consultants, including legal review, required to assist the city with review and processing of such applications. All fees imposed by this section shall include application fees.

(b) If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an initial escrow payment in an amount sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services related to the application if they become necessary. If the applicant does not pay additional escrow funds as required within ten days after written notice from the city, then, in addition to other remedies the city may have, the city shall be entitled to a lien on the subject property or the city may elect to certify the assessed costs and expenses to the office of the county treasurer for collection in the same manner as general

property taxes are collected. Such liens shall be perfected and may be foreclosed upon in accordance with applicable state laws.

(c) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2180, § 2, 5-10-2022)

13.04.150 Water and wastewater system development fee schedule.

(1) City council shall, as part of the annual budget process, review, revise if necessary and adopt by ordinance water and waste water system development fees. In establishing such fees, city council shall use a rate model (which shall be periodically reviewed and revised if needed) and fees shall be assessed upon each building or improvement based upon tap category and size.

(2) In cases where an authorized property receives water or wastewater services from a provider other than the city by virtue of an individual or group contract where usage fees are collected by the city, the system development fee for such service(s) shall be the actual system development fee (or equivalent fee) charged by the other provider.

(3) Except as provide herein, all structures must be served by at least one tap. A single tap may serve multi-unit commercial buildings, apartments, and condominium buildings. Each unit in a single household attached building shall have a separate tap.

(4) A structure containing a single household detached dwelling may, upon application to the city engineer, be permitted to extend water and wastewater connections to an accessory building on the same lot, including for purposes of an accessory dwelling unit, as defined in section 18.04.020 of this Code, provided that no separate ownership interest in such accessory structure may be conveyed in any manner.

(5) The system development fee for a residential tap that supplies water for a combined fire sprinkler system will be for the tap size that would be necessary to provide domestic water to the property without a fire sprinkler system.

(6) The city will not charge a separate system development fee for a second tap to a structure that is used exclusively to supply water to a fire sprinkler system in those cases where the city engineer determines that a combined fire sprinkler system is not reasonably feasible because of economic or engineering reasons, provided however, that for single household attached unit and single household detached unit structures, a separate meter shall be installed on the fire suppression water line.

(Ord. No. 2079, § 3, 7-12-2018; Ord. 1971, 2014; Ord. 1928, § 3, 2012; Ord. 1231, § 1, 1994; Ord. 1207, 1993; Ord. 1076, §§ 1, 3, 1989; Ord. 996, § 1, 1985; Ord. 956, §§ 2, 5, 1984; Ord. 724, § 1, 1975)

13.04.160 Tap abandonment/re-activation.

A tap shall be conclusively deemed abandoned if water and/or wastewater service is not constructed and established within one year of payment of the system development fee. For purposes of this section, establishment of water and/or wastewater service may be satisfied by the issuance of a valid building permit for the structure intended to make use of the tap, provided such building permit does not subsequently expire or become void. If the city engineer determines there is sufficient capacity within the municipal water/wastewater system, abandoned taps may be revived upon payment of the difference between the original and then current water and/or wastewater system development fee. The city shall not pay a refund if the water and/or wastewater system development fee is less than the fee initially paid.

(Ord. 1605, § 1, 2002; Ord. 1231, § 1, 1994; Ord. 1207, 1993)

13.04.164 Transfer of taps.

(1) Except as provided herein, no water or wastewater tap authorized pursuant to this title shall be transferred or relocated to serve any lot

or parcel of property except that as indicated on the application for service. Upon written application to the city, and the city engineer's approval thereof, a water and/or wastewater tap may be transferred to another property if the following conditions are met:

- a. The applicant pays a non-refundable application and administrative fee of \$350.00 at the time of submission of the application to cover the city's processing costs.
- b. The applicant is the fee simple owner of both the lot and parcel for which the tap was authorized, and the lot or parcel to which transfer is requested.
- c. Both lots/parcels are located within the same subdivision.
- d. The building permit, if any, issued in connection with the original tap application, has expired, been revoked, voided, or is otherwise no longer active such that a certificate of occupancy will not be eligible for issuance.
- e. The application for the transfer is submitted within one year of the payment of the system development fees for the original tap.
- f. The owner, beneficiary of any deed of trust, and all persons with a financial interest in the property for which the original tap was authorized executes and records with the Jefferson County Clerk and Recorder, an affidavit in a form acceptable to the city attorney, affirming that the tap and any subsequent credits or value, has been transferred to the receiving lot.
- g. Applicant agrees to construct and install such public infrastructure improvements as are necessary to serve the property as determined by the city engineer pursuant to section 13.04.002 of this title.

(2) The transfer of a tap shall not extend the abandonment period as set forth in section 13.04.160 of this title.

(3) Notwithstanding any restriction or condition imposed herein, the city may transfer any water tap issued to it for irrigation purposes for use on any other city property as long as such use is limited to irrigation purposes.
(Ord. 1818, § 1, 2008; Ord. 1605, § 2, 2002)

13.04.168 Refunds.

Within one year of the abandonment of a water and/or wastewater tap, the owner of the property for which a tap has been issued may request, and the city shall refund 97 percent of the system development fee initially paid for the tap if the following conditions have been met:

- (1) No building permit has been issued for the structure originally contemplated to be served by the tap, or if such a building permit has been issued, the building permit has expired or has been voided by the building official, and such is acknowledged in writing by the owner;
- (2) The owner, beneficiary of all deeds of trust on the property, and all persons with a financial interest of record in the property from which the tap refund is being requested, execute and record an affidavit in a form acceptable to the city attorney in the records of the Jefferson County Clerk and Recorder affirming that the refund has been made and no further financial interest in the abandoned tap exists; and
- (3) The tap has not been transferred to any other property as may be permitted by this title, or otherwise.

(Ord. 1605, § 3, 2002)

13.04.170 Inactive water and wastewater taps.

A tap for property to which water and/or wastewater services has previously been authorized and such service(s) actually established, but then terminated for any reason such that payment of quarterly service charges has ceased, shall be considered an "inactive tap". Inactive taps must be reactivated within five years of deactivation to restore service. Any person seeking to restore service after five years

must acquire a new tap. Inactive taps may be reactivated upon payment of all quarterly service charges that were unpaid during the period that such tap is inactive, or payment of the then current system development fee, whichever is less.

(Ord. 1818, § 1, 2008; Ord. 1605, § 4, 2002; Ord. 1231, § 1, 1994; Ord. 1207, 1993)

13.04.180 Resolution of existing credits.

All remaining EQR credits shall be based upon the equation that one EQR is equivalent to one three-quarter-inch tap. Such credits shall not exceed the current system development fees for each building or improvement.

(Ord. 1207, 1993)

13.04.190 Limit use of water.

(1) The city may, by order of the city manager upon the city manager's determination that there exists a shortage of water within the distribution system, restrict or prohibit the use of water for purposes to include, but not be limited to, the watering of lawns and landscape, and washing of motor vehicles. Such order shall be effective upon notice thereof by publication. Such publication may be achieved through the posting of such notice, by means of printed newspaper, electronic media, or such other media, including posting on the city's official website. In the event that such publication is by a means other than publication in a newspaper published or having general circulation within the limits of Golden, publication shall include posting in the lobby of city hall, and the front entryway at city hall. It shall be unlawful for any person to violate such order.

(2) In the event of a major fire, flood or any other emergency that requires the immediate curtailment of the use of water from the distribution system, the city manager may make such restrictions as the manager deems necessary for the protection of the public, in the manner described herein. It shall be unlawful for any person to violate such order.

(3) City council may, by resolution, impose a water service surcharge upon customers who violate an order of the city manager issued pursuant to this section. Said resolution may

also provide for full or partial discontinuance of water service in the event of more than one violation occurring within any 12 consecutive month period. Any surcharge or order of discontinuance of service imposed by virtue of such resolution may be appealed by the customer to the city manager pursuant to the provision of chapter 2.35 of the Golden Municipal Code, provided that written notice is given to the city manager's office within 30 days of notice by the city of the imposition of such surcharge or discontinuance of service.

(4) A violation of a city manager order as set forth above may either be enforced by administrative water service surcharges or discontinuance of water service applied to the customer of record's utility bill or through administrative citation pursuant to chapter 8.25 and as set forth in section 13.04.195 or both.

(Ord. No. 2292, § 4, 4-28-2026; Ord. 1602, 2002; Ord. 1207, 1993; Ord. 724, § 22, 1975)

13.04.195 Waste of water.

(1) *Allowable activities.*

(a) The following outdoor irrigation activities are permissible:

1. Between October 1 and April 30, any type of outdoor irrigation.
2. Between May 1 and September 30 ("irrigation season"), automatic sprinkler irrigation up to three days per week between the hours of 6:01 p.m. and 9:59 a.m. This subsection shall not apply to certain public spaces that, in the city's determination, serve a benefit to the public, including without limitation parks and golf courses that may require irrigation more than three days per week to maintain turfgrass. For purposes of this subsection, a "week" is defined as a period of time from Sunday at 12:00 a.m. through the following Saturday at 11:59 p.m.
3. Hand watering gardens and annual and perennial plants using a nozzle with an automatic shut-off valve or a watering can at all times.

4. Drip irrigation of gardens and of annual and perennial plants (except turfgrasses) at any time.
- (b) The above allowable irrigation methods are permitted subject to the condition that the water used for such irrigation does not pool or runoff into the stormwater collection and conveyance systems (e.g., curb and gutter, inlets and storm sewers, culverts, swales, ditches, channels, detention areas, or other drainage facilities).
- (c) Water supply emergency conditions and declarations may supersede this subsection.
- (2) *Prohibited activities.*
 - (a) The following activities are deemed a "waste of water" and are therefore prohibited:
 1. Allowing city water to pool or runoff into the stormwater collection and conveyance system, regardless of month or time of day.
 2. Between May 1 and September 30, irrigating turfgrass, gardens, annuals, or perennial species using an automated or manual sprinkler, more than three days a week, or between the hours of 10:00 a.m. and 6:00 p.m. For purposes of this subsection, a "week" is defined as a period of time from Sunday at 12:00 a.m. through the following Saturday at 11:59 p.m.
 3. Failing to repair leaks, including leaks on irrigation systems, as required by the Golden Municipal Code.
 - (b) A person who has installed new landscaping or has modified existing landscaping features that requires irrigation for establishing new plantings that would violate any of the above provisions may request an exception from this subsection by applying to the city. In no event shall an exception be granted for longer than a period of one month from the date

of new plantings. The city manager, or his or her designee, shall promulgate administrative regulations to enforce this provision.

(3) *Applicability.* This section shall apply to all water utility customers of the city.

(4) *Enforcement.*

- (a) A violation of any provision of this section or section 13.04.190 that occurs after May 1, 2024, may be enforced through administrative citation pursuant to chapter 8.25 of the Golden Municipal Code; or through administrative water service surcharge to the customer of record's utility bill pursuant to the authority in section 13.04.190. The enforcement remedies provided herein are cumulative and not exclusive.
- (b) For purposes of this section, the individual that is billed for the water service shall be deemed the party responsible for the violation, regardless of whether such person is the owner or occupant of the dwelling or commercial unit.

(5) *Penalties.* Penalties are as set forth in section 8.25.120 of the Golden Municipal Code or through administrative water service surcharge or suspension of water service applied to the utility bill of the customer of record, in such amount and pursuant to such procedures as may be established by resolution of the city council.

(6) *Appeals process.*

- (a) Any administrative water service surcharge or suspension of water service as authorized by 13.04.190 "Limit use of water" to a customer's utility bill may be appealed to the city manager or designee who shall serve as hearing officer pursuant to chapter 2.35 of the Golden Municipal Code. Written notice of appeal must be provided to the city manager's office within 30 days of notice by the city of the imposition of such penalty.
- (b) Administrative citations issued pursuant to this section shall be in accordance with chapter 8.25 of the Golden Municipal

Code. A person who has received an administrative citation may file a notice of protest within ten calendar days from the date of service of the notice.

(Ord. No. 2292, § 5, 4-28-2026; Ord. No. 2206, § 2, 4-25-2023)

13.04.200 Right of entry.

The city engineer may, when reasonable cause exists, with or without a warrant issued by a court of competent jurisdiction, including the municipal court, enter upon any property for examination of same to determine whether such is in violation of the requirements. Specifications or regulations of this chapter and shall be free from any action or liability on account thereof. Such authority does not permit entry into any structure without consent of a court order or under other circumstances permitted by law.

(Ord. 1207, 1993)

13.04.210 Discontinuation of service.

Where the city engineer deems it necessary to perform any maintenance, repair, or inspection of a water meter and its appurtenances, and entry upon the property is denied by the owner, or where as a result of an inspection or notification the city engineer reasonably believes that a violation of the requirements of this chapter exist upon a property which impairs the operation of the municipal water system, the city engineer, in addition to all other lawful remedies, may immediately discontinue water service to the premises until such maintenance, repair or inspection is completed or the violation is corrected to the city engineer's satisfaction.

(Ord. 1970, 2014; Ord. 1207, 1993)

13.04.220 Responsibilities—Wastewater—Damages—Clean-up.

(a) The city shall be responsible only for the repair and maintenance of main trunk sewer lines. The responsibility for and the expense and cost of maintaining and repairing and replacing any lateral (service) sewer line from the point where such lateral taps (connects) the main trunk line to the boundary, or any other area of

the user's property, and the sewer line upon or within the user's property shall be the responsibility of the property owner and paid for by the property owner served by any such lateral. Except as required by law, the city shall not be responsible to any person, property owner, firm, entity, business, or corporation for any damages caused by blockage of either a sewer main or sewer lateral. The fact that blockage has occurred shall not create any presumption of negligence or responsibility on the part of the city or city employees, agents or representatives.

(b) Notwithstanding the foregoing, the city manager or his representative may, without admitting, acknowledging, assuming or agreeing to responsibility or liability, authorize and effect the clean-up of any sewage backup which, in his opinion based upon the information available to him at the time of the backup, may have been caused by blockage of the sewer main. The city will not provide clean-up services for back-ups caused by blockage of the lateral line, nor pay for damages to real or personal property, except if required by law. Under no circumstances shall the arrangement by the city to provide this service constitute an admission of responsibility or liability of any kind, nor shall this service by the city result in such responsibility or liability to the city, except by operation and application of law. The total cost to the city for the clean-up services described in this paragraph shall not exceed \$2,500.00 per incident.

(Ord. No. 2105, § 1, 4-25-2019; Ord. 1277, 1995)

Chapter 13.08

WATER AND WASTEWATER RATES AND CHARGES

13.08.010 Customer classes/definitions.

(a) For the purpose of establishing rates and charges for water and wastewater services the following classes of customers are hereby established:

- (1) *Residential single-family:* Water and/or wastewater services provided to exclusively residential property upon which one living unit only is located.

- (2) *Residential multifamily*: Water and/or wastewater services provided to exclusively residential property upon which the structure or structures served contain more than one living unit where such water service includes service that may be used for both interior to the structure as well as exterior and irrigation of landscaped areas. This classification shall not include customers qualifying under the multifamily/interior use classification as defined herein.
- (3) *Commercial*: Water and/or wastewater services provided to property which is neither single-family residential, multifamily residential, multifamily/interior use, nor for irrigation only, as those classes are defined herein.
- (4) *Irrigation*: Water services only provided to property solely for the purpose of irrigation.
- (5) *Multifamily/interior use*: Water and/or wastewater services provided exclusively to property upon which the structure or structures served contain a "residential multifamily" facility, as defined above, except that the residential multifamily facility is designed and utilized such that water service from the subject tap is only used within the multifamily building, with any exterior use, including landscaping, being served by separate irrigation tap(s).
- (6) *Bulk water*: Water provided through a hydrant meter or from a bulk water fill station.
- (7) *[Calculation of fees:]* For buildings containing both residential multifamily dwellings and commercial class uses, the calculation of water and wastewater system development fees shall be based upon the following determination:
 - a. Where the residential multifamily use constitutes more than 25 percent of the gross building area, the system development fees shall be calculated based upon the number of individual dwelling units times the rate

applicable to the type of multifamily unit plus a proportionate commercial class system development fee based upon fixture count.

- b. Where the residential multifamily use constitutes 25 percent or less of the gross building area, the system development fees shall be calculated based upon the commercial class fee schedule.

- (8) *Public park or open space water filling station*. Water services only, or water and sewer service, provided via a water fountain and/or small water container filling station located on park or open space property or public streetscape, owned by the city or Jefferson County.
(Ord. No. 2006, § 1, 4-9-2015; Ord. 1971, 2014; Ord. 1818, § 3, 2008; Ord. 1614, 2003; Ord. 1231, 1994)

13.08.020 Water and wastewater rates and charges—Generally.

- (a) Water charges and wastewater charges shall be calculated and billed monthly.

(b) Water charges for all water delivered by the city shall consist of a fixed service charge and a volume charge which is based on the actual quantity of water delivered, as prescribed by separate ordinance of council to be adopted in conjunction with the annual budget process. The service charge shall be billed to each customer regardless of whether any volume charge is made and will be based on the meter read technology of the meter.

(c) Except as otherwise provided in this section, wastewater charges for all users of the city's sanitary sewer and wastewater system shall consist of a fixed service charge, a volume charge which is based upon the quantity of water delivered to the customer, and an extra strength surcharge, all as prescribed by separate ordinance of council to be adopted in conjunction with the annual budget process. The surcharge shall consist of an increased volume charge and shall be assessed to those wastewater customers whose

biochemical oxygen demand (BOD) and suspended solids (SS) wastewater concentration levels exceed levels as prescribed in the rate ordinance.

- (1) The volume charge for single-family residential and multifamily residential customer classes shall be calculated upon the volume of water delivered during the February billing cycle. If water deliveries decline in any of the subsequent billing cycles, the lesser volume shall apply for the period with the reduced usage. In the event that a residential customer did not receive water deliveries during the February billing cycle, the wastewater volume charge shall be calculated upon the basis of 3,000 gallons of water being delivered per living unit.
- (2) For users within the Golden Overlook Filing No. 1 subdivision, approved by Ordinance No. 1811 and recorded in the real property records of Jefferson County under reception number 2008087528, the volume charge based on the quantity of water delivered to the customer shall be replaced by a non-volumetric fee equivalent to the Pleasant View Water and Sanitation District's out-of-district single-family wastewater rate, as may be amended from time to time. The fixed service charge and the process for updating the amount of the Golden Overlook non-volumetric fee shall be the same as for other residential customers.
- (3) The volume charge for commercial customer class shall be determined based on the actual quantity of water delivered during each billing period.
- (4) There shall be no wastewater charges assessed to any irrigation or bulk water class customer, provided that such water is separately metered.

(d) Water charges for water delivered outside the city limits and wastewater charges for users of the city's sanitary sewer and wastewater system who deposit wastewater into the system at a location outside of the city limits shall be double the charges as would apply to in-city customers.

(e) In addition to the water and wastewater charges set forth in this title, those persons who opt out of the automated metering technology shall be subject to a manual meter read and a charge of \$25.00 per meter for each reading. (Ord. No. 2285, § 2, 12-9-2025; Ord. No. 2094, § 1, 12-6-2018; Ord. No. 2079, § 4, 7-12-2018; Ord. 1818, § 4, 2008; Ord. 1231, 1994; Ord. 1216, 1993; Ord. 1073, § 1, 1989(eff. 1/1/90); Ord. 1043, 1988; Ord. 1000, § 1, 1985)

13.08.030 Water charges for water delivered to building construction sites.

Water delivered and used in conjunction with construction ("construction water") shall be delivered through a standard meter installation or an auxiliary fire hydrant meter provided by the public works department. The fee for the use of an auxiliary fire hydrant meter shall be \$1,000.00 for a term of six months. Construction water charges shall be billed to the contractor at the same rate and upon the same basis as other water users in the bulk water class. In the event of non-payment for construction water by the contractor, the owner of the property served shall be responsible for payment of all water charges and a lien shall attach to said property as provided in section 13.08.100.

(Ord. 1818, § 5, 2008; Ord. 1231, 1994; Ord. 1117, 1991; Ord. 813, § 1(part), 1979)

13.08.040 Meter malfunctions.

If any meter fails to register water usage, or is determined to be significantly inaccurate in measuring water usage, the water and wastewater volume charges shall be calculated according to the average quantity of water delivered in a similar period, as shown by the meter when operational.

(Ord. 1231, 1994; Ord. 1117, 1991)

13.08.050 Termination charges.

In addition to all other charges as set forth in this chapter, a charge of \$25.00 shall be assessed upon termination of water and/or wastewater services.

(Ord. 1231, 1994; Ord. 1117, 1991; Ord. 1063, 1989; Ord. 1043, § 6, 1988; Ord. 1091, § 1, 1986; Ord. 813, § 1(part), 1979)

13.08.060 Temporary disconnection.

Upon request of the customer, the city will temporarily disconnect the premises from water services for a period of time not to exceed six months. A fee of \$25.00 shall be assessed in conjunction with the temporary disconnection, and an additional \$25.00 assessed upon reconnection. The quarterly service charge for water services and for wastewater services shall continue to accrue during the period of temporary disconnection. Temporary disconnections provided herein shall not apply to disconnections and subsequent reconnections necessitated by unforeseeable emergencies.

(Ord. 1231, 1994)

13.08.070 Payment of water and wastewater charges.

(a) Water and wastewater charges shall be billed to the customer by the tenth day of the month following the close of a billing cycle. The obligation to pay for water and wastewater charges shall not be affected by the failure of the owner, occupant or customer to receive a statement of services.

(b) A delinquent charge of \$10.00 shall be assessed if water or wastewater charges are not paid in full within ten days after the due date.

(c) Water service is subject to termination when charges for either water services or wastewater services remain delinquent for more than 15 days.

(Ord. No. 2094, § 2, 12-6-2018; Ord. 1487, 2000; Ord. 1231, 1994; Ord. 1117, 1991; Ord. 1063, 1989; Ord. 1043, § 6, 1988; Ord. 1019, § 1, 1986; Ord. 813, § 1(part), 1979)

13.08.075 Water charges and sudden or severe service line breaks.

(a) Notwithstanding a customer's obligation to pay for water services provided by the city, and a property owner's duty to maintain and repair the property's water service line and its appurtenances, a customer may receive a one-time credit in the maximum amount of \$1,000.00 for the customer's water service charges where a substantial increase in the usage over its historic

use is the result of a severe leak or sudden break in the property's water service line or its appurtenances.

(b) To be eligible for such credit, the customer must:

- (1) Be the owner of the property upon which the severe leak or sudden break occurs;
- (2) Have taken immediate action to repair the severe leak or sudden break upon its discovery; and
- (3) Submit an application for water bill credit to the city's utility billing clerk within 20 days of receipt of the applicable water services bill.

(c) Application forms are available at the city's finance department and such applications shall require, in part that the customer/property owner demonstrate to the finance director's satisfaction that the severe service line leak or sudden break was not the result of the property owner's negligence; and

(d) Upon receipt of all required information, the finance director shall credit the customer's water bill for the difference between the average historic use and the increased use resulting from the severe service line leak or sudden break, in an amount not to exceed \$1,000.00.

(f) Nothing contained herein, including any credit received by a customer, shall be deemed by the city as an admission of liability or waiver of any rights, limitations, and protections afforded it by the Colorado Governmental Immunity Act, C.R.S. 24-10-101 et seq., as maybe amended, or as otherwise provided by law.

(Ord. 1818, § 6, 2008; Ord. 1778, 2007; Ord. 1458, 1999)

13.08.080 Termination of service for non-payment.

(a) Written notice of a proposed termination of water service for non-payment of water charges or wastewater charges shall be posted at the property served, at least 24 hours before actual termination and disconnection of water services.

(b) Prior to the date designated for termination of service, the customer or owner may request a conference with the finance director for the purpose of determining whether termination of service is appropriate. If a conference is not timely requested, or if payment of all charges is not received or other arrangements satisfactory to the finance director made for payment prior to 8:00 a.m. on the date specified in the notice for termination, water services shall be terminated and such services shall not be reinstated until the cause for termination has been cured. If a conference is timely requested, termination of service shall be deferred until the conclusion of the conference. The determination of the finance director shall be final and administrative remedies shall be considered exhausted.

(c) Upon termination of the service for non-payment, the charge for termination of service as provided in section 13.08.050 shall be assessed. (Ord. No. 2094, § 3, 12-6-2018; Ord. 1231, 1994; Ord. 1117, 1991; Ord. 1063, 1989; Ord. 1043, § 6, 1988; Ord. 1019, § 1, 1986; Ord. 813, § 1(part), 1979)

13.08.090 Reinstatement of water service after termination for non-payment.

A customer or property owner who has had water services terminated for non-payment of water or wastewater charges may have service reinstated during regular business hours by paying all accrued arrearages, including all delinquent and termination charges, and a reinstatement charge of \$25.00.

(Ord. 1818, § 1, 2008; Ord. 1231, 1994; Ord. 1117, 1991)

13.08.100 Owner responsibility—Lien upon property served.

(a) The owner of the premises served shall be responsible to the city for the payment of all water and wastewater charges arising out of the provision of such services to the owner's property. Such liability shall be joint and several with that of the customer and shall not relieve the customer from his/her obligation of payment for services when the customer is different from the owner.

(b) All water and wastewater charges prescribed by this chapter, together with interest, penalty and reasonable costs of collection, including attorneys fees, shall constitute a perpetual and continuing lien upon the property to which water or wastewater services are provided. The penalty and interest shall be assessed at a rate equivalent to that which is assessed by state law upon delinquent general property taxes. Such lien shall have priority over all other liens except general taxes and shall, upon the city's certification and filing with Jefferson County, be collected and paid to the city by the county treasurer in the same manner as delinquent general property taxes.

(c) For individually owned properties within multifamily residential structures and/or multi-unit commercial structures to which water is furnished by means other than by metering the consumption of each individually owned unit, the lien for unpaid water and wastewater service charges, interest, and costs imposed by this section attaches upon each unit in an amount computed by dividing the total amount of the lien by the number of units served through the master meter.

(d) The city may enforce the lien against the property, or the personal liability of the owner and customer, or both.
(Ord. 1704, § 4, 2005; Ord. 1231, 1994; Ord. 1117, 1991)

13.08.110 Unauthorized use.

(a) It is unlawful for any person to connect to, use, or take any water from the city water system without a valid permit and or payment of all required fees and user charges. Unauthorized use shall include, but shall not be limited to, the use

or acquisition of water from fire hydrants, illegal connections to the water system, straight-through pipes at the water meter pit, or by breaking the seal or lock on a water meter or bypass line.

(b) The unauthorized user shall be responsible for all water used and in determining such amount and cost, which cost shall be based upon the city's then current rate, the city may use any reasonable method which includes, but is not limited to, previous account history and standards of usage pertaining to the type of unauthorized use.

(c) In addition to any other cost or penalty the unauthorized user shall be assessed an administrative charge of \$1,000.00 per incident of unlawful use.

(d) Nothing herein shall preclude or limit the city from seeking relief in any other lawful forum or manner.
(Ord. 1818, § 8, 2008)

Chapter 13.13 WASTE WATER PRETREATMENT REQUIREMENTS

13.13.010 Purpose and application.

This chapter prescribes uniform requirements for indirect contributions to the municipal wastewater system (MWWS) for all portions of the city which utilize the MillerCoors General Wastewater Treatment Facility (WWTF) located in the NE 114 of Sec. 27, T3S, R70W, 6th P.M., County of Jefferson, Colorado, which site is approximately one-half mile east of the city. The objectives of this chapter are:

- (a) To prevent the introduction of pollutants into the MWWS which will interfere with the operation of the system or contaminate the sludge;
- (b) To prevent the introduction of pollutants into the MWWS which will pass through the WWTF inadequately treated into receiving waters or the atmosphere or otherwise be incompatible with the MWWS;
- (c) To improve the ability to recycle and reclaim wastewaters and sludges from the WWTF; and

- (d) to provide for the distribution of the cost of operating the MWWS.

This chapter provides for the regulation of contributors to the MWWS through the issuance of permits to certain users and through enforcement of all applicable requirements for all users, authorizes monitoring and enforcement activities, requires user reporting, and provides for the setting of fees for the distribution of costs resulting from the program established herein.

The city shall comply with all applicable public participation requirements of applicable laws, rules, and regulations in carrying out the provisions of this chapter.

This chapter shall apply to all portions of the city where the MWWS accesses the WWTF; except those portions of the city known as the "West Third Area", which is that portion of the MWWS which utilizes the Metro Wastewater Reclamation Plant. Except as otherwise provided herein, the city manager or designee shall administer, implement, and enforce the provisions of this chapter. (Ord. 1933, § 1, 2013; Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.020 Definitions.

Unless the context specifically indicates otherwise, the following terms and phrases, as used in this chapter, shall have the meanings hereinafter designated:

Act or the Act. The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251, et seq.

Administrator. The administrator of the United States Environmental Protection Agency (EPA).

Approval authority. The director of the Water Quality Control Division of the Colorado Department of Health and Environment.

Authorized representative of industrial user. An authorized representative of an industrial user means:

- (1) A president, secretary, treasurer, vice-president, official or officer of a corporation, company or entity responsible for a principal business function or any other person who performs similar policy or

decision-making functions for a corporation; or the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for permit requirements; and where authority to legally commit the corporation, company or entity has been assigned or delegated to the manager in accordance with corporate procedures; or

- (2) A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively; or
- (3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.
- (4) A duly authorized representative of an individual designated above if the authorization is made in writing by an individual described in paragraph (1), (2) or (3) above, the written authorization is submitted to the city, and the authorization specifies the person responsible for the overall operation of the facilities or the pretreatment program from which the wastewater discharge originates. If an authorization is not valid because some other person has acquired responsibility for the operation of the facility or its environmental matters, a new authorization satisfying the above requirements must be submitted to the city prior to or with any reports to be signed by an authorized representative.

Best management practice (BMP). Permit condition used in place of or in conjunction with effluent limitations to prevent or control the discharge of pollutants. May include schedule of activities, prohibition of practices, maintenance procedure, or other management practice to implement the provisions of this Code. BMPs may include, but are not limited to, treatment requirements, operating procedures, or practices to control plant site runoff, spillage, leaks, or waste disposal or drainage from raw material storage.

Biochemical oxygen demand (BOD). The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure, five days at 20°C, expressed in terms of weight and concentration (milligrams per liter [mg/L]).

Categorical user. Any user subject to national categorical pretreatment standards.

City. The City of Golden, Colorado.

City manager. The person designated by the city council of Golden to manage the city including the operation of the MWWS, or the manager's duly authorized representative.

CDPHE. Colorado Department of Health and Environment.

Colorado Pollutant Discharge System (CDPS) Permit. A permit issued pursuant to Regulation 61.

Compliance schedule. A schedule containing increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment facilities and/or the implementation of pretreatment practices required for the user to meet the applicable pretreatment requirements and standards.

Composite sample. A sample consisting of a collection of numerous individual discrete samples that are flow proportional, or taken at regular intervals over a period of time, usually 24 hours. The material being sampled is collected in a common container over the sampling period and is representative of the process discharge.

Cooling water. Non-contact water discharged from any use including but not limited to air conditioning, cooling or refrigeration, or to which water the only pollutant added is heat.

Daily maximum limit. The maximum allowable discharge of pollutant during a calendar day. Where daily maximum limitations are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limitations are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

Environmental Protection Agency (EPA). The United States Environmental Protection Agency.

Existing source. Any categorical user that is not included in the definition of a "new source."

Grab sample. A sample which is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed 15 minutes.

Holding tank waste. Any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump trucks.

Industrial user. Any non-domestic source discharging pollutants into the MWWS.

Interference or interfere. A discharge which, alone or in conjunction with discharge(s) from other sources, inhibits or disrupts the MWWS, its treatment processes or operations, or its sludge processes, use or disposal; and therefore is a cause of a violation of any requirement of the city's or the WWTF's CDPS permit (including an increase in the magnitude or duration of a violation). The term also includes prevention of sewage use or disposal in accordance with any criteria, guidelines or regulations developed pursuant to section 405 of the Act (33 U.S.C. 1345), the Solid Waste Disposal Act (SWDA), including Title II more commonly referred to as the Resource Conservation and Recovery Act (RCRA), the Clean Air Act, the Toxic Substances Control Act, the Marine Protection Research and Sanctuaries Act, or more stringent state criteria (including those contained in any state sludge management plan prepared

pursuant to the Title IV of SWDA) applicable to the method of disposal or use employed by the WWTF.

Local limit. Effluent limitation developed for industrial users by the pretreatment coordinator to specifically protect the WWTF and the MWWS from "interference" and "passthrough" based on site-specific design and disposal limits and conditions of the WWTF and MWWS. Local limits are developed to assure that IU discharges do not cause the MWWS or WWTF to violate their permit limits, upset biological, chemical, or physical treatment processes, prevent the disposal of biosolids (sludge), impact worker health and safety or harm the collection system infrastructure.

Metro wastewater reclamation plant. The wastewater treatment facility located at 6450 York Street, Denver, Colorado.

Monthly average limit. The arithmetic mean of the effluent samples collected during a calendar month or specified 30-day period.

Municipal wastewater system (or MWWS). That network of wastewater collection pipelines owned by the city, including wastewater mains, trunk lines, laterals, and other wastewater pipes and appurtenances, lift stations, meter stations, and all other parts of the system that convey wastewater to the WWTF. For purposes of this chapter, municipal wastewater system shall also include any wastewater collection lines that convey wastewater to the WWTF from users outside the city who are users of the city's wastewater collection system.

National Categorical Pretreatment Standard. Any regulation containing pollutant discharge limits promulgated by the EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. 1317) which applies to a specific category of industrial users and which appear in 5 CCR 1002, Section 63.12, Colorado Pretreatment Regulations.

New source. Any source, building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which is commenced after publication of the proposed National Categorical Pretreatment Standards under section 307(c) of the Act (33 U.S.C. 1317) which will be applicable to such source, if

such National Categorical Pretreatment Standards are thereafter promulgated in accordance with the Act, provided that:

- (1) The building, structure, facility, or installation is constructed at a site at which no other source is located; or
- (2) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or
- (3) The production or wastewater-generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

Construction on a site at which an existing source is located shall be deemed a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the above criteria of this definition, but otherwise alters, replaces, or adds to existing process or production equipment. Construction of a new source as defined in this chapter is considered to have commenced if the owner or operator has:

- (1) Begun, or caused to begin as part of a continuous onsite construction program, any placement, assembly, or installation of facilities or equipment, or significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities necessary for the placement, assembly, or installation of new source facilities or equipment, or
- (2) Entered into a contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time (as determined by the city). Options to purchase or

contracts which can be terminated or modified without substantial loss (as determined by the city), and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this chapter.

Oil and grease. Any hydrocarbons, fatty acids, soaps, fats, waxes, oils and any other substance that is extracted using 40 CPR 136 approved methods, published by the American Public Health Association, American Waterworks Association, and Water Pollution Control Federation, or the EPA Manual of Methods for Chemical Analysis of Water and Waste.

Pass through. A discharge which exits the WWTF into waters of the state, as defined by The Water Quality Control Act, in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the WWTF's CDPS permit, including an increase in the magnitude or duration of a violation.

Person. Any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust, or their manager, lessee, agent, servant, officer, or employee or any of them. Where indicated by the context, the masculine gender shall include the feminine and the singular shall include the plural.

pH. The logarithm (base 10) of the reciprocal of the concentration of the hydrogen ions expressed in gram moles per liter of solution. On a pH scale (0—14), a value of seven at 25 C represents a neutral condition. Decreasing values, below seven, indicate increasing hydrogen-ion concentration (acidity); increasing values, above seven, indicate decreasing hydrogen-ion concentration (alkalinity).

Pollutant. Includes, but is not limited to, any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water.

Prescription drug. A drug that, prior to being dispensed or delivered, is required to be labeled with the following statement: "Caution: Federal law prohibits dispensing without a prescription;" "Rx only;" or "Caution: Federal law restricts this drug to use by or on the order of a licensed veterinarian."

Pretreatment or treatment. The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into the MWWS. The reduction or alteration can be obtained by physical, chemical, or biological processes, or by other means, except as prohibited by 40 CPR section 403.6(d).

Pretreatment coordinator. The person designated with responsibilities to administer and implement the activities necessary to operate the pretreatment program.

Pretreatment requirement. Any substantive or procedural requirement related to pretreatment, including any National Categorical Pretreatment Standard imposed on an industrial user.

Significant industrial user (SIU). Any industrial user who:

- (1) Is subject to National Categorical Pretreatment Standards under found in Table 1, Section 63.12, Colorado Pretreatment Regulations, or
- (2) Has a discharge flow of 25,000 gallons per day or more of process wastewater to the MWWS (excluding sanitary, non-contact cooling and boiler blowdown wastewater), or
- (3) Is discharging a process wastestream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the WWTF, or
- (4) Is designated as such by the control authority as defined in 40 CPR 403.12(a) on the basis that the IU has a reasonable potential for adversely affecting the WWTF operation or for violating any pretreatment standard or requirement, the qual-

ity of sludge, the WWTF's effluent quality, or air emissions generated by the WWTF.

- (5) Upon a finding that a user meeting the criteria in paragraph (2), (3), or (4) [of this definition] herein has no reasonable potential for adversely affecting the MWWS's or WWTF's operation or for violating any pretreatment standard or requirement, the city may at any time, on its own initiative or in response to a petition received from a user, determine that such user is not a significant industrial user upon approval of CDPHE.

Significant noncompliance (SNC). A significant industrial user (or any industrial user which violates paragraphs (3), (4) or (8) of this definition) shall be in significant noncompliance if its violation meets one or more of the following criteria:

- (1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all of the measurements taken for the same pollutant parameter during a six-month period exceed, by any magnitude, a numeric pretreatment standard or requirement including instantaneous limits as defined by 40 CPR 403.3(1);
- (2) Technical review criteria (TRC) violations defined here as those in which 33 percent or more of all of the measurements taken for the same pollutant parameter during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by 40 CPR 403.3(1) multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);
- (3) Any other violation of a pretreatment standard or requirement as defined by 40 CPR 403.3(1) (daily maximum, long-term average, instantaneous limit, or narrative standard) that the city determines has caused, alone or in combination with other discharges interference or pass through

(including endangering the health of WWTP or MWWS personnel or the general public);

- (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the city's exercise of its emergency authority under paragraph 13.13.210(b) of this chapter to halt or prevent such a discharge;
- (5) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;
- (6) Failure to provide within 30 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self monitoring reports, and reports on compliance with schedules;
- (7) Failure to accurately report noncompliance;
- (8) Any other violation or group of violations which may include a violation of best management practices, which the city determines will adversely affect the operation or implementation of the local pretreatment program.

State. The State of Colorado.

Standard industrial classification (SIC). A numeric classification of industries pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1987, as amended.

Stormwater. Any flow occurring during or following any form of natural precipitation and resulting there from.

Total suspended solids (TSS). The total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable and measurable by laboratory filtering according to standard laboratory procedure.

Toxic pollutant. Including, but not limited to, any pollutant or combination of pollutants listed as toxic in regulations promulgated by the EPA under the provisions of section 307(a) of the Act or other acts.

User. Any person who contributes, causes or permits the contribution of wastewater into the MWWS.

Wastewater. The liquid and water-carried industrial and domestic wastes from any dwellings, buildings, or structures, including commercial buildings, industrial facilities, and institutions together with any groundwater, surface water, and stormwater that may be present, whether treated or untreated, which enters the MWWS.

Wastewater contribution permit (WCP). As set forth in section 13.13.090 of this chapter.

Wastewater treatment facility (WWTF). The Coors General Wastewater Treatment Plant, owned and operated by the MillerCoors Brewing Company, located in the NE 114 of Sec. 27. T3S, R70W, 6th P.M., County of Jefferson, Colorado, which site is approximately one-half mile east of the city. (Ord. 1933, § 2, 2013; Ord. 1812, § 1, 2008; Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.030 Abbreviations.

The following abbreviations shall have the designated meanings:

- #/day: pounds per day
 - BMP: Best management practice
 - C: Degrees using the Centigrade temperature scale.
 - CFR: Code of Federal Regulations.
 - F: Degrees using the Fahrenheit temperature scale.
 - L: Liter.
 - mg: Milligrams.
 - mg/L: Milligrams per liter.
 - USC: United States Code.
- (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.040 General discharge prohibitions.

(a) No user shall contribute or cause to be contributed directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the MWWS or the WWTF. These general prohibitions apply to all users of the MWWS whether or not the user is subject to National Categorical Pretreatment Standards or any other national, state, or local pretreatment standards or requirements. It shall be unlawful for any user to contribute the following substances to the MWWS:

- (1) Any liquids, solids or gases which are, or may be, sufficient either alone or by interaction with other substances to cause a fire, explosion, hazard, or be injurious in any other way to the MWWS or to the operation of the WWTF or to any person, including, but not limited to, waste streams with a closed cup flash point of less than 140 F or 60 C, using the test methods specified in 40 CFR 261.21. In addition, at no time shall any reading on an explosion hazard meter, at the point of discharge into the MWWS (or at any point in the MWWS) be more than ten percent of the lower explosive limit (LEL) of the meter.
- (2) Solid or viscous substances which may cause obstruction to the flow in the MWWS or other interference with the operation of the WWTF such as, but not limited to: grease, garbage with particles greater than one-half inch in any dimension, animal guts or tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, wood, metal shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, tar, asphalt residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes, petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.
- (3) Any wastewater having a pH of less than 5.0, or wastewater having any other cor-

rosive properties capable of causing damage or hazard to structures, equipment and/or persons.

- (4) Any wastewater containing toxic pollutants and/or hazardous wastes as defined by RCRA, whether or not they are considered to be hazardous after entering the WWTF, in sufficient quantity, either singly or by interaction with other pollutants, so as to pose a health risk to employees or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters of the MWWS or WWTF, or exceed the limitation set forth in a national categorical pretreatment standard.
- (5) Any corrosive, noxious or malodorous liquids, gases, or solids which either singly or by interaction with other wastes may cause damage to the MWWS or WWTF, nuisance or hazard to life, or may prevent entry into the MWWS or WWTF for maintenance and repair.
- (6) Any substance which may cause the WWTF's effluent or any other product of the WWTF (such as residues, sludges or scum) to be unsuitable for reclamation processes. In no case shall a substance discharged to the MWWS cause the WWTF to be in non-compliance with sludge use or disposal criteria, guidelines or regulations developed under Section 405 of the Act; SWDA, RCRA, the Clean Air Act, the Toxic Substances Control Act, state or local criteria, or any other more stringent guidelines or regulations which are applicable to sludge management.
- (7) Any substances which may cause the city or WWTF to violate their CDPS permit or the receiving water quality standards.
- (8) Any wastewater with color not removed in the treatment process, or others that are either highly colored or may become highly colored by reacting with any other wastes or wastewater.
- (9) Any wastewater having a temperature that may inhibit biological activity in the WWTF resulting in interference, but in no case wastewater which exceeds 40° C (104° F) upon introduction to the WWTF. Where practicable, this shall be implemented by applying the 40° C (104° F) temperature limit at the discharge point to the MWWS.
- (10) Any pollutants, including oxygen demanding pollutants (such as BOD), released at a flow and/or pollutant concentration which may cause pass through or interference to the WWTF.
- (11) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the city manager in compliance with applicable WWTF, state or federal regulations.
- (12) Any wastewater which may cause a hazard to human life or create a nuisance or be or create a hazard to the MWWS or WWTF.
- (13) Any trucked or hauled waste, including, but not limited to, holding tank waste, septic tank pumpage, night soil, sludge, or other material from sewage or industrial treatment plants or water treatment plants. Holding tank wastes from recreational vehicles shall be exempted from this prohibition and shall be allowed to discharge at city approved designated locations. Discharge at locations other than those approved by the city shall be a violation of this chapter. Such wastes shall be subject to all other requirements of this Code.
- (14) Stormwater drainage unless otherwise prohibited from being discharged into waters of the state or determined by the city engineer to be necessary to be discharged into the sanitary sewer for public health, safety or welfare. No stormwater shall be discharged into the waste water unless approved by the city.
- (15) Any prescription drug.

(b) It shall be unlawful to violate said effluent limitations.

(c) The city may promulgate rules and regulations for the purpose of implementing, administering, and enforcing the provisions of this chapter.

(Ord. 1812, § 2, 2008; Ord. 1757, § 1, 2006; Ord. 1341, 1997; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.050 National Categorical Pretreatment Standards.

Upon the promulgation of a national categorical pretreatment standard for a particular industrial subcategory, the National Categorical Pretreatment Standard, if more stringent than limitations imposed under this chapter for sources in the subcategory, shall supersede the limitations imposed under this chapter upon the effective date of the National Categorical Pretreatment Standard 40 CFR Chapter I Subchapter N.

(Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the pretreatment coordinator may impose equivalent or mass limits in accordance with (c) of this section.)

- (a) When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the pretreatment coordinator may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual users.
- (b) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the pretreatment coordinator shall impose an alternate limit in accordance with 40 CFR 403.6(e).
- (c) When a categorical pretreatment standard is expressed only in terms of pollutant concentration, an industrial user may request that the city convert the limits to equivalent mass limits. The determination to convert concentration limits to

mass limits is within the discretion of the pretreatment coordinator. The city may establish equivalent mass limits only if the industrial user meets all of the condition set forth in subsections 13.13.050(c)(1) through 13.13.050(c)(5) below.

- (1) To be eligible for equivalent mass limits the industrial user must:
 - a. Employ or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its control mechanism;
 - b. Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical pretreatment standard and not have used dilution as a substitute for treatment;
 - c. Provide sufficient information to establish the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;
 - d. Not have daily flow rates, production levels or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and
 - e. Have consistently complied with all applicable categorical pretreatment standards during the period prior to the industrial user's request for equivalent mass limits.
- (2) An industrial user subject to equivalent mass limits must:
 - a. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

- b. Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;
 - c. Continue to record the facility's production rates and notify the pretreatment coordinator whenever production rates are expected to vary by more than 20 percent from its baseline production rates determined in paragraph 13.13.050(c)(1)c. of this section. Upon notification of a revised production rate, the pretreatment coordinator must reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and
 - d. Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to paragraph 13.13.050(c)(1)a. of this section so long as it discharges under an equivalent mass limit.
- (3) When developing equivalent mass limits, the pretreatment coordinator:
- a. Will calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the industrial user by the concentration-based daily maximum and monthly average standard for the applicable categorical pretreatment standard and the appropriate unit conversion factor;
 - b. Upon notification of a revised production rate, will reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and
 - c. May retain the same equivalent mass limit in subsequent control mechanism terms if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment pursuant to section 13.13.070.
- (4) The pretreatment coordinator must document how the equivalent mass limits were derived for any changes from concentration to mass limits and make this information publicly available.
- (5) Once incorporated into its control mechanism, the industrial user must comply with the equivalent limitations developed in this section in lieu of the promulgated categorical standards from which the equivalent limitations were derived.
- (6) Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average or four-day average, limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the daily maximum equivalent limitation.
- (7) Any industrial user operating under a control mechanism incorporating equivalent mass or concentration limits calculated from a production based standard shall notify the pretreatment coordinator within two business days after the user has a reasonable basis to know that the production level will significantly change within the next calendar

month. Any user not notifying the pretreatment coordinator of such anticipated change will be required to meet the mass or concentration limits in its control mechanism that were based on the original estimate of the long-term average production rate.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.060 Special pollutant discharge standards.

(a) *Concentration based standards.* No industrial user shall discharge wastewater containing any of the following materials or substances in excess of the limitations, to be considered as daily maximum discharge levels, contained in the following schedule:

Arsenic, Total (As) 0.402 mg/L

Cadmium, Total (Cd) 0.075 mg/L

Chromium, Total (Cr) 2.71mg/L

Trivalent Chromium (Cr+3) 4.89 mg/L

Hexavalent Chromium (Cr+6) 0.326 mg/L

Copper, Total (Cu) 2.73 mg/L

Lead, Total (Pb) 0.121 mg/L

Molybdenum, Total, 1.24 mg/L

Nickel Total (Ni) 1.12 mg/L

Selenium, Total (Se) 0.047 mg/L

Zinc, Total (Zn) 7.43 mg/L

(b) *Mass based standards.* No industrial user or combination of industrial users shall discharge wastewater containing the following materials or substances listed in the table below in excess of the listed quantities. These listed quantities shall be allocated as needed among all industrial users and documented in the pretreatment program operating manual. Such allocations shall be considered daily maximum discharge levels.

Mercury, Total (Hg) 0.00838 #/day

Silver, Total (Ag) 0.3068 #/day

(c) *Best management practices (BMPs)* as defined in subsection 13.13.020(e) may be developed to implement local limits and the requirements of 13.13.040. BMPs shall be considered special pollutant discharge limitations for the purposes of this chapter.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.070 Excessive discharge.

It shall be unlawful for any user to increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate pretreatment to achieve compliance with the limitation, unless expressly authorized by an applicable pretreatment standard or requirement. The pretreatment coordinator may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements or in other cases when the imposition of mass limitations is appropriate.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.080 Slug discharges.

It shall be the duty of each user to establish means and facilities to protect the MWWS and WWTF from slug discharges, defined as discharges of a non-routine, episodic nature, including, but not limited to, an accidental discharge or spill, a non-customary batch discharge, or a discharge of prohibited materials or other substances regulated by this chapter which have a reasonable potential to cause interference or pass through, or in any other way violate the provisions of this chapter. Facilities to control slug discharges shall be installed and maintained at the owner's or user's cost. Detailed plans showing facilities and operating procedures to protect the MWWS and WWTF shall be submitted to the city for review upon application for a WCP. If necessary, certain non-permitted industrial users may, at the discretion of the pretreatment coordinator, be required to construct facilities and/or provide slug control plans. No new source significant industrial user who commences contribution to the MWWS after the effective date of this chapter shall be permitted to introduce pollutants into the MWWS until slug control plans have been ap-

proved by the city and implemented by the user. Such plans and operating procedures shall not relieve the user from the responsibility to modify the user's facility as necessary to meet the requirements of this chapter. In the case of any slug discharge, it is the responsibility of the user to immediately telephone and notify the WWTF and the city environmental manager or designee of the incident. The notification shall include location of discharge, type of waste, concentration and volume, and corrective actions.

(a) *[Minimum requirements.]* If required, the slug control plan shall include at a minimum, the following:

- (1) Description of discharge practices, including non-routine batch discharges; and
- (2) Description of stored chemicals; and
- (3) Procedures for immediately notifying the WWTF of any accidental or other slug discharge including any discharge which would violate any of the prohibited discharges in section 13.13.040 of this chapter; and
- (4) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, measures for containing toxic organic pollutants.

(b) *[Additional requirements.]* The pretreatment coordinator may also require the slug control plan to include any of the following:

- (1) Description of the location of stored chemicals, which may include a site plan; and
- (2) Spill prevention through proper initial selection and construction of equipment; equipment operation, maintenance and inspection proce-

dures; personnel training and supervision; and security measures to prevent vandalism; and

- (3) Spill containment through provision of secondary containment devices or diversionary structures; and
- (4) Spill clean-up manpower and materials; and
- (5) Measures for containing spills of raw materials products and intermediate product and wastes; and
- (6) Any other measures deemed necessary by the pretreatment coordinator to adequately control slug discharges.

(c) *Written notice.* Within five business days following any slug discharge, the user shall submit to the city pretreatment coordinator a detailed written report which states the substance(s) discharged, the cause of the discharge, amount of discharge, actions taken by the user to halt and mitigate the effect(s) of the discharge, and the measures to be taken by the user to prevent any future slug discharges. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the MWWS and/or WWTF, fish kills, or any other damage, injury or loss to person or property; nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this chapter or other applicable law. Significant industrial users shall also be required to notify the city immediately of any changes at its facility affecting the potential for a slug discharge.

(d) *Notice to employees.* Notice shall be permanently posted on the user's bulletin board and/or other prominent place directing employees who to call in the event of a slug discharge. Employers shall insure that all employees who may cause or

suffer from such a slug discharge be advised of the emergency notification procedure.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993)

13.13.090 Wastewater contribution permits.

All significant industrial users (SIUs) proposing to connect to or to contribute to the MWWS shall obtain a WCP before connecting to or contributing to the MWWS. All SIUs and all existing IUs determined to be significant as defined in 13.13.020 ["significant industrial user"] connected to or contributing to the MWWS shall apply for and obtain a WCP after notification by the city.

(a) *General wastewater contribution permits (GWCP).*

- (1) May be issued to SIUs if the following conditions are met. All facilities must:
 - a. Involve the same or substantially similar types of operations;
 - b. Discharge the same types of waste;
 - c. Require the same effluent limitations;
 - d. Require the same or similar monitoring; and
 - e. In the opinion of the city, are more appropriately controlled under a general wastewater contribution permit than under an individual wastewater contribution permit.
- (2) Coverage by a general wastewater contribution permit must be requested in writing by the industrial user. Such requests may be submitted with the permit application.
- (3) Significant industrial users subject to production based categorical pretreatment standards or categorical pretreatment standards expressed as a mass of pollutant discharged per day or for industrial users whose limits are based on the combined waste stream formula or net/gross

calculations may not be covered by a general wastewater contribution permit.

- (4) General WCP application. SIU's requesting coverage by a general wastewater contribution permit must submit the following information:

- a. Name of business, address and location of facility;
- b. Description of activities, facilities and facility processes on the premises including all materials which are or could be discharged to the sanitary sewer;
- c. Approximate volume of business conducted in units relevant to the business;
- d. Diagram of facility showing all drains, work areas, and materials storage locations.

- (b) *Individual wastewater contribution permits (IWCP).* Wastewater contribution permit that is issued to an individual significant industrial user as defined herein in section 13.13.020.

- (1) *Individual wastewater contribution permit application.* Users required to obtain a WCP shall complete and file with the city, an application on the form prescribed by the city and accompanied by a fee as established by resolution of city council. The application shall be submitted within 60 calendar days of determination a WCP is required. It shall be unlawful to fail to submit the completed application within the required time. In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:

- a. User's name, address, location of the facility and contact information for an authorized representative;

- b. SIC number(s) for all manufacturing and other processes used at the facility;
- c. Time and duration of wastewater discharge;
- d. Average daily and 30-minute peak wastewater flow rates, including daily, monthly and seasonal variations, if any;
- e. Site plans, floor plans, mechanical and plumbing plans and details to show sewers, sewer connections, and appurtenances by the size, location and elevation;
- f. Description of activities, facilities and plant processes on the premises including all materials which are or could be discharged, including a piping diagram for all process discharges.
- g. Information regarding potential slug discharges, as defined in section 13.13.080 of this chapter, from the user's facility;
- h. Wastewater constituents and characteristics including, but not limited to, those set forth in sections 13.13.040 through 13.13.080, 13.13.100 and 13.13.110 of this chapter and any applicable city, state or national pretreatment standards, and performed in accordance with procedures established by the EPA pursuant to section 304(g) of the Act and contained in 40 CFR part 136, as amended;
- i. A statement regarding whether or not any National Categorical Pretreatment Standards apply to the user's facility;
- j. A statement regarding whether or not the pretreatment standards contained in sections 13.13.040 through 13.13.080, 13.13.100 and 13.13.110 of this chapter and applicable city, state or National Categorical Pretreatment Standards, are being adhered to and if not, whether additional O&M and/or additional pretreatment is required for the user to meet the applicable standards;
- k. If additional pretreatment and/or operation and maintenance (O&M) will be required to meet the discharge standards, the earliest date and schedule by which the user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance date established for any applicable National Categorical Pretreatment Standards. The following conditions shall apply to this schedule:
 - 1. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events for the construction and operation of additional pretreatment required for the user to meet all applicable pretreatment or discharge standards (to include, but not limited to, hiring an engineer, completing preliminary plans, commencing construction, and completing construction);
 - 2. No increment referred to in paragraph k.1. shall exceed nine months;
 - 3. Not later than 14 days following each date in the schedule and the final date for compliance, the user shall submit a written progress report to the pretreatment coordinator including, at a minimum,

whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it shall comply with this increment of progress, the reason for delay, and the steps being taken by the user to return the construction to the schedule established. In no event shall more than nine calendar months elapse between such progress reports to the pretreatment coordinator.

- l. Each product produced by type, amount, process or processes and rate of production;
- m. Type and amount of raw materials processed (average and maximum per day);
- n. Number and type (full-time, part-time) of employees, and hours of operation of the plant and proposed or actual hours of operation of the pretreatment system;
- o. A list of any environmental control permits held by or for the facility; and
- p. Any other information deemed by the city to be necessary to evaluate the permit application.

The pretreatment coordinator shall review the user's application and all accompanying documentation and may require additional information. After review, the city manager may issue a WCP subject to the terms and conditions provided herein.

- (c) *Permit issuance.* The city manager shall issue a WCP to the applicant after the city manager finds that all of the following conditions are satisfied:

- (1) The applicant's proposed discharge is in compliance with the pretreat-

ment standards of sections 13.13.040 through 13.13.080, 13.13.100 and 13.13.110 of this chapter; and

- (2) The applicant's proposed discharge would not interfere with the normal operation of the MWWS and WWTF; and
- (3) The applicant's proposed discharge will not result in a violation by, or cause the city or MillerCoors Company to violate the terms and conditions of their CDPS permits.

- (d) *Permit denial hearing.* If an application for a WCP is denied, the city manager shall notify the applicant in writing of such denial. Such notification shall state the grounds for denial which will inform the applicant of the measures or actions which must be taken by the applicant as a condition of the issuance of a WCP.

An applicant may appeal the city manager's decision to deny a WCP, or appeal the terms and conditions of approval of issuance of a WCP, in writing to the manager, not later than 30 calendar days from the date of the manager's decision. Failure to request a hearing within the 30 days is deemed a waiver by the applicant of his/her right to challenge any of the terms and conditions of the WCP. In the case of a denial, the applicant shall have the burden of demonstrating by clear and convincing evidence that the terms or conditions in subsection 13.13.090(c) of this chapter have been satisfied. In the case of an appeal of any terms or conditions imposed by the city manager in granting a WCP, the applicant shall have the burden of demonstrating by clear and convincing evidence that any of the terms or conditions imposed by the city are unnecessary, or inappropriate. In its appeal, the applicant must indicate the WCP terms or conditions objected to, the reasons for the objection, and the alternative terms or conditions, if any, it seeks to be required in the permit.

The city manager may conduct the hearing and take the evidence or may designate a representative to:

- (1) Issue in the name of the city manager notices of hearings and subpoenas requiring the attendance and testimony of witnesses and the production of evidence relevant to any matter of such hearings;
- (2) Receive the evidence;
- (3) Prepare a written report of the hearing, including transcripts, documents, and other evidence, to or for the city manager together with recommendations for action thereon.

Testimony taken at any hearing shall be under oath and recorded. The transcript shall be a public record in compliance with state law. The appellant may at his/her cost be represented at the hearing.

Upon review of the evidence by the city manager, the city manager shall make written findings of fact.

Thereupon, the city manager may issue a WCP, uphold, reverse, modify, and/or delete terms or conditions, or direct that a WCP shall not be issued, or give such other or further orders and directives as are necessary and appropriate. The city manager's decision shall be final.

- (e) *Permit conditions.* WCPs shall be subject to all provisions of this chapter and all other applicable regulations, user charges and fees established by the city. Both general and individual WCPs shall contain the following:

- (1) A statement of duration (not to exceed five years);
- (2) A statement of non-transferability and non-assignability;
- (3) Effluent limits, including best management practices, based on requirements and restrictions of sections 13.13.040, 13.13.050, 13.13.060, and 13.13.070 of this chapter;
- (4) Self-monitoring, sampling, reporting, notification, and recordkeeping requirements, including an identification of the pollutants to be monitored, sampling location, sampling frequency, and sample type, based on provisions of sections 13.13.040, 13.13.050, 13.13.060, and 13.13.070 of this chapter;
- (5) A statement of applicable civil and criminal penalties for violations of any pretreatment standards and requirements, and any applicable compliance schedules;
- (6) Limits on average daily and/or monthly and maximum rate and time of discharge or requirements for flow regulation and equalization, if necessary;
- (7) Requirements for installation, operation, and maintenance of inspection and sampling facilities, if necessary;
- (8) Compliance schedules, if necessary;
- (9) Requirements for submission of technical reports or discharge reports;
- (10) Requirement for maintaining and retaining facility records relating to wastewater discharge as specified by the city, and affording the city reasonable access thereto for the purpose of inspecting, reviewing or copying records;
- (11) Requirements for notification of the city of any new introduction of wastewater constituents or any substantial change in volume of 20 percent or greater or character of the wastewater constituents being introduced into the MWWS;
- (12) Requirements to control slug discharges as defined in sections 13.13.080(j) and 13.13.090 of this chapter if determined by the pretreatment coordinator to be necessary;

- (13) Requirements for notification of the city of any change in facility name or address, or change of owner(s) or operator(s);
 - (14) The process for seeking a waiver from monitoring for a pollutant neither present nor expected to be present in the discharge in accordance with subsection 13.13.110(d) (40CFR403.12(e)(2)), or a specific waived pollutant in the case of an individual permit;
 - (15) Any grant of the monitoring waiver by the pretreatment coordinator subsection 13.13.110(d) must be included as a condition in the user's permit; and
 - (16) Other conditions as deemed appropriate by the city to insure compliance with this chapter.
- (f) *Permit modification.*
- (1) A permit may be modified in whole or in part by the city in accordance with the provisions of this chapter. Grounds for the modification of a permit include, but are not limited to, the following:
 - a. Violation of any term(s) or condition(s) of a permit.
 - b. Misrepresentation, falsification or failure to fully disclosure all relevant facts in either the permit application or any required report.
 - c. Promulgation of any new, additional, or amended pre-treatment or effluent limitation(s) by the city or state or federal agencies.
 - d. Changes in the process(es) used by the permittee or changes in the volume or character of the process discharge(s), or failure to meet the effluent limitation(s).
 - e. Changes in design or the capability of the receiving sewage treatment plant.
 - f. To correct typographical or other errors in the permit.
 - g. Information that the permitted discharges poses a threat to the city's collection system, the waste water treatment plan, city or plant personnel, or the receiving waters.
 - h. Upon request of the permittee, provided that such request does not create a violation of any applicable federal, state or local requirement, standard, law, rule or regulation.
- (g) *Permit duration.* WCPs shall be issued for a specified time period, not to exceed five years. A WCP may be issued for a period less than five years or may expire on a specific date. The user shall apply for WCP reissuance a minimum of 180 calendar days prior to the expiration of the user's existing WCP. The terms or conditions of the WCP may be subject to modification by the city during the term of the WCP as limitations or requirements as identified in section 13.13.040, et seq. of this chapter, are modified or other just cause exists. The user shall be informed in writing, with the notification being sent to the user's address of record, of any proposed changes in the WCP's terms or conditions at least 30 calendar days prior to the effective date of change. Any changes or new conditions in the WCP shall include a reasonable time schedule for compliance.
- (h) *Permit transfer prohibited.* WCPs are issued to a specific user for a specific operation. A WCP shall not be assigned, transferred, sold, or otherwise conveyed to any other person, different premises, or new or changed operation.
- (Ord. 1933, § 3, 2013; Ord. 1812, § 3, 2008; Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1106, 1991; Ord. 1096, 1990)

13.13.100 Monitoring and reporting requirements.

(a) *Monitoring and analysis.* Significant industrial users shall be required to monitor wastewater discharges through sampling and analysis for the discharge of pollutants in accordance with the user's wastewater contribution permit, or as part of a discharge permit application. Sampling shall be performed in accordance with the techniques approved by EPA. Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds. For all other pollutants, 24-hour composite samples must be obtained through flow proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the city, the samples must be representative of the discharge and the decision to allow the alternative sampling must be documented in the industrial user file for that facility or facilities. Using protocols (including appropriate preservation) specified in 40 CFR 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the city, as appropriate. All analysis shall be performed in accordance with procedures established in 40 CFR part 136 and amendments thereto or with any other test procedures approved by EPA.

(b) *Periodic compliance reports.*

- (1) Any user subject to a National Categorical Pretreatment Standard and/or a WCP shall submit biannually to the city pretreatment coordinator unless required more frequently in the National Categorical Pretreatment Standards, or by the city environmental manager, or by the user's WCP, a written report for the preceding six months stating the nature and concentration of pollutants in the effluent which are limited by such National Categorical

Pretreatment Standards and/or the WCP. In addition, this report shall include a record of average and maximum daily flows for the reporting period for all regulated processes.

- (2) In cases where the WCP requires compliance with a BMP or a pollution prevention alternative, the industrial user shall submit documentation as required by the city or the applicable standards to determine compliance with the standard.

(c) *Monitoring facilities.* The city may require the user to provide and operate at the user's own expense monitoring facilities to allow the city to independently inspect, sample, and measure the flow of the user's building sewer and/or internal drainage systems. The monitoring facility shall be located on the user's premises except that the city may, when it deems such a location would be impractical or cause the user undue hardship, allow the facility to be located upon the public street or right-of-way area and located so that it will not be obstructed by landscaping or parked vehicles.

There shall be ample space as determined by the city, in or near such sampling manhole or facility to allow independent and accurate sampling by the city and preparation of samples for analysis. The facility, sampling, and measuring equipment shall be maintained in a safe and proper operating condition, as determined by the city at the expense of the user.

The sampling and monitoring facilities shall be constructed and maintained in accordance with the city's requirements and all applicable construction standards and specifications. Construction of the facilities shall be completed within 90 calendar days following written notification by the city of the requirement to install same.

(d) *[Mass limitations.]* The city manager may impose mass limitations on users where the imposition of mass limitations is applicable and is permitted under state and federal laws and regulations. In such cases, the report required by subparagraph b) of this section hereto shall indicate the mass of pollutants regulated by National Categorical Pretreatment Standards in the effluent of the user. These reports shall contain the

results of sampling and analysis of the discharge, including the flow and the nature and concentration, or production and mass when requested by the city manager, of pollutants contained therein which are limited by the applicable National Categorical Pretreatment Standards. All analyses shall be performed in accordance with procedures established by EPA pursuant to section 304(g) of the Act and contained in 40 CFR part 136 and amendments thereto or with any other test procedures approved by EPA.

(e) All users holding a WCP under this chapter and any other users as determined by the city who cease the operation of any process or facility which generates non-domestic wastewater or toxic pollutants will submit at least 30 calendar days prior to cessation of operations, on the form prescribed by the city, a closure plan which specifies the treatment, storage, and disposal activities for all accumulated process chemicals and wastewaters. All treatments or methods shall be in accordance with all applicable laws and regulations promulgated by the city, state, and federal governments.
(Ord. 1933, § 4, 2013; Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.110 Categorical industrial user monitoring and reporting requirements.

All users subject to National Categorical Pretreatment Standards shall submit to the city the following additional monitoring and reporting information:

(a) *Baseline monitoring reports.* Existing source categorical users shall submit a baseline monitoring report (BMR) to the city within 180 calendar days after the effective date of an applicable national categorical pretreatment standard. New source categorical users shall submit a BMR to the city at least 90 days prior to commencement of any discharge to the MWWS. The BMR shall include all the following information:

(1) Name and address of the facility, name(s) of all owner(s) and operator(s);

- (2) List of all environmental control permits held by or for the facility;
- (3) Description of the nature, average production rates, and standard industrial classification SIC codes of all operation(s), including a schematic process diagram indicating points of discharge to the MWSS from processes regulated under the National Categorical Pretreatment Standards;
- (4) The average daily and maximum daily flow from all regulated process streams and other streams as necessary if the combined wastestream formula, as referred to in 40 CFR part 403.6(e), is to be used;
- (5) Identification of pretreatment standards applicable to each regulated process, and results of sampling and analysis identifying the nature and concentration (or mass, if required by the National Categorical Pretreatment Standards or the city) of regulated pollutants in the discharge, including both daily maximum and average concentrations (or masses). The sample shall be representative of daily operations, and shall adhere to sampling protocols described in 40 CFR part 403.12(b)(5);
- (6) A written certification statement, as described in section 13.13.140, signed by an authorized representative of the industrial user, and certified by a qualified professional, indicating whether the National Categorical Pretreatment Standards and other applicable pretreatment requirements are adhered to, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for full compliance; and
- (7) If additional O&M and/or pretreatment is required, the shortest period of time by which the user will provide such additional O&M and/or

pretreatment. The completion date shall not be later than the compliance date established for the National Categorical Pretreatment Standards or other pretreatment requirements.

- (b) *Ninety-day compliance report.* Categorical users shall submit a report to the city containing the information specified in section 13.13.100 of this chapter within 90 days following the date for final compliance with the applicable National Categorical Pretreatment Standards, in the case of an existing source, or within 90 days following commencement of discharge to the MWSS, in the case of a new source. The report shall also contain the certification statement described in subsection 13.13.140(a) and shall be signed by an authorized representative.
- (c) *[Sampling requirements.]* For sampling required in support of baseline monitoring and ninety-day compliance reports in subsections 13.13.110(a) and 13.13.110(b), a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the pretreatment coordinator may authorize a lower minimum.
- (d) *[Authorization to forego sampling.]* The city may authorize the industrial user subject to a categorical pretreatment standard to forego sampling of a pollutant regulated by a categorical pretreatment standard if the industrial user has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the discharge, or is present only at background levels from intake water and without any increase in the pollutant due to activities of the industrial user. This authorization is subject to the following conditions:
 - (1) The city may authorize a waiver where a pollutant is determined to

be present solely due to sanitary wastewater discharged from the facility provided that the sanitary wastewater is not regulated by an applicable categorical standard and otherwise included no process wastewater.

- (2) The monitoring waiver is valid only for the duration of the effective period of the permit, but in no case longer than five years. The user must submit a new request for the waiver before the waiver can be granted for each subsequent permit.
- (3) In making a demonstration that a pollutant is not present, the industrial user must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes. The request for a monitoring waiver must be signed by an authorized representative in accordance with subsection 13.13.020(d) of this chapter, and include the certification statement in subsection 13.13.140(a) (40 CFR part 403.6(a)(2)(ii)). Non-detectable sample results may only be used as a demonstration that a pollutant is not present if the EPA approved method from 40 CFR part 136 with the lowest minimum detection level for that pollutant was used in the analysis.
- (4) Any grant of the monitoring waiver by the city must be included as a condition of the user's permit. The reasons supporting the waiver and any information submitted by the user in its request for the waiver must be maintained by the city for three years after expiration of the waiver.
- (5) Upon approval of the monitoring waiver and revision of the user's permit by the city, the industrial

user must certify on each report with the statement in subsection 13.13.140(b).

- (6) In the event that a waived pollutant is found to be present or is expected to be present based on changes that occur in the user's operations, the user must immediately: Comply with the monitoring requirements of section 13.13.110 of this chapter or other more frequent monitoring requirements imposed by the city, and notify the city.
- (7) This provision does not supersede certification processes and requirements established in categorical pretreatment standards, except as otherwise specified in the categorical pretreatment standard.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993)

13.13.120 Inspections and sampling.

The city may inspect the facilities of any user to ascertain whether the purpose and requirements of this chapter are being met. Persons or occupants of premises where wastewater is created or discharged or user's records are maintained shall allow the city or its representatives access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, examination or copying of records, in the performance of any of their duties. The city, the CDPHE and/or EPA shall have the right to establish, operate, and maintain on the user's property devices which are necessary to conduct sampling, inspections, compliance monitoring and/or metering operations. Where a user requires identification and clearance before entry into the premises, the user shall, upon presentation of identification, allow personnel from the city, the CDPHE, and/or EPA to enter, without delay, for the purposes of performing their duties required by this chapter. It shall be unlawful for a user to refuse access to the city, its representatives, CDPHE, or EPA for the purposes in this section.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.130 Record keeping.

Users subject to the reporting requirements of this chapter shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this ordinance [chapter], any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements and documentation associated with best management practices in subsection 13.13.060(c). Records shall include the date, exact place, method, and time of sampling and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the city, or where the user has been specifically notified of a longer retention period by the pretreatment coordinator. (Ord. 1757, § 1, 2006)

13.13.140 Certification statements.

(a) *Certification of permit applications, user reports, and initial monitoring waiver.* The following certification statement is required to be signed and submitted by users submitting permit applications in accordance with section 13.13.090; users submitting baseline monitoring reports under subsection 13.13.110(a), users submitting reports on compliance with the categorical pretreatment standard deadlines under subsection 13.13.110(b), and users submitting an initial request to forego sampling of a pollutant based on subsection 13.13.110(d). The following certification statement must be signed by an authorized representative as defined by subsection 13.13.020(d):

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted, is to the best of my knowledge and belief,

true, accurate, and complete. I am aware that there are significant penalties for submitting false information including the possibility of fines and imprisonment for knowing violations."

(b) *Certification of pollutants not present.* Users that have an approved monitoring waiver based on subsection 13.13.110(d) must certify on each report with the following statement that there has been no increase in the pollutant in its waste stream due to activities of the user. The following certification statement must be signed by an authorized representative as defined by subsection 13.13.020(d):

"Based on the inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 CFR [specify applicable national pretreatment standard part(s) as incorporated by reference in Section 63.12, Colorado Pretreatment Regulations], I certify that to the best of my knowledge and belief, there has been no increase in the level of [list pollutant(s)] in the wastewaters due to the activities at the facility since filing of the last periodic report under section 13.13.100(b).

(Ord. 1933, § 5, 2013; Ord. 1757, § 1, 2006)

13.13.150 Pretreatment.

Users shall provide wastewater pretreatment required to comply with this chapter and shall achieve compliance with all applicable National Categorical Pretreatment Standards within the time limitations as specified by the federal pretreatment regulations. Any facilities required to pretreat wastewater shall be constructed, installed, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review, and must be approved by the city before construction of the facility. The city's review and approval of such plans and operating procedures shall not relieve the user from the responsibility of modifying the facility as necessary to produce an effluent in compliance with the provisions of this chapter. A

user must obtain written approval from the city prior to the implementation of any changes in the pretreatment facilities or method of operation. (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.160 Confidential information.

Information from a user obtained from reports, questionnaires, permit applications, permits, monitoring programs and inspections shall be made available to any person in accordance with applicable legal requirements unless the user requests and the information is not subject to disclosure in accordance with applicable laws. Each page that contains information or data for which the user requests confidentiality must be plainly labeled as confidential. Each page that contains information that is claimed to be confidential must be marked confidential. The city shall notify the user of any material that the city reasonably determines is not confidential in accordance with the applicable law.

Records received by the city not subject to public disclosure may, in compliance with applicable law, be available upon written request from governmental agencies for uses required by this chapter, the CDPS permit and/or state and federal pretreatment requirements. Wastewater constituents and characteristics shall not be recognized as confidential information. (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.170 Harmful contributions.

The city manager, upon personal service of a written notice upon the user or its agent or representative may immediately suspend a user's wastewater treatment service when an actual or threatened discharge presents or may present an imminent or substantial danger to the health, safety, or welfare of persons or the environment or causes pass through or interference at the WWTF or causes the city or the WWTF to violate any condition of their CDPS permits.

Any user so ordered by the city manager to suspend wastewater treatment service shall immediately stop or eliminate the contribution. If a user fails to comply with the city manager's order,

the city manager may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the MWWS and/or WWTF or danger to any person. The city manager may reinstate the wastewater treatment service upon the user's correction and/or elimination of the non-complying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be submitted to the city manager within 15 calendar days of the date of occurrence.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.180 Notification of violation.

Whenever the city determines that any user has violated the requirements of this chapter, its WCP, or any prohibition, limitation, or requirement contained herein, the pretreatment coordinator may issue in writing to such user a written notice describing the nature of the violation. Any user so notified shall, within 30 calendar days of the date of receipt of the notice, submit a written plan to the city manager for the satisfactory correction of the violation. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the notification of violation. It shall be unlawful for a user to fail to comply with a notification of violation and submit a plan as required by this section. (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.190 Compliance orders.

Whenever the city determines that any user requires additional pretreatment facilities and/or O&M practices to comply with the requirements of this chapter, its WCP, or any state or federal pretreatment standard or requirement, the city manager may issue to such person a written compliance order containing a compliance schedule. The schedule shall contain increments of progress including dates for the commencement and completion of events related to the construction and installation of additional pretreatment facilities and/or the implementation of additional pretreatment practices to comply with applicable

pretreatment standards or requirements. It shall be unlawful for a user to fail to comply with any compliance order requirement.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.200 Significant noncompliance.

Notice of significant industrial users found to be in significant noncompliance with applicable pretreatment requirements as defined in section 13.13.020 shall be published annually in a newspaper of general circulation within the city.

(Ord. 1757, § 1, 2006)

13.13.210 Revocation of WCP/suspension of WCP/suspension of waste water service.

Any user who violates any pretreatment standard or requirement of this chapter, or applicable state and federal laws and/or regulations, may have its WCP revoked or suspended, or wastewater service suspended.

- (a) Grounds for such consequences include, but are not limited to:
 - (1) Failure of a user to report the actual wastewater constituents and characteristics of its discharge; or
 - (2) Failure of a user to report significant changes (as determined by the city) in operations, or wastewater constituents and characteristics; or
 - (3) Refusal of reasonable access to a user's premises for the purpose of inspection or monitoring; or
 - (4) Refusal of reasonable access to a user's premises for the purpose of reviewing and/or copying records; or
 - (5) Violation of any conditions of the WCP; or
 - (6) Failure to provide wastewater pretreatment facilities and/or procedures as required by the city.
- (b) The city manager may immediately suspend a user's discharge (after informal notice) whenever such suspension is necessary to stop an actual or threatened

discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons or which presents or may present an endangerment to the environment.

- (1) Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event of a user's failure to immediately comply voluntarily with the suspension order, the city manager shall take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the MWWWS, its receiving stream or endangerment to any individuals. The city manager shall allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the city manager that the period of endangerment has passed, unless the suspension proceedings set forth in section 13.13.170 are initiated against the user.
- (2) A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence to the city manager, prior to the date of any show cause or suspension hearing.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.220 Show cause hearing.

(a) Upon a determination by the city manager that probable cause for revocation and/or suspension of a user's WCP or suspension of wastewater service exists, the city manager shall order such user to show cause to the city manager why the enforcement action should not be taken. A written notice shall be provided to the user, specifying the date, time and place of a show cause hearing to be held before the city manager. The notice of the

hearing shall be served personally or by certified mail at least ten days before the hearing, or in compliance with applicable Colorado Rules of Civil Procedure. Service upon a corporation, company or entity shall be in conformance with Rule 4 of the Colorado Rules of Civil Procedure.

(b) The city manager in conducting the hearing shall:

- (1) Issue in the name of the city manager notices of hearings and subpoenas to require the attendance and testimony of witnesses and the production of evidence pertaining to any matter involved in any hearing.

(c) All testimony presented at the hearing shall be under oath and recorded. A transcript of the hearing shall be available to any person upon payment of the transcription cost.

(d) Upon the city manager's review of all evidence presented at the hearing, the city manager may:

- (1) Find that no violation has occurred;
- (2) Find that a violation has occurred and impose an administrative penalty for each such violation and/or issue an order for revocation or suspension of the WCP and/or suspension of the WCP and/or suspension of waste water service and/or the WCP; and
- (3) Issue such other and further orders and directives as are necessary and appropriate;

(e) Parties seeking appeal of the city manager's decision regarding the hearing shall do so in accordance with the municipal court judicial appeals procedure.

(Ord. 1812, § 4, 2008; Ord. 1757, § 1, 2006; Ord. 1686, § 10, 2004; Ord. 1241, § 1, 1994; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.230 Legal action.

If any person discharges sewage, industrial wastes or other wastes into the city's MWWWS in violation of the pretreatment standards or requirements of this chapter, federal or state laws, regulations, or other pretreatment standards or re-

quirements or any order of the city, or violates any other requirements of this chapter, the city may commence an action for the appropriate legal and/or equitable relief in any court of jurisdiction. The remedies provided in this chapter shall be in addition to all other remedies provided by law. (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.240 Purpose.

The purpose of this chapter and applicable sections is to provide for the city's recovery of costs from users of the MWWS and for the implementation of the program established herein. The applicable charges or fees shall be as established by the city and are separate, distinct, and in addition to any penalties under section 13.13.260. (Ord. 1933, § 1, 2013; Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.250 Charges and fees.

The city council may impose by resolution charges and fees related to the provisions of this chapter, which may include:

- (a) Fees for reimbursement of costs of establishing and operating the pretreatment program described herein; and
- (b) Fees for monitoring, inspections, and surveillance procedures; and
- (c) Fees for reviewing accidental discharge procedures and construction; and
- (d) Fees for permit applications; and
- (e) Fees related to appeals; and
- (f) Other fees as the city may deem necessary to comply with the requirements contained herein.

Such fees relate solely to the matters covered by this chapter and are separate from all other fees chargeable by the city. (Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.260 Civil or criminal penalties/costs.

Any person who violates any provision of this chapter shall for each violation be subject to a

civil penalty not to exceed \$1,000.00 or criminal penalties not to exceed \$1,000.00 or imprisonment not to exceed six months or by both such fine or imprisonment. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. In addition, the city shall be entitled to recover reasonable attorney's fees, costs and other expenses of litigation by appropriate legal action against the person who violates this chapter.

(Ord. 1757, § 1, 2006; Ord. 1251, § 2, 1994; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.270 Requests for information.

Whenever required to carry out the purpose of this chapter, including but not limited to, developing pretreatment standards or requirements, or determining whether any person is in violation of any pretreatment standards or requirements, the city manager may require a user to provide records or information within a reasonable time and/or install, use, and maintain monitoring equipment or methods to sample discharges in accordance with such methods, at such locations, at such intervals, and in such manner as the city manager shall prescribe. It shall be unlawful for any person to fail to comply with a request for information.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993)

13.13.280 Falsifying information.

It shall be unlawful for any person to knowingly make any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this chapter, or WCP, or to falsify, tamper with, or knowingly render inaccurate any monitoring device or method required under this chapter.

(Ord. 1757, § 1, 2006; Ord. 1181, 1993; Ord. 1096, 1990)

13.13.290 Metro waste water reclamation district.

Indirect contributions to the MWWS for all portions of the city which utilize the Metro Wastewater Reclamation District Wastewater Treatment Facility (WWTF) must comply with the

Metro Wastewater Reclamation District Rules and Regulations, June 9, 2006, Edition, as amended, promulgated and published by the Metro Wastewater Reclamation District, 6450 York Street, Denver, Colorado, 80229 which rules and regulations are hereby adopted by reference, as if fully set out in this codification, with the following amendments as set forth in this section.

- (a) Section 6.20.1 of Metro District Rules and Regulations should be modified to include the City of Golden as an additional notification requirement.
 - (b) Section 6.22 of Metro District Rules and Regulations should be modified to include the City of Golden as an entity to be notified in the event of a discharge of a hazardous waste to the sanitary sewer.
- (Ord. 1757, § 1, 2006)

Chapter 13.18

WATERWORKS PERMIT

13.18.010 Title—Short title.

This chapter may be cited as the "waterworks permit".
(Ord. 1151, 1992)

13.18.020 Purposes.

The purposes of these provisions are to promote the health, welfare and safety of the inhabitants of the City of Golden by maintaining and protecting the city's waterworks from damage, harm or injury and preventing the pollution of the city's water supply.
(Ord. 1151, 1992)

13.18.030 Definitions.

Unless the context otherwise requires, the following words and phrases shall have the meanings as follows:

Director means the director of the department of public works or his/her designee or representative.

Diversion or divert means removing water from its natural course or location, or controlling water in its natural course or location by means of a

ditch, canal, flume, reservoir, bypass, pipeline, conduit, well, pump, or any other structure or device.

Exigent circumstances means any situation where there is imminent danger of loss of life, harm by injury or damage to or destruction of property or any other dangerous or harmful situation regarding the public health, safety and well being.

Mining or mineral resource extraction:

- (1) *Mineral* means an inanimate constituent of the earth in a solid, liquid, or gaseous state which, when extracted from the earth, is useable in its natural form or is capable of conversion into a useable form as a metal, metallic compound, or chemical, an energy source or a raw material for manufacturing or construction material, but does not include surface or subsurface water.
- (2) *Mining and extraction* mean any removal or development of a mineral from its natural occurrence on affected land or from a water course and includes, but is not limited to, drilling, blasting, scaling, crushing, tunneling, excavating, dredging, or sluicing, and includes any tailings piles, tailing ponds, waste dumps or concentration, milling, evaporation or other on-site processing activities or any buildings, structures or machinery used in such operation. "Mining" and "extraction" does not include recreational gold panning.

Permit means any permit issued pursuant to this chapter.

Permittee means a person issued a permit.

Person means and shall include a firm, company, organization, partnership, entity, agency, corporation, association, or other organization acting as a group or unit as well as an individual. It shall also include an executor, administrator, trustee, receiver, or other representative appointed according to law. Whenever the word "person" is used in any section of this chapter prescribing a penalty or fine, as to firms, associations, and other organizations, the word shall include the partners, members or agents who are

responsible for any violation of such section hereof, and as to corporations, shall include the officers, agents, or members thereof who are responsible for any violation of this chapter. "Person" includes the singular and the plural.

Pollutant means dredged spoil, dirt, slurry, solid waste, incinerator residue, sewage, sewage sludge, garbage, trash, chemical waste, biological nutrient, biological material, radioactive material, heat, wrecked or discarded equipment, rock, sand, cellar dirt or any industrial, municipal or agricultural waste.

Pollution means the people-made, people-induced or natural alteration of the physical, chemical, biological, or radiological integrity of water.

Watercourse means any and all rivers, streams, creeks, intermittent washes, gullies, tributaries, lakes, ponds, wetlands and any beds or banks thereof or other types of natural landforms or people made wetlands, structures or devices to channel, control or retain water.

Waterworks means all components of the city's water supply system, including, but not limited to, all equipment, dams, canals, ditches, flumes, pipelines, conduits, reservoirs, drains, wells, pumps, buildings, structures, roads, watercourses and other facilities necessary for the construction, maintenance and operation of the system.

Wetlands means those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances (as defined in the "Federal Manual for Identifying and Delineating Jurisdictional Wetlands" dated January 1989), do support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetlands includes by illustration swamps, marshes, bogs and similar areas.

(Ord. 1948, § 1, 2013; Ord. 1406, § 1, 1998; Ord. 1151, 1992)

13.18.040 Jurisdiction.

Pursuant to C.R.S. 31-15-707(1)(b), the city's jurisdiction shall extend over the territory occupied by the city's waterworks and for a distance of

five miles upstream from or above and/or beyond the point(s) at which water is diverted or impounded by the city.

(Ord. 1151, 1992; Ord. 1138, 1991)

13.18.050 Map.

The city shall prepare and maintain a map known as the "waterworks permit map" designating the area(s) subject to the city's jurisdiction pursuant to this chapter. The waterworks permit map is incorporated herein by reference and shall be available for inspection by any person at the office of the director, and a copy shall be maintained in the office of the city clerk.

(Ord. 1151, 1992)

13.18.060 Interpretation and construction.

Nothing in this chapter shall infringe upon, limit or supersede the authority of another municipality, county or any other governmental entity to regulate land use matters on lands outside the corporate limits of the city that are subject to the city's jurisdiction pursuant to this chapter. It is further declared that nothing in this chapter shall infringe upon, limit or supersede the authority of any state or federal agency, municipality, county or any other governmental entity to regulate activities that are within the sole jurisdiction of that entity. Any regulations or permits issued by any state or federal agency, municipality, county or any other governmental entity concerning land use or other matters shall not infringe upon, limit, or supersede the terms and conditions of any permit validly issued pursuant to the provisions of this chapter.

(Ord. 1151, 1992)

13.18.070 Prohibited activities.

It shall be unlawful for any person to engage in any of the following activities within the area of jurisdiction as defined in this chapter that the city has determined may cause either injury, damage or harm to the city's waterworks or pollution of the city's water supply, without first obtaining a permit from the city authorizing such activity:

- (a) Excavation, dredging, filling, grading, or compaction of any topsoil, sand, rock, dirt or other material over an area in excess of one-half acre;

- (b) Any surface or subsurface mining or mineral resource extraction;
- (c) Use of any pesticide, herbicide, fungicide, rodenticide, insecticide or any other chemical for eradication or control of any plants or animals over an area in excess of one-half acre; provided that any such use shall be subject to the provisions of this chapter if it is not in compliance with all applicable rules, regulations, policies or permits regarding the application and disposal of such substances;
- (d) Removal of any vegetation or trees by any method over an area in excess of one-half acre;
- (e) Construction, maintenance and/or operation of a sewage disposal system other than for a single-family residence; provided that the sewage disposal system for the single residence is installed, operated and maintained in compliance with all applicable laws, rules, regulations or permits;
- (f) Any of the activities prohibited in this section regardless of the amount of acreage affected if such activities are located in or within 100 feet of any watercourse;
- (g) Alteration or modification of any watercourse; and
- (h) Any other activity that may cause either injury, damage or harm to the city's waterworks or pollution of the city's water supply as reasonably determined by the city;
- (i) Any other activity that may, as reasonably determined by the city, cause injury or damage to improvements within a water course, including, but not limited to, kayak structures, bank stabilization improvements, water intake structures or utility improvements;
- (j) Recreational gold panning involving the use of any chemical or pollutant or with equipment other than pans of 17 inches or less in diameter or small hand tools.

Any limitation on acreage imposed by this section includes the cumulative amount of acreage encompassed by any and all proposed activities by any person on any contiguous or noncontiguous parcels of land that are part of the same plan, project or development.

(Ord. 1948, § 2, 2013; Ord. 1406, § 2, 1998; Ord. 1151, 1992; Ord. 724, § 1(21), 1974)

13.18.080 Prospective effect.

This chapter shall not apply to any lawful use of any land, building or structure existing at the time of the adoption of this chapter. Any change or enlargement of any lawful use of any land, building or structure including any modification, alteration or expansion, except ordinary maintenance for such use, as determined by the city, is subject to the provisions of this chapter.

(Ord. 1151, 1992)

13.18.090 Permit application.

Application for a permit shall be submitted to and be on a form provided by the city clerk and shall contain the following information:

- (a) Name, address and verified signature of the applicant;
- (b) Name and address of the owner of the property on which the activity is proposed;
- (c) Verified consent of the owner of the property if different than the applicant;
- (d) The address and/or legal description of the property on which the activity is proposed;
- (e) A full and complete description of the proposed activity, including, but not limited to, the acreage of the property, the acreage affected by the proposed activity, and any activity that may result in a discharge, spill or release of any pollutant into the city's waterworks or water supply;
- (f) A map explicitly depicting the location of the property and the proposed activity;
- (g) Identification and description of all water use for the proposed activity, including,

but not limited to, all water rights owned or to be used by the applicant, amount of consumptive use and the amount and type of discharge;

- (h) Identification and description of any impact that the activity may have on the city's waterworks and on the quality of the city's water supply;
 - (i) Identification and description of all measures that shall be taken to prevent injury, damage or harm to the city's waterworks and pollution of the city's water supply; and
 - (j) Any other information required by the director to properly evaluate the application, as reasonably determined by the director.
- (Ord. 1151, 1992)

13.18.100 Permit fee.

Each application for a permit shall be accompanied by payment in full of a fee, as established by resolution of city council.
(Ord. 1151, 1992)

13.18.110 Permit duration.

A permit issued pursuant to this chapter shall be valid for two years from the date of issuance.
(Ord. 1151, 1992)

13.18.120 Permit suspension or revocation; temporary suspension.

A permit may be suspended or revoked at any time for a violation of any compliance order issued by the director or for a violation of any of the terms or conditions of the permit or the provisions of this chapter, subject to notice to the permit holder and a hearing by the city council. If exigent circumstances exist that require immediate suspension, as determined by the director, the director may immediately suspend a permit for a period not to exceed 14 days. In the case of such a summary suspension by the director, the permittee, upon written request, shall be entitled to a hearing before city council as soon as is reasonably possible.
(Ord. 1151, 1992)

13.18.130 Permit transfer.

Permits issued hereunder are to a specific user for a specific activity. No permit shall be transferred or assigned to any other person, different premises or a new, different or changed operation.
(Ord. 1151, 1992)

13.18.140 Permit review; burden; issuance or denial.

(a) Within 30 days following the filing of a completed application, which shall not be considered complete until all necessary information required by this chapter and the director is provided, the director shall review the application and classify the proposed activity according to its impact on either the city's waterworks and/or the quality of the city's water supply. In evaluating each application, the director may consider, but is not limited to, the following factors:

- (1) Nature and type of the proposed activity;
- (2) Proximity of the proposed activity to a watercourse and whether it is located within a floodway or floodway fringe, as such terms are defined in chapter 19.08 of the Golden Municipal Code;
- (3) Nature and type of the soils, rock or other material;
- (4) Nature and type of vegetation;
- (5) Slope and stability of the land;
- (6) Any increase or effect in or on the fire hazard;
- (7) Nature and type of effluents from the proposed activity discharged either into a watercourse or underground;
- (8) Nature, type and amount of each regularly processed raw material;
- (9) Nature, type and amount of each regularly produced product;
- (10) Nature and type of any and all erosion control measures;
- (11) Amount and type of mechanized or motorized vehicles associated with the activity;
- (12) Any water rights obtained, needed, necessary or related to the proposed activity;

(13) Any permits or other governmental or private approval required to proceed with the proposed activity; and/or

(14) Cumulative effect of the proposed activity with other activities.

(b) The burden shall be upon the applicant to demonstrate, by a preponderance of the evidence and in compliance with the provisions of this chapter, that the activity will not harm, damage or injure the city's waterworks or pollute the city's water supply.

(c) If the director determines that the proposed activity will not have any harmful impact on the city's waterworks or water supply, then the director shall recommend to city council that a permit be issued, and whether any conditions should apply. City council shall consider such recommendation and may issue the permit, with or without conditions, upon a determination that the requirements of this chapter have been satisfied. If the director determines that the applicant has not met its burden with respect to the impact on either the city's waterworks and/or the city's water supply, then the director shall identify such negative impact(s) and shall state the reasons for recommending denial of a permit and city council shall deny the permit.

(d) Any applicant whose application is denied, or who is not satisfied with any conditions of approval, shall be entitled to a hearing as provided in section 13.18.190.
(Ord. 1151, 1992)

13.18.150 Permit terms and conditions.

The city council may prescribe any terms and conditions in the issuance of any permit in accordance with any provisions of this chapter and as the city council deems necessary to prevent harm, damage or injury to the city's waterworks and/or the pollution of the city's water supply. The city council may also make any permit conditional upon the applicant obtaining any and all necessary permits and other governmental or private approvals or obtaining financial security for performances or requirements of the permit.
(Ord. 1151, 1992)

13.18.160 Performance bond.

The city council may require as a condition of any permit issued hereunder that the permittee obtain a performance bond in an amount necessary to ensure completion of all measures required to prevent both injury to the city's waterworks and the pollution of the city's water supply.

The city council may also require as a part of the performance bond an additional amount necessary to clean up or mitigate the effects of any spill, release or discharge by the permittee. This section shall not apply to or have any effect upon the provisions of C.R.S. 34-32-109(6).
(Ord. 1151, 1992)

13.18.170 Containment facilities; reporting requirements.

Each permittee shall provide and maintain at its expense any facilities necessary to prevent and contain any spill, release or discharge of any pollutant that may cause damage, harm or injury to the city's waterworks or pollution of the city's water supply. Any such spill, release or discharge shall be reported immediately to the director and to all other persons or entities which may be affected thereby. The permittee shall inform the director as to the location, the nature and type of the pollutant, concentration, volume and any measures taken to contain or remediate the spill, release or discharge and to assure that such discharge does not occur again. Within five days of such discharge, the permittee shall submit a written report to the director explaining the spill, release or discharge including a description of measures which have and shall be taken to prevent recurrence.
(Ord. 1151, 1992)

13.18.180 Site inspections.

Whenever necessary to assure compliance with any terms or conditions of the permit or the provisions of this chapter, the director has the right to enter the property to make an inspection. Refusal by the permittee of the director's right to enter and inspect the property shall constitute sufficient grounds to suspend or revoke the permit by the director. Upon such refusal, or if exigent circumstances are present that require

immediate entry, the director may obtain a search warrant from a court of competent jurisdiction, including the municipal court of the city, entitling the director to enter and inspect the property. Upon obtaining a search warrant, or if exigent circumstances exist, the director may use such reasonable force as is necessary to enter and inspect the property.
(Ord. 1151, 1992)

13.18.190 Hearings by the city council on applications.

(a) Any applicant whose application for a permit is denied, or who is otherwise aggrieved by any conditions of approval may, within 14 days of the city council's action on the permit, file with the city clerk a written request for a public hearing before city council on the application.

(b) The council shall schedule a hearing and publish notice of a hearing at least 14 days prior to the date set for hearing. At such hearing, the applicant (and/or his/her attorney) and the director (and/or city attorney or special counsel) may make presentations and/or present information and evidence. All interested parties may also testify or present information and evidence. The applicant shall have the burden of establishing by a preponderance of the evidence that the proposed activity will not injure, harm or damage the city's waterworks or pollute the city's water supply. The city council shall, within 30 days of the close of the hearing issue a decision on the permit, including findings related to such decision. The council's decision shall be the final action by the city.
(Ord. 1151, 1992)

13.18.200 Hearings.

Testimony, evidence and information presented at all hearings held pursuant to this chapter shall be open to the public and quasi-judicial in form, under oath and recorded.
(Ord. 1151, 1992)

13.18.210 Compliance order.

Whenever the director determines that any permittee has violated or is violating any of the

terms or conditions of a permit or the provisions of this chapter, the director may issue an order requiring the permittee to comply within a specified period of time. Any violation of the compliance order by the permittee shall be cause for the suspension or revocation of the permit.
(Ord. 1151, 1992)

13.18.220 Legal action.

If any person violates the provisions of this chapter, in addition to utilization of the enforcement and penalty powers of the city, the city may commence an action for appropriate legal or equitable relief in a court of competent jurisdiction, including the municipal court. In addition to the penalties provided herein, the city shall be entitled to reasonable expert fees and attorneys' fees and costs of litigation.
(Ord. 1151, 1992)

13.18.230 Judicial review of city council's decision.

An applicant or permittee may appeal the final decision of city council to the municipal court in accordance with the judicial appeals procedure.
(Ord. 1151, 1992; Ord. 1151, 1992)

Chapter 13.20 FIRE HYDRANTS

13.20.010 Reserved.

Editor's note—Sec. 5 of Ord. No. 2079, adopted July 12, 2018, repealed § 13.20.010, Inspecting and flushing fire hydrants, having derived from Ord. 724, 1975.

13.20.020 Reserved.

Editor's note—Sec. 5 of Ord. No. 2079, adopted July 12, 2018, repealed § 13.20.020, use of fire hydrants, having derived from Ord. No. 724, 1975.

Chapter 13.25

DRAINAGE UTILITY ENTERPRISE

13.25.010 Definitions.

For the purposes of this chapter, unless the context requires otherwise:

Drainage utility or stormwater utility means all facilities used for collecting and conducting drainage and/or stormwater to, through and from drainage areas to the points of final outlet including, but not limited to, any and all of the following: conduits and appurtenant features, canals, ditches, streams, gulches, gullies, flumes, culverts, bridges, streets, curbs, gutters, works and pumping stations.

Enterprise means a city-owned drainage/stormwater utility activity or business which is authorized to issue its own revenue bonds and which receives less than ten percent of its annual revenues in grants from all state and local governments combined.

Grant means money or cash contributed to an enterprise by the State of Colorado or any Colorado local government which is not required to be repaid. "Grant" does not include public funds paid to an enterprise in consideration for the provision of any goods, services, facilities, rights or interests by the enterprise to the State of Colorado or any Colorado local government, nor does it include money repaid to an enterprise in consideration for any loan made by the enterprise to the State of Colorado or any Colorado local government. "Grant" does not include money derived by an enterprise from the federal government, whether or not the State of Colorado or any Colorado local government acts as a conduit for such money. The provisions of C.R.S. 37-45.1-102(2), also apply to the definition of grant. (Ord. 1381, § 1, 1997)

13.25.020 Establishment of drainage utility enterprise.

There is hereby established a drainage/stormwater utility enterprise of the City of Golden authorized to implement the provisions of this chapter and perform all other functions or duties

as authorized by law. Such enterprise shall be wholly owned by the city and operated in accordance with all applicable laws. (Ord. 1381, § 1, 1997)

13.25.030 Establishment of a drainage utility board.

City council shall serve as the governing board of the drainage utility enterprise. The mayor shall serve as chair and the mayor pro-tem shall serve as vice-chair of the board. The city clerk shall serve as secretary of the board. City council may conduct all business and actions of the enterprise at city council meetings in accordance with city council meeting procedures, and the record of the enterprise's proceedings may be incorporated into such meeting minutes. (Ord. No. 2177, § 3, 4-12-2022; Ord. 1381, § 1, 1997)

13.25.040 Appointment of director and responsibilities.

The city manager shall serve as the enterprise's director and be responsible for the operation and maintenance of such enterprise under the direction of the enterprise board. The manager may designate any person to assist with such duties under the direction of the enterprise board. (Ord. 1381, § 1, 1997)

13.25.050 Drainage utility board—Duties and powers.

The enterprise board's powers and duties shall include, but not be limited to:

- (a) Recommendation of rates, fees and charges for enterprise services and facilities, which rates, fees and charges shall be established by ordinance of city council.
- (b) Incur debt.
- (c) Payment of debt service requirements and financial obligations.
- (d) Preparation of an annual budget and development and implementation of plans for drainage utility improvements.

- (e) Contract with individuals or firms for professional services to include, but not be limited to, construction, engineering, legal or financial.
 - (f) Exercise all other powers and duties authorized by applicable laws.
- (Ord. 1381, § 1, 1997; Ord. No. 2119, § 1, 12-5-2019)

13.25.060 Drainage utility enterprise debt issuance.

(a) The drainage utility enterprise shall have the authority to issue bonds, notes or incur other financial obligations payable from the revenues derived or to be derived from the functions, services, benefits or facilities of the drainage utility enterprise or from any available funds of the enterprise, and as provided in the city Charter. Such bonds or other obligations shall be authorized by ordinance or resolution of the enterprise, or the city council, adopted in the same manner as ordinances and resolutions of the city.

(b) The terms, conditions and details of said bonds, or other financial obligations, and the procedures related thereto, shall be in the ordinance or resolution authorizing said bonds or other obligations and shall, as nearly as may be practicable, be consistent with those provided in the city Charter and in Part 4 of Article 35 of Title 31, Colorado Revised Statutes, relating to water utility revenue bonds; except that the purposes for which the same may be issued shall not be so limited as said statutes provide, and except that said bonds, or other obligations, may be sold at public or private sale. Each bond, or other obligation issued under this subsection shall recite in substance that said bond, or other obligation, including the interest hereon, is payable from the revenues of the enterprise and other available funds of the enterprise pledged for the payment thereof, and as provided in the city Charter. Notwithstanding any other provision of law to the contrary, such bonds or other obligations may be issued to mature at such times not beyond 40 years from their respective issue dates, shall bear interest at such rates, and shall be sold at, above, or below the principal amount thereof, all as shall be determined by the enterprise. Notwithstanding anything in this section to the contrary, in the case of short-term notes or other obligations maturing not later than one year after the date of issuance thereof, the enterprise may fix principal amounts, maturity dates, interest rates and purchase prices of any particular issue of such short-term notes or obligations, subject to such limitations as to maximum term, maximum principal amount outstanding and maximum net effective interest

rates as the board shall preserve by ordinance or resolution. Refunding bonds of the enterprise shall be issued as provided in the city Charter and/or Part 1 of Article 56 of Title 11, Colorado Revised Statutes, as applicable. The powers provided in this section to issue bonds, or other obligations, are in addition and supplemental to, and not in substitution for, the powers conferred by any other law, including, without limitation, the city Charter. The powers provided in this section shall not modify, limit or affect the powers conferred by any other law either directly or indirectly. Bonds, notes or other obligations may be issued pursuant to this section without regard to the provisions of any other law.

(c) Any pledge of revenue or other funds of this enterprise shall be subject to any limitation on future pledges thereof contained in any ordinance or resolution of the enterprise, or of the city, authorizing the issuance of any outstanding bonds or other obligations of the enterprise, or the city, payable from the same source or sources. Bonds or other obligations issued separately by the city and the enterprise, but secured by the same revenues or other funds, shall be treated as having the same obligor and as being payable in whole or in part from the same source or sources.

(Ord. 1381, § 1, 1997)

13.25.070 Drainage utility fund established.

(a) There is hereby established a separate drainage utility fund to be segregated from all other city funds in which shall be deposited all revenues from all charges, fees, rates and other sources.

(b) The drainage utility enterprise may pledge all or any portion of the funds, including revenues anticipated to be collected, to the payment of principal, interest, premium, if any, and reserves for revenue bonds, or any other obligations lawfully issued or otherwise contracted for by the enterprise, for the payment or other financing of costs of the drainage utility system, or for the purpose of refunding any obligations issued or otherwise contracted for such purposes.

(c) The drainage utility enterprise may invest such funds as permitted by law. The enterprise may also establish reserve funds to finance the capital costs of replacement of drainage facilities.

(Ord. 1381, § 1, 1997)

Chapter 13.30

STORMWATER QUALITY

13.30.010 Interpretation.

The following principles shall be used in interpreting this chapter:

- (1) The provisions of this chapter shall be regarded as the minimum requirements for the protection of the public health, safety, general welfare, and environment. This chapter shall therefore be regarded as remedial and shall be liberally construed to further its underlying purpose.
- (2) This chapter is not intended to interfere or conflict with, abrogate, or annul any other regulation, ordinance, statute, or provision of law.
- (3) Whenever a provision of this chapter and a provision of any other law, ordinance, resolution, rule, or regulation of any kind, including any other provision of this chapter, contains any restrictions covering the same subject matter, the more restrictive shall govern.
- (4) The foregoing principles notwithstanding, the city council directs those city officials responsible for enforcement of this chapter to utilize a reasonable common sense approach in the interpretation and application of the specific provisions of this chapter. To this end, city officials charged with the responsibility for enforcement and administration of provisions of this chapter shall be entitled to utilize discretion in waiving specific application requirements, provided that such discretion shall be exercised in a manner to preserve the purposes and intention of this chapter and to not

jeopardize the health, safety, or general welfare of the public or the environment. When exercising discretion to waive or modify any specific application requirements, said city official shall consider:

- a. The scope and nature of the proposed project.
 - b. The impact of the project on the properties in the general vicinity of the project.
 - c. The impact of the project on municipal facilities and services, including without limitation, streets, water, sewer, drainage, police, and fire protection services.
 - d. Whether the information contained in a requirement sought to be waived is reasonable and readily available from other materials submitted in conjunction with the application.
- (5) Strict enforcement of each provision of this chapter shall not be required, and the city official charged with enforcement of this chapter shall be entitled to utilize the legal principle of prosecutorial discretion.

(Ord. 1498, § 1, 2000)

13.30.020 Intent.

The intent of this chapter is to enhance the quality of water in the city's drainage ways and subsequent receiving waters by establishing requirements for stormwater quality permits for construction and development and by defining certain other activities as nuisances.

(Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.030 Liability.

Any person who undertakes or causes to be undertaken any activity which involves disturbance of the land's surface shall ensure that soil erosion, sedimentation, increased pollutant loads and changed water flow characteristics resulting from the activity are controlled so as to minimize pollution of receiving waters. The requirements of this chapter are minimum standards and a person's compliance

with the same shall not relieve such person from the duty of enacting all measures necessary to minimize pollution of receiving waters. (Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.040 Definitions.

Unless the context specifically indicates otherwise, the following terms and phrases, as used in this chapter, shall have the meanings designated below:

City inspector. The person or person(s) authorized by the public works director to inspect a site for the purpose of determining compliance with the provisions of this chapter.

Common plan of development or sale. Common plan of development or sale means a contiguous area where multiple separate and distinct construction activities may be taking place at different times, on different schedules, but remain related by a common contract or plan. Contiguous means construction activities located in close proximity to each other (within ¼ mile).

Disturbed area. That area of the land's surface disturbed by any work or activity upon the property by means including, but not limited to, grading; excavating; stockpiling soil, fill, or other materials; clearing; vegetation removal; removal or deposit of any rock, soil, or other materials; or other activities which expose soil. Disturbed area does not include the tillage of land that is zoned agricultural or the tillage of a parcel zoned PUD (planned unit development) that permits agricultural uses. (Ord. No. 2079, § 6, 7-12-2018; Ord. 1703, § 1, 2005; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.050 City of Golden's Stormwater Quality Control Design Guidance Manual.

The City of Golden's Stormwater Standards Manual, as amended, shall be used as a reference source by city staff when reviewing stormwater quality control permit applications. Other sources, including the Urban Drainage and Flood

Control District's Drainage Criteria Manual, Volume 3, may also be used as reference materials.

(Ord. No. 2079, § 7, 7-12-2018; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.060 Stormwater quality permits.

(a) *Permit required.* It shall be unlawful for any person to conduct any activity resulting in, or contributing to, a total disturbed area greater than one-half acre, without first obtaining a stormwater quality permit from the city. For the purpose of calculating whether the one-half acre threshold is met, all disturbed areas on all lots or parcels for which a certificate of occupancy has not been issued, and which are a part of a common plan of development or sale, shall be aggregated. The city may also require a stormwater quality permit regardless of the size of the total disturbed area in conjunction with approval of a final subdivision plat, special use permit, or site development plan

(b) *Permit application.* Persons required to obtain a stormwater quality permit shall complete and file with the city an application on a form prescribed by the city. In support of the application, the applicant shall submit all information required on the city's form and any additional information requested by the city. The application shall be signed by a person responsible for compliance with the permit throughout the permit's validity.

(c) *Permit issuance/denial.* The city shall within ten working days of its receipt of a completed stormwater quality permit application either issue or deny a permit. If a permit is denied, the applicant shall be notified of such in writing. The notification shall set forth the grounds for denial and inform the applicant of what corrective actions must be taken to obtain a permit. An applicant may appeal the denial in writing to the city manager no later than 30 calendar days from the date of issuance of denial. The appeal must set forth the grounds for the appeal and include any documents in support of the applicant's appeal. The city manager shall within 30 calendar days of receipt of an appeal rule on the matter based solely upon review of

the application, denial, appeal, and all documents related thereto. The parties shall receive written notice of the city manager's decision.

(d) *Permit requirements.* Stormwater quality permits shall contain, in part, the following:

- (1) A statement that the permit shall remain in effect until final stabilization is achieved and approved by the city;
- (2) Requirements for the installation, operation, and maintenance of stormwater quality control measures, including schedules where appropriate;
- (3) Identification of the person(s) responsible for compliance with the permit, including such person's address and telephone number;
- (4) Other conditions as deemed appropriate by the city to insure compliance with this chapter.

(Ord. No. 2079, § 8, 7-12-2018; Ord. 1703, § 2, 2005; Ord. 1498, § 1, 2000)

13.30.070 Remedies for noncompliance.

(a) *Compliance orders.* Whenever the city determines that any activity is occurring which is not in compliance with a stormwater quality permit and/or the requirements of this chapter, the city may issue a written compliance order to such person containing a compliance schedule. The schedule shall contain specific actions the person must complete, including dates for the completion of the actions. It shall be unlawful for any person to fail to comply with any compliance order requirement.

(b) *Suspension and revocation of permit.* The city may suspend or revoke a stormwater quality permit for violation of any provision of this chapter, violation of the permit, and/or misrepresentations by the permittee or the permittee's agents, employees, or independent contractors.

(c) *Stop work orders.* Whenever the city determines that any activity is occurring which is not in compliance with an approved permit and/or the requirements of this chapter, the city can order such activity stopped upon service of

written notice upon a person responsible for or conducting such activity. Such person shall immediately stop all activity until authorized in writing by the city to proceed. Service shall be by United States Postal Service mail or hand delivery. If a responsible person cannot be located, the notice to stop shall be posted in a conspicuous place upon the area where the activity is occurring. The notice shall state the nature of the violation. The notice shall not be removed until the violation has been cured or authorization to remove the notice has been issued by the city. It shall be unlawful for any person to fail to comply with a stop work order.

(d) *Civil proceedings.* In case of any violation of any provision of this chapter, or any amendment thereof, the city may, at its discretion, initiate civil proceedings, including administrative citations pursuant to chapter 8.25 of the Code, injunction, mandamus, abatement, declaratory judgment or other appropriate actions or proceedings, to prevent, enjoin, abate, remove, or otherwise correct any such unlawful condition. Civil remedies provided for under this section are not exclusive and shall not preclude prosecution for criminal violations under the provisions of this chapter.

(Ord. No. 2128, § 1, 2-13-2020; Ord. No. 2079, § 9, 7-12-2018; Ord. 1498, § 1, 2000)

13.30.080 Security requirement.

As a condition for the issuance of a stormwater quality permit, applicants shall be required to provide security in the form of cash escrow or an irrevocable letter of credit. The amount of the security shall be based upon the estimated cost of the work required to ensure compliance with the permit's terms and conditions and requirements of this chapter. If the city is required to call upon the escrow or letter of credit the permittee shall be required to pay the city a 15-percent administrative fee.

(Ord. No. 2079, § 10, 7-12-2018; Ord. 1498, § 1, 2000)

13.30.090 Release of security.

The security, with interest at the rate currently earned by the city, less any deductions, shall be released upon the city's determination

that the permittee has successfully completed all required work and met all other requirements of this chapter.

(Ord. 1498, § 1, 2000)

13.30.095 Assessment.

If the permittee does not successfully complete all required work or violates any requirement of the permit or this chapter, the city may take corrective measures and charge the cost of such to the permittee. Such costs shall include the actual cost of any work deemed necessary by the city plus reasonable administrative and inspection costs and penalties pursuant to the city's stormwater quality enforcement policy. If the total of such costs exceeds the security, the permittee shall be responsible for payment of the remaining balance within 30 calendar days of receipt of an accounting of such from the city. Failure to pay the balance within the 30 days shall cause the balance to become a lien with penalty and interest upon the real property. The penalty and interest shall be assessed at a rate equivalent to that which is assessed by state law upon delinquent general property taxes. Such lien shall have priority over all other liens except general taxes and shall, upon the city's certification and filing with Jefferson County, be collected and paid to the city by the county treasurer in the same manner as delinquent general property taxes.

(Ord. 1704, § 5, 2005; Ord. 1498, § 1, 2000)

13.30.100 Establishment of fees.

City council shall, by resolution, establish all fees and charges deemed necessary by the city to implement the requirements of this chapter.

(Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.110 Maintenance requirements.

The property owner shall be responsible for the maintenance of all stormwater collection and conveyance systems and quality control measures enacted pursuant to this chapter. All temporary quality control measures shall be removed after work on the site has been completed and the measures are no longer needed. Should any property owner fail to adequately maintain the

stormwater collection and conveyance systems and quality control measures or remove the temporary quality control measures as required, the city may, after notifying the owner of the required maintenance and/or removal and the owner failing to perform such maintenance and/or removal, enter the affected property and perform or cause to be performed the required work and assess the charge for such work against the property owner, in accordance with the procedure set forth in this chapter regarding the assessment of costs.

(Ord. No. 2079, § 11, 7-12-2018; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.120 Inspection.

The requirements of this chapter shall be enforced by the city engineer and/or the city inspector. If the city engineer or the city inspector determines that eroded soils, construction related waste or other prohibited materials are leaving a disturbed area, such person may, in writing, direct the owner or such owner's agents or representatives on the site to install any control measures that are deemed necessary to minimize eroded soils, construction related waste or other prohibited materials from migrating off-site, including the issuance of stop work orders and/or suspension or revocation of any permit. It shall be unlawful for any owner or such owner's agents or representatives to fail to take all necessary measures to comply with such order and take all measures necessary to prevent eroded soils, construction related waste or other prohibited materials from migrating off-site.

(Ord. No. 2079, § 12, 7-12-2018; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.130 Right of entry.

(a) *Right of entry generally.* Whenever necessary to make an inspection to enforce this chapter, or whenever a police or code enforcement officer, or city inspector has probable cause to believe there exists upon any premises any condition which constitutes a violation of the provisions of this chapter such officer/inspector shall first present proper credentials and request entry. If entry is refused, the officer/inspector shall give the responsible party, or if the responsible party

cannot be located after a reasonable effort the officer shall post upon a conspicuous place upon the premises, a written notice of intent to inspect not sooner than 24 hours after the time specified in the notice. The notice shall state that the responsible party has the right to refuse entry and that in the event such entry is refused, inspection may be made only upon issuance of an administrative warrant by a municipal judge of the city, or by a judge of any other court having jurisdiction.

(b) *Search warrants.* A police or code enforcement officer or city inspector may appear before the municipal judge and upon a showing of probable cause shall request an administrative warrant entitling such officer to enter upon the premises, using such reasonable force as may be necessary to gain entry. The officer or inspector applying for such warrant shall not be required to demonstrate specific knowledge of the condition of the particular structure or premises at issue in order to obtain a warrant, but must show some factual or practical circumstances that would cause an ordinary prudent person to believe that entry to the premises has been denied and that there exists a violation of the requirements of this chapter upon the premises.

(c) *Emergencies.* Whenever an emergency situation exists in relation to the enforcement of any of the provisions of this chapter, a police or code enforcement officer may enter upon any premises, using such reasonable force as may be necessary. An emergency situation includes any situation of imminent danger of loss of, or injury or damage to, life, limb, property or threat to public safety. It is unlawful for any owner or occupant of the building or premises to deny entry to any officer or to resist reasonable force used by any officer acting pursuant to this subsection.
(Ord. No. 2079, § 14, 7-12-2018; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

13.30.140 Nuisance provisions.

It is unlawful and constitutes a nuisance for any person to discharge or cause to be discharged or spilled any substance other than naturally occurring stormwater runoff into the city's storm drainage system, except for: landscape irriga-

tion, lawn watering, diverted stream flows, irrigation return flow, rising groundwaters, uncontaminated groundwater infiltration, uncontaminated pumped ground water, springs, flows from riparian habitats and wetlands, water line flushing and discharges from potable water in accordance with CDPHE LRDG: Potable water, foundation drains, air conditioning condensation, water from crawl space pumps, footing drains, individual residential car washing, dechlorinated swimming pool discharges in accordance with CDPHE LRDG: Swimming pools, water incidental to street sweeping (including associated sidewalks and medians) and that is not associated with construction, dye testing in accordance with manufacturer's recommendations, stormwater runoff with incidental pollutants, discharges resulting from emergency firefighting activities, discharges authorized by a CDPS or NPDES permit, agricultural stormwater runoff, discharges that are in accordance with the division's low risk policy guidance documents or other division policies and guidance documents where the division has stated that it will not pursue permit coverage or enforcement for specified point source discharges, and other discharges approved by the division in accordance with MS4 Phase II Stormwater Permit Part I.E.2.a.v(Y). Nothing contained herein shall be construed to relieve any person discharging or causing to be discharged water into the storm drainage system from any liability for damage caused by the volume or quality of water discharged.

(Ord. No. 2079, § 14, 7-12-2018; Ord. 1498, § 1, 2000; Ord. 1235, § 2, 1994)

Chapter 13.35 DRAINAGE UTILITY FEES

13.35.010 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Director of public works means the director of public works or the director's designee.

Finance director means the finance director or the director's designee.
(Ord. 1381, § 2, 1997)

13.35.020 Fees established/developed land.

There is hereby imposed on each and every improved lot and parcel of land within the city a monthly usage fee for drainage services and facilities. For purposes of this section, "improved lot and parcel of land" shall mean those properties which contain impervious improvements, such as, by illustration only, driveways, parking lots, residences, buildings and structures. This fee shall be used to fund the operation, maintenance, construction, improvement and replacement of drainage utility facilities.
(Ord. 1381, § 2, 1997)

13.35.030 Fee imposition/appeal.

The amount of the fee shall be established by ordinance of city council, as provided in the council ordinance adopting same.

- (a) Any property owner who disputes the amount of the fee assessed pursuant to this section shall petition the director of public works for a hearing on the assessment no later than 20 days after having been initially billed for such assessment. The director of public works may designate a representative of the city as the hearing officer.
- (b) Such petition shall be in writing and any evidence submitted shall be under oath or affirmation under penalty of perjury. The hearing shall take place not less than 30 days from the date of submission of the petition to the director of public works. The hearing shall be held in the offices of the city or at such other reasonable place as the director of public works may designate. Notice of and the procedures to be followed at such hearing shall be in accordance with rules and regulations promulgated by the director public works and the city's administrative hearing procedure, chapter 2.35 of the Municipal Code.

(Ord. 1381, § 2, 1997)

13.35.040 Payment of drainage utility fees.

(a) Drainage utility charges shall be billed to the customer by the tenth day of the month following the close of a billing cycle. The obligation to pay such bill shall not be affected by the failure of the owner, occupant or customer to receive a statement of services.

(b) Full payment of drainage utility fees shall be due on the last day of the month which immediately follows the last day of the billing cycle. Drainage utility fees not paid by the due date shall be considered delinquent. A delinquent charge as set by ordinance of city council shall be assessed upon drainage utility fees not paid in full by 5:00 p.m. on the third business day following the due date.

(c) Water service is subject to termination when drainage utility fees remain delinquent for more than 15 days.

(d) An additional delinquent charge, as determined by ordinance of city council, shall be assessed on the date that water service is subject to termination for non-payment.
(Ord. 1381, § 2, 1997)

13.35.050 Termination of water service.

In addition to the other remedies specified herein or otherwise permitted by law, the city may, in accordance with the procedure set forth in section 13.08.080 of the Code, terminate water service to any building, improvement, facility, land, real property, lot or parcel for which the drainage utility fee is not paid. Reinstatement of service shall occur upon payment of all delinquent charges and a reinstatement fee as set by ordinance of city council.
(Ord. 1381, § 2, 1997)

13.35.060 Lien declared.

(a) The city council hereby finds and determines that it is the policy of the city that all drainage facilities supplied and furnished by the city shall be deemed to be supplied and furnished to the real property so served without regard to the actual person, business, organization or entity billed for storm drainage services.

(b) There is hereby declared to be a lien on the real property so served in the amount of such unpaid drainage utility fees, together with penalty and interest thereon. Such penalty and interest shall be assessed at a rate equivalent to that which is assessed upon delinquent general property taxes under state law.

(c) Such lien shall have priority over all other liens except general taxes and shall, upon the finance director's certification and filing with Jefferson County, be collected and paid to the city by the county treasurer in the same manner as delinquent general property taxes.

(d) The provisions of this section for the collection of delinquent monthly usage fees shall be in addition to any other lawful remedies for the collection of such fees.

(Ord. 1704, § 6, 2005; Ord. 1381, § 2, 1997)

Chapter 13.40

CROSS-CONNECTION CONTROL PROGRAM

13.40.010 Legislative intent.

It is the intent of the city council to protect the city's potable water distribution system from contamination or pollution by backflow from an owner's internal distribution system or private water system, and to provide for the maintenance of a continuing program of cross-connection control, which will systematically prevent the contamination or pollution of the city's potable water distribution system.

(Ord. No. 2079, § 15, 7-12-2018; Ord. 1702, 2005)

13.40.030 Authority.

In addition to the city's home rule powers, the authority to implement and maintain controls and regulations concerning cross-connections is contained in the following legislation and regulations:

- (a) Colorado Department of Health Law Title 25-1-114, 25-1-114.1, Colorado Revised Statute (C.R.S).

- (b) Colorado Primary Drinking Water Regulations, Code of Colorado Regulations (5 CCR 1002-11).

- (c) Title 15, Buildings and Construction, of the Code.

- (d) Title 16, Fire, of the Code.

(Ord. No. 2079, § 16, 7-12-2018; Ord. 1702, 2005)

13.40.040 Responsibility.

(a) The director of public works is delegated the responsibility for implementing and enforcing a cross-connection control program in accordance with this chapter. If the director of public works determines that a backflow prevention assembly is required at the city water service connection to any owner's premises for the protection of the city's potable water distribution system, the director of public works shall give notice in writing to the owner to install an approved backflow prevention assembly at each service connection to the premises. The owner shall, at the owner's expense, install and maintain an approved backflow prevention assembly.

(b) No provision of this chapter exempts a property owner from the cross-connection control requirements for water distribution systems as otherwise contained in the Code.

(c) Residential dwelling units are exempt from the requirements of this chapter.

(Ord. No. 2079, § 17, 7-12-2018; Ord. 1702, 2005)

13.40.050 Definitions.

When not clearly otherwise indicated by the context, the following words and phrases in this chapter have the following meanings.

Approved means accepted by the city's public works department as meeting the applicable specifications set forth in this chapter, or as suitable for the proposed use.

Certified cross-connection control technician means any person certified to test backflow prevention assemblies as defined in the Colorado Primary Drinking Water Regulations (5 CCR 1002-11).

Containment means the control of cross-connections within a property owner's plumbing system by the installation of approved backflow prevention assemblies or methods on the property owner's service line after the meter and before any branches.

Director of public works means the person appointed by the city manager to be in charge of the department of public works and who also serves as superintendent of the water and sewer division and who is charged with certain duties and responsibilities as set forth in this chapter or the director of public works authorized designee.

Hazardous connections means any potential or actual cross-connection that poses a pollution or health hazard as defined in the Colorado Cross-Connection Control Manual to the city's potable water distribution system.

Isolation means the control of cross-connections within the plumbing system of a property owner by isolating individual cross-connections at or near the point of potential contamination or pollution with approved backflow prevention assemblies or methods.
(Ord. No. 2079, § 19, 7-12-2018; Ord. 1702, 2005)

13.40.060 Water system.

The city's potable water distribution system consists of the source and distribution facilities of the water system to the point of the property owner's system. The source includes all components of the facilities utilized in the production, treatment, storage, and delivery of water to the distribution system. The system includes the network of conduits used for the delivery of water from the source to the water service connection.
(Ord. 1702, 2005)

13.40.070 Plan approval.

(a) All building plans involving water/waste water service, plumbing plans for additions or alterations to existing plumbing systems, and/or irrigation system installation submitted to the city's planning and building department shall be

reviewed by the city's public works department and must be approved prior to the issuance of a building permit.

(b) Submitted plans must show:

- (1) The service address and/or legal description of property being served.
- (2) Water service type, size and location.
- (3) Meter size and location.
- (4) Backflow prevention assembly size, type and location.
- (5) Fire sprinkler systems service line, size and type of backflow prevention assembly.
- (6) Types of water use occurring at the property.

(Ord. No. 2079, § 19, 7-12-2018; Ord. 1702, 2005)

13.40.080. Installation.

All approved backflow prevention assemblies used to comply with this chapter shall be installed:

- (a) At the owner's expense; and
- (b) In accordance with the City of Golden Water and Sanitary Sewer Specifications; and
- (c) In accordance with Title 15 of the Code (Building and Construction) and Title 16 of the Code (Fire).

(Ord. No. 2079, § 20, 7-12-2018; Ord. 1702, 2005)

13.40.090 Standards.

(a) Backflow prevention assemblies shall adhere to the following standards:

- (1) Any backflow prevention assembly required herein shall be of a model and size approved by the city's public works department.
- (2) Backflow prevention assemblies currently installed which are not compliant shall be replaced with approved assemblies properly installed.
- (3) Backflow prevention assemblies currently installed that are not compliant

shall be replaced with approved backflow prevention assemblies within 120 days of discovery by the user, a certified technician, or the city, unless the assembly fails an annual operational test. If the assembly fails any such test, it shall be replaced within ten working days with an approved backflow prevention assembly.

- (4) A property owner may, upon the prior written approval of the director of public works, install isolation assemblies in lieu of containment assemblies provided however that all isolation assemblies shall be in compliance and subject to all requirements for containment assemblies as set forth in this chapter.

(b) Any mobile unit using water from a city hydrant shall employ either an approved reduced pressure principle backflow prevention assembly subject to the same requirements for a containment assembly as set forth in this chapter or an approved airgap separation. Air gaps shall require at least one inspection annually by the city for verification of air gap requirements. Firefighting apparatus used or approved by the city's fire department is exempt from the requirements of this subsection.

(Ord. No. 2079, § 21, 7-12-2018; Ord. 1702, 2005)

13.40.100 Inspections, testing, and repair.

It is the responsibility of the property owner to have operational tests made on the backflow prevention assembly upon installation and at least annually thereafter. These tests shall be made at the expense of the owner and must be performed by a certified cross-connection control technician. A backflow prevention assembly shall be repaired or replaced at the expense of the owner, within ten working days, whenever an assembly is found to be defective.

- (a) Where the director of public works deems necessary, the director may require operational tests at more frequent intervals. The cost for any test shall be

at the property owner's expense. All tests shall be performed by a certified cross-connection control technician.

- (b) The assembly shall be repaired or replaced at the expense of the property owner whenever the assembly is found to be defective. Records of all tests, repairs or replacement shall be kept by the certified cross-connection control technician and the property owner, and a copy of all such records shall be sent to the city's public works department within five working days of performance of such work, in the manner as prescribed in this chapter.
- (c) All testing gauges shall be tested and calibrated for accuracy yearly, or more often in the event of questionable readings.
- (d) The director of public works retains the right, at any time, to test or inspect the installation and operation of any containment or isolation assembly, or any device, including air gaps, used for compliance with this chapter.
- (e) Backflow prevention assembly installations shall be inspected an approved for use by the city's public works department prior to the furnishing of water service. Inspections must be scheduled at least 24 hours in advance and a copy of the operational test must be available for the inspection.
- (f) The city may conduct surveys of water supply system users to identify hazardous service connections or cross-connections. Surveys may consist of written instruments, verbal interviews or physical inspections. Water supply system users shall complete such surveys and otherwise cooperate in the identification of potentially hazardous service connections or cross-connections according to terms and conditions prescribed herein.

(Ord. No. 2079, § 22, 7-12-2018; Ord. 1702, 2005)

13.40.110 Right of entry.

(a) The director of public works designee assigned to inspect premises relative to possible hazards shall carry proper credentials of his or her office and, upon exhibit of which, said person shall have the right of entry to inspect any and all buildings and premises for cross-connections in the performance of his or her duties. If such entry is refused, the city shall have recourse to every remedy provided by law to secure entry.

(b) This right of entry shall be a condition of continuation of water service in order to protect the city's potable water distribution system and the health, safety and welfare of the community. Questions regarding proper credentials should be directed to the director of public works. (Ord. 1702, 2005)

13.40.120 Reporting and record-keeping duties and requirements.

The certified cross-connection control technician shall report on a form approved by the city, the results of tests and maintenance to the director of public works and the property owner. This report will be submitted to the director of public works within five working days following the completion of the test or maintenance of the assembly. The certified cross-connection control technician shall also, on a form approved by the city, attach a card to the backflow prevention assembly following each test or maintenance activity to document and date the activities performed. Records of all tests or maintenance activities, including materials and parts changed, shall be kept by the certified cross-connection control technician, the property owner, and the director of public works for a period of not less than three years.

(Ord. No. 2079, § 23, 7-12-2018; Ord. 1702, 2005)

13.40.130 Compliance.

(a) Property owners shall cooperate in the installation, maintenance, testing or inspection of backflow prevention assemblies. Failure to cooperate shall be grounds for the discontinu-

ance of water service to the premises or the requirement for air-gap separation from the city's potable water distribution system.

(b) Service of water to any premises may also be discontinued by the director of public works if unprotected cross-connections exist on the premises, or if any defect is found in an installed backflow prevention assembly, or if a backflow prevention assembly has been removed or bypassed. Service shall not be restored until such conditions and defects are corrected to the satisfaction of the director of public works.

(c) Discontinuance of service may be summary, immediate and without written notice whenever, in the judgment of the city manager or the manager's designated representative or, upon the recommendation of the director of public works, such action is necessary to protect the purity of the city's potable water supply or the safety of the city's potable water distribution system.

(Ord. 1702, 2005)

Title 14

RESERVED

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Title 15

BUILDING AND CONSTRUCTION

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15.08.250	IBC Section 111.1.
15.08.260	IBC Section 111.2.
15.08.270	IBC Section 111.3.
15.08.280	IBC Section 112.3.
15.08.290	IBC Section 113.1.
15.08.300	IBC Section 113.3.
15.08.310	IBC Section 113.4.
15.08.320	IBC Section 115.2.
15.08.330	IBC Section 116.1.
15.08.340	IBC Section 202.
15.08.350	IBC Section 303.1.4.
15.08.360	IBC Section 308.5.
15.08.370	IBC Section 1504.2.

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15.08.380	IBC Section 1505.1.
15.08.390	IBC Section 1608.2.
15.08.400	IBC Section 1609.3.
15.08.410	IBC Section 1612.3.
15.08.420	IBC Section 1803.2.
15.08.430	IBC Section 1809.5.
15.08.440	IBC Section 2111.1.
15.08.450	IBC Section 2308.2.4.
15.08.460	IBC Chapter 30.
15.08.470	IBC Section 3202.
15.08.480	IBC Section 3303.
15.08.490	IBC Section 3306.8.
15.08.500	IBC Section 3308.
15.08.510	IBC Appendix Section K101.1.
15.08.520	IBC Appendix Section K102.
15.08.530	IBC Appendix Sections K103 through K111.

Chapter 15.12 Electrical Code

15.12.010	Adoption of National Electrical Code.
15.12.020	NEC Section 90.4.
15.12.030	NEC Section 110.
15.12.040	NEC Section 230.43.
15.12.050	NEC Section 230.70(A)(1).

Chapter 15.16 Plumbing Code

15.16.010	Adoption of International Plumbing Code.
15.16.020	IPC Section 101.1.
15.16.030	IPC Section 102.8.
15.16.040	IPC Section 103.
15.16.050	IPC Sections 104 through 115.
15.16.060	IPC Section 305.4.1.
15.16.070	IPC Section 903.1.1.
15.16.080	IPC Section 1003.3.

Chapter 15.17 Mechanical Code

15.17.010	Adoption of International Mechanical Code.
15.17.020	IMC Section 101.1.
15.17.030	IMC Section 103.
15.17.040	IMC Sections 104 through 116.
15.17.050	IMC Section 901.

Chapter 15.18 Site Improvements

15.18.010	Legislative intent.
15.18.020	Definitions.
15.18.030	Site improvement permit.
15.18.040	Permit fee.
15.18.050	Remedies for noncompliance.

Chapter 15.26 Energy Conservation Code

15.26.010	Adoption of the International Energy Conservation Code.
15.26.020	IECC Section C101.1.
15.26.030	IECC Section C101.2.1.
15.26.040	IECC Section C107.2.2.

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15.26.050	IECC Section C109.
15.26.060	IECC Section C202.
15.26.070	IECC Section C401.2.
15.26.080	IECC Section C401.2.1.
15.26.090	IECC Section C401.2.2.
15.26.100	IECC Section C402.1.2.1.8.
15.26.110	IECC Section C402.1.3.3.
15.26.120	IECC Section C402.4.
15.26.130	IECC Section C402.6.1.1.
15.26.140	IECC Section C402.6.1.2.
15.26.150	IECC Section C402.6.2.3.
15.26.160	IECC Section C403.4.1.1.
15.26.170	IECC Section C403.5.
15.26.180	IECC Section C403.13.3.1.
15.26.190	IECC Section C405.2.4.
15.26.200	IECC Section C405.2.8.1.
15.26.210	IECC Section C405.5.3.
15.26.220	IECC Section C405.12.
15.26.230	IECC Section C405.13.
15.26.240	IECC Section C405.13.2.
15.26.250	IECC Section C405.15.
15.26.260	IECC Section C406.1.
15.26.270	IECC Section C406.1.1.
15.26.280	IECC Section C406.1.1.2.
15.26.290	IECC Section C406.1.2.
15.26.300	IECC Section C406.2.6.2.
15.26.310	IECC Section C406.3.1.
15.26.320	IECC Section C407.
15.26.330	IECC Section C407.2.
15.26.340	IECC Table C407.2(1).
15.26.350	IECC Section C407.3.
15.26.360	IECC Section C407.4.
15.26.370	IECC Section C410.
15.26.380	IECC Section C411.
15.26.390	IECC Section C412.
15.26.400	IECC Section C502.2.
15.26.410	IECC Section C502.3.3.1.
15.26.420	IECC Section C502.3.7.
15.26.430	IECC Section C503.2.2.
15.26.440	IECC Section C503.2.3.
15.26.450	IECC Section C503.6.
15.26.460	IECC Section C503.7.
15.26.470	IECC Section C505.1.
15.26.480	IECC Section C502.2.
15.26.490	IECC Section CB103.1.
15.26.500	IECC Section CB103.2.
15.26.510	IECC Section CB103.3.
15.26.520	IECC Section CB103.7.
15.26.530	IECC Appendix CG.
15.26.540	IECC Section CH101.2.
15.26.550	IECC Section CH101.2.1.
15.26.560	IECC Section CH103.1.
15.26.570	IECC Section CH103.3.
15.26.580	IECC Section CI102.1.
15.26.590	IECC Section CI103.1.
15.26.600	IECC Appendix CJ.
15.26.610	IECC Section R101.1.
15.26.620	IECC Section R101.2.1.
15.26.630	IECC Section R109.
15.26.640	IECC Section R202.

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15.26.650	IECC Section R401.2.
15.26.660	IECC Section R401.2.4.
15.26.670	IECC Section R401.
15.26.680	IECC Section R402.1.
15.26.690	IECC Section R402.5.1.1.
15.26.700	IECC Section R402.5.1.1.
15.26.710	IECC Table R402.5.1.1.
15.26.720	IECC Section R402.5.1.3.
15.26.730	IECC Section R403.5.5.
15.26.740	Section R403.7.1.
15.26.750	Section R403.7.2.
15.26.760	Section R403.13.
15.26.770	Section R404.1.1.
15.26.780	Section R404.1.5.
15.26.790	Section R404.4.
15.26.800	Section R405.1.
15.26.810	Section R405.2.
15.26.820	Table R405.2.
15.26.830	Section R406.5.
15.26.840	Table R406.5.
15.26.850	Section R408.2.
15.26.860	Table R408.2.
15.26.870	Section R408.2.1.2.
15.26.880	Section R408.2.2.
15.26.890	Section R408.2.2.2.
15.26.900	Section R408.2.3.
15.26.910	Table R408.2.3.
15.26.920	Section R408.2.4.1.
15.26.930	Section R408.2.5.1.
15.26.940	Table R408.2.6.
15.26.950	Section R408.2.7.
15.26.960	Section R408.2.9.
15.26.970	Section R408.2.13.
15.26.980	Section R409.
15.26.990	Section R501.7.
15.26.1000	Section R502.2.1.
15.26.1010	Section R502.2.5.
15.26.1020	Section R503.1.1.
15.26.1030	Section R503.1.1.2.
15.26.1040	Section R503.1.3.
15.26.1050	Appendix RB.
15.26.1060	Section RB103.1.
15.26.1070	Section RB103.2.
15.26.1080	Appendix RD.
15.26.1090	Section RE101.1.
15.26.1100	Section RE101.2.
15.26.1110	Section RE101.2.1.
15.26.1120	Section RE101.2.2.
15.26.1130	Section RE101.2.3.
15.26.1140	Section RE101.2.4.
15.26.1150	Section RE101.2.5.
15.26.1160	Section RE101.2.6.
15.26.1170	Section RJ10.1.
15.26.1180	Section RJ103.1.
15.26.1190	Appendix RK.

Chapter 15.30 Fuel Gas Code

15.30.010	Adoption of the International Fuel Gas Code.
15.30.020	IFGS Section 101.1.

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15.30.030	IFGS Section 103.
15.30.040	IFGS Sections 104 through 114.

Chapter 15.40 Residential Code

15.40.010	Adoption of the International Residential Code.
15.40.020	IRC Section R101.1.
15.40.030	IRC Section R102.4.
15.40.040	IRC Section R102.6.
15.40.050	IRC Section R103.
15.40.060	IRC Sections R104 through R114.
15.40.070	IRC Section R202.
15.40.080	IRC Section R301.2.
15.40.090	IRC Section R313.1.1.
15.40.100	IRC Section R306.1.4.
15.40.110	IRC Chapter 3.
15.40.120	IRC Section R401.4.
15.40.130	IRC Section R401.4.1.
15.40.140	IRC Section R802.11.
15.40.150	IRC Section R902.1.
15.40.160	IRC Section R905.2.6.
15.40.170	IRC Chapter 10.
15.40.180	IRC Chapter 11.
15.40.190	IRC Section M1401.
15.40.200	IRC Section P2603.5.1.
15.40.210	IRC Section E3404.5.
15.40.220	IRC Section E3601.6.2.
15.40.230	IRC Section E3605.2.

Chapter 15.50 Existing Building Code

15.50.010	Adoption of the International Existing Building Code.
15.50.020	IEBC Section 101.1.
15.50.030	IEBC Section 103.
15.50.040	IEBC Sections 104 through 117.

Chapter 15.60 Floodplain Standards and Regulations

15.60.010	Title and purpose.
15.60.020	Definitions.
15.60.030	General provisions.
15.60.040	Administration.
15.60.050	Provisions for flood hazard reduction.

Chapter 15.70 Graywater Systems

15.70.010	Purpose.
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15.70.030	Appeals.
15.70.040	Administration and enforcement.
15.70.050	Fees.
15.70.060	Definitions.
15.70.070	Authorized graywater use.
15.70.080	Design criteria.
15.70.090	Operation and maintenance.
15.70.110	Nuisance provisions.
15.70.120	Remedies for noncompliance.

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Chapter 15.80
Wildfire Resiliency Code

15.80.010	Adoption of Colorado Wildfire Resiliency Code.
15.80.020	CWRC Section 101.1.
15.80.030	CWRC Section 102.8.
15.80.040	CWRC Section 102.9.1.
15.80.050	CWRC Section 103.1.
15.80.060	CWRC Section 103.2.
15.80.070	CWRC Section 103.3.
15.80.080	CWRC Section 104.4.
15.80.090	CWRC Section 104.4.1.
15.80.100	CWRC Section 106.1.
15.80.110	CWRC Section 106.2.
15.80.120	CWRC Section 108.
15.80.130	CWRC Section 202.
15.80.140	CWRC Section 302.1.
15.80.150	CWRC Section 303.3.
15.80.160	CWRC Section 304.1.
15.80.170	CWRC Section 401.1.
15.80.180	CWRC Section 403.2.3.
15.80.190	CWRC Section 404.3.1.
15.80.200	CWRC Section 404.3.2.
15.80.210	CWRC Section 502.1.5.
15.80.220	CWRC Section 502.2.
15.80.230	CWRC Section 502.2.1.
15.80.240	CWRC Section 502.2.2.
15.80.250	CWRC Section 502.2.3.
15.80.260	CWRC Section 502.3.1.
15.80.270	CWRC Section 502.3.2.
15.80.280	CWRC Section 502.3.3.
15.80.290	CWRC Section 502.4.1.
15.80.300	CWRC Section 503.2.6.
15.80.310	CWRC Section A101.3.
15.80.320	CWRC Section A101.5.
15.80.330	CWRC Section C101.3.4.

Chapter 15.01

CONTRACTOR REGISTRATION

15.01.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building official means the City of Golden's building official or his/her authorized representative.

Contractor means any person who undertakes within the city to build, construct, alter, repair, add to, renovate, move or wreck any building or structure or any portion thereof.

Homeowner means the property owner that currently resides at the property or plans to reside at the property for a minimum of 12 months after the work is complete.

Person has the same meaning as defined in the International Building Code as adopted by the city.

Work means building, constructing, altering, repairing, adding to, renovating, moving or wrecking any building or structure or any portion thereof within the city.

(Ord. No. 2268, § 2, 7-22-2025; Ord. 1225, 1994; Ord. 977, 1985)

15.01.020 Registration required.

It shall be unlawful for any person to act as a contractor without having first obtained a registration as provided herein.

(Ord. No. 2268, § 2, 7-22-2025; Ord. 1225, 1994; Ord. 977, 1985)

15.01.030 Application.

Application for a registration shall be made at the office of the building official. Application shall be made on a form furnished by the building official, which form shall request information to include, but not be limited to, the type of registration sought, applicant's name, address and telephone number; business name, address, telephone number and corporate officers; past contracts and projects completed by the applicant;

and prior or current registration(s) or license(s) for other municipalities. Registration shall not be granted if the application is not complete to the reasonable satisfaction of the building official. (Ord. 1739, 2006; Ord. 1225, 1994; Ord. 977, 1985)

15.01.040 Annual fee.

Each applicant shall pay in full an annual registration fee in an amount set forth by resolution of city council at the time of filing an application. Every registration shall expire at midnight on the one year anniversary date of issue unless otherwise re-issued for another year, by the re-submittal of an application and payment in full of the required annual fee.

(Ord. 1225, 1994; Ord. 977, 1985)

15.01.050 Registration changes.

A registered contractor shall notify the building official in writing of any change of name or address as provided on the application within 30 days after such change.

(Ord. 1225, 1994; Ord. 977, 1985)

15.01.060 Registered contractor responsibilities.

All registered contractors shall:

- (1) Have in their possession a current registration certificate at all times when performing work as a contractor within the city;
- (2) Present the registration when requested by the building official;
- (3) Construct, without substantial departure from the drawings and specifications filed with and approved by the building official and permit issued for same, unless changes are approved in writing by the building official; and
- (4) Obey any order or notice issued under the authority of the building official.

(Ord. No. 2268, § 2, 7-22-2025; Ord. 1225, 1994; Ord. 977, 1985)

15.01.070 Non-assignability.

No registration issued hereunder shall be assignable or transferable in any manner.
(Ord. 1225, 1994; Ord. 977, 1985)

15.01.080 Exemptions.

(a) Public utility companies shall not be required to register as set forth herein when engaged in the installation, operation and maintenance of their equipment used for the production, generation or distribution of the utility product or service through the facilities owned or operated by the utility product or service throughout the facilities owned or operated by the utility company to the point of customer service.

(b) A homeowner, provided such person performs the work him/herself, shall not be required to register as set forth herein to build, construct, alter, repair, add to or demolish a Group R, Division 3, or Group U Occupancy as defined by the city's adopted building codes. A homeowner is eligible for this exemption only as to one such building or structure during a calendar year.

(Ord. No. 2268, § 2, 7-22-2025; Ord. 1739, 2006; Ord. 1225, 1994; Ord. 977, 1985)

Chapter 15.02 GENERAL PROVISIONS

15.02.010 Consultant reimbursement.

(a) For applications required pursuant to title 15 of this Code, the city will charge applicants reasonable fees sufficient to cover the costs of administration, inspection, publication of notice, and similar matters, and the cost of professional consultants, including legal review, required to assist the city with review and processing of such applications. All fees imposed by this section shall include application fees.

(b) If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an initial escrow payment in an amount

sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services related to the application if they become necessary. If the applicant does not pay additional escrow funds as required within ten days after written notice from the city, then, in addition to other remedies the city may have, the city shall be entitled to a lien on the subject property or the city may elect to certify the assessed costs and expenses to the office of the county treasurer for collection in the same manner as general property taxes are collected. Such liens shall be perfected and may be foreclosed upon in accordance with applicable state laws.

(c) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2192, § 1, 7-26-2022)

Chapter 15.08 BUILDING CODE*

15.08.010 Adoption of the International Building Code.

The 2024 International Building Code, published by the International Code Council, Inc., 200 Massachusetts Ave, NW, Suite 250, Washington DC 20001, Chapters 1 through 33 inclusive and Appendices G, I, and K, is hereby adopted by reference as the City of Golden Building Code (hereinafter referred to as "the

***Editor's note**—Ord. No. 2268, § 3, adopted July 22, 2025, repealed the former Ch.15.08, §§ 15.08.010—15.08.530, and enacted a new Ch. 15.08 as set out herein. The former Ch. 15.08 pertained to similar subject matter and derived from Ord. No. 2192, § 2, adopted July 22, 2022.

IBC" or "this Code") as if fully set out in this codification, with the amendments indicated in the following sections of this chapter.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.020 IBC Section 101.1.

IBC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Building Code of the City of Golden, hereinafter referred to as "the IBC" or "this Code."
(Ord. No. 2268, § 3, 7-22-2025)

15.08.030 IBC Section 101.2.

IBC Section 101.2 (Scope) is amended by the addition of a new subsection 101.2.2 entitled "Preemption" to read as follows:

101.2.2. Preemption.

The provisions of Sections 103 through 116 inclusive of this IBC shall apply to and function as the administrative and enforcement provisions for all adopted codes and ordinances regulated by the Division of Building Safety and Inspection Services. The reference to "the IBC" or "this Code," or similar language, within these sections shall be interpreted to include and apply to all the adopted codes and ordinances regulated by the Division of Building Safety and Inspection Services. Where specifically adopted administrative provisions of such codes and ordinances contain additional requirements, such additional requirements shall apply. Where individual specific administrative requirements of such codes and ordinances conflict with the requirements of this IBC, the requirements of this IBC shall govern.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.040 IBC Section 101.4.

IBC Section 101.4. (Referenced Codes) is amended by the addition of a new subsection 101.4.8 entitled "National Electrical Code" to read as follows:

101.4.8. National Electrical Code.

The provisions of the National Electrical Code shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings, and appurtenances thereto. All references to the ICC Electrical Code as contained in this IBC or other adopted codes enforced by the Division of Building Safety and Inspection Services shall hereby be interpreted as referencing the Appendix K of this IBC and the National Electrical Code.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.050 IBC Section 101.4.1.

IBC Section 101.4.1 (Gas) is deleted.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.060 IBC Section 101.4.2.

IBC Section 101.4.2 (Mechanical) is deleted.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.070 IBC Section 101.4.3.

IBC Section 101.4.3 (Plumbing) is deleted.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.080 IBC Section 101.4.4.

IBC Section 101.4.4 (Property Maintenance) is amended to read as follows:

101.4.4. Property maintenance.

All references to the International Property Maintenance Code as published by the International Code Council and as may appear in this IBC or other adopted codes enforced by the Division of Building Safety and Inspection Services for the City of Golden are hereby deleted.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.090 IBC Section 103.1.

IBC Section 103.1 (Creation of Enforcement Agency) is amended to read as follows:

103.1. Creation of Enforcement Agency.

The Division of Building Safety and Inspection Services is hereby created and the official in charge thereof shall be known as the Build-

ing Official. The function of this agency shall be the implementation, administration, and enforcement of the provisions of this IBC.

Whenever the term or title "Administrative Authority," "Responsible Official," "Chief Inspector," "Code Enforcement Officer," "Code Official," or similar designation is used in this Code or other adopted codes enforced by the Division of Building Safety and Inspection Services, such term or title shall be construed to mean the Building Official as identified by this section.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.100 IBC Section 104.2.

IBC Section 104.2 (Determination of Compliance) is amended to read as follows:

104.2. Determination of Compliance.

The Building Official is hereby authorized and directed to enforce the provisions of this IBC and the City adopted contractor registration ordinance, City adopted sustainability ordinance, electrical code, energy conservation code, existing building code, fuel gas code, mechanical code, plumbing code, and residential code. The Building Official shall have the authority to determine compliance with this code, to render interpretations of these codes, and to adopt policies and procedures to clarify the application of their provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of these codes. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in these codes.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.110 IBC Section 105.2.

IBC Section 105.2 (Work Exempt from Permit) is amended to read as follows:

105.2. Work Exempt from Permit.

Exemptions from permit requirements of this IBC shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this IBC or any other laws or ordinances of this jurisdiction. The property owner and permit applicant

shall be responsible for obtaining approvals and complying with all regulations and requirements of the City's Planning and Development Department, Public Works Departments, Fire Departments or special districts, and any other applicable departments' or agencies' rules and regulations. Permits shall not be required for the following:

* * *

Building:

* * *

6. Sidewalks, driveways, and parking lots not more than thirty (30) inches (762 mm) above adjacent grade, and not over any basement or story below and are not part of an accessible route.

* * *

14. Decks not exceeding two hundred (200) square feet (18.58 m²) in area, that are not more than thirty (30) inches (762 mm) above grade at any point, that are not attached to a dwelling and do not serve the exit door required by IRC Section R311.4.
15. One-story detached accessory structures, provided that the floor area does not exceed two hundred (200) square feet (18.58 m²). This applies to residential only as regulated under the IRC.

Electrical:

1. Listed cord-and-plug connected temporary decorative lighting.
2. Reinstallation of attachment plug receptacles, but not the outlets therefor.
3. Repair or replacement of branch circuit over current devices of the required capacity in the same location.
4. Temporary wiring for experimental purposes in suitable experimental laboratories.
5. Electrical wiring, devices, appliances, apparatus or equipment operating at less

than twenty-five (25) volts and not capable of supplying more than fifty (50) watts of energy.

* * *

(Ord. No. 2268, § 3, 7-22-2025)

15.08.120 IBC Section 105.3.1.

IBC Section 105.3.1 (Action on Application) is amended to read as follows:

105.3.1. Action on Application.

The Building Official shall examine or cause to be examined applications for permits and amendments thereto within a reasonable time after filing. If the application or the construction documents do not conform to the requirements of pertinent laws, the Building Official shall reject such application in writing, stating the reasons therefor. If the Building Official is satisfied that the proposed work conforms to the requirements of this IBC and laws and ordinances applicable thereto, the Building Official shall issue a permit therefore as soon as practicable.

Building Permits shall not be issued until approved by all applicable departments or divisions of the City of Golden, which have applicable regulations that are subject to review, approval, or permitting.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.130 IBC Section 105.5.

IBC Section 105.5 (Expiration) is amended to read as follows:

105.5. Expiration.

Every permit shall become invalid unless the work on the site authorized by such permit is commenced within one hundred eighty (180) days after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of one hundred eighty (180) days after the time the work is commenced. The Building Official is authorized to grant, in writing, one or more extensions of time, for periods not more than one hundred

eighty (180) days each. The extension shall be requested in writing and justifiable cause demonstrated.

For the purposes of this section, absent other evidence, invalidation through suspension or abandonment shall be considered to have occurred when a required building inspection has not been performed within one (1) year of permit issuance or a period of one (1) year has passed following a required building inspection without obtaining a subsequent required inspection.

Permits not otherwise voided by suspension, abandonment, or failure to commence work shall expire two (2) years after date of issuance unless the permit has been extended as permitted by this section.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.140 IBC Section 107.2.6.

IBC Section 107.2.6 (Site Plan) is amended to read as follows:

107.2.6. Site Plan.

The construction documents submitted with the application for permit shall be accompanied by a site plan showing, to scale, the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades; and, as applicable in flood hazard areas, floodways, flood zones, design flood elevations, and the elevation of the proposed lowest floor including basement; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. In the case of substantial alteration or new construction, the construction documents shall demonstrate that there will be a posting, on site and clearly legible from the public view, that details the contact information of at least two contractors listed on the associated permit. For the purposes of this subsection, "substantial alteration" means reconstruction, rehabilitation, addition, or other improvements to a building or

property resulting in an addition in floor area, or parking or loading area, equal to or greater than 25 percent of the existing area, measured over a period not to exceed five years. The Building Official is authorized to waive or modify the requirement for a site plan when the permit application is for alteration or repair or when otherwise warranted.

(Ord. No. 2279, § 6, 10-28-2025; Ord. No. 2268, § 3, 7-22-2025)

15.08.150 IBC Section 107.2.

IBC Section 107.2 (Construction Documents) is amended by the addition of a new subsection 107.2.9 entitled "Construction Documents; Demolitions" to read as follows:

107.2.9. Construction Documents; Demolitions.

For permits for work associated with demolitions the Building Official shall be permitted to require the submittal of additional information and conditions to include, but not limited to:

1. Plans and specifications detailing extent of demolition.
2. Complete schedule of demolition.
3. Verification of discontinuance of affected utility services such as, but not limited to, water, sewer, electric, and natural gas in accordance with the serving utility.
4. Structural designs, calculations and/or engineering on any shoring and/or bracing required to ensure the structural integrity and safety of any remaining building elements.
5. Conceptual drawings of the future remodel, redevelopment, or change of use associated with demolition.
6. Planning and Development Department, Fire Department and Street Division approval for the location of all trash containers and/or enclosures for demolition material storage and removal.

7. Documentation for abatement of asbestos containing materials (ACM) and Air Clearance Report (Colorado Department of Public Health and Environment).

8. Evidence that the permittee will ensure that at any time work is being performed under a permit, there will be a posting, at the work site and clearly legible from the public view, that details the contact information of at least two contractors listed on the associated permit.

(Ord. No. 2279, § 6, 10-28-2025; Ord. No. 2268, § 3, 7-22-2025)

15.08.160 IBC Section 109.1.

IBC Section 109.1 (Payment of Fees) is amended to read as follows:

109.1. Payment of Fees.

A permit shall not be valid until the fees prescribed by law have been paid, nor shall an amendment to a permit be released until the additional fee, if any, has been paid. Such fees may include consultant review fees and require the permittee to submit a complete consultant reimbursement fee agreement. Unless otherwise specifically approved by the Building Official, plan review fees shall be paid at time of permit submittal.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.170 IBC Section 109.2.

IBC Section 109.2 (Schedule of Permit Fees) is amended to read as follows:

109.2. Schedule of Permit Fees.

On buildings, structures, electrical, gas, mechanical and plumbing systems or alterations requiring a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by resolution of City Council.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.180 IBC Section 109.3.

IBC Section 109.3 (Permit Valuations) is amended to read as follows:

109.3. Permit Valuations.

The applicant for a permit shall provide an estimated permit value of the work for which the permit is being issued at the time of the application. Such estimated valuations shall include the total value of the work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment, and permanent systems. Where, in the opinion of the Building Official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed estimates acceptable to the Building Official. Final building permit valuation shall be set by the Building Official.

At the completion of a project, an audit may be requested by the permit applicant or the City to establish the actual permit valuation. Where actual valuation differs from the estimated permit value, the required fees shall be

reconciled and excess fees collected shall be refunded or additional required fees shall be assessed.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.190 IBC Section 109.4.

IBC Section 109.4 (Work Commencing Before Permit Issuance) is amended to read as follows:

109.4. Work Commencing Before Permit Issuance.

Any person who commences any work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to an investigation fee equal to one hundred percent (100%) of the applicable permit fee that shall be in addition to the required permit fee.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.200 IBC Section 109.7.

IBC Section 109 (Fees) is amended by the addition of a new subsection 109.7 entitled, "Re-inspection Fee" to read as follows:

109.7. Re-Inspection Fee.

The Building Official shall be authorized to assess a re-inspection fee for each inspection or re-inspection when such portion of work for which inspection is called is not complete; when previously sited corrections called for are not made; when the permit is not properly posted or otherwise available on the work site; for failure to provide access on the date for which inspection is requested; or for deviating from plans requiring the approval of the Building Official. Said re-inspection fee shall be as set forth by City Council resolution. In instances where re-inspection fees have been assessed, the Building Official is authorized to suspend or withhold additional inspection of the work until the required fees have been paid.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.210 IBC Section 110.

IBC Section 110 (Inspections) is re-titled to read "Inspections and Testing."

(Ord. No. 2268, § 3, 7-22-2025)

15.08.220 IBC Section 110.3.3.

IBC Section 110.3.3 (Lowest Floor Elevation) is amended to read as follows:

110.3.3. Lowest Floor Elevation.

In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certificate required in IBC Section 1612.4 or The International Residential Code, as applicable shall include the lowest floor and basement. The document shall be prepared and sealed by a registered design professional and shall be submitted to the Building Official.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.230 IBC Section 110.3.10.

IBC Section 110.3.10 (Other Inspections) is repealed in its entirety and reenacted with a new title, "Electrical, Fuel Gas, Mechanical, and Plumbing Trade Inspections," with the addition of subsections, all to read as follows:

110.3.10. Electrical, Fuel Gas, Mechanical, and Plumbing Trade Inspections.

Where electrical, fuel gas, mechanical, and plumbing work (including, but not limited to, appliances, equipment, fixtures, systems and/or components) requiring permits is performed or installed, the inspections identified in this section shall be required.

The requirements of this section shall not be considered to prohibit the emergency operation of any electrical, fuel gas, mechanical, and plumbing work installed to replace existing work serving an occupied portion of a structure provided that a request for inspection of such work has been submitted within the next working business day to the Building Official, and before any portion of such work is concealed by any permanent portion of the structure.

110.3.10.1. Underground Inspections.

Underground inspections of electrical, fuel gas, mechanical, and plumbing work shall be made after trenches or ditches are excavated and bedded, and work is installed, and before backfilling. When excavated soil contains rocks,

broken concrete, frozen chunks, and other rubble that could damage or cause corrosive action to such work, approved granular or select backfill material, or other approved means of protection, shall be on the job site.

Exception: Ground-source heat pump loop systems tested in accordance with the applicable mechanical code provision shall be permitted to be backfilled prior to inspection.

110.3.10.2 Rough-In Inspections.

Rough-in inspections of electrical, fuel gas, mechanical, and plumbing work shall be made after the roof, framing, fire-blocking, and bracing are in place and all such work to be concealed is complete, and prior to the installation of wall or ceiling membranes or concealment.

110.3.10.3 Final Inspections.

Final inspections of electrical, fuel gas, mechanical, and plumbing work shall be made after such work is in place, properly connected, and operational.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.240 IBC Section 110.

IBC Sections 110 is amended by the addition of a new subsection 110.7 entitled, "Testing," with additional subsections, all to read as follows:

110.7. Testing.

Testing of electrical, fuel gas, mechanical, and plumbing work (including but not limited to appliances, equipment, systems and/or components) shall be tested as required by the controlling technical code. Tests shall be made by the permit holder and observed by the Building Official.

110.7.1. New, Altered, Extended or Repaired Systems.

New electrical, fuel gas, mechanical, and plumbing work and parts of existing systems which have been altered, extended, renovated or repaired shall be tested as prescribed herein to disclose leaks and defects.

Exceptions—Plumbing Code:

1. In any case that does not include addition to, replacement, alteration or relocation of any water supply, drainage or vent piping.

2. In any case where plumbing equipment is set up temporarily for exhibition purposes.

110.7.2. Apparatus, Instruments, Equipment, Material and Labor For Tests.

Apparatus, instruments, equipment, materials and labor required for testing of electrical, fuel gas, plumbing systems and mechanical systems or part thereof shall be furnished by the permit holder.

Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as to achieve compliance with this IBC. The work or installation shall then be resubmitted to the Building Official for inspection and testing.

110.7.3. Temporary Connections.

The Building Official shall have the authority to authorize the temporary connection of a building's electrical, fuel gas, plumbing and/or mechanical systems to the appropriate utility and sources of energy for the purpose of testing electrical, fuel gas, plumbing and/or mechanical systems or for use under a temporary certificate of occupancy.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.250 IBC Section 111.1.

IBC Section 111.1 (Change of Occupancy) is amended to read as follows:

111.1. Change of Occupancy.

A building or structure shall not be used or occupied in whole or in part, and a change of occupancy of a building or structure or portion thereof shall not be made, until the Building Official has issued a Certificate of Occupancy therefore as provided herein. Issuance of a Certificate of Occupancy shall not be construed as an approval of a violation of the provisions of this IBC or of other ordinances of the jurisdiction. Certificates presuming to give

authority to violate or cancel the provisions of this IBC or other ordinances of the jurisdiction shall not be valid.

Exception:

1. Certificates of occupancy are not required for work exempt from permits in accordance with IBC Section 105.2.
 2. Accessory Group U Occupancy Buildings or Structures associated with One- and Two-Family Dwellings.
- (Ord. No. 2268, § 3, 7-22-2025)

15.08.260 IBC Section 111.2.

IBC Section 111.2 (Certificate Issued) is amended by the addition of a new subsection 111.2.1 entitled "Additional Requirements" to read as follows:

111.2.1. Additional Requirements.

A Certificate of Occupancy shall not be issued until authorization is granted by all departments or divisions of the City that have applicable regulations that are subject to inspection and/or approval.

A Certificate of Occupancy shall not be issued until all associated fees, taxes, or other monies owed to the City have been paid in full. This shall not be interpreted as prohibiting the City from collecting additional fees, taxes, or any other future monies. Failure to pay such additional fees, taxes, or monies shall be grounds to revoke a Certificate of Occupancy as permitted by IBC Section 111.4.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.270 IBC Section 111.3.

IBC Section 111.3 (Temporary Occupancy) is amended to read as follows:

111.3. Temporary Occupancy.

The Building Official is authorized to issue a temporary certificate of occupancy before the completion of the entire work covered by the permit, provided that such portion or portions shall be occupied safely. The Building Official shall set a time period during which the Temporary Certificate of Occupancy is valid.

The Building Official may require surety in such form and amounts as may be deemed necessary to ensure that outstanding items or conditions under which the "Temporary Certificate of Occupancy" is issued will be corrected or resolved. In lieu of a surety bond, the applicant may file a cash bond or instrument of credit with the Building Official in an amount equal to that which would be required in the surety bond.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.280 IBC Section 112.3.

IBC Section 112.3 (Authority to Disconnect Service Utilities) is amended by the addition of a new subsection 112.3.1 entitled, "Connection After Order to Disconnect" to read as follows:

112.3.1. Connection After Order to Disconnect.

A person shall not make utility service or energy source connections to systems regulated by this IBC which have been disconnected or ordered to be disconnected by the Building Official, or the use of which has been ordered to be discontinued by the Building Official until the Building Official authorizes the reconnections and use of such systems.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.290 IBC Section 113.1.

IBC Section 113.1 (General) is re-titled "General, Board of Appeals" and is amended to read as follows:

113.1. General, Board of Appeals.

In order to hear and decide appeals of orders, decisions or determinations made by the Building Official relative to the application and interpretation of this IBC, there shall be and is hereby created a Board of Appeals consisting of three members. This Board shall be composed of a person appointed by the City Manager, a person appointed by the appellant, and a person appointed by the two appointees. The Building Official shall be an ex officio member of and shall act as the secretary to the Board but shall have no vote on any matter before the committee. The Board

members shall serve for the duration of the appeal. The Board shall conform to the standards set forth in Chapter 2.35 of the Golden Municipal Code and shall render their decisions and findings in writing to the appellant, with a duplicate copy to the Building Official. A party may appeal the Board's decision to City Council in accordance with the procedure set forth in IBC Section 113.4. (Ord. No. 2268, § 3, 7-22-2025)

15.08.300 IBC Section 113.3.

IBC Section 113.3 (Qualifications) is amended to read as follows:

113.3. Qualifications.

The Board of Appeals shall consist of members who are qualified by experience and training, as verified by the Building Official, to pass on matters pertaining to building construction. The Board members may not be employees of either the jurisdiction or the appellant. The Board members may not be personally, financially, contractually, professionally, or otherwise indebted, obligated, or bound to the appellant in any manner, nor may they be in any position where they might receive benefit, either personally or professionally, from any decision rendered.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.310 IBC Section 113.4.

IBC Section 113.4 (Administration) is repealed and replaced with a new Section 113.4 entitled "Council Review of Decisions Rendered by the Board of Appeals" to read as follows:

113.4. Council Review of Decisions Rendered by the Board of Appeals.

To appeal a decision of the Board of Appeals a party must, within fifteen (15) calendar days of the Board's decision, submit a request for review to the City Clerk. After submittal of a request for review the Building Official shall, within fifteen (15) calendar days, prepare a certified record. Within thirty (30) calendar days of submittal of a request for review City Council shall, based only upon its review of the record, decide to uphold, overturn, or

modify the decision of the Board of Appeals. City Council shall provide the parties a copy of its decision within seven (7) calendar days of making same.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.320 IBC Section 115.2.

IBC Section 115.2 (Issuance) is amended to read as follows:

115.2. Issuance.

The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work, or shall be prominently posted on the affected work, property, or structure. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.330 IBC Section 116.1.

IBC Section 116.1 (Unsafe Conditions) is amended to read as follows:

116.1. Unsafe Conditions.

Structures or existing equipment, appliances, systems, or devices, including but not limited to fuel-gas, electric, mechanical, or plumbing, that are or hereafter become unsafe, unsanitary, or deficient because of inadequate means of egress facilities, inadequate light and ventilation, or which constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. Such unsafe conditions are hereby declared to be a public nuisance and shall be abated by repair, rehabilitation, demolition, or removal or made safe, as the Building Official deems necessary and as provided for in this section. A vacant structure that is not secured against entry shall be deemed unsafe.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.340 IBC Section 202.

IBC Section 202 (Definitions) is amended with the addition of definitions for the following terms: covered walkways; living rooms, family rooms, and other similar habitable areas; sleeping unit or sleeping room (bedroom); and wood roof covering materials to read as follows:

COVERED WALKWAYS. Structures built within the Public Way attached or unattached to buildings adjoining the rights-of-way as regulated by Section 3306.7 of this IBC.

LIVING ROOMS, FAMILY ROOMS AND OTHER SIMILAR HABITABLE AREAS.

Areas that are so situated and designed to clearly indicate intended use as a living room, family room, or other similar habitable area. Such areas shall not be interpreted as sleeping rooms.

SLEEPING UNIT OR SLEEPING ROOM (BEDROOM).

Any enclosed habitable space within a dwelling unit which complies with the minimum room dimension requirements of IBC Section 1208 and contains either a closet, an area which is useable as a closet, or an area which is readily convertible for use as a closet. This term excludes Living Rooms, Family Rooms and Other Similar Habitable Areas.

WOOD ROOF COVERING MATERIALS.

An exterior roofing surface material used as a top covering and made of wood. Wood, for the purpose of this definition, means any material or composite material containing at least fifty percent (50%) wood by volume.

IBC Section 202 (Definitions) is amended with the repeal and replacement of the definition of "design flood elevation" to read as follows:

DESIGN FLOOD ELEVATION. One foot above the elevation of the "design flood," including wave height, relative to the datum specified on the community's legally designated flood hazard map. In areas designated as Zone AO, the design flood elevation shall be the elevation of the highest existing grade of the building's perimeter plus one foot above the depth number (in feet) specified on the flood hazard map. In areas designated as Zone AO

where a depth number is not specified on the map, the depth number shall be taken as being equal to three (3) feet (915 mm).
(Ord. No. 2268, § 3, 7-22-2025)

15.08.350 IBC Section 303.1.4.

IBC Section 303.1.4 (Accessory to Places of Religious Worship) is amended to read as follows:

303.1.4. Accessory to Places of Religious Worship.

1. Accessory religious educational rooms and religious auditoriums with occupant loads of less than one hundred (100) per room or space are not considered separate occupancies.
2. Rooms or spaces within places of religious worship providing overnight temporary sheltering for less than fifty (50) occupants for less than sixteen (16) continuous hours and with sleeping rooms or spaces less than ten thousand (10,000) square feet in aggregate are not considered separate occupancies provided all of the following are provided and approved by the Fire Code Official:
 - a. Proper number and width of exits with approved signage and emergency lighting.
 - b. Operational carbon monoxide and smoke alarms in all sleeping rooms and spaces.
 - c. Proper and operational portable fire extinguishers.
 - d. A minimum of one (1) awake fire watch attendant.
 - e. Emergency evacuation plan.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.360 IBC Section 308.5.

IBC Section 308.5 (Group I-4 Day Care Facilities) is amended to read as follows.

308.5. Group I-4 Day Care Facilities.

Institutional Group I-4 occupancy shall include buildings and structures occupied by seven (7)

or more persons of any age who receive custodial care for fewer than twenty-four (24) hours per day by persons other than parents or guardians, relatives by blood, marriage, or adoption, and in a place other than the home of the person cared for. This group shall include, but not be limited to, the following:

Adult day care

Child day care

(Ord. No. 2268, § 3, 7-22-2025)

15.08.370 IBC Section 1504.2.

IBC Section 1504.2 (Wind resistance of Asphalt Shingles) is amended to add a new exception #2 to read as follows:

- (2) Asphalt strip shingles shall be secured to the roof with not less than six fasteners per shingle.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.380 IBC Section 1505.1.

IBC Section 1505.1 (General) is amended to add a new exception #2 to read as follows:

- (2) Wood roof covering materials shall comply with the requirements of a Class A roofing assembly.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.390 IBC Section 1608.2.

IBC Section 1608.2 (Ground Snow Load) is amended to read as follows:

1608.2. Ground Snow Loads.

The ground snow loads to be used in determining the design snow loads for roofs shall be 42.9 pounds per square foot.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.400 IBC Section 1609.3.

IBC Section 1609.3 (Basic Design Wind Speed) is amended to read as follows:

1609.3. Basic Design Wind Speed.

The basic wind speed, V_{ult} (3 second gust), in mph, shall be one hundred forty (140) mph exposure "C" for Risk Category I, one hundred fifty (150) mph exposure "C" for Risk Category

II, and one hundred sixty (160) mph exposure "C" for Risk Categories III/IV. Risk Categories are defined in IBC Section 1604.5. Refer to IBC Section 1609.3.1 for wind speed conversions to nominal design wind speeds, V_{asd} , as necessary.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.410 IBC Section 1612.3.

IBC Section 1612.3 (Establishment of Flood Hazard Areas) is amended to read as follows.

1612.3. Establishment of Flood Hazards Areas.

To establish flood hazard areas, the applicable governing authority shall adopt a flood hazard map and supporting data. The flood hazard map shall include, at a minimum, areas of special flood hazard as identified by the Federal Emergency Management Agency in an engineering report entitled "The Flood Insurance Study for City of Golden," dated February 5, 2014 as amended or revised with the accompanying Flood Insurance Rate Map (FIRM) and Flood Boundary and Floodway Map (FBFM) and related supporting data along with any revisions thereto. The adopted flood hazard map and supporting data are hereby adopted by reference and declared to be part of this section.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.420 IBC Section 1803.2.

IBC Section 1803.2 (Investigations Required) is amended to read as follows:

1803.2. Investigations Required.

Site-specific geotechnical investigations shall be conducted for each new structure to be constructed within the corporate boundaries of the City of Golden and in accordance with IBC Sections 1803.3 through 1803.5.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.430 IBC Section 1809.5.

IBC Section 1809.5 (Frost Protection) is amended to read as follows:

1809.5. Frost Protection.

Except where otherwise protected from frost, foundations and other permanent supports of buildings and structures shall be protected from frost by extending below the frost line of thirty-six (36) inches below grade.
(Ord. No. 2268, § 3, 7-22-2025)

15.08.440 IBC Section 2111.1.

IBC Section 2111.1 (General) is amended by the addition of a new subsection 2111.1.1 entitled, "Emission Standards for Solid Fuel Burning Masonry Fireplaces or Masonry Heaters" to read as follows:

2111.1.1. Emission Standards for Solid Fuel Burning Masonry Fireplaces or Masonry Heaters.

Every newly installed, new or used, solid fuel burning masonry fireplace or masonry heater shall be:

- A.1. EPA Certified Phase II; or
2. State of Colorado Certified Phase III; or
3. A state approved solid fuel burning device which is exempt from and not eligible for certification under the United States Environmental Protection Agency (EPA) regulations for wood stoves but which has been tested to demonstrate its emission performance and is in accordance with criteria and procedures not less stringent than those required by the EPA and/or State of Colorado Air Quality Control Commission (AQCC) for wood stoves manufactured after July 1, 1990, and as approved by the alternate materials, alternate design and methods of construction provisions of the administrative provisions regulating this IBC.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.450 IBC Section 2308.2.4.

IBC Section 2308.2.4 (Basic Wind Speed) is amended to read as follows:

2308.2.4. Basic Wind Speed.

V ult shall not exceed one hundred forty (140) mph (63.0 m/s) (3-second gust).

Exceptions:

1. V ult shall not exceed one hundred fifty (150) mph (67.0 m/s) (3-second gust) for buildings in Exposure Category "B".
2. Where V ult exceeds one hundred forty (140) mph (63.0 m/s) (3-second gust), the provisions of either AWC WFCM or ICC 600 are permitted to be used.

The following additional provisions shall apply to conventional light frame construction in the City:

1. Roof rafters/trusses and exterior wall framing shall be connected at every rafter/truss along the perimeter by one of the following methods:
 - a. Approved metal strapping (20 gauge minimum) properly installed and secured around rafters/trusses and to wall studs at every (4) feet on center maximum spacing and approved metal rafter to wall plate ties (20 gauge minimum) properly installed and secured at all intermediate rafters/trusses; or
 - b. Approved metal rafter to wall plate ties (20 gauge minimum) properly installed and secured at all rafters/trusses when such plates are connected by approved structural sheathing to wall studs, and all rafters in the first four (4) feet from any outside corners are provided with double ties;
2. The roof overhang at gable ends shall not exceed two (2) feet unless designed to prevent uplift as required for one hundred fifty (150) miles per hour V ult wind speed.
3. The roof overhang at the eaves shall not exceed three (3) feet unless designed to prevent uplift as required for a one hundred fifty (150) miles per hour V ult wind speed.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.460 IBC Chapter 30.

IBC Chapter 30 (Elevators and Conveying Systems) is amended by the addition of a new Section 3010 entitled "Requirements for Operation and Maintenance" and its subsections to read as follows:

3010. Requirements for Operation and Maintenance.

Requirements for Permits, Certificates of Inspections, and for Operation and Maintenance.

3010.1. General.

The owner shall be responsible for the safe operation and maintenance of each elevator and conveying system and shall cause periodic inspections, test, and maintenance to be made on such systems as required by the Elevator and Escalator Certification Act, as administered by the Colorado Division of Oil and Public Safety.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.470 IBC Section 3202.

IBC Section 3202 (Encroachments) is amended with the addition of a new subsection 3202.5, entitled "Encroachments; Covered Walkways" to read as follows:

3202.5 Encroachments; Covered Walkways.

Covered walkways shall be permitted in C-2 zoned areas, when constructed in compliance with the terms as set forth herein.

1. Covered walkways shall be constructed by and remain the property of the owner of the building to which they are attached and maintained by said owner.
2. Covered walkways shall be constructed in compliance with the IBC.
3. Covered walkways shall comply with the construction type and the exiting requirements of the building to which it is attached.
4. The front face of vertical supports for all covered walkways shall be set back a minimum of thirty (30) inches from the

face of the abutting curb but shall not extend more than ten (10) feet beyond the building face.

5. The minimum vertical clearance of any part of the covered walkway shall be not less than eight (8) feet, exclusive of vertical supporting columns.
6. No railings or obstructions of any kind shall be installed between the vertical supporting columns, unless approved in accordance with Chapter 4.90 of the Golden Municipal Code.
7. Adequate artificial lighting shall be installed under any covered walkway so as to illuminate passageways continuously between sunset and sunrise.
8. Horizontal clearance between the face of the abutting curb and the roof eave line shall be eighteen (18) inches, and the eave line shall not extend more than ten (10) feet from the building face.
9. Plans and specifications for the construction of covered walkways shall be submitted to the Building Official for a building permit in the same manner as those for other structures in compliance with the IBC. In conjunction with the application, the owner of the building to which the covered walkway is to be attached shall agree to indemnify and hold harmless the City for any and all liability incurred in the construction, alteration, repair, maintenance and use of the covered walkway.
10. Provisions of IBC Chapter 32 in conflict herewith shall not be applicable to any covered walkway built in compliance with the requirements set forth within this section.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.480 IBC Section 3303.

IBC Section 3303 (Safeguards During Construction) is amended by the addition of a new subsection 3303.8 entitled, "Damage to Street, Curb, Gutter or Sidewalk" to read as follows:

3303.8. Damage to Street, Curb, Gutter, or Sidewalk.

Any damage to street, curb, gutter, or sidewalk caused by or the result of the demolition shall be repaired at the expense of the contractor to the City's specifications as inspected and approved by the city engineer or authorized designee.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.490 IBC Section 3306.8.

IBC Section 3306.8 (Repair, Maintenance and Removal) is amended to read as follows:

3306.8. Repair, Maintenance, and Removal.

Any damage to street, curb, gutter, or sidewalk caused as a result of the installation and removal of a Pedestrian Protective Device shall be repaired at the expense of the contractor in accordance with the City specifications and shall be inspected and approved by the city engineer or authorized designee.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.500 IBC Section 3308.

IBC Section 3308 (Temporary Use of Streets, Alleys, and Public Property) is amended by the addition of a new subsection 3308.3 entitled, "Temporary Use of Streets, Alleys and Public Property; Obstructions of Vehicle or Pedestrians and Protection of City Improvements" to read as follows:

3308.3. Temporary Use of Streets, Alleys, and Public Property; Obstructions of Vehicles or Pedestrians and Protection of City Improvements.

No person shall obstruct vehicle or pedestrian traffic without having first obtained a permit as required by Chapter 11 of the Golden Municipal Code. Any damage to the street, curb, gutter or sidewalk by any vehicle, apparatus or device used in conjunction with the construction shall be repaired by the contractor in accordance with the City of Golden's specifications and shall be inspected and approved by the city engineer or authorized designee.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.510 IBC Appendix Section K101.1.

IBC Appendix Section K101.1 (Purpose) is re-titled "Title" and is amended to read as follows:

K101.1. Title.

These regulations shall be known as the Electrical Code-Administrative Provisions of the City and shall be referred to herein as "this Code" or "the IBC."

(Ord. No. 2268, § 3, 7-22-2025)

15.08.520 IBC Appendix Section K102.

IBC Appendix Section K102 is amended by the addition of a new subsection K102.6 entitled "Administration" to read as follows:

K102.6 Administration.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IBC.

(Ord. No. 2268, § 3, 7-22-2025)

15.08.530 IBC Appendix Sections K103 through K111.

IBC Appendix Sections K103 (Permits), K104 (Construction Documents), K105 (Alternative Engineered Design), K106 (Required Inspections), K107 (Prefabricated Construction), K108 (Testing), K109 (Reconnection), K110 (Condemning Electrical Systems), and K111 (Electrical Provisions) are deleted in their entirety.

(Ord. No. 2268, § 3, 7-22-2025)

Chapter 15.12

ELECTRICAL CODE*

15.12.010 Adoption of National Electrical Code.

The National Electrical Code (also known as NFPA 70), 2023 Edition published by the National

***Editor's note**—Ord. No. 2268, § 4, adopted July 22, 2025, repealed the former Ch.15.12, §§ 15.12.010—15.12.050, and enacted a new Ch. 15.12 as set out herein. The former Ch. 15.12 pertained to similar subject matter and derived from Ord. No. 2192, § 3, adopted July 22, 2022.

Fire Protection Association, 1 Batterymarch Park, Quincy, MA 02169, is hereby adopted by reference as the City of Golden Electrical Code (hereinafter referred to as "the NEC" or "this Code.") as if fully set out in this codification, with the amendments indicated in the following sections of this chapter.

(Ord. No. 2268, § 4, 7-22-2025)

15.12.020 NEC Section 90.4.

NEC Section 90.4 (Enforcement) is amended by addition of the following paragraph:

Sections 103 through Section 116 inclusive, and Appendix K of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this code.

(Ord. No. 2268, § 4, 7-22-2025)

15.12.030 NEC Section 110.

NEC Article 110 (General Requirements for Electrical Installations) is amended with the addition of a new subsection 110.26.1 entitled, "Weather Protection" to read as follows:

110.26. Weather Protection.

Electrical wiring shall not be installed inside of any building until the interiors of such building have been physically protected from the weather.

(Ord. No. 2268, § 4, 7-22-2025)

15.12.040 NEC Section 230.43.

NEC Section 230.43 (Wiring Methods for 1000 Volts, Nominal, or Less) is amended to read as follows:

230.43. Wiring Methods for 1000 Volts, Nominal, or Less.

Service-entrance conductors shall be installed in accordance with the applicable requirements of this NEC covering the type of wiring method used and shall be limited to the following methods:

1. Open wiring on insulators.
2. Type IGS cable.

3. Rigid metal conduit (RMC).
4. Intermediate metal conduit (IMC).
5. Electrical metallic tubing (EMT).
6. Electrical nonmetallic tubing.
7. Service-entrance cables.
8. Wireways.
9. Busways.
10. Auxiliary gutters.
11. Rigid polyvinyl chloride conduit (PVC).
12. Cablebus.
13. Type MC Cable.
14. Mineral-insulated, metal-sheathed cable, Type MI.
15. Flexible metal conduit (FMC) not over 1.8 m (6ft) long or liquid tight flexible metal conduit (LFMC) not over 1.8 m (6ft) long between a raceway, or between a race-way and service equipment, with a supply-side bonding jumper routed with the flexible metal conduit (FMC) or the liquid tight flexible metal conduit (LMFC) according to 250.102(A), (B), (C), and (E).
16. Liquid tight flexible nonmetallic conduit (LMFC).
17. High density polyethylene conduit (HDPE).
18. Nonmetallic underground conduit with conductors (NUCC).
19. Reinforced thermosetting resin conduit (RTRC).
20. Type TC-ER Cable.
21. Service entrance conductors shall not be run inside of buildings unless enclosed in approved raceway. Service entrance conductors shall not be run inside of buildings at a distance greater than one hundred (100) feet without automatic over-current protection on the lead or supply ends. Service entrance conduc-

tors run inside of Group H occupancies shall have automatic over-current protection on conductor lead or supply ends. (Ord. No. 2268, § 4, 7-22-2025)

15.12.050 NEC Section 230.70(A)(1).

NEC Section 230.70(A)(1) (Location) is amended to read as follows:

230.70. General.

1. **Location.** The service disconnecting means shall be installed in accordance with 230.70(A)(1), (A)(2), and (A)(3).
 - a. The service disconnecting means shall be installed outside of a building or other structure at a readily accessible location nearest the point of entrance of the service conductors.

Exception: The service disconnecting means shall be permitted to be installed at a readily accessible location directly inside nearest the point of entrance of the service conductors in buildings provided with and approved automatic fire suppression system. (Ord. No. 2268, § 4, 7-22-2025)

Chapter 15.16 PLUMBING CODE*

15.16.010 Adoption of International Plumbing Code.

The 2024 International Plumbing Code, published by the International Code Council, Inc., 200 Massachusetts Ave NW, Suite 250, Washington DC 20001, Chapters 1 through 13 inclusive and Appendices B, C, D, and E, is hereby adopted by reference as the City of Golden Plumbing Code (hereinafter referred to

***Editor's note**—Ord. No. 2268, § 5, adopted July 22, 2025, repealed the former Ch. 15.16, §§ 15.16.010—15.16.080, and enacted a new Ch. 15.16 as set out herein. The former Ch. 15.16 pertained to similar subject matter and derived from Ord. No. 2192, § 4, adopted July 22, 2022.

as "the IPC" or "this Code") as if fully set out in this codification, with the amendments indicated in the following sections of this chapter. (Ord. No. 2268, § 5, 7-22-2025)

15.16.020 IPC Section 101.1.

IPC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Plumbing Code of the City of Golden, hereinafter referred to as "the IPC" or "this Code." (Ord. No. 2268, § 5, 7-22-2025)

15.16.030 IPC Section 102.8.

IPC Section 102.8 (Referenced Codes and Standards) is amended to read as follows:

102.8. Referenced Codes and Standards.

The codes and standards referenced in this IPC shall be those that are listed in IPC Chapter 15 and such codes and standards shall be considered as part of the requirements of this IPC to the prescribed extent of each such reference and as further regulated in IPC Sections 102.8.1 and 102.8.2.

To the extent applicable, the requirements of the City's "Water and Sanitary Sewer Specifications" shall apply. Where conflicts exist between the specific provisions of this IPC and the "Water and Sanitary Sewer Specifications," the most restrictive provisions shall govern.

To the extent applicable, the requirements of the City's "Cross-Connection Control Program" shall apply. Where conflicts exist between the specific provisions of this IPC and the "Cross Connection Control Program," the most restrictive provisions shall govern. (Ord. No. 2268, § 5, 7-22-2025)

15.16.040 IPC Section 103.

IPC Section 103 (Code Compliance Agency) is repealed and replaced in its entirety with a new Section 103 entitled, "Administrative Provisions" to read as follows:

103. Administrative Provisions.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IPC. (Ord. No. 2268, § 5, 7-22-2025)

15.16.050 IPC Sections 104 through 115.

IPC Sections 104 (Duties and powers of the code official), 105 (Permits), and 106 (Construction Documents), 107 (Notice of Approval), 108 (Fees), 109 (Service Utilities), 110 (Temporary Uses, Equipment, and Systems), 111 (Inspections and Testing), 112 (Means of Appeals), 113 (Board of Appeals), 114 (Violations), and 115 (Stop Work Order) are deleted in their entirety. (Ord. No. 2268, § 5, 7-22-2025)

15.16.060 IPC Section 305.4.1.

IPC Section 305.4.1 (Sewer Depth) is amended to read as follows:

305.4.1. Sewer Depth.

Building sewers that connect to private sewage disposal systems shall be a minimum of twelve (12) inches (304.8 mm) below finished grade at the point of septic tank connection. Building sewers shall be a minimum of twelve (12) inches (304.8 mm) below grade. (Ord. No. 2268, § 5, 7-22-2025)

15.16.070 IPC Section 903.1.1.

IPC Section 903.1.1 (Roof Extension Unprotected) is amended to read as follows:

903.1.1. Roof Extension Unprotected.

All open vent pipes that extend through a roof shall be terminated at least twelve (12) inches (304.8 mm) above the roof, except that where a roof is to be used for any purpose other than weather protection, the vent extensions shall be run at least seven (7) feet (2134 mm) above the roof. (Ord. No. 2268, § 5, 7-22-2025)

15.16.080 IPC Section 1003.3.

IPC Section 1003.3 (Grease Interceptors) is amended by the addition of a new subsection 1003.3.9 entitled, "Outdoor Grease Interceptors" to read as follows:

1003.3.9. Outdoor Grease Interceptors.

Outdoor grease interceptors shall be permitted to be sized by an accepted engineering practice but shall not be less than two (2) times the flow-through rate.

Unless otherwise accepted by the Building Official, outdoor grease interceptors shall also comply with the following minimum design and location requirements:

1. Be watertight.
2. Provide a minimum of four (4) inches of air space above the top of the outlet pipe and the underside of tank top.
3. The invert inlet shall not be less than two (2) inches nor more than six (6) inches above the invert elevation of the outlet.
4. The minimum inlet and outlet piping size for the tank shall not be less than four (4) inches.
5. The inlet piping shall be provided with a vertical quarter bend and drop piping installed on the interior of the tank and extending down to at least six (6) inches below the liquid level and at least twelve (12) inches above the bottom of the tank.
6. The outlet piping shall be provided with a vertical sanitary-tee fitting and drop piping installed on the interior of the tank and extending down to twelve (12) inches above the bottom of the tank. The vertical sanitary-tee fitting shall be extended up to within twelve (12) inches of the bottom of the access manhole cover to function as a sampling port.
7. The interceptor shall be divided into two (2) compartments by a baffle yielding

two-thirds (2/3rds) of the tank volume on the inlet side and one-third (1/3rd) the tank volume on the discharge side.

- a. The baffle shall be designed to extend at least six (6) inches above the liquid level.
 - b. The baffle shall be designed to maintain at least a two (2) inches separation below the underside of the tank top for venting.
 - c. The flow from the inlet compartment to the outlet compartment shall be through a vertical quarter bend installed on the inlet side of the baffle.
 - i. The quarter bend shall be equal in size to the inlet pipe.
 - ii. The quarter bend shall extend down to twelve (12) inches from the bottom of the tank.
 - iii. The top of the opening in the baffle provided to receive the quarter bend shall be located below the invert of the outlet.
8. Separate cleanouts, extended to grade, shall be provided on the inlet and outlet piping exterior of the interceptor.
 9. The interceptor and discharge piping shall be properly vented to an approved location.
 10. The interceptor shall be provided with two (2) twenty-four (24) inch minimum diameter manhole access for maintenance and service. One (1) manhole shall be installed over the inlet chamber, and one (1) shall be installed over the outlet chamber.
 11. The interceptor shall be designed to withstand any applied loads, such as, but not limited to, vehicular traffic.
 12. The interceptor shall be installed in a readily accessible location for inspection and maintenance.
- (Ord. No. 2268, § 5, 7-22-2025)

Chapter 15.17 MECHANICAL CODE*

15.17.010 Adoption of International Mechanical Code.

The 2024 International Mechanical Code, published by the International Code Council, Inc., 200 Massachusetts Ave NW, Suite 250, Washington DC 20001, Chapters 1 through 15 inclusive and Appendix A, is hereby adopted by reference as the City of Golden Mechanical Code (hereinafter referred to as "the IMC" or "this Code"), as if fully set out in this codification with the amendments indicated in the following sections of this chapter.

(Ord. No. 2268, § 6, 7-22-2025)

15.17.020 IMC Section 101.1.

IMC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Mechanical Code of the City of Golden, hereinafter referred to as "the IMC" or "this Code."

(Ord. No. 2268, § 6, 7-22-2025)

15.17.030 IMC Section 103.

IMC Section 103 (Code Compliance Agency) is repealed and replaced in its entirety with a new Section 103 entitled, "Administrative Provisions" to read as follows:

103. Administrative Provisions.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IMC.

(Ord. No. 2268, § 6, 7-22-2025)

***Editor's note**—Ord. No. 2268, § 6, adopted July 22, 2025, repealed the former Ch.15.17., §§ 15.17.010—15.17.050, and enacted a new Ch. 15.17 as set out herein. The former Ch. 15.17 pertained to similar subject matter and derived from Ord. No. 2192, § 5, adopted July 22, 2022.

15.17.040 IMC Sections 104 through 116.

IMC Sections 104 (Duties and Powers of the Code Official), 105 (Permits), 106 (Construction of Documents), 107 (Notice of Approval), 108 (Fees), 109 (Service Utilities), 110 (Temporary Uses, Equipment and Systems), 111 (Inspections and Testing), 112 (Means of Appeals), 113 (Board of Appeals), 114 (Violations), and 115 (Stop Work Order) are deleted in their entirety. (Ord. No. 2268, § 6, 7-22-2025)

15.17.050 IMC Section 901.

IMC Section 901 (General) is amended by the addition of a new subsection 901.5 entitled "Emissions Standards for Solid Fuel Burning Equipment" to read as follows:

901.5. Emissions Standards for Solid Fuel Burning Equipment.

Every newly installed, new, or used, solid fuel burning factory-built fireplace, fireplace stove, masonry heater, room heater, stove, or pellet type appliance shall be:

1. EPA Certified Phase II;
2. State of Colorado Certified Phase III; or
3. A state approved solid fuel burning device which is exempt from and not eligible for certification under the United States Environmental Protection Agency (EPA) regulations for wood stoves but which has been tested to demonstrate its emission performance and is in accordance with criteria and procedures not less stringent than those required by the EPA and/or State of Colorado Air Quality Control Commission (AQCC) for wood stoves manufactured after July 1, 1990, and as approved by the alternate materials, alternate design and methods of construction provisions of the administrative provisions regulated by this Code.

(Ord. No. 2268, § 6, 7-22-2025)

Chapter 15.18
SITE IMPROVEMENTS*

15.18.010 Legislative intent.

It is the intent of this chapter to provide procedures, standards, and review for site work, as defined in this chapter, that is not already addressed in building permit applications, or when it involves earth work only or not associated with building construction. There is a need to establish a process to address this gap in oversight related to site work that isn't associated with a building permit and also to provide a time frame within which site work must be completed. The requirement and enforcement of a site improvement process promotes the protection of the health, safety, and general welfare of Golden residents and visitors. (Ord. No. 2231, § 2, 5-28-2024)

15.18.020 Definitions.

For the purposes of this chapter, the following words and terms have the following meanings, unless the context clearly indicates otherwise:

City engineer means the city engineer or their designee.

Cut means the removal of any rock, soil, or any combination thereof where material is removed from its prework location.

Developer means any person who participates in any manner in the improvement or development of land as owner, subdivider or in any other capacity.

Earth work/grading means the mechanical removal or deposit of any rock or soil, or any combination thereof.

Fill means the placement of any rock, soil, or any combination thereof either from a location on a project site or imported from an offsite location.

***Editor's note**—Sec. 2 of Ord. No. 2231, adopted May 28, 2024, repealed and recreated ch. 15.18 in its entirety to read as herein set out. Former ch. 15.18 pertained to grading, consisted of §§ 15.18.010, 15.18.020, and derived from Ord. No. 1330, 1996; Ord. No. 1499, 2000; and Ord. No. 1931, 2013.

Private infrastructure means water/sanitary/storm mains facilities or appurtenances, roads, sidewalks, etc. maintained by a private property owner or organization connected to or served by public infrastructure.

Public improvements means those rights-of-way, easements, access rights, and physical improvements which, upon formal acceptance by the city shall become the responsibility of the city for ownership and/or maintenance and repair, and shall include, but not by way of limitation, the following: curb and gutter, asphalt pavement, concrete pavement, streets of all types, sidewalks, pedestrian/bike paths, traffic signals, street lights, highways, freeway rights of way, easement, access rights, medians, bridges, acceleration and deceleration lanes, culverts, storm drainage facilities including necessary structures, channels, water lines, sanitary sewer lines and all other improvements which upon acceptance by the city are intended to be for the use of and enjoyment of the public.

Public infrastructure means any public facility, system, or improvement including, without limitation, water, sewer, and stormwater mains and appurtenances, storm drains and structures, utilities, roads, streets, sidewalks, curb and gutter, alleys, traffic signal poles and appurtenances, conduits, signs, landscape improvements, and public safety equipment.

Service line means the line from the city water or wastewater main to the building or improvement to be served.

Site work/site improvements generally means the work taking place on the exterior of a building foundation or independent of the construction of a structure, including, but not limited to, earthwork, grading, utility installation, drainage infrastructure, construction/modification/removal of public improvement, public infrastructure, or of private infrastructure, construction/modification/removal/installation of a tap, service line, or connection to water, sewer, or stormwater distribution or collection systems.

Tap means the right, physical process, or act of connecting a service line to the city's water main and/or wastewater main.
(Ord. No. 2231, § 2, 5-28-2024)

15.18.030 Site improvement permit.

(a) *Site improvement permit required.* Except as permitted herein, it shall be unlawful for any person to perform site work without first obtaining a permit from the city if the site work is in connection with any one of the following:

- (1) *Phased projects.* A project involving the construction of multiple buildings where completion of each building and obtaining a certificate of occupancy will occur in phases.
- (2) *Earth work-only projects.* A project involving the placement or removal of greater than or equal to 50 cubic yards (YD³) of earth material and not associated with another project covered under a building permit. The conditions found in the approved plans of the earth work-only site development permit must be met within 180 days of permit issuance but may be extended with written approval by the city engineer. Each extension will be for a period not to exceed 60 days and must be requested prior to permit expiration and/or prior to each extension expiration.
- (3) *Site work not associated with a building permit.* A project involving the construction/modification/removal of public improvements, public infrastructure, private infrastructure, taps or service lines or connections to water, sewer, or stormwater distribution or collection systems not associated with a building permit.
- (4) *Site work prior to issuance of building permit.* A desire to begin site work prior to issuance of building permits. However, if a person obtains a site improvement permit to begin work prior to issuance of building permits they are doing so at their own risk as changes to the work covered under the site improvement permit may be required due to a subsequent review of the associated building permit.

(b) *Exemptions from the permit requirement.* The following activities may be conducted without obtaining a site improvement permit:

- (1) Minor earth work projects which meet both of the following criteria:
 - (i) Involve the placement or removal of less than 50 cubic yards (YD³) of earth material. Material removed from a cut and subsequently placed as fill adjacent to the cut shall not be considered separate disturbances for the purpose of determining whether the 50 cubic yards minor project exemption has been exceeded and;
 - (ii) Involve less than one-half acre of graded area. Individual lots in subdivision developments under the same ownership, involving less than one-half acre of disturbed area, shall not be considered separate projects if they are contiguous. Any series of related projects or connected projects on one site, which together exceed the one-half-acre limitation or involve the placement or removal of more than 50 cubic yards shall be considered a single project. For example, several one-half acre segments to construct a road would be considered a single project and would be required to obtain a site improvement permit.
- (2) Tillage of land that is zoned agricultural or the tillage of a parcel zoned PUD (planned unit development) that permits agricultural uses.
- (3) Maintenance and cleaning of ditches, lakes, ponds, and water storage reservoirs.
- (4) Maintenance and resurfacing of existing roads, trail systems, and railroad beds.
- (5) Performance of emergency work necessary to prevent or mitigate an immediate threat to life, property, or the environment. The person performing such emergency work shall immediately notify the public works department of the

emergency and work required. If the emergency work would not otherwise be exempt from a site improvement permit, a permit shall be obtained within 14 business days of the notification of the emergency.

(c) *[Compliance required.]* If a site improvement permit is associated with the construction of one or more buildings, the conditions of the site improvement permit must be met, and the site improvement permit closed within 30 days of issuance of certificate of occupancy for any building associated with the site improvement permit. The timeline may be extended with written consent of the city engineer. Each extension will be for a period not to exceed 60 days and must be requested prior to expiration of the site improvement permit and/or prior to the expiration of each extension.

(d) *Permission of other agencies or owners.* The issuance of a site improvement permit shall not relieve the person of the responsibility of securing other permits or approvals required by the city or any other entity or complying with all applicable federal, state, or local laws and regulations, or for obtaining any easements or authorization for removing or transporting earth materials on property not owned by the permittee.

(e) *Contact information posted required.* At any time site work or site improvements are being performed under a permit, the permittee shall ensure there is a posting, on site and clearly legible from the public view, that details the contact information of at least two contractors listed on the associated permit.

(Ord. No. 2279, § 7, 10-28-2025; Ord. No. 2231, § 2, 5-28-2024)

15.18.040 Permit fee.

(a) Before a permit is issued pursuant to this chapter, the applicant shall pay to the city a permit fee, which shall be determined in accordance with a fee schedule adopted by the city council by resolution from time to time. If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an

initial escrow payment in an amount sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services

related to the application if they become necessary. If the applicant does not pay additional escrow funds as required within ten days after written notice from the city, then, in addition to other remedies the city may have, the city shall be entitled to a lien on the subject property or the city may elect to certify the assessed costs and expenses to the office of the county treasurer for collection in the same manner as general property taxes are collected. Such liens shall be perfected and may be foreclosed upon in accordance with applicable state laws.

(b) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2231, § 2, 5-28-2024)

15.18.050 Remedies for noncompliance.

(a) *Stop work orders.* Whenever the city determines that any activity is occurring which is not in compliance with a site improvement permit or being done without first obtaining a required site improvement permit, the city may issue a stop work order. The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work, or shall be prominently posted on or near the affected work, property, or structure. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume.

(b) *Civil proceedings.* In case of any violation of any provision of this chapter, or any amendment thereof, the city may, at its discretion, initiate civil proceedings, including administrative citations pursuant to chapter 8.25 of the Code, injunction, mandamus, abatement, declaratory judgment or other appropriate actions or proceedings, to prevent, enjoin, abate, remove, or otherwise correct any such unlawful condition.

Civil remedies provided under this section are not exclusive and shall not preclude prosecution for criminal violations under provisions of the Golden Municipal Code.

(Ord. No. 2231, § 2, 5-28-2024)

Chapter 15.26

ENERGY CONSERVATION CODE*

15.26.010 Adoption of the International Energy Conservation Code.

The 2024 International Energy Conservation Code, published by the International Code Council, Inc., 200 Massachusetts Ave, NW, Suite 250, Washington, DC 20001, is hereby adopted by reference as the City of Golden Energy Conservation Code (hereinafter referred to as "the IECC" or "this Code") as if fully set out in this codification with the amendments indicated in the following sections of this chapter. Appendices CB, CG, CH, CI, and CJ as amended, of the IECC-Commercial Appendices are adopted. Appendices RB, RD, RE, RJ, and RK, as amended, of the IECC-Residential are adopted.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.020 IECC Section C101.1.

IECC Section C101.1 (Title) is amended to read as follows:

C101.1. Title.

These regulations shall be known as the Energy Conservation Code of the City of Golden and shall be cited as such. It is referred to herein to as "the IECC" or "this Code."

(Ord. No. 2268, § 7, 7-22-2025)

15.26.030 IECC Section C101.2.1.

Section C101.2.1 (Appendices) is amended to read as follows:

C101.2.1. Appendices.

***Editor's note**—Ord. No. 2268, § 7, adopted July 22, 2025, repealed the former Ch.15.26, §§ 15.26.010—15.26.040, and enacted a new Ch. 15.26 as set out herein. The former Ch. 15.26 pertained to similar subject matter and derived from Ord. No. 2192, § 6, adopted July 22, 2022.

Provisions in the appendices shall not apply unless specifically adopted. Appendices CB, CG, CH, CI, and CJ are hereby adopted. (Ord. No. 2268, § 7, 7-22-2025)

15.26.040 IECC Section C107.2.2.

Section C107.2.2 (Building Thermal Envelope), is amended to read as follows:

C107.2.2. Building thermal envelope.

Inspections shall verify the type of insulation, R-values, location of insulation, thermal bridge mitigation, fenestration, U-factor, SHGC and VT, and that air leakage controls are installed, as required by the code, approved plans and specifications. At the request of the code official, a letter or proof of intent to contract with an approved third-party testing agency describing the air barrier inspection sequencing shall be provided to the code official prior to completion of rough framing or insulation inspections, and shall be signed by the building owner or the building owner's representative.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.050 IECC Section C109.

Section C109 (Means of Appeals) is repealed and replaced with IBC Section 113, as adopted and amended by the City of Golden. (Ord. No. 2268, § 7, 7-22-2025)

15.26.060 IECC Section C202.

Section C202 (General Definitions) is amended to change or add the following definitions in alphabetical order:

ALL-ELECTRIC BUILDING. A new building that contains no permanently-installed combustion equipment or plumbing for combustion equipment, or an existing building that contains no permanently-installed combustion equipment.

COMBUSTION EQUIPMENT. Equipment or appliances that use fuel gas, fuel oil, or any other hydrocarbon-derived fuel or fuel blend to perform functions such as space heating, space cooling, service water heating (including pools and spas), cooking, clothes drying,

humidification, or lighting. The scope of this definition may be limited to combustion-based space and water heating equipment where specifically indicated. Combustion equipment does not include emergency power systems or standby power systems.

CORE AND SHELL. The first phase of a commercial project that has the outer building envelope constructed and may contain interior lighting and heating and has not received a permanent Certificate of Occupancy.

EMERGENCY POWER SYSTEM. A source of automatic electric power of a required capacity and duration to operate required life safety, fire alarm, detection, and ventilation systems in the event of a failure of the primary power. Emergency power systems are those required for electrical loads where interruption of the primary power could result in loss of human life or serious injuries.

ENERGY USE INTENSITY (EUI). The metric indicating the total amount of site energy consumed by a building in 1 year divided by the gross floor area of the building, and reported in kBtu per square foot.

FIRST TENANT FINISH. The first tenant finish(es) in a new structure or core and shell building that is credited towards meeting the requirements of the commercial provisions of the energy code.

FUEL GAS. A natural gas, manufactured gas, liquefied petroleum gas, or mixtures of these gases that is burned to produce heat or energy.

FUEL OIL. Kerosene or any hydrocarbon oil having a flash point of not less than 100°F (38°C).

FUTURE ELECTRIC EQUIPMENT. Electrically-powered equipment that could be installed in the future to replace combustion equipment to meet a similar end use or load.

MIXED-FUEL BUILDING. A new building that contains combustion equipment or piping for combustion equipment, or an existing building that contains combustion equipment, in addition to electric loads.

STANDBY POWER SYSTEM. A source of automatic electric power of a required capacity and duration to operate required building, hazardous materials, or ventilation systems in the event of a failure of the primary power. Standby power systems are those required for electrical loads where interruption of the primary power could create hazards or hamper rescue or fire-fighting operations.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.070 IECC Section C401.2.

Section C401.2 (Application) is amended to read as follows:

C401.2. Application.

Commercial buildings shall comply with Section C401.2.1 and Appendix CB, CG, CH, CI, and CJ as amended.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.080 IECC Section C401.2.1.

Section C401.2.1 (International Energy Conservation Code) is amended to read as follows, with exception to remain:

C401.2.1. International Energy Conservation Code.

Commercial buildings shall comply with one of the following:

1. **Prescriptive Compliance.** The Prescriptive Compliance option requires compliance with Sections C402 through C406 and Section C408. Dwelling units and sleeping units in Group R-2 buildings shall be deemed to be in compliance with this chapter, provided they comply with Section R406 and Appendix RK as amended.
2. **Simulated Building Performance.** The Simulated Building Performance option requires compliance with Section C407.
3. **All-Electric.** The All-Electric option requires compliance with Section C411.
4. **Passive House.** The Passive House option requires compliance with Section C412.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.090 IECC Section C401.2.2.

Section C401.2.2 (ASHRAE 90.1) is amended to read as follows:

C401.2.2. ASHRAE 90.1.

ANSI/ASHRAE/IES 90.1 shall not be used as a compliance path under this code except where specifically referenced in Section C407 for performance-based compliance. Where referenced in Section C407, the standard shall be applied as modified by that section.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.100 IECC Section C402.1.2.1.8.

Section C402.1.2.1.8 (Mechanical equipment penetrations) is deleted in its entirety.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.110 IECC Section C402.1.3.3.

Section C402.1.3.3 (Suspended ceilings) is amended to read as follows:

C402.1.3.3. Suspended ceilings.

Insulation installed on suspended ceilings having removable ceiling tiles shall not be considered part of the minimum thermal resistance (R-value) of roof insulation in roof/ceiling construction.

Exceptions: Suspended ceilings with heated plenums over parking garages where access to mechanical systems is required and that meet the following criteria:

- a. Insulation is a minimum of R-19 and is supported in a permanent manner by a support no greater than 24 inches on center.
- b. The plenum above the parking garage is heated by a heating system whose output capacity does not exceed 12 Btu/H x ft².
(Ord. No. 2268, § 7, 7-22-2025)

15.26.120 IECC Section C402.4.

Section C402.4 (Roof solar reflectance and thermal emittance), first sentence, is amended to read as follows, with the exceptions and other parts of the section to remain:

C402.4. Roof solar reflectance and thermal emittance.

Low-slope roofs directly above cooled conditioned spaces shall comply with one or more of the options in Table C402.4.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.130 IECC Section C402.6.1.1.

Section C402.6.1.1 (Air barrier design and documentation requirements) is amended to add a new item #6 to read as follows:

- (6) The air barrier boundary limits and size of the surface area of the air barrier (floor, wall, and ceiling or roof), and of the zone or zones to be tested for maximum building air infiltration or exfiltration, shall be clearly identified on the approved construction drawings.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.140 IECC Section C402.6.1.2.

Section C402.6.1.2 (Air barrier construction) item #1 is amended to read as follows:

- (1) The air barrier shall be continuous for all assemblies that comprise the building thermal envelope and across the joints and assemblies.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.150 IECC Section C402.6.2.3.

Section C402.6.2.3 (Building thermal envelope design and construction verification criteria) item #2 is amended to read as follows:

- (1) Inspection of continuous air barrier components and assemblies shall be conducted during construction to verify compliance with the requirements of Section C402.6.2.3.1 and C402.6.2.3.2. If conducted by an approved third-party, the inspection shall comply with the protocols established in Section C402.6.1.1, and the air barrier and air sealing inspection report shall be provided to the building owner or owner's authorized agent and the code official at the time of rough framing or insulation

inspection. The air barrier shall be provided with access for inspection and repair.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.160 IECC Section C403.4.1.1.

Section C403.4.1.1 (Heat pump supplementary heat) is amended as follows:

C403.4.1.1. Heat pump supplementary heat.

Heat pumps having supplementary heat shall have controls that limit supplemental heat operation to only those times when one of the following applies:

1. The vapor compression cycle cannot provide the necessary heating energy to satisfy the thermostat setting.
2. The heat pump is operating in defrost mode.
3. The vapor compression cycle malfunctions.
4. The thermostat malfunctions.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.170 IECC Section C403.5.

Section C403.5 (Economizers) exception #7 is amended to read as follows:

- (6) Fan coils or unitary equipment with a capacity less than 54,000 Btu/h (15.8 kW) and installed with a dedicated outdoor air system.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.180 IECC Section C403.13.3.1.

Section C403.13.3.1 (Protection of piping insulation) is amended to read as follows:

C403.13.3.1. Protection of piping insulation.

Piping insulation exposed to the weather shall be protected from physical damage, including that caused by sunlight, moisture, equipment maintenance, and wind. The protection shall provide shielding from solar radiation that can cause degradation of the material. The protection shall be removable and reusable for

not less than 6 inches (150 mm) from the connection to the equipment piping for maintenance. Adhesive tape and paint products applied to HVAC system insulating materials, and similar applications that require maintenance shall not be permitted as a means of insulation protection, although such products and applications may still be used for other purposes where allowed or required by other codes.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.190 IECC Section C405.2.4.

Section C405.2.4 (Daylight responsive controls) is amended to read as follows, with exceptions to remain:

C405.2.4. Daylight responsive controls.

Daylight responsive controls complying with Section C405.2.4.1 shall be provided to control the general lighting within daylight zones in the following spaces:

1. Spaces with a total of more than 150 watts of general lighting within primary sidelit daylight zones complying with Section C405.2.4.2.
2. Spaces with a total of more than 300 watts of general lighting within sidelit daylight zones complying with Section C405.2.4.2.
3. Spaces with a total of more than 150 watts of general lighting within toplit daylight zones complying with Section C405.2.4.3.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.200 IECC Section C405.2.8.1.

Section C405.2.8.1 (Demand responsive lighting controls function) is amended to add a new item #5 as follows:

- (5) Receiving and responding to a utility demand response signal from the specific utility providing electric power to the building.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.210 IECC Section C405.5.3.

Section C405.5.3 (Gas lighting) is amended to read as follows:

C405.5.3. Gas lighting.

Gas fired lighting appliances are prohibited.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.220 IECC Section C405.12.

Sections C405.12 (Automatic receptacle control) and C405.12.1 (Automatic receptacle control function) are deleted in their entirety.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.230 IECC Section C405.13.

Section C405.13 (Energy monitoring) is amended to read as follows, with the exceptions to remain:

C405.13. Energy monitoring.

New buildings with a gross conditioned floor area of not less than 25,000 square feet (2,323.6 m²) shall be equipped to measure, monitor, record, and report energy consumption in accordance with Sections C405.13.1 through C405.13.6 for load categories indicated in Table C405.13.2 and Sections C405.13.7 through C405.13.11 for end-use categories indicated in Table C405.13.8.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.240 IECC Section C405.13.2.

Table C405.13.2 (ELECTRICAL ENERGY USE CATEGORIES) is amended to add a new line at the end to read as follows:

Amendments to Table C405.13.2

Electric vehicle charging	Electric vehicle charging loads.
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(Ord. No. 2268, § 7, 7-22-2025)

15.26.250 IECC Section C405.15.

Section C405.15 (Renewable energy systems) and all of Sections C405.15.1 through C405.15.4 are deleted in their entirety.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.260 IECC Section C406.1.

Section C406.1 (Compliance) is amended to read as follows:

C406.1. Compliance.

Buildings shall comply as follows:

1. Buildings with greater than 2,000 square feet (186 m²) of conditioned floor area shall comply with Section C406.1.1.
2. Build-out construction greater than 1,000 square feet (93 m²) of conditioned floor area that does not have final lighting or final HVAC systems installed under a prior building permit shall comply with Section C406.1.1.3.

Exceptions: Core and shell buildings where not less than 20 percent of the net floor area is without final lighting or final HVAC that comply with the following:

- a. Buildings with greater than 5,000 square feet (465 m²) of conditioned floor area shall comply with Section C406.1.1.
- b. Portions of the building where the net floor area is without final lighting or final HVAC shall comply with Section C406.1.1.3.
- c. Portions of the building where the net floor area has final lighting and final HVAC systems shall comply with Section C406.1.1.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.270 IECC Section C406.1.1.

Section C406.1.1 (Additional energy efficiency credit requirements) is renamed and replaced as follows:

C406.1.1. Additional energy credit requirements.

Buildings shall comply with measures from Sections C406.2 and C406.3 to achieve not less than the number of required energy credits in accordance with Sections C406.1.1.1 or C406.1.1.2 as applicable. Where a project contains multiple occupancies, the total required energy credits from each building occupancy shall be weighted by the gross conditioned floor area to determine the weighted-average project energy credits required. Accessory occupancies shall be included with the primary occupancy group for the purposes of Section C406.

Exception: Portions of buildings devoted to manufacturing or industrial use.

C406.1.1.1. Mixed fuel buildings.

Buildings that use combustion equipment for space heating or service water heating, other than for supplemental heating in accordance with Section C403.4.1.1, shall achieve the number of required energy credits in Table C406.1.1.1, based on building occupancy group and conditioned floor area. Credit ID R01 shall receive no more than the maximum credit value indicated in column #4 of the table.

Exceptions: Buildings that meet any of the following criteria shall achieve the number of required energy credits in accordance with Section C406.1.1.2:

- a. Buildings that use combustion equipment only for specialized service water heating uses where determined by and

- approved by the code official, including but not limited to water heating for pools or spas.
- b. Low-energy buildings complying with Section C402.1.1.1.
- c. Portions of buildings in Group U, Group S, Group F, or Group H occupancies.

TABLE C406.1.1.1 CREDIT REQUIREMENTS FOR MIXED FUEL BUILDINGS

<i>BUILDING OCCUPANCY GROUP</i>	<i>CONDITIONED FLOOR AREA 2,000—4,999 FT²</i>	<i>CONDITIONED FLOOR AREA ≥ 5,000 FT²</i>	<i>MAXIMUM CREDITS FROM ID R01</i>
R-2, R-4, and I-1	113	146	5
I-2	54	82	26
R-1	108	141	37
B	91	138	35
A-2	90	100	5
M	78	126	5
E	84	132	32
S-1 and S-2	82	172	35
All Other	45	89	6

C406.1.1.2 All other buildings.

Buildings that do not use combustion equipment for space heating or service water heating, other than for supplemental heating in accordance with Section C403.4.1.1, shall achieve the number of required energy credits in Table C406.1.1.2, based on building occupancy group and conditioned floor area. Credit ID R01 shall receive no more than the maximum credit value indicated in column #4 of the table.

TABLE C406.1.1.2 CREDIT REQUIREMENTS FOR ALL OTHER BUILDINGS

<i>BUILDING OCCUPANCY GROUP</i>	<i>CONDITIONED FLOOR AREA 2,000—4,999 FT²</i>	<i>CONDITIONED FLOOR AREA ≥ 5,000 FT²</i>	<i>MAXIMUM CREDITS FROM ID R01</i>
R-2, R-4, and I-1	90	123	5
I-2	43	71	26
R-1	86	119	37
B	73	120	35
A-2	72	82	5
M	62	110	5
E	67	115	32
S-1 and S-2	82	172	35
All Other	36	80	6

(Ord. No. 2268, § 7, 7-22-2025)

15.26.280 IECC Section C406.1.1.2.

Section C406.1.1.2 is renumbered as Section C406.1.1.3 and amended to read as follows:

C406.1.1.3. Building core/shell and build-out construction.

Where separate permits are issued for core and shell buildings and build-out construction, compliance shall be as follows and as summarized in Table C406.1.1.3:

1. Core and shell buildings or portions of buildings shall comply with one of the following:
 - 1.1. Where the permit includes a space heating or service water heating system that uses combustion equipment, the project shall achieve not less than 50 percent of the energy credits required by Section C406.1.1.1 using measures in Sections C406.2 and C406.3.
 - 1.2. Where the permit includes a space heating or service water heating system that does not use combustion equipment, or meets one of the exceptions in C406.1.1.1, the project shall achieve not less than 50 percent of the energy credits required by Section C406.1.1.2 using measures in Section C406.2 and C406.3.
 - 1.3. Where neither a space heating nor a service water heating system is included in the permit, the project shall achieve not less than 33 percent of the energy credits required by Section C406.1.1.1.
2. For core and shell buildings or portions of buildings, the energy credits achieved shall be subject to the following adjustments:
 - 2.1. Lighting measure credits shall be determined only for areas with final lighting installed.
 - 2.2. Where HVAC or service water heating systems are designed to serve the entire building, full HVAC or service water heating measure credits shall be achieved.
 - 2.3. Where HVAC or service water heating systems are designed to serve individual areas, HVAC or service water heating measure credits achieved shall be reduced in proportion to the floor area with final HVAC systems or final service water heating systems installed.
3. Build-out construction shall be deemed to comply with Section C406.1 where one of the following applies:
 - 3.1. Where space heating or service water heating is provided by a previously installed central system that uses combustion equipment, the energy credits achieved in accordance with Section C406.2 and C406.3 under the build-out project are not less than 33 percent of the credits required by Section C406.1.1.1.
 - 3.2. Where space heating or service water heating is provided by a previously installed system that does not use combustion equipment or that meets one or more exceptions in C406.1.1.1, the energy credits achieved in accordance with Section C406.2 under the build-out project are not less than 33 percent of the credits required by Section C406.1.1.2.
 - 3.3. Where space heating or service water heating is provided in the build-out by a system that uses combustion equipment, the build-out project shall achieve not less than 66 percent of the credits required by Section C406.1.1.1 in accordance with Section C406.2 and C406.3.
 - 3.4. Where space heating or service water heating is provided in the build-out by a system that does not use combustion equipment or that meets one or more exceptions in C406.1.1.1, the energy credits achieved in accordance with Section C406.2 and C406.3 under the build-out project are not less than 66 percent of the credits required by Section C406.1.1.2.
 - 3.5. Where the core and shell building was approved in accordance with Section C407 under the 2021 IECC.

4. Where a core and shell or build-out project is required to achieve less than 100 percent of the energy credits required by Section C406.1.1.1 or C406.1.1.2, the

maximum allowable credit value from Credit ID R01 shall be reduced in proportion to the percentage of total required energy credits.

TABLE C406.1.1.3 BUILDING CORE/SHELL AND BUILD-OUT CONSTRUCTION SUMMARY

<i>CATEGORY</i>	<i>CONDITION FOR SPACE AND WATER HEATING</i>	<i>ENERGY CREDIT REQUIREMENTS</i>
Core and shell buildings	With combustion equipment	≥ 50% of required credits (C406.1.1.1)
	Without combustion equipment or meeting exceptions	≥ 50% of required credits (C406.1.1.2)
	No space heating or service water heating in permit	≥ 33% of required credits (C406.1.1.1)
Build-out construction	Using a previously installed central system with combustion	≥ 33% of required credits (C406.1.1.1)
	Using a previously installed system without combustion	≥ 33% of required credits (C406.1.1.2)
	Build-out system uses combustion equipment	≥ 66% of required credits (C406.1.1.1)
	Build-out system does not use combustion or meets exceptions	≥ 66% of required credits (C406.1.1.2)
	Core and shell building previously approved	Must comply with C407

(Ord. No. 2268, § 7, 7-22-2025)

15.26.290 IECC Section C406.1.2.

Section C406.1.2 (Additional renewable and load management credit requirements) and Table C406.1.2 are deleted in their entirety.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.300 IECC Section C406.2.6.2.

Section C406.2.6.2 Q02 (Efficient commercial kitchen equipment) is deleted in its entirety, along with its references in Tables C406.2(1) through C406.2(9).
(Ord. No. 2268, § 7, 7-22-2025)

15.26.310 IECC Section C406.3.1.

Section C406.3.1 (R01 Renewable energy) is amended as follows:

C406.3.1. R01 Renewable Energy.

Projects installing on-site renewable energy systems with a capacity of at least 0.1 watts

per gross square foot (1.08 W/m²) of building area shall achieve energy credits for this measure calculated as follows:

$$EC_R = EC_{0.1} \times (R_t - R_{ex}) / (0.1 \times PGFA)$$

Equation 4-28

where:

EC_R = Section C406.3.1 R01 energy credits achieved for this project.

$EC_{0.1}$ = Section C406.3.1 R01 base credits from Tables C406.2(1) through C406.2(9).

R_t = Actual total rating of on-site renewable energy systems (W).

R_{ex} = Rating (W) of renewable energy resources capacity excluded from credit calculated as follows:

$$R_{ex} = RR_x + RR_c$$

where:

RR_x = Rating of on-site renewable energy resources used to meet any exceptions of this code (W).

RR_c = Rating of on-site renewable energy resources used to achieve other energy credits in Section C406 (W).

PGFA = Project gross floor area (ft²). Where renewable requirements, exceptions, or credits are expressed in annual kWh or Btu rather than W of output capacity, they shall be converted as 3,413 Btu = 1 kWh and converted to W equivalent capacity.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.320 IECC Section C407.

Section C407 (Simulated Building Performance) is replaced with the following:

SECTION C407 -

SIMULATED BUILDING PERFORMANCE.

C407.1. Scope.

This section establishes criteria for demonstrating compliance using simulated building performance in accordance with Section 4.2.1.1 of ANSI/ASHRAE/IES Standard 90.1, Normative Appendix G, as modified by Informative Appendix I for Site Energy and as further modified by this code.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.330 IECC Section C407.2.

Section C407.2 (Mandatory requirements) is amended to read as follows:

C407.2. Mandatory requirements.

Compliance under the simulated building performance path of Section C407 requires compliance with the sections of this code identified in Table C407.2 as amended, superseding Section G1.2.1 of ANSI/ASHRAE/IES Standard 90.1, Normative Appendix G.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.340 IECC Table C407.2(1).

Table C407.2(1) (Requirements for Simulated Building Performance) is amended to add a new line as follows, and to delete the row for C406.1.2 Additional renewable and load management credit requirements:

C403.4.6	Demand Response
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(Ord. No. 2268, § 7, 7-22-2025)

15.26.350 IECC Section C407.3.

Section C407.3 (Compliance based on site energy) is amended to read as follows:

C407.3. Compliance based on site energy.

Buildings shall comply with either Section C407.3.1 Site energy reduction or C407.3.2 Fixed site energy use intensity target.

C407.3.1. Site energy reduction.

Buildings shall comply with Section 4.2.1.1 of ANSI/ASHRAE/IES Standard 90.1, Normative Appendix G, as modified by Informative Appendix I for Site Energy and as further modified by this code.

C407.3.1.1. Building performance factors.

Table 4.2.1.1 Building Performance Factor (BPF) of ANSI/ASHRAE/IES Standard 90.1 is replaced with Table C407.3.1.1. Mixed fuel buildings that use combustion equipment for space heating or service water heating, other than for supplemental heating in accordance with Section C403.4.1.1, shall use the appropriate building performance factor under BPF—Mixed Fuel. All other buildings shall use the appropriate building performance factor under BPF—All Others.

Exceptions: Buildings that meet any of the following criteria may use the building performance factors under BPF—All Others:

1. Buildings that use combustion equipment only for specialized service water heating uses where determined by and approved by the code official, including but not limited to water heating for pools or spas.
2. Low-energy buildings complying with Section C402.1.1.1.
3. Portions of buildings in Group U, Group S, Group F, or Group H occupancies.

TABLE C407.3.1.1. BUILDING PERFORMANCE FACTOR (BPF), SITE ENERGY

<i>BUILDING TYPE</i>	<i>BPF—MIXED FUEL</i>	<i>BPF—ALL OTHERS</i>
Multifamily (R-2, R-4)	0.47	0.63
Healthcare/hospital	0.47	0.63
Hotel/motel	0.50	0.66
Office	0.39	0.52
Restaurant	0.52	0.69
Retail	0.35	0.47
School	0.38	0.50
Warehouse	0.28	0.37
All others	0.43	0.57

C407.3.1.2. Energy conversion factors.

Table G2.1 of ANSI/ASHRAE/IES Standard 90.1 is replaced with Table C407.3.1.2.

C407.3.1.2 ENERGY CONVERSION FACTORS

<i>UNITS</i>	<i>SITE ENERGY, BTU/UNIT</i>	<i>BUILDING PROJECT ENERGY SOURCE</i>
kWh	3,412	Electricity
Therm (GJ)	100,000	Natural Gas
Therm (GJ)	100,000	Propane
Gallon (L)	137,600	Distillate fuel oil

C407.3.2. Fixed performance target modeling procedure.

Eligible building types listed in Table C407.3.2 may demonstrate compliance by achieving the site EUI target identified in Table C407.3.2. The proposed design performance shall be demonstrated using the energy modeling procedures, schedules, and loads for the proposed design in ANSI/ASHRAE/IES Standard 90.1 Normative Appendix G as modified by Informative Appendix I for Site Energy and as further modified by this code. Buildings with multiple occupancy types listed in Table C407.3.2 shall develop a site EUI performance target based on an area-weighted average EUI calculated by the floor area of each occupancy type. Mixed fuel buildings that use combustion equipment for space heating or service water heating, other than for supplemental heating in accordance with Section C403.4.1.1, shall use the appropriate target in Mixed Fuel—Site EUI Target. All other buildings shall use the appropriate target in All Others—Site EUI Target.

Exceptions: Buildings that meet any of the following criteria may use the building performance factors under BPF—All Others:

1. Buildings that use combustion equipment only for specialized service water heating uses where determined by and approved by the code official, including but not limited to water heating for pools or spas.
2. Low-energy buildings complying with Section C402.1.1.1.
3. Portions of buildings in Group U, Group S, Group F, or Group H occupancies.

C407.3.2.1. Excluded energy use.

Energy used for data centers, EV charging, swimming pools, or parking areas is permitted to be excluded from the total site EUI calculation of the building, provided that those sources of energy use are separately metered.

C407.3.2.2. On-site renewable energy limit.

On-site renewable energy is permitted to offset not more than 5 percent of the building's site EUI.

TABLE C407.3.2 FIXED EUI PERFORMANCE TARGETS

<i>BUILDING AREA TYPE</i>	<i>MIXED FUEL - SITE EUI TARGET (KBTU/ FT²×YR)</i>	<i>ALL OTHERS - SITE EUI TARGET (KBTU/ FT²×YR)</i>
Multifamily	24	32
Healthcare/hospital (General Medical & Surgical)	116	155
Healthcare (other)	44	59
Hotel/motel	26	35
Office	30	40
Restaurant	150	200
Retail	30	40
School	25	34
Non-refrigerated Warehouse	8	11

(Ord. No. 2268, § 7, 7-22-2025)

15.26.360 IECC Section C407.4.

Section C407.4 is amended to read as follows:

C407.4. Performance backstop.

All elements of the building envelope and HVAC system must at a minimum meet the mandatory requirements of ASHRAE Standard 90.1-2016, Sections 5.5 and 6.8. No individual component tradeoffs below these prescriptive requirements will be allowed in the proposed building performance model. Exceptions to the 40 percent window-to-wall area in Section 5.5.4.2 of ASHRAE 90.1 2022 Appendix G may be approved by the code official provided that the project can still meet the required building energy performance requirements.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.370 IECC Section C410.

A new Section C410 is added as follows:

C410. Reserved.

This section is reserved for future use.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.380 IECC Section C411.

A new section C411 is added as follows:

C411. ALL-ELECTRIC COMPLIANCE PATHWAY.

C411.1. Application.

New commercial buildings shall be all-electric buildings and comply with Sections C402 through C405, Section C408, and Sections C411.2 through C411.6.

Exceptions:

1. Fuel gas or fuel oil shall be permitted where it has been demonstrated to the code official that use of fuel gas or fuel oil is required by an applicable law or regulation.
2. Fuel gas or fuel oil shall be permitted for an emergency power system or a standby power system.

C411.2. Electric resistance heating equipment.

The sole use of electric resistance equipment and appliances for space and water heating shall be prohibited other than for buildings or portions of buildings that comply with one or more of Sections 411.2.1 through 411.2.8.

C411.2.1. Low space heating capacity.

Electric resistance appliances or equipment shall be permitted in buildings or areas of buildings not served by a mechanical cooling

system and with a total space heating capacity not greater than 4.0 Btu/h (1.2 watts) per square foot of conditioned space.

C411.2.2. Small systems.

Buildings in which electric resistance appliances or equipment comprise less than 5 percent of the total system heating capacity or serve less than 5 percent of the conditioned floor area.

C411.2.3. Kitchen makeup air.

Makeup air for commercial kitchen exhaust systems required to be tempered by Section 508.1.1 of the International Mechanical Code is permitted to be heated by electric resistance.

C411.2.4. Freeze protection.

The use of electric resistance heat for freeze protection shall comply with the following:

1. Space heating systems sized for spaces with indoor design conditions of not greater than 40°F and intended for freeze protection, including temporary systems in unfinished spaces, shall be permitted to use electric resistance. The building thermal envelope of any such space shall be insulated in accordance with Section C402.1 of the International Energy Conservation Code.
2. Freeze protection systems shall comply with Section C403.13.3 of the International Energy Conservation Code.

C411.2.5. Preheating of outdoor air.

Hydronic systems without energy recovery ventilation and that do not use freeze protection fluids shall be permitted to utilize electric resistance to temper air to not more than 40°F. All systems with energy recovery ventilation shall be permitted to utilize electric resistance to preheat outdoor air to defrost or temper air entering the energy recovery device and shall comply with one of the following:

1. Where the space is mechanically humidified or has a process application that will maintain the space above 30 percent relative humidity when the outside temperature is not greater than 25°F

and the system recovers latent energy, the outdoor air shall not be preheated to greater than 25°F.

2. For sensible-only heat recovery exchangers, outdoor air shall not be preheated to greater than 25°F.
3. For all other systems, outdoor air shall not be preheated to greater than 5°F.

C411.2.6. Small buildings.

Buildings with a conditioned floor area of not more than 250 square feet and not served by a mechanical space cooling system shall be permitted to use electric resistance appliances or equipment for space heating.

C411.2.7. Supplemental heat.

Electric resistance heat shall be permitted as supplemental heat where installed with heat pumps sized in accordance with Section 411.3 and provided with controls in accordance with Section C403.4.1.1.

C411.2.8. Specific conditions.

Portions of buildings or specific equipment and appliances, subject to approval by the code official, that require electric resistance heating and cannot practicably be served by electric heat pumps.

C411.3. Heat pump sizing for space heating.

Heat pump space heating systems shall be sized to meet the building heating load at the greater of 0°F or the 99 percent annual heating dry-bulb for the nearest weather station provided in the latest edition of the ASHRAE Handbook of Fundamentals. The heat pump space heating system shall not require the use of supplemental electric heat at or above this temperature other than for defrosting.

C411.4. Heat pump sizing for water heating.

Heat pump service water heating systems shall be sized to meet not less than the building service water heating load at the greater of 15°F or the 99 percent annual heating dry-bulb for the nearest weather station provided in the latest edition of the

ASHRAE Handbook of Fundamentals. Supplemental electric heat shall not be required at or above this temperature other than for temperature maintenance in recirculating systems and defrosting.

C411.5. Heating outside a building.

Systems for heating outside a building shall comply with Section C403.13.1.

C411.6 Low capacity cooling equipment.

Air conditioners with capacities less than 240,000 Btu/h (70 kW) shall be electric heat pump equipment sized and configured to provide both space cooling and space heating. (Ord. No. 2268, § 7, 7-22-2025)

15.26.390 IECC Section C412.

A new section C412 Passive House compliance pathway is added as follows:

C412. PASSIVE HOUSE COMPLIANCE PATHWAY.

C412.1. Scope.

This section establishes criteria for compliance using Passive House Certification. New commercial buildings shall achieve Passive House certification in accordance with Sections 412.2 or 412.3.

C412.2. Passive House Institute US (PHIUS) Certification.

New commercial buildings shall achieve certification with the PHIUS CORE COMM Passive Building Standard and provide documentation in accordance with Section 412.2.1.

C412.2.1. Documentation.

Documentation shall be provided to the code official demonstrating the following:

1. Prior to the issuance of a building permit, documentation of a PHIUS CORE COMM Certification Contract from PHIUS and a list of compliance features.
2. Prior to the issuance of a certificate of occupancy, a copy of the final report

submitted on a form that is approved by PHIUS to document compliance with the PHIUS CORE COMM Standard.

C412.3. Passive House Institute (PHI) Certification.

New commercial buildings shall achieve certification with the PHI Passive House Standard and provide documentation in accordance with Section 412.3.1.

C412.3.1. Documentation.

Documentation shall be provided to the code official demonstrating the following:

1. Prior to the issuance of a building permit, signed documentation from a PHI accredited Passive House Certifier of intent to certify the building and a list of compliance features.
 2. Prior to the issuance of a certificate of occupancy, a copy of the final report submitted on a form that is approved by PHI to document compliance with the Passive House Standard.
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.400 IECC Section C502.2.

Section C502.2 (Change in space conditioning), exception #2, is amended to read as follows:

- (2) Where the simulated building performance option in Section C407 is used to comply with this section, the annual site energy use of the proposed design shall be not greater than 110 percent of the annual site energy use otherwise permitted by Section C407.3.
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.410 IECC Section C502.3.3.1.

A new section C502.3.3.1 Thermostatic controls is added as follows:

C502.3.3.1. Thermostatic controls.

Additions that involve replacing or expanding a heating or cooling system shall comply with section C403.4.1 Thermostatic controls. (Ord. No. 2268, § 7, 7-22-2025)

15.26.420 IECC Section C502.3.7.

Section C502.3.7 (Additional energy efficiency credit requirements) is amended to read as follows, with the exceptions to remain:

C502.3.7. Additional energy efficiency credit requirements.

Additions shall comply with sufficient measures from Sections C406.2 and C406.3 to achieve not less than 50 percent of the number of required efficiency credits from Table C406.1.1.1 or Table C406.1.1.2 as applicable based on building occupancy group and combustion equipment. Where a project contains multiple occupancies, credits from Table C406.1.1.1 or Table C406.1.1.2 as applicable for each building occupancy shall be weighted by the gross floor area to determine the project weighted average energy credits required. Accessory occupancies shall be included with the primary occupancy group for purposes of this section. Alterations to the existing building that are not part of the addition, but are permitted with an addition, shall be permitted to be used to achieve the required credits.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.430 IECC Section C503.2.2.

Section C503.2.2 (Vertical fenestration) is amended to read as follows:

C503.2.2. Vertical fenestration.

The addition of vertical fenestration that results in a total building fenestration area less than or equal to that specified in Section C402.5.1 shall comply with Section C402.1.4, C402.5.3 or C407. The addition of vertical fenestration that results in a total building fenestration area greater than Section C402.5.1 shall comply with Section C402.5.1.1 for the space adjacent to the new fenestration only. Alterations that result in a total building vertical fenestration area exceeding that specified in Section C402.5.1.1 shall comply with Section C402.1.4 or C407. Provided that the vertical fenestration area is not changed, using the same

vertical fenestration area in the standard reference design as the building prior to alteration shall be an alternative to using:

1. The proposed vertical fenestration area, where the proposed vertical fenestration area is less than 40 percent of the above-grade wall area; or
2. Forty percent of the above-grade wall area, where the proposed vertical fenestration area is 40 percent or more of the above-grade wall area.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.440 IECC Section C503.2.3.

Section C503.2.3 (Skylight area) is amended as follows:

C503.2.3. Skylight area.

New skylight area that results in a total building skylight area less than or equal to that specified in Section C402.5.1 shall comply with Section C402.1.4, C402.5 or C407. The addition of skylight area that results in a total building skylight area greater than Section C402.5.1 shall comply with Section C402.5.1.2 for the space adjacent to the new skylights. Alterations that result in a total building skylight area exceeding that specified in Section C402.5.1.2 shall comply with Section C402.1.4 or C407. Provided that the skylight area is not changed, using the same skylight area in the standard reference design as the building prior to alteration shall be an alternative to using:

1. The proposed skylight area, where the proposed skylight area is less than that permitted by Section C402.1; or
2. The area permitted by Section C402.1; where the proposed skylight area exceeds that permitted by Section C402.1.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.450 IECC Section C503.6.

Section C503.6 (Additional energy efficiency credit requirements for alterations) is amended to read as follows with the exceptions to remain:

C503.6. Additional energy efficiency credit requirements for alterations.

Alterations that are substantial improvements shall comply with measures from Sections C406.2, C406.3 or both to earn the number of required credits specified in Table C406.1.1.1 or Table C406.1.1.2 as applicable based on building occupancy group and combustion equipment. Where a project contains multiple occupancies, credits specified in Table C406.1.1.1 or Table C406.1.1.2 as applicable for each building occupancy shall be weighted by the gross conditioned floor area to determine the weighted average credits required. Accessory occupancies, other than Group F or H, shall be included with the primary occupancy group for the purposes of this section.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.460 IECC Section C503.7.

Section C503.7 (Thermostatic controls) is added as follows:

C503.7. Thermostatic controls.

Alterations that involve replacing or expanding a heating or cooling system shall comply with section C403.4.1 Thermostatic controls.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.470 IECC Section C505.1.

Section C505.1 (General), exception, is amended to read as follows:

Where the simulated building performance option in Section C407 is used to comply with this section, the annual site energy use of the proposed design shall be not greater than 110 percent of the annual site energy use otherwise permitted by Section C407.3.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.480 IECC Section C502.2.

Section C502.2 (Change in space conditioning), exception #2, is amended to read as follows:

- (2) Where the simulated building performance option in Section C407 is used to comply with this section, the annual site energy use of the proposed

design shall be not greater than 110 percent of the annual site energy use otherwise permitted by Section C407.3.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.490 IECC Section CB103.1.

Section CB103.1 (General) and exception #1 are amended as follows, with the other exceptions to remain:

CB103.1. General.

A solar-ready zone shall be located on the roof of all new commercial buildings that are oriented between 110 degrees and 270 degrees of true north or have low slope roofs. Solar-ready zones shall comply with Sections CB103.2 through CB103.8.

Exceptions:

1. A building with a permanently installed, on-site renewable energy system that meets the following criteria:
 - a. The system produces the energy output equivalent to covering 40 percent of the net roof area with solar photovoltaic calculated as the horizontally projected gross roof area less that area covered by skylights, occupied roof decks, vegetative roof areas, and mandatory access or setback areas as required by the International Fire Code.
 - b. The system is located on the roof or overhang of the building or the roof or overhang of another structure located within 250 feet of the building, on the building site, on covered parking, or another approved location installed with the building project and under the same property ownership.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.500 IECC Section CB103.2.

Section CB103.2 (Construction document requirements for solar-ready zone) is amended to read as follows:

CB103.2. Construction document requirements for solar-ready zone.

Construction documents shall indicate the location and size of the solar-ready zone, structural design loads for roof dead load and roof live load, and pathways for routing of raceways from the solar-ready zone to the electrical service panel, with each raceway labeled on the construction documents as "Potential Pathway."

(Ord. No. 2268, § 7, 7-22-2025)

15.26.510 IECC Section CB103.3.

Section CB103.3 (Solar-ready zone area) is amended to read as follows:

CB103.3. Solar-ready zone area.

The total solar-ready zone area shall not be less than 40 percent of the roof area calculated as the horizontally projected gross roof area less the area covered by skylights, occupied roof decks, vegetative roof areas, and mandatory access or set back areas as required by the International Fire Code. The solar-ready zone shall be a single area or smaller, separated sub-zone areas. For sloped roofs, each sub-zone area shall be not less than 200 square feet (18.6 m²) and no side of any rectangular area shall be less than 11 feet in length. For low-sloped or flat roofs, each sub-zone area shall be not less than 330 square feet (30.7 m²), with a minimum length running generally north to south of 15 feet and a minimum length running generally east to west of 22 feet and no side of any rectangular area shall be less than 11 feet in length. The solar-ready zone shall be located on the roof or overhang of the building or on the roof or overhang of another structure located within 250 feet of the building, on the building site, on covered parking, or another approved location installed with the building project and under the same property ownership.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.520 IECC Section CB103.7.

Section CB103.7 (Electrical service reserved space) is amended as follows:

CB103.7. Electrical service reserved space.

The main electrical service panel shall have a minimum bus bar rating of not less than 200 amps and shall have a reserved space to allow installation of a dual-pole circuit breaker for future solar electric labeled "For Future Solar Electric." The reserved space shall be positioned at the end of the panel that is opposite from the panel supply conductor connection.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.530 IECC Appendix CG.

Appendix CG is replaced with the following:

CG101.1. Definitions.

DIRECT CURRENT FAST CHARGER (DCFC) EVSE. Equipment capable of fast charging on a 100A or higher 480VAC three-phase branch circuit. AC power is converted into a controlled DC voltage and current within the EVSE that will then directly charge an EV.

ELECTRIC VEHICLE (EV). An automotive-type vehicle for on-road use, such as passenger automobiles, buses, trucks, vans, neighborhood electric vehicles and electric motorcycles, primarily powered by an electric motor that draws current from a building electrical service, EVSE, a rechargeable storage battery, a fuel cell, a photovoltaic array, or another source of electric current. Off-road, self-propelled electric mobile equipment, including but not limited to, industrial trucks, hoists, lifts, transports, golf carts, airline ground support equipment, tractors, and boats are not considered EVs.

ELECTRIC VEHICLE CAPABLE SPACE (EV CAPABLE SPACE). A designated parking space that is provided with electrical infrastructure such as, but not limited to, raceways, cables, electrical capacity, a panelboard, or other electrical distribution equipment space necessary for the future installation of an EVSE.

ELECTRIC VEHICLE CAPABLE LIGHT SPACE (EV CAPABLE LIGHT SPACE). A designated parking space that has a raceway and/or conduit

installed to support future implementation of EV charging installation, and has sufficient physical space adjacent to existing electrical equipment for future electrical upgrades.

ELECTRIC VEHICLE READY SPACE (EV READY SPACE). A parking space that is provided with a branch circuit and an outlet, junction box, or receptacle that will support an installed EVSE.

ELECTRIC VEHICLE SUPPLY EQUIPMENT (EVSE). Equipment for plug-in power transfer, including ungrounded, grounded, and equipment grounding conductors; EV connectors; attached plugs; any personal protection system; and all other fittings, devices, power outlets, or apparatus installed specifically for the purpose of transferring energy between the premises wiring and the EV.

ELECTRIC VEHICLE SUPPLY EQUIPMENT INSTALLED SPACE (EVSE SPACE). A parking space that is provided with a dedicated EVSE connection.

LEVEL 1 EVSE. An EV charging system that uses a standard alternating current (AC) 120-volt outlet to deliver a low charging rate suitable for overnight or extended-duration charging.

LEVEL 2 EVSE. An EV charging system that uses a 208- or 240-volt alternating current (AC) power source to deliver a medium charging rate, typically used in residential, commercial, and public settings for faster charging than Level 1 EVSE systems.

PARKING SPACE. A space within a building or private or public parking lot, excluding driveways, ramps, columns, and work areas, for the parking of an automobile.

PLUG-IN HYBRID ELECTRIC VEHICLE. An electric vehicle having a second source of motive power.

CG101.2. Electric vehicle power transfer infrastructure.

Parking facilities for commercial buildings, major renovations, and additions shall be provided with EV power transfer infrastructure in accordance with Sections CG101.2.1 through CG101.2.8.

CG101.2.1. Quantity.

The number of required Level 2 EVSE installed spaces, EV ready spaces, EV capable spaces, and EV capable light spaces shall be determined in accordance with this section and Table CG101.2.1 based on the total number of parking spaces, including all covered parking under carports or detached garages, and shall be rounded up to the nearest whole number. This includes all covered parking under carports or detached garages.

1. Group R-2 occupancies shall use the total parking for the entire development to determine the EV power transfer infrastructure requirements of Table CG101.2.
2. For Group R-2 buildings, the requirements shall be based on the total number of dwelling units or the total number of parking spaces, whichever is more.
3. All attached garages with direct connection to a dwelling unit will be required to have one EV ready space.
4. Where more than one parking facility is provided on a building site, the number of required parking spaces required to have EV power transfer infrastructure shall be calculated separately for each parking facility.
5. Where one shared parking facility serves multiple building occupancies, the required number of spaces shall be determined proportionally based on the floor area of each building occupancy.
6. Requirements for a Group S-2 parking garage shall be determined by the occupancies served by that parking garage. Where new parking spaces do not serve

specific occupancies, the values for Group S-2 parking garage in Table CG101.2.1 shall be used.

TABLE CG101.2.1 REQUIRED EV POWER TRANSFER INFRASTRUCTURE

<i>BUILDING TYPE/SPACE TYPE</i>	<i>LEVEL 2 EVSE SPACES</i>	<i>EV READY SPACES</i>	<i>EV CAPABLE SPACES</i>	<i>EV CAPABLE LIGHT SPACES</i>
Group R-2 with ≤10 parking spaces	0	15% of spaces	10% of spaces	10% of spaces
Group R-2 with >10 parking spaces	5% of spaces	15% of spaces	10% of spaces	30% of spaces
All other commercial occupancies with ≤15 parking spaces	0	20% of spaces but ≥2 spaces	0	0
All other commercial occupancies with >15 parking spaces	2% of spaces	8% of spaces	10% of spaces	10% of spaces

CG101.2.2. Substitutions.

EV power transfer infrastructure types may be substituted in accordance with the following criteria, as summarized in Table CG101.2.2:

1. Each DCFC EVSE installed shall be permitted to be substituted for other space types as follows:
 - a. Group R-2 occupancies may substitute up to 5 spaces when the building provides a minimum of 60 percent of parking spaces as a combination of Level 2 EVSE spaces, EV ready spaces, EV capable spaces, or EV capable light spaces.
 - b. Commercial buildings other than Group R-2 occupancies may substitute up to 10 spaces when the building provides a minimum of 20 percent of parking spaces as a combination of Level 2 EVSE spaces, EV ready spaces, or EV capable spaces.
2. Group R-2 occupancies with greater than 10 vehicle parking spaces shall be permitted to substitute three Level 1 EVSE spaces for every one Level 2 EVSE space or every one EV ready space, for up to 50 percent of required Level 2 EVSE spaces and EV ready spaces.
3. Level 2 EVSE spaces that exceed the minimum requirements of this section may be used to meet the minimum requirements for EV ready spaces, EV capable spaces, and EV capable spaces.
4. EV ready spaces that exceed the minimum requirements of this section may be used to meet the minimum requirements for EV capable spaces and EV capable light spaces.
5. EV capable spaces that exceed the minimum requirements of this section may be used to meet the minimum requirements for EV capable light spaces.

TABLE CG101.2.2 EV POWER TRANSFER INFRASTRUCTURE SUBSTITUTIONS

<i>EV INFRASTRUCTURE TYPE</i>	<i>ELIGIBLE SUBSTITUTIONS</i>
DCFC for R-2 occupancies	Can replace up to 5 spaces of other types if building has at least 60% parking spaces of other types
DCFC for other commercial occupancies	Can replace up to 10 spaces of other types if building has at least 20% parking spaces of other types

<i>EV INFRASTRUCTURE TYPE</i>	<i>ELIGIBLE SUBSTITUTIONS</i>
Level 1 EVSE Spaces for R-2 occupancies	Every three Level 1 EVSE spaces can replace one Level 2 EVSE space or one Level 2 EV ready space, for up to 50% of EVSE space requirements
Level 1 EVSE spaces for other commercial occupancies	Not permitted for substitutions
Excess Level 2 EVSE spaces	Can count toward EV ready, EV capable, or EV capable light space requirements
Excess EV ready spaces	Can count toward EV capable and EV capable light space requirements
Excess EV capable spaces	Can count toward EV capable light space requirements

CG101.2.3. EV capable light spaces.

Each EV capable light space shall comply with the following:

(1) A continuous raceway and/or conduit, sized and rated to supply a minimum of 208 volts and a minimum of 40-ampere rated circuits, shall be installed between an enclosure or outlet located within 3 feet (914 mm) of the space and electrical distribution panel, and shall be capped.

Exception: Conduit installed with a pull string from the termination locations at parking spaces to a location of a future transformer or future electrical panel with electrical service size determined at the time of future permit.

(2) Dedicated physical space shall be provided to accommodate all equipment necessary for electrical service to future EVSE.

(3) The raceway and/or conduit shall be permanently and visibly marked "For electric vehicle supply equipment (EVSE)" at the load center and termination point locations.

(4) EV capable light includes directly adjacent parking spaces if the raceway and/or conduit terminates next to and between both parking spaces.

CG101.2.4. EV capable spaces.

Each EV capable space shall comply with the following:

(1) A continuous raceway or cable assembly, sized and rated to supply a minimum of 208 volts and a minimum of 40-ampere rated circuits, shall be installed between

an enclosure or outlet located within 3 feet (914 mm) of the space and electrical distribution panel, and shall be capped.

Exception:

1. Conduit installed with a pull string from the termination locations at parking spaces to a location of a future transformer or future electrical panel with electrical service size determined at the time of future permit.
2. The electrical distribution equipment to which the raceway or cable assembly connects shall have dedicated overcurrent protection device space and spare capacity to support at least 8.3 kVA (40A 208/240V) for each space.
3. The enclosure or outlet and panel directory shall be marked: "For electric vehicle supply equipment (EVSE)."
4. EV capable includes directly adjacent parking spaces if the raceway terminates next to and between both parking spaces.

CG101.2.5. EV ready spaces.

Each EV ready space shall comply with the following:

1. A branch circuit shall have a minimum circuit capacity of 8.3 kVA (40A 208/240V) and shall terminate at a receptacle or junction box located within 3 feet of each space.

2. The electrical panel, electrical distribution equipment directory, and all outlets or enclosures shall be marked "For future electric vehicle supply equipment (EVS)."
3. EV ready includes directly adjacent parking spaces if the receptacle or junction box is adjacent to and between both parking spaces.

CG101.2.6. Level 1 EVSE spaces.

Each Level 1 EVSE space shall comply with the following:

1. A branch circuit shall have a minimum circuit capacity of 1.8 kVA (15A 120V) and shall terminate at a receptacle located within 3 feet of each space.
2. The EVSE, electrical panel directory, and all receptacles or enclosures shall be marked "Level 1 Electric vehicle supply equipment (EVSE)."
3. The EVSE shall be installed in accordance with NFPA 70 and shall be listed and labeled in accordance with UL 2202 or UL 2594.

CG101.2.7. Level 2 EVSE spaces.

An installed EVSE with multiple output connections shall be permitted to serve multiple Level 2 EVSE installed spaces. An EVSE serving one or more Level 2 EVSE spaces shall comply with the following:

1. A branch circuit shall have a minimum circuit capacity of 8.3 kVA (40A 208/240V) and shall terminate at a receptacle located within 3 feet of the space.
2. The EVSE shall provide a minimum charging rate of 6.2 kVA (30A at 208/240V) or shall be an ENERGY STAR-certified inductive charging system for battery powered EVs.
Exception: If serving three or more spaces and controlled by an energy management system, the minimum charging rate shall be 3.3 kVA per space.
3. The EVSE may be wall-mounted or pedestal style and may provide multiple cords to connect with EVs.

4. The EVSE must be capable of connecting to the internet.
5. The EVSE, electrical panel directory, and all receptacles or enclosures shall be marked "Level 2 Electric vehicle supply equipment (EVSE)."
6. The EVSE shall be installed in accordance with NFPA 70, including Article 625, and shall be listed and labeled in accordance with UL 2202 or UL 2594.

CG101.2.6. EVSE installation.

EVSE shall be installed in accordance with NFPA 70 and shall be listed and labeled in accordance with UL 2202 or UL 2594.

CG101.2.7. Accessible EV Parking Spaces.

For Level 2 EVSE installed spaces required by Table CG101.2.1, a minimum of 5 percent (not less than one space) shall be van accessible spaces in accordance with Section 1107.2.2 of the International Building Code. In addition, another 5 percent (not less than one space) of the total EV ready, EV capable, or EV capable light spaces required by Table CG101.2.1 shall meet one of the following:

1. Be van accessible parking spaces in accordance with Section 1107.2.2 of the International Building Code.
2. Have the electrical infrastructure for EV capable light, EV capable, or EV ready spaces configured so that future EVSE shall be capable of serving van accessible parking spaces.

CG101.2.8. Identification.

Construction documents shall designate all DCFC, Level 2 EVSE spaces, Level 1 EVSE spaces, EV ready spaces, EV capable spaces, and EV capable light spaces, and indicate the locations of raceway and/or conduit and termination points serving them. The circuits or spaces reserved for DCFC, Level 2 EVSE spaces, EV ready spaces, and EV capable spaces shall be clearly identified in the panel or subpanel directory. The raceway and/or conduit for EV ready spaces, EV capable spaces and EV capable light spaces shall be

clearly identified at both the panel or sub-panel and the termination point at the parking space.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.540 IECC Section CH101.2.

Section CH101.2 (Scope) is amended to read as follows:

CH101.2. Scope.

The provisions in this appendix are applicable to new commercial buildings, additions, and first tenant finish permits.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.550 IECC Section CH101.2.1.

A new section CH101.2.1 entitled "First tenant finishes" is added as follows:

CH101.2.1. First tenant finishes.

In the case that a first tenant finish to a commercial core and shell building or unfinished space is credited towards meeting the requirements of Appendix CH, the code official shall not issue a Certificate of Occupancy to the tenant until the requirements of Section CH103.1 are met.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.560 IECC Section CH103.1.

Section CH103.1 (General) is amended to add the following exceptions:

Exceptions:

1. Interior fireplaces that do not serve as a primary source of heating.
2. Exterior fireplaces and fire pits.
3. Additions to buildings that do not provide new space heating equipment.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.570 IECC Section CH103.3.

Section CH103.3 (Construction documentation) is amended to read as follows:

CH103.3. Construction documentation.

The construction documents shall provide details for additional electric infrastructure,

including branch circuits, conduit, rewiring, panel capacity, electrical service capacity, and condensate drainage, as well as interior and exterior spaces designated for future electric equipment.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.580 IECC Section CI102.1.

Section CI102.1 (Demand responsive water heating), exception #1, is amended to read as follows:

- (1) Water heaters that are required to provide a constant hot water delivery temperature of 180°F (82°C) or greater.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.590 IECC Section CI103.1.

Section CI103.1 (Demand responsive lighting controls) is amended to add a new item #7 as follows:

- (7) Spaces where the health, safety, or productivity of occupants would be compromised by light level reductions, as approved by the code official.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.600 IECC Appendix CJ.

IECC Appendix CJ is replaced with the following:

Section CJ101: Electrical Energy Storage System

CJ101.1: Electrical energy storage system.

This Appendix does not require the installation of ESS. However, where ESS is voluntarily installed in new buildings, it shall comply with Section CJ101.1.1.

CJ101.1.1: Electrical energy storage system (ESS) capacity.

Each building shall have one or more ESS with a total rated energy capacity and rated power capacity as follows:

1. ESS-rated energy capacity (kWh) $\geq 1.0 \times$ installed on-site renewable electric energy system rated power (kWDC).

2. ESS-rated power capacity (kW) $\geq 0.25 \times$ installed on-site renewable electric energy system rated power (kWDC).

Where installed, DC-coupled battery systems shall meet the requirements for rated energy capacity alone.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.610 IECC Section R101.1.

IECC Section R101.1 (Title) is amended to read as follows:

R101.1. Title.

These regulations shall be known as the Energy Conservation Code of the City of Golden and shall be cited as such. It is referred to herein as the "IECC" or "this Code."

(Ord. No. 2268, § 7, 7-22-2025)

15.26.620 IECC Section R101.2.1.

IECC Section R101.2.1 Appendices is amended as follows:

R101.2.1 Appendices.

Provisions in the appendices shall not apply unless specifically adopted. Appendices RB, RD, RE, RJ, and RK as amended are hereby adopted.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.630 IECC Section R109.

IECC Section R109 (Means of Appeals) is repealed and replaced with IBC Section 113, as adopted and amended by the City of Golden.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.640 IECC Section R202.

IECC Section R202 (General Definitions) is amended to add the following definitions in alphabetical order:

ALL-ELECTRIC BUILDING. A new building that contains no permanently-installed combustion equipment or plumbing for combustion equipment, or an existing building that contains no permanently-installed combustion equipment.

COMBUSTION EQUIPMENT. Equipment or appliances that use fuel gas, fuel oil, or any other hydrocarbon-derived fuel or fuel blend to perform functions such as space heating, space cooling, service water heating (including pools and spas), cooking, clothes drying, humidification, or lighting. The scope of this definition may be limited to combustion-based space and water heating equipment where specifically indicated. Combustion equipment does not include emergency power systems or standby power systems.

EMERGENCY POWER SYSTEM. A source of automatic electric power of a required capacity and duration to operate required life safety, fire alarm, detection, and ventilation systems in the event of a failure of the primary power. Emergency power systems are those required for electrical loads where interruption of the primary power could result in loss of human life or serious injuries.

FUTURE ELECTRIC EQUIPMENT. Electrically-powered equipment that could be installed in the future to replace combustion equipment to meet a similar end use or load.

MIXED-FUEL BUILDING. A new building that contains combustion equipment or piping for combustion equipment, or an existing building that contains combustion equipment, in addition to electric loads.

OFF-GRID HOME. A residential building that does not receive any site energy from a publicly or privately owned utility, including for electricity, fuel gas, or fuel oil.

STANDBY POWER SYSTEM. A source of automatic electric power of a required capacity and duration to operate required building or ventilation systems in the event of a failure of the primary power. Standby power systems are those required for electrical loads where interruption of the primary power could create hazards or hamper rescue or fire-fighting operations.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.650 IECC Section R401.2.

Section R401.2 (Application) is amended to read as follows, with the exception to remain:

R401.2. Application.

Residential buildings with less than an average of 5,000 square feet (465 m²) of conditioned floor area per dwelling unit shall comply with Section R401.2.1, R401.2.2, R401.2.3, or R401.2.5, as well as appendices RB, RE, RJ, and RK as amended. Residential buildings with an average of 5,000 square feet (465 m²) or more of conditioned floor area per dwelling unit shall comply with Section R401.2.3 or R401.2.5 as well as appendices RB, RD, RE, RJ, and RK as amended.

Exceptions:

1. Additions, alterations, repairs, and changes of occupancy to existing buildings complying with Chapter 5.
2. Off-grid homes need not comply with Appendix RE or Appendix RJ.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.660 IECC Section R401.2.4.

Section R401.2.4 (Tropical Climate Region Option) is deleted in its entirety.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.670 IECC Section R401.

Section R401 (General) is amended by the addition of a new Section R401.2.5 entitled "Passive House Option" to read as follows:

R401.2.5 Passive House Option.

The Passive House Option requires compliance with Section R409.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.680 IECC Section R402.1.

Section R402.1 (General) is amended by the addition of a new exception number 3 to read as follows:

- (3) Tiny homes, as defined in the International Residential Code, designed in accordance with Appendix BB of the International Residential Code.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.690 IECC Section R402.5.1.1.

Section R402.5.1.1 (Sunroom and heated garage insulation) is amended by adding a new exception as follows:

- (3) Slab insulation shall be permitted to be omitted where the minimum ceiling insulation R-values and minimum wall insulation R-values are installed.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.700 IECC Section R402.5.1.1.

R402.5.1.1 (Installation) is amended to read as follows:

R402.5.1.1. Installation.

The components of the building thermal envelope as indicated in Table R402.5.1.1 shall be installed in accordance with the following:

1. The manufacturer's instructions.
2. The criteria indicated in Table R402.5.1.1, as applicable to the method of construction.
3. For dwelling units complying with Section R401.2.1, the requirements of a Grade 1 insulation installation in accordance with Appendix A of ANSI/RESNET/ICC 301.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.710 IECC Table R402.5.1.1.

Table R402.5.1.1 (Air Barrier, Air Sealing, and Insulation Installation) is amended by amending the cell of the "Walls" row and the "Air Barrier, Air Sealing Criteria" column to read as follows:

The junction of the foundation and sill plate shall be sealed. The junction of the top plate and the top of exterior walls and interior walls that are adjacent to or abut unconditioned space shall be sealed. Knee walls shall be sealed.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.720 IECC Section R402.5.1.3.

Section R402.5.1.3 (Maximum air leakage rate), item #1, is amended to read as follows, with the rest of the section and exceptions to remain:

- (1) Where complying with Section R401.2.1, the building or the dwelling units or sleeping units in the building shall have an air leakage rate not greater than 3.0 air changes per hour, or 0.17 cubic feet per minute per square foot [0.86 L/(s × m²)] of the building thermal envelope area or the dwelling testing unit enclosure area.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.730 IECC Section R403.5.5.

Section R403.5.5 Water heater default temperature setting is added as follows:

R403.5.5. Water heater default temperature setting.

Storage water heaters with a rated water storage volume of 40 gallons (150 L) to 120 gallons (450 L) and installed in new detached one- and two-family dwellings and townhouses shall have the default temperature setting set to 120 degrees F.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.740 Section R403.7.1.

Section R403.7.1 (Electric-resistance space heating) is amended to read as follows:

R403.7.1. Electric-resistance space heating.

Detached one- and two-family dwellings and townhouses shall not use electric resistance space heating.

Exceptions:

1. Electric resistance heating used for supplemental heat in accordance with Section R403.1.2.
2. Electric resistance heating used for freeze protection.

3. Electric-resistance heating where the criteria in Section R408.2.2.2 for evaporative cooling are met.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.750 Section R403.7.2.

Section R403.7.2 Electric heating cold temperature performance is added as follows:

R403.7.2. Electric heating cold temperature performance.

Air source heat pumps installed in new detached one- and two-family dwellings and townhouses shall have a capability of maintaining no less than 70% of their rated heating capacity at 47°F (8.3°C) when tested at an outdoor temperature of 5°F (-15°C) per AHRI 210/240 or an equivalent testing standard, demonstrated by manufacturer documentation or third party certification.

Exception: Air source heat pumps installed as part of an addition, alteration, or replacement in an existing residential building.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.760 Section R403.13.

Section R403.13 (Gas fireplaces) is amended as follows:

R403.13. Gas fireplaces.

Gas fireplaces must comply with all of the following requirements:

1. Gas fireplace systems shall not be equipped with a continuous pilot and shall be equipped with an on-demand pilot, intermittent ignition or interrupted ignition, as defined by ANSI Z21.20.
2. Gas fireplaces must be capable of automatically extinguishing any pilot flame when the main gas burner flame is extinguished or must prevent any ignition source for the main gas burner flame from operating continuously for more than seven days from the last use of the main gas burner.
3. Decorative gas fireplaces must have a direct vent or power vent configuration,

unless the decorative gas fireplace is marked for replacement use only or outdoor use only or is a gas log set.

Exception: Gas-fired appliances using pilots within a listed combustion safety device (Ord. No. 2268, § 7, 7-22-2025)

15.26.770 Section R404.1.1.

Section R404.1.1 (Exterior lighting) is amended by adding a new exception as follows:

7. Exterior lighting that meets the requirements of Section C405 of this code. (Ord. No. 2268, § 7, 7-22-2025)

15.26.780 Section R404.1.5.

Section R404.1.5 (Fuel gas lighting) is amended to read as follows:

Section R404.1.5. Fuel gas lighting.

Fuel gas lighting systems are prohibited. (Ord. No. 2268, § 7, 7-22-2025)

TABLE R405.2(1) SIMULATED BUILDING PERFORMANCE COMPLIANCE TARGET

<i>BUILDING SIZE</i>	<i>MIXED FUEL</i>	<i>ALL-ELECTRIC</i>
Dwelling units with an average of <3,500 square feet (325 m ²) or less of conditioned floor area	80%	85%
Dwelling units with an average of 3,500 square feet (325 m ²) to 4,999 square feet (464 m ²) of conditioned floor area	70%	75%

- a. Informative note: Site energy use should be expressed in either kBtu/year or kBtu/ft²/year of conditioned floor area.
- b. Dwelling units with greater than 5,000 square feet (325 m²) of conditioned floor area must comply with the Energy Rating Index pathway in R401.2.3 or the Passive House pathway in R401.2.5. (Ord. No. 2268, § 7, 7-22-2025)

15.26.790 Section R404.4.

Section R404.4 (Renewable energy certificate (REC) documentation) is deleted in its entirety. (Ord. No. 2268, § 7, 7-22-2025)

15.26.800 Section R405.1.

Section R405.1 (Scope) is amended as follows:

R405.1. Scope.

This section establishes criteria for compliance using Simulated Building Performance analysis. Such analysis shall include heating, cooling, mechanical ventilation, and service water heating energy only.

15.26.810 Section R405.2.

Section R405.2 (Simulated building performance compliance), item #3, is replaced as follows:

3. For each dwelling unit, the annual site energy use shall be less than or equal to the applicable percentage of the annual site energy use indicated in Table R405.2(1), as compared to the standard reference design.

15.26.820 Table R405.2.

Table R405.2 (Requirements for Simulated Building Performance) is renumbered as Table R405.2(2). (Ord. No. 2268, § 7, 7-22-2025)

15.26.830 Section R406.5.

Section R406.5 (ERI-based compliance) is amended to read as follows:

R406.5. ERI-based compliance.

Compliance based on an ERI analysis requires that the rated design and each confirmed

as-built dwelling unit be shown to have an ERI less than or equal to the appropriate value indicated in Table R406.5 as compared to the ERI reference design. The values in Table R406.5 shall be achieved prior to accounting for the installation of any on-site power production (OPP).

Exception: For buildings with 20 or more dwelling units, where approved by the code

official, compliance shall be permitted using the Average Dwelling Unit Energy Rating Index, as calculated in accordance with ANSI/RESNET/ICC 301.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.840 Table R406.5.

Table R406.5 (Maximum Energy Rating Index) is replaced as follows:

TABLE R406.5 MAXIMUM ENERGY RATING INDEX

<i>BUILDING SIZE</i>	<i>MIXED FUEL</i>	<i>ALL-ELECTRIC</i>
Dwelling units with an average of <3,500 square feet (325 m ²) or less of conditioned floor area	50	54
Dwelling units with an average of 3,500 square feet (325 m ²) to 4,999 square feet (464 m ²) of conditioned floor area	46	50
Dwelling units with greater than 5,000 square feet (325 m ²) of conditioned floor area	42	46

(Ord. No. 2268, § 7, 7-22-2025)

15.26.850 Section R408.2.

Section R408.2 (Additional energy efficiency credit requirements) is amended to read as follows:

R408.2 Additional energy efficiency credit requirements.

Residential buildings shall earn not less than the appropriate number of credits indicated in Table R408.2.1, from not less than two measures specified in Table R408.2.2. To earn credit as specified in Table R408.2.2 for the applicable climate zone, each measure selected for compliance shall comply with the applicable subsections of Section R408. Each dwelling

unit or sleeping unit shall comply with the selected measure to earn credit. Interpolation of credits between measures shall not be permitted.

Exception: Residential buildings shall not be required to achieve credits from two or more measures in Table R408.2.2 if sufficient credits can be achieved to meet the requirements of this section from one of the following single measures:

1. Achieving a 30% reduction in the total TC in accordance with Section R408.2.1.1.
2. Installation of a ground source heat pump in accordance with Section R408.2.2 item number 1.

TABLE R408.2.1 ADDITIONAL ENERGY EFFICIENCY CREDIT REQUIREMENTS

<i>BUILDING SIZE</i>	<i>MIXED FUEL CREDIT REQUIREMENTS</i>	<i>ALL-ELECTRIC CREDIT REQUIREMENTS</i>
Dwelling units with an average of <3,500 square feet (325 m ²) or less of conditioned floor area	15	10
Dwelling units with an average of 3,500 square feet (325 m ²) to 4,999 square feet (464 m ²) of conditioned floor area	25	20

- a. Dwelling units with greater than 5,000 square feet (325 m²) of conditioned floor area must comply with the Energy Rating Index pathway in R401.2.3 or the Passive House pathway in R401.2.5.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.860 Table R408.2.

Table R408.2 (Credits for Additional Energy Efficiency) is renumbered R408.2.2, and the following items and footnotes are amended to read as follows, with the other items and footnotes to remain:

TABLE R408.2.2 CREDITS FOR ADDITIONAL ENERGY EFFICIENCY

<i>MEASURE NUMBER</i>	<i>MEASURE DESCRIPTION</i>	<i>CREDIT VALUE: CZ 5</i>
R408.2.1.2(2)	Improved fenestration	3
R408.2.2(4)	High performance gas furnace (Option 1)	4
R408.2.2(5)	High performance gas furnace (Option 2)	3
R408.2.2(11)	High performance gas furnace and cooling (Option 3)	4
R408.2.2(12)	High performance gas furnace and cooling (Option 4)	5
R408.2.2(13)	High performance gas furnace and heat pump for combined heating and cooling (Option 2)	8
R408.2.2(14)	High performance heat pump for combined heating and cooling, with electric resistance backup (Option 2)	12
R408.2.2(15) ^b	Space heating fuel neutrality credit	2
R408.2.2.2 ^b	Evaporative cooling	2
R408.2.3(1)(a) ^d	Gas-fired storage water heaters (Option 1)	2
R408.2.3(1)(b) ^d	Gas-fired storage water heaters (Option 2)	3
R408.2.3(2)(a) ^d	Gas-fired instantaneous water heaters (Option 1)	3
R408.2.3(2)(b) ^d	Gas-fired instantaneous water heaters (Option 2)	4
R408.2.3(9) ^d	Water heating fuel neutrality credit	1
R408.2.4(2) ^c	100% of duct systems in conditioned space	7
R408.2.4(3) ^c	≥ 80% of ductwork inside conditioned space	5
R408.2.4.1 ^c	Duct leakage testing in all multifamily units	2
R408.2.5.1	ERV or HRV preheating	1
R408.2.7	Onsite renewable energy measures	3
R408.2.13	Refrigerants	1

(Ord. No. 2268, § 7, 7-22-2025)

15.26.870 Section R408.2.1.2.

Section R408.2.1.2 (Improved fenestration) is amended to read as follows:

R408.2.1.2. Improved fenestration.

Improved fenestration shall achieve credits for one of the following:

1. The area weighted average U-factor and SHGC of all vertical fenestration shall be equal to or less than the values specified in Table R408.2.1.2.

2. The area weighted average U-factor and SHGC of all vertical fenestration shall be equal to or less than the values for the Northern Climate Zone in the latest version of the ENERGY STAR specification for residential windows, doors and skylights.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.880 Section R408.2.2.

Section R408.2.2 (More efficient HVAC equipment performance options) is amended to add a new item #15 as follows:

1. Space heating fuel neutrality credit: Heat pump with greater than or equal to the federal minimum efficiency rating for the location where the heat pump is installed, and a capacity ratio ≥ 70 percent of heating capacity at 5°F (-15°C) versus rated heating capacity at 47°F (8.3°C). For new buildings, the credit value for this item may be added to the credit value for R408.2.2(14) when the requirements of both measures are met. For alterations, the credit value for this item may be added to the credit value for R408.2.2(13) or R408.2.2(14) when the requirements of both measures are met.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.890 Section R408.2.2.2.

A new Section R408.2.2.2 is added as follows:

R408.2.2.2. Evaporative cooling.

Evaporative cooling equipment used for space cooling shall achieve the credits allocated in Table R408.2 where it meets all of the following:

1. Not less than 80 percent of the total HVAC space cooling capacity of the dwelling unit is provided by evaporative cooling.

2. Evaporative cooling equipment is installed in accordance with Section 928.1 of the International Mechanical Code.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.900 Section R408.2.3.

Section R408.2.3 (Reduced energy use in service water-heating options) is amended to read as follows:

R408.2.3. Reduced energy use in service water-heating options.

For measure numbers R408.2.3(1) through R408.2.3(7) and R408.2.3(9), the installed hot water system shall meet one of the Uniform Energy Factors (UEF) or Solar Uniform Energy Factors (SUEF) in Table R408.2.3. For measure number R408.2.3(8), the hot water distribution system shall comply with Section R408.2.3.1. The credit value for R408.2.3(9) may be added to the credit value for other electric water heater options when the requirements of both measures are met.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.910 Table R408.2.3.

Table R408.2.3 (Service Water Heating Efficiencies) is amended to add the following row:

TABLE R408.2.3 SERVICE WATER HEATING EFFICIENCIES

<i>MEASURE NUMBER</i>	<i>WATER HEATER</i>	<i>SIZE AND DRAW PATTERN</i>	<i>TYPE</i>	<i>EFFICIENCY</i>
R408.2.3(9)	Federal minimum efficiency HPWH	All storage volumes, all draw patterns	HPWH with or without hybrid electric resistance element	Equal to or greater than federal minimum efficiency standard

(Ord. No. 2268, § 7, 7-22-2025)

15.26.920 Section R408.2.4.1.

A new Section R408.2.4.1 is added as follows:

R408.2.4.1. Testing duct leakage in all multifamily dwelling units.

Buildings with eight or more dwelling units or sleeping units shall test every dwelling unit or sleeping unit in accordance with the requirements of Section R403.3.7.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.930 Section R408.2.5.1.

A new Section R408.2.5.1 is added as follows:

R408.2.5.1. ERV and HRV preheating limits.

All systems that utilize energy recovery ventilation and utilize electric resistance to preheat outdoor air to defrost or temper air entering the energy recovery device shall comply with one of the following:

1. Where the space is mechanically humidified when the outdoor temperature is not greater than 25°F (-4°C) and the system

recovers latent energy, the outdoor air shall not be preheated to greater than 25°F (-4°C).

2. For sensible-only heat recovery exchangers, outdoor air shall not be preheated to greater than 25°F (-4°C).
3. For all other systems, outdoor air shall not be preheated to greater than 5°F (-15°C).

(Ord. No. 2268, § 7, 7-22-2025)

15.26.940 Table R408.2.6.

Table R408.2.6 (Minimum Efficiency Requirements: Appliances) is replaced as follows:

TABLE R408.2.3 SERVICE WATER HEATING EFFICIENCIES

<i>APPLIANCE TYPES</i>	<i>EFFICIENCY IMPROVEMENT</i>	<i>TEST PROCEDURE</i>
Refrigerator	Meets the energy performance metrics in the most recent version of the applicable consumer ENERGY STAR specification	Test procedure contained in the most recent version of the applicable consumer ENERGY STAR specification
Dishwasher		
Clothes washer and clothes dryer		

(Ord. No. 2268, § 7, 7-22-2025)

15.26.950 Section R408.2.7.

Section R408.2.7 (Renewable energy) is amended to read as follows:

R408.2.7. Renewable energy.

Renewable energy resources shall be permanently installed and have the rated capacity to produce not less than 1.0 watt of on-site renewable energy per square foot of conditioned floor area.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.960 Section R408.2.9.

Section R408.2.9 (Opaque walls) is deleted.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.970 Section R408.2.13.

A new Section R408.2.12 and Table R408.2.12 are added as follows:

R408.2.12. Refrigerants.

Projects that select equipment for space heating and service water heating that utilize low global warming potential (GWP) or ultra-low GWP refrigerants shall utilize Equation 4-4 to determine available credits:

Equation 4-4

$$EC_{ach} = EC_{base} \times EC_{adj}$$

where:

EC_{ach} = Refrigerant credit achieved for the project.

EC_{base} = Base credit from Table R408.2.

EC_{adj} = Credit adjustment factor from Table R408.2.14.

TABLE R408.2.12 CREDIT ADJUSTMENT FOR REFRIGERANT GWP LEVEL

<i>REFRIGERANT CATEGORY</i>	<i>GWP LIMIT (KGCO₂E)</i>	<i>EC_{adj}</i>
Ultra-low GWP	<10	100%
Low GWP	10 to 150	50%

<i>REFRIGERANT CATEGORY</i>	<i>GWP LIMIT (KGCO₂E)</i>	<i>EC_{adj}</i>
Other	>150	0%

(Ord. No. 2268, § 7, 7-22-2025)

15.26.980 Section R409.

A new Section R409 is added as follows:

R409. Passive House Compliance Option.

R409.1. Scope.

This section establishes criteria for new residential buildings to comply using Passive House certification.

R409.2. Passive House compliance.

Compliance based on the Passive House option requires certification in accordance with Section R409.3 or R409.4.

R409.3. Passive House Institute US (PHIUS) Certification.

Achieve certification with the most recent PHIUS+ Passive Building Standard and provide documentation in accordance with Section 409.3.1.

R409.3.1. Documentation.

Documentation shall be provided to the code official demonstrating the following:

1. Prior to the issuance of a building permit, a PHIUS+ Design Certification Letter from PHIUS and a list of compliance features.
2. Prior to the issuance of a certificate of occupancy, a copy of the final certification submitted on a form that is approved by PHIUS to document compliance with the most recent PHIUS+ Standard.

R409.4. Passive House Institute (PHI) Certification.

Achieve certification with the PHI Passive House Standard and provide documentation in accordance with Section 409.4.1.

R 409.4.1. Documentation.

Documentation shall be provided to the code official demonstrating the following:

1. Prior to the issuance of a building permit, a signed Design Stage Conditional Assurance Letter from a PHI-accredited Passive House Certifier of intent to certify the building and list of compliance features.
2. Prior to the issuance of a certificate of occupancy, a copy of the final report submitted in a Certifiers Assurance Letter that is approved by PHI to document compliance with the Passive House Standard.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.990 Section R501.7.

Section R501.7 Programmable thermostat is added as follows:

R501.7. Programmable thermostat.

Alterations, additions, and changes of occupancy that involve replacing or expanding a heating or cooling system shall comply with section R403.1.1 Programmable thermostat.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1000 Section R502.2.1.

Section R502.2.1 (Building thermal envelope) is amended by adding a second exception as follows:

2. For additions where there is an existing slab, slab insulation shall be permitted to be omitted when the minimum ceiling insulation R-values and minimum wall insulation R-values of Table R402.1.3 are installed.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1010 Section R502.2.5.

Section R502.2.5 (Additional energy efficiency credit requirements for additions) is amended to read as follows, with exception #1 deleted and the other exceptions to remain:

R502.2.5. Additional energy efficiency credit requirements for additions.

Additions that increase the existing building's total conditioned floor area by 1,000 square feet (93 m²) to 3,500 square feet (325 m²) or by more than 25 percent within any three-year period shall comply with sufficient measures from Table R408.2 to achieve not less than 5 credits. Additions that increase the existing building's total conditioned floor area by greater than 3,500 square feet (325 m²) within any three-year period shall comply with sufficient measures from Table R408.2 to achieve not less than 10 credits. Alterations to existing buildings that are not part of the addition but are permitted with an addition shall be permitted to be used to achieve this requirement.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1020. Section R503.1.1.

Section R503.1.1 (Building thermal envelope) is amended by adding a new exception as follows:

5. Existing windows or doors that are removed and filled in with a wall assembly.
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.1030 Section R503.1.1.2.

Section R503.1.1.2 (Roof, ceiling, and attic alterations) is amended by adding a new exception as follows:

5. For alterations where there is an existing slab, slab insulation may be omitted when the minimum ceiling insulation R-values and minimum wall insulation R-values of Table R402.1.3 are installed
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.1040 Section R503.1.3.

Section R503.1.3 (Additional efficiency credit requirements for substantial improvements) is amended to read as follows:

R503.1.5. Additional efficiency credit requirements for substantial improve-

ments. Alterations where the work area is 50 percent or more of the gross floor area of the dwelling unit shall comply with sufficient measures from Table R408.2 to achieve not less than three credits.

Exceptions:

1. Alterations that are permitted with an addition complying with Section R502.2.5.
 2. Alterations that comply with Section R405 or R406.
 3. Alterations that do not include the addition or replacement of equipment covered in either Section R403.5 or R403.7.
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.1050 Appendix RB.

Appendix RB Solar-Ready Provisions-Detached One- and Two-Family Dwellings and Townhouses is renamed to Appendix RB Solar-Ready Provisions-Residential Buildings.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1060 Section RB103.1.

Section RB103.1 (General) is amended to read as follows:

RB103.1. General.

New residential buildings with not less than 600 square feet (55.7 m²) of roof area oriented between 110 degrees and 270 degrees of true north or that have a low-slope roof shall comply with Sections RB103.2 through RB103.8.

Exceptions:

1. New residential buildings with a permanently installed on-site renewable energy system that provides electricity to the dwelling unit's electrical system.
2. A building where all areas of the roof that would otherwise meet the requirements of RB103 are in full or partial shade for more than 70 percent of daylight hours annually.

3. Group R-2, R-3, or R-4 buildings shall meet the requirements of Appendix CB, as amended, instead of this Appendix RB.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.1070 Section RB103.2.

Section RB103.2 (Construction document requirements for solar-ready zone) is amended to read as follows:

RB103.2. Construction document requirements for solar-ready zone.

Construction documents shall indicate the location and size of the solar-ready zone, structural design loads for roof dead load and roof live load, and pathways for routing of conduit from the solar-ready zone to the electrical service panel.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1080 Appendix RD.

Appendix RD is replaced with the following:

Section RD101. Scope.

RD101.1. General.

This Appendix shall be applicable for new construction as explicitly stated herein.

RD102. General Definition.

ENERGY STORAGE SYSTEM (ESS).

One or more devices, assembled together, capable of storing energy in order to supply electrical energy at a future time.

Section RD103. Electrical Energy Storage.

RD103.1: Electrical energy storage.

1. New construction of one- and two-family dwellings, townhouse units and Group R-3 occupancies shall comply with Section RD103.3, RD103.3.1, and RD103.3.2 to achieve ESS readiness without mandatory installation of ESS.
2. Where ESS is installed voluntarily in new construction of one- and two-family dwellings, townhouse units and Group

R-3 occupancies, such installations shall comply with this Appendix in its entirety.

3. Where ESS is installed voluntarily in new construction of buildings with Group R-2 and R-4 occupancies, such installations shall comply with Appendix CJ, as adopted and amended by the city.

RD103.2. Electrical energy storage energy capacity.

Each building shall have an ESS with a rated energy capacity of not less than 5 kWh with not fewer than four ESS-supplied branch circuits.

RD103.3. Electrical energy storage system readiness.

Each building shall be energy-storage ready in accordance with Sections RD103.3.1 through RD103.3.4.

RD103.3.1. Energy storage system space.

Interior or exterior space with dimensions and locations in accordance with Section R330 of the International Residential Code and Section 110.26 of NFPA 70 shall be reserved to allow for the future installation of an ESS.

RD103.3.2. System isolation equipment space.

Space shall be reserved to allow for the future installation of a transfer switch within 3 feet (305 mm) of the main panelboard. Raceways shall be installed between the panelboard and the transfer switch location to allow the connection of an ESS.

RD103.3.3. Panelboard with backed-up load circuits.

A dedicated raceway shall be provided from the main service to a panelboard that supplies the branch circuits served by the ESS. All branch circuits are permitted to be supplied by the main service panel prior to the installation of an ESS. The trade size of the raceway shall be not less than 1 inch (25 mm). The panelboard that supplies the branch circuits shall be labeled, "Subpanel reserved for future battery energy storage system to supply essential loads."

RD103.3.4. Branch circuits served by the ESS.

Not fewer than four branch circuits shall be identified and have their source of supply collocated at a single panelboard supplied by the ESS. The following end uses shall be served by the branch circuits:

1. A refrigerator.
 2. One lighting circuit near the primary egress.
 3. A sleeping room receptacle outlet.
- (Ord. No. 2268, § 7, 7-22-2025)

15.26.1090 Section RE101.1.

In Section RE101.1 Definition, the following definition is amended to read as follows:

ELECTRIC VEHICLE (EV). An automotive-type vehicle for on-road use, such as passenger automobiles, buses, trucks, vans, neighborhood electric vehicles and electric motorcycles, primarily powered by an electric motor that draws current from a building electrical service, electric vehicle supply equipment (EVSE), a rechargeable storage battery, a fuel cell, a photovoltaic array, or another source of electric current. Off-road, self-propelled electric mobile equipment, including but not limited to, industrial trucks, hoists, lifts, transports, golf carts, airline ground support equipment, tractors, and boats are not considered electric vehicles.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1100 Section RE101.2.

Section RE101.2 (Electric vehicle power transfer infrastructure) is amended to read as follows:

RE101.2. Electric vehicle power transfer infrastructure.

New residential automobile parking spaces for new one- and two-family dwellings and townhouses shall be provided with electric vehicle power transfer infrastructure in accordance with Sections RE101.2.1 through

RE101.2.6. Group R-2, R-3, or R-4 buildings shall meet the requirements of Appendix CG instead of this Appendix RE.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.1110 Section RE101.2.1.

Section RE101.2.1 (Quantity) is amended to read as follows, and both exceptions are deleted:

RE101.2.1. Quantity.

New one- and two-family dwellings and townhouses with a designated attached or detached garage or other on-site private parking provided adjacent to the dwelling unit shall be provided with one EV ready space per dwelling unit.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1120 Section RE101.2.2.

Section RE101.2.2 (EV capable spaces) is deleted.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1130 Section RE101.2.3.

Section RE101.2.3 (EV ready spaces), item #1, is amended to read as follows with the other items to remain:

RE101.2.3. EV ready spaces.

Each branch circuit serving EV ready spaces shall comply with all of the following:

1. Termination at an outlet or enclosure located within 3 feet of each EV ready space it serves and marked "For electric vehicle supply equipment (EVSE)."

Exception: An outlet or enclosure shall not be required if a hard wired EVSE is installed.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.1140 Section RE101.2.4.

Section RE101.2.4 (EVSE spaces) is deleted.
(Ord. No. 2268, § 7, 7-22-2025)

15.26.1150 Section RE101.2.5.

Section RE101.2.5 (Electrical distribution system capacity) is amended to read as follows, and item #2 is deleted:

RE101.2.5. Electrical distribution system capacity.

The branch circuits and electrical distribution system serving each EV ready space used to comply with Section RE101.2.1 shall be sized for a calculated EV charging load of not less than 8.3 kVA per EV ready space. Where a circuit is shared or managed, it shall be in accordance with NFPA 70.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1160 Section RE101.2.6.

Section RE101.2.6 (Identification) is added as follows:

RE101.2.6. Identification.

Construction documents shall designate all EV ready spaces and indicate the locations of raceway and/or conduit and termination points serving them.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1170 Section RJ10.1.

Section RJ10.1 (Demand responsive water heating), exception #1, is amended to read as follows:

- (1) Water heaters that are required to provide a constant hot water delivery temperature of 180°F (82°C) or greater.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1180 Section RJ103.1.

Section RJ103.1 (Demand responsive controls for heating and cooling systems) is added as follows:

RJ103.1.1. Demand responsive controls for heating and cooling systems.

Electric heating and cooling systems for residential buildings shall be provided with demand responsive controls that meet the requirements of Appendix CI Section 101.

(Ord. No. 2268, § 7, 7-22-2025)

15.26.1190 Appendix RK.

Appendix RK (Electric Readiness) is adopted and replaced with the following:

RK101.1. General.

The provisions of this section shall be applicable for all new buildings, and major renovations and additions.

RK102.1. Additional Electric Infrastructure.

Combustion equipment in residential buildings must meet the requirements of this Appendix RK.

Exceptions:

1. Interior fireplaces that do not serve as a primary source of heating.
2. Exterior fireplaces and firepits.

RK103.1. Combustion Equipment.

Combustion equipment shall be provided with all of the following:

1. A dedicated, appropriately phased branch circuit sized to accommodate future electric equipment or appliances to serve a comparable capacity to meet the heating load.
 - 1.1. The branch circuits serving future electric clothes drying equipment and water heaters shall be sized with a rating not less than 240 volts and not less than 30 amperes.
- 1.2. The branch circuits serving future cooking equipment shall be sized with a rating not less than 240 volts and not less than 40 amperes.

Exception: Water heaters serving multiple dwelling units in a R-2 occupancy.

2. An electric receptacle or junction box that meets the requirements of Section RK106.1, and is connected to the electrical panel through the branch circuit. Each electrical receptacle or junction box shall have reasonable access to the combustion equipment or dedicated physi-

cal space for future electric equipment with no obstructions other than the current combustion equipment.

3. Where combustion equipment is used for space or water heating, dedicated physical space shall be provided for future electric equipment, including an electric resistance backup coil for ducted systems, if applicable. Physical space occupied by existing combustion equipment or other equipment serving the same load shall be permitted to count towards satisfying the physical space requirement, subject to approval by the code official.

RK104.1. Electrical Panel Space.

The electrical panel shall have a reserved space for a minimum two-pole circuit breaker for each branch circuit provided for future electric equipment or appliances. The electrical panel shall be sized for the electrical load necessary to meet an equivalent electrical load for any combustion equipment. Electrical loads shall be calculated in accordance with the National Electrical Code.

RF105.1. Labeling.

The junction box or receptacle and the dedicated circuit breaker space serving future electric equipment or appliances in the electrical panel shall be labeled for their intended use.

RK106.1. Adjacency.

The electrical receptacle or junction box must be provided within 3 feet of the combustion equipment or appliances, or within 3 feet of the dedicated physical space for future electric equipment or appliances.

Exception: For combustion equipment dedicated to space or water heating, the electrical receptacle or junction box shall be located not more than 6 feet from the combustion equipment or the dedicated physical space for future electric equipment.

RK107.1. Condensate Drain.

Where combustion equipment for space heating and water heating is installed, a location shall be provided for condensate drainage and shall be noted on the construction drawings.

RK108.1. Water heating equipment space and airflow access requirements.

Water heaters with combustion equipment shall be located in a space with the following characteristics:

1. Combustion air provided and sized in accordance with Section 2407 of the International Residential Code.
2. Minimum dimensions of 3 feet by 3 feet by 7 feet high.
3. Sufficient airflow access meeting one of the following options:
 - 3.1. Minimum volume of 700 cubic feet (19.8 m³). Volume may include adjacent spaces if air can freely circulate (e.g. without solid barriers or doors).
 - 3.2. Louvered door(s) with a total minimum net free area of 100 square inches, split between high and low placement.
 - 3.3. Transfer grille(s) or duct(s) to an adjacent space, sized to provide ≥ 100 CFM of airflow. Ducts and grills shall be sized to limit pressure drop and avoid excessive fan cycling.
 - 3.4. Direct ducting to the exterior, sized in accordance with heat pump water heater manufacturers' requirements for intake and exhaust air for a similar-capacity system.

Exception: Water heaters with an input capacity of greater than or equal to 300,000 Btu/h that serve multiple dwelling units or sleeping units.

(Ord. No. 2268, § 7, 7-22-2025)

Chapter 15.30 FUEL GAS CODE*

15.30.010 Adoption of the International Fuel Gas Code.

The 2024 International Fuel Gas Code published by the International Code Council, Inc., 200 Massachusetts Ave NW, Suite 250, Washington DC 20001 (hereinafter referred to as "the IFGC" or "this Code"), Chapters 1 through 8 inclusive is hereby adopted by reference as the City of Golden Fuel Gas Code, as if fully set out in this codification with the amendments indicated in the following sections of this chapter.
(Ord. No. 2268, § 8, 7-22-2025)

15.30.020 IFGS Section 101.1.

IFGC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Fuel Gas Code of the City of Golden, hereinafter referred to as "the IFGC" or "this Code."
(Ord. No. 2268, § 8, 7-22-2025)

15.30.030 IFGS Section 103.

IFGC Section 103 (Code Compliance Agency) is repealed and replaced in its entirety with a new Section 103 entitled, "Administration and Enforcement" to read as follows:

103. Administrative Provisions.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IFGC.
(Ord. No. 2268, § 8, 7-22-2025)

15.30.040 IFGS Sections 104 through 114.

IFGC Section 104 (Duties and Powers of the Code Official), 105 (Permits), 106 (Construction

***Editor's note**—Ord. No. 2268, § 8, adopted July 22, 2025, repealed the former Ch.15.30, §§ 15.30.010—15.30.040, and enacted a new Ch. 15.30 as set out herein. The former Ch. 15.30 pertained to similar subject matter and derived from Ord. No. 2192, § 7, adopted July 22, 2022.

Documents), 107 (Notice of Approval), 108 (Fees), 109 (Service Utilities), 110 (Temporary Uses, Equipment and Systems), 111 (Inspections and Testing), 112 (Means of Appeals), 113 (Violations), and 114 (Stop Work Order) are deleted in their entirety.
(Ord. No. 2268, § 8, 7-22-2025)

Chapter 15.40 RESIDENTIAL CODE†

15.40.010 Adoption of the International Residential Code.

The 2024 International Residential Code for One and Two-Family Dwellings, published by the International Code Council, Inc., 200 Massachusetts Ave NW, Suite 250, Washington DC 20001, Chapters 1 through 43 inclusive and Appendices BE, CD, BF, BO, BG and BD is hereby adopted by reference as the City of Golden Residential Code (hereinafter referred to as "the IRC" or "this Code") as if fully set out in this codification, with the amendments indicated in the following sections of this chapter.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.020 IRC Section R101.1.

IRC Section R101.1 (Title) is amended to read as follows:

R101.1. Title.

These provisions shall be known as the Residential Code for One- and Two-Family Dwellings of the City of Golden and shall be cited as such and will be referred to herein as "the IRC" or "this Code."
(Ord. No. 2268, § 9, 7-22-2025)

15.40.030 IRC Section R102.4.

IRC Section R102.4 (Referenced Codes and Standards) is amended to read as follows:

R102.4. Referenced Codes and Standards.

†**Editor's note**—Ord. No. 2268, § 9, adopted July 22, 2025, repealed the former Ch.15.40, §§ 15.40.010—15.40.220, and enacted a new Ch. 15.40 as set out herein. The former Ch. 15.40 pertained to similar subject matter and derived from Ord. No. 2192, § 8, adopted July 22, 2022.

References to Chapter or Section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this IRC.

To the extent applicable, the requirements of the City's "Water and Sanitary Sewer Specifications" shall apply. Where conflicts exist between the specific provisions of [this] IRC and the "Water and Sanitary Sewer Specifications," the most restrictive provisions shall govern.

To the extent applicable, the requirements of the City's "Cross-Connection Control Program" shall apply. Where conflicts exist between the specific provisions of this IRC and the "Cross Connection Control Program," the most restrictive provisions shall govern.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.040 IRC Section R102.6.

IRC Section R102.6 (Existing Structures) is amended to read as follows:

R102.6. Existing Structures.

The legal occupancy of any structure existing on the date of adoption of this IRC shall be permitted to continue without change, except as is specifically covered in this IRC, the International Fire Code as adopted by the City, or the International Existing Building Code as adopted by the City, or as is deemed necessary by the Building Official for the general safety and welfare of the occupants and the public.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.050 IRC Section R103.

IRC Section R103 (Code Compliance Agency) is repealed and replaced in its entirety with a new Section R103 entitled "Administrative Provisions" to read as follows:

R103. Administrative Provisions.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IRC.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.060 IRC Sections R104 through R114.

IRC Sections R104 (Duties and Powers of the Building Official), R105 (Permits), R106 (Construction Documents), R107 (Temporary Structures and Uses), R108 (Fees), R109 (Inspections), R110 (Certificate of Occupancy), R111 (Service Utilities), R112 (Means of Appeals), R113 (Violations), and R114 (Stop Work Order) are deleted in their entirety.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.070 IRC Section R202.

IRC Section 202 (Definitions) is hereby amended by addition of a definition for "wood roof covering materials" to read as follows:

R202. Definitions.

WOOD ROOF COVERING MATERIALS.

An exterior roofing surface material used as a top covering and made of wood. Wood, for the purpose of this definition, means any material or composite material containing at least fifty percent (50%) wood by volume.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.080 IRC Section R301.2.

Table R301.2 (Climate and Geographic Design Criteria) is hereby amended to read as follows:

TABLE R301.2 CLIMATE AND GEOGRAPHIC DESIGN CRITERIA

Ground Snow Load (o)	Basic Wind Design [Special Wind Region] YES		Seismic Design Category (F)	Subject to Damage From			Winter Design Temp (e)	Ice Barrier Underlayment Required	Flood Hazards (g)	Air Freezing Index (i)	Mean Annual Temp (j)
	Speed (d)	Topo Effects (k)		Weathering (a)	Frost Line Depth (b)	Termite (c)					
42.9	150 V ult	NO	B	Severe	36	No	1°F	Yes	2014	1,000	45°F

(Ord. No. 2268, § 9, 7-22-2025)

15.40.090 IRC Section R313.1.1.

IRC Section R313.1.1 (Basements) is hereby amended to read as follows:

R305.1.1. Basements.

Ceilings in basements without habitable spaces, and not designed or intended to be converted to future habitable space, may project to within six feet, 8 inches (6' 8") (2032 mm) of the finished floor; and beams, girders, ducts, or other obstructions may project to within 6 feet, 4 inches (6' 4") (1931 mm) of the finished floor.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.100 IRC Section R306.1.4.

IRC Section R306.1.4. (Establishing the Design Flood Elevation) is hereby amended to read as follows:

R306.1.4. Establishing the Design Flood Elevation.

The design flood elevation shall be used to define areas prone to flooding, and shall describe, at a minimum, as one foot above the base flood elevation at the depth of peak elevation of flooding (including wave height) which has a one percent (1%) (100-year flood) or greater chance of being equaled or exceeded in any given year.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.110 IRC Chapter 3.

IRC Chapter 3 (Building Planning) is hereby amended with a new Section R333 entitled, "Excavations and Fills: Protection of Adjoining Property" to read as follows:

R333. Excavations and Fills: Protection of Adjoining Property.

Any person making or causing an excavation to be made, shall protect the excavation so that the soil or structures of adjoining property will not cave in, settle or be otherwise adversely affected.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.120 IRC Section R401.4.

IRC Section R401.4 (Soils Test) is amended to read as follows:

R401.4. Soils Test.

In areas likely to have expansive, compressible, shifting or other unknown soil characteristics, the Building Official shall determine whether to require a soil test to determine the soil's characteristics at a particular location. When a soils investigation report is required, it shall be performed in conformance with the requirements of Section 1803 of the International Building Code as adopted by the City. Test shall be made by an approved agency using an approved method.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.130 IRC Section R401.4.1.

IRC Section R401.4.1 (Geotechnical Evaluation) is amended with the addition of a new subsection R401.4.1.2 entitled, "Designated Dipping Bedrock Area" to read as follows:

R401.4.1.2. Designated Dipping Bedrock Area.

Design of foundations required to be designed by a registered State of Colorado design professional and to be installed in the designated dipping bedrock areas, as identified by the Jefferson County Colorado "Designated Dipping Bedrock Area Guide" map dated December

12, 2008, shall consider and incorporate accepted engineering practices and procedures so as to mitigate the potential adverse effects of such dipping bedrock on structures, as determined necessary by a registered design professional.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.140 IRC Section R802.11.

IRC Section R802.11 (Roof Tie Uplift Resistance) is amended to read as follows:

R802.11. Roof Tie Uplift Resistance.

Roof assemblies shall have uplift resistance in accordance with IRC Sections R802.11.1 and R802.11.2.

The following additional provisions shall apply to conventional light frame construction in the City:

1. Roof rafters/trusses and exterior wall framing shall be connected at every rafter/truss along the perimeter by one of the following methods:
 - a. Approved metal strapping (20 gauge minimum) properly installed and secured around rafters/trusses and to wall studs at every 4 feet on center maximum spacing and approved metal rafter to wall plate ties (20 gauge minimum) properly installed and secured at all intermediate rafters/trusses; or
 - b. Approved metal rafter to wall plate ties (20 gauge minimum) properly installed and secured at all rafters/trusses when such plates are connected by approved structural sheathing to wall studs, and all rafters in the first four feet from any outside corners are provided with double ties.
2. The roof overhang at the eaves shall not exceed three (3) feet unless designed to prevent uplift as required for a one hundred sixteen (116) mile per hour wind speed, Vasd Exposure "C."

3. The roof overhang at gable ends shall not exceed two (2) feet unless designed to prevent uplift as required for a one hundred sixteen (116) mile per hour wind speed, Vasd Exposure "C."

Exceptions: Rafters or trusses shall be permitted to be attached to their supporting wall assemblies in accordance with the Table R602.3(1) where either of the following occur:

1. Where the uplift force per rafter or truss does not exceed two hundred (200) pounds (90.8kg) as determined by Table 802.11.
2. Where the basic wind speed does not exceed one hundred fifteen (115) miles per hour (51.4 m/s), the wind exposure category is B, the roof pitch is five (5) units vertical in twelve (12) units horizontal (42-percent slope) or greater, the roof span is thirty-two (32) feet (9754 mm) or less, and rafter and trusses are spaced not more than twenty-four (24) inches (610 mm) on center.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.150 IRC Section R902.1.

IRC Section R902.1 (Roof Assemblies) is amended to read as follows:

R902.1. Roof Assemblies.

Roofs shall be covered with materials as set forth in IRC Sections R904 and R905. Ordinary roof covering (non-classified) materials shall not be permitted, and Class A, B or C roofing shall be installed in areas designated by law as requiring their use or when the edge of the roof is less than three (3) feet (914 mm) from a property line. Classes A, B and C roofing required to be listed by this section shall be tested in accordance with UL 790 or ASTM E 108. Roof assemblies with coverings of brick, masonry, slate, clay or concrete roof tile, exposed concrete roof deck, ferrous or copper shingles or sheets, and metal sheets and shingles, shall be considered Class A roof coverings.

(Ord. No. 2268, § 9, 7-22-2025)

15.40.160 IRC Section R905.2.6.

IRC Section 905.2.6 (Attachment) is amended to read as follows:

R905.2.6. Attachment.

For normal application, asphalt shingles shall be secured to the roof with not less than six (6) fasteners per strip shingle or two (2) fasteners per individual shingle. Asphalt strip shingles shall be self-sealing. Where the roof slope exceeds twenty (20) units vertical in twelve (12) units horizontal (167 percent slope), special fastening methods tested in accordance with ASTM D 3161, Class F, are required. Asphalt shingle wrappers shall bear a label indicating compliance with ASTM D 3161, Class F.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.170 IRC Chapter 10.

IRC Chapter 10 (Chimneys and Fireplaces) is amended with the addition of a new section R1007 entitled, "Emissions Standards for Solid Fuel Burning Fireplaces or Masonry Heaters" to read as follows:

R1007. Emissions Standards for Solid Fuel Burning Fireplaces or Masonry Heaters.

Every newly installed, new or used, solid fuel burning masonry fireplace, factory-built fireplace, or masonry heater shall be either:

1. EPA Certified Phase II, or
2. State of Colorado Certified Phase III, or
3. A state approved solid fuel burning device which is exempt from and not eligible for certification under the United States Environmental Protection Agency (EPA) regulations for wood stoves but which has been tested to demonstrate its emission performance and is in accordance with criteria and procedures not less stringent than those required by the EPA and/or State of Colorado Air Quality Control Commission (AQCC) for wood stoves manufactured after July 1, 1990, and as approved by the alternate materi-

als, alternate design and methods of construction provisions of the administrative provisions regulating this Code.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.180 IRC Chapter 11.

IRC Chapter 11 [RE] (Energy Efficiency) is repealed in its entirety. Energy Efficiency requirements for construction of residential buildings are governed by the International Energy Conservation Code, as adopted and amended by the City of Golden.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.190 IRC Section M1401.

IRC Section M1401 (General) is amended with the addition of a new subsection M1401.6 entitled, "Emissions Standards for Solid Fuel Burning Equipment" to read as follows:

M1401.6. Emissions Standards for Solid Fuel Burning Equipment.

Every newly installed, new, or used, solid fuel burning fireplace stove, stove, room heater, or pellet type appliance shall be either:

- A.1. EPA Certified Phase II, or
2. State of Colorado Certified Phase III, or
3. A state approved solid fuel burning device which is exempt from and not eligible for certification under the United States Environmental Protection Agency (EPA) regulations for wood stoves but which has been tested to demonstrate its emission performance and is in accordance with criteria and procedures not less stringent than those required by the EPA and/or State of Colorado Air Quality Control Commission (AQCC) for wood stoves manufactured after July 1, 1990, and as approved by the alternate materials, alternate design and methods of construction provisions of the administrative provisions regulating this Code.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.200 IRC Section P2603.5.1.

IRC Section P2603.5.1 (Sewer Depth) is amended to read as follows:

P2603.5.1. Sewer Depth.

Building sewers that connect to private sewage disposal systems shall be a minimum of twelve (12) inches (304.8 mm) below finished grade at the point of septic tank connection. Building sewers shall be a minimum of twelve (12) inches (304.8 mm) below grade.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.210 IRC Section E3404.5.

IRC Section E3404.5 (General Equipment Requirements) is amended with the addition of a new subsection E3404.5.1. entitled, "Weather Protection" to read as follows:

E3404.5.1 Weather Protection.

Electrical wiring shall not be installed inside of any building until the interiors of such building have been physically protected from the weather.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.220 IRC Section E3601.6.2.

IRC Section E3601.6.2 (Service Disconnect Location) is amended to read as follows:

E3601.6.2. Service Disconnect Location.

The service disconnecting means shall be installed at a readily accessible location outside of a building nearest the point of entrance of the service conductors. Service disconnecting means shall not be installed in bathrooms. Each occupant shall have access to the disconnect serving the dwelling unit in which they reside.
(Ord. No. 2268, § 9, 7-22-2025)

15.40.230 IRC Section E3605.2.

IRC Section E3605.2 (Wiring Methods for Services) is amended to read as follows:

E3605.2. Wiring Methods for Services.

Service-entrance wiring methods shall be installed in accordance with the applicable requirements in NEC Chapter 38. (230.43).

Exception: Service entrance conductors shall not be run inside of buildings unless enclosed in approved raceway and service entrance conductors shall not be run inside of buildings at a distance greater than one hundred (100) feet without automatic over-current protection on the lead or supply ends.
(Ord. No. 2268, § 9, 7-22-2025)

Chapter 15.50 EXISTING BUILDING CODE*

15.50.010 Adoption of the International Existing Building Code.

The 2024 International Existing Building Code published by the International Code Council, Inc., 200 Massachusetts Ave NW, Suite 250, Washington DC 20001, Chapters 1 through 16, Appendices A, and B, and Resource A is hereby adopted by reference as the City of Golden Existing Building Code (hereinafter referred to as "the IEBC" or "this Code") as if fully set out in this codification, with the amendments indicated in the following sections of this chapter.
(Ord. No. 2268, § 10, 7-22-2025)

15.50.020 IEBC Section 101.1.

IEBC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Existing Building Code of the City of Golden, hereinafter referred to as "the IEBC" or "this Code."
(Ord. No. 2268, § 10, 7-22-2025)

15.50.030 IEBC Section 103.

IEBC Section 103 (Code Compliance Agency) is repealed and replaced in its entirety with a new Section 103 entitled, "Administrative Provisions" to read as follows:

103. Administrative Provisions.

***Editor's note**—Ord. No. 2268, § 10, adopted July 22, 2025, repealed the former Ch.15.50, §§ 15.50.010—15.50.040, and enacted a new Ch. 15.50 as set out herein. The former Ch. 15.50 pertained to similar subject matter and derived from Ord. No. 2192, § 9, adopted July 22, 2022.

Sections 103 through Section 116, inclusive, of the Building Code, as adopted and amended by the City, shall serve to provide the administrative, organizational and enforcement rules and regulations for this IEBC. (Ord. No. 2268, § 10, 7-22-2025)

15.50.040 IEBC Sections 104 through 117.

IEBC Sections 104 (Duties and Powers of the Code Official), 105 (Permits), 106 (Construction Documents), 107 (Temporary Structures and Uses), 108 (Fees), 109 (Inspections), 110 (Certificate of Occupancy), 111 (Service Utilities), 112 (Means of Appeals), 113 (Violations), 114 (Stop Work Order), 115 (Unsafe Buildings and Equipment), 116 (Emergency Measures), and 117 (Demolition) are deleted in their entirety. (Ord. No. 2268, § 10, 7-22-2025)

Chapter 15.60 FLOODPLAIN STANDARDS AND REGULATIONS

15.60.010 Title and purpose.

(a) *Statutory authorization.* The Legislature of the State of Colorado has, in Title 29, Article 20 of the Colorado Revised Statutes, delegated the responsibility of local governmental units to adopt regulations designed to minimize flood losses. Therefore, the city council of the City of Golden, Colorado, does hereby adopt the following floodplain management regulations:

(b) *Findings of fact.*

- (1) The flood hazard areas of the City of Golden are subject to periodic inundation, which can result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, and extraordinary public expenditures for flood protection and relief, all of which adversely affect the health, safety and general welfare of the public.
- (2) These flood losses are created by the cumulative effect of obstructions in floodplains which cause an increase in flood heights and velocities, and by the occupancy of flood hazard areas by uses

vulnerable to floods and hazardous to other lands because they are inadequately elevated, flood proofed or otherwise protected from flood damage.

(c) *Statement of purpose.* It is the purpose of this chapter to promote public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

- (1) Protect human life and health;
- (2) Minimize expenditure of public money for costly flood control projects;
- (3) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;
- (4) Minimize prolonged business interruptions;
- (5) Minimize damage to critical facilities, infrastructure and other public facilities such as water, sewer and gas mains; electric and communications stations; and streets and bridges located in floodplains;
- (6) Help maintain a stable tax base by providing for the sound use and development of floodprone areas in such a manner as to minimize future flood blight areas; and

- (7) Insure that potential buyers are notified that property is located in a flood hazard area.

(d) *Methods of reducing flood losses.* In order to accomplish its purposes, this chapter uses the following methods:

- (1) Restrict or prohibit uses that are dangerous to health, safety or property in times of flood, or cause excessive increases in flood heights or velocities;
- (2) Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;
- (3) Control the alteration of natural floodplains, stream channels, and natural protective barriers, which are involved in the accommodation of flood waters;
- (4) Control filling, grading, dredging and other development which may increase flood damage;
- (5) Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.

(Ord. 1968, 2014)

15.60.020 Definitions.

Unless specifically defined below, words or phrases used in this chapter shall be interpreted to give them the meaning they have in common usage and to give this chapter its most reasonable application.

100-year flood: A flood having a recurrence interval that has a one-percent chance of being equaled or exceeded during any given year (one-percent-annual-chance flood). The terms "100-year flood" and "one percent chance flood" are synonymous with the term "100-year flood." The term does not imply that the flood will necessarily happen once every 100 years.

100-year floodplain: The area of land susceptible to being inundated as a result of the occurrence of a 100-year flood.

500-year flood: A flood having a recurrence interval that has a 0.2-percent chance of being equaled or exceeded during any given year (0.2-percent-chance-annual-flood). The term does not imply that the flood will necessarily happen once every 500 years.

500-year floodplain: The area of land susceptible to being inundated as a result of the occurrence of a 500-year flood.

Addition: Any activity that expands the enclosed footprint or increases the square footage of an existing structure.

Alluvial fan flooding: A fan-shaped sediment deposit formed by a stream that flows from a steep mountain valley or gorge onto a plain or the junction of a tributary stream with the main stream. Alluvial fans contain active stream channels and boulder bars, and recently abandoned channels. Alluvial fans are predominantly formed by alluvial deposits and are modified by infrequent sheet flood, channel avulsions and other stream processes.

Appeal board: The City of Golden Planning Commission.

Area of shallow flooding: A designated Zone AO or AH on a community's flood insurance rate map (FIRM) with a one-percent chance or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

Base flood elevation (BFE): The elevation shown on a FEMA flood insurance rate map for Zones AE, AH, A1-A30, AR, ARIA, AR/AE, AR/A1-A30, AR/AH, ARIAO, V1-V30, and VE that indicates the water surface elevation resulting from a flood that has a one percent chance of equaling or exceeding that level in any given year.

Basement: Any area of a building having its floor sub-grade (below ground level) on all sides.

Channel: The physical confine of stream or waterway consisting of a bed and stream.

Channelization: The artificial creation, enlargement or realignment of a stream channel.

Code of Federal Regulations (CFR): The codification of the general and permanent rules published in the federal register by the executive departments and agencies of the federal government. It is divided into 50 titles that represent broad areas subject to federal regulation.

Community: Any political subdivision in the State of Colorado that has authority to adopt and enforce floodplain management regulations through zoning, including, but not limited to, cities, towns, unincorporated areas in the counties, Indian tribes and drainage and flood control districts.

Conditional letter of map revision (CLOMR): FEMA's comment on a proposed project, which does not revise an effective floodplain map, that would, upon construction, affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodplain.

Critical facility: A structure or related infrastructure, but not the land on which it is situated, as specified in subsection 15.60.050(h) Golden Municipal Code, that if flooded may result in significant hazards to public health and safety or interrupt essential services and operations for the community at any time before, during and after a flood. See subsection 15.60.050(h) Golden Municipal Code.

Development: Any manmade change in improved and unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

DFIRM database: Database (usually spreadsheets containing data and analyses that accompany DFIRMs). The FEMA Mapping Specifications and Guidelines outline requirements for the development and maintenance of DFIRM databases.

Digital flood insurance rate map (DFIRM): FEMA digital floodplain map. These digital maps serve as "regulatory floodplain maps" for insurance and floodplain management purposes.

Elevated building: A non-basement building (i) built, in the case of a building in zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, to have the top of the elevated floor above the ground level by means of pilings, columns (posts and piers), or shear walls parallel to the flow of the water and (ii) adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. In the case of zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of flood waters.

Existing manufactured home park or subdivision: A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

Expansion to an existing manufactured home park or subdivision: The preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Federal register: The official daily publication for rules, proposed rules, and notices of federal agencies and organizations, as well as executive orders and other presidential documents.

FEMA: Federal Emergency Management Agency, the agency responsible for administering the National Flood Insurance Program.

Flood or flooding: A general and temporary condition of partial or complete inundation of normally dry land areas from:

- (1) The overflow of water from channels and reservoir spillways;
- (2) The unusual and rapid accumulation or runoff of surface waters from any source; or

- (3) Mudslides or mudflows that occur from excess surface water that is combined with mud or other debris that is sufficiently fluid so as to flow over the surface of normally dry land areas (such as earth carried by a current of water and deposited along the path of the current).

Flood insurance rate map (FIRM): An official map of a community, on which the Federal Emergency Management Agency has delineated both the special flood hazard areas and the risk premium zones applicable to the community.

Flood insurance study (FIS): The official report provided by the Federal Emergency.

Management agency: The report contains the flood insurance rate map as well as flood profiles for studied flooding sources that can be used to determine base flood elevations for some areas.

Floodplain or floodprone area: Any land area susceptible to being inundated as the result of a flood, including the area of land over which floodwater would flow from the spillway of a reservoir.

Floodplain administrator: The community official designated by title to administer and enforce the floodplain management regulations.

Floodplain development permit: A permit required before construction or development begins within any special flood hazard area (SFHA). If FEMA has not defined the SFHA within a community, the community shall require permits for all proposed construction or other development in the community including the placement of manufactured homes, so that it may determine whether such construction or other development is proposed within flood-prone areas. Permits are required to ensure that proposed development projects meet the requirements of the NFIP and this floodplain management chapter.

Floodplain management: The operation of an overall program of corrective and preventive measures for reducing flood damage, including, but not limited to, emergency preparedness plans, flood control works and floodplain management regulations.

Floodplain management regulations: Zoning chapters, subdivision regulations, building codes,

health regulations, special purpose chapters (such as a floodplain chapter, grading chapter and erosion control chapter) and other applications of police power. The term describes such state or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

Flood control structure: A physical structure designed and built expressly or partially for the purpose of reducing, redirecting, or guiding flood flows along a particular waterway. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

Floodproofing: Any combination of structural and/or non-structural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

Floodway (regulatory floodway): The channel of a river or other watercourse and adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height. The Colorado statewide standard for the designated height to be used for all newly studied reaches shall be one-half foot (six inches). Letters of map revision to existing floodway delineations may continue to use the floodway criteria in place at the time of the existing floodway delineation.

Freeboard: The vertical distance in feet above a predicted water surface elevation intended to provide a margin of safety to compensate for unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood such as debris blockage of bridge openings and the increased runoff due to urbanization of the watershed.

Functionally dependent use: A use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship build-

ing and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Highest adjacent grade: The highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure: Any structure that is:

- (1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
- (2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
- (3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of Interior; or
- (4) Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:
 - (a) By an approved state program as determined by the Secretary of the Interior or;
 - (b) Directly by the Secretary of the Interior in states without approved programs.

Letter of map revision (LOMR): FEMA's official revision of an effective flood insurance rate map (FIRM), or flood boundary and floodway map (FBFM), or both. LOMRs are generally based on the implementation of physical measures that affect the hydrologic or hydraulic characteristics of a flooding source and thus result in the modification of the existing regulatory floodway, the effective base flood elevations (BFEs), or the special flood hazard area (SFHA).

Letter of map revision based on fill (LOMR-F): FEMA's modification of the special flood hazard

area (SFHA) shown on the flood insurance rate map (FIRM) based on the placement of fill outside the existing regulatory floodway.

Levee: A manmade embankment, usually earthen, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding. For a levee structure to be reflected on the FEMA FIRMs as providing flood protection, the levee structure must meet the requirements set forth in 44 CFR 65.10.

Levee system: A flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

Lowest floor: The lowest floor of the lowest enclosed area (including basement). Any floor used for living purposes which includes working, storage, sleeping, cooking and eating, or recreation or any combination thereof. This includes any floor that could be converted to such a use such as a basement or crawl space. The lowest floor is a determinate for the flood insurance premium for a building, home or business. An unfinished or flood-resistant enclosure, usable solely for parking or vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirement of Section 60.3 of the National Flood Insurance Program regulations.

Manufactured home: A structure transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreational vehicle".

Manufactured home park or subdivision: A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Mean sea level: For purposes of the National Flood Insurance Program, the North American

Vertical Datum (NAVD) of 1988 or other datum, to which Base Flood Elevations shown on a community's flood insurance rate map are referenced.

Material safety data sheet (MSDS): A form with data regarding the properties of a particular substance. An important component of product stewardship and workplace safety, it is intended to provide workers and emergency personnel with procedures for handling or working with that substance in a safe manner, and includes information such as physical data (melting point, boiling point, flash point, etc.), toxicity, health effects, first aid, reactivity, storage, disposal, protective equipment, and spill-handling procedures.

National flood insurance program (NFIP): FEMA's program of flood insurance coverage and floodplain management administered in conjunction with the Robert T. Stafford Relief and Emergency Assistance Act. The NFIP has applicable Federal regulations promulgated in Title 44 of the Code of Federal Regulations. The U.S. Congress established the NFIP in 1968 with the passage of the National Flood Insurance Act of 1968.

New manufactured home park or subdivision: A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

No-rise certification: A record of the results of an engineering analysis conducted to determine whether a project will increase flood heights in a floodway. A no-rise certification must be supported by technical data and signed by a registered Colorado Professional Engineer. The supporting technical data should be based on the standard step-backwater computer model used to develop the 100-year floodway shown on the flood insurance rate map (FIRM) or flood boundary and floodway map (FBFM).

Physical map revision (PMR): FEMA's action whereby one or more map panels are physically revised and republished. A PMR is used to change

flood risk zones, floodplain and/or floodway delineations, flood elevations, and/or planimetric features.

Recreational vehicle: means a vehicle which is:

- (1) Built on a single chassis;
- (2) Four hundred square feet or less when measured at the largest horizontal projections;
- (3) Designed to be self-propelled or permanently towable by a light duty truck; and
- (4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Special flood hazard area: The land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year, i.e., the 100-year floodplain.

Start of construction: The date the building permit was issued, including substantial improvements, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure: A walled and roofed building, including a gas or liquid storage tank, which is principally above ground, as well as a manufactured home.

Substantial damage: Damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure just prior to when the damage occurred.

Substantial improvement: Any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before "start of construction" of the improvement. The value of the structure shall be determined by the local jurisdiction having land use authority in the area of interest. This includes structures which have incurred "substantial damage", regardless of the actual repair work performed. The term does not, however, include either:

- (1) Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary conditions; or
- (2) Any alteration of a "historic structure" provided that the alteration will not preclude the structure's continued designation as a "historic structure."

Threshold planning quantity (TPQ): A quantity designated for each chemical on the list of extremely hazardous substances that triggers notification by facilities to the State that such facilities are subject to emergency planning requirements.

Variance: A grant of relief to a person from the requirement of this chapter when specific enforcement would result in unnecessary hardship. A variance, therefore, permits construction or development in a manner otherwise prohibited by this chapter. (For full requirements see Section 60.6 of the National Flood Insurance Program regulations.)

Violation: The failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required by this chapter is presumed to be in violation until such time as that documentation is provided.

Water surface elevation: The height, in relation to the North American Vertical Datum (NAVD) of 1988 (or other datum, where specified), of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.
(Ord. 1968, 2014)

15.60.030 General provisions.

(a) *Lands to which this chapter applies.* The chapter shall apply to all special flood hazard areas and areas removed from the floodplain by the issuance of a FEMA Letter of Map Revision Based on Fill (LOMR-F) within the jurisdiction of the City of Golden, Colorado.

(b) *Basis for establishing the special flood hazard area.* The special flood hazard areas identified by the Federal Emergency Management Agency in a scientific and engineering report entitled, "The Flood Insurance Study for Jefferson County and Incorporated Areas" dated February 5, 2014, with accompanying Flood Insurance Rate Maps and/or Flood Boundary-Floodway Maps (FIRM and/or FBFM) and any revisions thereto are hereby adopted by reference and declared to be a part of this chapter. These special flood hazard areas identified by the FIS and attendant mapping are the minimum area of applicability of this chapter and may be supplemented by studies designated and approved by the city council. The floodplain administrator shall keep a copy of the flood insurance study (FIS), DFIRMs, FIRMs and/or FBFMs on file and available for public inspection.

(c) *Establishment of floodplain development permit.* A floodplain development permit shall be required to ensure conformance with the provisions of this chapter.

(d) *Compliance.* No structure or land shall hereafter be located, altered, or have its use changed within the special flood hazard area

without full compliance with the terms of this chapter and other applicable regulations. Nothing herein shall prevent The city from taking such lawful action as is necessary to prevent or remedy any violation. These regulations meet the minimum requirements as set forth by the Colorado Water Conservation Board and the National Flood Insurance Program.

(e) *Abrogation and greater restrictions.* This chapter is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this chapter and another chapter, easement, covenant, nor deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

(f) *Interpretation.* In the interpretation and application of this chapter, all provisions shall be:

- (1) Considered as minimum requirements;
- (2) Liberally construed in favor of the governing body; and
- (3) Deemed neither to limit nor repeal any other powers granted under state statutes.

(g) *Warning and disclaimer of liability.* The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. On rare occasions greater floods can and will occur and flood heights may be increased by manmade or natural causes. This chapter does not imply that land outside the special flood hazard area or uses permitted within such areas will be free from flooding or flood damages. This chapter shall not create liability on the part of the community or any official or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

(h) *Severability.* This chapter and the various parts thereof are hereby declared to be severable. Should any section of this chapter be declared by the courts to be unconstitutional or invalid, such decision shall not affect the validity of the chapter as a whole, or any portion thereof other than the section so declared to be unconstitutional or invalid.

(Ord. 1968, 2014)

15.60.040 Administration.

(a) *Designation of the floodplain administrator.* The city engineer or his/her designee is hereby appointed as floodplain administrator to administer, implement and enforce the provisions of this chapter and other appropriate sections of 44 CFR (National Flood Insurance Program Regulations) pertaining to floodplain management.

(b) *Duties and responsibilities of the floodplain administrator.* Duties and responsibilities of the floodplain administrator shall include, but not be limited to, the following:

- (1) Maintain and hold open for public inspection all records pertaining to the provisions of this chapter, including the actual elevation (in relation to mean sea level) of the lowest floor (including basement) of all new or substantially improved structures and any flood proofing certificate required by subsection (c) of this section.
- (2) Review, approve, or deny all applications for floodplain development permits required by adoption of this chapter.
- (3) Review floodplain development permit applications to determine whether a proposed building site, including the placement of manufactured homes, will be reasonably safe from flooding.
- (4) Review permits for proposed development to assure that all necessary permits have been obtained from those federal, state or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334) from which prior approval is required.
- (5) Inspect all development at appropriate times during the period of construction to ensure compliance with all provisions of this chapter, including proper elevation of the structure.
- (6) Where interpretation is needed as to the exact location of the boundaries of the special flood hazard area (for example, where there appears to be a conflict between a mapped boundary and actual

field conditions) the floodplain administrator shall make the necessary interpretation.

- (7) When base flood elevation data has not been provided in accordance with subsection 15.60.030(b), Golden Municipal Code, the floodplain administrator shall obtain, review and reasonably utilize any base flood elevation data and floodway data available from a federal, state, or other source, in order to administer the provisions of section 15.60.050, Golden Municipal Code.
 - (8) For waterways with base flood elevations for which a regulatory floodway has not been designated, no new construction, substantial improvements, or other development (including fill) shall be permitted within Zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one-half foot at any point within the community.
 - (9) Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program regulations, a community may approve certain development in zones A1-30, AE, AH, on the community's FIRM which increases the water surface elevation of the base flood by more than one-half foot, provided that the community first applies for a conditional FIRM revision through FEMA (conditional letter of map revision), fulfills the requirements for such revisions as established under the provisions of said Section 65.12 and receives FEMA approval.
 - (10) Notify, in riverine situations, adjacent communities and the state coordinating agency, which is the Colorado Water Conservation Board, prior to any alteration or relocation of a watercourse, and submit evidence of such notification to FEMA.
 - (11) Ensure that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained.
- (c) *Permit procedures.*
- (1) Application for a floodplain development permit shall be presented to the floodplain administrator on forms furnished by him/her and may include, but not be limited to, plans in duplicate drawn to scale showing the location, dimensions, and elevation of proposed landscape alterations, existing and proposed structures, including the placement of manufactured homes, and the location of the foregoing in relation to special flood hazard area. Additionally, the following information is required:
 - a. Elevation (in relation to mean sea level), of the lowest floor (including basement) of all new and substantially improved structures;
 - b. Elevation in relation to mean sea level to which any nonresidential structure shall be floodproofed;
 - c. A certificate from a registered Colorado Professional Engineer or architect that the nonresidential flood proofed structure shall meet the flood proofing criteria of subsection 15.60.050(b)(1), Golden Municipal Code;
 - d. Description of the extent to which any watercourse or natural drainage will be altered or relocated as a result of proposed development.
 - e. Maintain a record of all such information in accordance with subsection of this section.
 - (2) Approval or denial of a floodplain development permit by the floodplain administrator shall be based on all of the provisions of this chapter and the following relevant factors:
 - a. The danger to life and property due to flooding or erosion damage;

- b. The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;
 - c. The danger that materials may be swept onto other lands to the injury of others;
 - d. The compatibility of the proposed use with existing and anticipated development;
 - e. The safety of access to the property in times of flood for ordinary emergency vehicles;
 - f. The costs of providing governmental services during and after flood conditions including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;
 - g. The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site;
 - h. The necessity to the facility of a waterfront location, where applicable;
 - i. The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;
 - j. The relationship of the proposed use to the comprehensive plan for that area.
- (d) *Variance procedures.*
- (1) The appeal board shall hear and render judgment on requests for variances from the requirements of this chapter.
 - (2) The appeal board shall hear and render judgment on an appeal only when it is alleged there is an error in any requirement, decision, or determination made by the floodplain administrator in the enforcement or administration of this chapter.
 - (3) Any person or persons aggrieved by the decision of the appeal board may appeal such decision in the courts of competent jurisdiction.
 - (4) The floodplain administrator shall maintain a record of all actions involving an appeal and shall report variances to the Federal Emergency Management Agency upon request.
 - (5) Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the State Inventory of Historic Places, without regard to the procedures set forth in the remainder of this chapter.
 - (6) Upon consideration of the factors noted above and the intent of this chapter, the appeal board may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this chapter as stated in section 15.60.010, Golden Municipal Code.
 - (7) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.
 - (8) Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.
 - (9) Prerequisites for granting variances:
 - a. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.
 - b. Variances shall only be issued upon:
 - 1. Showing a good and sufficient cause;

2. A determination that failure to grant the variance would result in exceptional hardship to the applicant, and
3. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

- c. Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with the lowest floor elevation below the base flood elevation, and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

- (10) Variances may be issued by a community for new construction and substantial improvements, and for other development necessary for the conduct of a functionally dependent use provided that:

- a. The criteria outlined in subsections (d)(1) through (d)(9) of this section are met, and
- b. The structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety.

(e) *Penalties for noncompliance.* No structure or land shall hereafter be constructed, located, extended, converted, or altered without full compliance with the terms of this chapter and other applicable regulations. Violation of the provisions of this chapter by failure to comply with any of its requirements (including violations of conditions and safeguards established in connection with conditions) shall constitute a misdemeanor. Any person who violates this chapter or fails to comply with any of its requirements shall upon conviction thereof be fined or imprisoned as provided by the laws of the City of Golden. Nothing herein con-

tained shall prevent the City of Golden from taking such other lawful action as is necessary to prevent or remedy any violation.
(Ord. 1968, 2014)

15.60.050 Provisions for flood hazard reduction.

(a) *General standards.* In all special flood hazard areas the following provisions are required for all new construction and substantial improvements:

- (1) All new construction or substantial improvements shall be designed (or modified) and adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;
- (2) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;
- (3) All new construction or substantial improvements shall be constructed with materials resistant to flood damage;
- (4) All new construction or substantial improvements shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding;
- (5) All manufactured homes shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces;

- (6) All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system;
- (7) New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the system and discharge from the systems into floodwaters; and
- (8) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(b) *Specific standards.* In all special flood hazard areas where base flood elevation data has been provided as set forth in: subsection 15.60.030(b), Golden Municipal Code; subsection 15.60.040(b)(7), Golden Municipal Code; or subsection (g) of this section, the following provisions are required:

- (1) *Residential construction.* New construction and substantial improvement of any residential structure shall have the lowest floor (including basement), electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), elevated to one foot above the base flood elevation. Upon completion of the structure, the elevation of the lowest floor, including basement, shall be certified by a registered Colorado professional engineer, architect, or land surveyor. such certification shall be submitted to the floodplain administrator.
- (2) *Nonresidential construction.* With the exception of critical facilities, outlined in subsection (h) of this section, new construction and substantial improvements of any commercial, industrial, or other nonresidential structure shall either have the lowest floor (including basement), electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), elevated to one foot above the base flood elevation or, together with attendant utility and sanitary facilities, be designed so that at one foot above the base flood

elevation the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

A registered Colorado professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. Such certification shall be maintained by the floodplain administrator, as proposed in subsection 15.60.040(c), Golden Municipal Code.

- (3) *Enclosures.* New construction and substantial improvements, with fully enclosed areas below the lowest floor that are usable solely for parking of vehicles, building access, or storage in an area other than a basement and which are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters.

Designs for meeting this requirement must either be certified by a registered Colorado professional engineer or architect or meet or exceed the following minimum criteria:

- a. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided.
 - b. The bottom of all openings shall be no higher than one foot above grade.
 - c. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.
- (4) *Manufactured homes.* All manufactured homes that are placed or substantially improved within zones A1-30, AH, and AE

on the community's FIRM on sites: Outside of a manufactured home park or subdivision; in a new manufactured home park or subdivision; in an expansion to an existing manufactured home park or subdivision; or in an existing manufactured home park or subdivision on which manufactured home has incurred "substantial damage" as a result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home, electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), are elevated to one foot above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

All manufactured homes placed or substantially improved on sites in an existing manufactured home park or subdivision within zones A1-30, AH and AE on the community's FIRM that are not subject to the provisions of the above paragraph, shall be elevated so that either:

- a. The lowest floor of the manufactured home, electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), are one foot above the base flood elevation, or
 - b. The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than 36 inches in height above grade and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.
- (5) *Recreational vehicles.* All recreational vehicles placed on sites within zones A1-30, AH, and AE on the community's FIRM either:
- a. Be on the site for fewer than 180 consecutive days,

- b. Be fully licensed and ready for highway use, or
- c. Meet the permit requirements of subsection 15.60.040(c), Golden Municipal Code, and the elevation and anchoring requirements for "manufactured homes" in paragraph (4) of this section.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached additions.

- (6) *Prior approved activities.* Any activity for which a floodplain development permit was issued by the city or a CLOMR was issued by FEMA prior to January 23, 2014, may be completed according to the standards in place at the time of the permit or CLOMR issuance and will not be considered in violation of this chapter if it meets such standards.

(c) *Standards for areas of shallow flooding (AO/AH zones).* Located within the special flood hazard area established in subsection 15.60.030(b) Golden Municipal Code, are areas designated as shallow flooding. These areas have special flood hazards associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow; therefore, the following provisions apply:

- (1) *Residential construction.* All new construction and substantial improvements of residential structures must have the lowest floor (including basement), electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), elevated above the highest adjacent grade at least one foot above the depth number specified in feet on the community's FIRM (at least three feet if no depth number is specified). Upon completion of the structure, the elevation of the lowest floor, including basement, shall be certified by a regis-

tered Colorado Professional Engineer, architect, or land surveyor. Such certification shall be submitted to the floodplain administrator.

- (2) *Nonresidential construction.* With the exception of critical facilities, outlined in subsection 15.60.050(h), Golden Municipal Code, all new construction and substantial improvements of nonresidential structures, must have the lowest floor (including basement), electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), elevated above the highest adjacent grade at least one foot above the depth number specified in feet on the community's FIRM (at least three feet if no depth number is specified), or together with attendant utility and sanitary facilities, be designed so that the structure is watertight to at least one foot above the base flood level one foot above the depth number specified in feet on the community's FIRM (at least three feet if no depth number is specified) with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy. A registered Colorado Professional Engineer or architect shall submit a certification to the floodplain administrator that the standards of this section, as set forth in subsection 15.60.040(c), Golden Municipal Code, are satisfied.

Within zones AH or AO, adequate drainage paths around structures on slopes are required to guide floodwaters around and away from proposed structures.

(d) *Floodways.* Floodways are administrative limits and tools used to regulate existing and future floodplain development. The State of Colorado has adopted floodway standards that are more stringent than the FEMA minimum standard (see definition of floodway in section 15.60.020, Golden Municipal Code). Located within special flood hazard area established in subsection 15.60.030(b), Golden Municipal Code, are areas designated as floodways. Since the floodway is an

extremely hazardous area due to the velocity of floodwaters which carry debris, potential projectiles and erosion potential, the following provisions shall apply:

- (1) Encroachments are prohibited, including fill, new construction, substantial improvements and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed by a licensed Colorado Professional Engineer and in accordance with standard engineering practice that the proposed encroachment would not result in any increase (requires a no-rise certification) in flood levels within the community during the occurrence of the base flood discharge.
- (2) If subsection 15.60.050(d)(1), Golden Municipal Code is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this section.
- (3) Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Regulations, a community may permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, provided that the community first applies for a CLOMR and floodway revision through FEMA.

(e) *Alteration of a watercourse.* For all proposed developments that alter a watercourse within a special flood hazard area, the following standards apply:

- (1) Channelization and flow diversion projects shall appropriately consider issues of sediment transport, erosion, deposition, and channel migration and properly mitigate potential problems through the project as well as upstream and downstream of any improvement activity. A detailed analysis of sediment transport and overall channel stability should be considered, when appropriate, to assist in determining the most appropriate design.

- (2) Channelization and flow diversion projects shall evaluate the residual 100-year floodplain.
- (3) Any channelization or other stream alteration activity proposed by a project proponent must be evaluated for its impact on the regulatory floodplain and be in compliance with all applicable federal, state and local floodplain rules, regulations and ordinances.
- (4) Any stream alteration activity shall be designed and sealed by a registered Colorado professional engineer or certified professional hydrologist.
- (5) All activities within the regulatory floodplain shall meet all applicable federal, state and city floodplain requirements and regulations.
- (6) Within the regulatory floodway, stream alteration activities shall not be constructed unless the project proponent demonstrates through a floodway analysis and report, sealed by a registered Colorado Professional Engineer, that there is not more than a 0.00-foot rise in the proposed conditions compared to existing conditions floodway resulting from the project, otherwise known as a no-rise certification, unless the community first applies for a CLOMR and floodway revision in accordance with subsection (d) of this section.
- (7) Maintenance shall be required for any altered or relocated portions of watercourses so that the flood-carrying capacity is not diminished.

(f) *Properties removed from the floodplain by fill.* A floodplain development permit shall not be issued for the construction of a new structure or addition to an existing structure on a property removed from the floodplain by the issuance of a FEMA letter of map revision based on fill (LOMR-F), unless such new structure or addition complies with the following:

- (1) *Residential construction.* The lowest floor (including basement), electrical, heating, ventilation, plumbing, and air condition-

ing equipment and other service facilities (including ductwork), must be elevated to one foot above the base flood elevation that existed prior to the placement of fill.

- (2) *Nonresidential construction.* The lowest floor (including basement), electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities (including ductwork), must be elevated to one foot above the base flood elevation that existed prior to the placement of fill, or together with attendant utility and sanitary facilities be designed so that the structure or addition is watertight to at least one foot above the base flood level that existed prior to the placement of fill with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy.

(g) *Standards for subdivision proposals.*

- (1) All subdivision proposals including the placement of manufactured home parks and subdivisions shall be reasonably safe from flooding. If a subdivision or other development proposal is in a floodprone area, the proposal shall minimize flood damage.
- (2) All proposals for the development of subdivisions including the placement of manufactured home parks and subdivisions shall meet floodplain development permit requirements of subsection 15.60.030(c), Golden Municipal Code; and the provisions of subsection 15.60.040(c) of the Golden Municipal Code.
- (3) Base flood elevation data shall be generated for subdivision proposals and other proposed development including the placement of manufactured home parks and subdivisions which is greater than 50 lots or five acres, whichever is lesser, if not otherwise provided pursuant to subsection 15.60.030(b), Golden Municipal Code or subsection 15.60.040(b) Golden Municipal Code.

- (4) All subdivision proposals including the placement of manufactured home parks and subdivisions shall have adequate drainage provided to reduce exposure to flood hazards.
- (5) All subdivision proposals including the placement of manufactured home parks and subdivisions shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize or eliminate flood damage.

(h) *Standards for critical facilities.* A critical facility is a structure or related infrastructure, but not the land on which it is situated, as specified in Rule 6 of the Rules and Regulations for Regulatory Floodplains in Colorado, that if flooded may result in significant hazards to public health and safety or interrupt essential services and operations for the community at any time before, during and after a flood.

- (1) *Classification of critical facilities.* It is the responsibility of the City of Golden Public Works Department to identify and confirm that specific structures in their community meet the following criteria:

Critical facilities are classified under the following categories: Essential services; hazardous materials; at-risk populations; and vital to restoring normal services.

- a. Essential services facilities include public safety, emergency response, emergency medical, designated emergency shelters, communications, public utility plant facilities, and transportation lifelines. These facilities consist of:
 - 1. Public safety (police stations, fire and rescue stations, emergency vehicle and equipment storage, and, emergency operation centers);
 - 2. Emergency medical (hospitals, ambulance service centers, urgent care centers having emergency treatment functions, and non-ambulatory surgical struc-

tures but excluding clinics, doctors offices, and non-urgent care medical structures that do not provide these functions);

- 3. Designated emergency shelters;
- 4. Communications (main hubs for telephone, broadcasting equipment for cable systems, satellite dish systems, cellular systems, television, radio, and other emergency warning systems, but excluding towers, poles, lines, cables, and conduits);
- 5. Public utility plant facilities for generation and distribution (hubs, treatment plants, substations and pumping stations for water, power and gas, but not including towers, poles, power lines, buried pipelines, transmission lines, distribution lines, and service lines); and
- 6. Air transportation lifelines (airports (municipal and larger), helicopter pads and structures serving emergency functions, and associated infrastructure (aviation control towers, air traffic control centers, and emergency equipment aircraft hangars)).

Specific exemptions to this category include wastewater treatment plants (WWTP), non-potable water treatment and distribution systems, and hydroelectric power generating plants and related appurtenances.

Public utility plant facilities may be exempted if it can be demonstrated to the satisfaction of the City of Golden Public Works Department that the facility is an element of a redundant system for which service will not be interrupted during a flood. At a minimum, it shall be demonstrated that redundant facilities are available (either owned by the same utility or available through an inter-

governmental agreement or other contract) and connected, the alternative facilities are either located outside of the 100-year floodplain or are compliant with the provisions of this section, and an operations plan is in effect that states how redundant systems will provide service to the affected area in the event of a flood. Evidence of ongoing redundancy shall be provided to the city council on an as-needed basis upon request.

- b. Hazardous materials facilities include facilities that produce or store highly volatile, flammable, explosive, toxic and/or water-reactive materials. These facilities may include:
 1. Chemical and pharmaceutical plants (chemical plant, pharmaceutical manufacturing);
 2. Laboratories containing highly volatile, flammable, explosive, toxic and/or water-reactive materials;
 3. Refineries;
 4. Hazardous waste storage and disposal sites; and
 5. Aboveground gasoline or propane storage or sales centers.

Facilities shall be determined to be critical facilities if they produce or store materials in excess of threshold limits. If the owner of a facility is required by the Occupational Safety and Health Administration (OSHA) to keep a material safety data sheet (MSDS) on file for any chemicals stored or used in the work place, and the chemical(s) is stored in quantities equal to or greater than the threshold planning quantity (TPQ) for that chemical, then that facility shall be considered to be a critical facility. The TPQ for these chemicals is: either 500 pounds or the TPQ listed (whichever is lower) for the 356 chemicals listed under 40 C.P.R. § 302 (2010), also known as extremely hazardous substances (EHS); or 10,000 pounds for any other chemical. This threshold is

consistent with the requirements for reportable chemicals established by the Colorado Department of Health and Environment. OSHA requirements for MSDS can be found in 29 C.P.R. § 1910 (2010). The Environmental Protection Agency (EPA) regulation "Designation, Reportable Quantities, and Notification," 40 C.P.R. § 302 (2010) and OSHA regulation "Occupational Safety and Health Standards," 29 C.P.R. § 1910 (2010) are incorporated herein by reference and include the regulations in existence at the time of the promulgation this chapter, but exclude later amendments to or editions of the regulations. Specific exemptions to this category include:

1. Finished consumer products within retail centers and households containing hazardous materials intended for household use, and agricultural products intended for agricultural use.
2. Buildings and other structures containing hazardous materials for which it can be demonstrated to the satisfaction of the local authority having jurisdiction by hazard assessment and certification by a qualified professional (as determined by the local jurisdiction having land use authority) that a release of the subject hazardous material does not pose a major threat to the public.
3. Pharmaceutical sales, use, storage, and distribution centers that do not manufacture pharmaceutical products.

These exemptions shall not apply to buildings or other structures that also function as critical facilities under another category outlined in this article.

- c. At-risk population facilities include medical care, congregate care, and schools. These facilities consist of:
 1. Elder care (nursing homes);

2. Congregate care serving 12 or more individuals (day care and assisted living);
3. Public and private schools (pre-schools, K—12 schools), before-school and after-school care serving 12 or more children);
- d. Facilities vital to restoring normal services including government operations. These facilities consist of:
 1. Essential government operations (public records, courts, jails, building permitting and inspection services, community administration and management, maintenance and equipment centers);
 2. Essential structures for public colleges and universities (dormitories, offices, and classrooms only).

These facilities may be exempted if it is demonstrated to the city council that the facility is an element of a redundant system for which service will not be interrupted during a flood. At a minimum, it shall be demonstrated that redundant facilities are available (either owned by the same entity or available through an intergovernmental agreement or other contract), the alternative facilities are either located outside of the 100-year floodplain or are compliant with this chapter, and an operations plan is in effect that states how redundant facilities will provide service to the affected area in the event of a flood. Evidence of ongoing redundancy shall be provided to the Golden City Council on an as-needed basis upon request.

- (2) *Protection for critical facilities.* All new and substantially improved critical facilities and new additions to critical facilities located within the special flood hazard area shall be regulated to a higher standard than structures not determined

to be critical facilities. For the purposes of this chapter, protection shall include one of the following:

- a. Location outside the special flood hazard area; or
- b. Elevation of the lowest floor or flood-proofing of the structure, together with attendant utility and sanitary facilities, to at least two feet above the base flood elevation.

(3) *Ingress and egress for new critical facilities.* New critical facilities shall, when practicable as determined by the City of Golden Public Works Department have continuous non-inundated access (ingress and egress for evacuation and emergency services) during a 100-year flood event.

(Ord. 1968, 2014)

Chapter 15.70 GRAYWATER SYSTEMS

15.70.010 Purpose.

This chapter is enacted for the purpose of establishing a local graywater control program within the City of Golden, reducing per capita water demand, and integrating resiliency and resource recovery into the city's water infrastructure as described in the city's sustainability goals. The intent of this chapter is to establish standards and guidelines for the design, construction, installation, repair, modification, maintenance and use of laundry-to-landscape graywater systems, to encourage the use of graywater, and to protect public health and water quality.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.020 Applicability and jurisdiction.

(a) The territorial jurisdiction and legal boundary of the city's graywater use program established by this chapter shall include the city's water and wastewater utility enterprises respective service area boundaries, consisting of the city's territorial limits and areas served through extraterritorial agreements.

(b) This chapter shall apply to all graywater uses and graywater systems located within the city's graywater system jurisdiction.

(c) No building permit shall be issued for construction of or modification to a graywater system, and no such construction or modification shall be performed unless an approved graywater system meets the following minimum requirements:

- (1) Achieves the minimum design criteria provided in section 15.70.080;
- (2) Satisfies the use requirements provided in section 15.70.070; and
- (3) Complies with this chapter and all applicable federal and state requirements for graywater systems.

(d) No building permit shall be issued for construction of or modification to any graywater system not otherwise allowed under the city's graywater use program.
(Ord. No. 2143, § 1, 9-10-2020)

15.70.030 Appeals.

An applicant or permittee may appeal an order, decision, or determination made by the building official relative to the application and interpretation of this chapter according to the procedure set forth in Section 113 of the Building Code, as adopted and amended by the city.
(Ord. No. 2143, § 1, 9-10-2020)

15.70.040 Administration and enforcement.

(a) The department shall be the agency responsible for oversight, administration, and enforcement of the city's graywater use program established by this chapter.

(b) The department shall establish a process through which it will approve or deny applications for the construction of new or modifications to an existing graywater system, issue a building permit for such construction or modifications, and conduct inspections or verifications for the acceptance of approved new graywater systems or modifications thereto. The permit application and review process to be established by the

department shall be designed to ensure that only graywater systems meeting all applicable provisions of this chapter are approved.

(c) In reviewing applications submitted under this chapter, the department shall, at a minimum, consider the design documentation associated with the graywater system, which must include the following information:

- (1) The types of graywater uses occurring at the property;
- (2) Location of the graywater system;
- (3) Design flow calculations for the graywater system;
- (4) The fixtures that are the sources of the graywater;
- (5) The design plans of the plumbing and subsurface irrigation system, if applicable;
- (6) A description of the products and components of the graywater system;
- (7) The name, address and signature of the legally responsible party;
- (8) Any supporting soils analysis, if applicable; and
- (9) The contact information for system designer or professional engineer and operator.

(d) Prior to issuing any permit, the department shall conduct a visual inspection, verification, and acceptance of the new or existing graywater system and

(e) The department shall develop a graywater system design criteria guidance document, which includes the following:

- (1) Requirements that are at least as stringent as the minimum design requirements provided in section 15.70.080; and
- (2) Site evaluation protocols for subsurface irrigation systems associated with a graywater system, consistent with 5 CCR 1002-86, Reg. 86, as amended.

(f) The department shall create and maintain at all times a searchable tracking mechanism that shall include, at a minimum, the following information:

- (1) Legal address of each facility with a graywater system, allowed graywater uses at each facility, and a graywater system description;
- (2) The legally responsible party associated with every graywater system; and
- (3) Any changes to the legally responsible party or status of the graywater system that shall be updated within 60 days of the change.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.050 Fees.

(a) A permit issued under this chapter shall not be valid until the fees prescribed by law have been paid.

(b) Each application for a new or modification to an existing graywater system shall be accompanied by the payment in full of a fee in an amount set forth in the schedule as established by resolution of city council.

(c) The department shall be authorized to assess a re-inspection fee for each inspection or re-inspection when such portion of work for which inspection is called is not complete; when previously cited corrections called for are not made; when the inspection record card is not properly posted or otherwise available on the work site; when the approved permit or O&M manual is not readily available to the inspector; for failure to provide access on the date for which inspection is requested; or for deviating from plans requiring the approval of the department. Said re-inspection fee shall be as set forth by city council resolution. In instances where re-inspection fees have been assessed, the department is authorized to suspend or withhold additional inspection of the work until the required fees have been paid.

(d) The department may establish a fee refund or waiver policy.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.060 Definitions.

Agronomic rate means the rate of application of nutrients to plants that is necessary to satisfy the nutritional requirements of the plants.

Component means a subpart of a graywater system which may include multiple devices.

Cross-connection means any connection that could allow any water, fluid, or gas such that the water quality could present an unacceptable health and/or safety risk to the public, to flow from any pipe, plumbing fixture, or a customer's water system into a public water system's distribution system or any other part of the public water system through backflow.

Department means the City of Golden Public Works Department.

Design means the process of selecting and documenting in writing the size, calculations, site specific data, location, equipment specification and configuration of treatment components that match site characteristics and facility use.

Design flow means the estimated volume of graywater per unit of time for which a component or graywater system is designed.

Dispersed subsurface irrigation means a subsurface irrigation system including piping and emitters installed throughout an irrigation area.

Facility means any building, structure, or installation, or any combination thereof that uses graywater subject to a local graywater control program, is located on one or more contiguous or adjacent properties, and is owned or operated by the same person or legal entity. Facility is synonymous with the term operation.

Graywater means that portion of wastewater that, before being treated or combined with other wastewater, is collected from fixtures within residential, commercial, or industrial buildings or institutional facilities for the purpose of being put to beneficial uses. Sources of graywater are limited to discharges from bathroom and laundry room sinks, bathtubs, showers, and laundry

machines. Graywater does not include the wastewater from toilets, urinals, kitchen sinks, dishwashers, or non-laundry utility sinks.

Graywater use program means and refers to the provisions of this chapter regulating the design and operation of graywater systems and the use of graywater within the city's graywater system jurisdiction, as established by this ordinance.

Graywater system means an arrangement of devices and structures used to:

- (a) Collect graywater from within a building or a facility; and
- (b) Treat, neutralize, or stabilize graywater within the same building or facility to the level necessary for its authorized uses.

Graywater system jurisdiction means the legal boundary of the city's graywater use program, which shall consist of the City of Golden's water and wastewater enterprise service boundary, including the territorial city limits and areas served through extraterritorial agreements.

Legally responsible party means a person or entity who is the property owner of record.

Modification means the alteration or replacement of any component of a graywater system that can affect the quality of the finished water, the rated capacity of a graywater system, the graywater use, alters the treatment process of a graywater system, or compliance with this regulation and the city's graywater use program. This definition does not include normal operations and maintenance of a graywater systems.

Mulch means organic material including, but not limited to, leaves, prunings, straw, pulled weeds, and wood chips.

Mulch basin means a type of irrigation or treatment field filled with mulch or other approved permeable material of sufficient depth, length, and width to prevent ponding or runoff. A mulch basin may include a basin around a tree, a trough along a row of plants, or other shapes necessary for irrigation.

Percolation test means a subsurface soil test at the depth of a proposed irrigation area to determine the water absorption capability of the soil, the results of which are normally expressed as the rate at which one inch of water is absorbed. The rate is expressed in minutes per inch.

Potable water system means a system for the provision of water to the public for human consumption through pipes or other constructed conveyances, where such system has less than 15 service connections or regularly serves less than an average of at least 25 individuals daily at least 60 days per year.

Professional engineer means an engineer licensed in accordance with applicable state law.

Public nuisance shall have the same meaning as the term "nuisance" as defined in section 5.01.010 of the Golden Municipal Code.

Public water system means a system for the provision of water to the public for human consumption through pipes or other constructed conveyances, if such system has at least 15 service connections or regularly serves an average of at least 25 individuals daily at least 60 days per year. A public water system is either a community water system or a non-community water system. Such term does not include any special irrigation district. Such term includes:

- (a) Any collection, treatment, storage, and distribution facilities under control of the supplier of such system and used primarily in connection with such system.
- (b) Any collection or pretreatment storage facilities not under such control, which are used primarily in connection with such system.

Site evaluation means a comprehensive analysis of soil and site conditions for a graywater irrigation area.

Soil horizon means layers in the soil column differentiated by changes in texture, color, redoximorphic features, bedrock, structure, consistence, and any other characteristic that affects water movement.

Soil profile test pit means a trench or other excavation used for access to evaluate the soil

horizons for properties influencing effluent movement, bedrock, evidence of seasonal high ground water, and other information to be used in locating and designing a graywater irrigation area.

Soil structure means the naturally occurring combination or arrangement of primary soil particles into secondary units or peds; secondary units are characterized on the basis of shape, size class, and grade (degree of distinctness).

Suitable soil means unsaturated soil in which the movement of water, air, and growth of roots is sustained to support healthy plant life and conserve moisture.

Subsurface irrigation means a discharge of graywater into soil a minimum of four inches and no deeper than 12 inches below the finished grade.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.070 Authorized graywater use.

(a) Graywater systems shall be permitted only upon lots or parcels used and developed as a one-household and two-household residential dwelling or structure. A one-household or two-household dwelling or structure may have multiple graywater systems, as long as all applicable use and design requirements are satisfied.

(b) Only the following graywater use or activity is permitted under the city's graywater use program: outdoor, subsurface irrigation; provided, however, such use or activity meets the following requirements:

- (1) *Allowed graywater sources.* Graywater collected from laundry machines only.
- (2) *Allowed discharges.* Outdoor, subsurface irrigation must discharge to a mulch basin within the confines of the legal property boundary only.
- (3) *Design flow.* The design flow is limited to a 400 gallons per day (gpd) or less combined flow for all approved uses.

(4) *Graywater system sizing.* The graywater system must be sized appropriately using the following flow projection methods:

- a. *Residential users.* Flow to graywater systems must be calculated on the occupancy and the fixtures connected to the graywater system. The calculated graywater flow is the number of occupants multiplied by the estimate graywater flow in terms of gpd/occupant from the attached fixtures.
 - i. The occupancy must be calculated based on a minimum of two occupants for the first bedroom and one occupant for each additional bedroom.
 - ii. The estimated graywater flow from each fixture is based on the design flow of the fixture or if the fixture's design flow is unknown then the estimated graywater flow per occupant is with based on the following gallons per day per occupant.
 - (a) Traditional fixtures: 25 gpd/occupant for each shower, bathtub, and wash basin and 15 gpd/occupant for each clothes washer.
 - (b) Water saving fixtures: 20 gpd/occupant for each shower, bathtub, and wash basin and 8 gpd/occupant for each clothes washer.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.080 Design criteria.

(a) *Minimum criteria applicable to all graywater systems.* The following minimum design criteria are required for all graywater systems. All graywater systems must:

- (1) Meet all design requirements of this regulation and meet any additional design requirements of the Colorado Plumbing Code as adopted and amended by the city.

- (2) Each system component or combination of multiple components must have a design flow greater than the calculated peak graywater production, if upstream of the storage tank or if no tank is present.
- (3) Include a diversion valve that directs graywater to the graywater systems. The diversion valve must be:
 - a. Easily operable;
 - b. Clearly labeled;
 - c. Constructed of material that is durable, corrosion resistant, watertight;
 - d. Designed to accommodate the inlet and outlet pipes in a secure and watertight manner; and
- (4) Not have any piping that allows the treatment process(es) or a storage tank to be bypassed prior to graywater use.

(b) *Minimum criteria applicable to all subsurface irrigation systems.* The following minimum design criteria are required for all graywater systems being used for subsurface irrigation. All subsurface graywater irrigation systems must:

- (1) Have the subsurface irrigation components of the graywater irrigation system installed a minimum of four inches and a maximum of 12 inches below the finished grade.
- (2) Have the subsurface irrigation components of the graywater irrigation system installed in suitable soil, as defined in section 86.8(36).
- (3) Have a minimum of 24 inches of suitable soil between the subsurface irrigation components of the graywater irrigation system and any restrictive soil layer, bedrock, concrete, or the highest water table. Restrictive soil layers are soil types 4, 4A, and 5 in Table 12-2.
- (4) Include controls, such as valves, switches, timers, and other controllers, as appropriate, to ensure the distribution of graywater throughout the entire irrigation zone.

- (5) If utilizing emitters, the emitters be designed to resist root intrusion and be of a design recommended by the manufacturer for the intended graywater flow and use. Minimum spacing between emitters shall be sufficient to deliver graywater at an agronomic rate and to prevent surfacing or runoff.
- (6) Have all irrigation supply lines be polyethylene tubing or PVC Class 200 pipe or better and Schedule 40 fittings. All joints shall be pressure tested at 40 psi (276 kPa), and shown to be drip tight for five minutes before burial. Drip feeder lines can be poly or flexible PVC tubing.
- (7) Meet the following setback distances in Table 12-1.

Table 12-1: Graywater System Setback Requirements

<i>Minimum Horizontal Distance Required from:</i>	<i>Graywater Storage Tank</i>	<i>Irrigation Field</i>
Buildings	5 feet	2 feet
Property line adjoining private property	10 feet	10 feet
Property line adjoining private property with supporting property line survey	1.5 feet	1.5 feet
Streams and lakes	50 feet	50 feet
Domestic potable water service line	10 feet	10 feet
Public water main	10 feet	10 feet

- (8) The irrigation field must be located on slopes of less than 30 percent from horizontal.
- (9) Protocols for determining the size of the subsurface irrigation area. The irrigation area must be determined using one of the following protocols.
 - a. *Site evaluation protocol:* The following site evaluation must be conducted to determine the appropriate size of the irrigation area for all subsurface irrigation systems, except one-household dispersed subsurface irrigation systems that are sized using the irrigation area equation

protocol as defined in section 15.70.080(b)(9)(b), below. The site evaluation must include:

- i. Site information, including:
 - (a) A site map; and
 - (b) Location of proposed gray-water irrigation area in relation to physical features requiring setbacks in Table 12-1.
- ii. Soil investigation to determine long-term acceptance rate of a graywater irrigation area as a

design basis. Soil investigation must be completed by either:

- (a) A visual and tactile evaluation of soil profile test pit, or
 - (b) A percolation test.
- iii. Irrigation rates must not exceed maximum allowable soil loading rates in Table 12-2 based on the finest textured soil in the 24 inches of suitable soil beneath the subsurface irrigation components.

Table 12-2: Soil Type Description and Maximum Hydraulic Loading Rate

<i>Soil Type</i>	<i>USDA Soil Texture</i>	<i>USDA Structure - Shape</i>	<i>USDA Soil Structure - Grade</i>	<i>Percolation Rate (MPI)</i>	<i>Loading Rate for Gray-water (gal./sq. ft./day)</i>
0	Soil Type 1 with more than 35% Rock (>2mm); Soil Types 2-5 with more than 50% Rock (>2mm)	—	0 (Single Grain)	Less than 5	Not suitable without augmentation 1.0 with augmentation
1	Sand, Loamy Sand	—	0	5-15	Not suitable without augmentation 1.0 with augmentation
2	Sandy Loam, Loam, Silt Loam	PR BK GR	2 (Moderate) 3 (Strong)	16-25	0.8
2A	Sandy Loam, Loam, Silt Loam	PR, BK, GR 0 (none)	1 (Weak) Massive	26-40	0.6
3	Sandy Clay Loam, Clay Loam, Silty Clay Loam	PR, BK, GR	2, 3	41-60	0.4
3A	Sandy Clay Loam, Clay Loam, Silty Clay Loam	PR, BK, GR 0	1 Massive	61-75	0.2
4	Sandy Clay, Clay, Silty Clay	PR, BK, GR	2, 3	76-90	Not suitable
4A	Sandy Clay, Clay, Silty Clay	PR, BK, GR 0	1 Massive	91-120	Not suitable
5	Soil Types 2-4A	Platy	1, 2, 3	121+	Not suitable

- iv. Suitable soil may consist of original, undisturbed soil or original soil that is augmented. Not suitable soil may be augmented as needed to ensure suitable soil is used.
- v. If the original soil is augmented, the mixture used

for augmentation must meet the following criteria to ensure that suitable soil is achieved:

- (a) The mixture must have an organic content that is at least five percent and no greater than ten percent;
- (b) The mixture must be a well-blended mix of

mineral aggregate (soil) and compost where the soil ratio depends on the requirements for the plant species; and

- (c) The mineral aggregate must have the following gradation:

<i>Sieve Size</i>	<i>Percent Passing</i>
3/8	100
No. 4	95—100
No. 10	75—90
No. 40	25—40
No. 100	4—10
No. 200	2—5

- vi. If the original soil is augmented, the additional soil must be tilled into the native soil a minimum of six inches below irrigation application zone.
- vii. Soil types 0 and 1 must be augmented before use. Soil type 4, 4A, and 5 are not suitable for subsurface irrigation.
- b. *Irrigation area equation protocol:* The following irrigation area equation protocol may be used to determine the appropriate size of the irrigation area for one-household, dispersed subsurface irrigation systems. This protocol cannot be used to size mulch basins.

$$LA = GW / (CF \times ET \times PF)$$

Where:

LA = Landscaped area (square feet);

GW = Estimated graywater flow (gallons per week);

CF = 0.62 (square foot x inch/gallon) = ((7.48 gallons/1-cu-ft)/12 inch/ft);

ET = Evapotranspiration rate (inch / week), as determined by USDA Natural Resources Conservation Service

CO652.0408 "Figure CO4-1: Map of Colorado Climate Zones" dated April 1978, or weekly averages based on actual conditions;

PF = Plant factor, 0.5

(c) Minimum criteria applicable to mulch basin irrigation systems. The following minimum design criteria are required for graywater systems using mulch basin systems for subsurface irrigation:

- (1) Mulch shall be permeable enough to allow rapid infiltration of graywater.
- (2) The minimum void space mulch basin volume must be either:
 - a. Three times the anticipated average daily flow for graywater systems without a storage tank to allow for graywater volume surges and to prevent surfacing or runoff.
 - b. One and a half times the anticipated average daily flow for graywater systems with a storage tank meeting the design criteria set forth in Section 86.12(A)(5), 5 CCR 1002-86, Reg. 86, as amended.
- (3) Piping to mulch basins must discharge a minimum of four inches below grade into a container for dispersal of graywater into the mulch basin. The container must be designed to have four inches of freefall between the invert of the discharge pipe and the mulch. The container must have an access lid for observation of flow and to check mulch levels.
- (4) The mulch basin must have a minimum depth of 12 inches below grade and not more than 24 inches below grade.
- (5) A filter is not required.

(d) *Minimum criteria applicable to dispersed subsurface irrigation systems.* The following minimum design criteria are required for graywater systems using dispersed irrigation systems for subsurface irrigation:

- (1) Include a cartridge filter, which must meet the following requirements:
 - a. A minimum of 60 mesh;
 - b. Located between the storage tank and the irrigation system;
 - c. If a pump is being used to pressurize the graywater distribution system, the filter must be located after the pump.
- (Ord. No. 2143, § 1, 9-10-2020)

15.70.090 Operation and maintenance.

(a) *Manual.* All graywater systems must have an operation and maintenance (O&M) manual. O&M manuals must:

- (1) Include the following items:
 - a. A graywater system description including: equipment list, design basis data including but not limited to, design volumes, design flow rates of each component and service area, system as-built drawing, and process description.
 - b. Maintenance information for the graywater system including, but not limited to: component maintenance schedule, instructions for component repair, replacement, or cleaning, replacement component source list, testing and frequency for potable containment device, and instructions for periodic removal of residuals.
 - c. Operational ranges for parameters including, but not limited to: disinfectant concentration levels, filter replacement parameters, pressure ranges, tank level, and valve status under normal operation.
 - d. Step-by-step instructions for starting and shutting down the graywa-

ter system including but not limited to: valve operation, any electrical connections, cleaning procedures, visual inspection, and filter installation

- e. A guide for visually evaluating the graywater system and narrowing any problem scope based on alarm activations, effluent characteristics, system operation, and history.
 - f. A list of graywater control measures in which the graywater system must be operated.
- (2) Remain with the graywater system throughout the life of the system;
 - (3) Be updated at the time the system is modified; and
 - (4) Be transferred to the new owner or tenant upon change of ownership or occupancy of the property where the graywater system is located.

(b) *Graywater system control measures.* All graywater systems must be operated in accordance with the following control measures:

- (1) Control measures that apply to all graywater uses:
 - a. Graywater must be collected in a manner that minimizes the presence or introduction of:
 - i. Hazardous or toxic chemicals in the graywater to the greatest extent possible;
 - ii. Human excreta in the graywater to the greatest extent possible;
 - iii. Household wastes; and
 - vi. Animal or vegetable matter.
 - b. Use of graywater is limited to the confines of the facility that generates the graywater.
 - c. The graywater system must be operated and maintained in accordance with the O&M manual, including all manufacturer recommended maintenance activities. The O&M

manual must remain with the graywater system throughout the system's life and be updated based on each modification and approval made to the system. The O&M manual must be transferred, upon change of ownership or occupancy, to the new owner or tenant.

- d. The owner or operator of a graywater system must minimize exposure of graywater to humans and domestic pets.
- e. Graywater use and graywater systems must not create a nuisance.
- f. Graywater must not be stored for more than 24 hours unless the graywater has been treated. All graywater must be stored inside a tank(s) that meets the design requirements of Section 86.12(A)(5), 5 CCR 1002-86, Reg. 86, as amended.
- g. Temporary or semi-temporary connections from the potable water system or public water system to the graywater system are prohibited. Permanent connections from the potable water system or public water system to the graywater system must meet the design requirements Section 86.11(A)(6), 5 CCR 1002-86, Reg. 86, as amended.

(c) *Subsurface irrigation system control measures.* All subsurface irrigation systems must be operated in accordance with the following control measures:

- (1) Agricultural irrigation with graywater is prohibited.
- (2) Irrigation is prohibited when the ground is frozen, plants are dormant, during rainfall events, or the ground is saturated.
- (3) Irrigation scheduling must be adjusted so that application rates are closely matched with soil and weather conditions.
- (4) Graywater must be applied in a manner that does not result in ponding, runoff, or

unauthorized discharge to state waters. For dispersed subsurface irrigation systems, the graywater must be applied at an agronomic rate. For mulch basins systems, the graywater must not be applied in excess of the soil adsorption rate.

- (5) For mulch basin systems, mulch must be replenished and undergo periodic maintenance as needed to reshape or remove material to maintain surge capacity and to prevent ponding and runoff.
- (Ord. No. 2143, § 1, 9-10-2020)

15.70.110 Nuisance provisions.

(a) It shall be unlawful and constitute a nuisance for any person to erect, install, or use a graywater system upon property located within the city's graywater system jurisdiction without first having obtained a building permit, issued pursuant to this chapter, for an approved, compliant graywater system.

(b) It shall be unlawful and constitute a nuisance for any person to collect or cause to be collected graywater from any sources except as otherwise expressly permitted under section 15.70.070.

(c) It shall be unlawful and constitute a nuisance for any person to use graywater, or conduct any graywater activity, upon property located within the city's graywater system jurisdiction for any purpose except as otherwise expressly permitted under section 15.70.070.

(d) It shall be unlawful and constitute a nuisance for any person to operate a graywater system or subsurface irrigation system without implementing the control measures provided in section 15.70.090 of this chapter.

(Ord. No. 2143, § 1, 9-10-2020)

15.70.120 Remedies for noncompliance.

(a) *Compliance orders.* Whenever the city determines that any activity is occurring which is not in compliance with a building permit and/or the requirements of this chapter, the city may issue a written compliance order to the legally responsible party containing a compli-

ance schedule. The schedule shall contain specific actions the legally responsible party must complete, including dates for the completion of the actions. It shall be unlawful for any person to fail to comply with any compliance order requirement.

(b) *Suspension and revocation of permit.* The city may suspend or revoke a building permit for violation of any provision of this chapter, violation of the permit, and/or misrepresentations by the permittee or the permittee's agents, employees, or independent contractors.

(c) *Stop work orders.* Whenever the city determines that any activity is occurring which is not in compliance with an approved permit and/or the requirements of this chapter, the city can order such activity stopped upon service of written notice upon the legally responsible party or a person responsible for or conducting such activity. Such person shall immediately stop all activity until authorized in writing by the city to proceed. Service shall be by United States Postal Service mail or hand delivery. If a responsible person cannot be located, the notice to stop shall be posted in a conspicuous place upon the area where the activity is occurring. The notice shall state the nature of the violation. The notice shall not be removed until the violation has been cured or authorization to remove the notice has been issued by the city. It shall be unlawful for any person to fail to comply with a stop work order.

(d) *Civil proceedings.* In case of any violation of any provision of this chapter, or any amendment thereof, the city may, at its discretion, initiate civil proceedings, including administrative citations pursuant to chapter 8.25 of the Code injunction, mandamus, abatement, declaratory judgment or other appropriate actions or proceedings, to prevent, enjoin, abate, remove, or otherwise correct any such unlawful condition. Civil remedies provided for under this section are not exclusive and shall not preclude prosecution for criminal violations under the provisions of this chapter.
(Ord. No. 2143, § 1, 9-10-2020)

Chapter 15.80 WILDFIRE RESILIENCY CODE

15.80.010 Adoption of Colorado Wildfire Resiliency Code.

The Colorado Wildfire Resiliency Code, published July 1, 2025, Chapters 1 through 5, inclusive and Appendices A, B, and C, is hereby adopted by reference as the Colorado Wildfire Resiliency Code (hereinafter referred to as the "CWRC" or "this Code") as fully set out in this codification, with amendments indicated in the sections of this chapter. The CWRC contains significant portions from the 2024 International Wildland Interface Code ("2024 IWUIC"), which is a registered copyrighted work owned by the International Code Council, Inc. (the "ICC"). The 2024 IWUIC, and any and all portions thereof, have been obtained and reproduced herein with permission.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.020 CWRC Section 101.1.

CWRC Section 101.1 (Title) is amended to read as follows:

101.1. Title.

These regulations shall be known as the Golden Wildfire Resiliency Code (GWRC) as adopted by the City of Golden, hereinafter referred to as "this Code."
(Ord. No. 2288, § 2, 3-10-2026)

15.80.030 CWRC Section 102.8.

CWRC Section 102.8 (Existing conditions) is amended to read as follows:

102.8. Existing conditions.

The legal occupancy or use of any structure or condition existing on the date of adoption of this Code shall be permitted to continue without change, except as is specifically covered in this Code, the City of Golden Fire Code as referenced at Golden Municipal Code Section 16.04.010, or as is deemed necessary by the Code Official for the general safety and welfare of the occupants and the public.
(Ord. No. 2288, § 2, 3-10-2026)

15.80.040 CWRC Section 102.9.1.

CWRC Section 102.9.1 (Historic preservation exemption) is amended to read as follows:

102.9.1. Historic preservation exemption.

The City of Golden may establish a historic preservation exemption or exemptions in their jurisdiction that is consistent with the spirit and intent of this Code.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.050 CWRC Section 103.1.

CWRC Section 103.1 (Creation of agency) is amended to read as follows:

103.1. Creation of agency.

The City of Golden Building Department is hereby designated as the code compliance agency and the official in charge thereof shall be known as the Code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this Code.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.060 CWRC Section 103.2.

CWRC Section 103.2 (Appointment) is amended to read as follows:

103.2. Appointment.

The Code Official is the Building Official or his or her designee.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.070 CWRC Section 103.3.

CWRC Section 103.3 (Deputies) is amended to read as follows:

103.3. Deputies.

The Code Official shall have the authority to appoint deputy Code Officials, other related technical officers, inspectors and other employees. Such employees shall have powers as delegated by the Code Official.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.080 CWRC Section 104.4.

CWRC Section 104.4 (Access to property) is re-titled "Right of entry" and is amended to read as follows:

104.4. Right of entry.

Where it is necessary to make an inspection to enforce the provisions of this Code, or where the Code Official has reasonable cause to believe that there exists in a structure or on any premises a condition that is contrary to or in violation of this Code that makes the structure or premises unsafe, dangerous or hazardous, the Code Official is authorized to enter the structure or premises at all reasonable times to inspect or to perform the duties imposed on the Code Official by this Code. If such structure or premises is occupied, the Code Official shall present credentials to the occupant and request entry. If such structure or premises is unoccupied, the Code Official shall first make reasonable effort to locate the owner, owner's authorized agent or other person having charge or control of the structure or premises and request entry. If entry is refused, the Code Official shall have recourse to every remedy provided by law to secure entry.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.090 CWRC Section 104.4.1.

CWRC Section 104.4.1 (Authorization) is re-titled "Warrant" amended to read as follows:

104.4.1. Warrant.

Where the Code Official has first obtained a proper inspection warrant or other remedy provided by law to secure entry, an owner, the owner's authorized agent, occupant or person having charge, care or control of the structure or premises shall not fail or neglect, after a proper request is made as herein provided, to permit entry therein by the Code Official for the purposes of inspection and examination pursuant to this Code.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.100 CWRC Section 106.1.

CWRC Section 106.1 (General) is re-titled "Payment of fees" and is amended to read as follows:

106.1. Payment of fees.

A permit shall not be valid until the fees prescribed by law have been paid. An amendment to a permit shall not be released until the additional fee, if any, has been paid.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.110 CWRC Section 106.2.

CWRC Section 106 (Fees) is amended by the addition of a new subsection 106.2 entitled, "Schedule of permit fees" to read as follows:

106.2. Schedule of permit fees.

Where a permit is required, a fee for each permit shall be paid as required, in accordance with the fee schedule as established by city council.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.120 CWRC Section 108.

CWRC Chapter 1 (Scope and Administration) is amended by the addition of a new Section 108 entitled "Appeals" and its subsections to read as follows:

108.1. General, Board of Appeals.

In order to hear and decide appeals of orders, decisions or determinations made by the Code Official relative to the application and interpretation of this Code, there shall be and is hereby created a Board of Appeals consisting of three (3) members. This Board shall be composed of a person appointed by the City Manager, a person appointed by the appellant, and a person appointed by the two appointees. The Code Official shall be an ex officio member of and shall act as the secretary to the Board but shall have no vote on any matter before the committee. The Board members shall serve for the duration of the appeal. The Board shall conform to the standards set forth in Chapter 2.35

of the Golden Municipal Code and shall render their decisions and findings in writing to the appellant, with a duplicate copy to the Code Official. A party may appeal the Board of Appeal's decision to city council in accordance with the procedure set forth in IBC Section 113.4 as codified at Golden Municipal Code Section 15.08.310.

108.2. Limitations on authority.

An application for appeal shall be based on a claim that the true intent of this Code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this Code do not fully apply or an equivalent or better form of construction is proposed. The Board shall not have authority to waive requirements of this Code.

108.3. Qualifications.

The Board of Appeals shall consist of members who are qualified by experience and training, as verified by the Code Official, to pass on matters pertaining to building construction. The Board members may not be employees of either the jurisdiction or the appellant. The Board members may not be personally, financially, contractually, professionally, or otherwise indebted, obligated, or bound to the appellant in any manner, nor may they be in any position where they might receive benefit, either personally or professionally, from any decision rendered.

108.4. Council review of decisions rendered by the Board of Appeals.

To appeal a decision of the Board of Appeals a party must, within fifteen (15) calendar days of the Board's decision, submit a request for review to the city clerk. After submittal of a request for review the Code Official shall, within fifteen (15) calendar days, prepare a certified record. Within thirty (30) calendar days of submittal of a request for review city council shall, based only upon its review of the record, decide to uphold, overturn, or modify the decision of the

Board of Appeals. City council shall provide the parties a copy of its decision within twenty (20) calendar days of making same.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.130 CWRC Section 202.

CWRC Section 202 (Definitions) is amended with the addition of definitions of the following terms: The terms Addition and Alteration to read as follows:

ADDITION. An extension or increase in habitable floor area, number of Stories or height of a Building or structure.

ALTERATION. Any construction, retrofit or renovation to an existing structure other than Repair or Addition that requires a Permit.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.140 CWRC Section 302.1.

CWRC Section 302.1 (Declaration) is amended to read as follows:

302.1. Declaration.

The City of Golden shall declare the wildland-urban interface areas within the jurisdiction as defined by this Code. The wildland-urban interface areas shall be based on the findings of fact.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.150 CWRC Section 303.3.

CWRC Section 303.3 (Applicability of code provisions) is amended to read as follows:

303.3. Applicability of code provisions.

The requirements of this Code shall apply to all parcels located within designated Wildfire Hazard Areas and corresponding fire intensity classifications as identified on the official maps adopted by Ordinance 2290. The level of structure hardening, defensible space, and other mitigation measures required shall correspond to the applicable Fire Intensity Classification—Low, Moderate, or High

— as established by the Code Official and approved by the State Wildlife Resiliency Code Board, as necessary.

Structures and parcels identified with low Fire Intensity Classification shall be constructed and maintained in accordance with the provisions for Class 1 structure hardening and site and area requirements as set forth in this Code.

Structures and parcels identified with moderate to high Fire Intensity Classifications shall be constructed and maintained in accordance with the provisions for Class 2 structure hardening and site and area requirements as set forth in this Code.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.160 CWRC Section 304.1.

CWRC Section 304.1 (Purpose) is amended to read as follows:

304.1. Purpose.

This section establishes a process for owners or the owners' authorized representative to request a ground-truthing review of their property's Wildfire Hazard or Fire Intensity Classification as identified on our locally adopted official maps. The intent is to provide an opportunity to verify that mapping accurately reflects current, site-specific conditions.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.170 CWRC Section 401.1.

CWRC Section 401.1 (Scope) is amended to read as follows:

401.1. Scope.

Exterior design and construction of new buildings and structures within the wildland-urban interface areas within the City of Golden as identified in the official maps adopted by Ordinance 2290, shall be constructed in accordance with this chapter.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.180 CWRC Section 403.2.3.

CWRC Section 403.2 (Roofing) is amended by the addition of a new subsection 403.2.3 entitled, "Roof-wall intersection flashing" to read as follows:

403.2.3. Roof-wall intersection flashing.

A minimum of six inches (6") of metal flashing or noncombustible material applied vertically between the wall sheathing and the exterior cladding shall be installed at roof intersections. Combustible sheathing products exposed by the gap created at the base of the exterior walls, posts or columns must be protected with noncombustible material or ignition-resistant building materials while still permitting drainage and moisture control from behind the cladding.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.190 CWRC Section 404.3.1.

CWRC Section 404.3.1 (Exterior wall coverings) is amended to read as follows:

404.3.1. Exterior wall coverings.

Exterior wall coverings shall be limited to the following:

1. Noncombustible materials.
2. Fire-retardant-treated woods.
3. Ignition-resistant building materials.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.200 CWRC Section 404.3.2.

CWRC Section 404.3.2 (Flashing) is amended to read as follows:

404.3.2. Flashing.

A minimum of six inches (6") of metal flashing or noncombustible material applied vertically between the wall sheathing and the exterior cladding shall be installed at the ground, ledgers and decking intersections. Combustible sheathing products exposed by the gap created at the base of the exterior walls, posts or

columns must be protected with noncombustible material or ignition-resistant building materials while still permitting drainage and moisture control from behind the cladding.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.210 CWRC Section 502.1.5.

CWRC Section 502 (Class 1 Requirements) is amended by the addition of a new subsection 502.1.5 entitled "Storage of combustibles" to read as follows:

502.1.5. Storage of combustibles.

There shall be no storage of firewood or other combustible materials in this area or areas under decks.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.220 CWRC Section 502.2.

CWRC Section 502 (Class 1 Requirements) is amended by the addition of a new subsection 502.2 entitled "Retaining walls" to read as follows:

502.2. Retaining walls.

Retaining walls shall be constructed with either noncombustible or ignition-resistant building materials when any of the following conditions exist:

1. The retaining wall is within eight feet (8') feet of a structure regulated by this Code or up to the property line when the property line is less than 8 feet away from the structure.
2. The retaining wall is integral to the support of a structure regulated by this Code.
3. The retaining wall is integral to the egress from a structure regulated by this Code to a public way, easement, or private road.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.230 CWRC Section 502.2.1.

CWRC Section 502.2.1 (Marking of roads) is deleted.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.240 CWRC Section 502.2.2.

CWRC Section 502.2.2 (Marking of fire protection equipment) is deleted.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.250 CWRC Section 502.2.3.

CWRC Section 502.2.3 (Address markers) is deleted.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.260 CWRC Section 502.3.1.

CWRC Section 502.3.1 (Retaining walls) is re-titled "Street or road signs" and is amended to read as follows:

502.3.1. Street or road signs.

Streets and roads shall be identified with approved signs. Temporary signs shall be installed at each street intersection when construction of new roadways allows passage by vehicles. Signs shall be of an approved size, weather resistant and be maintained until replaced by permanent signs.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.270 CWRC Section 502.3.2.

CWRC Section 502 (Class 1 Requirements) is amended by the addition of a new subsection 502.3.2 entitled "Marking of fire protection equipment" to read as follows:

502.3.2. Marking of fire protection equipment.

Fire protection equipment and fire hydrants shall be clearly identified in a manner approved by the Code Official to prevent obstruction.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.280 CWRC Section 502.3.3.

CWRC Section 502 (Class 1 Requirements) is amended by the addition of a new subsection 502.3.3 entitled "Address identification" to read as follows:

502.3.3. Address identification.

New and existing buildings shall be provided with address identification that conforms to the requirements of this section. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be not less than four inches (4") (102 mm) high with a minimum stroke width of one-half inch (1/2") (12.7 mm). Where required by the Code Official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained by the owner.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.290 CWRC Section 502.4.1.

CWRC Section 502.4.1 (Fencing) is amended to read as follows:

502.4.1. Fencing.

Fencing within eight feet (8') of a structure regulated by this Code or up to the property line when the property line is less than 8 feet away from the structure shall be constructed with noncombustible or ignition-resistant materials.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.300 CWRC Section 503.2.6.

CWRC Section 503 (Class 2 Requirements) is amended by the addition of a new subsection 503.2.6 entitled "Prohibited plants" to read as follows:

503.2.6. Prohibited plants.

Juniperus spp. (Juniper species), Thuja occidentalis (American arborvitae), Thuja orientalis (Oriental arborvitae), Quercus gambelii (Gamble oak) are prohibited.
(Ord. No. 2288, § 2, 3-10-2026)

15.80.310 CWRC Section A101.3.

CWRC Section A101.3 (Appendix A: Permits—Permit applications) is amended to read as follows:

A101.3. Permit application.

To obtain a permit, the applicant shall first file an application therefor in writing on a form furnished by the code enforcement agency for that purpose. Every such application shall:

1. Identify the Wildland-Urban Interface Class.
2. Identify and describe the work, activity, operation, practice or function to be covered by the permit for which application is made.
3. Describe the land on which the proposed work, activity, operation, practice or function is to be done by legal description, street address or similar description that will readily identify and definitely locate the proposed building, work, activity, operation, practice or function.
4. Indicate the use or occupancy for which the proposed work, activity, operation, practice or function is intended.

5. Be accompanied by plans, diagrams, computation and specifications and other data as required in Appendix B.
6. State the valuation of any new building or structure or any addition, remodeling or alteration to an existing building.
7. Be signed by the applicant or the applicant's authorized agent.
8. Give such other data and information as required by the Code Official.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.320 CWRC Section A101.5.

CWRC Section A101.5 (Appendix A: Permits—Permit issuance) is amended to read as follows:

A101.5. Permit issuance.

The application, plans, specifications and other data filed by an applicant for a permit shall be reviewed by the Code Official. If the Code Official finds that the work described in an application for a permit and the plan, specifications and other data filed therewith conform to the requirements of this Code, the Code Official may issue a permit to the applicant.

When the Code Official issues the permit, the Code Official shall endorse in writing or stamp the plans and specifications "Reviewed for Code Compliance." Such reviewed plans and specifications shall not be changed, modified or altered without authorization from the Code Official, and work regulated by this Code shall be done in accordance with the approved plans.

(Ord. No. 2288, § 2, 3-10-2026)

15.80.330 CWRC Section C101.3.4.

CWRC Section C101.3.4 (Appendix C: Inspections and Enforcement—Citations) is deleted.
(Ord. No. 2288, § 2, 3-10-2026)

Title 16

FIRE

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Chapter 16.04
INTERNATIONAL FIRE CODE*

16.04.010 Adoption of the International Fire Code.

The 2024 International Fire Code, including Appendices B, C, D, E, F, G, H, I, and O, and the 2024 International Property Maintenance Code, Sections 302, 303, 304, 305, 306, 307, 502.1, 502.2, 502.3, 502.4, 506.1, 506.2, 602, 606 and Appendix A, both published by the International Code Council, Inc., 200 Massachusetts Ave, NW, Suite 250, Washington, DC 20001, are hereby adopted by reference as the City of Golden Fire Code (hereinafter referred to as the "IFC" or "this Code) as if fully set out in this ordinance, with the amendments indicated in the following sections of this chapter. The adopted portions of the International Property Maintenance Code shall not be interpreted to apply to single- and two-family dwellings.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.020 IFC Section 103.2.

IFC Section 103.2 (Appointment) is amended to read as follows:

Sec. 103.2. Appointment.

The IFC, as adopted and amended as the Golden Fire Code, shall be implemented, administered, and enforced by the Fire Code Official. The Fire Chief, with concurrence of the City Manager, may recommend the employment of technical inspectors.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.030 IFC Section 103.3.

IFC Section 103.3 (Deputies) is deleted in its entirety.
(Ord. No. 2277, § 2, 7-22-2025)

***Editor's note**—Ord. No. 2277, § 2, adopted July 22, 2025, repealed the former Ch. 16.04, §§ 16.04.010—16.04.290, and enacted a new Ch. 16.04 as set out herein. The former Ch. 16.04 pertained to similar subject matter and derived from Ord. No. 2190, § 1, adopted July 26, 2022.

16.04.040 IFC Section 105.5.16.

IFC Section 105.5.16 (Explosives) is amended with the addition of a new subsection 105.5.16.1 entitled "Model rockets" to read as follows:

Sec. 105.5.16.1. Model rockets.

An operational permit is required for the use or display of use of model rockets.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.050 IFC Section 105.5.41.

IFC Section 105.5.41 (Places of Assembly) is amended with the addition of a new subsection 105.5.41.1, entitled "Accessory to places of religious worship" to read as follows:

Sec. 105.5.41.1. Accessory to places of religious worship.

An operational permit is required to operate a temporary overnight shelter as authorized in IBC Section 303.1.4 (as enacted in Golden Municipal Code Section 15.08.350).
(Ord. No. 2277, § 2, 7-22-2025)

16.04.060 IFC Section 106.1.

IFC Section 106.1 (Submittals) is amended with the addition of a new subsection 106.1.1 entitled "Deferred submittals" to read as follows:

Sec. 106.1.1. Deferred submittals.

Deferral of any submittal items shall have the prior approval of the Fire Code Official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the Fire Code Official.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the Fire Code Official with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the deferred submittal documents have been approved by the Fire Code Official.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.070 IFC Section 106.2.4.

IFC Section 106.2.4 (Approved documents) is amended with the addition of a new subsection 106.2.4.2 entitled "Approval of construction documents" to read as follows:

Sec. 106.2.4.2. Approval of construction documents.

When the Fire Code Official issues a permit, the construction documents shall be approved, in writing or by stamp, as "Reviewed for Code Compliance." One set of construction documents so reviewed shall be retained by the Fire Code Official. The other set shall be returned to the applicant, shall be kept at the site of work and shall be open to inspection by the Fire Code Official or a duly authorized representative.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.080 IFC Section 108.2.

IFC Section 108.2 (Schedule of permit fees) is amended to read as follows:

Sec. 108.2. Schedule of permit fees.

Fees for the fire department's review of development, construction and operational permit plans, issuance of permits, and inspections and/or witness testing for construction and operational permits and other related services as set forth in the IFC shall be established by resolution of City Council.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.090 IFC Section 112.1.

IFC Section 112.1 (General) is amended to read as follows:

Sec. 112.1. Board of appeals established.

In order to hear and decide appeals of orders, decisions or determinations made by the Fire Code Official relative to the application and interpretation of this code, there shall be and is hereby created a Board of Appeals consisting of three (3) members. This Board shall be composed of a person appointed by the city manager, a person appointed by the appellant, and a person appointed by the two (2) appointees. The Fire Code Official shall be an

ex-officio member of and shall act as the secretary to the Board but shall have no vote on any matter before of the Board. The Board members shall serve for the duration of the appeal. The Board shall conform to the standards set forth in Chapter 2.35 of the Golden Municipal Code and shall render their decisions and findings in writing to the appellant, with a duplicate copy to the Fire Code Official. A party may appeal the Board's decision to the city council in accordance with the procedure set forth in Section 16.04.100 of the Golden Municipal Code.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.100 IFC Section 112.

IFC Section 112 shall be amended with the addition of a new subsection 112.5 entitled, "Council review of decisions rendered by the board of appeals" to read as follows:

Sec. 112.5. Council review of decisions rendered by the board of appeals.

To appeal a decision of the Board of Appeals, a party must, within fifteen (15) calendar days of the Board's decision, submit a request for review to the City Clerk. After submittal of a request for review, the Fire Code Official shall, within fifteen (15) days, prepare a certified record. Within thirty (30) calendar days of submittal of a request for review, City Council shall, based only upon its review of the record, decide to uphold, overturn, or modify the decision of the Board of Appeals. City Council shall provide the parties a copy of its decision, via certified mail, within seven (7) calendar days of making same. The Fire Code Official shall take immediate action in accordance with the decision of the Board of Appeals, or, if appealed to the City Council, in accordance with the decision of the City Council.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.110 IFC Section 113.1.

IFC Section 113.1 (Unlawful acts) is amended to read as follows:

Sec. 113.1. Unlawful acts.

It shall be unlawful for a person, as defined and amended in IFC Section 202, to erect, construct, alter, repair, remove, demolish, or utilize a building, occupancy, premise or system, or conduct operations regulated by this Code, or cause same to be done, in conflict with or in violation of any of the provisions of this Code or any rules and regulations, or any notices and orders issued pursuant to this Code. (Ord. No. 2277, § 2, 7-22-2025)

16.04.120 IFC Section 113.4.

IFC Section 113.4 (Violation penalties) is amended to read as follows:

Sec. 113.4. Violations penalties.

Person(s) who violate a provision of this Code or fail to comply with any of the requirements thereof or who erect, install, repair or do work in violation of the approved construction documents or directive of the Fire Code Official, or of a permit or certificate used under the provisions of this Code, shall for each offense be subject to the general penalty provisions set forth in Section 1.01.110 of the Golden Municipal Code.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.130 IFC Section 202.

IFC Section 202 (General Definitions) is amended with the addition of definitions of "Corporation Counsel," "Model Rockets," and "Qualified," and with the repeal and replacement of the following definitions: Fire Code Official; Fireworks; Jurisdiction; Person; and Recreational Fire, to read as follows:

Sec. 202. General Definitions.

Corporation counsel means the City Attorney.

Fire code official means the Fire Chief of the City of Golden Fire Department or the Fire Chief's designated Fire Code Official and their designated personnel.

Fireworks means a combustible or explosive composition, or any substance, or any device, prepared for the purpose of producing a visible or audible effect by combustion, explosion, deflagration, or detonation. Fireworks (1.4G)

include blank cartridges; toy pistols, toy canons, toy canes, or toy guns in which explosives are used where the explosive content of the device or cap exceeds 0.25 grains; firecrackers; torpedoes; sky rockets; Roman candles; or other devices of like construction; any devices containing an explosive or flammable compound; any tablet or other device containing an explosive substance; and any device determined to be permissible fireworks according to Colorado Revised Statutes, and/or Colorado Code of Regulations as same may be amended from time to time. Fireworks (1.4G) do not include paper caps containing an average of 0.25 grains of explosive content per cap or less; toy pistols, toy canes, toy guns or other devices for use with such caps.

Jurisdiction mean the City and all real property within the city limits and real property outside the city for which the fire department has contractually agreed to provide fire protection services and where such agreement specifically states that such real property for the purpose of fire protection services is subject to the fire department's jurisdiction.

Model rocket means an amateur rocket that:

1. Uses no more than one hundred twenty-five (125) grams (4.4 ounces) of propellant;
2. Uses a slow-burning propellant;
3. Is made of paper, wood, or breakable plastic;
4. Contains no substantial metal parts; and
5. Weighs no more than one thousand five hundred (1,500) grams (53 ounces), including the propellant.

Person means any natural person, firm, association, joint venture, joint stock company, partnership, organization, club, company, corporation, business trust, or their manager, lessee, agent, servant, officer, or employee.

Qualified means a competent and capable person that has met the requirements and training for a given field acceptable to the authority having jurisdiction.

Recreational fire means an outdoor fire burning materials other than rubbish or waste from trimming, pruning, or raking vegetation; and where the fuel being burned is not contained in a permitted incinerator, outdoor fireplace, portable outdoor fireplace, or barbeque grill or barbeque pit and has a maximum pile size of three (3) feet or (914 mm) or less in diameter and two (2) feet (610 mm) or less in height and is used for pleasure, religious, ceremonial, cooking, warmth, or similar purposes.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.140 IFC Section 308.1.7.

IFC Section 308.1.7 (Sky lanterns) is amended to read as follows:

Sec. 308.1.7. Sky lanterns.

A person shall not release or cause to be released an untethered sky lantern. Tethers for sky lanterns shall be no more than twenty-five (25) feet in length, shall be securely fastened to the ground, and shall be approved by the Fire Code Official. Sky lanterns shall not be tethered within fifty (50) feet of a structure or combustible material. Conditions that could cause a fire to spread to within twenty-five (25) feet of a structure shall be eliminated prior to ignition. A permit shall be obtained from the Fire Code Official in accordance with IFC Section 105.5. Sky lanterns of any type shall be prohibited, regardless of if a permit was initially received, when atmospheric conditions or local circumstances make such activities hazardous.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.150 IFC Section 404.1.

IFC Section 404.1 (General) is amended to read as follows:

Sec. 404.1. General.

Where required by Section 403, other sections of this code, or the Fire Code Official, fire safety, evacuation and lockdown plans shall comply with Sections 404.2 through 404.4.1. Fire safety, evacuation and lockdown plans

shall be made available for annual review by the Fire Code Official or upon any modifications to the plans or structures.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.160 IFC Section 404.2.1.

IFC Section 404.2.1 (Fire evacuation plans) is amended to read as follows:

Sec. 404.2.1. Fire evacuation plans.

Fire evacuation plans shall include the following:

Emergency egress or escape routes and whether evacuation of the building is to be complete by selected floors or areas only or with a defend-in-place response.

1. Procedures for employees who must remain to operate critical equipment before evacuating.
2. Procedures for the use of elevators to evacuate the building where occupant evacuation elevators complying with Section 3008 of the International Building Code are provided.
3. Procedures for assisted rescue for persons unable to use the general means of egress unassisted.
4. Procedures for accounting for employees and occupants after evacuation has been completed.
5. Identification and assignment of personnel responsible for rescue or emergency medical aid.
6. Procedures for evacuating occupants, as needed, from the site (e.g. housing during inclement weather, extended power outages, unsafe conditions, etc.).
7. The preferred and any alternative means of notifying occupants of a fire or emergency.
8. The preferred and any alternative means of reporting fires and other emergencies to the fire department or designated emergency response organization.

9. Identification and assignment of personnel who can be contacted for further information or explanation of duties under the plan.
10. A description of the emergency voice/alarm communication system alert tone and preprogrammed voice messages, where provided.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.170 IFC Section 507.1.

IFC Section 507.1 (Required water supply) is amended with the addition of a new subsection 507.1.1 entitled, "Water supply during a fire emergency" to read as follows:

Sec. 507.1.1. Water supply during a fire emergency.

When a fire is in progress, the Fire Chief or Fire Incident Commander in command of fire suppression activities shall, if necessary, have control of such portions of the waterworks of the city as are necessary to combat the fire.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.180 IFC Section 510.4.2.

IFC Section 510.4.2.2 (System design) is amended to read as follows:

Sec. 510.4.2. System design.

The in-building emergency responder communications enhancement system shall be designed in accordance with Sections 510.4.2.1 through 510.4.2.8 and NFPA 1225, and the design plans shall be properly sealed by a Colorado Registered Design Professional.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.190 IFC Section 510.4.2.2.

IFC Section 510.4.2.2 (Technical criteria) is amended to read as follows:

Sec. 510.4.2.2. Technical criteria.

The Fire Code Official may maintain a document providing the specific technical information and requirements for the in-building emergency responder communications enhancement system. This document shall contain, but not be limited to, the various frequencies

required, the location of radio sites, the effective radiated power of radio sites, the maximum propagation delay in microseconds, the applications being used and other supporting technical information necessary for system design.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.200 IFC Section 606.3.3.2.

IFC Section 606.3.3.2 (Grease accumulation) is amended to read as follows:

Sec. 606.3.3.2. Grease accumulation.

If during the inspection it is found that hoods, grease-removal devices, fans, ducts or other appurtenances have an accumulation of grease, such components shall be cleaned in accordance with NFPA 96 and ANSI/IKECA C10.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.210 IFC Section 901.6.3.

IFC Section 901.6.3 (Records) is amended with the addition of a new subsection 901.6.3.2 entitled, "Third party reporting" to read as follows:

Sec. 901.6.3.2. Third party reporting.

The Fire Code Official is authorized to require inspection, testing, and maintenance contractors to utilize third party tracking and reporting of the real time status of fire protection and life safety systems, as regulated by this Code.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.220 IFC Section 903.4.3.

IFC Section 903.4.3 (Alarms) is amended to read as follows:

Sec. 903.4.3. Alarms.

An approved audible/visual alarm device, located on the exterior of the building in an approved location, shall be connected to each automatic sprinkler system. Such sprinkler waterflow alarm devices shall be activated by waterflow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm

system and cause notification as set forth in Section 907.5. When buildings have multiple tenant spaces, notification devices shall be installed in accordance with Section 907.5 in each tenant space.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.230 IFC Section 903.4.3.

IFC Section 903.4.3 (Alarms) is amended with the addition of a new subsection 903.4.3.1 entitled "Audible and visual signals" to read as follows:

Sec. 903.4.3.1. Audible and visual signals.

Audible and visual fire alarm notification devices shall be connected to every automatic sprinkler system. Such audible and visual devices shall be activated throughout the building upon water flow. When buildings have multiple tenant spaces, notification devices shall be installed in accordance with Section 907.5 in each tenant space.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.240 IFC Section 904.3.5.

IFC Section 904.3.5 (Monitoring) is amended to read as follows:

Sec. 904.3.5. Monitoring.

Where a fire alarm signaling system is installed, automatic fire-extinguishing systems shall be monitored by the fire alarm signaling system in accordance with NFPA 72.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.250 IFC Section 904.14.

IFC Section 904.14 (Commercial cooking systems) is amended to read as follows:

Sec. 904.14. Commercial cooking systems.

The automatic fire-extinguishing system for commercial cooking systems shall be of a type recognized for protection of commercial cooking equipment and exhaust systems of the type and arrangement protected. Pre-engineered automatic dry- and wet-chemical extinguishing systems shall be tested in accordance with UL 300 and listed and labeled for the intended application. Other types of automatic fire-extinguishing systems shall be

listed and labeled for specific use as protection for commercial cooking operations. The system shall be installed and maintained in accordance with this code, NFPA 96, its listing and the manufacturer's installation instructions. Automatic fire-extinguishing systems of the following types shall be installed in accordance with the referenced standard indicated, as follows:

1. Carbon dioxide extinguishing systems, NFPA 12.
2. Automatic sprinkler systems, NFPA 13.
3. Automatic water mist systems, NFPA 750.
4. Foam-water sprinkler system or foam-water spray systems, NFPA 11.
5. Dry-chemical extinguishing systems, NFPA 17.
6. Wet-chemical extinguishing systems, NFPA 17A.

Exception: Factory-built commercial cooking recirculating systems that are tested in accordance with UL 710B and listed, labeled and installed in accordance with Section 304.1 of the International Mechanical Code.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.260 IFC Section 904.15.

IFC Section 904.15 (Domestic cooking facilities) is amended to read as follows:

Sec. 904.15. Domestic cooking facilities.

Domestic cooktops and ranges installed in the following occupancies shall be protected in accordance with Section 904.15.1:

1. In Group I-1 occupancies where domestic cooking facilities are installed in accordance with Section 420.9 of the International Building Code.
2. In Group I-2 occupancies where domestic cooking facilities are installed in accordance with Section 407.2.7 of the International Building Code.

3. In Group R-2 college dormitories where domestic cooking facilities are installed in accordance with Section 420.11 of the International Building Code.
 4. In Group R-2 congregate living facilities where domestic cooking facilities are installed.
 5. In Group R-3 congregate living facilities where domestic cooking facilities are installed.
 6. In Group R-4 occupancies where domestic cooking facilities are installed.
- (Ord. No. 2277, § 2, 7-22-2025)

16.04.270 IFC Section 907.7.

IFC Section 907.7 (Acceptance tests and completion) is amended with the addition of a new subsection 907.7.4 entitled "Graphic maps" to read as follows:

Sec. 907.7.4. Graphic maps.

A graphic map of the structure with all fire alarm devices, including, but not limited to, control, initiating, notification and interconnected systems, shall be installed next to each fire alarm annunciator and control unit.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.280. IFC Section 907.8.1.

IFC Section 907.8.1 (Maintenance required) is amended with the addition of a new subsection 907.8.1.1 entitled "Graphic map maintenance and update" to read as follows:

Sec. 907.8.1.1. Graphic map maintenance and update.

All new and existing fire alarm systems shall be provided with graphic maps complying with Section 907.7.4. Fire alarm graphic maps shall be maintained and updated with any system alterations or modifications.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.290 IFC Section 907.10.

IFC Section 907.10 (Smoke alarm maintenance) is amended with the addition of a new subsection 907.10.2 entitled "Records of testing and maintenance" to read as follows:

Sec. 907.10.2. Records of testing and maintenance.

Records of testing and maintenance, including the manufacturer's date of each alarm, shall be made available to the Fire Code Official for review.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.300 IFC Section 915.2.

IFC Section 915.2 (Locations) is amended to read as follows:

Sec. 915.2. Locations.

Carbon monoxide detection shall be installed in the locations specified in Sections 915.2.1 through 915.2.3, and in locations required by the Fire Code Official.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.310 IFC Section 915.6.

IFC Section 915.6 (Maintenance) is amended with the addition of a new subsection 915.6.2 entitled "Records of testing and maintenance" to read as follows:

Sec. 915.6.2. Records of testing and maintenance.

Records of testing and maintenance of carbon monoxide alarms, including the manufacturer's date of each alarm, shall be made available to the Fire Code Official for review. Carbon monoxide detectors shall be inspected, tested and maintained in accordance with NFPA 72 and their listing; records of inspection, testing and maintenance shall be provided to the Fire Code Official.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.320. IFC Section 1032.

IFC Section 1032 (Maintenance of the means of egress) is amended with the addition of a new subsection 1032.11 entitled, "Exit discharge signage" to read as follows:

Sec. 1032.11. Exit discharge signage.

Where an exterior exit or exit discharge door or path is located in an area subject to vehicular parking, such exit, door, or path shall be marked with minimum three-inch (3") high by

one-fourth inch (¼") stroke contrasting letters on the exterior stating: "FIRE EXIT—NO PARKING WITHIN TEN (10) FEET".
(Ord. No. 2277, § 2, 7-22-2025)

16.04.330 IFC Section 1103.6.1.

IFC Section 1103.6.1 (Existing multiple-story buildings) is amended to read as follows:

Sec. 1103.6.1. Existing multiple-story buildings.

Existing buildings and/or structures with occupied floors more than thirty (30) feet (9144 mm) above the lowest level of approved fire department access or more than thirty (30) feet (9144 mm) below the highest level of approved fire department access shall be equipped with an approved standpipe system.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.340 IFC Section 2303.2.

IFC Section 2303.2 (Emergency disconnect switches) is amended with the addition of a new subsection 2303.2.2 entitled "Records of testing and maintenance" to read as follows:

Sec. 2303.2.2. Records of testing and maintenance.

Approved emergency disconnect switches shall be annually inspected, tested and maintained by a qualified person. Records of inspection, testing and maintenance shall be maintained on the premises for review by the Fire Code Official.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.350 IFC Section 2304.3.6.

IFC Section 2304.3.6 (Communications) is amended with the addition of a new subsection 2304.3.6.1 entitled "Records of testing and maintenance" to read as follows:

Sec. 2304.3.6.1. Records of testing and maintenance.

The installed communication equipment shall be annually inspected, tested and maintained by a qualified person. Records of inspection,

testing and maintenance shall be maintained on the premises for review by the Fire Code Official.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.360 IFC Section 3305.1.

IFC Section 3305.1 (Listed) is amended with the addition of a new subsection 3305.1.6 entitled "Carbon monoxide detection" to read as follows:

Sec. 3305.1.6. Carbon monoxide detection.

Fuel-fired heaters shall have listed and approved carbon monoxide alarms installed near the heater, in accordance with the alarm manufacturer's instructions.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.370 IFC Section 3305.1.

IFC Section 3305.1 (Listed) is amended with the addition of a new subsection 3305.1.7 entitled "LP-gas detection" to read as follows:

Sec. 3305.1.7. LP-gas detection.

LP-fuel-fired heaters shall have listed and approved LP-gas alarms installed near the heater and potential leak locations, in accordance with the alarm manufacturer's instructions.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.380 IFC Section 3305.1.

IFC Section 3305.1 (Listed) is amended with the addition of a new subsection 3305.1.8 entitled "Natural gas detection" to read as follows:

Sec. 3305.1.8. Natural gas detection.

Natural gas fuel-fired heaters shall have listed and approved natural gas alarms installed near the heater and potential leak locations, in accordance with the alarm manufacturer's instructions.
(Ord. No. 2277, § 2, 7-22-2025)

16.04.390 IFC Section 3306.5.

IFC Section 3306.5 (Automatic sprinkler system) is amended to read as follows:

Sec. 3306.5. Automatic sprinkler system.

In buildings where an automatic sprinkler system is required by this code or the International Building Code, it shall be unlawful to stock, furnish or occupy any portion of a building or structure until the automatic sprinkler system installation has been tested and approved, except as provided in Section 105.3.4.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.400 IFC Section 3307.1.

IFC Section 3307.1 (Required access) is amended to read as follows:

Sec. 3307.1. Required access.

Approved vehicle access for firefighting shall be provided to all construction or demolition sites. Vehicle access shall be provided to within 100 feet (30 480 mm) of temporary or permanent fire department connections. Vehicle access shall be provided by either temporary or permanent roads, capable of supporting vehicle loading under all weather conditions. Temporary fire apparatus access roads shall have an all-weather surface consisting of the first lift of asphalt, concrete, or alternative design as approved by a geotechnical engineer. The surface shall be capable of supporting an 85,000-pound imposed load, all weather maintainable and free from obstructions. Documentation from a licensed civil engineer attesting that the surface will support the required imposed load shall be provided. Vehicle access shall be maintained until permanent fire apparatus access roads are available.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.410 IFC Section 4106.4.3.

IFC Section 4106.4.3 (Fuel gas systems) is amended with the addition of a new subsection 4106.4.3.5 entitled "Listed gas detection and signaling" to read as follows:

Sec. 4106.4.3.5. Listed gas detection and signaling.

Listed and approved carbon monoxide, LP-gas and natural gas detection and signaling devices,

as applicable, shall be properly installed in accordance with the manufacturer's instructions and guidelines.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.420 IFC Section 5601.1.3.

IFC Section 5601.1.3 (Fireworks) is amended to read as follows:

Sec. 5601.1.3. Fireworks.

It shall be unlawful for any person to possess, sell, furnish, give, use, or ignite fireworks.

Exceptions:

1. Storage and handling of fireworks as allowed in IFC Section 5604.
2. Manufacture, assembly, and testing of fireworks as allowed in Section 5605.
3. The use of fireworks for fireworks displays as allowed in IFC Section 5608.
4. The possession, storage, sale, handling and use of specific types of Division 1.4G fireworks where allowed by applicable laws, ordinances, and regulations, provided that such fireworks and facilities comply with the 2006 edition of NFPA 1124, CPSC 16 CFR Parts 1500 and 1507, and DOTn 49 CFR Parts 100-185, as applicable for consumer fireworks.

(Ord. No. 2277, § 2, 7-22-2025)

16.04.430 IFC Section 5704.2.9.6.1.

IFC Section 5704.2.9.1.6.1 (Locations where above-ground tanks are prohibited) is amended to read as follows:

Sec. 5704.2.9.6.1. Locations where above-ground tanks are prohibited.

Storage of Class I and II liquids in above-ground tanks outside of buildings is prohibited within the limits established by law as the limits of districts in which such storage is prohibited.

In addition to the requirements of the IFC, the storage of Class I and Class II liquids in

above-ground tanks outside of buildings shall conform to the provisions of Title 18 (Planning and Zoning) of the Golden Municipal Code. (Ord. No. 2277, § 2, 7-22-2025)

16.04.440 IFC Section 5706.2.4.4.

IFC Section 5706.2.4.4 (Locations where above-ground tanks are prohibited) is amended to read as follows:

Sec. 5706.2.4.4. Locations where above-ground tanks are prohibited.

The storage of Class I and II liquids in above-ground tanks is prohibited within the limits established by law as the limits of districts in which storage is prohibited.

In addition to the requirements of the IFC, the storage of Class I and Class II liquids in above-ground tanks shall conform to the provisions of Title 18 (Planning and Zoning) of the Golden Municipal Code. (Ord. No. 2277, § 2, 7-22-2025)

16.04.450 IFC Section 5806.2.

IFC Section 5806.2 (Limitations) is amended to read as follows:

Sec. 5806.2. Limitations.

Storage of flammable cryogenic fluids in stationary containers outside of buildings is prohibited within the limits established by law as the limits of districts in which such storage is prohibited.

In addition to the requirements of the IFC, the storage of flammable cryogenic fluids in stationary containers shall conform to the provisions of Title 18 (Planning and Zoning) of the Golden Municipal Code. (Ord. No. 2277, § 2, 7-22-2025)

16.04.460 IFC Section 6104.2.

IFC Section 6104.2 (Maximum capacity within established limits) is amended to read as follows:

Sec. 6104.2. Maximum capacity within established limits.

Within the limits established by law restricting the storage of liquefied petroleum gas for

the protection of heavily populated or congested areas, the aggregate capacity of any one installation shall not exceed a water capacity of one thousand (1,000) gallons, with maximum individual container capacity not to exceed five hundred (500) gallons water capacity.

Exception:In particular installations, this capacity limit shall be determined by the Fire Code Official, after consideration of special features such as topographical conditions, nature of the occupancy, and proximity to buildings, capacity of proposed LP-gas containers, degree of fire protection to be provided and capabilities of the fire department. (Ord. No. 2277, § 2, 7-22-2025)

Chapter 16.05

FIRE RESTRICTIONS OR BANS

16.05.010 Legislative declaration, purpose, and scope.

(a) *Legislative declaration.* The city council finds that establishing laws, regulations, and procedures that safeguard life and property from fire and explosion dangers arising from hazardous conditions is necessary to protect the health, safety, and welfare of the public. The city council also finds that county and Golden Fire Department Officials have the necessary expertise to determine when stage 1 fire restrictions or a stage 2 fire ban are necessary to protect the public's health, safety, and welfare.

(b) *Purpose.* The purpose of this chapter is to provide for the regulation of open fires or burning, or recreational fires, when atmospheric or other local conditions increase the danger of wild or other uncontrolled fires.

(c) *Scope.* This chapter does not apply to:

- (1) A fire specifically authorized by permit issued by the fire code official having jurisdiction over the fire location including, but not limited to: A fire permitted as part of a professional fireworks display, permitted as part of the use of a pyrotechnics device or of pyrotechnics, or a permitted bonfire; or

- (2) An open fire or open burning activity by any federal, state, or local fire protection employee as part of an authorized training exercise or otherwise in the performance of an official fire suppression function.

(Ord. No. 2277, § 4, 7-22-2025)

16.05.020 Definitions.

Except as set forth herein, or except where the context clearly indicates otherwise, words, terms, and phrases used in this chapter shall have the meanings ascribed to them in the International Fire Code as adopted by the city.

City manager means the City of Golden City Manager or his or her designee.

County means the critical incident response section of the Jefferson County Sheriff's Office.

Fire chief means the Golden Fire Department's Fire Chief or his or her designee.

GFD means Golden Fire Department.

Hot work means operations including, but not limited to, cutting, welding, Thermit welding, brazing, soldering, grinding, thermal spraying, thawing pipe, installation of torch-applied roof systems, or any other similar activity. It also includes the operation of an electric or gas-fueled portable powered welder or cutting appliance that produces heat, flame, sparks, or molten metal slag.

Liquid- or gas-fueled appliance means any equipment or device that burns liquid or gaseous fuel that can be shut off by means of a switch or other mechanical means and that is designed or intended for use outdoors to produce heat for pleasure, religious, ceremonial, cooking, warmth, or similar purposes. This includes, but is not limited to, a liquid- or gas-fueled camp stove, fire pit, or grill.

Open fire or open burning has the meaning set forth in the International Fire Code. It also includes a fire or combustion of materials created as a result of hot work, or a fire in a tethered or untethered sky lantern. For purposes of enforcement of this chapter, and notwithstand-

ing any other provision of this Code, any fire that is not a recreational fire shall be deemed to be an open fire.

Portable outdoor fireplace means a portable, outdoor solid-fuel-burning fireplace that may be constructed of steel, concrete, clay, or other noncombustible material. A portable outdoor fireplace may be open in design or may be equipped with a small hearth opening and a short chimney or chimney opening in the top. This type of fireplace is sometimes known as a chiminea.

Recreational fire means outdoor fire burning materials other than rubbish where the fuel being burned is not contained in an incinerator and that has a total fuel area of three feet (914 mm) or less in diameter and two feet (610 mm) or less in height for pleasure, religious, ceremonial, cooking, warmth, or similar purposes. For purposes of this chapter, a recreational fire includes, but is not limited to, a fire in a charcoal barbeque grill, a barbeque pit, a fire pit, or a fixed, permanent outdoor fireplace that is fueled by charcoal, wood, or other solid fuel, a fire in a barrel or drum, a fire in a portable outdoor fireplace, or a fire in a tiki torch, or in a similar device, object, or piece of equipment. It also includes any fire created as a result of the use of liquid- or gas-fueled appliance.

Stage 1 fire restriction or restrictions mean a limitation or limitations on building, maintaining, or attending to a recreational fire, an open fire, or on acts related to, or that may create, open burning, and as further described in section 16.05.040.

Stage 2 fire ban means a limitation or limitations on building, maintaining, or attending to a recreational fire, an open fire, or on acts related to, or that may create, open burning, and as further described in section 16.05.050.

Undeveloped area means publicly or privately owned land that is not landscaped, groomed, manicured through frequent and regular mowing, or watered by means other than natural precipitation, or any area where vegetation has been

allowed to grow in a natural environment or manner such that it may reasonably be deemed an undue wildfire hazard.

(Ord. No. 2277, § 4, 7-22-2025)

16.05.030 Authority.

The city manager or fire chief may declare and implement stage 1 fire restrictions or a stage 2 fire ban based upon and following the declaration of fire restrictions or a fire ban by the county or by recommendation of the GFD.

(Ord. No. 2277, § 4, 7-22-2025)

16.05.035 Declaration and notice.

(a) *Issuance of the declaration.* Within a reasonable time after the county declares fire restrictions or a fire ban to be in effect in unincorporated areas of the county, or the GFD recommends the imposition of fire restrictions or a fire ban, the city manager, fire chief, or his or her designee, may declare stage 1 fire restrictions or a stage 2 fire ban to be in effect within or upon any area within the city by publishing notice of the restrictions or ban on the city's website. Subject to available resources, the city manager, fire chief, or his or her designee may cause the declaration to be published on other social media sites of the city manager's choosing, or by other means deemed reasonably necessary to implement or publicize the restrictions or ban.

(b) *Contents of the declaration.* The declaration of the existence of stage 1 fire restrictions or a stage 2 fire ban must specify the date the restrictions or ban begins and the geographic parameters of the restrictions or ban. The declaration must specify whether stage 1 fire restrictions or a stage 2 fire ban is in place, and the general nature of the activities prohibited and allowed under the restrictions or ban. In addition, the declaration must reference this chapter of the Code.

(c) *Other information.* The declaration may specify measures citizens may take to reduce the possibility of, or to prevent, uncontrolled fires, and to extinguish fires that do occur. The notice may remind the public that the possession,

manufacture, storage, sale, handling, and use of fireworks, and the discharge of firearms, are prohibited throughout Golden.

(d) *Withdrawal of the declaration.* The declaration may be withdrawn by the city manager, fire chief, or his or her designee after a county declaration has been lifted, after the GFD has withdrawn its fire restrictions or ban recommendation, or otherwise upon a finding by the city manager, fire chief, or his or her designee that there exists competent evidence to lift the restrictions or ban, and by the publication of the withdrawal of the declaration on the city's website. The notice must specify the date the declaration is withdrawn. The notice may specify the reason or reasons the declaration is withdrawn. Subject to available resources, the city manager, fire chief, or his or her designee may also publish the withdrawal of the declaration on other social media sites or by other means deemed reasonable by the city manager.

(Ord. No. 2277, § 4, 7-22-2025)

16.05.040 Stage 1 fire restrictions—Unlawful acts.

(a) *Fire restrictions generally.* Notwithstanding any other provision of this Code, it shall be unlawful for a person to build, maintain, attend to, or use a recreational fire or an open fire within the city after a stage 1 fire restrictions declaration has been issued by the city manager or fire chief.

(b) *Exceptions.* The following acts or activities are allowed during a declared stage 1 fire restrictions period if adequate measures as listed below to prevent uncontrolled fire are taken, provided that it shall be a violation of this section if any person engaged in such acts fails to prevent uncontrolled fire.

- (1) Smoking, if it is done in an enclosed vehicle or building, or while stopped in an area of at least six feet in diameter that is barren or cleared of all combustible material.
- (2) The use of a recreational fire, if it is contained within a permanently constructed fire grate upon private

property or within a park, and if the fire is more than 30 feet from an undeveloped area.

- (3) The use of a tiki torch or portable outdoor fireplace upon private property, or the use of a fire pit upon private property or within a park, if the tiki torch, portable outdoor fireplace, or fire pit is more than 30 feet from an undeveloped area.
 - (4) The use of a liquid- or gas-fueled appliance.
 - (5) The use of a properly listed and approved wood pellet grills not closer than 30 feet from an undeveloped area.
 - (6) The operation of a chain saw.
 - (7) Hot work operations if the work is performed in an area more than 30 feet from an undeveloped area.
 - (8) The burning of explosive waste by the manufacturer of the explosives in an area zoned for industrial use, if the fire is supervised by GFD.
 - (9) The use of an explosive initiation system requiring a burning fuse line.
 - (10) The use of listed and approved charcoal grills not closer than 30 feet from an undeveloped area.
- (Ord. No. 2277, § 4, 7-22-2025)

16.05.050 Stage 2 fire ban—Unlawful acts.

(a) *Fire ban generally.* Notwithstanding any other provision of this Code, it shall be unlawful for a person to build, maintain, attend to, or use a recreational fire or an open fire within the city after a stage 2 fire ban declaration has been issued by the city manager or fire chief.

(b) *Exceptions.* The following acts or activities are allowed during a declared stage 2 fire ban period if adequate measures as listed below to prevent uncontrolled fire are taken, provided that it shall be a violation of this section if any person engaged in such acts fails to prevent uncontrolled fire:

- (1) Smoking, if it is done in an enclosed vehicle or building, or while stopped in

an area of at least six feet in diameter that is barren or cleared of all combustible material.

- (2) The use of a liquid- or gas-fueled appliance.
 - (3) The operation of a chain saw equipped with a properly installed USDA or SAE approved spark arresting device that is in good working order. The operator must also have always readily available for quick use, while the saw is being operated, an extinguishing source such as a pressurized water extinguisher, a proper chemical pressurized extinguisher that is large enough to handle nearby hazards, or sufficient water to extinguish any fire created through use of the saw. In addition, the operator must always have in his or her possession, while the saw is being operated, at least one pointed shovel with an overall length of at least 36 inches.
 - (4) Hot work operations if the work is performed in an area that is barren or cleared of all combustible material more than 30 feet in all directions from the operating equipment and with a permit from the fire code official having jurisdiction over the operating location.
- (Ord. No. 2277, § 4, 7-22-2025)

16.05.060 Initiation of Prosecution.

(a) Person(s) who violate a provision of this chapter or fail to comply with any of the requirements shall, for each offense, be subject to the general penalty provisions set forth in section 1.01.110 of the Golden Municipal Code.

(b) For unattended or abandoned locations, a copy of a summons and complaint shall be posted on the premises by an authorized officer in a conspicuous place at or near the entrance to such premises, and the summons and complaint shall be mailed by certified mail, with return receipt requested or a certificate of mailing, to the last known address of the owner, occupant, or both.

(Ord. No. 2277, § 4, 7-22-2025)

Chapter 16.08
FIRE DEPARTMENT

16.08.060 Cooperation agreements.

The Golden Fire Department, subject to approval of the city manager, is authorized to enter into agreements to furnish fire suppression services outside of the city's boundaries and to enter into mutual aid agreements.

The Golden Fire Department may, where an area is without fire or emergency protection services and at the request of an authorized law enforcement agency or other fire department, fire protection district or authority, provide fire and emergency responses beyond the city's boundaries.

(Ord. No. 2277, § 5, 7-22-2025; Ord. 1154, 1992)

16.08.090 Fire and emergency fees for services rendered out of the city.

(a) *Fee imposed.* There are hereby established fire and emergency response fees which shall be assessed to compensate the city for fire and emergency services of the fire department provided outside the municipal limits of the City of Golden. Any party benefiting by such services, including any party requesting the services if such party has a duty to respond, shall be responsible for the payment of such fees.

(b) *Fee schedule.* Fire and emergency response fees shall be imposed for all calls to the city and the fire department which result in responses outside the city limits and shall be assessed according to the fees established by resolution of city council or according to the Colorado Resource Rate Form, as applicable.

(c) *Exceptions.* The fees assessed pursuant to this ordinance shall not apply to responses of the fire department which are necessitated or otherwise requested pursuant to mutual aid agreements or other contractual obligation between the City of Golden and any other parties to such contracts.

(d) *Payment.* All fees assessed under this ordinance shall be submitted to the appropriate party. Payment shall be due 30 days after submis-

sion of such fees. Interest shall accrue at the rate provided in the Colorado statutes for amounts not paid when due.

(Ord. No. 2277, § 5, 7-22-2025; Ord. 1133, 1991)

Title 17

SUBDIVISIONS*

Chapter 17.10 General Provisions

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17.10.030	Applicability.
17.10.040	Jurisdiction.
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Chapter 17.20 Definitions

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Chapter 17.30 Subdivision and Lot Line Adjustment Application and Review Procedures

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17.30.030	Minor subdivision plat review and approval.
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17.30.060	Appeals.
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Chapter 17.40 Subdivision Design Standards

17.40.010	General standards.
17.40.020	Type A subdivision standards.
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17.40.040	Flag lots.
17.40.050	Hillside standards.
17.40.060	Easements.
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17.40.100	Streets, access and transportation.

Chapter 17.50 Subdivision Development

17.50.000	Construction and development; public improvements; oversizing.
17.50.010	Utilities.
17.50.020	Installation of utility facilities.
17.50.030	Subdivision monumentation.
17.50.100	Development agreement.

***Editor's note**—Section 2(Exhibit A) of Ord. No. 2209, adopted June 6, 2023, amended title 17 in its entirety to read as herein set out. Former title 17 pertained to the same subject matter, consisted of chs. 17.10, 17.20, 17.30, 17.40, 17.50, and 17.60; and derived from Ord. No. 676, 1973; Ord. No. 892, 1982; Ord. No. 1152, 1992; Ord. No. 1235, 1996; Ord. No. 1436, 1999; Ord. No. 1455, 1999; Ord. No. 1516, 2000; Ord. No. 1671, 2004; Ord. No. 1887, 2010; Ord. No. 2114, adopted July 25, 2019; Ord. No. 2180, adopted May 24, 2022; and Ord. No. 2181, adopted May 24, 2022.

GOLDEN MUNICIPAL CODE

17.50.105	Restriction of conveyance and certificates of occupancy.
17.50.110	Contract security.
17.50.120	Initial acceptance of public improvements.
17.50.125	Acknowledgement of private improvements.
17.50.130	Warranty.
17.50.140	Procedure for final acceptance of public improvements.
17.50.145	Procedure for completion of warranty performance guarantee period for private improvements.

Chapter 17.60 Dedications

17.60.000	Public dedications.
17.60.010	Streets.
17.60.020	Drainage.
17.60.030	Public sites.
17.60.040	Parkland dedication requirements.
17.60.050	Parkland standards.
17.60.060	School dedication.

Chapter 17.10
GENERAL PROVISIONS

17.10.010 Title.

This title shall be known and cited as the "Subdivision Regulations," and may also be referred to herein as "this title."
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.020 Purpose.

The subdivision regulations are adopted to:

- (1) Protect and provide for the health, safety, and general welfare of the City of Golden;
- (2) Promote the orderly growth of the city in concert with the comprehensive plan;
- (3) Provide adequate and effective public utility systems;
- (4) Provide for the proper distribution of population and supportive land uses;
- (5) Provide for the proper design and construction of the transportation system consistent with the adopted thoroughfare plan;
- (6) Establish standards for design and set forth the procedures for the subdivision and resubdivision of land in proper relation to the type of land use and population to be served; and
- (7) Ensure the use of proper legal descriptions, surveying, and monument of subdivided land.

These subdivision regulations are to be enforced and interpreted in concert with the zoning regulations of the City of Golden and other applicable regulations, ordinances, codes and rules. All plats and plans submitted shall be in a form which satisfies these subdivision regulations, the zoning regulations, and all other applicable ordinances and regulations.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.030 Applicability.

(1) Any person who divides, or participates in the division of a lot, tract, or parcel of land into two or more lots, tracts, parcels or other divi-

sions of land for any purpose including, but not limited to, the immediate or future purpose of conveyance, sale or building development, whether residential, industrial, office, business or otherwise, shall comply with the provisions of these subdivision regulations. Any plat for the subdivision of land, within the jurisdiction of this title, including the resubdivision of land previously subdivided, shall be submitted to the City of Golden for action in accordance with this title. This title shall not apply to the following:

- (a) Any division of land created for the sole purpose of establishing public rights-of-way, public utility rights-of-way, or other lands for municipal and school district purposes.
- (b) The sale of cemetery lots within a permitted cemetery, where the cemetery maintains records as to the size, location, and ownership of the lots.
- (c) The creation of easements.
- (d) A division of land or interests in land created by any court in this state pursuant to the exercise of eminent domain powers, partition or by operation of law or that creates a parcel or parcels as a result of the acquisition of land by the city.
- (e) A division of land or interests in land that creates an interest or interests in oil, gas, minerals or water which are now or hereafter severed from the surface ownership of real property.

(2) No subdivision plat shall be used for purposes of sale or development until approved and recorded as provided in this title.

(3) No building shall be erected on any lot, nor shall a building permit be issued for a building unless the lot is part of a subdivision approved in accordance with these subdivision regulations or prior subdivision regulations; however, a building permit may be issued on a lot created by a valid and recorded instrument of conveyance prior to March 13, 1973.

(4) Every plat shall be recorded in the office of the Jefferson County Clerk and Recorder.

(5) It shall be unlawful for the owner or an agent of the owner of any land to transfer or sell any unsubdivided land or lands by reference to, exhibition of, or by use of a subdivision plat before such plat has been approved by the City of Golden and recorded in the office of the Jefferson County Clerk and Recorder.

(6) It shall be unlawful to erect, construct, reconstruct, use or alter any building or structure or to use any land in violation of this title. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.040 Jurisdiction.

This title shall be applicable within the following described areas:

- (1) *Areas inside the city limits.* The territorial jurisdiction of this title shall include all land located within the corporate limits of the city.
- (2) *Areas outside the city limits.* The planning commission shall have such extra-territorial jurisdiction as provided by C.R.S. § 31-23-212, as amended.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.045 Interpretation.

The following principles shall be used in interpreting this title:

- (1) The provisions of this title shall be regarded as the minimum requirements for the protection of the public health, safety, and general welfare. This title shall be regarded as remedial and shall be liberally construed to further its underlying purposes.
- (2) This title is not intended to interfere or conflict with, abrogate, or annul any other regulation, ordinance, statute, or provision of law.
- (3) Whenever a provision of this title and a provision of any other law, ordinance, resolution, rule, or regulation of any kind, including any other provision of this title, contain restrictions covering the same subject matter, the more restrictive shall govern; except that in the event

of a conflict that involves the provisions of chapter 18.29 and the provisions of this title, the provisions of chapter 18.29 shall govern.

- (4) The foregoing principles notwithstanding, the city council directs those city officials responsible for enforcement of this title to utilize a reasonable common sense approach to the interpretation and application of the specific provisions of this title. To this end, city officials charged with the responsibility for enforcement and administration of provisions of this title shall be entitled to utilize discretion in waiving specific application requirements, provided that such discretion shall be exercised in a manner to preserve the purposes and intention of this title and to not jeopardize the health, safety or general welfare of the public. When exercising discretion to waive or modify any specific application requirements, said city official shall consider:

- (a) The scope and nature of the proposed project.
- (b) The impact of the project on the properties in the general vicinity of the project.
- (c) The impact of the project on municipal facilities and services, including without limitation, streets, water, sewer, drainage, police, and fire protection services.
- (d) Whether the information contained in a requirement sought to be waived is reasonably and readily available from other materials submitted in conjunction with the application.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.050 Penalty and enforcement.

- (1) Any person found to be in violation of this title shall be subject to a maximum fine of not more than \$999.00. Each day during which such violation continues shall be deemed a separate offense.

(2) The city, in addition to any other remedies provided in the ordinance codified in this title 17, or by law, may institute injunction, mandamus, abatement, or any other appropriate action or proceeding to prevent, enjoin, abate, or remove such violation.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.060 Director of community development.

The director may delegate to any qualified employee of the city any of the responsibilities assigned to the director by this title. The delegation by the director shall be in writing with the specific responsibilities delegated also designated in writing. The designee shall be subject to the same restrictions and standards as are applicable to the director.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.10.070 Fees.

(1) For applications required pursuant to this title, the city will charge applicants reasonable fees sufficient to cover the costs of administration, inspection, publication of notice, and similar matters, and the cost of professional consultants, including legal review, required to assist the city with review and processing of such applications. All fees imposed by this section shall include application fees.

(2) If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an initial escrow payment in an amount sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services related to the application if they become necessary. If the applicant does not pay additional escrow funds as required within ten days after written notice from the city, then, in addition to other remedies the city may have, the city shall be entitled to a lien on the subject property or

the city may elect to certify the assessed costs and expenses to the office of the county treasurer for collection in the same manner as general property taxes are collected. Such liens shall be perfected and may be foreclosed upon in accordance with applicable state laws.

(3) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Chapter 17.20 DEFINITIONS

17.20.010 General interpretation.

(1) For purposes of this title, the words and terms used, defined, interpreted, or further described herein shall be construed as follows:

- (a) The present tense includes the future tense.
- (b) Words used in the singular number include the plural, and vice versa, unless the context clearly indicates the contrary.
- (c) The phrase "used for" as applied to any land or building includes "arranged for", "designed for", "intended for", "maintained for", and "occupied for".
- (d) The words "must" and "shall" are mandatory.

(2) Where not defined herein, the words used in this title shall have their common and customary meaning.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.20.020 Definitions.

As used within this title, except where otherwise specifically defined, or unless the

context otherwise requires, the following terms, phrases, words and their derivations shall have the following meanings:

Access control line means a line designated on a subdivision plat between known points of reference for the purpose of restricting or limiting access.

Alley: See section 18.04.020, definition of "alley".

Applicant means the owner of land proposed to be subdivided or their legally designated representative. Also see "subdivider".

Approving authority means the person or body (typically the city council, the planning commission, or the director) that is authorized to approve, approve with conditions, or deny an application required under this title.

Block means a unit of land within a subdivision containing one or more lots which is bounded by public or private streets, highways, railroad rights-of-way, public walks, alleys, parks or open space, rural or vacant land or drainage channels, subdivision boundaries, property boundaries or a combination thereof, and which is customarily further divided into lots.

Building: See section 18.04.020, definition of "building".

Building code means the International Building Code, International Residential Code, or International Existing Building Code, as applicable, in the form adopted by the City of Golden and as amended from time to time.

Building permit means a permit that is required by the building code to authorize construction, repair, or modification of a building.

City means the City of Golden, Colorado.

City council means the city council of the City of Golden, Colorado.

Clustered subdivision: See section 18.04.020, definition of "Clustered subdivision/cluster".

Comprehensive plan means the master planning document of the City of Golden, as adopted by the planning commission and approved by the city council, including all adopted and approved amendments thereto.

Conventional subdivision: See "Subdivision (conventional)."

Cul-de-sac means a dead-end street providing at the closed end an enlarged, rounded turning and maneuvering space for vehicular traffic as specified in the engineering regulations.

Days means consecutive calendar days, unless otherwise specifically designated.

DB: See section 18.04.020, definition of "dB".

DB(A): See section 18.04.020, definition of "dB(A)".

Department: See section 18.04.020, definition of "department".

Development means any manmade change to real estate or property, including buildings, or other structures, mining, dredging, filling, grading, paving, excavation, or drilling.

DNL: See section 18.04.020, definition of "DNL".

Easement means an interest in real property generally (but not always) established in a real estate document or on a recorded plat to reserve, convey, or dedicate the use of land for a specialized or limited purpose without the transfer of fee-simple title. Such specified uses may include, but are not limited to, transportation facilities, utilities, access, stormwater drainage, and solar exposure.

Emergency vehicles means vehicles such as ambulances, police cars, or firefighting apparatus used to respond to emergency situations.

Engineering regulations means generally applicable regulations and design specifications approved or promulgated by the city engineer from time to time, which establish minimum design and construction standards for infrastructure or utilities, including, but not limited to, streets, sidewalks, trails, curbs, gutters, water lines and appurtenances, sewer lines and appurtenances, stormwater systems.

Final plat means a map of certain described land prepared in accordance with this title as an instrument for recording of real estate interests with the Jefferson County Clerk and Recorder.

Flag lot: See section 18.04.020, definition of "flag lot".

Hazard means and refers to any condition either natural or manmade which presents danger to the public health, safety and welfare.

Legacy use zone: See section 18.04.020, definition of "legacy use zone".

Lot: See section 18.04.020, definition of "lot".

Lot, corner: See section 18.04.020, definition of "lot, corner".

Lot frontage: See section 18.04.020, definition of "lot frontage".

Lot, interior: See section 18.04.020, definition of "lot, interior".

Lot line adjustment means a survey document approved according to the provisions of this title that relocates or deletes one or more existing lot lines within adjacent lots or ownerships within an approved subdivision.

Lot, through: See section 18.04.020, definition of "lot, through".

Lot width: See section 18.04.020, definition of "lot width".

Lot line, front: See section 18.04.020, definition of "lot line, front".

Lot line, rear: See section 18.04.020, definition of "lot line, rear".

Lot line, side: See section 18.04.020, definition of "lot line, side".

Minor subdivision: See "subdivision (minor)."

Monuments means the actual points set on the ground to locate, delineate or describe tracts of land and/or the points set to define a legal description of a tract of land. These include:

- (a) United States Land Survey Monuments. The points or comers established by the survey of public lands for the United States government, also the reestablishment or restoration of said corners.
- (b) The points of corners set by a Colorado Registered Land Surveyor in accordance with the Colorado Revised Statues.

- (c) Points set in accordance with the engineering regulations, as amended.

Owner means a person holding fee-simple title to a lot or parcel of real property, or to a condominium unit, as listed by the Jefferson County Clerk and Recorder.

Parcel: See section 18.04.020, definition of "parcel".

Parks master plan means the City of Golden Parks and Recreation Master Plan, as amended or superseded from time to time.

Person: See section 18.04.020, definition of "person".

Planning commission means the planning commission of the City of Golden.

Preliminary plat means the map or maps of a proposed subdivision and supporting materials as required by the director, drawn and submitted in accordance with the requirements of this title, to inform the evaluation of the proposal prior to final platting, detailed engineering, and design.

Public improvements means those physical improvements which, upon formal acceptance by the city (or other unit of government, such as the Colorado Department of Transportation or a metropolitan district organized under Title 32 of the Colorado Revised Statutes) become the responsibility of the city (or other unit of government, as applicable) for ownership and/or maintenance and repair, and include, but are not limited to, the following: street improvements (including, but not limited to, traffic signals, traffic control signs, swales, storm drains and pipelines, street signs, street lights, pavement, medians, bridges, culverts, shoulders, bicycle lanes, curb, gutter, and sidewalk), trails, water lines, sanitary sewer lines, and other improvements specified within a development agreement which, upon acceptance, are intended to be for the benefit, use, or and enjoyment of the public.

Registered land surveyor means a person registered to practice land surveying as set forth in Title 12, Article 120, Part 3 of the Colorado Revised Statues, as amended.

Resubdivision means any change in a final plat of an approved and recorded subdivision plat including any map or plat legally recorded prior to the adoption of any regulations controlling subdivisions.

Right-of-way means an area dedicated to public use for pedestrian and/or vehicular movement, which may also accommodate public utilities.

Service vehicles means vehicles that are used to deliver or pick up goods or to provide maintenance.

Sketch plan means a drawing of a proposed subdivision, drawn and submitted in accordance with the requirements of this title, which is used for early, informal evaluation of a proposed subdivision.

Street: See section 18.04.020, definition of "street".

Structure: See section 18.04.020, definition of "structure".

Subdivider means any person making application for the subdivision of land.

Subdivision means the division of a lot, tract, or parcel of land into two or more lots, tracts, or parcels or other division for the purpose, whether immediate or future, of transfer of ownership or sale of a fee-simple interest, including any resubdivision.

Subdivision (conventional) means all types of subdivisions except those meeting the definition of minor subdivision or those qualifying as a lot line adjustment.

Subdivision (minor) means a subdivision that meets all of the following criteria:

- (a) The subdivision contains not more than nine lots;
- (b) The parcel or lot(s) to be subdivided is not more than five acres in aggregate size; and
- (c) The subdivision plat does not dedicate any new public street, right-of-way, or easement for a public purpose that requires acceptance by the city council.

Thoroughfare plan means the adopted street plan for the City of Golden. The thoroughfare plan may also be referred to as the "Transportation Master Plan."

Tract means a portion of land that is a part of a subdivision which is designated for public dedication or common ownership by lot owners, which serves a specific common purpose that supports the lots within the subdivision or a larger area (e.g., provision of streets, trails, public or common recreation area, public or common open space, stormwater detention or retention, etc.).

Type A subdivision means a subdivision of land that creates lots (and may include rights-of-way), wherein the lots are intended to be used for house, duplex, row house, cottage cluster, or cottage compound form types within form zones, or single-family or manufactured home uses in legacy use zones.

Type B subdivision means a subdivision of land that is not a type A subdivision.

Zoning regulations means title 18 of the City of Golden Municipal Code, as amended. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Chapter 17.30

SUBDIVISION AND LOT LINE ADJUSTMENT APPLICATION AND REVIEW PROCEDURES

17.30.010 General procedure.

(1) *Classification of subdivision or lot line adjustment.*

- (a) Prior to any subdivision or lot line adjustment, the applicant shall apply for and secure approval of the proposed subdivision or lot line adjustment in accordance with the following procedure, based upon the classification of the subdivision.
- (b) The classification of a subdivision or lot line adjustment shall be made by the director based upon the criteria established in the "definition" section of this title, as a "lot line adjustment", "conventional subdivision" or a "minor

subdivision"; provided, however, that the director may, in their discretion, require a clustered subdivision that meets the definition of a minor subdivision to be processed as a conventional subdivision.

(2) *Review procedure.* See sections 18.10.020 and 18.10.040 for application and review procedures.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.020 Reserved.

Editor's note—Ord. No. 2252, § 3(Exh. B), adopted Jazn. 28, 2025, repealed § 17.30.020, which pertained to presubmittal conference and review and derived from Ord. No. 2209, § 2(Exh. A), adopted June 6, 2023.

17.30.025 Lot line adjustment.

(1) *Application procedure and requirements.* See section 18.10.040 for application procedures.

(2) *Staff review.* See section 18.10.040 for review procedures.

(3) *Director action.* The director will review the lot line adjustment as presented, giving consideration to review comments and the requirement that the resulting lot line arrangement comply with all lot area, lot width, setback, and other applicable requirements of title 18. The director shall approve, approve with conditions, or deny the lot line adjustment as presented, within 30 days of the complete application date. The director's decision shall be promptly mailed, electronic mail or first class U.S. mail, to the applicant.

- (a) In the case of a denial of the lot line adjustment by the director, the denial shall specify the grounds for such denial.
- (b) In the case of approval with conditions, the applicant shall revise the lot line adjustment survey and return it to the director for approval.
- (c) In the case of approval of the lot line adjustment, the applicant shall submit to the department, within 90 days of approval, a fully executed lot line adjustment survey along with such other documents and fees as may be required by

this title or the director. Approval of the lot line adjustment survey shall be void if the applicant fails to comply with the time requirements of this subsection (c), unless such time requirement is extended in writing prior to expiration by the director.

(4) *Recording of lot line adjustment.* See section 18.10.040 for recording procedures.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.030 Minor subdivision plat review and approval.

(1) *Application procedure and requirements.* All owner(s) of the fee interest of the land, or an authorized agent of the owner(s) requesting review and approval of a minor subdivision plat, shall submit an application that shall:

- (a) Be made on forms approved by the director, which are available at the department.
- (b) Contain all material specified by the director.
- (c) Be accompanied by a fee which shall be established by city council resolution.

(2) *Staff review.* See section 18.10.040 for review procedures.

(3) *Director action.*

- (a) The director shall review the minor subdivision plat as presented, giving consideration to the staff report and review comments, the arrangement, location, and size of streets, the relationship of the subdivision to the natural topography, the adequacy of utility and drainage systems proposed to serve the subdivision, the relationship of the proposed subdivision to adjacent subdivided and unsubdivided land, and the compatibility of the proposed subdivision with this title, with other adopted city codes and policies, and with the various functional elements of the thoroughfare plan, and parks master plan. The director shall approve, approve with

conditions, or deny the minor subdivision plat as presented, within 42 days of the complete application date. The director shall provide written notice to the applicant of the decision by electronic mail or first class U.S. mail.

1. In the case of a denial of the minor subdivision plat by the director, the denial shall specify the grounds for such denial.
2. In the case of approval with conditions, the applicant shall revise the minor subdivision plat and return it to the director for approval.
3. In the case of approval of the minor subdivision plat, the subdivider shall submit to the department, within 90 days of approval, a fully executed minor subdivision plat along with such other documents and fees as may be required by this title. Approval of the minor subdivision plat shall be void if the applicant fails to comply with the time requirements of this subsection (c), unless such time requirement is extended in writing by the director prior to expiration.

- (b) The director shall also have the authority to require that a minor subdivision application be processed as a conventional subdivision where the character of the subdivision application presents issues which, in the director's discretion, warrant review by the planning commission and review and approval by the city council. The director's decision to require a conventional subdivision is not appealable.

(4) *Recording of plat.* The director shall collect recording fees from the applicant and cause the approved minor subdivision plat to be recorded in the public records of Jefferson County, Colorado. Recordation of the minor subdivision plat shall be deferred until the appeal process has been completed, or the period to initiate an appeal has run with no appeal being filed.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.035 Sketch plan review.

(1) *Sketch plan application procedure and requirements.* See section 18.10.030 for application process.

(2) *Staff review.* See section 18.10.040 for review procedures.

(3) *Notice.* See section 18.10.040 for notice procedures.

(4) *Planning commission meeting.* The planning commission shall hold a public meeting during which it considers the submitted sketch plan. At the public meeting, the planning commission may, but is not obligated to, provide comments to the applicant as to the arrangement, location, and size of lots, blocks, and streets, relationship of the subdivision to the natural topography, relationship of the proposed subdivision to adjacent subdivided and unsubdivided land, and compatibility of the proposed subdivision with this title, with other adopted city codes and policies, and with the various elements of the thoroughfare plan, and parks master plan.

(5) *Effect of review; disclaimer.* The sketch plan is not part of a formal application for approval of a conventional subdivision and no comments made by the city, including the planning commission, with regard to a sketch plan shall be binding on the city's consideration of any subsequent conventional preliminary or final plat application nor result in a vested property right under this title or state statute. The voluntary submission of a sketch plan shall constitute a complete waiver of any and all legal claims that are based on, or arise from, department staff or planning commission review of, or comment upon, such sketch plan.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2260, § 2, 1-29-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.040 Preliminary subdivision plat review and approval.

(1) *Preliminary plat application procedure and requirements.* See section 18.10.020.

(2) *Staff review.* See section 18.10.040 for review procedures.

(3) *Notice.* See section 18.10.040 for notice procedures.

(4) *Planning commission public hearing and action.* The planning commission shall hold at least one public hearing on the submitted preliminary plat. The planning commission shall hear and consider at the public hearing any relevant evidence or statement presented by the applicant, city staff, or any person in attendance at the public hearing. The planning commission shall then make a recommendation by resolution to city council to approve, approve with conditions, or deny the application, basing its recommendation upon the evidence presented in the public hearing applying the regulations and standards of this title. The planning commission, on its own motion or at the request of any person, also may continue the public hearing to a fixed date, time, and place; provided however that the planning commission's recommendation shall be forwarded to the council within 90 calendar days after the opening of the planning commission public hearing unless the applicant consents to an extension of such time.

(5) *City council action.*

(a) See section 18.10.040 for hearing procedures.

(b) The city council shall hear and consider at the public hearing any relevant evidence or statement presented by the applicant, city staff, or any person in attendance at the public hearing, and the findings of the planning commission, and shall approve, approve with conditions, or disapprove the preliminary plat or refer the preliminary plat back to the planning commission.

(6) *Phasing final plat submittals.*

(a) The applicant may propose to delineate on the preliminary plat two or more final plat filing phases, and establish a schedule for the submittal of the phases. Said phasing plan shall denote, at a minimum,

the limits of the grading, public improvements, and specific lots to be developed with each phase.

(b) When phasing is not indicated on the preliminary plat, the final plat shall be submitted for the entire area shown on the preliminary plat. If the applicant desires to establish phases following approval of the preliminary plat, a new preliminary plat delineating the phases and establishing the schedule must be submitted and approved according to these subdivision regulations.

(c) Modifications to an approved phasing plan or schedule which do not change impacts on adjoining property may be approved by the director. If the director denies a modification to an approved phasing plan or schedule, the applicant may appeal the denial to the planning commission in accordance with chapter 18.10.

(7) *Effective period of preliminary plat approval.* See section 18.10.040 for effective periods.

(8) *Preliminary plat approval restrictions.* Approval of the preliminary plat does not constitute approval of the final plat. The preliminary plat shall not be recorded and use of the preliminary plat for the purpose of selling or transferring interests in real estate shall be deemed a violation of this title.

(9) *Administrative waiver of preliminary plat.* The director may waive the requirements for a preliminary plat if the director finds that the subdivision does not require waivers, variances, or modifications to any applicable standards of these subdivision regulations, and either:

(a) The subdivision contains not more than nine lots and does not include land with a slope in excess of 15 percent, wetlands, a water course (e.g., river, stream, or irrigation ditch), or other hazards (including those contemplated by section 17.40.010(2)); or

(b) The subdivision is a replat that does not change the arrangement of lots, tracts,

and rights-of-way in a manner that materially affects off-site traffic circulation or the impacts of land uses within the subdivision on adjoining properties outside of the subdivision.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.050 Final subdivision plat review and approval.

(1) *Purpose.*

- (a) The purposes of the final plat are to review the proposed subdivision: for proper final engineering subdivision design; for legal requirements to properly represent real estate interests; to provide for dedication of lands required for public use and for the construction of public improvements; and, if applicable, for conformance with the preliminary plat. The applicant may proceed with the preparation of the final plat and other documents to be submitted with the application simultaneously with, or following approval of the preliminary plat.

- (b) If there are significant changes on the final plat from the preliminary plat, a new preliminary plat shall be submitted to the planning commission. Significant changes include, but are not limited to, modifications of street patterns, lot layout, drainage ways, grading, density, utility systems or public improvements. The director shall review the final plat changes to determine the conformance to the preliminary plat, and shall determine if the changes are sufficiently significant to require a new preliminary plat submittal. If the director requires a new preliminary plat, the applicant may appeal the director's decision to the planning commission in accordance with chapter 18.12 of this title.

(2) *Application.* See section 18.10.040 for application procedures.

(3) *City council actions.* The city council has final authority to approve, approve with conditions, or disapprove the final plat, and to enter

into a development agreement associated with the final plat or to refer the plat to the planning commission. City council shall hear and consider at the public hearing any relevant evidence or statement presented by the applicant, city staff, or any person in attendance at the public hearing, and shall review the final plat for conformance with the preliminary plat, this title, and other adopted city ordinances, standards, and regulations. City council shall approve, approve with conditions or disapprove the final plat, accept the dedications and authorize the execution of a development agreement or refer the final plat to planning commission. Said referral of the plat to the planning commission shall outline the reasons for this referral.

(4) *Recordation.* See section 18.10.040 for recordation procedures.

(Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.060 Appeals.

Appeals from decisions made under this title are processed as provided in section 18.10.040. (Ord. No. 2252, § 3(Exh. B), 1-28-2025; Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.30.070 Variances and major adjustments.

Variances and major adjustments to the standards of this title are processed as follows:

- (1) *Form zones.* Within form zones, adjustments to the standards of this title shall be processed as a major adjustment under division VII of chapter 18.29.
 - (2) *Legacy use zones.* Within legacy use zones, adjustments to the standards of this title shall be processed as a public hearing variance under chapter 18.12.
- (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Chapter 17.40

SUBDIVISION DESIGN STANDARDS

17.40.010 General standards.

(1) Land on which the approving authority finds evidence of hazards such as, but not limited to, flooding, swelling soils, subsidence, improper

drainage, slopes of 15 percent or greater, adverse geological formations, topography, utility easements, or features which will be harmful to the health, safety and/or welfare of the present or future inhabitants of the subdivision or its environs shall not be approved for subdividing unless a design sufficient to alleviate the foregoing hazard(s), certified by an engineer licensed to practice in Colorado, has been submitted by the applicant and approved by the approving authority. The approving authority's approval of such design will take into account the recommendation of the city engineer or other city retained consultants.

(2) Proposed blocks, lots, and tracts shall be suitable in area, orientation, aspect ratio, and dimension to the type(s) of development anticipated. When land is subdivided into blocks, lots, or tracts larger than necessary to accommodate the proposed uses, provision for potential future resubdivision shall be taken into account. Provisions shall be made for future utilities and the subdivision arrangement shall be such that the location and opening of future streets is in conformance with the thoroughfare plan.

(3) All subdivisions shall result in the creation of lots which are developable and capable of being built upon in compliance with title 18 and all engineering regulations. Subdivisions may also contain tracts which are not intended as building lots but are necessary for other purposes. All such tracts shall be shown on the plat and designated as to their ultimate ownership and purpose.

(4) All subdivisions shall be designed to minimize the disruption or reshaping of existing topographic land forms. Grading plans for subdivisions will be reviewed to determine the impact to the proposed subdivision as well as adjacent and nearby properties.

(5) The street and block pattern proposed shall be appropriate for the anticipated uses, and take into account the circulation and access requirements of other existing or approved uses in the vicinity.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.020 Type A subdivision standards.

(1) Blocks that are created or modified (in terms of dimensions) by a type A subdivision plat shall have sufficient length, width, and shape to allow the ultimate design lots suited for the planned land use, the requirements of the zoning regulations, and traffic and safety controls consistent with the engineering regulations.

- (a) Except as provided herein, lot area, frontage, depth, and width shall comply with zoning regulations.
- (b) Blocks shall be a minimum of 400 feet in length between street center lines unless constrained by exceptional topography or other limiting factor.
- (c) Blocks shall have sufficient width to provide for two tiers of lots of appropriate depth except where otherwise required to separate residential development from through traffic or when adjacent to open space or other designed solutions.
- (d) Utilization of cul-de-sac dead end street should be avoided unless required to address topographic or other constraints.
- (e) Except as provided in chapter 18.29 (as applicable), for minor subdivisions, no lot shall exceed six total lot lines, which include the lot's front, rear, and side lot lines. Lot lines may be traditionally aligned to one geometric bearing or curvilinear as needed.

(2) Except as provided in chapter 18.29 (as applicable), side lot lines shall be at substantially right angles or radial to street lines.

(3) When the rear or side yard of a residential lot backs up to a collector or arterial street, the subdivision design shall provide for a landscaped strip that is an average of not less than 20 feet but in no case less than 12 feet in width between, as applicable, the rear or side lot line and the eventual curb location of the street. Landscape design for this area shall be submitted by the subdivider at the time of, as applicable, minor subdivision plat or final plat, and will meet the following criteria:

- (a) The design shall be dry land based following xeriscape design principles. No irrigated turf will be permitted without a maintenance district or owners' association committed to perpetual maintenance.
- (b) Plant material location and spacing will vary by the specifics of the proposal but will be calculated as at least one deciduous street tree, one evergreen tree and five shrubs for each 50 feet of lot frontage along the collector or arterial street and at least 70 percent living ground cover after the third growing season. Plant materials shall conform to the requirements of the site development standards of the zoning regulations.
- (c) If a privacy fence adjacent to the rear lot lines is proposed, it shall be constructed by the subdivider to assure a consistent appearance.
- (d) The subdivider shall provide for maintenance of the landscape area for no less than five full years from installation by the subdivider, a property tax supported maintenance district, or an owners' association. This obligation and the city's recourse if maintenance is not performed shall be set forth in a written agreement with the city or a plat note in a form approved by the city.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.030 Type B subdivision standards.

(1) Streets shall be fully constructed to the subdivision boundary. Local streets shall not be extended to the boundaries of adjacent existing or potential residential areas, or connected to streets intended for predominantly residential traffic, unless the necessity of the connection is demonstrated by a traffic study submitted by the applicant and approved by the city engineer.

(2) The subdivision plat shall specifically designate all areas proposed for emergency and service vehicle circulation.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.040 Flag lots.

(1) Flag lots will only be allowed when the approving authority determines that they are necessary to optimize the efficient use of land, and in conformance to the following regulations:

- (a) Type A subdivisions utilizing flag lots may be permitted when the following criteria are met:
 - 1. The minimum width of the flag pole portion of the lot, including its frontage, shall be 20 feet.
 - 2. Access to flag lots shall be from a street classified as a local street.
 - 3. A cul-de-sac shall be platted in lieu of three or more adjacent flag lots.
 - 4. The use of the flag lots is necessary to the effective development of the land and that the proposed design poses no hazard to public safety in that:
 - a. Access is clearly defined and does not create access conflicts with adjacent lot drive(s) with the street.
 - b. There are no visual obstructions at the intersection of the flag lot drive(s) with the street.
 - c. The length of the flag lot drive does not negatively impact clear addressing or visibility from an emergency or service vehicle.

(b) Type B subdivisions utilizing flag lots are permitted when the following criteria are met:

1. The minimum width of the flag pole portion of the lot, including its frontage, shall be 30 feet.
2. The use of flag lots is necessary to optimize the development of the land; and that the proposed design poses no hazard to public safety in that:
 - a. Access is clearly defined and joint use of traffic controls is shown where appropriate.
 - b. There are no visual obstructions at the intersection of the access point(s) and the street.
 - c. Adequate emergency and service vehicle access is provided.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.050 Hillside standards.

(1) Subdivisions or portions of subdivisions where the average slope is in excess of 15 percent grade shall also conform to the following standards:

- (a) Except with regard to the uphill house form type set out in section 18.29.03.003, minimum lot sizes and frontages for type A subdivisions shall be increased by a minimum of 25 percent over the requirements of the zoning regulations. In no case shall a single-family detached residential lot be less than 9,000 square feet.
- (b) Utility and/or drainage easements shall be increased in width as required by the city engineer to assure safe access by service vehicles.
- (c) Lot design must allow driveway access to meet the engineering regulations.

(2) Drainage and grading plans for hillside lots shall indicate lot specific grading and water flow requirements. The subdivision plat shall include a note indicating that building permit

applications for lots that are subject to hillside standards shall include a final grading plan for city approval prior to building permit issuance. The subdivision plat shall specify which lots require the lot specific grading plan by the use of a consistent symbol.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.060 Easements.

(1) All utility easements shall be designed to minimize the encumbrance to the lot, and to facilitate maintenance. Utility easements that are dedicated to the city that contain sanitary sewer, stormwater, or water lines shall be accessible by city maintenance vehicles at all times.

(2) Drainage areas and easements shall be established in the configuration required by the city engineer based on the approved drainage report as required by the engineering regulations.

(3) Emergency and service vehicle access easements shall be not less than 20 feet in width and with a 25-foot turn radii.

(4) The holder, purpose, and use of all easements and maintenance responsibilities therefor shall be clearly delineated by note on minor subdivision and final plats; provided, however, that the city retains the right to require the establishment of an easement by separate agreement.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.070 Mitigation of highway noise.

(1) *Generally.* The standards set out in this section apply to all parts of subdivisions that are located adjacent to or within 500 feet of the right-of-way for I-70, C-470, US 6, State Highway 58, and State Highway 93, provided that the aggregate area of the proposed subdivision is larger than 25,000 square feet. The requirements of this section may be waived or reduced by the city council at a public meeting based upon the general criteria contained in section 17.10.045 or the presentation of evidence that compliance with the standards is technically or economically infeasible. The construction and maintenance of highway noise mitigation

measures necessary to meet these standards shall be included in the subdivision development agreement required by this title.

(2) *Single household residential standards.* The maximum outdoor DNL for single-family residential (type A) subdivisions shall not exceed 55 dB(A). This standard is to be applied at the primary outdoor use area, typically a ground level backyard. If there is no backyard or common outdoor use area serving the development, then the city may consider a large outdoor deck, situated on the main living level, as the primary outdoor use space.

(3) *Multifamily residential standards.* The maximum outdoor DNL for multifamily residential (type B) subdivisions shall not exceed 55 dB(A). This standard is to be applied to the primary outdoor use area, typically the backyard or common outdoor use area. The standard does not apply to the small balconies or decks associated with multi-unit developments provided there is a common outdoor use area within the development.

(4) *City parks, school playgrounds.* The maximum outdoor DNL for city parks and school playgrounds shall not exceed 55 dB(A).

(5) *Commercial shopping areas.* The outdoor DNL for commercial shopping areas shall not exceed 65 dB(A).

(6) *Industrial areas.* The maximum outdoor DNL for industrial areas shall not exceed 70 dB(A).

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.40.100 Streets, access and transportation.

(1) The subdivision design shall conform to the pattern of streets designated in the thoroughfare plan.

(2) Local streets shall serve as connections for private property to collector streets.

(3) Except as specifically provided in chapter 18.29, all lots or tracts in type A subdivisions shall have at least one boundary that is coterminous with street right-of-way line.

(4) Except as specifically provided in chapter 18.29, all lots or tracts in type B subdivisions shall have a permanent means of access to a public street.

(5) All rights-of-way and streets shall conform to the minimum specifications of the engineering regulations. Increased right-of-way width may be required where a traffic study approved by the city engineer determines the public need reasonably necessitates the increased rights-of-way width.

(6) Proposed private streets are subject to approval by the city engineer, and must conform to the construction standards for public streets, as listed in the engineering regulations.

(7) The circulation pattern for the subdivision shall be designed to take advantage of the topography of the site, and should function in a logical manner and should be designed to accommodate the circulation demands of the proposed development based on the proposed land uses and external demands to be placed on the land. The circulation system should also take into account, when appropriate, various modes of transportation, e.g., pedestrian, bicycle and buses, etc. Access must be adequate for emergency and service vehicles. The following criteria shall apply:

- (a) Proposed continuous streets shall be in alignment with existing, planned or plat-
ted streets with which they are to connect unless geographic conditions or design consideration indicate otherwise. The center line of streets not in alignment shall be offset at least 100 feet;
- (b) Proposed streets shall be extended to the boundary lines of the land to be subdivided, unless prevented by topography or other physical conditions, or unless the city determines that such extension is not necessary or desirable for the coordination of the proposed street layout with existing or future development of adjacent tracts;
- (c) Where required by the approving authority, a temporary connection to another street shall be provided by the subdivider.

All dead end streets shall be provided with a turnaround in conformance with the requirements of the engineering regulations. Temporary portions of a turnaround shall be labeled as tracts to facilitate the ultimate vacation of same;

- (d) Proposed streets shall intersect one another as nearly at right angles as topography and other limiting factors of sight distance and design permit;
- (e) Long straight residential streets, conducive to high speed traffic, shall be minimized;
- (f) All sidewalk construction shall conform to the engineering regulations of the City of Golden, including, but not limited to, street, sidewalk, and drainage specifications as adopted by the city council, including all addendums and amendments thereto.

(8) The following design principles and standards shall apply to subdivisions adjacent to existing or proposed principal arterials and freeways:

- (a) Residential street design shall mitigate the impact of heavy traffic, and minimize the interference with traffic on such principal arterials and freeways.
- (b) Frontage roads are not a desired design. They will only be permitted when required by the city engineer, and shall conform to the standards specified in the engineering regulations.

(9) All streets shall be located such that grades, curves and sight distances will facilitate proper drainage and/or safety for vehicles and pedestrians, according to standards specified in the engineering regulations.

(10) Where access to adjacent streets must be restricted or prohibited for traffic safety reasons, an access control line (A.C.L.) shall be delineated on all plats and dimensioned as to location and length at locations specified by the city. Such A.C.L.s shall be designated by the letters A.C.L. and be consecutively numbered. Access rights across such lines shall be dedicated to the city.

(11) Pedestrian, bicycle and trail rights-of-way and/or open space access rights-of-way or easements, shall be dedicated when such rights-of-way or easements are indicated by the thoroughfare plan or open space master plan, and made necessary by the subdivision. Additional rights-of-way or easements for access to parks, schools, shopping areas or other public facilities may be required by the approving authority when such paths are made necessary by the subdivision.

(12) The naming of streets within new subdivisions shall conform to the Golden street grid or the metropolitan grid system as shown on the Official Jefferson County Base Maps, as appropriate, unless an alternate method is approved by the approving authority.

(13) As a part of the required street and non-vehicular system improvements, public transit stop improvement shall be provided adjacent to streets at appropriate locations. These improvements may include bus pullouts, concrete waiting platforms, benches, and bus shelters. Any improvements may require approval by RTD as part of the referral process.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Chapter 17.50

SUBDIVISION DEVELOPMENT

17.50.000 Construction and development; public improvements; oversizing.

(1) The construction and development of subdivision improvements shall comply with the requirements of this chapter, the city's engineering regulations, and other technical standards promulgated by the city engineer from time to time.

(2) As a condition to any approval required under this title, the city may require the construction or installation of such public improvements as the city may deem are reasonably necessary to address such impacts as may be caused by a proposed development on public facilities or services.

(3) Subject to the cost recovery provisions set forth in a development agreement, the city may also require, as a condition to any approval required under this title, the construction or installation of such other or additional public improvements as the city may deem are reasonably necessary for the orderly and logical extension of city facilities and services within the city as a whole; provided, however, that the development agreements shall include a cost-recovery provision setting forth subdivider's rights to reimbursement from other property owners that will later derive a benefit from such improvements.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.010 Utilities.

(1) All public and private utilities shall be designed and constructed in accordance with the engineering regulations of the City of Golden.

(2) Utilities in all new subdivisions shall be placed underground.

(3) Water facilities:

- (a) The subdivider shall be responsible for the extension and/or creation of water transmission facilities to the proposed subdivision to provide sufficient water for potable use, landscape watering, fire suppression and other uses permitted by the zoning classification of the land.
- (b) The water system shall be designed and installed by the subdivider in accordance with the city's engineering regulations.
- (c) Water lines shall be installed to serve each subdivision lot.
- (d) All nontributary groundwater shall be dedicated to the city.
- (e) The subdivider shall install and maintain the exterior fire suppression system, including fire hydrants, for the subdivision in accordance with the requirements of the city, such maintenance to continue until final acceptance by the city.
- (f) The fire suppression system design shall be detailed in the construction drawings submitted to the city.

(4) Sewage facilities:

- (a) The subdivider shall be responsible for the extension and/or creation of sanitary sewerage facilities to the proposed subdivision which are sufficient for uses permitted by the zoning classification of the land.
- (b) The sanitary sewerage system shall be designed and installed by the subdivider in accordance with the requirements of the city engineering regulations.
- (c) Sewerage lines shall be installed to serve each subdivision lot.

(5) Other utility facilities:

- (a) All new utility lines, including, but not limited to, gas, electric power, fiber optic, telephone, and cable television lines shall be located underground throughout the subdivision.
- (b) Existing overhead utility lines shall be buried with the exception of major transmission line facilities.
- (c) Utility appurtenances, where feasible, shall be located underground and away from public activity areas such as parks, playgrounds and schools within the subdivision.
- (d) If utility appurtenances must be located above ground in public activity areas such as parks, playgrounds and schools or in areas subject to public assembly, they shall:
 - 1. Be located in areas where they are visually unobtrusive; and
 - 2. Sufficiently away from public rights-of-way to avoid potential danger to the public.
- (e) Underground service connections to the street property line of each platted lot and other utility improvement required by the city and/or utility provider shall be installed and maintained at the subdivider's expense until a new property

owner or owners association assumes the perpetual maintenance responsibilities for the utility improvement.

- (f) The utility plans shall be prepared by the subdivider in coordination with the utility provider and the city and shall adhere to all requirements of this chapter, the city, and the utility provider.

(6) Stormwater facilities: The subdivider shall be responsible for the planning and construction of all on-site and off-site stormwater improvements as necessary to serve the subdivision, and stormwater quality control measures as required by chapter 13.30.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.020 Installation of utility facilities.

Services from public utilities, water mains and from sanitary sewers shall be made available for each lot in such manner as will obviate the necessity for disturbing the street pavement, gutter, curb, and sidewalk, when service connections are made. Exceptions to this provision shall be granted only by the city engineer. The subdivider shall make the necessary advance arrangements with city officials and public utilities, including arrangement for construction for installation charges, in order to achieve this result.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.030 Subdivision monumentation.

(1) Surveying, staking and monumenting of the subdivision shall comply with the provisions of Articles 51 and 53 of Title 38, Colorado Revised Statutes.

(2) Concrete and metal monuments depressed below street grade with cast iron ring and cover, of a type approved by the engineering regulations, shall reference intersections of street center lines.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.100 Development agreement.

(1) In conjunction with approval of a final plat by the city council and, if required by the director, approval of a minor subdivision plat by

the director, the subdivider shall enter into a development agreement with the city providing for the construction and/or provision of public improvements and services as contemplated by subsections 17.50.000. The agreement shall require the subdivider to construct or improve, as applicable, streets, thoroughfares, public ways, drainage structures, water and sanitary sewer systems, recreational facilities, and stormwater quality improvements both within and outside the subdivision. No public improvement work shall be commenced until improvement plans and profiles have been approved by the city engineer. Improvements shall be installed to permanent line and grade to the satisfaction of the city engineer and in accordance with the engineering regulations. Subject to section 17.50.000(b) and (c), public improvements which the subdivider shall construct or otherwise provide shall include, but not be limited to the following:

- (a) Grading, paving, drainage, drainage structures, revegetation and construction of stormwater quality controls necessary for the proper use and drainage of streets, highways and public ways and/or for the public safety;
- (b) Curbs and gutters;
- (c) Street name signs;
- (d) Sidewalks and/or trail improvements;
- (e) Fire hydrants, placed in accordance with the engineering regulations;
- (f) Water system and connections for each lot;
- (g) Traffic control devices;
- (h) Right-of-way landscaping;
- (i) Sanitary sewer facilities and connections for each lot;
- (j) Street lighting facilities;
- (k) Railroad crossings, as necessary to provide access to or circulation within the proposed subdivision, including the authorization for the establishment and improvement of such crossings;
- (l) All monuments as required by the engineering regulations and Colorado law;

- (m) Landscape improvements to be accepted for maintenance by the city; and
- (n) Recreational facilities.

(2) The development agreement may address requirements for the installation and maintenance of private improvements that will not become the maintenance responsibility of the city, such as landscaping in or adjacent to a public right-of-way or landscape and/or buffering improvements between the subdivision and adjacent land uses, or permanent privately owned and maintained stormwater quality facilities. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.105 Restriction of conveyance and certificates of occupancy.

In order to secure the performance of the work to be done by subdivider and except as may be otherwise set forth in the development agreement approved by city council, there shall be no conveyance, sale, or transfer of title of the entire subdivision, or any individual lot, lots, tract, or tracts of land within the subdivision nor will the city issue any certificates of occupancy for any lots therein until all improvements which are the subject of the development agreement are fully completed and initially accepted by the city for public improvements and acknowledged by the city for private improvements, and the city issues a certificate of compliance releasing this prohibition. The foregoing notwithstanding, the subdivider may convey to a single subdivider 100 percent of the lots in the subdivision or 100 percent of the lots within an approved phase of the subdivision with the prior written consent of the city manager; provided, however, that such conveyance shall be subject to all provisions of the development agreement and this section, including restrictions upon subsequent conveyances and restrictions upon certificates of occupancy. Restrictions on conveyances and certificates of occupancy shall be noted on the final subdivision plat and, if applicable, the minor subdivision plat. This provision shall not restrict the subdivider from accepting financial deposit for lot reservations nor shall it restrict the issuance of building permits upon lots held by the subdivider. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.110 Contract security.

The subdivider shall provide contract security to assure completion of the subdivider's obligations as set forth in the development agreement. The form and issuing entity of the contract security shall be approved by the city manager. The contract security required for the development agreement shall be 115 percent of the city engineer's estimate of the total cost of the required improvements. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.120 Initial acceptance of public improvements.

Upon completion of the public improvements the subdivider shall submit to the city "as built" drawings of the improvements, proposed documents of conveyance, certified cost estimates of the public improvements, and a statement certifying that the improvements are fully complete, have been fully paid for, and the subdivider has fully paid all persons or entities having furnished labor or materials for the design and construction of the improvements (such statement to include copies of lien waivers). Upon inspection and finding of satisfactory completion of the improvements in compliance herewith and all applicable standards and ordinances of the city, and upon submission and approval of an acceptable warranty performance guarantee, the city shall issue a "certificate of initial acceptance" to the subdivider which shall commence the running of the warranty period. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.125 Acknowledgement of private improvements.

Upon completion of any improvements required by the development agreement other than public improvements, the subdivider shall request a final inspection by the city of said improvements. Upon inspection and finding of apparent completion of the private improvements in compliance herewith the subdivision development agreement and all applicable standards and ordinances of the city, and upon submission and approval of

an acceptable warranty performance guarantee, the city shall commence the running of the warranty period for private improvements. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.130 Warranty.

(1) The subdivider shall warrant that all improvements are free from defects, including, but not limited to, defects of materials, workmanship or design, and that the improvements otherwise fully comply with the applicable approved plans and profiles, and city standards and specifications.

(2) A warranty performance guarantee shall be posted and shall be equal to 20 percent of the total cost of the improvements, including landscape improvements, as certified to the city. The warranty guarantee shall be in such form and issued by such institution as provided in section 17.50.110 of this title. The warranty guarantee shall provide security for the cost which may be incurred in repairing and/or replacing improvements during the warranty period of one year following initial acceptance by the city, and in defending or removing claims of unpaid laborers, material suppliers and/or subcontractors who may attempt to assert a lien upon the property. The warranty performance guaranty shall not be subject to reduction.

(3) In the event that any substantial repair or replacement is required to any of the improvements during the warranty period and such repair or replacement is not timely made by the subdivider upon notice of defect or in any event before expiration of the guaranty period, the city, may, in addition to any other legal remedies available to the city:

- (a) Extend the warranty period for up to one year following initial approval of the completed repair or replacement; and/or
- (b) Require that the subdivider adjust the amount or term of the warranty guarantee as may be appropriate; and/or
- (c) Call the warranty guarantee and, at the city's discretion, secure repair or replacement of the nonconforming improvements; and/or

- (d) Order denial or suspension of building permits, utility services or certificates of occupancy outstanding until repair or replacement of any nonconforming improvements have been performed. (Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.140 Procedure for final acceptance of public improvements.

No earlier than 60 days prior to the expiration of the warranty period, the subdivider shall submit a written request for final acceptance of the public improvements. The city, shall conduct a final inspection of the improvements and if such improvements appear to fully conform to the subdivision development agreement and the applicable city standards and specifications, and/or all repairs, if any, that are needed, have been made to bring the same into such conformance, then the city shall issue a "certificate of completion" and certified final acceptance of the public improvements and the city shall release, the performance and/or warranty guarantee provided no lien claims or statements have been filed with respect to the project. Neither final acceptance, nor release of the performance or warranty guarantee, shall relieve the subdivider from the obligation to construct the improvements and warrant them as provided herein.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.50.145 Procedure for completion of warranty performance guarantee period for private improvements.

No earlier than 60 days prior to the expiration of the warranty period, the subdivider shall submit a written request for release of the guaranty for private improvements. The city, shall conduct a final inspection of the improvements and if such improvements appear to fully conform to the agreement and the applicable standards and specifications, and/or all repairs, if any, that are needed, have been made to bring the same into such conformance, then the city shall release, the performance warranty guarantee, provided no lien claims or statements have been filed with respect to the project. Release of the performance warranty guarantee shall not relieve the subdivider from the obliga-

tion to construct the improvements and warrant them as provided herein. Neither the city's initial acknowledgement of completion of private improvements, nor the release of the warranty performance guarantee for private improvements shall create a liability of, or cause action against the city by third parties.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Chapter 17.60 DEDICATIONS

17.60.000 Public dedications.

(1) As a condition to any approval required under this title, the city may require the dedication of public roadways or rights-of-way for public access, utility easements and other lands for public use as the city may deem are reasonably necessary to address such impacts as may be caused by a proposed development on public facilities or services.

(2) The city may also require, as a condition to any approval required under this title, the dedication of such additional roadway, public access rights-of-way, and easements as the city may deem are reasonably necessary for the orderly and logical extension of city facilities and services within the city as a whole; provided, however, that the development agreement shall include a cost-recovery provision setting forth subdivider's rights to reimbursement from other property owners that will later derive a benefit from such dedications.

(3) Subdivisions of property shall dedicate or reserve land for public purposes as described in this title, except to the extent previously required and satisfied in conjunction with an annexation or zoning action.

(4) The director may require a title commitment, physical inspection, phase 1 environmental site assessment, and where indicated by a phase 1 environmental site assessment, a phase 2 environmental site assessment, in order to verify that the title and physical conditions of property to be dedicated are acceptable to the city.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.010 Streets.

Street and any other vehicular or pedestrian public right-of-way shall be dedicated to the city free and clear of liens and encumbrances.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.020 Drainage.

Adequate easements or fee ownership rights, as delineated by the subdivider's engineer and approved by the city engineer, shall be dedicated to the city free and clear of liens and encumbrances for the high hazard floodway of the 100-year floodplain as delineated by the urban drainage and flood control district or the applicant's drainage report, as approved by the city engineer for any water course, stream, creek or natural drainage course which may traverse the subdivision. Dedication of easements for secondary storm drainage channels shall be provided, as required, to provide adequate drainage or stormwater detention facilities.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.030 Public sites.

Reservation of sites for schools, fire stations, pump stations and similar public uses, upon recommendation from the public agency therein involved, and approved by the city, shall be delineated on the final subdivision plat and reserved for public purchase. The form and terms of said reservation shall be determined by the public agency involved in consultation with the city and subdivider.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.040 Parkland dedication requirements.

(1) For conventional subdivisions, the subdivider shall dedicate to the city free and clear of liens and encumbrances, land within the subdivision in an amount equal to five percent of the area of the subdivision for public park and recreation purposes.

(2) For minor subdivisions, and for conventional subdivisions in which the director determines that there is insufficient acceptable land available to satisfy the dedication requirement based

upon the standards in section 17.60.050, the subdivider shall pay a cash fee in lieu of dedication.

- (a) This cash-in-lieu of dedication fee will be calculated at the time of payment based upon the fair market value of the land which was otherwise to be dedicated. A per square foot land value will be determined by the city by means of an appraisal, if available, or by comparing the cash value of comparably zoned land in the city. The cash-in-lieu fee shall be collected prior to the recording of the final plat, or as provided in the development agreement.
- (b) Cash-in-lieu monies shall be deposited in a city account to be used solely for the purchase or improvement of parks and recreation facilities.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.050 Parkland standards.

(1) Except where a fee-in-lieu is approved by the director pursuant to section 17.60.040(2), the parks and recreation advisory board shall review each subdivision prior to a decision being made on the subdivision by the approval authority. The board's comments will be transmitted to the approval authority for consideration.

(2) The following criteria apply to land to be dedicated for park purposes:

- (a) The area dedicated shall be no less than three contiguous acres unless an addition to an existing park.
- (b) It shall not be more than ten percent average slope.
- (c) Wetlands, land within a floodway and/or drainage detention areas will not count toward the required acreage, unless otherwise acceptable to city council.
- (d) The dedicated land must be consistent with the comprehensive plan.

(3) Notwithstanding subsection 17.60.050(2) above, undisturbed natural open space areas may be acceptable for a portion of the dedication requirement as publicly owned open space. The following criteria apply:

- (a) Open space areas will be applied at the ratio of four acres of open space for each one acre of active parkland dedication credit received.
- (b) The maximum credit will equal 25 percent of the dedication requirement.
- (c) The open space area must consist of ten or more contiguous acres, and should not include any disturbed lands, improved channelized drainage ways, or detention or retention ponds.

(4) The ownership and maintenance of all park, open space and any other undeveloped land within a development will be specified in the final plat, or development agreement as appropriate.

(5) Except as required in the development agreement, or outlined below, park areas to be dedicated to the city shall be graded by the subdivider to their design rough grade as a part of any overlot grading of the subdivision. Additionally, vegetative cover shall be provided to ensure stabilization and prevent erosion until finish grading and park development occurs. These requirements may be waived by the city manager to accommodate timing of park improvements, or modified through agreements with the subdivider and city, acting through the city manager. In the event of an agreement with the city to accept the park without grading, the land to be dedicated to the city shall be preserved and protected during the development process. The subdivider shall not disturb the topsoil or vegetation on the land during the development process unless approved in advance by the city. If the topsoil or vegetation is damaged or disturbed, the city may require the subdivider to pay to the city the cost of restoring such vegetation and topsoil.

(6) If there is a land dedication requirement for a school site development, that dedication may fulfill up to 25 percent of the city's park dedication requirements when the school site to

be dedicated is contiguous to the parkland, and if an intergovernmental agreement between the city and the school district, assuring public access satisfactory to city council is executed. Only the school land devoted to usable play area may be counted toward the city's park dedication requirement.

(7) Privately held recreational lands or facilities will not be considered in lieu of parkland dedication requirements.

(8) City council in its sole discretion, may accept dedication in an area outside of the subdivision in-lieu of dedicating land within the subdivision.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

17.60.060 School dedication.

(a) When requested by the Jefferson County School District, type A subdivisions within which residential uses are anticipated shall dedicate land equal to four acres per 1,000 additional population generated by the subdivision. Land dedications shall be made to the city in fee-simple, to be transferred to the school district upon designation of funding for a school construction project.

(b) At the option of the school district, a cash fee-in-lieu of dedication may be substituted according to the provisions of subsection 17.60.040(2) above. Such cash in lieu fee shall be deposited by the city in a separate account to be transferred to the school district upon designation and funding of a school construction or improvement project serving the development. Calculation of population shall be based upon an assumed three persons per single-family dwelling and two persons per multifamily dwelling.

(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

Title 18

PLANNING AND ZONING

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Chapter 18.04 DEFINITIONS

18.04.010 Grammar.

When not inconsistent with the context, words used in the present tense include the future; words in the singular number include the plural number; words in the plural number include the singular number; and the masculine includes the feminine.

(Ord. 682, § 1(1), 1973)

18.04.020 Definition of terms.

For the purpose of this title, the below listed terms and words shall have the meaning ascribed to them herein.

Accessory building. "Accessory building" means a detached building, subordinate in area to the main building, the use of which is customarily incidental to that of the main building or to the main use of the land and which is located on the same lot with the principal building or use.

Accessory dwelling unit, residential. "Accessory dwelling unit, residential" means a secondary dwelling unit either within a structure containing an existing single-household detached dwelling, or in a separate accessory structure on the same lot as the principal dwelling, for use as a dwelling unit, as defined by this chapter.

Accessory use. "Accessory use" means a use which:

- (1) Is subordinate (in area and intensity) to and serves the principal building or use; and
- (2) Is subordinate in area, extent and purpose to the principal building or use served; and
- (3) Contributes to the comfort, convenience or necessity of occupants of the principal building or use served.

Adult. "Adult" means any person 18 years of age or older who is not a dependent.

Adult entertainment uses. See definition in section 4.60.010, business regulations for adult entertainment.

Affordable for-sale housing unit. In general, "affordable for-sale housing unit" means a for-sale dwelling unit that could be purchased by a household with an annual income of at or below 100 percent of AMI (or other fraction of AMI as may be specifically identified), for which the monthly mortgage payment is affordable because it does not exceed 30 percent of the household's monthly income, and as to which resale price is limited by an affordable housing deed restriction.

Affordable housing deed restriction. "Affordable housing deed restriction" means:

With respect to affordable for-sale housing units, a deed restriction in a form approved by the city attorney that is enforceable and releasable only by the city, and that limits the resale price of the affordable for-sale housing unit such that the unit continues to qualify as affordable for-sale housing after the initial sale of the affordable for-sale housing unit.

With respect to affordable rental housing units, a deed restriction in a form approved by the city attorney that is enforceable and releasable only by the city, and that ensures that the affordable rental housing units continue to qualify as affordable rental housing units after the recordation of the affordable housing deed restriction.

Affordable housing unit. "Affordable housing unit" means an affordable for-sale housing unit or an affordable for-sale rental housing unit. [Note: This definition does not apply to chapter 18.70 and sections 18.40.350 and 18.40.724. For those provisions, see definition of "dwelling unit, affordable", *infra*]

Affordable rental housing unit. "Affordable rental housing unit" means rental housing affordable to a household with an annual income of at or below 60 percent AMI (or other fraction of AMI as may be specifically identified), and that costs the household less than 30 percent of its monthly income.

Agricultural use. "Agricultural use" means the cultivation of crops for personal or commercial use.

Alley. "Alley" means a minor right-of-way or easement for motor vehicles that gives a primary or secondary means of access to the back or side of lots or parcels that otherwise abut a street or are part of a clustered subdivision. The term "alley" does not include the terms "street," "road," or "highway."

Area, minimum lot. "Minimum lot area" means the total area within the property lines of the lot, excluding adjacent streets.

Area median income ("AMI"). "Area median income" or "AMI" means the median household income of households of a given size in the City of Golden, or if unavailable, Jefferson County, or if unavailable, the metropolitan statistical area encompassing the City of Golden, as calculated and published for a given year by the United States Department of Housing and Urban Development.

Assisted living or congregate care. "Assisted living or congregate care" means a special combination of housing, supportive services, personalized assistance, and/or health care designed to respond to the individual needs of those who need help with activities of daily living. The facility may have a central and/or private kitchen, dining, recreational, and other facilities, with separate bedrooms or living quarters, where the emphasis of the facility remains residential.

Attached wall building. "Attached wall building" means any two household or multiple household dwelling unit building that share a common or attached wall between conditioned space.

Backyard chicken(s). "Backyard chicken(s)" means any female breed of chicken, excluding roosters and all other fowl or poultry.

Bar, tavern, or nightclub. "Bar, tavern, or nightclub" means a business that sells alcoholic beverages for on-premises consumption, and/or evening entertainment such as live music, comedy acts, a floorshow, or dancing. The use may include tables and chairs but does not have fixed theater-style seating. The use may include the sale of light snacks (chips, pretzels, nuts, etc.) and sandwiches (prepackaged pizzas, burritos,

subs, etc.) as required by the applicable liquor license (which may be any of the following classes of state alcohol licenses pursuant to C.R.S. § 12-47-401 et seq.: beer and wine, hotel and restaurant, tavern, vintner's restaurant, or lodging and entertainment facility). The phrase "bar, tavern, or nightclub" does not include the phrase "sexually-oriented business" or the temporary sale of alcohol for on-premises consumption.

Basement. "Basement" means any portion of a building that measures less than six feet above finished grade.

Battery energy storage system. "Battery energy storage system" means an electric storage resource capable of receiving electrical energy from the power grid and storing it in batteries for later provision of electrical energy back to the power grid, with a capacity of 150 MWh or greater. Battery energy storage systems with a capacity of less than 150 MWh are classified as "utilities, minor."

Bed and breakfast. "Bed and breakfast" means the use of a residential house or house-type structure as a place of overnight accommodation, in which all of the following occur:

- (1) Five or fewer guest rooms are rented to guests for daily and/or weekly terms, but not for more than 30 days;
- (2) Breakfast or meals are provided to guests; and
- (3) The operator resides on the premises.

Bee. "Bee" shall mean any stage of the common domestic honey bee, *Apis mellifera* species.

Beekeeping. "Beekeeping" shall mean the placement or maintenance of bees, bee colonies, or bee hives.

Boarding and rooming house. "Boarding and rooming house" means a commercial lodging establishment where, for direct or indirect compensation, lodging, without kitchen facilities in individual rooms or units, is offered for one month or more for one or more boarders or roomers.

Brew pub, distillery pub, or limited winery. "Brew pub, distillery pub, or limited winery" means:

- (1) A brew pub as defined in C.R.S. § 44-3-103(5);
- (2) A distillery pub as defined in C.R.S. § 44-3-103(14);
- (3) A limited winery as defined in C.R.S. § 44-3-103(25);
- (4) A microbrewery with production quantities not to exceed 15,000 barrels of malt liquor per year;
- (5) A microdistillery with production not to exceed 200 barrels of finished product per year; or
- (6) A microwinery with production of wine not to exceed 1,000 cases per year.

Building. "Building" means any enclosed permanent structure with one or more floors and a roof, which is built for the shelter or enclosure of persons, animals, chattels or property of any kind.

Building bulk. "Building bulk" means the dimensional size or mass of structure(s) or building(s).

Building envelope area ("BEA"). "Building envelope area means a measurement technique that divides a lot into different areas, typically front, middle, and rear. Each BEA is subject to a set of standards (e.g., setbacks, building height, and lot coverage) that is independent of the other BEAs, for the purpose of controlling the massing and scale of development.

Building height. "Building height" means the vertical distance from the grade to the highest point of the roof surface. For the purpose of this definition, grade means the average of the finished ground level at the center of each wall of a building containing ten percent or more of the combined perimeter length of all walls of the building, measured either ten feet away from the building, or at the property line if the building is less than ten feet from the property line. If any two points used in the calculation of grade differ by 12 or more feet, grade shall be defined as an

elevation five feet higher than the lowest point. Building height limitations of this title shall not apply to church spires, belfries, cupolas, chimneys, ventilators, skylights, parapet walls, roof mounted solar or photovoltaic panels, or cornices without windows provided that none of such features extend more than five feet higher than the zone district height limit. Building height limitations of this title shall also not apply to antennas or necessary mechanical appurtenances usually carried above the roof level, provided that none of the above features extend more than ten feet higher than the zone district height limit.

Building, principal. "Principal building" means a building in which is conducted the main or principal use of the lot on which said building is situated.

Building thermal envelope. "Building thermal envelope" means the exterior walls, including basement walls, floor, roof and any other building element that enclose conditioned spaces.

Bus or taxi terminal, on-demand transportation dispatch. "Bus or taxi terminal, on-demand transportation dispatch" means an off-street premises that is used for the parking or storage of buses or taxis and the loading or unloading of passengers.

Business services. "Business services" means a business that is primarily engaged in providing support services to other businesses, such as advertising and mailing, commercial photography, janitorial services, and temporary labor services. Uses that are included within the phrases "office, general," "light industry," or "retail sales and services" (e.g., attorneys, accountants, contractors, or office supply shops), are not included within the phrase "business services."

Campground or RV park. "Campground or RV park" means an area of land developed and intended to provide short-term accommodations to guests in recreational vehicles or tents.

Cemetery. "Cemetery" means land used or intended to be used for the interment of the remains of human bodies or pets, whether such interment is above ground or below ground. The term "cemetery" includes graveyards, mausoleums, tombs, and columbariums.

Cluster development. "Cluster development" means grouping the same number of units allowed in a given subdivision or zoning area into an area having lots smaller than the normal minimum lot size, with the remainder of land available as common open space and used for the preservation of its natural features.

Clustered subdivision/cluster. "Clustered subdivision (or cluster)," for the purposes of chapter 18.29, means a compact residential, commercial, or mixed-use development of a grouping of buildings (including, for example, a grouping of several one household and two-household dwelling units) using one or more form types, with each principal building being situated on its own lot and separate tracts provided for common courts and, if applicable, shared parking of vehicles. [See illustration 0.2.1.]

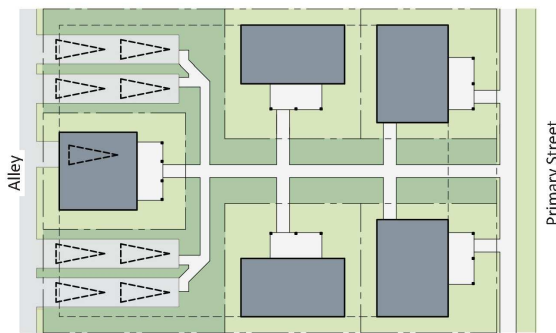


Illustration 0.2.1

An example of five cottages around a common court (area highlighted with darker green) that provides access from the cottages to the street and to the parking along the alley.

College and university uses. "College and university uses" means teaching, research, administrative, residential and recreational uses associated with an institution of higher learning that awards under graduate and/or professional or graduate degrees.

Commercial equestrian facilities. "Commercial equestrian facilities" means a boarding stable, riding school or academy, riding arena, or exhibition facility for horses, donkeys, or mules, but not facilities that are associated with residential or agricultural uses and solely for the private

use of the residential or agricultural landowner or lessee. Commercial equestrian facilities typically include barns, stables, corrals, riding arenas, or paddocks.

Commercial lodging. "Commercial lodging" means a building or group of buildings in which, in the aggregate, six or more rooms are used to provide overnight accommodations. The use may also include services such as meeting rooms, business centers (personal computers and printers for guest use), food service for guests, personal services for guests such as spas or salons, recreational facilities such as swimming pools and fitness centers, ballrooms, exhibit halls, and/or banquet rooms, provided that such services are subordinate to the use of the building or buildings for overnight accommodations.

Commercial vehicle. "Commercial vehicle" means:

- (1) Any motor vehicle, trailer, or semi-trailer that:
 - (a) Is designed or used to carry freight, other vehicles, equipment, passengers for a fee, or merchandise in the furtherance of any business enterprise; and
 - (b) Has a gross weight of more than 10,000 pounds; or
- (2) Any step van or truck that is designed for commercial moving or parcel delivery services;
- (3) Any truck that is used for mobile retail sales (e.g., ice cream, food trucks);
- (4) Any vehicle with more than four wheels that is used for business purposes;
- (5) Any trailer that is used to haul machinery, supplies, or equipment for business purposes (horse trailers, boat trailers, motorcycle trailers, RV trailers, and car trailers put to personal use are not included in the definition);
- (6) Any trailer that is used for commercial hauling (e.g., waste, junk, lawn clippings) or commercial moving services; or

- (7) Any vehicle that has permanently mounted outside brackets or holders for ladders, tools, pipes, or other similar equipment, unless such vehicle is used for on-call emergency services contracted by the city or other governmental entity.

Common court. "Common court" means a shared amenity among lot owners within a clustered subdivision. A common court may be used for open space and active or passive recreation or to provide pedestrian ingress and egress from interior lots to public right-of-way.

Common interest community. "Common interest community" is defined as set out in the Colorado Common Interest Ownership Act, C.R.S. § 38-33.3-101, et seq.

Community garden. "Community Garden" is a parcel of land where plants are grown and harvested by a non-profit organization or group of individuals. A community garden grows produce and ornamental plants for use by the non-profit and individuals who operate and maintain the garden.

Community scale manufacturing/maker-space. "Community scale manufacturing/maker-space" means a facility, generally open to the public, where tools and space can be rented for light manufacturing, processing, or assembly using wood-working, welding, ceramic kilns, or other tools at a scale for hobbies or small business on site.

Composting facility. "Composting facility" means a facility to which vegetative waste materials, such as lawn clippings, tree trimmings, weeds, and vegetable food scraps from more than one lot or parcel are delivered for composting. The phrase "composting facility" does not include processing of biosolids from wastewater.

Compound development compound. "Compound development (or compound)" means a residential, commercial, or mixed-use development of a grouping of buildings (including, for example a grouping of several one household and two-household dwelling units) using different form types, on one lot. Unlike a clustered subdivision, a compound is not subdivided into multiple lots. [See illustration 0.2.2.]

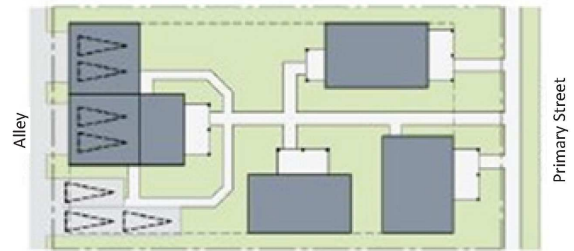


Illustration 0.2.2

An example of a four-cottage compound. The compound building form types permit cottages with set maximum floor areas to preserve and increase small cottage development.

Conditioned space. "Conditioned space" is an area, room or space that is enclosed within the building thermal envelope and that is heated or cooled, including attached garages whether or not such attached garage is directly heated or cooled.

Construction. "Construction" means non-agricultural land disturbing activities (but does not include ditch or road maintenance or minor landscaping or gardening projects) and the erection of buildings or installation of structures, improvements, or infrastructure on real property. As appropriate to the context, the term "construction" also refers to the thing constructed.

Construction vehicle. "Construction vehicle" means:

- (1) Any tracked vehicle used for construction, grading, or excavation, such as bulldozers, excavators, drilling machines for mining or driving piles, and comparable vehicles;
- (2) Any wheeled vehicle that is used for construction that uses off-highway tires, including loaders, graders, soil compactors, skidders, and comparable vehicles;
- (3) Dump trucks;
- (4) Cement mixer trucks; and
- (5) Bucket trucks.

Convenience lending. "Convenience lending" means:

- (1) A business engaged in providing short-term loans to individuals in exchange for personal checks or bank account access as collateral; or
- (2) A business that, for a fee, cashes checks, warrants, drafts, money orders, or other commercial paper serving the same purpose, but is not a state or federally chartered bank, savings association, credit union, industrial loan company, or retail store that is engaged primarily in the business of selling consumer goods.

Cottage industry and retail. "Cottage industry and retail" means a light manufacturing, assembly, or processing function that is appropriate for commercial contexts and may include retail to customers to participate in the process or sale of goods produced on site. Generally, activity is limited to 1,000 square feet of building area.

Covered balcony. "Covered balcony" means an outdoor covered space that extends from or is integrated into an upper story of a building, which is at least 50 percent open on each vertical elevation that does not abut the building wall. [See illustration 0.2.3.]



Illustration 0.2.3

Stacked covered balconies attached to the building is a common way to provide an outdoor private space for each dwelling unit in mixed-use buildings such as the ones shown above.

Covered walkway. "Covered walkway" means a pedestrian-use area that is not exposed to the sky, which has a cover (a ceiling) within 15 feet of

the ground surface. Examples of covered walkways include colonnades, arcades, or sidewalk or plaza areas that are sheltered by one or more awnings. [See illustration 0.2.4.]

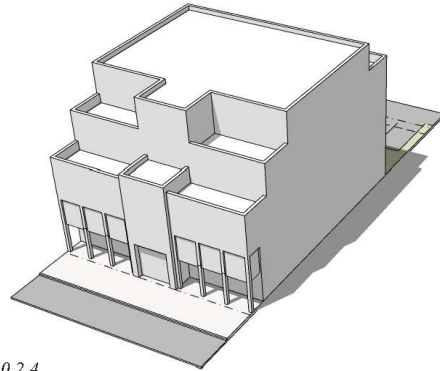


Illustration 0.2.4

An example of a building with a covered walkway on the first story in the form of an arcade.

Crematorium. "Crematorium" means a facility for the processing of corpses, human or animal, by burning to ashes or dissolution through chemical or other process. Crematoriums do not include establishments where incinerators are used to dispose of toxic or hazardous materials, infectious materials, or narcotics.

Data center. "Data center" means a building or predominant portion thereof that is used by telecommunications carriers, internet access providers, or internet service providers, in which equipment for telecommunications and data processing use (e.g., servers, data storage devices, switches, routers, and other comparable technology infrastructure) is concentrated and physically secured and where a significant portion of floor area and/or electrical capacity and resources are devoted to the data center use. And does not include extractive data mining processes. Equipment in a data center may be owned or operated by more than one entity. The phrase "data center" does not include the phrase "wireless telecommunications facility."

Day care center, adult or child. "Day care center, adult or child" means:

- (1) Adult day care center, which is a facility that is certified by the State of Colorado

to provide health and social services on a less than 24-hour basis to elderly, blind, or disabled adults.

- (2) Child day care center, which is a facility, by whatever name known, that is maintained for the whole or part of a day for the care of five or more children under the age of 16 years and not related to the owner, operator, or manager thereof, whether such facility is operated with or without compensation for such care and with or without stated educational purposes. The term includes: (i) facilities commonly known as "day care centers," "day nurseries," "nursery schools," "kindergartens," "preschools," "play groups," "day camps," "summer camps," "centers for children with intellectual or developmental disabilities" and (ii) facilities that provide 24-hour care for dependent and neglected children, and (iii) facilities for children under the age of six years with stated educational purposes operated in conjunction with a public, private, or parochial college or a private or parochial school, except that the term does not apply to any kindergarten maintained in connection with a public, private, or parochial elementary school system of at least six grades. Child care centers may be classified as either "small" (five to 12 children) or "large" (13 or more children).

dB. "dB" is an abbreviation for "decibel" which is a unit for measuring the volume of a sound, equal to 20 times the logarithm to the base ten of the ratio of the pressure of the sound measured to the reference pressure, which is 20 micropascals (20 micronewtons per square meter).

dB(A). "dB(A)" is the standard notation for the sound pressure level as measured with a sound level meter using the A-weighting network.

DBH. "DBH" means the tree diameter measured at four and one-half feet above the ground.

Department. "Department" means the department of planning, a department within the division.

Dependent. "Dependent" means the biological child of an adult, or a person related to an adult by adoption, guardianship or other duly authorized custodial relationship, who receives financial support from the adult and who resides with the adult at least three calendar months in a calendar year.

Detoxification facility. "Detoxification facility" means a facility for the purposes of temporary or long-term inpatient treatment of victims of alcohol or drug use or addiction.

Development. Except as defined in chapters 18.70 and 18.80 for the purposes of those chapters, the term "development" means:

- (1) Land clearing or grading in anticipation of construction for non-agricultural purposes;
- (2) Subdivision of land for use, construction, sale or lease;
- (3) Construction of site improvements, buildings, or infrastructure; or
- (4) The use of any building, structure, or land, including new uses, expansions, and material changes to the operational characteristics of existing uses.

Director. "Director" means the director of the division or the designee of such director.

Disposal facility. "Disposal facility" means facilities for the disposal of nonnuclear waste or fill. The phrase "disposal facility" includes solid waste disposal sites and facilities, as defined by C.R.S. § 30-20-101; and hazardous waste disposal sites, as defined by C.R.S. § 25-15-200.3.

Division. "Division" means the City of Golden, Colorado division of community development, or such department or division designated by the city manager to administer this Code.

DNL. "DNL" means the 24-hour average sound level, in dB(A), for the period from midnight to midnight, obtained after the addition of ten dB(A) to sound levels for the periods between 10:00 p.m. and 7:00 a.m.

Domestic small livestock and fowl includes backyard chickens, miniature goats, miniature pot-bellied pigs, rabbits, chinchillas, and any female breed of duck, excluding drakes.

Dwelling. "Dwelling" means any building or portion thereof which is used as the private residence or sleeping place of one or more human beings, but not including hotels, motels, tourist courts, resort cabins, clubs, hospitals or similar uses.

Dwelling unit. "Dwelling unit" means a building or any portion of a building designed for occupancy as complete, independent living quarters for one or more persons, having direct access from the outside of the building or through a common hall and having living, sleeping, kitchen and sanitary facilities for the exclusive use of the occupants.

Dwelling unit, affordable. "Dwelling unit, affordable", for the purposes of chapter 18.70 and sections 18.40.350 and chapter 18.40, appendix A, section A-1.12.2 only, means any housing unit that qualifies as low (zero percent to 50 percent AMI), moderate (51 percent to 80 percent AMI) or middle (81 percent to 120 percent AMI) income according to the current area median income (AMI), and remains such for a period of no less than 20 years. [Note: For provisions other than chapter 18.70 and sections 18.40.350 and chapter 18.40, appendix A, section A-1.12.2, see definition of "affordable housing unit", supra.]

Dwelling unit, efficiency or buffet type. "Efficiency dwelling unit" or "buffet dwelling unit" means an apartment dwelling unit having not less than 300 square feet of floor area with facilities for living, sleeping, cooking and eating as required by the Uniform Building Code.

Dwelling unit, one household. "Dwelling unit, one household" means a building designed exclusively for, and occupied by, not more than one household, except that a one household dwelling unit may incorporate in the same structure one accessory dwelling unit in compliance with this title. One household dwelling units shall include manufactured homes and

factory built homes, but shall not include mobile homes unless the mobile home also meets the definition of manufactured home.

Dwelling unit, two household. "Dwelling unit, two household" means a building designed for and occupied by not more than by two households living in separate dwelling units.

Dwelling unit, multiple household. "Dwelling unit—Multiple household" means a building designed for three or more households living in separate dwelling units, but not including, motels, hotels, or tourist homes.

Engineering regulations. "Engineering regulations" means the "Water and Sanitary Sewer Specifications and Street Sidewalk, and Drainage Specifications," as adopted by the Golden City Council including all addendum and amendments thereto.

Essential services. "Essential services" means gas, electrical, steam, or water transmission or distribution systems, collection, communication, and supplier disposal systems. Such services may include poles, wires, mains, drains, sewers, pipes, conduits, cables, fire alarm boxes, police call boxes, traffic signals, hydrants, cabinets, pedestals, and other similar equipment and accessories in connection therewith, reasonably necessary for the furnishing of adequate service by such public utilities or municipal departments or commissions or for the public health, safety, or general welfare.

Factory built home. "Factory built home" means a dwelling unit designed for one household that is partially or entirely manufactured in a factory and designed for long-term residential use when placed upon a permanent foundation. Factory built homes must be constructed to the standards of the State Factory Built Housing Construction Certification Code (8 CCR 1302-3), as the same is amended from time to time, and must bear the insignia indicating compliance with those standards.

Farmers' market. "Farmers' market" is a seasonal open air market where fruits, produce, flowers, eggs, and food products like jams, jellies, sauces, or baked goods are sold directly to consumers.

Family. See "household."

First story. "First story" means any portion of a building that has its floor line less than six feet above finished grade.

Fitness instruction or gymnasium. "Fitness instruction" or "gymnasium" means a business that provides instruction (generally by way of organized, regularly scheduled classes) related to movement and physical fitness within an enclosed building, including but not limited to:

- (1) Aerobics and stretching;
- (2) Boxing or kickboxing;
- (3) Dance;
- (4) Gymnastics;
- (5) Martial arts;
- (6) Rock climbing;
- (7) Spinning;
- (8) Swimming;
- (9) Weight lifting; or
- (10) Yoga.

Floor area. "Floor area" means that area included within the periphery defined by the outer surfaces of the exterior walls of a building and includes the aggregate area of all floors but excludes attached garages, carports, patios, porches or balconies. In the case of multiple dwelling units or other occupancies where the peripheral walls may consist partially of common walls, measurement shall be along the centerline of such common walls. For the purposes of applying the floor area limitations set out in chapter 18.29, the application of this definition is modified as provided in section 18.29.08.001.5.

Form category. "Form category" means a group of related for types.

Form type. "Form type" means an enumerated type of building, based on its form, as set out in division III of chapter 18.29.

Form zone. "Form zone" means a designated geographic area of the city described by section 18.29.01.003.1.a and division II of chapter 18.29, and established by section 18.29.01.004, within which divisions III, V, VI, VII, and VIII of

chapter 18.29 establish intent, standards, guidelines, and certain rules of procedure and rules of measurement.

Foster home. "Foster home" means a facility for child care in a place of residence of a household for the purpose of providing family care and/or training for children who are not related to the head of such home, and provided that such home is licensed or otherwise approved by the State of Colorado Department of Social Services for such purpose.

Fueling, fast-charging, or service station. "Fueling, fast-charging, or service station" means a building or land area used for the retail dispensing or sales of vehicular fuels (and may also include level 3 DC fast-charging of electric vehicles). The phrase "fueling, fast-charging, or service station" does not include the phrase "heavy motor vehicle repairs or service," but does include the phrase "light motor vehicle repairs or service," which may be integrated into the use. A fueling, fast-charging, or service station may include a retail store that sells goods and services, but primarily ready-to-eat food products (not intended for on-premises consumption), groceries, sundries, and automotive fluids and accessories (e.g., windshield washer fluid, batteries, motor oil, car window shades). The phrase "fueling, fast-charging, or service station" does not include the phrase "truck stop."

Funeral home. "Funeral home" means an establishment that provides for:

- (1) Human funeral services; and/or
- (2) Embalming and the performance of other services used in the preparation of the dead for burial.

The phrase "funeral home" does not include the term "crematorium."

Garage. "Garage" is any building, or portion of a building, designed to accommodate or store motor vehicle(s).

Golf course. "Golf course" means land used for the game of golf, which may include accessory uses such as driving ranges, pro-shops, club houses, and restaurants.

Grade. "Grade" (ground level) means the average of the finished ground level at the center of all walls of a building.

Green grocer. "Green grocer" means a temporary structure where local food producers sell fruits, produce, flowers, eggs, meat, plants and food products like jams, jellies, pickles, sauces, or baked goods. It is also known as a produce market.

Group home. "Group home" means a dwelling unit in which people live together (but not more than one who is required to register as a sex offender pursuant to C.R.S. § 18-3-412.5, as amended) and receive supportive services and are supervised by persons who live in the residence. For the purposes of this Code, there are four classifications of group homes:

- (1) Community residential homes (a/k/a group home for up to eight persons with intellectual and developmental disabilities), which is a state-licensed group home, exclusively for the care of persons with developmental disabilities, as defined by C.R.S. § 25.5-10-202.
- (2) Group home for the aged, which is a group home of up to eight persons who are 60 years of age or older who do not need nursing facilities, and who so elect to live in conventional residential surroundings. The phrase "group home for the aged" does not include nursing facilities (as defined in C.R.S. § 25.5-4-103(14)) or institutions providing life care (as defined in C.R.S. § 11-49-101(6)).
- (3) Group home for persons with behavioral or mental health disorders, which is a state-licensed group home for up to eight persons with behavioral or mental health disorders as defined in C.R.S. § 27-65-102, who are screened by a professional person as provided in C.R.S. § 27-65-102(27) prior to occupying the group home, and which does not include persons determined to be not guilty by reason of insanity to a violent offense and persons who have been convicted of a felony involving a violent offense.
- (4) Group home for substance use disorders, which is a state-certified group home serving persons protected by the provisions of the Federal Fair Housing Act living in a recovery residence as defined in Colorado Revised Statute section 27-80-129(1)(b) or as thereafter amended, also known as a sober living residence.

Half-story. "Half-story" means a habitable area within a building with a side wall height of not more than six feet. For the purposes of chapter 18.29, half-stories are identified and measured as provided in section 18.29.08.001.3.d.

Heavy equipment. "Heavy equipment" means non-motorized merchandise of 6,000 pounds or more empty weight, or motorized merchandise of more than 6,000 pounds empty weight, having motors of 20 horsepower or more performance.

Heavy industry. "Heavy industry" means industrial uses that are not specifically defined elsewhere in this Code, that can be described in one of the following three ways:

- (1) Primary processing or manufacturing or repair operations not specifically defined elsewhere in this chapter or this definition, that involve:
 - (a) A material risk of significant environmental contamination, explosion, or fire;
 - (b) Perceptible ground vibration at the property line;
 - (c) Excessive noise or dust emissions at the property line and downwind;
 - (d) Large-scale outdoor storage of inputs or products;
 - (e) Significant outdoor installations of processing equipment;
 - (f) Outside emission of objectionable odors; or
 - (g) Twenty-four or more round-trips by semi-trailer trucks per day; or
- (2) Processing of minerals (except precious and semi-precious stone cutting for jewelry

or precision instruments such as lasers or watches), ores, logs, pulpwood, or fossil fuels; or

- (3) Activities that are required to undergo new source review under the Federal Clean Air Act, or are subject to construction or operation permits pursuant to the Colorado Stationary Sources Program or Title V of the Federal Clean Air Act.

For illustrative purposes, heavy industrial uses include (if they meet the thresholds of this definition), but are not limited to:

- (a) Coal cleaning plants with thermal dryers; coke oven batteries; carbon black plants (furnace process); petroleum refineries; petroleum storage and transfer units (except retail gasoline stations); and bulk fuel dealers;
- (b) Facilities used in the primary or secondary production of metals (e.g., primary zinc, copper, or lead smelters; primary aluminum ore reduction plants; iron and steel mills; sintering plants; secondary metal production plants; and blacksmith shops);
- (c) Portland cement plants;
- (d) Sawmills and pulp mills;
- (e) Incinerators with the capacity to charge more than 250 tons of refuse per day;
- (f) Lime plants; phosphate rock processing plants; sulfur recovery plants; and hydrofluoric, sulfuric, or nitric acid plants;
- (g) Fossil fuel combustion (except for electricity generation) totaling more than 250 million BTUs per hour of heat input;
- (h) Fabrication of motor vehicles, manufacturing equipment, durable goods, or prefabricated homes or home components;

- (i) Drycleaner processing plants that use large quantities of PERC or comparable petrochemical solvents;
- (j) Manufacture of plastic products (except assembly of parts that are manufactured elsewhere);
- (k) Hot mix asphalt plants; and
- (l) Meat processing involving butchering of large animal carcasses.

Heavy logistics center. "Heavy logistics center" means a wholesaling, warehousing, or distribution use that provides a central location for receiving, storing, and distributing raw materials, semi-finished goods, or finished goods. Heavy logistics centers may be warehouses in which goods are stored (a/k/a "product warehouses"), or truck terminals in which goods are transferred between trucks or between trucks and trains or other transportation modes (a/k/a "truck terminals"), or moving warehouses (including indoor storage of portable on-demand storage containers), or wholesaling operations (but not wholesale membership clubs in which memberships are available to the general public, which are classified as "retail sales and services"). Heavy logistics centers are expected to generate 24 or more truck round-trips per day.

Heavy motor vehicle repairs and service. "Heavy motor vehicle repairs and service" means the following uses, to the extent they do not qualify as "heavy industry":

- (1) The provision of repair or service to passenger vehicles that includes work that does not qualify as "light motor vehicle repairs and service," including but not limited to body repairs (collision centers), paint, upholstery, engine replacement or reconditioning, air conditioning replacement, tire recapping, and custom body work; and
- (2) Any type of repairs to commercial vehicles or construction vehicles.

The phrase "heavy motor vehicle repairs and service" may include light motor vehicle repairs and service, as well as the installation of audio, video, and navigation systems (which, with respect to passenger vehicles, are otherwise classified as

"retail sales and services"), but does not include the phrases "light industry" or "heavy industry."

Heavy motor vehicle sales or rental. "Heavy motor vehicle sales or rental" means the sale or rental of commercial vehicles, recreational vehicles, boats, manufactured homes, or construction vehicles at the location where inventory is stored. The phrase "heavy motor vehicle sales or rental" includes outdoor parking of such vehicles for brokers. Not included in the definition are:

- (1) Brokering of commercial or construction vehicles that are stored off-site and delivered directly to customers (an office, general use); and
- (2) Indoor storage of commercial or construction vehicles for brokers who are located off-site (a light industrial or heavy logistics use).

Heavy retail. "Heavy retail" means retail sales or service activities in which more than 25 percent of the area put to the use is located outside or in partially enclosed structures. Illustrative heavy retail uses include heavy equipment sales or rental, retail greenhouses and garden supply stores, and outdoor lumberyards. Heavy retail does not include uses that are specifically defined elsewhere in this Code.

Heliport. "Heliport" means an area of land that is made available to the public or two or more private companies or individuals for the landing and takeoff of helicopters, which may include related buildings and facilities, such as fixed-base operators, hangars, fueling and de-icing facilities, maintenance facilities, and restaurants.

Helistop. "Helistop" means an area of land or portion of a building or structure that is used for the landing and takeoff of helicopters for a single user (e.g., a news station, hospital, or law enforcement agency).

Home occupation. See chapter 18.42.

Hospital. "Hospital" means an institution that is licensed, certified, or approved as a "hospital" by the Colorado Department of Public Health and Environment ("CDPHE"), where sick or injured persons are given medical care and, in

the course of same, may be housed overnight, fed, and provided nursing and related services. The term "hospital" also includes a free-standing emergency department.

Hotels and motels. See commercial lodging.

Household. "Household" means a person or group of persons occupying a dwelling unit pursuant to the residential occupancy standards in chapter 18.28.03.01.

Household pets. "Household pets" means the following domesticated animals: Aquarium fishes, psittacine birds, aviary finches, gerbils, guinea pigs, hamsters, laboratory mice and rats and, dogs and cats.

Indoor amusement, recreation, and entertainment. "Indoor amusement, recreation, and entertainment" means a use that provides amusement and recreational activities indoors (except sexually-oriented businesses, indoor firing ranges, fitness instruction or gymnasium, and bars, taverns, or nightclubs), including, but not limited to:

- (1) Arcades;
- (2) Bowling alleys;
- (3) Escape rooms;
- (4) Game arcades (e.g., video games, skee ball, and comparable amusement machines);
- (5) Indoor archery ranges;
- (6) Indoor axe throwing;
- (7) Indoor mini-golf;
- (8) Indoor playgrounds (may include conventional playground equipment, inflatables, trampolines, rock climbing walls, zip lines, and comparable equipment);
- (9) Indoor skydiving;
- (10) Indoor electric go-kart tracks;
- (11) Indoor skating rinks (ice or roller);
- (12) Laser tag;
- (13) Local area network ("LAN") gaming centers;

- (14) Ping-pong centers;
- (15) Pool/billiard rooms; and
- (16) Recreation centers.

Indoor firing range. "Indoor firing range" means an indoor area designed for the safe discharge of rifles, shotguns, handguns, or any other firearm for the purpose of sport shooting or military/law enforcement training. The range may use silhouettes, skeet, trap, or other similar materials to facilitate target practice. Excluded from this use type are amusements that simulate shooting but do not involve bullets (e.g., laser tag, foam darts, etc.) which are classified as "indoor amusement, recreation, and entertainment."

Kennel, indoor. "Kennel, indoor" means an indoor facility (with no outdoor components) in which four or more household pets of the same species are temporarily housed, groomed, bred, boarded, or trained, and may also be incidentally treated for medical conditions. The phrase "kennel, indoor" includes for-profit facilities; as well as not-for-profit or public facilities at which abandoned or rescued animals are housed and offered for adoption.

Kennel, outdoor. "Kennel, outdoor" means a facility in which four or more household pets of the same species are temporarily housed, groomed, bred, boarded, or trained, and may also be incidentally treated for medical conditions, which facility includes an outdoor component, such as dog runs. The phrase "kennel, outdoor" includes for-profit facilities; as well as not-for-profit or public facilities at which abandoned or rescued animals are housed and offered for adoption.

Laboratory. "Laboratory" means a building or a portion of a building devoted to the experimental study in science or the testing and analysis of chemicals, drugs, explosives, minerals, and similar materials.

Landscape and amenity areas. "Landscape and amenity areas" means, for the purposes of chapter 18.29, outdoor areas that provide separation and relief from buildings (including lawns, gardens, and other areas planted with vegetation), ecological benefits (including natural drainage ways and drainage ponds, rain gardens, and

swales), or otherwise create outdoor recreational opportunities (including walkways, pedestrian paths, open plazas and malls, terraces, common courts, playgrounds, rooftops that are improved for landscape or recreational purposes, areas with benches, outdoor furnishings, and other places for sitting, and other areas designed specifically for active or passive recreational use). The phrase "landscape and amenity area" does not include portions of a property that are used for outdoor storage or areas that are designed to accommodate motor vehicle circulation or parking.

Landscape surface ratio. "Landscape surface ratio" (a/k/a "LSR") means, of the purposes of chapter 18.29, the ratio of the area of landscaping and amenity areas to the area of the lot upon which they are located.

Landscaped area. "Landscaped area" means the total pervious surface on a lot or parcel, including, but not limited to, ground covers, sod, mulch, as well as pervious pavement (excluding parking spaces).

Legacy use zone. "Legacy use zone" means the RE, M1, M2, CO, AG, or RM use zone.

Light industry. "Light industry" means a land use that involves research and development, assembly, remanufacturing, compounding, packaging, testing, or treatment of products, generally from previously prepared materials or components, with limited outside storage and limited truck traffic, external impacts, or risks, such that the use is not defined as "heavy industry" or "heavy logistics center." Light industry also includes wholesaling, warehousing, and distribution uses that involve fewer than 24 truck round-trips per day. The phrase "light industry" does not include the phrase "light motor vehicle repairs and service." For illustrative purposes, light industrial uses may include:

- (1) Assembly, testing, repair, or refurbishing of products, instruments, electronics, office and computing machines, and fixtures using premanufactured components;

- (2) Offices of general contractors; specialty subcontractors; tradesmen; or telecommunications providers which include:
 - (a) Overhead door access to indoor storage of tools, parts, and materials; or
 - (b) Parking of commercial vehicles or a fleet of cars, vans, or light trucks that are used in the business.
- (3) Beverage production (alcoholic and nonalcoholic) and bottling, except at scales that place such production within the definition of "brew pub, distillery pub, or limited winery;"
- (4) Furniture making or refinishing;
- (5) Manufacture of textiles or apparel;
- (6) Screen printing of apparel (except low volume screen printing at a retail store);
- (7) Printing and publishing, except copy centers, and except printing presses that require a stationary source permit or title V permit for air emissions;
- (8) Research, development, and testing laboratories (e.g., for development of products, equipment, or materials), if not classified as "office, general," "office, medical," or "heavy industry;"
- (9) Disassembly of consumer electronics and/or appliances into component parts, where all operations and storage are within an enclosed building;
- (10) Manufacture of glass products (e.g., window panes, bottles and jars), including hand-blown products;
- (11) Manufacture or compounding of pharmaceutical products (except retail compounding pharmacies, which are classified as "retail sales and services"), dietary supplements, health and beauty products, and herbal products;
- (12) Packaging of products;
- (13) Storing, selling, and/or distributing merchandise for or to retailers; industrial, commercial, institutional, or professional business users; or wholesalers (but not wholesale membership clubs in which

memberships are available to the general public, which are classified as "retail sales and services");

- (14) Personal warehousing/ flexible industrial space;
- (15) Collection, sorting, and processing of recyclable materials for transport (see definition of "recycling collection center"), in which all sorting, processing, and storage of recyclable materials takes place within an enclosed building; or
- (16) Comparable scientific research or manufacture, compounding, assembling, processing or treatment of products, and office and office/warehouse use, provided the following limitations are placed on all such uses are contained entirely within a building.

Light motor vehicle repairs and service. "Light motor vehicle repairs and service" means:

- (1) Routine service to passenger vehicles that generally takes less than 90 minutes to complete (e.g., inspections, tire rotation and balance, brake service, oil changes, glass repair and replacement, fluid changes, etc.);
- (2) Towing of automobiles and light trucks; and
- (3) Repairs and service to motorcycles, scooters, snowmobiles, all-terrain vehicles ("ATVs"), riding lawnmowers, and other vehicles with engines of less than 1,500 cc displacement.

The phrase "light motor vehicle repairs and service" does not include the phrases "heavy motor vehicle repairs and service," "heavy industry," "light industry," "salvage yard," or the storage of inoperable automobiles or light trucks.

Live-work. "Live-work" means a type of residential mixed-use building that combines a dwelling unit with an integrated permissible nonresidential use that is open to the public and principally used or operated by one or more of the residents of the dwelling unit.

Local street. "Local street" means a street with a speed-limit up to 20 miles per hour with limited vehicle traffic.

Loft. "Loft" means a space designated for sleeping on an intermediate level or levels between the floor and ceiling of a story, open on one or more sides to the room in which the space is located, and in accordance and compliance with section R315 of the IRC.

Lot. "Lot" means a contiguous area of land intended for development, with boundaries that are established by plat, court order, recorded deed, lot line adjustment, or statutory boundary line agreement, which is legally described for purposes of transfer of title. The term "lot" does not include the term "parcel" or "tract," nor does it include areas within street or alley rights-of-way. This definition does not itself authorize the creation of new lots by deed or otherwise. New lots shall be created only as provided in title 17 or state law.

Lot, corner. "Corner lot" means a lot of which at least two adjacent lot lines abut for their full length upon a street.

Lot coverage. "Lot coverage," in general, means the sum of the horizontal area of the footprints of buildings and covered vertical structures (e.g., gazebos) on a lot, measured in square feet, divided by the total area of the lot, also measured in square feet. For the purposes of chapter 18.29, lot coverage is calculated as set out in section 18.29.08.001.6.

Lot, flag. "Flag lot" means an irregularly shaped (generally flag-shaped) lot in which most of the lot area (including the buildable area of the lot) is located behind (in relation to the principal street) one or more other lots, and which includes a narrow extension (the "flagpole") that is coterminous with the side lot lines of the other lot or lots, providing vehicular access to the street.

Lot frontage. "Lot frontage" means the length of the front lot line, except that for the purposes of chapter 18.29 as to non-rectilinear lots, flag lots, or lots fronting on a cul-de-sac, minimum lot frontage may be measured at the front setback

line. Lot frontage may be further defined for specific form types as provided in chapter 18.29.

Lot, interior. "Interior lot" means a lot other than a corner lot.

Lot line. "Lot line" means a boundary of a lot that extends between two corners or points of curvature.

Lot line, front. "Front lot line" means the lot line dividing a lot from a street, or as chapter 18.29 may permit, a common court. On corner lots, the front lot line is the lot line with the shortest lot frontage. On through lots, the front lot line is the lot frontage that abuts the street from which the property is addressed. On flag lots, the front lot line is the lot line that connects and is roughly perpendicular to the flagpole portion of the lot.

Lot line, rear. "Rear lot line" means the lot line opposite the front lot line.

Lot line, side. "Side lot line" means any lot line other than front lot line or rear lot line.

Lot line, street. "Street lot line" means a front lot line that is coterminous with a street right-of-way.

Lot line, side street. "Side street lot line" means the side lot line of a corner lot that is coterminous with a street right-of-way.

Lot, through. "Through lot" means an interior lot with front and rear lot lines that are coterminous with street right-of-way lines, or a corner lot with lot lines that are coterminous with more than two streets.

Lot width. "Lot width" means the shortest distance between opposite side lot lines, measured in the area between the front setback line and the rear setback line.

Manufactured home. "Manufactured home" means a building that is transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities, and which has certification required by the United States Secretary of Housing and Urban Development and was constructed in compliance with the requirements of 42 U.S.C.

§ 5401 et seq., Manufactured Home Construction and Safety Standards, and the regulations of the Department of Housing and Urban Development that are promulgated thereunder. The phrase "manufactured home" does not include the phrases "recreational vehicle," "mobile home," "tiny house" or "tiny home."

Manufacturing. "Manufacturing" means the process of producing a finished product from raw or prepared materials by giving such materials new forms, qualities, properties, or combinations, whether by hand land, labor, or machine.

Mega drive-through facility. "Mega drive-through facility" means a business where the drive-through operations generate a substantial number of vehicle trips and has some or all of the following characteristics: drive-through operation is a predominant feature on the site as indicated by multiple drive-through lanes, employees outside the building to manage vehicle flow, longer or multiple vehicle stacking areas compared to other drive-through facilities similar in use, and/or use of the drive-through as the predominate way to render services compared to parking or walk-up services.

Membership club. "Membership club" means an association of persons, whether incorporated or unincorporated for some common purpose, but not including groups organized primarily to render a service carried on as a business.

Microbrewery. "Microbrewery" means a facility that produces no more than 15,000 barrels per year of fermented malt beverages on-site. Microbreweries may sell their products off-site, but must also include a taproom in which guests/customers sample and/or purchase the product as with bar, tavern, nightclub, and restaurant uses with appropriate liquor licensing.

Microdistillery. "Microdistillery" means a facility that produces no more than 15,000 gallons per year of spirituous beverages on-site. Microdistilleries may sell their products off-site, but must also include a tasting room in which guests/customers may sample and/or purchase the product as with bar, tavern, nightclub, and restaurant uses with appropriate liquor licensing.

Microwinery. "Microwinery" means a facility that produces no more than 250,000 gallons per year of vinous beverages on-site. Microwineries may sell their products off-site, but must also include a tasting room in which guests/customers may sample and/or purchase the product as with bar, tavern, nightclub, and restaurant uses with appropriate liquor licensing.

Miniature goat. "Miniature goat" shall mean a livestock animal from the Nigerian Dwarf Goat or African Pygmy Goat breed that is not taller than 24.5 inches at the withers.

Miniature pot-bellied pig. Miniature pot-bellied pig" shall mean a cloven-hoofed animal, which is domesticated, does not exceed 22 inches in height at the shoulders and does not exceed 100 pounds in weight.

Mining or mineral resource extraction.

- (1) The term "mineral" means an inanimate constituent of the earth in a solid, liquid or gaseous state which, when extracted from the earth, is useable in its natural form or is capable of conversion to a useable form as a metallic compound, or chemical, an energy source or a raw material for manufacturing or construction material, but does not include surface or subsurface water.
- (2) The terms "mining" and "extraction" mean any removal or development of a mineral from its natural occurrence on affected land or from a watercourse, and includes, but is not limited to, drilling, blasting, scaling, crushing, tunneling, excavating, dredging, panning or sluicing and includes any tailings piles, tailing ponds, waste dumps or concentration, milling, evaporation or other on-site processing activities or any buildings, structures or machinery used in such operation. "Mining" and "extraction" does not include the use of battery powered concentrate wheels or hand and mini-sluices or battery powered or hand panning upon any watercourse outside the boundaries of the city's kayak course, on the conditions that such activity takes place below the watercourse's

water level and does not disturb or undermine any of the watercourse's vegetation.

Mobile home. "Mobile home" means a dwelling that is built on a chassis designed for long-term residential occupancy, that is capable of being installed in a permanent or semi-permanent location, with or without a permanent foundation, and with major appliances and plumbing, gas, and electrical systems installed but needing the appropriate connections to make them operable, and that may be occasionally drawn over the public highways, by special permit, as a unit or in sections to its permanent or semi-permanent location. Mobile homes are different from manufactured homes in that they were either constructed before the adoption of 42 U.S.C. § 5401, et seq., Manufactured Home Construction and Safety Standards, or are otherwise not in compliance with said federal law and its implementing regulations. The phrase "mobile home" does not include the phrases "manufactured home," "recreational vehicle," "tiny house," or "tiny home."

Mobile home park. "Mobile home park" means a lot, parcel, or tract of land which is designated, improved, and used for the purpose of providing a location or accommodation for one or more mobile homes for occupancy for one household. Mobile home unit sales lots on which unoccupied mobile homes are located for inspection or sale shall not be considered mobile home parks.

Mostly preserved building. "Mostly preserved building" means, for the purposes of chapter 18.29, a building that is proposed for partial demolition, partial reconstruction, or addition of new building volume, but that the director determines will be "mostly preserved" after the completion of the work, according to the standards set forth in section 18.29.07.001.2.

Motorcycle, scooter, or ATV sales or rental. "Motorcycle, scooter, or ATV sales or rental" means the sale or rental of motorcycles, scooters, snowmobiles, or ATVs at the location where inventory is stored. The phrase "motorcycle, scooter, or ATV sales or rental" includes outdoor

storage of motorcycles, scooters, snowmobiles, or ATVs for off-site brokers. The phrase does not include:

- (1) Brokering of motorcycles, scooters, snowmobiles, or ATVs that are stored off site and delivered directly to customers (a general office use); or
- (2) Indoor storage of motorcycles, scooters, snowmobiles, and ATVs for brokers who are located off site (a light industrial or heavy logistics use, depending upon the volume of sales).

Motor vehicle and transportation land uses. "Motor vehicle and transportation land uses" means a category of land uses that consists of "bus or taxi terminal, on-demand transportation dispatch," "fueling, fast-charging, or service station," "light motor vehicle repairs and service," "heavy motor vehicle repairs and service," "heavy motor vehicle sales or rental," "heliport," "helistop," "motorcycle, scooter, or ATV sales or rental," "motor vehicle wash," "passenger motor vehicle sales or rental," "RV storage," "surface parking," "structured parking," and "truck stop."

Motor vehicle wash. "Motor vehicle wash" means any area or business using selfservice, in-bay automatic, or conveyor equipment for cleaning and washing motor vehicles, whether as a part of another business operation (e.g., as an accessory use to fueling, fast-charging, or service station), or as a stand-alone operation, of any type, on a commercial basis and is not considered a drive-through facility.

Multi-family residential development. For the purposes of establishing parking requirements in chapter 18.36, "multifamily residential development" means a residential or residential mixed-use development built to the main street, mixed-use, shop form type standards in section 18.29.03, or a combination of multi-unit buildings with integrated site design, shared vehicular circulation systems and parking areas, or comparable development allowed in a PUD/ODP and partially within an applicable transit service area (as defined by C.R.S. § 29-36-102(2)). Multifamily residential developments generally: Are not eligible to be built to the International Residential Code (IRC); are not eligible for a subdivision

process for fee-simple ownership of individual dwelling units; and have shared amenities such as open-space, building and pedestrian corridors, and site access. Parking areas are not exclusively integrated into individual dwelling units with attached garages with direct access to the unit.

Multi-tenant site. "Multi-tenant site" means a lot that contains one or more buildings that are designed for lease to different tenants (e.g., a shopping center or office building), or a group of contiguous lots and parcels that are planned and developed to share access and parking areas (e.g., a shopping center that includes "pad sites" that are platted for separate ownership, but which share parking and access with the principal shopping center lot).

Municipal. "Municipal" means owned, operated, or controlled by the City of Golden.

Neighborhood character. "Neighborhood character" means an amalgam of various elements that give neighborhoods their distinct "personality." These elements may include land use, urban design, visual resources, historic resources, and other patterns of development associated with land use. These elements may be specifically identified for distinct areas of the city in the City of Golden Comprehensive Plan or neighborhood plans.

Neighborhood retail store. "Neighborhood retail store" means a use devoted exclusively to the retail sale of a commodity or commodities. The sales area of such use shall be indoors only, and the total enclosed area for such use shall not exceed 4,000 square feet.

Neighborhood farmers' market. "Neighborhood farmer's market" is a seasonal open air market where fruits, produce, flowers, eggs, plants and food products like jams, jellies, sauces, or baked goods, are sold directly to consumers.

Nonconforming access or parking. "Nonconforming access or parking" means parking lots, spaces, driveways, or access aisles that were constructed or installed in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the standards for parking lots, spaces, access aisles,

or loading areas that are applicable to the subject property under chapter 18.36, sections 18.40.242, 18.40.442, 18.40.532, or 18.52.020, or other provisions of this title that control the number, design, configuration, surfacing, dimensions, striping, or layout of parking lots, spaces, access aisles, or loading areas.

Nonconforming buffering. "Nonconforming buffering" means a landscape buffer or portion thereof that was created in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the width, location, or landscaping standards for buffers that are applicable to the subject property under this title.

Nonconforming building. "Nonconforming building" means a building or portion thereof built prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the setback or building height provisions of this title applicable to the zone district in which it is situated, or the form or design standards set out in chapter 18.29 with regard to any of the form types that are permissible within the form zone in which it is situated.

Nonconforming dwelling units. "Nonconforming dwelling units" means the existing residential dwelling units on a subject property, as established in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and in excess of the maximum dwelling units allowed pursuant to this title for the subject property.

Nonconforming landscaping. "Nonconforming landscaping" means landscaping of a subject property or portion thereof, except within a required buffer (see "nonconforming buffering"), that was installed in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the landscaping standards that are applicable to the subject property under this title.

Nonconforming lighting. "Nonconforming lighting" means exterior lighting that was constructed

or installed in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the standards for exterior lighting that are applicable to the subject property under chapter 18.34, section 18.40.282, or other provisions of this title that control the design, location, height, brightness, and timing of exterior lighting.

Nonconforming lot. "Nonconforming lot" means a lot which was created prior to enactment of applicable portions of title 17 and this title, or any amendment thereto, and conflicting with the lot area or lot width provisions applicable to the zone district in which it is situated.

Nonconforming sign. "Nonconforming sign" means a sign that was constructed or installed in conformance with city requirements as they

existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the standards for signs that are applicable to the subject property under chapter 18.32 or other provisions of this title that control the number, design, display, size, area, location, and materials of signs.

Nonconforming situation. "Nonconforming situation" means any or all of the following: nonconforming buffering, nonconforming building, nonconforming density, nonconforming domestic agriculture, nonconforming landscaping, nonconforming lighting, nonconforming lot, nonconforming parking, nonconforming structure, nonconforming sign, or nonconforming use.

Nonconforming structure. "Nonconforming structure" means a structure that was constructed or installed in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the standards for such structure that are applicable to the subject property under this title; except that the phrase "nonconforming structure" does not include the phrases "nonconforming building," "nonconforming lighting," or "nonconforming sign," all of which are separately defined.

Nonconforming use. "Nonconforming use" means the use of all or part of a subject property (including a building, structure, or outdoor areas on the premises) that was established in conformance with city requirements as they existed prior to the effective date of the ordinance codified in this title or any amendment thereto, and conflicting with the provisions of this title regarding the principal or accessory use of the subject property.

Nursing home, memory care, Alzheimer's care. "Nursing home, memory care, Alzheimer's care" means a state-licensed residential facility that is regulated as a skilled nursing facility (as defined in C.R.S. § 26-4-103(11)), which provides meals, assistance with daily activities, such as dressing, grooming, and bathing, and medical care for persons who are temporarily or permanently unable to care for themselves. The phrase "nurs-

ing home, memory care, Alzheimer's care" does not include the phrase "group home for the elderly."

Occupied. "Occupied" includes arranged, designed, built, altered, converted, rented or leased, or intended to be occupied.

Office, general. "Office, general" means buildings from which professional, administrative, financial, clerical, brokering, real estate, and limited technical services are provided. The phrase includes, but is not limited to, the following types of businesses:

- (1) Accounting, auditing and bookkeeping;
- (2) Advertising and graphic design (except mailing services, which are "business services");
- (3) Architectural, engineering, and surveying services;
- (4) Attorneys and court reporters;
- (5) Banks, savings and loans, credit agencies, and investment companies;
- (6) Brokering of motor vehicles, commodities, and other items where the thing brokered is not stored on site for any length of time;
- (7) Business incubators (unless the businesses being incubated are classified as another type of use, such as light industry);
- (8) Computer programming and data recovery services;
- (9) Corporate headquarters;
- (10) Data processing and word processing services;
- (11) Detective agencies;
- (12) Government offices;
- (13) Insurance;
- (14) Interior design;
- (15) Real estate sales and off-site rental offices;
- (16) Research and development (not including on-site manufacturing or fabrication, and not including marijuana uses);

- (17) Retail catalog, internet, and telephone order processing, but not warehousing; and
- (18) Virtual office services.

Office, medical. "Office, medical" means office space used for the examination or treatment of patients on an outpatient basis (with no overnight stays by patients), generally by appointment, including:

- (1) Chiropractors, licensed massage therapists, occupational therapists, physical therapists, and acupuncturists;
- (2) Dentists, orthodontists, and oral surgeons;
- (3) Medical lab testing facilities;
- (4) Medical doctors (physicians, pediatricians, obstetricians, gynecologists, radiologists, geriatricians, surgeons, podiatrists, osteopaths, ophthalmologists, anesthesiologists, etc.);
- (5) Medical imaging centers;
- (6) Midwives;
- (7) Nutritionists, Ayurveda medicine practitioners, traditional Chinese medicine practitioners, homeopaths;
- (8) Optometrists;
- (9) Speech therapists;
- (10) Outpatient surgery centers;
- (11) Psychiatrists, clinical psychologists, clinical social workers, hypnotherapists, and marriage and family therapists;
- (12) Physiatriests, physiotherapists, orthotics, prosthetics, recreational therapists, audiologists, respiratory therapists, rehabilitation counselors, prosthetic technicians, and personal care assistants; and
- (13) Other comparable health care professionals.

Outdoor commercial amusement. "Outdoor commercial amusement" means uses that provide commercial amusement outdoors, including but not limited to:

- (1) Amusement parks or theme parks;

- (2) Batting cages;
- (3) Bumper boats;
- (4) Go-kart tracks;
- (5) Golf driving ranges;
- (6) Miniature golf;
- (7) Outdoor archery range;
- (8) Outdoor paintball courses; and
- (9) Water slides and wave pools.

The phrase "outdoor commercial amusement" does not include the phrases "outdoor firing range," "golf course," "outdoor stadium, arena, amphitheater, or drive-in theater," or "race track," or the term "zoo."

Outdoor firing range. "Outdoor firing range" means the use of land designed for the safe discharge of rifles, shotguns, handguns, or any other firearm or similar device for the purpose of sport shooting or military/law enforcement training. The range may use silhouettes, skeet, trap, or other similar materials to facilitate target practice. The phrase "outdoor firing range" does not include general hunting. The phrase "outdoor firing range" does not include amusements that do not involve potentially lethal projectiles (e.g., paintball) which are classified as "outdoor commercial amusement."

Outdoor stadium, arena, amphitheater, or drive-in theater. "Outdoor stadium, arena, amphitheater, or drive-in theater" means:

- (1) Outdoor stadium or arena, which is an outdoor area surrounded by tiered rows of seats or benches, designed for the viewing of live sporting events, rodeos, equestrian events, livestock exhibitions, concerts, or other organized entertainment.
- (2) Amphitheater, which is an outdoor stage (covered or uncovered) designed for live performances and/or the display of films, that faces a lawn or landscaped area used for temporary or permanent seating.
- (3) Drive-in theater, which is an area of land that includes one or more large outdoor

screens or other structures for the display of motion pictures and an area for parking automobiles from which the motion pictures are viewed.

Overhead power lines (110 kV+). "Overhead power lines (110 kV+)" means high voltage (110 kilovolts or more) power lines that are used to transmit electricity over long distances.

Overnight campground. "Overnight campground" means ad or property utilized for or intended for use of renting temporary occupancy space to transient users of recreational vehicles and tents.

Owner occupancy. "Owner occupancy" means a situation in which the fee-simple owner of a lot resides in a dwelling unit that is located on the lot, or the owner of a condominium interest resides in the condominium unit. Ownership is evidenced using title records, while occupancy is typically evidenced by voter registration, vehicle registration, or other similar means.

Parcel. "Parcel" means a specified area of (usually unplatted) land that is legally described using metes and bounds or aliquot parts.

Park. "Park" means an area open to the general public and reserved for recreational, educational, or scenic purposes. Parks are classified as "active" or "passive." See "park, active" and "park, passive."

Park, active. "Park, active" means an area of land that provides for active outdoor recreation opportunities for the public (open to the community) or residents of a subdivision or development, which are generally not commercial in nature. The phrase "park, active" includes areas for active recreational activities including, but not limited to:

- (1) Skate parks;
- (2) Sports fields and play courts (e.g., tennis courts, basketball courts, pickleball courts, and outdoor racquetball or squash courts); and
- (3) Outdoor swimming pools and splash parks.

Park, passive. "Park, passive" means an area of land that provides passive outdoor recreation opportunities for the public (open to the community) or residents of a subdivision or development, which are generally not commercial in nature. The phrase "park, passive" includes areas for passive recreational activities including, but not limited to:

- (1) Jogging, cycling, tot-lots, fitness trails, and playgrounds;
- (2) Arboretums, wildlife sanctuaries, forests, and other natural areas which may be used for walking or hiking; or
- (3) Community gardens.
- (4) Other passive recreation-oriented parks, including picnic areas.

The phrase "park, passive" does not include the term "zoo."

Passenger motor vehicle sales or rental. "Passenger motor vehicle sales or rental" means the sale or rental of passenger vehicles at the location where inventory is stored. The phrase "passenger motor vehicle sales or rental" includes outdoor storage of passenger vehicles for brokers. Not included in the definition are:

- (1) Brokering of passenger vehicles which are stored off-site and delivered directly to customers (an "office, general" use);
- (2) Indoor storage of passenger vehicles for brokers who are located off-site (a light industrial or heavy logistics use, depending upon the volume of sales); and
- (3) Passenger motor vehicle rental locations that have not more than five rental vehicles stored on site at any one time (a "retail sales and services" use).

Pawnbroker. "Pawnbroker" means a business that is regulated by C.R.S. § 29-11.9-101, et seq., that:

- (1) Regularly contracts to advance money to customers on the delivery of tangible personal property by the customer on the condition that the customer, for a fixed price and within a fixed period of time, has the option to cancel the contract; or

- (2) Purchases tangible personal property that has not previously been sold at retail in the course of its business of reselling tangible personal property.

Permanent affordable housing unit. "Permanent affordable housing unit" means an affordable housing unit that is subject to a permanent affordable housing deed restriction.

Permanent affordable housing deed restriction. "Permanent affordable housing deed restriction" means an affordable housing deed restriction with a term of the lesser of 1,000 years or the maximum permissible term under Colorado law.

Person. "Person" means an individual, a corporation, a partnership, any incorporated or unincorporated association of persons, and any legal entity authorized to hold title to real property under the laws of the State of Colorado.

Personal services. "Personal services" means a business that is engaged in the provision of informational, instructional, personal improvement, personal care, or similar services within an enclosed building, including, but not limited to:

- (1) Art, music, or computer programming instruction;
- (2) Beauty salons and barber shops;
- (3) Cooking instruction;
- (4) Driving schools;
- (5) Handicraft or hobby instruction;
- (6) Laundry or dry-cleaning retail outlets;
- (7) Portrait shops or photography studios;
- (8) Shoe repair;
- (9) Tailor/alterations shops;
- (10) Tattoo parlors;
- (11) Spas, massage and related esthetician services.

Photovoltaic arrays (two MW+). "Photovoltaic arrays (two MW+)" means a photovoltaic generation facility with a nameplate capacity of two MW or more that is a principal use of land. Photovoltaic arrays that have a nameplate capacity of less than two MW are classified as "utili-

ties, minor." Photovoltaic arrays that are installed on rooftops or over parking lots are not regulated as principal uses.

Place of amusement. "Place of amusement" means a commercially operated enterprise that supplies various forms of entertainment, including without limitation video arcades, bowling alleys, miniature golf.

Place of assembly. "Place of assembly" means a building, portion of a building, or property in which people assemble for civic, educational, religious, social, or cultural purposes. This use includes facilities used for worship and accessory celebratory events; meeting halls; event centers; fraternal organization facilities; outdoor assembly areas that are not otherwise defined by this Code; and private clubs.

Planned unit development (PUD). "Planned unit development" means a zone district which allows land to be developed under unified control or under a unified plan of development for a number of dwelling units, commercial, educational, recreational or industrial uses, or any combination thereof, the plan for which does not correspond in lot size, bulk, use, density, lot coverage, open space or other restriction of other and use controls.

Porch. "Porch" means an unenclosed, covered or uncovered platform that is connected to the outside of a building, providing pedestrian access to the building's principal entrance.

Prison or jail. "Prison or jail" means a facility for the judicially required detention or incarceration of people, where inmates and detainees are under 24-hour supervision by professionals, except when on approved leave. The facility may also be established in conjunction with a law enforcement or public safety building, established for the temporary detention of adult or juvenile persons while being processed for arrest or detention by law enforcement.

Produce stand. "Produce stand" is a temporary structure where local food producers sell fruits, produce, flowers, eggs, plants, meat and food products like jams, jellies, pickles, sauces, or baked goods.

Protective care. "Protective care" means a licensed homeless youth shelter as defined in C.R.S. § 26-6-102(17), a day treatment center as defined in C.R.S. § 26-6-102(10), a secure residential treatment center as defined in C.R.S. § 26-6-102(35), an acute treatment unit as defined in 2 CCR § 502-1, substance use disorder treatment facilities that provide ASAM Level III residential services as such services are defined in 2 CCR § 502-1 (e.g., nonhospital residential detoxification units), residential child care facilities that are designated to provide mental health services (see § 7.701.2.G, 12 CCR § 2509-8), psychiatric residential treatment facilities, and comparable facilities.

Qualifying affordable housing. "Qualifying affordable housing" means affordable housing units that are located within a qualifying affordable housing project.

Qualifying affordable housing project. "Qualifying affordable housing project" means a residential or residential mixed-use development in which 50% or more of the residential units are affordable housing units.

Race track. "Race track" means a commercial facility consisting of a track, either paved or unpaved, which is used primarily for the sport of racing motor vehicles (cars, motorcycles, or all-terrain vehicles, but not go-karts). A racetrack may include seating, concession areas, restaurants, sky boxes, parking facilities, maintenance facilities, accessory offices, garages, and accessory retail facilities. The phrase "race track" includes any facility used for driving automobiles under simulated racing or driving conditions (test tracks, "shakedown" tracks, or other similar facilities), regardless of whether they include seating, concession areas, or retail facilities for the general public.

Recording or TV studio. "Recording or TV studio" means a facility for the recording and production of audio or video material, such as the recording of music, voice, or video, for live broadcast or post-production.

Recreation facility. "Recreation facility" means a building, or portion of a building where activi-

ties related to athletics, exercise, arts and crafts, or public assembly, are provided by a commercial or public entity.

Recreational vehicle ("RV"). "Recreational vehicle ("RV")" means a vehicle that is:

- (1) Built on a single chassis;
- (2) Four hundred square feet or less when measured at the largest horizontal projections;
- (3) Designed to be self-propelled or permanently towable by a light duty truck; and
- (4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

The phrase "recreational vehicle" also includes any vehicle that may be used for recreation or personal purposes, including, but not limited to, a boat, motor home, camper trailer, detached camper or detached trailer of any design, whether commercially manufactured or homemade, but not including a manufactured home or mobile home. The phrase "recreational vehicle" includes any trailer used to transport any recreational vehicle(s). For illustrative purposes, the phrase "recreational vehicle" includes:

- (1) Camping trailer or tent trailer, which means a folding structure, constructed of canvas, plastic, or similar water repellent material, designed to be mounted on wheels and designed for travel and recreation.
- (2) Motorized camper, motor home, recreational conversion van or bus, which means a recreational vehicle consisting of a portable, temporary dwelling to be used for travel, recreation, and vacation uses, and constructed as an integral part of a self-propelled vehicle.
- (3) Pick-up camper, which means a vehicle designed to be mounted on or loaded into a pick-up truck chassis for use as a temporary dwelling for travel and recreation.

- (4) Travel trailer, which means a towed vehicle designed as a temporary dwelling for travel and recreation.
- (5) Travel trailer, self-contained, which means a trailer which can operate independently of connections to sewer, water, and electric systems. It contains a water-flushed toilet, lavatory, shower or bath, and kitchen sink, all of which are connected to water storage and sewage holding tanks located within the trailer.

Recycling collection center. "Recycling collection center" means a location for the collection of recyclable materials (e.g., waste paper, motor oil, aluminum and other scrap metal, polystyrene foam, porcelain, batteries, electronic components, textiles, plastics, discarded clothing or shoes, cardboard, and other recyclable household materials), for processing (bailing, compacting, flattening, grinding, shredding, crushing, mechanical sorting, or cleaning) and storage prior to transport to another location for further processing, reuse, or recycling, where some or all processing and storage activities are located outside of a building. Such a facility, if entirely enclosed within a building or buildings, shall be considered "light industry." The phrase "recycling collection center" does not include the phrase "salvage yard."

Redevelopment. "Redevelopment" means the demolition of one or more buildings on a subject property, followed by the construction of one or more new buildings or structures.

Residential land uses. "Residential land uses" means premises designed and intended for long-term habitation by means of ownership or rental, but excluding temporary lodging (short-term rentals/tourist homes) of less than a 30-day duration. Residential use is defined as a building or buildings that include exclusively dwelling units.

Residential mixed-use. "Residential mixed-use" means a mixed-use development containing residential and institutional, commercial, or other non-residential uses for the residents or the public. Amenities such as gyms, fitness centers, pools, lounges, or outdoor or indoor entertainment for exclusive use by residents shall be considered accessory to the residential use for the purposes of calculating residential floor area.

However, wrap-around services, community kitchens, classrooms, computer centers, childcare facilities, and other supportive services that are incorporated into affordable housing developments are counted as non-residential floor area.

Residentially zoned area. "Residentially zoned area" means an area zoned for the development of residential dwelling units, including the CO, AG, RE, R1, R1A, R2, R3 zone districts, and portions of PUD developments designed for such use.

Resource extraction, minerals. "Resource extraction, minerals" means the extraction of coal or other mineral resources (including sand and gravel, but not oil and gas) from the land (surface or subsurface). The phrase "resource extraction, minerals" does not include cut and fill operations within a property, construction or maintenance of canals or reservoirs, or the removal and transportation of fill from one property to another as part of an approved development plan; provided, that both properties are controlled by the same landowner.

Resource extraction, oil and gas. "Resource extraction, oil and gas" means any structure, facility, or activity which is constructed on or disturbs land in association with oil or gas drilling, production, or waste treatment and disposal, including but not necessarily limited to wells, tanks or tank batteries, pits, access roads for ingress and egress, and pipelines.

Restaurant. "Restaurant" means an establishment in which the principal business is the sale of food and beverages that are prepared for customers and served in a ready-to-consume state. A restaurant may include indoor and/or outdoor dining areas, and drive-up, drive-in, or drive-through facilities. Restaurants may also provide live entertainment for customers seated at indoor dining tables. Alcoholic beverages may be produced and sold on the premises as provided in applicable alcohol beverage licenses. The term "restaurant" does not include the phrase "bar, tavern, or nightclub" (although they can be co-located as zoning may allow), "brew pub, distillery pub, or limited winery," or "sexually-oriented business."

Retail sales and services. "Retail sales and services" means a use involving the sale, lease, or rental of consumer, home, and business goods and small equipment to consumers. Such uses include but are not limited to department stores, furniture stores, clothing stores, second-hand stores, thrift shops, consignment stores, and establishments providing the following products or services: antiques, appliances, art, art supplies, beauty supplies, bedding and mattresses, bicycles, books, building supplies, magazines and newspapers, craft supplies, copies and copiers, costumes, dry goods, electronics, fabric, framing, games, garden supplies, gifts, groceries, hardware, head shops, home improvement goods, household products, jewelry, lumber, music, musical instruments, office supplies, party supplies, pets and pet supplies, pharmaceuticals, phones, photography equipment, produce, sporting goods, stationary, temporary signs, toys, and videos; and new automotive parts and accessories. The phrase also includes services such as charitable donation collection centers, coin laundries, installation of electronics (e.g., audio systems and navigation systems) into motor vehicles, passenger motor vehicle rentals and pickup trucks; provided, that not more than five rental vehicles are stored on site at any time, picture framing, real estate offices that are open for walk-in traffic; repairs of products sold by the establishment (e.g., a computer store may also repair computers), repairs of consumer electronics, and comparable services.

The phrase "retail sales and services" does not include uses that are classified or defined more specifically in this Code, including but not limited to personal services, restaurants (all types); sexually-oriented businesses; marijuana uses; pawnbrokers, or convenience lending. Retail sales and services uses are generally conducted indoors.

RV storage. "RV storage" means an outdoor area in which spaces are provided for compensation for the storage of unoccupied, individually-owned RVs. The phrase "RV storage" does not include areas associated with heavy motor vehicle sales or rental uses in which inventory is stored for sales or rental purposes, and does not include

areas in which RVs are stored for short periods before and after service at a heavy motor vehicle repairs and service use.

Salvage yard. "Salvage yard" means any establishment that is maintained, used, or operated for storing, buying, or selling wrecked, scrapped, ruined, or dismantled motor vehicles or motor vehicle parts. Salvage yards are also referred to by Colorado law as "automobile graveyards." See C.R.S. § 43-1-502.

School. "School" means any building or part or any building used for instructional purposes to provide elementary, secondary, post-secondary, or vocational education. The term "school" does not include the phrase "day care center, adult or child" but does include the following more specific uses: "school, elementary or middle," "school, high," and "school, vocational or trade."

School, elementary or middle. "School, elementary or middle" means a school that provides general full-time educational curriculum for two or more grades from kindergarten through eight.

School, high. "School, high" means a school that provides general full-time educational curriculum for grades nine through 12.

School, vocational or trade. "School, vocational or trade" means an educational facility that primarily teaches skills that directly prepare students for jobs in a trade or profession, resulting in a certificate, diploma, or degree awarded upon the student's completion of the curriculum. Examples include, but are not limited to, art schools, business colleges, trade schools, massage schools, and beauty schools.

Self-storage. "Self-storage" means a facility that provides individual storage compartments within a building for household or commercial goods. Storage spaces may be accessed from interior hallways or individual outside doors or overhead doors. A self-storage use may include a single dwelling unit for one or more persons employed by and residing at the self-storage facility for the purpose of on-site management and security.

Senior housing. "Senior housing" means a facility consisting of three or more dwelling units, the occupancy of which is limited to persons 60 years of age or older. The facility may include medical facilities or care. Senior housing shall typically consist of multiple household attached dwellings, but may include detached dwelling units as part of a wholly owned and managed senior project.

Setback. "Setback" means the minimum distance, extending across the full width of the lot or site between a lot line and that part of the building or structure closest to the respective lot line (excluding measurement from any building surface which, by provision of this title, may occupy the respective setback area).

Setback, front. "Front setback" means the distance between the front lot line and a lot parallel with the front lot line of a lot, tangent to that part of the building or structure (other than an open fire escape, stairway, or chimney) which is closest to the front lot line, and intersecting two other lot lines of the lot; or the line concentrically parallel to the right-of-way of the street on a cul-de-sac (bulb).

Setback, rear. "Rear setback" means the distance between the rear lot line and a line parallel with a rear lot line of a lot, tangent to that part of the building or structure (other than an open fire escape, stairway or chimney) which is closest to the rear lot line, and intersecting two other lot lines of the lot.

Setback, side. "Side setback" means the distance between the side lot line and a line parallel with a side lot line of a lot, tangent to that part of the building or structure (other than an open fire escape, stairway or chimney) which is closest to such side lot line, and intersecting two other lot lines of the lot.

Sexually-oriented business. "Sexually-oriented business" means a use of property where the principal use, or a significant or substantial adjunct to another use of the property, is the sale, rental, display or other offering of live entertainment, dancing, or material which is distinguished or characterized by its emphasis on depicting, exhibiting, describing, or relating

to specified sexual activities or specified anatomical areas as the primary attraction to the premises, including:

- (1) Adult arcade, which means any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are distinguished or characterized by the depicting or describing of specified sexual activities or specified anatomical areas.
- (2) Adult bookstore or adult video store, which means a place where books, magazines, motion pictures, prints, photographs, periodicals, video or audio recordings, novelties and devices, or any of these things, which have as their primary or dominant theme, matter depicting, illustrating, describing, or relating to specified sexual activities or specified anatomical areas, are sold or offered for sale to adults; and includes a place with only a portion or section of its area set aside for the display or sale of such material to adults, except that any place, otherwise included within this definition, that derives not more than ten percent of its gross income from the sale of such material shall be exempt from the provisions of this section so long as such material is kept in a location where it is not visible and shall not be a self-service item for the customers of such place.
- (3) Adult cabaret, which means a nightclub, bar, restaurant or similar business which regularly features: (a) persons who appear in a state of nudity; (b) live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities; or (c) films, motion pictures, video cassettes, slides or other photographic reproductions which are

characterized by the depiction or description of specified sexual activities or specified anatomical areas.

- (4) Adult motel, which means a hotel, motel, or similar business which offers private rooms to the public and provides patrons live performances or closed-circuit television transmissions, films, motion pictures, video cassettes, slides, or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
- (5) Adult motion picture theater, which means a business where films, motion pictures, video cassettes, slides, or similar photographic reproductions are regularly shown which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
- (6) Adult photo studio, which means any establishment which, upon payment of a fee, provides models (and may also provide photographic equipment) for the purpose of photographing specified anatomical areas or specified sexual activities.
- (7) Adult theater, which means a theater, concert hall, auditorium, or similar business which regularly features persons who appear in a state of nudity or live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities.
- (8) Peep booth, which means a viewing room, other than a private room, of less than 150 square feet of floor space upon the premises of a sexually oriented business where there are exhibited photographs, films, motion pictures, video cassettes, or other video reproductions, slides or other visual representations which depict or describe specified sexual activities or specified anatomical areas.
- (9) Private room, which means a room in an adult motel that is not a peep booth, has a bed in the room, has a bath in the room

or adjacent to the room, and is used primarily for lodging for periods of less than 12 hours.

- (10) Sexual encounter establishment, which means a business or commercial establishment which, as one of its primary business purposes, offers for any form of consideration, a place where two or more persons may congregate, associate, or consort for the purpose of specified sexual activities or the exposure of specified anatomical areas, when one or more of the persons exposes any specified anatomical area.

Sidewalk. "Sidewalk" means the portion of a public or private street right-of-way or common court that is designed and intended for pedestrian use, access, and circulation.

Side wall. "Side wall" means the exterior wall of a building (including exterior finishes and cladding) that extends above finished grade to the highest point where the outside plane of the wall intersects the underside of its roof or soffit, or extends to the top of a parapet.

Sign, legal nonconforming. Any sign which was lawfully constructed and maintained prior to September 14, 1989, and which does not conform to all applicable requirements of this ordinance.

Sleeping room, occupied. "Occupied sleeping room" means a potential sleeping room that is in regular use as a room for sleeping, subject to the requirements 18.28.03.01.1.c

Sleeping room, potential. "Potential sleeping room" means a room or space within a dwelling unit having a floor area of at least 70 square feet, a ceiling height of at least five feet, and at least two of the following factors:

- (a) Has walls and doors to separate it from other habitable spaces;
- (b) Meets the definition of a loft;
- (c) Has a closet or similar provision for clothes storage; or
- (d) Has a full or partial bathroom connected to the space or room, or has a path of

travel to a full or partial bathroom which does not first pass through a habitable space.

Small-scale agriculture. "Small-scale agriculture" means the use of private land for hobby agriculture or keeping of livestock or bees that meets the thresholds for regulation set forth in chapter 18.26, including the following: (1) urban farms; or (2) keeping of domestic livestock or bees.

SNAP eligible food. "SNAP eligible food" means any food or food product for home consumption, and also includes seeds and plants which produce food for consumption, by SNAP households as determined by the Federal Food and Nutrition Act of 2008, as from time to time updated. "SNAP eligible food" does not include the following items: Alcoholic beverages, tobacco products, hot food and any food sold for on-premises consumption, nonfood items such as pet foods, soaps, paper products, medicines and vitamins, household supplies, grooming items, and cosmetics.

Solar garden. "Solar garden" means:

Solar garden with a rated capacity of 100 kW or less:

Above-grade utilities of less than 10,000 square feet of gross site area that have a localized impact on surrounding properties and are necessary to provide essential services, including, but not limited to, above-ground utilities of less than 10,000 square feet of gross site area and electric services, limited to electrical substations, and electrical relay switching stations, and solar generating stations (NAICS 221114).

Solar gardens with a rated capacity greater than 100 kW:

Electric services, including high-voltage transmission lines (115 kilovolts or more), solar generating stations with a gross site area of 10,000 square feet or greater, and wind generating stations, but not including electrical substations with a gross site area of less than 10,000 square feet (which are defined as minor utility).

Special use permit. "Special use permit" means a permit for use of property issued pursuant to the provisions of chapter 18.30.

Specified anatomical areas. "Specified anatomical areas" means:

- (1) Less than completely and opaquely covered: Human genitals, pubic region, buttocks and breasts below a point above the top of the areola; or
- (2) Human male genitals in a discernibly turgid state even if completely and opaquely covered.

Specified sexual activities. "Specified sexual activities" means acts, simulated acts, exhibitions, representations, depictions or descriptions of:

- (1) Human genitals in a state of sexual stimulation or arousal;
- (2) Fondling or other erotic touching of human genitals, pubic region, buttocks or breasts;
- (3) Intrusion, however slight, of any object, any part of an animal's body, or any part of a person's body into the genital or anal openings of any person's body or into the body of an animal;
- (4) Cunnilingus, fellatio, anilingus, masturbation, bestiality, lewd exhibition of genitals, or excretory function; or
- (5) Flagellation, mutilation, or torture for purposes of sexual arousal, gratification or abuse.

Storage yard. "Storage yard" means a location for outdoor storage of operable equipment and materials for off-site processing, construction projects, or right-of-way maintenance; and/or operable recreational vehicles, boats, trucks, commercial vehicles, or passenger vehicles. A storage yard may include an accessory office and a dwelling unit for one or more persons employed by and residing at the storage yard for the purpose of on-site management and security. The phrase "storage yard" does not include the phrase "salvage yard" and does not include outdoor storage that is accessory to another principal use.

Street. "Street" means an improved urban way or thoroughfare which is designed to accommodate and facilitate motor vehicle traffic, but which may also accommodate pedestrian and non-motorized vehicle traffic. Streets are generally classified as local, collector, minor arterial, principal arterial, or freeway (as defined in the thoroughfare plan), depending upon their function. The term "street" includes the terms "road" and "highway," but does not include the term "alley."

Structure. "Structure" means anything constructed or erected, which requires location on the ground or attached to something having a location on the ground, but not including fences or walls used as fences less than six feet in height, poles, lines, cables or other transmission or distribution facilities of public utilities.

Structured parking. "Structured parking" means a structure that is composed of one or more above-ground or below-ground levels that are used for the parking of passenger motor vehicles. Structured parking may be totally below grade (underground structured parking); or partially or totally above grade (above-ground structured parking); and may be separate from or integrated into a building that is used for other purposes. Structured parking includes parking lifts. Structured parking is the principal use of land if it is not related to a specific land use on the same parcel and may be served by electric vehicle charging stations.

Substantial alteration. "Substantial alteration" means reconstruction, rehabilitation, addition, or other improvements to a building or property resulting in an addition in floor area, or parking or loading area, equal to or greater than 25 percent of the existing area, measured over a period not to exceed five years.

Surface parking. "Surface parking" means an area of land that is designated for the parking of passenger motor vehicles in parking spaces, the related parking aisles, the landscaped areas that are surrounded by parking spaces and parking aisles, and the landscaped areas at the corners of the paved areas insofar as their inclusion in the surface parking area gives it a regular shape. Surface parking lots may be served by electric

vehicle charging stations. The phrase "surface parking" does not include driveways on individual residential lots, nor does it include individual garages or carports. Surface parking is a principal use of property if it is not related to a specific land use on the same parcel.

TDM plan. "TDM plan" or "travel demand management plan" means all associated tools, requirements, and strategies for implementing expanding people's travel options through services, infrastructure, parking management, multi-modal subsidies, and educational programs to reduce single occupied vehicle trips associated with the development, subject to approval by the director. The TDM plan shall include reporting methods to submit the TDM survey.

TDM survey. "TDM survey" or "travel demand management survey" means an annual survey that reports the commute trip mode share (the percentage of total trips to/from the development, business, or property, by a particular means of travel, including walking, bicycling, using micromobility, riding transit, driving alone, carpooling, vanpooling, telecommuting, etc.) of TDM plan residents or employees and is administered by a qualified third-party professional selected by the owner or owners' representative in the event of individual unit ownership, and subject to approval by the director.

Telecommunication site, commercial. "Commercial telecommunication site" means any facility, and its accessory uses or structures, utilized for the broadcast or reception of electro-magnetically transmitted information, except those facilities as are defined as "noncommercial telecommunication sites."

Tourist home. "Tourist home" means any building containing five or fewer guest rooms used, designed to be used, let or hired out primarily for occupancy by any particular person or persons for periods of less than 30 days.

Transportation demand management or TDM. "Transportation demand management" or "TDM" means a collection of tools, policies, and/or measures intended to be used to decrease the

number of SOV trips to a particular location and achieve other goals, such as a reduction in parking, traffic, and emissions.

Tree crown. "Tree crown" means the primary and secondary branches growing out from the main stem, together with twigs and foliage.

Truck stop. "Truck stop" means an establishment engaged primarily in the fueling or charging of large commercial vehicles (e.g., semi-trucks), and may also include facilities for parking, servicing, or repair of such vehicles (but not body repairs (collision centers), paint, upholstery, engine replacement or reconditioning, air conditioning replacement, tire recapping, or custom body work) and the sale of accessories and equipment for such vehicles. A truck stop may include overnight accommodations, showers, or restaurant facilities primarily for the use of truck crews. The phrase "truck stop" does not include the phrase "fueling, fast charging, or service station," but it may include areas for the provision of fuels or charging stations for passenger motor vehicles, motorcycles, and small commercial vehicles.

Turf. "Turf" means areas of continuous plant coverage consisting of nonnative grasses or grasses that have not been hybridized for arid conditions and that, when regularly mowed, form a dense growth of leaf blades and roots. Turf grasses are cool season non-native turf grasses that typically include, but are not limited to: Kentucky bluegrass, including blends and hybrids, Tall fescue, Fine fescue, Perennial ryegrass, Texas hybrid bluegrass, Hybrids of the species above, including those selected for "drought" or "heat" tolerance that are not hybridized for arid conditions.

Turf, artificial. "Turf, artificial" means synthetic materials developed to resemble natural turf/grass.

Turf, functional. "Turf, functional" means turf that is located in a recreational use area or other space that is regularly used for civic, community, or recreational purposes, that may include playgrounds, sports fields, picnic grounds, amphitheaters, portions of parks, and the play-

ing areas of golf courses, such as driving ranges, chipping and putting greens, tee boxes, greens, fairways, and roughs.

Turf, nonfunctional. "Turf, nonfunctional" means turf or artificial turf that is not functional turf. This term includes turf located in a street right-of-way, parking lot, median, or transportation corridor, and is not sized or located to be functional turf. The term does not include turf that is designated to be part of a water quality treatment solution required for compliance with federal, state, or local agency water quality permitting requirements that is not irrigated and does not have herbicides applied.

University or college. "University" or "college" means an educational institution that is authorized by the State of Colorado or other nationally recognized accrediting entity to award associates' or higher degrees.

Urban agriculture sales and markets. "Urban agriculture sales and markets" means temporary, mobile, or seasonal agricultural markets that may be accessory use to a private or public parcel of land as provided in chapter 18.26, including: (1) produce stands; (2) farmers' markets; (3) neighborhood farmers' markets; and (4) green grocer.

Urban farm. "Urban farm" is no more than one-half acre in size where local food producers grow and harvest fresh fruits, produce, flowers, eggs, and plants for distribution and sale.

Upper story. "Upper story" means any story above the first story in a building.

Use. "Use" means the purpose for which land or building is designed, arranged, or intended, or for which either is or may be occupied or maintained.

Use district. See definition of "use zone," below.

Use zone. "Use zone" means a zone established pursuant to section 18.20.010, and mapped as provided in section 18.20.020.

Utilities, major. "Utilities, major" means generating plants (except nuclear and photovoltaic), electrical switching stations, electrical

transmission substations, water or wastewater treatment plants, and other comparable infrastructure. The phrase "utilities, major" does not include utility or communications uses that are more specifically defined as "utility, minor" or "essential services."

Utilities, minor. "Utilities, minor" means water booster stations, wastewater lift stations, electrical distribution substations, gas regulator substations, fiber hut, battery energy storage systems with a capacity less than 150 MWh, and other comparable infrastructure used in the provision or distribution of utility service.

Vehicular drive up or drive through activities. "Vehicular drive up" or "drive through activities" means an activity where a service is provided or wholesale or retail transaction is completed where one or more parties arrive by motor vehicle, and remain within a motor vehicle for the purpose of receiving the service or completing the transaction, but not including the dispensing of fuel.

Veterinary facilities, large animal clinic. "Veterinary facilities, large animal clinic" means any facility maintained by or for the use of a licensed veterinarian in the diagnosis, treatment, or prevention of animal diseases wherein the animals are not limited to dogs, cats, or other common household pets (and may include by way of illustration and not limitation horses, cows, bison, elk, deer, llamas, alpacas, sheep, goats, chickens, turkeys, ducks, and pigs), and wherein the overnight care of said animals is limited to cases in which overnight care is necessary in the medical treatment of the animal. The phrase "veterinary facilities, large animal clinic" use may include a wildlife rehabilitation component.

Veterinary facilities, small animal clinic. "Veterinary facilities, small animal clinic" means any facility maintained by or for the use of a licensed veterinarian in the diagnosis, treatment, or prevention of animal diseases wherein the animals are limited to dogs, cats, or other common household pets and wherein the overnight care of said animals is limited to cases in which overnight care is necessary in the medical treatment of the animal.

View corridor. "View corridor" means the line of sight, identified as to height, width, and distance, of an observer looking toward an object of significance to the community (e.g., ridgeline, river, historic building) from a public right-of-way or public property; the route that directs the viewer's attention.

Waste transfer station. "Waste transfer station" means the use of land or a facility, regardless of name or title, to unload solid waste from vehicles, and with or without intermediate processing (bailing, compacting, flattening, grinding, shredding, crushing, mechanical sorting, or cleaning) subsequently reload the waste onto other vehicles for delivery to another waste transfer station, storage site, or disposal site. In addition to transferring solid waste, a waste transfer station may also include a recycling collection center and/or light industrial uses related to recycling.

Watercourse. "Watercourse" means any and all rivers, streams, creeks, intermittent washes, gullies, tributaries, reservoirs, lakes, ponds, wetlands or other types of natural land forms or people-made wetlands, structures or devices to channel, control or retain water.

Wildlife rehabilitation. "Wildlife rehabilitation" means a premises used for wildlife rehabilitation by the holder of a wildlife rehabilitator license or provisional wildlife rehabilitator license issued by the State of Colorado pursuant to 2 CCR § 406-14.

Yard. "Yard" means an open space other than a court, on a lot, unoccupied and unobstructed from the ground upward, except as otherwise provided in this title.

Zone district. See definition of "use zone," above.

Zoo. "Zoo" means a place where live animals are confined and exhibited to the public. The animals may also be studied, given medical treatment, and bred. The term "zoo" does not include the phrase "park, passive" or any of the uses listed under the heading "veterinary and domestic animal uses."

(Ord. No. 2282, § 2(Exh. A), 12-9-2025; Ord. No. 2270, § 2(Exh. A), 8-12-2025; Ord. No. 2271,

§ 2(Exh. A), 8-12-2025; Ord. No. 2258, § 2(Exh. A), 1-28-2025; Ord. No. 2252, § 12(Exh. K), 1-28-2025; Ord. No. 2229, § 2, 2-13-2024; Ord. No. 2228, § 2, 2-13-2024; Ord. No. 2209, § 2(Exh. B), 6-6-2003; Ord. No. 2181, § 2(Exh. A), 5-24-2022; Ord. No. 2131, § 1, 2-27-2020; Ord. No. 2088, § 3, 10-11-2018; Ord. No. 2100, § 1, 3-7-2019; Ord. No. 2078, §§ 1—3, 5-24-2018; Ord. No. 2068, § 1, 3-22-2018; Ord. No. 2064, § 1, 10-12-2017; Ord. No. 2049, § 1, 2-9-2017; Ord. 1914, § 1, 2012; Ord. 1882, § 1, 2010; Ord. 1847, § 1, 2009; Ord. 1793, § 1, 2007; Ord. 1791, § 1, 2007; Ord. 1671, § 2, 2004; Ord. 1517, 2000; Ord. 1291, 1995; Ord. 1259, § 2, 1995; Ord. 1179, exh. B, 1993; Ord. 769, § 1, 1976; Ord. 682, § 1, 1973)

Chapter 18.08

INTERPRETATION AND ENFORCEMENT

18.08.010 Interpretation.

The following principles shall be used in interpreting this title:

- (1) The provisions of this title shall be regarded as the minimum requirements for the protection of the public health, safety, and general welfare. This title shall be regarded as remedial and shall be liberally construed to further its underlying purposes.
- (2) This title is not intended to interfere or conflict with, abrogate, or annul any other regulation, ordinance, statute, or provision of law.
- (3) Whenever a provision of this title and a provision of any other law, ordinance, resolution, rule, or regulation of any kind, including any other provision of this title, contain restrictions covering the same subject matter, the more restrictive shall govern.
- (4) The foregoing principles notwithstanding, the city council directs those city officials responsible for enforcement of this title to utilize a reasonable common sense approach to the interpretation and application of the specific provisions of

this title. To this end, city officials charged with the responsibility for enforcement and administration of provisions of this title shall be entitled to utilize discretion in waiving specific application requirements, provided that such discretion shall be exercised in a manner to preserve the purposes and intention of this title and to not jeopardize the health, safety or general welfare of the public. When exercising discretion to waive or modify any specific application requirements, said city official shall consider:

- (a) The scope and nature of the proposed project.
- (b) The impact of the project on the properties in the general vicinity of the project.
- (c) The impact of the project on municipal facilities and services, including without limitation, streets, water, sewer, drainage, police, and fire protection services.
- (d) Whether the information contained in a requirement sought to be waived is reasonably and readily available from other materials submitted in conjunction with the application.

Strict enforcement of each provision of this title shall not be required, but the city official charged with enforcement of this title shall be entitled to utilize the legal principal of prosecutorial discretion.

(Ord. 1517, § 2, 2000; Ord. 682, § 2, 1973)

18.08.020 Severability.

Should any section, clause or provision of this title be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of this title as a whole, or any part thereof other than the part so declared to be invalid.

(Ord. 682, § 2, 1973)

18.08.030 Enforcement.

It is unlawful to erect, construct, reconstruct, alter or change the use of any building or other

structure within the city without obtaining a building permit from the city building official or his authorized representative, and no permit shall be issued unless the plans of and for the proposed erection, construction, reconstruction, alteration or use fully conform to the zoning regulations then in effect. For all building permits required, a fee to be set by the city council shall be charged by the city, except that all construction with a total cost of less than \$100.00 shall be exempt from paying a building permit fee. For all signs permitted under chapter 18.32, a fee to be set by the city council shall be charged by the city.

(Ord. 682, § 2, 1973)

18.08.040 Violations designated.

It is unlawful to erect, construct, reconstruct, alter, maintain or use any building or structure or to use any land in violation of any provision of this title, or any amendment thereof. Any person, firm or corporation, either as owner, lessee, occupant or otherwise, who violates or who interferes in any manner with any person in the performance of a right or duty granted or imposed upon him by the provisions of this title, is guilty of a misdemeanor.

(Ord. 682, § 2, 1973)

18.08.050 Legal action.

In case any building or structure is, or proposed to be erected, constructed, reconstructed, altered, maintained or used, or any land is used or proposed to be used, in violation of any provision of this title, or any amendment thereof, the city may initiate civil proceedings, including injunction, mandamus, abatement, declaratory judgment or other appropriate actions or proceedings, to prevent, enjoin, abate, remove, or otherwise correct any such unlawful erection, construction, reconstruction, alteration, maintenance or use. Civil remedies available to the city as provided for under this section are not exclusive and shall not preclude prosecution by the city for criminal violations under the provisions of this title.

The enforcement of the provisions of this title shall be vested solely with the city, acting through its director of community and economic develop-

ment. No party other than the city shall have standing to commence or continue a proceeding to enforce the provisions of this title as against any other property owner, or to enforce a judgment obtained in any such proceeding previously commenced under any prior version of this section 18.08.050. Any proceeding previously initiated by any resident or property owner shall be dismissed unless such dismissal would impair an obligation of contract or a vested right. The prohibition contained in this section shall not prohibit any person or entity otherwise entitled to seek judicial review of any final quasi-judicial decision of the city pursuant to Colorado Rule of Civil Procedure 106(a)(4) from pursuing such review.

(Ord. 1663, 2004; Ord. 1517, § 2, 2000; Ord. 682, § 2, 1973)

18.08.060 Exemptions.

(1) *Purpose.* In certain circumstances, the application of generally applicable provisions of Title 13, Title 15, Title 17 and Title 18 of the Golden Municipal Code to a particular property or land use has the potential to inadvertently violate rights granted to a landowner under the United States Constitution, the Religious Land Use and Institutional Persons Act, 42 U.S.C. § 2000cc, et seq. ("RLUIPA"), 42 U.S.C. 1983, and other federal statutes existing now or hereafter enacted ("Federal Rights"). Under the current jurisprudence regarding federal rights, courts often apply an ad hoc, case-by-case analysis to determine whether an action by a local government violates a particular federal right. The inherent uncertainty of such an approach by the courts subjects the city to potential liability arising from the inadvertent violation of a landowner's federal right, and to the costs of litigation, which include attorneys' fees and loss of time by city personnel who must devote attention to the lawsuit as opposed to their usual tasks. Even when the city is successful in defending a lawsuit, the costs of litigation are a substantial burden upon the financial resources of the city and its personnel resources. A process in which a property holder who believes that application of a provision of title 13, title 15, title 17 or title 18 to his or her property or land use

violates a federal right may apply to city council for, and receive an exemption from, any such provision is necessary to protect the health, safety and welfare of the community.

(2) *Definitions.* As used in this section, the following terms shall have the following meanings:

- (a) *Director* means the director of community and economic development.
- (b) *Federal right* means any right granted to a property holder under the United States Constitution or any federal statute, whether currently existing or hereafter enacted, including, without limitation, the Religious Land Use and Institutional Persons Act, 42 U.S.C. § 2000cc, et seq. ("RLUIPA"), and 42 U.S.C. 1983.
- (c) *Property holder* means any person, persons or entity owning or holding an ownership or possessory interest in real property within the City of Golden, Colorado.

(3) *Applications.* Any property holder within the city who believes that the application of one or more provisions of title 13, title 15, title 17 or title 18 of the Golden Municipal Code as applied to the property holder's property interest or current or proposed land use will violate one or more the property holder's federal rights may apply for an exemption from the provision or provisions in question by submitting an application for an exemption on a form provided by the department planning and development, together with a typed list of the owners of record for any property located within 300 feet of the exterior boundaries of the property for which the exemption is requested. The application shall identify the property and/or land use for which the exemption is sought, the provisions of the Golden Municipal Code from which an exemption is sought, the federal right at issue, and a brief explanation of why the applicant believes that application of such provisions would violate the property holder's federal right. If the application contains a request for an exemption from any provision of title 15, the director, after consultation with the building official and before scheduling a public hearing on the application, may require the applicant to submit such engineering

plans, studies or inspection reports as may be reasonably necessary to demonstrate compliance with the standards set forth in subsection (7) below. A property holder may seek an exemption that operates in a prospective manner, a retroactive manner, or both.

(4) *Stay of enforcement.* An application for a retroactive exemption from a provision of the Golden Municipal Code of which the property holder is currently in violation may be accompanied by a requested stay of enforcement of any provisions that have been violated until such time as city council has the opportunity to act upon the application. The director, after consultation with the city attorney, shall grant such a stay upon a determination that the requested stay does not pose an imminent danger to the health and safety of persons or an imminent danger of damage to property and the asserted violation of a federal right is not frivolous, groundless or interposed solely for the purpose of delay.

(5) *Procedure.* After receipt of an application, the community and economic development department shall notify by first class mail the owners of property located within 300 feet of the exterior property lines of the property to which the proposed exemption would apply that an application for exemption has been filed and that they may review the application during the community and economic development department's regular hours. This notice will contain the date, time and location of the city council hearing, and will be mailed at least 12 days prior to the hearing. If an application requests an exemption from any provision of title 15, the application shall be forwarded to the building official for review.

(6) *Standards for exemptions.* In considering whether to grant an exemption, city council shall consider the following factors:

- (a) The nature of the asserted federal right;
- (b) The degree of uncertainty existing in the case law construing the asserted federal right;
- (c) Any unusual factors concerning the applicant or the property for which the

exemption is sought which increase the risk that the application of a generally applicable provision of the Golden Municipal Code might inadvertently violate a federal right in the particular circumstances presented by the application;

- (d) The governmental purpose and interest served by the provisions of the Golden Municipal Code from which an exemption is sought, and whether such purpose and interest could be accomplished in any other manner;
- (e) Whether granting the requested exemption would create a hardship on others;
- (f) The potential cost of litigation over the asserted federal right;
- (g) Other demands upon the financial resources and personnel of the city; and
- (h) Whether any conditions should be imposed in connection with an exemption to protect the health, safety and welfare of the community.

(7) *Exemptions from title 15.* No exemption from a provision of title 15 shall be granted unless the building official has determined, based upon a review of the engineering plans, studies and inspection reports submitted with the application, that the exemption will not threaten the structural integrity of any building or create a risk to the health and safety of the occupants of the building.

(8) *Exemptions from title 18, use provisions.* No exemption from a provision of title 18 shall be granted which would authorize a use that is not either a use permitted by right, an accessory use or a use which could be permitted subject to approval of a special use permit in the zone district in which the property for which the exemption is requested is located. Any exemption granted for a use that could be permitted subject to approval of a special use permit shall have the same force and effect as a special use permit for the property and shall exempt the property from the requirements of chapter 18.30 of the Golden Municipal Code.

(9) *Exemptions from certain provisions of title 18, provisions.* Any exemption granted under this section from any lot, block, setback, parking, sign area or height, or building area or height requirements of title 18 shall have the same force and effect as a variance granted pursuant to chapter 18.12 of the Golden Municipal Code and shall exempt the property from the requirements of chapter 18.12 of the Golden Municipal Code.

(10) *Hearing.* City council shall hold a public hearing upon an application for an exemption pursuant to this section. Notice of such public hearing shall be published once in a newspaper of general circulation within the city at least 12 days prior to the hearing. In addition, the site in question shall be continuously posted with a sign for a period beginning not less than 12 days prior to the date of the hearing, said posting to be performed by the community and economic development department. The sign and posting shall be in conformity with the posting utilized in zoning amendment public hearings. Upon the conclusion of the public hearing, city council shall approve, approve with conditions, or deny the requested exemption.

(11) *Invalidity of federal right.* One of the purposes of this section is to protect the city from cost, burden and risk of litigation over federal rights. Therefore, city council shall not be required to determine whether the applicant would ultimately prevail in any assertion of the federal right in a judicial proceeding in order to grant an exemption under this section, but city council shall not grant an exemption if the asserted federal right is substantially frivolous or groundless at the time the application is made. In making its decision with respect to whether the asserted federal right is substantially frivolous or groundless, city council may rely upon advice from the city attorney or may require the applicant to provide a legal opinion from an attorney admitted to practice law in the State of Colorado. The validity of any exemption granted shall not depend upon whether the applicant would ultimately prevail in any assertion of the federal right in a judicial proceeding. No exemption granted hereunder shall be rendered invalid due to the subsequent amendment or repeal of the

constitutional or statutory provision giving rise to the asserted federal right, or by any subsequent judicial decision which had it been decided prior to the time of the hearing might have affected the evaluation of the federal right in question.

(12) *Judicial review.* In order to assure a plain, simple and prompt judicial remedy to persons or parties adversely affected or aggrieved by a city action under this section, the provisions of Rule 106(a)(4) of the Colorado Rules of Civil Procedure shall apply to judicial review of any action hereunder.

(13) *Retroactive application.* This section shall apply both prospectively and retroactively, and any property holder may apply for an exemption from provisions of the Golden Municipal Code with respect to any past violation. No exemption granted hereunder shall be effective to relieve the property holder of any obligation of contract or to impair any vested right held by another person or entity.

(Ord. 1664, 2004)

18.08.070 Fees.

(a) For applications required pursuant to title 18 of this Code, or for applications or filings related to any special district, metropolitan district, or other quasi-governmental entity that will be involved in the financing of project-related infrastructure or other qualified on-site or off-site improvements, the city will charge applicants reasonable fees sufficient to cover the costs of administration, inspection, publication of notice, and similar matters, and the cost of professional consultants, including, but not limited to, legal review, required to assist the city with review and processing of such applications. All fees imposed by this section shall include application fees.

(b) If the city determines that an application will require review by professional consultants, the applicant shall execute an escrow agreement in a form approved by the city attorney and make an initial escrow payment in an amount sufficient to cover the estimated review costs, as set forth in the fee schedule adopted by the city council. The city may draw upon the escrow, in the city's discretion, to pay the fees and expenses

of professional consultants retained by the city to review the application. The city may require additional escrow funds to be paid for additional services related to the application if they become necessary. If the applicant does not pay additional escrow funds as required within ten days after written notice from the city, then, in addition to other remedies the city may have, the city shall be entitled to a lien on the subject property or the city may elect to certify the assessed costs and expenses to the office of the county treasurer for collection in the same manner as general property taxes are collected. Such liens shall be perfected and may be foreclosed upon in accordance with applicable state laws.

(c) Failure of the applicant to provide additional escrow funds in a timely manner may result in delays in application processing. If a balance is due at the time an application is approved, it shall be paid by the applicant as a condition of approval. If a balance is due at the time an application is denied, it shall be paid by the applicant within 30 days after delivery of an invoice to the applicant.

(Ord. No. 2210, 6-6-2023; Ord. No. 2180, § 4, 5-10-2022)

Chapter 18.10

PROCESS, PROCEDURES, AND NOTICE*

18.10.010 Approvals or permits required.

Approvals or permits are required for development in the city unless specifically exempted by this Code. Most of the procedures for required review and procedures are described in this division. Approval criteria for each application referenced in this chapter is found in the specific chapter for that application.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.020 Administrative approvals and permits.

(1) *Generally*. Administrative approvals and permits are issued by the director upon a finding of compliance with the requirements of this Code. No public hearing is required.

***Editor's note**—Ord. No. 2252, § 2(Exh. A), adopted Jan. 28, 2025, repealed the former Ch. 18.10 §§ 18.10.010—18.10.050, and enacted a new Ch. 18.10 as set out herein. The former Ch. 18.10 pertained to public notice and derived from Ord. No. 2209, § 2(Exh. C), adopted June, 6, 2003.

(2) *Administrative approvals and permits established*. The administrative approvals and permits that are required by this Code are set out in table 18.10.020.1, Administrative Approvals and Permits. These approvals and permits are in addition to other reviews, approvals, and permits that may be required for compliance with other laws, statutes, or regulations, such as:

- (a) State or federal law, including, but not limited to, the Clean Water Act, the Clean Air Act, or the Endangered Species Act;
- (b) Adopted building and safety codes;
- (c) Ordinances that require permits for activities on public land or within public rights-of-way; or
- (d) Business licensing ordinances.

Table 18.10.020.1, Administrative Approvals and Permits

<i>Approval or Permit</i>	<i>Required For</i>	<i>Timing</i>	<i>Decision-Maker</i>	<i>Review and approval Criteria Reference</i>	<i>Required Notice Type¹</i>
Lot Line Adjustment	Adjusting the location of lot lines in a platted subdivision or to create a lot that is 5 acres or less in area from a parcel or parcels described by metes and bounds or aliquot parts.	N/A	Director	§ 17.30.025	Electronic Posted
Minor Subdivision	Approval of a minor subdivision.	Prior to the sale of lots or issuance of building permits within the minor subdivision, whichever comes first.	Director, or review by Planning Commission ("PC") and review and approval by City Council upon determination by Director for a conventional subdivision process	§ 17.30.030	Electronic Posted
Administrative Variance	Changes to sign height, sign area, or number of required parking spaces.	Prior to issuance of sign permit (or commencement of development, if sign permit is not required) for which the administrative variance is necessary.	Director	§ 18.12.110	Electronic

<i>Approval or Permit</i>	<i>Required For</i>	<i>Timing</i>	<i>Decision-Maker</i>	<i>Review and approval Criteria Reference</i>	<i>Required Notice Type¹</i>
Temporary Lodging License	Operation of a short-term rental or tourist home unit.	Prior to offering a dwelling unit for rent as a short-term rental or tourist home.	Director	§ 18.22.030	N/A
Minor Adjustment	Adjustments to the standards of ch. 18.29, to the extent allowed by § 18.29.07.001.3.	Prior to issuance of building permit (or commencement of development, if building permit is not required) for which the minor adjustment is necessary.	Director, or PC upon referral by Director	§ 18.29.07.02	Electronic
Sign Permit	Installation or construction of any temporary or permanent sign permitted under ch. 18.32, with exceptions as provided therein. ²	Prior to installation, posting, or on-site construction of signs for which permit is required; processed in conjunction with building permits.	Director	§ 18.32.020	N/A
Site Development Plan ("SDP")	Approval of the physical layout of proposed development for construction of new buildings or parking areas or substantial alteration to existing buildings, parking areas, or loading areas. ³	Prior to issuance of building permits (or commencement of development, if buildings permit is not required) for new buildings or parking areas, or substantial alterations to existing buildings, parking areas, or loading areas.	Director, or PC upon referral by Director	§ 18.40.040	Electronic If a neighborhood meeting was required: Posted If referred to PC: Posted Extended Mail Electronic
Form Zone Site Development Plan ("SDP-FZ")	Development within form zones.	Prior to issuance of building permits (or commencement of development, if buildings permit is not required) for new buildings or parking areas, or substantial alterations to existing buildings, parking areas, or loading areas.	Director, or PC upon referral by Director, or PC upon call-up	ch. 18.29 ⁴	Electronic If a neighborhood meeting was required: Posted If referred to PC: Posted Extended Mail Electronic

<i>Approval or Permit</i>	<i>Required For</i>	<i>Timing</i>	<i>Decision-Maker</i>	<i>Review and approval Criteria Reference</i>	<i>Required Notice Type¹</i>
Administrative PUD Amendment	Modifications to a PUD/ODP that will not cause any of the following: •10 percent or more increase in floor area of any building; •10 percent or more increase in residential density of any usage area; •Any increase in overall residential density; •A change in permitted land use in the same land use category that would result in a more intensive use; •Changes which significantly alter traffic circulation, or increases safety, utility service, or environmental concerns; •10 percent or more reduction in the originally approved setbacks; •10 percent or more increase in the ground coverage by buildings; •10 percent or more increase in building height.	Prior to issuance of building permits or other permits for which administrative PUD amendment is required.	Director, or PC upon referral by Director	§ 18.28.05.06	Electronic

Table Notes:

1. (GG EWN) indicates electronic web notice on Guiding Golden only or the City of Golden website. (HO) indicates that notice is required only in the event that the application is referred for a hearing.
2. Permit exceptions and exemptions apply. See chapter 18.32.
3. Not required for: (a) Construction of or substantial alterations to a single household residence on a single lot or parcel in the residential estate (RE), limited industrial (M1), general industrial (M2), agricultural (AG), conservation (CO), or planned unit development (PUD) (unless the PUD official development plan or approval document specifies that an SDP is required) zoning district; and (b) Construction of or substantial alterations to a two-household dwelling on a single lot or parcel in the residential estate (RE), limited industrial (M1), general industrial (M2), agricultural (AG), conservation (CO), or planned unit development (PUD) (unless the PUD official development plan or approval document specifies that an SDP is required) zoning district.
4. The following site development standards apply to site development plans within form zones:
 - a. For all form types, Sections 18.40.212; 18.40.240 to 18.40.242, inclusive; 18.40.270; 18.40.272; and 18.40.292.
 - b. For row house, main street, mixed-use, and shop building form types, Sections 18.40.340 to 18.40.350, inclusive.
 - c. For house, cottage, compound, cluster, and duplex form types, Sections 18.40.340 to 18.40.350, inclusive, do not apply; such forms are subject to chapter 18.24.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.030 Discretionary approvals.

(1) *Generally.* Discretionary approvals are issued by the city after compliance with all applicable requirements of this Code is demonstrated to the respective decision-maker(s) at a public meeting or public hearing.

(2) *Discretionary approvals established.* The discretionary approvals that are required by this Code are set out in table 18.10.030.1, Discretionary Approvals and Permits. These approvals are in addition to other reviews, approvals, and

permits that may be required for compliance with other laws, statutes, or regulations, such as:

- (a) State or federal law, including, but not limited to, the Clean Water Act, Clean Air Act, and the Endangered Species Act;
- (b) Further administrative permits (e.g., site development plans or final plats);
- (c) Adopted building codes;
- (d) Ordinances that require permits for activities in public the rights-of-way; or
- (e) Business licensing ordinances.

Table 18.10.030.1, Discretionary Approvals and Permits

Table Key: CC = City Council; HPB = Historic Preservation Board; PC = Planning Commission; ord = by Ordinance; res = by Resolution; mot = by Motion; sr = by Staff Report

<i>Approval</i>	<i>Required For</i>	<i>Timing</i>	<i>Recommendation (Form of Recommendation)</i>	<i>Decision-Maker (Form of Decision)</i>	<i>Review and approval Criteria Reference</i>	<i>Notice</i>
Sketch Plan	Nonbinding, informal review of a proposed concept for subdivision design.	Prior to preliminary subdivision plat (optional)	Director (n/a)	PC (n/a)	§ 17.30.035	Electronic Posted
Preliminary Subdivision Plat	Approval of a conceptual layout of a proposed subdivision of real property.	Prior to final subdivision plat, may be processed concurrently with final subdivision plat at Director's discretion.	PC (res)	CC (res)	§ 17.30.040	Extended Mail Electronic Posted
Final Subdivision Plat	Approval of a final plat of a proposed subdivision of real property, for recording purposes.	After approval of preliminary subdivision plat and prior to sale of lots or issuance of building permits within the subdivision, whichever comes first.	Director (sr)	CC (res)	§ 17.30.050	Extended Mail Electronic Posted

<i>Approval</i>	<i>Required For</i>	<i>Timing</i>	<i>Recommendation (Form of Recommendation)</i>	<i>Decision-Maker (Form of Decision)</i>	<i>Review and approval Criteria Reference</i>	<i>Notice</i>
Public Hearing Variance	Approvals of relief from the application of specific standards of this Code.	Prior to issuance of building permits (or commencement of development, if building permit is not required) for which the public hearing variance is necessary, prior to approval of site development plan ("SDP") or form zone site development plan ("SDP-FZ") that reflects the public hearing variance (may be processed concurrently)	Director (sr)	PC (res)	§ 18.12.210	Standard Mail Electronic Posted
Major Adjustment	Approvals of adjustments to certain standards in Chapter 18.29.	Prior to issuance of building permits (or commencement of development, if buildings permit is not required) for which the major adjustment is necessary, prior to approval of SDP-FZ that reflects the major adjustment (may be processed concurrently)	Director (sr)	PC (mot)	§18.29.07.02	Standard Mail Electronic Posted When Neighborhood Meeting was required
Special Use Permit	Approval of land uses that are designated as "special use" within the zoning district where the subject property is located	Prior to commencement of a special use	Director (sr)	PC (res)	§ 18.30.020	Extended Mail Electronic Posted
Initial Zoning or Rezoning	Applying a changed zoning district or form zone overlay to a designated area of land of for new zoning of land annexed per C.R.S. 31-12101 et seq.	Concurrently with approval of annexation ordinance (for initial zoning). Prior to or concurrently with other applications for uses or development under the proposed new zoning.	PC (res)	CC (ord)	§ 18.48.030	Extended Mail Electronic Posted
Community Landmark Designation	Designation of a structure, monument, or site which commemorates an event, series of events, person, or organization of significant importance to the City.	N/A	Director (sr)	PC (res)	§ 18.56.040	Standard Mail Electronic Posted

<i>Approval</i>	<i>Required For</i>	<i>Timing</i>	<i>Recommendation (Form of Recommendation)</i>	<i>Decision-Maker (Form of Decision)</i>	<i>Review and approval Criteria Reference</i>	<i>Notice</i>
Historic Preservation Designation	Designation of a historic site, historic landmark, or historic district.	N/A	HPB (res)	CC (ord)	§ 18.58.090	See § 18.58.090(1) and 18.58.080(2)
Certificate of Appropriateness	Alteration, demolition, new construction, reconstruction, restoration, remodeling or other modification which results in a significant change in the external appearance of a historic resource, excluding ordinary maintenance.	Prior to alteration, demolition, new construction, reconstruction, restoration, remodeling or other modification which results in a significant change in the external appearance of a historic resource, excluding ordinary maintenance.	Director (sr)	HPB (res)	§ 18.58.160	Standard Mail Electronic Posted
Vacation of streets, alleys or other public ways	Vacating a public street, alley, or other public way into private property.	N/A	PC (res)	CC (ord)	ch. 18.50	Standard Mail (must also include all property owners affected by the abandonment, if outside the standard radius) Electronic Posted

<i>Approval</i>	<i>Required For</i>	<i>Timing</i>	<i>Recommendation (Form of Recommendation)</i>	<i>Decision-Maker (Form of Decision)</i>	<i>Review and approval Criteria Reference</i>	<i>Notice</i>
Minor PUD/ODP Amendment	PUD/ODP amendments that do not qualify as administrative PUD amendments, provided that: •Parking requirements are not modified; •No individual building floor area is increased more than 20%; •Significant alterations of traffic circulation are not accompanied by an increase in vehicle miles travelled ("VMT") compared to the original approval; •Setback reductions are consistent with minimum building code requirements; •Increases in building coverage do not exceed 20%; and - Increases in building height do not exceed the lesser of two stories or 20 feet. •Modification of standards that cannot otherwise be approved administratively for signs, fences, accessory structures, and other similar standards as determined by the Director and consistent with the intent of the Minor PUD/ODP Amendment process.	Prior to or in conjunction with a Site Development Plan or prior to building permit application for which minor PUD/ODP amendment is necessary.	Director (sr)1	PC (res)2	§18.28.05.06	Extended Mail Electronic Posted
New or Major Amendment to PUD/ODP	New PUD/ODPs and modifications to existing PUD/ODPs that do not qualify for an Administrative PUD Amendment or Minor PUD Amendment	Prior to or in coordination with an SDP or prior to building permit application or subdivision application.	PC (res)	CC (ord)	§§18.28.05.06 and 18.48.060	Extended Mail Electronic Posted

Table Notes:

1. Planning Commission Referral to City Council for final decision. Planning Commission at the public hearing may move to refer an application for Minor PUD/ODP Amendment to City Council for adoption by ordinance. Planning Commission shall forward a resolution with Planning Commission's recommendation to be forwarded to City Council.
2. City Council call-up of Planning Commission decisions on Minor PUD/ODP Amendment applications.
 - a. Any two members of city council may request that Planning Commission's approval of a Minor PUD/ODP Amendment application be called up for final decision by city council.
 - b. To initiate a call-up, a written request for call-up, submitted by two members of city council, shall be filed with the city clerk within 21 days after the Planning Commission public hearing approving the application. The city council shall hold a public hearing on the call-up within 45 days of the written request filed with the city clerk, unless an extended period is established with the applicant's written consent.
 - c. Electronic and Posted notice shall be provided for the call-up hearing.
(Ord. No. 2288, § 3, 3-10-2026; Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040 Standard development review process.

(1) *Generally.* The standard development review process of this division applies to all applications for approvals or permits that are set out in section 18.10.010, permits and approvals.

(2) *Fast-track review / "123 Affordable Housing Go!".* The "123 Affordable Housing Go!" program is hereby established as an expedited review and decision process that is intended to implement Proposition 123 (C.R.S. § 29-32-101, et seq.) regarding qualifying affordable housing applications only. 123 Affordable Housing Go! provides a process for an application to receive a final decision, either administrative or discretionary, within 90 days of receipt of a complete application plus any allowed extensions per C.R.S. § 29-32-101, et seq. Applicants that seek approval

of qualifying affordable housing projects may opt out of 123 Affordable Housing Go! at any time by written notice to the director.

(3) *Process.*

- (a) Table 18.10.040.1, Standardized Development Review and Approval Procedures, lists the applicable review and approval steps for each type of review contemplated by this Code. The approval procedures set out in Sections 18.10.040.3. to 18.10.040.16., inclusive, are undertaken in sequence until an application is considered and decided by the designated decision-maker for the type of application at issue.
- (b) Figure 18.10.040.1, Standardized Development Review and Approval Procedures Flowchart, illustrates the flow of application processing.

Table 18.10.040.1, Standardized Development Review and Approval Procedures

Table Key: The table's left-hand column header describes a process step in the development review and approval process. Each column header to the right of the process step reflects the process that may be applied during the review and approval of the specified application.

<i>Process Step</i>	<i>Administrative (General)</i>	<i>Administrative (123 Affordable Housing Go! Program)</i>	<i>Discretionary (Board or Com- mission deci- sion)</i>	<i>Discretionary (City Council decision)</i>	<i>Discretionary (123 Affordable Housing Go! Program)</i>
Pre-application meeting See § 18.10.040.1	Required at the discretion of the Director, but not required for sign permits, temporary lodging permits, and other planning licenses.	Required	Required (optional for Certificates of Appropriateness)	Required	Required
Neighborhood meeting See § 18.10.040.3	Required at the discretion of the Director but not required for sign permits, temporary lodging permits, and other planning licenses.	Not required	Required for Special Use Permits, Site Development Plans, Form Zone Site Development Plans for Compound, Cluster, Row Home, and Mixed Use Form Types	Required for Initial zoning and rezoning; Major PUD/ODP amendments and new PUDs/ODPs	Required
Application See §§ 18.10.040.4 and 18.10.040.5	Required	Required	Required	Required	Required
Completeness Review See § 18.10.040.6	Required	Required	Required	Required	Required
Technical Sufficiency Review See § 18.10.040.7	Required	Combined with Completeness Review (see § 18.10.2.7). Prioritized review (1).	Required	Required	Combined with Completeness Review (see § 18.10.2.7). Prioritized review (1).
Referrals See § 18.10.040.8	Required at the discretion of the Director	Required at the discretion of the Director	Required	Required	Required
City Staff Review See § 18.10.040.9	Required	Required	Required	Required	Required
Public Notice See § 18.10.040.11	See Table 18.10.04011	See Table 18.10.04011	See Table 18.10.04011	See Table 18.10.04011	See Table 18.10.04011
Public Meetings or Public Hearings See §§ 18.10.040.12 and 18.10.040.13	Not Required	Not Required	Required	Required	Required
Appeals § 18.10.040.15	Pending Application for Appeal	Pending Application for Appeal	Pending Application for Appeal	Pending Application for Appeal	Pending Application for Appeal
Recording of Approvals See § 18.10.040.16	As provided in Section 18.10.040.16	As provided in Section 18.10.040.16	As provided in Section 18.10.040.16	As provided in Section 18.10.040.16	As provided in Section 18.10.040.16

Table Note:

(1) Application with prioritized review shall be completed prior to review of other application review deadlines or expectations as if it were applied for first on a first-come, first-served basis. (Ord. No. 2290, § 3, 3-10-2026; Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.01 Pre-application meeting.

(1) *Generally.* Where required by table 18.10.040.1 or required at the discretion of the director for an administrative approval, a pre-

application meeting with the department shall be requested by interested parties to facilitate dialogue between the city staff and the requestor

regarding the proposed development plan and application process(es), and potential requirements based on the conceptual plan.

(2) *Pre-application submittals.* At the time of a request for a pre-application meeting, the applicant is encouraged to submit a site analysis and concept plan of the proposed development indicating the following items:

- (a) A concept description with site analysis which should include site context, and physical and visual conditions, location and size of existing structures, vegetation, public streets and access, and other information that may be relevant.
- (b) A concept plan which shows property boundaries, existing streets abutting the site, drainage channels, adjacent land uses, existing and proposed structures, parking and access areas, and landscape features.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.02 Ex parte communications.

(1) *Generally.* Ex parte communications are communications between applicants or others (including, but not limited to, city residents) and planning commissioners, historic preservation board members, or city council members about the merits of a pending application outside of a noticed public hearing at which the application will be heard or in which an administrative appeal may be heard. It is the policy and practice of the city to decide applications and appeals only on the merits presented in the application or petition for appeal, in on-record public comments, and during testimony at public hearings (if public hearings are required). Ex parte communications are not allowed.

(2) *Timing.* The prohibition on ex parte communications begins on the date that an application that is subject to review by city council and appointed boards, commissions and authorities is filed pursuant to the requirements of this Code, and ends when the appeal period for the decision on that application has expired.

(3) *Inadvertent communications.* It is not always possible to prevent ex parte communications. The planning commissioners, historic preservation board members, and city council members shall not privately discuss the merits of a pending application or appeal. If a communication is received outside of the record (e.g., it is not in the application, agency comments, or public comments, nor was it presented at a noticed public hearing), then the commissioner or member shall disclose the communication, including the speaker and the substance of the communication, on the record of the public hearing before the application is heard. The decision-maker or recommending body must base its decision only on the evidence presented on the record. The contents of the ex parte communication shall not be considered part of the record for decisionmaking unless the information in the communication is also presented at the hearing (other than through the required disclosure). (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.03 Neighborhood meeting.

(1) *Generally.* Unless waived or deferred by the director, prior to submitting an application that is subject to a neighborhood meeting requirement (see table 18.10.040.1, standardized development review and approval procedures), the potential applicant shall attend a neighborhood meeting to meet with residents and owners of property in the vicinity of the subject property.

(2) *Scheduling and fees.* Upon the submittal of a nonrefundable pre-application fee, as set by the city council, to be applied toward the application fee if the applicant continues with the request, the department shall schedule the neighborhood meeting, and then provide the following types of notice pursuant to section 18.10.040.11, public notice:

- (a) Extended mail notice pursuant to section 18.10.040.11.(3)(c);
- (b) Posted notice pursuant to section 18.10.040.11.(4); and
- (c) Electronic published notice pursuant to section 18.10.040.11.(5).

(3) If a neighborhood meeting is required, the applicant shall include a written meeting summary of the discussion that occurred at the neighborhood meeting with the formal application. At a minimum, the neighborhood meeting summary shall include the following information:

- (a) A summary of topics discussed by the applicant and concerns, issues, and problems expressed by participants; and
 - (b) A summary of how the applicant has addressed identified issues and a summary of the issues that will not be addressed, including the applicant's reasoning regarding why those issues cannot or should not be addressed.
- (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.04 Application.

(1) *Generally.* The director is authorized to establish application methods and submittal requirements for all applications under this Code, and to update and amend such methods and requirements as necessary to ensure effective and efficient review. The director also shall have the authority to request additional information from an applicant when necessary to thoroughly evaluate an application for compliance with this Code.

(2) *Waiver of application materials.* The director may waive specific application requirements:

- (a) To tailor the requirements to the information necessary to review a particular application; or
- (b) In instances where the director finds that the projected size, complexity, anticipated impacts, or scope of a proposal creates a negligible risk of error in the absence of the information such that the additional information is not warranted.

(3) *Complete application required.* All applications shall be complete before any substantive review of the application will begin. An application is complete when the director finds that it is submitted in the required form, the application fee has been paid (see section 18.10.040.5, applica-

tion fees and escrows), and all submittal requirements and additional information requested by the director have been provided.

(4) *Eligible applicants.* Applications may be filed by the owner of record of the subject property or, upon proof of owner consent, the purchaser under a contract to acquire the property, a tenant of the property, or a duly authorized agent of the owner of record.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.05 Application fees and escrows.

(1) *Generally.* Applications shall be accompanied by an application fee established by the city council.

(2) *Waiver for city-initiated applications.* Application fees shall not be required for applications initiated by or at the direction of the city council, the planning commission, the historic preservation board, the director, or the director of another department or agency of the city.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.06 Completeness review.

(1) *Generally.* The director shall review all submitted applications for completeness. A complete application includes all the required materials, materials requested at the pre-application conference, any required professional certifications, and all fees and escrows that are required for application processing. Completeness review does not address the merits of the information presented. Instead, it is to ensure that the basic application requirements have been met.

(2) *123 Affordable Housing Go! Program applications.* An application seeking to participate in the 123 Affordable Housing Go! Program shall include a signed affidavit stating the total number of proposed dwelling units, total number of affordable housing units, AMI levels, duration of affordability, mechanism to ensure affordability, and other information the applicant deems relevant to demonstrate that the application

qualifies. The director shall determine whether the application qualifies for such participation during the completeness review phrase.

- (a) If the director determines that the application qualifies, then technical sufficiency review (see section 18.10.2.8) shall be completed in conjunction with the completeness review required by this section. An application that qualifies for participation in the 123 Affordable Housing Go! Program shall not be considered complete unless it is also technically sufficient.
- (b) If the director determines that the application does not qualify, the director shall notify the applicant regarding the director's determination and the reasons therefor.
- (3) *Schedule.* Generally, all applications shall be reviewed for completeness within seven calendar days after an application is submitted.
- (4) *Incomplete applications.*
 - (a) Incomplete applications will not be processed. Such applications will be held, and the director shall provide the applicant with a written summary that describes in general terms the materials that must be submitted to complete the application.
 - (b) An application that does not include payment of the applicable fees shall not be considered complete.
 - (c) The city may terminate an incomplete application and return any fees as appropriate and applicable if the materials that are required to complete the application are not submitted within 60 days after the date of the written summary described in subsection (4)(a), above.
- (5) *Complete applications.*
 - (a) Upon a determination that an application is complete, the director shall notify the applicant in writing that the application has been determined and accepted as complete.

- (b) For the purposes of calculating time periods under the 123 Affordable Housing Go! program and the administrative fast-track program, the date the director determines in writing that the application is complete and technically sufficient shall be the date of submittal of the complete application.
- (c) Complete applications shall be processed according to the applicable procedures of this Code.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.07 Technical sufficiency review.

(1) *Generally.* All applications shall be technically sufficient for review, meaning that:

- (a) The application materials are internally consistent and are presented as required by this Code and the applicable application forms and formats.
- (b) Materials are prepared by qualified professionals (where such qualifications are required), and signatures and certifications are present, if required.
- (c) The application materials are technically sufficient (e.g., legal descriptions and calls and distances on surveys describe closed polygons within acceptable tolerances, calculations that are provided are performed according to the methodologies set out in this Code, etc.) to demonstrate compliance with applicable standards of this Code.

(2) *Insufficient applications.* An application is technically insufficient if it does not meet the standards of subsection (1), above. If an application is determined to be insufficient, the director shall notify the applicant and provide a written explanation regarding the materials that must be submitted, or revisions that must be made, in order to continue processing the application.

(3) *Sufficient applications.* Technically sufficient applications shall be processed according to the applicable standards and procedures of this Code.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.08 Referrals.

(1) *Generally.* Applications may be referred for additional review by departments, entities, or agencies (including but not limited to other city departments, state or federal agencies, local government jurisdictions, ditch companies, land management entities, utilities, special districts, and other entities or organizations that have been designated by city council ordinance or resolution to receive referrals, and collectively, "referral agencies"), or by consultants, according to the procedures set out in this section.

(2) *Inter-jurisdictional referrals.*

- (a) As part of the review process, the city may seek review and comment by referral agencies that have expertise in the subject matter impacted by the application, that have jurisdiction over one or more aspects of the proposed development, or whose operations will likely be affected by the proposed development. Referral agency comments are advisory in nature.
 - (b) The director may refer an application to a referral agency that the director determines is likely to be materially affected by the application, or whose input would assist the director in determining compliance with this Code. The director's determination regarding such referrals is not appealable.
 - (c) The director shall refer applications as required by law.
- (3) *Referral period.*
- (a) The agency referral period is 21 calendar days, which can be extended by up to 30 additional days by mutual consent of the applicant and the director.
 - (b) For projects in the 123 Affordable Housing Go! program, the agency referral period is 14 days and can occur concurrently while an application is scheduled and noticed for public hearing.
 - (c) Failure of a referral agency to respond within the prescribed time period (or

extended period) is interpreted as consent by that agency to the contents of the application. However:

- 1. Such consent does not waive the authority of agencies which have concurrent jurisdiction with the city; and
- 2. Such consent is not implied if the applicant fails to pay the agency's required review fees.

(d) *Consultant review.* Upon notice to the applicant, the director may refer the application to consultants selected by the city, to obtain technical review and recommendations. The cost of such referrals shall be borne by the applicant. (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.09 City staff review.

(1) *Generally.* Upon determination that an application is complete and sufficient, the director shall cause the application to be reviewed for technical compliance with all applicable requirements of this Code, as follows:

- (a) Appropriate city staff or consultants shall review the application; and
- (b) As applicable, the application shall be promptly distributed for review and comment as provided in section 18.10.040.8, referrals.

(2) *Recommended revisions.*

- (a) The director shall provide comments from city staff or consultants (collectively, "staff comments"). The staff comments shall provide input and address or include comments by referral agencies. The applicant shall revise and resubmit the application with appropriate changes based on staff comments, with responses to staff comments that did not result in changes to the application, and necessary requests or applications for adjustments or variances where the application cannot or will not meet the technical requirements of the code.
- (b) Considerations for 123 Affordable Housing Go! applications: The staff review

shall start with the completeness and technical sufficiency review. For applications deemed complete and technically sufficient, staff review comments should be provided to the application within three days of the determination of completeness. The city may use its extension pursuant to C.R.S. 29-32-105 if Staff Review comments are substantive or an applicant response is not timely received such that an extension is appropriate and shall provide notice of the extension in writing.

- (c) Upon receipt of the re-submittal, the director may refer the application to referral agencies again if the changes substantially affect the interests of the agency in ways not anticipated by the agency's original comments (or lack thereof) or require the agency's technical expertise for appropriate review.

(3) *Resubmittals; additional fees.* A re-submittal fee established by city council shall be due upon a fourth submittal (third re-submittal after initial submittal) if:

- (a) The revisions substantially alter the application or are inappropriate or incomplete; or
- (b) The fourth round of review is required due to a repeated failure to address the same or substantially similar comments.

(4) *Administrative recommendation, decision, or referral.* Promptly after determination that a complete and sufficient application addresses the comments and recommendations provided pursuant to subsection (2), above (or, after finding that no revisions will be required):

- (a) If the application is for an administrative approval or permit, then the director shall:
 1. Approve, approve with conditions, or deny the application, as appropriate; or
 2. Upon a determination that the development, as proposed, may have material impacts on neighboring properties or city resources that are

unusual in kind or degree, or that there is material potential for disagreement regarding whether the application complies with the standards of this Code, the director may refer the application to the planning commission or historic preservation board for review and recommendation and city council for decision, as applicable, provided that such referral is authorized by this Code.

- (b) If the application is for a discretionary approval or permit, then the director shall make a recommendation regarding the application and forward the recommendation and the application materials and referral comments to the next body that will consider it for further recommendation or approval.

(5) *Meeting logistics.*

- (a) If the application is for a discretionary approval or permit, then the director shall set the application on the agenda of the next body that will consider the application.
- (b) Generally, the application shall be heard during the next regular meeting of the recommending or decision-making body that meets the following three conditions:
 1. There is sufficient time to satisfy applicable public notice requirements;
 2. There is available room on the agenda; and
 3. The applicant is available to attend or has waived their right to attend the public hearing.
- (c) If the applicant proposes a qualifying affordable housing development and is participating in the 123 Affordable Housing Go! program, the application shall receive priority agenda placement on the first available agenda compared to other land use matters that are not in the 123 Affordable Housing Go! program. Non-

123 Affordable Housing Go! applications may be moved on an agenda or scheduled on a future agenda pending meeting capacity.

- (d) The director shall coordinate with recommending and decision-making bodies to fix reasonable times for hearings. Said bodies are authorized to convene special meetings to hear applications as they determine appropriate. Applications that are proceeding under the 123 Affordable Housing Go! program shall receive consideration regarding special meetings to ensure timely processing and decision. (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.40.10 Expired applications.

(1) Applications under this Code shall be diligently pursued by the applicant. When an action by an applicant is required for further processing of an application, the application shall become void 180 days after the date the director provides notice of the required action if the applicant either fails to take the required action or fails to obtain an extension. The director may approve an extension of up to 180 additional days to take the required action,

provided that the director receives a written request for the extension from the applicant prior to the date the application would otherwise be rendered void.

(2) Considerations for 123 Affordable Housing Go! applications: An application in the 123 Affordable Housing Go! program that has not responded to completeness, technical sufficiency, or Staff Review comments will automatically be extended by 30 days subject to the applicable extension provisions of C.R.S. § 29-32-101, et seq. Continued non-responsiveness in addressing all review comments by the final decision deadline with all applicable extensions exhausted per C.R.S. § 2932-101, et seq. shall be automatically be deemed void, denied and administratively withdrawn by the director.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.11 Public notice.

(1) *Generally.* Public notice of public meetings and public hearings shall be given as set out in table 18.10.040.11, Required Notice. The failure to strictly comply with the requirements of this section shall not affect the validity of the affected proceeding.

(2) *Timing.* Public notice shall be timed as set out in table 18.10.2.11, timing by notice type.

Table 18.10.040.11, Timing by Notice Type

<i>Application Type</i>	<i>Mailed Notice</i>	<i>Posted Notice</i>	<i>Electronic Notice</i>
General	Not less than 14 days but not more than 21 days	Not less than 14 days	Not less than 14 days
City Council Second Reading / Public Hearing	Not less than 14 days but not more than 21 days	Not less than 14 days	Not less than 7 days
123 Affordable Housing Go!	Not less than 7 days but not more than 21 days	Not less than 7 days but not more than 21 days	Not less than 7 days but not more than 21 days

(3) *Mail notice.*

- (a) *Generally.* Mail notice shall be provided at the applicant's (or, for appeals, appellant's) expense in accordance with the minimum requirements of this subsection (3).
- (b) *Lists.* The department will prepare a mailing list of the owners and residents

of real property, all or part of which is situated within the radius specified in subsection (c), below ("mailing radius"), extending from the boundaries of the property that is subject to the neighborhood meeting, review, or appeal procedure for which mail notice is required. The mailing list shall be derived from the

records of the Jefferson County Assessor as of not more than 14 days before notice is mailed. Where mailing addresses for properties within the mailing radius are different from the property address, the list shall include the owner at the owner's address and "current resident" at the property address.

(c) *Mail radius.* The mailing radius shall be:

1. Two hundred and 50 feet for "standard mail notice;" and
2. Seven hundred and 50 feet for "extended mail notice."

(d) *Contents.* Mail notices shall set out:

1. The address or, if the property is not addressed, the description of the property that is the subject of the neighborhood meeting, public hearing, or appeal;
2. The name of the applicant;
3. A statement as to type of proceeding noticed (e.g., neighborhood meeting, public hearing, or appeal), and a short statement regarding the nature of the proceedings;
4. The date, time, and location of the neighborhood meeting or public hearing;
5. A statement that interested persons may obtain additional information from the department; and
6. Contact information for the department;
7. A URL and/or QR code that links to the city's web site where additional information may be obtained.

(e) *Method.* Mail notices shall be sent by the department via first-class mail at the applicant's expense, which may be incorporated into the application fee.

(4) *Posted notice.*

(a) *Generally.* Posted notice shall be provided at the applicant's (or, for appeals, appellant's) expense (which may be incorporated

into the application fee) in accordance with the minimum requirements of this subsection (4).

(b) *Sign dimensions and locations.*

1. Signs shall have dimensions approved by the director that are suitable for visibility given the context of the property that is the subject of the notice.
2. Not less than one sign shall be posted. For properties that have more than 300 feet of street frontage, signs shall be posted along street-facing property lines at intervals of not less than 300 feet.
3. Limited access highways shall not be counted as street frontages for the purposes of this section 18.10.030.
4. All posted notices shall remain in place until the neighborhood meeting, hearing, or appeal to which they relate occurs. There shall be a good-faith effort to maintain posted notice continuously through the meeting, hearing, or appeal and removal or damage of posted notices due to weather or human driven events shall be replaced in a timely manner, but shall not nullify that the posted notice requirement has been met.

(c) *Contents.* Posted notice shall set out:

1. The address or, if the property is not addressed, the description of the property that is the subject of the neighborhood meeting, public hearing, or appeal, including a simple location map;
2. The name of the applicant;
3. A statement as to type of proceeding noticed (e.g., neighborhood meeting, public hearing, or appeal), and a brief summary of the nature of the proceedings;

4. The date, time, and location of the neighborhood meeting or public hearing that is the subject of the notice;
5. A statement that interested persons may obtain additional information from the department;
6. Contact information for the department; and
7. A URL and/or QR code that links to the city's web site where additional information may be obtained.

(5) *Electronic published notice.*

- (a) *Generally.* The department shall provide electronic published notice in accordance with the minimum requirements of this subsection (5).

1. All electronic published notices shall remain in place continuously until the neighborhood meeting, hearing, or appeal to which they relate occurs.

- (b) *Contents.* Electronic published notice shall set out:

1. The address or, if the property is not addressed, the description of the property that is the subject of the neighborhood meeting, public hearing, or appeal;
2. The name of the applicant;
3. A statement as to type of proceeding noticed (e.g., neighborhood meeting, public hearing, or appeal), a short statement regarding the nature of the proceedings, and a hyperlink to any application materials that are available on the city's website;
4. The date, time, and location of the neighborhood meeting, application, or appeal that is the subject of the notice;
5. A statement that interested persons may obtain additional information from the department; and
6. Contact information for the department.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.12 Public meetings and public hearings.

Public meetings and public hearings shall be carried out in accordance with the procedural rules of the body conducting the meeting or hearing.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.13 Continuances and withdrawal.

(1) *Continuances.* Requests for continuance by the applicant of any proceeding called for in this Code may be granted at the discretion of the body holding the public meeting or public hearing. If granted, the applicant shall pay all additional costs associated with the rescheduling of the proceeding, including costs of providing public notice, if any.

(2) *Withdrawal.* An application may be withdrawn by an applicant at any time before the public hearing on the application commences, or for applications that are reviewed administratively, before the decision on the application is transmitted to the applicant. To reinstate review, the applicant shall resubmit the application, which in all respects shall be treated as a new application.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.14 Successive applications.

(1) *Generally.* It is the policy of the city not to hear successive applications for the same approval or permit after a substantially similar application is denied. The limitations of this section prevent the consideration of successive applications.

(2) *Time required between substantially similar applications.* If an application for a permit or approval is denied, a substantially similar application will not be accepted for:

- (a) Six months from the date of denial in the case of administrative permits; and
- (b) Twelve months from the date of denial for all other permits or approvals.

(3) *Exceptions to successive application restrictions.* The director may allow exceptions to this section if there has been a material change of

circumstances that justifies consideration of a substantially similar application. By way of example and not limitation:

- (a) If a spacing requirement was the reason for the denial, and the use from which spacing is required moved away; or
 - (b) If a subsequent amendment to this Code was adopted in the interim that allows for approval of the application.
- (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.15 Appeals.

(1) *Generally.* Appealing a decision of the director (division) or planning commission that is made in the course of administration or enforcement of this title 18 or title 17, as provided therein, in circumstances where the correctness of the decision is a matter of dispute.

(2) Applications for relief under this title shall be made in writing upon a form or forms approved by the director and accompanied by the application fee established by city council resolution. The application for appeal shall include the specific reasons that the petitioner alleges that the decision misapplies the regulations set out in this title 18. The director also shall have the authority to request additional information from an applicant when necessary to thoroughly evaluate an application under this title.

(3) Appeals shall be filed with the director within 21 days after the final decision from which the appeal is taken.

(4) Appeals may be filed by:

- (a) The applicant; or
- (b) With regard to special use permits, rezonings, public hearing variances, and major adjustments, any person who is entitled to mailed notice of the hearing that resulted in the decision appealed from.

(5) Untimely applications for appeals shall not be accepted and shall be deemed summarily denied.

(6) Upon a determination that an application for appeal is complete and timely filed, the director shall forward the application to:

- (a) The planning commission, for decisions of the director (department); or
- (b) The city council, for decisions of the planning commission.

(7) *Notice.* The department shall provide notice of the appeal pursuant to chapter 7.10, public notice, in the same manner as notice was provided for the decision from which the appeal is taken.

(8) *Public meeting.* The planning commission or city council, as applicable, shall hold a public meeting upon the appeal in order to determine whether the decision appealed from was based on a reasonable and (if the pertinent section of this title has been applied previously) consistent interpretation.

(9) *Decision.* Upon hearing the appeal, the planning commission or the city council, as applicable, shall, based on the facts in the decision-making record alone, decide to uphold, reverse, or modify the decision from which the appeal is taken, as follows:

- (a) If the planning commission or city council finds that the decision under review was based on a reasonable and (as applicable) consistent interpretation, it shall affirm the decision.
- (b) If the planning commission or city council finds that the decision under review was based on an interpretation that is not reasonable or not consistent, then it shall reverse the decision or modify the decision as necessary to render it reasonable and consistent.
- (c) The planning commission or city council may instruct the director to reissue a modified decision that is consistent with its findings.

(10) *Reporting.* The decision of the planning commission or city council, as applicable, shall be provided to the applicant by electronic mail (or first class mail if an electronic mail address for the applicant is unavailable to the city) and

posted to the city's web site, and a copy of said decision shall also be placed in the case file and be of record with the department.
(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.16 Recording of approvals.

(1) *Generally.* The following permits and approvals shall be recorded in the public records of Jefferson County at the applicant's expense prior to the issuance of building permits that rely upon them:

- (a) Annexation agreements, maps, and ordinances;
- (b) Final subdivision plats;
- (c) Official development plans ("ODPs") and approved addenda to ODPs;
- (d) Ordinance approving an initial zoning or re-zoning;
- (e) Special use approvals;
- (f) Subdivision development agreements, annexation agreements, intergovernmental agreements, public improvements agreements, and reimbursement agreements; and
- (g) Variances.

(2) *Timing.*

- (a) The applicant shall provide conforming approval documentation for execution by the city and recordation (with regard to a final subdivision plat, or official development plan, this shall include final recordable drawings in a form acceptable to the director) within 90 days after the public hearing at which the approval was granted (or, for administrative approvals, 90 days after the approval was granted in writing), or such other time as specifically authorized by the decision-maker at the time of approval.
- (b) Conforming approval documentation shall include:
 - 1. All required signatures with notary and professional stamps when applicable except those to be provided by the city; and

2. All modifications that were required as conditions of approval.

- (c) Upon the failure of an applicant to timely submit conforming approval documentation, the director shall provide notice to the applicant to submit the required approval documentation within 30 days or request an extension, which the director may grant for good cause. If approval documentation has not been received by the deadline:

- 1. For administrative approvals, the director may find that the submittal is untimely and void the approval; or
- 2. For discretionary approvals the approval authority, by resolution, may find that the submittal is untimely and void the approval.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.17 Effect of approvals.

(1) *Generally.* It is the intent of the city that development approved pursuant to this Code be carried out in a timely manner pursuant to the specifications, terms, and conditions of approval; and that the steps within each approval process be carried out with diligence.

(2) *Effect of approval or permit.*

- (a) Approval of an application means that the city consents to the particular use, plan, or other specific activity for which the approval was granted. Physical development of land may require a sequence of related (and increasingly detailed) approvals.
- (b) Supplemental materials that are provided in support of an approval become part of the approval (e.g., elevations, lists of building materials, etc.) unless otherwise noted in the approval itself.
- (c) Approvals and permits may be transferred to a subsequent owner of the property for which the approval or permit was issued, unless the approval or permit is specifically designated as non-transferable by condition of approval. Transferred permits

shall continue to be valid for their full original terms, and the transferee may apply for an amendment to the approval or permit in the same manner as the original applicant.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.18 Duration of approvals.

(1) Administrative approvals.

- (a) The administrative approvals described in table 18.10.1.2, administrative approvals and permits, shall lapse as follows, if a complete building permit application has not been submitted to the city with respect to same, or if no building permit is required, if the improvement is not constructed:

1. After one year:
 - A. Administrative variance;
 - B. Minor adjustment;
 - C. Sign permit.
2. After two years:
 - A. Site development plan ("SDP");
 - B. Form zone site development plan ("SDP-FZ").

- (b) Lot line adjustments, minor subdivisions, and administrative PUD amendments do not lapse.

- (c) The terms of temporary lodging licenses are set out in section 18.22.050.

(2) Discretionary approvals.

- (a) Discretionary approvals will lapse and be of no further force or effect if a complete application for the next stage of approval is not filed before the deadline set out in this subsection.

1. One-year from date of approval:
 - A. Public hearing variance;
 - B. Major adjustment;
 - C. Certificate of appropriateness.

2. Two-years from the date of approval, or as provided in the approval resolution:

- A. Preliminary subdivision plat, unless a phasing plan and schedule for final platting is approved with the preliminary plat.

3. Five-years from the date of approval, or as provided in the approval resolution:

- A. Special use permit.
- B. Approved applications as part of the 123 Affordable Housing Go! process or qualifying affordable housing applications.

- (b) Final subdivision plats, initial zonings or rezonings, community landmark designations, historic preservation designations, minor PUD/ODP amendments, new PUDs/ODPs, major PUD/ODP amendments, abandonments of easements or rights-of-way, text amendments to this Code, and decisions on administrative appeals do not lapse.

(3) *Subdivision development agreements.* A subdivision development agreement is valid for the term set out in the development agreement. (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.19 Extensions of approvals.

(1) *Generally.* The term of permits and approvals may be extended by written request according to the standards and procedures of this section.

(2) *Timing of application for extension.* Expired permits and approvals cannot be extended. Written requests for extensions shall be received by the director not later than 30 days prior to the expiration of the permit or approval. Untimely requests for extensions will not be granted unless it is demonstrated that extraordinary circumstances, as determined by the director to justify the request.

(3) *Administrative extensions.* Unless otherwise provided in the permit or approval, the director may grant one extension of any permit or approval for a period not to exceed the original term or 18 months, whichever is shorter. Such extensions may be granted upon timely written request with good cause shown. The director decision to grant an extension or not cannot be appealed.

(4) *Extensions after hearing.*

(a) Unless otherwise provided in the permit or approval, a public hearing is required for:

1. Extensions for terms that are longer than those that can be granted by the director pursuant to subsection (3), above; and
2. Second (and subsequent) extensions.

(b) Extensions of discretionary permits and approvals pursuant to this subsection shall be heard by the decision-making body that granted the original approval. Extensions of administrative permits and approvals pursuant to this subsection shall be heard by the planning commission.

(c) Extensions may be granted after hearing if it is demonstrated that:

1. There is good and reasonable cause for the request; and
2. The applicant has provided reasonable assurances that it will perform (or cause to be performed) the work authorized by the permit or approval within the extended term.

(5) *Extensions pursuant to approved terms.* If a method of extension is provided within a permit, approval, or a related development agreement, then such method of extension shall supersede this section (except subsection (7), below) with respect to said permit or approval.

(6) *Effect of appeals, litigation, or mediation.*

(a) If, during the term of the permit or approval granted by the city, an appeal, litigation, or mediation is brought against

the city with regard to the correctness or validity of said permit or approval, and that appeal, litigation, or mediation limits the applicant's ability to use or develop land pursuant to the permit or approval, then the term of the permit or approval shall be tolled for the duration of the appeal, litigation, or mediation, and the date shall be recalculated upon conclusion of the appeal, litigation, or mediation.

(b) The new expiration date shall be established by adding the number of days that the permit or approval would have remained valid before the appeal, litigation, or mediation commenced to the date the appeal, litigation, or mediation was concluded by:

1. The expiration of the subsequent appeal period after final judgment or order in the initial appeal or litigation, or, if no appeal is available, after issuance of the final judgment or order; or
2. The termination of mediation by resolution of the conflict or impasse.

(c) This subsection does not apply to:

1. Litigation brought by the city to enforce this Code or a condition of approval, or to terminate, rescind, or invalidate an approval as provided herein or by other applicable law; and
2. Litigation that does not involve the city as a party.

(7) *General extensions for extraordinary circumstances.* The city council may, by resolution, extend the term of all permits and approvals city-wide or in designated areas of the city in response to extraordinary circumstances, such as flood, wildfire, tornado, pandemic, or other natural or man-made disaster which makes it temporarily infeasible to commence or continue with construction. The period of such extensions shall be determined by the city council. (Ord. No. 2252, § 2(Exh. A), 1-28-2025)

18.10.040.20 Correction of approvals.

(1) *Generally.* Permits and approvals may be corrected pursuant to this section.

(2) *Correction of recorded final subdivision plats.* If it is discovered that there is a minor survey or drafting error in a recorded final subdivision plat, a request, in writing, to record a corrected subdivision plat shall be submitted to the director. The request shall be accompanied with an affidavit witnessed by a professional land surveyor. The surveyor witnessing this corrected plat shall be an impartial observer having no personal interest in the platted land. The director shall thereupon record the corrected plat at the applicant's expense.

(3) *Correction of scrivener's errors.* Development approvals other than final plats may be corrected by the director or upon application to the director as follows:

(a) *Generally.* The director may approve an application to reform a scrivener's error in a development approval, including an error in an application or notice, which error causes the permit or approval to inaccurately reflect the decision-maker's intent, and where it is demonstrated that:

1. The correction does not include a change of judgment, policy, or prior intent of the decision-maker;
2. The reformation of the permit or approval is essential to ensure that the documentation reflects the intent and decision of the decision-maker;
3. The record, including, but not limited to, the staff recommendation, minutes, and motion, evidences the clear intent of the decision-maker;
4. The substance of the decision was clearly evident at the time of the decision, and there was no intent to deceive the public or the decision-maker on the part of the current applicant at any time;
5. Failure to approve the reformation would lead to an unjust result;

6. The error in the development approval did not mislead anyone in a way that would cause them to be prejudiced by the reformation; and

7. Any errors related to public notice did not affect the legal sufficiency of the required notice.

(b) *Correction within 30 days.* In the alternative to the procedure set out in subsection (3)(a), the director, within 30 days after the decision on an application for development approval, may correct a clerical or scrivener's error in the development approval if:

1. The error is not related to public notice;
2. The error causes the approval, as written, to inaccurately reflect the clear decision of the decision-maker; and
3. The director promptly notifies the applicant and the decisionmaker regarding the corrections.

(4) *Effect of correction on original approval.* A permit or approval that is modified pursuant to this section shall relate back to the date of the corrected approval, such that the effective date of the corrected language shall be deemed to be the same as the effective date of the original approval.

(Ord. No. 2252, § 2(Exh. A), 1-28-2025)

Chapter 18.12

VARIANCES UNDER TITLE 18*

18.12.010—18.12.030. Reserved.

***Editor's note**—Sec. 2, exhibit D, of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.12 in its entirety to read as herein set out. Former ch. 18.12 pertained to the same subject matter, consisted of §§ 18.12.010—18.12.060, and derived from Ord. No. 1010, 1986; Ord. No. 1021, 1987; Ord. No. 1179, 1993; Ord. No. 1435, 1999; Ord. No. 1517, 2000; Ord. No. 1670, 2004; Ord. No. 1878, 2010; Ord. No. 1997, adopted December 11, 2014; and Ord. No. 2110, adopted June 13, 2019.

18.12.110 Administrative variances.

(1) *Application Process.* See Sections 18.10.020 and 18.10.040 for application process.

(2) *Approval standards.* The administrative variance may be granted if it is demonstrated that:

- (a) The administrative variance is necessary to overcome a practical difficulty that is presented by the unusual physical conditions of the lot, which may include the location and configuration of existing buildings, structures, or natural features; and
- (b) Relief may be granted without altering the essential character of the neighborhood and without substantial detriment to public good; and
- (c) With regard to sign height or sign area, the increase in sign height or sign area does not exceed ten percent.
- (d) With regard to decreasing the number of required parking spaces, the decrease does not exceed five percent of the number of parking spaces that are otherwise required.

(3) *Approval conditions.* The director may impose conditions of approval that will secure substantially the objectives of the standard that is modified, and that will substantially mitigate potential adverse impacts on the environment or on adjacent properties.

(Ord. No. 2252, § 4(Exh. C), 1-28-2025; Ord. No. 2209, § 2(Exh. D), 6-6-2023)

18.12.210 Public hearing variances.

(1) *Application process.* Applications for public hearing variances may be approved by the planning commission as provided herein. Such applications shall be filed with the director as provided in section 18.12.030. Upon a determination that the application is complete, the application shall be placed on the public hearing agenda of the planning commission.

(2) Limitations.

- (a) *Form zones.* No application for public hearing variance shall be approved within a form zone with regard to a standard or guideline that is otherwise subject to adjustment under division VII of chapter 18.29. Such matters shall be processed as provided in division VII of chapter 18.29.
- (b) *Land use and residential density.* No application for public hearing variance shall be approved that would have the effect of allowing a use of land or buildings that is not otherwise allowed by this title, or a number of residential dwelling units that is not otherwise allowed by this title.
- (c) *Planned unit development (PUD).* No application for public hearing variance shall be approved that adjusts any standards pertaining to a PUD unless the use of the variance procedure is authorized by the PUD official development plan (ODP) or the ordinance approving the PUD/ODP.

(3) *Notice.* See section 18.10.040 for notice procedures.

(4) *Approval standards.* The planning commission shall grant the requested variance if it is within the limitations set out in subsection (2), above, and it is demonstrated that:

- (a) There are unique physical circumstances or conditions present with respect and peculiar to the subject property such as exceptional irregularity, narrowness, or shallowness, or exceptional topographic or other physical conditions, or other extraordinary and exceptional situation or condition, which circumstances or conditions were present at the time of the enactment of the standard from which the variance is sought;
- (b) Due to the circumstances or conditions set out in subsection (4)(a), above, the strict application of the subject standard

would result in peculiar, exceptional, and undue hardship upon the owner of such property;

- (c) The variance, if granted, will not result in substantial detriment to the public good or substantially impair the intent and purpose of this title; and
- (d) The variance, if granted, will not alter the essential character of the neighborhood in which the property is located, nor substantially or permanently impair the appropriate use or development of adjoining property.

(5) *Approval conditions.* The planning commission may impose conditions of approval that will secure substantially the objectives of the standard that is modified, and that will substantially mitigate potential adverse impacts on the environment or on adjacent properties, including, but not limited to, additional landscaping or buffering.

(Ord. No. 2252, § 4(Exh. C), 1-28-2025; Ord. No. 2209, § 2(Exh. D), 6-6-2023)

Chapter 18.16

RESERVED*

Chapter 18.20

APPLICATION OF REGULATIONS†

18.20.010 Establishment of use districts.

(1) The city is divided into the following use districts: CO, conservation.

AG, agricultural.

RE, residential estate.

***Editor's note**—Sec. 1 of Ord. No. 2058, adopted July 13, 2017, repealed, in its entirety, ch. 18.16, which pertained to the planning commission, consisted of §§ 18.16.010—18.16.060, and derived from Ord. 240, 1978; Ord. 359, 1964; Ord. 387, 1956; Ord. 579, 1967; Ord. 656, 1972; Ord. 788, 1978; Ord. 1833, 2008; and Ord. 1959, 2013.

†Editor's note—Sec. 2(exhibit E), of Ord. No. 2209 adopted June 6, 2023, amended ch. 18.20 in its entirety to read as herein set out. Former ch. 18.20 pertained to the same subject matter, and derived from Ord. No. 682, 1973; Ord. No. 1179, 1993; and Ord. No. 1791, 2007.

R1, residential standard lot.

R1A, modified residential.

R2, low density multiple household.

R3, multiple household.

RM, mobile home.

RC, limited residential - commercial.

C1, limited commercial.

C2, general commercial.

M1, limited industrial.

M2, general industrial.

CMU-CC1, community mixed use community corridor 1.

CMU-CC2, community mixed use community corridor 2.

CMU-NC, community mixed use neighborhood center.

PUD, planned unit development.

(2) The use districts are described in detail in chapter 18.28 of this title.

(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

18.20.020 Establishment of form zones.

(1) In addition to use district standards, additional form, bulk, design, parking layout, access, landscaping, fencing, and perimeter wall standards may be applicable to a property depending on whether the property is situated within one of the following form zones:

FC, core.

FT, transition.

FE, edge.

FOE, outer edge.

FP, peripheral.

FNC, neighborhood corridor.

FMA, Main Street A.

FMB, Main Street B.

FS, strip.

(2) These form zones are described in detail in chapter 18.29 of this title.
(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

18.20.030 Zoning maps.

(1) The boundaries of use districts hereby established are as shown on a map entitled "Zoning District Map of the City of Golden, Colorado", dated the tenth of March, 1960, which map and all notations, references, official amendments, data and other information shown thereon are by reference made a part of this title.

(2) The boundaries of form zones are hereby established as shown on a map entitled "City of Golden Form Zones Map", dated June 2023, which map and all notations, references, official amendments, data and other information shown thereon are by reference made a part of this title.

(3) In the event uncertainty exists on the maps described in subsections (1) or (2) of this section, use district and form zone boundaries shall be on section lines; lot lines; the centerline of highways, streets, alleys, railroad rights-of-way, or such lines extended; municipal corporate lines; natural boundary lines, such as streams; or other lines to be determined by the use of scales shown on the applicable map.

(4) Where a lot is divided by a use district boundary line the less restrictive use district requirements may be extended within the lot into the more restrictive use district for a distance of not more than 25 feet. Where a lot is divided by a form zone boundary line the less restrictive form zone requirements may be extended within the lot into the more restrictive form zone for a distance of not more than 25 feet.

(5) The official maps described in subsections (1) and (2) of this section shall be maintained and kept up to date at all times by the city clerk. Copies of the map shall be available for public use.
(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

18.20.040 General application.

Except as hereinafter otherwise provided:

(1) No land, building, or premises may be used for any purpose or in any manner

other than that which is permitted or approved in the district in which such building, land or premises is located.

(2) No building shall be erected, nor shall any existing building be altered, enlarged or rebuilt, nor shall any open space surrounding any building be encroached upon and reduced in any manner, except in conformity with the standards set forth in this title.

(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

18.20.050 Exception to minimum lot area and frontage.

Where an individual lot or parcel is held in separate ownership from adjoining properties, and was legally established with less area or less lot frontage than required in this title, the minimum lot area or lot frontage requirement as provided in this title shall not apply to said lot, provided that the lot is used for a single household dwelling only.

(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

18.20.050 Director of community development.

(1) It shall be the duty of the director to interpret and administer the regulations and requirements contained in this title 18. The director may delegate to any employee of the city any of the responsibilities assigned to the director by this title 18. The designee shall be subject to the same restrictions and standards as are applicable to the director.

(2) No oversight or dereliction or error on the part of the director or on the part of any other official or employee of the City of Golden shall legalize, authorize, or excuse the violation of any of the provisions of this title 18.

(Ord. No. 2209, § 2(Exh. E), 6-6-2023)

Chapter 18.22

TEMPORARY LODGING REGULATIONS

18.22.010 Definitions.

For the purpose of this chapter, the following words shall have the following meanings:

Director. "Director" shall mean the director of the city's community and economic development department, or such other department as is designated by the city manager to administer title 18 of the Golden Municipal Code.

Primary residence. "Primary residence" means a dwelling unit that is the usual place of return for housing of a person as documented by at least two of the following: Motor vehicle registration, driver's license, Colorado state identification card, voter registration, or tax documents. A person can only have one primary residence. For purposes of this chapter, "person or persons" shall not include any corporation, partnership, firm, association, joint venture, or other similar legal entity.

Short-term rental. "Short-term rental" means any dwelling, dwelling unit or portion of any dwelling unit rented or leased for valuable consideration to a particular person or persons for periods of time less than 30 days, but excludes commercial boarding and rooming houses, hotels, motels, or tourist homes. A short-term rental is a use that is accessory to such dwelling or dwelling unit.

(Ord. No. 2271, § 4(Exh. C), 8-12-2025; Ord. No. 2078, § 8, 5-24-2018)

18.22.020 License required.

(a) Short-term rentals and tourist homes are prohibited within the city unless a license has been duly issued therefore pursuant to this chapter and in compliance with any and all applicable city laws.

(b) It shall be unlawful to operate any short-term rental or tourist home in the city unless a license has been duly issued therefore pursuant to this chapter and in compliance with any and all applicable city laws.

(c) It shall be unlawful to allow, or offer to allow through advertisement or otherwise, any person to occupy any property as a tenant or lessee of a short-term rental or tourist home unless such property unit has been licensed pursuant to this chapter.

(d) No person shall advertise a short-term-rental or tourist home, unless the advertisement includes the license number and the maximum unrelated occupancy permitted in the unit. For the purpose of this section, the terms "advertise," "advertising" or "advertisement" mean the act of drawing the public's attention to a short-term rental or tourist home in order to promote the availability of the licensed premises.
(Ord. No. 2078, § 8, 5-24-2018)

18.22.030 Application for license.

(a) An application for a license shall be submitted to the director and shall be signed by the fee owner of record of the property to be licensed or an individual authorized by the fee owner of record.

(b) All license applications shall be submitted on a form supplied by the director, which shall include such information as is reasonably necessary for the director to act on such application.

(c) The applicant must specify which portions of the dwelling or dwelling unit will constitute the licensed premises available for use by renters.

(d) The director, or his or her designee, may require additional information and documentation as may be necessary to determine whether an application meets the requirements of this chapter.

(e) The applicant shall self-certify that the information on the application is accurate and truthful under penalty of perjury under the laws of the State of Colorado.

(f) All license applications, including applications for renewal of existing licenses, shall be accompanied by the payment in full of all fees as required by city council by adoption of a fee resolution.

(g) Applicants and licensees shall inform the director in writing of any material change to the information submitted on an application for a license within 30 calendar days of a change. (Ord. No. 2078, § 8, 5-24-2018)

18.22.040 License not transferable.

Licenses issued under this chapter are not transferable. (Ord. No. 2078, § 8, 5-24-2018)

18.22.050 Term of license and renewal.

(a) Licenses issued pursuant to this chapter shall be valid for a period of two calendar years from the date of issuance. Licenses must be renewed bi-annually.

(b) Applications for renewals of a short-term rental or tourist home license are subject to all application and licensing and operation requirements set forth in this chapter that apply to new licenses.

(c) Any formally established violation of the provisions of this chapter may be considered during the license renewal review and may result in non-renewal. (Ord. No. 2078, § 8, 5-24-2018)

18.22.060 Display of license.

The license number shall be prominently displayed in all listings or advertising of the licensed premises. (Ord. No. 2078, § 8, 5-24-2018)

18.22.070 Refusal to grant, suspension, revocation, nonrenewal of license.

(a) The director may refuse to grant an initial license, or suspend, revoke, or not renew any license requested or issued pursuant to this chapter if the director determines, after conducting a hearing pursuant to chapter 2.35 of the Code, that any of the following have occurred:

- (1) Fraud, material misrepresentation or false statement in the initial application for the license or any renewal application; or
- (2) Failure to comply with the terms or conditions of the license, the provisions

of this chapter, or any other application provision of federal, state, or local law including, but not limited to, the Golden Municipal Code.

(b) An applicant or licensee may appeal any decision of the director under this chapter to the planning commission in accordance with section 18.12.040. Planning commission's decision shall be final.

(c) If the director finds that a violation of any provision of this chapter exists, the director, after notice to the licensee, may take any one or more of the following actions to remedy the violation:

- (1) Impose a civil penalty according to the following schedule:
 - (i) For the first violation of the provision, \$150.00;
 - (ii) For the second violation of the same provision, \$300.00; and
 - (iii) For the third violation of the same provision, \$1,000.00.
- (2) Revoke the license;
- (3) Issue any order reasonably calculated to ensure compliance with this chapter.

(d) The director's authority under this section is in addition to any other authority the director has to enforce this chapter, and election of one remedy by the director shall not preclude resorting to any other remedy as well.

(e) The director shall not accept a new application from the same licensee for the same dwelling, dwelling unit or units after revocation of a license:

- (1) For at least six months following the revocation; and
 - (2) Unless the applicant demonstrates compliance with all licensing requirements.
- (Ord. No. 2078, § 8, 5-24-2018)

18.22.080 Short-term rentals.

Short-term rentals, as defined in section 18.22.010 and where allowed per chapter 18.28, shall comply with the following regulations:

- (a) *Ownership.* The licensee must be the fee owner of record of the licensed property.
- (b) *Primary residence.* It shall be unlawful to operate a short-term rental in any location that is not the licensee's primary residence.
- (c) *Permitted structures.* Primary and accessory structures are allowed. All structures shall comply with the regulations for primary and accessory structures, including maximum size, height, lot coverage, and setbacks, for the property's zone district.
- (d) *Number of short-term rentals per lot.* If a lot contains more than one legal dwelling unit, including accessory dwelling units, only one dwelling unit on such lot is eligible for licensure as a short-term rental under this chapter.
- (e) *Owner occupancy requirement.* The licensee must occupy or reside in the licensed premises, or on the lot upon which the licensed premises is located, for at least ten months in any given calendar year throughout the term of the license.
- (f) *Sales and use tax license required.* It shall be unlawful to operate a short-term rental without having first obtained a valid City of Golden sales and use tax license for the property or dwelling unit to be utilized as a short-term rental.
- (g) *Occupancy.* The occupancy of a short-term rental shall not exceed four adults and their dependents, if any.
- (h) *Parking requirements.* Parking requirements for the property shall meet the number of off-street parking spaces as would otherwise be required to serve residential uses for the specific area of the city in which the licensed premises is located, as set forth in sections 18.36.025

and 18.36.030. Notwithstanding anything to the contrary in section 18.36.010 or 18.44.510, properties with nonconforming parking shall be required to come into compliance with applicable parking requirements (a variance from the parking requirements may also be used to demonstrate compliance). The location of required parking shall be identified in the license application.

- (i) *Safety requirements.* Each short-term rental shall be equipped with an operational smoke detector, carbon monoxide detector, and fire extinguisher on the licensed premises during each short-term rental occupancy. It shall be unlawful to operate a short-term rental without a smoke detector, carbon monoxide detector or fire extinguisher. The director or his/her designee may inspect the dwelling unit proposed to be licensed for the purpose of verifying compliance with such requirements. Refusal by the applicant to allow such inspection shall be grounds for denial, non-renewal or revocation of a license.
 - (j) *Insurance.* The licensee must provide and maintain fire, hazard and liability insurance within the liability coverage limits set by the director.
 - (k) *Compliance with other laws.* The dwelling or dwelling unit to be licensed must comply with all applicable federal, state and local laws, including, but not limited to, the Golden Municipal Code.
- (Ord. No. 2228, § 3, 2-13-2024; Ord. No. 2078, § 8, 5-24-2018; Ord. No. 2271, § 4(Exh. C), 8-12-2025)

18.22.090 Tourist homes.

Tourist homes, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (a) *Ownership.* The licensee must be the fee owner of record of the property to be licensed.
- (b) *[Reserved].*

- (c) *Permitted structures.* If a lot contains more than one building, the director shall issue separate licenses for individual buildings. Such license shall cover all dwelling units or guest rooms within such buildings. All structures shall comply with the regulations for the property's underlying zone district.
- (d) *Sales and use tax license required.* It shall be unlawful to operate a tourist home without having first obtained a valid City of Golden sales and use tax license for the structure or building to be utilized as a tourist home.
- (e) *Occupancy.* The occupancy of a tourist home shall not exceed four adults and their dependents, if any.
- (f) *Parking requirements.* Parking requirements for the property shall meet the number of off-street parking spaces as would otherwise be required to serve commercial uses for the specific area of the city in which the licensed premises is located, as set forth in sections 18.36.025 and 18.36.030. Notwithstanding anything to the contrary in section 18.36.010 or 18.44.510, properties with nonconforming parking shall be required to come into compliance with applicable parking requirements (a variance from the parking requirements may also be used to demonstrate compliance). The location of required parking shall be identified in the license application.
- (g) *Safety requirements.* Each dwelling unit or guest room within the building or structure to be licensed shall be equipped with an operational smoke detector, carbon monoxide detector, and fire extinguisher during each short-term rental occupancy. It shall be unlawful to operate a tourist home without a smoke detector, carbon monoxide detector or fire extinguisher. The director or his/her designee may inspect the building proposed to be licensed for the purpose of verifying compliance with such requirements.

Refusal by the applicant to allow such inspection shall be grounds for denial, non-renewal or revocation of a license.

- (h) *Insurance.* The licensee must provide and maintain fire, hazard and liability insurance within the liability coverage limits set by the director.
 - (i) *Compliance with other laws.* The building or structure to be licensed must comply with all applicable federal, state and local laws, including, but not limited to, the Golden Municipal Code.
- (Ord. No. 2228, § 4, 2-13-2024; Ord. No. 2078, § 8, 5-24-2018; Ord. No. 2271, § 4(Exh. C), 8-12-2025)

18.22.100 Administration.

The director, or his or her designee, shall administer the provisions of this chapter and is authorized to promulgate rules and regulations for its administration and implementation.
(Ord. No. 2078, § 8, 5-24-2018)

Chapter 18.24 RESERVED*

Chapter 18.26 URBAN AGRICULTURE REGULATIONS

18.26.010 Farmers' markets.

Farmers' market uses, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Location:* Farmers' markets are located city-owned property, or property that is dedicated to public use.
- (2) *Signage:* A farmers' market is permitted to have one temporary sign or banner, which is non-illuminated and no greater than 50 square feet in size. Such sign or

***Editor's note**—Ord. No. 2282, § 2(Exh. B), adopted December 9, 2025, repealed Ch. 18.24, §§ 18.24.010—18.24.040, which pertained to residential sustainability standards and derived from Ord. 1913, adopted in 2012 and Ord. No. 2209, § 7, adopted June 6, 2003.

banner must be located on the premises and may only be displayed when the market is in operation. Signs shall be counted toward the total signage allowance for the property per chapter 18.32.

- (3) *Hours of operation:* Hours of operation for farmers' markets shall be restricted from 7:00 a.m. to sunset.
- (4) *Frequency:* Any specific farmers' market may not operate more than two days per calendar week.
- (5) *Approval of a special use permit application:* A special use permit application must be submitted to the planning division in accordance with chapter 18.30 for the operation of a farmer's market. A site plan; operational information, including hours and days of operation; a parking plan; trash and recycling plan; and a list of vendors and products to be sold by each vendor is required for review and approval. Special use permits in all zone districts shall comply with the requirements set forth in chapter 18.30.
- (6) *Acceptance of federal food assistance:* Farmers' markets must accept Supplemental Nutrition Assistance Program (SNAP) benefits as a market.
- (7) *Goods accepted:* "SNAP Eligible Foods" as defined in section 18.04.010 of the Golden Municipal Code shall comprise a minimum of 51 percent of annual market revenue or 51 percent of market vendors.
- (8) *Market director:* A farmers' market shall have a designated market director who is responsible for submitting the special use permit application, administering the federal food assistance program including SNAP, and coordinating the market vendors and activities.

(Ord. No. 2090, § 1, 10-11-2018; Ord. No. 2053, § 1, 3-23-2017; Ord. No. 2049, § 2, 2-9-2017)

18.26.015 Neighborhood farmers' markets.

Neighborhood farmers' market uses, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Location:* Neighborhood farmers' markets must be located on private property.
- (2) *Signage:* A neighborhood farmers' market is permitted to have one temporary sign or banner, which is non-illuminated and no greater than six square feet in size, with a maximum height of five feet. Such sign or banner must be located on the premises and may only be displayed when the market is in operation. Signs shall be counted toward the total signage allowance for the property per chapter 18.32.
- (3) *Hours of operation:* Hours of operation for farmers' markets shall be restricted from 7:00 a.m. to sunset.

- (4) *Frequency:* Any specific farmers' market may not operate more than two days per calendar week.
 - (5) *Approval of a special use permit:* A special use permit application must be submitted to the planning division in accordance with chapter 18.30 for the operation of a neighborhood farmers' market. A site plan; operational information, including hours and days of operation; a parking plan; trash and recycling plan; a list of vendors and products to be sold by each vendor; and written approval from the owner of the property where the farmer's market will occur, is required for review and approval. Special use permits in all zone districts shall comply with the requirements set forth in chapter 18.30.
 - (6) *Goods to be sold:* Neighborhood farmers' markets are intended to provide a venue for food producers to sell directly to consumers. "SNAP Eligible Foods," as defined in section 18.04.010 of the Golden Municipal Code, shall comprise a minimum of 75 percent of annual market revenue or 75 percent of market vendors. Sales of other food items that are not SNAP Eligible Foods, such as beef jerky, dried fruit, or trail mixes, as well as sales of non-food, handcrafted or homemade items or artwork such as pet food, soaps, paper products, or jewelry, and which are locally produced, are allowed; provided, however, the sale of such items shall comprise no more than 25 percent of annual market revenue or 25 percent of market vendors. Alcoholic beverages, tobacco products, hot prepared food or any food sold for on-premises consumption is not allowed.
 - (7) *Lot area:* Neighborhood farmers' markets are allowed on lots that contain a minimum 10,000 square feet of open lot area.
- (Ord. No. 2090, § 2, 10-11-2018; Ord. No. 2049, § 2, 2-9-2017)

18.26.020 Produce stands.

Produce stands, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Location:* Produce stands must be located on private property.
 - (2) *Products sold:* Agricultural products such as raw vegetables, fruits, herbs, flowers, nuts, honey and eggs may be sold. Agricultural products, which are made from raw agricultural products grown, raised or produced on-site, such as jams, jellies, oils, vinegars and cheeses may also be sold. Products sold at produce stands must have been primarily grown, raised or produced on the same property where the stand is located.
 - (3) *Seasonal operations:* Produce stands may operate for up to six months of the year. When the produce stand is not in use, it must be removed and stored indoors.
 - (4) *Hours of operation:* In residential zone districts, hours of operation shall be restricted from 7:00 a.m. to sunset.
 - (5) *Home occupation requirement:* Where a produce stand is located on a property with a residential dwelling unit, it shall qualify as a home occupation and must comply with regulations in chapter 18.42, with the exception of subsection 18.42.030(7) of that chapter.
 - (6) *Signage:* Produce stands operating as home occupations shall be allotted one non-illuminated sign up to six square feet in size. All other produce stands are permitted to have one non-illuminated sign up to six square feet in size, with a maximum height of five feet. The sign shall not be displayed when the stand is not in operation. Signs shall be counted toward the total signage allowance for the property per chapter 18.32.
- (Ord. No. 2049, § 2, 2-9-2017)

18.26.030 Urban farms.

Urban farms, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Signage*: Each urban farm is permitted signage in accordance with what is allowed in chapter 18.32 of this Code.
 - (2) *Permitted structures*: Primary and accessory structures are allowed. Accessory structures such as sheds and greenhouses are permitted whether or not the lot contains a primary or main structure. All structures shall comply with the regulations for primary and accessory structures, including maximum size, height, and setbacks, for the property's zone district.
 - (3) *Hours of operation*: In residential zone districts, urban farms are permitted to operate from 7:00 a.m. to sunset and any exterior lighting must be shut off at sundown. Exterior lighting in all zone districts shall comply with the exterior lighting standards in chapter 18.34.
 - (4) *Approval of a special use permit*: A special use permit in accordance with chapter 18.30 will be required for urban farms one-half acre to two acres in size. A site plan, operational information, parking plan, trash and recycling plan, water quality plan, and written approval from the owner of the property where the urban farm will occur, is required for review and approval. Special use permits in all zone districts shall comply with the requirements set forth in chapter 18.30.
- (Ord. No. 2049, § 2, 2-9-2017)

18.26.040 Community gardens.

Community gardens, as defined in section 18.04.020 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Signage*: Each community garden is permitted signage in accordance with what is allowed in chapter 18.32 of this Code.

- (2) *Permitted structures*: Accessory structures such as sheds and greenhouses are permitted. All structures shall comply with the regulations for primary and accessory structures, including maximum size, height, and setbacks, for the property's zone district.

(Ord. No. 2049, § 2, 2-9-2017)

18.26.050 Green grocer.

Green grocer, as defined in section 18.04.050 and where allowed per chapter 18.28, shall comply with the following regulations:

- (1) *Location*: Green grocers must be located on private property.
- (2) *Products sold*: Agricultural products such as raw vegetables, fruits, herbs, flowers, nuts, honey and eggs may be sold. Agricultural products, such as those made from raw agricultural products grown, raised or produced on-site, such as jams, jellies, oils, vinegars and cheeses may also be sold. Products sold at green grocers must have been primarily grown, raised or produced locally.
- (3) *Operations*: Green grocers may operate year-round. When the green grocer is not in use, it must be removed from the property.
- (4) *Hours of operation*: In residential zone districts, hours of operation shall be restricted from 7:00 a.m. to sunset.
- (5) *Signage*: Green grocers are permitted to have one non-illuminated sign up to six square feet in size, with a maximum height of five feet. The sign shall not be displayed when the green grocer is not in operation. Signs shall be counted toward the total signage allowance for the property per chapter 18.32.

(Ord. No. 2049, § 2, 2-9-2017)

18.26.060 Backyard chickens.

- (a) It shall be unlawful for any person to own, possess, harbor, keep, slaughter or care for backyard chickens unless such person first obtains a backyard chicken license granted by the com-

munity and economic development department upon its determination that the proposed licensed premise is in compliance with all requirements of this section. A non-refundable application fee, the amount of which shall be established by resolution of city council, must be submitted with the backyard chicken license application.

(b) Backyard chickens are allowed as an accessory use only upon lots or parcels developed for residential use, private or public school use, or municipal use, excluding mobile homes and mobile home parks.

(c) The ownership, possession, harboring, keeping, slaughtering, and care of backyard chickens is subject to the following requirements:

- (1) No more than six backyard chickens are permitted per developed one household dwelling unit, private or public school, or public property. The total number of backyard chickens for any lot or parcel shall not exceed 12.
- (2) Roosters, and any other fowl or poultry, including, but not limited to, ducks, quail, geese, pigeons, peafowl or turkeys are prohibited under the license granted pursuant to this section.
- (3) Backyard chickens may only be kept in the rear yard of a lot or parcel and within a designated chicken coop, which shall include a run, meeting the following requirements:
 - a. The coop shall be fully enclosed, having floors, walls and a roof sufficient to protect the backyard chickens from predators, inclement weather and extreme temperatures;
 - b. The coop shall provide a minimum of four square feet of living space per chicken;
 - c. The coop shall not exceed six feet in height as measured from the ground;
 - d. The run shall provide a minimum of six square feet of exercise space per chicken;
 - e. The run shall be fully enclosed, adequately fenced and protected from predators, and shall have direct access to the chicken coop;
 - f. The coop and run, taken together, shall not exceed a maximum gross floor area of 120 square feet;
 - g. The coop or run shall have a minimum ten feet setback from any side or rear property line;
 - h. No coop or run shall be located between the rear of a principal structure and the front yard lot line; and
 - i. Only one coop and one run is allowed per dwelling unit.
- (4) Backyard chickens must be securely kept within the coop in the rear yard from dusk until dawn.
- (5) During daylight hours or from dawn to dusk, backyard chickens may be allowed to roam within a designated chicken run.
- (6) A fresh water supply for backyard chickens shall be provided and maintained in the rear yard of the property at all times, in a location readily accessible to all backyard chickens.
- (7) Chicken coops and runs shall be kept in good working condition and regularly maintained in a clean, sanitary condition so as to control dust, odor, and waste and to minimize the presence of flies and other insects and potential for disease.
- (8) Animal excrement and other waste must be stored in a re-sealable, airtight, vermin-proof and predator-proof container, and shall be properly disposed of to control odor and minimize potential for disease.
- (9) Chicken feed shall be enclosed in a re-sealable, airtight, vermin-proof and predator-proof container.
- (10) The slaughtering of backyard chickens is permitted indoors only; however, the slaughtering shall be limited only to the property subject to the license and to those backyard chickens permitted by

the license. In addition, the slaughtering location must be screened so as to not be visible from any adjoining properties. Any and all slaughtered animal remains or waste shall be disposed of within 24 hours of generation and in accordance with section 4.82.015 of the Code.

(d) It shall be unlawful for any person to own, keep, harbor, possess, slaughter, or care for backyard chickens in violation of the requirements of this section and any such violation is hereby deemed a nuisance that may be abated pursuant to the provisions specified in chapter 5.01 of this Code.

(e) Nonconforming use. A dwelling unit permitted to keep chicken hens as a special use in any residential zone district in accordance with chapter 18.30 prior to March 6, 2019, shall be considered a permitted, nonconforming use, if in compliance with all other provisions of this Code pertaining to such use. Such nonconforming use must come into compliance with all requirements of this section by April 1, 2022.

(Ord. No. 2100, § 2, 3-7-2019)

18.26.070 Beekeeping.

(a) It shall be unlawful for any person to own, possess, harbor, keep, maintain or care for bees unless such person first obtains a beekeeping license granted by the community and economic development department upon its determination that the proposed licensed premise is in compliance with all requirements of this section. A non-refundable application fee, the amount of which shall be established by resolution of city council, must be submitted with the beekeeping license application.

(b) Bees are allowed as an accessory use only upon lots or parcels developed for residential use, private or public school use, or municipal use, excluding mobile homes and mobile home parks.

(c) The ownership, possession, harboring, keeping, maintenance, and care of bees is subject to the following requirements:

- (1) Africanized bees are prohibited under the license granted pursuant to this section, and it shall be unlawful to maintain Africanized bees.

- (2) No more than two hives may be allowed on any lot or parcel:

- (3) Hives shall be located in the rear yard of a lot or parcel and shall have a minimum ten feet setback from any side or rear property line.

- (4) No hive shall be located between the rear of a principal structure and the front yard lot line.

- (5) A fresh water supply must be maintained within five feet of the hive.

- (6) The maximum height of a hive and any stand shall not be greater than six feet.

(d) It shall be unlawful for any person to own, keep, harbor, possess, maintain, or care for bees in violation of the requirements of this section and any such violation is hereby deemed a nuisance that may be abated pursuant to the provisions specified in chapter 5.01 of this Code.

(e) Nothing in this section shall be interpreted to immunize a beekeeper from civil liability arising out of their beekeeping activities, regardless of the beekeeper's compliance with the requirements of this section.

(f) Nonconforming use. A dwelling unit permitted to keep bees as a special use in any residential zone district in accordance with chapter 18.30 prior to March 6, 2019, shall be considered a permitted, nonconforming use, if in compliance with all other provisions of this Code pertaining to such use. Such nonconforming use must come into compliance with all requirements of this section by April 1, 2022.

(Ord. No. 2100, § 3, 3-7-2019)

18.26.080 Domestic small livestock— Miniature goats and pot-bellied pigs.

(a) It shall be unlawful for any person to own, possess, harbor, keep, maintain or care for miniature goats or miniature pot-bellied pigs unless such person first obtains a miniature animal license granted by the community and economic development department upon its determination that the proposed licensed premise is in compliance with all requirements of this

section. A non-refundable application fee, the amount of which shall be established by resolution of city council, must be submitted with the miniature goat or miniature pot-bellied pig license application.

(b) Miniature goats or miniature pot-bellied pigs are allowed as an accessory use only upon lots or parcels developed for residential use, private or public school use, or municipal use, excluding mobile homes and mobile home parks.

(c) The ownership, possession, harboring, keeping, and care of miniature goats or miniature pot-bellied pigs is subject to the following requirements:

- (1) No more than two miniature goats or miniature pot-bellied pigs are permitted per developed one household dwelling unit, public or private school, or public property.
 - (2) No less than two miniature goats, 12 weeks of age or older, must be kept in order to humanely meet the companionship needs of miniature goats. Any number of off-spring younger than 12 weeks of age may be kept at the licensed premises.
 - (3) Other domestic hoofed livestock, including, but not limited to, Dexter cattle, miniature horses, miniature ponies, Alpine goats, LaMancha goats, Nubian goats, Boer goats, or similar full-sized dairy and meat goats, sheep, llamas, and swine are prohibited under the license granted pursuant to this section.
 - (4) Miniature goats or miniature pot-bellied pigs may only be kept indoors with access to the rear yard of a lot or parcel with a minimum square footage (not including dwelling unit(s)) of 1,000 square feet, and meeting the following requirements:
 - a. The outdoor area shall be adequately fenced with a minimum four-foot fence and protected from predators, and shall have direct access to the dwelling unit.
 - b. The outdoor enclosure shall have a minimum ten-foot setback from any side or rear property line; and
 - c. No outdoor enclosure shall be located between the rear of principal structure and the front yard lot line.
 - (5) Miniature goats or miniature pot-bellied pigs must be securely kept within the shelter, dwelling unit, or rear yard from dusk until dawn.
 - (6) During daylight hours or from dawn to dusk, miniature goats or miniature pot-bellied pigs may be allowed to roam within a designated outdoor area.
 - (7) A fresh water supply for the miniature animals shall be provided and maintained in the rear yard of the property at all times, in a location readily accessible to all miniature animals.
 - (8) Shelters and outdoor areas shall be kept in good working condition and regularly maintained in a clean, sanitary condition so as to control dust, odor, and waste and to minimize the presence of flies and other insects and potential for disease.
 - (9) Animal excrement and other waste must be stored in a re-sealable, airtight, vermin-proof and predator-proof container, and shall be properly disposed of to control odor and minimize potential for disease.
 - (10) Feed shall be enclosed in a re-sealable, airtight, vermin-proof and predator-proof container.
 - (11) Any male miniature goat or pot-bellied pig must be neutered or any female miniature goat or pot-bellied pig must be spayed before the age of six months.
 - (12) The on-site slaughtering of miniature animals is prohibited.
- (d) It shall be unlawful for any person to own, keep, harbor, possess, maintain, or care for miniature animals in violation of the requirements of this section and any such violation is

hereby deemed a nuisance that may be abated pursuant to the provisions specified in chapter 5.01 of this Code.

(e) Nonconforming use. A dwelling unit permitted to keep miniature animals as a special use in any residential zone district in accordance with chapter 18.30 prior to March 6, 2019, shall be considered a permitted, nonconforming use, if in compliance with all other provisions of this Code pertaining to such use. Such nonconforming use must come into compliance with all requirements of this section by April 1, 2022.

(Ord. No. 2100, § 4, 3-7-2019)

18.26.090 Domestic small livestock and fowl—Rabbits, chinchillas and ducks.

(a) It shall be unlawful for any person to own, possess, harbor, keep, maintain or care for rabbits, chinchillas and any female breed of duck unless such person first obtains a small livestock and fowl license granted by the community and economic development department upon its determination that the proposed licensed premise is in compliance with all requirements of this section. A non-refundable application fee, the amount of which shall be established by resolution of city council, must be submitted with the license application.

(b) Rabbits, chinchillas, and any female breed of duck are allowed as an accessory use only upon lots or parcels developed for residential use or private or public school use, excluding mobile homes and mobile home parks.

(c) The ownership, possession, harboring, keeping, and care of rabbits, chinchillas, or any female breed of duck is subject to the following requirements:

- (1) Drakes and any other small livestock, fowl or poultry, including, but not limited to, roosters, hens, turkeys, pheasants, geese, peacocks, and peafowl are prohibited under the license granted pursuant to this section.

- (2) No more than the following number of animals may be allowed on any lot or parcel:
 - a. Six female ducks;
 - b. Three rabbits;
 - c. Three chinchillas.
- (3) The total number of animals for any lot or parcel shall not exceed 12.
- (4) Rabbits, chinchillas, and female ducks may be kept in the rear yard of a lot or parcel and within a designated hutch or other shelter, which shall include a run, meeting the following requirements:
 - a. The hutch or shelter shall be fully enclosed, having floors, walls and a roof sufficient to protect the animals from predators, inclement weather and extreme temperatures;
 - b. For ducks, the shelter shall provide a minimum four square feet of living space per duck;
 - c. For rabbits, the hutch shall provide a minimum 12 square feet of living space per rabbit;
 - d. For chinchillas, the shelter shall contain multiple levels and provide a minimum two square feet of living space per chinchilla;
 - e. For rabbits, a run shall provide a minimum 32 square feet of exercise space per rabbit;
 - f. The hutch or shelter and run, taken together, shall not exceed a maximum gross floor area of 120 square feet;
 - g. The hutch, shelter or run shall have a minimum ten-foot setback from any side or rear property line;
 - h. No hutch, shelter or run shall be located between the rear of a principal structure and the front yard lot line;
 - i. Any run shall be fully enclosed, adequately fenced and protected from

- predators, and shall have direct access to the rabbit hutch or duck shelter;
- j. The hutch, or shelter shall not exceed six feet in height as measured from the ground.
- (5) All animals must be securely kept within their designated shelters in the rear yard from dusk until dawn.
 - (6) During daylight hours or from dawn to dusk, ducks and rabbits may be allowed to roam within a designated run.
 - (7) A fresh water supply for animals shall be provided and maintained in the rear yard of the property at all times, in a location readily accessible to all animals.
 - (8) Hutches, shelters and runs shall be kept in good working condition and regularly maintained in a clean, sanitary condition so as to control dust, odor, and waste and to minimize the presence of flies and other insects and potential for disease.
 - (9) Animal excrement and other waste must be stored in a re-sealable, airtight, vermin-proof and predator-proof container, and shall be properly disposed of to control odor and minimize potential for disease.
 - (10) Feed shall be enclosed in a re-sealable, airtight, vermin-proof and predator-proof container.
 - (11) The on-site slaughtering of rabbits, chinchillas and ducks is permitted indoors only; however, the slaughtering shall be limited only to the property subject to the license and to those rabbits, chinchillas and ducks permitted by the license. In addition, the slaughtering location must be screened so as to not be visible from any adjoining properties. Any and all slaughtered animal remains or waste shall be disposed of within 24 hours of generation and in accordance with section 4.82.015 of the Code.
- (d) It shall be unlawful for any person to own, keep, harbor, possess, maintain, or care for rabbits, chinchillas, and female ducks in violation of

the requirements of this section and any such violation is hereby deemed a nuisance that may be abated pursuant to the provisions specified in chapter 5.01 of this Code.

(e) Nonconforming use. A dwelling unit permitted to keep rabbits, chinchillas or ducks as a special use in any residential zone district in accordance with chapter 18.30 prior to March 6, 2019, shall be considered a permitted, nonconforming use, if in compliance with all other provisions of this Code pertaining to such use. Such nonconforming use must come into compliance with all requirements of this section by April 1, 2022.

(Ord. No. 2100, § 5, 3-7-2019)

Chapter 18.28 USE REGULATIONS*

DIVISION I. INTRODUCTION

18.28.01.01 Preamble and intent.

The purpose of this chapter is to establish a framework for land-use categories and landuse types and where they are and are not permitted in the City of Golden. The intent is to guide land-uses into appropriate contexts based on the desire to limit externalities and encourage congruent land-use and development patterns. When use zones are overlaid with form zones, use regulations are intended to supplement the form-based standards for size, scale, and mass to moderate the potential impact of the use. (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.01.02 Interpretation of use.

(1) The listing of any use in the schedule as being permitted in any particular district shall be deemed to be an exclusion of such use from all

***Editor's note**—Ord. No. 2258, § 2(Exh. A), adopted Jan. 28, 2024, repealed the former Ch. 18.28 § 18.28.010—18.28.540, and enacted a Ch. 18.28 as set out herein. The former Ch. 18.28 pertained to similar subject matter and derived from Ord. No. 2209 § 2 (Exh. F) adopted June 6, 2023, Ord. No. 2229 §4 adopted Feb. 13, 2024, Ord. No. 2229 §5 adopted Feb. 13, 2024, and Ord. No. 2252, § 5(Exh. D) adopted Jan. 28, 2025.

other districts, unless the use is specifically permitted in the other district. Uses not specifically authorized within a zone district are not allowed in that district.

(2) A proposed use which is not specifically provided for in any zone district, and which is not an accessory or secondary use, but which is similar to and compatible with uses otherwise allowed within a specific zone district may, upon a determination by the director of similarity and compatibility, be allowed within that district. The director will notify the planning commission of such determination at the next scheduled meeting.

- (a) In making the determination of similarity and compatibility, the director shall consider factors such as, traffic generation, density of population and hours of operation of the proposed use in comparison to specifically named uses within the zone district, potential for noise and odor, and the location and use criteria set forth in the comprehensive plan.
- (b) Any proposed use not specifically provided for in any zone district and which is not similar or compatible with uses otherwise allowed within a specific zone district shall be deemed to be allowed in the PUD district provided the use is in conformance with the requirements of section 18.28.300 et seq.
- (c) Any appeal from a decision of the director shall be made to the planning commission pursuant to the notification and hearing procedures in section 18.48.040. In considering the appeal, the planning commission shall apply the same standards applicable to the decision of the director.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

DIVISION II. USE REGULATIONS AND TABLES

18.28.02.01 Interpretation of use tables.

(1) *Generally.* The tables set out in this section ("use tables") describe which land uses are allowed ("P"), allowed after notice and comment if certain

conditions are met ("L"), allowed after public hearing if certain conditions are met ("S"), and not allowed ("-") in each zoning district.

(2) *Legend.* The following symbols are used in the tables in division 18.28.01.02:

- (a) "P" means "permitted." Permitted uses are allowed, subject to administrative review for compliance with the generally applicable requirements of this Code.
- (b) "L" means "limited use." Limited uses are subject to administrative review for compliance with use-specific standards, and for compliance with the generally applicable requirements of this Code.
- (c) "S" means "special use." Special uses are subject to public hearing review for compliance with use-specific standards, general standards for all special use (see chapter 18.30, Special Use Permits), and the generally applicable requirements of this Code. Special uses are not "as-of-right" uses.
- (d) "-" means that the use is not allowed in the specified district.

(3) *Tableformat.* The tables are formatted such that the left-hand column ("Land Use") sets out each land use that may be permissible in the city, the 16 columns that follow set out each zoning district within the city, and the right-hand column ("Ref.") provides a cross-reference to the standards that apply to limited ("L") and special ("S") uses. Note, cross-references may not be totally inclusive of all standards or regulations related to a use. (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.02.02 Relationship to form standards.

For the purposes of section 18.28.01.01(2) and the application of this chapter, the standards of chapter 18.29 shall be considered "generally applicable requirements of this Code." (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.02.03 Multiple uses of a lot.

Proposed uses that combine more than one listed use, except those that qualify as "mixed-use," shall meet the requirements for each listed use that applies.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.02.04 Use tables.

Use tables are separated by the following Use Categories and list the individual landuses allowed by each zone district established in chapter 18.20 in that category. The Ref. column in the use tables is a guide to relevant sections of the zoning code and not intended as a comprehensive list or reference to all requirements in this title:

- (1) Residential, Special Residential, and Residential Mixed-Use (table 18.28.02.04.1).

- (2) Community, Civic, Educational, Healthcare, and Institutional (table 18.28.02.04.2).
- (3) Hospitality, Recreation, and Entertainment (table 18.28.02.04.3).
- (4) General Commercial (table 18.28.02.04.4).
- (5) Motor Vehicle and Transportation (table 18.28.02.04.5).
- (6) Veterinary and Domestic Animal (table 18.28.02.04.6).
- (7) Industrial, Processing, Recycling, Storage, and Disposal (table 18.28.02.04.7).
- (8) Utilities (table 18.28.02.04.8).
- (9) Agricultural Uses (table 18.28.02.04.9).

Table 18.28.02.04.1, Residential, Special Residential, and Residential Mixed-Use

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CMU</i> <i>-NC</i>	<i>CMU</i> <i>-CC1</i>	<i>CMU</i> <i>-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Residential - Single household	P	P	P	P	P	-	-	-	-	-	-	P	-	-	P	L	§§ 18.28.03.01(1) and ch. 18.29
Residential - Multihousehold configuration	-	-	-	P	P	-	L/S	L/S	L/S	L/S	L/S	P	-	S	-	-	§§18.28.03.01(2) and ch. 18.29
Manufactured Home Park or Manufactured Home Subdivision	-	-	-	-	-	P	-	-	-	-	-	-	-	-	-	-	N/A
Assisted Living or Congregate Care	-	-	-	-	P	-	S	S	S	P	P	P	-	-	-	-	N/A
Group Home	L	L	L	L	L	-	L	L	L	-	-	L	-	-	L	-	§ 18.28.03.01(3)
Live-Work	-	-	-	-	P	-	-	-	-	P	P	P	S	S	-	-	§ 18.28.03.01(4)
Nursing Home, Memory Care, Alzheimer's Care	-	-	-	-	P	-	-	-	-	P	P	P	-	-	-	-	N/A
Protective Care	-	-	-	-	P	-	-	-	-	P	P	P	-	-	-	-	N/A
Residential Mixed- Use	-	-	-	-	-	-	L/S	L/S	L/S	L/S	L/S	P	-	L/S	-	-	§ 18.28.03.01(2)

Table 18.28.02.04.2, Community, Civic, Educational, Healthcare, and Institutional

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U- NC</i>	<i>CM U- CC1</i>	<i>CM U- CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Cemetery	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P	P	N/A
Crematorium	-	-	-	-	-	-	-	-	-	-	-	-	-	L	-	-	§ 18.28.03.02(1)
Day Care Center, Adult or Child	-	-	-	-	P	-	P	P	P	P	P	P	-	P	-	-	N/A
Funeral Home	-	-	-	-	-	-	-	-	-	P	P	-	-	P	-	-	N/A
Hospital	-	-	-	-	-	-	-	-	-	P	P	-	-	P	-	-	N/A
Office, Medical	-	-	-	-	-	-	P	P	P	P	P	P	-	P	-	-	N/A
Place of Assembly	S	S	S	S	P	-	P	P	P	P	P	P	-	P	S	S	N/A
School, Elementary or Middle	P	P	P	P	P	P	S	S	S	P	P	-	P	P	P	P	N/A
School, High	P	P	P	P	P	P	S	S	S	P	P	-	P	P	P	P	N/A
School, Vocational or Trade	-	-	-	-	-	-	S	S	S	P	P	P	L	P	-	-	§ 18.28.03.02(2)
University or College	-	-	-	-	L	-	S	S	S	P	P	P	-	P	-	-	§ 18.28.03.02(3)

Table 18.28.02.04.3, Hospitality, Recreation, and Entertainment

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U- NC</i>	<i>CM U- CC1</i>	<i>CM U- CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Bar, Tavern, or Nightclub	-	-	-	-	-	-	S	-	S	P	P	-	-	P	-	-	N/A
Bed and Breakfast	-	-	-	-	P	-	P	P	P	P	P	P	-	-	-	-	N/A
Brew Pub, Distillery Pub, or Limited Winery	-	-	-	-	-	-	P	-	P	P	P	-	L	P	-	-	§ 18.28.03.03(1)
Campground or RV Park	-	-	-	-	-	-	-	-	-	-	P	-	-	P	S	S	§ 18.28.03.03(2)
Commercial Lodging	-	-	-	-	-	-	P	P	P	P	P	-	-	P	-	-	N/A
Golf Course	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P	N/A
Indoor Amusement, Recreation, and Entertainment	-	-	-	-	-	-	P	P	P	P	P	-	-	P	-	-	N/A
Indoor Firing Range	-	-	-	-	-	-	-	-	-	-	S	-	L	L	-	-	§ 18.28.03.03(3)
Outdoor Commercial Amusement	-	-	-	-	-	-	-	-	-	S	P	-	-	P	-	-	N/A
Outdoor Stadium, Arena, Amphitheater, or Drive-In Theater	-	-	-	-	-	-	-	-	-	-	P	-	-	-	-	-	N/A

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U-NC</i>	<i>CM U-CC1</i>	<i>CM U-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Park, Active	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	N/A
Park, Passive	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	N/A
Restaurant and Food Service	-	-	-	-	-	-	P	P	P	P	P	S	-	P	-	-	If drive-through facility see § 18.28.04.03(1)
Sexually-Oriented Business	-	-	-	-	-	-	-	-	-	-	-	-	-	L	-	-	§ 4.60
Tourist Homes	-	-	-	-	-	-	L	L	L	L	L	L	-	L	-	-	§ 18.22
Short-Term Rentals	L	L	L	L	L	-	-	-	-	-	-	-	-	-	-	L	§ 18.22

Table 18.28.02.04.4, General Commercial

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U-NC</i>	<i>CM U-CC1</i>	<i>CM U-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Business Services	-	-	-	-	-	-	-	-	-	P	P	P	-	P	-	-	N/A
Convenience Lending	-	-	-	-	-	-	-	-	-	-	L	-	-	L	-	-	§ 18.28.03.04(1)
Fitness Instruction or Gymnasium	-	-	-	-	-	-	P	P	P	P	P	P	P	P	-	-	N/A
Heavy Retail	-	-	-	-	-	-	-	-	-	-	L	-	-	P	-	-	§ 18.28.03.04(2)
Office, General	-	-	-	-	-	-	P	P	P	P	P	P	L	P	-	-	§ 18.28.03.04(3)
Pawnbroker	-	-	-	-	-	-	-	-	-	-	S	-	-	S	-	-	§ 18.28.03.04(4)
Personal Services	-	-	-	-	-	-	P	P	P	P	P	P	-	P	-	-	N/A
Recording or TV Studio	-	-	-	-	-	-	-	-	-	-	P	P	P	P	-	-	N/A
Retail Sales and Services	-	-	-	-	-	-	P	P	P	P	P	P	-	P	-	-	N/A

Table 18.28.02.04.5, Motor Vehicle and Transportation

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U-NC</i>	<i>CM U-CC1</i>	<i>CM U-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Bus or Taxi Terminal, On-Demand Transportation Dispatch	-	-	-	-	-	-	-	-	-	-	-	-	-	P	-	-	N/A
Fueling or Service Station	-	-	-	-	-	-	-	-	-	S	P	-	-	P	-	-	§ 18.28.03.05(1)
Fast Charging	-	-	-	-	-	-	-	-	-	P	P	-	-	P	-	-	N/A
Light Motor Vehicle Repairs and Service	-	-	-	-	-	-	-	-	-	S	P	-	P	P	-	-	§ 18.28.03.05(2)
Heavy Motor Vehicle Repairs and Service	-	-	-	-	-	-	-	-	-	-	S	-	L	P	-	-	§ 18.28.03.05(3)

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U- NC</i>	<i>CM U- CC1</i>	<i>CM U- CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Heavy Motor Vehicle Sales or Rental	-	-	-	-	-	-	-	-	-	-	-	-	-	P	-	-	N/A
Motorcycle, Scooter, or ATV Sales or Rental	-	-	-	-	-	-	-	-	-	L	P	-	-	P	-	-	§ 18.28.04.05(4)
Motor Vehicle Wash	-	-	-	-	-	-	-	-	-	S	P	-	-	P	-	-	§ 18.28.03.05(5)
Passenger Motor Vehicle Sales or Rental	-	-	-	-	-	-	-	-	-	-	L	-	-	P	-	-	§18.28.03.05(6)
RV Storage	-	-	-	-	-	-	-	-	-	-	-	-	-	P	-	-	N/A
Surface Parking	-	-	-	-	-	-	-	-	-	S	P	-	-	P	-	-	§ 18.28.03.05(7)
Structured Parking	-	-	-	-	-	-	-	-	-	S	P	-	-	P	-	-	§ 18.28.03.05(8)
Truck Stop	-	-	-	-	-	-	-	-	-	-	-	-	-	S	-	-	§ 18.28.03.05(9)

Table 18.28.02.04.6, Veterinary and Domestic Animal

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U- NC</i>	<i>CM U- CC1</i>	<i>CM U- CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Commercial Equestrian Facilities	-	-	-	-	-	-	-	-	-	-	-	-	-	-	L	-	§ 18.28.03.06(1)
Kennel, Indoor	-	-	-	-	-	-	-	-	-	P	P	P	-	P	P	P	N/A
Kennel, Outdoor	-	-	-	-	-	-	-	-	-	-	S	-	-	P	S	S	§ 18.28.03.06(2)
Veterinary Facilities, Large Animal Clinic	-	-	-	-	-	-	-	-	-	-	S	-	-	-	S	S	§ 18.28.03.06(3)
Veterinary Facilities, Small Animal Clinic	-	-	-	-	-	-	-	-	-	L	P	P	-	P	S	S	§ 18.28.03.06(4)
Wildlife Rehabilitation	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P	N/A

Table 18.28.02.04.7, Industrial, Processing, Recycling, Storage, and Disposal

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U- NC</i>	<i>CM U- CC1</i>	<i>CM U- CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Composting Facility	-	-	-	-	-	-	-	-	-	-	-	-	-	S	-	-	§ 18.28.03.07(1)
Disposal Facility	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	PUD only
Heavy Industry	-	-	-	-	-	-	-	-	-	-	-	-	S	P	-	-	§ 18.28.03.07(2)
Heavy Logistics Center	-	-	-	-	-	-	-	-	-	-	-	-	P	L	-	-	§ 18.28.03.07(3)
Light Industry	-	-	-	-	-	-	-	-	-	-	S	-	P	P	-	-	§ 18.28.03.07(4)

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U-NC</i>	<i>CM U-CC1</i>	<i>CM U-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Recycling Collection Center	-	-	-	-	-	-	-	-	-	-	-	-	P	P	-	-	N/A
Resource Extraction (Minerals)	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	PUD only
Salvage Yard	-	-	-	-	-	-	-	-	-	-	-	-	-	S	-	-	§ 18.28.03.07(5)
Self-Storage	-	-	-	-	-	-	-	-	-	-	-	-	L	P	-	-	§ 18.28.03.07(6)
Storage Yard	-	-	-	-	-	-	-	-	-	-	-	-	-	S	-	-	§ 18.28.03.07(7)
Waste Transfer Station	-	-	-	-	-	-	-	-	-	-	-	-	-	S	-	-	§ 18.28.03.07(8)
Cottage Industry and Retail	-	-	-	-	-	-	P	P	P	-	P	-	-	P			N/A
Community scale manufacturing/ maker-space	-	-	-	-	-	-	P	P	P	-	P	-	P	P			N/A

Table 18.28.02.04.8, Utilities

<i>Land Use</i>	<i>RE</i>	<i>R1</i>	<i>R1A</i>	<i>R2</i>	<i>R3</i>	<i>RM</i>	<i>CM U-NC</i>	<i>CM U-CC1</i>	<i>CM U-CC2</i>	<i>C1</i>	<i>C2</i>	<i>RC</i>	<i>M1</i>	<i>M2</i>	<i>AG</i>	<i>CO</i>	<i>Ref.</i>
Battery Energy Storage Systems	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	PUD only
Data Center	-	-	-	-	-	-	-	-	-	-	S	-	L	P	-	-	§ 18.28.03.08(1)
Essential Services	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	N/A
Overhead Power Lines (110 kV+)	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	§ 18.28.03.08(2)
Utilities, Minor	L	L	L	L	L	L	L	L	L	L	L	L	L	L	L	L	§18.28.03.08(3)
Utilities, Major	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	PUD only
Solar Garden	L	L	L	L	L	L	L	L	L	L	L	L	L	L	L	L	§18.28.03.08(4)

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.02.04.10 Permitted and prohibited uses in all districts.(1) *Uses permitted in all districts.*

- (a) *Municipal uses.* Development standards for structures, fencing, landscaping, and other standards and guidelines in chapter 18.29 and chapter 18.40 shall be determined by the director with any necessary application process, approval process, or permitting process to match the municipal and public needs for the municipal use.

- (b) Recreation uses that are owned or operated by Jefferson County, the City of Golden, or a C.R.S. Title 32 special district, regardless of format.

(2) *Uses prohibited in all districts.* The following uses are prohibited in all zoning districts:

- (a) Intensive Agriculture.
- (b) Outdoor Firing Range.
- (c) Race Track.
- (d) Airports.
- (e) Heliports.

(f) Zoo.
(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

DIVISION III. USE-SPECIFIC STANDARDS

18.28.03 Generally.

The standards of this division reference corresponding land uses that are enumerated in the tables of division 18.28.02.004, Use Tables, and apply to the corresponding use if the subject property is located in a zoning district within which the use is designated as "L" or "S". Standards that apply to "All Districts" are applied in addition to standards that apply to specified districts.

(1) *Performance standards for all uses.*

- (a) Dust, fumes, odors, smoke, vapor, direct light, and vibrations shall be confined to the premises of the subject property upon which the land use that generates the impact is located. Noise shall be subject to Golden Municipal Code section 5.20.280.

(Ord. No. 2258, § 2(Exh. A-1), 1-28-2025)

18.28.03.01 Use-specific standards for residential, special residential, and residential mixed-uses.

(1) *Residential occupancy standards.* The intent of occupancy standards is to promote health, safety, and welfare by establishing parameters to limit over-crowding of dwellings.

- (a) A residential dwelling unit may have up to four adults and their dependents, if any.
- (b) A permitted residential accessory dwelling unit may have three additional persons.
- (c) The residential occupancy of persons in a dwelling unit in excess of standard (a) and (b) above is limited to two persons per potential sleeping room and is subject to the following requirements.
 - 1. Occupied sleeping rooms or spaces determined to be potential sleeping

rooms, regardless of any names, labels, or intended uses proposed by the building designer or owner or landlord or tenants, shall include the following for health and safety:

- A. *Emergency escape and rescue.* Potential sleeping rooms including basements, habitable attics, the room to which a sleeping loft is open, and every sleeping room shall have not less than one operable emergency escape and rescue opening. Where basements contain one or more sleeping rooms, an emergency escape and rescue opening shall be required in each sleeping room. Emergency escape and rescue openings shall open directly into a public way, or to a yard or court that opens to a public way.

- B. *Smoke alarms.* Smoke alarms shall be installed in the following locations:

- (i) In each occupied sleeping room and potential sleeping room.
- (ii) In the immediate vicinity outside each separate occupied sleeping room or potential sleeping room.
- (iii) On each additional story of the dwelling, including basements and habitable attics and not including crawl spaces and uninhabitable attics. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level provided that the lower

level is less than one full story below the upper level.

- (iv) Smoke alarms shall be installed not less than three feet (914 millimeters) horizontally from the door or opening of a bathroom that contains a bathtub or shower unless this would prevent placement of a smoke alarm required by this section.

C. *Carbon monoxide alarms.* Shall be installed inside of and outside of each separate occupied sleeping room or potential sleeping room. Carbon monoxide alarms installed outside of the sleeping areas shall be in the immediate vicinity of the bedroom.

D. *Portable fire extinguishers.* All cooking equipment shall have a fire extinguisher within 30 feet of travel distance from the cooking equipment.

- (d) The residential occupancy of temporary lodging units, residential dwelling units licensed for a short-term rental or tourist home, is limited to four adults and their dependents, if any, and subject to the requirements of chapter 18.22.

(2) *Use specific residential standards.*

(a) *Residential single-household.*

- 1. *CO district.* In the CO district, one single-unit detached dwelling may be permitted if the subject property is not less than 35 acres in area.

(b) *Residential mixed-use.* Residential land uses may be approved in the CMU-NC, CMU-CC1, CMU-CC2, C-1, and C-2 districts as follows:

- 1. Multi-household units are allowed as a permitted use when at least 25 percent of the total floor area of the

buildings is designed for nonresidential uses, provided that residential dwelling units licensed for temporary lodging such as tourist homes and short-term rentals, or commercial lodging that meets the definition of boarding and rooming house, shall not count toward the nonresidential area requirement; and

A. If the development includes more than one building, the development provides an integrated site design in which:

- (i) Vehicular circulation systems and parking areas are shared;
- (ii) There are delineated pedestrian connections between residential and nonresidential uses;
- (iii) Building architecture, signage, and site landscaping reflect common themes throughout the development; and
- (iv) The nonresidential uses are listed as permitted by right in the C1 district, except veterinarian hospital, funeral home, or hospital.

2. Multi-household units are allowed as a permitted use when 100 percent of the units are affordable housing units;

3. Multi-household units are allowed by special use permit if requirement (a) or (b) are not met; and

4. Shall meet the criteria for special use permits in chapter 18.30, Special Use Permits.

- (c) *Group home.* Group homes may be approved if it is demonstrated that they are spaced not less than 750 feet from other group homes pursuant to C.R.S. 31-23303, measured between the nearest property lines.

- (d) *Live-work*. Live-work uses may be approved in the M1 and M2 districts if it is demonstrated that they are spaced not less than 600 feet from heavy industrial uses, measured property line to property line.

(Ord. No. 2258, § 2(Exh. A-1), 1-28-2025; Ord. No. 2270, § 3(Exh. B), 8-12-2025; Ord. No. 2271, § 3(Exh. B), 8-12-2025)

18.28.03.02 Community, civic, educational, healthcare, and institutional.

(1) *Crematorium*. Crematoriums shall be spaced not less than 500 feet from residential zones measured from the property line.

(2) *School, vocational or trade*. School, vocational or trade[s] may be permitted in the M1 district if it relates to vocational training for an industrial activity that is allowed in the M1 district.

(3) *University or college.* University or college uses may be permitted in the R3 district if it is demonstrated that:

- (a) They are incorporated into a residential campus; and by special use permit pursuant to (b) and (c) below.
- (b) Except as may be provided by intergovernmental agreement, college and university buildings owned and used by the Colorado School of Mines that have a height greater than 35 feet, but no more than 50 feet, are located in a campus setting where the height of nearby existing campus buildings is in excess of 35 feet.
- (c) Except as may be provided by intergovernmental agreement, college and university buildings owned and used by the Colorado School of Mines that have a front setback less than the standard 20-foot requirement, are located in a campus setting where the front setback of nearby existing campus buildings is less than 20 feet.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.03.03 Use-specific standards for hospitality, recreation, and entertainment uses.

- (1) *Brew pub, distillery pub, or limited winery.*
 - (a) May be permitted in M1 if the primary use and operation is production and not beverage or food service.

(2) *Campground or RV park.* Campground or RV park uses, other than those owned or operated by the City of Golden and therefore a municipal or recreation use under section 18.28.02.04.10, may be approved in the AG or CO districts if it is demonstrated that the facilities are located, designed, and operated as follows:

- (a) The subject property is not less than ten acres in area.
- (b) The campground or RV park is designed to the "modern" standard as defined in 6 CCR 1010-9 § 2.10e.

- (c) The density, dimensions, and distribution of campsites meet the standards set out in table 18.28.03.03.2, Campsite Standards.

Table 18.28.03.03.2, Campsite Standards

<i>Density, Dimensions, and Distribution</i>	<i>Standard</i>
Max. campsites per acre of subject property	6
Min. RV campsite dimensions	35 ft. x 50 ft.
Min. tent campsite dimensions	35 ft. x 35 ft.
Min. and Max. number of campsites in a cluster	min. 4 / max. 12
Min. spacing between clusters of campsites (measured between nearest edges)	40 ft.

- (d) Building coverage on the subject property does not exceed ten percent.
- (e) The route between the nearest arterial street and the campground does not include a local residential street.
- (f) Access to camping spaces is provided from paved internal, private streets.
- (g) Parking spaces are paved or surfaced with a material approved by the director and public works.
- (h) An internal pedestrian circulation system is provided that connects clusters of campsites to each other and to centralized facilities (e.g., office, bathrooms, common recreational facilities, etc.).

(3) *Indoor firing range.* Indoor firing range[s] may be permitted if it is demonstrated that:

- (a) The use is located within a free-standing building that is spaced from schools, universities, child day care centers, or active or passive parks not less than 300 feet, measured between property lines;
- (b) The building is sound-proofed so that the shooting activities are not audible from outside the building;

- (c) Closed loop range ventilation systems, including HEPA filtration, are installed and dedicated to the range (i.e., not connected to the general HVAC system);
- (d) The range is designed to prevent dangers from ricochets, backsplash, and lead dust; and
- (e) No door or entrance to the range is located forward of the rearmost firing point, unless secured from the inside of the range.
- (f) A red light is fitted above all doors giving direct access to the range area (not the building), and such light will be lit whenever the range is in use.

(4) *Tourist homes and short-term rentals.* See chapter 18.22.
(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.03.04 Use-specific standards for general commercial uses.

(1) *Convenience lending.* Convenience lending may be approved in the C2 and M2 districts if it is demonstrated that the use is spaced not less than 1,000 feet from other convenience lending uses, places of assembly, public or private schools, pawnbrokers, and residentially-zoned areas, measured from the nearest property lines.

(2) *Heavy retail.* Heavy retail uses may be permitted in the C2 district if it is demonstrated that:

- (a) The use is not a nursery;
- (b) The use does not involve the outdoor storage of landscape materials in bulk; and
- (c) Deliveries to customers from the use, if provided, will utilize vehicles that are not larger than Class 5 (medium duty) box trucks.

(3) *Office, general.* General office uses may be approved in the M1 district if it is demonstrated that the office provides management, administrative services, consulting services, or technical

support services for or to one or more uses that exist, are permitted, or permissible within the M1 district.

(4) *Pawnbroker.* Pawnbroker[s] may be allowed in the C2 or M2 district if it is demonstrated that:

- (a) The use is at least 1,000 feet from any place of assembly, public or private school or university, convenience lending use, other pawnbroker, and residentially zoned area, measured from the nearest property lines; and
- (b) The use conforms to the requirements of chapter 4.52.

(Ord. No. 2258, § 2(Exh. A-1), 1-28-2025)

18.28.03.05 Use-specific standards for motor vehicle and transportation uses.

(1) *Fueling or service station.* Fueling or service station[s] may be permitted by special use permit in the C1 district if it meets the special use permit criteria and is demonstrated that the subject property is located outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east.

(2) *Light motor vehicle repairs and service.* Light motor vehicle repairs and service may be permitted by special use permit in the C1 district if it is demonstrated that the subject property is located outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east.

(3) *Heavy motor vehicle repairs and service.* Heavy motor vehicle repairs and service may be permitted by special use permit in the C2 or M1 district if it meets the special use permit criteria and is demonstrated that:

- (a) The subject property is located outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;

- (b) The use is at least 300 feet from any residentially zoned area, measured between the nearest property lines;
- (c) Areas used for temporary storage of vehicles prior to and after repairs or service are not the majority area of the site and screened from view from adjacent properties and streets by buildings or a solid wall, berm, or continuous landscaping that is at least three to four feet in height; and
- (d) In the C2 and M1 district, the use is restricted to repairs and service to passenger vehicles and light trucks, and all work is performed inside of an enclosed building.

(4) *Motorcycle, scooter, or ATV sales or rental.* Motorcycle, scooter, or ATV sales or rental[s] may be permitted in the C1 district if all inventory is stored and displayed, and all services conducted, within an enclosed building.

(5) *Motor vehicle wash.* Motor vehicle wash[es] may be permitted by special use permit in the C1 district if it meets the special use permit criteria and it is demonstrated that:

- (a) The subject property is located outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;
 - (b) Entrances to car wash bays or tunnels are perpendicular to the street (on corner lots, perpendicular to the street with the higher design volume); and
 - (c) Areas used for vacuum bays, detailing, or drying are screened from view from streets by buildings or a solid wall, berm, or continuous landscaping that is at least three to four feet in height.
- (6) *Passenger motor vehicle sales or rental.*
- (a) The subject property is located outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;

(7) *Surface parking.* Surface parking may be permitted by special use permit in the C1 district if it meets the special use permit criteria and is demonstrated that the use does not require the destruction of an existing building on property with any frontage on Eighth Street or Washington Avenue.

(8) *Structured parking.* Structured parking may be permitted by special use permit in the C1 district if it meets the special use permit criteria and is demonstrated that the use does not require the destruction of an existing building on property with any frontage on Eighth Street or Washington Avenue, unless it is incorporated into or attached to the rear of a new building that contains a use that is permitted in the C1 district, for which access to the use is provided at street level from Washington Avenue or Eighth Street.

(9) *Truck stop.* Truck stop[s] may be permitted by special use permit in the M2 district if it meets the special use permit criteria and demonstrated that the use is:

- (a) Located within 500 feet of an interchange with:
 1. I-70;
 2. Hwy 470; or
 3. U.S. Hwy. 6, east of Johnson Road; and
- (b) The use is not less than 600 feet from any residential use district, measured between the nearest property lines.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.03.06 Use-specific standards for veterinary and domestic animal uses.

(1) *Commercial equestrian facilities.* Commercial equestrian facilities may be permitted in the AG district if it is demonstrated that:

- (a) All horses are kept within a fenced area;
- (b) At least 9,000 square feet of open land is provided for the first horse, and 6,000 square feet for each additional horse;

- (c) Temporary buildings or trailers are not used for the stabling of horses more than one 15-day period during each calendar year;
- (d) No building, riding ring, or corral, is located in any manner so that any part thereof is less than 100 feet from the front lot line or less than 15 feet from any side or rear lot line; and
- (e) Manure storage areas are:
 1. Screened so as to not be in view of other adjacent private property, public thoroughfares, or other areas of public access (e.g., trails);
 2. Managed so that manure does not accumulate so as to cause a hazard to the health, welfare, or safety of humans or animals; and
 3. Set back 100 feet from the front lot line and from side and rear lot lines a distance equal to the setback required for principal buildings.

(2) *Kennel, outdoor.* Kennel[s], outdoor may be permitted with a special use permit in the C1, AG, and CO districts if it meets the special use permit criteria and is demonstrated that:

- (a) The subject property is:
 1. At least 200 feet from lots used or zoned for residential uses (undeveloped tracts that are zoned for residential purposes are not counted as "lots") within the city; and
- (b) Outdoor areas that are used by animals are:
 1. Enclosed by fencing that does not exceed eight feet in height; and
 2. Not used after 7:00 p.m. or before 7:00 a.m.

(3) *Veterinary facilities, large animal clinic.* Veterinary facilities and large animal clinics may be permitted by special use permit in the

C2, AG, and CO districts if it meets the criteria for special use permit and is demonstrated that:

- (a) The use is conducted entirely indoors, unless the standards for outdoor areas are also met;
- (b) The use is located in a free-standing building; and
- (c) The subject property does not adjoin property that is used for residential purposes within the city.
- (d) Outdoor areas that are used by animals are:
 1. Enclosed by fencing that does not exceed eight feet in height; and
 2. Outdoor area is not used after 7:00 p.m. or before 7:00 a.m.

(4) *Veterinary facilities, small animal clinic.* Veterinary facilities, small animal clinic[s] may be permitted in the C1, AG, and CO districts if it is demonstrated that the use is conducted entirely indoors, and with a special use permit with outdoor areas if the special use criteria and kennel, outdoor standards are also met.
(Ord. No. 2258, § 2(Exh. A-1), 1-28-2025)

18.28.03.07 Use-specific standards for industrial, processing, recycling, storage, and disposal uses.

(1) *Composting facility.* Composting facilities may be permitted in the M2 district if it is demonstrated that:

- (a) The facility is not located within an:
 1. Area of geologic hazard;
 2. Area of special flood hazard; or
 3. Area with fluvial hazards;
- (b) The facility is not located within the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;
- (c) The subject property is not less than five acres in area;

- (d) All composting operations, including storage of compostable wastes, are set back 200 feet from all property lines;
 - (e) The subject property is spaced not less than 1,000 feet, measured between the nearest property lines, from:
 - 1. Lots that are developed with dwelling units;
 - 2. Residential zone boundaries;
 - 3. Parcel boundaries of schools, public parks, and child care centers; and
 - 4. Places of assembly.
 - (f) Piles of mulch or raw materials will not exceed 30 feet in height; and
 - (g) The use does not involve processing, storage, or disposal of hazardous materials.
 - (h) The material piles will be maintained at all times in an orderly manner such as, not having stock piles visible from the public realm, loose debris is minimized, drive aisles and emergency vehicle access and employee paths are clear and maintained, material storage area do not encroach or obstruct drainage areas or flood plains or other environmental features, or in other manner as determined by the director.
- (2) *Heavy industry.* Heavy industry may be permitted in the M2 district if it is demonstrated that:
- (a) Dust, fumes, odors, smoke, vapor, direct light and vibration shall be confined within the M2 district. Noise generated by the use shall conform to the standards in section 5.20.280.
 - (b) Outdoor storage, equipment and refuse areas shall be concealed from view from abutting rights-of-way and adjoining residential districts.
- (3) *Heavy logistics center.* Heavy logistics center[s] may be permitted in the M2 district if it is demonstrated that:
- (c) The subject property is outside of the area bounded by Hwy 58 to the north;
- U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east.
- (4) *Light industry.* May be permitted:
- (a) By special use permit in the C2 district if the criteria for special use permit is met and:
 - 1. The use is not located within the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;
 - 2. The use is generally related to light industrial uses including bottling works, dairy processing and distribution plants, ice and cold storage plants, frozen food lockers, not including slaughtering on the premises, roofing shops, sheet metal shops, machine shop, or laboratories and not other uses that may be listed in the light industry use and otherwise meet the use standards for light industry.
 - (b) All such uses shall be operated entirely within a completely enclosed structure.
 - (c) Dust, fumes, odors, refuse matter, smoke, vapor, direct light and vibrations generated by such uses shall be confined to the structure where such use is located. Noise generated by the use shall conform to the standards in section 5.20.280.
 - (d) Vehicular travel and parking portions of the lot shall be paved with asphalt or concrete.
 - (e) Light industry with outdoor storage facilities for equipment, goods or materials may be permitted by special use permit in the M1 district and shall not be allowed in the C2 district.
- (2) *Salvage yard.* Salvage yard[s] may be permitted in the M2 zoning district if it is demonstrated that:
- (a) The subject property is outside of the area bounded by Hwy 58 to the north;

U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;

- (b) All areas of the subject property that are used to process or store salvaged materials are enclosed by a solid perimeter wall at least six feet in height, with trees planted 30 feet on center outside of the enclosed area along property lines that bounded by a public street (except at points of access); and
- (c) The subject property is spaced not less than 1,000 feet, measured between the nearest property lines, from:
 - 1. Lots that are developed with dwelling units;
 - 2. Residential zone boundaries;
 - 3. Parcel boundaries of schools, public parks, and child care centers; and
 - 4. Places of assembly.

(3) *Self-storage*. Self-storage may be permitted in the M1 district if it is demonstrated that:

- (a) The self-storage facility is secured so that access is limited to tenants (or owners) and fire, police, or emergency service officials;
- (b) The area of the subject property that is used for self-storage facilities (including parking, loading, and landscape areas) does not exceed five acres;
- (c) The self-storage use does not involve outdoor storage of any kind; and
- (d) If the subject property adjoins a residential use or zone boundary, the facility is closed and secured between the hours of 9:00 p.m and 7:00 a.m.

(4) *Storage yard*. Storage yards may be approved in the M2 district if it is demonstrated that:

- (a) The subject property is outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east;

- (b) The subject property does not have frontage on a state or federal highway;
 - (c) Stored materials do not exceed 20 feet in height;
 - (d) The following materials will not be stored outside or disposed of on-site:
 - 1. Hazardous materials (including explosives and motor fuels);
 - 2. Liquids, gels, or pastes;
 - 3. Unsecured materials that may be subject to movement off-site by wind or water.
 - (e) The storage yard is screened using one (or a combination) of the following methods:
 - 1. A solid fence or wall of at least six feet, but not more than eight feet, in height; or
 - 2. A ten-foot-wide vegetated buffer with hedge composed of coniferous hedge-forming 5-gallon shrubs that grow to a height of at least six feet within two years after planting, planted at a maximum of ten feet on center for the length of the buffer, with security fencing located on the interior side of the buffer.
 - (f) The storage yard will be maintained at all times in an orderly manner such as, not having stock piles visible from the public realm, loose debris is minimized, drive aisles and emergency vehicle access and employee paths are clear and maintained, material storage area do not encroach or obstruct drainage areas or flood plains or other environmental features, or in other manner as determined by the director.
- (5) *Waste transfer station*. Waste transfer stations may be approved in the M2 district if it is demonstrated that the standards of this subsection are satisfied.
- (a) The city shall request a technical review of the site and facility documents and

- operation plan from CDPHE pursuant to 6 CCR 1007-2 § 7.1 for all applications for approval of a waste transfer station.
- (b) Waste transfer stations shall be located so that truck traffic generated by the station can access a truck route without traveling upon a public street within or adjacent to any residential use or zone, or along thoroughfares adjacent to any public park or public recreational area or facility.
 - (c) No building or area in which the unloading, storage, processing, or transfer of wastes or recyclable materials takes place shall be located within:
 - 1. One hundred feet of the lot line on which the waste transfer station is located; or
 - 2. Five hundred feet of:
 - a. Any nonresidential structure located on property that is not owned or leased by the owner of the waste transfer station;
 - b. Any area of special flood hazard, fluvial hazard, or geologic hazard;
 - c. Any wetland;
 - d. Any water well;
 - e. Any natural or artificial pond (including a detention or retention pond or facility), stream, irrigation ditch or canal, water way, or water course; and
 - 3. One thousand feet of a lot line of a residential use or zone in the city.
 - (d) The minimum area of a subject property proposed for use as a waste transfer station shall be ten acres.
 - (e) The facility shall be designed such that all activities associated with waste transfer, such as tipping, sorting, storage, compaction, transfer, reloading, and related activities are conducted in a fully enclosed building. No outdoor storage of materials or equipment shall be allowed.
 - (f) Appropriate enclosed office / and plumbed employee restroom facilities shall be provided on-site.
 - (g) Adequate snow storage areas shall be provided within the subject property. Snow storage areas shall be made accessible and available at all times for exclusive use for snow storage from October 1 to April 30 of each year.
 - (h) The facility shall be designed with sufficient drive aisles and parking areas to avoid potential conflicts between facility operations by trucks and passenger vehicles (e.g., for drop-off of household wastes), and the use of emergency access easements and fire lanes. Emergency access easements and fire lanes shall be maintained at all times in an unobstructed and fully accessible condition.
 - (i) The driveway surface design shall be suitable for heavy vehicles in all weather conditions, and the road base shall be capable of withstanding all expected loads.
 - (j) Ingress, egress, and internal circulation systems shall be designed to eliminate the need for the backing of truck traffic.
 - (k) Solid wastes shall not remain at the transfer station for more than 72 hours.
 - (l) Processing, tipping, sorting, storage, compaction, and loading areas shall be located within an enclosed building.
 - (m) Truck routing shall avoid impacts to residential areas, schools, and public parks.
 - (n) The perimeter of the facility shall be enclosed by a fence or wall of at least six feet in height, with trees planted 30 feet on center outside of the fenced area in areas that are visible from a public street, except at points of access.
 - (o) The collection and disposal system shall prevent liquids contained in waste materials and generated by normal operations, such as wash-out and cleaning of equipment, trucks, and floors ("waste liquids"), from contaminating the soil, surface water,

or ground water. Tipping, loading, and unloading areas shall be constructed of impervious material and equipped with drains connected to either:

1. A wastewater system; or
 2. A corrosion-resistant holding tank; or
 3. An alternative system, if the applicant demonstrates that the alternate design will prevent waste liquids from contaminating the soil, surface water, and ground water.
- (p) Only household wastes, commercial, and industrial wastes and recyclable materials (except motor vehicles) shall be accepted at any waste transfer station. Unless otherwise collected in accordance with a plan approved by the city, no wastes classified as hazardous in accordance with C.R.S. § 2515-101, et seq., and no asbestos containing materials, shall be knowingly accepted.
- (q) The waste transfer station shall have an on-site operator on duty at all times that the facility is open. Suitable security measures and signage shall be provided to limit unauthorized persons from access to the facility when the station is closed.
- (r) The operation of the waste transfer station and the storage and handling of all solid wastes shall be practiced so as to prevent the attraction, harborage, or breeding of wildlife or insects, rodents, and other vectors (e.g., flies, maggots, roaches, rats, mice, and similar vermin), and to eliminate conditions which cause or may potentially cause:
1. Harm to the public health and the environment;
 2. Congregation of birds;
 3. Safety hazards to individuals and surrounding property; and
 4. Excessive odor problems, unsightliness, and other nuisances.
- (s) Waste transfer stations shall be maintained in a neat and orderly appear-

ance at all times through the control of uncontained waste, trash, and litter. Operators shall cause periodic monitoring not less than once every day (or more often as needed) of the entire waste transfer station or recycling center site.

- (t) Sanitary conditions shall be maintained through the periodic wash-down or other appropriate cleaning method of the transfer station and transfer vehicles. Frequency of cleaning shall be sufficient to prevent odors and other nuisance conditions from developing. All residuals shall be properly disposed of following cleaning operations.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.03.08 Use-specific standards for utility uses.

(1) *Data center.* Data center[s] may be approved in the C2 or M1 district if it is demonstrated that the subject property is outside of the area bounded by Hwy 58 to the north; U.S. 6 to the west and south; and Ford Street, South Golden Road, and Johnson Street to the east.

(2) *Overhead power lines (110 kV+).* Overhead power lines (110 kV or more) may be approved in any district by special use permit if it is demonstrated that the criteria for special use permit are met and:

- (a) If required by state law, a certificate of public convenience and necessity has been issued by the Colorado Public Utilities Commission ("PUC"), or the PUC has issued an exemption certification.
- (b) To the extent practicable, new transmission lines are located within existing transmission easements or routed outside of the city.
- (c) New transmission lines that are not located within existing transmission easements are routed to minimize the impact of poles and lines on existing develop-

ment through spacing between the transmission line and the following uses or infrastructure:

1. Three hundred feet from dwelling units, schools (all types), and places of assembly; and
2. Five hundred feet from federal and state highways.

(3) *Utilities minor.* May be permitted if it is demonstrated that:

- (a) The facility is located and designed to maximize health, safety, and welfare of surrounding properties.
- (b) Above-ground minor utilities with footprints that are 15 square feet or less and heights of five feet or less, are not required to be completely screened, but shall be designed to blend into their context to the extent practicable. Treatments may include, but are not limited to, integration with evergreen landscaping, use of color, and placement behind screen walls or berms.
- (c) Above-ground minor utilities with footprints that are larger than 15 square feet or heights that are greater than five feet shall be completely screened from view from adjacent property and public rights-of-way through:
 1. The use of evergreen landscaping, topography, and/or decorative walls; or
 2. Enclosed in a building that is designed to appear as a residential or agricultural accessory building, as appropriate to its context.
- (d) That the facility, structures, and fencing shall otherwise meet the applicable requirements and standards for the zone district as determined by the director and necessary application, approval process, or permitting process to match the potential impact and utility needs.

(4) *Solar gardens.* Solar gardens may be permitted in any district if it is demonstrated that:

- (a) Solar gardens with a rated capacity of 100 kW or less, subject to the following:
 1. Streetscape improvements are required as per site development regulations in chapter 18.29 or 18.40 of this title, as applicable.
 2. Ground-mounted solar energy collectors may not be located within utility easements or drainage easements unless authorized in writing by easement holder.
 3. Roof-mounted systems may be mounted on any legally conforming structure, subject to review through the building permit process. Roof-mounted systems shall be mounted as flush as feasible to the roof.
 4. In M1 and M2 districts, the minimum front setback to solar panels and equipment is five feet.
- (b) Solar garden with a rated capacity greater than 100 kW, up to and including 500 kW, may be permitted by site development plan approved by planning commission and subject to the following:
 1. In M1 and M2 districts, the minimum front setback to solar panels and equipment is five feet.
 2. Streetscape improvements required as per site development regulations in chapter 18.29 or 18.40 of this title, as applicable.
 3. Ground-mounted solar energy collectors may not be located within utility easements or drainage easements unless authorized in writing by easement holder.
 4. A planning commission finding of no significant adverse visual impact on the natural features or neighborhood character of the surrounding area.

5. A planning commission finding that the proposal is located to minimize glare on adjacent properties and roadways.
 6. Roof-mounted systems may be mounted on any legally conforming structure, subject to review through the building permit process.
 7. If substation interconnection is necessary, an electrical substation with capacity for interconnection (in which case, building permits shall be withheld until the applicant provides proof of a fully- executed interconnection agreement) is available within 300 feet of the boundaries of the subject property.
- (c) Solar garden with a rated capacity of more than 500 kW, may be approved by special use permit and subject to the following:
1. The property is within the R3, CMU-NC, CMU-CC1, CMU-CC2, C1, C2, M1, or M2 zone districts.
 2. The proposed solar garden meets the criteria of subsection (4)(b)1 through 6, inclusive, above.
 3. The proposed solar garden meets the criteria set out in chapter 18.30.
 4. In the R3 use district, the minimum lot size is one acre.
- (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.03.09 Use-specific standards for agricultural uses.

(1) *Generally.* Horses, cattle, sheep, llamas, and milking goats (collectively, "livestock") may be permitted in the AG and CO districts and in the RE district by special use permit as provided in the following requirements.

- (a) Livestock shall be confined within a fenced area;
- (b) Nine thousand square feet of open lot area shall be provided for the first livestock animal, and 6,000 square feet for each additional livestock animal;

- (c) Temporary buildings or trailers shall not be used for the stabling of livestock more than one 15-day period during each calendar year.
- (d) No building, riding ring, or corral shall be located in any manner so that any part thereof is less than 100 feet from the front lot line or less than 15 feet from any side or rear lot line.
- (e) Manure storage areas are:
 1. Screened so as to not be in view of other adjacent private property, public thoroughfares, or other areas of public access (e.g., trails).
 2. Managed so that manure does not accumulate so as to cause a hazard to the health, welfare, or safety of humans or animals.
 3. Set back 100 feet from the front lot line.
 4. Set back from side and rear lot lines at least:
 - a. The setback required for principal buildings on the subject property; or
 - b. If the adjacent property has greater corresponding setbacks than the subject property, 75 feet.

(2) *Urban farms.* Agricultural uses and farming is permitted in the AG and CO zone districts. Urban farms between one-half acre and up to two acres is permitted in all other zone districts by special use permit and shall meet the requirements of section 18.26.030.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

DIVISION IV. TEMPORARY AND ACCESSORY USES

18.28.04 Generally.

The standards of this division reference temporary and accessory use standards that may be accessory to the uses that are enumerated in the tables of division 18.28.02.04, Use

Tables, and may apply generally to all uses, specific zone districts, or specific use categories or uses.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.01 Farmers' markets, neighborhood farmers' markets, and produce stands.

Farmers' markets, neighborhood farmers' markets, and produce stands are permitted pursuant to the standards set out in chapter 18.26.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.02 Storage containers.

In residential and commercial and industrial zone districts:

- (1) Semi-trailers, commercial construction trailers, box cars or any type of train module, shipping or cargo containers, or other storage container as an accessory structure or storage use, provided such storage facilities are associated with a valid temporary use, such as building renovation or the process of moving into or out of the dwelling unit.
- (2) Such containers may be situated on the property for a period not to exceed 180 days in association with activities related to a valid building permit.
- (3) In the absence of a valid building permit, such containers are permitted to be situated on the property for periods not exceeding 30 consecutive days or more than 45 days in any consecutive 12-month period.
- (4) No more than two such containers shall be located on the property at any one time. The director of community development may grant one extension of time, for cause, no greater than the initial maximum time period.
- (5) Storage containers may be permitted in M2 as a permanent accessory structure that meets the zone district and building permit requirements.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.03 Drive through facilities.

(1) Drive-through facilities are allowed in the CMU-NC, CMU-CC1, and CMU-CC2, C2, and M2 districts only if the principal use which includes the drive-through facility, is approved as a special use (see chapter 18.30, Special Use Permits) and subject to the following standards. Drive-through facilities are not allowed in any other zoning district.

(2) Access to drive-through facilities adjacent to existing or planned pedestrian and bicycle infrastructure identified in the adopted 2023 Golden Pedestrian and Bicycle Plan as amended should be limited and shall avoid access on, over, or through sidewalks, shared use paths, and bike lanes to the extent feasible by accessing the site through secondary roads or alternative site access when available.

(3) Spill-over of vehicles onto roadways, sidewalks, shared use paths, and bike lanes shall be avoided by providing adequate space for vehicle stacking or queuing based on trip-generation analysis, traffic reports, and comparable use, operation, and site examples.

(4) Where permitted, drive-throughs must be placed so that pedestrians entering and exiting the building are not required to cross the drive-through lane(s). When it is necessary for individuals to have to cross drive-through lanes, crosswalks have to be clearly demarcated from the parking area to the building entrance.

(5) Drive-through lanes must be situated so that other vehicles leaving or entering the parking lot won't be hindered by others using the drive-through.

(6) Entrances and exits to drive-throughs must be placed so they do not come within 100-feet of the centerlines of intersecting streets. If there is not adequate space to meet this requirement, entrances and exits shall be located from the furthest point feasible from the centerline of an adjacent street used to access the site.

(7) Mega-drive through facilities: shall not be allowed. Factors that may determine a mega-drive through facility:

(8) When the drive-through lanes allow for the number of vehicles that meet or exceed the parking requirement for the site; and or

(9) When there are two or more drive-through lanes that accommodate four or more vehicles per lane and do not include bank drive-up or drive through facilities; and or

(10) When the linear feet dedicated to drive-through lines on the site meet or exceed the perimeter of the site.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.04 Home occupations.

Home occupations are allowed as provided in chapter 18.42.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.05 Accessory dwelling units.

(1) *Generally.* Accessory dwelling units ("ADUs") are allowed in conjunction with all single-household dwelling units and two-household dwelling units in residential zone districts, including RE, R1, R1A, R2, R3, and PUD, as provided in this section.

(2) *Conformance to development standards.* ADUs shall be subject to the same development standards required for the principal dwelling unit unless alternative standards are specifically set out in this Code.

(3) *Existing or new development on lot.* An ADU is allowed only on lots used or developed as one household dwelling units or two-household dwelling units, regardless of the number of dwelling units allowed on the subject property by this Code. A certificate of occupancy ("CO") will only be issued for an ADU after a CO has been issued for the principal dwelling unit.

(4) *Parking.* One on-site parking space shall be required for an ADU. Parking for the ADU is in addition to the required parking for the principal dwelling unit, as set forth in chapter 18.36. The required parking space may be in tandem with other required spaces, but must be identified on a site plan.

(5) *Unit size and configuration.*

- (a) For a single-household or two-household dwelling unit of 1,000 square feet or more of living space, the accessory dwelling unit shall be no larger than 50 percent

of the living space of such principal dwelling unit, or 800 square feet, whichever is smaller.

- (b) For a principal dwelling unit of less than 1,000 square feet of living space, the accessory dwelling unit shall be no larger than 500 square feet. No accessory dwelling unit shall be less than 200 square feet. For the purposes of this subsection, floor area calculations shall exclude any garage, porch or similar area.

- (c) If a new ADU is enclosed entirely within a building containing an existing single-household or two-household dwelling unit, the accessory dwelling unit shall be no larger than any existing dwelling unit in the building.

(6) *Occupancy.* No more than three persons shall occupy an accessory dwelling unit.

(7) *Number of ADUs per lot.* Only one ADU shall be allowed for each single household or two-household dwelling unit. ADUs shall be included as separate dwelling units for the purpose of calculating the minimum lot area required by section 18.29.04.002.4.b.1. for RM zone district only.

(8) *Owner occupancy.* The property owner, as reflected in title records and evidenced by voter registration, vehicle registration or other similar means, must occupy either the principal dwelling unit or accessory dwelling unit. The director may waive this requirement for temporary absences provided that the owner has occupied the principal or ADU for a minimum of two years and submits proof of the temporary absence.

(9) *Design.* To preserve the appearance of the single-household dwelling, accessory dwelling units built as additions or separate structures shall be designed in the following manner:

- (a) The design of the ADU shall be similar to the design of the principal dwelling unit by use of similar exterior wall materials, window types, door and window trims, roofing materials and roof pitch;

- (b) If the entrance to the ADU is visible from an adjacent street, it shall be designed in a manner as to be clearly subordinate to the entrance of the principal dwelling;
- (c) Windows that face an adjoining residential property shall be designed to protect the privacy of neighbors unless fencing or landscaping is provided which adequately accomplishes the same purpose.

(10) *Outdoor areas.* The site plan shall provide accessible outdoor space and landscaping for both the ADU and the principal dwelling unit.

(11) *Utility service requirements.* ADUs must be connected to the water and wastewater utilities of the principal dwelling unit and may not have separate services, unless the director determines such to be infeasible.

(12) *Mobile homes and RVs.* Mobile homes not meeting the definition of manufactured homes, and RVs (including campers, camper buses, travel trailers) shall not be used as an ADU.

(13) *Deed restriction.* Before obtaining a building permit for an accessory dwelling unit, the property owner shall file with the county clerk and recorder, in a form acceptable to the director, a declaration of restrictions in reference to the deed under which the property was acquired by the present owner stating that:

- (a) The ADU shall not be sold separately from the principal dwelling unit, nor shall the lot on which it is situated be subdivided unless such subdivision is permissible in accordance with all provisions of titles 17 and 18 of this Code;
- (b) The ADU shall be restricted to the approved size;
- (c) The CO for the ADU shall be in effect only so long as either the principal dwelling unit, or the ADU, is occupied by the owner of record;
- (d) The above restrictions run with the land and are binding upon any successor in ownership of the property;

- (e) It shall be unlawful for any property owner not to comply with the deed restrictions; and
- (f) The deed restrictions shall lapse upon removal of the ADU. To effect this intent, and upon verification of such removal, the city shall record appropriate documentation releasing such encumbrance. The property owner shall pay all required recording fees, and it shall be the property owner's responsibility to ensure that such recording is successfully completed.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.06 Outdoor storage.

(1) *C2 district.* In the C2 district, outdoor storage of equipment or raw material is prohibited, unless such equipment or raw material is displayed for the purpose of sale, rental, or lease and shall only be permitted subject to approval of a site development plan by the community and economic development department in accordance with the provisions of chapter 18.40 of this title.

(2) *M1 district.* Outdoor storage is allowed in the M1 district only if the principal use, including the outdoor storage facility, is approved as a special use (see chapter 18.30, Special Use Permits).

(3) Outdoor storage, equipment and refuse areas shall be concealed from view from abutting rights-of-way and adjoining residential districts. (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.07 Small wind energy conversion systems.

(1) *Generally.* Building or pole mounted wind turbines are permitted in the RC, C1, C2, M1, and M2 districts, including those that exceed the zone district height limit by up to 15 feet (measured to the top of the turbine blade or mechanism). Such use is permitted provided that all of the following standards are met:

- (a) The wind turbine shall meet applicable ratings by the international council of building officials (ICBO) or underwriters laboratory (UL).

- (b) The ICBO or UL rating must indicate that the turbine will not generate noise levels in excess of 65 dB(A).
- (c) Pole-mounted wind turbines shall be set back a distance no less than the combined pole and turbine height from any adjacent or nearby residentially zoned property, park, or public open space, measured to the top of the pole or turbine blade, whichever is taller, and no less than ten feet from any other property line.
- (d) Any wind turbine pole shall be located a distance no less than one-half of its height from any other wind turbine pole on the same lot or parcel, said distance being required for safety purposes.
- (e) For any property subject to the downtown design standards and guidelines of division V of Golden Municipal Code, chapter 18.40, any building or pole mounted wind turbine shall be subject to a special use permit review and approval according to the provisions of chapter 18.30, Special Use Permits.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.04.08 Urban agriculture accessory uses.

(1) The keeping of domestic small livestock and fowl, as defined in section 18.04.020, as an accessory use in conjunction with a residential use, school use or municipal use, excluding mobile homes; provided, however, such accessory use is in compliance with chapter 18.26 of the Code.

(2) Beekeeping, as defined in section 18.04.020, as an accessory use in conjunction with a residential use, school use or municipal use, excluding mobile homes; provided, however, such accessory use is in compliance with section 18.26.070 of the Code.

(3) Green grocers as defined in section 18.04.020, green grocers must comply with the regulations set forth in section 18.26.050. Where located on a lot with a residential dwelling unit, must meet home occupation regulations in chapter 18.42.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

DIVISION V. PLANNED UNIT DEVELOPMENT

18.28.05.01 (PUD) Planned unit development district.

(1) The PUD district permits the community and economic development of land which is suitable in location and character for the uses proposed as unified and integrated developments in accordance with detailed development plans. The PUD district also provides for specific land uses not permitted in other zone districts. The PUD district is intended to provide a means of accomplishing the following objectives:

- (a) To provide for development concepts not otherwise permitted within standard zone districts.
- (b) To provide flexibility, unity and diversity in land community and economic development, resulting in convenient and harmonious groupings of uses, structures and common facilities; varied type design and layout of housing and other buildings; and appropriate relationships of open spaces to intended uses and structures.
- (c) To provide for the public health, safety, integrity and general welfare, and otherwise achieve the purposes as provided for within the Planned Unit Development Act of 1972, Title 24, Article 67, Colorado Revised Statutes 1973, as amended.
- (d) To provide for phased development, the more efficient use of land and the public and private services needed therefor, and reflect changes in the technology of land development.
- (e) To provide for land development flexibility in dwelling type, bulk, density, intensity and open space, as a policy which Golden wishes to encourage; and, as a corollary, regulate certain proposed land development which would distort the objective of Golden's zoning.
- (f) To encourage integrated planning in order to achieve the above purposes.

(2) Uses within a PUD development may be multiple in nature and may include uses not otherwise permitted within the same zone district. The location and relationship of these uses shall be as established in and conform to the policies and standards contained within the comprehensive plan and other appropriate adopted and approved plans, including, but not limited to, locational criteria within that comprehensive plan.

(3) When regulations governing setbacks, secondary and accessory uses, off-street parking, fences, walls and obstructions to view, open space, signage, and site elements are not specifically mentioned in the stipulations of the approved official development plan, the director of community and economic development shall have the following options:

- (a) Require the application of regulations as set forth in the most similar zone category for any or all of the site elements listed above.
- (b) Require the applicant to develop standards, prior to site plan submittal, which are in keeping with the intent of the PUD district. Such standards must be recorded as an amendment to the official development plan.

(4) Except as provided herein, signage standards in any PUD district shall not be less restrictive than the standards of chapter 18.32 of this title. Upon a finding of unique circumstances related to preexisting signs, topography, visibility, or size or shape of a property, city council may approve alternative signage standards, if such standards will not cause substantial detriment to public good, alter the essential character of the neighborhood, or not substantially impair the intent and purpose of this title or the comprehensive plan of the city.

(5) The provisions of the Golden Municipal Code pertaining to the planned unit developments and the PUD district, including chapter 18.28 division V are intended to supersede the provisions of the Colorado "Planned Unit Development Act of 1972."
(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.02 Land uses permitted only in the PUD district.

The following land uses are permitted only in the PUD district:

- (a) Mining; mineral resource extraction.
 - (b) Major utilities and transmitting stations and substations, including towers, but not to exceed 35 feet in height.
 - (c) Correctional facilities.
 - (d) Detoxification facilities.
 - (e) District and county court facilities.
 - (f) Commercial telecommunication sites other than as permitted in chapter 18.90.
 - (g) Sanitary landfills.
- (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.03 Special regulations for mining; mineral resource extraction.

(1) A PUD application for mining or mineral resource extraction shall be subject to the following regulations in addition to other permits, regulations and provisions as may apply:

- (a) The PUD application shall contain the following documents and information in lieu of the standard application documents and information required by section 18.28.330.
 - 1. All information and maps required by C.R.S. 34-32-110, C.R.S. 3432-111 and/or C.R.S. 34-32-112, depending on which section may be applicable;
 - 2. The reclamation plan required under (1) above, shall also comply with the following requirements:
 - A. All banks should be left with slopes no greater than 15 percent except that a greater slope will be permitted if it is in substantial conformity to the surrounding topography;
 - B. Upon the completion of the mining and reclamation, the land shall be left in a safe

condition which provides drainage sufficient to prevent water pockets or undue erosion;

- C. Where topsoil (overburden) is removed, sufficient available top soil shall be set aside for replacement. Trees, shrubs, grasses or other ground cover shall be planted and maintained for the length of time needed to become established in order to avoid erosion;
 - D. Within one year after completion of the mining operation, all mining and processing equipment, including all buildings, structures (except fences) and scale houses shall be entirely removed from the site;
3. A statement of mining operation containing:
- A. A description of the method or methods to be employed to avoid unreasonable depreciation or pollution of surface and subsurface water supplies; minimize slope hazard; minimize erosion, fugitive dust, airborne noise and seismic disturbances from blasting.
 - B. A statement setting forth anticipated:
 - (i) Haul routes including ingress and egress to the site,
 - (ii) Hours of haulage,
 - (iii) Size of trucks,
 - (iv) Anticipated number of trips per day both to and from site.
- (b) The continued operation of the open mine is contingent upon the operator submitting an annual reclamation plan to the city council containing all of the information required by C.R.S. 34-32-116. If terms of the reclamation plan are violated or if the report contains reclamation

plans which violate or are contrary to the terms of the final development plan, the council may institute enforcement procedures authorized by section 18.28.400, or seek state enforcement assistance.

- (c) In addition to the above requirements, the operator must obtain necessary state open mining permits pursuant to Colorado Mined Land Reclamation Act, chapter 149, 1976 Session Laws of Colorado; and be subject to all laws contained therein.
- (d) The planning commission and city council shall apply the following standards in reaching their final decision on open mining PUD applications in addition to the criteria in sections 18.28.05.06 and 18.48.060:
 - 1. Does the application provide reasonable protection for the health, safety and welfare of the surrounding neighborhood from:
 - A. Noise and seismic disturbances;
 - B. Traffic hazards and congestion;
 - C. Depreciation and pollution of surface and subsurface water supplies;
 - D. Other health or safety hazards not listed above;
 - E. Depreciation of air quality and visibility;
 - F. Unnecessary visual disruption.
 - 2. Does the application provide a reclamation plan reasonably designed to minimize as much as practicable the disruption of the ecology and provide for the rehabilitation of any surface resources adversely affected by such open mining operations or provide other reclamation measures appropriate for the subsequent beneficial use of such mined and reclaimed lands.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.04 Procedure for PUD zoning and official development plans.

(1) In addition to the submittal and format requirements of this chapter, applications for PUD zoning shall comply with the application and hearing procedures for rezoning contained in chapter 18.10. The application to establish PUD zoning must include written consent from all the real property owners within the boundaries of the property that is the subject of the application. For applications to establish a PUD zoning, the planning commission and city council shall each hold a hearing on the rezoning request, including approval of the official development plan. The city council may approve the requested PUD rezoning and the official development plan in a single ordinance.

(2) Within existing PUD zone districts, an application for approval of a new or amended official development plan for all or a portion of an the property encompassed within an existing official development plan shall comply with the submittal and format requirements of this chapter and the application and hearing procedures for rezoning contained in chapter 18.48, except that the application to amend or replace an official development plan need only include written consent from all the real property owners within the boundaries of the property that is the subject of the new application. City council's action regarding an application for a new or amended official development plan shall be by ordinance. (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.05 Official development plan.

An application for PUD zoning shall include a document hereinafter referred to as an official development plan which will govern development of the PUD district. This official development plan shall consist of:

- (1) A written statement containing the following information:
 - (a) The present ownership, legal description, existing zoning and total acreage of all the land within the planned unit development;

- (b) An explanation of the proposed character of the planned unit development and of the manner in which it has been designed to take advantage of the planned unit development regulations;
 - (c) Proposed land uses and accessories including dwelling unit density, parking, maximum commercial floor area or floor area ratio, setbacks, height limitations, and buffering;
 - (d) A tentative time schedule containing prospective completion dates for various stages of development, including major utility installation schedules;
 - (e) An explanation of public facilities and service needs and availability, including water supply and distribution, sewage collection and treatment, and water resource needs above current zoning;
 - (f) Impact statements by qualified consultants regarding the effects of the proposed rezoning on air quality, water quality, wetlands, soils and geology, grading, floodplains, biotic resources and cultural (historic) archaeological resources. These statements will be referred to the appropriate agency to determine if additional analysis is required;
 - (g) Statements regarding the affects of the proposed rezoning on existing drainage and how increased drainage runoff will be handled, and regarding anticipated traffic and transportation impacts; and
 - (h) Copies of any proposed special agreements, performance guarantees, conveyances, restrictions or covenants which will govern the development and use of land and building(s) maintenance and continued protection of the PUD and any of its common use areas.
- (2) An official development plan site map which shall be a map of the site to a scale

of not less than one inch equals 100 feet, unless a different scale is approved by the director. Contours shall be at two-foot intervals, provided that five-foot intervals, provided that are acceptable for slopes over ten percent grade. The official development plan site map shall include:

- (a) Existing topography, land use, roads, availability of utilities and rights-of-way;
 - (b) Proposed lots and/or usage areas;
 - (c) Spatial location of building clusters in relation to site topography and adjoining land use, when known;
 - (d) Proposed spatial arrangement of pedestrian and vehicular circulation areas (shown separately), off-street parking and loading areas, public or private common park(s) and/or open space, when known;
 - (e) Proposed public rights-of-way, easements, open space or park(s) which are to be conveyed, dedicated or reserved for common or recreation areas and sites for schools and/or public buildings;
 - (f) If the PUD official development plan includes a request for site development plan approval all information required by chapter 18.40 shall also be included.
- (3) A vicinity map showing street and tract lines of all abutting subdivisions within one-half mile radius and major thoroughfares in the immediate area;
 - (4) Standard certifications in a form provided by the director, to include:
 - (a) Owner's agreement statement and signature and notary blocks, as follows:

OWNER'S AGREEMENT STATEMENT

I, _____, owner of the property herein described, do acknowledge and agree that such property shall be developed in compliance with the PUD Official Development Plan, the original of which is on file with the County Clerk and Recorder of Jefferson County, Colorado, and a copy of which is on file with the City Clerk of the City of Golden, Colorado. No variation from any provision of said Official Development Plan shall be permitted unless the plan is amended in accordance with procedures established by ordinance of the City of Golden. Any variation from provisions of said Official Development Plan without prior amendment or addendum of the Plan shall be grounds for revocation of the rezoning ordinance establishing this Planned Unit Development or other appropriate sanctions. I further agree that the Official Development Plan regulations and covenants for this PUD Zone District will be executed to those standards, densities, land uses and criteria specified by the City Council of the City of Golden, Colorado.

Witness my hand and seal this ____ day of ____, 20____

Signature

State of Colorado)

) ss

County of Jefferson)

The foregoing instrument was acknowledged before me this ____ day of ____, 20____ by

Witness my hand and notarial seal

My Commission expires: _____

Notary Public

The Owner's Agreement Statement shall not be modified except by approval of the director after consultation with the city attorney.

- (b) City council approval block or, for minor amendments planning commission approval block, for administrative amendments director approval block; and
 - (c) County clerk and recorder certification block.
- (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.06 Standards for approval.

The official development plan shall be approved only if the city council finds that the proposal meets the following standards:

- (1) The proposed development will be in harmony and compatible with the character of the surrounding areas and neighborhood in terms of use, scale, site design, and operating characteristics (e.g. hours of operation, traffic generation, lighting, noise, odor, dust, and other external impacts) or which are made compatible through appropriate transitions at the boundaries of the PUD district plan (e.g., through decreases in building height; through significant distance or separation by rights-of-way, landscaping or similar features; or through innovative building design);
- (2) Will be in accordance with of the Golden Comprehensive Plan and also result in positive benefits for the surrounding area or an improvement in the quality of the project not possible under existing zoning;
- (3) Will not result in an over-intensive use of land;
- (4) Will not have a material adverse effect on community capital improvements programs;
- (5) Will not require a level of community facilities and services greater than that which is available;
- (6) Will not result in undue traffic congestion or traffic hazards;

- (7) Will not cause significant air, water, or noise pollution;
 - (8) Will be landscaped, buffered, and screened to be compatible with the surrounding neighborhood;
 - (9) Will not otherwise be detrimental to the health, safety, or welfare of the present or future inhabitants of Golden.
- (Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.07 Modifying approved PUD official development plans.

(1) See chapter 18.10.020 for administrative amendments that may be approved by the director and shall be reviewed by the standards in section 18.28.350 but not section 18.48.060 for rezonings.

(2) See chapter 18.10.030 for minor amendments that may be approved by planning commission and shall be reviewed by the standards of approval of section 18.28.350 but not section 18.48.060 for rezonings.

(3) Changes in approved official development plans other than administrative amendments or minor amendments require a new official development plan and must be approved by the procedures as set out in this chapter and shall be reviewed by the standards of approval for section 18.28.350 and section 18.48.060.

(4) The owner(s) of the fee interest of land in a PUD district or their designated agent may apply for a minor modification of the PUD office development plan on forms available at the community and economic development department. Minor modifications shall be reviewed and approved or denied by the director of community and economic development based upon the standards in section 18.28.05.06, or referred to the planning commission pursuant to subparagraph (5) of this section.

(5) The director of the department of community and economic development may, at his discretion, refer a modification to the planning commission for consideration. The planning com-

mission may also hear an applicant's appeal from the director's decision with regard to a minor modification. A public hearing before the planning commission shall be held with prior notice thereof as provided in chapter 18.10. Any action by the planning commission shall require payment of an additional review fee in an amount to be established by city council resolution.

(6) An appeal from a planning commission decision on a requested minor modification may be made to the city council. A public hearing before the city council shall be held with prior notice thereof as provided in chapter 18.10. Any action by the city council shall require payment of an additional review fee in an amount to be established by city council resolution.

(7) Denial of a minor modification does not preclude the filing of a new rezoning or PUD application.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

18.28.05.08 Review and enforcement.

Construction shall be in accordance with the official development plan and shall be completed within any time limitation established by the official development plan if applicable. Such time limitation may be based on the extent of proposed development in relation to size, amount of physical construction necessary, cost, and other time factors felt to be involved with the subject proposal. If, in the opinion of the city council, circumstances warrant an extension, the city council may extend the initial time period.

(Ord. No. 2258, § 2(Exh. A), 1-28-2025)

APPENDIX A LEGACY STANDARDS

The standards of this appendix A apply to planned unit developments that cross-reference the sections of this chapter that provide a cross-reference to this appendix.

All AG, RE, R1, R1A, R2, R3 and RM, districts shall comply with the following density schedule as well as all relevant provisions in the subsections of this section:

		AG Agriculture	RE One Household	R1 and R1A One Household	R2 One or Two Household	R2 Three or Four Household	R3 One or Two Household	R3 Three and Four Household	R3 Multiple Household High	RM Mobile Home
(1)	Min. lot area (sq. ft. or acres)	3 acres	9,000	7,000	7,000	9,000	7,000	9,000	10,500	5 acres
(2)	Min. lot area (per dwelling unit)	3 acres	9,000	7,000	3,500	3,000	3,500	3,000	2,100	3,500
(3)	Min. lot front-ages (ft.)	150	75	50	50	75	50	75	75	40
(4)	Min. front setback (ft.)	20	20	15	15	20	15	20	20	10
(5)	Min. side setback (ft.)	15	10	5	5	10	5	10	20	5
(6)	Min. rear setback (ft.)	20	20	10	10	20	10	20	20	10
(7)	Max. height principal bldg. (ft.)	35	25	30	30	35	30	35	35	35
(8)	Max. height accessory bldg. (ft.)	35	15	20/25	20/25	20/25	25	25	25	15
(9)	Equivalent density (units/acre)	0.33	4.8	6.2	12.5	14.5	12.5	14.5	20.8	12.5

(1) *Setbacks.*

- (a) Accessory buildings shall have the same front setback requirements as the principal building, except that the vehicle entrance for any garage shall be setback a minimum of 20 feet from the front property line.
- (b) Accessory buildings may have side and rear setback of five feet from the property line.
- (c) The minimum front setback designated in the above schedule notwithstanding, the vehicle entrance for any garage shall be setback a minimum of 20 feet from the front property line.

- (d) Cornices, canopies, eaves or similar architectural features may extend into a required setback not more than two feet, provided that all applicable building code requirements are met. Similar architectural features shall not include bay windows or any form of usable living area.
- (e) Front porches on structures within the RE, R1, R1A, R2 and R3 zone districts that comply with the requirements found in [subsection] (4)(b) and 4(c) of this section may encroach up to five feet into the front setback.

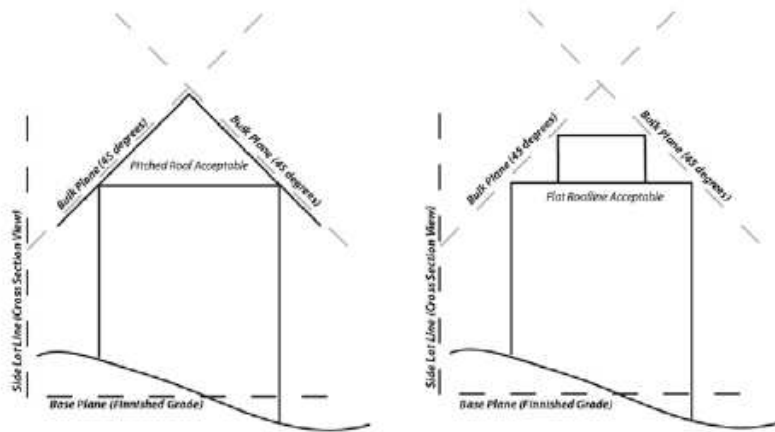
- (f) Fire escapes may extend into a required setback not more than six feet provided that all applicable building code requirements are met.
 - (g) The setback along both street sides of a corner lot shall be not less than the required front setback for principal buildings along such streets.
 - (h) The setback requirement for lot lines that are coincident with an attached or common wall of a two-household attached wall building shall be zero feet, provided that all other setback requirements are met.
 - (i) The setback requirement for lot lines that are coincident with an attached or common wall of a multiple household attached wall building in the R2 and R3 districts shall be zero feet, provided that all of the following conditions are met:
 1. Each dwelling unit is located on a separate and distinct lot; and
 2. There is maintained an open space, free of other structures and public streets, between the structure and any other lot lines no less than the otherwise applicable setback. Such open space shall be located only upon the lots upon which the structure is located and adjacent tracts which are designated as a common area, common open space or equivalent.
- (2) *Building height.*
- (a) No dwellings shall be constructed with a height above grade of less than ten feet.
 - (b) The maximum height for principal buildings in the R3 district shall be 30 feet, except that for structures containing more than two dwelling units in the R3 district on lots with more than 10,500 square feet in area, the maximum height shall be 35 feet.
 - (c) The maximum height for accessory structures in the R1 and R2 districts shall be 20 feet except that for structures with a minimum roof pitch of 3/12 the maximum building height may be increased to 25 feet.
 - (d) Reserved.
- (3) *Wall plane changes.* For properties within the RE, R1, and R1A zone districts, a minimum of 25 percent of the front wall plane of the structure shall be either projected or recessed to a minimum depth of ten percent of the length of the facade. Front porches may count toward this requirement, which is applicable to all new principal structures as well as existing structures where the length of the front wall is increased by 25 percent or more. The director may approve a reduction to the wall plane requirement from 25 percent to as low as 20 percent projected or recessed, provided that all other requirements of section 18.28.200 have been met and it does not conflict with any other requirement of this title.
- (4) *Lot coverage.*
- (a) For properties within the RE, R1, R1A, R2, and R3 zone districts, individual accessory structures, and the aggregate total lot coverage of accessory structures shall not exceed ten percent of the lot area.
 - (b) For properties within the RE, R1, and R1A zone districts, the aggregate total lot coverage of all structures, both principal and accessory, shall not exceed 40 percent of the lot area, except that an unenclosed front porch with a minimum size of 48 square feet, and is of single-story design, shall be exempted from the 40 percent lot coverage calculation.
 - (c) For properties within the R2 zone district, and lots within the R3 zone

district upon which a two- family household building or structure is located, the aggregate total lot coverage of all structures, both principal and accessory, shall not exceed 50 percent of the lot area, except that an unenclosed front porch with a minimum size of 48 square feet and a minimum depth of five feet, shall be exempted from the 50 percent lot coverage calculation. Front porches shall be of single-story design, with no second story or third story living area permitted above the front porch. Any cantilevered portion of the structure shall not exceed the maximum lot coverage requirement.

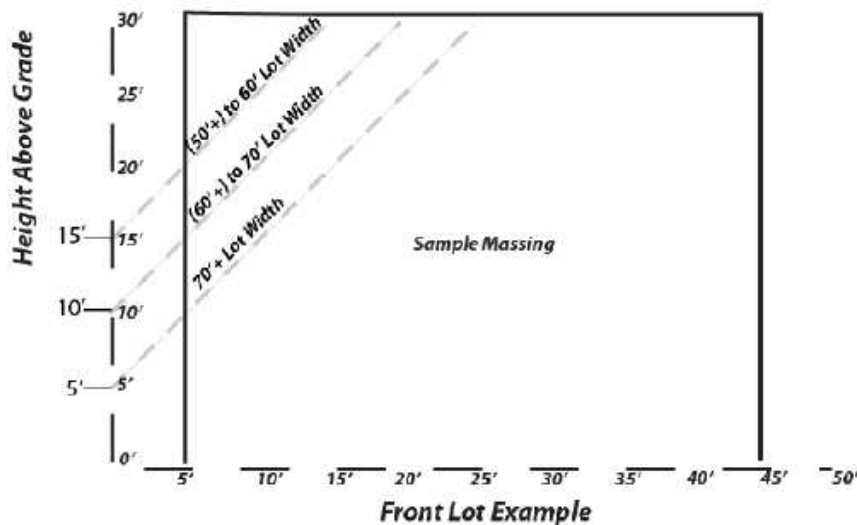
- (5) *Lot frontage.* In the R2 or R3 districts, the minimum lot frontage for lots upon which a two-household attached wall building is located shall be 25 feet if each dwelling unit in the building is located on a separate lot.
- (6) *Bulk plane requirements.*
 - (a) *Applicability.* The bulk plane requirements in this subsection (6) shall only apply to all residential development of four dwelling units or less in the R2 zone district, and all residential development of one- or two-household dwellings or structures in the R3 zone district.
 - (b) *Requirements.* No part of any structure subject to these bulk plane requirements shall project through

the following defined bulk planes, which define a building envelope for the subject lot:

1. *Base plane.* A horizontal bottom plane from which the vertical legs of the bulk planes are measured. The vertical position of the base plane is determined by an average of the finished grade of the building, as defined by chapter 18.04.
2. *Bulk plane.*
 - A. A horizontal line that is located directly above the midpoint of the side lot line, beginning at:
 - (i) A point 15 feet above the midpoint of such side lot line for lot frontages up to 60 feet in width; or
 - (ii) A point ten feet above the midpoint of such side lot line for lot frontages more than 60 but no greater than 70 feet in width; or
 - (iii) A point five feet above the midpoint of such side lot line for lot frontages greater than 70 feet in width; and
 - B. The intersecting lines that extend over the lot at a pitch of 12:12 (45-degree angle) from the horizontal lines defined in paragraph (i) above.



(Example Not to Scale)

(c) *Corner lots.*

1. For corner lots that abut public right-of-way on two sides (double lot frontage), one lot frontage shall serve as a primary frontage. The property owner shall have the discretion to determine which frontage along such abutting public right-of-way shall serve as the lot's primary frontage.

2. The lot frontage not chosen as the primary frontage shall be deemed the secondary frontage of the lot. The bulk plane requirements as described in subsection (6)(b) above shall apply to the secondary frontage of the lot.

(d) *Alleyways.*

1. The bulk plane requirements as described in subsection (6)(b)

above shall apply to the side lot line abutting an alleyway when the subject lot is separated from another lot by an alley. This restriction shall not apply to a subject lot having a rear yard that abuts an alleyway.

(e) *Allowable bulk plane encroachments.*

1. Cornices, canopies, eaves or similar architectural features, may extend into a required bulk plane restriction not more than two feet, provided that all applicable building code requirements are met. Similar architectural features shall not include bay windows, staircases and stairwells, or any form of usable, conditioned living area including dormers.

2. Mechanical equipment may extend into a required bulk plane restriction not more than five feet.

- (7) *Front porches.* For all residential development of four dwelling units or less in the R2 zone district, and all residential development of one- or two-household dwellings or structures in the R3 zone district, a front porch shall be required. One porch shall be required per structure if multiple structures are present.

- (a) The front porch shall be unenclosed with a minimum size of 48 square feet and shall be of single story design. No second story or third story living areas shall be permitted above the front porch. No second story or third story decking area shall be permitted above the front porch.
- (b) The front porch shall be required on the primary frontage of the development.

Bulk and Height Schedule for the RC, C1, C2, M1 and M2 Districts

All RC, C1, C2, M1 and M2 districts shall comply with the following density schedule:

		<i>RC-C1</i>	<i>C2 General Commercial</i>	<i>M1 Limited Industrial</i>	<i>M2 General Industrial</i>
(1)	Maximum height of buildings (feet)	50	50	35	65
(2)	Minimum front setback (ft. from property line)	5	5	5	5
(3)	Minimum side setback (feet)	0	0	0	0
(4)	Minimum rear setback	0	0	0	0
(5)	Minimum rear setback from alley	5	5	5	5

(6) *Additional standards.*

- (a) Where provided in the site development standards of chapter 18.40, the front setback shall be zero feet.
- (b) When adjacent to a residential zoned area, an additional buffer area as required by chapter 18.40 shall be provided.

- (c) The height limitations of this section shall not apply to church spires, belfries, cupolas, nor to chimneys, ventilators, skylights, water tanks, parapet walls, cornices without windows, antennas or necessary mechanical appurtenances carried above the roof level.

(d) *Setbacks.*

1. Cornices, canopies, eaves or similar architectural features may extend into a required setback not more than two feet.
2. Fire escapes may extend into a required setback not more than six feet.
3. The setback along both street sides of a corner lot shall be not less than the required front setback for principal buildings along such streets.

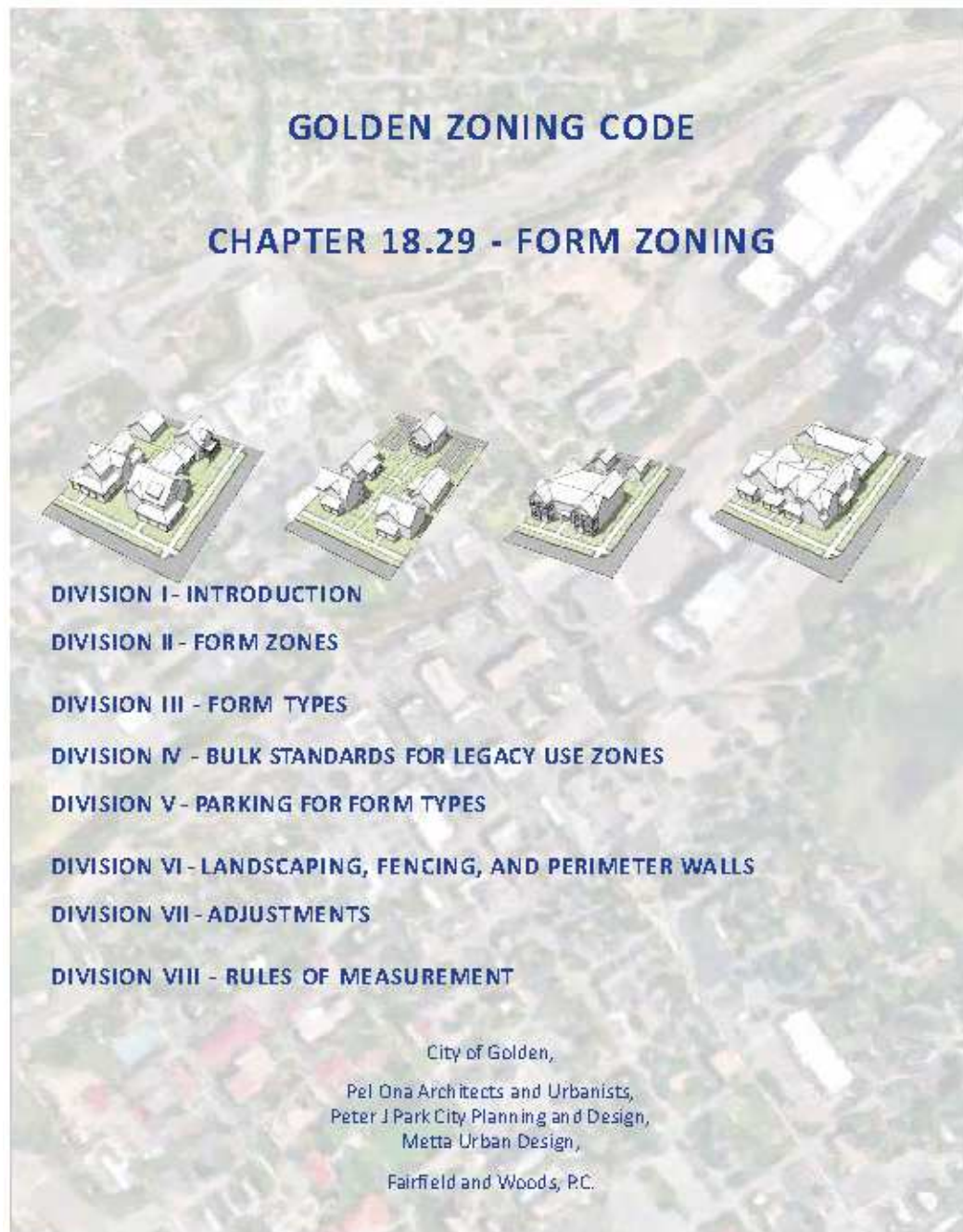
(e) Properties for which a special use permit approval is required in C-1 and C-2 zone districts to accommodate increased residential use shall meet the standards of the density schedule listed in former section 18.28.200, above, for the R3 zone district, except that properties located in height zones B and C of the downtown area, as defined in section 18.40.724, shall meet the following setback, building height, and open space standards:

1. The minimum side and rear setback shall be ten feet.
2. The applicable height criteria set forth in section 18.40.724.

The minimum useable open space shall be equal to or greater than 40 percent of the lot area, and a minimum of 50 percent of this required open space shall be located at ground level.

(Ord. No. 2258, § 2(Exh. A-1), 1-28-2025)

Chapter 18.29 FORM ZONING*



***Editor's note**—Sec. 2(Exh. G), of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.29 in its entirety to read as herein set out. Former ch. 18.29 pertained to the same subject matter, and derived from Ord. No. 2181, adopted May 24, 2022.

Division I INTRODUCTION

18.29.01.001 PURPOSE AND INTENT OF CHAPTER

1. PURPOSE

The purpose of chapter 18.29 is to implement the City of Golden Comprehensive Plan and the City's Neighborhood Plans, and to preserve and promote the public health, safety, prosperity, and welfare of the City's inhabitants and property owners by protecting and enhancing the functional, aesthetic, historic, and economic value of the City's built environment.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

2. INTENT

Chapter 18.29 is intended to:

- a. Preserve, maintain, and enhance the established "small town" physical character of Golden by ensuring new development is compatible with the bulk, scale, and massing of existing developments within proximity to the subject property.
- b. Mitigate the impact of design changes in instances where new development is integrated into the existing built environment, particularly from the pedestrian point of view, by ensuring the bulk, scale, massing, and rhythm of new buildings (specifically those elements that are highly visible from the lot frontage) relates to the block presence and scale of existing buildings.
- c. Establish appropriate forms for development on properties that had nonconforming lot sizes prior to the adoption of this chapter 18.29.
- d. Provide appropriate forms to enhance opportunities to preserve existing residential buildings and natural features throughout the City.
- e. Provide opportunities to enhance pedestrian areas through protection of the neighborhood sidewalk pattern and the reduction of potential vehicular-pedestrian conflicts.
- f. Encourage multifamily development that is comprised of multiple, smaller buildings on a lot as opposed to a single large building on a lot.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.01.002 APPLICABILITY AND FLEXIBILITY

1. APPLICABILITY

- a. Form Zones. The standards and guidelines in divisions III, V, and VI of this chapter 18.29 apply to the development, redevelopment, or substantial alteration (as defined in section 18.04.020) of buildings within form zones, in the manner set forth herein.
- b. Legacy Use Zones. The standards in division IV of this chapter 18.29 apply to the development, redevelopment, or substantial alteration of buildings within legacy use zones (as defined in 18.04.020).

2. FLEXIBILITY

- a. **Mostly Preserved Building Status.** With regard to the expansion or substantial alteration of principal buildings, "mostly preserved building" status is available to qualifying buildings to encourage their preservation. Mostly preserved building status is approved pursuant to section 18.29.07.001.2. Generally, "mostly preserved building" status allows for additional development flexibility in the middle building envelope area.
- b. **Adjustments.** Adjustments to the standards of divisions III, IV, and VI of this chapter may be approved using the standards and procedures set out in division VII, Adjustments. Adjustments to the standards of division V of this Chapter may be approved using the variance procedure set out in chapter 18.12.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.01.003 ORGANIZATION, ILLUSTRATIONS AND IMAGES

1. ORGANIZATION

- a. **Form Zones.**
 - 1. This chapter establishes nine form zones. Each form zone is derived from generalized existing and desired characteristics of the City's neighborhoods and corridors. The form zones are distinguished from one another by their overall physical and functional characteristics ("context") including, but not limited to: locational characteristics, building scale and disposition, and lot and block characteristics. The form zones are enumerated in the Form Zone Table in section 18.29.01.004, followed by descriptions of the contexts for the different form zones in division II.
 - 2. The locations and boundaries of the form zones are depicted on the City of Golden Form Zones Map.
- b. **Form Types and Categories of Form Types.**
 - 1. Division III of this chapter establishes 43 form types. A distinct set of form types is allowed in each form zone as set forth in the Form Zone Table in section 18.29.01.004. Each form type has an associated set of lot, building size, density, height, setback, and other standards ("form standards"). Form types are generalized from typical and desirable buildings observed in the built environment of Golden.
 - 2. Form types are grouped within one of nine categories: houses, cottages, compounds, clusters, duplexes, row houses, main street, mixed-use, and shop buildings. A distinct set of design standards and guidelines is applicable to each category.
- c. **Bulk Standards for Legacy Use Zones.** Division IV of this chapter establishes basic bulk and setback standards for development of lots in use zones that do not have a corresponding form zone.
- d. **Parking.** Division V of this chapter provides the standards for off-street parking requirements for each form type. In some instances, specific parking standards are identified per form zone. For development that is subject to division III of this chapter, the standards of division V supersede parking standards that are set out in chapter 18.36 to the extent provided in division V.
- e. **Landscaping, Fencing, and Perimeter Walls.** Division VI of this chapter provides standards for landscaping, fencing, and perimeter walls. Additional landscaping requirements in chapter 18.40 may be applicable as provided in section 18.40.015.

- f. Adjustments. Division VII of this chapter provides standards and procedures for adjusting the form and design standards that are set out in division III, the bulk and setback standards that are set out in division IV, and the landscaping standards that are set out in division VI.
- g. Rules of Measurement. Division VIII of this chapter provides explanations regarding how to make determinations and measurements for certain standards set forth in this chapter.

2. ILLUSTRATIONS AND IMAGES

Illustrations and photographic images are provided throughout this chapter to illustrate the intent of regulations and standards. Illustrations and images often are used to illustrate desirable or undesirable massing, siting, and design characteristics. Illustrations, images, and any other graphics or figures are illustrative only and not regulatory. In some cases, illustrations, images, and graphics depict buildings or improvements that do not strictly comply with this chapter. In case of any difference of meaning or implication between the text of title 18, including the text of this chapter, and any illustration, image, or graphic or figure, the text controls. Text provided in table form is regulatory and also controls illustrations and images.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.01.004 FORM ZONE TABLE

1. APPLICATION OF FORM ZONE TABLE

- a. Table 18.29.01.004.A., Form Zone Table, below, sets forth:
 - 1. The form zones established by this chapter 18.29 (each represented by a column under the heading "Form Zones").
 - 2. The categories of form types (each a group of rows), and the form types within each category (each on its own row).
- b. In the cells at the intersection of "form type" rows and "form zone" columns, an "A" indicates that the form type shown in the row is allowed in the form zone shown in the column.
- c. The cells in the "Form Standards" column provide section cross-references to the form standards that apply to the corresponding form type referenced in the preceding column.
- d. The cells in the "Design Standards and Guidelines" column provide section cross-references to the design standards and guidelines that are applicable to the corresponding category of form types.

2. FORM ZONE TABLE

Table 18.29.01.004.A: Form Zone Table											
Category/Form Type	Form Standards	Form Zones									Design Standards and Guidelines
		Core	Transition	Edge	Outer Edge	Peripheral	Neighborhood Corridor	Main Street A	Main Street B	Strip	
House											18.29.03.004
Suburban	18.29.03.003.1					A					
Side-Drive	18.29.03.003.2	A	A	A	A	A	A				
Side-Drive Couple	18.29.03.003.3		A	A	A						
Village	18.29.03.003.4	A	A	A	A	A	A				
Uphill	18.29.03.003.5	A	A	A	A	A	A				
Urban	18.29.03.003.6			A	A			A			

18.29.01.004

Table 18.29.01.004.A: Form Zone Table											
Category/Form Type	Form Standards	Form Zones									Design Standards and Guidelines
		Core	Transition	Edge	Outer Edge	Peripheral	Neighborhood Corridor	Main Street A	Main Street B	Strip	
Cottage											
Village Cottage	18.29.03.006.1	A	A	A	A		A				18.29.03.007
Side-Drive	18.29.03.006.2	A	A	A	A		A				
Compact	18.29.03.006.3	A	A	A	A		A				
Side-Drive Compact	18.29.03.006.4	A	A	A	A		A				
Urban	18.29.03.006.5	A	A	A	A		A				
Compact Urban	18.29.03.006.6	A	A	A	A		A	A			
Compound											
2- or 3-Cottage	18.29.03.009.1	A	A	A	A		A			A	18.29.03.010
3-Cottage with Shop	18.29.03.009.2						A	A		A	
4-Cottage	18.29.03.009.3	A	A	A	A		A			A	
4-Cottage with Shop	18.29.03.009.4						A	A		A	
Courtyard Frontage	18.29.003.009.5						A	A		A	
Cluster											
4 Cottages	18.29.03.012.1	A	A	A	A		A			A	18.29.03.013
5 or More Cottages	18.29.03.012.2	A	A	A	A		A			A	
Detached and Attached Cottages	18.29.03.012.3	A	A	A	A		A			A	
Hidden Court with Shop	18.29.03.012.4						A	A		A	
Duplex											
Village	18.29.03.015.1	A	A	A	A						18.29.03.016
Uphill	18.29.03.015.2	A	A	A	A						
Cottage	18.29.03.015.3	A	A	A	A						
Side-Drive Cottage	18.29.03.015.4	A	A	A	A						
Compact Cottage	18.29.03.015.5	A	A	A	A						
Row Houses											
Village Triplex	18.29.03.018.1		A	A	A		A				18.29.03.019
Cottage Triplex	18.29.03.018.2		A	A	A		A				
Compact Cottage Triplex	18.29.03.018.3		A	A	A		A				
4-Unit Back Yard	18.29.03.018.4			A	A		A				
4-Unit Compact	18.29.03.018.5			A	A		A				
Back Yard Row (5 or More Units)	18.29.03.018.6				A						
Staggered Back Yard (5 or More Units)	18.29.03.018.7				A						
Compact Row House (5 or More Units)	18.29.03.018.8				A						
Compact Urban Row House (5 or More Units)	18.29.03.018.9				A						
Main Street											
Narrow	18.29.03.021.1							A	A	A	18.29.03.022
Wide	18.29.03.021.2							A	A	A	
Urban Narrow	18.29.03.021.3								A		
Urban Wide	18.29.03.021.4								A		
Mixed-Use Buildings											
Small Building	18.29.03.024.1			A	A		A			A	18.29.03.025
Courtyard Building	18.29.03.024.02			A	A					A	

Table 18.29.01.004.A: Form Zone Table											
Category/Form Type	Form Standards	Form Zones									Design Standards and Guidelines
		Core	Transition	Edge	Outer Edge	Peripheral	Neighborhood Corridor	Main Street A	Main Street B	Strip	
Shop											
Shop/Offices and Apartments over Shop	18.29.03.027.1						A			A	18.29.03.028
Drive-Through	18.29.03.027.2									A	

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division II FORM ZONES

18.29.02.001 PURPOSE AND APPLICATION OF DIVISION II

1. PURPOSE OF DIVISION II

The purpose of division II is to set out the basis for the creation and application of each of the form zones established by this chapter. Each section that describes an individual form zone provides information regarding its locational characteristics, typical building scale and disposition patterns, and typical lot and block characteristics. Division II provides background information to facilitate understanding of this chapter. It shall be applied to individual applications only as set out in subsection 2, below.

2. APPLICATION OF DIVISION II

Division II provides context for the standards that are set out in division III. Division II also provides useful information for the evaluation of an application to establish or change a form zone or to evaluate certain adjustments pursuant to division VII. Division II does not set out standards for the evaluation of any other individual applications for development approval.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.002 CORE FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The core form zone is initially mapped to predominately residential lots located near the downtown area of Golden. These lots were, in general, created and developed between 1850 and 1960. The subject neighborhoods include a mix of single-household and multi-household development. The core form zone allows a range of multi-household form types and is initially mapped predominately to lots with R2 or R3 use zones.
- b. Future mapping of the core form zone may be appropriate in areas in which the City seeks to promote small-scale residential development that offers a mix of single-household and multi-household form types.

2. BUILDING SCALE AND DISPOSITION

- a. Smaller principal building footprints are common in the core form zone and desirable for future developments.
- b. Small-scale buildings (both single and multi-household) with one and one and one-half-stories of building height are common in the core form zone and are desirable for future developments.
- c. The building presence along the lot frontage is consistent regarding:
 1. Orientation of the building's entrance, facing either the primary or secondary right-of-way.
 2. Common presence of front porches in the built environment.
 3. Consistent front setback depth for all buildings and structures along the block.
 4. Consistent building scale for buildings and structures along the block when viewed

from the street (notwithstanding the fluctuating size of individual buildings across the lot).

- d. Rarely does the total finished floor area of a building within the built environment exceed 3,000 sq. ft.

3. LOT AND BLOCK CHARACTERISTICS

- a. An orthogonal street grid with small blocks is typical in this context.
- b. Lots are typically sized at 50 ft. (width) by 140 ft. (depth). Where lot width varies, lot depths of 140 ft., plus or minus 10 ft., generally are consistent; however, some shallower lots facing the side streets are also present.
- c. Most lots are alley served from the rear for resident parking of vehicles.
- d. This context exhibits high levels of walkability with mostly detached sidewalks and mature street trees.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.003 TRANSITION FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The transition form zone is initially mapped predominately to residential lots that were, in general, created and developed between 1850 and 1960, in R2 and R3 use zones, in neighborhoods that include a mix of single-household and multi-household developments. Within these areas, transition is specifically mapped over lots that border the core form zone or:
 - 1. Areas located where there is a change in use zone, such as residential use zones neighboring non-residential use zones.
 - 2. Areas located between a developed corridor or area with moderate commercial, office, industrial, or institutional uses (regardless of the underlying use zone) and residential neighborhoods.
 - 3. Areas between larger-scale, multi-household developments and low-density, single-household neighborhoods.
- b. Future mapping of the transition form zone is appropriate for lots with multi-household residential use zones such as R2 and R3 where future residential development serves to buffer low-density households from higher intensity uses such as: larger-scale multi-household developments, commercial developments, industrial developments, or major streets. The transition form zone may also be mapped to non-residential use zones such as commercial, if bordering a residential neighborhood.
- b. Larger building scales are uncommon and are not desirable.
- c. A consistent building presence exists or is planned along the lot frontage with regard to:
 - 1. Orientation of building entrances to face the street.
 - 2. Front setback depth along the block.
- d. Diversity of building heights-one-story, two-story, and occasional three-story buildings-is present.
- e. Multi-household buildings are present on most blocks.
- f. Presence of multi-household developments that exceed 3,000 square feet are uncommon.
- g. Architectural style is varied.

3. LOT AND BLOCK CHARACTERISTICS

2. BUILDING SCALE AND DISPOSITION

- a. Within areas initially mapped transition, small-scale buildings (both single and multi-household) are dominant in the built environment. Future mapping of the transition form zone is appropriate in areas where the City seeks to promote this type of development.
- a. An orthogonal street grid is present. However, block sizes are not consistent in this context.
- b. Most lots are alley served from the rear for resident parking of vehicles.
- c. This context exhibits high levels of walkability with mostly detached sidewalks and mature street trees. However, there are attached sidewalks present.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.004 EDGE FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The edge form zone is initially mapped to pre-dominately residential lots that were, in general, created and developed between 1850 and 1960. The edge form zone is also initially mapped to lots with multi-household use zones such as R2 and R3. More specifically, edge is initially mapped in areas that:
 1. Border a C1, C2, RC, M1, M2, or other non-residential use zone; or
 2. Border a developed corridor or area with significant commercial, office, industrial, or institutional uses (regardless of the underlying use zone); or
 3. Contain major streets; or
 4. Contain existing large-scale multi-household developments; or
 5. Contain or plan for multi-modal arterials connecting to the downtown or other mobility hubs within Jefferson County and the surrounding region.
- b. Future mapping of the edge form zone is envisioned for areas with larger-scale, multi-household development present or planned. It may be mapped to neighborhoods with residential use zones; to lots with a non-residential use zone if the non-residential use zone borders a residential area with a residential use zone such as R1, R2, or R3.

2. BUILDING SCALE AND DISPOSITION

- a. Within the areas initially mapped edge, a diverse set of building footprints are present. Edge is appropriate for areas where comparable diversity of footprints is proposed.
- b. Diversity of building heights-single-story, two-story, and three-story buildings-is present and desirable in this context.

3. LOT AND BLOCK CHARACTERISTICS

- a. Lot sizes vary.
- b. Large lots, created through the consolidation of small lots, exist alongside smaller, standard lots (50 ft. width, 140 ft. length).
- c. Street-loaded lots are common.
- d. Attached sidewalks exist together with detached sidewalks and at times no sidewalk is present.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.005 OUTER EDGE FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The outer edge form zone is initially mapped to lots near neighborhoods that were, in general, created and developed between 1850 and 1960. However, outer edge lots generally developed after the 1970s. These lots are typically zoned for multi-household development and typically have an R3 use zone designation. Several lots within this context have been consolidated and developed with large-scale institutional uses like the Colorado School of Mines. This form zone is also mapped to smaller areas with commercial use zones.
- b. Future mapping of the outer edge form zone is envisioned for office parks, research and laboratory developments, future campuses, and larger-scale multi-household developments around the periphery of Golden. Because of the variety of scale and building types, this context may also be suited for lots with a greater density and taller buildings.

2. BUILDING SCALE AND DISPOSITION

- a. Existing outer edge lots typically exhibit a diverse set of building footprints both small and large scale is present. Outer edge is appropriate for areas where this type of development is proposed.
- b. Taller buildings (two to three stories or more) are dominant. One-story buildings also are present or desired.
- c. Multi-household buildings that exist together with large-scale civic and campus buildings are present or desired.
- d. This context typically borders open space, major streets, and the City's downtown area.

3. LOT AND BLOCK CHARACTERISTICS

- a. Lot sizes vary, but larger lots created through consolidation of small lots are common in the built environment.
- b. Some existing lots are alley accessed; others are not.
- c. Walkability varies as some of the larger buildings are located at a significant depth from the sidewalk in the built environment.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.006 PERIPHERAL FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The peripheral form zone is initially mapped to the R1 and R1-A use zones. These lots developed at varying points throughout Golden's history.
- b. Future mapping of the peripheral form zone is envisioned for single-household developments of comparable building scale and disposition to initially mapped peripheral form zones.

2. BUILDING SCALE AND DISPOSITION

- a. Developments range in scale, but are typically one- to two-stories in height, with an occasional third story.
- b. Most lots are developed with floor areas of 3,200 square feet or less.

3. LOT AND BLOCK CHARACTERISTICS

- a. The dominant development pattern is single-household buildings.
- b. Depending on when development of an area occurred, some existing lots are alley-loaded while other lots have vehicular access from the street.
- c. The most common lot area is approximately 7,000 square feet.
- d. Development that occurred pre-1960 sometimes included multiple single-household buildings on a 7,000 square foot lot.
- e. Attached sidewalks are common in areas that developed post-1970.
- f. Open space sometimes abuts private outdoor spaces at the rear of existing lots.
- g. Wide lot frontages are typical in neighborhoods that developed post-1970.
- h. Deep front and rear setbacks are common on existing lots.



Photo 18.29.02.006.A



Photo 18.29.02.006.B

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.007 NEIGHBORHOOD CORRIDOR FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The neighborhood corridor form zone is initially mapped to lots along roadway corridors that border residential neighborhoods. The neighborhood corridor form zone is developed with a mix of non-residential and residential uses. The initial mapping of the neighborhood corridor form zone typically overlays CMU, RC, R3, C1, and C2 use zones.
- b. Future mapping of the neighborhood corridor form zone is envisioned for mixed-use areas that promote both small-scale and medium-scale buildings, and where mixed-use neighborhoods are located or planned in proximity to residential neighborhoods.

2. BUILDING SCALE AND DISPOSITION

- a. Smaller building footprints are typically mixed with larger building footprints (generally of more recent construction) on the same block. The neighborhood corridor form zone may be appropriate where building footprints of varying sizes are existing or proposed.
- b. Cottage-scaled buildings (i.e., buildings of 1,500 square feet or less) are common.
- c. Architectural style in the built environment varies.

3. LAND USE, LOT, AND BLOCK CHARACTERISTICS

- a. Residential uses are often (but not necessarily) located on the same block as non-residential development, and such patterns are desirable.
- b. Residential building forms that contain non-residential uses are common, and such use of residential building forms is appropriate.
- c. Lots are typically sized at 50 ft. (width) by 140 ft. (depth), although consolidated lots are common. Consolidated lots are often developed with buildings with larger footprints.

- d. The typical block pattern is an orthogonal street grid with small blocks, and block sizes are generally consistent.
- e. Orientation of buildings vary from lot to lot. A diversity of front setbacks with no consistent depth or street presence is common.
- f. Detached sidewalks with mature street trees are common.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.008 MAIN STREET A FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The Main Street A form zone is initially mapped to lots along street corridors that express traditional, pedestrian-oriented, commercial developments. These corridors have developments that are located close to the front lot line and typically include store fronts with high levels of transparency along a consistent streetscape.
- b. The development pattern along the block is consistent insofar as there is little to no space between buildings (zero-foot side setbacks). Portions of downtown Golden are initially mapped with the Main Street A form zone.
- c. Future mapping of the Main Street A form zone is envisioned for lots located along street corridors with buildings located or planned to be located close to the front lot line or sidewalk, with little to no space between buildings (zero-foot side setbacks). In addition, these buildings are or are desired to be two-to-three stories in height. This form zone permits form types that facilitate the addition of amenities to the pedestrian realm.

2. BUILDING SCALE, DISPOSITION, AND DESIGN

- a. Two-to-three story attached buildings located at or near front lot lines are common in this context.
- b. First story commercial store fronts with high levels of transparency at pedestrian eye level are common or desired.
- c. Awnings and colonnades are commonly found above the first-story floor plate.
- d. The horizontal store building face provides accents or articulations typically at intervals of every 25 feet or 50 feet, more or less. These distances also typically correspond with the width of the lot or the attached building.

3. LOT AND BLOCK CHARACTERISTICS

- a. Wide sidewalks with pedestrian amenities such as benches and street planters are common or desired.
- b. Lots are typically sized at 25 ft. (width) by 140 ft. (depth), and consolidated lots are common.
- c. An orthogonal street grid with small blocks is typical.
- d. Most lots are alley-accessed, with parking located at the rear. While there are instances of street-accessed, front-of-lot parking, such format is not desirable because it interrupts the sidewalk and diminishes the "pedestrian friendly" character.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.009 MAIN STREET B FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The Main Street B form zone is initially mapped to lots along street corridors that are developed with traditional, pedestrian-oriented, commercial developments. Buildings along these corridors are located close to the front lot line and typically include store fronts with high levels of transparency.
- b. Development is consistent along the block with little to no space between buildings (zero-foot side setbacks). Portions of downtown Golden are initially mapped with the Main Street B form zone.
- c. Main Street B differs from Main Street A in that it has larger four- and five-story buildings mixed with shorter, two- and three-story buildings. The larger buildings typically incorporate upper story building stepbacks and residential dwellings.
- d. Future applications of Main Street B are envisioned for lots along street corridors that exhibit or are planned for attached nonresidential and mixed-use buildings that are located close to the front lot line or sidewalk, with vehicular access behind the buildings. In addition, this form zone may be appropriate for office parks, research and laboratory developments, future campuses, and larger-scale multi-household developments around the periphery of Golden.

2. BUILDING SCALE, DISPOSITION, AND DESIGN

- a. Two- to three-story attached buildings and four- to five-story attached buildings, located at or near the front lot line, are common.
- b. First-story commercial storefronts with high levels of transparency at pedestrian eye level are common.
- c. Awnings and colonnades are typically found above the first story floor plate.

- d. Upper-story setbacks and other massing articulations are common in four- to five-story buildings.
- e. The horizontal store building face provides accents or articulations typically at intervals of every 25 feet or 50 feet, more or less. These distances also typically correspond with the width of the lot or the attached building.

3. LOT AND BLOCK CHARACTERISTICS

- a. An orthogonal street grid with small blocks is typical.
- b. Lots are typically sized at 25 ft. (width) by 140 ft. (depth). Consolidated lots are common. Multi-story buildings often occupy quarter- to half-block lots.
- c. Most lots are alley-accessed parking. Structured parking is common for recent, large buildings.
- d. Wide sidewalks with pedestrian amenities such as benches and street planters are common. Attached buildings located at the front lot line form a strong building presence, which is the most identifying factor of this context (existing/proposed).



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.02.010 STRIP FORM ZONE - THE CONTEXT

1. LOCATIONAL CHARACTERISTICS

- a. The Strip form zone is initially mapped to lots along street corridors that developed with automotive access from the adjacent street as the predominant means of ingress and egress. These areas typically developed after 1960.
- b. The purpose of the Strip form zone is to balance land uses and transportation modes in areas that are otherwise auto-oriented and unfriendly to pedestrians, in the existing context of a principally strip commercial layout.
- c. The Strip form zone is the most flexible form zone for non-residential and mixed-use development.
- d. Future mapping of the Strip form zone is envisioned for auto-oriented commercial centers for which an enhanced pedestrian environment is desired.

2. BUILDING SCALE AND DISPOSITION

- a. Buildings are predominantly one- and two-story.
- b. Building coverage (total building footprint divided by the total area of the lot) between 20 and 30 percent are common in the existing environment.



- c. Free-standing buildings are typically set back a significant distance from the front lot line.
- d. Large surface parking areas are common.
- e. Service drives for truck deliveries are typically located at the rear of buildings.

3. LOT AND BLOCK CHARACTERISTICS

- a. The existing environment is typically less inviting to pedestrians than other form zones.
- b. Street segments of $\frac{1}{4}$ to $\frac{1}{3}$ of a mile between intersections are common.
- c. Landscape buffers between commercial uses and other uses are common, especially when such other uses abut the commercial property's rear lot line.



(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division III FORM TYPES**18.29.03.01 ORGANIZATION AND
INTERPRETATION OF DIVISION****1. ORGANIZATION OF DIVISION**

- a. Division III sets forth the following for each of the nine categories of form types: an introduction of and intent statements applicable to each category of form types; the form standards for each form type within each category of form types; and the design standards and guidelines for each category of form types.
- b. The information presented in this division is organized by category of form type as follows:
 - 1. House Form Types - See Sections 18.29.03.002 to 18.29.03.004.
 - 2. Cottage Form Types - See Sections 18.29.03.005 to 18.29.03.007.
 - 3. Compound Form Types - See Sections 18.29.03.008 to 18.29.03.010.
 - 4. Cluster Form Types - See Sections 18.29.03.011 to 18.29.03.013.

- 5. Duplex Form Types - See Sections 18.29.03.014 to 18.29.03.016.
- 6. Row House Form Types - See Sections 18.29.03.017 to 18.29.03.019.
- 7. Main Street Form Types - See Sections 18.29.03.020 to 18.29.03.022.
- 8. Mixed-Use Building Form Types - See Sections 18.29.03.023 to 18.29.03.025.
- 9. Shop Form Types - See Sections 18.29.03.026 to 18.29.03.028.

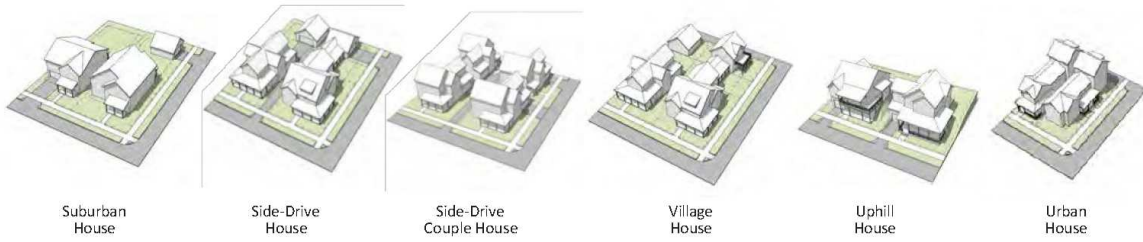
2. INTERPRETATION OF DIVISION

If a standard is set forth in the form standards for one or more form types, but not for others, such standard shall be deemed inapplicable where omitted.

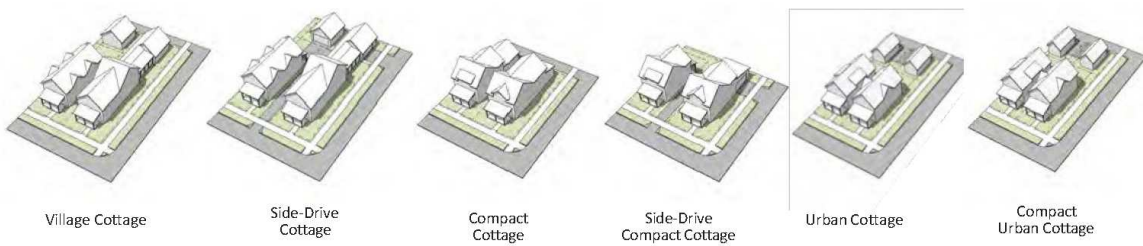
3. ILLUSTRATIVE DEPICTIONS OF FORM TYPES

Illustration 18.29.03.001.A (following pages) provides illustrative depictions of the form types allowed within each category of form types. These depictions are illustrative in nature and not intended to impose design requirements that are not otherwise set out in this chapter.

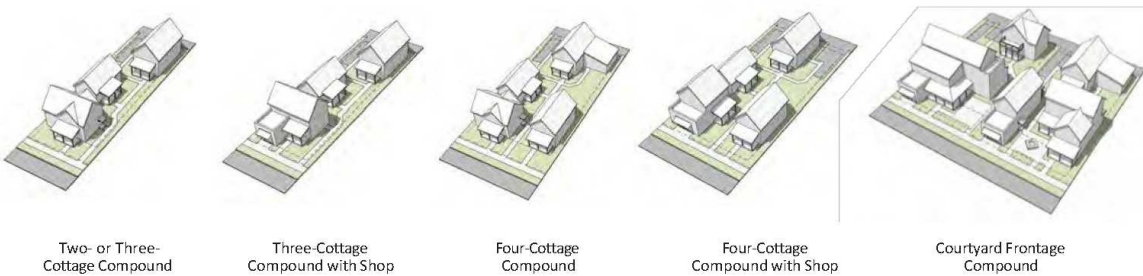
HOUSE FORMS



COTTAGE FORMS



COMPOUND FORMS



CLUSTER FORMS



DUPLEX FORMS



Village Duplex



Uphill Duplex



Cottage Duplex



Side-Drive Cottage Duplex



Compact Cottage Duplex

ROW HOUSE FORMS



Village Triplex



Cottage Triplex



Compact Cottage Triplex



Four-Unit Back
Yard Row House



Four-Unit Compact
Row House



Back Yard Row House
(five or more units)



Staggered Back Yard Row
House (five or more units)

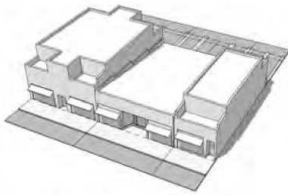


Compact Row House
(five or more units)

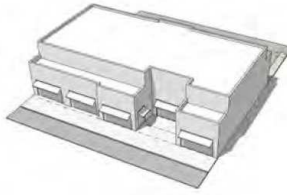


Compact Urban Row House
(five or more units)

MAIN STREET FORMS



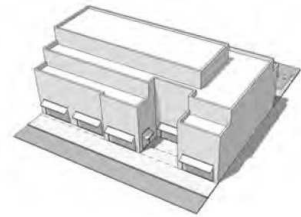
Main Street
Narrow



Main Street
Wide



Main Street
Urban Narrow



Main Street
Urban Wide

MIXED USE FORMS

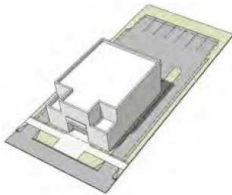


Mixed-Use
Small Building

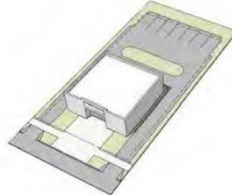


Mixed-Use
Courtyard Building

SHOP FORMS



Shop / Offices and
Apartments over Shop



Drive-
Through

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.002 HOUSE FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT

- a. The house form types are provided to:
 - 1. Continue the typical lot development patterns of detached homes;
 - 2. Provide options for home occupations and for nonresidential use of existing residential buildings; and
 - 3. Help facilitate the re-use of detached, single household building styles for non-residential uses.
- b. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intent for specific standards that are applied to house form types.
- b. Building Size. Building size regulations are used to:
 - 1. Ensure that new and expanded single-household buildings are consistent in size and scale with existing single-household buildings in Golden in the same form zone.

- 2. Discourage maximizing floor area and building height to fit all available volume within a building envelope on a large lot, by encouraging the development of multiple smaller buildings on smaller lots. [See illustration 18.29.03.002.A]
- c. Multiple Building Envelope Areas (BEAs). Multiple BEAs with different height, lot coverage, and setback requirements are established at the front, middle, and rear of a lot to:
 - 1. Ensure that the massing of the principal building is principally located towards the front of the lot.
 - 2. In some cases, locate accessory buildings away from the principal building mass and primary street.
 - 3. Decrease the scale of the house at different areas of the lot and create variation in building height and depth when perceived from the lot frontage and also the side street.
 - 4. Create or maintain building configurations that resemble those that are commonly found in neighborhoods located near downtown Golden or lots that developed between 1850 and 1960. These configurations typically locate the principal building at the front of a lot and accessory buildings and structures (garage as an example) in the middle and rear of a lot. If one building is developed on the lot, the scale of the building in the middle and rear of the lot is intended to be smaller than the front of the lot. [See illustration 18.29.03.002.B]

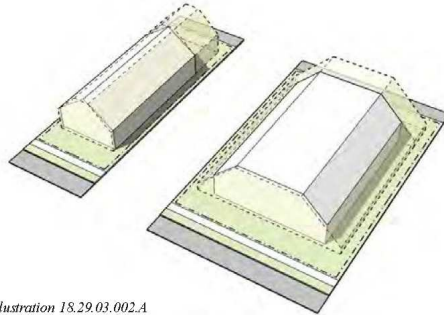


Illustration 18.29.03.002.A

Illustration 18.29.03.002.A shows “the larger the lot, the larger the building” result of conventional zoning. The dash-lines indicate the

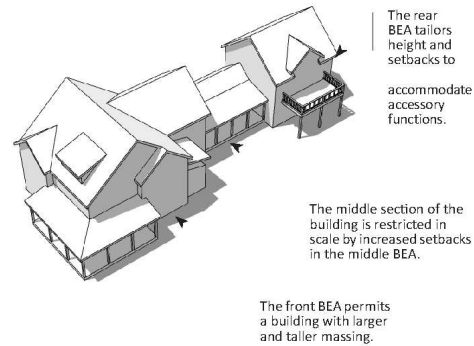


Illustration 18.29.03.002.B

Illustration 18.29.03.002.B shows a “dumbbell form,” where a smaller building section connects a somewhat larger building element at the rear of the lot. The larger primary section of the building is located at the front.

envelope within which the buildings are permitted to be built. In each example the lot’s singular building envelope has been maximized.

- d. **Building Height.** Building height is limited by number of stories and in linear feet to encourage steep gable or hip roof forms that are common in existing dwellings that developed in Golden between the 1850s and 1960s.
- e. **Open Side/Closed Side.** Many of the house form types require an “open side” and “closed side.” The “open side” is characterized by greater setbacks on the lot to allow for light and air to pass through the development. The larger setback on the “open side” makes the side yard more usable and functional. The “closed side” allows for less restrictive setbacks for additional building area. The “open side” and “closed side” framework also accommodates side-driveway solutions. [See illustration 18.29.03.002.C] Where the “open side” and the “closed side” are differentiated, the regulations are applied in order to:

1. Ensure better utilization and function of the side yard of the middle BEA.
2. Further decrease the scale of the house at different areas of the lot.



Illustration 18.29.03.002.C

- f. **Porch.** A porch is required for some of the house form types, in order to:
1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) to reduce the building’s perceived scale [See illustration 18.29.03.002.D].

2. Provide better transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by creating a stepped approach to the building height and decreasing the distance between these areas.
3. Maintain the front porch as a common element typically found in single-household buildings constructed between the 1850s and 1960s.



Illustration 18.29.03.002.D

Illustration 18.29.03.002.D: Porches help buildings fit into their context by creating a single-story scale along the sidewalk. (Credit: Onaran, K., et al. 2019. Architectural design for traditional neighborhoods. A VSI Publishing, p. 4 (used with permission)).

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.003 HOUSE FORM TYPES - FORM STANDARDS

1. SUBURBAN HOUSE

a. Intent.

The suburban house form type is intended mostly for single household residential uses. This form type is appropriate for a typical 50 ft. x 140 ft. lot, but it can also be applied to wider or shallower lots.

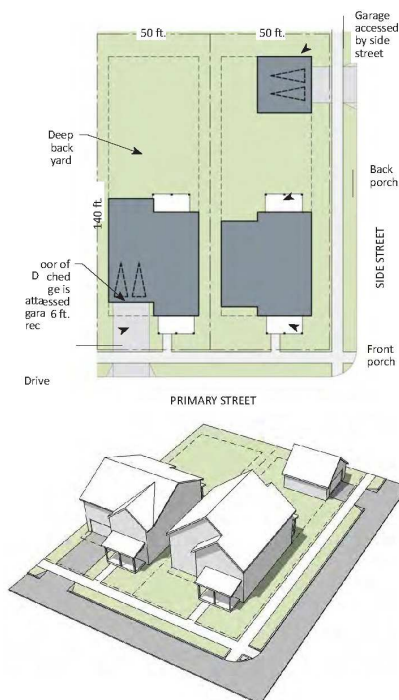


Illustration
18.29.03.003.A

Illustration 18.29.03.003.A: Lot diagram and bird's-eye view perspective of two Suburban House lots: a street corner lot and the adjoining interior lot.

b. Lot Standards.

1. Min. lot area 6,000 s.f.
2. Min. lot frontage 50 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 3,200 s.f. per lot
2. Max. lot coverage 40%
3. Max. height (principal building)

A. 70% of footprint 2 stories/28 ft.

B. 30% of footprint 2 stories/35 ft.

4. Max. height (accessory buildings) 2 stories/32 ft.
5. Max. no. of dwelling units 1 per lot [See e.4]

d. Minimum Setbacks.

1. Primary street 15 ft.
2. Porch at primary street 7 ft.
3. Side street 8 ft.
4. Porch at side street 8 ft.
5. Interior side lot line 5 ft.
6. Rear lot line 10 ft.

e. Additional Standards.

1. The suburban house form type is permitted only on lots that do not have alley access.
2. Where a garage is attached to or integrated into the principal building and the garage door faces a street, the garage door shall be recessed at least 6 ft. from the principal building wall on the same building elevation. [See illustration 18.29.03.003.A]
3. All garage doors that face a primary street or side street shall be set back at least 20 ft. from the lot line that is coterminous with that street.
4. Driveways shall not exceed 20 ft. in width, exclusive of curb returns.
5. A multi-household configuration may be permitted based on the use zone:

A. R2 use zone: Up to 4 dwelling units per principal building.

B. R3 use zone: The number of dwelling units within the principal building is not restricted, provided that design standards and parking standards are met.

2. SIDE-DRIVE HOUSE

a. Intent and Special Characteristics.

1. Intent. The side-drive house form type is intended to maintain the architectural character along the street on lots where alley access is not available.
2. Special Characteristics. The side-drive house has:
 - A. An open side and a closed side with different setback requirements.

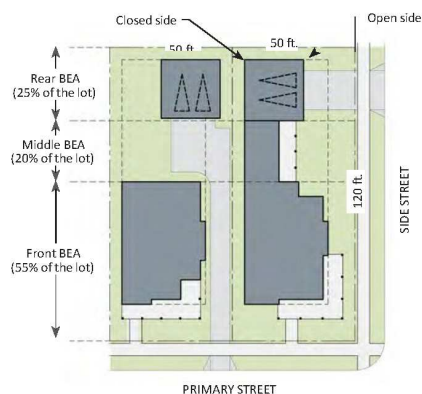


Illustration 18.29.03.003.B

Illustration 18.29.03.003.B: Lot diagram and bird's eye view perspective of two side-drive house lots (a corner lot and the adjoining interior lot).

B. Three building envelope areas (BEAs):

- i. Front: 55%
- ii. Middle: 20%
- iii. Rear: 25%

b. Lot Standards.

1. Min. lot area 6,000 s.f.
2. Min. lot frontage 50 ft.

3. Min. lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 3,000 s.f. per lot
2. Max. lot coverage -
 - A. Front BEA 55%
 - B. Middle BEA 32% [See g.]
 - C. Rear BEA 40%
3. Max. building height -
 - A. Front BEA:
 - i. 70% of bldg. footprint: 2 stories/28 ft.
 - ii. 30% of bldg. footprint: 2 stories/35 ft.
 - B. Middle BEA 1 story/20 ft. [See g.]
 - C. Rear BEA 2 stories/32 ft.
4. Max. no. of dwelling units 1 per lot [See f.5]

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Side alley 8 ft. min.
5. Porch at side street 8 ft. min./20 ft. max.
6. Interior side lot line -
 - A. Open side 10 ft. min.
 - B. Closed side 5 ft. min.
7. Rear lot line 5 ft. min.

e. Front Porch.

In the peripheral, core, transition, and edge form zones, a minimum 120 s.f. porch facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. Side-drive house form types are permitted only on lots with no alley or shared driveway access along the rear lot line. Side-loaded alleys or driveways (which may be shared driveways) must serve as the access if the lot is not located on a street corner.
2. Garages on corner lots shall be accessed by the side street unless the City Engineer determines that alternative access is preferable for traffic safety purposes. All garage doors that face a side street shall be set back at least 20 ft. from the street side lot line.
3. Garages shall be located in the middle or rear BEA.
4. Driveway width shall not exceed 10 ft. on the primary street lot line and not be wider than 16 ft. on the side street lot line.
5. A multi-household configuration may be permitted based on the use zone:

A. R2 use zone: Up to 4 dwelling units per principal building.

B. R3 use zone: The number of dwelling units within the principal building is not restricted, provided that design standards and parking standards are met.

g. Adjustments for Mostly Preserved Buildings

When an existing principal building on the lot is preserved to a degree to be qualified as "mostly preserved building," the following restrictions shall supersede the requirements of subsections c.2 and c.3 with respect to the middle BEA:

1. Lot coverage. not specifically restricted
2. Max. height 1½ stories/35 ft.

3. SIDE-DRIVE COUPLE HOUSE

a. Intent.

The side-drive couple house form provides the opportunity to subdivide an existing lot ("original lot") to create a lot for a second small house on one of the new lots (each of the new lots, a "couple lot") by reducing the minimum lot area required for couple lots.

b. Lot Standards.

1. Min. original lot area 6,000 s.f.
2. Min. original lot frontage 50 ft.
3. Min. couple lot area 2,500 s.f. per lot
4. Min. couple lot frontage 50 ft. [See f.3]

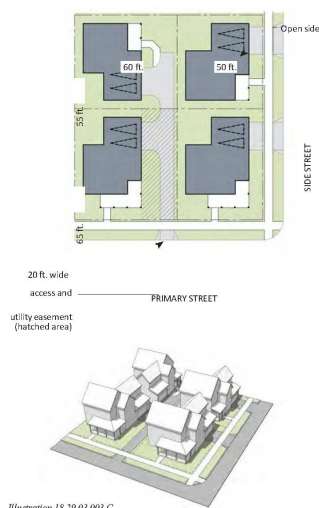


Illustration 18.29.03.003.C

Illustration 18.29.03.003.C: Lot diagram and bird's-eye view perspective of two side-drive house couples. Two lots (a street corner lot and the adjoining interior lot) are subdivided to create four lots: one with street frontage, one with side street frontage, one with both street frontages, and one with no street frontage.

c. Building Size and Dwelling Unit Limitations.

1. Maximum total floor area per couple (two houses combined): 3,200 s.f.
2. Max. couple lot coverage 50% per lot
3. Max. building height 2 stories/35 ft.
4. Maximum no. of dwelling units per couple lot 1 per lot [See f.4]

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Porch at side street 8 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min.
6. Rear lot line 5 ft. min.

e. Front Porch.

In the transition and edge form zones, a minimum 120 s.f. porch facing the primary street, or, if present, the side street, is required for each couple lot that adjoins a street.

f. Additional Standards.

1. Garages on corner lots shall be accessed by the side street unless the City Engineer determines that alternative access is preferable for traffic safety purposes. All garage doors that face a side street shall be set back at least 20 ft. from the street side lot line.
2. The driveway from the primary street shall not be wider than 10 ft. on the street property line and not be wider than 20 ft. on the side street property line. Alley access in lieu of primary or side drive requirements is permitted. If an alley is present, primary street access is not permitted.
3. A couple lot without street frontage may be created if ingress and egress to the lot is provided by a perpetual easement (in a form approved by the City Attorney) over the other lot in the couple. The easement width shall be the greater of 20 ft. or the width required to accommodate all utilities that will also utilize the easement. [See illustration 18.29.03.003.C.]
4. A two-household building configuration is allowed within a side-drive couple house in the R2 and R3 use zones.

4. VILLAGE HOUSE

a. Intent and Special Characteristics.

1. Intent. The village house form type is intended for lots with alley access.
2. Special Characteristics. The village house has:
 - A. An open side and a closed side with different setback requirements.
 - B. Three building envelope areas (BEAs):
 - i. Front BEA: 55%
 - ii. Middle BEA: 20%
 - iii. Rear BEA: 25%

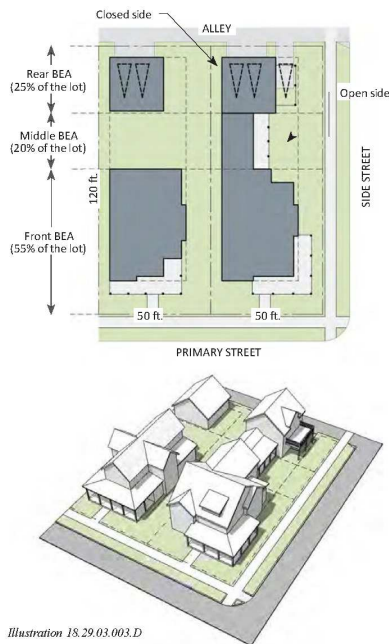


Illustration 18.29.03.003.D

Illustration 18.29.03.003.D: Lot diagram and bird's-eye view perspective of two Village House lots: a corner lot and the adjoining interior lot.

b. Lot Standards.

1. Min. lot area 6,000 s.f.
2. Min. lot frontage 50 ft.
3. Min. lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 3,000 s.f. per lot

2. Max. lot coverage by BEA -

- A. Front BEA 55%
- B. Middle BEA 32% [See g.]
- C. Rear BEA 40%

3. Max. height by BEA -

- A. Front BEA
 - i. 70% of the footprint: 2 stories/28 ft.
 - ii. 30% of the footprint: 2 stories/35 ft.
- B. Middle BEA 1 story/20 ft. [See g]
- C. Rear BEA 2 stories/32 ft.

4. Max. no. of dwelling units 1 per lot [See f.3]

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street 7 ft. min.
3. Side street 8 ft. min.
4. Porch at side street 8 ft. min.
5. Interior side lot line -
 - A. Open side 10 ft. min.
 - B. Closed side 5 ft. min.
6. Rear lot line 5 ft. min.

e. Front Porch.

In the peripheral, core, transition, and edge form zones, a minimum 120 s.f. porch facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The village house form type is permitted only on lots with alley access. No curb cuts to serve a village house lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

3. A multi-household configuration may be permitted based on the use zone:
 - A. R2 use zone: Up to 4 dwelling units per principal building.
 - B. R3 use zone: The number of dwelling units within the principal building is not restricted, provided that design standards and parking standards are met.

g. Adjustments for Mostly Preserved Buildings.

When an existing principal building on the lot is preserved to a degree to be qualified as "mostly preserved building," the following restrictions shall supersede the requirements of subsections c.2 and c.3 with respect to the middle BEA:

1. Lot coverage. not specifically restricted
2. Maximum height 1½ stories/35 ft.

5. UPHILL HOUSE

a. Intent and Special Characteristics.

1. Intent. The uphill house form type is intended for lots with steep slopes where an alley is neither provided nor feasible. It is crafted to fit in a traditional neighborhood context, even though the garage may face the street.
2. Special Characteristics. The uphill house has an open side and a closed side with different setback requirements.

b. Lot Standards.

1. Min. lot area 3,200 s.f.
2. Min. lot frontage 46 ft.
3. Min. lot depth 65 ft.

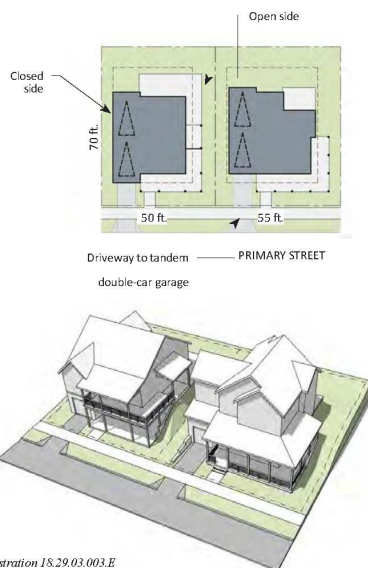


Illustration 18.29.03.003.E

Illustration 18.29.03.003.E: Lot diagram and bird's-eye view perspective of two uphill house lots: one with 50 feet and the other with 55 feet of street frontage.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 3,000 s.f. per lot
2. Max. lot coverage 55%
3. Max. building height. 3 stories/35 ft.
4. Max. no. of dwelling units. . . . 1 per lot [See f.5]

d. Minimum Setbacks.

1. Primary street 10 ft.
2. Porch at primary street 4 ft.
3. Side street 8 ft.
4. Porch at side street 4 ft.
5. Interior side lot line -
 - A. Open side 10 ft.
 - B. Closed side 5 ft.
6. Porch at interior open side 5 ft.
7. Rear lot line 10 ft.

e. Front Porch.

In the peripheral, core, transition, and edge form zones, a minimum 100 s.f. porch facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The uphill house form type is permitted only on lots with no alley access and a minimum slope of 10 percent or steeper.
2. Driveway width at front property line shall not exceed 20 ft., exclusive of curb returns.
3. Garage door width shall not exceed 20 ft.
4. All garage doors that face a primary street or side street shall be set back at least 20 ft. from the lot line that is coterminous with the street that the garage door faces.
5. A multi-household configuration may be permitted based on the use zone:
 - A. R2 use zone: Up to 4 dwelling units per principal building.
 - B. R3 use zone: The number of dwelling units within the principal building is not restricted, provided that design standards and parking standards are met.

6. URBAN HOUSE

a. Intent and Special Characteristics.

1. Intent. The urban house form type is intended for denser urban contexts.
2. Special Characteristics. The urban house has:
 - A. An open side and a closed side with different setback requirements.
 - B. Three building envelope areas (BEAs):
 - i. Front BEA: 40%
 - ii. Middle BEA: 27%
 - iii. Rear BEA: 33%

b. Lot Standards.

1. Min. lot area 1,800 s.f.
2. Min. lot frontage 26 ft.
3. Min. lot depth 60 ft.

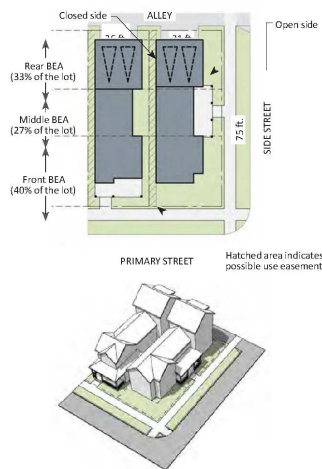


Illustration 18.29.03.003.F

Illustration 18.29.03.003.F: Lot diagram and bird's-eye view perspective of two urban house lots: a corner lot and the adjoining interior lot.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 2,000 s.f. per lot
2. Max. height by BEA -
 - A. Front BEA 2 stories/35 ft.
 - B. Middle BEA 2 stories/35 ft.

C. Rear BEA 3 stories/35 ft.

3. Max. no. of dwelling units 1 per lot [See f.4]

d. Table of Setbacks by BEA.

Setback	Min. (Max.) Setback by Building Envelope Area		
	Front	Middle	Rear
Primary street	10 ft.	N/A	N/A
Porch at primary street	4 ft. (20 ft.)	N/A	N/A
Side street	8 ft.	12 ft.	8 ft.
Porch at side street	4 ft.	4 ft. (20 ft.)	4 ft.
Interior side lot line -			
Closed side	3 ft.	3 ft.	3 ft.
Open side	3 ft.	7 ft.	3 ft.
Rear lot line	N/A	N/A	5 ft.

e. Front Porch.

In the edge form zone, a minimum 100 s.f. porch facing the primary street, or, if present, the side street, is required. [See f.2 and illustration 18.29.03.003.F]

f. Additional Standards.

1. The urban house form type is permitted only on lots with alley or shared driveway access. No curb cuts to serve an individual urban house lot are allowed on the primary street or the side street (if present).
2. The porch and the front entrance of the buildings on street corner lots shall be located within the middle BEA that faces the side street.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
4. In the R2 and R3 use zones, up to 2 dwelling units are allowed per principal building.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.004 HOUSE FORM TYPES—DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section applies to the houses form types (which are listed below for ease of reference):
 1. Suburban house.
 2. Side-drive house.
 3. Side-drive house couple.
 4. Village house.
 5. Uphill house.
 6. Urban house.
- b. Chapter 18.40 also applies to house form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to create a varied yet unified building presence at the block level when viewed from the pedestrian realm, and to reduce over articulation of the building facades facing the front and side street.
- b. Requirements.
 1. For buildings with required open sides and closed sides, the open side shall face South, Southeast, East, or Southwest, except for corner lots where the open side shall face the side street.

2. The principal building elevation that faces the street shall have at least two massing articulations that are visible from the sidewalk. [See illustration 18.29.03.004.A.]
3. For buildings less than 24 feet in width, the building facades that face the street (both primary and side streets) shall have no more than three massing articulations.
4. For buildings that are 24 or more feet in width, the building facade facing either the primary or secondary street shall have no more than five massing articulations.
5. Corner buildings with two street facing facades shall comply with standards 1, 2, and 3, above.

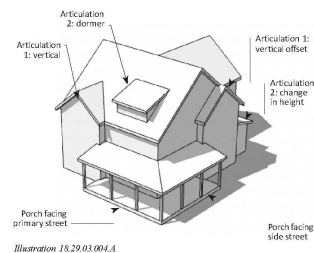


Illustration 18.29.03.004.A shows a well-articulated street corner house, with 3 massing articulations facing the primary street and 3 articulations for facing the side street.



Photo 18.29.03.004.A



Photo 18.29.03.004.B

Photo 18.29.03.004.A shows importance of hierarchy of primary, secondary, and tertiary forms in designing a well-articulated building. Left image shows forward-facing gable (the primary articulation) with a porch (the secondary articulation). Photo 18.29.03.004.B shows 5 forward-facing gables in addition to an articulated porch, entryway, and front facing bedroom that are competing. As a result, the composition is too crowded. (Credit: Onaran, K., et al. 2013. Architectural Design for Traditional Neighborhoods. A VSI Publishing, p. 4 (used with permission)).

- c. Guidelines. Create a hierarchy of massing articulations of different sizes with a primary articulation and a series of secondary massing articulations. [See photos 18.29.03.004.A and B, previous page.]

3. PORCH CHARACTERISTICS

- a. Intent. The intent of the porch characteristics standards is to create pronounced first-story

18.29.03.004

building articulations, and to create a transition between the pedestrian realm (sidewalk) and the entry to the house.

b. Requirements.

1. With respect to all house form types except the uphill house, porches that are situated between a specified porch setback line and a building setback line shall be one story in height, but may be located below (or be structurally integrated with) an uncovered balcony or deck.
2. The porch of an uphill house may appear as a two-story element, or a first-story porch below a covered balcony.
3. Front porches shall provide direct access to the interior living space via an entryway. [See illustration 18.29.03.004.B.]
4. The porch shall not be elevated more than one step down from the finished floor of the house's first story.

c. Guidelines. Houses located on corner lots should have wrapped porches.



Illustration 18.29.03.004.B: The illustration shows a porch that provides direct access with the interior living spaces. (Drawing Credit: Onaran, K., et al. 2019. Architectural Design for Traditional Neighborhoods. A VSI Publishing, p. 4 (used with permission)).

4. EXTERIOR MATERIALS

- a. Intent. The intent of the exterior materials standards is to ensure that cladding materials are used in a manner that offer simplistic, well-designed buildings, while also avoiding the creation of overwhelming and cluttered facades with too many materials.

b. Requirements.

1. Buildings shall be clad with one or more of the following materials: Siding (horizontal or vertical), real stucco, or masonry.
2. Where siding is used, siding patterns shall be one of the following: Horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
3. Where masonry is used, materials shall be brick, stone, [cementitious] siding, or concrete.
4. Material and color changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. [See illustration 18.29.03.004.C.] Material and color changes may also occur along a horizontal line that is at least two feet above the foundation, so long as that change is along the entire length of the facade.
5. No more than four cladding materials are allowed.
6. If there are multiple public-facing facades, all public-facing facades shall utilize a comparable composition and pattern of color, materials, and textures.

c. Guidelines.

1. Lighter materials should be installed above those of heavier weight.
2. Heat reflective roof materials should be installed to reduce heat islands. Metal, high albedo (light colored) or minimum 29 SRI (Solar Reflective Index) roofing materials qualify.

5. ACCESSORY DWELLING UNITS

Accessory dwelling units are allowed as provided in section 18.28.240.



Illustration 18.29.03.004.C

Illustration 18.29.03.004.C: The illustration shows a desired composition where material (or color) changes happen along a vertical line at interior corners.

Illustration 18.29.03.004.C. The illustration shows a desired (transition) where patterns (or color) changes happen along a vertical line at interior corners.

(Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.005 COTTAGE FORM TYPES— APPLICATION OF FORM STANDARDS

1. GENERAL INTENT

a. The cottage form types are provided to:

1. Reinforce and compliment the lot development patterns of smaller, detached, single-household buildings in the City of Golden.
2. Provide more options for single-household developments on historically smaller (and often irregularly shaped) lots.
3. Encourage small-scale buildings by allowing relatively small lots.
4. Facilitate the creation of attainable housing stock by providing opportunities for smaller and more cost-efficient developments.

b. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

a. In General. This subsection 2 sets forth the intent of specific regulations applied to cottage form types.

b. Building Size. Building size regulations are used to:

1. Ensure that new buildings integrate with existing development in detached, single-household neighborhoods, and are scaled comparably with existing buildings that were constructed between the 1850s and 1960s.
2. Offer opportunities to subdivide large parcels into multiple cottage lots.

c. Multiple Building Envelope Areas (BEAs). Multiple BEAs with different building height, lot coverage, and setback requirements are established at the front, middle, and rear of a lot to:

1. Ensure that the massing of the principal building is principally located towards the front of the lot.

2. In some cases, locate accessory buildings away from the principal building mass and primary street.

3. Decrease the scale of the cottage at different areas of the lot.

4. Create variation in building height and depth when perceived from the lot frontage, and especially the side street on corner lots.

5. Maintain consistency with building massing that is commonly found in neighborhoods located near downtown Golden or more specifically, lots that developed between 1850 and 1960. These designs typically locate the principal building in the front of a lot and locate accessory buildings and structures (e.g., garages) in the middle and rear of a lot. [See illustration 18.29.03.005.A]

d. Building Height. Building height is limited by number of stories and in linear feet to:

1. Encourage steep gable or hip roof forms that are common in existing buildings that developed in Golden between the 1850s and 1960s.

2. Ensure that new buildings are consistent with height of developments in the built environment, specifically those buildings that developed between the 1850s and 1960s.

e. Porch. Porch requirements are applied to cottage form types in order to:

1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) and decrease the building's perceived scale.

2. Provide better transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by decreasing the distance between these areas.

3. Maintain the front porch as a common structural element, which is typically found in single-family developments in the period between the 1850s and 1960s.

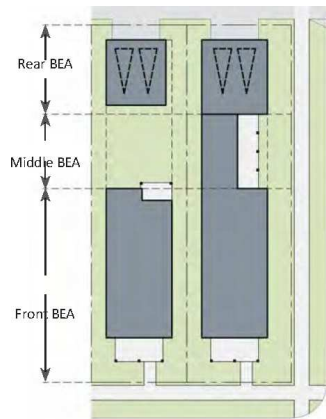


Illustration 18.29.03.005.A

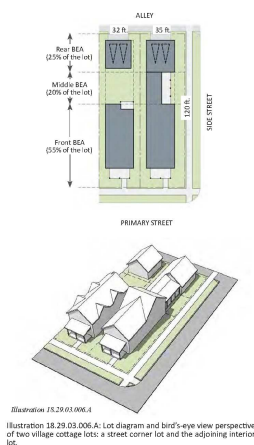
(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.006 COTTAGE FORM TYPES - FORM STANDARDS

1. VILLAGE COTTAGE

a. Intent and Special Characteristics.

1. Intent. The village cottage form type provides an opportunity for employing smaller structures on smaller lots where appropriate.
2. Special Characteristics. The village cottage lot has three building envelope areas (BEAs):
 - A. Front BEA 55%
 - B. Middle BEA 20%
 - C. Rear BEA 25%



b. Lot Standards.

1. Min. lot area 3,200 s.f.
2. Min. lot frontage 32 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 2,400 s.f.
2. Max. lot coverage by BEA -
 - A. Front BEA 55%
 - B. Middle BEA 45% [See g.]
 - C. Rear BEA 60%
3. Max. building height by BEA -
 - A. Front BEA 2 stories/35 ft.

B. Middle BEA 1 story/18 ft. [See g.]

C. Rear BEA 1½ stories/32 ft.

4. Max. no. of dwelling units 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street . 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Porch at side street 8 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min.
6. Rear lot line/alley 5 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The village cottage form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

g. Adjustments for Mostly Preserved Buildings.

When an existing principal building on the lot is preserved to a degree to be qualified as "mostly preserved building," the following standards apply to the middle BEA:

1. Maximum height: 1½ stories/35 ft.
2. Lot coverage: not specifically restricted

2. SIDE-DRIVE COTTAGE

a. Intent and Special Characteristics.

1. Intent. The intent of the side-drive cottage form type provides an opportunity for building smaller buildings on smaller lots where an alley is not provided along the rear lot line.
2. Special Characteristics. The side-drive cottage has:
 - A. An open side and a closed side with different setback requirements.

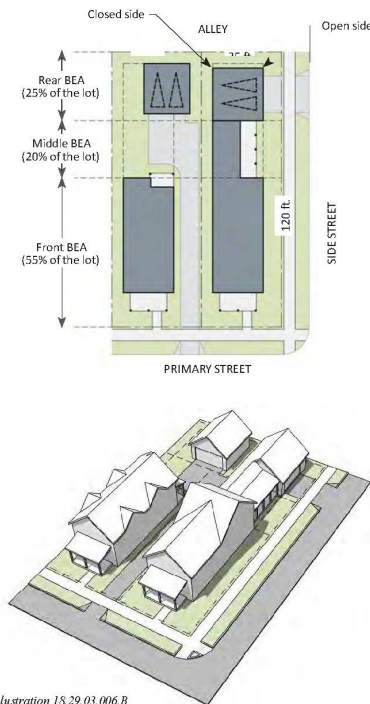


Illustration 18.29.03.006.B

Illustration 18.29.03.006.B: Lot diagram and bird's-eye view perspective of two Side-Drive Cottage lots: a street corner lot and the adjoining interior lot. The garage of the corner lot is accessed from the side street.

B. Three building envelope areas (BEAs):

- i. Front BEA: 55%
- ii. Middle BEA: 20%
- iii. Rear BEA: 25%

b. Lot Standards.

1. Min. lot area 3,400 s.f.
2. Min. lot frontage 37 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 2,400 s.f. per lot

2. Max. building height by BEA -

- A. Front BEA 2 story/35 ft.
- B. Middle BEA 1 story/18 ft. [See g.]
- C. Rear BEA 1½ story/32 ft.

3. Max. lot coverage by BEA -

- A. Front BEA 55%
- B. Middle BEA 45% [See g.]
- C. Rear BEA 60%

4. Max. no. of dwelling units. 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street . 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Side alley 8 ft. min.
5. Porch at side street 8 ft. min./20 ft. max.
6. Interior side lot line -
 - A. Open side in front and middle BEA. 10 ft. min.
 - B. Open side in rear BEA 5 ft. min.
 - C. Closed side. 5 ft. min.
7. Rear lot line 5 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The side-drive cottage form type is permitted only on lots with no alley access along the rear lot line.
2. Garages on corner lots shall be accessed by the side street unless the City Engineer determines that alternative access is preferable for traffic safety purposes. All garage doors that face a side street shall be set back at least 20 ft. from the street side lot line.

3. Garages shall be located in the middle or rear BEA.

4. Driveways shall not be wider than:

A. 10 ft. at the primary street lot line.

B. 16 ft. at the side street lot line.

g. Adjustments for Mostly Preserved Buildings.

When an existing principal building on the lot is preserved to a degree to be qualified as "mostly preserved building," the following restrictions shall be applied to the middle BEA:

1. Max. building height: 1½ stories/35 ft.

2. Max. lot coverage: . . not specifically restricted

3. COMPACT COTTAGE

a. Intent.

The compact cottage form type provides an opportunity for building smaller buildings on smaller and shallower lots where appropriate.

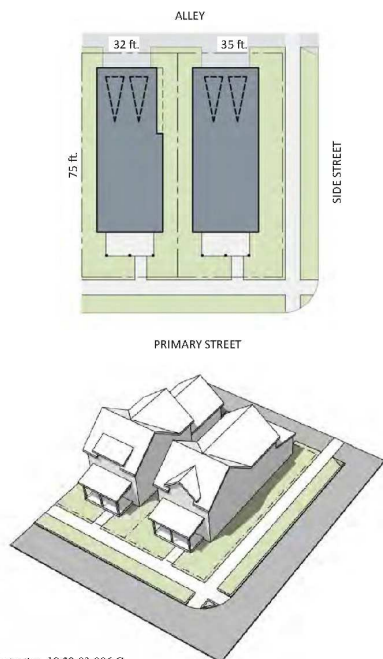


Illustration 18.29.03.006.C
Illustration 18.29.03.006.C: Lot diagram and bird's-eye view perspective of two compact cottage lots: a street corner lot and the adjoining interior lot.

b. Lot Standards.

1. Min. lot area 2,240 s.f.

2. Min. lot frontage 30 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area: 2,200 s.f. per lot

2. Max. building height 2 stories/35 ft.

3. Max. no. of dwelling units. 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.

2. Porch at primary street . . 7 ft. min./20 ft. max.

3. Side street 8 ft. min.

4. Porch at side street 8 ft. min./20 ft. max.

5. Interior side lot line 5 ft. min.

6. Rear lot line/alley 5 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The compact cottage form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

4. SIDE-DRIVE COMPACT COTTAGE

a. Intent.

The side-drive compact cottage form type provides an opportunity for constructing smaller buildings on smaller and shallower lots in areas without alleys along the rear lot line.

b. Lot Standards.

1. Min. lot area 2,450 s.f.

2. Min. lot frontage 35 ft.

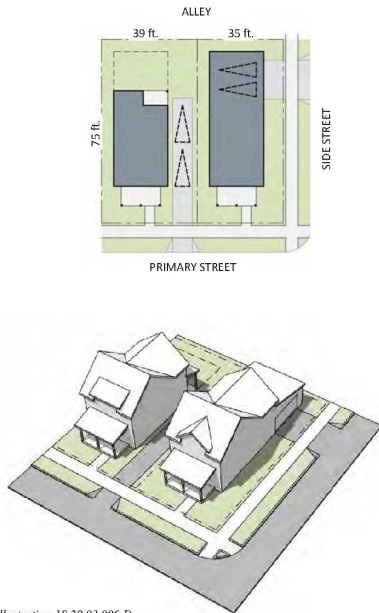


Illustration 18.29.03.006.D

Illustration 18.29.03.006.D: Lot diagram and bird's-eye view perspective of two side-drive compact cottage lots: a street corner lot and the adjoining interior lot. The garage of the corner lot is accessed from the side street.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 2,200 s.f. per lot
2. Max. building height 2 stories/35 ft.
3. Max. no. of dwelling units. 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street . 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Porch at side street . . . 8 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min.
6. Rear lot line 5 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The side-drive compact cottage form type is permitted only on lots with no alley access along the rear lot line.
2. Garages on corner lots shall be accessed by the side street unless the City Engineer determines that alternative access is preferable for traffic safety purposes. All garage doors that face a side street shall be set back at least 20 ft. from the street side lot line.
3. Driveways shall not be wider than:

A. 10 ft. at the front lot line,

B. 16 ft. at the side street lot line.

5. URBAN COTTAGE

a. Intent and Special Characteristics.

1. Intent. The urban cottage form type provides an opportunity for constructing "tiny" buildings on smaller lots in urban context where appropriate.
2. Special Characteristics. The urban cottage lot has three building envelope areas (BEAs):

A. Front BEA 50%

B. Middle BEA 20%

C. Rear BEA 30%

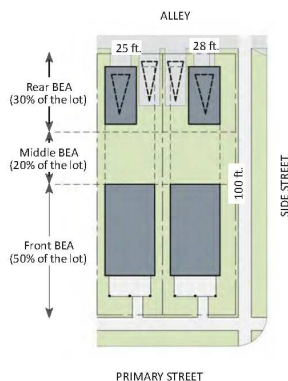


Illustration 18.29.03.006.E

Illustration 18.29.03.006.E: Lot diagram and bird's-eye view perspective of two urban cottage lots: a street corner lot and the adjoining interior lot.

b. Lot Standards.

1. Min. lot area 2,400 s.f.
2. Min. lot frontage 25 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 1,400 s.f. per lot
2. Max. lot coverage by BEA -
 - A. Front BEA 55%
 - B. Middle BEA no bldg. allowed
 - C. Rear BEA not specifically restricted
3. Max. building height by BEA -
 - A. Front BEA 1½ stories/32 ft.
 - B. Middle BEA no bldg. allowed
 - C. Rear BEA 1 story/18 ft.
4. Max. no. of dwelling units. 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.

2. Side street 6 ft. min.
3. Porch at primary street . . 7 ft. min./20 ft. max.
4. Porch at side street 4 ft. min./20 ft. max.
5. Interior side lot line 3 ft. min.
6. Rear lot line/alley 3 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The urban cottage form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

6. COMPACT URBAN COTTAGE

a. Intent.

The urban cottage form type provides an opportunity for constructing "tiny" buildings on smaller lots in urban context where appropriate.

b. Lot Standards.

1. Min. lot area 1,600 s.f.
2. Min. lot frontage 20 ft.

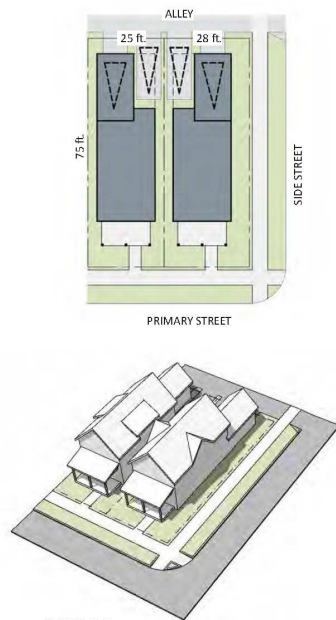


Illustration 18.29.03.006.F

Illustration 18.29.03.006.F: Lot diagram and bird's-eye view perspective of two compact urban cottage lots: a street corner lot and the adjoining interior lot.

cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).

2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 1,400 s.f. per lot
2. Max. building height 1½ stories/32 ft.
3. Max. no. of dwelling units 1 per lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Side street 6 ft. min.
3. Porch at primary street . 7 ft. min./20 ft. max.
4. Porch at side street . . . 4 ft. min./20 ft. max.
5. Interior side lot line 3 ft. min.
6. Rear lot line/alley 3 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The compact urban cottage form type is permitted only on lots with alley access. No curb

18.29.03.007 COTTAGE FORM TYPES—DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section shall apply to the duplex form types (listed below for ease of reference):
 1. Village duplex.
 2. Uphill duplex.
 3. Cottage duplex.
 4. Side-drive cottage duplex.
 5. Compact cottage duplex.
- b. Chapter 18.40 also applies to duplex form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to create a varied yet unified building presence at the block level when viewed from the pedestrian realm, and to reduce over-articulation of the street-facing building facades.
- b. Requirement.
 1. For buildings with required open sides and closed sides, the open side shall face south, southeast, east, or southwest, except for corner lots where the open side shall face the side street.
 2. The principal building facade facing the street shall have at least one articulation and no more than three articulations.

c. Guidelines.

1. Competition between massing articulations should be avoided.
2. Facades should be composed of a hierarchy of differently sized massing articulations. For instance, a large primary massing articulation shall be accompanied by smaller secondary massing articulations. [See illustration 18.29.03.007.A.]

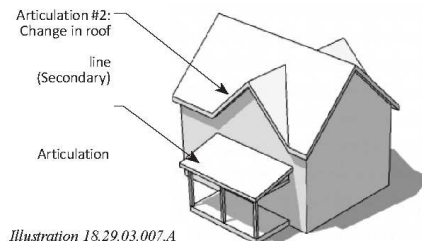


Illustration 18.29.03.007.A

Illustration 18.29.03.007.A shows a small cottage building with two articulations visible from the front.

Illustration 18.29.03.007.A shows a small cottage building with two articulations visible from the front.

3. PORCH CHARACTERISTICS

- a. Intent. The intent of the porch standards is to create pronounced first-story building articulations and to create a transition between the pedestrian realm and the residential living space.
- b. Requirements.
 1. Front porches shall provide direct access to the interior living space.
 2. The porch shall not be elevated more than one step down from the finished floor of the home.
1. Cottages located on corner lots should have wrapped porches.
2. Cottages should have large porches to create a shaded outdoor living space.

4. EXTERIOR MATERIALS

- a. Intent. The intent of the exterior materials standards is to use materials in a manner that offer simplistic, well-designed buildings, while also avoiding the creation of overwhelming and cluttered facades with too many materials.
- b. Requirements.
 - 1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, [cementitious] siding, or concrete). Siding patterns shall be one of the following: Horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
 - 2. Material and color changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least two feet above the foundation, so long as that change is along the entire length of the facade.
 - 3. No more than four cladding materials are allowed.
 - 4. All public facing facades shall utilize a comparable composition of color, materials, and textures.
- c. Guidelines.
 - 1. In general, the lighter materials should be placed above those of heavier weight.
 - 2. Heat reflective roof materials should be installed to reduce heat islands. Metal, high albedo (light colored) or minimum 29 SRI (Solar Reflective Index) roofing materials qualify.

5. ACCESSORY DWELLING UNITS

Accessory dwelling units are allowed as provided in section 18.28.240.

(Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.008 COMPOUND FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT

- a. The compound form types are provided as development templates to:
 1. Diversify housing options.
 2. Provide opportunities for multi-household developments in areas that have a significant detached, single-household presence.
 3. Promote multi-household developments that consist of several small buildings as opposed to one, large multi-household building.
 4. Increase attainable housing stock by providing opportunities for smaller and more cost-efficient developments.
- b. With the exception of section 18.29.03.008.2.b. below, this section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intent for specific standards that are applied to compound form types.
- b. Limitations. The compound form types set out in section 18.29.03.009 may be used only for compound development.
- c. Building Size. Building size regulations are used to:
 1. Limit the aggregate size of the buildings in a compound to the same building size permitted for a house form type on the same size lot [See illustration 18.29.03.008.A].



Illustration 18.29.03.008.A

Illustration 18.29.03.008.A: Comparison of a house with total floor area of 3,000 s.f. and a two- or three-cottage compound with total floor area of 3,000 s.f. on the same size of lot (50 ft. frontage and 140 ft. depth).

2. Ensure that developments are scaled similarly with existing buildings that developed between the 1850s and 1960s.
3. Provide a diversity of multi-household housing options through small-scale, detached building developments.
- d. Building Height. Building height is limited by number of stories and in linear feet to:
 1. Ensure developments are appropriately scaled to their minimum and maximum lot size requirements, which are often small.
 2. Ensure new developments are consistent with the height of buildings in Golden's existing built environment, specifically, developments constructed between the 1850s and 1960s.
 3. Encourage steep gable or hip roof forms that are common in existing dwellings that developed in Golden between the 1850s and 1960s.
- e. Porch Characteristics. Porches are required in compound form types in order to:
 1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) and decrease the building's perceived scale.
 2. Provide better transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by decreasing the distance between these areas.

3. Maintain the porch as a common element typically found in single-household developments constructed between the 1850s and 1960s.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.009 COMPOUND FORM TYPES - FORM STANDARDS

1. TWO- OR THREE-COTTAGE COMPOUND

a. Intent.

The two- or three-cottage compound form type provides opportunity for up to three small buildings in lieu of a large single building to respond to market demand, and to provide more attainable options.

b. Lot Standards.

1. Min. lot area 6,000 sf
2. Min. lot frontage 46 ft.

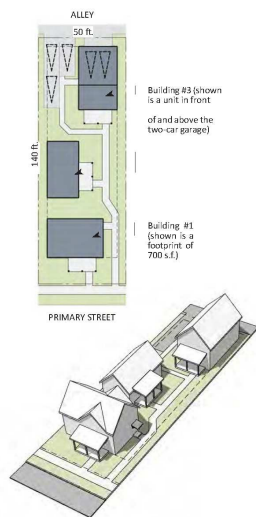


Illustration 18.29.03.009.A
Illustration 18.29.03.009.A: Lot diagram and bird's-eye view perspective of a two- or three-cottage compound.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area
 - A. 2 cottages 3,600 s.f. per lot
 - B. 3 cottages 3,900 s.f. per lot
2. Max. building height 1½ stories/32 ft.
3. Max. no. of detached buildings 3 per lot
4. Max. no. of dwelling units 3 per lot
5. Max. total floor area per building
 - A. 2 cottages 1,800 s.f.

- B. 3 cottages 1,500 s.f.

d. Setbacks.

1. Principal street 15 ft. min.
2. Porch at principal street 7 ft. min./20 ft. max.
3. Side street 15 ft. min.
4. Porch at side street 7 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min.
6. Rear lot line/alley 5 ft. min.
7. Separation between buildings on lot 10 ft. min.

e. Porch.

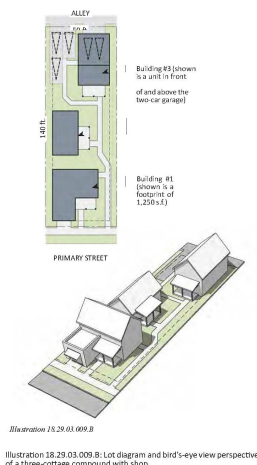
1. In the core, transition, and edge form zones, a porch of at least 80 s.f. in area facing the primary street is required on the cottage building that is closest to the front lot line.
2. All other cottage buildings shall include a porch, deck, or balcony (covered or uncovered) of at least 50 s.f. in area.

f. Additional Standards.

1. The two- or three-cottage compound form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. Garage doors shall not face the primary street or be within 20 ft. of the front lot line.

The three-cottage compound with shop form type provides opportunity to accommodate non-residential uses in a setting with a cottage-like scale and character where residential uses are located alongside non-residential uses.

1. Min. lot area: 6,000 sf
2. Min. lot frontage: 46 ft.



1. Max. total floor area 4,000 s.f. per lot
2. Max. building height -
 - A. Within front 15 ft. of the lot: 1 story/18 ft.
 - B. Remainder of the lot: 1½ stories/32 ft.
3. Max. no. of detached buildings. 3 per lot
4. Max. no. of dwelling units 3 per lot
5. Max. total floor area per building 1,800 s.f.

1. Principal street -
 - A. Along $\frac{1}{3}$ of frontage 4 ft. min.
 - B. Along $\frac{2}{3}$ of frontage 15 ft. min.
2. Porch at principal street 7 ft. min.

A. Along $\frac{1}{4}$ of frontage 4 ft. min.

B. Along $\frac{3}{4}$ of frontage 15 ft. min.

4. Porch at side street 7 ft. min.
5. Interior side lot line 5 ft. min.
6. Rear lot line/alley 5 ft. min.
7. Separation between buildings on lot 10 ft. min.

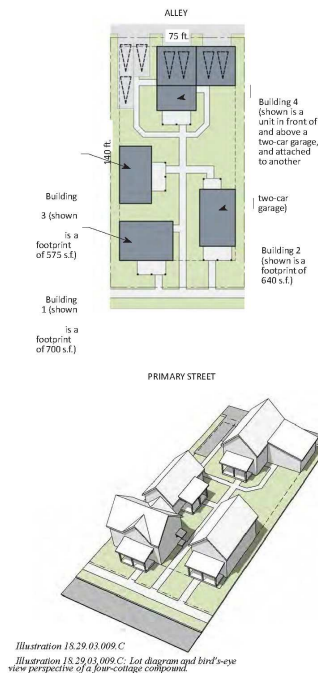
1. In the neighborhood corridor and main street A form zones, a porch of at least 80 s.f. in area facing the primary street is required on the building that is closest to the front lot line.
2. All other buildings shall include a porch or balcony (covered or uncovered) of at least 80 s.f. in area.

1. The three-cottage compound with shop form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No surface parking is allowed within 60 ft. of the front lot line.
4. Garage doors shall not face the primary street within 20 ft. of the front lot line.
5. Three-cottage compound with shop form type is permitted only if at least 25 percent of the total floor area is reserved for non-residential uses.

3. FOUR-COTTAGE COMPOUND

a. Intent.

The four-cottage compound form type provides opportunity for building four small buildings in lieu of a large single building in order to respond to market demand, and to provide more attainable housing options.



b. Lot Standards.

1. Min. lot area 8,000 s.f.
2. Min. lot frontage 70 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 4,800 s.f. per lot
2. Max. building height 1½ stories/32 ft.
3. Max. no. of detached buildings 4 per lot
4. Max. no. of dwelling units 4 per lot
5. Max. total floor area per building 1,400 s.f.

d. Setbacks.

1. Principal street 15 ft. min.

2. Side street 15 ft. min.
3. Porch at principal street 7 ft. min./20 ft. max.
4. Porch at side street 7 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min.
6. Rear lot line/alley 5 ft. min.
7. Separation between buildings on lot 10 ft. min.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street is required on the cottage building that is closest to the front lot line.
2. All other cottage buildings shall include a porch or balcony (covered or uncovered) of at least 80 s.f. in area.

f. Additional Standards.

1. The four-cottage compound form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. Garage doors shall not face the primary street within 20 ft. of the compound's front lot line.

4. FOUR-COTTAGE COMPOUND WITH SHOP

a. Intent.

The four-cottage compound with shop form type provides opportunity to accommodate non-residential uses in a setting with a cottage-like scale and character where residential uses are located alongside non-residential uses.

b. Lot Standards.

1. Min. lot area 8,000 sf
2. Min. lot frontage 70 ft.

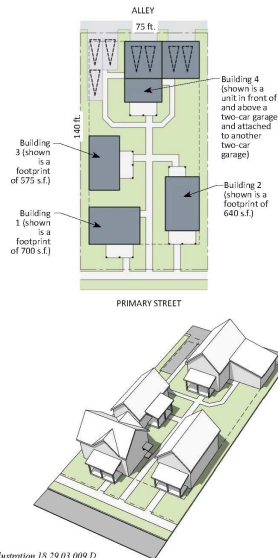


Illustration 18.29.03.009.D
Illustration 18.29.03.009D: Lot diagram and bird's-eye view perspective of a four-cottage compound lot.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 5,300 s.f. per lot
2. Max. building height -
 - A. Within front 15 ft. of the lot . . 1 story/18 ft.
 - B. Remainder of the lot . . 1½ stories/32 ft.
3. Max. no. of detached buildings. . . . 4 per lot
4. Max. no. of dwelling units 4 per lot
5. Max. total floor area per building . 1,800 s.f.

d. Setbacks.

1. Principal street -
 - A. Along ⅓ of frontage 4 ft. min.
 - B. Along ⅔ of frontage 15 ft. min.
2. Porch at principal street 7 ft. min.
3. Side street -
 - A. Along ¼ of frontage 4 ft. min.
 - B. Along ¾ of frontage 15 ft. min.
4. Porch at side street 7 ft. min.
5. Interior side lot line 5 ft. min.
6. Rear lot line/alley 5 ft. min.
7. Separation between buildings on lot . . 10 ft. min.

e. Porch.

1. In the neighborhood corridor and main street A form zones, a porch of at least 80 s.f. in area facing the primary street is required on the building that is closest to the front lot line.
2. All other buildings shall include a porch or balcony (covered or uncovered) of at least 80 s.f. in area.

f. Additional Standards.

1. The four-cottage compound with shop form type is permitted only on lots with alley access. No curb cuts to serve a cottage building lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No surface parking is allowed within 60 ft. of the front lot line.
4. Garage doors shall not face the primary street within 20 ft. of the front lot line.

5. Four-cottage compound with shop form type is permitted only if at least 25 percent of the total floor area is reserved for non-residential uses.

5. COURTYARD FRONTAGE COMPOUND

a. Intent and Special Characteristics.

1. Intent. The courtyard frontage compound form type is tailored to accommodate larger businesses, together with residential uses in larger buildings, but still in a cottage-like setting.
2. Special Characteristics. The courtyard frontage compound has two building envelope areas (BEAs):

- A. Front BEA: 50%
- B. Rear BEA: 50%

b. Lot Standards.

1. Min. lot area 8,000 sf
2. Min. lot frontage 65 ft.

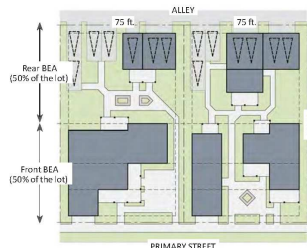


Illustration 18.29.03.009.E
Illustration 18.29.03.009.E: Lot diagram and bird's-eye view perspective of a courtyard frontage compound.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area -
 - A. Front BEA 4,000 s.f.
 - B. Rear BEA 1,200 s.f.

2. Max. building height -

- A. Within front 20 ft. of the lot . . . 1 story/18 ft.
- B. Within 20 to 36 ft. of front lot line. 2 stories/32 ft.
- C. Within remainder of front BEA 2½ stories/40 ft.
- D. Rear BEA 1½ stories/32 ft.

3. Max. no. of detached buildings. 4 per lot

4. Max. no. of dwelling units 4 per lot

5. Max. total floor area per building . . 4,000 s.f.

d. Setbacks.

1. Principal street -

- A. Along ¼ of frontage 4 ft. min.
- B. Along ¼ of frontage 20 ft. min.
- C. Along ½ of frontage 36 ft. min.

2. Porch at principal street 4 ft. min.

3. Side street -

- A. First 2 stories. 8 ft. min.
- B. Above 2 stories. 18 ft. min.

4. Porch at side street 4 ft. min.

5. Interior side lot line 5 ft. min.

6. Rear lot line/alley 5 ft. min.

7. Separation between buildings on lot . . 10 ft. min.

e. Porch.

1. In the neighborhood corridor and main street A form zones, a porch of at least 100 s.f. in area facing the primary street is required on the building that is closest to the front lot line.
2. All other buildings shall include a porch or balcony (covered or uncovered) of at least 80 s.f. in area.

f. Additional Standards.

1. The courtyard frontage compound form type is permitted only on lots with alley access. No curb cuts to serve the building lot are allowed on the primary street or the side street (if present).
2. No surface parking is allowed within the front BEA.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
4. Garage doors shall not face the primary street within 20 ft. of the front lot line.
5. The courtyard frontage compound form type is permitted only if at least 25 percent of the total floor area is reserved for non-residential uses.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.010 COMPOUND FORM STYLES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. The standards and guidelines referenced in this section apply to the compound form types (listed below for ease of reference).
 - 1. Two- or Three-cottage compound
 - 2. Three-cottage compound with shop
 - 3. Four-cottage compound
 - 4. Four-cottage compound with shop
 - 5. Courtyard frontage compound
- b. Buildings within the compound form are subject to:
 - 1. Section 18.29.03.004 if their floor area exceeds 1,800 s.f.; or
 - 2. Section 18.29.03.007 if their floor area is 1,800 s.f. or less.
- c. Chapter 18.40 also applies to compound form types as set out therein.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.011 CLUSTER FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT

- a. Cluster form types are intended to be implemented using clustered subdivisions, with each principal building occupying its own lot.
- b. The cluster form types are provided to:
 1. Diversify housing options.
 2. Provide an opportunity to subdivide larger parcels into small lots. [See illustration 18.29.03.011.A.]
 3. Provide opportunities for multi-household developments that consist of smaller detached buildings in areas that have a significant single-household, detached presence.
 4. Promote multi-household developments that consist of several small buildings as opposed to one, large building with several internal units.
 5. Promote preservation of smaller buildings by permitting small-scale subdivision.
 6. Increase attainable housing stock by providing opportunities for smaller and more cost-efficient developments.
- c. Except as provided in subsection 1.a., above, this section shall not be interpreted to set forth substantive requirements.

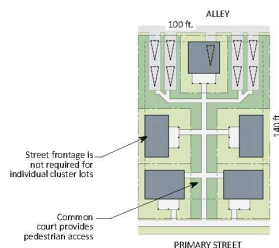


Illustration 18.29.03.011.A: The illustration shows the lot diagram of a cluster of five or more cottages form, subdivided from a 14,000 s.f. (140 ft. x 100 ft.) lot. The common court (indicated by the darker shade of green) provides pedestrian access from the street and parking to the cottages.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific regulatory tools used for cluster form types.
- b. Lot Size. Minimum lot areas are applied in order to:
 1. Ensure the cluster form types are appropriately scaled, spaced, and compatible with similar buildings in the surrounding neighborhood or area.
 2. Ensure adequate space for common court elements and shared elements (e.g., utility and drainage infrastructure).

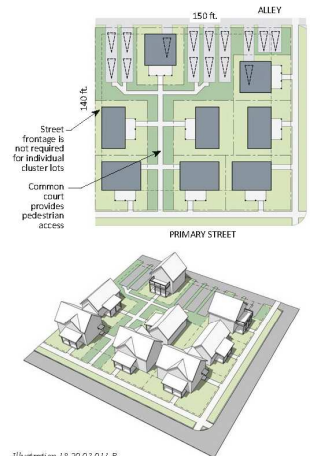


Illustration 18.29.03.011.B

Illustration 18.29.03.011.B: The illustration shows the lot diagram and bird's eye view of a cluster of five or more cottages form, subdivided from a 21,000 s.f. (140 ft. x 150 ft.) lot. The form has 8 lots (21,000 s.f. / 2,600 s.f. = 8 (after dropping fractions)). The maximum total floor area of the cluster is 8,000 s.f. (8 lots x 1,000 s.f. per lot), and individual buildings may vary in size, provided that no individual building is larger than 1,400 s.f.

- c. Building Size. Building size regulations are used to:
 1. Preserve and promote cottage-scale buildings, similar to those constructed between the 1850s and 1960s.
 2. Provide a diversity of multi-household housing options through small-scale separated housing developments.
- d. Common Court. Common courts are used to:
 1. Provide an alternative lot frontage.

-
2. Provide pedestrian ingress and egress to the right-of-way and to parking spaces.
 3. Provide shared amenities and open space for residents of the cluster development.
- e. Building Height. Building height is limited by number of stories and in linear feet to:
1. Ensure developments are appropriately scaled to their minimum and maximum lot requirements, which are often small.
 2. Ensure new developments are consistent with the height of buildings in Golden's existing built environment, specifically, developments constructed between 1850 and 1960.
 3. Encourage steep gable or hip roof forms that are common in existing dwellings that developed in Golden between 1850 and 1960.
- f. Porch Characteristics. Porches are required within cluster form types in order to:
1. Accentuate the first-story elements of building as viewed from the pedestrian realm (right-of-way/sidewalk) and to decrease the building's perceived scale.
 2. Provide transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) and to decrease the distance between these areas.
 3. Maintain the front porch as a common element found in single-family developments constructed between 1850 and 1960.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.012 CLUSTER FORM TYPES - FORM STANDARDS

1. CLUSTER OF FOUR COTTAGES

a. Intent.

The cluster of four cottages form type provides an opportunity for existing lots or parcels that are 9,000 s.f. or greater in area ("pre-subdivision lot") to be subdivided into smaller lots ("cluster lots").

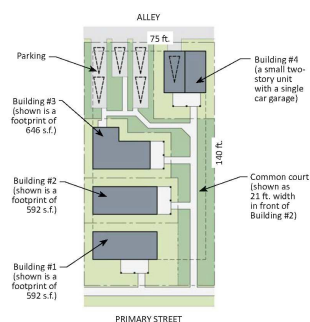


Illustration 18.29.03.012.A

Illustration 18.29.03.012.A: Lot diagram and bird's-eye view perspective of a cluster of four cottages.

b. Lot Standards.

1. Min. pre-subdivision lot area 9,000 s.f.
2. Min. cluster lot area 1,400 s.f.
3. Min. pre-subdivision lot frontage 70 ft.
4. Min. cluster lot frontage (street or common court) [See f.4] 22 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area (all cottages combined) 4,800 s.f.
2. Max. building height 1½ stories/32 ft.
3. Max. no. of detached buildings . . 4 per cluster
4. Max. no. of dwelling units . . 1 per cluster lot

5. Max. total floor area per building . . 1,500 s.f.

d. Setbacks.

1. Primary street 15 ft. min.
2. Porches at primary street . . . 7 ft. min./20 ft. max.
3. Common court 12 ft. min.
4. Porches at common court 4 ft. min.
5. Side street 15 ft. min.
6. Porches at side street 7 ft. min.
7. Interior side lot line 5 ft. min.
8. Rear lot line/alley 5 ft. min.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 90 s.f. in area facing the primary street is required on cottages on cluster lots that have primary street frontage.
2. All other cottages shall include a porch of at least 80 s.f. in area, facing the common court.

f. Additional Standards.

1. Cluster of four cottages building form type is permitted only on pre-subdivision lots with alley access. No curb cuts to serve an individual cluster lot are allowed on the primary street or the side street (if present).
2. Garage doors shall not face the primary frontage within 20 ft. of the front property line.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or
4. A common court frontage is required for cluster lots that do not have frontage on the primary street or side street.

2. CLUSTER OF FIVE OR MORE COTTAGES

a. Intent.

The cluster of five or more cottages form type provides an opportunity for existing lots or parcels that are 12,000 s.f. or greater in area ("pre-subdivision lot") to be subdivided into smaller lots ("cluster lots").

b. Lot Standards.

1. Min. pre-subdivision lot size 12,000 s.f.
2. Min. cluster lot size 1,400 s.f.
3. Min. pre-subdivision lot frontage 96 ft.

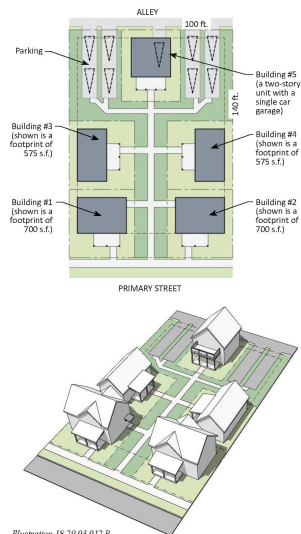


Illustration 18.29.03.012.B
Illustration 18.29.03.012.B: Lot diagram and bird's-eye view perspective of a cluster of five or more cottages form.

4. Min. cluster lot frontage (street or common court) [See f.4] 22 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. no. of cluster lots equals the pre-subdivision lot size (in s.f.) divided by 2,600 s.f., with fractions dropped
2. Max building height 1½ stories/32 ft.
3. Max. total floor area per cluster. 1,100 s.f. x (no. of lots)
4. Max. total floor area of individual buildings 1,500 s.f.

5. Max. no. of dwelling units . . 1 per cluster lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porches at primary street . . . 7 ft. min./20 ft. max.
3. Common court 12 ft. min.
4. Porches at common court 4 ft. min.
5. Side street 15 ft. min.
6. Porches at side street . 7 ft. min./20 ft. max.
7. Interior side lot line 5 ft. min.
8. Rear lot line/alley 5 ft. min.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 90 s.f. in area facing the primary street is required on cottages on cluster lots that have primary street frontage.
2. All other cottages shall include a porch of at least 80 s.f. in area, facing the common court.

f. Additional Standards.

1. The cluster of five or more cottages form type is permitted only on pre-subdivision lots with alley access. No curb cuts to serve an individual cluster lot are allowed on the primary street or the side street (if present).
2. Garage doors shall not face the primary frontage within 20 ft. of the front property line.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
4. A common court frontage is required for cluster lots that do not have frontage on the primary street or side street.

3. CLUSTER OF DETACHED AND ATTACHED COTTAGES

a. Intent.

The cluster of detached and attached cottages form type provides an opportunity for existing lots or parcels that are 12,000 s.f. or greater in area ("pre-subdivision lot") to be subdivided into smaller lots ("cluster lots"). The cluster of detached and attached cottages may be developed with cottages or cottage duplex buildings.

b. Lot Standards.

1. Min. pre-subdivision lot size 12,000 s.f.
2. Min. cluster lot size 1,000 s.f.
3. Min. pre-subdivision lot frontage 96 ft.

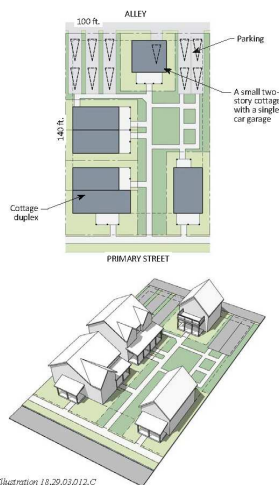


Illustration 18.29.03.012.C
Illustration 18.29.03.012.C: Lot diagram and bird's eye view perspective of a cluster of detached and attached cottages comprised of two cottage duplex buildings (four dwelling units) and two detached cottages.

4. Min. cluster lot frontage (street or common court) [See f.4] 20 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. no. of cluster lots equals the pre-subdivision lot size (in s.f.) divided by 2,300 s.f., with fractions dropped
2. Max. building height 1½ stories/32 ft.
3. Max. total floor area of any one detached cottage building 1,400 s.f.

4. Max. total floor area of any one cottage duplex building (includes both units) . . . 2,200 s.f.

5. Max. no. of dwelling units . . 1 per cluster lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porches at primary street . . . 7 ft. min./20 ft. max.
3. Common court 12 ft. min.
4. Porches at common court 4 ft. min.
5. Side street 8 ft. min.
6. Porches at side street 4 ft. min.
7. Interior side lot line . . . 0 ft. (party wall)/5 ft. min.
8. Rear lot line/alley 5 ft. min.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 120 s.f. in area facing the primary street is required on cottages on cluster lots with primary street frontage.
2. All other cottages shall include a porch of at least 80 s.f. in area, facing the common court.

f. Additional Standards.

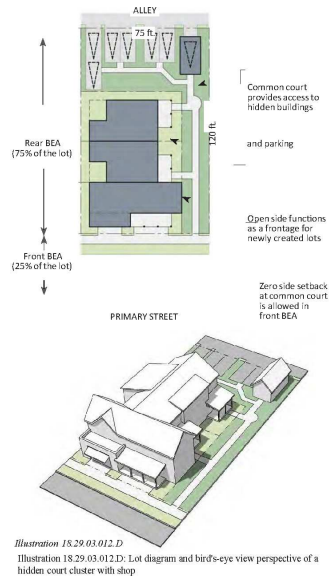
1. The cluster of detached and attached cottages form type is permitted only on pre-subdivision lots with alley access. No curb cuts to serve an individual cluster lot are allowed on the primary street or the side street (if present).
2. Garage doors within 20 ft. of the front lot line shall not face the primary street frontage.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

4. A common court frontage is required for cluster lots that do not have frontage on the primary street or side street.

4. HIDDEN COURT CLUSTER WITH SHOP

a. Intent and Special Characteristics.

1. Intent. The hidden court cluster with shop form type provides for three attached buildings within which both residential and non-residential uses may be located.
2. Special Characteristics. The hidden court cluster with shop has:
 - A. An open side and a closed side with different setback requirements.
 - B. Two building envelope areas (BEAs):
 - i. Front BEA: 25%
 - ii. Rear BEA: 75%



b. Lot Standards.

1. Min. pre-subdivision lot size 12,000 s.f.
2. Min. cluster lot size 1,300 s.f.
3. Pre-subdivision lot frontage . 70 ft. min./100 ft. max.
4. Min. pre-subdivision lot depth. 110 ft.

5. Min. cluster lot frontage (street or common court) [See f.4] 20 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. building height -
 - A. Front 12 ft. of lot 1 story/18 ft.
 - B. Remainder of lot 2 stories/35 ft.
2. Max. total floor area -
 - A. Front BEA 2,400 s.f.
 - B. Rear BEA 4,000 s.f.
3. Max. no. of dwelling units . . 3 (1 per cluster lot)

d. Setbacks.

1. Primary street -
 - A. Along $\frac{1}{3}$ of frontage 4 ft. min.
 - B. Along $\frac{2}{3}$ of frontage 15 ft. min.
2. Porches at primary street . . . 7 ft. min./20 ft. max.
3. Common court -
 - A. Front BEA 0 ft. min.
 - B. Rear BEA 15 ft. min.
 - C. Porches (open side) 7 ft. min.
4. Side street. 15 ft. min.
5. Porches at side street 7 ft. min.
6. Interior side lot line -
 - A. Exterior wall 5 ft. min.
 - B. Party wall 0 ft. min.
7. Rear lot line/alley 5 ft. min.

e. Porch.

1. In the Neighborhood Corridor and Main Street A form zones, a porch of at least 120 s.f. in area facing the primary street is required on cottages on cluster lots that have primary street frontage.

2. All other cottages shall include a porch of at least 80 s.f. in area, facing the common court.

f. Additional Standards.

1. The hidden court cluster with shop form type is permitted only on pre-subdivision lots with alley access. No curb cuts to serve an individual cluster lot are allowed on the primary street or the side street (if present).
2. Garage doors within 20 feet of the front lot line shall not face the primary street frontage.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
4. A common court frontage is required for cluster lots that do not have frontage on the primary street or side street.
5. No surface parking is allowed within 60 feet of the primary street.
6. The hidden court cluster with shop form type is permitted only if at least 25 percent of the total floor area is reserved for non-residential uses.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.013 CLUSTER FORM TYPES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. The standards that are referenced and set out in this section apply to the cluster form types (listed below for ease of reference).
 - 1. Cluster of four cottages
 - 2. Cluster of five or more cottages
 - 3. Cluster of detached and attached cottages
 - 4. Hidden court cluster with shop
- b. Section 18.29.03.007 applies to the detached cottages within a cluster form, if any.
- c. Section 18.29.03.016 applies to the duplexes within a cluster form, if any.
- d. Chapter 18.40 also applies to cluster form types as set out therein.
- e. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. COMMON COURTS

- a. Intent. The intent of the common courts standards is to require common courts as an amenity and green space for the enjoyment of occupants of the cluster.
- b. Requirements.
 - 1. A common court is required for all cluster form types. The common court shall be provided in a tract designated on the subdivision plat.
 - 2. 50 percent of the common court shall be landscaped with living plant materials.

- 3. The common court shall be sized and configured as follows:
 - A. The common court shall provide access from the front of the pre-subdivision lot to the rear of the pre-subdivision lot, and to all cluster lots that do not have street frontage.
 - B. The common court shall have a minimum area of 15 percent of the pre-subdivision lot or 800 s.f., whichever is larger.
 - C. The common court shall have a minimum frontage of 16 ft. along the front lot line of the pre-subdivision lot.
- 4. Common courts shall consist of outdoor areas that provide separation and relief from buildings or create outdoor recreational opportunities such as walkways, pedestrian paths, open plazas, natural drainage ways and drainage ponds, playgrounds, areas with benches, outdoor furnishings, and other places for sitting, and other areas designed specifically for active or passive recreational use.
- 5. Common courts shall not include areas that are used for outdoor storage and paved areas that are designed to accommodate motor vehicle uses (e.g., parking, drive aisles, etc.) or trash and recycling facilities.
- 6. Common courts shall be designed and landscaped in accordance with section 18.29.06.006.4.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.014 DUPLEX FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT AND USE OF FORM TYPE

- a. The duplex form types are provided to diversify housing options and allow for the efficient use of land with attached household dwellings.
- b. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific regulatory tools used for duplex form types.
- b. Lot Size.
 1. Minimum lot areas are applied in order to ensure the duplex form types are constructed on sufficient land area to maintain light and air and outdoor use areas.
 2. Maximum lot sizes are applied to some duplex forms to ensure that they are appropriately scaled to other buildings in the surrounding neighborhood or area.



Illustration 18.29.03.014.A: Above is a corner duplex building addressing both streets. The duplex on the corner faces the side street. The resulted composition is an appealing one.

- c. Facing Requirements. Duplex form types on corner lots may include a requirement that a one household unit face the side street via a porch and primary entryway to avoid blank facades from the public right-of-way. [See illustration 18.29.03.014.A.]
- d. Multiple Building Envelope Areas (BEAs). Multiple BEAs with different height, lot coverage, and setback requirements are established for some duplex building form types in order to:
 1. Retain the established lot pattern of buildings that developed between the 1850s and 1960s.

2. Create consistent backyard space to:
 - A. Allow natural light to pass through the lot and block.
 - B. Break down overall massing in the interior of the lot. [See illustration 18.29.03.014.B.]

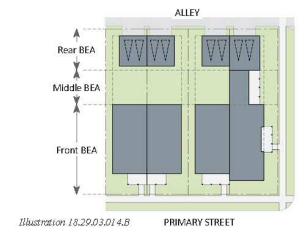


Illustration 18.29.03.014.B: A lot diagram example with three BEAs (front, middle, rear) with different height, setback, and lot coverage requirements.

- e. Building Size. Building size regulations limit maximum floor area on a per building, rather than per lot, basis to:
 1. Ensure that duplex developments are scaled similarly with existing buildings in the surrounding neighborhood or area.
 2. Ensure square footage is distributed into multiple household units within a shared building that does not increase in size if lots are consolidated.
- f. Building Height. Building height is limited by number of stories and in linear feet to:
 1. Encourage steep gable or hip roof forms that are common in existing buildings that developed in Golden between the 1850s and 1960s.
 2. Ensure new developments are consistent with the height of buildings in the existing built environment, specifically, buildings that developed between the 1850s and 1960s.
- g. Porch Characteristics. Porch requirements are intended to:
 1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) and decrease the building's perceived scale and massing.

2. Provide better transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by decreasing the distance between these areas.
3. Maintain the front porch as a common building element, which is found in existing developments constructed between the 1850s and 1960s.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.015 DUPLEX FORM TYPES - FORM STANDARDS

1. VILLAGE DUPLEX

a. Intent and Special Characteristics.

1. Intent. The intent of the village duplex form type is to provide for two-household buildings, with each dwelling unit located on its own lot ("duplex lot").
2. Special Characteristics. The village duplex lot has three building envelope areas (BEAs):
 - A. Front BEA 55%
 - B. Middle BEA 20%
 - C. Rear BEA 25%

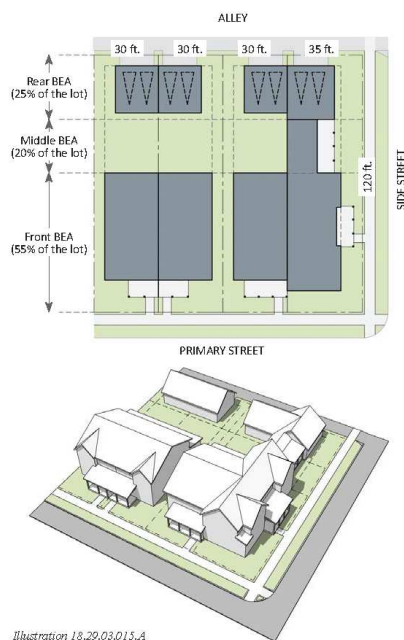


Illustration 18.29.03.015.A
Illustration 18.29.03.015.A: Lot diagram and bird's-eye view perspective of two Village Duplex buildings located on four lots: one on the street corner, the other three on the adjoining interior lots.

b. Lot Standards.

1. Min. duplex lot area 3,000 s.f.
2. Min. duplex lot frontage 30 ft.
3. Min. duplex lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of duplex building 3,800 s.f.
2. Max. lot coverage by BEA -
 - A. Front BEA 65%
 - B. Middle BEA 50% [See g.]
 - C. Rear BEA not specifically restricted
3. Max. building height by BEA -
 - A. Front BEA 2 stories/35 ft.
 - B. Middle BEA 1 story/18 ft. [See g.]
 - C. Rear BEA 1½ stories/32 ft.
4. Max. no. of dwelling units . . 1 per duplex lot

d. Setbacks by Lot Location.

Setback	Min. (Max.) Distance by Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft. (20 ft.)	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft. (20 ft.)
Interior side lot line (exterior wall)	5 ft.	N/A
Interior side lot line (party wall)	0 ft.	0 ft.
Rear lot line	5 ft.	5 ft.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required. [See f.2]

f. Additional Standards.

1. The village duplex building form type is permitted only on lots with alley access. No curb cuts to serve a village duplex building lot are allowed on the primary street or the side street (if present).

2. The porch and the entrance of the buildings on street corner lots shall face the side street.
3. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

g. Adjustments for Mostly Preserved Buildings.

When an existing principal building on the lot is preserved to a degree to be qualified as "mostly preserved building," the following restrictions shall be applied to the middle BEA:

1. Max. building height: 1½ stories/35 ft.
2. Max. lot coverage: not specifically restricted

2. UPHILL DUPLEX

a. Intent.

The uphill duplex form type is intended for lots with steep slopes where an alley is neither provided nor feasible. The form type provides for two-household buildings, with each dwelling unit located on its own lot ("duplex lot"), that fit in a traditional neighborhood context, even though the garage may face the street.

b. Lot Standards.

1. Min. duplex lot area 3,200 s.f.
2. Min. duplex lot frontage 46 ft.
3. Min. duplex lot depth 65 ft.

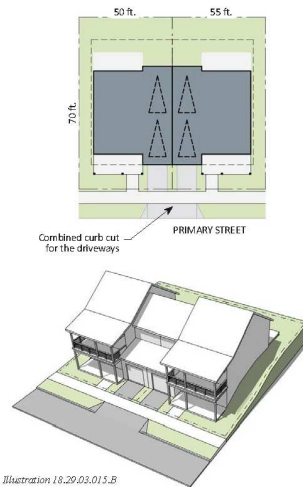


Illustration 18.29.03.015.B
Illustration 18.29.03.015.B: Lot diagram and bird's-eye view perspective of two adjoining uphill duplex lots.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of duplex building 3,800 s.f.
2. Max. duplex lot coverage 65%
3. Max. building height 3 stories/35 ft.
4. Max. number of dwelling units . . . 1 per duplex lot

d. Setbacks.

1. Primary street 10 ft. min.
2. Porch at primary street 4 ft. min.
3. Side street 8 ft. min.
4. Porch at side street 4 ft. min.
5. Interior side lot line -
 - A. Exterior wall 5 ft. min.
 - B. Party wall 0 ft. min.
6. Rear lot line 10 ft. min.

e. Porch.

In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.

f. Additional Standards.

1. The uphill duplex form type is permitted only on lots with no alley that have a slope of 10 percent or more.
2. The driveway at the front lot line shall not be wider than 9 ft. per lot.
3. Garage door width shall not exceed 9 ft. on each lot.
4. All garage doors that face a primary street or side street shall be set back at least 20 ft. from the lot line that is coterminous with the street that the garage door faces.

3. COTTAGE DUPLEX

a. Intent and Special Characteristics.

1. **Intent.** The cottage duplex form type provides for the development of a two-household dwelling unit, each located on its own lot ("duplex lot").
2. **Special Characteristics.** The cottage duplex lot has three building envelope areas (BEAs):
 - A. Front BEA** 55%
 - B. Middle BEA** 20%
 - C. Rear BEA** 25%

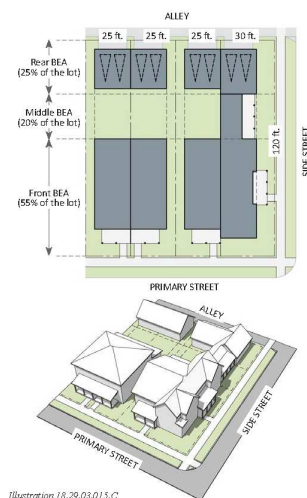


Illustration 18.29.03.015.C

Illustration 18.29.03.015.C: Lot diagram and bird's-eye view perspective of two cottage duplex buildings located on four lots: one on the street corner, the other three on the neighboring interior lots.

b. Lot Standards.

1. Min. duplex lot area 2,500 s.f.
2. Min. duplex lot frontage 25 ft.
3. Min. duplex lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of duplex building 3,600 s.f.
2. Max. lot coverage by BEA -
 - A. Front BEA** 65% max.
 - B. Middle BEA on corner lot** ... 50% max.

- C. Middle BEA on interior lot . . no bldg. allowed
- D. Rear BEA. . . . not specifically restricted
- 3. Max. building height by BEA -
 - A. Front BEA. 2 stories/35 ft.
 - B. Middle BEA -
 - i. Corner duplex lot: 1 story/18 ft.
 - ii. Interior duplex lot: no bldg. allowed
 - C. Rear BEA 1½ stories/32 ft.
- 4. Max. no. of dwelling units . . 1 per duplex lot
- d. Setbacks.

Setback	Min. Distance by Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

- e. Porch.
 - 1. In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
 - 2. The porch and the primary entrance of dwelling units on street corner duplex lots shall face the side street.
- f. Additional Standards.
 - 1. The cottage duplex form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
 - 2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

4. SIDE-DRIVE COTTAGE DUPLEX

a. Intent and Special Characteristics.

1. Intent. The side-drive cottage duplex form type provides for the development of a two-household building, with each dwelling unit on its own lot ("duplex lot").
2. Special Characteristics. The side-drive cottage duplex lot has three building envelope areas (BEAs):
 - A. Front BEA 55%
 - B. Middle BEA 20%
 - C. Rear BEA 25%

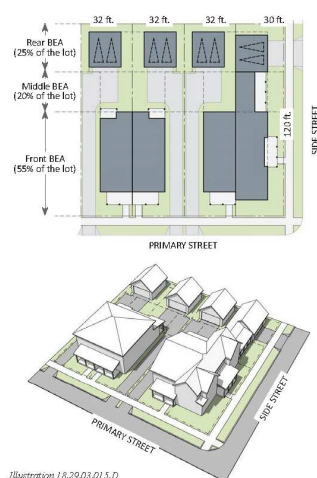


Illustration 18.29.03.015.D

Illustration 18.29.03.015.D: Lot diagram and bird's-eye view perspective of two Side-Drive Cottage Duplex buildings located on four lots: one on the street corner, the other three on the neighboring interior lots.

b. Lot Standards.

1. Min. duplex lot area 3,000 s.f.
2. Min. duplex lot frontage 30 ft.
3. Min. duplex lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of duplex building 3,600 s.f.
2. Max. lot coverage by BEA -
 - A. Front BEA 65%
 - B. Middle BEA corner lot 50%

C. Middle BEA interior lot . . . no building allowed

D. Rear BEA not specifically restricted

3. Max. height by BEA -

- A. Front BEA 2 stories/35 ft.
- B. Middle BEA corner lot 1 story/18 ft.
- C. Middle BEA interior lot . . . no building allowed
- D. Rear BEA 1½ stories/32 ft.

4. Max. no. of dwelling units . . 1 per duplex lot

d. Setbacks.

Setback	Min. Distance by Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	8 ft.
Porch at side street	N/A	4 ft.
Interior side lot line—		
Exterior wall, front BEA	12 ft.	N/A
Exterior wall, rear BEA	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line	5 ft.	5 ft.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on corner duplex lots shall face the side street.

f. Additional Standards.

1. The side-drive duplex form type is permitted only on lots with no alley access along the rear lot line. Side-loaded alleys must serve as the access if the lot is not located on a street corner.

2. Garages on corner lots shall be accessed by the side street unless the City Engineer determines that alternative access is preferable for traffic safety purposes.
3. All garage doors that face a street shall be set back at least 20 ft. from the lot line that is coterminous with the street that the garage door faces.
4. The driveway shall not be wider than 10 ft. on the front lot line, not be wider than 16 ft. on the side street lot line.

5. COMPACT COTTAGE DUPLEX

a. Intent.

The compact cottage duplex form type provides for the development of a two-household building, with each dwelling unit on its own lot ("duplex lot").

b. Lot Standards.

1. Min. duplex lot area 1,750 s.f.
2. Max. duplex lot area 2,800 s.f.
3. Min. duplex lot frontage 25 ft.
4. Max. duplex lot depth 90 ft.
5. Min. duplex lot depth 60 ft.

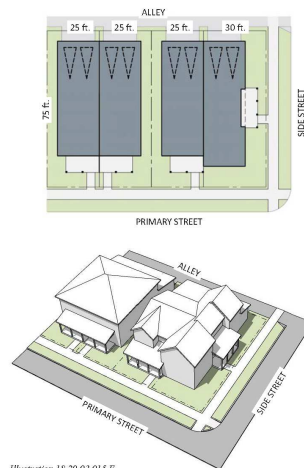


Illustration 18.29.03.015.E
Illustration 18.29.03.015.E: Lot diagram and bird's-eye view perspective of two Compact Cottage Duplex buildings located on four lots: one on the street corner, the other three on the neighboring interior lots.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of duplex building
3,600 s.f.
2. Max. building height 2 stories/35 ft.
3. Max. no. of dwelling units 1 per duplex lot

d. Setbacks.

Setback	Min. Distance by Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.
Interior side lot line-		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the core, transition, and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the primary entrance of dwelling units on corner duplex lots shall face the side street.

f. Additional Standards.

1. The compact cottage duplex form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.016 DUPLEX FORM TYPES—DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section shall apply to the duplex form types (listed below for ease of reference):

1. Village duplex.
2. Uphill duplex.
3. Cottage duplex.
4. Side-drive cottage duplex.
5. Compact cottage duplex.

- b. Chapter 18.40 also applies to duplex form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to create a varied yet unified building presence at the block level when viewed from the pedestrian realm, and to reduce over-articulation of the building facades facing the front and side streets.

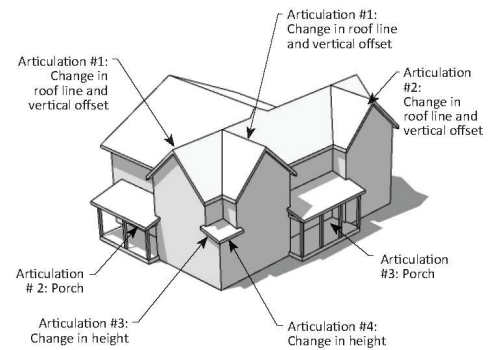


Illustration 18.29.03.016.A

Illustration 18.29.03.016.A: A corner duplex building addressing both streets with well-articulated facades. The narrower facade (<24 ft.) accommodates three articulations, and the wider facade (>24 ft.) accommodates four articulations.

- b. Requirements.

1. The exterior of the duplex building shall differentiate the individual units through the use of at least two of the three following massing articulations along the front facade of the building:
 - A. Substantially different roof lines.
 - B. Different porch or entry configurations (e.g., recessed vs. projecting front porches).
 - C. An offset of at least three feet in the front building plane and differentiates the units.
2. For buildings less than 24 feet in width, the primary building facade shall have no more than three articulations.
3. For buildings greater or equal to 24 feet in width, the primary facade shall have no more than five articulations. [See illustration 18.29.03.016.A.]

3. PORCH CHARACTERISTICS

- a. Intent. The intent of the porch standards is to create pronounced first-story building articulations and to create a transition between the pedestrian realm and the residential living space.

b. Requirements.

1. Front porches shall provide direct access to the interior living space.
2. The porch shall not be elevated more than one step down from the finished floor of the home.

4. EXTERIOR MATERIALS

a. Intent. The intent of the exterior materials standards is to use materials in a manner that offer simplistic, well-designed buildings, while also avoiding the creation of overwhelming and cluttered facades with too many materials.

b. Requirements.

1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, [cementitious] siding, or concrete). Siding patterns shall be one of the following: Horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
2. Material and color changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least two feet above the foundation, so long as that change is along the entire length of the facade.
3. No more than four cladding materials are allowed.
4. All public facing facades shall utilize a comparable composition of color, materials, and textures.

c. Guidelines.

1. In general, the lighter materials should be placed above those of heavier weight.
2. Heat reflective roof materials should be installed to reduce heat islands. Metal, high

albedo (light colored) or minimum 29 SRI (Solar Reflective Index) roofing materials qualify.

5. ACCESSORY DWELLING UNITS

Accessory dwelling units are allowed as provided in section 18.28.240.

(Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.017 ROW HOUSE FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT AND USE OF FORM TYPE

- a. The row house form types are provided to:
 1. Permit multiple-household unit developments through large-scale form types.
 2. Allow efficient use of land through use of attached household units.
 3. Promote less-intense, less repetitive multi-household dwelling designs.
 4. Encourage compact urban forms by eliminating side yards and promoting the use of front and rear yards.
- b. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific regulatory tools used for row house form types.
- b. Multiple Building Envelope Areas (BEAs) on a Lot. Multiple BEAs are established at the front, middle, and rear of a lot to:
 1. Ensure a back yard is provided for interior lots. This repeats the existing pattern of development for buildings constructed between the 1850s and 1960s.
 2. Increase natural light throughout the development. [See illustration 18.29.03.017.A.]

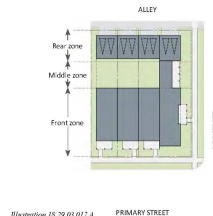


Illustration 18.29.03.017.A

Illustration 18.29.03.017.A: A lot diagram example with three building envelope areas (front, middle, rear), in which different height, setback, and lot coverage requirements apply.

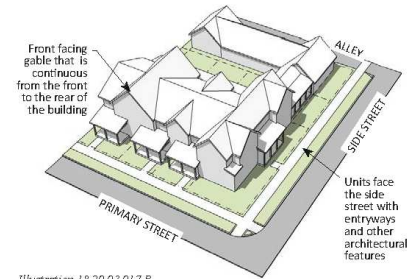


Illustration 18.29.03.017.B

Illustration 18.29.03.017.B: A four-unit row house building. The highest point at the roof is the front facing gable that goes from the front to the rear of the building. The corner unit faces the side street and has a "dumbbell" form with a single story connector.

- c. Building Height. Building height is limited by number of stories and in linear feet to:
 1. Encourage steep gable or hip roof forms that are common in existing buildings that developed in Golden between the 1850s and 1960s.
 2. Discourage maximizing building height to fit a square, vertical-building envelope.
 3. Provide enough building height to encourage front-facing major gable roofs that can be continuous from front to back. [See illustration 18.29.03.017.B.]
 4. Encourage creative design.
 5. Allow for flexibility for high-sloped properties that are otherwise hampered by building stepbacks.
- d. Requirements for Corner Lots. Some row house form types require the corner unit to face/provide entry to the side street (if any) to:
 1. Avoid blank side facades at the side street; and
 2. Ensure the design of the building is articulated along all public facing rights-of-way. [See illustration 18.29.03.017.B.]

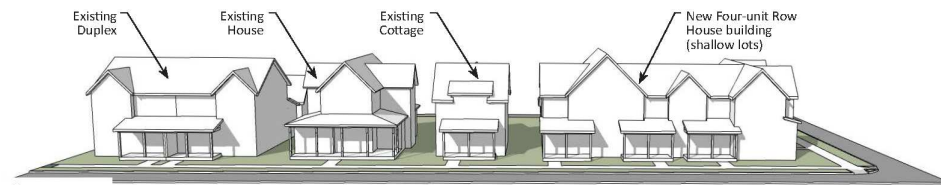


Illustration 18.29.03.017.C

Illustration 18.29.03.017.C: Above is an example of a block face where different building types are employed side-by-side, including a duplex building, a house, a cottage and a four-unit row house building. Shallow lot row houses are more easily integrated with existing buildings to promote preservation. Similar elements of the building massing, such as front facing gables and dormers, porches in similar disposition create compatibility between these different forms.

- e. **Shallow Lot Row House Form Types.** Shallow lots are permitted for some row house form types in order to allow for the integration of row houses into blocks with shallow lots. [See illustration 18.29.03.017.C.]
- f. **Front Porch.** Front porch requirements are intended to:
 1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) and decrease the building's perceived scale and massing.
 2. Create consistency among units within a row house form type.
 3. Provide transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by decreasing the distance between these areas.
 4. Maintain the front porch as a common building element, which is found in existing developments constructed between the 1850s and 1960s.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.018 ROW HOUSE FORM TYPES - FORM STANDARDS

1. VILLAGE TRIPLEX

a. Intent and Special Characteristics.

1. Intent. The village triplex form type provides for the development of three dwelling units in a single building, with each located on its own lot ("row lot").
2. Special Characteristics. The village triplex lot has three building envelope areas (BEAs):

- A. Front BEA 55%
- B. Middle BEA 20%
- C. Rear BEA 25%

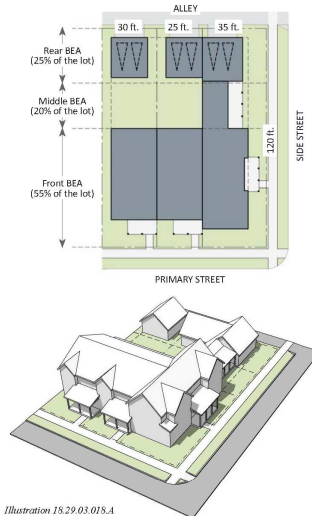


Illustration 18.29.03.018.A

Illustration 18.29.03.018.A: Lot diagram and bird's-eye view perspective of a village triplex building located on three lots: one on the street corner, the other two on the adjoining interior lots.

b. Lot Standards.

1. Min. row lot area 2,500 s.f.
2. Min. row lot frontage 25 ft.
3. Min. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of triplex building 6,000 s.f.

2. Max. height by BEA -

- A. Front BEA 2 stories/35 ft.
- B. Middle BEA corner lot 1 story/18 ft.
- C. Middle BEA interior lot no bldg. allowed
- D. Rear BEA 1½ stories/32 ft.

3. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location.

Setback	Min. (Max.) Setback by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft. (20 ft.)	7 ft. (20 ft.)
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft. (20 ft.)
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the transition and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on street corner lots shall face the side street.

f. Additional Standards.

1. The village triplex form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

2. COTTAGE TRIPLEX

a. Intent and Special Characteristics.

1. Intent. The cottage triplex form type provides for the development of three dwelling units in a single building, with each located on its own lot ("row lot").
2. Special Characteristics. The cottage triplex lot type has three building envelope areas (BEAs):

- A. Front BEA 55%
- B. Middle BEA 20%
- C. Rear BEA 25%

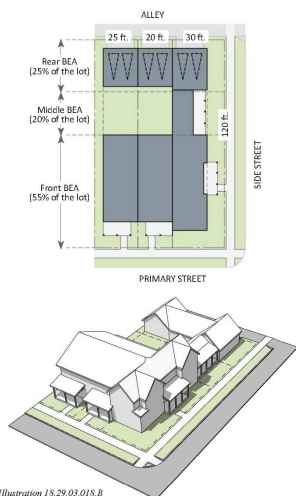


Illustration 18.29.03.018.B
Illustration 18.29.03.018.B: Lot diagram and bird's-eye view perspective of a cottage triplex form type developed on three row lots: one on the street corner, the other two on the adjoining interior row lots.

b. Lot Standards.

1. Min. row lot area 2,000 s.f.
2. Min. row lot frontage 20 ft.
3. Min. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of triplex building 5,400 s.f.
2. Max. height by BEA -
 - A. Front BEA 2 stories/35 ft.
 - B. Middle BEA corner lot 1 story/18 ft.

C. Middle BEA interior lot no bldg. allowed

D. Rear BEA 1 story/24 ft.

3. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location.

Setback	Min. (Max.) Distance by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft. (20 ft.)	7 ft. (20 ft.)
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft. (20 ft.)
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall)	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the transition and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on street corner row lots shall face the side street.

f. Additional Standards.

1. The cottage triplex form type is permitted only at lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

3. COMPACT COTTAGE TRIPLEX

a. Intent.

The compact cottage triplex form type provides for the development of three dwelling units in a single building, with each located on its own lot ("row lot").

b. Lot Standards.

1. Min. row lot area 1,300 s.f.
2. Max. row lot area 2,800 s.f.
3. Min. row lot frontage 20 ft.
4. Max. row lot depth 90 ft.

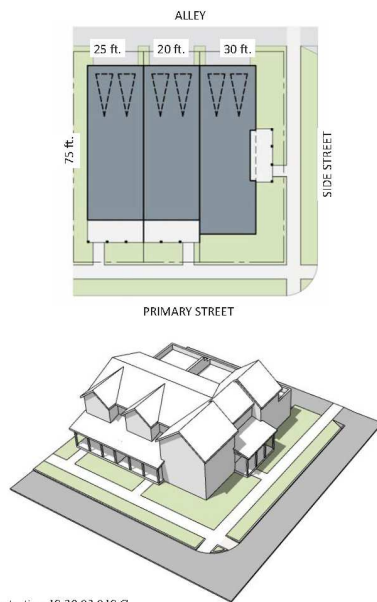


Illustration 18.29.03.018.C
Illustration 18.29.03.018.C: Lot diagram and bird's-eye view perspective of a compact cottage triplex building located on three row lots: one on the street corner, the other two on the adjoining interior row lots.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of triplex building 5,400 s.f.
2. Max. building height. 2 stories/35 ft.
3. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location.

Setback	Min. (Max.) Distance by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft. (20 ft.)	7 ft. (20 ft.)
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft. (20 ft.)
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the transition and edge form zones, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on street corner row lots shall face the side street.

f. Additional Standards.

1. The compact cottage triplex form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

4. FOUR-UNIT BACK YARD ROW HOUSE

a. Intent and Special Characteristics.

1. Intent. The four-unit back yard row house form type provides for the development of a four-unit building, with each unit located on its own lot ("row lot").
2. Special Characteristics. The four-unit back yard row house lot has three building envelope areas (BEAs):

- A. Front BEA 55%
- B. Middle BEA 20%
- C. Rear BEA 25%

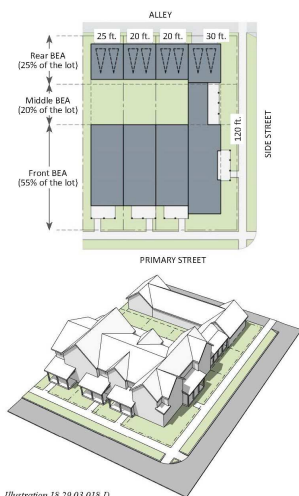


Illustration 18.29.03.018.D
Illustration 18.29.03.018.D: Lot diagram and bird's-eye view perspective of a four-unit back yard row house form type located on four row lots: one on the street corner, the other three on the adjoining interior row lots.

b. Lot Standards.

1. Min. row lot area 1,800 s.f.
2. Min. row lot frontage 20 ft.
3. Min. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of four-unit building 8,000 s.f.
2. Max. height by BEA -
 - A. Front BEA 2 stories/35 ft.
 - B. Middle BEA corner lot 1 story/18 ft.

C. Middle BEA interior lot no bldg. allowed

D. Rear BEA 1½ stories/32 ft.

3. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location.

Setback	Min. (Max.) Distance by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft. (20 ft.)	7 ft. (20 ft.)
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft. (20 ft.)
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the edge form zone, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on street corner row lots shall face the side street.

f. Additional Standards.

1. The four-unit back yard row house building form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

5. FOUR-UNIT COMPACT ROW HOUSE

a. Intent.

The four-unit back yard row house form type provides for the development of a four-unit building, with each unit located on its own shallow lot ("row lot").

b. Lot Standards.

1. Min. row lot area 1,300 s.f.
2. Max. row lot area 2,800 s.f.
3. Min. row lot frontage 20 ft.
4. Max. row lot depth 90 ft.

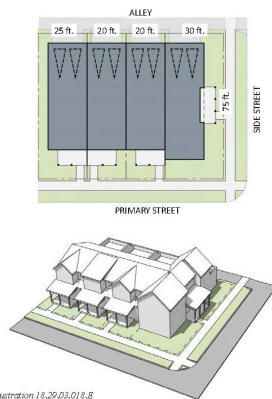


Illustration 18.29.03.018.B
Illustration 18.29.03.018.B: Lot diagram and bird's-eye view perspective of four-unit compact row house building located on four row lots: one on the street corner, the other three on the adjoining interior row lots.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area of four-unit building 7,200 s.f.
2. Max. building height. 2 stories/35 ft.
3. Max. no. of dwelling units 1 per lot

d. Setbacks by Row Lot Location.

Setback	Min. Distance by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.

Setback	Min. Distance by Row Lot Location	
	Interior	Street Corner
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Porch.

1. In the edge form zone, a porch of at least 100 s.f. in area facing the primary street, or, if present, the side street, is required.
2. The porch and the entrance of dwelling units on street corner row lots shall face the side street.

f. Additional Standards.

1. The four-unit compact row house form type is permitted only at lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.

6. BACKYARD ROW HOUSE (FIVE OR MORE UNITS)

a. Intent and Special Characteristics.

1. Intent. The back yard row house (five or more units) form type provides for the development of a multi-household building, with each attached dwelling unit located on its own lot ("row lot").

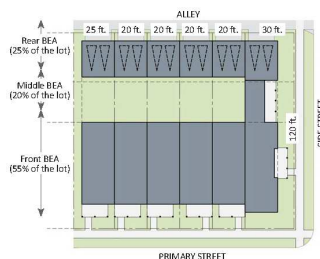


Illustration 18.29.03.018.F

Illustration 18.29.03.018.F: Lot diagram and bird's-eye view perspective of a six-unit back yard row house building form on six row lots: one on the street corner, the other five on the adjoining interior row lots.

2. Special Characteristics. The back yard row house lot has three building envelope areas (BEAs):

- A. Front BEA 55%
- B. Middle BEA 20%
- C. Rear BEA 25%

b. Lot Standards.

1. Min. row lot area 1,800 s.f.
2. Min. row lot frontage 20 ft.
3. Min. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. building height by BEA -
 - A. Front BEA 2 stories/38 ft.
 - B. Middle BEA corner lot 1 story/18 ft.
 - C. Middle BEA interior lot no bldg. allowed
 - D. Rear BEA 1½ stories/32 ft.
2. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location.

Setback	Min. Setback by Row Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Additional Standards.

1. The back yard row house building form type is permitted only at lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).

2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. The entrances of dwelling units on street corner row lots shall face the side street.

7. STAGGERED BACKYARD ROW HOUSE (FIVE OR MORE UNITS)

a. Intent and Special Characteristics.

1. Intent. The staggered back yard row house form type is intended to reduce the perception of building mass as perceived from the street. This form type provides for the development of five or more dwelling units, each on its own lot ("row lot").
2. Special Characteristics. The staggered back yard row house lot type has:

A. Two "lot versions" (labeled as A and B in illustration 18.29.03.018.G, below); and

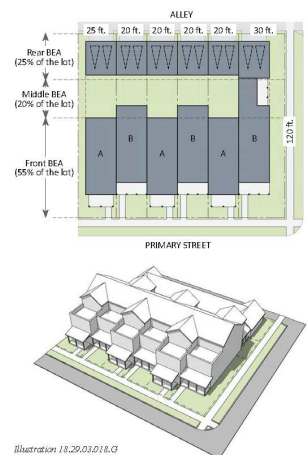


Illustration 18.29.03.018.G

Illustration 18.29.03.018.G: Lot diagram and bird's-eye view perspective of a staggered back yard row house building form type, located on six row lots: one on the street corner, the other five on the adjoining interior row lots.

B. Three building envelope areas (BEAs)—

- i. Front BEA: 55%
- ii. Middle BEA: 20%
- iii. Rear BEA: 25%

b. Lot Standards.

1. Min. row lot area 1,800 s.f.
2. Min. row lot frontage 20 ft.
3. Min. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. building height -
 - A. Front BEA 3 stories/45 ft.
 - B. Middle BEA corner lot 1 story/18 ft.
 - C. Middle BEA interior lot
 - i. Lot version A: no bldg. allowed
 - ii. Lot version B: [See e.4.]
 - D. Rear BEA 1½ stories/32 ft.
2. Max. no. of dwelling units 1 per row lot

d. Setbacks by Row Lot Location and Lot Version.

Setback	Min. Setback by Row Lot Location	
	Interior	Street Corner
Primary street (1st and 2nd stories)—		
Lot version A	15 ft.	15 ft.
Lot version B	23 ft.	23 ft.
Primary street (3rd story)—		
Lot version A	27 ft.	15 ft.
Lot version B	35 ft.	35 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Additional Standards.

1. The staggered back yard row house building form type is permitted only at lots with alley access. No curb cuts to serve a row lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. The lot versions shall be staggered in a manner such that the same lot version is not situated side by side more than two times.

4. Primary residential buildings on version B lots may encroach into the middle BEA up to 8 ft. at all stories.

8. COMPACT ROW HOUSE (FIVE OR MORE UNITS)

a. Intent.

The compact row house (five or more units) form type provides an opportunity for building smaller units on smaller and shallower lots. This form type provides for the development of five or more attached dwelling units, each located on its own lot ("row lot").

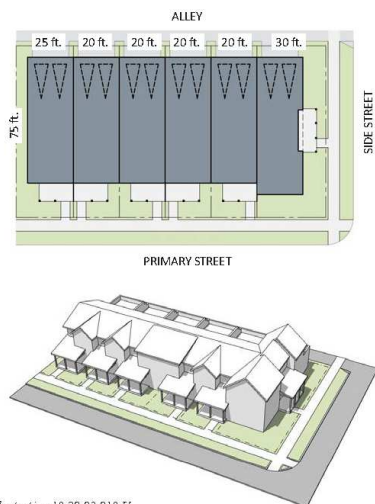


Illustration 18.29.03.018.H

Illustration 18.29.03.018.H: Lot diagram and bird's-eye view perspective of a compact row house building (five or more units) form type, developed on six row lots: one on the street corner, the other five on the adjoining interior row lots.

b. Lot Standards.

1. Min. row lot area 1,300 s.f.
2. Max. row lot area 2,800 s.f.
3. Min. row lot frontage 20 ft.
4. Max. row lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. building height. 2 stories/35 ft.
2. Max. no. of dwelling units 1 per row lot

d. Setbacks by Lot Location.

Setback	Min. Setback by Lot Location	
	Interior	Street Corner
Primary street	15 ft.	10 ft.
Porch at primary street	7 ft.	7 ft.
Side street	N/A	10 ft.
Porch at side street	N/A	4 ft.
Interior side lot line—		
Exterior wall	5 ft.	N/A
Party wall	0 ft.	0 ft.
Rear lot line/alley	5 ft.	5 ft.

e. Additional Standards.

1. The compact row house building form type is permitted only at lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. The entrance to dwelling units on street corner lots shall face the side street.

9. COMPACT URBAN ROW HOUSE (FIVE OR MORE UNITS)

a. Intent.

The compact urban row house (five or more units) form type provides an opportunity for building larger row houses on smaller and shallower lots in urban contexts. This form type provides for the development of five or more attached dwelling units, each located on its own lot ("row lot").

b. Lot Standards.

1. Min. row lot size 1,300 s.f.
2. Max. row lot size 2,800 s.f.
3. Min. row lot frontage 20 ft.

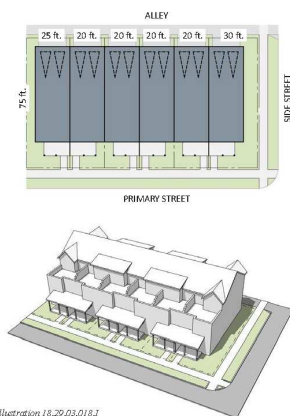


Illustration 18.29.03.018.I
Illustration 18.29.03.018.I: Lot diagram and bird's-eye view perspective of a compact urban row house (five or more units) building form type located on six lots: one on the street corner, the other five on the adjoining interior lots.

c. Building Size and Dwelling Unit Limitations.

1. Max. building height. 3 stories/45 ft.
2. Max. no. of dwelling units 1 per row lot

d. Setbacks.

1. Primary street.
 - A. 1st and 2nd stories: 15 ft.
 - B. 3rd story: 27 ft.
2. Porch at primary street 7 ft.
3. Side street 8 ft.

4. Porch at side street 4 ft.

5. Interior side lot line -

- A. Exterior wall 5 ft.
- B. Party wall 0 ft.

6. Rear lot line 5 ft.

e. Additional Standards.

The compact urban row house (five or more units) form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).

f. Rotation Option.

The compact urban row house (five or more units) form type may be rotated 90 degrees to face the side street [See illustration 18.29.03.018.K] (in which case lot frontage requirements may be satisfied using common court frontage), provided that:

1. Parking access is provided by an alley spur; and
2. Landscaping is provided between the end of the alley spur and the primary street; and
3. Primary street setbacks (including porch setbacks) are applied to both the primary street and the side street; and
 - A. If there are no buildings between the alley spur and the adjoining lot that is not part of the proposed development, a six-foot privacy fence is installed along the adjoining lot line; or
 - B. If there is an additional compact urban row house (five or more units) building sharing the alley spur and facing the interior side lot line [See illustration 18.29.03.018.K], a common court that complies with the standards set out in section 18.29.03.013(2) shall be provided, and the primary street setback (including porch setbacks) shall be applied to the interior side lot line.

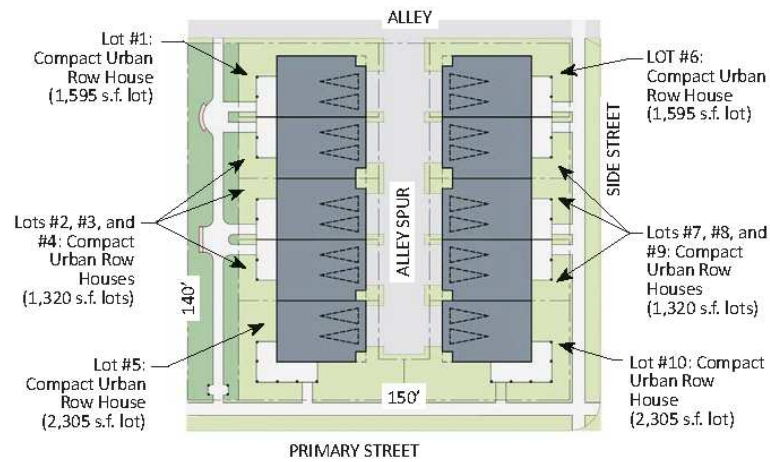


Illustration 18.29.018.K

Illustration 18.29.018.K: Above is an example of a compact urban row house (5 or more units) form, turned 90 degrees from the primary street frontage. This example shows 10 lots (shown with 24-foot widths).

18.29.03.019 ROW HOUSES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section applies to the row house form types (listed below for ease of reference):
 1. Village triplex.
 2. Cottage triplex.
 3. Compact cottage triplex.
 4. Four-unit back yard row house.
 5. Four-unit compact row house.
 6. Back yard row house.
 7. Staggered back yard row house.
 8. Compact row house.
 9. Compact urban row house.
- b. Chapter 18.40 also applies to row house form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division V. The guidelines are used in the administration of certain parts of division V, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to use facade articulation to reduce the scale of the building (both in building height, to make the building look shorter, and length, to make the building look as if it was composed of smaller buildings).
- b. Requirements.
 1. Each unit within the row house development shall have differentiated articulation in relation to the building facade. Each public facing unit's facade shall not repeat a stan-

dard set of articulations across the entire development. [See illustration 18.29.03.019.A.]

2. The primary building facade facing the primary street shall have a number of massing articulations within the ranges set out in the following table (the number of massing articulations set forth in the table applies to the building face, not the individual unit face). [See illustration 18.29.03.019.A.]

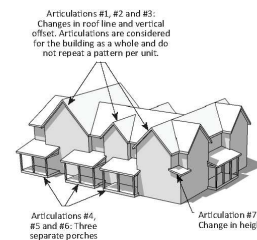


Illustration 18.29.03.019.A

Illustration 18.29.03.019.A: Above is an example for a well-articulated four-unit row house building located on a street corner. The building addresses both streets; the end unit's porch and main entrance face the side street (on the left side of the image). Each row house unit has a unique facade and all four create a balanced composition for the entire building.

Number of Units in Row House	Number of Massing Articulations	
	Min.	Max.
Three	4	7
Four	5	8
Five	6	9
Six	7	10
Seven or more	8	12

3. For units with side street frontage, the number of massing articulations facing the side street shall not be less than three nor greater than five.

3. PORCH CHARACTERISTICS

- a. Intent. The intent of the porch standards is to create pronounced first-story building articulations and to create a transition between the pedestrian realm and the residential living space.
- b. Requirements.
 1. Front porches shall provide direct access to the interior living space.

2. The porch shall not be elevated more than one step down from the finished floor of the home.
3. The unit(s) facing the side street of a row house development shall construct the porch to face the side street.

c. Guidelines.

1. Continuous porches should be avoided especially for buildings with four or more units. Porches that are not attached to an adjacent unit's porch are encouraged. [See illustration 18.29.03.019.B.]
2. The side street facing unit of a row house building at a corner lot should have a wrapped porch, when feasible.

4. EXTERIOR MATERIALS

- a. Intent. The intent of the exterior materials standards is to break up building length and height and create unity on an overall facade.
- b. Requirements.
 1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, cementous siding, or concrete). Siding patterns shall be one of the following: horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
 2. Material changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least 2 ft. above the foundation, so long as that change is along the entire length of the facade.
 3. No more than four cladding materials are allowed.
 4. All public facing facades shall utilize a comparable composition of color, materials, and textures.

c. Guidelines.

1. Use contrast (in material or in color) in a way to break up the building length and highlight smaller components of the massing to make the building look like a composition of smaller buildings. [See illustration 18.29.03.019.B.]
2. In general the lighter materials should be placed above those of heavier weight.



Illustration 18.29.03.019.B
Illustration 18.29.03.019.B: Above is an example where change in material (or in color) is used to break up the length of the building and make the large building look like a composition of smaller buildings.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.020 MAIN STREET FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT AND USE OF FORM TYPE

- a. The main street form types are provided to:
 - 1. Allow for attached multi-household buildings to be located close to the front lot line and sidewalk, including two-, three-, four-, and five-story formats.
 - 2. Provide for high-transparency storefronts that are directly adjacent to sidewalks on the first story of new buildings.
 - 3. Enhance pedestrian corridors that are adjacent to commercial development through the use of design treatments and street furniture such as awnings, benches, planters, and other amenities that reinforce pedestrian activity.
- b. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific regulatory tools used for main street form types.
- b. "Build-to" Requirements. Minimum and maximum setback requirements are established along primary and side street lot lines in order to ensure that buildings are consistently located close to the sidewalk, providing a sense of enclosure along the street, and in combination with street-level transparency requirements, enhancing the pedestrian experience by providing visual interest and security.
- c. Secondary Setbacks. Additional, secondary front setbacks are required for main street form types with frontages of 125 ft. or more, in order to:
 - 1. Maintain a sense of scale along the block by breaking up the building mass as experienced by the pedestrian;

- 2. Create or maintain plazas framed by large buildings, which may serve as pedestrian activity areas; and
- 3. Create opportunities for additional ground floor retail frontages.
- d. Upper Floor Setbacks. Upper-story setbacks (a.k.a. step-backs) are required for main street form types in order to:
 - 1. Maintain a sense of scale along the block by mitigating the impact of building mass as experienced by the pedestrian;
 - 2. Creating opportunities to enhance the outdoor areas that are available for use by inhabitants of upper building floors, by way of decks, terraces, and balconies; and
 - 3. Enhancing the aesthetics of buildings by avoiding monolithic presentations of building mass.
- e. Off-Street Parking. Restrictions on the design and location of off-street parking are imposed in order to:
 - 1. Encourage the maintenance and establishment of small businesses; and
 - 2. Ensure that the continuity of pedestrian-friendly commercial and mixed-use frontages is not interrupted by surface parking lots and parking access points that may create psychological barriers to movement or increase the probability of vehicular-pedestrian conflicts.

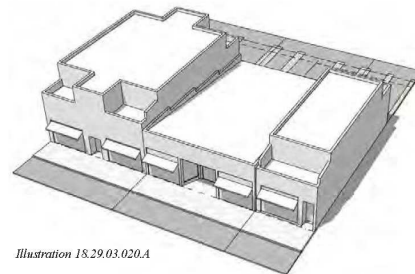


Illustration 18.29.03.020.A

Illustration 18.29.03.020.A: One of the most essential characteristics of the main street form types is that they create a strong building wall along the sidewalk.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.021 MAIN STREET FORM TYPES - FORM STANDARDS

1. MAIN STREET NARROW

a. Intent.

The main street narrow form type is the most traditional and predominate among the form types in the main street form zones. This form type typically has a lot width that is a multiple of 25 ft., with parking at the rear of the lot, in integrated garages or attached parking structures, in basements, or off-site.

b. Lot Standards.

1. Min. lot frontage 20 ft.
2. Max. lot frontage 125 ft.

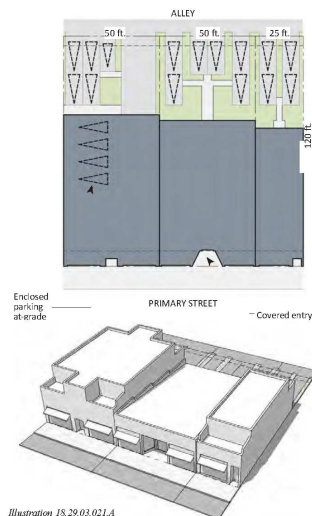


Illustration 18.29.03.021.A
Illustration 18.29.03.021.A: Lot diagram and bird's-eye view perspective of a main street narrow building form type.

c. Building Size.

1. Max. building height. 3 stories/38 ft.

d. Setbacks.

Setback	Distance	
	Min.	Max.
Primary street and side street—		
1st and 2nd stories	0 ft.	8 ft.
3rd story, 1/3 of frontage	0 ft.	N/A
3rd story, 2/3 of frontage	12 ft.	N/A
Interior side lot line—		

Setback	Distance	
	Min.	Max.
Adjacent lot in main street A or main street B form zone	0 ft.	N/A
Adjacent lot in any other form zone	5 ft.	N/A
Rear lot line/alley	5 ft.	N/A

e. Balconies and Terraces.

1. Within the main street A and main street B form zones, each upper floor dwelling unit shall have a balcony (covered or uncovered) that is at least 80 s.f. in area.
2. Any part of the roof of any floor (except the top floor) may be used as an uncovered terrace, which, if so used, is considered a balcony for the purposes of subsection e. 1, above.

f. Additional Standards.

1. Within the main street A and main street B form zones, no curb cuts are allowed on the primary street or side street.
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No dwelling units are permitted on the 1st story within 18 ft. of a front or side street lot line.
4. No parking is permitted within the 1st story within 18 ft. of a front or side street lot line.

2. MAIN STREET WIDE

a. Intent.

The main street wide form type is intended to accommodate larger businesses along with office and/or residential uses located on upper floors. The upper story setbacks and plaza setback are intended to ensure that the building fits into the Main Street context. This form type has a street frontage of at least 125 ft., with parking at the rear of the building, in integrated garages or attached parking structures, in basements, or off-site.

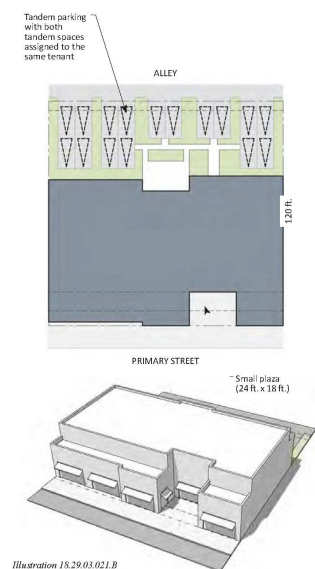


Illustration 18.29.03.021.B
Illustration 18.29.03.021.B: Lot diagram and bird's-eye view perspective of a main street wide building form type.

b. Lot Standards.

1. Min. lot area 9,000 s.f.
2. Min. lot frontage 125 ft.

c. Building Size.

1. Max. building height. 3 stories/38 ft.

d. Setbacks.

Setback	Distance	
	Min.	Max.
Primary street and side street—		

Setback	Distance	
	Min.	Max.
All stories, along 20—30 ft. of frontage	18 ft.	N/A
1st and 2nd stories, rest of frontage	0 ft.	8 ft.
3rd story, rest of frontage	12 ft.	N/A
Side Street—		
1st and 2nd stories	0 ft.	8 ft.
3rd story	12 ft.	N/A
Interior side lot line—		
Adjacent lot in main street A or main street B form zone	0 ft.	N/A
Adjacent lot in any other form zone	5 ft.	N/A
Rear lot line/alley	5 ft.	N/A

e. Porch.

1. Within the main street A and main street B form zones, each upper floor dwelling unit shall have a balcony (covered or uncovered) that is at least 80 s.f. in area.
2. Any part of the roof of any floor (except the top floor) may be used as an uncovered terrace, which, if so used, is considered a balcony for the purposes of subsection e.1, above.

f. Additional Standards.

1. Within the main street A and main street B form zones, no curb cuts are allowed on the primary street or side street.
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No dwelling units are permitted on the 1st story within 18 ft. of a front or side street lot line.
4. No parking is permitted on the 1st story within 18 ft. of a front or side street lot line.

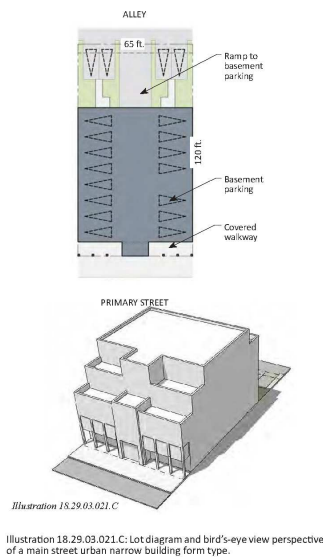
3. MAIN STREET URBAN NARROW

a. Intent.

The main street urban narrow form type is intended to provide for additional density and intensity in locations where it is appropriate. The main street urban narrow form type provides parking in integrated garages or attached parking structures, in basements, at the rear of the lot, or off-site.

b. Lot Standards.

1. Min. lot frontage 50 ft.
2. Max. lot frontage 125 ft.



c. Building Size.

1. Max. building height. 5 stories/55 ft.

d. Setbacks.

Setback	Distance	
	Min.	Max.
Primary street and side street—		
1st, 2nd, and 3rd stories	0 ft.	8 ft.
4th story	12 ft.	N/A
5th story, $\frac{1}{3}$ of frontage	12 ft.	N/A
5th story, $\frac{2}{3}$ of frontage	24 ft.	N/A
Interior side lot line—		

Setback	Distance	
	Min.	Max.
Adjacent lot in main street A or main street B form zone	0 ft.	N/A
Adjacent lot in any other form zone		
1st, 2nd, and 3rd stories	5 ft.	N/A
4th and 5th stories	18 ft.	N/A
Rear lot line/alley	5 ft.	N/A

e. Porch.

1. Within the main street B form zone, each upper floor dwelling unit shall have a balcony (covered or uncovered) that is at least 80 s.f. in area.
2. Any part of the roof of any floor (except the top floor) may be used as an uncovered terrace, which, if so used, is considered a balcony for the purposes of subsection e.1, above.

f. Additional Standards.

1. No curb cuts are allowed on the primary street or side street.
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No dwelling units are permitted on the first story within 18 ft. of a front or side street lot line.
4. No parking is permitted on the ground floor within 18 ft. of a front or side street lot line.

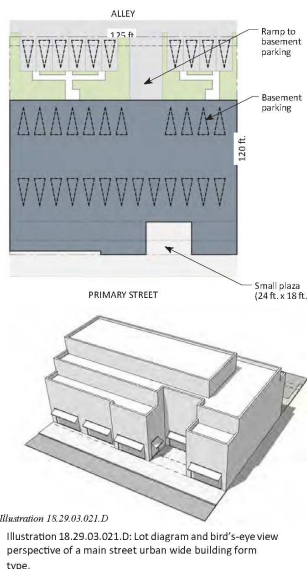
4. MAIN STREET URBAN WIDE

a. Intent.

The main street wide form type is intended to provide for additional density and intensity where it is appropriate. The upper story setbacks as well as the plaza setback are intended to ensure that the building fits into the Main Street context. This form type has a street frontage of at least 125 ft., with parking at the rear of the building, in integrated garages or attached parking structures, in basements, or off-site.

b. Lot Standards.

1. Min. lot area 9,000 s.f.
2. Min. lot frontage 125 ft.



c. Building Size.

1. Max. building height. 5 stories/55 ft.

d. Setbacks.

Setback	Distance	
	Min.	Max.
Primary street and side street—		
1st, 2nd, 3rd, and 4th stories, along 20—30 ft. of frontage	18 ft.	N/A
1st, 2nd, and 3rd stories, rest of frontage	0 ft.	8 ft.

Setback	Distance	
	Min.	Max.
4th story, rest of frontage	12 ft.	N/A
5th story	24 ft.	N/A
Side Street—		
1st, 2nd, and 3rd stories	0 ft.	8 ft.
4th story	12 ft.	N/A
5th story	24 ft.	N/A
Interior side lot line—		
Adjacent lot in main street A or main street B form zone	0 ft.	N/A
Adjacent lot in any other form zone		
1st, 2nd, and 3rd stories	5 ft.	N/A
4th and 5th stories	18 ft.	N/A
Rear lot line/alley	5 ft.	N/A

e. Porch.

1. Each dwelling unit shall have a porch or balcony (covered or uncovered) that is at least 80 s.f. in area.
2. Any part of the roof of any floor (except the top floor) may be used as an uncovered terrace, which, if so used, is considered a balcony for the purposes of subsection e.1, above.

f. Additional Standards.

1. No curb cuts are allowed on the primary street or side street.
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. No dwelling units are permitted on the first story within 18 ft. of a front or side street lot line.
4. No parking is permitted on the first story within 18 ft. of a front or side street lot line.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.022 MAIN STREET FORM TYPES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section applies to the main street form types (listed below for ease of reference):
 - 1. Main Street Narrow.
 - 2. Main Street Wide.
 - 3. Urban Main Street Narrow.
 - 4. Urban Main Street Wide.
- b. Chapter 18.40 also applies to main street form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to utilize simplified articulation standards to promote visual compatibility with the historic street-facing facades, and to reduce the vertical scale of buildings by accentuating the first story elements and diminishing building elements above the 3rd story.
- b. Requirements.
 - 1. Wall plane projections or recessions of at least 2 ft. over a horizontal distance of at least 30 percent of the total facade area:
 - A. In one or more intervals that is a multiple of 25 ft., more or less, to visually reinforce the historic facade widths described in Subsection 6.b.4, below; or

B. In the form of small plazas (as required for main street wide and main street urban wide form types).

- 2. All public facing facades shall articulate a building's vertical massing to accentuate specific stories and diminish the upper-most story treatment, by:

A. Distinguishing the 1st story architecture through use of two of the following tools: color, material, textures, or structural elements. The ground floor shall be anchored to the pedestrian realm to draw the eye from the upper floors.

B. Diminishing the upper-most story of the building through a change in two of the following categories: color, material, texture, roof pitch, or a recession of the total facade [See photo 18.29.03.022.A].

c. Guidelines.

- 1. Provide different accents (by design, indentation, color, and/or material) to highlight entrances for different uses, such as shops and street-level entrances to upper story offices or residences.
- 2. Shopfront garage doors or folding doors should be used when there is an opportunity to expand the indoor use into the sidewalk.

3. PORCH AND BALCONY CHARACTERISTICS

- a. Intent. The intent of the porch and balcony standards is to provide visual interest through the interplay among solids and voids on the facade, and to soften visual and psychological barriers between the interior and exterior of the building.
- b. Guidelines.
 - 1. Balconies (covered or uncovered), terraces, porches, and colonnades should be used to break up the appearance of building mass (both horizontally and vertically) when feasible. The design of these elements should

be differentiated at various locations on the building to further emphasize the breaks in the massing of the building [See photo 18.29.03.022.B, next page].

2. When feasible, uncovered balconies and terraces that are accessible to the upper-most stories should be used to deemphasize the building's height.



Photo 18.29.03.022.A: Above is a good example how various versions of covered balconies either create unity where needed, or break the massing horizontally. This is also a good example of how second story cornice, together with change in material, emphasize the two-story scale and deemphasizes the presence of upper stories.



Photo 18.29.03.022.B: A coffee house with outdoor seating on Washington Avenue. Strong outdoor and indoor relationships support outdoor activity and create presence of life on the sidewalk.

3. Porches should be integrated into the design of perimeter landscaping, streetscaping, and hardscaping.

4. TRANSPARENCY AND BLANK WALLS

- a. Intent. The intent of the transparency standards is to avoid blank walls, promote pedestrian interest, and improve security by providing a visual connection between the building interior and the adjacent sidewalk.
- b. Requirements.
 1. Wall planes that exceed 20 ft. in width that face streets, parks, or plazas shall include fenestration such that:
 - A. Not less than 50 percent of the area of the facade between 2 ft. and 8 ft. above

ground level is transparent (tinted or mirrored glass that diminishes visibility into the building by 50 percent or more is not allowed); and

- B. Not less than 30 percent of the total area of the facade is transparent.
2. No street-facing area of wall plane that is greater than 10 ft. in width and 10 ft. in height (100 s.f. or more) shall be "blank," in that it does not include:
 - A. A substantial change in cladding materials (a simple color change is not sufficient to meet this requirement);
 - B. A window or a door; or
 - C. A column, pilaster, balcony, cornice, shade element (e.g., awning), or other articulation greater than 12 in. in projecting dimension.

5. FACADE CONFIGURATION

- a. Intent. The intent of the facade configuration requirements and guidelines is to preserve and enhance the main street character and architectural integrity of Downtown Golden.
- b. Requirements.
 1. Awnings shall not be back-lit or internally illuminated.
 2. A minimum of 8 ft. of clearance is required between the bottom of an awning and the grade below the awning.
- c. Guidelines.
 1. New construction should incorporate architectural elements from adjacent buildings in terms of opening proportions and primary facade features such as cornices, awnings, transoms, and trims.
 2. Exterior renovations should be complimentary to the unique architectural style of the existing building. The proportions and the character of building openings should be preserved to the extent feasible.

6. EXTERIOR MATERIALS

- a. Intent. The intent of the exterior materials standards is to break up building length and height and create unity on an overall facade.
- b. Requirements.
 - 1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, cementous siding, or concrete). Siding patterns shall be one of the following: horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.



Photo 18.29.03.022.C: Above is a good example where the material and color change emphasizes the two story scale along the sidewalk and deemphasizes the height of the building. The upper floors become less visible as one gets closer to the building. Articulations in the architecture are also provided every 25 to 50 ft. on the first two stories.

- 2. The following materials may be used as accent materials on any facade, provided that they do not cover more than 25 percent of the facade:

- A. Metal panels.

- B. Oversized brick, concrete masonry units, or other similar materials.

- 3. Material changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least 2 ft. above the foundation, so long as that change is along the entire length of the facade.

- 4. No more than four cladding materials are allowed.
- 5. Material and color changes shall be used to de-emphasize building height. [See photo 18.29.03.022.C.]
- 6. Material and color changes shall be used to express the historic 25 ft. and 50 ft. intervals (more or less), of the historic facade widths that are present in Downtown Golden between 11th Street and 14th Street along Washington Avenue. [See photo 18.29.03.022.C.]

- c. Guidelines.

- 1. In general, smooth brick with narrow joints and wood siding with narrow lap should be used for cladding. Stone should be reserved for detailing at cornices and windows and for use at the building base.
- 2. In general, lighter materials should be placed above those of heavier weight.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.023 MIXED-USE FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT AND USE OF FORM TYPE

- a. The mixed-use form types are provided to:
 - 1. Provide additional attainable housing options.
 - 2. Provide additional housing options closely located to urban amenities.
 - 3. Increase opportunities for social and economic diversity within the community of Golden.
- b. Mixed-use forms may include a mix of uses that are allowed by the applicable use zone, but a mix of uses is not a requirement.
- c. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific standards that are applied to mixed-use building form types.
- b. Building Height. Some mixed-use building form types limit the number of stories to promote compatibility with existing buildings that developed between the 1850s and 1960s, specifically those buildings that are two stories in height.
- c. Porches and Balconies. Porch and balcony requirements are imposed on some mixed-use building form types to:
 - 1. Accentuate the first-story elements of a building from the pedestrian realm (right-of-way/sidewalk) and decrease the building's perceived scale and massing.
 - 2. Provide better transition between the front of a building and the pedestrian realm (right-of-way/sidewalk) by decreasing the distance between these areas.

- 3. Maintain the front porch as a common element found in existing buildings, specifically those constructed between the 1850s and 1960s.

- d. Small Mixed-Use Form Types. Small mixed-use building form types are provided to:
 - 1. Ensure compatibility of new commercial, residential, or office uses and buildings into the existing built environment of Golden (existing buildings are typically smaller in scale).
 - 2. Allow for the integration of commercial and office uses close to existing residential neighborhoods through small minimum lot sizes.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.024 MIXED-USE FORM TYPES - FORM STANDARDS

1. MIXED-USE SMALL BUILDING

a. Intent and Special Characteristics.

1. Intent. The intent of the mixed-use small building form type is to provide for mixed-use buildings that are physically compatible in a small-scale neighborhood context. This form may be utilized for residential, nonresidential, or mixes of uses, provided that the uses are allowed in the applicable use zone.

2. Special Characteristics. The mixed-use small building form types have two building envelope areas (BEAs):

A. Front BEA 50%

B. Rear BEA 50%

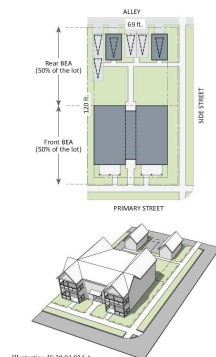


Illustration 18.29.03.024.A
Illustration 18.29.03.024.A: Lot diagram and bird's-eye view perspective of a mixed-use small building form type developed on a street corner lot.

b. Lot Standards.

1. Min. lot area 6,500 s.f.
2. Min. lot frontage 63 ft.
3. Min. lot depth 90 ft.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area per mixed-use small building 4,800 s.f.
2. Max. building height by BEA [See f.3] -
A. Front BEA 2 stories/35 ft.

B. Rear BEA 1 story/20 ft.

3. Max. no. of dwelling units 4 per lot

d. Setbacks.

1. Primary street 15 ft. min.
2. Porch at primary street. 7 ft. min./20 ft. max.
3. Side street 8 ft. min.
4. Porch at side street ... 4 ft. min./20 ft. max.
5. Interior side lot line 5 ft. min. [See f.4]
6. Rear lot line/alley 5 ft. min.

e. Porch.

1. In the edge form zone, at least 100 s.f. of porch space must be provided in area facing the primary street, or, if present, the side street.
2. Two-story porches, or porches under or combined with balconies (covered or uncovered), are also allowed, and may be located within the porch setbacks.

f. Additional Standards.

1. Mixed-use small building form type is permitted only on lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. The principal building shall be located within the front BEA. Accessory buildings and accessory structures shall be located behind the principal building (in either the front or rear BEA).
4. A single-story garage may encroach into the interior side lot line setback if the adjacent lot falls within a form zone that allows one or more of the mixed-use building form types.

2. MIXED-USE COURTYARD BUILDING

a. Intent and Special Characteristics.

1. Intent. The mixed-use courtyard building form type may be utilized for residential, nonresidential, or mixes of uses, provided that the uses are allowed in the applicable use zone.
2. Special Characteristics. The mixed-use courtyard building form type has two building envelope areas (BEAs):

- A. Front BEA 60%
- B. Rear BEA 40%

b. Lot Standards.

1. Min. lot area 9,000 s.f.
2. Min. lot frontage 75 ft.
3. Min. lot depth 110 ft.

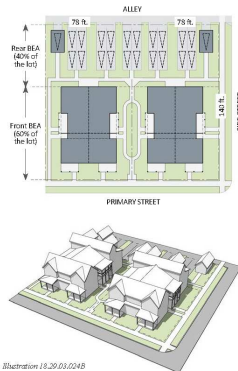


Illustration 18.29.03.024.B

Illustration 18.29.03.024.B: Lot diagram and bird's-eye view perspective of two mixed-use courtyard building form types, developed on two lots: a street corner lot and the adjoining interior lot.

c. Building Size and Dwelling Unit Limitations.

1. Max. total floor area 9,000 s.f. per lot
2. Max. floor area of 3rd floor ... 1,200 s.f. per lot
3. Max. building height by BEA -
 - A. Front BEA 3 stories/45 ft.
 - B. Rear BEA 1 story/20 ft.
4. Max. no. of dwelling units 8 per lot

d. Setbacks by BEA.

Setback	Building Envelope Area	
	Front	Rear
Primary street	15 ft.	N/A
Porch at primary street	7 ft.	N/A
Side street	14 ft.	5 ft.
Porch at side street	7 ft.	N/A
Interior side lot line [See f.4]	14 ft.	5 ft.
Rear lot line/alley	N/A	5 ft.

e. Porch or Covered Balcony.

1. In the edge form zone, each dwelling unit shall have a porch or covered balcony. For not less than half of the dwelling units with outer walls that are within 20 ft. of a front or side street lot line, the porch or covered balcony shall face the street and be at least 50 s.f. in area.
2. Two story porches, or porches under or combined with balconies (covered or uncovered), are also allowed, and may be located within the porch setbacks.

f. Additional Standards.

1. The mixed-use courtyard building form type is permitted only at lots with alley access. No curb cuts to serve a lot are allowed on the primary street or the side street (if present).
2. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
3. The rear BEA shall be used only for accessory buildings and accessory structures.
4. A single-story garage may encroach into the interior, side lot line setback if the adjacent lot falls within a form zone that allows one or more of the mixed-use building form types.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.025 MIXED-USE FORM TYPES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section applies to the mixed-use form types (listed below for ease of reference):
 - 1. Small mixed-use building.
 - 2. Mixed-use courtyard building.
- b. Chapter 18.40 also applies to mixed-use form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. OUTDOOR AMENITIES

- a. Intent. The intent of the outdoor amenities standards is to ensure that mixed-use building forms are enhanced with outdoor spaces that include amenities for the benefit of their occupants.
- b. Requirements.
 - 1. An area equal to 15 percent of the lot size shall be used for outdoor amenities. This area may include:
 - A. Ground-level outdoor areas;
 - B. Balconies that are 100 s.f. in area or larger; and
 - C. Areas of rooftops that are improved with recreational amenities that are available to building occupants.
 - 2. Outdoor amenities include walkways, pedestrian paths, open plazas, terraces, natural drainage ways and drainage ponds, playgrounds, areas with benches, outdoor

furnishings, and other places for sitting, and other areas designed specifically for active or passive recreational use.

- 3. Areas allocated for outdoor amenities shall not include areas that are used for outdoor storage, paved areas that are designed to accommodate motor vehicle uses (e.g., parking, drive aisles, etc.), or areas used for trash and recycling facilities.
- 4. At least 50 percent of ground-level outdoor amenity areas shall be landscaped with living plant material.

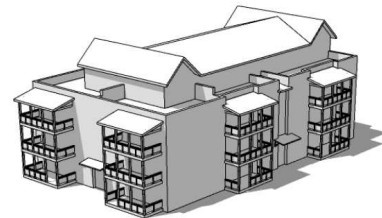


Illustration 18.29.03.025.A

Illustration 18.29.03.025.A: Above is an example for a well-articulated multi-family building. The ground floor units are accessed directly from the sidewalk. The uppermost floor has a setback and roof line is articulated with gable ends. Horizontally, the stacked balconies along with the recessed building wall, break the building into smaller segments and decrease the intensity of the massing.

- c. Guidelines. Outdoor amenity areas should be:
 - 1. Organizing features of the lot.
 - 2. Designed and configured to encourage outdoor activity by building occupants (the types of amenities provided should relate to the anticipated occupancy of the building).
 - 3. High-quality, including durable, attractive, low maintenance structures and furnishings.
 - 4. Designed, dimensioned, and configured with seasonal solar access in mind.

3. MASSING, ARTICULATION, AND TRANSPARENCY

- a. Intent. The intent of the massing and articulation standards is to use facade articulation to reduce the scale of the building (both in height, to make the building look shorter, and length, to make the building look as if it was composed of

smaller buildings), and to avoid excessive repetition, as well as too much complexity in the facade design.

b. Requirements.

- 1.** All public facing facades shall be articulated horizontally. Wall planes that exceed 30 ft. in width that face streets, sidewalks, parks, or plazas must include at least one of the following:
 - A.** Fenestration such that not less than 50 percent of the area of the facade between 2 ft. and 8 ft. above ground level is transparent (tinted or mirrored glass that diminishes visibility into the building by 50 percent or more are not allowed); and not less than 30 percent of the total area of the facade is transparent; or
 - B.** Wall plane projections or recessions of at least 2 ft. over a horizontal distance of at least 30 percent of the total facade area.
- 2.** All public facing facades shall articulate a building's vertical massing to accentuate specific stories and diminish the upper-most story treatment.
 - A.** The building design shall distinguish the ground floor (1st story) architecture through use of two of the following: color, material, textures, or structural elements. The ground floor shall be anchored to the pedestrian realm and draw the eye from the upper-most stories of a building.
 - B.** The building design shall diminish the upper-most story of the building through a change in two of the following: color, material, texture, roof pitch, or a recession of the total facade. The upper-most story treatment shall deemphasize the impact building mass.
- 3.** Distinct entrances shall be included on all facades facing the public realm.

c. Guidelines.

- 1.** Architectural elements such as entries, porches, balconies, bays, cornices, and parapets should be accentuated.
- 2.** Building massing should be broken up with common areas and landscaping when feasible.
- 3.** Changes in building height by means of vertical extensions or recessions of the facade are encouraged to emphasize important building elements particularly at courtyard entries, building entries, and street corners.

4. PORCH CHARACTERISTICS

- a.** Intent. The intent of the porch standards is to provide valuable amenities for internal units, to create a desirable scale along the sidewalk, to articulate the building's massing when residential units are present on the first story, and to provide access from the sidewalk through a well-sized porch.
- b.** Requirements.
 - 1.** The porches and balcony shall not be elevated more than one step down from the finished floor of a unit.
 - 2.** Secondary entries shall be provided to all first story dwelling units by means of porches, decks, patios, stoops, or above-grade stairways at street level. Secondary entries shall be at least 50% open except for the side abutting the facade.
- c.** Guidelines.
 - 1.** Large porches and balconies are encouraged.
 - 2.** At corners a wraparound configuration should be employed when feasible for residential uses.

5. EXTERIOR MATERIALS

- a.** Intent. The intent of exterior material standards is to provide for changes in materials that ac-

centuate massing articulations, and break up the appearance of building mass such that large buildings resemble multiple smaller buildings.

b. Requirements.

1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, cementous siding, or concrete). Siding patterns shall be one of the following: horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
2. Material changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least 2 ft. above the foundation, so long as that change is along the entire length of the facade.

c. Guidelines.

1. Material changes should be used to accentuate massing articulations.
2. In general the lighter materials should be placed above those of heavier weight.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.026 SHOP FORM TYPES - APPLICATION OF FORM STANDARDS

1. GENERAL INTENT

- a. The shop form types are provided to encourage development of auto-oriented buildings that create a unique pedestrian experience near the street by:
 1. Situating parking near the rear of the lot.
 2. Locating the principal buildings near the front of the lot and sidewalk to generate pedestrian interest.
- b. The shop form types compliment main street form types that promote a walkable environment and other developments that promote sidewalk corridors along Golden's streets.
- c. This section shall not be interpreted to set forth substantive requirements.

2. INTENT AND APPLICATION OF STANDARDS

- a. In General. This subsection 2 sets forth the intentions for specific standards that are applied to shop form types.

- b. Building Height. Building height for shop form types is limited to 38 ft. to provide for compatibility of building mass with other form types that are typically located adjacent to shop form types, including main street form types.

- c. No Parking in Front. No parking is permitted within a certain distance of the front lot line for shop form types, in order to:
 1. Encourage locating building in the front of the lot, close to the sidewalk.
 2. Create a more pedestrian friendly environment along the street.

1. Encourage locating building in the front of the lot, close to the sidewalk.
2. Create a more pedestrian friendly environment along the street.
3. Ensure continuity of the pedestrian sidewalk experience by locating shop form types next to other form types that promote pedestrian activity. [See illustration 18.29.03.026.A.]

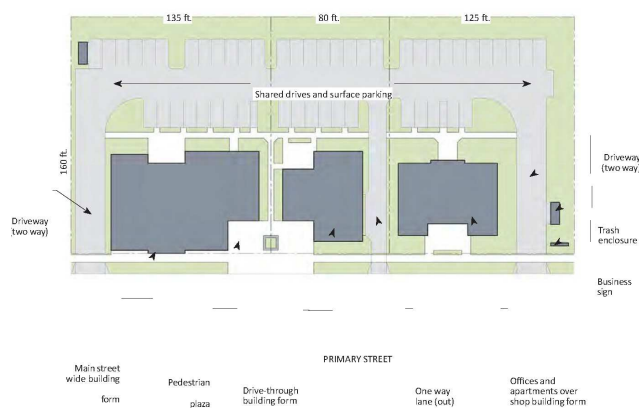


Illustration 18.29.03.026.A

Illustration 18.29.03.026.A: Above is an example of three lots sharing their driveways and surface parking. Main Street Wide building lot and Drive-through building lot also share a small plaza located on the corner of the lots along the sidewalk. Sharing these amenities makes it easier for each lot to locate the buildings close to sidewalk and create continuous interest for the pedestrians.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.027 SHOP FORM TYPES - FORM STANDARDS

1. SHOP/OFFICES AND APARTMENTS OVER SHOP

a. Intent.

The shop/offices and apartments over shop form type permits a wide range of buildings that can accommodate a wide range of uses, from a single user to multiple-tenant buildings that may include a mix of residential and non-residential uses. When opportunities are available and such connections are appropriate, sharing driveways and connecting parking lots across adjacent properties is both permitted and encouraged.

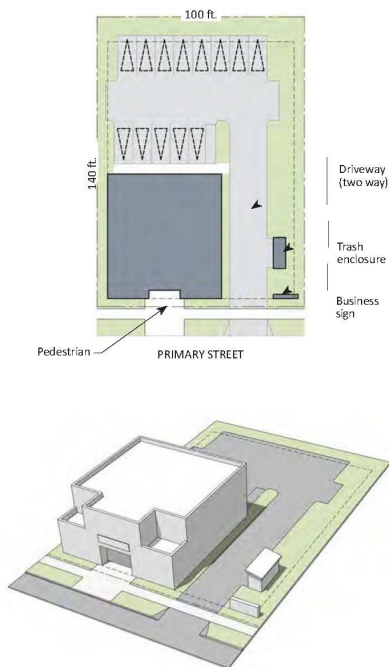


Illustration 18.29.03.027.A

Illustration 18.29.03.027.A: Lot diagram and bird's-eye view perspective of the shop / offices and apartments over shop building form type.

b. Lot Standards.

1. Min. lot area 8,000 s.f.
2. Min. lot frontage 70 ft.
3. Min. lot depth 120 ft.

c. Building Size.

1. Max. building height 3 stories/38 ft.

d. Setbacks.

1. Primary street 4 ft. min.
2. Side street 4 ft. min.
3. Interior side lot line 5 ft. min.
4. Rear lot line -
 - A. With alley present 5 ft. min.
 - B. With no alley present 12 ft. min.

e. Additional Standards.

1. The primary entrance to the building shall face the primary street. Secondary entrances at the rear or sides of buildings are also permitted.
2. No residential use is allowed on the ground floor.
3. No surface parking is allowed:
 - A. Within 40 ft. of the primary street property line along 50 percent of the frontage; and
 - B. Within 16 ft. of the primary street property line along the other 50 percent of the frontage.
4. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
5. All garage doors that face a primary street or side street shall be set back at least 20 ft. from the lot line that is coterminous with that street.
6. Buildings that contain a residential use shall comply with the "Outdoor Amenities" standards found in Section 18.29.03.025(2).

2. DRIVE-THROUGH

a. Intent.

The drive-through building form type accommodates drive-through, "app-through", vehicle service, delivery businesses. This form type permits one or more drive-through businesses in a single building, and may also accommodate offices and apartments in the building's upper stories (if any). This form type is intended to be flexible and inclusive. When available, sharing driveways and connecting parking lots with the parking lots of the neighboring properties shall be permitted and encouraged.

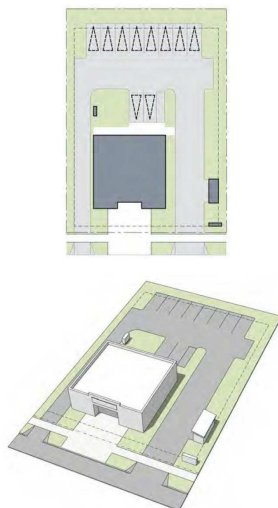


Illustration 18.29.03.027.B
Illustration 18.29.03.027.B: Lot diagram and bird's-eye view perspective of the drive-through building form type.

b. Lot Standards.

1. Min. lot area 8,000 s.f.
2. Min. lot frontage 70 ft.
3. Min. lot depth 120 ft.

c. Building Size.

1. Max. building height 3 stories/38 ft.

d. Setbacks.

1. Primary street 4 ft. min.
2. Side street 4 ft. min.
3. Interior side lot line 5 ft. min.

4. Rear lot line -

- A. With alley present 5 ft. min.
- B. With no alley present 12 ft. min.

e. Additional Standards.

1. No drive-through pick-up window shall face the primary or side street; it may be located at either the interior side or rear lot lines.
2. The primary pedestrian entrance to the building shall face the primary street. Secondary entrances at the rear or sides of buildings are also permitted.
3. No residential use is allowed on the ground floor.
4. No surface parking is allowed:
 - A. Within 40 ft. of the primary street property line along 50 percent of the frontage; and
 - B. Within 16 ft. of the primary street property line along the other 50 percent of the frontage.
5. All garage doors that face a rear alley shall be set back not more than 5 ft., or set back 20 ft. or more, from the rear lot line.
6. All garage doors that face a primary street or side street shall be set back at least 20 ft. from the lot line that is coterminous with that street.
7. Buildings that contain a residential use shall comply with the "Outdoor Amenities" standards found in Section 18.29.03.025(2).

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.03.028 SHOP FORM TYPES - DESIGN STANDARDS AND GUIDELINES

1. APPLICABILITY

- a. This section applies to the mixed-use form types (listed below for ease of reference):
 - 1. Shop/Offices and Apartments over Shop.
 - 2. Drive-Through.
- b. Chapter 18.40 also applies to shop form types as set out therein.
- c. Each subsection below sets out a statement of intent, followed by requirements, followed (in some cases) by guidelines. The statement of intent provides background information and is not regulatory in nature. The requirements must be met unless adjusted pursuant to division VII. The guidelines are used in the administration of certain parts of division VII, and are otherwise suggestions (not requirements).

2. MASSING AND ARTICULATION

- a. Intent. The intent of the massing and articulation standards is to use facade articulation to reduce the scale of the building (both in height, to make the building look shorter, and length, to make the building look as if it was composed of smaller buildings), and to avoid excessive repetition.
- b. Requirements.
 - 1. Building facades that are wider than 50 feet shall be articulated to make the building look as if it is a composition of multiple buildings ("modules") at intervals of 25 or 50 feet (more or less). Articulation shall be accomplished by indentations, projections, and/or changes in color or material.
 - 2. Building facades that are wider than 125 ft. shall not have more than two modules that are substantially similar in terms of architectural composition.

- 3. No sidewalk-facing or plaza-facing area of wall plane that is greater than 15 ft. in width and 10 ft. in height (150 s.f. or more) shall be "blank," in that it does not include:

- A. A substantial change in cladding materials (a simple color change is not sufficient to meet this requirement);
- B. A window or a door;
- C. A column, pilaster, balcony, cornice, shade element (e.g., awning), or other articulation greater than 12 in. in projecting dimension; or
- D. Landscaping material that grows to a height of not less than 5 ft., planted between the sidewalk and the building wall.

c. Guidelines.

- 1. Buildings should be broken up using courtyards, plazas, and green space when feasible.
- 2. Changes in building height should be used to emphasize important building elements, particularly at courtyard entries and street corners.

3. ENTRANCES, PATIOS, AND OUTDOOR AMENITIES

- a. Intent. The intent of the entrances, patios, and outdoor amenities requirement and guidelines is to create inviting entrances to attract customers and to create an appealing pedestrian environment along the sidewalk.
- b. Requirement. For buildings that contain a residential use, the requirement is to follow the "Outdoor Amenities" standards found in 18.29.03.025(2).
- c. Guidelines.
 - 1. Entrances should be emphasized using building articulations such as a change in height, cornice, or parapet, or by integrated signage.

2. Dining patios should be visible from the street.

4. EXTERIOR MATERIALS

- a. Intent. The intent of exterior material standards is to provide for changes in materials that accentuate massing articulations, and break up the appearance of building mass such that large buildings resemble multiple smaller buildings.
- b. Requirements.
 1. Allowed exterior wall materials are horizontal and vertical siding, real stucco, or masonry (brick, stone, cementous siding, or concrete). Siding patterns shall be one of the following: horizontal bevel, drop siding, vertical tongue and groove, shingles/shakes, or board and batten.
 2. Material changes shall occur along a vertical line at interior (concave) corners, or along a horizontal line at a floor line or a gable end. Material and color changes may also occur along a horizontal line that is at least 2 ft. above the foundation, so long as that change is along the entire length of the facade.
- c. Guidelines.
 1. Material changes should be used to accentuate massing articulations.
 2. In general the lighter materials should be placed above those of heavier weight.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division IV BULK STANDARDS FOR LEGACY USE ZONES

18.29.04.01 ORGANIZATION AND APPLICABILITY OF DIVISION

Division IV sets out bulk and supplemental standards for "legacy use zones", which refers to the RE, M1, M2, CO, AG, and RM use zones. The legacy use zones are not overlaid with a corresponding form zone. The standards in this Division are applied in addition to the standards of Chapter 18.40 as set out therein.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.04.02 BULK STANDARDS BY LEGACY USE ZONE

1. RE LEGACY USE ZONE

a. Applicability.

The standards of this subsection apply within the RE legacy use zone.

b. Lot Standards.

1. Min. lot area 9,000 s.f.
2. Min. lot frontage 75 ft.

c. Building Size and Number of Dwelling Units.

1. Building height -

- A.** Min. (principal building) 10 ft.
- B.** Max. (principal building) 25 ft.
- C.** Max. (accessory building) 15 ft.

2. Max. lot coverage [See e.1] -

- A.** All structures (including accessory) 40%
- B.** Accessory structures 10%

3. Max. no. of dwelling units 1 per lot

d. Minimum Setbacks (All Buildings).

1. Primary street 20 ft. [See e.2]
2. Side street 20 ft.

3. Interior side lot line -

- A.** Principal buildings 10 ft.
- B.** Accessory buildings 5 ft.

4. Rear lot line/alley -

- A.** Principal buildings and detached garages 20 ft.
- B.** Accessory buildings 5 ft.

e. Additional Standards.

1. Lot coverage applies to all structures, both principal and accessory, except that an un-enclosed single-story front porch is not counted if it covers a minimum area of 48 s.f.
2. Front porches may encroach up to 5 ft. into the primary street setback.
3. If the front wall plane of the principal building is wider than 50 ft., 20 to 50 percent of the front wall plane shall be offset a minimum depth of 5 ft. For the purposes of this standard, a covered porch is counted as part of the front wall plane.

2. M1 AND M2 LEGACY USE ZONES

a. Applicability.

The standards of this subsection apply within the M1 and M2 legacy use zones.

b. Building Size.

1. Max. building height -

- A.** M1 Zone 35 ft.
- B.** M2 Zone 65 ft.

2. Max. lot coverage for all accessory structures 10%

c. Minimum Setbacks (All Buildings).

1. Primary street -

- A.** Principal/accessory building 5 ft.
- B.** Garage (attached or detached) 20 ft.

2. Side street 5 ft.

3. Interior side lot line 0 ft.
4. Rear lot line -
 - A. Alley present 5 ft.
 - B. No alley 0 ft.

d. Additional Standards.

1. Where provided in the site development standards of chapter 18.40, the front set-back shall be zero feet.
2. If a boundary of an M1 or M2 lot is coterminous with or directly across a right-of-way from an R1, R1A, R2, R3, or RM use zone, an additional buffer area as required by chapter 18.40 shall be provided along that boundary.

3. CO AND AG LEGACY USE ZONES

a. Applicability.

The standards of this subsection apply within the CO and AG legacy use zones.

b. Lot Standards.

1. CO Zone

- A. Min. lot area 35 ac.
- B. Min. lot frontage 150 ft.

2. AG Zone

- A. Min. lot area 3 ac.
- B. Min. lot frontage 150 ft.

c. Building Size.

1. Max. building height (all buildings) . . . 35 ft.

d. Minimum Setbacks (All Buildings).

1. Primary street 20 ft.
2. Side street 20 ft.
3. Interior side lot line.
 - A. Principal buildings 15 ft.
 - B. Accessory buildings 5 ft.

4. Rear lot line.

- A. Principal buildings 20 ft.
- B. Accessory buildings 5 ft.

4. RM LEGACY USE ZONE

a. Applicability.

The standards of this subsection apply within the RM legacy use zone.

b. Lot Standards.

1. Manufactured home park (in the aggregate).

- A. Min. lot area 5 ac.

2. Each manufactured home lot (whether plat-
ted or designated on a site plan).

- A. Min. lot area 3,500 s.f.
- B. Min. lot frontage 40 ft.

c. Building Size.

1. Principal building height -

- A. Min. 10 ft.
- B. Max. 35 ft.

2. Max. accessory building height 15 ft.

3. Max. lot coverage for all accessory struc-
tures 10%

d. Minimum Setbacks (All Buildings).

1. Primary street -

- A. Principal building 10 ft.
- B. Garage (attached or detached) and ac-
cessory buildings 20 ft.

2. Side street 10 ft.

3. Interior side lot line 5 ft.

4. Rear lot line/alley.

- A. Principal buildings 10 ft.
- B. Detached garages facing alley . . . 20 ft.
- C. Accessory buildings 5 ft.

e. Additional Standards.

- 1.** All utility service lines, including all telephone lines and television signal cables, within the mobile home district shall be installed underground; and
- 2.** A mobile home park shall be allowed only where the same abuts on or has access to streets and highways classified as collector or arterial streets by the engineering regulations. At least two entrances shall be provided to the park.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division V PARKING FOR FORM TYPES

18.29.05.01 PARKING DESIGN AND MINIMUM PARKING REQUIREMENTS

1. APPLICABILITY

The parking requirements of this division V apply only to the form types within the form zones established by this chapter. Parking areas shall be designed and located as provided in this section and the applicable provisions of chapter 18.36.

2. PARKING SPACE LOCATION AND ACCESS

- a. In General. Except as provided in this subsection 2, off-street parking spaces for each form type shall be provided on the same lot as the building to which the parking relates.
- b. Access. Access to parking shall be provided directly from the street or alley that provides access to the lot.
- c. Cluster Form Types.
 - 1. In cluster form types, unless parking is provided on individual lots, it shall be located in a separate, commonly owned tract specifically designated for such use. The parking tract may also include facilities for trash and recycling collection.
 - 2. Parking for lots within cluster subdivisions is not required to meet the requirements of subsection 2.a, above, provided that the off-street parking requirements are satisfied within one or more shared parking tracts, and a common court tract provides pedestrian access from each lot (that does not otherwise have direct access to the shared parking tract) to the shared parking tract(s).
 - 3. In cluster form types, no surface parking is allowed within 60 ft. of the primary street.
- d. Compound Form Types. In compound form types, no surface parking is allowed within 60 ft. of the primary street.

3. TANDEM PARKING

Tandem parking design is allowed, provided that:

- a. No more than two parking spaces are arranged in tandem; and
- b. If used for residential purposes, both tandem parking spaces are allocated to a single dwelling unit and the use of the parking spaces by the owner or occupant of the dwelling unit is exclusive; and
- c. If used for nonresidential purposes:
 - 1. The subject property is located in the neighborhood corridor form zone; or
 - 2. The parking spaces are used exclusively for valet parking; or
 - 3. The director finds that the tandem configuration is necessary to preserve an existing building and optimize parking for the site.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

DIVISION VI LANDSCAPING, FENCING, AND PERIMETER WALLS

18.29.06.001 PURPOSE, INTENT, AND APPLICABILITY

1. PURPOSE

The purposes of this division VI are to:

- a. Create a fiscally and environmentally sustainable landscape along streets and alleys, and within plazas, yards, and other private open spaces throughout the City of Golden;
- b. Encourage landscaping designs that are inspired by native species;
- c. Create comfort zones, increase livability, and contribute positively to the City's environment and ecology; and
- d. Encourage inclusion of landscape and hardscape elements in site development plans that contribute to the character of development and its surrounding context.

2. INTENT

It is the intent of this division VI to set forth landscaping regulations that result in designs that:

- a. Reinforce or enhance the human scale of buildings;
- b. Soften the transition between areas with different character;
- c. Screen views of unsightly elements, such as utility boxes and parking areas;
- d. Encourage pedestrian activity by creating comfort zones and enhancing visual interest at the pedestrian scale; and
- e. Facilitate improvements in water efficiency.



Photo 18.29.06.001.A: Plant materials soften the built environment and provide an appropriate transition between the sidewalk and the house. This technique is especially useful in situations with small setbacks.

3. APPLICABILITY

- a. In General. The standards and guidelines in this division VI apply to all properties within form zones. However, sections or subsections within this division may provide for specific exceptions or a more limited scope of application for certain standards or guidelines.
- b. Relationship to Chapters 18.38 and 18.40. The standards and guidelines of this division VI supersede chapter 18.38. Chapter 18.40 may provide additional standards as set out therein.
- c. Standards. The standards in this division VI are minimum requirements.
- d. Considerations and Guidelines. The considerations and guidelines in this division VI are considered best practices by the City. They are intended to provide additional information to encourage creative landscape designs, but are not requirements.



Photo 18.29.06.001.B: Landscaped areas should incorporate plants and hardscape that provides visual interest, creates comfortable outdoor spaces, and contributes positively to the environment by reducing water consumption, providing natural habitat, and reducing stormwater runoff.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.002 DESIGN CONSIDERATIONS**1. INTENT**

This section is intended to encourage creative and context-sensitive landscape designs. Due to the variability in site-specific conditions, the provisions of this section are not enforced as development standards. They are presented only as suggested considerations for landscape design.

2. SPECIES SELECTION

- a. Applicants should cross-reference the City of Golden Recommended Plant List for plant selection.
- b. Xeric, ornamental plantings that are low-maintenance and require little water should be used.
- c. Plantings should create visual interest and variety for all four seasons, as well as provide shade for seating areas in warmer months along with other functional considerations.

3. LANDSCAPE ARRANGEMENT

- a. Trees should be positioned to provide shade for paved areas to reduce heat generated from direct sun exposure.
- b. Deciduous trees that provide shade in the summer and allow sunlight to pass through their limbs in the winter are recommended for planting on the south side of buildings. The trees should be drought-tolerant, provide fall color, and minimize litter and other maintenance problems.
- c. Evergreen trees that provide a buffer from cold winds, snow, and ice are recommended along the north side of buildings.
- d. Tree placement and overall landscape design should take into account the effects on solar access with regard to neighboring properties.
- e. Particularly in the Main Street A, Main Street B, and Strip form zones, landscaping should not create isolated areas or areas that are not visible from adjacent public and private space.

4. WATER QUALITY AND WATER EFFICIENCY

- a. Irrigated turf grass should not be used in areas that are narrower than 4 ft.
- b. Except in the Main Street A and Main Street B form zones, directly connected impervious areas should be minimized to reduce runoff from hardscaped driveways, sidewalks, and patios.

5. GRADING AND EXCAVATION

The Mile High Flood District Topsoil Management Guidance manual should be used for salvaging, stockpiling, and re-purposing existing soils associated with a development.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.003 LANDSCAPING PLANS AND MATERIALS**1. INTENT**

This section applies as set out in section 18.29.06.001.3, except that plant material located within an applicable sight distance triangle, as defined by the City of Golden Street, Drainage and Sidewalk Specifications, shall conform to the specifications set out therein.

2. LANDSCAPE PLAN PREPARATION

Landscape plans for cluster, compound, row house, main street, mixed-use, and shop forms shall be prepared and stamped by a Colorado-licensed landscape architect.

3. PLANT SELECTION

- a. In General. Plant material that is counted towards the requirements of this division shall be selected from the species approved by the Colorado State University (CSU) Extension Guides.
- b. Xeric Requirements. At least 50 percent of required landscape planting areas that are required by this division, exclusive of hardscape, shall be irrigation zoned for, and planted with, xeric species.

- c. Biodiversity Requirements. Monoculture plantings of trees shall be avoided. With regard to trees, no more than 50 percent of the same genus shall be installed.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.004 UNITS OF MEASUREMENT

1. IN GENERAL

This chapter measures landscaping materials in terms of tree equivalents (TE) and shrub equivalents (SE) in order to maximize flexibility for landscape designers, while ensuring that the appearance of the volume of landscaping remains consistent. TEs and SEs relate to nursery stock measurements, and are evaluated at the time of planting.

2. TREE EQUIVALENTS (TE)

One TE is equal to:

- a. A two and one-half-inch caliper deciduous tree; or
- b. A six-foot tall coniferous tree.

3. SHRUB EQUIVALENTS (SE)

One SE is equal to:

- a. One large shrub (five gallon container);
- b. Two medium shrubs (two gallon container); or
- c. Four small shrubs (one gallon container).

4. OTHER MATERIALS

The minimum size and characteristics of other landscape materials at the time of planting or installation, shall be as follows:

- a. Ground covers (except turf) and vines.
 - 1. In general one gallon container.
 - 2. Prostrate junipers and similar shrub-like ground covers five gallon container.
- b. Wood chip mulch.
 - 1. Minimum depth two inches.
- c. Rock or stone mulch.
 - 1. Minimum cobble size two inches.
 - 2. Minimum depth three inches.

5. EXISTING MATURE TREES

Healthy existing mature trees (five-inch DBH or greater) shall be preserved on site. If healthy existing mature trees must be removed, two TEs shall be planted for each tree removed. The director may require fewer but higher caliper deciduous trees or taller coniferous trees depending on available planting area, healthy spacing, or resilient landscaping standards in section 18.40.216, "Resilient landscaping standards." Nuisance species, such as Siberian elm, Russian olive, and Tree of Heaven, or other trees designated as nuisance trees by the director or city arborist are not subject to the tree replacement requirement of this subsection.

(Ord. No. 2282, § 1(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.005 LANDSCAPE REQUIREMENTS FOR THE PUBLIC REALM

1. STREETSCAPES AND SIDEWALKS

- a. Sidewalk and Landscaping Strip Required.

A sidewalk and landscaping strip shall be installed parallel to the street along the lot frontage and parallel to the side street on corner lots. If new sidewalk is required to be installed, the appli-

18.29.06.005

cation shall demonstrate that the sidewalk will be installed, repaired, or modified in such manner as to be safe and compliant with the Americans with Disabilities Act Accessibility Guidelines.

Minor adjustments to maintain the existing sidewalk without requiring the installation of new sidewalk may be considered pursuant to minor adjustment section 18.29.07.001.3.g.3.

b. Sidewalk Width.

1. The standard required sidewalk width is seven feet. The sidewalk width may be reduced to six feet without adjustment if installed to meet engineering regulations and on a local street. Minor adjustments for any other reductions in the sidewalk width shall be considered pursuant to minor adjustment section 18.29.07.001.3.g.2.

Landscape strips, when required, shall meet the standards of 18.29.06.005.1.d.

c. Sidewalk Design.

1. The sidewalk shall be detached from the street, unless it is demonstrated that the existing block and nearby blocks are developed with an attached sidewalk.
2. All sidewalks shall be designed in compliance with the City of Golden Street, Drainage, And Sidewalk Specifications.



Photo 18.29.06.005.A

Photo 18.29.06.005.A: Continuous sidewalks maintain the traditional pattern of the street.

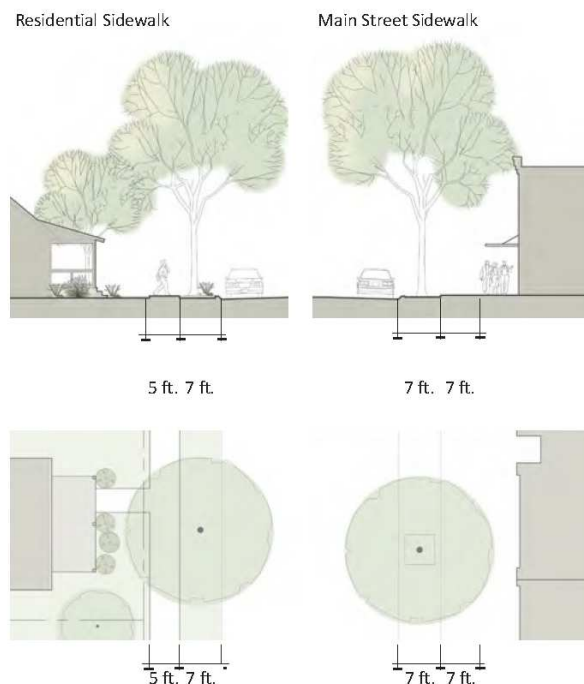


Illustration 18.29.06.005.A

Illustration 18.29.06.005.A: Two typical streetscape conditions, and the sidewalk and tree lawn standards for each, are illustrated above. The residential example shows a reduction in the minimum sidewalk requirement to 5 ft. to maintain the pattern established on the block. The main street examples shows a 7 ft. wide sidewalk to accommodate more foot traffic close to store fronts.

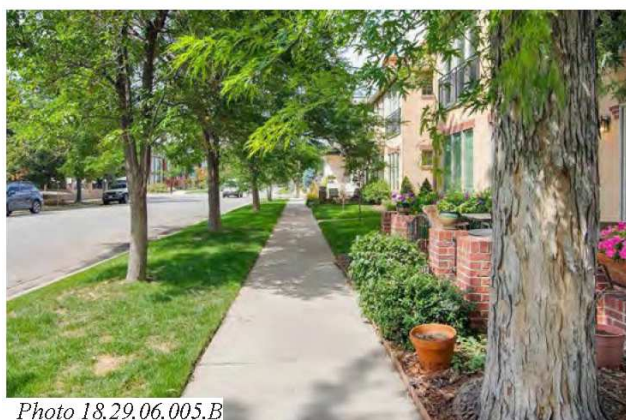


Photo 18.29.06.005.B

Photo 18.29.06.005.B: Street trees and landscape areas between the street and the sidewalk, and between the sidewalk and the house, foster a pedestrian friendly environment.

d. Landscape Strip Width.

1. The standard required landscaping strip width is seven feet. [See illustration 18.29.06.005.A.]

2. The landscape strip width may be reduced pursuant to minor adjustment section 18.29.07.001.3.g.4 in order to integrate the sidewalk into the existing right-of-way design.

e. Landscape Strip Design.

1. Street trees shall be planted within the landscape strip, spaced 35 ft. on-center. Each street tree shall be one TE, installed such that a canopy of foliage will form over the street. Coniferous trees shall not be used as street trees.
2. Ground cover and/or shrubs shall also be planted in the landscaping strip in which the trees are placed.
3. Landscape strips that adjoin streets with on-street parking shall be designed with periodic hardscaped connections from the street to the sidewalk.

2. ADDITIONAL REQUIREMENTS AND GUIDELINES FOR MAIN STREET FORM TYPES

a. In General.

Main Street form types shall comply with the requirements set out in subsection 1, above, as well as the requirements set out in subsection 2.b. The guidelines set out in subsection 2.c are intended to encourage good design, and are not specifically regulatory in nature.



Photo 18.29.06.005.C: The character of the sidewalk and tree lawn varies by context. The image above of Wenatchee, WA shows a main street context.

b. Requirements.

1. Where a landscape strip is unavailable, street trees shall be planted on either the private

property or within the right-of-way parallel and adjacent to the adjoining street or streets such that a canopy of foliage will form over the street. Trees shall be spaced 35 ft. on center, parallel to the street. Spacing may be adjusted to accommodate the location of alleys and existing curb cuts. Ground cover and/or shrubs shall also be planted in the street-side landscaping strip in which the trees are placed. Coniferous trees shall not be used for street trees.

2. Pedestrian connections shall be provided from walkways, transit stops, trails, parks, and bike paths in the public right-of-way adjacent to the lot to the building(s) on the lot and through any parking areas within the lot.
3. The minimum width of an on-site walkway shall be 5 ft., unless head-in parking is permitted adjacent to the walkway, in which case the walkway shall have a minimum width of 7 ft.
4. On-site walkways designed to accommodate bicycles shall be referred to as bike/pedestrian paths and shall have a minimum width of 8 ft., unless head-in parking is permitted adjacent to the bike/pedestrian path, in which case the walkway shall have a minimum width of 10 ft.
5. Grades for walkways and bike/pedestrian paths shall not exceed 8 percent or the grade of the adjacent public street, except short stretches not to exceed 200 ft. in length may be permitted by the City Engineer provided that the City Engineer finds that the criteria in the Golden Street, Drainage & Sidewalk Specifications manual for sidewalks within the right-of-way are met.
6. Walkways and bike/pedestrian paths shall be designed to be free of hazards and to minimize conflicts with external factors such as noise, vehicular traffic and protruding architectural elements.

7. Walkways shall accommodate mobility for all users by addressing the needs of people regardless of age or ability.

c. Guidelines.

1. Walkways and bike/pedestrian paths should provide a continuous connection to adjacent pedestrian networks and be designed so users can easily find direct access to a route.
2. Streetscape design should contain elements that provide visual continuity along the public right-of-way.
3. Streetscape should integrate stormwater management, when possible.
4. Streetscape elements should include flowers in pots, ornamental trees in raised beds, and layering of shrubs against the building walls. Providing retaining walls, raised planters and low garden walls in the form of seating is another recommended landscaping strategy in these areas [See photo 18.29.06.005.D].



Photo 18.29.06.005.D: A planter box can double as seating along main street corridors. Washington Avenue, Golden, Colorado.

(Ord. No. 2228, § 5, 2-13-2024; Ord. No. 2209, § 2(Exh. G), 6-6-2023; Ord. No. 2273, § 2(Exh. A), 8-12-2025)

18.29.06.006 REQUIREMENTS BY FORM TYPE AND LANDSCAPE AREA

1. MINIMUM LANDSCAPE SURFACE

a. In General.

The minimum amount of landscape and amenity area on a lot shall be the greater of the landscape

surface ratio ("LSR") set out in subsection 1.b, below (which is inclusive of all landscaping required by this section 18.29.06.006); or the total landscaping required by this section 18.29.06.006.

b. Minimum Landscape Surface Ratio by Form Zone

1. Min. LSR in Core, Transition, Edge, Outer Edge, Neighborhood Corridor, Main Street A, Main Street B, and Strip form zones. . . . 15%
2. Min. LSR in Peripheral form zone N/A

c. Minimum Requirement for Main Street Form Types

For Main Street form types, all portions of the lot that are not occupied by driveways, sidewalks, patios, decks, plazas, or buildings shall be landscaped or mulched.

2. LANDSCAPING ASSOCIATED WITH SURFACE PARKING AREAS

a. Applicability.

The standards of this subsection 2 apply to all surface parking areas that include 5 or more parking spaces, except in the Main Street A and Main Street B form zones.

b. In General.

1. Surface parking areas shall be landscaped with one TE per five parking spaces and one SE per parking space.
2. Trees shall be installed within six feet of the boundaries of the parking area, or within landscape islands of not less than 80 s.f. in area and no dimension less than 6 ft., located within the parking area (between the long edges of angled parking spaces or at endcaps) or between rows of facing parking spaces.
3. Trees shall be distributed to optimize shade on the parking lot.
4. Parking lot landscape areas shall be served with a permanent irrigation system.



Photo 18.29.06.006.A

Photo 18.29.06.006.A: Parking lots shall include trees within or on the edges of the parking lot, in order to shade cars and reduce the absorption of heat from direct sunlight exposure.



Photo 18.29.06.006.B

Photo 18.29.06.006.B: Landscape areas integrated into the parking lot design to enhance pedestrian circulation in the parking lot and site.

c. Large Surface Parking Lots.

1. Parking lots that include 20 or more parking spaces shall also include an additional landscaped areas within landscape islands that is equal to 10 percent of the total paved parking area.
2. The parking lot landscape islands shall include trees, shrubs, and ground covers, and shall be distributed throughout the paved parking area, such that landscape islands that are located between the long edge of angled parking spaces or at endcaps are spaced no more than 230 ft. apart, measured along each row of parking spaces.



Photo 18.29.06.006.C



Photo 18.29.06.006.D

Landscaping requirements are provided for the street-facing yards within a lot. That means either the front yard or the front and side yard for corner lots shall be landscaped. A view from Washington Village in Boulder, Colorado (photo 18.29.06.006.C); a view from a home in the 12th St. Historic District in Golden, Colorado (photo 18.29.06.006.D).

3. STREET-FACING YARDS

a. Intent.

The intent of the landscaping requirements for street-facing yards is to create a consistent landscaped area observed from the pedestrian sidewalk along all front and side streets; and to improve the aesthetics of buildings and streetscapes through the combined use of trees (as appropriate) and shrubs in street-facing yards.

b. Applicability.

The standards and guidelines in this subsection 3 apply to all front yards, and to all side yards of corner lots, except with regard to Main Street and Shop form types.

demonstrates that utility easements (including, but not limited to, overhead power lines), poor growing conditions due to building orientation or shade, or lack of space (due to building or porch disposition) would create a harmful condition or prevent healthy tree growth.

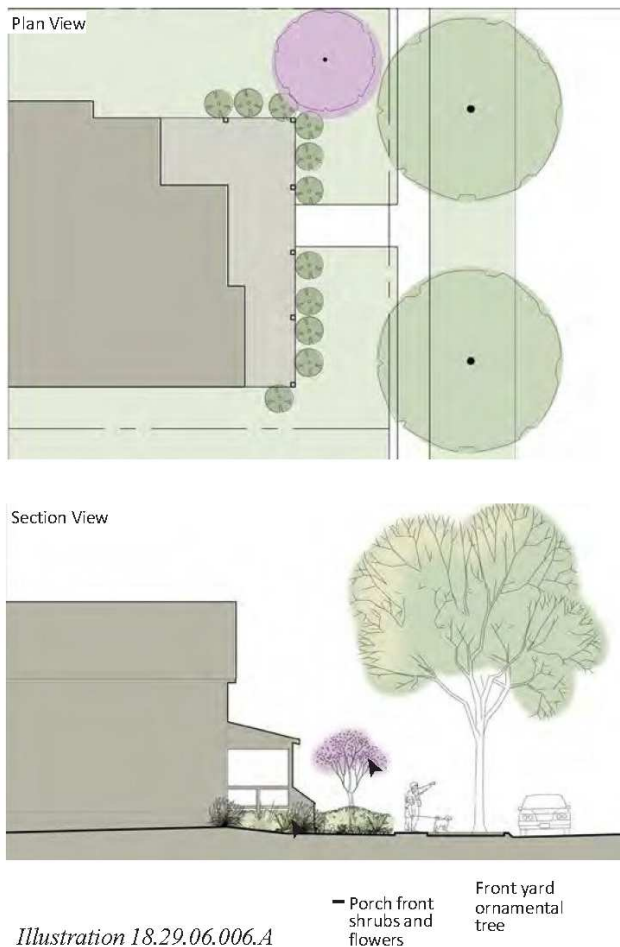


Illustration 18.29.06.006.A

Illustration 18.29.06.006.A: Plan view and cross section of TE and SE requirements.

c. Standards.

1. At least 50 percent of all areas of front yards that are not occupied by driveways, side-walks, or patios shall be landscaped with living materials.
2. Except as provided in subsection c.3, below, ornamental or mid-sized trees shall be installed in street-facing yards as follows:
 - A. 25 ft. to, but not including, 42 ft. of lot frontage 1 TE
 - B. 42 ft. of lot frontage or more [See illustration 18.29.06.006.A] 2 TE
3. The tree-planting requirements of subsection c.2, above, do not apply where the applicant

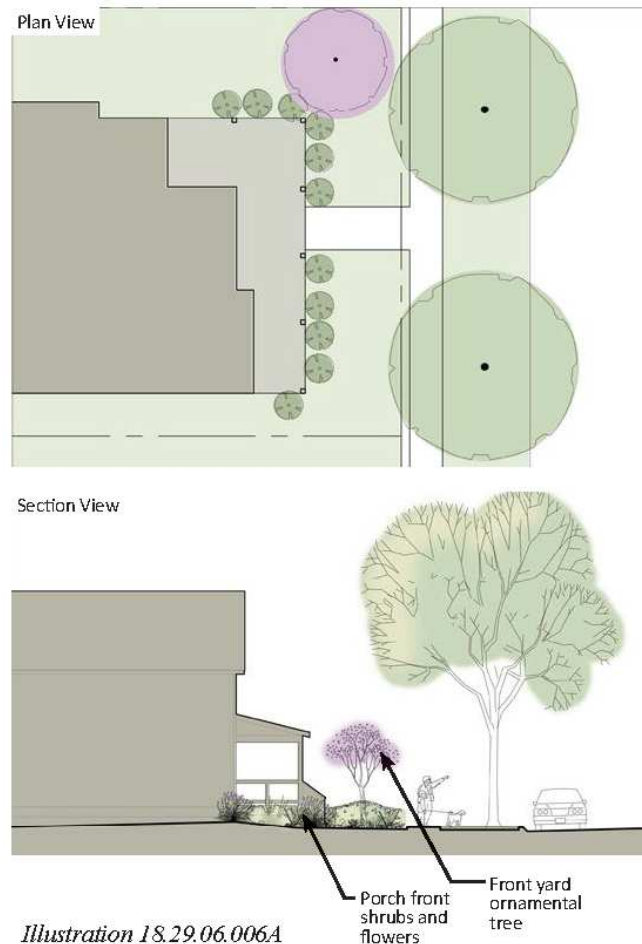


Illustration 18.29.06.006A

Illustration 18.29.06.006.A: Plan view and cross section of TE and SE requirements.

4. A minimum of one SE of plant material shall be installed for each 10 ft. of primary street, side street, and common court frontage of the lot (as each may be present) between the building and the frontage.

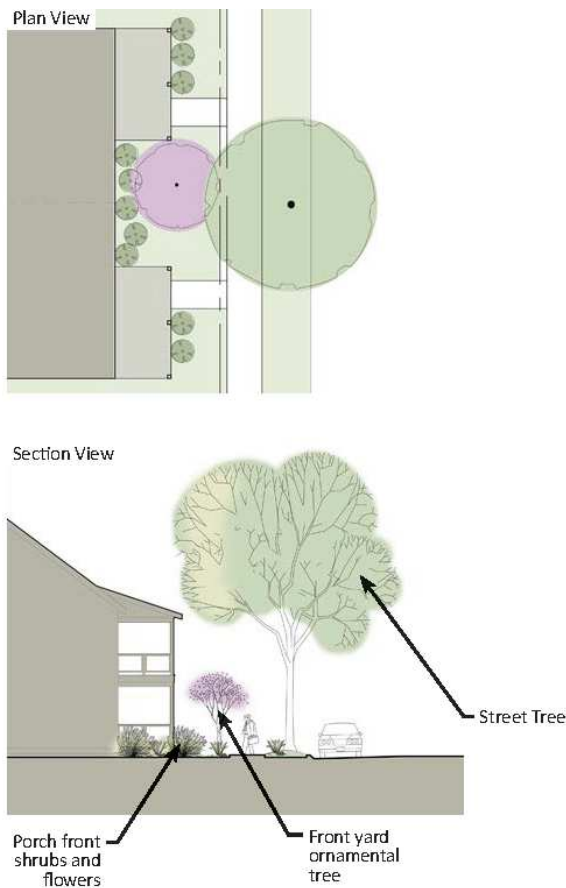


Illustration 18.29.06.006.B

Illustration 18.29.06.006.B: Plan view and cross section of TE and SE requirements.

d. Guidelines.

1. Irrigated turf grass should not be planted in yards (front and side) that are narrower than 4 feet. Layering of flowering bushes and perennials should be planted instead. Rock mulch, wood mulch, and ground covers are also suggested.
2. A combination of ornamental trees, large shrubs, and small shrubs are recommended for street-facing yards (front and side) where there is sufficient space and appropriate conditions for their healthy growth.
3. Where tree-planting is not applicable pursuant to subsection 2.c.3, layered shrub landscaping, including flowering shrubs, should be installed near the buildings along street-

facing elevations; however, the center third of the buildings' facades should be kept clear from the shrubs.

4. COMMON COURTS

a. Intent.

Specific landscape standards and guidelines are established in this subsection 4 to ensure that common courts serve as amenities for occupants of buildings in subdivisions with common courts.

b. Applicability.

The standards and guidelines in this subsection 4 apply to all form types that require (or are designed to include) a common court.

c. Planting Requirements.

1. At least 50 percent of the area of the common court shall be landscaped with living material.
2. A minimum of 1 TE of shade tree shall be provided per 800 s.f. of total landscaped area of the common court. If shade trees are provided in the front yard along the common court, the area under the projected mature canopy of the shade trees shall be subtracted from the area of the common court for the purposes of calculating the number of shade trees that are required in the common court.

d. Planting Guidelines.

1. Two rows of trees should be provided, one on either side of the common court, where space allows.



Photo 18.29.06.006.G

Photo 18.29.06.006.G: Entry to a common court in North Court showing layered landscaping and appropriately placed shade trees. (Holiday Neighborhood, Boulder, Colorado.)

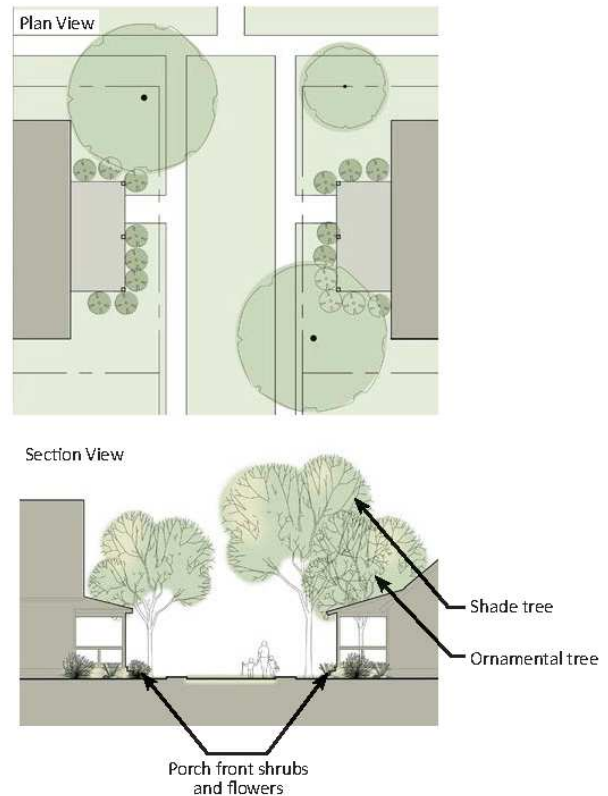


Illustration 18.29.06.006.C

Illustration 18.29.06.006.C: Two homes facing a common court with layered landscaping. At narrow courts however, central shade trees are more appropriate.



Photo 18.29.06.006.H

Photo 18.29.06.006.H: Mailboxes may emphasize the entrance to the common court. (Courtyard Townhomes on Washington and Iowa, Golden, Colorado.)

2. On narrower common courts where it is not feasible to provide two rows of trees, a few high canopy shade trees should be provided at the center of the common court.

3. Best practices in stormwater management with swales, filter strips, and rain gardens should be integrated into site design to reduce runoff and filter pollutants. Simple bridges or culverts should be installed across the drainage ways or swales to maintain continuous pedestrian walkways.

e. Hardscape Requirements.

In areas that transition between hardscape and landscape and where runoff will be directed, a stabilized surface shall be installed in order to prevent erosion of unpaved surfaces.

f. Hardscape Guidelines.

When feasible, two narrow sidewalks (generally no more than 3 feet in width) should be located at either side of the common court close to front porches, rather than one sidewalk at the center of the common court. [See photo 18.29.06.006.G.]

5. ALLEYS AND SHARED DRIVEWAYS

a. Intent.

The intent of this subsection 5 is to provide guidelines for alleys and shared driveways in order to improve their character and function.

b. Applicability.

The standards and guidelines in this subsection 5 apply to all form types except Main Street and Shop.

c. Guidelines for Landscaping.

1. Landscape islands should be provided between head-in parking stalls.
2. Narrow detached sidewalks (3 ft. in width) should be provided along the parking areas, and low shrubs should be installed behind car stops.
3. To the extent practical, a diverse and layered landscape should be installed along alleys, including shade trees, small ornamental trees, upright shrubs, and low ground covers. However, plant selections and installation locations should prevent:
 - A. Encroachments into the alleys that will interfere with their use; and
 - B. Conflicts between trees and overhead or underground utilities.



Photo 18.29.06.006.I: Small islands with upright shrubs on either side of the garage entrances. (North Court, Holiday Neighborhood, Boulder, Colorado.)



Photo 18.29.06.006.J: Small landscape islands provide places for trees by the alley. (North Court, Holiday Neighborhood, Boulder, Colorado.)

d. Guidelines for Pavement and Edges.

1. Unnecessary pavement and hardscape on portions of the lot directly adjacent to the alley or shared driveways along the rear of several properties should be avoided.

2. Pavement should be used only for the width of the garage door and gaps in pavement should be provided for planting when feasible.
3. Use of straight concrete edge in lieu of regular curbs is encouraged, for it makes it easier to create landscape islands.
4. The use of slotted curbs and standards is encouraged to facilitate water runoff.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.007 FENCING, RETAINING WALLS, AND PERIMETER WALLS

1. INTENT

The intent of this section is to permit fencing that balances the interaction between the sidewalk and the front yard or entrance of a property. Further, to provide both privacy to the property owner and an attractive visual appearance to the pedestrian.

2. HEIGHT AND SETBACKS

a. Height.

The height of fences and perimeter walls is limited as follows:

1. Max. height (except as provided below) . 6 ft.
2. Max. height within 15 ft. of front lot line adjoining a primary street. 3 ft.
3. Max. height within front yard adjoining common court 3 ft.

b. Setbacks.

Fences and perimeter walls shall be set back from lot lines as follows:

1. Primary street and side street (from sidewalk or property line, whichever results in a greater setback) 2 ft. min.
2. Interior side lot line 0 ft.
3. Rear lot line (no alley) 0 ft.
4. Alley (from rear lot line) 6 ft. min.

3. DESIGN

a. Materials and Color.

1. All fences, perimeter walls, or retaining walls must be made from traditional fence or wall materials such as:
 - A. Fence materials: wood, vinyl, or composite wood (in picket, shadowbox, or post-and-rail formats); or metal (aluminum or wrought iron decorative fencing).
 - B. Perimeter and retaining wall materials: stacked stone; tinted split-face concrete masonry units; brick; stucco-finished block.
2. The director may approve materials that are comparable in appearance and durability to the materials listed in subsection 3.a.1, above.
3. Chain link fences are not allowed in front yards.
4. Fences and perimeter walls shall be white, black, gray, or natural or earth tones, regardless of material.

b. Orientation and Height.

1. Privacy fences and perimeter walls shall be arranged and designed so as not to prevent visibility between the sidewalk and the principal building entry in front yards.
2. All privacy fences shall be constructed to orient any exposed structural framework to the interior of the fenced property.
3. No fencing or perimeter wall taller than three feet that is located between the principal building and the street that the principal building entry faces shall exceed 25 percent opacity [See photos 18.29.06.007.A and 18.29.06.007.B]
4. No fence greater than six feet in height shall be installed within a front yard unless a building permit that is for or includes the fence has

been issued by the City, and all portions of the fence that are greater than three feet in height are set back from the front lot line as provided in subsection 2.b.



Photo 18.29.06.007.A



Photo 18.29.007.B

A low front yard fence between the sidewalk and porch is desirable. (Top: 8th Street Historic District; bottom: 12st Street Historic District, Golden, Colorado)

5. In order to allow for visual access, fences, walls, or hedges that are used to separate open space areas from public rights-of-way:
 - A. Shall not exceed 50 percent opacity; or
 - B. Shall be less than two feet 10 in. in height.
6. Fences that are located within a sight distance area for a street, driveway, alley, or intersection shall conform with the requirements for such sight distance areas contained in the City's Street, Sidewalk, and Drainage Specifications.

4. SPECIALIZED SECURITY FENCING

Barbed wire, razor wire, and electric fences shall not be permitted unless required by the city as a condition of approval of a special use permit.

5. TEMPORARY FENCING

- a. Temporary fencing utilized for the purposes of screening construction shall conform to the set-back standards identified in subsection 3.b.
- b. Temporary fencing utilized for the purposes of screening construction shall not exceed 8 ft. in height and shall be opaque.
- c. Temporary fencing used to provide temporary security in response to a demonstrated need (e.g., to secure a damaged building) may be approved by the director. The type and height of the fencing shall correspond to the demonstrated need.
- d. Temporary fencing utilized shall be removed after not more than 18 months, except in cases where the City approves a longer term for temporary fencing (e.g. in a construction staging plan), in order to protect public safety and provide security.

6. RETAINING WALLS

Retaining walls shall consist of materials consistent with the natural surroundings and/or proposed buildings. Where retaining walls exceed 8 ft. in height, they shall be designed in a manner that steps the retaining walls and provides landscaping on each step.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.008 SCREENING AND BUFFERING

1. APPLICABILITY

The standards of this section require screening and buffering in certain circumstances that are described herein.

2. SCREENING

- a. Outdoor Storage. All outdoor storage areas shall be screened from public view and rights-of-way and from adjacent property by use of landscaping, opaque fencing, berms or a combination of landscaping and other structural elements to a minimum height of six feet and a maximum height of eight feet.
- b. Nonresidential Parking and Loading. Any non-residential use that is contiguous to or facing any residential use zone shall screen its parking areas, loading docks or similar uses through the use of landscaping elements. Selected species shall grow to a minimum height of four feet.
- c. Trash and Recycling Containers and Enclosures.
 - 1. All trash and recycling containers shall comply with the requirements of chapter 5.03, Golden Municipal Code, and shall not be located in the public right-of-way.
 - 2. Trash and recycling enclosures shall be integrated into the site to minimize enclosure visibility and accommodate truck access. Enclosures shall accommodate receptacles for both trash and recycling pick-up. Trash enclosures shall be constructed of durable, opaque materials and the color, texture, and architectural detailing shall be consistent with the overall site and building design.
- d. Roof-Mounted Equipment. Roof-mounted electrical, heating, ventilation or air conditioning units, and mechanical equipment shall be placed or screened such that the equipment is not visible from any point ten feet above the ground at any point within a 200 ft. radius of the building upon which it is mounted. Building-mounted cell antennae, cable dishes, and roof ladders shall be located so as to minimize their view from adjacent properties.
- e. Ground-Mounted Equipment. Utility cabinets, meters, generators, and other ground-mounted mechanical equipment shall be contained within the building or otherwise fully screened.

3. BUFFERING

- a. Buffering of non-residential use zones from residential use zones shall occur for the length of the shared property line through one of the following methods:
 - 1. A solid fence or wall of at least six feet in height; or
 - 2. A 10 ft. wide vegetated buffer with hedge composed of coniferous hedge-forming 5-gal. shrubs, planted at a maximum of 10 ft. on center for the length of the buffer; or
 - 3. A vegetated berm that does not exceed a slope of one foot of rise for each three feet of run, planted with coniferous hedge-forming 5-gal. shrubs, planted at a maximum of 10 ft. on center for the length of the buffer.
- b. Screening such as low fencing, shrubs, or other landscape elements shall be provided between parking lots and streets, walkways, or trails.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.009 SITE PREPARATION AND IRRIGATION

1. SITE PREPARATION

- a. Prior to installing irrigation systems and planting, all sites for plantings shall incorporate soil amendments at a rate of three cubic yards per 1,000 s.f. to a depth of at least 6 in.
- b. Existing topsoil shall be salvaged and stockpiled for use in amending area soil except in instances where the topsoil is not suitable for that purpose.
- c. Trees that must be removed shall be disposed of as organic waste, including chipping or composting, and when possible used on site for mulch or soil amendment.

2. IRRIGATION

- a. Irrigation System Required; Exceptions.
 - 1. Except as provided in subsection 2.a.2, below, irrigated turf areas and live planting ar-

eas in excess of 100 s.f. in area shall be served by a permanently installed irrigation system.

2. The director may waive the requirement of subsection 2.a.1, above, upon a determination that an irrigation system is unnecessary as a result of the size, location or alternate maintenance accommodations applicable to the area (e.g., the area is planted with Xeric plants that do not require a permanent irrigation system).

b. Irrigation System Design.

Landscape plans shall demonstrate that irrigation systems are designed as high-efficiency systems that minimize overspray and water waste through use of appropriately placed (and where appropriate, directional) sprinkler heads, automatic controllers, rain sensors, moisture sensors and, for non-turf areas, subsurface drip systems.

c. Planting Arrangements.

Plants with similar water requirements shall be grouped together to avoid over-watering.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

18.29.06.010 MAINTENANCE AND WARRANTY OBLIGATIONS

1. MAINTENANCE OF SIDEWALKS AND LANDSCAPE STRIPS

City right-of-way, or the area between the flowline of the street and the street-facing lot line, shall be maintained by the owner of the adjoining property.

2. CONTINUING OBLIGATIONS

- a. Provisions for landscaping, screening and maintenance are a continuing obligation of the property owner, and where approved trees, shrubs or other landscaping materials die or are removed, it shall be the responsibility of the owner to replace them with materials of a comparable nature and size to those originally approved. Replacement shall occur in the next planting season, but in any

event, such replacement time shall not exceed one year. Any replacement which conforms to the requirements of this subsection shall not be considered an amendment to the site development plan.

- b. The owner of the property shall be responsible for the proper maintenance of the area subject to an approved site development plan. That area shall be deemed to include an area as measured from the back of the curb line to, and including all areas subject to the approved site development plan. Landscaping shall be regularly maintained including necessary watering, weeding, pruning, pest control and replacement of dead or diseased plant material.

3. PERFORMANCE WARRANTIES

A performance warranty in the minimum amount of 20 percent of the cost of installation of landscaping shall be provided to the City for projects where the City-approved cost estimate for landscaping exceeds \$25,000. This performance warranty shall be held until completion of the first full growing season after the growing season of installation, and shall secure the replacement of any dead or diseased plant material.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division VII ADJUSTMENTS

18.29.07.001 ALTERNATIVES AND ADJUSTMENTS TO FORM, DESIGN, AND LANDSCAPING STANDARDS

1. IN GENERAL

- a. Alternative Standards. In certain circumstances, alternative standards may apply to proposed development. These include modifications to existing buildings that qualify as "mostly preserved buildings."

- b. Standards That May Be Adjusted.** This division allows for adjustments to certain standards that are set out in this chapter 18.29, as provided herein. The following standards may be adjusted:

1. **Form Standards.** Form standards are the standards that are set out in division III, sections 18.29.03.003, 18.29.03.006, 18.29.03.009, 18.29.03.012, 18.29.03.015, 18.29.03.018, 18.29.03.021, 18.29.03.024, and 18.29.03.027.
2. **Design Standards.** Design standards are the requirements that are set out in division III, sections 18.29.03.004, 18.29.03.007, 18.29.03.010, 18.29.03.013, 18.29.03.016, 18.29.03.019, 18.29.03.022, 18.29.03.025, and 18.29.03.028.
3. **Bulk Standards in Legacy Use Zones.** Bulk standards are the standards set out in division IV.
4. **Landscaping, Fencing, and Perimeter Wall Standards.** Landscaping, fencing, and perimeter wall standards are the requirements that are set out in division VI.

c. Limitations.

1. No adjustment pursuant to this division shall be used to increase the number of permissible dwelling units, including allowing accessory dwelling units that are not otherwise allowed.
2. Parking standards in division V are not subject to this division. Parking standards may be modified only as provided in chapter 18.12.
3. Guidelines, statements of intent, and policy statements in this chapter are not requirements, and are therefore not subject to adjustment.
4. "Special characteristics," such as the percentages of a lot that are within specified building envelope areas and the designation of "open side" and "closed side" cannot be

adjusted, although the standards that apply to those special characteristics may be adjusted.

2. MOSTLY PRESERVED BUILDINGS

- a. Generally.** In order to preserve the street-facing elements of existing buildings in certain form zones, additional flexibility is provided in the middle building envelope area for certain building form types for those buildings that qualify as a "mostly preserved building."
- b. Criteria for Qualification.**
 1. The director shall qualify a building as a "mostly preserved building" if 75 percent or more of the exterior facade, measured as the surface area, is preserved; and 75 percent or more of the front facade's roof line, measured as the surface area, is preserved.
 2. If the building is located within an historic district, the director's qualification of the building pursuant to subsection 2.b.1, above, shall not be final unless and until the Historic Preservation Board conducts certificate of appropriateness review pursuant to sections 18.58.060 and 18.58.070. A building's qualification as a mostly preserved building shall be conditioned upon the applicant's compliance with any commitments made by the applicant on the record as part of the certificate of appropriateness review and specified in the Board's resolution on the certificate of appropriateness.

3. MINOR ADJUSTMENTS

- a. Minimum Setbacks.** As to minimum setbacks, adjustments may be approved if:
 1. The adjustment will not allow for an increase in floor area that exceeds the floor area allowed for the form type;
 2. The adjustment is necessary to overcome a practical difficulty that is presented by the unusual physical conditions of the lot, which

may include the location and configuration of existing buildings, structures, or natural features; and

3. The adjustment does not reduce the setback by more than 20 percent.
- b. **Maximum Setbacks.** As to maximum setbacks (including porch setbacks) adjustments may be approved if the adjustment is necessary to avoid construction within an easement that does not allow for construction of buildings or structures.
- c. **Maximum Stories.** As to the maximum number of stories, adjustments may be approved if the adjustment is necessary because the lot upon which the building is located has a slope that exceeds 8 percent (exposing the basement), and the building height does not exceed the maximum building height that is allowed for the form type.
- d. **Orientation of Porches and Building Entrances.** As to orientation of porches or building entrances, where form standards require that the porch and the principal entrance of the building on a street corner lot face the side street, adjustments may be approved to allow the porch and principal entrance to face the primary street, provided that the side street is three or more lanes in width (including center left-turn lanes), and the primary street has a lower capacity or traffic volume.
- e. **Building Envelope Areas.** As to building envelope areas ("BEA"), adjustments may be approved to allow for:
 1. The encroachment of eaves, overhangs, chimneys, and mechanical equipment into BEAs where buildings are not otherwise allowed; or
 2. An encroachment into, or increase in lot cover within, a BEA, provided that such encroachment or increase is existing and necessary to preserve an existing house or cottage form;
 3. An encroachment into a BEA of not more than 5 ft. in order to resolve a practical difficulty, provided that the open area lost to the encroachment is offset by open area elsewhere on the lot;
- f. **Porches and Balconies.**
 1. As to requirements for porches set out in division III of this chapter, adjustments may be approved to allow for reduction or elimination of porch requirements for house, cottage (whether individual or within a cluster or compound), and duplex forms if the design and size of the proposed porch (or elimination of the proposed porch) is consistent with the design and size of not less than 50 percent of comparable forms within 200 feet (or to the next intersection, whichever distance is shorter) in either direction on the same side of the street.
4. An increase in lot cover within at BEA of not more than 5 percentage points in order to resolve a practical difficulty, provided that the open area lost to the increase in BEA lot cover is offset by open area elsewhere on the lot.

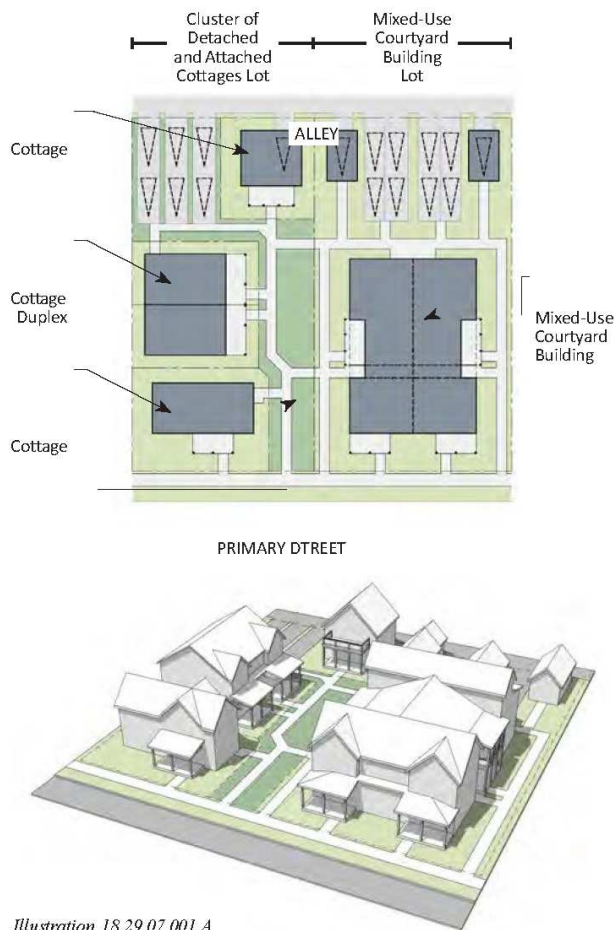


Illustration 18.29.07.001.A

Illustration 18.29.07.001.A: The illustration shows a lot diagram and bird's-eye view of a cluster of detached and attached cottages form type next to a mixed-use courtyard building form type. The character, by the location of the common court (which provides additional building separation, light, and air for both form types), and the internal pedestrian connections that access the common court, the buildings, the street, and parking areas. One alternative design could place all of the land outside of the building footprints into common (owners' association) ownership (expanding the common court across all green areas), and allow for fee-simple ownership of the land under the buildings. The director could approve that design because it does not change the physical layout.

2. As to requirements for balconies set out in division III of this chapter, adjustments may be approved to allow for reduction of the number or area of balconies, provided that:

A. The reduction is justified by:

- i. The context of the building (e.g., adjacency to an industrial area, a limited access highway, etc.);
- ii. The orientation of the building (e.g., north-facing facades, adjacency to lots with zero side setbacks); or
- iii. The anticipated use of the building (e.g., offices, health care facilities, etc.); and

B. If the building is to be used for residential purposes, the loss of outdoor amenity space is compensated for elsewhere on the lot.

- g. Landscaping, Fencing, and Perimeter Walls. As to requirements set out in division VI of this chapter:

1. Adjustments may be approved for use of attached sidewalks pursuant to section 18.29.06.005.1.c.
2. The sidewalk width may be reduced below the standard required in section 18.29.06.005.1.b if at least one of the following are met:
 - A.** A wider sidewalk would create an obvious disruption of the sidewalk or landscape strip pattern along the same side of the block [see illustration 18.29.06.005.A] and existing pedestrian traffic is minimal and not anticipated to materially increase;
 - B.** The application is for a site modification and/or building expansion that is located only in the middle or rear building envelope area ("BEA") as to form types that have BEA-specific standards, or more

- than 50 feet from the front street as to form types that do not have BEA-specific standards;
- C.** A wider sidewalk would cause an existing driveway to be less than 18 feet long when measured from the edge of the sidewalk;
 - D.** Utility conflicts, drainage, grades and slopes, infrastructure conflicts, or other physical challenges that make the provision of bringing a wider sidewalk into compliance undesirable from a construction and long-term service perspective; or
 - E.** Installation of a wider sidewalk would cause one or more existing, healthy trees on the "recommended plant list" that are at least two inches DBH to be removed or damaged.
- 3.** The existing sidewalk may be allowed to be maintained at its existing width where all of the following requirements are met:
- A.** At least one of the criteria of 18.29.07.001.3.g.2 is met;
 - B.** The application is for an addition to an existing structure or for a new detached accessory structure and is not: (i) A construction of a new principal dwelling on a vacant lot; or (ii) a scrape and rebuild of a principal dwelling on the site, including processes which leave only a nominal portion of the existing structure, such as demolishing the structure and leaving only one building wall;
 - C.** The application does not impact the existing sidewalk by changing or modifying the existing curb cut width or driveway access location; and
 - D.** The existing or proposed curb cut width and driveway access location meet the applicable form standards, such as allowed width and location when alley access is proposed, and engineering regulations for separation from the property line.
- 4.** Landscape strip width may be reduced provided there is sufficient room for healthy growth of required landscaping within the landscape strip and if the application demonstrates that:
- A.** A seven-foot-wide landscape strip would create an obvious disruption of the sidewalk pattern along the same side of the block (e.g., if the existing landscape strip is narrower or the existing sidewalk is attached);
 - B.** Provision of a seven-foot-wide landscape strip would interfere with the continuity of front lot lines along the block face or result in a jog in the sidewalk;
 - C.** The application is for a site modification and/or building expansion that is located in the middle or rear building envelope area ("BEA") as to form types that have BEA-specific standards, or more than 50 feet from the street as to form types that do not have BEA-specific standards;
 - D.** A seven-foot-wide landscape strip would cause an existing driveway to be less than 18 feet long when measured from the edge of the sidewalk;
 - E.** There is insufficient dimension to accommodate a seven-foot-wide landscape strip;
 - F.** Utility conflicts, drainage infrastructure conflicts, or other challenges make provision of a seven-foot-wide landscape strip undesirable from a construction and long-term service perspective; or
 - G.** Installation of a seven-foot-wide landscape strip would cause one or more existing, healthy trees on the "recommended plant list" that are at least two inches DBH to be removed or damaged.

5. Adjustments may be approved for the reduction of any required landscape area (e.g., parking lot landscape islands) by not more than five percent, provided that:
 - A. There is sufficient room for healthy growth of required landscaping within the landscape area; and
 - B. Due to the size or geometry of the subject property, the reduction is necessary to allow for the accommodation of other code requirements (e.g., required parking spaces, required parking aisle widths, required sidewalks, etc.).
 6. Adjustments may be approved to improve buffering between a residence and an adjoining collector or arterial street, provided that no fence or perimeter wall within a required building setback area exceeds six feet in height.
 7. Adjustments may be approved to allow for an alternative arrangement of the required plantings within a development (e.g., trees that are required on private lots may be planted in common areas, etc.), provided that:
 - A. The character of the streetscape to be provided by the lot is not compromised;
 - B. There is sufficient room where the landscaping is installed to allow for its healthy growth; and
 - C. The arrangement does not interfere with access, utilities, or drainage or utility easements.
- h. Access.**
1. **Private Access Easements and Access Tracts.** For the purposes of this chapter, adjustments may be approved to allow alleys to be public rights-of-way. The City may require that alleys be created through private easements or that they be delineated on site development plans. Where an applicant subdivides property in a form zone, the plat shall delineate all private alleys as tracts.
 2. **Traffic Safety Exceptions.** In general, alleys are accessed from side streets. However, if reasonably safe access to the side street is infeasible due to traffic volumes or physical conditions (e.g., grades, sight distances, obstructions, or higher-level functional classifications), adjustments may be approved to allow alternate access upon a finding that:
 - A. The alternative access does not substantially compromise the character and function of the proposed form type; and
 - B. The alternative access is not inconsistent with the character or function of other lots along the same primary street frontage; and
 - C. The alternative access provides a material public safety or traffic circulation benefit.
 3. **Feasibility Exceptions.** For those form types that require rear or side alley access, and where the creation of a continuous alley that crosses two or more properties proves infeasible due to physical constraints or an inability to create an access agreement among all impacted property owners, adjustments may be approved to allow a rear or side drive access under the following conditions:
 - A. The number of curb cuts along the street frontage of the block is minimized using shared access drives; and
 - B. Curb cuts shall be 20 ft. in width; and
 - C. The rear or side access drive shall take the form of a shared access drive along the rear or side property line, with an easement in place for access by adjacent property owners; and
 - D. Where an alley could be installed through the block over time, rear drives shall provide for future connectivity.
 - i. **Alternative Lot and Tract Layout.** In order to allow for alternative ownership and maintenance arrangements, lot and tract lines within a subdivi-

sion that is created in compliance with this chapter may be moved or eliminated, provided that the physical layout of buildings, landscaped areas, and parking would otherwise be allowed without the modification. For example, within a clustered subdivision, the minimum lot area for cluster lots may be reduced to accommodate a corresponding expansion of the common court area in order to provide for common maintenance of all landscape areas or, alternatively, the common court may be created by permanent easements in lieu of by a tract in order to provide for private maintenance of landscape areas by each individual lot owner. [See illustration 18.29.07.001.A.]

- j. **Open Side/Closed Side Orientation.** As to buildings with a required open side and closed side, where design standards require that the open side and closed side face a certain direction, an adjustment may be approved, provided that the adjustment:
 1. Enhances the privacy of an adjoining lot by orienting the open side away from it; or
 2. Enhances the privacy or function of the lot by allowing for the closed side to face a high-volume side street; or
 3. Allows for the open side to face a significant view (or face away from a poor view); or
 4. Maintains the consistency of building orientation along the block face.
- k. **Location of Parking.** For form types that restrict the location of parking, adjustments may be approved that allow for parking spaces or areas in alternative locations as necessary to:
 1. Maintain consistency of parking locations along a block face; or
 2. Avoid extensive grading of a slope that is greater than 8 percent.
- l. **Bulk Standards in Legacy Use Zones.** Adjustments to height and setback standards set out in division IV may be approved to accommodate an additional story on an existing building over an area that is nonconforming as to front or side set-

backs, add a front porch or covered entry to a building or extend or reconstruct a nonconforming wall, provided that:

1. The extension of an encroaching wall in a side setback shall not exceed 50 percent of the horizontal dimension of the existing encroaching wall;
2. New construction that encroaches into front setbacks is limited to open entries and porches, which may encroach not more than five feet;
3. Reconstruction of existing walls that encroach into front setbacks is allowed;
4. In the RE legacy use zone, the side setback on the building elevation that is affected by the improvement is not less than 5 ft., and the height of the building where it encroaches into the setback does not exceed 20 ft.

4. MAJOR ADJUSTMENTS

- a. **Major Adjustments for Practical Difficulties.** Major adjustments to any form, design, or landscaping, fencing, and perimeter wall standard may be approved, provided that:
 1. **All Applications.** For all applications:
 - A. The adjustment is appropriate to overcome a practical difficulty that is presented by the unusual physical conditions of the lot, which may include (but are not limited to) the location and configuration of existing buildings, structures, or natural features, an irregular lot shape, or the elevation of the lot compared to other lots in the vicinity;
 - B. The adjustment will not materially reduce the light, air, or privacy of adjoining lots; and
 - C. The adjustment does not materially undermine the purposes and guidelines (considered in their totality) that are associated with the standards sought to be adjusted.

2. Minimum Setbacks. With regard to adjustments to minimum setbacks:
 - A. The adjustment does not reduce the setback by more than 50 percent; and
 - B. The adjustment will not create a fire hazard to, or a building code or fire code nonconformity on, the adjoining lot; and
 - C. The adjustment will not interfere with required sight distance triangles or encroach upon drainage, access, or utility easements.
3. Building Height. With regard to building height:
 - A. The adjustment does not allow for the addition of usable floor area; and
 - B. The adjustment improves the architectural presentation of the building; and
 - C. The adjustment does not increase building height by more than 15 percent.
- b. Major Adjustments for Enhanced Compatibility. Major adjustments to any form, design, or landscaping, fencing, and perimeter wall standard may be approved, provided that:
 1. All Applications. For all applications:
 - A. The proposed adjustment will maintain or enhance the character, compatibility, or function of the proposed development in its particular context compared to development that could occur without the adjustment (including development of an alternative permissible form type); and
 - B. Within form zones, the adjustment does not compromise the general intent of the form standards, and, where applicable, the intent of the specific form standard for which the adjustment is sought, as described in, as applicable, sections 18.29.03.002, 18.29.03.005, 18.29.03.008, 18.29.03.011, 18.29.03.014, 18.29.03.017, 18.29.03.020, 18.29.03.023, and 18.29.03.026.
 2. Major Adjustments of Design Standards. An adjustment to any design standard in division III may be approved if it is demonstrated that the proposed design advances the intent of the design standard for which the adjustment is sought in a manner that provides a comparable or better aesthetic or functional outcome than would be achieved through strict compliance with the referenced standard. In the evaluation of the aesthetic or functional impacts of a proposed adjustment, the design guidelines, if any, that address the same topic as the design standard sought to be adjusted shall be considered.
 3. Major Adjustments of Landscaping, Fencing, and Perimeter Wall Requirements. An adjustment to any landscaping, fencing, or perimeter wall standard in division VI may be approved if it is demonstrated that the proposed design advances the purpose and intent of division VI and the intent (if any) of the specific standard for which the adjustment is sought in a manner that provides a comparable or better aesthetic or functional outcome than would be achieved through strict compliance with the referenced standard. In the evaluation of the aesthetic or functional impacts of a proposed adjustment, the design guidelines, if any, that address the same topic as the landscaping, fencing, or perimeter wall standard sought to be adjusted shall be considered.

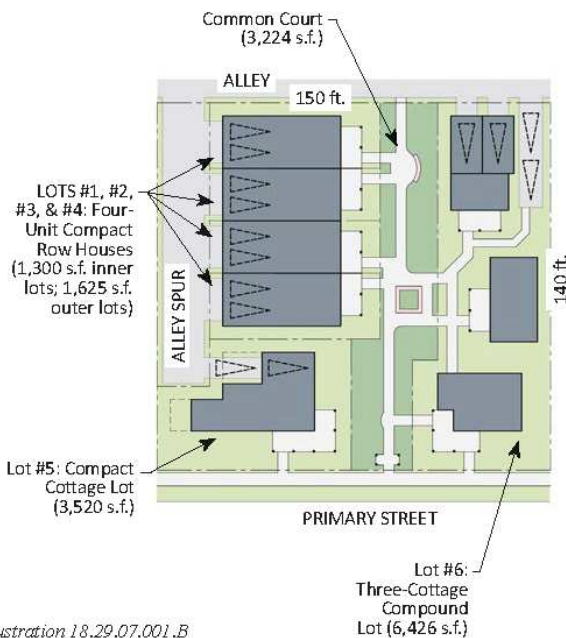


Illustration 18.29.07.001.B

Illustration 18.29.07.001.B: Above is an example where a larger lot with 150 feet frontage and 140 feet depth is subdivided into six smaller lots, applying three different building form types. Four of the lots is used for the four-unit compact row house form type. One of the lots is used for a compact cottage. The other lot is used for a three-cottage compound. A common court provides access from the street to the three-cottage compound and the row houses (the compact cottage is accessed directly from the street). An alley spur provides vehicular access to the compact cottage and the row houses. That the building with the largest footprint (the row houses) is tucked away in the rear corner, so it is the least visible from the street, a condition that is likely to increase the compatibility of this development in the context of many of the core neighborhood areas in Golden. Among other things, approval of this development would require a major adjustment to lot frontage requirements to allow for common court frontages for building form types that do not otherwise allow common court frontages.

4. Major Adjustments Related to Combinations of Forms. An adjustment may be approved to allow for a combination of form types to be organized in a way that is not contemplated by this chapter 18.29 (e.g., a combination of row homes and cottages in a subdivision that is designed in a way that resembles a compound [See illustrations 18.29.07.001.B, previous page, and 18.29.07.001.C]), if it is demonstrated that:
 - A. All of the form types are allowed in the form zone in which the subject property is located; and
 - B. The massing of the development is consistent with other development on the same block face or appropriately transitions to the massing of adjoining lots; and

- A. All of the form types are allowed in the form zone in which the subject property is located; and
- B. The massing of the development is consistent with other development on the same block face or appropriately transitions to the massing of adjoining lots; and

- C. The design of the development allows for safe and efficient circulation of vehicles and pedestrians; and
- D. The design of the development brings the building forms together in an integrated arrangement (e.g., with buildings that relate to each other, shared access or shared amenities, and consistent or complimentary architectural styles and building materials); and
- E. The development includes outdoor amenities or common court areas that are appropriately designed and scaled to its intended use.

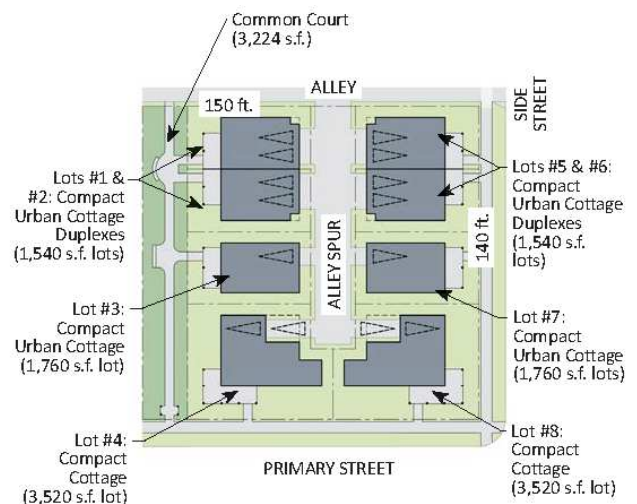


Illustration 18.29.07.001.C

Illustration 18.29.07.001.C: Above is example where a large street corner lot is subdivided into eight smaller lots, four for compact urban cottage duplex building form types, two for compact urban cottages, and two for compact cottages. This deep street corner lot provides an opportunity to create and utilize shallow lots. Among other things, approval of this development would require a major adjustment to lot frontage requirements to allow for common court frontages for building form types that do not otherwise allow common court frontages.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023; Ord. No. 2273, § 2(Exh. A), 8-12-2025)

18.29.07.02 ADJUSTMENTS PROCEDURE

1. IN GENERAL

- a. Minor Adjustments. Applications for minor adjustments are decided by the director. The director, in

their discretion, may refer any application for a minor adjustment to the planning commission for review and decision at a public meeting.

- b. Major Adjustments. Applications for major adjustments are heard and decided by the planning commission.

2. APPLICATIONS

- a. Generally. Applications shall be submitted on a form approved by the director, and accompanied by the required application fee. All standards for which adjustments are sought must be identified, along with the corresponding location on the site development plan ("SDP") that is affected by the proposed minor adjustment. For major adjustments that are submitted prior to an SDP application, such adjustments shall be shown on conceptual plans.
- b. Minor Adjustment Timing. An application for a minor adjustment shall be included with the related application for SDP approval.
- c. Major Adjustment Timing.
 - 1. An application for a major adjustment may be submitted prior to or concurrently with an application for SDP approval.
 - 2. If a major adjustment is approved prior to a site development plan, an SDP application that is consistent with the approval shall be submitted within one year after the approval or the approval shall lapse.
 - 3. The director shall not approve SDPs that involve major adjustments unless and until the planning commission approves the major adjustment.

3. PUBLIC NOTICE

- a. See section 18.10.040 for notice and public hearing procedures.

4. PLANNING COMMISSION DECISION

- a. Referrals of minor adjustments. The planning commission shall decide referred minor adjustments at a public meeting.
- b. Major adjustments. The planning commission shall, as provided in the public notice, conduct a public hearing, review the proposed major adjustment against the applicable major adjustment criteria contained in section 18.29.07.001, and at the close of the public hearing, render its decision.
- c. Approval conditions. The planning commission may impose conditions of approval that will secure substantially the objectives of the standard that is adjusted, and that will substantially mitigate potential adverse impacts on the environment or on adjacent properties, including, but not limited to, additional landscaping or buffering.

5. ANNOTATIONS

The director shall annotate approved SDPs to indicate approved adjustments.

6. APPEALS

Appeals shall be processed as provided in section 18.10.040.

(Ord. No. 2252, § 6(Exh.E), 1-28-2025; Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Division VIII RULES OF MEASUREMENT

18.29.08.001 RULES OF MEASUREMENT

1. IN GENERAL

This section 18.29.08.001 provides explanations of how to make determinations and measurements for standards contained in this chapter 18.29.

2. BUILDING ENVELOPE AREAS

- a. In General. Building envelope areas are divisions within a lot that are represented by a percentage of average lot depth. The boundary lines of build-

ing envelope areas run parallel to the rear lot line.
[See illustrations 18.29.08.001.A and 18.29.08.001.B]

- b. **Front Building Envelope Area.** The front building envelope area is the building envelope area between the front (primary street) lot line and a line parallel to the rear lot line that is between the front lot line and the rear lot line, a distance from the midpoint of the front lot line (measured as a percentage of average lot depth) that is specified for the building form type.
- c. **Middle Building Envelope Area.** The middle building envelope area is the building envelope area between the front building envelope area and the rear building envelope area.
- d. **Rear Building Envelope Area.** The rear building envelope area is the building envelope area between the rear lot line and a line parallel to the rear lot line that is between the rear lot line and the front lot line, a distance from the rear lot line (measured as a percentage of average lot depth) that is specified for the building form type.

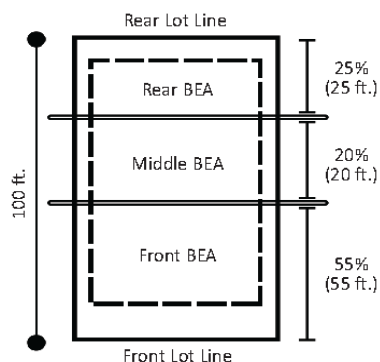


Illustration 18.29.08.001.A

Illustration 18.29.08.001.A: Illustration 7.1.1 shows the identification of building envelope areas on a rectangular lot.

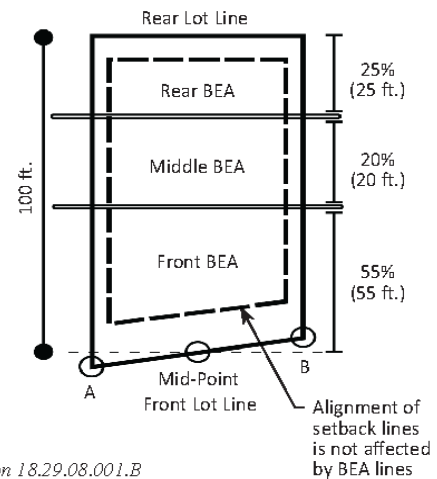


Illustration 18.29.08.001.B

Illustration 18.29.08.001.B: Illustration 7.1.2 shows the identification of building envelope areas on a trapezoidal lot.

3. BUILDING HEIGHT

- a. **Vertical distance rule.** Building height in vertical distance is measured from the finished grade to the highest point of the roof surface. For this rule of measurement, finished grade means the average of the finished ground level at the center of each wall of a building containing ten percent or more of the combined perimeter length of all walls of the building, measured either 10 ft. away from the building, or at the lot line if the building is less than 10 ft. from the lot line. If any two points used in the calculation of grade differ by 12 or more ft., finished grade is defined as an elevation 5 ft. higher than the lowest point. [See illustration 18.29.08.001.C.]

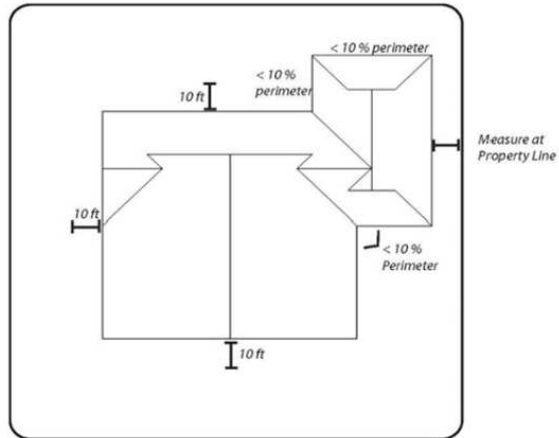


Illustration 18.29.08.001.C

Illustration 18.29.08.001.C: The grade at each wall is measured 10 feet away from the building, or at the lot line if the building is less than 10 feet away.

- b. Multiple Building Envelope Areas (BEAs) Rule.**
 1. When multiple BEAs are permitted on a lot, the building height in vertical distance shall be measured from the finished grade within each BEA to the highest point of the roof surface within each BEA, as provided in paragraph a, above.
 2. If the units within attached buildings are located on separate lots (e.g., duplexes and row house building forms), the building height in vertical distance is measured from the finished grade of each lot to the highest point of the roof surface for each unit, as provided in paragraph a, above.
- c. Exceptions to Building Height Limitations.**
 1. Building height limitations of this chapter shall not apply to spires, belfries, cupolas, chimneys, ventilators, skylights, parapet walls, roof-mounted solar or photovoltaic panels, or cornices without windows, provided that such features shall not extend more than five feet higher than the applicable height limit.
 2. Building height limitations shall also not apply to antennas or necessary mechanical infrastructure and equipment usually carried above the roof level, provided that such features shall not extend more than ten feet higher than the form height limit.
- d. Stories Rule. Building height in stories applies to Form Zones and shall be measured as the total number of building stories.**
 1. In General.
 - A.** A story shall count towards the total number of building stories when it has a finished floor surface entirely above finished grade.
 - B.** The floor-to-floor measurement of a single story shall not exceed 12 ft. for residential stories and 14 ft. for non-residential stories, except where a pitched roof line provides an extension to the upper-most story.
 2. Multiple Building Envelope Areas. When multiple BEAs are permitted on a lot, the number of stories shall be measured from the finished grade independently within each BEA.
 3. Half-Stories.
 - A.** A half-story is an uppermost story of a building with a side wall height, measured from the finished floor of the uppermost story to the eave line of the building, of not more than 6 ft. for at least 40 percent of the perimeter of the building.
 - B.** Dormers that are eight feet or less in width and originate from a wall with a plate height that is 6 ft. or less in height shall be counted towards the 40 percent perimeter identified in subsection 3.d.3.A.
 - C.** Where the exterior wall of the uppermost floor is recessed from the ground-floor building wall, the maximum side wall height to count towards the 40 percent perimeter identified in subsection 3.d.3.A. may be increased by one foot for every one foot the wall is inset from the edge of the foundation, up to the maximum story height set out in subsection 3.d.1.B.
 - D.** Areas that are not counted towards the 40 percent perimeter identified in subsection 3.d.3.A. shall not exceed one story in height, as measured in subsection 3.d.1.
 4. Partially Subterranean Stories (e.g., Walk-out Basements). If two or more side walls have a side wall height, measured from finished grade to the first finished floor above finished grade, of more than 6 ft., the floor shall be considered a story.

5. Side Wall Height (for Half-Story and Partially Subterranean Story Measurements).

- A.** Side wall height is a measurement of height taken along the side wall. [See definition of "side wall" in section 18.04.020]
- B.** For any portion of a building where the side wall extends above the elevation of the roof, or where there is a parapet, railing, or similar element above the elevation of the roof, the height of the side wall, unless otherwise indicated, is measured to the highest point of the exterior wall, parapet, railing, or similar element.

- e.** Building Height as Percentage of Building Area rule. Some building form types apply percentages of building footprints to control building height. For instance, they require 70 percent of the building footprint to have a maximum building height of 28 ft. (as depicted by the shaded plane below) and 30 percent of the building footprint to have a maximum building height of 35 ft. This restriction does not specify where 30 percent of the building may be taller. [See illustration 18.29.08.001.D next page.]



Illustration 18.29.08.001.D

Illustration 18.29.08.001.D: Illustration 18.29.08.001.D is an illustrative example of how height relates to the percentage of building footprint.

4. BUILDING SEPARATION

- a.** In General. Building separation is the distance from the nearest point of one building's foundation to the nearest point of the foundation of the building from which the separation is measured.

- b.** Limited Exception. Minor architectural elements (e.g., cornices, canopies, eaves, or similar features) and materials (e.g., bricks) from each of the buildings are permitted to encroach into the required separation distance by up to one foot.

5. FLOOR AREA

- a.** In General. Except as provided in subsections 5.b, 5.c, 5.d, and 5.e, below, floor area is measured according to the definition of "floor area" in section 18.04.020.
- b.** Partially Subterranean Stories. For partially subterranean stories (e.g., walkout basements) [See subsection 3.d.3], floor area shall be calculated as the product of the longest horizontal distance of side building wall that is exposed more than 6 ft. from finished grade to the first finished floor above finished grade (such side building wall, an "exposed wall") times the longest horizontal distance of an intersecting exposed wall. For example, in the case of a walkout basement facing a 40 ft. wide rear building elevation that has a width of exposed wall of 8 ft. on one side and 10 ft. on the other, the floor area would be equal to 40 ft. times 10 ft. (the wider of the two exposed walls on the side building elevations), or 400 s.f.
- c.** Subterranean Stories. Building stories with side building walls that are not exposed more than six feet above finished grade are not counted towards the calculation of floor area for the purpose of this chapter 18.29.
- d.** Attics and Stairs. Attics are not counted towards the calculation of floor area for the purpose of this chapter 18.29. Stairwells are counted only on the first floor.
- e.** Detached Garages. Detached garages are not counted towards floor area for the purpose of this chapter 18.29, but they are counted towards lot coverage.

6. LOT COVERAGE

- a. Generally. Lot coverage is measured as the total covered area of the lot or BEA, divided by the area of the lot or BEA, as applicable.
- b. Inclusions. The following areas are included in the calculation of the covered area of the lot:
 - 1. Areas covered by a building or roofed structure (including shade structures such as pergolas), or extension of same, as measured from the foundation.
 - 2. Elevated decks or uncovered porches that have more than 30 in. of clearance above ground, and projections and cantilevers that extend more than 5 ft. from the building wall are measured from the exterior of the railing or framing.
- c. Exclusions. Covered areas do not include the following:
 - 1. Exterior cladding that does not project beyond the foundation by more than 4 in.
 - 2. Structures or portions of structures that do not extend more than 30 in. (or have more than 30 in. of clearance) above ground.
 - 3. Roof and covered structural overhangs extending no more than 2 ft. from the foundation, measured perpendicular from the exterior face of the exterior wall to the furthest edge of the projection.
 - 4. Fences, retaining walls, planter boxes, fountains, and play structures.
 - 5. Detached ground-mounted mechanical equipment serving permitted uses on the property (e.g., air conditioning units).

7. SETBACKS

- a. In General. All setbacks shall be measured from the lot line to that part of the building's foundation that are closest to the lot line. Setback standards are applied to all buildings and structures on the lot (except fences), unless an alternative setback standard is listed for a specific structure or building element type, or an encroachment is specifically allowed by paragraph b.
- b. Limited Exceptions.
 - 1. Minor architectural elements (e.g., cornices, canopies, or similar features) and materials (e.g., bricks) are permitted to encroach into the setbacks up to 6 in.
 - 2. Eaves, rakes, chimneys, scuppers, light fixtures, and similar appurtenances on the building face, are permitted to encroach into the setbacks up to 2 ft.
 - 3. Open staircases with side walls that are no more than 50 percent opaque are permitted to encroach into the side and rear setbacks up to 4 ft. where an alley is not present. Fire escapes may extend into a required setback not more than 6 ft., provided that all applicable building code requirements are met.
 - 4. Window-wells may encroach into the setbacks up to 3 ft.
 - 5. Structural retaining walls may encroach into the setback as necessary.
- c. Fire Separation Distances. The setback standards of this chapter 18.29 do not address fire separation distances. Building and fire code compliance is required.

(Ord. No. 2209, § 2(Exh. G), 6-6-2023)

Chapter 18.30

SPECIAL USE PERMITS

18.30.010 Intent.

Special uses are those which are appropriate for an applicable zone district only upon site specific review according to the standards and procedures established by this chapter, and formal approval by the city. The planning commission shall be vested with the power to hear and determine special use permit application as provided for herein.
(Ord. 1107, 1991)

18.30.020 Specific procedure.

Special use permits before the planning commission shall conform to the following specific procedure:

- (1) See sections 18.10.030 and 18.10.040 for application procedures.
- (2) Application for a special use permit may be filed by the owner of the property or the owner's designee of the property for which the special use permit is requested, on an application form provided by the city. The application shall be filed no later than 90 days following the neighborhood meeting required by section 18.30.010 above, and must include:
 - (a) A site or sketch plan of sufficient detail to reasonably describe the existing conditions of the property and any changes proposed in conjunction with the requested special use permit.
 - (b) A written description of the proposed special use including any conditions or restrictions to be imposed by the planning commission.
 - (c) Application filing fee as set by city council resolution.
 - (d) Certification of notice to mineral estate owners of record pursuant to C.R.S. 24-65.5-103. Such notice shall include all information required by such statute, as well as the time

and place of the initial public hearing, the nature of the hearing, the location of the property that is the subject of the hearing, and the name of the applicant.

- (3) Reserved.
- (4) Reserved.
- (5) See section 18.10.040 for notice procedures.
- (6) See section 18.10.040 for public hearing procedures.
- (7) Notwithstanding the above provisions, the process for issuance of special use permits for urban agriculture pursuant to sections 18.26.010, 18.26.015, 18.26.030 shall be as follows:
 - (a) Applicants shall submit a site plan with sufficient dimensions and measurements to depict the proposed location of the farmers' market, neighborhood farmers' market, or urban farm; operational information, including hours and days of operation; a parking plan; trash and recycling plan; and written approval from the owner of the property where the farmer's market, neighborhood farmers market, or urban farm will occur.
 - (b) Such city staff member(s) as designated by the director of community and economic development will review the application, and approve, conditionally approve, or deny the application, based upon the criteria set out in chapter 18.26. Such decision shall be in writing and shall include reasons for denial.
 - (c) The applicant may appeal any adverse decision to planning commission by requesting a hearing pursuant to chapter 2.35 of the Golden Municipal Code. Such a request shall be in writing and shall be filed with the office of the direc-

tor of community and economic development within 15 days of the adverse decision.

- (d) Special use permits granted under this provision are issued to a specific property only and shall not be personal to the applicant.
- (8) Special use permits shall be granted only if the usage will not authorize or require any construction or alteration in violation of any ordinances of the city including the planning and zoning ordinance and the city building code. The planning commission shall consider the following in making their decision:
 - (a) Compatibility with the surrounding area.
 - (b) Harmony with the character of the neighborhood.
 - (c) Whether there exists a need for the proposed development.
 - (d) The effect of the proposal upon future land uses or the development of the immediate area.
 - (e) Whether an exception from the standard code requirements or limitations is warranted by virtue of design and amenities incorporated in the development proposal.
 - (f) Whether the existing and proposed streets are suitable and adequate to carry the anticipated traffic within the development proposal area and its surrounding vicinity.
 - (g) Whether the proposal is in accordance with the Golden Comprehensive Plan.
 - (h) Whether the proposal will result in an over intensive use of land or depletion of natural resources.
 - (i) Whether the proposal will require a level of community resources greater than which is available.
 - (j) Whether the proposal will cause significant air, odor, water or noise pollution.
- (k) Whether the proposal will be detrimental to the health, safety or welfare of the present or future citizens of the City of Golden.
- (9) Special use permits may be approved for a period not to exceed five years except for the following uses which shall be eligible for a special use permit with no time limit:
 - (a) Public transportation structures and facilities, but not including offices, vehicle or equipment maintenance and storage uses, or park and ride facilities.
 - (b) Irrigation ditches.
 - (c) Public and private schools.
 - (d) Water supply wells, water treatment and storage facilities, sewage treatment facilities and water and sewer transmission facilities, other than those owned and operated by the City of Golden.
 - (e) Churches and places of religious assembly
 - (f) Commercial low power telecommunication sites.
 - (g) Vehicular drive-up or drive thru uses.
 - (h) College and university buildings with a greater height or smaller front setback than otherwise required by section 18.28.200.
 - (i) Residential multifamily use comprising more than 75 percent of a development's floor area.
 - (j) Conversions of nonconforming uses pursuant to section 18.44.240, conversion of a nonconforming use to a conforming use.
- (10) Special use permits may be renewed for successive periods of the same duration as the initial term upon application to the director of community development in accordance with the requirement set out in subsection 18.30.020(2) and procedures in chapter 18.10.

- (11) If a use allowed pursuant to a special use permit has been discontinued for more than 180 days, the special use permit shall expire, and any future use must be in conformance with the provisions of this title.

(Ord. No. 2252, § 7(Exh. F), 1-28-2025; Ord. No. 2228, § 7, 2-13-2024; Ord. No. 2100, §§ 11, 12, 3-7-2019; Ord. No. 2064, § 8, 10-12-2017; Ord. No. 2049, § 11, 2-9-2017; Ord. No. 2017, §§ 2, 3, 10-8-2015; Ord. 1941, § 3, 2013; Ord. 1919, § 2, 2012; Ord. 1914, § 8, 2012; Ord. 1787, § 1, 2007; Ord. 1700, § 2, 2005; Ord. 1699, § 2, 2005; Ord. 1331, 1996; Ord. 1179, exh. A, 1993; Ord. 1107, 1991)

18.30.030 Revocation.

(1) All stipulations submitted as part of the special use permit and all conditions imposed by the planning commission shall be maintained in perpetuity with the special use. If at any time the stipulations are not met or are found to have been altered in scope, application or design, the use shall be in violation of the special use permit. If after review of a complaint filed with the city alleging a violation of the special use permit, the director of community and economic development determines that the special use permit holder is not in violation of the special use permit, the director's decision can be appealed to the planning commission. The procedure for planning commission public hearing will be commenced upon written appeal to the city clerk within 15 days of the director of community and economic development's decision. Notice of the hearing to determine whether a violation exists shall be provided as required by section 18.10.040.

(2) If and when any special use is determined to be in violation of the special use permit, the director of community and economic development shall notify the permit holder in writing of said violation and shall provide the permit holder with a 30-day period in which to abate the violation.

(3) Failure of the permit holder to abate cited violations within 30 days shall result in the commencement of a hearing process with the planning commission to determine whether the

special use permit should be revoked. Notice of the hearing shall be provided as required by section 18.10.040.

(4) Following a proper hearing, the planning commission shall issue a decision either revoking or sustaining the special use permit.

(Ord. No. 2252, § 7(Exh. F), 1-28-2025; Ord. 1179, exh. A, 1993; Ord. 1107, 1991)

18.30.040 Appeal.

(1) See section 18.10.040 for appeal procedures. (Ord. No. 2252, § 7(Exh. F), 1-28-2025; Ord. 1919, § 3, 2012; Ord. 1107, 1991)

18.30.050 Judicial review.

City council's decisions may be appealed to the municipal court in accordance with the judicial appeals procedure.

(Ord. 1686, § 15, 2004; Ord. 1107, 1991)

Chapter 18.32

SIGNS*

18.32.010 Purpose.

The purpose of this ordinance is to exercise the zoning and general powers of the city to regulate the number, size, type and placement of signs in the city for the multiple purposes of:

- (a) Preserving signs as an effective means of communication in the community;
- (b) Improving traffic safety by insuring that signs do not obstruct the view of drivers or pedestrians and that they do not unreasonably distract drivers;
- (c) Preserving and improving the general welfare of the community by insuring that signs are an attractive part of the urban landscape rather than an intrusion upon it;
- (d) Minimizing or eliminating any adverse or nuisance effects of signs on the use of adjacent public and private property.

If any section, subsection, sentence, clause, phrase, portion, or part of this chapter is for any reason held to be invalid or unconstitutional by any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this chapter. The city council declares that it would have adopted this chapter and each section, subsection, sentence, clause, phrase, part, or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts, or portions be declared invalid or unconstitutional.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.015 Definitions.

Words used in this chapter shall be given their common ordinary meanings, except as follows:

***Editor's note**—Sec. 1 of Ord. No. 2047, adopted Jan. 26, 2017, repealed and reenacted ch. 18.32 to read as herein set out. Former ch. 18.32 pertained to the same subject matter, consisted of §§ 18.32.010—18.32.080, and derived from Ord. 1066, 1989; Ord. 1329, 1996; Ord. 1411, 1998; Ord. 1451, 1999; Ord. 1517, 2000; Ord. 1559, 2001; Ord. 1750, 2006; Ord. 169, 2010; Ord. 1869, 2010; Ord. 1888, 2010; and Ord. No. 2016, adopted Dec. 10, 2015.

Words defined in this section shall be given those meanings, words not defined in this section but defined in title 18 of this Code shall be given the meaning from title 18 of this Code, words to which the context gives a clear meaning shall be so construed, words of one gender or number shall include such other gender or number as the context reasonably suggests.

Awning, canopy, or covered walkway. Any temporary or permanent roof or shelter that covers a sidewalk, driveway, or other similar area, which is supported either in whole or in part by a building or by columns extending from the ground.

Awning, canopy or covered walkway sign. A permanent sign imprinted upon, attached to, or suspended from some portion of an awning, canopy, or covered walkway.

Building frontage. The exterior wall(s) of a building facing a public street or streets or other public right-of-way other than alleys, or one exterior wall containing the primary entrance to the building if not directly facing upon a public street.

Downtown area. The downtown area boundary, as defined in division VI of chapter 18.40 of this Code. This area generally encompasses properties between Ford Street to the east, Cheyenne to the west, Hwy. 58 to the north and 14th Street to the south.

Electronic message board (EMB). A sign, display or device, including a digital electronic sign and LED (light emitting diode) sign that changes its message or copy by programmable electron or mechanical processes. Also, a sign utilizing a fixed light source to provide a message in text that may appear to move or may appear as an on/off message.

Flush wall sign. Any sign attached to or erected against the wall of a building with the sign face in a plane parallel to the plane of said wall and which does not extend more than 18 inches from the building face.

Freestanding or monument sign. A sign that is supported by one or more columns, uprights, poles or braces extended from the ground or from

an object on the ground; provided that no part of the sign is attached to any part of any building, structure or other sign.

Identification sign. A sign limited to the identifying name, street address numbering, symbol or insignia, or any combination thereof, of a building, use or persons occupying the premises on which the sign is located.

Permanent sign. A sign of which both the structural supports and the sign face are of durable building materials commonly used in buildings and other permanent structures, and of which the structural supports are permanently affixed either into the ground, to a foundation or to a building.

Portable freestanding sign. A sign not permanently affixed to a building, the ground, or posts, nor wired for electricity or other utilities. Portable signs may include, but are not limited to, "A-frame" signs, placards, and banners.

Projecting wall sign. Any sign other than a flush wall sign that projects from and is supported by a wall or a building.

Public property. Property that is owned or controlled by a governmental entity.

Rooftop signs. A sign erected upon or above a roof or above a parapet wall of a building.

Sign. Any writing, graphic representation, form, design, trademark, illumination or other device or object that is designed to attract attention to the subject thereof or is used as a means of identification, advertisement or announcement. The term sign includes, but is not limited to, an object or device that:

- (1) Is a structure or any part thereof (including walls and roof),
- (2) Is written, printed, projected, painted, constructed or otherwise displayed or placed upon or designed into any building, board, material or object.

Sign face. The surface of the sign upon, against, or through which the message is displayed or illustrated.

Sign, illegal. Any sign that was constructed or displayed in violation of any of the ordinances of the City of Golden that were in effect at the time of its construction.

Store frontage. The boundary of exterior wall space that corresponds to the interior space occupied by a tenant.

Temporary sign. Any sign, banner, pennant, valance or other outdoor advertising sign constructed of light fabric, cardboard, wallboard, plywood less than one-half inch in thickness, paper, laminated paper, corrugated wood, cloth, canvas, vinyl, or other light materials, with or without a frame, or any sign not permanently affixed either into the ground, to a foundation or to a building. Temporary sign shall not include awning, canopy, or covered walkway signs.

Wall area. The external wall size of a structure. When calculating total wall area, the entire length and width of the storefront shall be used. (Ord. No. 2228, § 8, 2-13-2024; Ord. No. 2047, § 1, 1-26-2017)

18.32.020 Administration and enforcement.

(a) *Signs allowed.* Signs shall be allowed on public and private property in the City of Golden in accordance with the terms of this ordinance.

(b) *Sign permit required.* A sign permit shall be obtained from the city building division prior to the installation or construction of any temporary or permanent sign permitted under this chapter, except for such signs excluded from regulation by this chapter. Application for such permit shall include information as may be required to determine compliance with all applicable city codes and shall be subject to the applicable fee schedule as provided by city council. Temporary signs shall be counted toward the total signage allowance for the property.

(c) *Legal nonconforming sign.* See section 18.44.410, et seq.

(d) *Abandoned sign.*

- (1) A sign shall be deemed to have become abandoned when the sign identifies a business, service, product or activity for

which there does not exist an active Golden business license or sales tax license.

- (2) An abandoned sign and/or all appurtenant structural support for that sign shall be removed from the property within 90 days from the occurrence of the condition which caused the sign to become abandoned. The director of community development may grant extensions to this requirement for a period of up to two years, in three-month increments, upon a showing by the sign owner that a good faith effort is being made to secure a user for the property which reasonably would allow the sign to no longer be deemed as abandoned.
- (3) An abandoned sign shall not be considered to be a legal nonconforming sign. Any sign and/or appurtenant structural support which meets the conditions of abandonment as described above shall be removed from the property within 90 days from (date of adoption). The director of community development may grant extensions to this requirement as described above.

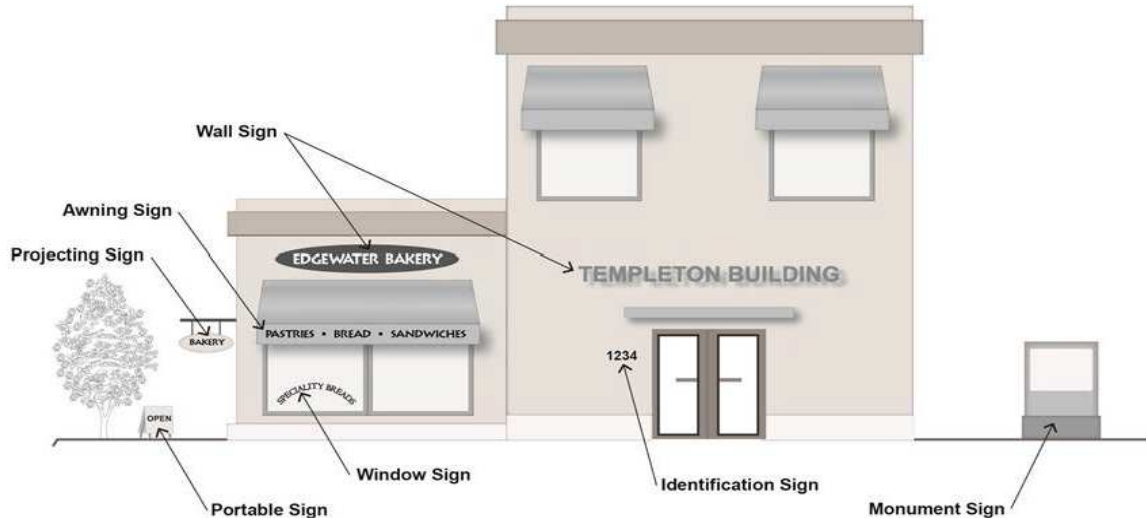
- (4) The responsibility for removal of an abandoned sign and/or appurtenant structural support shall be borne by the owner of the sign or the owners of the affected property.

(e) *Unlawful acts.* It shall be a violation of this ordinance to erect, install, otherwise create or maintain any sign in violation of any part of this ordinance.

(f) *Remedies.* In the event of a violation of this ordinance the city may pursue one or more of the following remedies:

- (1) Any enforcement procedure or remedy provided for under the general zoning ordinance,
- (2) Removal of the sign by the city. In such case, the direct costs incurred by the city, plus an administrative cost of 15 percent, shall be charged against the owner of the real property. These costs shall constitute a debt due to the city, and may be recovered by civil suit or may be recorded as a lien against the property.

(Ord. No. 2228, § 9, 2-13-2024; Ord. No. 2047, § 1, 1-26-2017)

18.32.030 General regulations.

(a) *Sign types permitted.* The following types of signs shall be permitted for all uses subject to restrictions of this ordinance as to size, location and illumination:

- (1) Flush wall signs.
- (2) Freestanding signs.
- (3) Projecting wall signs.
- (4) Awning, canopy or covered walkway signs.
- (5) Temporary signs.

(b) *Sign types prohibited.* The following types of signs are prohibited in all districts and for all uses:

- (1) Rooftop signs.
- (2) Wall signs projecting above roof or parapet wall.
- (3) Temporary signs within city right-of-way unless specifically permitted herein.
- (4) Revolving, rotating or wind driven signs.
- (5) Signs with flashing, moving, blinking, chasing or other animated effects.
- (6) Sign types or designs not covered elsewhere in these regulations.

(c) *Exclusions from regulation.* The following shall be excluded from regulation under this ordinance:

- (1) Municipal traffic control and other official government signs;
- (2) Works of art which do not identify a business, product or service;
- (3) Signs not legible beyond the boundaries of the lot or parcel upon which they are located, or from any public right-of-way;
- (4) Temporary decorations and signs associated with national, local or religious holiday celebrations and festivities;
- (5) Typical door signage such as charge card emblems, telephone numbers, store hours and other similar signage normally found in most businesses, not to exceed 50 percent of the area of the door;
- (6) Street address numbering;
- (7) Signs erected by public utilities indicating danger or intended as aids to service or safety;

- (8) Memorial signs or tablets, names of buildings and dates of construction when cut into any masonry surface or when constructed of incombustible materials;
 - (9) Signs which give direction within private property, provided that no such sign shall be more than four square feet in area.
- (d) *Signs located within, or overhanging public property and/or right-of-way.*
- (1) Projecting wall signs, and awning, canopy or covered walkway signs may extend into the public right-of-way provided that they comply with all of the provisions of this chapter.
 - (2) Portable freestanding signs may be allowed in the public right-of-way to identify a business or service that is immediately adjacent to that portion of the right-of-way, provided that no business shall be permitted to utilize more than one such portable freestanding signs, and no portable free standing sign shall be located closer than 30 feet from an intersection. Such signs shall be designed and located so as not to constitute an unreasonable obstruction to the sidewalk or traffic, and shall conform to the minimum clearance requirements contained in chapter 4.90 of the Golden Municipal Code.
 - (3) Bus transit stop benches and/or shelters with signs located within the public right-of-way shall be permitted subject to approval of a specific contract by city council, including limitations on the size of such signs. Each bus bench and/or shelter location shall require issuance of a sign permit as required by this chapter, as well as any bus bench and/or shelter location approval required by the contract approved by city council.
 - (4) No other signs shall be allowed within the public right-of-way or overhanging public property except for municipal traffic control and other official public or government signs.
- (e) *Limitations applicable to temporary signs.*
Due to the risk of deterioration, temporary signs must be removed within 45 days after installation.
- (f) *Street, subdivision and identification signs.*
- (1) Street, subdivision and other identification and directional signs on public property shall be considered municipal traffic control signs that are excluded from regulation under this chapter if such signs are purchased and paid for by a public entity, or installed pursuant to the direction of a governmental entity and in compliance with all regulations and specifications of such governmental entity.
 - (2) Street, subdivision and other identification signs on private property shall comply with the relevant zone district sign requirements.
 - (3) Permanent identification signage associated with land development shall be allowed, subject to the following limitations:
 - A. Signage shall be permanent, according to the definition of this Code;
 - B. Signage shall be on private property;
 - C. The maximum sign area shall be 32 square feet for any one sign face;
 - D. There shall be only one sign per entrance to the development from any street;
 - E. Such signs may be illuminated within the limitations of this Code.
- (g) *Limitations applicable to awning, canopy, or covered walkway signs.*
- (1) All signs shall be mounted flush with or suspended below the structure of such awning, canopy or covered walkway. No sign shall project from the sides or above such structure;
 - (2) Signs may be mounted parallel with or perpendicular to the face of the building subject to the limitations in paragraph (1) above.

- (3) For signs suspended below an awning, canopy, or covered walkway, no single sign shall exceed four square feet per sign face, and the bottom of any such sign shall be a minimum of seven feet six inches above grade. Suspended signs may be double faced. There shall be no more than one suspended sign for each active business or sales tax license issued to the premises. No suspended sign shall be mounted closer than ten feet to another suspended sign.

- (4) For signs mounted on the awning, canopy, or covered walkway which are not suspended below such structure, the maximum sign height shall be three feet.

(h) *Limitations applicable to wall signs.* Flush-mounted wall signs shall not project above the top of a building or parapet wall, nor project beyond the corner of a building so as to become a projecting sign. A flush-mounted wall sign, the bottom of which is mounted seven feet six inches above grade or higher shall extend no more than 18 inches from the face of the building. A flush-mounted wall sign, the bottom of which is mounted lower than seven feet six inches from grade shall not extend from the face of the wall to a distance which would reasonably present a conflict either to pedestrians or to vehicles.

(i) *Limitations applicable to electronic message board signs.*

- (1) Displays shall not flash, rotate, scintillate, blink, or strobe illumination when transitioning between messages. Videos or animations are also prohibited.
- (2) The maximum brightness shall be .3 foot candles above ambient light and shall have a minimum hold time of eight seconds.
- (3) The area of the electronic message shall not constitute more than 50 percent of the sign size.
- (4) The sign shall have automatic dimmer software or solar sensors to control brightness for nighttime viewing and variations in daytime ambient lighting. The intensity of the light source shall not

produce glare, the effect of which constitutes a traffic hazard or is otherwise detrimental to the public health, safety or welfare.

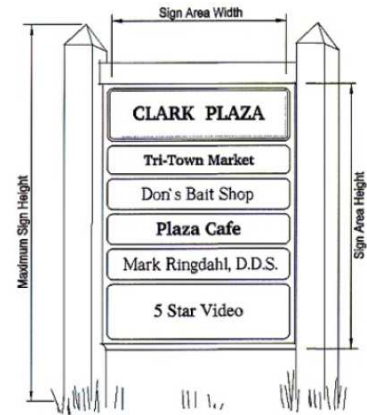
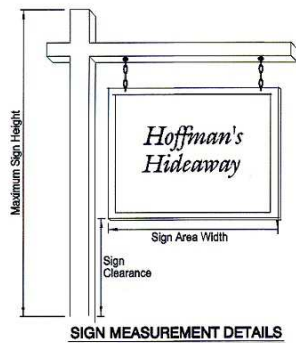
- (5) Electronic message board signs are limited to monument or freestanding signs only.
- (6) Electronic message board signs are not permitted within 300 feet of any state or federal highway, including I-70, within the City of Golden.

(j) *Historic designation.* An owner may apply for and be granted designation of a sign as a historic site under chapter 18.58 of the zoning ordinance. A sign approved as a historic site shall be considered a permitted, conforming sign even if it would otherwise be nonconforming, and shall not be required to be removed or brought into compliance as may otherwise be required by this chapter or chapter 18.44. The procedure for historic site designation shall be as specified in chapter 18.58, and the standards for designation shall be as specified in chapter 18.58, except that the sign need not be at least 50 years old. Any change to a sign that is so designated as historic, except for normal repair, maintenance, or restoration shall be cause for revocation of the historic site designation and upon such revocation, the sign shall be removed or brought fully into compliance with all applicable provisions of this Code.

(k) *Area bonus.* There shall be allowed a ten-percent increase in the total sign area for any property under unified ownership for which the owner(s) has or have filed with the city a common signage plan for the premises which meets the following minimum requirements:

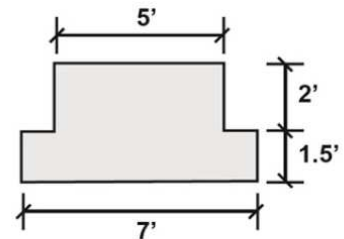
- (1) The common signage plan as submitted shall be in conformance to the common signage plan policies as published by the City of Golden;
- (2) The common signage plan shall provide for consistency among signs on the premises with regard to the following: material, location of each sign on the building, sign proportions, color scheme, lettering or graphic style (provided that

- the common signage plan need not prohibit the use of individual logos), and lighting;
- (3) The common signage plan shall, for premises with multiple uses or multiple users, limit the number of freestanding signs to a total of one per street frontage and shall provide for shared or common usage of such sign(s);
- (4) The common signage plan may contain such other restrictions as the owners of the premises may reasonably determine;
- (5) The common signage plan shall be signed by all owners in such form as shall be approved by the city;
- (6) The common signage plan shall be applicable to all signs on the premises, in addition to the restrictions of this ordinance. In case of any conflict between the common signage plan and any ordinance of the city, the ordinance shall control.
- (Ord. No. 2228, § 10, 2-13-2024; Ord. No. 2047, § 1, 1-26-2017)
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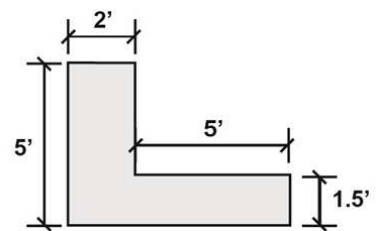
18.32.035 Sign measurement.**(a) Height and clearance.**

- (1) *Freestanding and awning, canopy and covered walkway signs.* The maximum height of a freestanding or awning, canopy and covered walkway sign shall be measured from the highest point of a sign to the ground surface beneath it. When berms are used in conjunction with signage, the height of the sign shall be measured from the mean elevation of the fronting street.
- (2) *Wall signs.* The height of a wall sign shall be measured from the highest point of a sign to the lowest point. No point of any wall sign shall be located higher than the wall to which the sign is affixed.
- (3) *Clearance.* Sign clearance is measured from the lowest point of a sign to the ground surface beneath it.
- (4) *Setback.* The setback of a sign shall be measured as the horizontal distance from the property line to the portion of the sign face or structure which is closest to the property line.

(b) *Area.* Sign area is the entire surface area of a sign, including nonstructural trim. Only one side of a double-faced freestanding or projecting sign shall count toward the aggregate size measurement, provided that both sides are identical in size.



Sign Area = 20.5 sq.



Sign Area = 17.5 sq. ft.

- (1) *Standard geometric shapes.* When the surface area of a sign consists of a conventional geometric shape, such as a circle, an oval, a rhombus, a trapezoid or a triangle, an acceptable mathematical formula for calculating area shall be demonstrated to determine the surface area of a sign.

- (2) *Cutout letters.* Sign area for cutout letters or display applied directly to the building surface and lacking a defined border or trim shall include the total area within the periphery of the cutout letters on display, which can be enclosed within a rectangle or series of attached rectangles.
- (3) *Irregular geometric shapes.* If a sign consists of a symbol or statuary, or an irregular geometric shape without an accepted mathematical formula for calculating area, the entire surface area of the symbol or statuary, which can be enclosed within a rectangle or the closest geometric shape, shall be determined as the sign area.
- (4) *Setback.* The setback of a sign shall be measured as the horizontal distance from the property line to the portion of the sign face or structure which is closest to the property line.
- (5) *Corner lots: Computation of area.* Lots fronting on two or more streets are allowed the permitted sign area and number for each street frontage. Signage may not be accumulated from all such streets and applied to any one street in excess of the signage allowed for that one street frontage only.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.040 Residential signs.

(a) *R-E, R-1, R-1 A and R-2 zones.* In R-E, R-1, R-1 A and R-2 zones, there shall be allowed signs on each developed lot or parcel or vacant lot eligible for residential development, subject to the following:

- (1) The total sign area per sign face shall not exceed six square feet in size, with the total aggregate permitted sign area not to exceed 24 square feet. For the purpose of this subsection, sign area calculations on double-faced signs shall be based upon only one face of such sign. Double-faced signs are signs with a display face on the back side or reverse side of another display face.

- (2) The signs shall be subject to the same locational restrictions applicable to fences and shrubs in the same district but shall in no event be more than four feet in height;
- (3) The signs shall not be illuminated;
- (4) The signs may be either temporary or permanent; however, all temporary and permanent signage shall be counted toward the total signage allowance for the property;
- (5) The signs shall not require a permit under this ordinance.

(b) *R-3 zones.* In R-3 zones there shall be allowed signs for each 150 feet of street frontage subject to the following:

- (1) The total sign area per 150 feet of street frontage shall not exceed 24 square feet;
- (2) The signs shall be subject to the same locational restrictions applicable to fences and shrubs in the same district but shall in no event be more than four feet in height;
- (3) The signs may be illuminated subject to the restrictions of subsection 18.32.060(c) of this ordinance and subject to the further limitation that the direct or reflected illumination of such sign shall not project onto any adjacent residential premises;
- (4) The signs may be either temporary or permanent; however, all temporary and permanent signage shall be counted toward the total signage allowance for the property;
- (5) The signs shall not require a permit under this ordinance.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.050 Nonresidential signs.

The following signs are permitted in nonresidential zones, so long as they conform with the requirements of the following table. The requirements of the following table notwithstanding, the total sign area for any property, shall be no greater than 500 square feet.

<i>Type of Sign</i>	<i>Maximum Number of Signs</i>	<i>Maximum Area (sq. ft.)</i>	<i>Maximum Height</i>	<i>Comments</i>
Awning, canopy and covered walkway signs	One per frontage	One square foot for each linear foot of business frontage; maximum area is 50 square feet	Minimum clearance seven feet six inches above finished grade	Allowed in place of a wall sign. Signs may be placed only on awnings that are located on first-story building frontages. Awnings may not project more than five feet from the building wall to which it is affixed. Awning, canopy and covered walkway signs shall be mutually exclusive and shall not be combined with wall signs. For signs suspended below an awning, canopy, or covered walkway, no single sign shall exceed four square feet per sign face. Limited to one per awning, canopy, or covered walkway.
Digital electronic message board signs	One per individual building tenant	One square foot for each linear foot of business frontage; maximum area is 40 square feet when located within ten feet of any property line, 80 square feet total	Eight feet	See paragraph 18.32.030(j) of this chapter for additional regulations.
Identification sign	Maximum two address signs per use	Two	n/a	No permit required. All properties must visibly display address numbers on the front of each building and on the alley side of the fence, garage or principal structure, as applicable, to allow quick identification by emergency services. Identification must be verified with the Golden Fire Department for addressing purposes.
Monument signs	One per entrance	No larger than 32 square feet for any one face	Eight feet	See paragraph 18.32.030(h)(5) of this chapter for additional regulations.

<i>Type of Sign</i>	<i>Maximum Number of Signs</i>	<i>Maximum Area (sq. ft.)</i>	<i>Maximum Height</i>	<i>Comments</i>
Freestanding signs	One per lot frontage	No larger than 32 square feet per face. For multi-tenant buildings and projects, tenant identification signs may be added to the center identification sign with a concurrent permitted increase in the sign size of an additional 32 square feet per face.	Ten feet	Freestanding signs located adjacent to any section of the I-70 highway right-of-way which is greater than 200 feet in total width shall be no higher than 40 feet and shall be no larger than 100 square feet per space.
Portable signs (sandwich board signs)	One per individual building tenant	Eight [feet]	Four feet Maximum width: Two feet	Signs must be placed directly in front of the tenant's property, and placement shall not reduce the sidewalk width to less than 72 inches. Sign must be located at least 30 feet back from an intersection (for corner uses). See chapter 4.90 for additional regulations.
Projecting signs	One per building or store frontage	Maximum size shall be 20 square feet per face	Signs shall be seven feet six inches above grade	Shall not project more than six feet from the face of the building.

<i>Type of Sign</i>	<i>Maximum Number of Signs</i>	<i>Maximum Area (sq. ft.)</i>	<i>Maximum Height</i>	<i>Comments</i>
Wall sign	One per building or store frontage	Ten percent of wall area per store frontage within multi-tenant buildings or ten percent of entire wall area for single use tenant buildings	May not extend above height of wall to which it is affixed	Overall sign length shall not exceed the width of the tenant's storefront and shall generally align with signs of directly adjacent businesses. Signs located on buildings with the same block face shall be placed at the same height. Locate wall signs at the first-floor level only for retail uses. Sign shall not obstruct any portion of a window, doorway or other architectural detail. No sign part, including cut-out letters may project from the surface upon which it is attached more than required for construction purposes and in no case more than 18 inches. Wall signs shall be mutually exclusive with, and shall not be combined with awning signs.
Window sign	One per business	35 percent of window or door area	n/a	May be placed on the window or door, but not both.
Temporary signs	One per street frontage per establishment	32 [feet]	May not extend above height of wall to which it is affixed.	Banner signs may not exceed $\frac{1}{4}$ the length of the individual store frontage to which they are affixed. The banner shall be securely attached to the wall of the establishment, freestanding sign or light poles on private property. Shall not be displayed on a vehicle, temporary pole or structure.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.060 Design and construction requirements.

(a) *Signs must be permanent.* All signs shall be permanent in nature, as defined in this chapter, except for temporary signs which shall be counted toward the total signage allowance for the property.

(b) *Design and construction standards.* All signs shall be engineered in compliance with the applicable portions of the Golden Municipal Code, including all applicable technical building codes. All electrical service to ground mounted signs shall be underground. All signs shall be maintained in good structural condition.

(c) *Illumination.* Illuminated signs shall be designed to avoid glare or concentration of illumination and to direct light away from residential properties and away from the vision of pedestrians and motorists. Illumination may be internal to the sign through translucent material or by floodlighting of the sign from a concealed light source. Lighting must use downcast and fully-shielded fixtures to help alleviate light trespass across property lines, as well as glare.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.070 Computations.

The following principles shall control the determination of sign area and sign height:

(a) *Area.*

- (1) *Area to be measured.* The total surface area of all permanent and temporary sign faces, except those signs which are excluded from regulation in this chapter, shall be calculated and included as a part of the total allowance. The structure or support of a freestanding sign shall be omitted from calculation and inclusion in allowable area unless such structure or support is a part of the integral design of the sign. That part of any sign structure which exceeds one and one-half times the area of the sign face shall be calculated as part of the sign area.

- (2) *Sign with backing.* The area of all signs with backing or a background that is part of the overall sign display shall be measured by determining the sum of the areas of each square, rectangle, triangle, portion of a circle or any combination thereof, which creates the smallest single continuous perimeter enclosing the extreme limits of the display surface or face of the sign, including all frames, backing, face plates, nonstructural trim or other component parts not otherwise used for support.

- (3) *Signs without backing.* The area of all signs without backing or a background that is part of the overall sign display shall be measured by determining the sum of the areas of each square, rectangle, triangle, portion of a circle, or any combination thereof which creates the smallest single continuous perimeter enclosing the extreme limits of each word, written representation (including any series of letters), emblems or figures of similar character, including all frames, face plates, nonstructural trim or other component parts not otherwise used for support.

- (b) *Height.* Sign height shall be computed as the distance from the base of the sign at the normal grade to the top of the highest component of the sign. Any temporary structure (such as inflated balloons) added to an existing sign shall be part of the sign for height limitation purposes and shall not be allowed if the sign height, as increased by the temporary structure, is in excess of the height allowed for the sign location. Where construction or development activity has made it difficult to determine "normal grade", the "base of the sign at the normal grade" shall be deemed to be the lowest point at which the sign base intersects a hypothetical plane drawn from the grade at the

street curb to the grade at the foundation of the building in front of or at the main entrance.

- (c) *Setback.* The setback of a sign shall be measured as the horizontal distance from the property line to the portion of the sign face or structure which is closest to the property line.
- (d) *Corner lots: Computation of area.* Lots fronting on two or more streets are allowed the permitted sign area and number for each street frontage. Signage may not be accumulated from all such streets and applied to any one street in excess of the signage allowed for that one street frontage only.

(Ord. No. 2047, § 1, 1-26-2017)

18.32.075 Downtown area signs.

Signs in the downtown area, as defined herein, shall conform to the following requirements, in addition to all other requirements of this Code.

Signs shall be permitted to be internally lit only if wall-mounted. All wall-mounted lighting fixtures shall be placed above the sign and shall shine downward.

- (a) Identification signs shall only be wall-mounted.
- (b) Signs for businesses occupying a single-family residential structure shall be limited to one 32 square foot sign.
- (c) Signs shall not be placed on balcony railings.
- (d) Digital electronic message board signs are prohibited.
- (e) The combination of awning, canopy or covered walkway signs shall not exceed maximum allowable size of 12 square feet.

(Ord. No. 2047, § 1, 1-26-2017)

Chapter 18.34

COMMUNITY LIGHTING STANDARDS

18.34.010 Purpose and intent.

(1) The community lighting standards chapter of this title is enacted for the purpose of regulating the impacts of light intensity, invasion, and

glare resulting from lighting fixtures installed on buildings as well as free standing lighting fixtures. The regulations are intended to lessen the negative impacts caused by outdoor lighting on the quality of life of residents and property owners, while recognizing safety and security needs. Purposes of the community lighting standards include:

- (a) Reducing light invasion and glare;
- (b) Promoting energy conservation and efficient lighting;
- (c) Providing adequate light for safety and security.

(2) In furtherance of adopted goals for resource efficiency, the city encourages projects subject to this chapter to consider the use of compact fluorescents (CFL) or other high efficiency light bulbs, and discourages the use of incandescent lighting.

(3) To minimize the amount of unnecessary lighting at night, projects subject to this chapter are encouraged to consider the use of motion sensors, photocells, and/or photocell/timers to control duration of nighttime illumination.

- (a) *Motion sensors.* These mechanisms are the preferred method for controlling nighttime illumination since they turn on lights only when activated by motion and will remain on during the activity or for a set period of time (typically up to 30 minutes) following the last detection of motion. Sensors must be triggered by activity within the owner's property lines and should be used with incandescent, compact fluorescent, or halogen lamps directed downward, or suitably shielded.

- (b) *Timer/photocell combinations.* These are also a preferred method for control when used at nighttime at primary points of entrance (e.g., front entries) and at commercial and industrial properties. These activate the light source at dusk and turn it off at a selected time several hours later, before dawn.

(Ord. 1845, 2009)

18.34.020 Applicability.

(1) The provisions of this chapter shall apply to the installation, operation, repair, and replacement of outdoor lighting fixtures and facilities for all private and public uses, subject to this title.

- (a) No building permit or electrical permit shall be issued, and no lighting installation for outdoor lighting shall be performed unless in accordance with the requirements of this chapter.

(2) The provisions of this chapter shall apply to lighting fixtures and facilities including, but not limited to, temporary construction lighting, permanent residential or nonresidential lighting, and temporary residential or nonresidential lighting.

(3) The installation, operation or replacement of outdoor lighting for the following uses of a level of illuminance not otherwise permitted by this chapter shall be permitted only upon approval by planning commission of a special use permit pursuant to the requirements of chapter 18.30:

- (a) Outdoor recreational facilities, public or private, where proposed light levels are expected to exceed the maximum levels permitted in subsection 18.34.080(1) and (2).
- (b) Vehicle fueling facilities, drive through uses, car wash facilities and 24-hour operations.
- (c) Display lots or areas.
- (d) Billboards.

(Ord. No. 2279, § 8, 10-28-2025; Ord. 1845, 2009)

18.34.030 Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Approved fixtures means International Dark-Sky Association (IDA) approved fixtures as long as topographical considerations and all other regulations of this chapter are met.

Display lot or area means outdoor display areas including, but not limited to, motor vehicle sales or rental, boat sales, building supply sales, garden or nursery sales, construction equipment rentals, personal recreational equipment sales, and swap meets, or other uses as determined by the director of community and economic development.

Fixture means the assembly that houses the lamp or lamps and can include all or some of the following parts: Housing, mounting bracket or pole socket, lamp holder, ballast, reflector or mirror, and/or refractor or lens.

Footcandle (fc) means a unit of illuminance equal to one lumen per square foot.

Fully shielded means a lighting fixture manufactured and installed so that all light emitted by the fixture, either directly from the lamp, or indirectly by reflection or refraction from any part of the luminaire is projected below the horizontal plane as determined by photometric test or certified by the manufacturer. Any structural part of the light fixture providing this shielding must be permanently affixed. Fully shielded shall include a luminaire emitting no lumens above a horizontal plane through the luminaire's lowest light-emitting part.

Glare means the sensation produced from a source of light that is so bright that it causes annoyance, discomfort, or loss in visual acuity.

Height of light fixture means the vertical distance from the ground directly below the centerline of the luminaire to the highest light emitting portion of the luminaire.

Illuminance means the amount of light that falls on a surface measured in foot candles.

IESNA means the Illuminating Engineering Society of North America.

Indirect light means direct light that has been reflected or has scattered off other surfaces.

Light fixture means a complete unit consisting of a light source together with a housing and parts design to distribute and aim the light.

Light invasion means light or glare that falls beyond the boundaries of the property on which the light source is located. Light invasion measurement shall be taken as a horizontal measurement at grade on the property line unless specified in a specific regulation as a line of sight measurement.

Line of sight measurement means a horizontal measurement taken where the vertical line above the property line intersects the line connecting the point of observation and the source of light.

Lumen means the unit of measurement used to quantify the amount of light (distinct from a "watt") produced by a lamp or emitted by a luminaire. For purposes of this chapter, the lumen output values shall be the initial lumen output rating of a lamp.

Maximum allowable light level means the maximum illuminance permitted under the provisions of this chapter, as depicted on a photometric plan and measured by a light meter.

Mixed use building means a building located in a commercial zone district or commercial portion of a planned unit development where more than 25 percent of the gross floor area of the building is dedicated to residential multifamily dwellings.

Nonresidential use means any use other than residential (low density) or residential (multifamily) uses as defined in this section.

Ornamental lighting means low voltage lighting (12 volts or less), low wattage (60 watts or less) landscape lighting fixtures, and solar operated landscape lighting fixtures having self-contained rechargeable batteries, where any single light fixture does not exceed 100 lumens.

Replacement of outdoor fixtures refers to the removal of an existing fixture in favor of another, whether for functional or cosmetic reasons.

Residential (low density) use means single-household detached, duplex, and town home residential properties with up to four dwellings per structure.

Residential (multifamily) use means multifamily residential uses where three or more residential units occupy a single structure, or townhome residential properties with more than four dwellings per structure.

Sign, externally illuminated means a sign illuminated by light sources external to the illuminated face of the sign.

Sign, internally illuminated means a sign illuminated by light sources enclosed entirely within the sign cabinet and not directly visible from outside the sign.

Sign external illumination means lighting used to floodlight the exterior surface of signage.

Sky glow means the brightening of the night sky that results from the scattering of artificial visible radiation from the constituents of the atmosphere.

Temporary outdoor lighting means the specific illumination of an outside area or object by any man made device located outdoors that produces light by any means for a period of less than seven days with at least 180 days passing before it is used again.

Seasonal displays means lighting displays from October 31 through February 28 of the following year.

Wall washer means a fixture or series of fixtures designed for decoration or as a means of highlighting a building's architecture rather than providing illumination for safety. (Ord. No. 2228, § 11, 2-13-2024; Ord. 1845, 2009)

18.34.040 Lighting plan required.

A lighting plan shall be submitted with any building permit application or development proposal subject to section 18.40.200 except for a single-household dwelling or a two-household structure on an individual lot. The lighting plan shall include:

- (1) A site plan showing the location of all buildings and building heights, parking, and pedestrian areas, and existing and proposed topographic conditions on the lot or parcel.
- (2) The location and description of light fixtures on adjacent properties or the street right-of-way within ten feet of the subject property.
- (3) The location and height above grade of all proposed and existing light fixtures on the subject property.

- (4) The type, initial lumen rating, and wattage of each lamp source.
- (5) The manufacturers catalog information sheet and IESNA photometric distribution type, including any shielding information of each light fixture.
- (6) Control descriptions including type of controls (timer, motion sensor, time clock, etc.), the light fixtures to be controlled by each type, and control schedule when required.
- (7) Aiming angles and diagrams for recreational lighting fixtures.
- (8) A photometric plan which shows the maximum light levels on a grid not to exceed ten feet by ten feet across the entire site and a minimum of ten feet beyond the lot or parcel property line.

(Ord. 1845, 2009)

18.34.050 Final inspection and certification.

Prior to a building permit final inspection or the issuance of a certificate of occupancy, the applicant shall provide certification that the outdoor lighting as installed complies with the approved lighting plan and the requirements of this chapter unless such certification is waived by the director of community and economic development. The certification shall be completed by the architect, electrical engineer, electrical contractor, or lighting consultant responsible for the lighting plan or the final installation of all light fixtures.

(Ord. 1845, 2009)

18.34.060 Director of community and economic development.

(1) It shall be the duty of the director of community and economic development or the director's designee to administer and enforce the provisions of this chapter.

(2) The provisions of this chapter regarding illuminance shall be enforced against existing conditions, only if such conditions are determined to constitute a substantial violation based upon the following criteria:

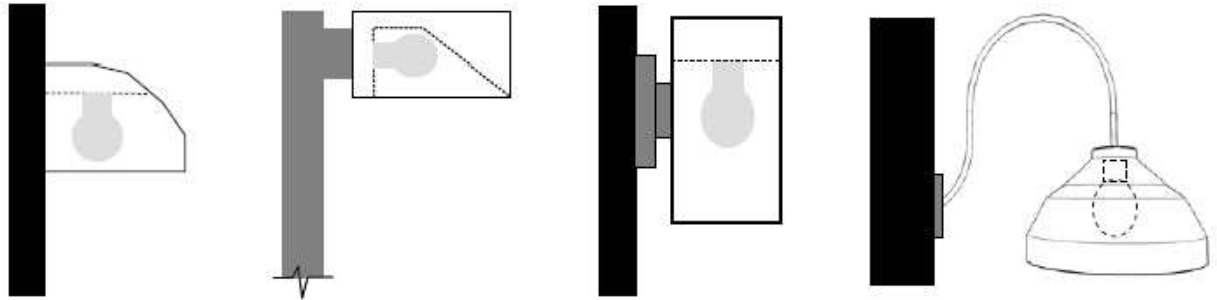
- (a) Security lights and motion sensor activated security lights greater than 60-watt incandescent bulbs, or 13—18 watts if compact fluorescent, where the light source is visible at the property line of an adjacent residentially zoned property, measured as a line of sight measurement five-foot high at the property line.
- (b) Direct light invasion at the property line of an adjacent residentially zoned property, as defined in subsection 18.34.075(2), from a use with a level of illuminance greater than permitted in section 18.34.080, below.

(Ord. 1845, 2009)

18.34.070 Residential (low density) lighting standards.

(1) All outdoor lighting, except for ornamental lighting, for uses defined as residential (low density) shall be designed so the light source shall be completely shielded by the fixture. Notwithstanding the foregoing, porch and yard or driveway light fixtures with incandescent bulbs not greater than 60 watts, or 18 watts if compact fluorescent bulbs, may include a visible light source, if the fixture contains an opaque shield.

(2) Motion sensor security lighting shall not be aimed in a direction such that the spot or flood light source may be viewed from a point outside the property boundary. If such lighting cannot be redirected, additional shields may be required.



(Ord. 1845, 2009)

18.34.075 Residential (multifamily) lighting standards.

(1) The maximum allowable light level for residential (multifamily) uses shall be five foot-candles.

(2) Downcast and fully shielded fixtures shall be required for all uses other than ornamental lighting. Fully shielded fixtures shall not be tilted above the horizontal plane. On-site lighting for parking areas, buildings, and display areas shall be limited to fixtures installed such that direct light invasion is not cast beyond the limits of the property. For purposes of this section, it shall be deemed unlawful where the generation of light invasion across a property line (other than a street right-of-way) is in excess of two-tenths footcandle for residential uses, or one-half footcandle for nonresidential uses, where mea-

sured as prescribed in the definition of light invasion, set forth in section 18.34.030. For adjacent street rights-of-way, it shall be deemed unlawful where the generation of light invasion, from on site lighting, is in excess of one footcandle, measured as prescribed in the definition of light invasion, set forth in section 18.34.030.

(3) Additional shielding of fixtures shall be required, when topographic conditions exist such that adjacent or nearby properties are lower than the proposed outdoor lighting installation, such that fully shielded fixtures do not successfully meet light invasion requirements and the light source within the fully shielded fixture is visible.

(4) Wall washer architectural lighting is prohibited.

(5) Pole-mounted lighting shall not exceed the lesser of five feet taller than the main building or 25 feet in height. Poles shall be cylindrical and painted a dark and non-reflective color to minimize glare.
(Ord. 1845, 2009)

18.34.080 Nonresidential lighting standards.

(1) The maximum allowable light level for non-residential uses shall be 15.0 footcandles.

(2) Downcast and fully shielded fixtures shall be required for all uses other than ornamental lighting. Fully shielded fixtures shall not be tilted above the horizontal plane. On-site lighting for parking areas, buildings, and display areas shall be limited to fixtures installed such that direct light invasion is not cast beyond the limits of the property. For purposes of this section, it shall be deemed unlawful where the generation of light invasion across a property line (other than a street right-of-way) is in excess of two-tenths footcandle for residential uses, and one-half footcandle for nonresidential uses, where measured as prescribed in the definition of light invasion, set forth in section 18.34.040. For adjacent street rights-of-way, it shall be deemed unlawful where the generation of light invasion, directly related to on site lighting, is in excess of one footcandle, measured as prescribed in the definition of light invasion, set forth in section 18.34.040.

(3) Additional shielding of fixtures shall be required, when topographic conditions exist such that adjacent or nearby properties are lower than the proposed outdoor lighting installation, such that fully shielded fixtures do not successfully meet light invasion requirements and the light source within the fully shielded fixture is visible.

(4) Pole-mounted lighting shall not exceed the lesser of five feet taller than the main building or 25 feet in height. Poles shall be cylindrical and painted a dark and non-reflective color to minimize glare.

(5) Wall washer architectural lighting is prohibited.

(6) For mixed use buildings or projects, the residential component shall comply with section 18.34.075 for multifamily standards.

(7) All light fixtures shall be designed so the light source cannot be viewed from adjacent properties or public streets.

(8) A special use permit for outdoor lighting is required for the following facilities. Such uses shall be subject to all requirements of this section, unless authorized by section 18.34.090 and planning commission's specific approval of the application.

- (a) Outdoor recreational facilities - public or private, where proposed light levels are expected to exceed the maximum levels permitted in subsection 18.34.080(1) and (2) above.
- (b) Vehicle fueling facilities, drive through uses, car wash facilities and 24-hour operations.
- (c) Display lots or areas.
- (d) Billboards.

(Ord. 1845, 2009)

18.34.090 Special use permit standards.

In addition to the criteria for review of special use permits in chapter 18.30 of this title, planning commission shall consider the following stan-

dards in making its decision regarding requests for special use permits for outdoor lighting installation not otherwise permitted by this chapter:

- (1) *Outdoor recreational facilities.* Any light source permitted by this chapter may be used for lighting of outdoor recreational facilities provided all of the following conditions are met:
 - (a) The maximum allowable light level for outdoor recreational facilities or uses shall be 50 footcandles.
 - (b) All fixtures used for event lighting shall be fully shielded as defined in subsection 18.34.030(6) or be fitted with cut-off capability.
 - (c) All events shall be scheduled so as to end before or as near to 10:30 p.m. as practical, but under no circumstances shall any illumination of the facility be permitted after 11:00 p.m. except to conclude a scheduled event that was in progress prior to 11:00 p.m.
 - (d) Light poles for illumination of athletic fields on new and existing public school sites will be allowed to exceed the maximum permitted height set forth in subsection 18.34.080(4), where determined by the planning commission to be necessary to ensure adequate illumination and where the planning commission determines that the increased height provides for the minimum impacts from light and glare to the greatest extent practicable. The applicant must submit an engineer's report demonstrating that impacts from light and glare are minimized to the greatest extent practicable.
 - (e) When topographic conditions exist such that adjacent or nearby properties are sufficiently lower than the proposed outdoor lighting installation, such that fully shielded fixtures do not successfully meet light invasion requirements and the light source within the fully shielded fix-

ture is visible the planning commission shall require additional shielding.

- (2) *Vehicle fueling facilities and drive through uses:*
 - (a) The maximum allowable light level shall be the following measured in footcandles.
 Pump island area directly beneath a canopy: 30 footcandles.
 All other areas: 15 footcandles.
 - (b) Downcast and fully shielded fixtures shall be required. Fully shielded fixtures shall not be tilted above the horizontal.
 - (c) Pole-mounted lighting shall not exceed the lesser of five feet taller than the main building or 25 feet in height.
- (3) *Display lots or areas.*
 - (a) The maximum allowable light level shall be the following measured in footcandles:
 Display areas adjacent to roadway: 35 footcandles.
 Display areas within 100 feet of a residential property: 15 footcandles.
 - (b) Downcast and fully shielded fixtures shall be required. Fully shielded fixtures shall not be tilted above the horizontal.
 - (c) Pole-mounted lighting shall not exceed the lesser of five feet taller than the main building or 30 feet in height.
 - (d) When topographic conditions exist such that adjacent or nearby properties are sufficiently lower than the proposed outdoor lighting installation, such that fully shielded fixtures do not otherwise meet light invasion requirements and the light source within the fully shielded fixture is visible, the planning commission shall require additional shielding.
 - (e) Special use permit applications for display lots or areas shall include

provisions for reduced light levels after 9:00 p.m. Such provisions as approved by planning commission shall become a condition of approval of the special use permit, violation of which shall be cause for revocation.

(4) *Billboards.*

- (a) Billboards shall be required to be top-lit only, with fully shielded downcast fixtures that are not tilted above the horizontal to prevent any light invasion as measured at the top and sides of the billboard structure.
- (b) The maximum allowable light level measured in footcandles shall not exceed 30 footcandles.

(Ord. 1845, 2009)

18.34.100 Prohibitions.

The following types of outdoor light fixtures are prohibited:

- (a) Mercury vapor lamps.
- (b) Low pressure sodium lamps.
- (c) Blinking, flashing, moving, revolving, changing intensity or color, and chase lighting, not including lighting for temporary seasonal displays or lighting for public safety.
- (d) Any upward oriented lighting except as otherwise permitted in this chapter.
- (e) Searchlights, beacons, and laser source light fixtures.
- (f) Exposed linear lamps that include, without limitation: neon, light emitting diode (LED), and fluorescent lighting.
- (g) Any lamp or bulb not within a light fixture, except for seasonal displays, which is visible beyond the property line on which it is located.

- (h) As determined by the city, lighting that is distracting to motorists or in a way that interferes with the safe operation of a motor vehicle.

(Ord. 1845, 2009)

18.34.110 Exceptions.

The following lighting is exempt from all requirements of this chapter:

- (1) Temporary emergency lighting as required by emergency service or repair functions.
- (2) Ornamental lighting.
- (3) Seasonal lighting displays.
- (4) Public street lights.
- (5) Traffic control devices and signage installed and operated in accordance with the Manual for Uniform Traffic Control Devices (MUTCD) as such may be amended from time to time.

(Ord. 1845, 2009)

18.34.120 Waivers and exemptions.

(1) Subject to the provisions of section 18.08.010, the planning director, or planning commission in the case of a special use permit shall be authorized to grant relief from the strict interpretation of this chapter in accordance with the following standards:

- (a) *Equivalent material:* The provisions of this chapter are not intended to prevent the use of any design, material or method of installation not specifically prohibited by this chapter provided such alternative has been approved by the planning director or planning commission. Such alternative may be approved provided that the proposed design, material, or method provides an approximated equivalent method of satisfying the standards of this chapter.
- (b) *Waiver:* The economic and community development director or planning commission may grant relief from the provi-

sions of this chapter if one of the criteria of subparagraphs 1, 2, or 3 is met and subparagraphs 4 and 5 have been met:

1. There are special circumstances or conditions applying to the land, buildings, or outdoor light fixtures for which the relief is sought, which circumstances or conditions are peculiar to such land, buildings or outdoor light fixtures and do not apply generally to the land, buildings or outdoor light fixtures in the immediately surrounding area;
2. For nonresidential uses, there are safety lighting requirements for activities or processes that occur outdoor that are required by an other governmental agency; or
3. Upon a finding by the economic and community development director or planning commission that outdoor lighting in specific areas of the community, that otherwise meets the requirements of this chapter is not adequate and additional lighting is necessary to improve safety or security for the property or its occupants; and
4. The granting of the waiver will generally be consistent with the purpose of this chapter and will not be injurious to the community or otherwise detrimental to the public welfare;
5. The waiver is the minimum waiver that provides the relief required.

(Ord. 1845, 2009)

Chapter 18.36 PARKING AND LOADING REQUIREMENTS*

18.36.005 Purpose and intent.

It is the intent of these requirements to provide for the parking, loading and unloading of vehicles on private property in order to alleviate the problem of providing such temporary vehicular storage on public thoroughfares whose primary function is the moving of vehicular traffic. (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.010 General requirements.

(1) No structure shall be erected, altered or added to, unless off-street parking space is provided by the owner of such structure in such minimum amount as is required by this chapter. An existing structure which may have inadequate off-street parking need not provide the minimum amount of off-street parking space specified in this chapter unless such structure is enlarged, or its use changed, in which event off-street parking in at least the amount specified for such enlargement only shall be furnished and, in the case of a change of use, the minimum amount shall be the additional number of spaces the new use will require in excess of the number of spaces the existing use would have required.

(2) Off-street parking areas shall be located on the premises containing the use for which they are required, or, if on other premises, the parking areas shall be held in unified ownership or control and located within 300 feet of the lot they serve in all residential legacy use zones and within 300 feet of the lot they serve in all residential-commercial, commercial, and industrial legacy use zones and main street A, main street B, strip, and outer edge form zones. (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

***Editor's note**—Sec. 2(Exh. H), of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.36 in its entirety to read as herein set out. Former ch. 18.36 pertained to the same subject matter, and derived from Ord. No. 749, 1975; Ord. No. 1517, 2000; Ord. No. 1859, 2009; Ord. No. 1941, 2013; and Ord. No. 1989, 2019.

18.36.020 Number of required motor vehicle and bicycle parking spaces.

(1) *Calculation of required parking spaces.*

(a) *Generally.* Tables 1 through 10, inclusive, set out the number of parking spaces that are required for each land use that is listed in division 18.28.02, Use Tables. The number of parking spaces is based on one or more independent variables, which are measured as provided in this section.

(b) *Independent variables.* The independent variables for parking calculations are measured as follows:

1. *Floor area.* Where the independent variable is square feet ("sf."), the number of parking spaces is based on the number of square feet occupied by the use (or occupied by a component of the use that is specified in the table).
2. *Dwelling unit.* Where the independent variable is a dwelling unit ("DU"), the number of parking spaces is calculated based on the number of dwelling units. In some cases, the parking requirements are based on the number of bedrooms ("[#] br.") in each dwelling unit.
3. *Bed.* Where the independent variable is "bed," the number of parking spaces is based on the number of beds in the facility instead of the number of bedrooms or some other measure. Perbed calculations are typically applied to uses that offer residential care.
4. *Employee.* Where the independent variable is employee ("emp."), the number of parking spaces is based on the number of employees (full-time and part-time equivalent) during the shift in which the maximum number of employees are present.
5. *Seat/seat design capacity.* If the independent variable is "seat," the

number of parking spaces is based on the number of seats that are provided to guests (patrons, members, etc.). If the independent variable is seat design capacity ("SDC"), the number of parking spaces is based on the maximum seating capacity of the use as established by applicable fire code.

6. *Maximum capacity.* If the independent variable is maximum capacity ("cap."), the number of parking spaces is based on the lesser of:
 - a. The maximum number of people who may occupy the use pursuant to applicable fire code; or
 - b. The maximum number of people who may occupy the use pursuant to other applicable regulatory or operational standards.
7. *Special study.* Special studies are generated using industry standards, engineering standards, trip generation, and site specific operations or context, or other source as accepted by the director for determining a parking and loading area requirement when one is not specifically listed. Special studies may be required or used to establish a reduction in parking minimums through appropriate variance process.
8. *Others.* Other independent variables are measured according to their common meanings.

(c) *Rounding.* When the calculation of required parking spaces results in a fractional parking space, the result of the parking calculation shall be rounded to the nearest whole number using standard rounding techniques.

(2) *Parking requirements tables.* Tables 1 through 10, inclusive, below, set out the minimum parking requirements for land uses in the city. To the extent a use is allowed in the Main Street, Mixed-Use, and Neighborhood Corridor Form

Zones without a listed minimum requirement, it shall provide on-site parking per the "all other areas" standard.

TABLE 18.36.020.2.1: Residential Land Use Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Residential - Single-household residence (legacy use zones) and house, duplex, or row house form types (form zones)	1 sp./d.u.	2 sp./d.u.
Permanent qualified affordable housing unit per section 18.04.020, multihousehold, single-household, duplex, row house form types	1 sp./ d.u.	1 sp./d.u.
Cottage form type (form zones)	1 sp./d.u.	1 sp./d.u.
Multi-household residence and residential uses in all form types not listed above	≤ 1 br. units that are ≤ 800 sf.: 1 sp./d.u.; 1 br. units that are 800+ sf. or	Studio units: 1 sp./d.u.; 1 br. and 2 br. units: 1.5 sp./d.u.; 3+ br.
	2 br. units: 1.5 sp./d.u.; 3+ br. units: 2 sp./d.u.	units: 2 sp./d.u.
Manufactured Home Park or Manufactured Home Subdivision/ Mobile Home Unit	-	1 sp. / d.u. for units under 2,200 sq. ft. 2 sp./d.u. for units over 2,200 sq. ft.
Assisted Living or Congregate Care	1 sp. / 3 beds + 1 sp./ emp.	1 sp./ 3 beds + 1 sp./ emp.
Group Home	1 sp. / 3 person cap.	1 sp./ 3 person cap.
Live-Work	3 sp./Unit	3 sp./ Unit
Nursing Home, Memory Care, Alzheimer's Care	1 sp./ 3 beds + 1 sp./ 2 emp.	1 sp. / 3 beds + 1 sp./ 2 emp.
Protective Care	1 sp./ 2 beds	1 sp./ 2 beds
Residential Mixed-Use	1 sp./ d.u. + 1 sp./ 200 sf. of non-residential occupied space for the exclusive use of residents and guests	1 sp./ d.u. + 1 sp./ 200 sf. of non-residential occupied space for the exclusive use of residents and guests

Table 18.36.020.2.2: Hospitality, Recreation, and Entertainment Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Bar, Tavern, or Nightclub	4 sp./1,000 sf. For interior seating. 2 sp./1,000 sf. For outdoor seating areas	6 sp./1,000 sf.
Bed and Breakfast	2 sp. + 1 sp./br.	2 sp. + 1 sp./ br.

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Brew Pub, Distillery Pub, or Limited Winery ¹	4 sp./ 1,000 sf. For interior seating. 2 sp./1,000 sf. For outdoor seating areas + 1 sp./1,000 sf. other floor area	6 sp./1,000 sf. + 1 sp./1,000 sf. other floor area
Campground or RV Park	-	1 sp./campsite (at campsite) + 1 sp./ 10 campsites (at office)
Commercial Lodging	1 sp./guest room + 1 sp./2 emp.	1 sp./guest room + 1 sp./2 emp.
Golf Course	-	4 sp./hole + 1 sp./200 sf. of office, lobby, pro shop, health club, clubhouse, lounge, snack bar, dining, and meeting space
Indoor Amusement, Recreation, and Entertainment	Bowling alley: 4 sp./lane + 1 sp./75 sf. of other entertainment area; Indoor archery range: 1 sp./station + 1 sp./250 sf. of retail area; All others: 1 sp./200 sf.	Bowling alley: 4 sp./lane + 1 sp./75 sf. of other entertainment area; Indoor archery range: 1 sp./station + 1 sp./250 sf. of retail area; All others: 1 sp./200 sf.
Indoor Firing Range	2 sp./station + 1 sp./250 sf. of retail area	2 sp./station + 1 sp./ 250 sf. of retail area
Outdoor Commercial Amusement	Batting cages: 2 sp. + 1 sp./station;	Batting cages: 2 sp. + 1 sp./station;
	Go-cart racing, bumper boats, or bumper cars: 2 sp. per car or boat; All others: by special study	Go-cart racing, bumper boats, or bumper cars: 2 sp. per car or boat; All others: by special study
Outdoor Stadium, Arena, Amphitheater, or Drive-In Theater	Greater of: 1 sp./3 seats, or 1 sp./35 sf. of seating area (if no fixed seats); except there is no specific parking requirement for a drive-in theater	Greater of: 1 sp./3 seats, or 1 sp./35 sf. of seating area (if no fixed seats); except there is no specific parking requirement for a drive-in theater
Park, Active	2 sp./court + 20 sp./play field + 1 sp./10 lf. of bleacher seating	2 sp./court + 20 sp./play field + 1 sp./10 lf. of bleacher seating
Park, Passive	1 sp./750 sf. of playground area + 1 sp./picnic table	1 sp./750 sf. of playground area + 1 sp./picnic table
Restaurant ¹	4 sp./1,000 sf. For interior seating. 2 sp./1,000 sf. For outdoor seating areas	6 sp./1,000 sf.
Sexually-Oriented Business	-	1 sp./250 sf.

¹ Applicant may provide a parking analysis based on 1 sp./5 seats (or similar accommodations) + for seasonal outdoor seating, 1 sp./10 seats (or similar accommodations) for Main Street, Mixed-Use, and Neighborhood.

Corridor Form Zones and 1 sp./3 seats (or similar accommodations) for all other areas if the per sq. ft. ratio results in more parking spaces than would be required by the area based method for the director to determine if required parking spaces shall be set on a per seat basis.

Table 18.36.020.2.3: General Commercial Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Business Services	1 sp./350 sf.	1 sp./300 sf.
Convenience Lending	1 sp./350 sf.	1 sp./300 sf.
Fitness Instruction or Gymnasium	1 sp./750 sf.	1 sp./750 sf.
Office, General	1 sp./350 sf.	1 sp./300 sf.
Pawnbroker	-	1 sp./300 sf.
Personal Services	1 sp./350 sf.	1 sp./300 sf.
Recording or TV Studio	special study	special study
Retail Sales and Services	1 sp./350 sf.	1 sp./250 sf.

Table 18.36.020.2.4: Community, Civic, Educational, Healthcare, and Institutional Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Cemetery	-	Special study
Crematorium	-	1 sp./300 sf.
Day Care Center, Adult or Child	Adult day care: 1 sp./300 sf. Child day care: 2 sp./employee	Adult day care: 1 sp./300 sf. Child day care: 2 sp./employee
Funeral Home	-	1 sp./4 seats cap., or 1 sp./50 sf. seating area (if no fixed seats)
Hospital	1 sp./3 beds + 1 sp./2 employees	1 sp./3 beds + 1 sp./2 employees
Office, Medical	1 sp./350 sf.	1 sp./300 sf.
Place of Assembly	1 sp./4 seats (or similar accommodations) cap. in assembly area. Additional floor area for accessory uses generally used on different days or at different times of the day is not counted in the calculation of required parking spaces.	1 sp./4 seats (or similar accommodations) cap. in assembly area. Additional floor area for accessory uses generally used on different days or at different times of the day is not counted in the calculation of required parking spaces.
School, Elementary or Middle	1 sp./emp.	1 sp./emp.

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
School, High	1 sp./2 students cap.	1 sp./2 students cap.
School, Vocational or Trade	1 sp./2 students cap.	1 sp./2 students cap.
University or College	1 sp./2 students cap.	1 sp./2 students cap.

Table 18.36.020.2.5: Motor Vehicle and Transportation Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking in Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Bus or Taxi Terminal, On-Demand Transportation Dispatch	-	Special study
Fueling, Fast-Charging, or Service Station	-	1 sp./150 sf. of building floor area, not including canopy areas
Light Motor Vehicle Repairs and Service	-	2 sp./repair bay + .5 sp. for shortterm and long-term vehicle storage/repair bay
Heavy Motor Vehicle Repairs and Service	-	1 sp./750 sf. garage area
Heavy Motor Vehicle Sales or Rental	-	1 sp./500 sf. of showroom, office, service areas, and parts sales
Motorcycle, Scooter, or ATV Sales or Rental	-	1 sp./300 sf. of showroom, office, service areas, and parts sales
Motor Vehicle Wash	-	1.5 sp./emp.
Passenger Motor Vehicle Sales or Rental	-	1 sp./450 sf. of showroom, office, service areas, and parts sales
RV Storage	-	1 sp./storage space
Surface Parking	N/A	N/A
Structured Parking	N/A	N/A
Truck Stop	-	1 sp./250 sf.

Table 18.36.020.2.6: Veterinary and Domestic Animal Parking Standards

<i>Land Use</i>	<i>Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Commercial Equestrian Facilities	-	1 sp./boarding stall + 1 sp./10 lf. of bleacher seating
Kennel, Indoor	1 sp./350 sf.	1 sp./300 sf.
Kennel, Outdoor	-	1 sp./300 sf.

<i>Land Use</i>	<i>Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Veterinary Facilities, Large Animal Clinic	-	1 sp./exam room + 1 sp./300 sf. office and administration
Veterinary Facilities, Small Animal Clinic	-	1 sp./exam room + 1 sp./300 sf. office and administration
Wildlife Rehabilitation	-	1 sp. + 1 sp./300 sf. office and administration

Table 18.36.020.2.7: Industrial, Processing, Recycling, Storage, and Disposal Parking Standards

<i>Land Use</i>	<i>Main Street, Mixed-Use, and Neighborhood Corridor Form Zones</i>	<i>Minimum Required Parking in All Other Areas</i>
Community scale manufacturing/maker-space	1 sp./500 sf. office and workshop areas	1 sp./500 sf. office and workshop areas
Composting Facility	-	1 sp./emp.
Cottage Industry and Retail	1 sp./1,000 sf. warehouse area + 1 sp./500 sf. office and workshop areas or 2 per employee	1 sp./1,000 sf. warehouse area + 1 sp./500 sf. office and workshop areas or 2 per employee
Disposal Facility		special study
Heavy Industry	-	special study
Heavy Logistics Center	-	1 sp./1,000 sf. up to 100,000 sf., then 1 sp./5,000 sf. thereafter
Light Industry	-	1 sp./1,000 sf. warehouse area + 1 sp./300 sf. office and workshop areas or 2 per employee
Recycling Collection Center	-	1 sp./loading area + 2 sp./3 emp.
Resource Extraction (Minerals)	-	Per PUD
Salvage Yard	-	4 sp./ac. of yard
Self-Storage	-	2 sp. + 1 sp./10,000 sf.
Storage Yard	-	4 sp./ac. of yard
Waste Transfer Station	-	special study

Table 18.36.020.2.8: Agriculture Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking</i>
Urban Agriculture Sales and Markets	1 sp./stall or Parking plan as approved as part of a Special Use application
Small-Scale Agriculture	N/A

Table 18.36.020.2.9: Utilities Parking Standards

<i>Land Use</i>	<i>Minimum Required Parking</i>
Battery Energy Storage Systems	special study
Data Center	special study
Overhead Power Lines (110 kV+)	N/A
Photovoltaic Arrays (2 MW+)	special study
Utilities, Minor	special study
Utilities, Major	special study

(3) *Required bicycle parking spaces.*

(a) *Detached and attached residential uses.*

The detached and attached residential uses set out in table 18.36.020.2.1 shall provide a 32-inch by 84-inch floor area (sufficient area for storage of two bicycles) or alternatively, a 32-inch-wide by 40-inch-deep area against a wall upon which a vertical bicycle mount could be attached, either located within an enclosed garage, carport, or covered porch. The bicycle parking area must not interfere with the use of the garage or carport for parking or the covered porch for access to the building.

(b) *Multifamily uses.* The multifamily uses set out in table 18.36.020.2.1 shall provide covered, secured, and free bicycle parking for a minimum of 15 percent of the multifamily units, at two bicycle spaces per unit. Such spaces may be provided in garages as set out in subsection (2)(a), or in the manner required by subsection (2)(c) for special residential and nonresidential uses.

(c) *Special residential and nonresidential uses.* Special residential and nonresidential uses set out in table 18.36.020.2.1 shall provide bicycle parking spaces in a number not less than ten percent of the required motor vehicle spaces. Such bicycle parking spaces shall meet the following minimum requirements:

1. Bicycle parking shall be provided in bicycle lockers, or in bicycle racks that meet the following standards:
 - a. The bicycle frame and one wheel can be locked to the rack

with a high security, U-shaped lock with both wheels left on the bicycle (designs that only allow one locking point at the wheel cannot be used to satisfy the bicycle parking requirements);

- b. A bicycle that is six feet long can be securely held with its frame supported so that the bicycle cannot be pushed or fall in a manner that will damage the wheel components; and
- c. The racks are securely anchored to a hard surface.

2. Racks shall be bordered by physical barriers or located a sufficient distance from motor vehicles to prevent damage to parked bicycles, and installed with sufficient clearance from obstructions so that they can be used according to their design.

3. A clear area of four and one-half feet shall be maintained on the parking side of the bicycle rack (both sides if the rack is designed and installed to be accessed from both sides). The clear area is measured away from the rack, from the furthest point of the back wheel of a six-foot long bicycle parked in the fashion for which the rack is designed. In the main street A and main street B form zones, the clear area may overlap a public sidewalk if no alternative is feasible. In other zones, the clear area may not encroach into the travelway of the public

sidewalk (it may encroach into areas of the public sidewalk used for street furnishings and landscape planters).

4. Bicycle racks shall be located in well-lit, accessible areas that are within 100 feet of an entrance into the building they are intended to serve, and be clearly visible from the building entrance and its approaches.

(4) Requirements for multifamily residential development, or adaptive re-use for residential purposes, or adaptive re-use mixed-use purposes which include at least 50 percent use for residential when the adaptive re-use is in the main street, mixed-use, or shop form types or comparable development allowed in a PUD/ODP and partially within an applicable transit service area (as defined by C.R.S. § 29-36-102(2)).

- (a) The development shall provide at least the required amount of bicycle parking spaces pursuant to this chapter.
- (b) The development shall provide all required accessible parking spaces per section 18.36.033 that would otherwise be required by this chapter.
- (c) The development shall meet the electric vehicle charging requirements pursuant to chapter 18.40.
- (d) Developments that receive a reduction in parking spaces by public hearing variance pursuant to chapter 18.12, or by other means, shall be required to submit a TDM plan for approval by the director prior to approval of any application in chapter 18.10 or issuance of a building permit or change in occupancy. The TDM plan shall include trip generation estimates without TDM, goals for single occupant vehicle trip reduction and travel mode-share, and strategies to implement the TDM plan to achieve the goals, and reporting with a TDM survey.

(Ord. No. 2252, § 4(Exh. C), 1-28-2025; Ord. No. 2229, § 8, 2-13-2024; Ord. No. 2209, § 2(Exh. H), 6-6-2023; Ord. No. 2270, § 4(Exh. C), 8-12-2025)

18.36.025 Number of off-street parking spaces required, for downtown Golden and community mixed use zone districts.

Note: Required parking is set out in section 18.36.020.
(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.030 Number of off-street parking spaces required, for non-downtown areas.

Note: Required parking is set out in section 18.36.020.

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.032 Mixed-use shared parking.

(1) *Generally.* An off-street parking space may be made available to serve two or more land uses for which off-street parking is required by this chapter; provided:

- (a) The parking demands of the land uses peak at different times of the day or week and are not normally in time conflict (e.g., a theater or nightclub may share off-street parking facilities with a retail food store, and a church may share a common facility with an office building);
- (b) The total floor area of the land uses that share parking is at least 25,000 square feet;
- (c) Of the total floor area, at least 25 percent is within a retail or office category;
- (d) Within the development, there is a minimum of three land uses that are categorically different from one another according to the following tables in this section;
- (e) The uses are located on a contiguous parcel of land held in common undivided ownership or on land under other common undivided control. None of the parking spaces considered to be shared shall be designated for the exclusive or guaranteed allocation to a single use;
- (f) A copy of a recorded agreement between the owners involved in such joint use is filed with the director of community and economic development;
- (g) Shared use for any given owner does not exceed three-fourths of the total number of off-street parking spaces for which the owner is obligated by the requirements of this chapter;
- (h) Any future changes of any such shared use arrangements shall be brought to the attention of and receive the approval of the director.

(2) *Methodology.* For those land uses and properties which meet the stated eligibility requirements, shared parking shall be calculated according to the following procedure:

- (a) From table 2, hereof, "peak parking demand factors", calculate the required parking for the separate individual land uses. Calculate the parking for both the weekday and Saturday conditions. Select the condition, either weekday or Saturday, which produces the highest total required parking. This will be the "peak parking demand" for each separate land use.

Table 2 calculates parking factors on the basis of gross leasable area (GLA). "GLA" is defined as the gross floor area of the building excluding space used for lobbies, hallways, elevators, stairways, mechanical equipment, and other common unassigned areas.

- (b) From table 3, hereof, "monthly variations", select the design month which produces the highest summation of the percentage totals (for example, a retail/restaurant/cinema development would have June and July as its design months because the sum of 75 percent + 100 percent + 100 percent is higher than the combined sums of any of the other months).
- (c) Based on the design month "monthly variations", multiply the required parking calculated for each individual use in step 1 by the individual factor "percentage of peak month". This establishes the "peak monthly adjusted" parking requirement for each use.
- (d) From table 4, hereof, "hourly variations", select the design hour, either weekday or Saturday, which produces the highest summation of the percentage totals (for example, a retail/restaurant/cinema development would have 8:00 p.m. on a

weekday as its design hour because the sum of 87 percent + 100 percent + 100 percent is higher than the combined sums of any of the other hours).

- (e) Based on the design hour "hourly variations", multiply the "seasonally adjusted" parking requirement calculated for each individual use in step 3 by the individual

factor "percentage of peak hour". This establishes the "peak hourly adjusted" parking requirement for each use.

- (f) Add together the "peak hourly adjusted" parking requirements for each individual use. This total is the minimum parking requirement for the mixed-use shared parking for the total development.

TABLE 2: PEAK PARKING DEMAND FACTORS

<i>Land Use</i>	<i>Unit</i>	<i>Weekday</i>	<i>Saturday</i>
Office	Parking spaces per 1,000 sq. ft. GLA*	3.00	0.50
Retail (less than 400,000 sq. ft.)	Parking spaces per 1,000 sq. ft. GLA*	3.80	4.00
Retail (400,00 sq. ft. or more)	Parking spaces per 1,000 sq. ft. GLA*	3.80	5.00
Restaurant	Parking spaces per 1,000 sq. ft. GLA*	20.00	20.00
Cinema	Parking spaces per seat	0.25	0.30
Residential	Parking spaces per dwelling	1.00	1.00
Hotel			
Guest room	Parking spaces per room 1.25	1.25	
Restaurant/lounge	Parking spaces per 1,000 sq. ft. GLA*	10.00	10.00
Conference rooms	Parking spaces per seat	0.50	0.50
Convention area	Parking spaces per 1,000 sq. ft. GLA*	30.00	30.00

* GLA (Gross Leasable Area) for all uses except restaurants is defined as the gross floor area (inside measurement) of the structure but excluding lobbies, hallways, elevators, stairs, mechanical equipment rooms, toilets, and other common, unassigned areas. GLA for restaurants is defined as only that area to be occupied by seating and customer service areas either inside or outside including customer service areas; no parking demand will be calculated against food preparation areas or against those excluded areas described above.

TABLE 3: MONTHLY VARIATIONS AS PERCENTAGE OF PEAK MONTH

Month	Office	Retail	Restaurant	Cinema	Residential	Hotel Rooms Weekday	Hotel Rooms Saturday	Hotel Conference	Hotel Convention
January	100	65	80	90	100	90	65	100	20
February	100	65	75	70	100	90	70	100	40
March	100	70	90	50	100	95	80	100	80
April	100	70	90	70	100	95	85	100	80
May	100	70	95	70	100	95	85	100	100
June	100	75	100	100	100	100	90	100	100
July	100	75	100	100	100	100	100	100	50
August	100	75	85	70	100	100	100	100	50
September	100	75	80	80	100	95	90	100	70
October	100	75	80	70	100	95	90	100	70
November	100	80	80	50	100	85	80	100	40
December	100	100	90	50	100	85	65	100	20

TABLE 4: HOURLY VARIATIONS AS PERCENTAGE OF PEAK HOUR

	Office						Retail			Restaurant			Cinema (non-CBD)		Residential (CBD)			Resident Guest Room		Restaurant/Lounge			Hotel Room			Conference Area		Convention Area		
Hour of day	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Daily
6:00 a.m.	3	-	-	-	-	-	-	-	-	-	-	-	100	100	100	100	100	100	90	100	100	90	100	100	20	20	-	-	-	-
7:00 a.m.	20	20	8	3	2	2	2	2	2	-	-	-	87	95	95	95	85	70	85	70	85	20	20	20	20	-	-	-	-	-
Hour of day	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Daily
8:00 a.m.	63	60	18	10	5	3	5	3	3	-	-	-	79	88	90	65	60	20	65	60	65	20	20	20	20	50	20	50	20	50
9:00 a.m.	93	80	42	30	10	6	10	6	6	-	-	-	73	81	87	55	50	20	55	50	55	20	20	20	20	100	20	100	20	100
10:00 a.m.	100	80	68	45	20	8	20	8	8	-	-	-	68	74	85	45	40	20	45	40	45	20	20	20	20	100	20	100	20	100
11:00 a.m.	100	100	87	73	30	10	30	10	10	-	-	-	59	71	85	35	35	30	35	35	35	30	30	30	30	100	30	100	30	100
12:00 noon	90	100	97	85	50	30	50	30	30	30	30	30	60	71	85	30	30	50	30	30	30	50	30	30	30	100	30	100	30	100
1:00 p.m.	90	80	100	95	70	45	70	45	45	70	70	70	59	70	85	30	30	70	30	30	30	70	45	100	100	45	100	100	45	100
2:00 p.m.	97	60	97	100	60	45	60	45	45	70	70	70	60	71	85	35	35	60	35	35	35	60	45	100	100	45	100	100	45	100
3:00 p.m.	93	40	95	100	60	45	60	45	45	70	70	70	61	73	85	35	40	55	35	40	35	55	45	100	100	45	100	100	45	100
4:00 p.m.	77	40	87	90	50	45	50	45	45	70	70	70	66	75	87	45	50	50	45	50	45	50	45	100	100	45	100	100	45	100
5:00 p.m.	47	20	79	75	70	60	70	60	60	70	70	70	77	81	90	60	60	70	60	60	60	70	60	100	100	60	100	100	60	100

Hour of day	Office		Retail		Restaurant		Cinema (non-CBD)	Residential (CBD)		Resident Guest Room	Restaurant/Lounge		Hotel Room		Conference Area		Convention Area
	Week	Sat.	Week	Sat.	Week	Sat.	Daily	Week	Sat.	Daily	Week	Sat.	Week	Sat.	Daily	Daily	Daily
6:00 p.m.	23	20	82	65	90	90	80	85	85	92	70	70	90	90	100	100	100
7:00 p.m.	7	20	89	60	100	95	90	94	87	94	75	80	100	95	100	100	100
8:00 p.m.	7	20	87	55	100	100	100	96	92	96	90	90	100	100	100	100	100
9:00p.m.	3	-	61	40	100	100	100	98	95	98	95	95	100	100	100	100	100
10:00 p.m.	3	-	32	38	90	95	100	99	96	99	100	100	90	95	50	50	50
11:00 p.m.	-	-	13	13	70	85	80	100	98	100	100	100	70	85	-	-	-
12:00 midnight	-	-	-	-	50	70	70	100	100	100	100	100	50	70	-	-	-

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.033 Required accessible parking spaces.

(1) *Generally.* Parking spaces that are accessible to persons with disabilities ("accessible parking spaces") shall be provided as set out in this section. Such spaces shall be counted toward the total number of spaces that are provided for the purposes of compliance with this chapter.

(2) *Number of required spaces.* Accessible parking spaces shall be provided as set out in table 5, number of accessible parking spaces, or as required by the most current revision of the ADA Standards for Accessible Design, Section 208 (as may be amended or re-titled from time to time), whichever requires more parking spaces for disabled persons.

TABLE 5: NUMBER OF ACCESSIBLE PARKING SPACES

<i>Number of Parking Spaces Required by this Division</i>	<i>Number of Accessible Spaces</i>	<i>Number of Spaces that Must be Van Accessible</i>
1 to 25	1	1
26 to 50	2	1
51 to 75	3	1
76 to 100	4	1
101 to 150	5	1
151 to 200	6	1
201 to 300	7	1
301 to 400	8	1
401 to 500	9	2
501 to 1,000	2 percent of total number of parking spaces	1 out of 8 accessible parking spaces, rounded up
1,001 and over	20, plus 1 for each 100 parking spaces in excess of 1,000 parking spaces	1 out of 8 accessible parking spaces, rounded up

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.040 Parking space standards and dimensions.*(1) Angled parking spaces.*

- (a) Standard angled parking spaces shall be at least nine feet wide by 18 feet deep.
- (b) Compact angled parking spaces shall be at least eight feet wide by 15 feet deep.
- (c) The required depth of an angled parking space that is adjacent to a landscaped area may be reduced by up to two feet if the design allows car bumpers to project over the landscaped area. If a median island is provided and used for the purposes of reducing parking space depth, the median must be a minimum of nine feet in width.

(2) Parallel parking spaces.

- (a) Standard parallel parking spaces shall be eight feet wide (perpendicular to street or aisle centerline) by 23 feet deep (parallel to street or aisle centerline).
- (b) Compact parallel parking spaces shall be six and one-half feet wide (perpendicular to the street or aisle centerline) by 19.5 feet deep (parallel to street or aisle centerline).

(3) *Disabled parking spaces.* Disabled parking spaces shall be dimensioned and marked as required by the Americans with Disabilities Act Accessibility Guidelines.

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.041 Accessible parking space dimensions, design, and location.

(1) *Individual parking spaces.* The dimensions, design, and location of accessible parking spaces shall be as required by the 2010 ADA Standards for Accessible Design, Section 502 (as may be amended or subsequently titled or numbered from time to time, "ADA 502"), at the time the parking space is striped.

(2) *Accessible routes.* Accessible routes to and from accessible parking spaces shall be provided as required by ADA 502, at the time the parking spaces are striped. Accessible routes shall be

graded according to the standards of ADA 502, at the time the parking lot is developed or any time it is re-graded.

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.042 Number of compact parking spaces.

Up to ten percent of required parking spaces may be "compact parking spaces." Compact parking spaces may only be provided in angled configurations.

(Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.043 Striping and surfacing.

(1) *Striping.* Parking spaces within shared parking areas and parking lots shall be defined on the pavement surface with painted or adhesive lines.

(2) *Surfacing.* Off-street parking areas shall be paved with asphalt, concrete, or similar permanent surfacing, including semi-permeable surfaces such as grass pavers, provided that dust is controlled.

(3) *Curbs and barriers.* Curbs or barriers shall be provided to protect public sidewalks from vehicular intrusion as well as to prevent parking in areas where parking is not permitted. (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.044 Vertical clearance over parking spaces.

A vertical clearance of not less than eight feet shall be provided over all parking spaces. Additional clearance shall be provided for larger vans, sport utility vehicles, and light trucks that require such clearance if parking demand from such vehicles is anticipated. All parking structure entrances shall include an overhead bar to alert oversized vehicles regarding vertical clearance. (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.045 Parking lot design.

(1) *Parking aisle dimensions.* Parking aisles shall be dimensioned as shown in Table 6, Minimum Parking Aisle Width.

TABLE 6: MINIMUM PARKING AISLE WIDTH

Measurement	<i>Parking Space Angle (from Centerline in the Direction of Travel)</i>				
	0°/Parallel Parking	45°	60°	75°	90°
Min. One-Way Drive Aisle Width ¹	13 ft.	14 ft.	16 ft.	18 ft.	24 ft.
Min. Two-Way Drive Aisle Width ¹	19 ft.	Not allowed	Not allowed	Not allowed	24 ft.

TABLE NOTE:

¹ If the drive aisle is to serve as an emergency access, it shall not be less than 20 feet in width.

(2) *Consistent angles required; exceptions.* Where parking spaces are located on both sides of a parking aisle, the angle of the parking spaces shall be the same, except that parallel disabled spaces may be provided in the same aisle as angled parking spaces to the extent accessibility is improved by the design.

(3) *Dead ends.* Dead-end parking lot aisles shall provide back-around space five feet in depth and the same width as the aisle.

(4) *Parking aisles to remain unobstructed.* The layout of the parking area shall be such that no vehicle shall protrude into a traffic lane.

(5) *Surface parking lot standards.* The following standards apply to off-street surface parking lots:

- (a) Parking aisles shall meet the minimum standards shown in the City of Golden Street, Sidewalk, and Drainage Specifications Manual.

- (b) Emergency access shall be provided that adequately links the site to public streets as a part of the overall site circulation.
 - (c) Raised curb end islands are required for each parking aisle containing more than ten vehicle parking spaces on one side. Curb islands shall be constructed of an appropriate material such as concrete, block, or other similar material.
 - (d) Off-street parking lots located on corner lots shall be so designed as to avoid the obstruction of views across the sight distance triangle as defined by the city's street, sidewalk, and drainage specifications by reason of parked vehicles.
 - (e) Driveways parallel to public sidewalks shall be separated from such walks by a landscaped area not less than eight feet in width or a solid wall at least 30 inches in height.
 - (f) Buildings and parking areas shall provide safe and clearly visible pedestrian walkways from building entrances through site to adjacent properties, transit stops, trails and parkland.
- (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

18.36.050 Off-street loading areas.

For all business and industrial uses housed in new construction, or housed in an addition to an existing building, off-street loading spaces shall be provided as follows:

- (1) For a building or addition of less than 10,000 square feet no off-street loading space is required.
 - (2) For new floor area between 10,000 square feet and 25,000 square feet one off-street loading space is required, plus one additional off-street loading space for each additional 25,000 square feet or major fraction thereof.
 - (3) An off-street loading space shall contain not less than 500 square feet with no one dimension less than ten feet and shall occupy no part of any public street, alley, driveway or sidewalk.
- (Ord. No. 2209, § 2(Exh. H), 6-6-2023)

Chapter 18.38 FENCE REGULATIONS*

18.38.005 Applicability.

This chapter applies within legacy use zones and planned unit developments (PUDs), except as otherwise provided in the PUD official development plan.

(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.010 Fences permitted.

Except as otherwise provided in this chapter, fences located entirely on a property shall be permitted.

(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.020 Fencing materials and design.

(1) All privacy fences shall be constructed to orient any exposed structural framework to the interior of the fenced property;

(2) All fences, perimeter walls, or retaining walls that are visible from public rights-of-way must be made from traditional fence or wall materials such as:

(a) Fence materials:

- 1. Wood, vinyl, or composite wood (in picket, shadowbox, or post-and-rail formats); or
- 2. Metal (chain-link fencing or aluminum or wrought iron decorative fencing).

(b) Perimeter and retaining wall materials:

- 1. Stacked stone;
- 2. Tinted split-face concrete masonry units;
- 3. Brick; or
- 4. Stucco-finished block.

***Editor's note**—Sec. 2(Exh. I) of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.38 in its entirety to read as herein set out. Former ch. 18.38 pertained to the same subject matter, consisted of §§ 18.38.010—18.38.050, and derived from Ord. No. 1517, 2000.

- (3) For fences, perimeter walls, or retaining walls, the director may approve materials that are comparable to the materials listed in subsection (2), above.
- (4) Barbed wire, razor wire, and electric fences are prohibited, except as specifically permitted in a PUD official development plan, or as required by the city as a condition of approval of a special use permit.

(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.030 Protection of sight distance areas.

Fences located within a sight distance area for a street, driveway, alley, or intersection shall conform with the requirements for such sight distance areas contained in the city's street, sidewalk, and drainage specifications manual.
(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.040 Maximum height.

(1) The maximum height offences in the M-1 and M-2 zone districts shall be ten feet.

(2) The maximum height of fences in the PUD district shall be as listed in the official development plan or, if none is listed, in the most similar zone district.

(3) The maximum height offences in all other zone districts shall be eight feet, unless a taller fence is required by the city as a condition of approval of a site development plan submitted pursuant to chapter 18.40.
(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.045 Temporary fencing.

(1) Temporary fencing utilized for the purposes of screening construction shall not exceed eight feet in height and shall be opaque.

(2) Temporary fencing used to provide temporary security in response to a demonstrated need (e.g., to secure a damaged building) may be approved by the director. The type and height of the fencing shall correspond to the demonstrated need.

(3) Temporary fencing utilized shall be removed after not more than 18 months, except in cases where the city approves a longer term for temporary fencing (e.g. in a construction staging plan), in order to protect public safety and provide security.
(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

18.38.050 Building permit required.

(1) No fence greater than six feet in height shall be constructed until a building permit for said fence has been issued by the city. Issuance of a separate building permit shall not be required when adequate information is included in the building permit application for a building project that includes the proposed fence.

(2) No fence located in the required front setback for a property shall be constructed until a building permit for said fence has been issued by the city. Issuance of a separate building permit shall not be required when adequate information is included in the building permit application for a building project that includes the proposed fence.
(Ord. No. 2209, § 2(Exh. I), 6-6-2023)

Chapter 18.40
SITE DEVELOPMENT REGULATIONS*

DIVISION I. GENERAL PROVISIONS

18.40.010 Intent and purpose.

This chapter establishes the site development plan requirement, as well as its approval procedures and certain substantive standards. The site development plan requirements established herein seek to balance individual preference with community benefits that are derived from safe, functional, and aesthetically pleasing site improvements. Landscape and site design improvements contribute to safe surroundings for the community, enhance the livability of residential neighborhoods, improve the appearance of land and customer attraction to commercial areas, increase property values, enhance the compatibility of adjacent land uses, screen undesirable views, reduce air, light, and noise pollution, and contribute to the image and appeal of the community for both residents and nonresidents.

(Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.015 Site development plan (SDP) required; applicability of site development regulations.

(1) *Approval required.* Except as provided in subsection (2), below, site development plan (SDP) approval is required prior to:

- (a) Construction of new buildings or parking areas; and

***Editor's note**—Sec. 2(Exh. J) of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.40 in its entirety to read as herein set out. Former ch. 18.40 pertained to the same subject matter, consisted of §§ 18.40.010—18.40.860, and derived from:

<i>Ord. No.</i>	<i>Date</i>	<i>Ord. No.</i>	<i>Date</i>
1179	1993	1942	2013
1315	1996	1997	12-11-2014
1517	2000	2048	2- 9-2017
1716	2005	2089	10-11-2018
1836	2-26-2009	2097	1-10-2019
1847	2009	2110	6-13-2019
1859	2009	2156	4-20-2021
1867	2010	2179	4-26-2022
1874	2010	2181	5-24-2022

- (b) Substantial alterations to existing buildings, parking areas, or loading areas.

(2) *Exceptions.* Site development plan approval is not required for:

- (a) Construction of or substantial alterations to a single household residence on a single lot or parcel in the residential estate (RE), limited industrial (M1), general industrial (M2), agricultural (AG), conservation (CO), or planned unit development (PUD) (unless the PUD official development plan or approval document specifies that an SDP is required) zoning district; and
- (b) Construction of or substantial alterations to a two-household dwelling on a single lot or parcel in the residential estate (RE), limited industrial (M1), general industrial (M2), agricultural (AG), conservation (CO), or planned unit development (PUD) (unless the PUD official development plan or approval document specifies that an SDP is required) zoning district.

(3) *Application of site development standards.*

- (a) *Generally.* The applicable site development standards and guidelines set forth in this chapter are in addition to any other site development standards and guidelines of this title that may otherwise be applicable to a particular property or geographic area of the city.
- (b) *Development subject to chapter 18.58.* Properties subject to the requirements of chapter 18.58 of the Municipal Code shall be reviewed for compliance therewith; such review may proceed concurrently with site development plan review under this chapter.
- (c) *Development within form zones.* The following site development standards and guidelines apply to site development plans within form zones:
 1. For all form types, sections 18.40.211 and 18.40.212; sections 18.40.215 to

- 18.40.217, inclusive, 18.40.240 to 18.40.242, inclusive; 18.40.270; 18.40.272; and 18.40.292.
2. For row house, main street, mixed-use, and shop building form types, sections 18.40.340 to 18.40.350, inclusive.
 3. For house, cottage, compound, cluster, and duplex form types, sections 18.40.340 to 18.40.350, inclusive, do not apply.
 4. For property that is located within the Clear Creek corridor that is used for nonresidential or multifamily purposes, division V of this chapter.
- (d) *Development within legacy use zones.* Construction or substantial alterations on all properties in legacy use zones shall be subject to sections 18.40.215 to 18.40.217, inclusive. The site development standards and guidelines set out in divisions II through IV of this chapter, inclusive, apply to site development plans that are within the legacy use zones. The site development standards and guidelines set out in division V of this chapter 18.40 apply to site development plans for nonresidential or multifamily uses on property within a legacy use zone that is also located within the Clear Creek corridor.
- (e) *Planned unit development.* The site development standards and guidelines set out in sections 18.40.215 to 18.40.217, inclusive and appendix A to this chapter 18.40, "Legacy PUD Standards," apply to site development plans within planned unit development zoning districts that are approved as of June 26, 2023, unless otherwise specifically provided in the PUD official development plan or approval documents. The site development standards and guidelines set out in division V of this chapter 18.40 apply to PUDs for nonresidential or multifamily uses on property that is located within the Clear Creek corridor, unless otherwise specifically provided in the PUD official development plan or approval documents.
- (f) *Changes to existing downtown buildings.* Where changes to an existing building in the downtown area described in appendix A, section A-1.1(1) are proposed, the standards and guidelines of appendix A, division A-1, downtown standards and guidelines, shall be applied in lieu of the standards of chapter 18.29, provided that the changes do not involve an increase in building height.
- (g) *Colorado School of Mines.* Notwithstanding anything to the contrary contained in this title, including this chapter, the development or redevelopment by the Colorado School of the Mines of property subject to the land development and planning process set forth in that certain intergovernmental agreement between the Colorado School of Mines and the City of Golden regarding coordination of campus capital construction, dated April 29, 2021, shall be reviewed in accordance with said process and shall be exempt from the site development plan review process in this chapter until such time as said agreement expires or is terminated by a party thereto in accordance with the agreement.
- (h) *Effect on vested property rights.* Approval of a site development plan pursuant to this chapter shall not constitute a vested right to develop the property in accordance with the approved plan pursuant to C.R.S. § 24-68-101, et seq. or otherwise. Unless specific action is taken by city council, in accordance with the provisions of chapter 18.66 of this title, a site development plan approved pursuant to this chapter shall not constitute a site specific development plan as that term is utilized in C.R.S. § 24-68-101, et seq.
- (Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.020 Improvements required prior to certificate of occupancy or certificate of completion.

All improvements indicated on an approved site development plan shall be completed prior to issuance of a certificate of occupancy or certificate of completion. However, if all conditions necessary for issuance of a certificate of occupancy or certificate of completion are met except landscape and other site improvements unrelated to vehicular access, stormwater quality and storm drainage facilities, site grading, and retaining walls, a temporary or final certificate of occupancy or certificate of completion may be issued. In that event, all improvements must be completed by the next planting season within a time frame established by the director, but in no case to exceed 180 days after issuance of the temporary or final certificate of occupancy or certificate of completion. As a condition of issuance of the temporary or final certificate of occupancy or certificate of completion, project completion shall be guaranteed by the filing of a performance guarantee with the city in a form and amount as would be necessary to ensure completion of the improvements, and with such surety as are authorized to secure development agreements pursuant to Golden Municipal Code section 17.50.110. Such guarantee shall be held until after the installation of the affected improvements and satisfactory inspection by the city. (Ord. No. 2282, § 2(Exh. C), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.022 Eligible applicants.

The owner of record of the property or, upon proof of legal authority and owner consent, the purchaser under a contract to acquire the property, a tenant of the property, or a duly authorized agent of the owner of record, may file an application under this chapter. (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.025 Pre-application procedures.

(1) See section 18.10.040 for pre-application procedures. (Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.028 Neighborhood meeting.

(1) See section 18.10.040 for neighborhood meeting procedures. (Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.030 Application required.

(1) See chapter 18.10 for application requirements. (Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.035 Expiration or withdrawal of application.

(1) See chapter 18.10.040 for process.
(2) An application may be withdrawn by an applicant at any time. To reinstate review, the applicant shall resubmit the application, which in all respects shall be treated as a new application. (Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.040 Review procedures and requirements for approval.

(1) See chapter 18.10.040 for review procedures and hearing procedures upon referral.
(a) Following the close of the public hearing, planning commission shall approve, approve with conditions, or deny the application based on its compliance with applicable standards of this title, including, as applicable, those set out in chapter 18.29. The planning commission may, in its discretion, continue such hearing for up to 70 days to allow the applicant to submit additional evidence and arguments that address any specific issues or concerns expressed by planning commission as to whether compliance with applicable standards has been achieved or, if applicable, whether substantial compliance with the design guidelines contained in this chapter has been achieved. The planning commission shall

make the final determination as to which items within the guidelines section are applicable to the site development plan.

(3) Site development plans shall be approved if they are complete in form, meet all applicable standards of this title 18, and with respect to site development plans for properties in legacy use zones, substantially comply with design guidelines contained in this chapter. For the purposes of determining whether a site development plan for property in a legacy use zone "substantially complies" with the design guidelines of this chapter, "substantial compliance" with the design guidelines of this chapter means that the site development plan complies with a simple majority or more than 50 percent of the applicable items within a section or like sections labelled "guidelines."

(4) If the director approves a site development plan for a property within a form zone, the decision shall not be deemed final, and building permits shall not be issued, until the decision has been posted for 21 days on the city's website as provided in subsection (5), below, and no call-up has been requested pursuant to section 18.40.045 within that time.

(5) Notice of the director's decision on a site development plan application shall be provided to the applicant by electronic mail or first class U.S. mail. In addition, notice of the director's approval of a site development plan for a property within a form zone shall be provided as follows:

- (a) Upon approving the site development plan, the written decision shall be published on the city's web site.
- (b) Upon posting the decision of approval to the city's website, the director shall provide notice of the approval by electronic mail to the members of city council and members of the planning commission, which notice shall direct said members to the written decision and materials on the city's website.

(Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.045 City council call-up of director decisions on site development plans for properties within a form zone.

(1) Any two members of city council may request that the director's approval of a site development plan for property within a form zone be called up for review by planning commission (a "call-up").

(2) To initiate a call-up, a written request for a call-up, submitted by two members of city council, shall be filed with the city clerk within 21 days after notice is published to the city's website pursuant to section 18.40.040(5). The written request need only specify the site development plan approval for which call-up is being requested; however, the written request may, in the requesting members' discretion, direct planning commission to limit its review to specific approval criteria only, in which case planning commission review shall be limited to the specified scope.

(3) The planning commission shall hold a public hearing on the call-up within 45 days after the written request is filed with the city clerk, unless an extended period is established with the applicant's written consent.

(4) Notice of the public hearing: See section 18.10.040 for notice procedures.

1. Standard mail notice pursuant to section 18.10.020;
2. Posted notice pursuant to section 18.10.030; and
3. Electronic published notice pursuant to section 18.10.040.

(5) The scope of the planning commission's review shall be limited to whether the site development plan is in compliance with applicable standards. At the close of the public hearing, the planning commission shall affirm the decision of the director, affirm the decision with conditions to ensure compliance with the applicable standards, approve an alternative site development plan that complies with applicable standards, approve the site development plan with an adjustment (pursuant to division VII of

chapter 18.29) or variance (pursuant to chapter 18.40) that brings the site development plan into compliance with applicable standards, or reverse the decision of the director.

(6) A decision on a call-up shall require a majority of a quorum of the planning commission.

(Ord. No. 2252, § 8(Exh. G), 1-28-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.055 Stay pending call-up review.

A request for call-up review shall automatically stay all actions on the site development plan, including the issuance of building permits; and neither the applicant nor the city may rely upon the site development plan decision until the call-up review process has terminated or been completed.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.060 Modification to standards.

(1) Applications for relief from the standards and guidelines set out in division II through division VI, inclusive, of this chapter 18.40 and division V of chapter 18.29 shall be processed as provided in chapter 18.12.

(2) Applications for relief from the standards set out in division III, division IV, and division VI of chapter 18.29 shall be processed as provided in chapter 18.29.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.080 Amendments to site development plan.

Amendments to an approved site development plan shall be subject to the same application, review, call-up, and appeal process applicable to the original site development plan, except that amendments that are processed as minor adjustments pursuant to division VII of chapter 18.29 are not subject to the call-up procedures of section 18.40.045.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.138 Reserved.

Drafter's Note: Mitigation of highway noise standards are set out in section 18.40.270 et seq.

DIVISION II. OVERALL DESIGN STANDARDS AND GUIDELINES

18.40.200 Development standards.

Sections 18.40.210 through 18.40.532 contain standards and guidelines for design and construction of site development improvements.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.210 Drainage/grading.

Guidelines and standards for drainage and grading are set out in sections 18.40.211 and 18.40.212, respectively.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.211 Drainage/grading guidelines.

(1) Projects should be designed to minimize cut and fill areas. Excessive cut and fill is discouraged especially in locations of limited or difficult access. Special care should be taken to final grade all disturbed areas to a natural appearing configuration. Techniques to soften the visual impact of long or high slope banks should be used and include terracing, varying slope heights, contour grading, rounding tops and bottoms of slopes, and screening with landscaping.

(2) Stormwater detention areas should be designed to be compatible with the neighborhood interests, to minimize public health impacts, and with an attempt to double as recreation uses for the neighborhood.

(3) To the greatest extent possible, impervious surfaces should be minimized and mitigated. Drainage in paved parking lots should slope towards on-site landscaping areas.

(4) Porous asphalt or cement or grass pavers should be considered for use on low-use residential driveways or parking areas, pedestrian paths, or patio areas to help support the drainage needs on the site.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.212 Drainage/grading standards.

(1) The grading of the site must conform to the city's engineering regulations, and must be designed to minimize reshaping of landforms and fit the development to the site terrain.

(2) Stormwater quality measures shall be integrated into drainage and landscape design, receiving pervious areas (RPAs) distributed throughout the site to maximize runoff reduction. All measures shall be designed to promote water quality of stormwater run-off through the use of best management practices, as defined by the mile high flood district and the city.

(3) Maintenance and upkeep of stormwater detention and water quality improvements as required by the city are a continuing obligation of the homeowner or homeowner association. Unless amendments to the approved plans are approved by the city, the owner(s) shall provide maintenance to the improvements as needed to maintain compliance with the approved plans. (Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.215 Resilient landscaping intent.

- (1) The intent for resilient landscaping is to:
- (a) Ensure landscaping standards align with the city's water efficiency and usage goals.
 - (b) Minimize plantings that increase the risk of wildfire on individual property and in neighborhoods and recognize that fire embers can travel miles during a wildfire event depending on conditions.
 - (c) Support a built environment that helps mitigate a hotter climate and responds to the impacts of climate change.
 - (d) Supplement landscaping standards established in this title with director discretion to achieve the intent.

(2) Standards and guidelines for resilient landscaping are set out in sections 18.40.216 and 18.40.217, respectively. (Ord. No. 2282, § 2(Exh. D), 12-9-2025)

18.40.216 Resilient landscaping standards.

(1) *Wildfire resiliency landscaping specifications.*

- (a) The area zero to five feet from structures, sometimes referred to as the Immediate Zone or Zone 1, shall be designed to reduce or eliminate ember ignition and direct flame contact with the adjacent structure, decks, stairs, and/or attachments. Materials shall be limited to noncombustible, hard surface materials in this zone, such as rock, gravel, sand, concrete, bare earth or stone/concrete pavers. Only ignition-resistant plantings, per an approved list by the city that is not less restrictive than that created by the Colorado State Forest Service, are allowed in this area.
- (b) Trees shall be located and planted so that tree crowns, at mature growth, are at least ten feet from any structure, overhead utility line or the furthest part of a utility pole, and do not extend into a utility easement.
- (c) The number of tree plantings required by chapter 18.29 or chapter 18.40 can be reduced by the Director, if necessary, to comply with these requirements. The director may require fewer but higher caliper deciduous trees or taller coniferous trees.
- (d) Areas in or within 300 feet of the mapped areas as provided in the State of Colorado Wildfire Resiliency Code shall not be planted with junipers, coniferous shrubs, or other higher combustible planting material with a low flammability rating below eight per the Colorado State University Extension within 100 feet of structures or as otherwise designated by the Colorado Wildfire Resiliency Code.

(2) *Efficient water landscaping specifications.*

- (a) For new developments, substantial alterations, and redevelopment that disturbs at least 50 percent of landscaped area on a property containing a principal use that is listed as a public, institutional or

civic use, a commercial use (except an outdoor recreation and entertainment use), an industrial use, a common interest community as defined in C.R.S. 38-33.3-103 that is owned and maintained by a unit owners association, or a multi-household residential development with 12 or more units, shall not be permitted to install nonfunctional turf nor nonfunctional artificial turf. Nonfunctional turf grasses are cool season non-native turf grasses that typically include, but are not limited to: Kentucky bluegrass, including blends and hybrids, Tall fescue, Fine fescue, Perennial ryegrass, Texas hybrid bluegrass, Hybrids of the species above, including those selected for "drought" or "heat" tolerance that are not hybridized for arid conditions.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025)

18.40.217 Resilient landscaping guidelines.

(1) *Landscaping guidelines to enhance wildfire resiliency.*

- (a) Trees should be spaced to prevent structure ignition and promote fuel discontinuity to limit fire spread. Tree crowns should be spaced at a minimum of six feet, preferably more than ten feet apart.
- (b) Junipers, coniferous shrubs, and higher combustible landscaping with a low flammability rating below eight per the Colorado State University Extension should be spaced to mitigate wildfire risk when planted.

(2) *Landscaping guidelines to enhance efficient and effective water use and respond to a hotter climate.*

- (a) Xeric, native, low water plantings should be distributed throughout the landscaped areas of the property.
- (b) A high-efficiency irrigation system using a drip or sub-surface system should be used.
- (c) A high-efficiency irrigation system with rain sensors should be used.

- (d) Trees should be located to reduce heat islands by providing shade over paved areas.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025)

18.40.220 Landscaping intent.

(1) Landscaping improvements are an important part of the overall site design and should be used to integrate a development into its setting. It is the intent of this chapter that development plans include landscape elements that contribute positively to the character of neighborhoods, in that they:

- (a) Enhance the human scale of the building.
- (b) Provide a transition between different use areas.
- (c) Screen views of unsightly elements, such as utility boxes and parking areas.
- (d) Create usable pedestrian areas.
- (e) Are designed to facilitate water efficiency.
- (f) Define specific areas and enhance architectural features.

(2) The intent statements of this section 18.40.220 shall not be construed as requirements or guidelines.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.221 Landscaping guidelines.

(1) Landscaping to be installed should be of a sufficient quantity and size to:

- (a) Help screen buildings from adjoining properties.
- (b) Screen parking areas from roads and neighboring properties.
- (c) Provide a landscaped area between residential properties and the street, including trees and other landscape materials.
- (d) Screen developments on slopes of over 15 percent.

(2) Trees should be located on a site to emphasize passive solar gain. Deciduous trees that shade in the summer and allow sunlight to pass through their limbs in the winter are recommended for the south side of the building. Vegetation on the east and west sides of the building should be chosen and placed to reduce summer sun from entering windows. Evergreen trees that buffer from cold winds, snow, and ice, are recommended for the north facade of the building. Decisions should also take into account the effects on solar access with regard to neighboring properties.

(3) Trees that must be removed on site due to demonstrated hardship should be mulched.

(4) Plant materials may be integrated into groupings, and need not be uniformly distributed throughout the site. An ideal design would balance distribution with grouping.
(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.222 Landscaping standards.

(1) Landscaping specifications.

- (a) Prior to planting and installing irrigation systems, all sites for plantings shall incorporate soil amendments at a rate of three cubic yards per 1,000 square feet to a depth of at least six inches. Existing topsoil shall be salvaged and stockpiled for use in amending area soil. All landscape and erosion control plans shall contain a note to this effect. Prior to issuance of a certificate of occupancy, certification must be provided to the city certifying that such amendments have been installed.
- (b) Permitted turf areas and live planting areas in excess of 100 square feet in area shall be served by a permanently installed irrigation system unless exempted by the director, based upon a determination that such an irrigation system is unnecessary as a result of the size, location or alternate maintenance accommodations applicable to the area.

- (c) A solid fence or wall eight feet in height shall be part of a ten-foot-wide buffer strip between commercial, industrial, governmental, or public assembly uses and residential uses. This fence may be reduced in height to as little as five feet by the director, if the director determines that site considerations, including, but not limited to, topographic differences between the lots, and setbacks of the proposed building warrant such reduction. Landscaping shall be used in combination with the fence or wall to soften the appearance of the buffer. A solid hedge of a minimum of five feet in height, after three growing seasons, may be used in lieu of a fence if the commercial/ industrial, governmental or public assembly use does not generate noise or emissions and if no loading or access activities occur adjacent to the residential use. Berms may be used as buffers provided that such berm shall not exceed a slope of 3:1.

- (d) The minimum size and characteristics of plant and other landscape materials at the time of planting or installation, shall be as follows:

1. Deciduous trees: Two and one-half-inch caliper, measured one foot above ground.
2. Evergreen trees: Six feet in height.
3. Evergreen and deciduous shrubs and hedges: Five-gallon container size.
4. Ground covers and vines: One gallon size, except for prostrate junipers and other shrub like ground covers that shall be five-gallon size.
5. Wood chip mulch: Minimum three inches depth.
6. Rock or stone mulch: Two-inch minimum to cobble size, minimum three inches in depth.

- (e) Plant material located within an applicable sight distance area, as defined

by the City of Golden Street, Sidewalk and Drainage Specifications, shall conform to the requirements of said document.

- (f) A performance warranty in the amount of 20 percent of the cost of installation of landscaping shall be provided to the city for projects where the cost of landscaping exceeds \$25,000.00. This performance warranty shall be held until completion of the first full growing season after the growing season of installation, and shall assure the replacement of any dead or diseased plant material.
- (g) Species shall be mixed in such a manner as to provide a combination of evergreen and deciduous plantings, shade trees and ornamental trees and bushes.
- (h) All open storage areas shall be screened from public rights-of-way or adjacent property by use of landscaping, berms or a combination of landscaping and other structural elements to a height of six feet.
- (i) Any site contiguous to or facing any residential zone or residential use shall screen its parking areas, loading docks or similar uses through the use of landscaping elements to a height of four feet.
- (j) At least 50 percent of required landscape planting areas, exclusive of hardscape, shall be irrigation zoned for, and planted with, xeric species. Applicants should cross-reference the City of Golden Recommended Plant List for plant selection.
- (k) Landscape plan shall demonstrate that irrigation systems are designed to minimize overspray and water waste through use of automatic controllers, rain sensors, moisture sensors and, for non-turf areas, subsurface drip systems.
- (l) Healthy existing mature trees (three-inch caliper or greater) shall be preserved on site unless sufficient hardship can be demonstrated. If trees must be removed, two must be planted (two and one-half-inch caliper or greater) for every one that is taken, in addition to compliance with all other tree requirements. No substitutions for trees allowed. Trees that are identified as a nuisance or invasive species by the city or the State of Colorado are not subject to tree replacement requirements.
- (2) *Landscaping the streetscape.*
 - (a) A street landscape area averaging 25 feet, but no less than 15 feet in width as measured from the proposed curb line shall be required of all properties abutting an arterial or collector street. Required pedestrian walks and bikeways are included in the streetscape measurement.
 - (b) A street landscape area averaging 20 feet, but no less than 12 feet in width as measured from the proposed curb line shall be required of all properties abutting local streets. Required pedestrian walks and bikeways are included in the streetscape measurement.
 - (c) Deciduous shade trees shall be planted parallel to the adjoining street or streets such that a canopy of foliage will form over the streets. One tree shall be planted in this manner for each 35 feet of street frontage. Clustering of trees and the introduction of coniferous trees may be permitted by the director. Ground cover and/or shrubs shall also be planted in the street side landscaping strip in which the trees are placed. All efforts should be made to preserve existing trees unless the application demonstrates site restrictions which would require their removal.



(3) *Landscaping parking areas.*

- (a) In addition to the street trees required above in subsection 18.40.222(2), trees shall be provided at a rate of one tree per five parking spaces or fraction thereof. These trees shall be placed within or immediately adjacent to the parking lot.
- (b) Properties for which on-site parking of 20 or more automobiles in a parking lot is required shall also provide a landscaped area equal to ten percent of the total paved parking lot area, which landscaped area shall count toward the requirement of section 18.40.232. The landscaped area shall be distributed throughout the paved parking lot, and shall include trees, shrubs, and ground covers. Landscaped areas shall be served with an operating irrigation system. In no instance shall more than 25 parking spaces occur in a row in the parking lot without the provision of a landscape island. Landscape areas in parking lots shall be no smaller than 80 square feet each, and shall contain at least one tree and five shrubs for each island. Islands larger than 80 square feet shall contain one additional shrub for each additional 20 square feet of area, and one additional tree for each additional 200 square feet of area.

(4) *Landscaping obligation.*

- (a) Provisions for landscaping, screening and maintenance are a continuing obligation of the property owner, and where approved trees, shrubs or other landscaping materials die or are removed, it shall be the responsibility of the applicant to replace

them with materials of a comparable nature and size to those originally approved, and replaced with species recommended by the Colorado State University Extension. Replacement shall occur in the next planting season, but in any event, such replacement time shall not exceed one year. Any replacement which conforms to the requirements of this section shall not be considered an amendment to the site plan.

- (b) City right-of-way, or the area between the road and the property line, shall be maintained by the owner of the adjoining property.
- (c) The owner of the property, his successors, lessees, heirs and assigns shall be responsible for the proper maintenance of the area subject to an approved site plan. That area shall be deemed to include an area as measured from the back of the curb line to, and including all areas subject to the approved site plan. Landscaping shall be regularly maintained including necessary watering, weeding, pruning, pest control and replacement of dead or diseased plant material.
- (d) [Final plan.] The final landscape plan for commercial and mixed use and multifamily residential projects shall be prepared and stamped by a Colorado licensed landscape architect.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.231 Open space guidelines.

(1) Open space should provide visual breaks in the landscape, link development clusters, and provide enhanced pedestrian circulation within and between developments.

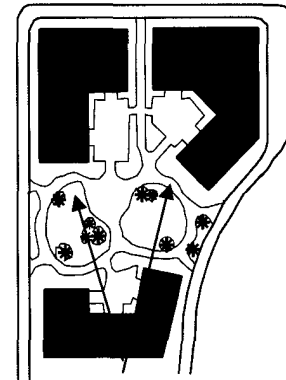
(2) Open space areas should be usable for visitors to or inhabitants of the structures within the lot and be designed to promote outdoor activity.

(3) When adjacent to a street, outdoor areas should be buffered with architectural features and landscaping.

(4) Common open space areas should be sited to take advantage of and help preserve views of significant architectural and landscape features within the site.

(5) Drainage systems should be designed to be multi-functional and integrated with open space as seamlessly as possible. Detention areas should be aesthetically pleasing as well as provide multiple use open space opportunities. Examples include creating level but sunken "percolation parks," and breaking up impervious surfaces to promote on-site infiltration that also provides water for landscaping areas.

(6) In multifamily residential developments, open space should be easily accessible from all buildings with the maximum number of units sited adjacent to the open space areas. In addition to the common open space areas, projects are encouraged to provide each unit with usable private open space. These private spaces should be directly accessible from the unit and large enough to permit outdoor living activities.



Private open space

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.232 Open space standards.

(1) Open space areas shall be provided and maintained as a percentage of the lot equal to or greater than the following:

- (a) Multiple household: 40 percent.
- (b) Office/retail (up to three acres): 25 percent.
- (c) Office/retail (greater than three acres): 20 percent.
- (d) Industrial: 15 percent.

(2) Open space areas are outdoor areas which provide separation and relief from buildings, or create outdoor recreational opportunities. These areas include:

- (a) Walkways, pedestrian paths, open plazas and malls, terraces, natural drainage ways and drainage ponds, playgrounds, rooftops improved for landscape or recreational purposes, and similar structures designed specifically for active and passive recreational use and which are not designed to be used by motor vehicles except for emergency and service purposes; and
- (b) Areas used as planted or landscaped areas, flowerbeds and planters.

(3) Open space areas do not include:

- (a) Portions of a property which are capable of being developed and which are specifically used for storage or reserved for future expansion, or outdoor areas which are developed for use as a storage area; and
- (b) Areas designed to accommodate motor vehicle uses such as parking lots, open-air showrooms, roads, or service areas, at, above or below ground level. Landscaping over underground parking, however, will be included.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.240 Parking lot design and internal circulation.

Parking lot design and internal circulation standards are set out in chapter 18.36.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.242 Parking lot design and internal circulation standards.

Parking lot design and internal circulation standards are set out in chapter 18.36.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.250 Screening.

Screening standards are set out in section 18.40.251.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.251 Screening standards.

(1) All trash containers shall comply with the requirements of chapter 5.03 of the Golden Municipal Code, and shall not be located in the public right-of-way, setback areas, or buffer areas as defined by chapter 18.28 and section 18.40.222. Trash enclosures shall be integrated into the site plan to minimize enclosure visibility and accommodate truck access. Trash enclosures shall accommodate receptacles for both trash and recycling pick-up. Trash enclosures shall be constructed of durable materials and the color, texture, and architectural detailing shall be consistent with the overall site and building design.

(2) Roof-mounted electrical, heating, ventilation or air conditioning units, and mechanical equipment shall be placed or screened such that the equipment is not visible from any point ten feet above the ground at any point within a 200-foot radius of the building upon which it is mounted. Downspouts, cell antennae, cable dishes, and roof ladders shall be located so as to minimize their view from adjacent properties.

(3) Utility cabinets, meters, generators, and other ground-mounted mechanical equipment shall be contained within the building or otherwise fully screened.

(4) Screening shall be provided for outdoor storage uses when these are permitted by the zoning district. Said screening shall occur in a manner acceptable to the city through the use of opaque fencing, landscaping, berming, or other techniques.

(5) Mechanical equipment and trash enclosures not shown on the submitted drawings shall only be approved when shown on the site plans and elevation drawings as part of a complete submittal.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.260 Walkways and bike/pedestrian paths.

Walkway and bike/pedestrian path guidelines and standards are set out in sections 18.40.261 and 18.40.262, respectively.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.261 Walkways and bike/pedestrian paths guidelines.

(1) Walkways should be designed to be free of hazards and to minimize conflicts with external factors such as noise, vehicular traffic and protruding architectural elements.

(2) Walkways should ensure the mobility of all users by accommodating the needs of people regardless of age or ability.

(3) Walkways and bike/pedestrian paths should provide a continuous connection to adjacent pedestrian networks and be designed so users can easily find a direct access to a route.

(4) Development should encourage and provide access for users to utilize alternate forms of transit such as pedestrian walkways, bicycle, bus, or light rail. If the project is in close proximity to a transit route such as the City of Golden bicycle system, Regional Transportation District (RTD) bus route, or a light rail line, the project should facilitate easy access to the route (moved from 18.40.240).

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.262 Walkways and bike/pedestrian paths standards.

(1) The minimum width of an on-site walkway shall be five feet unless head-in parking is permitted adjacent to the walkway, in which case the walkway shall have a minimum width of seven feet.

(2) On-site walkways designed to accommodate bicycles shall be referred to as bike/pedestrian paths and shall have a minimum width of eight feet. If head-in parking is permitted adjacent to bike/pedestrian paths, then two feet additional width shall be required for vehicle overhang on each side where head-in parking is allowed.

(3) Grades for walkways and pedestrian paths shall not exceed eight percent or the grade of the adjacent public street, except short stretches not to exceed 200 feet in length may be permitted by the city engineer if the city engineer determines that the criteria in the Golden Street, Sidewalk, and Drainage Specifications for sidewalks within the right-of-way are met.

(4) Connections from walkways, transit stops, trails, parks, and bike paths in the public right-of-way to the building and through any parking lots shall be provided.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.270 Mitigation of highway noise.

The guidelines set out in section 18.40.271 and the standards set out in section 18.40.272 apply to those areas within site development plans that are located adjacent to or within 500 feet of the right-of-way for I-70, C-470, U.S. 6, State Highway 58, and State Highway 93,

provided that the aggregate area of the subject property is larger than 25,000 square feet. The requirements of section 18.40.272 may be waived or reduced by the city council based upon the general criteria contained in section 18.08.010 or upon presentation of evidence that compliance with the standards is technically or economically infeasible.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.271 Mitigation of highway noise guidelines.

To the extent possible, residential development should be sited away from noise generating facilities, such as transportation projects or industrial land uses.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.272 Mitigation of highway noise standards.

(1) *Single household residential standards.* The maximum outdoor DNL for single-family residential subdivisions shall not exceed 55 dB(A). This standard is to be applied at the primary outdoor use area, typically a ground level backyard. If there is no backyard or common outdoor use area serving the development, then the city may consider a large outdoor deck, situated on the main living level, as the primary outdoor use space.

(2) *Multifamily residential standards.* The maximum outdoor DNL for multifamily residential subdivisions shall not exceed 55db(A). This standard is to be applied to the primary outdoor use area, typically the backyard or common outdoor use area. The standard does not apply to the small balconies or decks associated with multiunit developments provided there is a common outdoor use area within the development.

(4) *City parks, school playgrounds.* The maximum outdoor DNL for city parks and school playgrounds shall not exceed 65 db(A).

(5) *Commercial shopping areas.* The outdoor DNL for commercial shopping areas shall not exceed 65 db(A).

(6) *Industrial areas.* The maximum outdoor DNL for industrial areas shall not exceed 70 db(A).

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.280 Reserved.

18.40.281 Reserved.

18.40.282 Reserved.

18.40.290 Hillside standards.

Standards for development of hillsides are set out in section 18.40.292.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.292 Hillside standards.

Where properties subject to this chapter include areas covering more than 25 percent of the site with original slopes in excess of 15 percent slope, the following specific standards shall apply in addition to other requirements:

- (1) Driveway grades shall conform to criteria for private driveways in the Golden Street, Sidewalk, and Drainage Specifications.
- (2) Site development plans shall include measures to minimize erosion both during construction and after occupancy in conformance with any required drainage or stormwater quality permit, as approved by the city.
- (3) Overlot grading proposals for subdivisions or developments shall minimize disruption of topographic forms. Cut or fill depth within 100 feet of a public street right-of-way or adjacent property shall not exceed ten feet unless specifically approved by the director based upon the criteria in subsection 18.40.06(1).
- (4) Fill slopes between the subject site and existing buildings on an adjacent site shall not exceed 3:1 grade if the height of the slope where the fill is occurring exceeds four feet. Slopes in excess of a 2.5:1 grade shall be stabilized with an approved structural treatment. Accept-

able ground cover for such a slope must be specified on the site plan or grading plan.

- (5) The top of a cut slope shall be made not nearer to a property lot line than ten feet; unless a professional engineer licensed in the State of Colorado certifies that the cut will not substantially impact the lateral support of the adjacent property.

- (6) The toe of a fill slope greater than four feet in height shall be made not nearer to property lot line than ten feet or three feet of setback for each one foot of fill, whichever is greater.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.300 Reserved.

18.40.340 Sustainability guidelines and standards.

Applicants shall meet all of the standards of section 18.40.341, and at least half of the guidelines of section 18.40.342.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.341 Sustainability standards.

- (1) An applicant must install a photovoltaic energy generation system on-site that offsets ten percent of the structure's modeled electrical consumption on an annual basis. If site-specific conditions of an applicant's property, such as orientation or location of a piece of property, building site location, shading resulting from topography, or other unavoidable site-specific constraints make it impractical for an applicant to meet the requirements of this paragraph (1), then an applicant shall be required to pay to the city cash in lieu of the solar requirement in an amount equal to the fair market value of a similar sized system sufficient to enable the production of an equivalent amount of power compared to what the applicant would otherwise be required to produce on-site, and shall be based upon a 12-month average of actual or projected electricity consumption calculated by an Energy Star Portfolio Manager account or

similar building energy modeling tool. Such payment shall be used for the construction, purchase, operation and maintenance by the city of a solar garden, solar farm or similar community renewable energy facility and for the costs of administering programs related to such renewable energy facility, and/or the cost for the city to acquire, by purchase, lease or otherwise, ownership or participating interests in a third-party operated community renewable energy facility.

(2) Electric heating and cooling systems for residential buildings and commercial buildings shall be provided with demand responsive controls, that meet the requirements of the adopted building codes. Applicant shall note the requirement on the site development plan and demonstrate compliance in the building permit.

(3) An applicant must provide and install separate electricity meters for each individual multifamily dwelling unit or tenant-occupied space in a commercial building. For natural gas, an applicant must provide and install separate meters for commercial tenant spaces 10,000 square feet or more.

(4) An applicant must demonstrate that the multi-household or commercial project meets the minimum applicable International Energy Conservation Code standards adopted by the city. Applicant shall note the requirement on the site development plan and demonstrate compliance in the building permit.

(5) An applicant must integrate in any trash enclosure an equal-sized space and access for recycling receptacles adjacent to any trash receptacles.

(6) An applicant must provide and install one level 2 electric car (EV) charging station per 15 required parking spaces for the project and EV ready conduit for 15 percent of the total required parking spaces on-site. This requirement shall only apply once the total minimum required parking spaces for the project reaches 15, using rounding for any subsequent charging station requirements.

(7) Use EPA Water Sense certified water conservation measures for fixtures including flush urinals, dual flush toilets, faucets and showerheads, drip irrigation with rain sensors and industrial conservation measures.

(8) An applicant must provide an amount of bicycle parking on site equivalent to ten percent of the minimum vehicle parking requirement.

(9) An applicant must install an all-season bus shelter if the property abuts ROW that is within an existing transit route and a stop is adjacent to the property boundary.

(10) An applicant must install heat reflective roof materials. Minimum 29 SRI (solar reflective index) materials qualify.
(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.342 Sustainability guidelines.

(1) Provide community garden plots on site for a minimum of 15 percent of residential units to foster local food production. Fruit trees may be planted in association with the community garden or other means of on-site food production, such as a shared green-house or vertical farming system or other means of food production, and may count toward some of the required garden plots depending on comparable food production. Plots must be a minimum of 20 square feet each.

(2) Plant at least 20 percent additional trees than otherwise required to maximize shade over paved or covered areas in summer (deciduous east, west, south), provide a wind break in winter (evergreens to north) and reduce the urban heat island effect in parking areas and throughout the site.

(3) Install building automation system for advanced monitoring, which can include networked controls of multiple building systems, such as heating and cooling, ventilation, daylighting and lighting.

(4) Install energy or heat recovery ventilation (E/HRVs) for energy efficiency and balanced ventilation.

(5) Daylighting or passive lighting for at least 20 percent of internal spaces. Skylights, solar tubes and lumen sensors are examples.

(6) Install a green roof in accordance with applicable stormwater standards and building codes.

(7) Employ stormwater runoff reduction strategies to slow runoff and promote infiltration by routing stormwater through bioswales, rain gardens and/or permeable pavement designed in accordance with the City of Golden Stormwater Standards Manual.

(8) Provide compost bin location on the property with contract for pick-up service.

(9) Provide a bike repair station and secure and enclosed parking (e.g. lockers, storage room) for at least 50 percent of the bike parking required.

(10) Provide number of shower units for a minimum of two percent of all full time equivalent employees.

(Ord. No. 2282, § 2(Exh. D), 12-9-2025; Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.350 Sustainability menu.

In addition to complying with the sustainability guidelines and standards contained in sections 18.40.340 and 18.40.341, applicants shall choose items from the menu below, to reach a minimum of 20 points.

	<i>Menu Item</i>	<i>Points</i>	<i>Documentation Required</i>
Energy Efficiency			
1.	Sustainability menu requirements and associated point system shall be waived if project achieves LEED Gold or the Passive House Standard.	20	For LEED Gold, provide proof of registration accepted by USGBC and completed LEED checklist for site plan review. Construction drawings and LEED templates required for building permit. For Passive House Standard, project must be certified by the Passive House Institute (PHI) or PHI U.S.
2.	Increase energy efficiency of structure over the energy efficiency standards set forth in section 18.40.340. Points are awarded on a sliding scale with one point for every two percent increase in energy efficiency, up to 20 points. Points may be awarded for efficiency gains in specific systems, such as lighting or mechanical, but more points may be awarded for an integrated design approach.	1—20	Complete REScheck or COMcheck Compliance Certificate for interior and exterior lighting, building envelope, and mechanical equipment, and provide proof of energy modeling for structures and/or additions greater than 10,000 square feet in size, with a defined performance target that demonstrates projected energy efficiency. HERS rating may be used for attached residential units, with one unit serving as the model for all units if identical construction methods are used.
3.	Offset traditional energy usage with renewable energy production on site beyond the solar requirement standard set forth in section 18.40.340. There will be one point awarded for every four percent reduction in energy use, ending with 20 points for a net zero building that produces as much power as it consumes over the course of a calendar year. The cash in lieu provision outlined in section 18.40.340(1) is applicable for site specific conditions as described in this section.	1—20	Applicant must demonstrate the projected energy usage of the structure and calculate the percentage of that power that will reliably be produced on site. Building department staff will verify the model and projected renewable energy component.

	<i>Menu Item</i>	<i>Points</i>	<i>Documentation Required</i>
4.	Install additional level 2 or higher electric plug-in stations for hybrid and electric vehicles on-site over the minimum applicable standard set forth in section 18.40.340 for one to five points over the minimum applicable standard set forth in section 18.40.340 for one point for every two spaces.	1—5 total	Site plan must demonstrate location and number of station locations, and applicant must provide product specification sheets.

<i>Menu Item</i>	<i>Points</i>	<i>Documentation Required</i>
Community Preservation and Revitalization		
1. Preserve an existing structure when increasing square footage or creating additional structures. To receive points, all structures must also be brought into compliance with currently adopted IECC Code. Points awarded on a sliding scale with one point for the first 1,000 square feet and then one for every 1,000 square feet thereafter, up to a maximum of five points.	1—5	Site plan and building plans shall both reflect the building square footage being preserved on site.
2. If preserving a historically designated structure, applicant may be awarded five additional points for improving energy efficiency while maintaining both the character and structural integrity of the building.	5	Provide elevation drawings with site plan submittal that demonstrate preservation efforts, as well as achieve energy efficiency points per the "Energy Efficiency" category of this menu.
3. Add affordable dwelling units (as defined in chapter 18.04) to a project. Points awarded on a sliding scale, with two points awarded for every affordable dwelling unit up to a maximum of ten points.	2—10	Demonstrate at site plan review and at building permit review with details on size and price points of units. Deed restriction is required, and proof shall be provided in order to get c/o.

For projects involving the installation of certain high-resource use features, the minimum number of points increases according to the following schedule:

<i>High Energy-Use Feature</i>	<i>Additional Sustainability Points Required</i>
Gas fire pits exceeding 40,000 BTU	5
Indoor heated swimming pool	5
Outdoor heated swimming pool	10
Hot tub or spa	5
Snow and ice melt system	5

To calculate the total number of required points, sum 25 plus the additional points required for items listed in the schedule above. As an example, the total number of points required for a project that includes a gas fire pit and a snow melt system would be 35 (i.e., 25 + 5 + 5)
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

DIVISION III. RESIDENTIAL DESIGN STANDARDS AND GUIDELINES

18.40.400 Reserved.

18.40.410 Building placement, grading and site layout.

Building placement, grading, and site layout guidelines and standards are set out in sections 18.40.411 and 18.40.412, respectively. (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

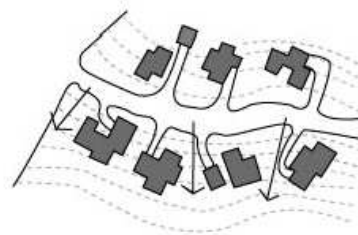
18.40.411 Building placement, grading and site layout guidelines.

(1) *Site layout, grading, and landscaping.*

- (a) Where properties abut natural features, such as drainage ways, wetlands, and hillside slopes, the landscape design should incorporate the natural features into the overall design for the property. Solid fences, walls, and other devices that separate the natural feature from the site should not be used.
- (b) Where a fill slope is to be located near the site boundary and the adjacent off-site property is either developed or public park or open space land, precautions should be incorporated in the plan to protect adjoining property from damage as a result of such grading. These precautions may include, but are not limited to:
 1. Additional setbacks.
 2. Provisions for retaining or slough walls.
 3. Mechanical or chemical treatment of the fill slope surface to minimize erosion.
 4. Provisions for the control of surface waters.
- (c) Pedestrian and/or vehicular access ways should be extended to the property line in order to interconnect with other adjacent commercial parking lots.

(2) *Building siting.*

- (a) The siting of a building should fit the existing topography, relate to climatic conditions, and consider on- and off-site structures, streets and pedestrian ways.
- (b) Structures should be placed lower than the top of slope so that the building will blend into the landscape, rather than being a focal point.
- (c) Building orientation and placement should not be disruptive to existing topographic forms, and should minimize overall cut and fill depths.
- (d) Placement of common buildings such as the appearance of one solid wall of clubhouses, garages, and/laundry facilities should be primarily toward the interior of the complex.
- (e) The pattern of spaces between buildings of new construction should be consistent with existing construction.
- (f) Attention should be given to preserving unique and/or special topographical features such as streams, outcroppings, wetlands, and unusual or scenic geological features.



Buildings should be staggered to avoid the appearance of one solid wall of structures

(3) *Orientation.*

- (a) Building orientation should face the street frontage, and preserve view corridors. Buildings should be carefully sited for climate control and to minimize casting shadows onto adjacent properties.

- (b) When integrating with existing neighborhoods, buildings and other site plan elements should be oriented on the lot in a manner which is consistent with the established neighborhoods. Where there is a predominant pattern of siting characteristics established on surrounding lots, this pattern should be continued on the subject lot.
- (c) Buildings should be staggered in orientation throughout a complex to encourage interest and avoid repetition.

(4) *Massing, scale and proportion.* Building design for multifamily projects should resemble the scale of single-family residential architecture to the extent possible. It is important to create distinct, individual units within a larger building and avoid repetition. Larger buildings should be broken down into smaller modules, with horizontal recessed and projected components, and vertical changes in the roofline.

- (a) The design of the building or buildings should consider the building proportions, building mass and height and the potential for grouping buildings together so as to be compatible with adjacent existing and proposed uses.
- (b) If the proposed building or buildings is to be larger than adjacent structures, architectural elements should be incorporated into the design of the larger building such that the scale of the larger building's facade is compatible with the adjacent smaller buildings. Scale of the elements of the existing and proposed buildings, and existing rhythm of buildings along the street should be considered. Landscaping should also be designed to integrate the structures into the surroundings.
- (c) A transition in scale, and appropriate quantities of open space and landscaping should be utilized to create an attractive, compatible edge in areas where larger scale buildings are sited next to smaller ones, such as office complexes next to single-family residences.

- (d) Building proportions should be visually pleasing to the eye. Where suitable, use of the Golden Section or an appropriate visual scale should be used. The Golden Section (a ratio of 0.618 to 1.000) is encouraged as a standard proportion for width in relation to height as used in facades of buildings, in window sizing, and in first-story to second-story proportion. The Golden Rectangle, a rectangle whose sides are proportional according to the Golden Section, can be seen at the Colorado School of Mines and in the capital building downtown Denver. see photo in subsection 18.40.511(4).

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.412 Building placement, grading and site layout standards.

- (1) *Massing, scale and proportion.*

- (a) The massing of larger buildings shall be broken into smaller components that more readily relate to the human scale. Building massing should be varied by employing a variety of techniques, such as recessed porches, bay windows, dormers and varying planes or setbacks. As appropriate to the style of the complex, the roof forms should be varied. Roof forms should include Use varying facades and create smaller components hipped roofs, gabled roofs, varying roof pitches, side-to-side gables, front-to-back gables, or various combinations.

- (b) Facade components should correspond to a human scale which can be accomplished by visually breaking up facades into smaller components with elements such as windows, covered entries, balconies, and by stepping back upper stories.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.420 Architectural features.

Guidelines and standards for architectural features are set out in sections 18.40.421 and 18.40.422, respectively.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.421 Architectural features guidelines.

The use of recessed and promoted building components and a mix of building materials and colors reduces overall mass.

(1) When building groups or multiple structures are planned for a single project, they should be designed in a unified architectural and spatial manner with reference to building placement, exterior finish, materials and design details.

(2) Brick, sandstone, wood, stucco, colored and textured concrete, and textured concrete masonry units for facing materials are encouraged. The use of native and natural materials common to the Colorado landscape is encouraged to create a warm, residential environment. Foundations should be faced with native stone or painted, rather than left as untreated concrete. Multiple building materials should generally be used to add dimension to a building.

(3) The design of facades visible from the street should include building materials that are similar or identical with the surroundings and provide an appearance of quality and permanence. Surface or facade details to enrich the architectural character and enhance the streetscape should be used. These may include awnings, special entry details, lights, and bay or specially designed windows, cornices or molding details.

(4) Lighting, paving, and street furnishings such as benches and planters should be integrated into the overall building concept and design.

(5) Flat-roofed carports and long, unbroken rows of garages are discouraged. Multiple garages should be divided into smaller buildings rather than one row of several.

(6) Mechanical equipment mounted on the building including, but not limited to, vents, flues, flashings, HVAC units, and dish antennae should be painted to match the color of the building.

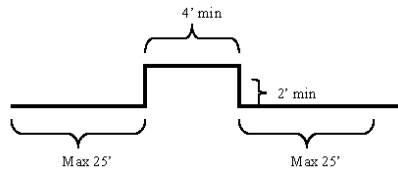
(7) Retaining wall materials should usually consist of natural rock, boulders, stone, brick or other decorative materials. In addition, retaining walls should not usually exceed eight feet in height (as consistent with chapter 15.18). (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.422 Architectural features standards.

(1) The design of building facades shall incorporate elements that help to break up long walls or roofs of buildings and facilitate a relationship with residents and visitors. Building elements shall incorporate design features and architectural elements that relate to the human scale. Buildings that utilize smaller-scale elements and useable outdoor spaces will appear less massive, fit more appropriately on the site, and appear more inviting to residents and visitors.

(2) One color shall not dominate a larger building or entire complex, but rather the use of multiple complimentary colors should be used to differentiate between buildings and components within buildings.

(3) Blank building walls that are visible to the public shall be avoided. Blank walls shall be designed to be less oppressive through the use of interesting details, design patterns and features that diminish the scale of the structure. For an expansive wall, consideration shall be given to implementing a pattern on the wall with a different color or type of the same material, or creating an area of the wall that is a different texture, color and material. There shall be at least one vertical wall plane change for every 25 feet of wall length. The vertical change shall be recessed or promoted at least two feet in depth and shall continue for a minimum of four feet in width.



(4) Retaining walls shall consist of materials consistent with the natural surroundings and/or proposed buildings. Where retaining walls exceed eight feet in height, they shall be designed in a manner that steps the retaining walls and provides landscaping on each step.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.430 Reserved.

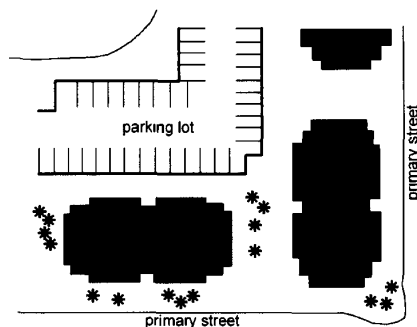
18.40.431 Reserved.

18.40.432 Reserved.

18.40.440 Parking lot design and internal circulation.

Guidelines and standards for parking lot design and internal circulation are set out in sections 18.40.441 and 18.40.442, respectively.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.441 Parking lot design and internal circulation guidelines.



(1) Whenever possible, parking lots should be located behind residential structures, rather than along the primary frontage, to minimize visual impact to the street. Parking lots should be recessed behind the front wall of the building.

(2) Where individual garages are incorporated into projects, common driveways, private streets, or alley-loaded access is encouraged. The design of these structures should relate to the primary building.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.442 Parking lot design and internal circulation standards.

Parking lot design and internal circulation standards are set out in chapter 18.36.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

DIVISION IV. NONRESIDENTIAL DESIGN STANDARDS AND GUIDELINES

18.40.500 Nonresidential standards and guidelines intent.

The City of Golden's commercial design standards and guidelines are set forth to enhance the overall character of the city's commercial development. It is important to have a balance between the integration of commercial development into the surrounding residential areas and promoting a healthy commercial environment that is attractive and convenient for residents and visitors.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.510 Building placement and site layout.

Guidelines for nonresidential building placement and site layout are set out in sections 18.40.511.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.511 Building placement and site layout guidelines.

(1) *Site layout.*

(a) Where properties abut natural features, such as drainage ways, wetlands, and hillside slopes, the landscape design should incorporate the natural features into the overall design for the property. Solid fences, walls, and other devices that separate the natural feature from the site should not be used.

- (b) Where a fill slope is to be located near the site boundary and the adjacent off-site property is either developed or a public park or open space land, precautions should be incorporated into the plan to protect adjoining property from damage as a result of such grading. These precautions may include, but are not limited to:

1. Additional setbacks.
2. Provisions for retaining or slough walls.
3. Mechanical or chemical treatment of the fill slope surface to minimize erosion.
4. Provisions for the control of surface waters.

(2) *Building siting.*

- (a) The siting of a building should fit the existing topography, relate to climatic conditions, and consider on-and-off-site structures, streets and pedestrian ways.
- (b) Structures should be placed lower than the top of slope so that the building will blend into the landscape, rather than being a focal point.
- (c) Building orientation and placement should not be disruptive to existing topographic forms, and should minimize overall cut and fill depths.
- (d) The pattern of spaces between buildings of new construction should be consistent with existing construction.
- (e) Attention should be given to preserving unique and/or special topographical features such as streams, outcroppings, wetlands, and unusual or scenic geological features.

(3) *Orientation.*

- (a) In general, buildings should be located in a manner that relates to the street and provides a strong street frontage rather than creating street frontages that are dominated by parking.

- (b) Building orientation should face the street frontage, and preserve view corridors. View corridor means the line of sight, identified as to height, width, and distance, of an observer looking toward an object of significance to the community (e.g., ridgeline, river, historic building); the route that directs the viewer's attention. Buildings should be carefully sited for climate control and to minimize casting shadows onto adjacent properties.

- (c) When integrating with existing neighborhoods, buildings and other site plan elements should be oriented on the lot in a manner which is consistent with the established neighborhoods. Where there is a predominant pattern of siting characteristics established on surrounding lots, this pattern should be continued on the subject lot.

- (d) Where the main entrance of a building does not face a street, other street side entrances, windows, and doors shall be highlighted, to provide interest and appear accessible to pedestrians.

- (e) Loading and service entrances shall not intrude upon the public view, nor interfere with pedestrian and vehicular flows within the project.



Buildings should relate to the street and appear accessible to pedestrians. Variation in building materials reduces the appearance of height and bulk.

- (4) *Massing, scale and proportion.* The intent is to ensure that buildings, particularly large structures, are designed with elements that relate to a human scale and are appropriately

proportioned. Large building volume should be broken into a number of smaller components to decrease its apparent mass and volume, thus reducing its visual impact. Reducing the visual impact of mass can be accomplished by creating building insets or projections, stepping back upper floors, and varying the height of the roofline. Changes in vertical mass should be used in an architecturally appropriate way to add interest and reduce the appearance of building height and bulk.

(a) The design of the building or buildings should consider the building proportions, building mass and height and the potential for grouping buildings together so as to be compatible with adjacent existing and proposed uses.

(b) If the proposed building or buildings is to be larger than adjacent structures, architectural elements should be incorporated into the design of the larger building such that the scale of the larger building's facade is compatible with the adjacent smaller buildings. Scale of the elements of the existing and proposed buildings, and existing rhythm of buildings along the street should be considered. Landscaping should also be designed to integrate the structures into the surroundings.

(c) A transition in scale, and appropriate quantities of open space and landscaping should be utilized to create an attractive, compatible edge in areas where larger scale buildings are sited next to smaller ones, such as office complexes next to single-family residences.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.520 Architectural features.

Guidelines and standards for nonresidential architectural features are set out in sections 18.40.521 and 18.40.522, respectively.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.521 Architectural features guidelines.

(1) Commercial development within the city should reflect Golden's character, including a small town feel, historic architecture, and compatibility with the surrounding mountain landforms.

(2) When building groups or multiple structures are planned for a single project, they should be designed in a unified architectural and spatial manner with reference to building placement, exterior finish, materials and design details.

(3) Brick, sandstone, wood, stucco, colored and textured concrete, and textured concrete masonry units for facing materials are encouraged.

(4) The design of facades visible from the street should include building materials that are similar or identical with the surroundings and provide an appearance of quality and permanence.

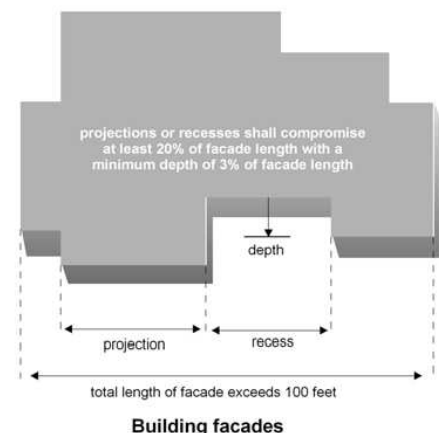
(5) Lighting, paving, and street furnishings such as benches and planters should be integrated into the overall building concept and design.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.522 Architectural features standards.

(1) Main building entries shall be accented with strong architectural definition.

(2) Buildings shall have a clearly defined base and roof edge so that the facade has a distinct base, middle, and top that relates to a human scale.

(3) Surface or facade details to enrich the architectural character and enhance the streetscape shall be used. These may include awnings, special entry details, lights, and bay or specially designed windows, cornices or molding details.



(4) Blank building walls that are visible to the public should be avoided. Blank walls should be designed to be less oppressive through the use of interesting details, design patterns and features that diminish the scale of the structure. For an expansive wall, consideration shall be given to implementing a pattern on the wall with a different color or type of the same material, or creating an area of the wall that is a different texture, color and material. Facades less than or equal to 100 feet in length, measured horizontally, shall be broken at least every 30 feet through the use of projected or recessed components. Facades greater than 100 feet in length, shall incorporate wall plane projections or recesses having a depth of at least three percent of the length of the facade and extending at least 20 percent of the length of the facade. No uninterrupted length of any facade shall exceed 100 horizontal feet.

(5) The use of prefabricated metal for an entire structure, panelized flat plywood and highly reflective materials for facing materials is prohibited.

(6) Mechanical equipment mounted on the building including, but not limited to, vents, flues, and flashings should be painted to match the color of the building.

(7) Retaining walls should consist of materials consistent with proposed buildings.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.530 Parking lot design and internal circulation.

18.40.531 Parking lot design and internal circulation guidelines.

Development should minimize the impact of large areas of surface parking on the aesthetic character for commercial development.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.532 Parking lot design and internal circulation standards.

(1) Parking shall be located to the sides and rear of the building. For larger commercial centers, limited parking may be provided between the

building and the street. Surface parking areas facing a public street shall be buffered by berming or landscaping.

(2) All outdoor parking areas shall be divided into smaller areas to decrease visual impacts associated with large expanses of pavement and vehicles, and to facilitate safe and efficient pedestrian movement between parking and commercial establishments.

(3) Parking garages shall be designed to be compatible with the historical character and architecture of the surrounding area. Vehicles and ramps within the garage shall be masked or hidden as much as possible.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

DIVISION V. CLEAR CREEK CORRIDOR

18.40.600—18.40.734 Reserved.

18.40.740 Clear Creek corridor.

The Clear Creek corridor includes properties adjacent to Clear Creek as well as the city-owned campus along 10th Street. It includes both sides of Clear Creek, south of 10th Street from Maple Street to Vasquez Street, and north of the 11th Street alignment from Maple Street to East Street.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.742 Clear Creek corridor—Guidelines.

(1) Properties along Clear Creek should provide open visual corridors to the creek to promote the appearance of accessibility.

(2) Development should take advantage of the natural setting of the creek and trail by creating first floor uses that are open to the public and enhance the pedestrian and recreational environment. First floor uses such as restaurants, plazas and retail that complement and activate the corridor are encouraged for enhanced safety and community vitality.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.744 Clear Creek corridor—Standards.

(1) At least one primary entrance shall face the creek. The entrance shall be architecturally enhanced to show interest towards the creek.

(2) Notwithstanding the requirements of section 18.40.532, the creek shall be considered a primary front and parking shall be toward the interior and away from the creek and street sides.

(3) Buildings façades, landscaping and entrances shall be attractive and welcoming to users of the Clear Creek trail. Amenities such as wide stairways, outdoor use areas, and opportunities for seating, both formal and informal, are examples of treatments that are strongly encouraged.

(4) Parking areas adjacent to the creek shall be screened by a non-transparent landscape element, such as non-deciduous trees or shrubs. A minimum ten-foot-wide landscape buffer strip shall be provided as screening for automobile use areas.

(5) Development shall provide a minimum ten-foot buffer between private uses and the Clear Creek trail. For private uses that facilitate interaction between creek trail users and the private use (i.e., restaurant, retail, outdoor use areas), the required buffer may be reduced to five feet for no more than 20 percent of the creek frontage.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.750 Signs.

In general, signs should enhance the visual interest and remain subordinate to the overall character of the downtown area. A diversity of sign styles that complement the historic architecture is desired. Chapter 18.32 of the Golden Municipal Code establishes regulations governing signs. Sections 18.40.752 and 18.40.754 provide supplemental guidelines and standards to be applied in addition to the requirements of chapter 18.32.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

18.40.752 Signs—Guidelines.

(1) Signs should be architecturally compatible with the building to which it is attached at to surrounding structures.



architecturally compatible sign design

(2) Wall signs should be located on the upper portion of the first floor storefront and should be centered within an area uninterrupted by doors, windows, or architectural details.

(3) Materials of sign mounting brackets and support structures should match other fixture materials used on the façade of the building.

(4) To convey a subtle appearance, the use of back-lit or reverse channel letters with halo illumination rather than internally-lit signs are encouraged.

18.40.754 Signs—Standards.

(1) Signs shall be permitted to be internally lit only if wall-mounted. All wall-mounted lighting fixtures shall be placed above the sign and shall shine downward.

(2) Directory signs shall only be wall-mounted.

(3) Letters shall not exceed 12 inches in height.

(4) All light fixtures, conduit and shielding shall be painted a flat, dark color, or shall be painted to match either the building or the supporting structure that serves as the background of the sign.

(5) A sign shall be removed within 30 days after the activity, product, business, service or other use which is being advertised has ceased or vacated the premises.

(6) Signs for businesses occupying a single-family residential structure shall be limited to one 32 square foot sign.

(7) Banners or signs shall not be placed on balcony railings or on areas that would detract or interfere with business operations.

APPENDIX A LEGACY PUD STANDARDS

DIVISION A-1. DOWNTOWN STANDARDS AND GUIDELINES*

A-1.1 Applicability.

(1) The standards of this division A-1 apply as provided in section 18.40.015(3)(d). The downtown area consists of all properties generally between 15th Street on the south and Highway 58 on the north and from Cheyenne Street to East Street, and as specifically depicted by the map below.



A-1.3 General standards and guidelines.

A-1.3.1 *Character.* The combination of a building's distinguishing features make up the important overall character element.

Development should respect downtown Golden's character which is typified in architectural features of several existing historic structures in the downtown area. The representative character desired by the City of Golden is included in the following examples:

- (1) *1201 Washington Avenue.* The original Ruby National Bank building illustrates late nineteenth century architecture in Golden.

- Regular rhythm of window spacing on the second floor
- Extensive cornice details
- Appropriate use of color
- Etched or carved masonry with faux column highlights at regular intervals and on corner



1201 Washington Avenue

- (2) *1200 Washington Avenue.* The Everett Block building (1873) retains its unique Golden character through an updated, contemporary use of color and awnings while maintaining the custom styles of arched second story windows and first floor storefront windows.

- Strong use of color
- Arched windows and headers
- Texturized dentifrice detail under cornice element

- Maintains setback consistency along block



1200 Washington Avenue

- (3) *1122 Washington Avenue.* The Loveland Building (1863) is Golden's first brick storefront with arched doors and windows and is an example of an appropriate corner development. With the entrance opening to the corner, the entrance is visible and is the highlighted feature. The use of window cladding creates visual interest while duplicating the rectangular components in the building façade.

- Corner entry at intersection
- Large storefront windows
- Preservation of brick detail and color
- Appropriate cornice element



1122 Washington Avenue

- (4) *1120 Washington Avenue.* The Coors Building (1906) maintains a set back third story with projecting, arched dormer ele-

ments. The unique tile mansard roof and textured brick detailing provide high quality details.

- Sign band is appropriately sized
- Third floor set back from main façade
- Arched windows
- Segmented windows on second story
- Storefront windows indicate retail use
- Kick plate under storefront windows
- Use of color to define sign and kick plate elements



1120 Washington Avenue

- (5) *1100 Washington Avenue.* The Woods Mortuary Building was built in two phases: the north half (1872) features arched window treatments, a prominent cornice feature, and appropriate window and door intervals; the south half (Taft Building, built pre-1886) is similar in style. This building is a good example of creating continuity even though there are varying architectural elements between the two.

- Consistent color scheme
- Window openings at regular intervals
- Recessed entrances
- Detailed dentifrice and brick work
- Unique window headers
- Appropriately sized awning



1100 Washington Avenue

- (6) *1114 Washington Avenue.* The Dollison Building (1880) was originally two stories but had a third story recessed with mansard roof and two dormers) added but later removed again around 1920.

- Recessed entry components
- Dissimilar second floor and first floor entrances
- Arched second floor windows
- Use of appropriate color highlights cornice element and kick plates



1114 Washington Avenue

A-1.3.2 Guidelines.

- (1) Development proposals should consider Golden's representative character, including architectural styles, features and architectural elements.
- (2) A building or group of buildings should be designed to be compatible with and in

general conformance to the proportions of architectural forms, plans, and details within the existing urban context.

- (3) Preservation of original features.
 - (a) Structures originally constructed as residences that are being used for commercial purposes should retain the residential appearance of the structure.
 - (b) Elements such as porches and smaller-scale windows should be retained.
- (4) New additions on or near Washington Avenue which are above the second floor should be set back to maintain the typical block character.
- (5) Additions should be compatible in scale, materials and character with the main building.
- (6) Additions to the structure should be built on the side or back of the original structure, and should maintain the character of the original portions of the building.

A-1.3.3 *Standards.*

- (1) Missing original or historic features shall be replaced or continued with accurate replications.



Missing cornice feature

- (2) The original open character of a porch shall be preserved. Porch enclosures on the front of a historic structure are inappropriate.
- (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.4 **Colors and materials.**

Historic materials have an identifiable size and texture that is an important visual characteristic of the downtown areas. The color scheme for a new or renovated building should visually link it with others in the area.

A-1.4.1 *Guidelines.*

- (1) New buildings and additions should use elements that are compatible with the historic elements, but which are characteristic of contemporary materials.
- (2) Materials should be smooth brick with narrow joints or wood siding with narrow lap. Stone should be reserved for detailing at cornices and windows and for use at the building base.



appropriate brick size - 8" square cut

- (3) If stucco or EFS system is used, it should be used only above the second floor.
- (4) Strongly contrasting materials should be limited to use for accents. Colors not historically used in the area are appropriate for small areas such as window or door trim, kick plates, or clerestory details.
- (5) Smooth, featureless metal, plastic, or concrete panels should be avoided.
- (6) Highly reflective materials should be avoided. Some use of glass is appropriate for its transparency, as long as it is not tinted or mirrored.

- (7) Steel and iron materials that are finely detailed and finished are appropriate.
- (8) Owners are encouraged to repair, restore or replace existing wood siding with similar wood materials. Alternative materials such as vinyl are not prohibited, but should accompany appropriate wood trim details.
- (9) The following is a list of material examples that are generally inappropriate in the historic context of downtown:
 - Imitation masonry
 - Mirrored surfaces
 - Vinyl or plastic imitation wood siding, with the exception of postconsumer recycled materials
 - Oversized bricks
 - Stucco treated as a particular theme, such as Southwestern or Mediterranean
 - Applying inappropriate materials such as veneers, are discouraged



stacked stone in traditional brick sizing

A-1.4.2 Standards.

- (1) To preserve the appearance of original materials, covering original materials with new materials shall be avoided. If such covering is necessary and waived by planning commission, it shall be installed in such a way as to avoid damaging original materials if the covering is to be removed in the future.

mission, it shall be installed in such a way as to avoid damaging original materials if the covering is to be removed in the future.

- (2) Unless waived by planning commission, original masonry and mortar shall be retained, without the application of any surface treatment.
- (3) Unless waived by the planning commission, existing unpainted masonry or brick surfaces shall remain unpainted. Painted brick shall reflect traditional historic colors of Golden.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.5 Roofs and porches.

A-1.5.1 Roofs and porches—Guidelines.

- (1) Original roof shapes should be preserved or recreated. Existing dormers and chimneys should be retained. Existing roof pitches should be retained.



hip roof with dormer

- (2) Preserve and replace when necessary, all architectural features that contribute to the roof character such as dormer windows, cupolas, cornices, brackets, and chimneys.
- (3) Retain or replace the original roofing material whenever possible. More contemporary types of roof treatment are acceptable if similar to historic materials (i.e., dimensional shingles, recycled glass tiles, etc.).

- (4) Roof forms, color, material, and texture should be compatible with the treatment of the exterior walls of the building.
- (5) Roof design should minimize the impact of roof protrusions by grouping together or screening vents, ducts, and other mechanical equipment and by recessing rooftop equipment back from the exterior walls.

A-1.5.2 Roofs and porches—Standards.

- (1) Principal roofs for houses converted to nonresidential uses shall be of a type used in one of Golden's historic architecture periods, including symmetrical gable, hip, or gambrel roof types.
- (2) Porches shall maintain an open character and visibility to an entrance.



open porch example

- (3) Maintain the perceived line and orientation of the roof from the street. Avoid altering the angle of the roof.
 - (4) New dormers shall be compatible in size and placement with respect to other dormers on the building or in the neighborhood.
 - (5) Retain roof detailing such as brackets, cornices, parapets, and gable end shingles.
 - (6) Downspouts and gutters shall be installed in an appropriate location and have a similar color to match the existing structure.
- (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.6 Exterior spaces.

A-1.6.1 Exterior spaces—Guidelines.

- (1) Provide seating that is usable year-round. Seating should be buffered from extreme winds and should be located so that there is shade in the summer months and sun in the winter months.
- (2) Low fences, walls, or hedges used to separate open space areas from public right-of-way should provide at least 50 percent open face or be less than 40 inches in height to allow uninterrupted visual perspective.



open face fencing

- (3) Fences and stone walls should be limited to side street locations where they complement other architectural features.

A-1.6.2 Exterior spaces—Standards.

Notwithstanding anything to the contrary in chapter 18.40, there shall be no specific percentage of open space required for office, commercial, mixed use nonresidential and residential, and industrial uses in the downtown zone. Open space shall be provided in an amount sufficient to satisfy the requirements of this section and sections 18.40.221 and 18.40.222 pertaining to landscaping.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.7 Openings.

A-1.7.1 Openings—Guidelines.

- (1) The patterns created by the location and detail of entrances to commercial buildings should be maintained. Enlargement

of window and door openings that alter the historic pattern of openings is discouraged.

- (2) Typically, houses and storefronts feature a front window or grouping of windows. The proportions, type, relationship, decorative glass, and surrounding detail should be preserved. Arched or defined headers over windows are encouraged.
- (3) Preserve the functional, proportional, and decorative features including the door and its frame, sill, header, jamb, moldings, and any flanking windows.
- (4) On Washington Avenue, new construction should maintain the pattern of recessed entrances with large storefront display windows.
- (5) To maintain the distinction between upper and lower floors of commercial properties, the first-floor storefront should be primarily transparent, while upper floors are primarily solid.
- (6) Entrances on corner buildings should face directly to the corner, not just to one of the two street sides.

A-1.7.2 Openings—Standards.

- (1) Owners shall replicate the traditional proportion of window repetitions within a façade.



regular interval window pattern and repetition

- (2) New building facades and renovations to non-historic facades shall preserve the proportions that are compatible with the

proportions established by surrounding buildings and historic buildings in the area.

- (3) Kick plates shall be maintained and incorporated into the area below display windows.
- (4) Transom and sign band features shall be preserved and incorporated into the overall façade.



appropriate storefront transparency, transom window and kickplate preservation

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.8 Parking and circulation.

A-1.8.1 Parking and circulation—Guidelines.

- (1) Alleys should be efficient for service vehicles as well as attractive for pedestrians.
- (2) Businesses should emphasize their alley entrances with awnings and other architectural features.
- (3) Parking structures should be designed to promote active uses at the sidewalk level. This can be accomplished by designing below grade parking or by having retail uses along the street frontage with parking above and behind the retail space.
- (4) Parking structures should be compatible with traditional buildings in the surrounding area. Structures should maintain the traditional widths of downtown buildings, maintain the alignments and rhythms of architectural elements, and use similar historic building materials.

A-1.8.2 *Parking and circulation—Standards.*

- (1) Parking shall be located at the interior of the block whenever possible as opposed to the corner or street side of the block.
- (2) Access to parking shall be off of alleys and side streets instead of Washington Avenue. Additional Washington Avenue curb cuts are prohibited unless approved by the planning commission.



alley parking

- (3) Provide coordinated walkway networks for each site ensuring pedestrian circulation to and from all buildings, parking, and public rights-of-way.
 - (4) Provide pedestrian circulation through and from parking lots and to transit stops.
- (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.9 Streetscape.

Streetscape design should contain elements that provide visual continuity along the public right-of-way.

Activities and services in the streetscape area should allow safe pedestrian circulation.

A-1.9.1 *Streetscape—Guidelines.*

- (1) Public art should be compatible with the historic context of the downtown area and not impede the view of historic buildings.

A-1.9.2 *Streetscape—Standards.*

- (1) A license agreement or city permit shall be required for any private activities located within the public right-of-way.
- (2) Awnings.



awning clearance

- (a) Awnings shall not be back lit or internally illuminated.
 - (b) There shall be a minimum clearance of at least eight feet between the bottom of the awning and the ground at grade.
 - (c) Any portion of an awning containing the name of the business, or which is otherwise a sign, shall be treated as a sign and subject to the provisions of chapter 18.32. Sign lettering and/or logo shall comprise no more than 30 percent of the total exterior surface of an awning or canopy.
- (3) Outdoor elements.
 - (a) Restaurant seating in the pedestrian portion of the public right-of-way may be permitted pursuant to the provisions of chapter 4.90.



restaurant seating

- (b) Outdoor displays in the pedestrian portion of the public right-of-way may be permitted if at least six feet of passable sidewalk is maintained. No outdoor display or sales area shall encroach onto any portion of a drive aisle, parking or landscaped area.
- (4) Street tree specifications.
 - (a) Only trees on the "recommended plant list for downtown areas" shall be allowed.
- (5) Streetscape requirements for buildings with a front setback less than ten feet in width, shall consist of deciduous trees in tree grates, a dry-laid brick paver strip and landscape planting areas where space permits, to conform with the downtown streetscape standards.



streetscape layout

- (6) Where a parking lot abuts a sidewalk, a minimum of eight feet of landscaped berm or planting strip shall be used as a buffer.
- (Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.10 Multifamily and mixed use properties.

A-1.10.1 Multifamily and mixed use properties—Guidelines.

- (1) The residential portion of a mixed use building should incorporate typical residential features such as porches and balconies that offer façade articulation and transparency.
- (2) Residential balconies should be recessed and not overhang above the public space.
- (3) Multifamily structures in the downtown area should encourage pedestrian activity at the street level through the appearance of commercial architectural design of the first floor. Continuity of the typical storefront or commercial façade even if the first floor is used as residential will provide a welcoming thoroughfare.
- (4) Additions should be designed so as not to obscure, alter or destroy the character of the original building when viewed from a public right-of-way.

A-1.10.2 Multifamily and mixed use properties—Standards.

Use trellises, arcades, recessed entrances, or other transitional elements to shelter patrons from the elements at entrances.
(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.11 Building placement and site layout.

A-1.11.1 Building placement and site layout—Guidelines.

- (1) The reinforcement of the block's appearance as a single entity by aligning building heights, cornice lines, parapets, and other architectural features is encouraged.
- (2) For buildings that are set back from the walkway edge, the sidewalk lines should be maintained with planters, columns, railings, or similar features.

A-1.11.2 Building placement and site layout—Standards.

- (1) Notwithstanding the requirements of section 18.28.200, there shall not be a front setback requirement from adjacent streets rights-of-way, for buildings designed and used for commercial and office uses or mixed use nonresidential and residential between Arapahoe and Jackson Streets from 14th Street to Highway 58. In addition, planning commission will have the authority to grant a similar reduction in front setback, as part of a planning commission approved site plan for areas one block in any direction of the above referenced area, except not including north of State Highway 58. Such reduction in front setback shall be based upon a finding by planning commission that the reduction will not negatively impact nearby properties or land uses.
- (2) Continue the alignment of the original facades along Washington Avenue to create a strong visual edge, unifying the buildings in a block. New construction and additions to existing buildings should retain this same character.
(Ord. No. 2209, § 2(Exh. A), 6-6-2023)

A-1.12 Massing, scale, and proportion.

One of the primary defining characteristics of Golden's downtown area is the lower scale of the commercial buildings and those structures and uses that form the transition to adjacent neighborhoods. In order to maintain the harmonious relationships and continuity between existing and new buildings, this section includes standards and guidelines for the height and mass of new buildings and additions in three specific height zones. The three height zones and the criteria for constructing taller buildings are based upon the topography and scale of existing development.



building heights should align

Visual continuity of the downtown district is created by the repetition of similarly sized building elements. New construction should appear similar in mass and scale to nearby historic structures.



new construction similar to historic scale and recessed porch above the first floor

A-1.12.1 *Massing, scale and proportion—Guidelines.*

- (1) New construction should appear similar in mass and scale to nearby structures. When taller buildings are constructed adjacent to shorter buildings care must be taken in the design of such transitions. Step backs or recesses may be appropriate ways to handle such change in scale.
- (2) Commercial buildings adjacent to historic buildings should respect the character and scale of the adjacent buildings. Sloping roof forms, smaller building masses, etc., may be used to integrate and blend the newer buildings with the existing context.
- (3) Façade heights of new buildings should be similar to the established range of the block. Floor-to-floor heights should appear similar to those of historic buildings in the area.
- (4) Existing two story cornice and parapet wall lines should be continued along the block to achieve compatibility. This continuation of the existing pedestrian scale is especially important where three- or four-story buildings are proposed.
- (5) Create view corridors using open spaces that focus on architectural landmarks, natural land forms, or special activity areas. View corridor means the line of sight, identified as to height, width, and distance, of an observer looking toward an object of significance to the community (e.g., ridgeline, river, historic building) from a public right-of-way or public property; the route that directs the viewer's attention.
- (6) Traditional building widths along Washington Avenue are 25 feet to 50 feet. Where a building must exceed this width, implement changes in design features to suggest the traditional building widths.

Buildings in excess of 60 feet should appear as a collection of 25 feet to 50 feet buildings through the use of façade materials and detailing, window designs and trim details.

A-1.12.2 *Massing, scale and proportion—Standards.* The sections below have been developed to maintain appropriate scale and character in the downtown core, while allowing for the potential construction of four-story buildings where appropriate, based upon specific criteria.

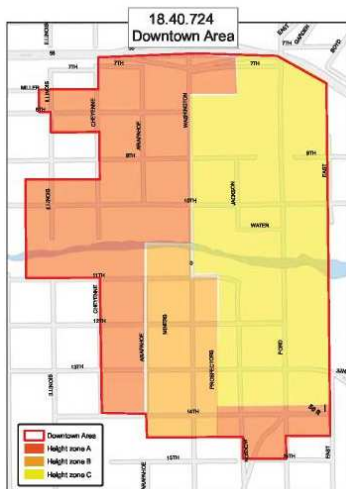
- (1) Any new building or building addition resulting in a building greater than two stories shall set back the vertical wall plane of the portion of the building above the second story cornice line a minimum of six feet and an average of eight feet along any street frontage.
- (2) Zone A consists of the western portions of the downtown area, adjacent to the historic 8th and 9th Street and 12th Street historic neighborhoods. This zone consists primarily of one- and two-story buildings, with a couple of three-story structures. Zone A also includes the area along 14th Street west of East Street. The south side of 14th Street and the southerly 50 feet of the block north of 14th Street between East Street and Prospectors Alley lie within this zone. Notwithstanding the provisions of sections 18.28.200 and 18.28.210 of this title, no building greater than two stories above grade, with a maximum of 30 feet in height will be permitted except upon a finding by planning commission of compliance with the Tier 2 bonus criteria in subsection (5) below. No structure may exceed the maximum height limits for the applicable zone district.
- (3) Zone B consists of the historic commercial core of Golden's main street, Washington Avenue. Historically, most buildings were one to three

stories in height. While there are a number of modern four-story buildings in existence, the introduction of new buildings must be handled in a manner to complement the existing scale and fabric of the commercial core. Notwithstanding the provisions of sections 18.28.200 and 18.40.210 of this title, no building greater than three stories above grade, with a maximum of 40 feet in height as measured at the front façade of the building will be permitted. Any proposal to exceed this height or number of stories will require approval of a rezoning to the PUD zone district and approval of a site-specific official development plan.

- (4) Zone C contains the balance of the downtown area. This area is characterized by larger buildings that transition into the Coors Brewery. Within this zone, the standard zone height limits shall apply; however, all structures shall comply with the height and mass criteria described in subsection (1) above.
- (5) Tier 2 bonus to allow a third and fourth floor in Zone A, or a partial floor not to exceed 40 feet in height in CMU-NC zone districts, requires compliance with all of the following:
 - (a) The project will demonstrate compliance with all applicable standards, 100 percent of applicable guidelines in section 18.40.722 of this chapter 18.40, and the preponderance of other applicable guidelines as described in section 18.40.040(1). For new construction or alteration of the footprint of existing structures, the project shall provide street level public use area(s) on site and a minimum of five feet of landscape buffer along the

building frontage beginning at the back of the sidewalk. Any additional structural area above 30 feet in height shall be set back a minimum of five feet from the vertical wall plane of the side facade of the portion of the building above the second story cornice line.

- (b) All new construction shall exceed minimum applicable International Energy Conservation Code standards adopted by the city by at least 20 percent, and shall be verified through energy modeling software at the time of building permit issuance.
- (c) The project shall demonstrate support for adopted community goals by including one of the following:
 - i. At least 25 percent of residential units in the project shall be constructed as affordable dwelling units, as defined in chapter 18.04.
 - ii. The on-site renewable energy production for the project shall be increased by at least 20 percent over the minimum applicable on-site renewable energy production standards adopted by the city, which shall be verified through energy modeling software at the time of building permit issuance.



(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-1.13 Single-family residential buildings with commercial uses.

Adaptive use of residential buildings should preserve the overall form and character of a residential use.

A-1.13.1 *Single-family residential buildings with commercial uses adaptive use of residential buildings—Guidelines.*

- (1) Residential structures should be set back from the front property line, centered within the lot and occupy one-third to one-quarter or less of the lot area.
- (2) Residential structures used for commercial purposes should retain the residential character of the structure.



converted residential home to commercial use

- (3) Additions to residential structures should be limited on to the side or rear of the original structure and should be smaller in scale than the existing building.
- (4) New commercial construction on a primarily residential block should reflect residential character.

A-1.13.2 *Single-family residential buildings with commercial uses adaptive use of residential buildings—Standards.* Landscaped front yard areas shall not be converted to parking.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

DIVISION A-2. COMMUNITY MIXED USE (CMU) ARCHITECTURAL GUIDELINES AND STANDARDS*

A-2.1 Community mixed use (CMU) architectural guidelines and standards.

A-2.1.1 *Guidelines.* The goals of the comprehensive plan include a focus on pedestrian safety, amenities and aesthetics in the areas targeted for CMU zoning implementation. Architectural detailing should be designed in relation to the building height and treatment of windows, doors and other openings. First floor architectural details should vary visually, creat-

***Editor's note**—Division A-2 is formerly Division VI of Chapter 18.40.

ing focal points along the building facade. The following recommendations for architectural detailing should be incorporated:

- (1) Use decorative window and door moldings, comer entries, recessed openings and other treatments to create accents or focal points (Figure 1).
- (2) Install large ground floor windows that create transparency between the sidewalk and the business (Figure 1).
- (3) Use color, texture and a variety of materials to help create visual interest (Figure 1).
- (4) Provide colorful fabric awnings, porticos, patios or other similar architectural features to enhance the pedestrian experience and visual interest (Figures 2 and 3).
- (5) Doors should be substantial and well detained. They should match the materials, design and character of the display window framing.
- (6) Use of building step backs at upper floors or building overhangs is encouraged to create more visual interest.



Figure 1 Example of Large Ground Floor Windows and Variety of Materials to create Visual Interest



Figure 2 Example of Colorful Fabric Patio Features



Figure 3 Example of Colorful Patio Features: Umbrellas and Cushions

A-2.1.2 Standards.

- (1) *Cornices:* This treatment shall be provided at the second floor (or roofline for a one-story building) to differentiate the storefront from upper levels of the building.
- (2) *Blank wall areas:* Walls without windows or doors are only permitted on internal-block side property line walls.
- (3) *Window inset:* Glass shall be inset a minimum of three inches from the exterior wall surface to add relief to the wall surface.

- (4) *Recessed entries:* Entries shall be recessed as an element to the main street storefront and to add relief to the wall surface.
- (5) *Glazing:* Clear glazing is required on the first floor. Reflective glazing shall not be used. If tinted glazing is used, the tint shall be minimized; green, gray, and blue are recommended (Figure 4).
- (6) *Display windows:* Large pane windows shall be installed on the first floor encompassing a minimum of 60 percent of the commercial storefront surface area (Figure 4).
- (7) *Residential uses:* Where residential uses exist on the first floor of building frontage, windows shall constitute a minimum of 30 percent of the surface area.



Figure 4 Example of Clear First Floor Glazing for Displays and Street Interaction

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-2.2 Public space.

A-2.2.1 Guidelines.

- (1) Public space design. Public spaces are outdoor areas, whether on publicly or privately owned land, that are open and accessible to the general public.
 - (a) Place publicly accessible spaces in a central location in the "Area of Change," and not in a remote corner.
 - (b) Public spaces should be easily visible and accessible from the street and sidewalk, and ideally at a crossroads, where walking paths intersect (Figure 5).
- (c) Size the public space to the scale of the surrounding structures (resist making it too large) in order to provide a more intimate environment for people to congregate.
- (d) Place public spaces in plain view of sidewalks, streets and windows to provide "eyes on the street" to enhance safety.
- (e) Use a variety of materials for pavement, which can include: pavers, brick, colored and patterned concrete and stone. Any public plaza area should have a distinguishing appearance from the remainder of the commercial area (Figure 6).
- (f) Consider a water feature, whether it is interactive or passive, to help activate the site (Figure 8).
- (g) Provide versatile benches and/or chairs in small groupings that allow users to gather informally. Use a variety of options for different functions and visual interest (Figure 6).
- (h) Provide small café tables that are not fixed in place as amenities that help to create inviting spaces for people to gather. Tables and chairs should be maintained by the property owner (Figure 7).
- (i) Install informal seating, such as low planter walls and broad steps that face public space to provide casual seating.
- (j) Permanent outdoor seating is recommended in and along all publicly accessible pathways and spaces.
- (k) Portable seating, movable chairs, tables for cafes and other furniture should be of substantial materials; preferably metal or wood rather than plastic. Tables used for outdoor dining within the public right-of-way (i.e., in sidewalk areas) shall be

a maximum of three feet in diameter if round and three feet along the longest side if rectilinear (Figures 6 and 7).

- (l) Fountains and small water features are recommended in open courtyards, plazas and other spaces to serve as a focal point and provide a recreational activity for children (Figure 6).
- (m) Public art, such as sculpture, wall murals and other paintings, lighting displays and special public open spaces are encouraged.
 - 1. Location of public art should be in highly visible places specifically designed or modified for the purpose of accommodating it; public art should not be located in semi-private areas such as the rear of buildings or in courtyards (Figure 9).
 - 2. Public art that relates to and represents the rich history of Golden is encouraged.
- (n) Surface parking lots should include elements such as arcades, trellises, columns, walls and railings, stairs and ramps, trees, climbing vines, arbors, and hedges to provide screening and visual interest; use of these elements should be consistent with the principal building and other site features.



Figure 5: Public Assembly Places



Figure 6: Example of Public Space with Different Pavers



Figure 7: Examples of Moveable Chairs and Tables



Figure 8: Example of Fountain for Children to Play in



Figure 9: Examples of Public Art along a Visible Sidewalk and Public Park Plaza

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-2.3 Streetscape.

A-2.3.1 Reserved.

A-2.3.2 Standards.

- (1) *Streetscape width.* The distance between the back of curb and the face of the building shall be a minimum of 20 feet, and shall include:
 - (a) A minimum of seven feet of amenity zone;
 - (b) An eight-foot sidewalk; and
 - (c) A five-foot landscape (not hard-scape) buffer between the sidewalk and building face.

In the event that there is insufficient right-of-way width to accommodate the streetscape width requirement, the front maximum setback as required by section 18.28.510 of the Code shall be increased as needed to accommodate this standard.

- (2) *Sidewalk amenity zone.* Be at least seven feet in width (to allow appropriate space for tree planting, trash/recycling containers, benches, lampposts) in the area immediately adjacent to the roadway. Specific amenity options and requirements will be defined in the site development entitlement process. For properties located within the CMU-NC and CMU-C1 zone districts, a landscaped (not hard-scape) tree lawn shall be required.
- (3) *Bus shelters.* Installation is required where bus stops are located. Must include seating within a shelter to provide a rest area for transit riders and protect them from inclement weather conditions. A trash/recycling receptacle shall also be included with the shelter.
- (4) *Streetscape palette.* Each CMU district shall have its own common set of street amenities, including approved tree species along the streets, common pavement types and treatments, consistent lampposts and signage that are defined. This streetscape palette shall be decided by planning commission and made available by city staff.
- (5) *Alleyways and private drives.* Alleys and private drives intended to provide primary vehicle access for off street parking shall be paved, maintained and plowed.
- (6) *New utilities.* New utilities shall be installed underground.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-2.4 Landscape.

A-2.4.1 *Guidelines.* In addition to the applicable landscape standards that are addressed elsewhere in chapter 18.40 ("site development regulations") of the City of Golden Municipal Code, the following guidelines shall apply:

- (1) *Public spaces:*
 - (a) Use canopy trees that will provide shade for users, located near benches or other places where people may gather (Figure 11).
 - (b) Provide xeric, ornamental plantings that are low-maintenance and require little water (Figure 12).
 - (c) Landscaping should not create isolated areas or areas that are not visible from adjacent public and private space for safety reasons.
 - (d) Plantings should create visual interest and variety for all four seasons, as well as provide shade for seating areas in warmer months along with other functional considerations.
- (2) *Plant materials in other locations:* should be selected and placed to reflect both ornamental and functional characteristics.
 - (a) Deciduous trees should be the predominant large plant material used. They should be located adjacent to buildings and within parking areas to provide shade in summer and allow sun in winter. Species should be selected to be drought-tolerant, provide fall color and minimize litter and other maintenance problems.
 - (b) Evergreen shrubs and trees should be used as a screening device, for example, along rear property lines, around mechanical appurtenances and to obscure grillwork and fencing associated with subsurface parking garages.
 - (c) Flowering shrubs and trees - should be used where they can be most appreciated: adjacent to walks and

recreational areas, or framing building entries, stairs, and walks (Figure 12).



Figure 11: Example of Canopy Trees for Shade, and Benches for People to Gather



Figure 12: Example of Flowering Shrubs and Trees and some Xeriscape Plants

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

A-2.5 Lighting.

A-2.5.1 *Guidelines.*

The following guidelines apply for lighting in public spaces such as plazas and/or parks within the designated area:

- (1) Use functional, decorative and consistent lighting that gives the area a sense of identity (Figure 13).
- (2) Illuminate all accessible paths with low lights or landscape lighting.
- (3) Provide lighting for all seating areas with enough illumination to remain functional for evening activities.



Figure 13 Example of Full Cutoff Light with Decorative intended for Architectural Enhancement and a Sense of Identity

A-2.5.2 *Standards*. All properties shall adhere to the City of Golden lighting standards in chapter 18.34.

(Ord. No. 2209, § 2(Exh. J), 6-6-2023)

Chapter 18.42 HOME OCCUPATION

18.42.010 Intent and purpose.

The purpose of this chapter is to permit and regulate home occupations within the City of Golden, where such uses promote the economy, vitality and sustainability of the city in a manner consistent with the protection of the health, safety and general welfare of the current and future residents of Golden. Home occupations are accessory business uses conducted by residents from their dwelling units. Such business uses are incidental and secondary to the use of the dwelling unit as a private residence. The prohibited home occupations and the performance standards of this chapter are intended to ensure that home occupation activities do not change the character of properties as residential dwellings or interfere with the reasonable use or enjoyment of surrounding properties.

(Ord. 1847, § 7, 2009)

18.42.020 Home occupation defined.

Home occupation means any use conducted principally within a dwelling unit, which use is clearly incidental and secondary to the use of the dwelling unit as a private residence and does not change the character thereof.

(Ord. 1847, § 7, 2009; Ord. 1179, exh. A, 1993; Ord. 682, § 1, 1973)

18.42.030 Prohibited home occupations.

In no event shall any home occupation be interpreted to allow any of the following businesses or commercial activities:

- (1) The onsite display or sale of any article except as may be produced by members of the household residing in the dwelling unit.
 - (2) Service, repair, painting, or modification, for compensation or gain, of any motorized vehicles, or parts or accessories for any motorized vehicles, including, but not limited to, motor vehicles, trailers, boats, personal watercraft, recreation vehicles, and snowmobiles. This prohibition shall not apply to work on a vehicle as a hobby, conducted in accordance with the regulations of section 5.07.030.
 - (3) Animal hospital or kennel.
 - (4) Restaurant.
 - (5) Licensed home daycare exceeding the limits set in subsection 18.42.030(2) below.
 - (6) Repair of equipment having a combustion engine or the use of any equipment having a combustion engine in the process of conducting any home occupation.
 - (7) Medical marijuana centers, medical marijuana-infused product manufacturers, and medical marijuana optional premise cultivation operations, as defined by C.R.S. 12-43.3-104.
 - (8) Natural medicine businesses, as defined by C.R.S. § 44-50-103(14) and the Golden Natural Medicine Code.
- (Ord. No. 2251, § 3, 12-3-2024; Ord. 1883, 2010; Ord. 1847, § 7, 2009; Ord. 1179, exh. A, 1993; Ord. 682, § 1, 1973)

18.42.040 Performance standards.

It shall be unlawful to operate a home occupation in violation of any of the following restrictions:

- (1) All parking for the home occupation shall be confined to the garage, driveway, and adjacent street frontage of the property.

Parking of vehicles used in the conduct of the home occupation shall be limited to those used by the resident of the dwelling unit and any nonresident employee as a means of daily transportation.

- (2) Licensed home daycare shall consist of providing primarily daytime care for compensation for children from birth to 16 years of age, for up to six children, including in the total any of the provider's own children not attending full day school. In addition, providing primarily daytime care for two additional children of school age before and/or after school hours, including in this total number any of the provider's own school age children under the age of 12, shall also be permitted.
 - (3) The home occupation shall be conducted by the person or persons resident in the dwelling unit, may include no more than one nonresident employee, and shall not attract additional employees directly to the dwelling unit containing the home occupation.
 - (4) The home occupation shall be conducted so as not to attract more than three customers or clients to the dwelling unit at any one time.
 - (5) The home occupation shall be conducted wholly within an enclosed building.
 - (6) No outdoor storage shall be permitted.
 - (7) No storage or display of goods shall be visible from the street.
 - (8) The home occupation and the conduct thereof shall not create noise, vibration, fumes, odors, dust, glare, electronic interference, radiation, or other external effects attributable to the home occupation which would impair the residential character of the neighborhood or impair the reasonable use or enjoyment of other residential properties in the neighborhood.
- (Ord. 1847, § 7, 2009; Ord. 1179, exh. A, 1993)

Chapter 18.44 NONCONFORMING USES AND BUILDINGS*

DIVISION I INTRODUCTION

18.44.110 Purpose.

(a) *Generally.* The application of new regulations to existing development may create circumstances in which existing lot dimensions, density, intensity, land uses, buildings, structures, landscaping and buffering, lighting, parking areas, or signs do not strictly conform to the requirements of the new regulations. For existing lots or development (including uses, buildings, structures, and signs) that are legally nonconforming to the standards in this title, this chapter sets out equitable rules for whether, when, and how the regulations of this title apply.

(b) *Conversion of nonconformities.* Except as provided in this chapter, nonconforming situations are not allowed to be enlarged, expanded, or made more nonconforming. Nonconforming situations shall not be used as grounds for adding other uses, buildings, structures, signs, or improvements that are now prohibited in the same zoning district. This chapter provides standards and procedures by which nonconforming uses and other nonconformities can be converted to conforming status.

(c) *Reduction of nonconformities.* It is the policy of the city to encourage reinvestments in property that increase its value and utility and reduce its external impacts. Since bringing a developed property into full compliance with this title may involve substantial costs that may discourage reinvestment, or may require premature demolition of buildings or structures and other physical features of the property, that are economically productive and structurally sound, this chapter provides certain thresholds and priorities for determining when new construc-

***Editor's note**—Sec. 12 of Ord. No. 2228, adopted February 13, 2024, repealed and replaced ch. 18.44 in its entirety to read as herein set out. Former ch. 18.44 pertained to the same subject matter, consisted of §§ 18.44.010—18.44.070, and derived from Ord. 682, 1973; Ord. 1179, 1993; and Ord. 1517, 2000.

tion or modifications to development implicate a requirement for increasing conformity with the various requirements of this title.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.120 Application.

(a) *Generally.* This chapter applies to uses, buildings, structures, landscaping, buffering, signs, lighting, access or parking, density, and lots that were:

- (1) Lawfully established, constructed, installed, platted, or created prior to the effective date, but do not conform to the requirements of this title; or
- (2) Lawfully established, constructed, installed, platted, or created in one legacy use zone, form zone, or planned unit development district, but no longer conform to the requirements of this title after the subject property is rezoned.

(b) *Effect of chapter.* Nothing in this chapter shall be interpreted to require a change in plans, construction, or designated use of any building in which a building permit was lawfully obtained from the city prior to the effective date of this title or subsequent amendment, provided that construction:

- (1) Was commenced before the expiration of the building permit; and
- (2) Work is proceeding diligently toward completion.

(c) *Changes of ownership.* Nothing in this chapter shall be construed to affect or restrict changes in ownership or the form of ownership, nor shall changes in ownership or the form of ownership affect the application of any of the requirements of this chapter.

(d) *Evidence of status.* Evidence that a nonconforming situation is a legal nonconformity and not a violation of this title shall be submitted by the owner of the property or use upon request of the director.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.130 Exceptions to chapter.

(a) *One-household detached dwelling units in certain form zones.*

- (1) All lots of record within the core, transition, edge, outer edge, peripheral, or neighborhood corridor form zones, regardless of their size, and all existing principal buildings, accessory dwelling units, and detached garage buildings on said lots, regardless of setbacks, height, floor area, design features, or other dimensions, are deemed to be conforming to this title if the use of the lot is a one-household detached dwelling unit. Principal buildings, accessory dwelling units, and detached garage buildings may be restored or reconstructed to their original exterior form and dimensions. Changes from the original structure to the external dimensions of principal buildings, detached accessory dwelling units, and detached garages shall conform to the requirements of this title as it applies to the proposed change.

- (2) All lots of record within the core, transition, edge, outer edge, peripheral, or neighborhood corridor form zones, regardless of their area, may be developed with a house or cottage form type that corresponds most closely to the available lot area and lot frontage, and for which the access required by the form type is available, provided that the director determines that there is sufficient lot area for construction of the proposed building, and that safe ingress to and egress from the lot is not compromised by the lot's dimensions.

(b) *One-household detached dwelling units in legacy use zones.* All lots of record within the re, co, and ag legacy use zones, regardless of their size, and all existing principal buildings, accessory dwelling units, and detached garage buildings on said lots, regardless of setbacks, height, floor area, or other dimensions, are deemed to be conforming to this title if the use of the lot is a one-household detached dwelling unit. Principal buildings, accessory dwelling units, and detached

garage buildings may be restored or reconstructed to their original exterior form and dimensions. Changes to the external dimensions of principal buildings and detached garages shall conform to the requirements of this title as it applies to the proposed change.

(c) *Partitions.* Lots that are created by judicial partition are deemed to be conforming lots.

(d) *Vested rights.* This chapter does not apply to site-specific development plans for which rights are vested, during the period of vested rights.

(e) *Natural shifts of zone boundaries.* If a zone boundary changes as a result of a change in location of a river, stream, or ditch channel centerline, other natural boundary-defining feature, or street, such change of zone boundary does not render existing development nonconforming.

(f) *Taking for public use.* Any nonconforming building, structure, parking, or lot that is expressly created or caused by a conveyance of privately-owned land to a federal, state, or local government to serve a public purpose is conforming for the purposes of this title, and is not subject to limitations in this chapter. This exemption applies in cases where private land is obtained by a governmental entity for a public purpose, through condemnation, threat of condemnation, or otherwise, when that transaction would otherwise create a nonconformity in the remainder parcel in terms of setback, lot area, or other standards of this title. However, this exemption does not apply to right-of-way dedication or other public conveyances of land required by the city in the course of subdivision, site plan, or other development approvals.

(g) *Unlawful uses, buildings, or structures.* This chapter does not allow for the perpetuation of uses or improvements upon land that were unlawful at the time they were established or constructed. Such development is not legally nonconforming, but instead, unlawful, and is subject to all of the provisions of this title (including enforcement provisions) and any other applicable law.
(Ord. No. 2228, § 12, 2-13-2024)

Division II NONCONFORMING USES

18.44.210 Continuation of nonconforming use.

Subject to the provisions of this chapter, a nonconforming use may be continued and maintained in reasonable repair, and may be expanded, cumulatively, by up to 25 percent of its footprint as same existed on the effective date of this title, or 800 square feet, whichever is greater, provided that such expansion does not create additional physical nonconformity. For the purposes of this section, the extension of a nonconforming use to a portion of an existing building or structure that was designed, constructed, and permitted for the nonconforming use at the time of adoption of this title is not an extension of a nonconforming use.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.220 Change of nonconforming use.

If an area of a subject property that is put to a nonconforming use is subsequently put to a new, different use, then all use of that area shall thereafter conform to the applicable use regulations of the zoning district in which the subject property is located.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.230 Discontinuance of nonconforming use.

(a) *Generally.*

- (1) Nonconforming uses that are discontinued are subject to the limitations of this section. In general, a nonconforming use is discontinued on the day the use ceases to operate (the beginning of the period of non-use), and resumed on the earlier of:
 - (i) The day the use actually resumes; or
 - (ii) The day a building permit is issued for improvements that are necessary or desirable to resume the use, provided that the building permit does not lapse.
- (2) The threshold period of non-use may be extended for up to 18 additional months

if the owner of the subject property demonstrates that during the extension period the subject property was actively marketed to potential purchasers or tenants for the purposes of continuing the nonconforming use. The extension available pursuant to this subsection (a)(2) is available only if such marketing commences within six months after the date the use is discontinued.

(b) *Nonconforming uses that involve buildings or structures.* If a nonconforming use of all or part of a building or structure is discontinued for longer than the threshold period of non-use set out in table 18.44.230, threshold period of non-use, then further use thereof shall conform to the requirements of this title. For the purposes of this section, a fence that encloses an open area that is put to a nonconforming use does not constitute a "structure," and such nonconforming uses are subject to subsection (c), below.

Table 18.44.230, Threshold Period of Non-Use

<i>Circumstances</i>	<i>Threshold Period of Non-Use</i>
Generally (not specifically covered below)	One year (continuous)
Drive-through facilities	Two years (continuous)
All other uses for which all or part of the building or structure in which they take place is specifically designed for the nonconforming use to which it is put, such that adaptive re-use of all or the affected part of the building or structure for a conforming use will be prohibitively costly or require demolition of the building or structure	Five years (continuous)

(c) *Nonconforming uses that do not involve buildings or structures.* If a nonconforming use not involving a building or structure is discontinued for a period of six months, further use of the subject property shall conform to the requirements of this title.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.240 Conversion of a nonconforming use to a conforming use.

(a) *Generally.* In many instances, nonconforming uses may be integral parts of the city's character and function, such that their continuing existence promotes the city's policy of retaining existing businesses and institutions or protecting the city's character and neighborhoods. In these instances, the classification nonconforming use and resulting restriction on investment may not be what the city desires. As such, a nonconforming use may be made conforming pursuant to this section in order to remove the potential stigma associated with the nonconforming designation.

(b) *Limitation.* Unlawful uses may not be made conforming under this section.

(c) *Conversion by special use permit approval; standards.* A special use permit approval may be granted to make a nonconforming use conforming, if:

- (1) The criteria for approval of a special use that are set out in subsection 18.30.020(8) are met; and
- (2) The use has been integrated into the function of its surrounding block (including properties across the street), as evidenced by the following:
 - (i) City residents regularly patronize the use or are employed by the use (for nonresidential uses in or adjacent to residential neighborhoods).
 - (ii) Management practices mitigate or eliminate nuisances such as:
 - (A) Spillover of noise or light;
 - (B) Odors and/or appearance of waste materials and litter; or
 - (C) Congestion of on-street parking that materially interferes with the operation of the streets within two blocks of the use.
 - (iii) There is no material history of complaints about the use (a history of complaints is justification for denying the special use permit, unless

the conditions of the permit will eliminate the basis of the complaints).

- (3) If the use is nonresidential, it is licensed in accordance with any applicable ordinances of the city.
- (4) The use has been maintained in good condition and its classification as a nonconforming use would be a disincentive for such maintenance.

(d) *Conditions.* Conditions may be imposed relative to physical conditions or operations (including limitations on future expansion), that the planning commission determines are necessary to ensure that, as a conforming use, the use will not become a nuisance. Such conditions may include, but are not limited to, changes or upgrades to infrastructure, buildings, structures, lighting, landscaping, driveways, parking, drainage, or hours of operation of the use.

(e) *Effect of approval.* Uses that comply with the terms of a special use permit that is issued in accordance with this section and chapter 18.30, special use permits, are converted from legally nonconforming uses to conforming uses by virtue of the issuance of the special use permit, and are subject to its terms. Special use permit approvals shall be provided to the applicant in writing and may be recorded by the applicant at the applicant's expense.

(f) *Effect of denial.* If an application for conversion of a nonconforming use is denied, the use shall thereafter retain its status as a nonconforming use, and shall continue to be subject to all applicable provisions of this chapter 18.44. (Ord. No. 2228, § 12, 2-13-2024)

Division III NONCONFORMING BUILDINGS AND STRUCTURES

18.44.310 Repairs or modifications to a nonconforming building or structure.

(a) Ordinary repairs and maintenance of a nonconforming building or structure are permitted.

(b) A building or structure (other than a sign) that is located on a subject property that is conforming as to use, but is nonconforming as to height, setback, or coverage, may be altered or extended, provided that the alteration or extension does not result in a further violation of this title or applicable building codes. (Ord. No. 2228, § 12, 2-13-2024)

18.44.320 Damage to a nonconforming building or structure.

A nonconforming building or structure that has been damaged or destroyed by fire or other causes may be restored to its original condition, unless the director determines that the nonconforming situation on the property is correlated to the casualty event; provided that building permits that are required for such restoration are applied for within one year of the event and do not lapse after issuance. Extensions may be approved by the director if the property owner or representative demonstrates reasonable effort and diligence to comply with the application and work timelines. (Ord. No. 2228, § 12, 2-13-2024)

18.44.330 Conversion of a nonconforming building or structure to a conforming building or structure.

(a) *Generally.* In many instances, nonconforming buildings or structures may be integral parts of the city's character and function, so their continuing existence promotes the city's policy of retaining existing businesses or protecting its character and neighborhoods, as well as reducing unnecessary carbon emissions and conserving natural resources. In these instances, the classification nonconforming building or structure and resulting restriction on investment may not be what the city desires. As such, a nonconforming building or structure may be made conforming pursuant to this section in order to remove the potential stigma associated with the nonconforming designation.

(b) *Limitation.* This section does not apply to nonconformities involving the building code.

(c) *Application of variances, adjustments, and other flexibility.*

- (1) A building or structure that is authorized by variance, adjustment, or other administrative procedure in this title that allows for departures from or alternatives to the generally applicable standards of this title shall not be considered nonconforming as to the standards that were varied, adjusted, or otherwise modified.
- (2) A nonconforming building or structure may be made conforming by way of a variance, adjustment, or any other administrative procedure in this title that allows for departures from or alternatives to the standards of this title that create the nonconformity. If a variance under chapter 18.12, appeals and variances under title 18, is used for this purpose, then with regard to section 18.12.030, the existence of the nonconformity shall constitute peculiar and exceptional and undue hardship.

(d) *Conditions.* Conditions may be imposed relative to physical conditions (including limitations on future building or structure expansion) that the decision-maker determines are necessary to ensure that, as a conforming building or structure, the building or structure will not become a nuisance. Such conditions may include, but are not limited to, changes or upgrades to infrastructure, buildings, structures, lighting, landscaping, parking, or drainage.

(e) *Effect of approval.* Buildings or structures that are approved as provided in this section are converted from legally nonconforming buildings or structures to conforming buildings or structures by virtue of the issuance of the approval, subject to its terms. Such approvals shall be provided to the applicant in writing and may be recorded by the applicant at the applicant's expense.

(f) *Effect of denial.* If an application for conversion of a nonconforming building or structure is denied, the building or structure shall thereafter retain its status as a nonconforming building or structure.

(Ord. No. 2228, § 12, 2-13-2024)

Division IV NONCONFORMING SIGNS

18.44.410 Application of division.

(a) *Determination of nonconformity.* Signs erected before September 14, 1989, are not presumed to be illegal merely because a sign permit is not on file with the city. Other factors, including the size, setback, height and applicable regulations on the date of erection or installation of the sign will be considered in determining whether or not a sign was illegal when erected or installed.

(b) *Minor sign area or height nonconformities.* Any existing nonconforming sign for which a sign permit has been issued pursuant to a previously adopted code, excluding prohibited signs, which exceeds only the maximum sign area for each sign or maximum height limitations of this title, as specified in chapter 18.32, signs, by 20 percent or less shall be considered a conforming sign. Such sign may be restored or replaced in its current location, and to its current area, design, materials, and dimensions. However, if any part of the sign (except its content) is materially changed, the sign shall be constructed in conformance to the requirements of chapter 18.32.

(c) *Variance, special use permit, and planned unit development approvals.* All permanent signs that were approved by the city through the variance, special use permit, or planned unit development process, but do not meet the current requirements of this title, shall be considered conforming signs for so long as they comply with the provisions of the applicable variance, special use permit, or planned unit development approval, and for so long as the variance, special use permit, or planned unit development approval remains in effect. If a variance, special use permit, or planned unit development approval is abandoned, all signs that were approved by the variance, special use permit, or planned unit development approval shall be brought into conformance with this title. In an approval of a rezoning from planned unit development to a legacy use zone or form zone, the city council may authorize existing signage to continue as conforming.

(Ord. No. 2228, § 12, 2-13-2024)

18.44.420 Historic signs.

See section 18.32.030(j).
(Ord. No. 2228, § 12, 2-13-2024)

18.44.430 Sign face area incentive for bringing signs into conformance.

Any existing nonconforming sign that is brought into conformance with this title within four years from the effective date shall be entitled to a ten-percent increase in applicable maximum sign face area.
(Ord. No. 2228, § 12, 2-13-2024)

18.44.440 Removal of nonconforming signs.

(a) *Generally.* Ordinary repair and maintenance of legal nonconforming signs, and changes of messages on legal nonconforming signs, are allowed. However, a legal nonconforming sign shall not be expanded, enlarged, or improved in a manner that does not constitute ordinary repair and maintenance, and the right to keep, use, maintain, or display a nonconforming sign is subject to the standards of this section.

(b) *Removal of nonconforming signs.* A nonconforming sign shall be removed or brought into conformance with this title if any one of the following conditions occur:

- (1) If there is a period of non-use of the subject property that is associated with the nonconforming sign for a period of one year or more, with the period of non-use calculated as provided in section 18.44.230;
- (2) If the nonconforming sign becomes a hazardous or dangerous sign and is not repaired within 14 days after notice from the city that such condition must be corrected;
- (3) The use or building with which the nonconforming sign is associated expands either singularly or cumulatively, in terms of any combination of building gross floor area, outdoor retail/display area, or outdoor storage area, by at least 25 percent compared to the floor area as

same existed on the effective date of this title, or by at least 800 square feet, whichever is greater;

- (4) The nonconforming sign structural support is modified or the original support materials are replaced to the extent that a building permit is required or a nonconforming sign module is substantially modified to the extent that a building permit is required;
- (5) The nonconforming sign is relocated on the same or different premises but in the new location would continue to be in noncompliance with this title;
- (6) The nonconforming sign is damaged or destroyed and the cost of reconstruction or repair is 50 percent or more of its replacement value at the time it is damaged or destroyed;
- (7) The principal building or use with which the sign is associated is demolished or destroyed; or
- (8) The nonconforming sign includes a sign face that is modified to include an electronic message sign or an animated or flashing sign.

(Ord. No. 2228, § 12, 2-13-2024)

Division V OTHER PHYSICAL
NONCONFORMITIES

18.44.510 Use of sites with physical nonconformities.

(a) *Generally.* Uses designated as a "permitted by right" or "special use" within the legacy use district in which the subject property is located may be established, continued, modified, enlarged, or extended on a developed site containing physical nonconformities such as:

- (1) The use is located on a nonconforming lot;
- (2) The use occupies a nonconforming building;
- (3) The use is located on a lot with nonconforming landscaping or buffering;

- (4) The use utilizes a nonconforming sign;
- (5) The use is illuminated by nonconforming lighting;
- (6) The use has nonconforming access or parking;
- (7) The use occupies a building that is nonconforming with respect to building design or form standards; or
- (8) The use occupies a building that is nonconforming with respect to standards for screening utilities and mechanical equipment.

(b) *Standards.* Uses that are designated as a "permitted by right" or "special use" within the legacy use district in which the subject property is located may be continued, established, modified, enlarged, or extended on a developed site containing physical nonconformities, subject to compliance with the standards in this section. Uses that are designated as "special use" shall also comply with any applicable use-specific standards.

(c) *No implied waivers.* The authorization in subsection (b), above, shall not be construed as a waiver of the requirements of chapter 18.44, division III, nonconforming buildings and structures, chapter 18.44, division IV, nonconforming signs, or this division with respect to the physical nonconformities that are present on the subject property. Modifications to buildings, structures, landscaping and buffering, signage, lighting, parking, building design, or utilities may require correction or partial correction of nonconforming situations, as provided in this division.

(d) *Level of compliance.* The following three categories are established to identify the level of site improvements that are required when a permitted use is established on a site that contains physical nonconformities, as set forth in subsection (a), above:

- (1) No exterior site modifications/minor building expansions;
- (2) Site modifications and/or building expansions; and
- (3) Redevelopment.

(e) *No exterior site modifications/minor building expansions.*

- (1) *Generally.* Where the establishment of a new use on a subject property involves work requiring a building permit, and the proposed work involves either no modifications to building dimensions or additions to buildings up to and including 25 percent of existing floor area or 800 square feet, whichever is greater, and involves no modification of exterior site features (e.g., access and parking, lighting, building facades, landscaping, buffering, circulation, or outdoor storage areas) other than signs or areas into which buildings are expanded, the following shall be completed prior to issuance of a certificate of occupancy:

- (i) *Parking.* Nonconforming parking areas shall be refurbished to comply with sections 18.36.033, 18.36.040, 18.36.041, 18.36.043, 18.36.044, and 18.36.045, and to stripe up to the number of parking spaces required section 18.36.020 or 18.36.032, provided that no new paved areas shall be required;
- (ii) *Lighting.* Existing lighting shall be modified to comply with chapter 18.34, provided that new light poles shall not be required unless the director determines that the existing poles are unsafe;
- (iii) *Landscaping.* Landscaping shall be planted, maintained, refurbished, modified and/or supplemented, as appropriate, so that it complies with applicable standards in chapter 18.29 and/or chapter 18.40, except that additional landscape areas shall not be required if provision of the additional landscape area is infeasible due to the existing improvements on the lot; and
- (iv) *Outdoor storage.* The use of outdoor storage areas, if present, shall be discontinued or the outdoor storage

areas brought into compliance with applicable standards of chapter 18.29 and/or chapter 18.40.

- (2) *Multi-tenant sites.* When a tenant improvements permit or other building permit is required for a proposed new use on a subject property that is or is part of a multi-tenant site, and the proposed work does not involve modifications to exterior site features (e.g., access and parking, lighting, building facades, landscaping, buffering, circulation, or outdoor storage areas) other than signs, the standards of subsection (e)(1) shall be met only if the value of the work authorized by the tenant improvements permit or other building permit exceeds 50 percent of the "actual land value" of the multi-tenant site according to the current records of the Jefferson County Assessor.

(f) *Site modifications and/or building expansions.* Where improvements to a subject property involve work on exterior site features (e.g., access or parking, lighting, building facades, landscaping, buffering, circulation, or outdoor storage areas) other than signs, or the cumulative expansion of existing buildings by the greater of 25 percent of existing floor area or 800 square feet, the following standards shall be met in addition to the standards in subsection (e), above, prior to issuance of a certificate of occupancy or certificate of completion:

(1) *Access and parking.*

- (i) Access that is nonconforming with regard to location shall be closed and access to the subject property brought into compliance with applicable provisions of this title and the city's engineering standards when alternative access that complies with the requirements of this title becomes available and serviceable to all of the number of parking spaces required by chapter 18.36. The director may waive this requirement if:
 - (A) It renders an existing garage or carport inaccessible to vehicles;

- (B) The access does not materially affect the function of the street to which the access connects or the sidewalk that the access crosses;
- (C) The proposed site modification will not intensify the use of the nonconforming access, including, but not limited to, increasing the number of parking spaces that are accessible from the nonconforming access;
- (D) The director determines that the nonconforming access provides safer access to the subject property than any available conforming access.

- (ii) Nonconforming parking areas shall be refurbished to comply with section 18.36.033, 18.36.040, 18.36.041, 18.36.043, 18.36.044, and 18.36.045, and to stripe up to the number of parking spaces required section 18.36.020 or 18.36.032, to the maximum extent feasible while retaining existing building envelopes, providing for adequate stormwater drainage, and providing for compliant landscape and streetscape.

- (2) *Lighting.* All new and replacement lighting shall comply with chapter 18.34, community lighting standards.

(3) *Building façade.*

- (i) Unless such compliance would constitute a radical departure from the existing architectural style and/or is changing less than 25 percent of the existing façade of the building, all changes to individual parts of the building façade shall comply with chapter 18.29 and/or 18.40, as applicable.
- (ii) If the value of proposed improvements exceeds 50 percent of the "actual land value" of the subject property according to the current records of the Jefferson County Assessor, then street-facing build-

ing façades shall be brought into compliance with chapter 18.29 and/or 18.40, as applicable.

- (4) *Landscape strips.* Landscape strips shall be brought into compliance with section 18.29.06.005.
- (5) *Sidewalks.* Sidewalks shall be brought into compliance with section 18.29.06.005.

(g) *Redevelopment.* Redevelopment shall comply with all applicable standards set out in this title. Redevelopment of a nonconforming lot is subject to section 18.44.530.

(h) *Alternative compliance.* The director shall be authorized to allocate the estimated costs for the level of site improvements required in subsections (e) or (f), above, to further enhance other nonconforming site features to maximize the functional benefit and aesthetics of the site. For example, the total estimated cost, or a portion thereof, to construct a new parking lot in compliance with subsection (f), above, may be allocated to enhance building design or street-side landscaping to a greater extent than otherwise required in subsection (f), above. The director's allocation of costs shall be subject to the standards and objectives in subsection (i), below:

(i) *Standards and objectives.* The director shall allocate cost pursuant to subsection (h), above, in compliance with all of the following standards and objectives:

- (1) *Cumulative costs.* The cumulative cost of the site improvements authorized under subsection (h), above, shall not exceed the cost for the level of site improvements required to comply with subsections (e) and (f), as applicable.
- (2) *Greatest overall improvement.* The site improvements authorized under subsection (h), above, shall be allocated to provide the greatest overall improvement to the property and reduce existing external impact to the greatest extent possible.
- (3) *Planning objectives.* The director shall consider the following planning objec-

tives in determining the allocation of site improvements under subsection (h), above:

- (i) Further goals and polices in the comprehensive plan and any applicable neighborhood plan;
 - (ii) Improving landscaping and buffering as viewed from state highways, arterial and collector streets;
 - (iii) Mitigating lighting impact by retrofitting existing lighting with shielded, full cut-off fixtures;
 - (iv) Achieving a unified building design for existing and proposed building facades facing state highways, arterial and collector streets; and
 - (v) Screening utilities or mechanical equipment visible from state highways, arterial and collector streets.
- (4) *Director discretion.* The director may grant variations to or waive compliance with the standards in this section when existing site constraints make compliance demonstrably impracticable.

(Ord. No. 2228, § 12, 2-13-2024)

18.44.520 Nonconforming number of dwelling units or form types.

If a subject property contains more dwelling units than are allowed by standards that are applicable to the subject property and the building or buildings in which the dwelling units are located or the building or buildings do not conform to a form type allowed in the form zone overlay, then the building or buildings may be expanded or extended or other structures added as may be otherwise allowed by this title, but no new dwelling units shall be created, and no new bedrooms shall be created unless the number of parking spaces available to the subject property conforms to the requirements section 18.36.025, 18.36.030, or 18.36.032, as applicable.

(Ord. No. 2228, § 12, 2-13-2024)

18.44.530 Nonconforming lots of record.

(a) *Generally.*

- (1) *Nonconforming lot used for single-household detached dwelling unit.* See section 18.44.130(a) and (b).

- (2) *Nonconforming lot used for other purposes.* If a nonconforming lot is proposed to be used for purposes other than a single-household, detached dwelling unit, the director shall determine whether, based on a sketch site plan presented by the applicant, the lot is of suitable area and dimensions for the proposed use. The director shall deny an application (even for a use by right) if the director determines that there is insufficient lot area for construction of the proposed building or conduct of the proposed use, or that safe ingress to and egress from the lot for the proposed use is compromised by the lot's dimensions, and that improvements within the right-of-way are infeasible or would be insufficient to mitigate the safety hazard.

(b) *Combination required.* If two or more lots or combinations of lots and portions of lots with continuous frontage in single ownership are of record on the effective date, and part or all of the lots do not meet the requirements of the zone district in which they are located as to minimum area or frontage or both, the lands shall be considered for the purpose of this title to be an undivided parcel, and no portion of the parcel shall be sold or used in a manner that diminishes compliance with lot width and area requirements established by this title.
(Ord. No. 2228, § 12, 2-13-2024)

Chapter 18.48

PROCEDURE FOR INITIAL ZONING AND REZONING*

18.48.010 General provisions.

- (1) The procedure for changing the boundaries or area of any zone district, including any use district or form zone, or for changing the zoning

***Editor's note**—Sec. 2(Exh. K) of Ord. No. 2209, adopted June 6, 2023, amended ch. 18.48 in its entirety to read as herein set out. Former ch. 18.48 pertained to the same subject matter, and derived from Ord. No. 682, 1973; Ord. No. 874, 1982; Ord. No. 1179, 1993; Ord. No. 1632, 2003; Ord. No. 1700, 2005; Ord. No. 1787, 2007; Ord. No. 1936, 1999; and Ord. No. 1997, adopted December 11, 2014.

classification or form zone of any parcel of land within the City of Golden, as shown on the Zoning District Map of the City of Golden, Colorado or the City of Golden Form Zone Overlay Map, as applicable, herein collectively referred to as "rezoning", shall be as provided in this chapter 18.48.

- (a) Subject to the limitations provided for in subsection (b), a rezoning may be initiated by:
1. The owner(s) of the property or their representative(s) with written authorization from the owner(s); or
 2. The planning commission; or
 3. The city manager of the City of Golden; or
 4. The city council.

Notwithstanding the foregoing, this chapter does not apply to rezonings that are legislative in nature. For legislative rezonings, notice shall be provided in accordance with section 2.06.030 of the Golden Municipal Code. Mailed notice and posted notice of individual parcels are not required for legislative rezonings, although the city may, at its discretion, provide notice by other methods in addition to published notice as a courtesy to the public.

- (b) A rezoning initiated by the planning commission, the city manager, or the city council (each, a "city-initiated rezoning") to the PUD zone district shall require the consent of the owner. A city-initiated rezoning of land in an existing PUD zone district to a non-PUD zone district or a city-initiated overlaying of a PUD zone district with a form zone may be initiated without the consent of the owners.

- (2) The procedure for the initial zoning of property annexed or to be annexed to the city shall follow, to the extent practicable, the procedures applicable herein to rezonings. The zoning procedures may be instituted at any time after a resolution of intent to annex is adopted pursuant to C.R.S. § 31-12-106, as amended, or after a petition for annexation or a petition for

annexation election has been found to be valid in accordance with C.R.S. § 31-12-107, as amended.

- (a) No ordinance initially zoning property annexed to the city shall be adopted on second reading prior to the date the annexation ordinance is adopted on second reading.
- (b) Property annexed to the city shall be initially zoned by the city within 90 days after the effective date of the annexation ordinance. Any requirements set forth in this chapter, and not required by statute, shall be modified to the extent necessary to meet the 90-day requirement.

(3) Land located within an RE, M1, M2, CO, AG, or RM use district may not be located in a form zone.

(4) Any request to initially zone or to rezone land to a R1, R1A, R2, R3, CMU, RC, C1, or C2 use district shall include a request for application of an appropriate form zone, if an appropriate form zone has not already been applied.

(Ord. No. 2209, § 2(Exh. K), 6-6-2023)

18.48.020 Pre-submittal conference and review.

(1) See section 18.10.040 for pre-submittal meeting requirements.

(2) See section 18.10.040 for neighborhood meeting requirements.

(Ord. No. 2252, § 9(Exh. H), 1-28-2025; Ord. No. 2209, § 2(Exh. K), 6-6-2023)

18.48.030 Specific procedure.

Requests for rezoning or initial zoning of property shall conform to the following specific procedure.

(1) See section 18.10.040.

(Ord. No. 2252, § 9(Exh. H), 1-28-2025; Ord. No. 2209, § 2(Exh. K), 6-6-2023)

18.48.040 Planning commission public hearing and action.

(1) See section 18.10.040 for public hearing notice procedures.

(Ord. No. 2252, § 9(Exh. H), 1-28-2025; Ord. No. 2209, § 2(Exh. K), 6-6-2023)

18.48.050 City council hearing and decision.

(1) The council shall review and decide all rezoning requests following receipt of the planning commission recommendation. A rezoning may only be approved by passage of an ordinance following the city's standard ordinance adoption procedures, including a first reading and a public hearing on second reading.

(2) See chapter 18.10.040 for public hearing notice procedures.

(3) The council shall consider the planning commission recommendation, the evidence presented at the public hearing, including the staff report and materials provided therewith, and either approve, approve with conditions, or deny the rezoning request by applying such evidence to the standards set forth in section 18.48.060. The council also may remand the rezoning request to the planning commission for further study and review or, on its own motion or at the request of any person, continue the public hearing to a fixed date, time, and place.

(4) Final action by the city council on the rezoning ordinance shall be taken within 90 days after the conclusion of the council's hearing on the ordinance, or within 30 days after the return of a remand from planning commission, whichever is later, unless the applicant consents to an extension of such time. Failure to take final action within such period shall be considered a final decision of the council denying the rezoning.

(5) The city clerk shall provide written notice of the council's final action on the rezoning application to any person who has requested in writing to receive such notice. The failure to strictly comply with this requirement shall not affect the validity of the proceeding.

(Ord. No. 2252, § 9(Exh. H), 1-28-2025; Ord. No. 2209, § 2(Exh. K), 6-6-2023)

18.48.060 Standards for zoning and rezoning.

(1) To promote stability in zoning and appropriate development of property within the city, no application for rezoning of property shall be approved unless it is demonstrated by the applicant that:

- (a) The proposed zoning promotes the health, safety or welfare of the inhabitants of the City of Golden and the purposes of this title; and
- (b) At least one of the following additional factors exist:
 - 1. The proposed zoning promotes the goals of the comprehensive plan, or the proposed rezoning demonstrates an improvement over the existing zoning in implementing the goals of the comprehensive plan.
 - 2. There has been a material change in the character of the neighborhood or in the city generally, such that the proposed zoning would be in the public interest and consistent with the change.
 - 3. The property to be rezoned was previously zoned in error; and
- (c) For applications to establish or rezone a form zone:
 - 1. The underlying use district is not RE, M1, M2, CO, AG, or RM; and
 - 2. The property exhibits the locational characteristics, building scale and disposition, and lot and block characteristics described in the context for the proposed form zone in division II of chapter 18.29.
- (2) City council shall have the authority to assess school and parkland dedications at the time of property zoning and rezoning for those zoning changes which increase the potential number of dwelling units on the property. Such dedications shall be in accordance with the provisions of chapter 17.60. Assessment of fees in lieu of land dedication shall

occur at the time of zoning, and shall be based upon permitted uses on the site. Said fees shall be collected at the time of subsequent subdivision or building permit issuance, whichever shall occur first. Fees shall be adjusted as necessary at the time of either subdivision or building permit issuance to reflect development which results in densities and/or unit types different from those assumed at the time of initial assessment. Conveyance of land to be dedicated shall occur at the time of subsequent subdivision, or prior to issuance of any building permits.

(Ord. No. 2209, § 2(Exh. K), 6-6-2023)

Chapter 18.50 VACATION OF STREETS

18.50.010 General procedure.

The procedure for vacation of streets, alleys or other public ways, and vesting of title upon vacation, shall conform to state law as provided in Section 43-2-301, et seq., C.R.S., 1973, as amended. In addition, said vacation shall conform to the specific procedure as provided in this chapter.

(Ord. 866 § 1 (part), 1981)

18.50.020 Specific procedure.

Vacation of streets, alleys and other public ways shall conform to the following specific procedure:

- (1) Application for vacation of a street or alley right-of-way shall be filed on an application form provided by the city. The application must include:
 - (a) A written description of the requested vacation and reasons for the request, including any retained easements or conditions or restrictions to be imposed by the city.
 - (b) Application filing fee as set by city council resolution.

- (c) A written description or analysis of potential impacts on mobility, such as parking, traffic and safety issues.
- (2) See section 18.10.040 for notice requirements.
- (3) Reserved.
- (4) At any time prior to city council's consideration on second reading of a vacation, the director shall require that the applicant attend a neighborhood meeting, with notice provided by the city, to discuss issues or concerns about the request. The director shall have the discretion to waive this requirement when deemed unnecessary. Based on the concerns raised, additional analysis or information may be required of the applicant, which could include the need for a better understanding of issues such as mobility, parking, traffic impacts and safety.
- (5) See section 18.10.040 for public hearing process.
- (6) Vacation of street or alley right-of-way shall be left to the sound discretion of city council and the applicant shall have the burden of presenting sufficient information to justify the requested vacation. City council shall not exercise its discretion to vacate any street or alley right-of-way unless it meets the following criteria:
 - (a) No property would be left without reasonable access by reason of the vacation;
 - (b) The street or alley right-of-way is no longer necessary for public use or convenience;
 - (c) The vacation will not restrict access to any parcel so that access is unsafe, unreasonable, or economically prohibitive;
 - (d) Adequate easements have been reserved for use and/or maintenance by the city or other utility agencies;

- (e) The vacation is consistent with the goals of the Golden Comprehensive Plan and the city's land use regulations.
 - (7) In exercising discretion to vacate a public street or alley, city council may also consider impacts on mobility, parking, traffic, and safety, as well as any benefits to the city that will result from removing the right-of-way from the municipal street system.
- (Ord. No. 2252, § 10 (Exh. I), 1-28-2025; Ord. No. 2017, § 4, 10-8-2015; Ord. 1787 § 4, 2007; Ord. 866 § 1 (part), 1981)

Chapter 18.52

DOWNTOWN DEVELOPMENT DISTRICT

18.52.010 Downtown development district.

There is established the downtown development district within the city which shall include the area bounded by 141 Street on the south, Clear Creek on the north, Cheyenne Street on the west, and Ford Street on the east. When the downtown development district regulations conflict with zoning district regulations, the provisions of the former shall govern; however, uses prohibited by the zoning district regulations shall prevail.

(Ord. 1821, 2008; Ord. 1635, 2003; Ord. 801, § 1(part), 1978)

18.52.020 Downtown development district regulations.

The following regulations shall apply to the downtown development district for the development of a more efficient land use and to improve commercial frontage:

- (a) *Alley storefront.* It is recognized that rear entrance access and upgrading provides convenient access to parking and doubles as "alley storefront." This storefront provides innovative potentials such as landscaped courtyards and outdoor arcades, among other uses.
- (1) *Alley setback.* The building exterior wall shall set back five feet from the

- property line. Eaves and overhangs may not extend closer than six inches from the property line. There shall be no intrusions into the setback more than six inches. The setback does not include the basement.
- (2) *Alley sidewalk or pedestrian walk.* A minimum five-foot alley sidewalk shall be required. Curb ramps for the handicapped and loading shall also be provided. Landscaping may be provided between walk and curb. All sidewalk construction shall be in compliance with the City of Golden's "Street Sidewalk and Drainage Specifications" as those specifications may be amended from time to time.
- (b) *Parking.* Except as provided herein, the parking and loading requirements contained in chapter 18.36 of the Golden Municipal Code shall apply to properties within the downtown development district.
- (1) Provision of off street parking and loading spaces in the amounts required in chapter 18.36 of the Golden Municipal Code shall not apply to any uses of structures in existence on November 1, 2003, provided that such uses must continue to maintain off street parking in the amounts provided on November 1, 2003, or as provided by chapter 18.36, whichever is less.
- (2) The parking and loading requirements of chapter 18.36 shall not apply to an addition to a structure in existence on November 1, 2003, where such addition would have required the provision of additional parking, provided that such building addition, or combination of building additions over the preceding period of five calendar years, does not exceed the smaller of 25 percent of the existing gross square footage of the building or 1,000 square feet.
- (3) No surface parking lot shall be located within 60 feet of Washington Avenue, and no new vehicular access to Washington Avenue within the district shall be permitted without the prior approval of a special use permit according to the provisions of chapter 18.30 of the Golden Municipal Code.
- (4) In lieu of the provision of parking spaces within the downtown development district, as required by this chapter and chapter 18.36 of the Golden Municipal Code, the owner may request a substituted cash fee in lieu of provision of all or a portion of the otherwise required parking spaces. The request for a substituted cash fee in lieu of the provision of parking shall be presented to city council for a determination whether sufficient public parking to serve the proposed use exists or can become available to serve the use. If city council determines that acceptance of the substituted cash fee is appropriate, said cash fee shall be made to the city prior to building permit issuance, except as provided below for individual tenant change of use. At the option of the city council, an approved substitutional cash fee may be paid in annual installments, including interest, over a multiyear period, subject to a payment agreement acceptable to the city attorney and an annual interest rate set by city council, which shall include provisions for termination of the certificate of occupancy for the affected structure if any periodic payments are not made. The amount of the cash fee per parking space and annual interest rate shall be set by city council resolution based upon the estimated cost for land and construction for a parking space, the rate of return the city realizes for invested funds, and the following table 18.52.025.

The amount of the cash fee can be adjusted annually by an appropriate inflation index as designated by the resolution.

- a. New construction, including additions to existing buildings, in the downtown area is expected to satisfy all or substantially all of its parking requirements on-site, without use of a substituted contribution. The substituted contribution is intended for projects involving existing buildings with limited or no on-site parking, and for new construction projects that can physically provide most, but not all, of the on-site parking required by code.
- b. The substituted contribution is only available for non-residential projects or portions of a mixed use project. If the substituted contribution option is considered for a mixed use project, specific on-site parking spaces in an amount that meets or exceeds the parking requirement of chapter 18.36 must be provided for each residential dwelling.
- c. The acceptance of a substituted contribution in lieu of providing on-site parking spaces shall not be construed as conferring any specific rights or benefits to the affected property and/or owner, other than to relieve the property owner of providing the number of on-site parking spaces otherwise required under Title 18 of the Golden Municipal Code. No rights or other warranties regarding the availability or use of public parking spaces are conveyed or otherwise provided.

(Ord. No. 2054, § 1, 3-23-2017; Ord. 1860, § 1, 2009; Ord. 1837, § 1, 2009; Ord. 1821, 2008; Ord. 1635, 2003; Ord. 801, § 1(part), 1978)

18.52.025 Substitutional parking contribution basis.

For the purposes of setting the amount of substitutional cash fee and interest rate applicable to requests to contribute such substitutional fee in lieu of provision of parking, the following table shall be used. For new construction and building additions, the owner may request either of the options, subject to city council's determination of availability.

<i>Land Use Change</i>	<i>Fee Basis</i>	<i>Time of Payment</i>
New Construction or Building Addition	50% of current replacement cost of structured parking space	Payment due at building permit or up to 20-year payment plan.
Individual tenant change of use for structures constructed after November 1, 2003	Annualized contribution based upon 25% of current replacement cost of structured parking space, amortized over a 30-year economic life of a structure.	Payments begin at the start of the third calendar year the business is in operation. Ongoing, as long as tenant occupies space, or if transferred to a future tenant.

(Ord. No. 2054, § 2, 3-23-2017; Ord. 1860, § 2, 2009; Ord. 1821, 2008; Ord. 1635, 2003)

Chapter 18.54

RESERVED*

18.54.010—18.54.050 Reserved.

Chapter 18.56

COMMUNITY LANDMARKS PROGRAM

18.56.010 Purpose and intent.

(1) The city council hereby enacts this community landmarks chapter in accordance with its home rule authority. City council finds that the designation of community landmarks is consistent with the policies of the City of Golden Comprehensive Plan, and will further the health,

***Editor's note**—Sec. 2 of Ord. No. 2063, adopted Oct. 12, 2017, repealed chapter 18.54, which pertained to the parks and recreation advisory board, consisted of sections 18.54.010—18.54.050, and derived from Ord. 891, 1982; Ord. 1035, 1988; Ord. 1089, 1990; Ord. 1906, 2011; and Ord. 1959, 2013. User is directed to chapter 2.68 for provisions concerning the parks, recreation and museums advisory board.

safety, and welfare of the community, property owners, and residents. City council desires to establish a procedure and standards for designating certain landmarks of community importance, that do not qualify for other types of landmark designation.

(2) The designation of a community landmark under this chapter is intended to convey community appreciation of such landmarks of community importance such as memorials to organizations, groups or persons that have provided service to the community or significant community events. This designation is not intended to legally restrict the use or alteration of such properties.
(Ord. 1661, 2004)

18.56.020 Definitions.

As used within this ordinance, except where otherwise specifically defined, or unless the context otherwise requires, the following terms, phrases, words and their derivations shall have the following meanings:

Community landmark means a structure, monument, or site which commemorates an event, series of events, person, or organization of significant importance to the Golden community.
(Ord. 1661, 2004)

18.56.030 Standards for designation of community landmarks.

The planning commission will evaluate and determine the merit of proposed community landmarks, as defined in section 18.56.020, for designation under this chapter. The following criteria shall be used in this determination:

- (1) For purposes of designating community landmarks, the phrase "significant importance to the Golden community" relates to a building, monument, structure, object, site or area that meets one or more of the following criteria:
 - (a) Commemorates an event or series of events that has interest or value, or which has affected the develop-

ment, heritage, or cultural characteristics of the city, the State of Colorado or the nation;

- (b) Is identified with a person or group of persons, organization, or branch of the local, State of Colorado or United States government that has had influence on the development, heritage and cultural characteristics of the city, the State of Colorado or the nation;
- (c) Has character, interest or value as part of the development, heritage or cultural characteristics of the city, the State of Colorado or the nation;
- (d) Is the site of a recent or historic event that has interest, value and which has affected the development, heritage, or cultural characteristics of the city, the State of Colorado or the nation;
- (e) Exemplifies the cultural, political, economic, social or historical heritage of the community;
- (f) Promotes the general welfare and civic pride of the present and future inhabitants of the community.

(Ord. 1661, 2004)

18.56.040 Procedure for designating community landmarks.

(1) Application for community landmark designation may be filed by the owner, or the owner's designee, of the property for which designation is requested.

(2) *Staff review.* See section 18.10.040 for staff review procedures.

(Ord. No. 2252, § 11(Exh. J), 1-28-2025; Ord. 1661, 2004)

18.56.050 Planning commission public hearing and action.

(1) Notice. See section 18.10.040 for notice procedures.

(2) See section 18.10.040 for hearing procedures.
(Ord. No. 2252, § 11(Exh. J), 1-28-2025; Ord. 1661, 2004)

18.56.060 City council review.

An applicant aggrieved by the decision of the planning commission on designation under this chapter may, within 15 days of the date of the decision thereon, apply to the city council for review of said decision by filing a request with the city clerk. The city council shall, within 30 days of the date of the city council meeting at which the appeal is presented, based upon the record of the planning commission hearing alone, decide to uphold, deny, or modify the decision of the planning commission.
(Ord. 1661, 2004)

Chapter 18.58 HISTORIC PRESERVATION*

18.58.010 Purpose and intent.

- (1) The purpose and intent of this chapter is:
 - (a) The protection, enhancement, perpetuation and use of districts, buildings, structures, objects, and areas that are reminders of past eras, events and persons important in local, state or national history, or which provide significant examples of architecture, or which are unique and irreplaceable assets to the city and its neighborhoods, or which provide for this and future generations examples of the physical surroundings in which past generations lived;

***Editor's note**—Ord. No. 2290, § 2, adopted Mar. 10, 2026 repealed the former Ch. 18.58, §§ 18.58.010—18.58.110, and enacted a new Ch. 18.58 as set out herein. The former Ch. 18.58 pertained to similar subject matter and derived from Ord. 918, § 1(part), adopted in 1983; Ord. 940, § 1(part), adopted in 1983; Ord. 1015, adopted in 1983; Ord. 1010, § 9, adopted in 1986; Ord. 1085, adopted in 1990; Ord. 1092, § 27, adopted in 1990; Ord. 1105, §§ 1—4, adopted in 1991; Ord. 1261, §§ 1—4, adopted in 1995; Ord. 1595, §§ 1—26, adopted in 2002; Ord. 1813, §§ 1—13, adopted in 2008; Ord. 1840, §§ 1—2, adopted in 2009; Ord. 1927, §§ 1—3, adopted in 2012; Ord. 1959, adopted in 2013; Ord. No. 2063, §§ 7—9, adopted 10-12-2017.

- (b) The development and maintenance of appropriate settings and environment for such districts, buildings, structures, objects, and areas;
- (c) The enhancement and stabilization of neighborhoods, the increase of economic and financial benefits to the city and its inhabitants, and the promotion of tourist trade and interest; and
- (d) Conformance with the city's adopted comprehensive plan, as amended from time to time, and the advancement of the Historic Preservation Policy Report as approved by city council in Resolution 3163 on February 11, 2025, and as may be amended from time to time.

(2) The city does not intend by this chapter to preserve every old building and structure in the city but instead to draw a reasonable balance between private property rights and the public interest in preserving the city's cultural, historic and architectural heritage by ensuring that demolition of buildings and structures important to that heritage will be carefully weighed with other alternatives. It is also intended that alterations to such buildings and structures and new construction will respect the character of each such setting, not by imitating surrounding structures, but by being compatible with them.
(Ord. No. 2290, § 2, 3-10-2026)

18.58.020 Overview.

- (1) Pursuant to the standards and procedures in this chapter the city council may by ordinance:
 - (a) Designate as a historic site an individual building, structure, area or object or an integrated group of such features on a single lot or site having a special character and historical, architectural or aesthetic interest or value as defined in this chapter;
 - (b) Designate as a historic landmark an individual building, structure, area or object or an integrated group of such features on a single lot or site having an exceptional character and historical, architectural or aesthetic interest or value. In order to be so designated, the property

must be deemed by the Colorado Historic Society to be eligible for inclusion on the National Register of Historic Places. The regulatory distinction between historic landmarks and historic sites is that historic landmarks are subject to greater regulatory control by the board and city council pursuant to this chapter;

- (c) Designate as a historic district a geographically definable area which includes a concentration, linkage, or continuity of properties within a particular period of significance and may include within its geographic boundaries one or more contributing properties;
- (d) Amend designations to add or remove property to or from a historic site, historic landmark, or historic district; and
- (e) Rescind designation of a historic site, historic landmark, or historic district.

(2) Upon designation, the property included in any such designation is subject to all the requirements of this chapter and other ordinances of the city.

(3) In addition to the foregoing types of designation, work (excluding demolitions) upon commercial buildings at least 50 years of age is subject to certificate of appropriateness review as set forth in this chapter.

(4) *Structure of merit*. In prior versions of this chapter, the city was empowered to designate a "structure of merit" with or without the owner's consent. This nonregulatory designation for historic places was used to promote preservation awareness but imposed no regulatory requirements. The structure of merit is not a designation available for new designations. Previously adopted structures of merit remain designated, but the structure of merit designation does not impose any requirement for certificates of appropriateness prior to work being performed. (Ord. No. 2290, § 2, 3-10-2026)

18.58.030 Definitions.

The following terms when used in this chapter shall have the meanings defined in this section, except where the context clearly indicates a

different meaning. When not inconsistent with the context, words used in the present tense include the future; words in the singular number include the plural number; words in the plural number include the singular number; and the masculine includes the feminine.

Area means the location of a significant event where a historic occupation or activity occurred. It may be the site of a building or structure which is no longer standing or which exists only as a ruin. An area may also include a standing building, if the location itself possesses historic, cultural, or archeological value regardless of the value of any existing structure. Examples of areas include rock shelters, village sites, hunting and fishing sites, ceremonial sites, petroglyphs, rock carvings, paleontological sites, gardens, grounds, battlefields, ruins of historic buildings and structures, habitation sites, funerary sites, campsites, sites of treaty signings, trails, areas of land, landscapes, cemeteries, designed landscapes, and natural features, such as springs and rock formations.

Board means the historic preservation board as set forth in chapter 2.54.

Building means a construction created to shelter any form of human activity, such as houses, barns, garages, churches, and hotels.

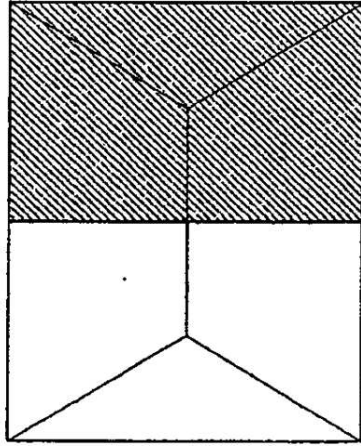
Certificate of appropriateness means the official findings issued by the board after reviewing any application for work upon any historic resource.

Commercial building means any building that is zoned in manner that allows nonresidential uses.

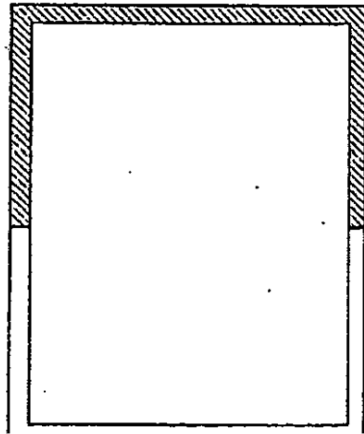
Contributing property means a property that retains the historic or architectural character within a historic district during its period of significance.

Demolition or *demolish* means either relocation or an act or process which removes one or more of the following portions of a building. The shaded area illustrates the maximum amount of 50 percent that may be removed from a building without constituting demolition.

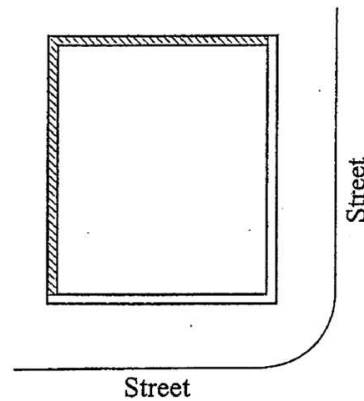
- (1) At least 50 percent of the roof area of a building as measured in plan view (see diagram);



- (2) At least 50 percent of the exterior walls of a building as measured contiguously around the building's perimeter or footprint (see diagram); or



- (3) Any exterior wall facing a public street, but not an act or process which removes an exterior wall facing an alley (see diagram).



A wall shall meet the following minimum standards to be considered a retained exterior wall:

- a. The wall shall retain studs or other structural elements, the exterior wall finish and the fully framed and sheathed roof above that portion of the remaining building to which such wall is attached;
- b. The wall shall not be covered or otherwise concealed by a wall that is proposed to be placed in front of the retained wall; and
- c. Each part of the retained exterior walls shall be connected contiguously and without interruption to every other part of the retained exterior walls.

Designated property or designation means a historic landmark, historic site, or property within a historic district that has been designated pursuant to this chapter.

Director means the community development director, or their authorized designee.

External appearance means the architectural style and general arrangement of the exterior of the property including type and texture and cladding materials, including all windows, doors, lights, signs, and other fixtures, as well as any

structure, place, work of art, landscape element or other object which is visible from a public way or adjoining properties.

Historic district means a geographically definable area designated in accordance with this, or previous versions of this chapter which includes a concentration, linkage, or continuity of properties within one or more periods of significance and may include within its geographic boundaries one or more contributing or noncontributing buildings, objects, areas, or structures.

Historic landmark means a property meeting the higher level of designation criteria in subsection (3) of section 18.58.040, "Eligibility criteria," and designated as such in accordance with this, or previous versions of this, chapter.

Historic resource means commercial buildings at least 50 years of age, and designated properties.

Historic significance means the value or meaning ascribed to a building, structure, object, area, or district based on eligibility criteria as set forth in section 18.58.040.

Historic site means a property meeting the basic designation criteria in subsections (1) and (2) of section 18.58.040, "Eligibility criteria," and designated as such in accordance with this, or previous versions of this, chapter.

Historic structure assessment means a written and photographic report that fully documents the physical condition of a historic resource. A

complete assessment contains photographs, illustrations, and information in narrative form that reflects a comprehensive understanding of the condition and needs of the historic resource. This information will include details specific to the historic character and significance; specific materials, features, elements, and spaces; and the intended use.

Integrity means the ability of a property to convey its historic significance through its physical features.

Minor work means work of the specific kinds set forth in section 18.58.150(2).

Noncontributing property means a property that does not retain the historic or architectural character within a historic district during its period of significance.

Object is used to distinguish from buildings and structures those constructions that are primarily artistic in nature or are relatively small in scale and simply constructed. Although it may be, by nature or design, movable, an object is associated with a specific setting or environment.

Ordinary maintenance means routine actions necessary to prevent deterioration or to correct minor damage to a property that do not cause a significant change in the external appearance of the property.

Owner means the owner in fee of any undivided interest in a parcel of land. If the mineral estate has been severed, the owner is the owner in fee of an undivided interest in the surface estate and not the owner in fee of an undivided interest in the mineral estate. A purchaser of land under a written contract duly recorded shall be deemed an owner of the parcel that is subject to the contract if the purchaser is in possession of the parcel pursuant to the purchase agreement.

Period of significance means the period when the historic architecture, persons, and events associated with a historic district were designed and constructed, occupied or occurred.

Property means buildings, structures, areas, and objects.

Significant change means a change in the external appearance which affects or is likely to affect the historic or architectural merit of a property, including, but not limited to, all activities for which a building permit is required.

Structure is used to distinguish from buildings those constructions made usually for purposes other than creating human shelter, such as a road, canal, bridge or fence.

Work means alteration, demolition, new construction, reconstruction, restoration, remodeling or other modification which results in a significant change in the external appearance of a property, excluding ordinary maintenance. (Ord. No. 2290, § 2, 3-10-2026)

18.58.040 Eligibility criteria.

Applicability: In accordance with the procedures set forth in this chapter, the eligibility criteria are applied in order to evaluate if a property or historic district may be designated by the city. Historic sites, historic landmarks, and historic districts must meet both the significance criteria in subsection (1) and the integrity criteria in subsection (2). Historic landmarks must also meet the requirements of subsection (3) below. Historic districts are also evaluated in accordance with subsection (4) below.

- (1) *Significance criteria.* Properties or historic districts shall meet one or more of the following criteria in order to be designated.
 - (a) Association with events that have made a significant contribution to history.
 1. Location of a historic event that had an effect upon society; or
 2. Exemplifies cultural, political, economic, or ethnic heritage of the city.
 - (b) Connection with a person or people significant in history.
 - (c) *Distinctive characteristics of a type, period, method of construction, or artisan.*
 1. Exemplifies specific elements of an architectural style or period; or

2. Is an example of the work of an architect, builder or craftsman who is recognized for expertise nationally, state-wide, regionally, or locally; or
 3. Demonstrates superior craftsmanship or high artistic value; or
 4. Represents a style that is particular to the city; or
 5. Represents an innovation in construction, materials, or design; or
 6. Represents a built environment of a notable group of people in a specific era of history.
- (d) *Geographic importance.*
1. Enhances the sense of identity of the city or community; or
 2. Is an established and familiar natural setting or visual feature of the city or community.
- (e) *Important information related to prehistory or history.*
1. Addresses research questions or fills recognized data gaps;
 2. Embodies construction, development, or design adaptations; or
 3. Informs on the development of engineering systems.
- (f) Geological, archaeological, paleontological, or anthropological significance.
- (b) *Design*—The combination of elements that create the form, plan, space, structure, and style of a property.
- (c) *Setting*—The physical environment of a property, including the historic character of the place in which the property played its historical role. It involves how, not just where, the property is situated and its historical relationship to surrounding features and open space.
- (d) *Materials*—The physical elements that were combined or deposited during a particular period of time and in a particular pattern or configuration to form a property.
- (e) *Workmanship*—The physical evidence of the crafts of a particular culture or people during any given period in history or prehistory.
- (f) *Feeling*—A property's expression of the aesthetic or historic sense of a particular period of time.
- (g) *Association*—The direct link between an important historic event or person and a property.

(3) *Historic landmarks.* Property owners may voluntarily opt for greater recognition and regulatory control over their properties by applying for historic landmark designation. In addition to meeting the eligibility standards for designation of historic sites contained in this section 18.58.040, proposed historic landmarks must be deemed by the Colorado State Historic Preservation Office to be eligible for inclusion on the National Register of Historic Places.

(4) *Historic districts.*

- (a) In considering an application for a proposed historic district, city council shall apply the eligibility criteria to the patterns and unifying elements of the proposed historic district, as established by a context statement or similar competent evidence.

(2) *Integrity criteria.* All properties and historic districts shall be evaluated for their integrity and shall only be designated if found to have sufficient integrity to convey their historic significance. In determining integrity, the decisionmaker shall consider the following factors, which may be present in varying degrees and are not individually required:

- (a) *Location*—The place where the property was constructed or the place where the historic event occurred.

- (b) Non-contributing properties may be included within the boundaries of a historic district.
- (c) The question of whether any particular property should be included in a proposed district is a question that goes to the merits of the entire application. As such, the board and city council may consider requests to be excluded from the district during the hearing process and subject to the generally applicable standards for formation of a district. While the formation of a district is ultimately at the sound discretion of city council, the board and city council shall consider whether the property meets any of the following factors in evaluating individual requests from owners for exclusion from proposed districts. The factors may be present in varying degrees and are not individually required for exclusion:
 1. The property is a non-contributing resource, or if contributing, is not essential to the district's significance as defined in designation criteria;
 2. The exclusion of the property from the district will not create a visual or spatial gap that undermines the physical or historical continuity of the district;
 3. The exclusion will not substantially reduce the proportion of contributing properties within the district below the threshold necessary to meet local, state, or national designation standards; and
 4. The exclusion does not conflict with the goals of the preservation plan adopted by the city.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.050 Procedure for initiation of historic site or historic landmark designation.

(1) *Application for designation.* The owner of a property may apply for designation as a historic site or historic landmark on a form provided by the director. If the property has more than one owner, all owners shall provide written consent to the application.

(2) *Staff review.* After receiving the application, the director shall determine if the application is sufficiently complete to present the request to the board. Applications deemed incomplete shall be returned to the applicant within 28 days with a request for additional information. No further action will be taken until the applicant has provided the requested information. If the application is deemed complete, the application shall continue to the designation hearing process described in section 18.58.080, Designation hearing.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.060 Procedure for initiation of historic district designation.

(1) *Application for designation.* To initiate the process for designation of a historic district, a majority of owners within the proposed district shall subscribe to a written petition requesting formation of the district and apply on a form provided by the department. If a parcel of land has more than one owner, or if an owner owns multiple parcels, such owners shall be counted as a single owner for purposes of determining whether a majority exists.

(2) *Staff review.* After receiving the application, the director shall determine if the application is complete to present the request to the board. Applications deemed incomplete shall be returned to the applicant within 28 days with a request for additional information. No further action will be taken until the applicant has provided the requested information. Applications deemed complete shall be forwarded to the board for an initiation hearing as set forth below.

(3) *Initiation hearing.* The board shall conduct a preliminary hearing in the nature of a legislative decision to confirm that the petitioning

requirement has been met and to consider whether to initiate designation of the application. In determining whether to initiate the designation, the board may consider, without limitation, whether:

- (a) There is probable cause to believe that the proposed district may be eligible for designation consistent with the purposes and standards in sections 18.58.010, "Purpose and intent," and 18.58.040, "Eligibility criteria;"
- (b) There are currently resources available that would allow the director to complete all of the community outreach and historic analysis necessary for the application;
- (c) There is community and neighborhood support for the proposed designation;
- (d) The buildings or features may need the protections provided through designation;
- (e) The potential boundaries for the proposed district are appropriate;
- (f) In balance, the proposed designation is consistent with the goals and policies of the comprehensive plan; and
- (g) The proposed designation would generally be in the public interest.

(4) *Initiation resolution.* If the board determines to proceed with initiation of a historic district, it shall initiate by resolution so long as all other application requirements have been met. Upon passage of the resolution initiating designation, the application shall be subject to the public process described in section 18.58.070, "Public process for historic districts," and scheduled for a board designation hearing as set forth in section 18.58.080, "Historic preservation board designation hearing." If the board determines that it is not appropriate to initiate designation based on the considerations listed above, the board shall deny the application and no further action shall be taken. (Ord. No. 2290, § 2, 3-10-2026)

18.58.070 Public process for historic districts.

(1) *Public process required prior to board designation public hearing for historic districts.* Once the board has adopted a resolution to initiate designation, the following process shall be completed prior to the board's public hearing pursuant to section 18.58.080, "Historic preservation board designation hearing."

- (a) *Public meeting.* The director shall host a minimum of one meeting of the owners within the proposed district to explain the responsibilities and benefits of designation. Notification of the meeting shall be sent by first class mail to all owners within the proposed district stating the date, time and location of the meeting no less than 14 days prior to the meeting. Prior to this meeting, the director shall make materials available to the owners including, without limitation, information on the history of the area proposed for designation, the history of individual properties proposed for designation, and information on the responsibilities and benefits of designation.
- (b) *Design guidelines.* The director shall determine whether the development of design guidelines to interpret the criteria in section 18.58.180 "General standards for certificates of appropriateness," are needed to address unique or special conditions in the proposed historic district. If the development of district specific design guidelines is determined to be needed:
 1. The director shall propose draft design guidelines for the review and comment of the board, the city council and the public, including the owners located within the proposed district.
 2. The draft design guidelines shall be presented at a minimum of one public meeting with the owners within the proposed district to provide an opportunity for public comment. This meeting shall occur prior to mailing a questionnaire as

required in paragraph (c) of this section and prior to the board designation public hearing as set forth in section 18.58.080, "Historic preservation board designation hearing." Notification of the meeting shall be sent by first class mail to the applicant and all owners within the proposed district stating the date, time and location of the meeting no less than 14 days prior to the meeting.

3. The guidelines shall be presented at the board designation public hearing.
 4. If the city council adopts the ordinance designating the district, the design guidelines shall be adopted subsequent to designation pursuant to section 18.58.250 "Board and director authorized to adopt rules and design guidelines." If deemed appropriate, the director may propose new or amended design guidelines in accordance with the procedures in this subsection (1)(b).
- (c) **Questionnaire.** Following the completion of the steps described in paragraph (1)(a) and subparagraphs (1)(b)(1) and (1)(b)(2) of this section, for purposes of measuring owner opinion the director shall send a questionnaire to each owner within the proposed historic district by first class mail at least 28 days prior to the board designation public hearing as set forth in section 18.58.080 "Historic preservation board designation hearing." If district specific design guidelines have been drafted, a copy shall be included with the questionnaire.
1. The questionnaire shall be printed on Community Development Division letterhead, and to ensure no duplicate responses are received, shall require the respondents to list their name, mailing address and property address within the district if different from the mailing address. This identifying information shall

be separated from each response upon receipt by the Community Development Division in order to allow responses to remain anonymous. The questionnaire shall ask the owner to indicate support, objection or no opinion regarding the designation, and allow room for general comments on the proposed district and any draft district specific design guidelines. The owner shall have a minimum 21 days from the postmarked date to respond. Only responses received by 5:00 p.m. seven days prior to the board designation public hearing shall be included in the official results.

2. A copy of all responses received prior to the questionnaire deadline shall be included in the board and city council record as part of any public hearing to consider the application; however, the results of the questionnaires shall not be determinative in deciding an application.

(2) *Omission or defect in the public process.* No minor omission or defect in the public process described in this section shall be deemed to impair the validity of the proceedings to consider the designation application. If at or prior to the public hearing an omission or defect is brought to the attention of the board or city council, it shall determine whether the omission or defect impairs or has impaired an owner's ability to provide an opinion, upon which finding it shall continue the hearing for at least ten days. Any omission or defect in the public process described in this section that is not brought to the attention of the board or city council or that the board or council find did not impair an owner's ability to participate in the hearing, shall not affect the validity of the designation proceedings.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.080 Historic preservation board designation hearing.

(1) *Designation hearing.* After completion of the steps required in sections 18.58.050, "Procedure for initiation of site/landmark designa-

tion," or sections 18.58.060, "Procedure for initiation of historic district designation," and 18.58.070, "Public process for historic districts," the director shall promptly refer to the board any application for designation. A quasi-judicial public hearing shall be held by the board in accordance with any applicable board and commission procedures adopted by city council, supplemental rules of procedure adopted by the board, and Chapter 2.35—Administrative hearing procedures. The board shall review the application with respect to:

- (a) The criteria in section 18.58.040, "Eligibility criteria;" and
- (b) The effect of the designation upon the surrounding neighborhood; and
- (c) Historic preservation policy and such other planning considerations, such as consistency with the comprehensive plan, as may be relevant to the proposed designation.

(2) *Notice of hearing.* The department shall provide notice of the designation hearing as follows:

- (a) *Mail.* The department shall provide mail notice as described in section 18.10.040.11, except the mailed notice need only be provided to all owners within the boundaries of the proposed designation instead of utilizing the mail radius.
- (b) *Posting.* The department shall provide posted notice as described in section 18.10.040.11. For proposed historic districts, the postings shall include a minimum of one posting per block face within the proposed boundaries.
- (c) *Electronic.* The department shall provide electronic published notice as described in section 18.10.040.11.

(3) *Purpose of notice.* The purpose of the notice provided in this subsection is to reasonably inform owners within the proposed boundaries of a designation application, but no minor omission or defect in the notice shall impair the validity of the proceedings. If at or prior to the public hearing an omission or defect in the notice

is brought to the attention of the board, it shall determine whether the omission or defect has impaired an owner's ability to participate in the public hearing, upon which finding it shall continue the hearing on the designation for at least 14 days. Any omission or defect in the notice that is not brought to the board's attention or that the board finds did not impair an owner's ability to participate in the hearing shall not affect the validity of the proceedings.

(4) *Findings and recommendations of the board.* The board shall adopt a resolution within 70 days of the hearing recommending approval, approval with modifications, or denial of any application, but no application may be extended beyond the boundaries of the land described in the original application unless the notice and hearing process is repeated for the enlarged boundaries. The board shall set forth in its resolution the findings of fact that constitute the basis for its recommendation, giving due consideration to the opinions of owners in the proposed designation. The board's resolution and recommendation shall be transmitted to city council, which shall proceed as described in section 18.58.090.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.090 City council designation hearing.

(1) *City council action.* The board's resolution and recommendation shall be provided to city council. Within 70 days of receipt, city council shall hold a public hearing on the proposed designation in accordance with the procedures and based upon the criteria set forth in subsection 18.58.080(1). Notice of the hearing shall be provided as described in subsection 18.58.080(2).

(2) *Findings.* Within 45 days after the close of the hearing prescribed by subsection (1) of this section, unless otherwise mutually agreed upon by the city council and the applicant, the city council shall adopt findings and conclusions and approve by ordinance, modify and approve by ordinance, or disapprove by resolution the proposed designation. The findings and conclusions shall address whether the designation

meets the purposes and standards in section 18.58.040, "Eligibility criteria" and section 18.58.010, "Purpose and intent."

(3) *Ordinance designating landmark or district.* In each ordinance designating a designated property, the city council shall include a description of the characteristics justifying the designation, a description of the particular features that should be preserved, and the location and boundaries of the designated property. City council may also identify in the ordinance any alterations that would have a significant impact upon or be potentially detrimental to the designated property.

(4) *Notice of designation.* When the city council has designated a designated property, the director shall promptly notify the owners of the property included therein, including a letter outlining the reasons for such designation and the obligations or restrictions created by such district designation. A copy of the designating ordinance shall be recorded in the office of the Jefferson County Clerk and Recorder.
(Ord. No. 2290, § 2, 3-10-2026)

18.58.100 Limitation on resubmission and reconsideration of proposed designation.

Whenever the board or city council denies a proposed designation, no person shall submit an application that is the same or substantially the same for at least one year from the effective date of the final action on the original proposal.
(Ord. No. 2290, § 2, 3-10-2026)

18.58.110 Amendment of designation.

An existing designated property may be amended to add property under the procedures prescribed by sections 18.58.050 through 18.58.090 for initial designations.
(Ord. No. 2290, § 2, 3-10-2026)

18.58.120 Revocation of designation.

(1) *Procedure.* City council may revoke a designation in accordance with the procedures described in this section if the applicant

demonstrates that the property or historic district no longer meets the purposes and standards of sections 18.58.010 and 18.58.040.

(2) *Applicants.* The following people may apply for revocation of a designation:

- (a) *Historic site or historic landmark.* The owner or all owners, if more than one.
- (b) *Entire historic district.* A majority of owners within the existing district.
- (c) *Portion of historic district (including an individual property).* The owner or all owners, if more than one, of the property proposed to be removed from the district.

(3) *Staff review.* After receipt of the application, the director shall determine if the application is sufficiently complete to present the request to the board. As the applicant has the burden of proof, applications shall contain documentation, including but not limited to detailed photographs of the property and a written explanation regarding how the property meets the standards for revocation of designation. Applications deemed incomplete shall be returned to the applicant within 28 days with a request for additional information. No further action will be taken until the applicant has provided the requested information. If the application is deemed complete, the application shall continue to the designation hearing process described in section 18.58.080, Historic preservation board designation hearing, and subject to sections 18.58.900, 18.58.100, and 18.58.110, as needed. Applicable processes and procedures may be adjusted as necessary to accommodate the differences between a revocation and an initial application for designation.

(4) *Burden of proof.* While other decisions under this chapter are subject to the burden of proof of the preponderance of the evidence, at any hearing upon an application for revocation, clear and convincing evidence shall be the burden of proof for applications to revoke a designation. For properties within a historic district, the applicant must show that the property is noncontributing to the district. Alternatively, for properties within historic districts or individual sites and landmarks, the applicant must show that the property has experienced a significant

loss of integrity such that it is no longer able to convey its historic significance as described in the adopting ordinance, or documents associated with the adopting ordinance such as board resolutions and council packet materials. Revocation of the designation of a portion of a designated property or district shall only be approved if the applicant demonstrates that the revocation will not adversely impact the integrity of the remainder of the designated property or district and that the remainder will still meet the purposes and standards prescribed by sections 18.58.010 and 18.58.040.

(5) *Recordation.* Whenever a revocation ordinance is final, the director shall promptly notify the owners and a copy shall be recorded with the Jefferson Clerk and Recorder. (Ord. No. 2290, § 2, 3-10-2026)

18.58.130 Certificates of appropriateness required.

(1) *Designated properties.* No person shall carry out or permit to be carried out any work on a designated property, or a property for which a designation application is pending, without first obtaining a certificate of appropriateness, including any work upon any landscape features, including, without limitation, any deck, patio, fence, wall, berm, garden structure, water feature, exterior lighting, curb cut, driveway, replacement of sod with a hard surface, or any landscaping that has the potential for damaging the designated property.

(2) *Commercial buildings.* No person shall carry out or permit to be carried out any work on a commercial building 50 years of age or older and located within the downtown area as defined in Appendix A-1.1 (excluding demolitions) without first obtaining a certificate of appropriateness. Demolitions of such commercial buildings are not regulated by this chapter, unless they are also a designated property.

(3) *Permits required.* In addition to the requirements set forth in subsections (1) and (2) of this section, applicants must also obtain all necessary permits for the proposed work under title 18 as well as any other permits required by the Golden Municipal Code.

(4) *Permit referral for existing and pending historic resources.* The director shall maintain a current record of all designated properties and pending designations. If the building division receives an application for a permit to carry out work on a designated property or on a property for which designation proceedings are pending, or to carry out work upon a commercial building 50 years of age or older, the building division shall promptly forward such permit application to the community development department.

(5) *Application review for certificate of appropriateness compliance.* The director shall review any permit application the director receives to determine whether a certificate of appropriateness for the work proposed in the permit application has been issued and whether the permit application conforms to the certificate. If a certificate has been issued on the permit application and the proposed work conforms thereto, the director shall refer the permit application to the building department, which shall process it without further reference to this chapter. If no certificate has been issued, or if in the sole judgment of the director the permit application does not conform to the certificate, the director shall disapprove the permit application and shall not issue it until a certificate has been issued and the permit application conforms thereto.

(6) *Ordinary maintenance.* Nothing in this chapter shall be construed to prevent the ordinary maintenance of any exterior elements of any historic resource. (Ord. No. 2290, § 2, 3-10-2026)

18.58.140 Certificate of appropriateness application.

An owner of any property for which a certificate of appropriateness is required under section 18.58.130 shall apply to the director for a certificate of appropriateness on forms prescribed by the director.

(1) *General application requirements.* Such forms shall include all information that the director determines is necessary to consider the application, including, without limitation, a description of the proposal in narrative form; photographs

of the existing condition; and site plans, specifications and elevations showing the proposed exterior appearance, with color, texture, materials and architectural design and detail.

(2) *Specific application requirements by property type.*

- (a) *Historic landmarks and historic sites.* Applications that include demolition shall include a historic structure assessment or a structural engineering report sealed by a professional engineer that describes the condition of the property, or an archeological assessment.
- (b) *Properties in historic districts and commercial buildings over 50 years old.* Applications for certificates of appropriateness shall include a detailed architectural analysis of the existing buildings such as an Architectural Inventory Form or a historic structure assessment.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.150 Administrative review of application for certificate of appropriateness.

(1) *Director review.* The director shall review all certificate of appropriateness applications and determine within 14 days after a complete application is filed whether the proposed work qualifies as minor work.

(2) *Criteria.* The director may approve certificates of appropriateness for minor work for the following kinds of work upon a finding that the proposal would not affect the historic or architectural merit of a historic resource. In making such determination, the director shall consider, without limitation, the impact on the appearance of the historic resource from the public right-of-way, the reversibility of the proposed work, and whether the work affects contributing property or properties.

- (a) Additions of less than 25 percent gross floor area which are not visible from the public right-of-way and are not impacting the primary façade.

- (b) Window or door repairs or replacements.
- (c) Additions of or modification to egress windows.
- (d) Installation, repair, or replacement of mechanical equipment.
- (e) Installation, repair, or replacement of electrical equipment including light fixtures, solar panels and other common electrical features.
- (f) Installation, repair, or replacement of plumbing equipment.
- (g) Roof repair or replacement.
- (h) General exterior repair or maintenance to minor building features such as chimneys, brackets, cornices and friezes.
- (i) Exterior paint, except for the painting of brick or similar materials that would be harmed by the application of paint.
- (j) A new fence or wall or repair or maintenance of a fence or wall.
- (k) Installation, repair, or replacement of a patio, deck, or accessory building of less than 200 square feet.
- (l) Work of a similar scale and impact which would not create a significant impact or potential detriment, as determined by the director.

(3) *Referral to the board.* If the director determines that the proposed work does not qualify as minor work, or otherwise would create a significant impact or potential detriment, the director shall refer the application to the board for a public hearing and shall promptly notify the applicant of the referral.

(4) *Public hearing required.* Section (1) notwithstanding, the board shall hold a public hearing on all applications for certificates of appropriateness for new construction, relocation or demolition of a designated property.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.160 Certificate of appropriateness hearing.

(1) *Public hearing.* The board shall hold a quasi-judicial public hearing on an application for a certificate of appropriateness, as prescribed by section 18.58.150, "Administrative review of application for certificate of appropriateness," within 70 days after an application is certified as complete by the director. The hearing shall be in accordance with any board and commission procedures adopted by city council, supplemental rules of procedure adopted by the board, and Chapter 2.35—Administrative hearing procedures.

(2) *Notice of hearing.* The department shall provide notice of the hearing as described in section 18.10.030.

(3) *Findings and conclusions.* Within 70 days after the hearing date first set, unless otherwise mutually agreed upon by the board and applicant, the board shall adopt written findings and conclusions in a resolution in accordance with the standards for each kind of certificate of appropriateness as set forth below:

- (a) *18.58.190.* Standards for certificate of appropriateness for historic landmarks.
- (b) *18.58.200.* Standards for certificates of appropriateness for historic sites, historic districts and commercial buildings.
- (c) *18.58.210.* Standards for certificates of appropriateness for demolition within historic districts.
- (d) *18.58.220.* Standards for certificates of appropriateness for demolition of historic sites.

(4) When relevant to any certificate of appropriateness, the board shall consider the economic feasibility of alternatives, incorporation of energy-efficient design and enhanced access for the disabled.

(5) *Contributing status.* The status of a property as contributing or non-contributing may be established by the ordinance creating a district, or by adopted design guidelines, regulations, resolutions, or context statements. Once established, the status as contributing or non-contributing shall be applicable in future deci-

sions, but the board may change the status of a property based on the preponderance of the evidence at any hearing.

(6) *Record of demolished and moved properties.* Prior to the issuance of a permit for demolition or relocation, the director or the board may require the applicant to provide information about the property, including, without limitation, the date of original construction, significant events and occupants, architectural features and a description of the building through photographs, plans and maps. The director shall determine where the documentation is to be deposited. (Ord. No. 2290, § 2, 3-10-2026)

18.58.170 Expiration, extension and denial of certificates of appropriateness.

(1) *Expiration and extensions for certificates of appropriateness.* A certificate of appropriateness shall remain valid in accordance with the following:

- (a) *Expiration period.* An approved certificate will be valid for purposes of applying for a building permit for a period not to exceed one year from the date of issuance of the certificate. A certificate shall expire if a building permit has not been applied for within one year from the date such certificate is approved. The director may approve up to a one-year extension of the certificate on written request by the applicant showing good cause as to why additional time is necessary. If a certificate expires, a new certificate shall be first obtained before an applicant may apply for a building permit.
- (2) *Denial of certificate of appropriateness—subsequent application.* If the board or director denies an application for a certificate of appropriateness for a historic landmark, no person may submit a subsequent application that is substantially similar to the original application within one year from the date of the final action upon the earlier application.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.180 General standards for certificates of appropriateness.

In making determinations regarding certificates of appropriateness, the board shall consider whether:

- (1) The proposed work preserves, enhances or restores and does not damage or destroy the exterior architectural features of the historic resource;
- (2) The proposed work does not adversely affect the special character or special historical, architectural or aesthetic interest or value of the historic resource;
- (3) The architectural style, arrangement, texture, color, arrangement of color and materials used on existing and proposed structures are compatible with the character of the existing historic resource;
- (4) The proposed work complies with any applicable historic design guidelines adopted by the city. The board may also consider relevant standards and guidelines in title 18, such as Appendix A, Division A-1 Downtown Standards and Guidelines;
- (5) The proposed work complies with the Secretary of the Interior's Standards for the Treatment of Historic Properties, including the Standards for Rehabilitation; and
- (6) *For non-contributing properties within a historic district:*
 - (a) The proposed work is compatible with the property's current design, materials, features, size, scale and proportion, and massing; or
 - (b) The proposed work is compatible with the historic district's design, materials, features, size, scale and proportion, and massing.
- (7) *For infill construction within historic districts:*
 - (a) The proposed work is differentiated from the contributing properties but also compatible with the historic materials, features, size, scale and

proportion, and massing to protect the integrity of the historic district and its environment.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.190 Standards for certificates of appropriateness for historic landmarks.

(1) *Binding decisions.* With respect to certificates of appropriateness for historic landmarks, whether for work or demolitions, the board's decisions are binding and are not merely recommendations. As such, the board may either approve, deny, or approve with conditions reasonably necessary to achieve compliance with the standards in section 18.58.180, General standards for certificates of appropriateness. Following the completion of the board's evaluation of the proposed work, the board shall record its findings by resolution.

(2) The board shall not approve a certificate of appropriateness unless the application meets the standards in section 18.58.180.

(3) The director shall issue the certificate of appropriateness for a historic landmark if an application has been approved by the board.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.200 Standards for certificates of appropriateness for alteration of historic sites, historic districts and commercial buildings.

(1) *Recommendations.* With respect to the alteration of historic sites, properties within historic districts, and commercial buildings at least 50 years in age, the board shall only have the power to review the proposed work and to recommend changes to the proposal to encourage compliance with the standards in section 18.58.180.

(2) *Applicant acceptance of recommendations.* At the hearing, the applicant may choose to accept any of the board's recommendations on the record, which will then become binding and enforceable conditions. Such commitments will be transmitted to the city building official and will become conditions of the building permit for

the proposed work, unless such conditions are revised by means of a future certificate of appropriateness review.

(3) *Findings.* Following the completion of the board's evaluation of the proposed work, the board shall record its findings and recommendations by resolution and will specify any commitments made on the record by the applicant. Where the applicant is also seeking a state or federal tax incentive related to the work, the board shall include any findings necessary for a determination of eligibility. The board shall also make findings as to whether the proposed work is:

- (a) *Appropriate*—The application complies with section 18.58.180, General standards for certificates of appropriateness;
- (b) *Appropriate with recommendations*—The application complies with section 18.58.180, General standards for certificates of appropriateness, with accompanying recommendations; or
- (c) *Inappropriate*—The application does not comply with section 18.58.180, General standards for certificates of appropriateness.

(4) *Issuance.* The director shall issue the certificate of appropriateness for historic sites, properties within historic districts and commercial buildings upon the board's adoption of the resolution specified in this section.

(5) *Material deviations from reviewed plan.* While the board's authority with respect to alterations of historic sites, properties within historic districts, and commercial buildings at least 50 years in age is non-binding, board review of such work is required. As such, any material deviation from the plans reviewed by the board with the application shall require a revised certificate of appropriateness. (Ord. No. 2290, § 2, 3-10-2026)

18.58.210 Certificates of appropriateness for demolition within historic districts.

(1) *Stay of demolition.* With respect to the demolition of properties within historic districts, the board has the authority to review the applica-

tion and may impose a stay of demolition for up to 190 days as described in section 18.58.230 if the board finds that:

- (a) The property is a contributing property within the district; or
- (b) There is probable cause to believe that the property is individually eligible for designation as a historic site based on the criteria in section 18.58.040, Eligibility criteria.

(2) *Contributing status.* The status of the property as contributing or non-contributing as established by the designation ordinance, adopted guidelines, context statements, or resolutions shall be presumptively applicable, but the board may change such status based on the preponderance of the evidence.

(3) *Board action on demolition and certificate issuance.* If the board does not impose the stay of demolition based on the criteria in subsection (a) above, the board shall adopt a resolution with a finding of "appropriate" with respect to the demolition and shall continue with the process outlined in section 18.58.200, Standards for certificates of appropriateness for alteration of historic sites, historic districts and commercial buildings, which may be performed simultaneously with the demolition review. The director shall issue the certificate of appropriateness upon the board's adoption of the applicable resolution. If the board does impose the stay of demolition, the director shall follow the process specified in section 18.58.230.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.220 Certificates of appropriateness for demolition of historic sites.

With respect to certificates of appropriateness for the demolition of historic sites, because such a demolition presumptively violates the standards of 18.58.180, the board shall impose the stay of demolition described in section 18.58.230. If the owner believes that the historic site no longer meets the criteria for designation, the owner may apply for revocation of designation as set forth in section 18.58.120.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.230 Stay of demolition.

(1) *Applicability.* The stay of demolition is only applicable to demolitions of historic sites and properties within historic districts.

(2) *Imposition of stay.* If appropriate under the standards of section 18.58.220, Certificates of appropriateness for demolition of historic sites, or section 18.58.210, Certificates of appropriateness for demolition within historic districts, the board may impose a stay suspending action on a demolition application for a period not to exceed 190 days from the date the permit application was accepted by the director.

(3) *Actions during stay.* During the period of a stay, the board may take any action that it deems necessary and consistent with this chapter to preserve the building or structure, which may involve interaction with the applicant, including without limitation:

- (a) Consulting with civic groups, public agencies and interested members of the public;
- (b) Recommending acquisition of the property by private or public bodies or agencies;
- (c) Exploring the possibility of moving buildings or structures that would otherwise be demolished;
- (d) Salvaging building materials;
- (e) Exploring modification of the project to preserve the property;
- (f) Exploring alternative uses of the property which would preserve it; or
- (g) Board appointment of an ad hoc committee of two board members to pursue the actions above.

(4) *Outcome of stay.* Because stays are used for properties over which the board only has non-binding authority, it is ultimately the owner's decision whether to accept any alternative plan for the structure. If during the period of the stay the owner has neither withdrawn the application for demolition nor modified the application to avoid demolition, the director shall issue the certificate of appropriateness upon expiration of the stay with a finding of "inappropriate." (Ord. No. 2290, § 2, 3-10-2026)

18.58.240 Unsafe or dangerous conditions exempted.

In any case where the building official, fire department or any other duly authorized officer or agency of the city shall order or direct the construction, reconstruction, remodeling, repair, or demolition of any property for the purpose of remedying conditions immediately dangerous to life, health or property, it shall not be a violation of this chapter for any person to comply with such order or directive without approval otherwise required by this chapter. Any such department, agency or officer shall give the board as early notice as practicable of the proposed or actual issuance of any such order or directive.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.250 Board and director authorized to adopt rules and design guidelines.

(1) *Rules of procedure.* The board shall operate pursuant to the rules of procedure adopted by city council for boards, commissions, and authorities, as may be amended from time to time. By majority vote, the board may adopt supplementary rules of procedure for topics not covered by the city council adopted rules of procedure, provided that the supplemental rules do not conflict with the council adopted rules. The rules of procedure shall be posted and available to the public.

(2) *Guidelines.* The board is granted the authority to promulgate guidelines not inconsistent with this section and this chapter creating more specific architectural and design review standards and criteria and upon approval by the city council these guidelines shall also be considered as part of the board's certificate of appropriateness review of any work.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.260 Enforcement, remedies, and penalties.

(1) *Violations.* No person shall violate or permit to be violated any of the requirements of this chapter or the requirements of a certificate of appropriateness issued pursuant to this chapter, including any commitments made by the applicant on the record at the hearing and reflected in a

subsequently adopted resolution by the board. Each day a violation exists or continues shall constitute a separate and distinct violation for which a separate citation may be issued.

(2) *Penalties and remedies.* Without limiting any other applicable legal remedies, violations of this chapter are punishable as provided in section 1.01.110—Violations—Penalties and 8.25.010—Administrative citations, and may be subject to the following additional remedies:

- (a) For work performed in violation of this chapter, the director or building official may issue a stop work order.
- (b) If work is performed that materially differs from a completed certificate of appropriateness, the director may order the owner to submit a revised application to obtain a revised certificate of appropriateness for the new work, or in the alternative the director may submit a report to the board, which may issue a revised certificate of appropriateness regardless of whether the owner submits a revised application.
- (c) If a building permit application proposes work for which no certificate of appropriateness exists, or which does not conform to the requirements of an existing certificate of appropriateness, the building permit may be denied, revoked, or stopped.
- (d) If any historic landmark is demolished or has work done upon it in violation of this chapter, the director may order the historic landmark to be returned to its condition prior to such unlawful work, including ordering the reconstruction to replicate as closely as possible the condition of the historic landmark prior to the work.
- (e) If any building, structure, or object is constructed on a historic landmark, the board may order any such building, structure, or object to be removed or deconstructed.
- (f) In addition to any other remedies prescribed by this chapter or by this code or other ordinance of the city, the city

attorney, acting on behalf of the city council, may maintain an action for an injunction to restrain or correct any violation of this chapter.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.270 Variances and adjustments.

Neither the director nor any other city regulatory body such as the planning commission shall act on any adjustment, variance or exception pursuant to the Golden Municipal Code pertaining to any historic resource prior to any required certificate of appropriateness review by the board or, if no certificate of appropriateness is required, without first consulting and obtaining the written report of the director or board.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.280 Appeals.

Any person who is entitled to mailed notice of the hearing that resulted in the decision in question may appeal decisions of the board in accordance with section 18.10.040.15.

(Ord. No. 2290, § 2, 3-10-2026)

18.58.290 Incentives.

If an economic incentive for exterior work, as provided in chapter 18.60 of the Code, is requested from the city regarding a building or structure that is more than 50 years old, the board shall be consulted in evaluating and setting the terms of the incentive. The board shall evaluate any alteration to properties under such consideration for an incentive for conformance to the standards and criteria of this chapter and the U.S. Department of Interior as set forth in section 18.58.200.

(Ord. No. 2290, § 2, 3-10-2026)

Chapter 18.60

ECONOMIC INCENTIVES PROGRAM

18.60.010 Legislative intent.

There is hereby established in the City of Golden, an incentive program for commercial, office and manufacturing development, expansion and upgrade, for purposes of the economic revitalization of the community, and the

maintenance and enhancement of the business and employment opportunities of the community. This chapter is intended to implement, apply, interpret, and comply with the provisions of chapter XI.V of the City of Golden Charter pertaining to restrictions on certain subsidies and incentives for development.

(Ord. 1678, 2004; Ord. 1149, § 2, 1992; Ord. 1119, § 2, 1991)

18.60.020 Definitions.

For the purposes of this chapter and for the purpose of interpreting chapter XI.V of the City of Golden Charter, the following definitions shall apply:

Development subsidies or incentive: Subsidies and incentives authorized and paid for or financed by the city to encourage the expansion, retention, construction, or replacement of a specified business or a specified commercial, industrial or residential development. Development subsidies or incentives may include, but are not limited to, the following:

- (a) Tax waivers, credits, or refunds;
- (b) Direct monetary payments and rebates, including those based upon city sales, use or property tax collections;
- (c) Waivers or deferments of development fees including, but not limited to water and sewer tap fees, building permit fees, impact fees, land dedication requirements or fees-in-lieu thereof;
- (d) Labor or materials provided by the city for construction or demolition of privately owned improvements on private property;
- (e) Construction or enhancement by the city of publicly owned improvements, such as public streets, sidewalks and utility mains, but only if the need for such public improvements is uniquely, directly and entirely necessitated by reason of a particular business or development. Construction or enhancement of public improvements for the benefit of the city, community or neighborhood, as a whole, shall not be deemed a development subsidy or incentive with the meaning of

Chapter XI.V of the City of Golden Charter, or this chapter of the Golden Municipal Code, even if such improvements result in an incidental benefit to a specific business or development;

- (f) Any interest in real estate transferred by the city for less than fair market value.

Subsidies and incentives authorized or paid for by the city pursuant to a program established by the city where the primary purpose of such program is other than the encouragement of expansion, retention, construction or replacement of commercial, industrial or residential development (such as, by way of example only, resource conservation or social welfare enhancements) shall not be considered a "development subsidy or incentive", as defined herein, even if an incidental result of such program is beneficial to development.

Economic incentive development agreement: An agreement between the City of Golden and a single recipient to promote economic development through awarding the recipient development subsidies or incentives on a per project basis. Subsequent assignment of the benefits of an economic incentive agreement to multiple parties will not impact the status of the agreement as an economic incentive development agreement.

Economic incentive development program: A program established by City of Golden for commercial, office, and manufacturing development, expansion, and upgrade, for purposes of economic revitalization of the community, and the maintenance and enhancement of the business and employment opportunities of the community. Such a program will generally involve more than one recipient who may qualify for development incentives or subsidies.

Recipient: Any single entity or individual receiving a development subsidies or incentives in connection with the expansion, retention, construction, or replacement of a business or any commercial, industrial, or residential development at a specifically identifiable property.

Specifically identifiable property: A parcel of property uniquely described in the records of the

Jefferson County Clerk and Recorder with an associated distinct parcel or schedule number, separate from and unconnected to any other property owned, developed, or managed by a recipient.
(Ord. 1678, 2004)

18.60.030 City manager authorization and approval.

Subject to compliance with the Golden Municipal Charter requirements and limitations, established policy and regulation; and upon consideration of business plans, perform a revenue enhancement analysis, level of job creation/retention, and physical improvements to the appearance or historic character of the property, and any recommendations of the economic development commission, and further subject to city council's right to call up and rescind agreements as provided in subsection (8) below, the city manager is authorized to negotiate and enter into on behalf of the city economic development incentive agreements which:

- (1) May be considered for new, expanded or upgraded development of retail, office, service, and manufacturing/distribution projects; and
- (2) Shall not exceed the anticipated annual revenue enhancement to the City of Golden during the term for which inducements are offered. Such annual revenue enhancement analysis shall consider direct revenues generated by development related charges, sales and use tax and property tax, which shall be diminished by previously established levels of sales tax and property tax for subject property, by anticipated detrimental effect upon sales and property tax currently generated elsewhere in the city; and
- (3) Shall be for a specified time limit for both the duration of incentive and the maximum time period to exercise the agreement; and
- (4) Shall, to the degree reasonably possible, avoid any substantial delay between the

time when an incentive is received and the time when city revenues are realized; and

- (5) May consist of one or more of the following development subsidies or incentives:
 - (a) Reimbursement of a part or all of incremental local property tax for up to seven years, provided however, that any reimbursement based upon revenues generated within the Golden Urban Renewal Authority boundaries shall not impact the incremental revenues pledged by the city to the authority.
 - (b) Reimbursement of a portion of incremental local sales and use taxes, except building materials use tax, for up to five years; said portion reimbursed to be determined by a fiscal impact analysis when warranted as determined by the city manager, or in the absence of a fiscal impact analysis not to exceed 70 percent of the incremental revenues when there is an existing base of sales and use tax collections, and not to exceed 50 percent of the incremental revenues when there is no existing base, provided, however, that the sales and use tax capital improvement fund or the revenues pledged thereto shall not be used for any reimbursement. Furthermore any reimbursement based upon revenues generated within the Golden Urban Renewal Authority area boundaries shall not impact the incremental tax revenues pledged by the city to the authority.
 - (c) Waiver of all or part of the development application fees.
 - (d) Waiver or deferment, or a combination thereof, of all or a portion of development charges or fees which would otherwise be payable to the city by reason of the development. The development charges and/or fees which are subject to this section

shall include, by way of example, public land dedication requirements, cash in lieu of land dedication requirements, and charges necessitated by connection to the city water and sewer systems. Any amounts deferred under the provisions of this paragraph shall not be deferred longer than four years. Any deferred and unpaid amounts in conjunction with the provision of water and sewer services shall constitute a perpetual and continuing lien upon the property to which the water and sanitary sewer services are provided. Such lien shall be prior and superior to all other liens, claims, titles and encumbrances, whether prior in time or not, except liens for general taxes; provided, however, that the city may, in its sole discretion, subordinate such lien for the purpose of effecting development or construction on such property. The city manager may require additional security for payment of any amounts deferred under this section. In addition to other remedies as may be available to the city for non-payment of any water or sewer connection charges deferred pursuant to this section, the city may discontinue water service to the subject property following the procedures as are provided for in chapter 13.08 of the Golden Municipal Code.

- (e) A credit for all or part of building materials use tax, provided, however, that the sales and use tax capital improvement fund or the revenues pledged thereto shall not be used for any credit.
- (f) Construction or enhancement of public improvements uniquely and directly necessitated by reason of the business or development.
- (6) May address, or otherwise provide for, the construction or enhancement by the

city of public improvements that benefit the city, community or neighborhood as a whole.

- (7) Agreements incorporating such incentives shall be reviewed and approved by the city attorney as to legality prior to approval by the city manager.
- (8) The city council shall be immediately notified of economic incentive development agreements, and the anticipated value and benefit thereof, approved by the city manager under the authority of this section. If within 15 days of notification there has been no call up for city council review and rescission of the agreement by council action, the agreement shall be final.

(Ord. 1678, 2004; Ord. 1149, §§ 1, 2, 1992; Ord. 1119, § 3, 1991)

18.60.040 City council authorized agreements.

Notwithstanding the provisions of section 18.60.030 herein, the city council may, by resolution, affirmatively act to authorize economic development incentive agreements which are not subject to the specific limitations contained in section 18.60.030, and economic development incentive development programs provided, that such agreements:

- (1) Comply with all relevant provisions of the City of Golden Charter and Golden Municipal Code, including a favorable vote by the electors if required under the Charter or Code; and
- (2) Are for a specified time limit for both the duration of the incentive and the time period during which the agreement may be exercised or program benefits realized; and
- (3) Have a stated maximum dollar amount of the benefit or incentive.

(Ord. 1678, 2004)

18.60.050 Charter limitations.

- (1) *Voter approval.* Pursuant to Chapter XLV of the City of Golden Charter, any economic development incentive agreement or program

that exceeds the limits set forth in this section must be authorized by approval by the electors of the City of Golden at a regular or special election. The reasonable costs of such a regular or special election attributable to the economic development incentive agreement shall be paid by the proposed recipient, who shall post a bond or other security as may be approved by city council, to ensure such payment. Upon authorization by a majority of electors, city council, in its sole discretion, may approve or disapprove the economic development incentive agreement by resolution. The following economic development incentives will require voter approval:

- (a) Except those agreements described in subsection (1)(b) of this section, any separate economic development incentive agreement wherein the maximum aggregate amount of the subsidies or incentives attributable to any individual recipient for a specifically identified property or project may exceed \$44,000.00 over the entire term of the agreement.
 - (b) Any separate economic development incentive agreement wherein the maximum aggregate amount of the subsidies or incentives attributable to any individual recipient for a specifically identified property or project may exceed \$177,000.00 over the term of the agreement if:
 - 1. The subject matter of the economic development incentive agreement relates to the construction or development of senior housing developments or low income housing developments that qualifies as such by any state or federal law or regulation; or
 - 2. If the subject matter of the economic development incentive agreement pertains to the renovation or restoration of properties designated as historic sites, structures or included within a historic district as described in chapter 18.58 of the Golden Municipal Code.
 - (c) Any economic development incentive program instituted by the City of Golden wherein the maximum aggregate amount of development subsidies or incentives attributable to any qualified recipient in connection with the establishment, expansion, retention or replacement of a business, or commercial, industrial or residential development in a specifically identifiable property exceeds \$44,000.00 during the course of any three-consecutive-year period.
 - (d) The monetary amounts established in this subsection shall be calculated based upon the estimated cost to the City of Golden of such incentive or subsidy. In estimating such cost, any resulting benefit shall not be considered to reduce the cost.
 - (e) Pursuant to the authority in charter section 11.5.3 "Exceptions not requiring voter approval", the limitations on development incentives or subsidies shall be adjusted automatically for inflation on January 1, 2025, and on January 1 of each year thereafter. As used in this paragraph, "inflation" means the Colorado consumer price index or a similar index that is tied to the annual rate of inflation in the state or Denver-Golden area.
- (2) *Separate agreements.* For the purposes of this section and the Charter, an economic development incentive agreement shall be considered a separate agreement, with separate applications of the limitations contained in subsection (1) above, when all of the following criteria are met:
- (a) The economic development incentive agreement pertains to a parcel of property uniquely described in the records of the Jefferson County Clerk and Recorder with a distinct parcel and schedule number.
 - (b) The project that the agreement is benefiting is a distinct project, receiving a separate building permit.
 - (c) There has not been an economic incentive development agreement involving the same recipient and the same property within the previous three years.

(3) *Separate recipient of benefit.* For purposes of this section, a recipient of benefit under an economic development program shall be considered a separate recipient with separate applications of the limitations contained in subsection (1) above, whenever all of the following criteria are met:

- (a) The economic incentive development program benefit pertains to a parcel of property uniquely described in the records of the Jefferson County Clerk and Recorder with a distinct parcel and schedule number.
- (b) The project that the economic incentive development program is benefiting is a distinct project, receiving a separate building permit.
- (c) The recipient has not participated in the same economic incentive development program for the same property within the previous three years.

(4) *Separation of recipients to avoid voter approval prohibited.* The voter approval requirement of the City of Golden Home Rule Charter and as provided in subsection (1) above shall not be circumvented or otherwise avoided by the creation of separate entities as individual recipients for the purpose of lowering the threshold incentive or subsidy amounts.

(5) *[Posting required.]* Any economic development incentive agreement or program shall include the requirement that the recipient post a sign at the premises of the business or development benefiting from the incentive or subsidy for a period of five years from the approval of the agreement. The sign shall be posted in a conspicuous location for public viewing with at least two-inch high letters, thanking the taxpayers and stating the estimated dollar value of the agreement.
(Ord. No. 2239, § 2, 5-28-2024; Ord. 1678, 2004)

18.60.060 Negotiating and approving requirements.

In evaluating, negotiating, and approving development subsidies and incentives, the city council, and/or the city manager (as the case may be) will:

- (1) Consider the degree to which the proposed incentive or subsidy is needed to facilitate the new, expanded or upgraded development.
- (2) Consider the degree to which integral private sector parties (such as the applicant, landlord or property seller, and financial institutions) have made reasonable adjustments and efficiently negotiated to enhance project viability.
- (3) Consider the revenue enhancement potentials to the city.
- (4) Consider the potential impact and benefits to:
 - (a) Established community plans and policies/goals.
 - (b) Established water and sewer utilities and other community services and facilities.
 - (c) The extent to which the revenue enhancement had been previously anticipated and reflected in the annual budget, in which case the latitude of incentive shall be restricted to avoid unanticipated budgetary impact.

(Ord. 1678, 2004; Ord. 1149, § 2, 1992; Ord. 1119, § 4, 1991)

18.60.070 Coordination with Golden Urban Renewal Authority.

The board of commissioners of the Golden Urban Renewal Authority shall be consulted regarding coordination of incentives within the urban renewal authority area. Neither the provisions of this chapter, nor the provision of Chapter XLV of the Charter of the City of Golden shall apply to or restrict the Golden Urban Renewal

Authority from implementing its own programs and agreements relating to economic development.

(Ord. 1678, 2004; Ord. 1149, § 2, 1992; Ord. 1119, § 5, 1991)

18.60.080 Restriction.

No "vested property right" within the meaning of Title 24, Chapter 68 of the Colorado Revised Statutes, or other such similar property interests or rights shall be considered granted or impliedly conferred upon any person or entity by the programs described herein.

(Ord. 1678, 2004; Ord. 1149, § 2, 1992; Ord. 1119, § 6, 1991)

Chapter 18.62

RESERVED*

18.62.010—18.62.050 Reserved.

Chapter 18.64

Reserved†

18.64.010—18.64.040 Reserved.

Chapter 18.66

VESTED PROPERTY RIGHTS

18.66.010 Purpose.

The purpose of this chapter is to provide the procedures necessary to implement the provisions of Article 68 of Title 24, C.R.S., as amended. (Ord. 1477, 1999)

***Editor's note**—Sec. 3 of Ord. No. 2063, adopted Oct. 12, 2017, repealed chapter 18.62, which pertained to the economic development commission, consisted of sections 18.62.010—18.62.050, and derived from Ord. 1462, 1999; Ord. 1510, 2000; Ord. 1833, 2008; Ord. 1908, 2011; and Ord. 1959, 2013. User is directed to chapter 2.72 for provisions pertaining to the economic development commission.

†Editor's note—Ord. No. 2267, § 4, adopted May 5, 2025, repealed Ch. 18.64, which pertained to community marketing program and derived from Ord. 1908 § 2, adopted in 2011; Ord. No. 2063, § 5, adopted Oct. 12, 2017; and Ord. No. 1966, § 1, adopted Dec. 11, 2014.

18.66.020 Definitions.

As used in this chapter, unless the context otherwise requires:

Site specific development plan. "Site specific development plan" means only the following:

- (1) A final subdivision plat approved by city council in conformance with the requirements of title 17 of the Municipal Code; or
- (2) A final site development plan, when approved by both planning commission and city council, and in conformance with chapter 18.40 of the Golden Municipal Code, as well as any applicable provisions of a PUD official development plan, and/or other city codes and requirements.
- (3) The city council may by formal agreement with a property owner designate an approval other than those described above to serve as the site specific development plan approval for a specific project.

Vested property right. "Vested property right" means the right to undertake and complete the development and use of property under the terms and conditions of a site specific development plan.

(Ord. 1477, 1999)

18.66.025 Request for site specific development plan approval.

For those developments for which the applicant wishes the creation of vested rights, the applicant shall specifically request the approval by the city of the designated site specific development plan as a vested right. Such request shall be made in writing at least 30 days prior to the date that the approval is to be considered. Failure of the landowner to request such an approval renders the plan not a "site specific development plan" and no vested rights shall be deemed to have been created.

(Ord. 1477, 1999)

18.66.030 Notice and hearing.

No site specific development plan shall be approved until after a public hearing, preceded by written notice of such hearing. Such notice may, at the city's option be combined with the notice required by C.R.S. 31-23-304, as amended, for zoning regulations, or with any other required notice. At such hearing interested persons shall have an opportunity to be heard.
(Ord. 1477, 1999)

18.66.040 Approval—Effective date—Amendments.

A site specific development plan shall be deemed approved upon the effective date of the city council approval actions relating thereto, as set forth at section 18.66.030 above. In the event amendments to a site specific development are proposed and approved, the effective date of such amendments, for proposes of duration of a vested property right, shall be the date of the approval of the original site specific development plan, unless the city council specifically finds to the contrary and incorporates such finding in its approval of the amendment.
(Ord. 1477, 1999)

18.66.045 Period of vesting.

Unless otherwise specifically granted by city council, any vested property right conveyed by reason of compliance with this chapter shall expire and terminate three years after its initial creation.
(Ord. 1477, 1999)

18.66.050 Notice of approval.

Each map, plat, or site plan or other document constituting a site specific development plan shall contain the following language: "Approval of this plan may create a vested property right pursuant to Article 68 of Title 24 C.R.S., as amended." Failure to contain this statement shall invalidate the creation of the vested property right. In addition, a notice describing generally the type and intensity of use approved, the specific parcel or parcels of property affected and stating that a vested property right has been created shall be published once, not more than

14 days after approval of the site specific development plan, in a newspaper of general circulation with the city.
(Ord. 1477, 1999)

18.66.060 Payment of costs.

In addition to any and all other fees and charges imposed by this code, the applicant for approval of a site specific development plan shall pay the costs occasioned to the city as a result of the site specific development plan review, including publication of notices, public hearing and review costs. The application fee necessary to cover such costs is hereby imposed as a flat fee of \$500.00.
(Ord. 1477, 1999)

18.66.070 Other provisions unaffected.

Approval of a site specific development plan shall not constitute an exemption from or waiver of any other provisions of this code pertaining to the development and use of property.
(Ord. 1477, 1999)

18.66.080 Limitations.

Nothing in this chapter is intended to create any vested property right, but only to implement the provisions of Article 68 of Title 24, C.R.S., as amended. In the event of the repeal of said article or a judicial determination that said article is invalid or unconstitutional, this chapter shall be deemed to be repealed, and the provisions hereof no longer effective.
(Ord. 1477, 1999)

Chapter 18.70**RESIDENTIAL GROWTH MANAGEMENT*****18.70.010 Purpose.**

***Editor's note**—Ord. No. 2283, § 2(Exh. A), adopted December 9, 2025, repealed the former Ch. 18.70, §§ 18.70.010—18.70.130, and enacted a new Ch. 18.70 as set out herein. The former Ch. 18.70 pertained to similar subject matter and derived from Ord. 1314, adopted in 1996; Ord. 1338, adopted in 1997; Ord. 1360, adopted in 1997; Ord. 1691, §§ 1—4, adopted in 2005; Ord. 1839, §§ 1—6, adopted

C.R.S. § 29-20-104.2, (HB23-1255) preempts the people's Ordinance No. 95-01, enacted on November 7, 1995, which places limits on certain residential growth in the City of Golden to a maximum of a one-percent increase in dwelling units per year. HB23-1255 prohibits enforcement of any existing local governmental entity housing growth restriction that explicitly limits either the growth of the population in the local governmental entity's jurisdiction or the number of development permits or building permit applications for residential development or the residential component of any mixed use development submitted to, reviewed by, approved by, or issued by a governmental entity for any calendar or fiscal year.

This chapter 18.70 replaces the growth limitation with reasonable requirements to report the annual number of building permits issued for new dwelling units that would have otherwise been considered by chapter 18.70 (Ordinance No. 2203).

(Ord. No. 2283, § 2(Exh. A), 12-9-2025)

18.70.020 Annual report on new dwelling units.

(1) The community development department shall present city council with a report in the first quarter of the year in a form approved by the director with information for the previous calendar year that includes:

- (a) The total number of permits issued for new dwelling units;
- (b) The total number of permits issued for new dwelling units for single-household detached units;
- (c) The total number of permits issued for new dwelling units in a duplex;
- (d) The total number of permits issued for new dwelling units in a row house;
- (e) The total number of permits issued for new dwelling units in a multi-household building;

in 2009; Ord. 1945, §§ 1—3, adopted in 2013; Ord. No. 2088, §§ 1, 2, adopted Oct. 11, 2018; and Ord. No. 2203, §§ 2—13, adopted May 14, 2023.

- (f) The total number of permits issued for new detached accessory dwelling units;
 - (g) The total number of permits issued for new attached accessory dwelling units; and
 - (h) The report shall not include information that might have otherwise been reported or tracked as part of the administration of Ordinance No. 95-01 such as available allocations or lost or unused allocations.
- (Ord. No. 2283, § 2(Exh. A), 12-9-2025)

Chapter 18.80

AREAS AND ACTIVITIES OF STATE INTEREST

18.80.100 Introductory and general provisions.

18.80.105 Purpose and findings.

(1) The purpose of these provisions is to facilitate identification, designation, and administration of matters of state interest consistent with the statutory requirements and criteria set forth in C.R.S. 24-65.1-101 et seq., and Guidelines for Identification and Designation approved by the Colorado Land Use Commission, as well as to provide for certain inclusions in the City of Golden's comprehensive plan pursuant to C.R.S. 24-32-111.

(2) The city council finds that:

- (a) The notice and public hearing requirements of C.R.S. 24-65.1-404, have been followed;
- (b) These provisions are necessary because of the intensity of current and foreseeable development pressures on and within the jurisdiction;
- (c) These provisions were adopted after taking into consideration applicable guidelines adopted and issued by the Colorado Land Use Commission;
- (d) These provisions apply to the entire jurisdiction; and

- (e) These provisions interpret and apply to any provisions adopted for specific areas of state interest and specific activities of state interest which have been, or may be, designated by the city council.

(Ord. 1475, 1999)

18.80.110 Authority.

The provisions of this chapter are authorized by, inter alia, C.R.S. 24-65.1-101 et seq., 31-23-101 et seq., 29-20-101 et seq., 24-32-111, and Title 31, Article 15, and the Charter for the City of Golden.

(Ord. 1475, 1999)

18.80.115 Applicability.

These provisions shall apply to all proceedings concerning designation by the city council of any area or activity of state interest and any developments affecting any such area or activity of state interest so designated.

(Ord. 1475, 1999)

18.80.120 Interpretation with other enactments and plans.

(1) Whenever these provisions are found to be inconsistent with any other resolution, ordinance, code, regulation, other enactment or the comprehensive plan of the City of Golden, the enactment imposing the more restrictive standards or requirements shall control.

(2) In the event that these provisions are found to be less stringent than the statutory criteria for administration of matters of state interest set forth in C.R.S. 24-65.1-202—24-65.1-204., the statutory criteria shall control.

(3) Chapter 18.44 shall govern nonconforming uses, except as otherwise specifically provided in this chapter.
(Ord. 1475, 1999)

18.80.125 Maps.

(1) Each map referred to in any ordinance adopted by the city council designating or regulating a particular area or activity of state interest is deemed incorporated herein as if set out in full.

(2) Maps referred to in any such ordinance shall be filed with and be available for inspection at the office of the city clerk.
(Ord. 1475, 1999)

18.80.130 Duties of the administrator.

Unless otherwise specifically provided, it shall be the duty of the administrator to perform all functions set forth in this chapter.
(Ord. 1475, 1999)

18.80.140 Definitions.

The words and terms used in these provisions for administration of areas and activities of state interest shall have the meanings set forth below unless the context requires otherwise:

Administrator means the director of community and economic development who shall be responsible for the administration of designated matters of state interest within the City of Golden.

Comprehensive plan means the City of Golden comprehensive plan as it may be amended and supplemented from time to time.

Designation means the legal procedure specified by C.R.S. 24-65.1-101, et seq., carried out by the city council.

Development means any construction or activity which changes the basic character or the use of the land on which the construction or activity occurs.

Layman's description means a general, nonlegal description and the popular name, if any, of

the tract of land upon which the activity or development is to be conducted. The term "general description" means "layman's description."

Legal description means any description from which it is possible to locate accurately on the ground the boundaries of the land being described.

Matter of state interest means an area of state interest or an activity of state interest or both.

Newspaper of general circulation means the newspaper used by the County of Jefferson to provide legally required public notice in Jefferson County of zoning and land use actions.

Person means any individual, partnership, corporation, association, company, or other public or corporate body, including the federal government, and includes any political subdivision, agency, instrumentality, or corporation of the state.

Provision means both regulation and guideline as the terms are used in C.R.S. 24-65.1-101, et seq.

Receipt of application means the time at which a completed application is accepted by the city council.
(Ord. 1475, 1999)

18.80.200 Procedures for designating matters of state interest.

18.80.205 Planning commission recommendations.

(1) The planning commission may recommend to the city council designation of an area or activity of state interest. The planning commission's recommendation shall be made by resolution.

(2) In the event that designation of an area or activity of state interest is initiated by the city council, the land use commission, or court order pursuant to subsections 18.80.210(2)—(4) of this chapter, the city council may, in its discretion, refer all materials relating to the matter to be designated to the planning commission for review and recommendations.
(Ord. 1475, 1999)

18.80.210 Designation of matters of state interest.

Designations and amendments or revocations of designations may be initiated in four ways:

- (1) After the planning commission has recommended designating a matter of state interest as provided in section 18.80.205 of this chapter, the city council may designate such matter in accordance with the provisions of this section, the Charter for the City of Golden, and Title 31, Article 16, C.R.S.
- (2) If the city council finds that it would be necessary or advisable to proceed without a recommendation for designation of any matter of state interest by the planning commission, the city council may proceed to designate such matter without receiving a recommendation from the planning commission.
- (3) The Colorado Land Use Commission may submit a formal request to the city council with regard to a specific matter which the Colorado Land Use Commission considers to be of state interest within the City of Golden.
- (4) If designation of any matter of state interest is required pursuant to court order, the city council shall hold a proceeding to adopt such designation. At any time after the designation of any matter of state interest by the city council pursuant to court order, a proceeding to revoke or amend any such designation may be held upon the subsequent order of the same court which ordered the designation.

(Ord. 1475, 1999)

18.80.215 Inclusion in comprehensive plan.

(1) After designation of an area or activity of state interest as provided in section 18.80.210 of this chapter, the city council shall refer the designation to the planning commission for adoption as part of the comprehensive plan.

(2) The "careful and comprehensive surveys and studies" upon which the comprehensive plan must be based according to C.R.S. 31-23-207.,

shall consist of the record of the designation hearing prepared pursuant to section 18.80.235 of this chapter.

(Ord. 1475, 1999)

18.80.220 Moratorium.

(1) After the city council has received a formal request to take action with regard to a specific matter which the Colorado Land Use Commission considers to be of state interest within the local government's jurisdiction, no person shall engage in development in the area or conduct the activity specifically described in such request until designation and regulations for such area or activity are finally determined.

(2) After a matter of state interest is designated by the city council pursuant to section 18.80.240 of this chapter, no person shall engage in development in the designated area of state interest or conduct the designated activity of state interest until the designation and regulations for such area or activity are finally determined.

(3) The city council may, in its discretion, impose a moratorium on development in an area of state interest or on conducting an activity of state interest by separate resolution at any time prior to designation pursuant to section 18.80.240 of this chapter.

(4) The designation and regulations for such area or activity are "finally determined" when:

- (a) The original or the modified ordinance designating such area is reviewed and accepted by the Colorado Land Use Commission, or the Colorado Land Use Commission fails to accept or request modification to such ordinance within 30 days following receipt of such ordinance pursuant to Golden Municipal Code section 18.80.245;
- (b) The Colorado Land Use Commission notifies the city council that it will not issue a formal request for action after the city council has rejected a land use commission recommendation pursuant to section 18.80.245 of this chapter; or the land use commission fails to issue a formal request

for action within 30 days of receiving notice of such refusal from the city council pursuant to section 18.80.245;

- (c) The Colorado Land Use Commission notifies the city council that it will not seek judicial review of any refusal by the city council to take action after formal request by the land use commission; or the land use commission fails to seek judicial review within 45 days of receiving notice of such refusal from the city council; or
 - (d) A court of competent jurisdiction has finally determined the matter.
- (5) The city council may grant a special exception to the moratorium issued under subsections (1), (2), or (3) pursuant to the following procedures:

- (a) The person proposing development in a designated area of state interest or to undertake a designated activity of state interest shall submit a written application for a special exception indicating the purpose of the proposed development or activity and stating with particularity the substantial hardship that the applicant will suffer if the special exception is not granted.
- (b) Within 30 days of receiving the application, the city council shall hold a public hearing on the application. Notice shall be given at least seven days in advance of such public hearing as follows:
 - 1. The owner of the property, or agent, shall be notified by U.S. mail; and
 - 2. Notice of the hearing shall be posted on the property and shall be published in a newspaper of general circulation.
- (c) The city council may grant the special exception and order the issuance of a building permit if it finds all of the following:
 - 1. That the development or activity is necessary to prevent undue hardship on the applicant;

- 2. That the development or activity will not adversely affect the public interest or the purposes of this moratorium; and
- 3. That the development or activity would be proper and in accordance with all of the ordinances and regulations of the City of Golden if the moratorium were not in effect.

(6) Any moratorium imposed under subsections (1), (2), or (3) shall not prohibit the continuation of any legal nonconforming use. (Ord. 1662, 2004; Ord. 1475, 1999)

18.80.225 Public hearing, mailing list, publication.

(1) The city council shall hold a public hearing before designating any matter of state interest and adopting regulations for the administration thereof.

(2) In the event that the Colorado Land Use Commission submits a formal request to take action, such public hearing shall be held within 90 days after receipt by the city council of the formal request.

(3) The administrator shall prepare a notice of the designation hearing which shall include:

- (a) The time and place of the hearing;
- (b) The place at which materials relating to the matter to be designated and any provisions for the administration thereof may be examined;
- (c) A description of the area or activity proposed to be designated in sufficient detail to provide reasonable notice as to property which would be included. The notice should include, when practicable, both the legal description of the property as well as any layman's description of the property. If the designation is applicable to the entire City of Golden, the notice shall so state and no other description of the property included in the designation shall be required.

(4) The administrator shall maintain a mailing list of the names of those persons who have requested that their names and addresses be placed on the list and have paid an annual fee, the amount of which shall be determined from time to time by the city council. Those persons wishing to be placed on such mailing list shall resubmit their names and addresses and pay such fee before January 31 of each year.

(5) At least 30 days but no more than 60 days before the public hearing, the administrator shall publish the notice in a newspaper of general circulation in the county and shall mail the notice by first class mail to each of the following:

- (a) The Colorado Land Use Commission;
- (b) Persons on the mailing list; and
- (c) All persons who would receive notice if the designation were an amendment of the zoning code or an application for rezoning.

(Ord. 1475, 1999)

18.80.230 Matters to be considered at designation hearings.

(1) At the public hearing described above, the city council shall consider such evidence as may appear appropriate including, at a minimum:

- (a) The intensity of current and foreseeable development pressures;
- (b) The matters and considerations set forth in any applicable guidelines for identification and designation;
- (c) Model regulations issued by the Colorado Land Use Commission and other state agencies;
- (d) The boundaries of the proposed area;
- (e) Reasons why the particular area or activity is of state interest, the dangers that would result from uncontrolled development of any such area or uncontrolled conduct of such activity, and the advantages of development of such area or conduct of such activity in a coordinated manner; and

- (f) Any master or comprehensive plan pertaining to or affected by the area or activity under consideration.

(2) The city council shall hear testimony and receive evidence, including:

- (a) Recommendations of the planning commission, if any; and
- (b) Relevant testimony and documents presented.

(Ord. 1475, 1999)

18.80.235 Record of designation proceeding.

(1) The city clerk shall provide for recording of the designation hearing by audiotape, stenographer, or other appropriate means.

(2) The city clerk shall collect and preserve the following record of the public hearing, at a minimum:

- (a) Notice of hearing;
- (b) Certificate of publication of the notice;
- (c) Names and addresses of persons making written or oral statements, appearing as witnesses, or offering documentary evidence;
- (d) Any documentary evidence or written statements or testimony concerning the identification of the matter of state interest proposed to be designated;
- (e) Written findings concerning each of the matters referred to in subsection 18.80.230(1), above;
- (f) Written minutes of the city council relating to the public hearing; and
- (g) The recording of the hearing prepared pursuant to subsection (1), above, provided that the city is under no obligation to transcribe such recording unless requested and paid for by the requesting party.

(Ord. 1475, 1999)

18.80.240 Adoption of designation and regulations.

(1) At the conclusion of the public hearing, the city council may adopt, adopt with modifications, or reject the proposed designation and associated provisions which were the subject of the public hearing.

(2) Such action shall be taken by ordinance ordering such designation.

(3) Each designation ordinance adopted by the city council shall, at a minimum:

- (a) Specify the boundaries of the designated area of state interest or the boundary of the area in which an activity of state interest has been designated;
- (b) State reasons why the particular area or activity is of state interest, the dangers that would result from uncontrolled development of any such area or uncontrolled conduct of such activity, and the advantages of development of such area or conduct of such activity in a coordinated manner; and
- (c) Specify the administrative provisions applicable to the designated matter of state interest.

(Ord. 1475, 1999)

18.80.245 Submission of material to Colorado Land Use Commission.

Upon adoption of a designation ordinance, all relevant materials including the record of any public hearing relating to the designation and regulations, as described in section 18.80.235, above, shall be forwarded by the city council to the Colorado Land Use Commission for review; provided, however, that a transcript of the hearing shall not be provided unless the cost of transcription is reimbursed to the City of Golden by the Colorado Land Use Commission. If within 30 days after receipt of a designation ordinance, the Colorado Land Use Commission has notified the city council that modification of the designation

ordinance is required, the city council shall, within 30 days after receipt of the recommended modifications:

- (1) Modify the original ordinance in a manner consistent with the recommendations of the Colorado Land Use Commission and resubmit the ordinance to the Colorado Land Use Commission; or
- (2) Notify the Colorado Land Use Commission that the Colorado Land Use Commission's recommendations are rejected and the reasons therefore.

(Ord. 1475, 1999)

18.80.250 Recording of notice of designation.

A notice of the designation shall be certified by the city council to the county clerk and recorder for filing in the same manner as any document affecting real property.

(Ord. 1475, 1999)

18.80.300 Permits.

18.80.305 Permits required after designation; receipt of application form.

(1) It shall be unlawful for any person to engage in development within a designated area of state interest or to conduct a designated activity of state interest without a permit from the city council.

(2) An application for a permit for such development or activity pursuant to this chapter shall not be accepted unless it is complete. If the application is considered incomplete by the administrator, the administrator shall specify what additional information is required. When a submitted application is considered to be complete by the administrator, the administrator shall note upon the application the date of its receipt.

(3) When the applicant seeks a permit to engage in development in more than one area of state interest, to conduct more than one activity of state interest, or to engage in development in an area of state interest and to conduct an activity of state interest, the application may be com-

pleted for all such activities or developments and may be reviewed by the city council in one consolidated hearing.
(Ord. 1475, 1999)

18.80.310 Application fee.

The application shall be accompanied by an application fee in the amount(s) set forth in the regulation(s) for the matter(s) of state interest involved in the application or in such lesser amount as may be determined by the city council.
(Ord. 1475, 1999)

18.80.315 Notice of permit hearing.

Not later than 30 days after receipt of a completed application for a permit, the city council shall set and publish notice of a date, time, and place for a hearing on said application. Such notice shall be published once in a newspaper of general circulation in the jurisdiction, not less than 30 nor more than 60 days before the date set for hearing and shall also be given to other persons and entities in the same manner as set forth above for the notice of designation hearing in section 18.80.225 of this chapter.
(Ord. 1475, 1999)

18.80.320 Conduct of permit hearing.

(1) The city council shall hear testimony and receive evidence, including:

- (a) The recommendations of the administrator and the planning commission, if otherwise required by this chapter; and
- (b) Relevant testimony and documents presented.

(2) The city clerk shall provide for recording of the hearing by audiotape, stenographer, or other appropriate means.

(3) The administrator shall collect and preserve the following record of the public hearing:

- (a) The permit application;
- (b) The names and addresses of all persons making oral or written statements, appearing as witnesses, or offering documentary evidence;

- (c) Any documentary evidence or written statements or testimony presented in support of or in opposition to the permit application;
 - (d) Any recording or transcript, if any, of the hearing as provided in subsection (2), above, provided that the city is under no obligation to transcribe such recording unless requested and paid for by the requesting party;
 - (e) Written minutes of the city council relating to the public hearing;
 - (f) The resolution of the city council granting or denying the permit application; and
 - (g) A copy of the permit, if issued.
- (Ord. 1475, 1999)

18.80.325 Approval or denial of permit application.

(1) If the city council finds that there is not sufficient information concerning any material feature of a proposed development or activity, the city council may deny the application or it may continue the hearing until the additional information has been received. However, no such continuance may exceed 60 days unless agreed to by the applicant.

(2) The city council shall approve an application for a permit to engage in development in an area of state interest or for the conduct of an activity of state interest if the proposed development or activity complies with the provisions of this chapter governing such area or activity. If the proposed development does not comply with the provisions of this chapter the permit shall be denied. The city council may impose reasonable conditions and requirements upon approval of the permit to assure compliance with such provisions.

(3) The city council shall reach a decision on a permit application within 120 days after the completion of the permit hearing, or the permit shall be deemed approved. Final action approving or denying a permit application shall be by resolution stating the city council's reasons for its decision and its findings and conclusions.
(Ord. 1475, 1999)

18.80.330 Issuance of permits.

(1) The permit shall be issued on the form adopted by the administrator.

(2) The permit may be issued for an indefinite term or for a specified period as determined by city council.

(3) Copies or notice of the permit shall be sent to the Colorado Land Use Commission and to any other person requesting a copy thereof on payment of the cost of reproduction.

(4) A certified copy of the permit shall be forwarded by the city council to the county clerk and recorder for recording in the same manner as any other document relating to real property. (Ord. 1475, 1999)

18.80.335 Financial security.

(1) As a condition of issuing any permit, the city council may, in its discretion, require the applicant to file a guarantee of financial security deemed adequate by the city council and payable to the City of Golden.

(2) The purpose of such financial guarantee shall be to assure that the applicant or permittee shall faithfully perform all requirements of the permit or applicable provisions adopted by the city council.

(3) The amount of such financial guarantee shall be established by the city council upon consideration of the following criteria:

- (a) The estimated cost of returning the site of the permitted development or activity to its original condition or to a condition acceptable to the City of Golden for the matter of state interest for which the permit is being granted; and
- (b) The estimated cost of completing the permitted development or activity; and
- (c) The estimated cost of complying with any conditions of the permit.

(4) The financial guarantee may be in the form of an irrevocable letter of credit, performance bond, or escrow of either cash or corporate or municipal bonds rated at least AA by Standard and Poors or an equivalent rating by Moody's,

with such escrow agreement as is acceptable to the city attorney, subject to the following terms and conditions:

- (a) The city council may require that a cash deposit in an amount up to ten percent of the financial guarantee be provided to the city treasurer to be placed in a separate interest-bearing account.
- (b) The irrevocable letter of credit, performance bond, or escrow shall provide a financial guarantee that the permittee will fulfill all obligations under the terms of the permit. Letters of credit acceptable hereunder shall have an expiration date no sooner than six months following the scheduled completion of the permitted development.
- (c) The surety issuing a performance bond shall have at least an "A" Rating from Moody's or an equivalent rating as designated by a nationally recognized rating firm, and shall additionally be included in the most recent listing of companies holding Certificates of Authority as Acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies, Department of Treasury, Circular 570.
- (d) The surety issuing an irrevocable letter of credit must maintain an office or corresponding bank within 50 miles of the City of Golden, and shall have a current rating of 125 or better from IDS Financial Services, Inc., or otherwise be approved by the city treasurer.
- (e) The permittee shall not have greater than a ten-percent ownership or managerial control over the surety issuing any financial guarantee.
- (f) The permittee may request, and the city shall grant, reductions in the financial guarantee for development constructed and initially accepted by the city, provided, however, that sufficient proportional security remains to ensure completion of all remaining obligations.

(5) The financial guarantee may be released only when:

- (a) The permit has been surrendered to the city council before commencement of any physical activity on the site of the permitted development or activity;
- (b) The development or activity has been abandoned and the site thereof has been returned to its original condition or to a condition acceptable to the city council in accordance with standards adopted by city council for the matter of state interest for which the permit is being granted;
- (c) The project has been satisfactorily completed; or
- (d) Applicable guaranteed conditions have been satisfied.

(6) Any financial guarantee may be cancelled by a surety only upon receipt of the city council's written consent, which consent may be granted only when such cancellation will not compromise the purposes of the security.

(7) In the event that, prior to release of a financial guarantee filed pursuant to this chapter, the license to do business in Colorado of the surety upon financial guarantee is suspended or revoked by any state authority, the financial guarantee should expire, the surety issuing the financial guarantee becomes nonqualifying, or the cost of completing the permitted development, or returning the site to an acceptable condition, is reasonably determined by the city to be greater than the amount of the financial guarantee provided, then the city shall furnish the permittee with written notice of such conditions, and within 30 days of receipt mailing of such notice, the permittee shall provide the city with a substituted qualifying financial guarantee, or augment the deficient security to achieve the required security. If such financial guarantee is not timely furnished, then the permit may be suspended by the city pending compliance herewith.

(8) If the city council determines that a financial guarantee should be forfeited because of any violation of the permit or any applicable provisions adopted by the city council, it shall provide

written notice to the surety and to the permittee and shall order the financial guarantee forfeited.

(9) The cash deposit described in subsection (4)(a) may be used by the City of Golden in the event of the default or alleged default of the permit holder only for the purposes of recovering on the surety or fulfilling the permit obligations of the permit holder. In the event that the ultimate reviewing court determines that there has been no default by the permit holder, that portion of any moneys expended by the City of Golden shall be replaced in the separate interest-bearing account described in subsection (4)(a) by the City of Golden immediately following such determination. The City of Golden may arrange with a lending institution, which provides money for the permit holder, that said institution may hold in escrow any funds required for said cash deposit. Funds shall be disbursed out of escrow by the institution to the City of Golden upon the city council's demand for the purposes specified in this section.

(10) If the forfeiture results in inadequate revenues to cover the costs of accomplishing the purposes of the financial guarantee, the city attorney shall take such steps as he deems appropriate to recover such costs where recovery is deemed possible.

(Ord. 1475, 1999)

18.80.340 Revocation or suspension of permits.

(1) When it comes to the attention of the city council that the provisions of any permit or the terms of any provision for administration have been violated by the holder of the permit, the city council may temporarily suspend the permit for a period of 30 days. Before making such a temporary suspension, the city council shall give the permit holder written notice of the specific violation and shall allow the permit holder a period of at least 15 days to correct the violations. If the permit holder does not concur that he is in violation, he shall, within 15 days of his receipt of said notice, show cause to the city council why temporary suspension should not be ordered. A hearing shall be held within said 30-day period pursuant to subsection (2), below.

(2) Either prior to or subsequent to a temporary suspension, the city council may permanently revoke or suspend the permit after conducting a public hearing in substantially the same manner and after substantially the same notice as for permit hearings, and if it finds:

- (a) A violation of the provisions of the permit or any applicable provision for administration which may have been adopted by this city council; or
- (b) That the applicant has failed to take substantial steps to initiate the permitted development or activity within 12 months from the date of the permit or, if such steps have been taken, the applicant has failed to complete the development or activity with reasonable diligence.

(Ord. 1475, 1999)

18.80.400 Administration, enforcement, penalties, and judicial review.

18.80.405 Enforcement and penalties.

(1) Any person engaging in a development in a designated area of state interest or conducting a designated activity of state interest who does not obtain a permit pursuant to these provisions for administration, who does not comply with permit requirements, or who acts outside the authority of the permit, may be enjoined by the City of Golden or the Colorado Land Use Commission from engaging in such development or conducting such activity.

(2) The remedies available pursuant to this section shall be in addition to any remedies available pursuant to chapter 18.08.

(Ord. 1475, 1999)

18.80.410 Mapping disputes.

Where interpretation is needed as to the exact location of the boundary of any designated area and where there appears to be a conflict between a mapped boundary and actual field conditions, the city council shall make the necessary determination of the boundary. Any person contesting the location of the boundary shall be given an opportunity to present his case to the city council.

(Ord. 1475, 1999)

18.80.415 Inspection.

(1) The city council or the administrator is hereby empowered and directed to inspect and examine the use, occupation or development of or activity in each and every area or activity subject to these provisions for the purpose of determining from time to time whether or not any use, occupation, development or activity is in violation of any of the provisions of this chapter or of any permit issued or required pursuant to this or other applicable provisions.

(2) If a violation is found to exist, said city council or its authorized representative shall by written order direct that such remedial action be taken forthwith as will result in full compliance with the applicable provisions; provided, however, that the issuance of such order shall in no way or manner be deemed a prerequisite to the institution of such enforcement proceedings as are set forth in the provisions; and provided further, that compliance with such order shall not necessarily be deemed to be a defense to any alleged violation of this or other applicable provisions in any court action instituted seeking full compliance therewith.

(Ord. 1475, 1999)

18.80.420 Judicial review.

(1) The denial of a permit by the city council shall be subject to judicial review in the district court for the judicial district in which the major development or activity is to occur.

(2) All other actions by the city council pursuant to this chapter shall be subject to judicial review to the extent provided by chapter 18.12, "appeals and variances under title 18."

(Ord. 1475, 1999)

18.80.600 Site selection of arterial highways and interchanges and collector highways.

18.80.605 Designation.

The city council, having considered the intensity of current and foreseeable development pressures and applicable guidelines for identification and designation adopted and issued by the Colo-

rado Land Use Commission, hereby designates site selection of arterial highways and interchanges and collector highways as a matter of state interest regulated pursuant to the provisions of this chapter.
(Ord. 1653, 2004)

18.80.610 Boundaries of area covered by designation.

The site selection of any arterial highway or interchange or collector highway within the boundaries of the City of Golden shall be subject to this designation and regulation.
(Ord. 1653, 2004)

18.80.615 Purpose and reason for the designation.

(1) The purpose and intent of the designation and regulations contained in this chapter shall be to:

- (a) Facilitate the local administration of site selection of arterial highways and interchanges and collector highways by establishing requirements that must be met before a site may be selected;
- (b) Ensure that community traffic needs are met;
- (c) Provide for the continuation of desirable local and regional community patterns in the face of regional development pressures;
- (d) Discourage expansion of demand for government services beyond the reasonable capacity of the community or region to provide such services as determined by the City of Golden;
- (e) Prevent direct conflicts with local, regional, and state master plans;
- (f) Ensure that highway development is compatible with surrounding land uses;
- (g) Encourage the coordination of highway planning with the comprehensive plan and avoid highway construction which divides existing communities;
- (h) Discourage traffic hazards and congestion;

- (i) Ensure that traffic noise, air, and water pollution remain at acceptable levels;
- (j) Protect property values; and
- (k) Protect scenic, recreational, natural, historical, and archaeological resources, including the mountain backdrop and historic districts in and around the City of Golden.

(2) These regulations and the guidelines and requirements contained herein are adopted in furtherance of the authority set forth in Title 24, Article 65.1 of the Colorado Revised Statutes, and the City of Golden home rule powers. To the extent that these guidelines and regulations contain requirements that are more stringent than the requirements of the criteria listed in C.R.S. 24-65.1-204, reference is made to the authority set forth in C.R.S. 24-65.1-402(3).
(Ord. 1653, 2004)

18.80.620 Applicability.

(1) These regulations shall apply to the site selection of all arterial highways and interchanges and collector highways.

(2) Any person seeking to select a site for an arterial highway or interchange or collector highway in the City of Golden shall obtain a permit pursuant to these regulations prior to seeking any other permit or other action by the City of Golden.
(Ord. 1653, 2004)

18.80.625 Definitions.

As used in sections 18.80.600 to 18.80.670, the definitions set forth in section 18.80.140 of this chapter and the below listed definitions shall apply.

Applicant means any person proposing to locate an arterial highway or interchange or collector highway within the City of Golden.

Arterial highway means any limited-access highway which is part of the federal-aid interstate system or any limited-access highway constructed under the supervision of the Colorado Department of Transportation.

Alternative mode of transportation means any mode of transportation other than a single occupancy vehicle.

Collector highway means a major thoroughfare serving as a corridor or link between municipalities, unincorporated population centers or recreation areas, or industrial centers that is constructed under guidelines and standards established by, or under the supervision of, the Colorado Department of Transportation. Collector highway does not include a city street or local service road or a county road designed for local service and constructed under the supervision of local government.

Constructed under guidelines and standards established by or constructed under the supervision of the Colorado Department of Transportation each shall include, without limitation, any of the below-listed forms of participation by the Colorado Department of Transportation:

- (a) The Colorado Department of Transportation or any entity formed directly or indirectly by, or by contract or agreement with (including, without limitation, any enterprise formed under Article 4 of Title 43 of the Colorado Revised Statutes or non-profit entity formed by such enterprise), the Colorado Department of Transportation or the Colorado Transportation Commission:
 1. Is an applicant;
 2. Sells, leases, loans, donates, grants, conveys, assigns, transfers or otherwise provides any real or personal property or interests therein used or to be used in the proposed construction, modification or expansion of the arterial highway or interchange or collector highway including transfer or assignment of any contract to the applicant that may have been awarded for the proposed construction, modification or expansion of the arterial highway or interchange or collector highway;
 3. Delegates authority to the applicant or is a signatory to any intergovernmental agreement or other form of

contract, agreement, conveyance, delegation or authorization required for the applicant to construct, modify or expand the arterial highway or interchange or collector highway; or

4. Performs or funds any planning, design, study, construction, supervision or maintenance functions associated with all or any portion of the construction, modification or expansion of the arterial highway or interchange or collector highway; or
- (b) A state highway access permit from the Colorado Department of Transportation is necessary for access from the proposed construction, modification or expansion of the arterial highway or interchange or collector highway to a state highway either within or outside the City of Golden.

Construction, modification, or expansion means, as the context requires, the activity involved in constructing or reconstructing, or modifying or expanding an arterial highway or interchange or collector highway, the completed construction, reconstruction, modification, or expansion of the arterial highway or interchange or collector highway, or both.

Development means any construction or activity which changes the basic character or use of the land on which the construction or activity occurs.

Impact area means that area within the region and the City of Golden which is served or potentially could be served by the highway facility.

Interchange means the intersection of two or more highways, roads, or streets at least one of which is an arterial highway. At such intersection there must be direct access to and from the arterial highway.

Limited-access highway means a highway which gives preference to through traffic by providing access connection with selected roads only. A highway may be considered a "limited access highway" even though it has some crossings at grade and private driveway connections.

Nonconforming use means a use in existence at the time of the adoption of these regulations

which use, were it a new use, would be one for which a permit would be required under this chapter.

Site selection means the identification of a corridor located entirely or partially within the City of Golden in which:

- (a) Construction of an arterial highway or interchange or collector highway is proposed; or
- (b) Expansion or modification of an existing arterial highway or collector highway is proposed that would result in:
 - 1. An increase in highway capacity by at least one lane through widening or alternative lane configurations, or an equivalent increase in capacity produced by access controls, technological or other types of highway improvements; or
 - 2. The elimination of direct, at grade access from a public road or street within the City of Golden to such existing arterial or collector highway; or
- (c) Expansion or modification of an existing highway is proposed which would result in a change in classification to "collector highway" or "arterial highway" as defined in this chapter.

(Ord. 1653, 2004)

18.80.630 Nonconforming uses.

The provisions of this chapter shall not apply to, or affect the site selection of, any arterial highway or interchange or collector highway that has obtained all necessary federal, state, and local permits and approvals and construction of which has commenced within the City of Golden prior to April 19, 2004, the effective date of this regulation.

(Ord. 1653, 2004)

18.80.635 Relationship of regulations to other state and federal requirements.

(1) Nothing in these regulations shall be construed as exempting an applicant for a permit from any other requirements of the City of Golden

or other state or federal laws and regulations. In no event shall the approval of a permit under this chapter be considered a representation by the City of Golden, its staff members or consultants or the city council members that the proposed construction, modification or expansion complies with such federal, state or local guidelines and regulations or shall such approval otherwise give rise to any claim against the City of Golden, its staff members or consultants or city council members related to the failure of an applicant to comply therewith.

(2) To the extent that the requirements of these regulations differ from any other applicable requirements, the more restrictive requirements shall apply.

18.80.640 Prohibition on site selection of an arterial highway and interchange and collector highway without a permit.

No person may select a site for an arterial highway or interchange or collector highway within the boundaries of the City of Golden without first obtaining a permit pursuant to these regulations. The permit shall be effective only for the period of time specified by the permit.

(Ord. 1653, 2004)

18.80.645 Permit application procedure.

Permit applications, notice and conduct of permit hearings, review of city council decisions, and the issuance of permits to engage in the site selection of arterial highways and interchanges and collector highways shall comply with the procedures set forth in sections 18.80.300 to 18.80.340 and 18.80.420 of this chapter.

(Ord. 1653, 2004)

18.80.650 Application for permit.

(1) Any person, seeking to select a site for an arterial highway or interchange or collector highway in the City of Golden shall apply for a permit from the city council on the permit application form adopted by the administrator.

(2) Any person seeking to expand or modify an existing arterial or collector highway, or other major roadway within the city may seek a determination from the administrator whether the proposed expansion or modification qualifies as a "site selection" under the provisions of this chapter, by providing to the administrator the information set forth in subsections 18.80.655(3)(a),(b), and (c). The administrator shall render a determination on the proposed expansion or modification within 30 days of receipt of the above listed information. An appeal by the prospective sponsor of the administrator's determination that a permit is required may be made to the city council based upon the provisions of section 18.12.040.

(3) Any application for a permit for site selection of an arterial highway or interchange or collector highway shall be accompanied by nonrefundable certified funds in the amount necessary to cover the costs incurred in the review and approval of the permit application, including all hearings conducted therefore, but shall not exceed ten percent of the total cost of the project for which a permit is sought.
(Ord. 1653, 2004)

18.80.655 Submission requirements.

An application for a permit for site selection of an arterial highway or interchange or collector highway shall consist of four copies of the below listed documents and information.

- (1) Completed permit application form;
- (2) A list of all reasonable alternative corridor locations for the proposed construction, expansion, or modification of the arterial highway or collector highway or a list of all reasonable interchange locations or design alternatives; and
- (3) For the proposed and all reasonable alternative corridor locations or all reasonable alternative interchange locations or designs, the information specified below:
 - (a) A general description of the proposed corridor location or interchange location or design, with a discussion of the advantages and disadvantages of this alternative;
 - (b) A location map showing the corridor or interchange location and general area;
 - (c) Any proposal, study, or other documentation which includes:
 1. Type, scale and appearance of the improvement;
 2. Cost estimate; and
 3. Approximate timetable for construction and right-of-way acquisition;
 - (d) Demographic information in the regional impact area and within the City of Golden, including:
 1. Estimated current population and density;
 2. Total employment, occupation types, and major employer locations;
 3. Average family income; and
 4. Population projections in five-year increments over the next 20 years;
 - (e) The need for the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
 - (f) Major traffic generators in the regional impact area and the City of Golden;
 - (g) The planned level of service in relationship to projected user demand, both regionally and within the City of Golden;
 - (h) A map(s) and description of existing land use in the impact area, both regionally and within the City of Golden, in relationship to the existing circulation system and the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
 - (i) A map(s) of the regional impact area and the impact area within the City of Golden showing planned, proposed, or expected land use at each

- year of population projection provided pursuant to subsection (d)4. above, with and without the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
- (j) The approximate number of users of the proposed corridor or interchange location in terms of existing city residents, new city residents, and non-city residents;
 - (k) Plans for promoting the use of alternative modes of transportation;
 - (l) Anticipated noise levels resulting from the new or modified arterial highway or interchange or collector highway including noise levels expressed through eight-hour and 24-hour equivalent sound level metrics, as well as single event noise metrics;
 - (m) The local and regional air quality impacts of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway including attainment of federal and state ambient air quality standards and risks to human health and the environment posed by air pollutants including, but not limited to, formaldehyde, benzene, 1,3-butadiene, diesel particulates and other fuel combustion by-products;
 - (n) The impacts of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway on accessibility to and from existing public facilities, commercial and industrial facilities, and residential areas, both regionally and within the City of Golden;
 - (o) Any health and safety hazards, including exposure to hazardous materials, which may result from the siting of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
 - (p) How the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway and its impacts will conform to the comprehensive plan goals, objectives and policies;
 - (q) How the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway and its impacts will conform to any applicable regional and state plans, goals, objectives, and policies;
 - (r) The development potential that would result in the regional impact area and within the City of Golden with and without the completion of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway, measured in terms of: land values, land availability, land use controls, vacancy rates and indices of accessibility to school/education, utility service, other public and quasi-public services, local and regional amenities and employment opportunities and the demographic indices identified in subsection (d) above;
 - (s) The increased demand that the potential development described in subsection (r) above will place on the following public services both regionally and within the City of Golden: other roadways, mass transit, trail, bike paths and other transportation, housing, employment, schools, commercial services, health services, police and fire protection, solid waste disposal, water supply systems, wastewater collection and disposal systems, storm water collection and release systems, power, communications, parks, open-space and recreation, other public and quasi-public utilities, and other planned public services;
 - (t) The costs and benefits to the region and to the City of Golden resulting

- from the land use commitment necessitated or facilitated by the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway compared to alternative projected land uses in terms of land suitability, transportation, community services, utilities, and revenues;
- (u) Alternatives which may be utilized by the City of Golden in planning for and controlling adjacent land use;
 - (v) Local and regional impacts of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway on water quality and water resources, including effects on floodplains and wetland values and functions;
 - (w) The impact of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway on historic properties and districts or other historic resources in the City of Golden and the region;
 - (x) Impacts of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway on wildlife and fisheries, sensitive, endangered or threatened species and scenic, parks, recreational, archeological, paleontological, or other natural resources, including, but not limited to, the mountain backdrop;
 - (y) Impacts of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway on the character of adjacent or nearby neighborhoods or development, as well as the impacts of increased division or separation of neighborhoods caused by the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
 - (z) All feasible alternatives for mitigating adverse effects of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway described above including, but not limited to, effects on the level of public services, access to public services, division of existing communities, water quality, air quality, noise levels, and scenic, historical, recreational, archeological or natural resources. Mitigation alternatives to be considered include, but are not limited to:
 1. Alternative locations, configurations, and access for the highway or interchange, including, but not limited to, grade separated interchanges and complete or partial construction below grade with cover and landscaping suitable for recreational use or for construction of city streets, bike paths or pedestrian walkways;
 2. Alternative pavement types;
 3. Alternative highway maintenance and snow removal methods;
 4. Sound walls and other sound mitigating structures, such as transparent noise barriers;
 5. Berms;
 6. Landscaping;
 7. Speed limits;
 8. Speed control devices;
 9. Limits on the use of compression brakes; and
 10. wildlife crossings and pedestrian bridges.

(Ord. 1653, 2004)

18.80.660 Waiver of submission requirements.

(1) The administrator may waive any part but not all of the submission requirements imposed by this regulation upon written petition of the applicant. In considering the requested waiver, the administrator shall consider:

- (a) The scope of the site selection proposal.
- (b) Whether providing the information requested to be waived would be unduly burdensome to the applicant.
- (c) Whether, without the information requested to be waived, the application contains sufficient information to allow the city council to reach a decision on all criteria necessary to issue a permit.

Any waiver granted by the administrator shall not preclude the city council from requiring the submission of any additional information or materials related to the site selection proposal.

(2) Submission requirements set out in subsections (2) and (3) of section 18.80.655 of this chapter may be satisfied in whole or in part by submission of an environmental assessment or a draft or final environmental impact statement if:

- (a) Such assessment or statement is required for compliance with the National Environmental Policy Act or Federal Highway Administration regulations;
- (b) The administrator determines that such assessment or statement provides substantially the same information required under subsections (2) and (3) of section 18.80.655; and
- (c) Such assessment or statement uses appropriate data and methodologies to allow adequate review of the permit application under these regulations.

(Ord. 1653, 2004)

18.80.665 Approval of permit application.

The city council shall approve an application for a permit for site selection of an arterial highway or interchange or collector highway in the City of Golden only if the proposed construction, modification, or expansion complies with these

regulations, other relevant federal, state, and local guidelines and regulations and meets all the following requirements and criteria:

- (1) All of the provisions of the permit application procedure have been complied with;
- (2) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will be located so that community traffic needs are met and will preserve at grade access from city streets to the extent necessary to meet community traffic needs and to avoid unacceptable division of existing communities;
- (3) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will be located only in a corridor for which a clear and reasonable local and regional need for such highway facilities has been demonstrated;
- (4) Reasonable alternative modes of transportation will be incorporated into the highway proposal;
- (5) Desirable local and regional community land use patterns will not be disrupted due to the location of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
- (6) The location of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not impede the delivery of essential community services and goods;
- (7) The proposed location and access limitations for the new or modified arterial highway or interchange or collector highway will not isolate community neighborhoods from, and, where practicable, will enhance access from community neighborhoods to, public facilities including the downtown area, schools, hospitals, mass transit, pedestrian walkways, and bikeways, recreational areas and open spaces;
- (8) The proposed location and access limitations for the new or modified arterial

- highway or interchange or collector highway will not restrict access via other roadways, mass transit facilities, pedestrian walkways, and bikeways to the downtown area local commercial services, business, and employment centers, and public facilities including schools, hospitals, recreational areas and open spaces;
- (9) The proposed location and access limitations for the new or modified arterial highway or interchange or collector highway will not create safety hazards to motorists, pedestrians, or bicyclists by causing or contributing to overuse, improper use, or congestion, or cause unnecessary diversion of regional traffic onto other city roadways or inappropriate or inadequate connections to pedestrian and bicycle routes;
 - (10) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highways will not directly conflict with applicable local, regional, and state master plans, including, but not limited to transportation plans;
 - (11) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will be located and implemented in accordance with the comprehensive plan;
 - (12) The location of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not contribute to the expansion of demand for public services beyond the reasonable capacity of the City of Golden or the region to provide such services;
 - (13) The location of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not contribute to the expansion of regional or local demand for public utilities beyond the reasonable capacity of the utility companies or authorities to provide such services;
 - (14) The proposed construction, modification, or expansion of the arterial highway or interchange or collector highway will be located so as to complement the compact and efficient extension of planned public services, utilities, and development in general, both regionally and within the City of Golden;
 - (15) The site selection for the arterial highway or interchange or collector highway will adhere to the plan, process, procedure, and requirements of the State of Colorado and the Federal Highway Administration and such construction, expansion, or modification will be included in the Denver Metropolitan Regional Transportation Plan;
 - (16) The benefits of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway, including expected development in the regional and local impact areas, will outweigh the social, fiscal, and environmental impact and the loss of any scenic, historical, archeological, or natural resources or agricultural lands rendered unavailable as a result of the location of the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway;
 - (17) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not increase water pollution levels in violation of applicable federal, state, and local water quality control standards and will result in no net loss of wetland values and functions;
 - (18) The maximum anticipated use over the next 20 years of the new or modified arterial highway or interchange or collector highway will not increase air pollution levels beyond applicable federal or state ambient air standards or to levels that pose unacceptable risks to human

health and the environment, and will conform to the vehicle emissions budget of the state implementation plan;

- (19) Noise levels caused by the new or modified arterial highway or interchange or collector highway will not exceed 55 decibels as measured by a 24-hour equivalent sound level metric at any residence, school, church, or other noise-sensitive location, unless the city council determines that meeting such sound level is infeasible, that all feasible avoidance or mitigation measures will be incorporated, and the public benefit of any new or modified arterial highway or interchange or collector highway necessitates the proposed construction, expansion or modification of the arterial highway or interchange or collector highway.
- (20) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not result in the destruction, impairment, or significant alteration of historic properties or districts with the City of Golden as determined pursuant to chapter 18.58 of the Golden Municipal Code;
- (21) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not significantly or unnecessarily detract from the mountain backdrop or other significant scenic resources within the City of Golden or the region;
- (22) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will be designed to avoid or minimize visual impacts, including views of the highway or interchange from residential areas, and to blend into the surroundings. Interchanges will be attractively landscaped and will identify major gateways to the city of golden consistent with the comprehensive plan; and

(23) If the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway includes the imposition of tolls, any existing state roads which have historically provided free access within the city limits will continue to provide free and non-tolled access; and

(24) The proposed construction, expansion, or modification of the arterial highway or interchange or collector highway will not result in a design speed of greater than 45 miles per hour, unless the city council finds that achieving such design speed is infeasible and all feasible mitigation of the adverse effects of higher speeds (including, without limitation, noise levels, air quality and safety) will be incorporated, and the public benefit of any new or modified arterial highway or interchange or collector highway necessitates the proposed construction, expansion or modification of the arterial highway or interchange or collector highway.

(Ord. 1653, 2004)

18.80.670 Denial of permit application.

The city council shall deny the permit if the proposed construction, expansion, or modification of the arterial highway or interchange or collector highway does not meet all of the criteria set out in section 18.80.665 of this chapter.

(Ord. 1653, 2004)

Chapter 18.90

WIRELESS COMMUNICATION FACILITIES*

18.90.010 Definitions.

Alternative tower structure means manmade trees, clock or water towers, bell steeples, light

***Editor's note**—Ord. No. 2196, adopted October 25, 2022, repealed and replaced ch. 18.90 in its entirety to read as herein set out. Former ch. 18.90 pertained to the same subject matter and derived from Ord. No. 2064, adopted October 12, 2017.

poles, buildings, utility poles, farm silos, or similar alternative design mounting structures that conceal where technically feasible the presence of wireless communication facilities ("WCFs") to make them architecturally compatible with the surrounding area pursuant to this chapter. A stand-alone pole in the right-of-way that accommodates small cell facilities is considered an alternative tower structure provided it meets the concealment standards of this chapter. Alternative tower structures are not considered towers, for the purposes of this chapter.

Antenna means any device used to transmit and/or receive radio or electromagnetic waves such as, but not limited to panel antennas, reflecting discs, microwave dishes, whip antennas, directional and non-directional antennas consisting of one or more elements, multiple antenna configurations, or other similar devices and configurations.

Antennas, panel means an array of antennas, rectangular in shape and omni-directional.

Antenna, whip means a single antenna that is cylindrical in shape and omni-directional.

Base station means a structure or equipment at a fixed location that enables Federal Communications Commission ("FCC") licensed or authorized wireless communications between user equipment and a communications network. The definition of base station does not include or encompass a tower as defined herein or any equipment associated with a tower. Base station includes, without limitation:

- (1) Equipment associated with wireless communications services such as private broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul that, at the time the relevant application is filed with the city pursuant to this chapter has been reviewed and approved under the applicable zoning or siting process, or under another state or local regulatory review process, even if the structure was not built for the sole or primary purpose of providing such support; and

- (2) Radio transceivers, antennas, coaxial or fiber-optic cable, regular and backup power supplied, and comparable equipment, regardless of technological configuration (including distributed antenna systems and small-cell networks) that, at the time the relevant application is filed with the city pursuant to title 18 of the Code has been reviewed and approved under the applicable zoning or siting process, or under another state or local regulatory review process, even if the structure was not built for the sole or primary purpose of providing such support.

The definition of base station does not include any structure that, at the time the application is filed with the city under this chapter, does not support or house equipment described herein in subparagraphs (1) and (2) of this definition.

Camouflage or camouflage design techniques means measures used in the design and siting of WCFs with the intent to minimize or eliminate the visual impact of such facilities to surrounding uses. A WCF site utilizes camouflage design techniques when it (i) is attached and partially concealed on an existing structure such as a building rooftop, or (ii) is attached to an outdoor fixture such as a ballfield backstop or the outside of a flagpole, while still appearing to some extent as a WCF. This definition does not include the use of concealment design elements so that a facility looks like something other than a wireless tower or base station.

Collocation means:

- A. For the purposes of eligible facilities requests, means the mounting or installation of transmission equipment on an eligible support structure for the purpose of transmitting and/or receiving radio frequency signals for communications purposes.
- B. For the purposes of facilities that are not eligible facilities requests and are subject to shot clocks promulgated by the FCC under 47 U.S.C. Sec. 332, means attachment of facilities to existing structures,

regardless of whether the structure or location has previously been zoned for wireless facilities.

Concealment means the utilization of elements of stealth design in a facility so that the facility looks like something other than a tower or base station. Language such as "stealth," "camouflage," or similar in any permit or other document required by the City Code is included in this definition to the extent such permit or other document reflects an intent at the time of approval to condition the site's approval on a design that looks like something else. Concealment can further include a design which mimics and is consistent with the nearby natural, or architectural features (such as an artificial tree), or is incorporated into (including without limitation, being attached to the exterior of such facility and painted to match it) or replaces existing permitted facilities (including without limitation, stop signs or other traffic signs or freestanding light standards) so that the presence of the WCF is not apparent. This definition does not include conditions that merely minimize visual impact but do not incorporate concealment design elements so that the facility looks like something other than a wireless tower or base station.

Director means the city's planner or such person as designated by the city manager.

Eligible facilities request means any request for modification of an existing tower or base station that does not substantially change the physical dimensions of such tower or base station involving: (i) collocation of new transmission equipment, (ii) removal of transmission equipment, or (iii) replacement of transmission equipment. A request for modification of an existing tower or base station that does not comply with the generally applicable building, structural, electrical, and safety codes or with other laws codifying objective standards reasonably related to health and safety, or does not comply with any relevant federal requirements, is not an eligible facilities request.

Eligible support structure means any tower or base station as defined in this section, provided

that it is existing at the time the relevant application is filed with the city under this chapter.

Equipment cabinet means cabinet or building used to house equipment used by telecommunication providers at a WCF. This definition does not include relatively small electronic components, such as remote radio units, radio transceivers, amplifiers, or other devices mounted behind antennas, if they are not used as physical containers for smaller, distinct devices.

Existing means a constructed tower or base station that was reviewed, approved, and lawfully constructed in accordance with all requirements of applicable law as of the time of an eligible facilities request, provided that a tower that exists as a legal, nonconforming use and was lawfully constructed is existing for purposes of this definition.

OTARD means over-the-air reception device.

OTARD antenna means (i) an antenna that is designed to receive direct broadcast satellite service, including direct-to-home satellite services, that is one meter or less in diameter; or (ii) an antenna that is designed to receive video programming services via multipoint distribution services, including multichannel multipoint distribution services, instruction television fixed services, and local multipoint distribution services, and that is one meter or less in diameter or diagonal measurement; or (iii) an antenna that is designed to receive television broadcast signals.

OTARD antenna structure means any pole, tower, or other structure designed and intended to support an OTARD antenna.

Related accessory equipment means the transmission equipment customarily used with, and incidental to WCF antennas, including by way of example, coaxial or fiber-optic cable, regular and backup power supply and remote radio units.

Right-of-way, as used within this chapter, means any public street or road that is dedicated to public use for vehicular traffic except for those rights-of-way owned by the Colorado Department of Transportation within city limits.

Site, in the context of this chapter for towers and eligible support structures, means the current boundaries of the leased or owned property surrounding the tower or eligible support structure and any access or utility easements currently related to the site. For alternative tower structures, base stations and small cell facilities in the right-of-way, a site is further restricted to that area comprising the base of the structure and to other related accessory equipment already installed on the ground.

Small cell facility means a WCF where each antenna is located inside an enclosure of no more than three cubic feet in volume or, in the case of an antenna that has exposed elements, the antenna and all of its exposed elements could fit within an imaginary enclosure of no more than three cubic feet; and primary equipment enclosures are no larger than 17 cubic feet in volume. The following associated equipment may be located outside of the primary equipment enclosure and, if so located, is not included in the calculation of equipment volume: Electric meter, concealment, telecommunications demarcation box, ground-based enclosure, back-up power systems, grounding equipment, power transfer switch and cut-off switch.

Substantial change means a modification that substantially changes the physical dimensions of an eligible support structure, if after the modification, the structure meets any of the following criteria:

- (1) For towers other than alternative tower structures, it increases the height of the tower by more than ten percent or by the height of one additional antenna array with separation from the nearest existing antenna not to exceed 20 feet, whichever is greater, as measured from the top of an existing antenna to the bottom of a proposed new antenna; for other eligible support structures, it increases the height of the structure by more than ten percent or more than ten feet, whichever is greater, as measured from the top of an existing antenna to the bottom of a proposed new antenna;

- (2) For towers, it involves adding an appurtenance to the body of the tower that would protrude from the edge of the tower more than 20 feet, or more than the width of the tower structure at the level of the appurtenance, whichever is greater; for eligible support structures, it involves adding an appurtenance to the body of the structure that would protrude from the edge of the structure by more than six feet;
- (3) For any eligible support structure, it involves installation of more than the standard number of new equipment cabinets for the technology involved, as determined on a case-by-case basis based on the location of the eligible support structure but not to exceed four cabinets per application; or for base stations, it involves installation of any new equipment cabinets on the ground if there are no pre-existing ground cabinets associated with the structure, or else involves installation of ground cabinets that are more than ten percent larger in height or overall volume than any other ground cabinets associated with the structure;
- (4) For any eligible support structure, it entails any excavation or deployment outside the current site;
- (5) For any eligible support structure, it would defeat the concealment elements of the eligible support structure by causing a reasonable person to view the structure's intended stealth design as no longer effective;
- (6) For any eligible support structure, it does not comply with record evidence of conditions associated with the siting approval of the construction or modification of the eligible support structure or base station equipment, unless the noncompliance is due to an increase in height, increase in width, addition of cabinets, or new excavation that would not exceed the thresholds identified in paragraphs (1), (2), and (3) of this definition.

Tower means any structure that is designed and constructed primarily built for the sole or primary purpose of supporting one or more any Federal Communications Commission ("FCC") licensed or authorized antennas and their associated facilities, including structures that are constructed for wireless communications services including, but not limited to, private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul, and the associated site. The term includes self-supporting lattice towers, guy towers or monopole towers. The term also includes radio and television transmission towers, microwave towers, common carrier towers, cellular telephone towers, and such other similar structures. alternative tower structures and small cell facilities in the rights-of-way are not towers.

Transmission equipment means equipment that facilitates transmission for any FCC licensed or authorized wireless communication service, including, but not limited to, radio transceivers, antennas, coaxial or fiber-optic cable, and regular and backup power supply. The term includes equipment associated with wireless communications services including, but not limited to, private, broadcast, and public safety services, as well as unlicensed wireless services and fixed wireless services such as microwave backhaul.

Wireless communications facility or WCF means a facility used to provide personal wireless services as defined at 47 U.S.C. Section 332(c)(7)(C); or wireless information services provided to the public or to such classes of users as to be effectively available directly to the public via licensed or unlicensed frequencies; or wireless utility monitoring and control services. A WCF does not include a facility entirely enclosed within a permitted building where the installation does not require a modification of the exterior of the building; nor does it include a device attached to a building, used for serving that building only and that is otherwise permitted under other provisions of the Code. A WCF includes an antenna or antennas, including without limitation, directions, omni-directional and parabolic antennas, base stations, support equipment, alternative tower structures, and

towers. It does not include the support structure to which the WCF or its components are attached if the use of such structures for WCFs is not the primary use. The term does not include mobile transmitting devices used by wireless service subscribers, such as vehicle or hand-held radios/telephones and their associated transmitting antennas, nor does it include other facilities specifically excluded from the coverage of this chapter.

(Ord. No. 2195, § 2, 10-11-2022)

18.90.020 Intent and purpose.

In order to accommodate the communication needs of residents and businesses while protecting the public health, safety, and general welfare of the community, city council finds that these regulations are necessary to:

- (1) Provide for the managed development and installation, maintenance, modification, and removal of wireless communications infrastructure in the city with the goal of having the fewest number of wireless communication facilities ("WCF") required to complete a network without unreasonably discriminating against wireless communications providers of functionally equivalent services including all of those who install, maintain, operate, and remove WCFs;
- (2) Promote and protect the public health, safety, and welfare by reducing the visibility of WCFs to the fullest extent possible through techniques including, but not limited to, concealment design techniques and undergrounding of WCFs and the equipment associated therewith;
- (3) Encourage the deployment of smaller, less intrusive WCFs to supplement existing larger WCFs;
- (4) Encourage the use of wall mounted panel antennas;
- (5) Encourage roof mounted antennas only when wall mounted antennas will not provide adequate service or are not otherwise feasible;

- (6) Encourage the location of towers in non-residential areas, in a manner that minimizes the total number of towers needed throughout the community;
 - (7) Encourage strongly the collocation of WCFs on new and existing sites;
 - (8) Encourage owners and users of antennas and towers to locate them, to the extent possible, in areas where the adverse impact on the community is minimized;
 - (9) Enhance the ability of wireless communications service providers to provide such services to the community quickly, effectively, and efficiently;
 - (10) Effectively manage WCFs in the right-of-way;
 - (11) Manage amateur radio facilities and over-the-air receiving devices in the city.
- (Ord. No. 2195, § 2, 10-11-2022)

18.90.030 Applicability.

(a) The requirements set forth in this chapter shall apply to all WCF applications for base stations, alternative tower structures, alternative tower structures in the right-of-way, and towers as defined elsewhere herein. The city shall have the authority to waive any requirement or standard set forth in this section, if the city makes a determination that the specific requirement or standard is preempted by federal or state law. Prior to applying the waiver to any pending application, the city shall, in consultation with the director and city attorney, make a written preemption determination which written determination shall identify the specific requirement or standard that is being waived and cite to the specific federal or state law provision that preempts the specific city requirement or standard set forth in this section. The requirements set forth in this chapter shall not apply to:

- (1) *Amateur radio antennas.* Amateur radio antennas that are owned and operated by a federally licensed amateur radio station operator or are used exclusively for receive-only antennas, provided that

the height be no more than the distance from the base of the antenna to the property line.

- (2) *Pre-existing WCFs.* Any WCF for which a permit has been properly issued prior to August 31, 2017, shall not be required to meet the requirements of this chapter, other than the operational standards set forth in this chapter. Changes and additions to pre-existing WCFs (including trading out of antennas for an equal number of antennas) shall meet applicable operational standards set forth in this chapter.
- (3) *Miscellaneous antennas.* Antennas used for reception of television, multi-channel video programming and radio such as over the air reception devices ("OTARD") antennas, television broadcast band antennas, and broadcast radio antennas, provided that any requirements related to special uses contained in title 18 of this Code and the requirement that the height be no more than the distance from the base to the property line are met. The director or his/her designee has the authority to approve modifications to the height restriction related to OTARD antennas and OTARD antenna structures, if in the director's reasonable discretion, modifications are necessary to comply with federal law.

(Ord. No. 2195, § 2, 10-11-2022)

18.90.040 Operational standards.

(a) *Federal requirements.* All WCFs shall meet the current standards and regulations of the Federal Aviation Authority ("FAA"), the FCC and any other agency of the federal government with the authority to regulate WCFs. If such standards and regulations are amended, then the owners of the WCF governed by this chapter shall bring such facility into compliance with such revised standards and regulations within the time period mandated by the controlling federal agency. Failure to meet such revised standards and regulations shall constitute grounds for the removal of the WCF at the owner's expense.

(b) *Radio frequency standards.* All WCFs shall comply with federal standards for radio frequency emissions. If concerns regarding compliance with radio frequency emissions standards for a WCF have been made to the city, the city may request that the owner or operator of the WCF provide information demonstrating compliance. If such information is not sufficient, in the reasonable discretion of the city, to demonstrate compliance, the city may request and the owner or operator of the WCF shall then submit a project implementation report which provides cumulative field measurements of radio frequency emissions of all antennas installed at the subject site, and which compares the results with established federal standards. If, upon review, the city finds that the facility does not meet federal standards, the city may require corrective action within a reasonable period of time, and if not corrected, may require removal of the WCF pursuant to this section and subsection 18.90.040(f). Any reasonable costs incurred by the city, including reasonable consulting costs to verify compliance with these requirements, shall be paid by the owner or operator.

(c) *Signal interference.* All WCFs shall be designed and sited, consistent with applicable federal regulations, so as not to cause interference with the normal operation of radio, television, telephone and other communication services utilized by adjacent residential and nonresidential properties; nor shall any such facilities interfere with any public safety communications. The applicant shall provide a written statement ("signal interference letter") from a professionally licensed radio frequency engineer, certifying that a technical evaluation of existing and proposed facilities indicates no potential interference problems and shall allow the city to monitor interference levels with public safety communications during this process.

(d) *Legal access.* In all applications for WCFs outside of the right-of-way, an applicant must warrant and represent that it owns or has lease rights to the site.

(e) *Operation and maintenance.* To ensure the structural integrity of WCFs, the owner of a WCF shall ensure that it is maintained in compli-

ance with standards contained in applicable local building and safety codes. If upon inspection, the city concludes that a WCF fails to comply with such codes and constitutes a danger to persons or property, then, upon written notice being provided to the owner of the WCF, the owner shall have 30 days from the date of notice to bring such WCF into compliance. Upon good cause shown by the owner, the city's building official may extend such compliance period not to exceed 90 days from the date of said notice. If the owner fails to bring such WCF into compliance within said time period, the city may remove such WCF at the owner's expense.

(f) *Abandonment and removal.* If a WCF has not been in use for a period of three months, the owner of the WCF shall notify the city of the non-use and shall indicate whether re-use is expected within the ensuing three months. Any WCF that is not operated for a continuous period of six months shall be considered abandoned. The city, in its sole discretion, may require an abandoned WCF to be removed. The owner of such WCF shall remove the same within 30 days of receipt of written notice from the city. If the WCF is not removed within said 30 days, the city may remove it at the owner's expense and any approved permits for the WCF shall be deemed to have expired.

(Ord. No. 2195, § 2, 10-11-2022)

18.90.050 Design standards for WCFs located outside of the rights-of-way.

(a) The requirements set forth in this section shall apply to the location and design of all WCFs governed by this section as specified below, except for small cell facilities in the rights-of-way, where design standards are addressed in the master license agreement; provided, however, that the city may waive these requirements if it determines that the goals of this section are better served thereby. To that end, WCFs shall be designed and located to minimize the impact on the surrounding neighborhood and to maintain the character and appearance of the city, consistent with other provisions of the Code.

- (1) Camouflage/concealment. All WCFs and any transmission equipment shall, to the

extent possible, be concealed, so that the WCF looks like something other than a wireless facility. Where concealment is not technically feasible, WCFs and any transmission equipment shall use camouflage design techniques including, but not limited to the use of materials, colors, textures, screening, undergrounding, landscaping, or other design options that will blend the WCF to the surrounding natural setting and built environment. Design, materials and colors of WCFs shall be compatible with the surrounding environment. Designs shall be compatible with structures and vegetation on the same parcel and adjacent parcels.

- a. Concealment and camouflage design techniques may be of heightened importance where findings of particular sensitivity are made (e.g. proximity to historic or aesthetically significant structures, views, and/or community features). In such instances where WCFs are located in areas of high visibility, they shall (where possible) be designed (e.g., placed underground, depressed, or located behind earth berms) to minimize their profile.
 - b. The concealment design may include the use of alternative tower structures should the director determine that such design meets the intent of the Code and the community is better served thereby.
 - c. All WCFs, such as antennas, vaults, equipment rooms, equipment enclosures, and tower structures shall be constructed out of non-reflective materials (visible exterior surfaces only).
- (2) Wall-mounted WCFs shall not extend above the roofline unless mounted to a penthouse.
 - (3) Roof-mounted WCFs shall be approved only where an applicant demonstrates a wall-mounted WCF is inadequate to

provide service and shall be evaluated for approval based upon the following criteria:

- a. Roof-mounted whip antennas shall extend no more than 12 feet above the parapet of any flat roof or ridge of a sloped roof or penthouse to which they are attached;
 - b. Roof-mounted panel antennas shall extend no more than seven feet above the parapet of a flat roof or ridge of a sloped roof to which they are mounted; and
 - c. Other roof-mounted related accessory equipment shall extend no more than seven feet above any parapet of a flat roof upon which they may be placed, and shall not be permitted on a sloped roof.
- (4) Hazardous materials. No hazardous materials shall be permitted in association with WCFs, except those necessary for the operations of the WCF and only in accordance with all applicable laws governing such materials.
 - (5) Siting.
 - a. No portion of any WCF may extend beyond the property line of the lot upon which it is located.
 - b. Collocation. WCFs may be required to be designed and constructed to permit the facility to accommodate WCFs from at least two wireless service providers on the same WCF unless the city approves an alternative design. No WCF owner or operator shall unfairly exclude a competitor from using the same facility or location.
 - c. WCFs shall be sited in a location that does not reduce the parking for the other principal uses on the parcel below Code standards.
 - (6) Lighting. WCFs shall not be artificially lighted, unless required by the FAA or other applicable governmental authority, or the WCF is mounted on a light pole or

other similar structure primarily used for lighting purposes. If lighting is required, the city may review the available lighting alternatives and approve the design that would cause the least disturbance to the surrounding views. Lighting shall be shielded or directed to the greatest extent possible so as to minimize the amount of glare and light falling onto nearby properties, particularly residences.

(7) Landscaping requirements.

- a. WCFs shall be sited in a manner that does not reduce the landscaped areas for the other principal uses on the parcel below Code standards.
- b. WCFs shall be landscaped with a buffer of plant materials that effectively screen the view of the WCF from adjacent residential property. The standard buffer shall consist of the front, side, and rear landscaped setback on the perimeter of the site.
- c. In locations where the visual impact of the WCF would be minimal, the landscaping requirement may be reduced or waived altogether by the director.
- d. Existing mature tree growth and natural landforms on the site shall be preserved to the maximum extent possible. In some cases, such as WCFs sited on large, wooded lots, natural growth around the site perimeter may be a sufficient buffer.
- e. No trees larger than four inches in diameter measured at four and one-half feet high on the tree may be removed, unless authorized by the director. To obtain such authorization the applicant shall show that tree removal is necessary, the applicant's plan minimizes the number of trees to be removed and any trees removed are replaced at a ratio of two to one.

(8) Noise. Noise generated on the site must not exceed the standards permitted in the Code, except that a WCF owner or operator shall be permitted to exceed Code noise standards for a reasonable period of time during repairs, not to exceed two hours without prior authorization from the city.

(9) Additional design requirements shall be applicable to the various types of WCFs as specified below:

- a. *Base stations.* If an antenna is installed on a structure other than a tower, such as a base station (including, but not limited to the antennas and accessory equipment) it shall be of a neutral, non-reflective color that is identical to, or closely compatible with, the color of the supporting structure, or uses other camouflage/concealment design techniques so as to make the antenna and related facilities as visually unobtrusive as possible.
- b. *Alternative tower structures.*
 1. Shall be designed and constructed to look like a building, facility, or structure typically found in the area;
 2. Height or size of the proposed alternative tower structure should be minimized as much as possible and shall be subject to the maximum height restrictions of the zoning district in which they are located;
 3. Shall be sited in a manner that is least obtrusive to residential structures and residential district boundaries;
 4. Shall take into consideration the uses on adjacent and nearby properties and the compatibility of the facility to these uses;
 5. Shall be compatible with the surrounding topography, tree coverage, and foliage;

6. Shall be designed utilizing design characteristics that have the effect of reducing or eliminating visual obtrusiveness; and
 7. Visual impacts of the proposed ingress and egress shall be minimized.
- c. *Towers.*
1. Towers shall either maintain a galvanized steel finish, or, subject to any applicable FAA standards, be painted a neutral color so as to reduce visual obtrusiveness as determined by the city;
 2. Tower structures should use existing land forms, vegetation, and structures to aid in screening the facility from view or blending in with the surrounding built and natural environment;
 3. Monopole support structures shall taper from the base to the tip;
 4. All towers shall be enclosed by security fencing or wall at least six feet in height. No security fencing or any portion thereof shall consist of barbed wire or chain link material;
 5. Towers shall be subject to the maximum height restrictions of the zoning district in which they are located;
 6. Towers should be sited in a manner that that is least obtrusive to residential structures and residential district boundaries where feasible;
 7. Towers should take into consideration the uses on adjacent and nearby properties and the compatibility of the tower to these uses;
 8. Towers should be designed utilizing design characteristics that have the effect of reducing or eliminating visual obtrusiveness;
 9. Visual impacts of the proposed ingress and egress shall be minimized;
 10. No new towers shall be permitted unless the applicant demonstrates to the reasonable satisfaction of the city that no existing WCFs can accommodate the needs that the applicant proposes to address with its tower application. Evidence submitted to demonstrate that no existing WCF can accommodate these needs may consist of the following:
 - (i) No existing WCFs are of sufficient height and are located within the geographic area required to meet the applicant's engineering requirements;
 - (ii) Existing WCFs do not have sufficient structural strength to support applicant's proposed WCF;
 - (iii) The applicant's proposed WCFs would cause electromagnetic interference with the WCFs on the existing WCFs or the existing WCF would cause interference with the applicant's proposed WCF; and
 - (iv) The applicant demonstrates that there are other limiting factors that render existing WCFs unsuitable for collocation.

11. A tower shall meet the greater of the following minimum setbacks from all property lines:

- (i) The setback for a principal building within the applicable zoning;
- (ii) Twenty-five percent of the facility height, including WCFs and transmission equipment; or
- (iii) The tower height, including antennas, if the tower is in or adjacent to a residential district or residential zoned property.
- (iv) Towers over 40 feet in height shall not be located within one-quarter mile from any existing tower that is over 40 feet in height, unless the applicant has shown to the satisfaction of the city that there are no reasonably suitable alternative sites in the required geographic area which can meet the applicant's needs.

12. Towers are prohibited in the rights-of-way.

d. *Related accessory equipment.* Accessory equipment for all WCFs shall meet the following requirements:

- 1. All buildings, shelter, cabinets, and other accessory components shall be grouped as closely as technically possible;
- 2. The total footprint coverage area of the WCF's accessory equipment shall not exceed 350 square feet;
- 3. No related accessory equipment or accessory structure shall exceed 12 feet in height;
- 4. Accessory equipment, including, but not limited to, remote radio units, shall be located

out of sight whenever possible by locating behind parapet walls or within equipment enclosures. Where such alternate locations are not available, the accessory equipment shall be camouflaged or concealed.

(Ord. No. 2195, § 2, 10-11-2022)

18.90.060 Review procedures and requirements.

(a) No new WCF shall be constructed and no collocation or modification to any WCF may occur except after a written request from an applicant, reviewed and approved by the city in accordance with this chapter. All WCFs, except eligible facilities requests, shall be reviewed pursuant to the following procedures:

- (1) *Submittal requirements.* Each applicant for a WCF shall be required to submit:
 - a. A completed application form;
 - b. Submittal fee as established by resolution of city council;
 - c. Signal interference letter (subsection 18.90.040(c));
 - d. Inventory of existing sites (subsection 18.90.060(a)(2));
 - e. A scaled site plan, photo simulation, scaled elevation view and other supporting drawings, calculations, and other documentation, signed and sealed by appropriate qualified professionals, showing the location and dimension of all improvements, including information concerning topography, radio frequency coverage, tower height, setbacks, drives, parking, fencing, landscaping, adjacent uses, and drainage.
 - f. Any other information deemed necessary by the city to determine compliance with this section.
- (2) *Inventory of existing sites.* Each applicant for a WCF shall provide to the director a narrative and map description of the applicant's existing or then currently

proposed WCFs within the city, and outside of the city within one mile of its boundaries. In addition, the applicant shall inform the city generally of the areas of the city in which it believes WCFs may need to be located within the next three years. The inventory list should identify the site name, site address, and a general description of the facility (for example, rooftop antennas and ground mounted equipment). This provision is not intended to be a requirement that the applicant submit its business plan, proprietary information, or make commitments regarding locations of WCFs within the city. Rather, it is an attempt to provide a mechanism for the city and all applicants for WCFs to share general information, assist in the city's comprehensive planning process, and promote collocation by identifying areas in which WCFs might be appropriately constructed for multiple users.

The city may share such information with other applicants applying for administrative approvals or special use permits under this section or other organizations seeking to locate WCFs within the jurisdiction of the city, provided however, that the city is not, by sharing such information, in any way representing or warranting that such sites are available or suitable.

- (3) *Applications for base stations, alternative tower structures, and alternative tower structures within right-of-way.* In all zoning districts and planned unit developments, each application for a base station, alternative tower structure, or alternative tower structures within the right-of-way shall be reviewed and considered for approval by the city for conformance with this section and section 18.30.020 of the City Code. Except for WCFs in the right-of-way that meet all requirements of this chapter, the director may refer the application to planning and zoning commission for special use permit review if the director finds the

proposed WCF to have a significant visual impact (e.g., proximity to historic or designated view corridors, or on significant community features), or otherwise is substantially incompatible with the structure on which the WCF will be installed, or it does not meet the clear intent of this chapter.

- (4) *Applications for towers.* In all zoning districts and planned unit developments, towers may be permitted only upon acquisition of a special use approved by the planning commission. Such towers shall be reviewed for conformance to this section using the special use permit review procedures set forth in section 18.30.020 of the City Code in conjunction with the applicable provisions of this section. All applications for towers shall demonstrate that other alternative design options such as base stations or alternative tower structures are not viable options.
- (5) *Timeframes for review.*
- a. All WCFs, other than those specified below in subsection (6), shall be reviewed according to the following timeframes:
 1. Review of an application to collocate a facility other than a small cell facility on an existing tower or base station: 90 days.
 2. Review of an application to deploy a small cell facility on a new structure: 90 days.
 3. Review of an application to deploy a WCF other than a small cell facility on a new structure: 150 days.
 4. Review of an application for a new tower, base station, or alternative tower structure [that does not qualify as a small cell facility]: 150 days.
 - b. Tolling the timeframe for review. The relevant review timeframe begins to run when the application

is filed with the city, and may be tolled only by mutual agreement or where the city determines that an application is incomplete.

1. To toll the timeframe for incompleteness, the city shall provide written notice to the applicant within 30 calendar days of receipt of the application, specifically delineating all missing documents or information required in the application;
2. Upon providing the notice of incompleteness to the applicant, the timeframe for review pauses. The timeframe for review begins running again when the applicant makes a supplemental written submission in response to the city's notice of incompleteness; and
3. Following a supplemental submission, the city will notify the applicant within ten business days whether the supplemental submission did not provide the information identified in the original notice delineating missing information. The timeframe is tolled in the case of second or subsequent notices pursuant to the procedures identified in subparagraph b.1 of this subsection. In the case of a second or subsequent notice of incompleteness, the city may not specify missing documents or information that were not delineated in the original notice of incompleteness.

(6) *Review procedures for eligible facilities requests.*

- a. *Application.* In all zoning districts and planned unit developments, eligible facilities requests for collocation on or modification of an exist-

ing tower or base station shall be considered a use by right subject to administrative review and determination by the director. The city shall prepare, and make publicly available, an application form which shall be limited to the information necessary for the city to consider whether an application is an eligible facilities request. Such information may include, without limitation, whether the request:

1. Would result in a substantial change;
2. Violate a generally applicable law, regulations, or other rule reasonably related to public health and safety.

The application may not require the applicant to demonstrate a need or business case for the proposed modification or collocation.

- b. *Type of review.* Upon receipt of an application for an eligible facilities request pursuant to this section, the director shall review such application to determine whether the application so qualifies.
- c. *Timeframe for review.* Subject to the tolling provisions of subparagraph d. Below, within 60 days of the date on which an applicant submits an application seeking approval under this section, the city shall approve the application unless it determines that the application is not covered by this subsection.
- d. *Tolling of the timeframe for review.* The 60-day review period begins to run when the application is filed, and may be tolled only by mutual agreement of the city and the applicant, or in cases where the director determines that the application is incomplete:

1. To toll the timeframe for incompleteness, the city must provide written notice to the

- applicant within 30 days of receipt of the application, specifically delineating all missing documents or information required in the application;
2. The timeframe for review begins running again when the applicant makes a supplemental written submission in response to the city's notice of incompleteness; and
 3. Following a supplemental submission, the city will notify the applicant within ten days that the supplemental submission did not provide the information identified in the original notice delineating missing information. The timeframe is tolled in the case of second or subsequent notices pursuant to the procedures identified in paragraph d.1. In the case of a second or subsequent notice of incompleteness, the city may not specify missing documents or information that were not delineated in the original notice of incompleteness.
- e. *Failure to act.* In the event the city fails to act on a request seeking approval for an eligible facilities request under this section within the timeframe for review (accounting for any tolling), the request shall be deemed granted. The deemed grant becomes effective when the applicant notifies the city in writing after the review period has expired (accounting for any tolling) that the application has been deemed granted.
 - f. *Interaction with Telecommunications Act, 47 U.S.C. Section 332(c)(7).* If the city determines that the applicant's request is not an eligible facilities request as set forth in this section, the applicant shall be advised as to the relevant provisions of the City Code that govern the process to consider the request, and whether the Code requires any additional information to be submitted in order for the request to be considered complete. If the applicant subsequently indicates an intent for the proposal to be considered under the relevant section of the City Code and submits all required information, the presumptively reasonable timeframe under Section 332(c)(7) [of the Act], as set forth in applicable federal and state law will begin to run from submittal of the required information.
- (7) *Abandonment and removal.* Prior to approval, affidavits shall be required from the owner of the property and from the applicant acknowledging that each is responsible for the removal of a WCF, including related accessory equipment, that is abandoned or is unused for a period of six months.
 - (8) *Decision.* Any decision to approve, approve with conditions, or deny an application for a WCF shall be in writing and supported by substantial evidence in a written record, and shall be provided to the applicant within ten days the decision. If the approval is for a concealed WCF, the written decision shall specifically identify that the WCF is a concealed facility.
 - (9) *Compliance with applicable law.* Notwithstanding the approval of an application for collocation as described herein, all work done pursuant to WCF applications must be completed in accordance with all applicable building and safety requirements as set forth in the City Code and any other applicable regulations. In addition, all WCF applications shall comply with the following:
 - a. Comply with any permit or license issued by a local, state, or federal agency with jurisdiction of the WCF;

- b. Comply with easements, covenants, conditions and/or restrictions on or applicable to the underlying real property;
- c. Be maintained in good working condition and to the standards established at the time of application approval or as otherwise required by applicable law; and
- d. Remain free from trash, debris, litter, noxious weeds, graffiti, and other forms of vandalism. Any damage shall be repaired as soon as practicable, and in no instance more than ten calendar days from the time of notification by the city or after discovery by the owner or operator of the site.

(10) *Compliance report.* Upon request by the city, the applicant shall provide a compliance report within 45 days after installation of a WCF, demonstrating that as installed and in operation, the WCF complies with all conditions of approval, all applicable city requirements and standard regulations.

(Ord. No. 2195, § 2, 10-11-2022)

18.90.070 Special use permit standards for approval.

(a) Any WCF, including related accessory equipment, subject to acquisition of a special use permit shall be reviewed in accordance with the procedure set forth in section 18.30.020 of the Code subject to the following criteria:

(1) *Base stations.*

- a. Such facilities shall be architecturally compatible with respect to attachments, and colored to match the building or structure to which they are attached;
- b. The maximum protrusion of such facilities from the building or structure face to which they are attached shall be six feet;

c. Wall-mounted WCFs shall not extend above the roofline unless mounted to a penthouse; and

d. Roof-mounted WCFs shall be approved only where an applicant demonstrates a wall mounted WCF is inadequate to provide service and evaluated for approval based upon the following criteria:

1. Roof-mounted whip antennas shall extend no more than 12 feet above the parapet of any flat roof or ridge of a sloped roof or penthouse to which they are attached;
2. Roof-mounted panel antennas shall extend no more than seven feet above the parapet of a flat roof or ridge of a sloped roof to which they are mounted; and
3. Other roof-mounted transmission equipment shall extend no more than seven feet above any parapet of a flat roof upon which they may be placed, and shall not be permitted on a sloped roof.

(2) *Alternative tower structures.*

- a. Such structures shall be architecturally compatible with the surrounding area;
- b. Height or size of the proposed alternative tower structure should be minimized as much as practically possible;
- c. WCFs shall be sited in a manner that evaluates the proximity of the facility to residential structures and residential district boundaries;
- d. WCFs shall take into consideration the uses on adjacent and nearby properties and the compatibility of the facility to these uses;
- e. Compatibility with the surrounding topography;

- f. Compatibility with the surrounding tree coverage and foliage;
 - g. Compatibility of the design of the site, with particular reference to design characteristics that have the effect of reducing or eliminating visual obtrusiveness; and
 - h. Impact on the surrounding area of the proposed ingress and egress, if any.
- (3) *Towers.* The city shall within the framework of the review criteria set forth in this chapter consider the following factors in determining whether to issue a special use permit, although the city may waive or reduce the burden on the applicant of one or more of these criteria if the city concludes that the goals of this chapter are better served thereby.
- a. Height or size of the proposed tower;
 - b. Proximity of the tower to residential structures and residential district boundaries;
 - c. Nature of uses on adjacent and nearby properties;
 - d. Compatibility with the surrounding topography;
 - e. Compatibility with the surrounding tree coverage and foliage;
 - f. Design of the tower, with particular reference to design characteristics that have the effect of reducing or eliminating visual obtrusiveness;
 - g. Proposed ingress and egress; and
 - h. No new towers shall be permitted unless the applicant demonstrates to the reasonable satisfaction of the city that no existing WCFs can accommodate the needs that the applicant proposes to address with its tower application. Evidence submitted to demonstrate that no existing WCF can accommodate these needs may consist of the following:
 - 1. No existing WCFs with a suitable height are located within the geographic area required to meet the applicant's engineering requirements;
 - 2. Existing WCFs do not have sufficient structural strength to support applicant's proposed WCF;
 - 3. The applicant's proposed WCFs would cause electromagnetic interference with the WCFs on the existing WCFs or the existing WCF would cause interference with the applicant's proposed WCF; and
 - 4. The applicant demonstrates that there are other limiting factors that render existing WCFs unsuitable for collocation.

(Ord. No. 2195, § 2, 10-11-2022)

ORDINANCE LIST AND DISPOSITION TABLE

Ord. No.	Date	Code Section and Discription
957		Adds 4.84.020 liquor code distance restrictions
958		Adds Ch. 11.24, Street damage
959		Rezone 1414 Washington Avenue (special)
960		Rezone 1420 Washington Avenue (special)
961		Revenue Notes CSM (special)
962		Amends 821 (special)
963		Rezone area of Hwy. 93 and 4th Avenue (special)
964		Approves flood hazard area delineation maps
965		Repeals and reenacts 2.12.050, Cemetery charges
966		Annexation amends 822 and 836 (special)
967		Annexation area of Washington Avenue and Park Street (special)
968		Rezone area of Washington Avenue and Park Street (special)
969		Repeals and reenacts 3.05.045(a) building materials use tax
970		Telephone subscriber tariff (special)
971		Funds transfer office auto needs (special)
972		Repeals and reenacts Ch. 4.44, Solicitation
973		Repeals and reenacts 8.04.540, Trespassing
974		Vacation portion 15th Street ROW (special)
975		Funds transfer Comm.Dev.Plan/Reg.Consul. (special)
976		Fund
976		Funds transfer civil litigation settlement fund (special)
977		Enacts Ch. 15.01, contractor registration; added, repealed or reenacted Ch. 15.08; repealed and reenacted or readopted Ch. 15.12; enacted Ch. 15.14; enacted Ch. 15.15; enacted Ch. 15.30
978		Amends 10.04.020, Model Traffic Code
979		Repeals and reenacts Title 19, Floodplain hazard areas
980		Amends 10.04.020, Model Traffic Code
981		Repeals and reenacts 8.04.065, 8.04.070 and 8.04.075, Penal Code
982		Funds transfer economic development program (special)
983		Repeals and reenacts 1.04.010, Council candidate nominating petitions
984		Rezone vicinity of 20001 West Colfax (special)
985		Enacts Ch. 13.14, Wastewater pretreatment requirements
986		Creating 15th Street Local Improvement District (special)
987		Vacation unimproved Pinal Road (special)
988		Funds transfer Golden Cemetery Grave Space Repurchase Trust (special)
989		Amends Downtown Development Authority ordinance (special)
990		Vacation "A" Street south of High Parkway (special)
991		Vacation unvacated alleys in Block 59, south side Clear Creek and portion of unvacated 16th Street (special)
992		Amends 8.04.055 of Penal Code
993		Repeals and reenacts 2.04.010, Time of meetings; repeals and reenacts 2.04.020, Organizational meeting; and repeals and reenacts 2.08.012 Salaries

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
994		Historic site designation: 1700 Maple Street (special)
995		Repeals and reenacts 8.16.030, Procedure for disposition of lost or abandoned cash
996		Repeals and reenacts 13.04.040, System development fee schedule
997		Authorizes E911 service user charge (special)
998		Amends Title 3, Retail sales and use tax
999		Funds transfer Sinking Fund Fire Equipment (special)
1000		Amends Chs. 13.08 and 13.10 relating to water and sewer rates
1001		Amends Ch. 4.32 relating to cabarets and nightclubs
1002		Repeals and reenacts Chs. 15.08, 15.12, 15.16, 15.17
1003		Amends Ch. 13.14 and relating to wastewater pretreatment requirements
1004		Amends Ch. 14.04 and relating to water meter obstructions
1005		Amends Ch. 18.32 and relating to sign permits
1006		Vacation (special) alley in Block 7, Golden Park Addition
1007		Vacation (special) portion of Vernon Street south of 18th Street
1008		Vacation portion of 4th Street adjacent to Blocks 5 and 6, Golden Park Addition (special)
1009		Amends Ch. 13.04 and relating to system development fee credit for demolished buildings
1010		Abolishes board of adjustment and provides for general variance procedures, special use permits and reenacts sections of UBC and UFC relating to appeals procedures
1011		Enacts Ch. 5.28, Smoking
1012		Enacts Ch. 10.79, Administrative procedures regarding impoundment of abandoned vehicles/illegally parked vehicles
1013		Funds transfer Sinking Fund Highway 93 bypass fund to Five-year capital programs street improvements fund (special)
1014		Water rate schedule for Pleasant View amendment
1015		Historic preservation board number of members
1016		Municipal court amendments
1017		Transfer of funds to council and manager
1018		Mixed-use shared parking
1019		Water service fees and delinquency charges amendment
1020		Transfer of funds from contingency to police department
1021		Variance procedure amendments
1022		Bond Issue Rimrock Tank, Cosmic Settlement, etc.
1023		Vacation West 4th Avenue
1024		Transfer of funds from contingency to street department
1025		Handbill distribution
1026		Redistricting of ward boundaries
1027		Vending cart regulations
1028		Fire code amendments
1029		Rezoning Barber's Third Addition property
1030		Weight restrictions on South Highway 93
1031		Historic designation 1900 19th Street
1032		Transfer of funds from contingency to cemetery repurchase
1033		Wastewater pretreatment requirements

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1034		Floodplain hazard areas
1035		Parks and recreation board length of terms of appointees
1036		Rezoning 18.6 acres west of Wier between 10th and 12th
1037		Transfer of funds from contingency to various departments
1038		Rezoning south side of 16th between Jackson and Ford
1039		Vacation portion of Carter Street
1040		Vacation portion of 11th Street east of Ford
1041		Sales and Use Tax Ordinance amendment re: transient sales
1042		Covered walkway signage
1043		No ordinance
1044		Public service company franchise
1045		Cabaret license petitioning requirements
1046		Annexation 73.38 acres southwest of intersection of Highways 6 and 93
1047		Rezoning 73.38 acres southwest of intersection of [Highways] 6 and 93
1048		Amending electric code
1049		Vacates easements within Corporate Place Subdivision (special)
1050		Vacates certain easements and ROW in Mesa Meadows PUD (special)
1051		Amending Ch. 15.08, Covered walkways
1052		Historic site designation: 518 9th Street (special)
1053		Amending Title 3, Retail sales and use tax
1054		Amending Ch. 13.13, Wastewater standards
1055		Amending 19.12.025 and 10.28.020; repealing 19.08.060; 19.08.070; 19.38.020(3)(c) and 19.28.030(3)
1056		Amending Ch. 4.04, Business licenses city clerk to city treasurer; amending 4.04.030 and 4.04.060
1057		Transferring \$906,000.00 bond surplus revenues to Util. Fund Cap. Prog. and Approp. \$409,000.00 to Util. Fund Water Purchase (special)
1058		Repeals and reenacts Ch. 5.08, regarding trash removal and enclosures
1059		Historic site designation: 809 15th Street (special)
1060		Historic site designation: 1510 Washington Avenue (special)
1061		Amending 10.76.220 regarding gross weight of trucks
1062		Repeals and reenacts Ch. 11.20, regarding street cuts
1063		Amending Ch. 13.08, regarding water and sewer rates
1064		Vacation Alley 19th to 18th between Jackson and Ford Streets (special)
1065		Moratorium on enforcement of weight limits for trucks
1066		Repeals and reenacts Ch 18.32, regarding signs
1067		Addition of Ch. 10.85, regarding bicycles
1068		Vacation easements Block 2, Lots 1 and 25 Dennis Second Resubdivision (special)
1069		Repeals and reenacts Ch. 11.04, regarding street surfacing special improvement district assessment policies
1070		Vacation portion of Eagle Ridge Drive (special)
1071		Amends Ord. 1061 - Moratorium on effective date for enforcement weight limits on Washington Avenue
1072		Amends 2.12.060(b) regarding cemetery operations fund
1073		Amends Chs. 13.08 and 13.10, regarding water and sewer rates
1074		General obligation water bonds \$4,960,000.00

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1075		Amends Ords. 821, 943 and 962 regarding cable television permit (Repealed by Ord. 1310)
1076		Amends Chs. 13.04 and 13.12 regarding water and sewer system development fees
1077		No ordinance
1078		Approves the Golden Urban Renewal Plan (special)
1079		General obligation water bonds \$2,345,000.00 (special)
1080		Canyon Point annexation (special)
1081		Canyon Point rezoning (special)
1082		Thermal Dynamics annexation (special)
1083		Thermal Dynamics rezoning (special)
1084		Amends Title 18, Moratorium on utility substations
1085		Amends 18.58.050(1) extending term of HPB appointments from three to four years
1086		Repeals all sections of Ch. 7.12 regarding vicious dogs and enacting new Ch. 7.13, Vicious animals
1087		Supplemental appropriations (special)
1088		Utility fund supplemental appropriations (special)
1089		Amends Ch. 18.54, Parks and recreation board
1090		Authorizes Promissory Note Purchase of Upper Urad Reservoir (special)
1091		Supplemental appropriations (special)
1092		Repeals, reenacts or amends portions of Titles 1, 2, 3, 4, 5, 8, 10, 13, 15 and 18 regarding reference to Municipal Code; decriminalization of traffic offenses; penalty provisions and municipal court procedures
1093		Repeals and reenacts 17.52.040(2) regarding parkland dedication fees
1094		Repeals and reenacts 2.12.060 regarding cemetery perpetual care fund investments and interest earnings
1095		Repeals Chs. 11.08, 11.12 and 11.16 and reenacts Ch. 11.08, Sidewalks
1096		Repeals and reenacts Chs. 13.13 and 13.14 regarding wastewater pretreatment
1097		Supplemental appropriations utility fund (special)
1098		Extending effective date of Ord. 1084 regarding utility substations
1099		Authorizes city manager power to delegate to police chief rules and regulations concerning operation of police department
1100		Rezones 1010 10th Street (special)
1101		Amends Ord. 1061 weight limits
1102		Repeals and reenacts Ch. 5.08 regarding junk, garbage and trash containers
1103		Supplemental appropriation (special)
1104		Vacation (special) 9th Street between Jackson and Ford
1105		Amends Ch. 18.50 regarding historic preservation
1106		Amends Ord. 1096, Chs. 13.13 and 13.14 creating appeals process
1107		Repeals and reenacts Ch. 18.30, Special use permits
1108		Extends Ordinance No. 1084, relating to uses, utility substations
1109		Supplemental appropriations (special)
1110		Amends Title 8; enacts new Ch. 8.20 to create Drug free zones; repeals and reenacts 8.04.595
1111		Annexation Kelley Park (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1112		Rezoning Kelley Park (special)
1113		Rezoning Coors North Industrial Park (special)
1114		Vacation Goldco Circle/Gregory Drive walkway (special)
1115		Historic site designation: 1704 Illinois (special)
1116		Repeals and reenacts Title 7, Animals
1117		Repeals and reenacts Ch. 13.08, relating to payment and collection of charges for water services
1118		Amends Titles 3 and 4; repeals 3.02.005; repeals and reenacts 3.02.015, 3.02.080, Ch. 3.03, Ch. 4.04; amends 4.18.020 and 4.80.020
1119		Repeals Resolution No. 297, approves Economic Incentives Program
1120		Supplemental appropriations (special)
1121		Amends Title 3 relating to rate and distribution of sales and use tax; repeals and reenacts 3.04.040, 3.04.060(a), 3.05.030, 3.05.045(a) and (b), 3.10.030, 3.10.040, 3.10.060(b), (c) and (e); enacts new Ch. 3.12
1122		Supplemental appropriations (special)
1123		Amends Title 13; repeals and reenacts Ch. 13.10, sewer charges
1124		Vacation alley in Block J Kinneys Addition (special)
1125		Amends Titles 3 and 4; repeals 3.02.005; repeals and reenacts 3.02.015, 3.02.080, Ch. 3.03, Ch. 4.04; amends 4.18.020
1126		Amends Ch. 1.01 relating to injunctive relief; enacts 1.01.150
1127		Amends Title 4 relating to the collection of garbage, trash, junk and recyclables; repeals and reenacts Ch. 4.80
1128		Amends Title 18 relating to use, cellular telephone or mobile, communication facilities, moratorium
1129		Amends Ch. 10.76 relating to north Washington Avenue Weight limits; repeals 10.76.240(d)
1130		Budget transfers (special)
1131		Tripp Ranch PUD zoning (special)
1132		No ordinance
1133		Amends Ch. 16.08 establishing fees for fire and emergency services out of city; enacts new 16.08.090
1134		Amends Title 4 relating to pawnbrokers and adult establishments, moratorium; enacts new Ch. 4.06
1135		Historic site designation: 820 15th Street (special)
1136		Historic site designation: 822 12th Street (special)
1137		Supplemental appropriation (special)
1138		Amends Ch. 13.04 relating to prohibition of polluting water sources; repeals and reenacts 13.04.080
1139		Amends Title 3 relating to standardization of language and intercity enforcement; repeals Ch. 3.11; repeals and reenacts Ch. 3.02; enacts new 3.04.090; repeals 3.09.040 and 3.09.060; enacts new 3.09.030, 3.09.040, 3.09.050, 3.09.060; repeals and reenacts 3.04.031(b), 3.04.070 and 3.04.020
1140		Budget transfers (special)
1141		Amends Ch. 2.08 relating to council salaries; repeals and reenacts 2.08.012
1142		Repeals and reenacts Title 8, Public peace and safety; repeals 4.64.50 and 4.64.60, alcoholic beverages

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1143		Repeals and reenacts Title 5; repeals Chs. 10.78 and 10.79, health and sanitation
1144		Repeals and reenacts Chs. 3.01, 3.03—3.12; and amends 3.02, retail sales and use tax
1145		Amends Ch. 4.06, extending Ord. 1134, moratorium on issuance of pawnbroker and adult entertainment licenses
1146		Amends Ch. 4.04, general business licenses; repeals and reenacts Ch. 4.52, pawnbrokers; adds new Ch. 4.60, adult entertainment
1147		Changes 1992 Budget Actual Carryover Cash and 1991 Encumbrances (special)
1148		Amends Ch. 4.04, Pertaining to general business licenses; repeals and reenacts Ch. 4.52, Pawnbrokers; enacts new Ch. 4.60, Adult entertainment
1149		Amends Ord. 1119, Deferment of Fees as Part of Incentive Program in Support of Economic Development (special)
1150		Moratorium utility substations (special)
1151		Repeals 13.04.080; adds new Ch. 13.18, Waterworks permit
1152		Repeals and reenacts Title 17, Subdivisions
1153		Repeals and reenacts Ch. 16.08, Fire administration
1154		Repeals and reenacts certain sections of Ch. 16.08 pertaining to administration and organization of fire department
1155		Amends 4.84.010, issuance of temporary permits for liquor licenses
1156		Amends Ch. 10.04, speed limits
1157		Adds Ch. 2.28, disposition of unclaimed property
1158		Supplemental appropriation (special)
1159		Moratorium utility substations (special)
1160		Changed 1992 Budget for construction Johnson Road (special)
1161		Repeals and reenacts 11.08.090(a), construction, repair or reconstruction of sidewalks, curbs, gutters
1162		Supplemental appropriation (special)
1163		Assessment of special tax for sidewalk and gutter repairs on certain real properties (special)
1164		Community Center Bond (special)
1165		Historic site designation: 1122 Washington Avenue (special)
1166		Historic site designation: 1120 Washington Avenue (special)
1167		Supplemental appropriation (special)
1168		Vacates ROW end of Mesa Drive at Ridge Road (special)
1169		Moratorium utility substations (special)
1170		Supplemental appropriation (special)
1171		No ordinance
1172		Conveys portion of Tract C, Lakota Hills Subdivision (special)
1173		Conveys city property at Heritage Square to Eagle Admixtures and executes agreement regarding access (special)
1174		Sale property on Floyd Hill to Pat Creek Mines, Inc. (special)
1175		Repeals and reenacts Ch. 11.08, Curbs, gutters and sidewalks
1176		Supplemental appropriation (special)
1177		No ordinance
1178		No ordinance

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1179		Amends portions of Title 18, Zoning and land use
1180		Amends portions of Title 3, Sales and use taxes
1181		Repeals and reenacts Ch. 13.13, Wastewater pretreatment
1182		Repeals and reenacts Ch. 13.14, Wastewater pretreatment
1183		Annexes land at Highway 40 and Rooney Road Casino Transportation (special)
1184		Rezones land at Highway 40 and Rooney Road (special)
1185		Amends Ch. 10.04, Handicapped parking
1186		Supplemental appropriation (special)
1187		Amends Ch. 3.05, Sales and use tax fee and period of license
1188		No ordinance
1189		Rezones 2414 Ford Street (special)
1190		Amends Ch. 2.04, Council meetings
1191		Amends Ch. 13.04, Water system development fees, and Ch. 13.12, Sewer charges
1192		Repeals Ch. 18.56, Clear Creek Overlay in its entirety
1193		Historic site designation: 1420 Washington Avenue (special)
1194		Historic site designation: 622 Water Street (special)
1195		Adds new Ch. 10.10, Compulsory motor vehicle insurance
1196		Adds new Ch. 10.06, Child restraints, and Ch. 10.07, Safety belts
1197		Amends 2.04.010, council meetings
1198		Supplemental appropriation (special)
1199		Adds new Ch. 15.10, Dangerous buildings
1200		Vacation ROW in Heritage So. Subdivision and License Agreement (special)
1201		Supplemental appropriation (special)
1202		Amends Ch. 13.04, Water system development fees, and Ch. 13.12, Sewer charges
1203		Historic designation: 805 13th Street (special)
1204		General Obligation Water Refunding Bonds, [Series] 1993, \$6,410,000.00 (special)
1205		Rezones land at Heritage Square to Greater Heritage PUD (special)
1206		No ordinance
1207		Repeals and reenacts Ch. 13.04, Water and sanitary sewer regulations; repeals Ch. 13.12
1208		Rezones land in Eagle Ridge Center Subdivision to PUD (special)
1209		Water and sanitary sewer system development fees (special)
1210		Repeals and reenacts Ch. 4.16, Amusement arcades, centers and devices; repeals Ch. 4.18
1211		Amends Title 8, Public peace and safety
1212		Adds new Ch. 8.19, Offenses involving minors
1213		Adds new Ch. 8.21, Street gang enforcement and prevention
1214		Adds new Ch. 13.01, Water and sanitary sewer enterprise; repeals Ch. 13.16
1215		Supplemental appropriations (special)
1216		Water rate increase from 2% to 0% (special)
1217		Amends 3.03.040, Heating appliances
1218		Adds Ch. 1.03, Open meetings

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1219		Amends CATV Permit Ordinances 943, 962 and 1075 (special) (Repealed by Ord. 1310)
1220		Vacates ROW 1300 Block Arapahoe Street (special)
1221		Sale and conveys property on Floyd Hill to Simonds (special)
1222		Sale and conveys property on Floyd Hill to Pat Creek Mines (special)
1223		Rezones 1950 Ford Street to RC (special)
1224		No ordinance
1225		Repeals and reenacts Title 15, Building and construction
1226		Repeals and reenacts Ch. 2.24, Rules and procedures for municipal court
1227		Repeals and reenacts 8.19.060, Parents appearance in court
1228		Adds new 7.05.050, Strict liability of animal owner
1229		Supplemental appropriation (special)
1230		Adds new Ch. 2.32, Code of ethics for all officials
1231		Repeals Chs. 13.08 and 13.10 and reenacts Ch. 13.08, Water and wastewater charges; amends Title 13, substitutes wastewater for sanitary sewer or sewer
1232		Vacates alley in Block 86 South Side of Clear Creek, Lots 1-6 and 12-7 (special)
1233		Supplemental appropriations (special)
1234		No ordinance
1235		Amends Titles 5, 13, 15 and 17 regarding stormwater
1236		Sale and conveys property on Floyd Hill to Barnes and DeVries (special)
1237		Bans fires and fireworks; declares emergency (special)
1238		Historic site designation: 710 10th street (special)
1239		Historic site designation: 1422 Washington Avenue (special)
1240		Vacates 12th Street Between East and Ford Streets (special)
1241		Extends time for Compliance with Ord. 1220 Re: Vacation of ROW 1300 Block Arapahoe Street (special)
1242		Zones Jackson Gulch Mining PUD, 1994 Agreement (special)
1243		No ordinance
1244		Amends Ch. 2.12, Cemeteries
1245		Adds 8.04.140, Domestic violence
1246		Annexes land at north end of North Ford Street (special)
1247		Zones land at north end of North Ford Street (special)
1248		Supplemental appropriation (special)
1249		Amends 8.04.400(c), sale of fireworks (effective for one year)
1250		Repeals Ord. 1237, Ban on fires and fireworks (special)
1251		Amends Chs. 13.13 and 13.14, Wastewater
1252		No ordinance
1253		Annexes various enclaves created by annexation of Canyon Point (special)
1254		Annexes various enclaves along Highways 6 and 58 (special)
1255		Zones various properties R2 annexed by Ords. 1253 and 1254 (special)
1256		Zones various properties PUD annexed by Ords. 1253 and 1254 (special)
1257		Supplemental appropriation (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1258		Vacation (special) Easement 1700 Block Arapahoe Street
1259		Amends 18.28.200, Creation of duplex and townhome subdivisions
1260		Amends overlook portion of Interstate Denver West PUD (special)
1261		Amends Ch. 18.58, Designation of historic designation
1262		Vacates south 16 feet 5th Street ROW and retains four feet utility easement (special)
1263		Historic site designation: 812 16th Street (special)
1264		Historic building: Burgess House (special)
1265		Historic building: Guy Hill School (special)
1266		Amends Ch. 16.04, UFC
1267		Supplemental appropriation (special)
1268		Amends Ch. 1.04, Ward boundaries
1269		No ordinance
1270		Amends CATV Permit Ordinances 943, 962, 1075 and 1219 (special) (Repealed by Ord. 1310)
1271		Annexes land owned by Chrysler Realty (special)
1272		Rezones land owned by Chrysler Realty (special)
1273		Amends 1.01.110(b), Penalties
1274		Vacates portion of alley Barbers 3rd addition, adjacent to lots 6 and 7, Block 7, retains 20 feet utility easement (special)
1275		No ordinance
1276		Easement agreement public service for Norman D. Park (special)
1277		Adds 13.04.220, sewer line clean up
1278		Vacates right-of-way/easements Kinney Run Condominiums Plat Amendment 2, Final Plat for Harmony Village (special)
1279		No ordinance
1280		Annexes Diamond Shamrock - S. Golden Road/Ulysses (special)
1281		Rezones Diamond Shamrock - S. Golden Road/Ulysses (special)
1282		Vacates ROW and utility easements in Corporate Center Business Park, Amends subdivision development agreement (special)
1283		Supplemental appropriation (special)
1284		Adopts city employees pension plan with ICMA (special)
1285		No ordinance
1286		Repeals and reenacts Ch. 16.04, repeals 8.04.400
1287		No ordinance
1288		Adopts police and fire pension plan with ICMA (special)
1289		Vacates and rededicates land dedicated as ROW and easements by Eagle Ridge Center Subdivision, approves Eagle Ridge Subdivision Filing No. 3 Plat and subdivision development agreement (special)
1290		Amends Title 15, Building and construction
1291		Amends 18.04.114, Re: kennel
1292		Amends Ch. 10, Re: traffic regulations
People's Ord. 95-1		Initiated ordinance limiting residential growth to one percent per year, effective 1996 (special)
1293		Annexes portion of U.S. Highway 40 (Colfax Avenue) (special)
1294		Annexes portion of U.S. Highway 40 (Colfax Avenue) (special)
1295		Rezones portions of U.S. Highway 40 Annexed by Ords. 1293 and 1294 (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1296		Annexes land owned by Kip Hampden, Ltd. - U.S. 40, Pike, Orion and W. 7th Avenue area (special)
1297		Rezones land owned by Kip Hampden, Ltd. as PUD - U.S. 40, Pike, Orion and W. 7th Avenue Area (special)
1298		Vacates unbuilt portions of Orchard and Orion Streets between W. 7th Avenue, etc. (special)
1299		Relates to People's Ordinance 95-1 (special)
1300		Not passed
1301		Vacates South eight feet of Sixth Street west of Maple Street (special)
1302		Amends Ord. 1289 Re: Eagle Ridge Center Filing No. 3 (special)
1303		Supplemental appropriation (special)
1304		Not passed
1305		Authorizes lease of property at 10th and Washington Avenue to Golden Visitor Center Corporation (special)
1306		Historic designation: Palmer-Hill Residence, 1200 9th Street (special)
1307		Historic designation: Faragher Residence, 807 9th Street (special)
1308		Approves easement agreement at Squaw Pass Road and Witter Gulch Road (special)
1309		Repeals and reenacts Title 10, 1995 Model Traffic Code
1310		Approves Cable Television Franchise Agreement with TCI (special)
1311		Amends employee agreement with city manager (special)
1312		Establishes Jefferson County Highway 93 Special Improvement District (special)
1313		Amending Ord. 1299 (special)
1314		Adopts Ch. 18.70, Residential growth management
1315		Repeals and reenacts Ch. 18.40, Site development standards—Commercial and multifamily
1316		Supplemental appropriation (special)
1317		Vacates portion of Maple Street ROW south of 19th Street (special)
1318		Conveys property located North of 11th Street at Arapahoe Street to Scott Coburn (special) (Extended by Ord. 1344)
1319		Amends provisions of city employee's money purchase plan - ICMA (special)
1320		Supplemental appropriation (special)
1321		Repeals Ch. 1.08
1322		Adopts Ch. 2.35, Administrative hearing procedures
1323		Adopts Uniform Election Code for Nov. 96 Election
1324		Rezones land located in lots 7, 8, 11 and 12, Block 59, south side of Clear Creek aka 709, 721, 733 and 745 15th Street and 704, 706, 708 and 710 16th Street (special)
1325		Rezones land located in S/W Quarter of S/W Quarter, Section 34, T4S R70W, west along extended 24th Street, between Highway 6 and Illinois Street (special)
1326		Supplemental appropriation (special)
1327		Conveys real property to Scheurer (special)
1328		Rezones portion of land located in lot 4, south side of Clear Creek, aka 809 East Street (special)
1329		Amends Ch. 18.32, Signs regarding freestanding signs for multitenant

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1330		Amends Ch. 15.08, Pertaining to grading; enacts Ch. 15.18, Grading
1331		Amends Title 18, regarding commercial low power telecommunications sites
1332		Approves final plat, vacation and dedication of certain land and subdivision development agreement (special)
1333		Rezones land at 19th and Jones Road - Ellickson (special)
1334		Annexes land owned by Gragg and Rocky Mountain Outdoor Advertising Co. - S11, T4S (special)
1335		Rezones land owned by Gragg and Rocky Mountain Outdoor Advertising - T4S, R70W (special)
1336		Enacts new Ch. 11.35, pertaining to undergrounding and relocation of facilities of U.S. West and TCI of Colorado
1337		Rezones certain land located in Block B, Barber's Addition, aka 808, 810, 812 and 814 Cheyenne Street
1338		Repeals and reenacts 18.70.110 re: residential growth management
1339		Amends 2.08.060(c), 16.08.010 and 16.08.020 re: appointment, duties and responsibility of fire chief
1340		Supplemental appropriation (special)
1341		Amends Chs. 13.13 and 13.14, wastewater pretreatment requirements
1342		Rezones land in lots 19—24, Balk 17, Welch's Addition (special)
1343		Deannexes tract of land located in S9, T4S, R70 W on Lookout Mountain (special)
1344		Conveys real property located north of 11th Street to Scott Coburn (special) (Extended by Ord. 1366)
1345		Annexes land in W½, S21, T3S, R70W, owned by Foss Arabians - North Golden Edge and city owned Pine Ridge Road ROW and Water Tank Site (special)
1346		Zones Land in W½, S21, T3S, R70W, owned by Foss Arabians - North Golden Edge (special)
1347		Amends provisions of Overlook portion of Interstate Denver West PUD, SE of I-70, S11, T4S, R70W (special)
1348		Extends compliance time for conditions of Ord. 1332 re: Final subdivision plat - Chrysler Realty Corp, Golden Dodge (special)
1349		Annexes land located in SW¼ S28, T3S, R70W owned by George W. Parfet Estate, Inc. (special)
1350		Zones land located in SW¼ S28, T3S, R70W owned by George W. Parfet Estate, Inc. (special)
1351		Adds new Ch. 2.06, Publication of ordinances, re: dates
1352		Rezones land in Secs. 10 and 15, T4S, R70W owned by Western Mobile in Heritage Square PUD (special)
1353		Annexes land in SW¼ S1, and SW¼ S2, T4S, R70W requested by Emich Oldsmobile, Inc and Fred Emich III (special)
1354		Zones land in SW¼ S1, and SW¼ S2, T4S, R70W requested by Emich Oldsmobile, Inc and Fred Emich III (special)
1355		Authorizes loan to Golden Visitor Center Corp. for completion of visitors center (special)
1356		Extends compliance with conditions of Ordinance No. 1332, Final Subdivision Plat of Chrysler Realty Corporation Golden Dodge (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1357		Supplemental appropriation (special)
1358		Amends 2.08.012, increases salaries of members of city council
1359		Amends 18.70.060 pertaining to residential growth management regarding pipeline pool
1360		Amends Ch. 18.70 provisions pertaining to exemptions from residential growth management system (senior housing projects, personnel hardships and GURA district)
1361		Repeals Ch. 1.08 pertaining to municipal court rules
1362		Amends 4.16.110, Amusement device license fees (Defeated)
1363		Annexes land located in north ½ S27, T3S, R70W as requested by access fund land foundation (special)
1364		Zones land located in north ½ S27, T3S, R70W as requested by access fund land foundation (special)
1365		Vacating unbuilt portions of Vernon, unnamed street ROW south of extended 16th Street ROW and portions of alleys east of Welch Ditch, Blocks J and N Kinney's Addition (special)
1366		Conveys property located North of 11th Street at Arapahoe Street to Scott Coburn (special) (Extended by Ord. 1373)
1367		Amends 2.08.100 and enacts Ch. 2.40
1368		Annexes land in S11, T4S, R70W as requested by Rocky Mountain Outdoor Advertising Company (special)
1369		Zones land in S11, T4S, R70W as requested by Rocky Mountain Outdoor Advertising Company (special)
1370		Enacting Ch. 10.90 pertaining to parking restrictions in the residential areas adjacent to Golden High School
1371		Enacting Ch. 11.40, pertaining to traffic controls
1372		Designates Ross Farm 920 9th Street as historic site (special)
1373		Conveys property Located North of 11th Street at Arapahoe Street to Scott Coburn (special) (Extended by Ord. 1386)
1374		Extends period of time for compliance with Ord. 1332 re: final subplat Chrysler Realty Corp. Golden Dodge (special)
1375		Exempts project at 700 12th Street from provisions of Ch. 18.70 Residential Growth Management (special)
1376		Extends period of time for compliance with Ord. 1298 re: vacation of unbuilt portions of Orchard and Orion Streets, Between W 7th Avenue and U.S. Highway 40 (special)
1377		Rezones land in lot 6, block 54, south side Clear Creek (special)
1378		Eagle Ridge Subdivision Plat, Subdivision Development Agreement, Trail Dedication and vested rights, vacating easement for water pipeline and accepting land as ROW (special)
1379		Rezones land lot 1, Block 1, Golden Ridge Subdivision filing no. 2, S3, T4S, R70W (special)
1380		Vacates portion of alley adjacent to lots 10, 11 and 12, block 6, Golden Park Addition and retains five-foot utility easement (special)
1381		Amends Title 13, enacts new Ch. 13.25, Drainage utility
1382		Supplemental appropriation (special)
1383		No ordinance
1384		Repeals and reenacts Ch. 4.60, Adult entertainment

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1385		Amends 18.70.100, Residential growth management: Year-end pool
1386		Conveys property located North of 11th Street at Arapahoe Street to Scott Coburn (special)
1387		Amends Ch. 11.08, Sidewalks re: snow removal
1388		Annexes land in S1, T4S, R70W requested by Casino Transportation, Inc. (special)
1389		Zones land in S1, T4S, R70W requested by Casino Transportation, Inc. (special)
1390		Vacates portion of Kohinoor Place adjacent to Lot 16, Parfet Estates Subdivision and retains eight-foot utility easement (special)
1391		Supplemental appropriation (special)
1392		Defeated
1393		Annexes land in S12 T4S, R70W by Colorado Department of Transportation (special)
1394		Annexes land in S12, T4S, R70W by Colorado Department of Transportation (special)
1395		Annexes land in S12, T4S, R69W by Colorado Department of Transportation (special)
1396		Zones land in S12, T4S, R69W by Colorado Department of Transportation (special)
1397		Annexes land in S7, T4S, R69W by General American Life Insurance Company (special)
1398		Zones land in S7, T4S, R69W by General American Life Insurance Company (special)
1399		Annexes land in S2, T4S R70W by Golden Town Center, LLC (special)
1400		Zones land in S2, T4S R70W by Golden Town Center, LLC (special)
1401		Vacates remaining portion of alley Block 6, Bush and Fisher Addition, retains utility easement for entire area being vacated (special)
1402		Vacates Vasquez Street Between Blocks 9 and 10 Bush and Fisher Addition, retains utility easement for entire area being vacated (special)
1403		Authorizes agreement for conveyance of real property to State of Colorado for Highway 93 Improvements (special)
1404		Amends Ch. 2.24, Court costs
1405		Vacates drainage and utility easement Block 1, Eagle Ridge Center Filing No. 2; conveys Tract C of Eagle Ridge Center Filing No. 2 to adjacent lots; accepts dedication of ROW, drainage and utility easement located within and adjacent to Block 1, Eagle Ridge Center Filing No. 2 (special)
1406		Amends Chs. 13 and 18 pertaining to mining restrictions
1407		Supplemental appropriation (special)
1408		Vacates eight-foot strips of ROW on each side of Water Street between Jackson and Ford Streets, and accepts dedication of ROW within Water Street (special)
1409		Rezones certain land in Lots 5 and 6 Southridge Unit No. 5 Subdivision requested by Autosport Collision (special)
1410		Easement agreement with Public Service Co. along NE property line Ulysses Park (special)
1411		Amends Ch. 18.32, Signs within or overhanging public property

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1412		Rezones land in S21 T4S, R70W and exempts a senior housing project at same location from provisions of Ch. 18.70 (special)
1413		Designate Jack Miller House, 1122 Miller Place as historic site (special)
1414		Vacates portion of 8th Street west of Briarwood Drive, retains utility easement (special)
1415		Rezones land in SE and ¼ of S2, T4S, R70W, requested by Christopher Dodge (special)
1416		Amends Title 15 of Municipal Code, Building and construction
1417		Repeals and reenacts Ch. 16.04 regarding adoption of uniform fire code
1418		Approves cost of improvements made in "Jefferson Co. Highway 93 Special Improvement District" etc. (special)
1419		Supplemental appropriation (special)
1420		Annexes land in S11, T4S, R70W, petitioned by John B. Hayden and Mary Lousie Thrush Hayden (special)
1421		Zones land in S11, T4S, R70W as requested by John B. Hayden and Mary Louise Thrush Hayden
1422		Annexes land in S2, T4S, R70W, as petitioned by Jefferson County (special)
1423		Zones land in S2, T4S, R70W, as petitioned by Jefferson Count (special)
1424		Annexes land in S1, S2, S11, and S12, T4S, R70W as petitioned by Craig Caldwell for Federal Deposit Insurance Corp. (special)
1425		Zones land in S1, S2, S11, and S12, T4S, R70W as petitioned by Craig Caldwell for Federal Deposit Insurance Corp. (special)
1426		Annexes land in NE¼ S27, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1427		Annexes land in NE¼ S27, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1428		Annexes land in NE¼ S27, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1429		Annexes land in NE¼ S27, and SW¼, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1430		Annexes land in NE¼ S27, S½, S23 and W½, S24, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1431		Annexes land being all of Coors Technology Center Replat A, and portions of SW¼, S13, SE¼, S14, NE¼ and SE¼, S23 and NW¼, and SW¼, S24, T3S, R70W as petitioned by Coors Technology Center Property Owners Association and others (special)
1432		Zones land in S13, S14, S23, S24 and S27, T3S, R70W petitioned by Coors Technology Center Property Owners Association and others (special)
1433		Approves final subdivision plat for Christopher Dodge (special)
1434		Approved C-4 final subdivision plat; vacates and dedicates certain lands (special)
1435		Repeals and reenacts Ch. 18.12 and 17.40.020, pertaining to appeals and variances
1436		Amends Titles 15, 17 and 18, pertaining to grading, platting

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
1437		Annexes land in S2 T4S, R70W owned by Golden Church of Christ (special)
1438		Zones land in S2 T4S R70W owned by Golden Church of Christ (special)
1439		Rezones land in S2 and S3, T4S R70W as Petitioned by Jefferson County (special)
1440		Amends 7.09.040, pertaining to disposition of animals
1441		Amends 8.04.140, pertaining to domestic violence
1442		Repeals and reenacts 8.04.260, pertaining to trespass
1443		Enacts new 8.04.325, pertaining to loitering in or about public restrooms
1444		Repeals and reenacts 8.04.830, pertaining to alcohol
1445		Amends Ch. 10.04, pertaining to model traffic code
1446		Enacts new 10.76.250, pertaining to towing restrictions
1447		Enacts 8.04.275, pertaining to tampering with utility meters
1448		Supplemental appropriation (special)
1449		Amends Title 4, pertaining to alcoholic beverages
1450		Rezones land in S27, T3S, R70W petitioned by Summit Realty Interest LLC, for GURA (special)
1451		Defeated
1452		Amends portions of Interplaza West PUD FDP re: signs (special)
1453		Supplemental appropriation (special)
1454		Amends Ord. 1388 annexing land in S1, T4S, R70W as initially requested by Casino Transportation, Inc. et al (special)
1455		Amends portion of Ch. 17.40, pertaining to subdivision design standards
1456		Adopts Uniform Election Code for 1999 Coordinated Election (special)
1457		Approves participation in Coordinated Mail Ballot Election Nov. 2, 1999 (special)
1458		Enacts 13.08.075, pertaining to water charges and sudden and severe service line breaks
1459		Amends Ch. 16.04, pertaining to UFC
1460		Amends portions of Chs. 18.04 and 18.28, pertaining to drive-thru activities
1461		Amends 2.08.060, pertaining to administration
1462		Enacts Ch. 18.62, Economic development commission
1463		Authorizes issuance of Drainage Enterprise Revenue bonds, Series 1999, aggregate principal amount not to exceed \$4,950,000.00 (special)
1464		Designates Stewart Bldg., 922 Washington Avenue as historic site (special)
1465		Designates pylons at entrance to Lariat Trail as historic structures (special)
1466		Designates Tripp House, 700 6th Street as historic site (special)
1467		Defeated
1468		Vacates 46th Avenue south of Tract G and Lot 28, and north of Tract F and Super Lot 2C-2 of Coors Technology Center Replat A Subdivision and retains utility easement for portion thereof (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Description
1469		Extends period of time for compliance with conditions of Ord. 1365, pertaining to vacation of streets and alleys in Kinney's Addition, generally located at 16th Street and Welch Ditch (special)
1470		Amends Ch. 13.13, pertaining to wastewater pretreatment requirements
1471		Amends 7.07.010(a)(1) of the Golden Municipal Code pertaining to prohibited animals specifically honeybees
1472		Rezones NW½ block 15, Welch's Addition (special)
1473		Annex land in S21, T4S, R70W by L.H. Kilgroe Construction Co. (special)
1474		Rezones land in S21, T4S, R70W by L.H. Kilgroe Construction Co. (special)
1475		Enacts Ch. 18.80, pertaining to areas and activities of state interest
1476		Authorizes sales and use tax refunding revenue bonds not to exceed \$3,200,000.00 for the purpose of refunding, paying and discharging certain outstanding sales and use tax revenue bonds (special)
1477		Enacts Ch. 18.66, pertaining to vested property rights
1478		Supplemental appropriation (special)
1479		Enacted 7.09.040, pertaining to disposition of animals
1480		Amends Title 18, pertaining to animal restrictions
1481		Repeals and reenacts 7.03.101(a), pertaining to rabies inoculation
1482		Amends portions of Interplaza PUD FDP pertaining to sign regulations (special)
1483		Exempts project at 1180 Ulysses Street from provisions of Ch. 18.70 (special)
1484		Amends 18.04.111, pertaining to definition of households (sex offenders)
1485		Amends 3.07.050, re: refunds for senior citizens
1486		Supplemental appropriation (special)
1487		Amends 13.08.070 re: delinquent charges for water and wastewater services
1488		Annexes land in SW¼, S1, T4S, R70W by Emich Dodge, Inc.
1489		Rezones land in SW¼, S1, T4S, R70W by Emich Dodge, Inc.
1490		Designates "Welcome to Golden" arch as historic structure pursuant to Ch. 18.58 (special)
1491		Rezones land in S10, T4S, R70W by Colfax West Mini Storage, LLC
1492		Approves Elway Subaru West Subdivision Filing No. 1 (special)
1493		Supplemental appropriation (special)
1494		Repeals and reenacts Ch. 15.08, pertaining to the uniform building code
1495		Repeals and reenacts 15.16.050, pertaining to plumbing code fees
1496		Authorizes conveyance of real property on South Golden Road (special)
1497		Approves Lone Tree at Pleasant View Subdivision (special)
1498		Repeals and reenacts Ch. 13.30, pertaining to stormwater quality
1499		Repeals and reenacts Ch. 15.18, pertaining to grading
1500		Amends 5.01.070, pertaining to nuisance abatement

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
1501		Amends 4.84.010 pertaining to establishment of a local liquor license authority
1502		Provides for moratorium on special use permits for commercial low power telecommunication sites and installation of building-mounted telecommunications antennae
1594		Designates 8th and 9th Street as historic district (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1595		Repeals Ords. 1560, 1523, 1216 and Sec. 3 of Ord. 1231 and reenacting rates and charges for water and wastewater services pursuant to Ch. 13.08 (Eff. 1/1/03)
1597		Repeals and reenacts 3.03.030(a)(2) and (5), pertaining to taxation of telecommunication and utility services
1598		Manufactured housing (Defeated)
1599		Amending PUD ODP for Golden Ridge PUD as requested by Golden Ridge Center LLC (special)
1600		Defeated
1601		Supplemental appropriation (special)
1602		Amending 13.04.190, pertaining to limitations on use of water
1603		Allowing issuance and sale of Water and Wastewater Revenue Refunding Bonds, Series 2002A, not to exceed \$1,675,000.00 and the issuance of Water and Waste Water Enterprise Water Bonds, Series 2002B, not to exceed \$3,825,000.00 (special)
1604		Supplemental appropriation (special)
1605		Amending portions of Ch. 13.04, pertaining to water and wastewater regulations
1606		Supplemental appropriation (special)
1607		Accepting quit claim deed to Vacates access easement and authorizing conveyance of substitute access easement to telecommunications tower on golf course property (special)
1608		Amends 1.01.010, Decriminalizing careless driving
1609		Amends 4.06.100, Adult entertainment
1610		Sales tax rebate amendment, adds low income and disabled
1611		Vacates portion of Illinois Street south of 24th Street (special)
1612		Jeffco Gov Center PUD (special)
1613		Amends Title 4, repeals Ch. 4.12, shooting galleries, etc.; Ch. 4.20, Shows and exhibitions; Ch. 4.24, Motion picture theaters; Ch. 4.36, For hire vechicles; and Ch. 4.40, Auctioneers
1614		Amends Ch. 13.08, Urban multifamily water taps
1615		Amends Ch. 3.06, Restrictions on utilizing sales tax information
1616		Designates "Golden Tourist Park" 2200 Jackson Street as historic site (special)
1617		Amends Ch. 1.04, Redistrict ward boundaries
1618		Easement with Xcel, southwest property line of Tony Grampsas Park (special)
1619		Easement with N. Table Mtn Water and San District, southwest property line Tony Grampsas Park (special)
1620		Amends 18.04.111, definition of household
1621		Enacts 2.08.011, Qualifications and term for office of mayor
1622		Amends portion of Ch. 18.40 re: site development standards for landscape preparation
1623		Second amendment to purchase option and contract with USFS re: City owned lands in Clear Creek Co. known as Beaver Brook Property (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1624		Second amendment to purchase option and contract with Mountain Land Trust re: City owned lands in Clear Creek Co. known as Beaver Brook Property (special)
1625		Adds new 4.84.040, to authorize LLA to approve hotel and restaurant optional premises liquor licenses
1626		Increases certain council salaries (Defeated)
1627		Annexation LaFarge West (special)
1628		Zone land LaFarge West (special)
1629		Rezone land Colorado School of Mines (special)
1630		Amends North Golden Commons PUD aka Golden Pond PUD (special)
1631		Amends 18.28.300, Planned unit developments
1632		Amends Chs. 18.28 and 18.48 clarifying city initiated rezoning to or from PUD
1633		Vacating portion of Jackson Street south of 7th Street together with portion of alley location in Block 18 North Golden Addition (special)
1634		Zone land Nextel West Corp. (special)
1635		Repeals and reenacts Ch. 18.52, Downtown development district
1636		Amends Ord. 1538 increase number of days allowed following end of city's fiscal year for preparation of audited financial statements for sales and use tax fund (special)
1637		Supplemental appropriation (special)
1638		Amends Ch 3.06, Sales and use tax interpretations
1639		Guanella Reservoir financing (special)
1640		Amends 7.05.010, Dog at Large
1641		Third amendment to purchase option and contract with USFS re: City owned lands in Clear Creek Co. known as Beaver Brook Property (special)
1642		Supplemental appropriation (special)
1643		Easement allow Church Ditch discharge into Tucker Gulch (special)
1644		Acquisition of real property rights for Golf Course Maintenance facility (special)
1645		Rezoning (Withdrawn)
1646		Historic designation: "Prout House" 900 6th Street as historic site (special)
1647		Amends provisions of Ord. 1641, Third amendment purchase option and contract with USFS re: City owned lands in Clear Creek Co. known as Beaver Brook Property (special)
1648		Amends Ch. 2.40, authorize use of competition sealed proposals as means of procurement
1649		Amends PUD OPD plan for Kilgroe property annexation No. 2 Kipco (special)
1650		First amendment to 2001 water agreement between COG and Clear Creek Co. (special)
1651		Water storage lease Black Hawk (special)
1652		Water storage lease between COG and Clear Creek Skiing Corp. (special)
1653		Enacts 18.80.600—18.80.670, Site selection of arterial highways and interchanges and collector highways

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1654		Easement west property lines Lots 18 and 19 IMES Subdivision Clear Creek Co. pertaining to historic driveway encroachment into Beaver Brook Property (special)
1655		Vacating portion of Jackson Street within vacated 4th Street ROW (special)
1656		Designate "Loveland Cottage" 717 12th Street as historic site (special)
1657		Rezones Block 1, Lot 2 and Block 2, Lot 2, Overlook Business Park PUD to RE city manager (special)
1658		Supplemental appropriation (special)
1659		Amends Ch. 2.40, Procurement procedures
1660		Amends Ch. 10.90, Parking restrictions residential areas adjacent to high school
1661		Enacts Ch. 18.56, Community landmarks program
1662		Amends 18.80.220, Designating matters of state interest
1663		Amends Ords. 1498, 1499, 1517 and 1518 and Ch. 18.08, Land use enforcement actions
1664		Amends Ch. 18.08 by adding 18.08.060
1665		Repeals and reenacts Ch. 7.09, Protection of animals (Defeated)
1666		Heritage Square Filing No. 2 Subdivision Final Plat (special)
1667		Agreement with Lookout Mountain Water District, correct 9/30/1988 deed and convey additional 2.3 acres within Beaver Brook Property (special)
1668		Amends portions of Ch. 4.88, Vendors in public way
1669		Amends portions of Ch. 4.90, Public sidewalk sales and display permits
1670		Amends portions of Ch. 18.12, Administrative exceptions for setback and accessory building height
1671		Amends portions of Titles 17 and 18, Highway noise standards for subdivisions and site development plans
1672		Submitting to voters proposed Charter Amendment regarding election dates and establishing a ballot title (special)
1673		Amends provisions of Ord. 1462 establishment of Golden Economic Development Commission (special)
1674		Vacating eight-foot wide strip of ROW on east portion of Arapahoe Street between 6th Street and U.S. Highway 58 (Removed until further notice)
1675		Designating Historic District: East Street (special)
1676		Amending conditions of approval of Ord. 1220, vacation of portion of Arapahoe Street between 13th and 14th Streets (Defeated)
1677		Moratorium on building permits for certain structures and improvements in Arapahoe Gulch Drainage area (special)
1678		Repeals and reenacts Ch. 18.60, Economic incentives program
1679		Repeals and reenacts 8.19.040, Use and possession of cigarettes and tobacco products by person under 18
1680		Adjusting rates and charges for water services (Effective 1/1/2005)
1681		Amends Ord. 1524, Water and sewer system development fees
1682		Repeals and reenacts Ch. 1.05, Local election campaign finance
1683		Repeals and reenacts Ch. 10.04, adopting 2003 Model Traffic Code
1684		Amends Ch. 3.08, Tax enforcement procedures

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Ord. No.	Date	Code Section and Discription
1685		Supplemental appropriation (special)
1686		New 2.24.080, Municipal court procedures for appeals of inferior tribunals
1687		Rezone land by LaFarge West, Inc. (special)
1688		Amends 1.01.150, Civil enforcement rules and procedures
1689		Amends 2.08.012, Increase salaries of certain members of city council
1690		Second amendment to 2001 water agreement between COG and Clear Creek Co. (special)
1691		Amends portions of Ch 18.70, Residential growth management
1692		Enacts program for limited municipal participation in floodproofing activities for designated properties within Arapahoe Gulch flood hazard area (special)
1693		Fourth amendment to purchase option and contract with USFS re city owned lands in Clear Creek Co. known as Beaver Brook Property (special)
1694		Assignment and third amendment to purchase option and contract with Mountain Land Trust re: city owned lands in Clear Creek Co. known as Beaver Brook Property (special)
1695		Rezones land Charles and Elayne Anderson (special)
1696		Enacts 18.80.670—18.80.670, Site selection of arterial highways and interchanges and collector highways
1697		Vacating portion of Maple Street between 17th Street and Maple Street intersection with northern most West Campus Road, 16th Street between Maple Street and Elm Street and ally in Block 77 of plat of south side of Clear Creek (special)
1698		Vacating eight-foot wide strip of ROW lying on eastern portion of Arapahoe Street between 6th Street and Highway 58 (special)
1699		Amends portions of Title 18, College building heights
1700		Amends portions of Titles 17 and 18, Notice of land use application to mineral estate owners
1701		Amends Ch. 2.32, Gift restrictions for municipal officials
1702		Enacts Ch. 13.40, Cross-connection control program
1703		Amends Ch. 13.30, Stormwater quality permits for small lots
1704		Amends Ch 11.08, Collection procedures for municipal services and assessments
1705		Rezones land Jackson Street Villas, LLC (special)
1706		Amends Ch. 1.05, Local campaign finance reporting requirements
1707		Designates "Colonial Hotel" 910 13th Street as historic site (special)
1708		Designates "Schall Residence" 612 10th Street as historic site (special)
1709		Rezones land Karl Bachman (special)
1710		Amends Ch. 2.40, Pre-qualification of bidders and for procurement of capital improvements by means of construction manger/general contractor agreement
1711		Amends Charter regarding publication of ordinances and setting ballot title (special)
1712		Amends Charter regarding restrictions on development subsidies and incentives (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1713		Amends boundary of East Street Historic District at 501 and 507 14th Street (special)
1714		Repeals and reenacts in entirety 8.04.910—8.04.900, weapons
1715		Amends Ch. 10.04, Limitations on driving privileges of newly licensed minor drivers
1716		Amends Title 18, Site development regulations
1717		Amends Title 3, Sales and use tax
1718		Rezones land Semper Development Ltd. (special)
1719		Rezones land Nexcore PAC, LLC (special)
1720		Emma's Subdivision final plat, dedication of land for trail, agreement for conveyance of retaining wall agreement (special)
1721		IGA COG, GDGID and GURA property on west side of Jackson Street between 12th and 13th Streets (special)
1722		Rezones land Richmond American Homes (Golden Overlook PUD) (special)
1723		Supplemental appropriation (special)
1724		Annexation (Defeated)
1725		Zoning of annexed land (Defeated)
1726		Rezones land Creative Property Management (Defeated)
1727		Amending Title 5, Health and sanitation
1728		Lease purchase agreement between COG and Golden Capital Leasing Corporation (new fire station) (special)
1729		City manager termination compensation (special)
1730		Rezones land Ronald Weismann - 17th Street Brownstones (special)
1731		Vacating eight-foot strip of ROW northwest edge of 17th Street east of Washington Avenue - Weismann (special)
1732		Vacating eight-foot strip of ROW southeast edge 5th Street east of Washington Ave - Mark McAdoo (special)
1733		Clear Creek Commons PUD (special)
1734		Supplemental appropriation (special)
1735		Vacating portions of two alleys Block 26, south side Clear Creek GURA and Washington Square Golden LLP (special)
1736		Amends 17.10.030, Applicability of subdivision ordinance to Welch Ditch remnants (Defeated)
1737		Quit claim deeds for part of abandoned portion of Welch Ditch (Defeated)
1738		Vacates eight-foot strip northwest edge of 5th Street east of Washington Avenue - Cynthia Hill and Daniel Mayo (special)
1739		Amends Ch. 3.05, Sales and use tax license exemptions; and Ch. 15.01, Contractor registration requirements
1740		Water and wastewater refunding bonds Series 2006A issue Series 2006B (special)
1741		Designates "Brickyard House" 20041 Golden Gate Canyon Road as historic site (special)
1742		Designates "Ziegler Residence", 510 16th Street as historic site (special)
1743		Amends Ch. 3.08, Statute of limitations collection of sales and use taxes
1744		Repeals and reenacts 2.24.060, Court costs
1745		Repeals and reenacts Ch. 5.11, Smoking restrictions

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1746		Canyon Point Commercial Center Filing No. 2 final subdivision plat and convey land (special)
1747		Amends Golden Overlook PUD ODP (special)
1748		Amends Ch. 7.03, Licensing of dogs
1749		Extends effective date Ord. 1510, Community Marketing Fund and Economic Development Commission make up, 3.03.010(f), and 3.04.050(b)
1750		Amends Ch. 18.32, Political signs in residential zoned districts
1751		Repeals and reenacts 2.32.130, Enforcement, of Ch. 2.32, Code of ethics
1752		Vacates two eight-foot wide strips on north and south edges of 16th Street east of East Street (special)
1753		Not used
1754		Repeals Chs. 15.08, 15.12, 15.14, 15.15, 15.16, 15.17, 15.15.20, 15.26, and Title 19; reenacting Chs. 15.08, 15.12, 15.16, 15.17, 15.26; enact Chs. 15.30, 15.40 and 15.50
1755		Repeals and reenacts Ch. 16.04, Fire Code
1756		Amends Ch. 16.08, Administration of fire department
1757		Repeals and reenacts Ch. 13.13; and repeal entire Ch. 13.14, Water and waste water pretreatment requirements
1758		Supplemental appropriation (special)
1759		Designates Cavalry Episcopal Church 1320 Arapahoe Street as historic site (special)
1760		Lease/option to purchase agreement with Golden Landmarks regarding disposition of Brickyard House at 20041 Golden Gate Canyon Road (special)
1761		Amendment to Kilgroe Annexation No. 3 PUD ODP (special)
1762		Designates "East Street Barn", 423 16th Street as historic site (special)
1763		Agreement for purchase and sale and amendment of terms of provision of access with Bates Co. 150 Capital Drive (special)
1764		Amends Title 3, Sales and use tax
1765		Utility easement to PSCO at Canyon View Subdivision Filing No. 2 (Defeated)
1766		Rezones land Sperry (Not adopted)
1767		Repeals and reenacts Ch. 1.04, Ward boundaries
1768		Supplemental appropriation (special)
1769		Convey real property on Golden Gate Canyon Road (special)
1770		Amends Golden Ridge Filing No. 2 PUD ODP (Defeated)
1771		Supplemental appropriation (special)
1772		Amends boundary East Street Historic District 1917 and 1919 Ford Street
1773		Rezones land in Kinney's and Johnson's Additions by planning commission (special)
1774		Rezones land by Kip Hampden, LLLP (special)
1775		Quit claim deed and easement Leidich part of abandoned Welch Ditch (special)
1776		Rezones land by St. Joseph Catholic Church (special)
1777		Vacates surplus ROW adjacent to 2410 and 2414 Ford Street (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
1778		Amends 13.08.074, One-time credit for water charges for severe leaks or breaks of service lines
1779		Amends Ch. 3.04, Authorize retailers use electronic database certified by state to determine jurisdiction to which tax is due
1780		Amends portion of Kilgroe Annexation No. 2 PUD ODP (special)
1781		Annex parcel of Ulysses Street by Jefferson County (special)
1782		Zones land annexed by Ord. 1782 (special)
1783		Annex land by Jeffco and PSCO (special)
1784		Zones land annexed by Ord. 1783 (special)
1785		Approves Pleasant View Development Final Plat, Replat No. 1 and vacation of certain ROW within subdivision by Kip Hampden Ltd. (special)
1786		Repeals and reenacts Ch. 2.28, Disposition of unclaimed property
1787		Amends Chs. 18.30, 18.48 and 18.50, Public notice for land use cases
1788		Supplemental appropriation (special)
1789		Enacts Ch. 2.50, Community sustainability advisory board
1790		Conveyance of real property at 1002 Pine Ridge Road (special)
1791		Amends portions of Chs 18.04, 18.20 and 18.28, Administration of zoning regulations
1792		Rezones land in Barber's Addition by Shallow Bay Properties LLC. (special)
1793		Amends Clear Creek Commons PUD ODP (special)
1794		Amends lease/option to purchase agreement with Golden Landmarks Association regarding Grant Agreement for restoration of Brickyard House 1225 Catamount Drive (special)
1795		Rezones land by Brian Speery (special)
1796		Authorizes mail ballot for special election Apr. 22, 2008 (special)
1797		Designates "Craig Residence", 1801 East Street as historic site (special)
1798		Vacates surplus Iowa Street ROW adjacent to 100 Washington Avenue by Network Properties and COG (special)
1799		Amends Ch. 2.35, Administrative hearing procedures for personnel matters
1800		Amends Ch. 10.04, Model Traffic Code
1801		Amends Title 8, Jurisdictional amount for certain property offenses
1802		Amends 14th Street Historic District (Defeated)
1803		Amends Jefferson County Government Center PUD ODP (special)
1805		Amends 1.04.070, Write-in candidate affidavits
1806		Amends 16.04.040, Authority of fire chief
1807		Temporarily extend PSCO franchise to Dec. 31, 2008, following Nov. 2008 election (special)
1808		Rezones land by Golden Point LLC (special)
1809		Amends portions Ch. 18.28, Planned unit development
1810		Convey former CDOT ROW back to CDOT accept deed for ROW in same general location
1811		Vacation of portion of West 4th Avenue ROW and existing utility and water tank easement, approve Golden Overlook Filing No. 1 final plat and subdivision agreement (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Description
1812		Amends Ch. 13.13, Wastewater pre-treatment requirements
1813		Amends Ch. 18.58, Historic preservation
1814		Supplemental appropriation (special)
1815		Annex land by Bachman (Defeated)
1816		Zones above land (Defeated)
1817		Reenacts part of Ord. 1697 and Amends to extend time for compliance for certain ROW vacancies by CSM (special)
1818		Amends Chs. 13.04 and 13.08, Water and wastewater rates, regulations and charges
1819		Amends rates for water services (special)
1820		Enacts 8.04.265, Criminal tampering
1821		Repeals and reenacts Ch. 18.52, Downtown development district
1822		Approves franchise and franchise agreement with PSCO dba Xcel Energy to use public streets to provide electric and gas utility service (special)
1823		Amends Ch. 5.11, Public smoking restrictions and authorize smoking restrictions in city parks
1824		Designates residence at 717 Arapahoe Street as historic site (special)
1825		Vacates ROW portion of 32nd Avenue and alley vicinity 10th Street and Vasquez
1826		Rezones land Gateway Village, LLC
1827		Final agreement water pipe line and all related agreements water pipeline traversing Russell property (special)
1828		Amends Ch. 8.04, Public indecency
1829		Amends water rates and charges (special)
1830		Amends Ch. 13.35, and set fees for drainage utility enterprise
1831		Supplemental appropriation (special)
1832		Rezones land 605 Ulysses Street by Porkchop LLC (special)
1833		Amends Chs. 1.05, 2.50, 4.84, 18.16, 18.54, 18.58 and 18.62, City boards, commissions and authorities
1834		Approves Ridge Development PUD ODP (special)
1835		Convey portion of real property from PSCO adjacent to 2410 and 2414 Ford Street to Golden Point LLC (special)
1836		Amends Ch. 18.40, Site development regulations; Repeals 18.40.600, 18.40.610; Adds 18.40.600—18.40.754
1837		Amends Title 18, Parking regulations regarding the downtown development district
1838		Vacates alley vicinity of 17th and Maple Streets by CSM (special)
1839		Amends Ch. 18.70, Residential growth management
1840		Amends 18.58.070 and 18.58.075, Historic preservation
1841		Vacates portion of Virginia Street ROW west of Jackson Street and retain utility and pedestrian access easements by COG
1842		Amends Ch. 2.32, Code of ethics
1843		Amends Ch. 1.05, Local campaign finance - reporting requirements
1844		Amends Ch. 15.08, Building permits
1845		Enacts Ch. 18.34, Community lighting standards
1846		Issue drainage utility enterprise refunding bonds, series 2009 in aggregate principal amount not to exceed \$3,400,000.00 (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
1847		Amends Title 18, Definitions, renewal energy systems and home occupations

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1848		Amends conditions of approval of Ord. 1220, vacation of portion of Arapahoe Street between 13th and 14th Streets (special)
1849		Amends Title 18, Use of temporary storage containers in residential zone districts
1850		Amends Ch. 11.04, Special improvement district assessment policies
1851		Amends Ch. 18.40, Planning commission review of site development plans
1852		Amends 13.04.100, Collection of fees for inspection services provided in association with installation of water and wastewater main extensions
1853		Amends 18.58.070(1), Collection of fees for certificate of appropriateness review for demolition of historic structures
1854		Repeals and reenacts Ch. 16.04, Adoption of 2009 International Fire Code
1855		Repeals and reenacts Chs. 15.08, 15.12, 15.16, 15.17, 15.26, 15.30, 15.40 and 15.50
1856		Rezones land by CSM (special)
1857		180-day moratorium on medical marijuana licensing (special)
1858		Supplemental appropriation (special)
1859		Amends portions Ch. 18.36, Parking and loading requirements
1860		Amends Title 18, Parking regulations downtown development district
1861		Amends Ord. 1817 to extend time for compliance with conditions in Ord. 1697, vacations of ROW by CSM (special)
1862		Amends portions of Ch. 10.90, Special parking restrictions and Ch. 10.04, Enforcement of parking violations
1863		Amends Ch. 2.50, Clarify responsibilities of community sustainability advisory board
1864		Amends sections of Title 3, Sales and use tax code
1865		Extends moratorium medical marijuana licensing (special)
1866		Repeal Ch. 4.32, Nightclubs and cabarets
1867		Amends Ch. 18.40, Site development requirements
1868		Amends Title 4, Residential waste collection services
1869		Amends portions of Ch. 18.32, Signs
1870		Amends Title 4, Composition, duties and powers of local licensing authority
1871		Enacts Ch. 4.28, Commercial outdoor music permits (Defeated)
1872		Establishing cultural services and museum advisory board (special)
1873		Amends portion of Ch. 18.62, Community marketing fund
1874		Amends portions of Chs. 18.28 and 18.40, Height of infill multifamily construction
1875		Extends effective date of Ord. 1510 and 1749, Community marketing fund and makeup of economic development commission
1876		Rezones land 2200 Jackson Street by Jefferson County Housing Authority (special)
1877		Extend moratorium until June 30, 2011, medical marijuana licensing (special)
1878		Amends portions of Ch. 18.12, Appeals and variances
1879		Amends Ch. 11.40, Traffic calming regulations and discretionary street improvements

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Ord. No.	Date	Code Section and Discription
1880		Amends Ch. 1.05, Campaign finance—Reporting requirements, definition of "expenditures"
1881		Vacates portion of 16th Street between Illinois Street and vacated Maple Street, retaining certain easements (special)
1882		Amends Title 18, Accessory dwelling units
1883		Amends Ch. 18.42, Home occupations
1884		Issuance and sale of sales and use tax refunding revenue bonds not to exceed \$19,915,000.00 (special)
1885	1- 1-2011	Amends rates and charges for water and wastewater services (special)
1886		Amends Ch. 5.11, Restrictions regarding use of tobacco products
1887		Amends portions of Title 17, Public notice for subdivision cases, condominium plat review and lot line adjustments
1888		Amends portions of Ch. 18.32, Temporary signs in city ROW
1889		Amends Ch. 8.19, Restrictions regarding display of tobacco products
1890		Authorize quit claim deed to Jefferson County Bachman Open Space to effect delivery of commissioner's deed to COG (special)
1891		First amendment to cable franchise to extend term (special)
1892		Supplemental appropriation (special)
1893		Amends Ch. 1.03, Authorize interviewing and deliberation regarding city manager candidates in executive session
1894		Amends provisions of Ord. 1462, Establishment of Golden Economic Development Commission (special)
1895		Rezones land by CSM (special)
1896		Amends portion of Ch. 18.28, Special use permits for keeping certain animals
1897		Repeals and reenacts Ch. 10.04, adopt 2010 Model Traffic Code
1898		Enacts Ch. 4.94, Medical marijuana licensing
1899		Annex land by COG (special)
1900		Zone above land (special)
1901		Annex land 18300 W. 4th Avenue by James L. and Gwendolyn K. Bachman (special)
1902		Zone above land (special)
1903		Amends Ch. 5.15, Amplified outdoor music restrictions
1904		Amends Ch. 13.30, Stormwater quality regulations
1905		Lone Tree at Pleasant View Filing No. 2 final plat, Vacates certain street ROW and easements and accepting dedication of ROW and easements (special)
1906	1- 2012	Transfer duties and responsibilities of cultural services and museum advisory board to city parks and recreation board and dissolving the cultural services and museum advisory board(special)
1907		Supplemental appropriation (special)
1908		Amends portions of Chs. 18.62 and 3.03, and enact Ch. 18.64, Economic development commission and community marketing program
1909		Amends provisions of Ord. 1462, extend economic development commission to Dec. 31, 2017 (special)
1910		Annex land Hartmeister Clear Creek Open Space by COG (special)
1911		Zone above land (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Discription
1912		Vacates surplus Pike Street ROW adjacent to 16200 W. Colfax Avenue by Carmax Auto Superstores (special)
1913		Enacts Ch. 18.24, Residential sustainability menu
1914		Amends portions of Chs. 18.04, 18.28 and 18.30, Use and density requirements
1915		Amends 4.90.060, Requirements for public sidewalk sales and display permits
1916		Amends 18.40.222, Landscape plan requirements for commercial and multifamily property
1917		Enacts Ch. 4.96, Non-cigarette tobacco product retailers
1918		Lewis Court Subdivision Filing No. 1 Final Plat, vacation of certain street ROW and accept dedication of easements (special)
1920		Easement and agreement at Lower Urad Reservoir in Clear Creek County (special)
1921		Amendment to portion of Kilgroe Property Annexation No. 3 PUD ODP (special)
1922		Amends Ch. 3.09, Hearings and appeals of sales and use tax matters
1923		Amends portions of Chs. 13.30 and 18.40, Stormwater standards manual
1924		Designates Golden Cemetery 755 Ulysses Street as historic landmark property (special)
1925	1- 1-2013	Convey real property at 826 Joseph Circle (special)
1926		Amends rates and charges for water and wastewater services (special)
1927		Amends portions of Ch. 18.58, Certificate of appropriateness review
1928		Amends Ch. 13.04, Provision of municipal water service
1929		Amends portions of Ord. 1681, Water and sewer system development fees
1930		Supplemental appropriation (special)
1931		Repeals and reenacts Chs. 15.08, 15.12, 15.17, 15.18, 15.26, 15.30, 15.40 and 15.50 2012, Codes
1932		Repeals and reenacts Ch. 16.04, adopt 2012 International Fire Code
1933		Amends Ch. 13.13, Wastewater pretreatment requirements
1934		Grants easement to PSCO Fossil Trace (special)
1935		Enacts Ch. 8.25, Administrative citations
1936		Moratorium until Oct. 1, 2013 recreational marijuana businesses (special)
1937		Real property lease agreement State of Colorado, Climax Molybdenum Co and COG (special)
1938		Amends and clarifying 3.08.040
1939		Amends Title 3, Sales and use tax liens
1940		Add new Chs. 2.60 and 2.64, Art in public places program, art in public places reserve account and public art commission
1941		Amends portions of Chs. 18.28, 18.30 and 18.36, Special uses and parking requirements for commercial and mixed-use zone districts
1942		Enacts 18.28.500 and 18.40.800, Creation of mixed use zone districts
1943		Issuance and sale of Water and Wastewater Enterprise Water Revenue Refunding Bonds, series 2013 not to exceed \$3,200,000.00 (special)

GOLDEN MUNICIPAL CODE

Ord. No.	Date	Code Section and Discription
1944		Amendment and lease between COG and Jeffco Apex Park Trail Head (special)
1945		Amends portions of Ch. 18.70, Residential growth management
1946		Create and establish Golden Downtown Development Authority and determining organizational aspects of the DDA (special)
1947		Submitting ballot question, creating the Golden Downtown development authority and tax matters associated (special)
1948		Amends Ch. 13.18, Water works permits
1949		Amends Ch. 7.03, Licensing of dogs
1950		Purchase and immediate conveyance of real property at U.S. 40 and I-70 affecting CDOT and Gateway Land Investment LLC (special)
1951		Golden Ridge ODP Filing No. 6 (PUD) Evergreen Devco, Inc and Nexcore Group (special)
1952		Supplemental appropriation (special)
1953		Early start exemption from administrative provisions of Ch. 18.70 for project at 520 Golden Ridge Road by Nexcore Group (special)
1954		Extend moratorium until July 1, 2014, recreational marijuana businesses (special)
1955		Amends Ch. 1.03, Authorize use of executive sessions to interview candidates for city manager, city attorney, municipal judge and hearing officer, and deliberate thereon
1956		Amends Ord. 1947, clarify Nov. 5, 2013, DDA election will not be coordinated with Jeffco (special)
1957		Real property exchange agreement and associated conveyance with State of Colorado, Beverly Heights Park and 1180 Maple Street (special)
1958		Supplemental appropriation (special)
1959		Amends portions of Chs. 2.50, 18.16, 18.54, 18.58 and 18.62, Boards and commissions
1960		CSM Athletic Center ODP by CSM (special)
1961		Moratorium until Oct. 1, 2013, recreational marijuana businesses (special)
1962		Rezone land to Community mixed-use—Community corridor one zone district by COG (special)
1963		Rezone land to Community mixed-use—Community corridor two zone district by COG (special)
1964		Second amendment to Cable Franchise agreement between COG and Comcast to extend term of franchise to Apr. 30, 2014 (special)
1965		Amends Ch. 4.92, Bus advertising benches
1966		Second lease/option to purchase agreement Golden Landmarks Assoc Brickyard House 1225 Catamount Drive (special)
1967		Conveyance of real property at 1370 Catamount Drive (special)
1968		New Ch. 15.60, Floodplain management regulations
1969		24th Street Bowl Replat No. 2 Final Plat, vacation of certain street ROW and accepting dedication of easements
1970		Amends 13.04.210, Discontinuation of water service
1971		Amends portions of Chs. 13.04 and 13.08, Municipal water service

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
1972		Amends agreement and lease between COG and Jeffco Apex Trail Head (special)
1973		Amends 1.01.110, Maximum fine for municipal ordinance violations
1974		Third amendment to Cable Franchise agreement between COG and Comcast to extend term of franchise to July 31, 2014 (special)
1975		Execution of use restriction covenant and donation agreement with Katherine, Richard, and Lynn Jacobs. Tract B, Mesa Meadows Phase 3 Subdivision (special)
1976		Accell at Golden Ridge PUD ODP by Stonegate Development LLC (special)
1977		Enacts Ch. 4.98, Prohibition of recreational marijuana
1978		Repeals and reenacts Ch. 4.94, Medical marijuana
1979		Enacts Ch. 5.17, Marijuana residential cultivation restrictions
1980		Repealing and in part reenacting Chs. 8.04, 8.19, and 8.21, Public peace and safety
1981		Renewal of non-exclusive cable franchise agreement for use of city ROW with Comcast of Colorado IX, LLC (special)
1982		Golden Community Center PUD ODP by Golden City Manager (special)
1983		Supplemental appropriation (special)
1984		Conveyance of real property interests adjacent to 801 Ridge Road to Sean and Jody Blaun (special)
1985		Amending 5.11.020, 5.11.030, 5.11.040, 8.25.010, Restrictions of public use of tobacco
1986		Conveyance of non-exclusive access easement over and across portion of Tract A Lakota Hills subdivision for benefit of Estate of Albert E. Bachman (special)
1987		Grant agreement with History Colorado, the Colorado Historical Society for stabilization and rehabilitation of Astor House Hotel - Lake House - Castle Rock House including grant of a 25-year restrictive covenant (special)
1988		Amends Ch. 11.40, Traffic calming regulations and discretionary street improvements
1989		Vacating ROW and approving Eagle Ridge Center Filing 3 Replat (special)
1990		New 2.08.011(a), Interpret and clarify office of mayor
1991		Repeals and reenacts Ch. 4.80, Licensing of solid waste haulers and implementation of volume-based rates for collection of solid waste and recycling from group account residential customers
1992		Amends 4.82.010(c), Residential waste collection services program
1993	10-23-2014	Authorizing the vacation of Arapahoe Street between 13th Street and 14th Street and repealing that street vacation approved by Ordinance 1220 and extended by Ordinance 1848 (special)
1994	12- 4-2014	Amends Ch. 5.17 relating to standards and controls for alarm systems; Deletes §§ 5.17.010(h), 5.17.040—5.17.070; Amends §§ 5.17.090—5.17.115
1995	12- 4-2014	Supplemental appropriation ordinance changing the 2014 budget for additional appropriation requests (special)

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Ord. No.	Date	Code Section and Description
1996	12-11-2014	Amends § 18.64.030(a); Adds § 18.64.030(a)(x), pertaining to community marketing program (Ch. 18.64)
1997	12-11-2014	Amends §§ 18.12.010(2), (3), 18.28.150, 18.28.200, 18.28.300(c), 18.28.350(1), (2), (8), 18.40.350, 18.48.060(1)(b); Deletes § 18.12.030(3)(b), pertaining to land use requirements for property (Tit. 18)
1998	12-11-2014	Authorizing an exemption under Chapter 18.70.020(2) for up to 33 senior housing units for a senior living facility at 20001 Golden Gate Canyon Road (special)
1999	12- 4-2014	Amends fees for the drainage utility enterprise pursuant to Chapter 13.35 of the Golden Municipal Code, effective January 1, 2015 (special)
2000	2-19-2015	Annexing certain unincorporated land located in Section 1, Township 4 South, Range 70 West of the Sixth Principal Meridian to the City of Golden, as requested by Camping World (special)
2001	2-19-2015	Zoning certain land located in Section 1, Township 4 South, Range 70 West of the Sixth Principal Meridian in the City of Golden, Colorado, as requested by Camping World (special)
2002	2- 5-2015	Vacating a portion of 18th Street between Illinois Street and Elm Street and a portion of Maple Street between 18th Street and the alley to the north, retaining certain easements thereupon (special)
2003	2-19-2015	Enacts § 15.40.117, pertaining to waivers of the automatic sprinkler system requirements (15.40)
2004	4- 9-2015	Repeals § 2.24.050, Transcription costs
2005	4- 9-2015	Vacating a 300-foot section of W. 7th Avenue West of its intersection with Nile Street, as requested by Camping World C/O National Retail Properties, LP
2006	4- 9-2015	Adds 13.08.010(a)(8) pertaining to public park or open space water filling stations
2007	4- 9-2015	Amends portion of Ord. 1681 pertaining to water and sewer system development fees (Special)
2008	5-14-2015	Amends 2.40.015 adding definitions pertaining to design-build construction; Adds 2.40.050, Design-build agreements
2009	5-14-2015	Amends 4.80.020(a)(1); 4.80.025(b)(2), (c)(1), pertaining to solid waste collection and recycling services
2010	5-14-2015	Budget (Special)
2011	5-28-2015	Amends 1.05.120 relating to local campaign finance enforcement
2012	6-11-2015	Amends 1.05.000; 1.05.010(b), (c), (f), (g), (h), (j), (k), (m), (o), (p); 1.05.030; 1.05.040(a); 1.05.050(a), (g); 1.05.060, 1.05.115, relating to local campaign finance reporting requirements
2013	6-25-2015	Amends 3.03.010(f); 3.04.050(b), pertaining to community marketing fund
2014	6-25-2015	Rezoning (Special)
2015	9-24-2015	Amends 2.60.030, 2.60.040, Art in public places program (Ch. 2.60)
2016	12-10-2015	Amends 18.32.030(e), 18.32.040(a), 18.32.040(b), 18.32.080; Deletes 18.32.040(c), relating to the regulation of signs (Ch. 18.32)
2017	10- 8-2015	Amends 18.28.150(1), 18.30.020(7), 18.30.020; Adds 18.30.020(9)(j), land use requirements for property (Chs. 18.28, 18.30)

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
2018	11-12-2015	Water and wastewater enterprise water revenue refunding bonds (special)
2019	12- 3-2015	2015 budget (special)
2020		Defeated
2021	12-10-2015	Amends 4.80.010, 4.80.020(a)(1), licensing of solid waste collection and recycling providers (Ch. 4.80)
2022	12-10-2015	Amends 4.82.010, 4.82.035(b), residential waste collection services (Ch. 4.82)
2023	1-21-2016	School of Mines Coorstek Center for Applied Science and Engineering O.D.P. official development plan (special)
2024	1-21-2016	One-time extension to term lengths in Chs. 2.64, 18.62 (special)
2025	2-25-2016	Amends Chs. 15.08, 15.12, 15.16, 15.17, 15.26, 15.30, 15.40, 15.50, building codes
2026	2-25-2016	Amends Ch. 16.04, fire code
2027	2-25-2016	Lease-purchase financing (special)
2028	4-15-2016	2016 budget (special)
2029	7-28-2016	Enacts § 1.01.110(g), pertaining to the collection of municipal court fines and costs
2030	7-28-2016	Approves the Bachman Filing No. 1 Subdivision and amends Ordinance No. 2014 (special)
2031	7-28-2016	Declares the intent to acquire from the Public Service Company, Colorado, d/b/a XCEL Energy, the street lights and appurtenant facilities that currently serve Golden's municipal street system (special)
2032	8-11-2016	Annexes unincorporated land owned by the Colorado Department of Transportation located in the northwest ¼ of Section 33, Township 3 south, Range 70 west (special)
2033	8-11-2016	Zones certain land owned by the Colorado Department of Transportation located in the northwest ¼ of Section 33, Township 3 south, Range 70 west (special)
2034	8-25-2016	Authorizes the conveyance of real property at 1150 Pine Ridge Road and 1730 Catamount Drive (special)
2035	9- 8-2016	Approves the Carmax at Interplaza West Official Development Plan as requested by Carmax Auto Superstores West Coast, Inc. (special)
2036	9- 8-2016	Amends portions of the Interplaza West Planned Unit Development Official Development Plan pertaining to sign regulations (special)
2037	9- 8-2016	Amends portions of Ch. 10.90 pertaining to parking restrictions in designated areas, Ch. 10.90, title, 10.90.010, 10.90.020(a), 10.90.040, 10.90.050(a), 10.90.060
2038	10-27-2016	Conveyance of property (special)
2039	11-10-2016	Repeals 5.11.070, unlawful acts in regards to smoking in public places and other areas; Adds 5.19.030(a)(9), pertaining to marijuana residential cultivation restrictions
2040	11-10-2016	Amends 7.05.010 pertaining to the animals running at large
2041	11-10-2016	Amends 8.04.300, 8.04.310(a), 8.04.910; Adds 8.04.415, 8.04.1000; Repeals 8.04.520 regarding criminal offenses
2042	11-10-2016	Repeals 11.08.140—11.08.180; Adds 11.08.140, pertaining to the clearing and maintenance of sidewalks

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Ord. No.	Date	Code Section and Description
2043	12- 1-2016	2016 budget (special)
2044	1-12-2017	Amends 10.04.110(3) pertaining to the model traffic code
2045	1-12-2017	Vacating rights-of-way (special)
2046	1-26-2017	Adds Ch. 8.30, pertaining to park and recreation rules and regulations
2047	1-26-2017	Repeals and reenacts Ch. 18.32 pertaining to signs
2048	2- 9-2017	Amends 18.40.350 pertaining to sustainability menu requirements
2049	2- 9-2017	Amends 18.04.020, 18.28.030, 18.28.055, 18.28.085, 18.28.155, 18.28.165, 18.28.175, 18.28.185, 18.28.540, 18.30.020; Adds Ch. 18.26 pertaining to urban agriculture regulations
2050	2-23-2017	Conveyance of real property (special)
2051	3-23-2017	Amends 8.25.010 pertaining to administration citations
2052	3-23-2017	Adds Ch. 2.66 pertaining to volunteer firefighters' pension board
2053	3-23-2017	Amends 18.26.010 pertaining to urban agriculture regulations
2054	3-23-2017	Amends 18.52.020(b)(4), 18.52.025 pertaining to the downtown development district
2055	4-27-2017	Repeals and reenacts 3.02.010, 3.03.010, 3.03.040, 3.03.050, 3.08.010(b); Amends 3.03.020, 3.03.030, pertaining to standardized sales and use tax
2058	7-13-2017	Repeals Ch. 18.16, planning commission; Adds Ch. 2.44, planning commission; Adds. Ch. 2.76, mobility and transportation advisory board
2059	7-27-2017	Approves the Coors Technology Center Official Development Plan Amendment Number One as requested by the Kong Company, LLC (special)
2060	8-10-2017	Enacts 8.04.905, unlawful storage of firearms
2061	8-10-2017	Designates the Piggly Wiggly building at 807 13th Street as a historic site within the City of Golden pursuant to Chapter 18.58 of the Golden Colorado Code (special)
2062	8-24-2017	Conveyance of real property (special)
2063	10-12-2017	Repeals Chs. 18.54, 18.62 and 18.58.050; enacting Chs. 2.54, 2.68, 2.72, and 18.58.035(4)(d); and amending Ch. 2.50, 18.58.020, 18.58.025, 18.58.050, 18.64.020, 18.64.030; pertaining to citizen boards and commissions
2064	10-12-2017	Amends title 18, 18.04.020; Deletes 18.28.040(7), (8), 18.28.130(9), 18.28.170(2), 18.28.200(2)(d), 18.28.210(e), 18.28.350(10), and 18.30.020(8)(L); Adds Ch. 18.90, pertaining to telecommunication facilities
2065	10-26-2017	Vacating a portion of 14th Street west of Maple Street (special)
2066	12- 7-2017	Supplemental appropriation ordinance (special)
2067	2- 8-2018	Moratorium on acceptance and processing of new applications for special use permit approvals under sections 18.28.085(2), 18.28.105(1), and 18.28.115(2) (special)
2068	3-22-2018	Amends 18.04.020, 18.28.200(1), (5) regarding building setback and lot frontage requirements
2069	3-22-2018	Designates the Boutwell Residence at 514 9th Street as a Historic Site (special)

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
2070	3-22-2018	Designating the Durham Tobacco Barn Mural at 514 9th Street as a Historic Site (special)
2071	3-22-2018	Amends 8.04.900, definition of illegal weapon
2072	3-22-2018	Adds ch. 10.10; amends 10.04.330, 10.04.360, pertaining to vehicle parking regulations
2073	3-22-2018	Adds 5.01.070(k), Use of air compression brakes prohibited
2074	3-22-2018	Adds 10.04.132, 10.04.135, 10.04.325, 10.04.378; amends 10.04.210, pertaining to the model traffic code
2075	5-24-2018	Changes the 2018 budget for carryover and additional appropriation requests
2076	5-24-2018	Approves the Colorado School of Mines Residence Hall VI O.D.P. official development plan
2077	5-24-2018	Rezoning
2078	5-24-2018	Amends 18.04.020, 18.28.050, 18.28.080, 18.28.085, 18.28.115; adds ch. 18.22; all pertaining to short-term rental licensing regulations
2079	7-12-2018	Amends 13.04.002, 13.04.005, 13.04.006(1), 13.04.150(3), 13.30.040, 13.30.050, 13.30.060(d), 13.30.070(c), 13.30.110—13.30.140, 13.40.010, 13.40.030, 13.40.040(b), 13.40.050, 13.40.070—13.40.100, 13.40.120; adds 13.08.020(e); repeals 13.20.010, 13.20.020, pertaining to water and wastewater services, fire hydrant, stormwater and cross-connection regulations and fees
2080	7-12-2018	Amending Section 1 of Ordinance 2065 pertaining to a condition of approval on an ordinance vacating that portion of 14th Street west of Maple Street, dedicating to the city as a requirement of Ordinances 1697 and 1817, as requested by the Colorado School of Mines (Special)
2081	7-26-2018	Approves the Public Service Company of Colorado Lookout Center Planned Unit Development Official Development Plan as requested by Public Service Company of Colorado (Special)
2082	7-26-2018	Adds 18.28.560, amends 18.40.840, community mixed-use zoning
2083	8-23-2018	Amends 5.11.030; repeals 5.11.035, general smoking restrictions
2084	8-23-2018	Submits to the voters an amendment to the Home Rule Charter regarding minimum age qualifications for municipal electors and establishing a ballot title therefor (Special)
2085	8-23-2018	Amends 4.84.010, 4.84.020, 4.84.030(a), 5.11.020, 8.04.860(a), 8.04.970(g), 10.04.370(1)(a), regarding the Colorado Beer Code, the Colorado Liquor Code, and the Colorado Special Events Permit Code
2086	10-11-2018	Designation of historic site
2087	10-11-2018	Designation of historic site
2088	10-11-2018	Amends 18.70.020, 18.70.060(1), 18.04.020 pertaining to reapportionment of available annual allocations for transit-orientated projects and multifamily affordable dwelling unit projects
2089	10-11-2018	Amends 18.40.724 relating to scale and character standards in zone A of the Downtown Core Area and the CMU-NC zone districts
2090	10-11-2018	Amends 18.26.010, 18.26.015 regarding farmer's markets
2091	10-25-2018	Amends height standards in Shelton Studio Ranch Planned Unit Development
2092	10-25-2018	Approves the Calvary Church Subdivision and conditionally vacates a portion of 1300 block of Arapahoe Street

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Ord. No.	Date	Code Section and Description
2093	12- 6-2018	Changing the 2018 budget for additional appropriation requests
2094	12- 6-2018	Amends 13.08.020, 13.08.070(b), 13.08.080, pertaining to water and wastewater rates and charges
2095	12- 6-2018	Amending rates and charges for water and wastewater services effective January 2, 2019
2096	1-10-2019	Approving city initiated partial vacation of a portion of South Golden Road adjacent to 17204 South Golden Road
2097	1-10-2019	Adds 18.40.340; amends 18.40.350, regarding sustainability requirements for site plan approval of multifamily and commercial projects
2098	2-14-2019	Adds 4.84.040, relating to alcoholic beverage tastings
2100	3- 7-2019	Amends 18.04.020; 18.28.070, 18.28.085, 18.28.105; adds 18.26.060—18.26-090, 18.28.030(13), (14); repeals 18.30.020(7), regarding domestic small livestock and fowl
2101	3- 7-2019	Vacating the southern half of the alley within Block 19 of Welch's addition, located between 23rd and 24th Streets and between Ford and Jackson Streets, and accepting the dedication of an easement for public access, emergency vehicle access and utilities
2102	3- 7-2019	Granting approval of a reapportionment request for residential allocations associated with the affordable housing project to be located at 612 24th Street
2103	2-28-2019	Repeals chs. 4.16, 4.52, 4.68, and 4.76
2104	3-21-2019	Moratorium on acceptance and processing of applications for issuance of building permits
2105	4-25-2019	Amends 13.04.220(b), pertaining to city contribution to sewage backup clean-up services
2106	4-25-2019	2019 budget
2107	4-25-2019	Approval of Ord. 2092 pertaining to vacation of a portion of Arapahoe Street between 13th Street and 14th Street
2108	6-27-2019	Repeals and reenacts chs. 15.08, 15.12, 15.16, 15.17, 15.26, 15.30, 15.40, 15.50, pertaining to various building codes
2109	6-27-2019	Repeals and reenacts ch. 16.04, pertaining to the International Fire Code
2110	6-13-2019	Amends 18.12.040, 18.12.045(4), 18.28.200, 18.40.020(1), (2), 18.40.030; Adds 18.12.050, 18.12.060, pertaining to variances, lot and bulk standards for residential developments in the R-2 and R-3 districts, and site development regulations
2111	7-25-2019	Approves an application to amend the Golden Overlook PUD to accommodate a self-storage and personal warehouse commercial development project
2112	6-27-2019	Authorizes the use of lease-purchase financing for the acquisition, construction, improvement and equipping of facilities to be uses as a municipal and civic center
2113	7-11-2019	Approves deannexation of certain territory located in the southeast ¼ of Section 15, Township 4 South, Range 70 West of the 6th Prime Meridian adjoining a Colorado Department of transportation parking lot facility

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
2114	7-25-2019	Amended 17.40.020(2), 17.70.130(8), and 18.28.200, 18-28.210(e), regarding subdivisions and lot, bulk standards for residential developments in the R-2 and R-3 districts; and special use permits in the C1 and C2 districts
2115	7-25-2019	Amends 1.01.110(e) regarding violations/penalties
2116	9-26-2019	Approves application to amend Coors Technology Center Official Development Plan
2117	9-26-2019	Approves lease of storage in Guanella Reservoir to Clear Creek Skiing Corporation
2118	12-12-2019	Repealed and recreated ch. 4.96, nicotine or tobacco retailers; amended 8.04.880, regarding underage person's tobacco restrictions
2119	12- 5-2019	Amended 13.25.050, regarding drainage utility board duties and powers
2120	12- 5-2019	Established water and wastewater rates and charges
2121	12- 5-2019	Establishes drainage service and facility monthly usage fees
2122	12- 5-2019	Added 15.08.191, regarding International Building Code
2123	12- 5-2019	Added 16.04.032, regarding International Fire Code
2124	12- 5-2019	2019 Appropriation requests
2125	1-23-2020	Vacating of utility easement
2126	1-23-2020	Vacating of utility easement
2127	1-23-2020	Vacating of alley
2128	2-13-2020	Amended 13.30.070(d) concerning remedies for noncompliance of stormwater quality provisions
2129	2-13-2020	Amended 2.35.010(a), 2.35.030(a)(4)(ii), 2.35.040, 2.35.050(e), regarding administrative hearing procedures
2130	2-13-2020	Amended 8.25.010, 8.25.120, regarding of stormwater quality violations
2131	2-27-2020	Amended 18.04.020, regarding definition of terms
2132	2-27-2020	Approves application to amend Lookout Center Official Development Plan
2133	2-27-2020	Designation of historic site
2134	2-27-2020	Amended 18.28.240, regarding accessory dwelling units
2135	5-14-2020	Execution and delivery of documents in connection with the substitution of certain real property for existing leased property under the lease purchase agreement
2136	5-14-2020	Deannexation
2137	5-14-2020	Amended 8.25.010, 8.25.120 regarding administration citations and penalties
2138	5-14-2020	Appropriation ordinance
2139	7-23-2020	Amended 3.02.010; Added 3.04.070, 3.05.030(f) pertained economic nexus and the obligation of remote sellers to collect and remit sales tax
2140	7- 9-2020	Emergency ordinance requiring face coverings
2142	8-13-2020	Designation of local historic landmark property
2143	9-10-2020	Adds Ch. 15.70, graywater systems; Amends 8.25.010, administrative citations
2144	8-27-2020	Amended 3.03.010(f), 3.04.050(b) pertaining to the effective date of the Community Fund

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Ord. No.	Date	Code Section and Description
2145	9-10-2020	Amended 10.04.340, parking regulations
2146	9-10-2020	Vacating of alley
2148	12- 3-2020	Water and wastewater rates and charges
2149	12- 3-2020	Drainage service and facility monthly usage fees
2150	12- 3-2020	Supplemental appropriation requests
2151	1-26-2021	Amended 4.90.010, 4.90.020, 4.90.050, 4.90.060, permits for downtown use of sidewalks and seasonal use of parking lanes
2152	1-26-2021	Added 2.06.030, publication requirements
2153	1-12-2021	Repealed and re-enacted Ord. 2140 requiring the wearing of face coverings
2154	2- 9-2021	Deannexation of certain parcels located between 167 and 147 Alpine Avenue
2155	1-26-2021	Lease and use authorization
2156	4-20-2021	Amends 18.40.340, 18.40.350; Adds 18.40.341, pertaining to sustainability requirements for site plan approval of multifamily and commercial projects
2158	4-20-2021	Changes 2021 Budget for carryover and additional appropriation requests
2159	4-20-2021	Repeals Ord. 2153, pertaining to the wearing of face coverings
2147	3-23-2021	Repealing, reenacting and retitling ch. 4.44, Solicitation
2157	5-25-2021	Repeals and reenacts ch. 11.20; Repeals ch. 11.24; Amends §§ 8.25.010, 8.25.120, all pertaining to right-of-way regulations
2160	5-11-2021	Designating the principle structure at 904 Arapahoe Street as a contributing structure in the City of Golden's 8th and 9th Street Historic District
2162	7-27-2021	Approving an application to rezone the Golden Hills Mobile Home Park from R2 to PUD
2165	7-13-2021	Providing a 180-day moratorium on the acceptance and processing of applications for building permits for new household dwelling unit structures, expansions of household dwelling units, or site development plan approval in the R1, R1A, R2 and R3 zone districts
2166	7-27-2021	Amended 2.44.020, 2.50.020, 2.54.020, 2.64.020, 2.66.020(a), 2.68.020, 2.72.020, 2.76.020 concerning the service of members appointed to city board and commissions by city council
2167	8-24-2021	Amended 8.30.030(e) regarding park hours
2168	10-26-2021	Grants temporary parking lane permits
2169	12- 7-2021	Budget appropriation requests
2170	12- 7-2021	Amended 3.01.010, 3.01.020; Added ch. 3.10 regarding lodging tax
2171	1-25-2022	Amended 8.25.010 regarding administrative citations Added 5.21.010—5.21.040 regarding healthy beverages with children's meals
2172	1-25-2022	Extended a moratorium on acceptance and processing of applications for building permits in R1, R1A, R1 and R3 zone districts
2173	1-25-2022	Repealed and replaced ch. 5.15 regarding noise
2174	3-15-2022	Annexation of territory known as "The Bobcat of the Rockies"
2175	3-15-2022	Establishes initial zoning for property known as "The Bobcat of the Rockies annexation"
2176	3-15-2022	Annexation agreement

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
2177	4-12-2022	Amended 13.01.030, 13.25.030, 13.04.002, regarding water and waste water board, utility board, and application for water and waste water service
2179	7-12-2018	Amended 8.40.020, regarding site development plan review
2180	5-10-2022	Amended 11.20.060; added 13.04.145, 17.10.070, 18.08.070 concerning applicant payment of consultant reimbursement fees
2181	5-24-2022	Amended 17.10.045(3), 17.40.020, 18.04.020, ch. 18.40; added ch. 18.29, pertaining to zoning definitions; form zoning
2182	5-10-2022	Adds chapter 5.20, Clear Creek Recreation
2183	6-14-2022	Repealed and replaced ch. 4.94; repealed ch. 4.98 pertaining to medical marijuana licensing
2184	6- 7-2022	Rezoning
2185	6- 7-2022	Vacation of alley
2186	6- 7-2022	Approved vesting agreement
2187	6-14-2022	Authorized conveyance of property
2188	7-12-2022	Amends tit. 3 "title"; adds chapter 3.11, Retail marijuana tax
2189	7-12-2022	Amends 8.25.010, ch. 10.04, Traffic Code
2190	7-26-2022	Amends chapter 16.04, International Fire Code
2191	7-12-2022	Repeals Ord. 1681, and Ord. 1929, adopts new water and sewer system development fees
2192	7-26-2022	Adds chapter 15.02, general provisions; amends chapters 15.08, 15.12, 15.16, 15.17, 15.26, 15.30, 15.40, 15.50, building codes
2193	7-26-2022	Conveyance of property
2194	8-23-2022	Adds 3.03.040(a)(30), (31), 3.03.060(a)(5), (6), retail delivery fees
2195	10-11-2022	Adds chapter 2.18, affordable housing trust fund
2196	10-25-2022	Repeals and replaces Ch. 18.90, wireless communication facilities
2197	11-15-2022	2nd amendment to Lena Gulch PUD, O.D.P.
2198	11-15-2022	Adopts by reference the September 2022 version of water and wastewater specifications
2199	12- 6-2022	Supplemental appropriation change to 2022 budget
2200	12- 6-2022	Amends rates and charges for water and services effective January 1, 2023, and wastewater rates and services effective January 1, 2024
2201	12- 6-2022	Amends monthly drainage service fees effective January 1, 2023; and January 1, 2024
2202	12-13-2022	Amends 2.08.020, 2.08.090; repeals 2.08.040—2.08.080, administration
2203	3-14-2023	Amended 18.70.010—18.70.040, 18.70.050(a), 18.70.060, 18.70.100(b)(3), 18.70.110, regarding allocations for congregate living use
2204	3-28-2023	Amended 5.15.050 regarding exceptions to noise limits for maintenance, construction, repair, or improvement to public roads and facilities
2205	4-11-2023	Amended Ch. 4.90 title, 4.90.020, 4.90.030, 4.90.040(e), 4.90.050, 4.90.060, 4.90.070; added 4.90.035, 4.90.055, 4.90.065, 4.90.075, regarding public sales and display permits and outdoor seating and service permits
2206	4-25-2023	Added 8.25.120(g), 13.04.195 regarding assessed penalties for wasting of water
2208	5- 9-2023	Amended 3.05.010, requiring sales and use tax license

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Ord. No.	Date	Code Section and Description
2209	6- 6-2023	Amended Title 17, 18.04.020, Ch. 18.12, Ch. 18.20, 18.24.020, Ch. 18.28, Ch. 18.29, Ch. 18.36, Ch. 18.38, Ch. 18.40, Ch. 18.48; Adds Ch. 18.10, regarding Phase 2 Code changes
2210	6- 6-2023	Amended 18.07.070(a), regarding application fees
2212	7-25-2023	Rezoning
2214	7-25-2023	Amended 10.04.220, regarding speed limits
2215	7-25-2023	Adds Ch. 10.95, regarding automated vehicle registration systems
2216	7-25-2023	Repealed and replaced Ch. 4.96 regarding nicotine or tobacco product retailers; Amended 8.04.880, regarding underage person's tobacco restrictions and prohibitions
2217	7-25-2023	Amended 3.05.030(f), regarding licensing
2219	8-22-2023	Historic site designation
2220	8-22-2023	Historic site designation
2221	8-22-2023	Historic site designation
2222	8-22-2023	Charter amendments
2223	8- 8-2023	Amended 2.08.012, regarding salary of mayor, mayor pro-tem, and city council
2224	11-14-2023	Appropriation ordinance
2225	11-28-2023	Amended 11.40.010, 11.40.030, regarding traffic calming
2226	11-28-2023	Water and wastewater rates and charges
2228	2-13-2024	Amended Ch. 18.04, 18.22, 18.29, 18.30, 18.32, 18.34; Repealed and restated Ch. 18.44, regarding specific nonconforming situations
2229	2-13-2024	Amended 18.04.020, 18.28.150, 18.28.155(8), 18.28.165(13), 18.28.540, 18.36.020(1); Added 18.28.560, regarding permitted uses, and special use permits
2230	3-20-2024	Added 2.48.010—2.48.070, Downtown development authority; Added 2.70.010—2.70.060, Golden Urban Renewal Authority
2231	5-28-2024	Repealed and replaced Ch. 15.18, regarding site improvements
2232	4- 9-2024	Annexation
2233	4- 9-2024	Rezoning
2234	5-28-2024	Annexation
2235	4-23-2024	Budget amendment
2238	5-14-2024	Added 8.04.570, regarding hunting prohibited within city limits
2239	5-28-2024	Amended 18.60.050(1), regarding Charter limitations
2240	5-28-2024	Amended 5.20.010—5.20.100, 8.30.040(d), regarding Clear Creek Recreation
2243	8-13-2024	Repeals 7.03.050—7.03.070, pertaining to licenses
2244	7-23-2024	Franchise approval
2245	9-10-2024	Amends 4.94.120(p), pertaining to signs and advertising licenses
2247	10- 8-2024	Approves vacation of the right-of-way located on Arapahoe Street between 14th Street and 15th Street
2248	10-22-2024	Authorizes the inclusion of certain city-owned properties into the Downtown Development Authority boundaries

ORDINANCE LIST

Ord. No.	Date	Code Section and Description
2249	10-22-2024	Authorizes the issuance and sale of Stormwater Revenue Bonds, Series 2024, in an aggregate principal amount not to exceed \$7,500,000 for the purpose of financing, in whole or in part, the cost of additions and improvements to the drainage system operated by the drainage utility enterprise of the city
2251	12- 3-2024	Added Ch. 4.84, Natural Medicine Business Regulations, and ammended § 18.42.030, regarding prohibited home occupations
2252	1-28-2025	Repeals and reenacts Ch. 18.10 and amends §§ 17.30.010—17.30.060, 18.12.010—18.12.030, 18.12.110, 18.12.210, 18.28.320, 18.28.370, 18.29.07.02, 18.30.020—18.30.040, 18.40.025—18.40.045, 18.48.020—18.48.050, 18.50.020, 18.56.020, 18.56.050, and 18.04.020
2258	1-28-2025	Repeals and reenacts Ch. 18.28 and amends §§ 18.04.020 and 18.36.010
2259	1-28-2025	Added Ch. 2.62, repeals Ch 2.64, and amends §§ 2.68.010—2.68.050 and 2.68.070
2260	1-29-2025	Amends §§ 10.04.010, 10.04.050, 10.04.170, 10.04.190, 10.04.260, and 10.04.340
2261	1-28-2025	Amends parking easement agreement for access to the 1250 Jackson Street Parking Garage (Special)
2263	3-25-2025	Amends §§ 10.10.010, 10.10.020, 10.10.030, and 10.10.060
2264	4- 8-2025	Amends §§ 1.04.030—1.04.060
2265	4- 8-2025	Amends 1.05.000, 1.05.090, and 1.05.120 and adds Chs. 1.07, 1.08, 1.09 and 1.10
2266	4-22-2025	Amends §§ 2.44.040, 2.50.040, 2.66.030, 2.72.040, and 2.76.040
2267	5-27-2025	Adds Ch. 2.74, Repeals Ch. 18.64 and amends §§ 3.03.010 and 3.04.050
2268	7-22-2025	Amends §§ 15.01.010, 15.01.020, 15.01.060, and 15.01.080 and repeals and reenacts Chs. 15.08, 15.12, 15.16, 15.17, 15.26, 15.30, 15.40, and 15.50
2269	7-22-2025	Vacation of the right-of-way located on Lookout View Drive at 211 Lookout View Drive (special)
2270	8-12-2025	Amends §§ 18.04.020, 18.28.03.01, and 18.36.020
2271	8-12-2025	Amends §§ 18.04.020, 18.22.010, 18.22.080, 18.22.090, and 18.28.03.01
2273	8-12-2025	Amends §§ 18.29.06.005 and 18.07.001.3
2274	7-22-2025	Adds §§ 2.18.045 and 2.18.046
2275	7-22-2025	Budget (special)
2276	7-22-2025	Amends §§ 5.15.010 and 5.15.040
2277	7-22-2025	Repeals and reenacts Ch. 16.04, adds Ch. 16.05, and amends §§ 16.08.060 and 16.08.090
2278	8-26-2025	Adds §§ 10.04.054, 10.04.056, and 10.04.354
2279	10-28-2025	Amends §§ 5.01.010, 5.01.070, 5.15.010, 5.15.050, 11.20.020, 11.20.130, 11.20.140, 11.20.170, 11.20.230, 15.08.140, 15.08.150, 15.18.030, and 18.34.020 and adds § 10.76.260
2282	12- 9-2025	Amends §§ 18.04.020, 18.29.03.004, 18.29.03.007, 18.29.03.016, 18.29.06.004, 18.40.010—18.40.020, 18.40.200—18.40.212, 18.40.220—18.40.222, and 18.40.340—18.40.342, adds §§ 18.40.215—18.40.217 and repeals Ch. 18.24
2283	12- 9-2025	Amends Ch. 18.70

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Ord. No.	Date	Code Section and Description
2284	12- 9-2025	Amends §§ 7.01.010 and adds 7.05.000—7.05.120
2285	12- 9-2025	Amends § 13.08.020
2288	3-10-2026	Repeals and replaces Ch. 18.58 and amends § 18.10.030
2289	3-10-2026	Adds § 2.24.055 and amends § 2.24.070
2290	3-10-2026	Adds Ch. 15.80
2292	4-28-2026	Amends §§ 8.25.010, 8.25.120, 13.04.190, and 13.04.195